

Code of Alabama
Title 15. Criminal Procedure.
Chapter 20. Sex Offenders.

Ala.Code 1975 T. 15, Ch. 20, Refs & Annos
Currentness

Ala. Code 1975 T. 15, Ch. 20, Refs & Annos, AL ST T. 15, Ch. 20, Refs & Annos
Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20. Sex Offenders. (Refs & Annos)

Article 1. Sex Offenders Reporting Requirements.

Ala.Code 1975 § 15-20-1

§§ 15-20-1 through 15-20-5. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-1, AL ST § 15-20-1

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20. Sex Offenders. (Refs & Annos)

Article 1. Sex Offenders Reporting Requirements.

Ala.Code 1975 § 15-20-2

§§ 15-20-1 through 15-20-5. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-2, AL ST § 15-20-2

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Title 15. Criminal Procedure. (Refs & Annos)

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Article 1. Sex Offenders Reporting Requirements.

Ala.Code 1975 § 15-20-3

§§ 15-20-1 through 15-20-5. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-3, AL ST § 15-20-3

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20. Sex Offenders. (Refs & Annos)

Article 1. Sex Offenders Reporting Requirements.

Ala.Code 1975 § 15-20-4

§§ 15-20-1 through 15-20-5. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-4, AL ST § 15-20-4

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Title 15. Criminal Procedure. (Refs & Annos)

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Article 1. Sex Offenders Reporting Requirements.

Ala.Code 1975 § 15-20-5

§§ 15-20-1 through 15-20-5. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-5, AL ST § 15-20-5

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Article 2. Community Notification of Released Convicted Sex Offenders.

Ala.Code 1975 § 15-20-20

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-20, AL ST § 15-20-20

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Ala.Code 1975 § 15-20-20.1

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-20.1, AL ST § 15-20-20.1

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Ala.Code 1975 § 15-20-21

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-21, AL ST § 15-20-21

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Ala.Code 1975 § 15-20-22

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-22, AL ST § 15-20-22

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Ala.Code 1975 § 15-20-23

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-23, AL ST § 15-20-23

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Ala.Code 1975 § 15-20-23.1

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-23.1, AL ST § 15-20-23.1

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Ala.Code 1975 § 15-20-24

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-24, AL ST § 15-20-24

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Ala.Code 1975 § 15-20-25

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-25, AL ST § 15-20-25

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Ala.Code 1975 § 15-20-25.1

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-25.1, AL ST § 15-20-25.1

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Ala.Code 1975 § 15-20-25.2

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-25.2, AL ST § 15-20-25.2

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Ala.Code 1975 § 15-20-25.3

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-25.3, AL ST § 15-20-25.3

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Ala.Code 1975 § 15-20-26

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-26, AL ST § 15-20-26

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Ala.Code 1975 § 15-20-26.1

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-26.1, AL ST § 15-20-26.1

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Ala.Code 1975 § 15-20-26.2

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-26.2, AL ST § 15-20-26.2

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Ala.Code 1975 § 15-20-27

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-27, AL ST § 15-20-27

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Ala.Code 1975 § 15-20-28

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-28, AL ST § 15-20-28

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Ala.Code 1975 § 15-20-29

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-29, AL ST § 15-20-29

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Ala.Code 1975 § 15-20-30

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-30, AL ST § 15-20-30

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Ala.Code 1975 § 15-20-31

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-31, AL ST § 15-20-31

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Ala.Code 1975 § 15-20-32

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-32, AL ST § 15-20-32

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Ala.Code 1975 § 15-20-33

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-33, AL ST § 15-20-33

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Ala.Code 1975 § 15-20-34

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-34, AL ST § 15-20-34

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Article 2. Community Notification of Released Convicted Sex Offenders.

Ala.Code 1975 § 15-20-35

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-35, AL ST § 15-20-35

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Article 2. Community Notification of Released Convicted Sex Offenders.

Ala.Code 1975 § 15-20-36

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-36, AL ST § 15-20-36

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Article 2. Community Notification of Released Convicted Sex Offenders.

Ala.Code 1975 § 15-20-37

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

Currentness

Ala. Code 1975 § 15-20-37, AL ST § 15-20-37

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Ala.Code 1975 § 15-20-38

§§ 15-20-20 through 15-20-38. Repealed by Act 2011-640, p. 1569, § 49, effective July 1, 2011.

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Ala. Code 1975 § 15-20-38, AL ST § 15-20-38

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Title 15. Criminal Procedure.

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act.

Ala.Code 1975 T. 15, Ch. 20A, Refs & Annos

Currentness

Ala. Code 1975 T. 15, Ch. 20A, Refs & Annos, AL ST T. 15, Ch. 20A, Refs & Annos

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-1

§ 15-20A-1. Short title.

Currentness

This chapter shall be known and may be cited as the Alabama Sex Offender Registration and Community Notification Act.

Credits

(Act 2011-640, p. 1569, § 1.)

Ala. Code 1975 § 15-20A-1, AL ST § 15-20A-1

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-2

§ 15-20A-2. Legislative findings.

Currentness

The Legislature makes all of the following findings:

(1) Registration and notification laws are a vital concern as the number of sex offenders continues to rise. The increasing numbers coupled with the danger of recidivism place society at risk. Registration and notification laws strive to reduce these dangers by increasing public safety and mandating the release of certain information to the public. This release of information creates better awareness and informs the public of the presence of sex offenders in the community, thereby enabling the public to take action to protect themselves. Registration and notification laws aid in public awareness and not only protect the community but serve to deter sex offenders from future crimes through frequent in-person registration. Frequent in-person registration maintains constant contact between sex offenders and law enforcement, providing law enforcement with priceless tools to aid them in their investigations including obtaining information for identifying, monitoring, and tracking sex offenders.

(2) Juvenile sex offenders also pose a risk to the community. Due to juvenile sex offenders offending in their formative years, it is imperative that they receive sex offender treatment. At the completion of sex offender treatment, all juvenile sex offenders must undergo a risk assessment, and a hearing must be held by the court to determine their level of risk to the community and the level of notification that should be provided to best protect the public. Juvenile sex offenders adjudicated delinquent of the most serious offenses who pose a greater threat should be subject to more stringent requirements.

(3) Homeless sex offenders are a group of sex offenders who need to be monitored more frequently for the protection of the public. Homeless sex offenders present a growing concern for law enforcement due to their mobility. As the number of homeless sex offenders increases, locating, tracking, and monitoring these offenders becomes more difficult.

(4) Sexually violent offenders also cause increased concern for law enforcement. These predators are repeat sexual offenders who use physical violence, offend on multiple victims, and prey on children. Due to their likelihood to engage in future sexually violent behavior, they present an extreme threat to the public safety. The Legislature declares that its intent in imposing additional tracking and monitoring requirements on sexually violent predators is to assist law enforcement in carrying out their duties and, most importantly, to protect the public, especially children.

(5) Sex offenders, due to the nature of their offenses, have a reduced expectation of privacy. In balancing the sex offender's rights, and the interest of public safety, the Legislature finds that releasing certain information to the public furthers the primary governmental interest of protecting vulnerable populations, particularly children. Employment and residence restrictions, together with monitoring and tracking, also further that interest. The Legislature declares that its intent in imposing certain registration, notification, monitoring, and tracking requirements on sex offenders is not to punish sex offenders but to protect the public and, most importantly, promote child safety.

Credits

(Act 2011-640, p. 1569, § 2.)

Ala. Code 1975 § 15-20A-2, AL ST § 15-20A-2

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-3

§ 15-20A-3. Applicability.

Currentness

(a) This chapter is applicable to every adult sex offender convicted of a sex offense as defined in Section 15-20A-5, without regard to when his or her crime or crimes were committed or his or her duty to register arose.

(b) Any adult sex offender shall be subject to this chapter for life.

(c) This chapter is applicable to juvenile sex offenders who are adjudicated delinquent pursuant to the Alabama Juvenile Justice Act, Sections 12-15-101 to 12-15-601, inclusive, formerly Sections 12-15-1 to 12-15-176, inclusive, Code of Alabama 1975, of a sex offense as defined in Section 15-20A-5.

(d) A juvenile sex offender adjudicated delinquent of a sex offense as defined in Section 15-20A-5 on or after July 1, 2011, shall be subject to this chapter for the duration of time as provided in Section 15-20A-28. A juvenile sex offender adjudicated delinquent of a sex offense as defined in Section 15-20A-5 prior to July 1, 2011, shall be subject to registration and verification pursuant to this chapter for 10 years from the last date of release on the sex offense subjecting the juvenile sex offender to registration, and the juvenile sex offender shall be subject to notification during the registration period if notification was previously ordered by the sentencing court.

(e) This chapter is applicable to youthful offender sex offenders who are adjudicated as a youthful offender pursuant to the Youthful Offender Act, Sections 15-19-1 to 15-19-7, of a sex offense as defined in Section 15-20A-5.

(f) A youthful offender sex offender adjudicated as a youthful offender of a sex offense as defined in Section 15-20A-5 on or after July 1, 2011, shall be subject to this chapter as provided in Section 15-20A-35. A youthful offender sex offender adjudicated as a youthful offender of a sex offense as defined in Section 15-20A-5 prior to July 1, 2011, shall be treated as follows:

(1) If the youthful offender sex offender was not previously adjudicated or convicted of a sex offense, he or she shall be treated as a juvenile sex offender adjudicated prior to July 1, 2011, pursuant to subsection (d).

(2) If the youthful offender sex offender was previously adjudicated or convicted of a sex offense, he or she shall be treated as an adult sex offender pursuant to subsection (b).

Credits

(Act 2011-640, p. 1569, § 3.)

Ala. Code 1975 § 15-20A-3, AL ST § 15-20A-3

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-4

§ 15-20A-4. Definitions.

Currentness

For purposes of this chapter, the following words shall have the following meanings:

- (1) ADULT SEX OFFENDER. A person convicted of a sex offense.
- (2) CHILD. A person who has not attained the age of 12.
- (3) CHILDCARE FACILITY. A licensed child daycare center, a licensed childcare facility, or any other childcare service that is exempt from licensing pursuant to Section 38-7-3, if it is sufficiently conspicuous that a reasonable person should know or recognize its location or its address has been provided to local law enforcement.
- (4) CONVICTION. A verdict or finding of guilt as the result of a trial, a plea of guilty, a plea of nolo contendere, or an Alford plea regardless of whether adjudication was withheld. Conviction includes, but is not limited to, a conviction in a United States territory, a conviction in a federal or military tribunal, including a court martial conducted by the Armed Forces of the United States, a conviction for an offense committed on an Indian reservation or other federal property, a conviction in any state of the United States or a conviction in a foreign country if the foreign country's judicial system is such that it satisfies minimum due process set forth in the guidelines under Section 111(5)(B) of Public Law 109-248. Cases on appeal are deemed convictions until reversed or overturned.
- (5) EMPLOYMENT. Compensated work or a volunteer position for any period of time, regardless of whether the work is full-time, part-time, self-employment, or as an independent contractor or day laborer, provided that employment does not include any time spent traveling as a necessary incident to performing the work.
- (6) FIXED RESIDENCE. A building or structure, having a physical address or street number, that provides shelter in which a person resides.
- (7) HOMELESS. The state of lacking a fixed residence.
- (8) IMMEDIATE FAMILY MEMBER. A parent or grandparent; child, grandchild, or sibling of any age by blood, adoption, or marriage; or spouse.
- (9) IMMEDIATELY. Within three business days.

(10) JURISDICTION. Any state of the United States, any United States territory, the District of Columbia, or any federally recognized Indian tribe.

(11) JUVENILE SEX OFFENDER. An individual who has not attained the age of 18 at the time of the offense and who is adjudicated delinquent of a sex offense.

(12) LOCAL LAW ENFORCEMENT. The sheriff of the county and the chief of police if the location subject to registration is within the corporate limits of any municipality, or, if applicable, the chief law enforcement officer for a federally recognized Indian tribe.

(13) MINOR. A person who has not attained the age of 18.

(14) OVERNIGHT VISIT. Any presence between the hours of 10:30 p.m. and 6:00 a.m.

(15) PREDATORY. An act directed at a stranger, a person of casual acquaintance, or with whom no substantial relationship exists, or a person with whom a relationship has been established or promoted for the purpose of victimization of that person or individuals over whom that person has control.

(16) PRIOR CONVICTION. The person has served and has been released or discharged from, or is serving, a separate period of incarceration, commitment, or supervision for the commission of a sex offense, as defined by Section 15-20A-5, prior to, or at the time of, committing another sex offense.

(17) REGISTERING AGENCY. Any agency with whom the sex offender registers required registration information.

(18) RELEASE. Release from a state prison, county jail, municipal jail, mental health facility, release or discharge from the custody of the Department of Youth Services or other juvenile detention, or placement on an appeal bond, probation, parole, or aftercare, placement into any facility or treatment program that allows the sex offender to have unsupervised access to the public, or release from any other facility, custodial or noncustodial, where the sex offender is sentenced or made a ward of that facility by a circuit, district, or juvenile court.

(19) REQUIRED REGISTRATION INFORMATION. Any information required pursuant to Section 15-20A-7.

(20) RESIDE. To be habitually or systematically present at a place. Whether a person is residing at a place shall be determined by the totality of the circumstances, including the amount of time the person spends at the place and the nature of the person's conduct at the place. The term reside includes, but is not limited to, spending more than four hours a day at the place on three or more consecutive days; spending more than four hours a day at the place on 10 or more aggregate days during a calendar month; or spending any amount of time at the place coupled with statements or actions that indicate an intent to live at the place or to remain at the place for the periods specified in this sentence. A person does not have to conduct an overnight visit to reside at a place.

(21) RESIDENCE. A fixed residence as defined by this section or other place where the person resides, regardless of whether the person declares or characterizes such place as a residence.

(22) RESPONSIBLE AGENCY. The person or government entity whose duty it is to obtain information from a sex offender and to transmit that information to the Alabama State Law Enforcement Agency, police departments, and sheriffs. For a sex offender being released from state prison, the responsible agency is the Department of Corrections. For a sex offender being released from a county jail, the responsible agency is the sheriff of that county. For a sex offender being released from a municipal jail, the responsible agency is the chief of police of that municipality. For a sex offender being placed on probation, including conditional discharge or unconditional discharge, without any sentence of incarceration, the responsible agency is the sentencing court or designee of the sentencing court. For a juvenile sex offender being released from the Department of Youth Services, the responsible agency is the Department of Youth Services. For a sex offender who is being released from a jurisdiction outside this state and who is to reside in this state, the responsible agency is the sheriff of the county in which the offender intends to establish a residence.

(23) RISK ASSESSMENT. A written report on the assessment of risk for sexually re-offending conducted by a sex offender treatment program or provider approved by the Department of Youth Services. The report shall include, but not be limited to, the following regarding the juvenile sex offender: Criminal history, mental status, attitude, previous sexual offender treatment and response to treatment, social factors, conditions of release expected to minimize risk of sexual re-offending, and characteristics of the sex offense.

(24) SCHOOL. A licensed or accredited public, private, or church school that offers instruction in grades pre-K-12 if it is sufficiently conspicuous that a reasonable person should know or recognize its location or its address has been provided to local law enforcement. The definition does not include a private residence in which students are taught by parents or tutors or any facility dedicated exclusively to the education of adults unless that facility has a childcare facility as defined in subdivision (3).

(25) SENTENCING COURT. The court of adjudication or conviction.

(26) SEX OFFENDER. Includes any adult sex offender, any youthful offender sex offender, and any juvenile sex offender.

(27) SEX OFFENSE INVOLVING A CHILD. A conviction for any sex offense in which the victim was a child or any offense involving child pornography.

(28) SEX OFFENSE INVOLVING A MINOR. A conviction for any sex offense in which the victim was a minor or any offense involving child pornography.

(29) SEXUALLY VIOLENT PREDATOR. A person who has been convicted of a sexually violent offense and who is likely to engage in one or more future sexually violent offenses or is likely to engage in future predatory sex offenses.

(30) STUDENT. A person who is enrolled in or attends, on a full-time or part-time basis, any public or private educational institution, including a secondary school, trade or professional school, or institution of higher education.

(31) TEMPORARY LODGING INFORMATION. Lodging information including, but not limited to, the name and address of any location where the person is staying when away from his or her residence for three or more days and the period of time the person is staying at that location.

(32) VOLUNTEER POSITION. An arrangement whereby a person works without compensation for any period of time on behalf of a business, school, charity, child care facility, or other organization or entity, provided that a volunteer position does not include any time spent traveling as a necessary incident to performing the uncompensated work.

(33) YOUTHFUL OFFENDER SEX OFFENDER. An individual adjudicated as a youthful offender for a sex offense who has not yet attained the age of 21 at the time of the offense.

Credits

(Act 2011-640, p. 1569, § 4; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-4, AL ST § 15-20A-4

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-5

§ 15-20A-5. Sex offenses.

Currentness

For the purposes of this chapter, a sex offense includes any of the following offenses:

- (1) Rape in the first degree, as provided by Section 13A-6-61.
- (2) Rape in the second degree, as provided by Section 13A-6-62. A juvenile sex offender adjudicated delinquent of a violation of rape in the second degree is presumed to be exempt from this chapter after the juvenile has been counseled on the dangers of the conduct for which he or she was adjudicated delinquent unless the sentencing court makes a determination that the juvenile sex offender is to be subject to this chapter.
- (3) Sodomy in the first degree, as provided by Section 13A-6-63.
- (4) Sodomy in the second degree, as provided by Section 13A-6-64. A juvenile sex offender adjudicated delinquent of a violation of sodomy in the second degree is presumed to be exempt from this chapter after the juvenile has been counseled on the dangers of the conduct for which he or she was adjudicated delinquent unless the sentencing court makes a determination that the juvenile sex offender is to be subject to this chapter.
- (5) Sexual misconduct, as provided by Section 13A-6-65, provided that on a first conviction or adjudication the sex offender is only subject to registration and verification pursuant to this chapter. On a second or subsequent conviction or adjudication of a sex offense, if the second or subsequent conviction or adjudication does not arise out of the same set of facts and circumstances as the first conviction or adjudication of a sex offense, the sex offender shall comply with all requirements of this chapter. A juvenile sex offender adjudicated delinquent of a violation of sexual misconduct is presumed to be exempt from this chapter after the juvenile has been counseled on the dangers of the conduct for which he or she was adjudicated delinquent unless the sentencing court makes a determination that the juvenile sex offender is to be subject to this chapter.
- (6) Sexual torture, as provided by Section 13A-6-65.1.
- (7) Sexual abuse in the first degree, as provided by Section 13A-6-66.
- (8) Sexual abuse in the second degree, as provided by Section 13A-6-67.

- (9) Indecent exposure, as provided by Section 13A-6-68, provided that on a first conviction or adjudication of a sex offense, the sex offender is only subject to registration and verification pursuant to this chapter. On a second or subsequent conviction or adjudication of a sex offense, if the second or subsequent conviction or adjudication does not arise out of the same set of facts and circumstances as the first conviction or adjudication, the sex offender shall comply with all requirements of this chapter. A juvenile sex offender adjudicated of a violation of indecent exposure is presumed to be exempt from this chapter after the juvenile has been counseled on the dangers of the conduct for which he or she was adjudicated delinquent unless the sentencing court makes a determination that the juvenile sex offender is to be subject to this chapter.
- (10) Enticing a child to enter a vehicle, room, house, office, or other place for immoral purposes, as provided by Section 13A-6-69.
- (11) Sexual abuse of a child less than 12 years old, as provided by Section 13A-6-69.1.
- (12) Promoting prostitution in the first degree, as provided by Section 13A-12-111.
- (13) Promoting prostitution in the second degree, as provided by Section 13A-12-112.
- (14) Violation of the Alabama Child Pornography Act, as provided by Section 13A-12-191, 13A-12-192, 13A-12-196, or 13A-12-197. A juvenile sex offender adjudicated delinquent of a violation of the Alabama Child Pornography Act is presumed to be exempt from this chapter after the juvenile has been counseled on the dangers of the conduct for which he or she was adjudicated delinquent unless the sentencing court makes a determination that the juvenile sex offender is to be subject to this chapter.
- (15) Unlawful imprisonment in the first degree, as provided by Section 13A-6-41, if the victim of the offense is a minor, and the record of adjudication or conviction reflects the intent of the unlawful imprisonment was to abuse the minor sexually.
- (16) Unlawful imprisonment in the second degree, as provided by Section 13A-6-42, if the victim of the offense is a minor, and the record of adjudication or conviction reflects the intent of the unlawful imprisonment was to abuse the minor sexually.
- (17) Kidnapping in the first degree, as provided by subdivision (4) of subsection (a) of Section 13A-6-43, if the intent of the abduction is to violate or abuse the victim sexually.
- (18) Kidnapping of a minor, except by a parent, guardian, or custodian, as provided by Section 13A-6-43 or 13A-6-44.
- (19) Incest, as provided by Section 13A-13-3.
- (20) Transmitting obscene material to a child by computer, as provided by Section 13A-6-111.
- (21) School employee engaging in a sex act or deviant sexual intercourse with a student, or having sexual contact or soliciting a sex act or sexual contact with a student, as provided by Sections 13A-6-81 and 13A-6-82.

- (22) Foster parent engaging in a sex act, having sexual contact, or soliciting a sex act or sexual contact with a foster child, as provided by Section 13A-6-71.
- (23) Facilitating solicitation of unlawful sexual conduct with a child, as provided by Section 13A-6-121.
- (24) Electronic solicitation of a child, as provided by Section 13A-6-122.
- (25) Facilitating the on-line solicitation of a child, as provided by Section 13A-6-123.
- (26) Traveling to meet a child for an unlawful sex act, as provided by Section 13A-6-124.
- (27) Facilitating the travel of a child for an unlawful sex act, as provided by Section 13A-6-125.
- (28) Human trafficking in the first degree, as provided by Section 13A-6-152, provided that the offense involves sexual servitude.
- (29) Human trafficking in the second degree, as provided by Section 13A-6-153, provided that the offense involves sexual servitude.
- (30) Custodial sexual misconduct, as provided by Section 14-11-31.
- (31) Sexual extortion, as provided by Section 13A-6-241.
- (32) Directing a child to engage in a sex act, as provided in Section 13A-6-243.
- (33) Any offense which is the same as or equivalent to any offense set forth above as the same existed and was defined under the laws of this state existing at the time of such conviction, specifically including, but not limited to, crime against nature, as provided by Section 13-1-110; rape, as provided by Sections 13-1-130 and 13-1-131; carnal knowledge of a woman or girl, as provided by Sections 13-1-132 through 13-1-135, or attempting to do so, as provided by Section 13-1-136; indecent molestation of children, as defined and provided by Section 13-1-113; indecent exposure, as provided by Section 13-1-111; incest, as provided by Section 13-8-3; offenses relative to obscene prints and literature, as provided by Sections 13-7-160 through 13-7-175, inclusive; employing, harboring, procuring or using a girl over 10 and under 18 years of age for the purpose of prostitution or sexual intercourse, as provided by Section 13-7-1; seduction, as defined and provided by Section 13-1-112; a male person peeping into a room occupied by a female, as provided by Section 13-6-6; assault with intent to ravish, as provided by Section 13-1-46; and soliciting a child by computer, as provided by Section 13A-6-110.
- (34) Any solicitation, attempt, or conspiracy to commit any of the offenses listed in subdivisions (1) to (33), inclusive.

(35) Any crime committed in Alabama or any other state, the District of Columbia, any United States territory, or a federal, military, Indian, or foreign country jurisdiction which, if it had been committed in this state under the current provisions of law, would constitute an offense listed in subdivisions (1) to (34), inclusive.

(36) Any offense specified by Title I of the federal Adam Walsh Child Protection and Safety Act of 2006 (Pub.L. 109-248, the Sex Offender Registration and Notification Act (SORNA)).

(37) Any crime committed in another state, the District of Columbia, any United States territory, or a federal, military, Indian, or foreign country jurisdiction if that jurisdiction also requires that anyone convicted of that crime register as a sex offender in that jurisdiction.

(38) Any offender determined in any jurisdiction to be a sex offender shall be considered a sex offender in this state.

(39) The foregoing notwithstanding, any crime committed in any jurisdiction which, irrespective of the specific description or statutory elements thereof, is in any way characterized or known as rape, carnal knowledge, sodomy, sexual assault, sexual battery, criminal sexual conduct, criminal sexual contact, sexual abuse, continuous sexual abuse, sexual torture, solicitation of a child, enticing or luring a child, child pornography, lewd and lascivious conduct, taking indecent liberties with a child, molestation of a child, criminal sexual misconduct, video voyeurism, or there has been a finding of sexual motivation.

(40) Any crime not listed in this section wherein the underlying felony is an element of the offense and listed in subdivisions (1) to (39), inclusive.

(41) Any other offense not provided for in this section wherein there is a finding of sexual motivation as provided by Section 15-20A-6.

Credits

(Act 2011-640, p. 1569, § 5; Act 2015-463, p. 1506, § 1; Act 2016-354, p. 867, § 2; Act 2017-414, p. 1337, § 5; Act 2018-528, § 4; Act 2019-465, § 1.)

Ala. Code 1975 § 15-20A-5, AL ST § 15-20A-5

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-6

§ 15-20A-6. Allegation of sexual motivation.

Currentness

- (a)(1) The indictment, count in the indictment, information, complaint or warrant charging the offense may include a specification of sexual motivation or the prosecuting attorney may file an allegation of sexual motivation in any criminal case classified as a felony or Class A misdemeanor if sufficient admissible evidence exists that would justify a finding of sexual motivation by a reasonable and objective finder of fact.
- (2) If a specification is included in the indictment, count in the indictment, information, complaint, or warrant charging the offense the specification shall be stated at the end of the body of the indictment, count in the indictment, information, complaint, or warrant and shall be in substantially the following form: "SPECIFICATION or SPECIFICATION TO THE FIRST COUNT. The Grand Jurors (or insert appropriate name) further find and specify that the offender committed the offense with a sexual motivation."
- (3) If the prosecuting attorney files an allegation of sexual motivation, it shall be filed within a reasonable time after indictment to give sufficient notice to the defendant.
- (b) If the indictment, count of the indictment, information, complaint, or warrant charging the offense includes a specification of sexual motivation or if the prosecuting attorney files an allegation of sexual motivation, the state shall prove beyond a reasonable doubt that the defendant committed the offense with a sexual motivation.
- (c) The court shall make a written finding of fact, to be made part of the record upon conviction or adjudication as a youthful offender, of whether or not a sexual motivation was present at the time of the commission of the offense unless the defendant has a trial by jury.
- (d) If a defendant has a trial by jury, the jury, if it finds the defendant guilty, shall also find a special verdict as to whether or not the defendant committed the crime with a sexual motivation.
- (e) If there is a finding of sexual motivation, the finding shall be made part of the record of conviction or adjudication.
- (f) For purposes of this section, sexual motivation means that one of the purposes for which the defendant committed the crime was for the purpose of the sexual gratification of the defendant.
- (g) This section shall not apply to sex offenses as defined in subdivisions (1) to (40), inclusive, of Section 15-20A-5.

Credits

(Act 2011-640, p. 1569, § 6; Act 2015-463, p. 1506, § 1; Act 2018-528, § 4.)

Ala. Code 1975 § 15-20A-6, AL ST § 15-20A-6

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-7

§ 15-20A-7. Registration information -- Required.

Currentness

(a) The following registration information, unless otherwise indicated, shall be provided by the sex offender when registering:

(1) Name, including any aliases, nicknames, ethnic, or tribal names.

(2) Date of birth.

(3) Social Security number.

(4) Address of each residence.

(5) Name and address of any school the sex offender attends or will attend. For purposes of this subdivision, a school includes an educational institution, public or private, including a secondary school, a trade or professional school, or an institution of higher education.

(6) Name and address of any employer where the sex offender works or will work, including any transient or day laborer information.

(7) The license plate number, registration number or identifier, description, and permanent or frequent location where all vehicles are kept for any vehicle used for work or personal use, including land vehicles, aircraft, and watercraft.

(8) Any telephone number used, including land line and cell phone numbers.

(9) Any email addresses or instant message address or identifiers used, including any designations or monikers used for self-identification in Internet communications or postings other than those used exclusively in connection with a lawful commercial transaction.

(10) A current photograph.

(11) A physical description of the sex offender including physical appearance, physical characteristics, and identifying marks such as scars and tattoos.

(12) Fingerprints and palm prints.

(13) A DNA sample. The DNA sample may be collected by the probation officer, sheriff, chief of police, or other responsible agency. Prior to collecting a DNA sample, the responsible agency shall determine if a DNA sample has already been collected for the sex offender by checking the Dru Sjodin National Sex Offender Public Registry website, the Alabama Department of Forensic Sciences DNATracker site, or with the Alabama State Law Enforcement Agency. If a DNA sample has not been previously collected for the sex offender, the responsible agency shall coordinate for the collection of a DNA sample with the sheriff of the county in which the registration is occurring. The collection of a DNA sample should be performed using materials recommended or provided by the Alabama Department of Forensic Sciences. The DNA sample shall be immediately forwarded by the entity collecting the sample to the Department of Forensic Sciences.

(14) A photocopy of the valid driver license or identification card.

(15) A photocopy of any and all passport and immigration documents.

(16) Any professional licensing information that authorizes the sex offender to engage in an occupation or carry out a trade or business.

(17) A full criminal history of the sex offender, including dates of all arrests and convictions, status of parole, probation, or supervised release, registration status, and outstanding arrest warrants.

(18) A list of any and all Internet service providers used by the sex offender.

(19) Any other information deemed necessary by the Secretary of the Alabama State Law Enforcement Agency.

(b) The registering agency is not required to obtain any of the following information each time the sex offender verifies his or her required registration information if the registering agency verifies the information has already been collected and has not been changed or altered:

(1) A current photograph.

(2) Fingerprints or palm prints.

(3) A DNA sample.

(4) A photocopy of the valid driver license or identification card.

- (5) A photocopy of any and all passport and immigration documents.
- (c) The registration information shall be transmitted to the Alabama State Law Enforcement Agency in a manner determined by the secretary of the department and promulgated in rule by the secretary upon recommendation of an advisory board consisting of representatives of the office of the Attorney General, District Attorneys Association, Chiefs of Police Association, Sheriffs Association, and the Alabama State Law Enforcement Agency. The advisory board members shall not receive any compensation or reimbursement for serving on the advisory board.
- (d) The required registration information shall include a form explaining all registration and notification duties, including any requirements and restrictions placed on the sex offender. This form shall be signed and dated by the sex offender. If the sex offender fails to sign the form, the designee of the registering agency shall sign the form stating that the requirements have been explained to the sex offender and that the sex offender refused to sign.
- (e) All required registration information shall be stored electronically in a manner determined by the Secretary of the Alabama State Law Enforcement Agency and shall be available in a digitized format by the Alabama State Law Enforcement Agency to anyone entitled to receive the information as provided in Section 15-20A-42.
- (f) Any person who knowingly fails to provide the required registration information, or who knowingly provides false information, pursuant to this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 7; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-7, AL ST § 15-20A-7

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-8

§ 15-20A-8. Registration information -- Public registry website.

Currentness

(a) All of the following registration information shall be provided on the public registry website maintained by the Alabama State Law Enforcement Agency and may be provided on any community notification documents:

- (1) Name, including any aliases, nicknames, ethnic, or Tribal names.
- (2) Address of each residence.
- (3) Address of any school the sex offender attends or will attend. For purposes of this subdivision, a school includes an educational institution, public or private, including a secondary school, a trade or professional school, or an institution of higher education.
- (4) Address of any employer where the sex offender works or will work, including any transient or day laborer information.
- (5) The license plate number and description of any vehicle used for work or personal use, including land vehicles, aircraft, and watercraft.
- (6) A current photograph.
- (7) A physical description of the sex offender.
- (8) Criminal history of any sex offense for which the sex offender has been adjudicated or convicted.
- (9) The text of the criminal provision of any sex offense of which the sex offender has been adjudicated or convicted.
- (10) Status of the sex offender, including whether the sex offender has absconded.

(b) None of the following information shall be provided on the public registry website or any other notification documents:

- (1) Criminal history of any arrests not resulting in conviction.

- (2) Social Security number.
- (3) Travel and immigration document numbers.
- (4) Victim identity.
- (5) Any email addresses or instant message addresses or identifiers used by the sex offender.
- (6) Any Internet service providers used by the sex offender.
- (c) Any other required registration information may be included on the website as determined by the Secretary of the Alabama State Law Enforcement Agency.
- (d) All information shall immediately be posted on the public registry website upon receipt of the information by the Alabama State Law Enforcement Agency.
- (e) The website shall include field search capabilities to search for sex offenders by name, city or town, county, zip code, or geographic radius.
- (f) The website shall include links to sex offender safety and education resources.
- (g) The website shall include instructions on how to seek correction of information that a person contends is erroneous.
- (h) The website shall include a warning that information on the site should not be used to unlawfully injure, harass, or commit a crime against any person named in the registry or residing or working at any reported address and that any such action may result in civil or criminal penalties. The website shall also include a warning that, prior to including the individual on the website, the Alabama State Law Enforcement Agency did not consider or assess the individual's specific risk of reoffense or current dangerousness; that inclusion on the website is based solely on an individual's conviction record and state law; and that the Legislature's purpose in providing this data is to make the information more easily available and accessible, not to warn about any specific individual.

Credits

(Act 2011-640, p. 1569, § 8; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-8, AL ST § 15-20A-8

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-9

§ 15-20A-9. Adult sex offender -- Requirements prior to release.

Currentness

(a) At least 30 days prior to release, or immediately upon notice of release if release is less than 30 days, of an adult sex offender from the county jail, municipal jail, Department of Corrections, or any other facility that has incarcerated the adult sex offender, or immediately upon conviction, if the adult sex offender is not incarcerated:

(1) The responsible agency shall inform the adult sex offender of his or her duty to register and, instruct the adult sex offender to read and sign a form stating that the duty to register has been explained. The adult sex offender shall sign the form stating that the duty to register has been explained and shall provide the required registration information. If the adult sex offender refuses to sign the form, the designee of the responsible agency shall sign the form stating that the requirements have been explained to the adult sex offender and that the adult sex offender refused to sign.

(2) If the adult sex offender declares his or her intent to reside within this state, the responsible agency shall immediately notify and provide the required registration information to the Alabama State Law Enforcement Agency, the Attorney General, the district attorney in the county of conviction, and local law enforcement where the adult sex offender intends to reside. The notification shall also include any other information available to the responsible agency which would be necessary to identify and trace the adult sex offender, including, but not limited to, each sex offense history or a copy of the pre-sentence investigation of the sex offense and the release date of the adult sex offender.

(3) If the adult sex offender declares his or her intent to reside outside of the state, the responsible agency shall immediately notify and provide the required registration information to the Alabama State Law Enforcement Agency, the Attorney General, the district attorney in the county of conviction, and the designated state law enforcement agency of the state to which the adult sex offender has declared his or her intent to reside. The notification shall also include any other information available to the responsible agency which would be necessary to identify and trace the adult sex offender, including, but not limited to, each sex offense history or a copy of the pre-sentence investigation of the sex offense and the release date of the sex offender.

(4) If an adult sex offender is not able to provide a residence prior to the time of release, then the responsible agency shall notify the sheriff of the county where the last conviction for a sex offense or violation of this chapter took place at least five days prior to the release of the adult sex offender. Upon notice of the release date from the responsible agency, the sheriff of the county of the last conviction for a sex offense or a violation of this chapter shall make arrangements to have the adult sex offender immediately remanded to his or her custody to register in accordance with Section 15-20A-10 at the time of release.

(5) Any adult sex offender who is due to be released due to the expiration of his or her sentence and who refuses to provide the required registration information shall be treated as follows:

a. If the adult sex offender has not accumulated any incentive time pursuant to Section 14-9-41 or any other law, he or she shall be charged with violating this section. At least five days prior to his or her release date, the Department of Corrections shall notify the sheriff in the county where the last conviction for a sex offense or violation of this chapter took place, which county shall be the proper venue for arrest and prosecution of violation of this section. Upon notice of the release date, the sheriff from the county of the last conviction for a sex offense or violation of this chapter shall make arrangements to have the adult sex offender immediately remanded to his or her custody at the time of release. Any adult sex offender charged with violating this section may only be released on bond on the condition that the adult sex offender is in compliance with this section before being released.

b. If the adult sex offender has accumulated correctional incentive time pursuant to Section 14-9-41 or any other law, the adult sex offender shall be charged with non-compliance with this section and shall not be allowed early release, but instead shall forfeit all correctional incentive time that has accrued pursuant to Section 14-9-41, or other good time allowed by law.

(b) An adult sex offender who knowingly fails to comply with this section by failing to provide the required registration information shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 9; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-9, AL ST § 15-20A-9

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-10

§ 15-20A-10. Adult sex offender -- Registration with local law enforcement; residence restrictions.

Currentness

- (a)(1) Immediately upon release from incarceration, or immediately upon conviction if the adult sex offender is not incarcerated, the adult sex offender shall appear in person and register all required registration information with local law enforcement in each county in which the adult sex offender resides or intends to reside, accepts or intends to accept employment, accepts or intends to accept a volunteer position, and begins or intends to begin school attendance.
- (2) An adult sex offender who registers pursuant to subdivision (1) shall have seven days from release to comply with the residence restrictions pursuant to subsection (a) of Section 15-20A-11.
- (b) Immediately upon establishing a new residence, accepting employment, accepting a volunteer position, or beginning school attendance, the adult sex offender shall appear in person to register with local law enforcement in each county in which the adult sex offender establishes a residence, accepts employment, accepts a volunteer position, or begins school attendance.
- (c)(1) Immediately upon transferring or terminating any residence, employment, or school attendance, the adult sex offender shall appear in person to notify local law enforcement in each county in which the adult sex offender is transferring or terminating residence, employment, or school attendance.
- (2) Whenever a sex offender transfers his or her residence, as provided in subdivision (1) from one county to another county, the sheriff of the county from which the sex offender is transferring his or her residence shall immediately notify local law enforcement in the county in which the sex offender intends to reside. If a sex offender transfers his or her residence, as provided in subdivision (1) from one county to another jurisdiction, the sheriff of the county from which the sex offender is transferring his or her residence shall immediately notify the chief law enforcement agency in the jurisdiction in which the sex offender intends to reside.
- (d) Immediately upon any name change, the adult sex offender shall immediately appear in person to update the information with local law enforcement in each county in which the adult sex offender is required to register.
- (e)(1) Upon changing any required registration information, including by transferring or terminating a residence the adult sex offender shall immediately appear in person and update the information with local law enforcement in each county in which the adult sex offender resides. Provided, however, any changes in telephone numbers, email addresses, instant message addresses, or other on-line identifiers or Internet service providers may be reported to local law enforcement in person, electronically, or telephonically as required by the local law enforcement agency.

- (2) Notwithstanding any other provision of law regarding the establishment of residence, an adult sex offender has transferred or terminated his or her residence for purposes of subdivision (1) whenever the adult sex offender vacates his or her residence or fails to spend three or more consecutive days at his or her residence without previously notifying local law enforcement or completing a travel notification document pursuant to Section 15-20A-15.
- (f) An adult sex offender shall appear in person to verify all required registration information during the adult sex offender's birth month and every three months thereafter, regardless of the month of conviction, for the duration of the adult sex offender's life with local law enforcement in each county in which the adult sex offender resides.
- (g) At the time of registration, the adult sex offender shall be provided a form explaining any and all duties and restrictions placed on the adult sex offender. The adult sex offender shall read and sign this form stating that he or she understands the duties and restrictions imposed by this chapter. If the adult sex offender refuses to sign the form, the designee of the registering agency shall sign the form stating that the requirements have been explained to the adult sex offender and that the adult sex offender refused to sign.
- (h) For purposes of this section, a school includes an educational institution, public or private, including a secondary school, a trade or professional school, or an institution of higher education.
- (i) If an adult sex offender was convicted and required to register prior to July 1, 2011, then the adult sex offender shall begin quarterly registration after his or her next biannual required registration date.
- (j) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 10; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-10, AL ST § 15-20A-10

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-11

§ 15-20A-11. Adult sex offender -- Prohibited residence locations, etc.

Currentness

(a) No adult sex offender shall establish a residence or maintain a residence after release or conviction within 2,000 feet of the property on which any school, childcare facility, or resident camp facility is located unless otherwise exempted pursuant to Sections 15-20A-23 and 15-20A-24. For the purposes of this section, a resident camp facility includes any place, area, parcel, or tract of land which contains permanent or semi-permanent facilities for sleeping owned by a business, church, or nonprofit organization used primarily for educational, recreational, or religious purposes for minors and the location of the resident camp has been provided to local law enforcement. Resident camp does not include a private residence, farm, or hunting or fishing camp.

(b) No adult sex offender shall establish a residence or maintain a residence after release or conviction within 2,000 feet of the property on which his or her former victim, or an immediate family member of the victim, resides unless otherwise exempted pursuant to Section 15-20A-24 or Section 15-20A-16.

(c) Changes to property within 2,000 feet of a registered address of an adult sex offender which occur after the adult sex offender establishes residency shall not form the basis for finding that the adult sex offender is in violation of this section unless the sex offender has been released or convicted of a new offense after establishing residency.

(d) No adult sex offender shall reside or conduct an overnight visit with a minor. Notwithstanding the foregoing, an adult sex offender may reside with a minor if the adult sex offender is the parent, grandparent, stepparent, sibling, or stepsibling of the minor, unless one of the following conditions applies:

(1) Parental rights of the adult sex offender have been or are in the process of being terminated as provided by law.

(2) The adult sex offender has been convicted of any sex offense in which any of the minor children, grandchildren, stepchildren, siblings, or stepsiblings of the adult sex offender was the victim.

(3) The adult sex offender has been convicted of any sex offense in which a minor was the victim and the minor resided or lived with the adult sex offender at the time of the offense.

(4) The adult sex offender has been convicted of any sex offense involving a child, regardless of whether the adult sex offender was related to or shared a residence with the child victim.

(5) The adult sex offender has been convicted of any sex offense involving forcible compulsion in which the victim was a minor.

(e)(1) Notwithstanding any other provision of law regarding establishment of residence, an adult sex offender shall be deemed to have established a residence wherever he or she resides following release, regardless of whether the adult sex offender resided at the same location prior to the time of conviction.

(2) Notwithstanding any other provision of law regarding establishment of residence, an adult sex offender has transferred his or her residence for purposes of Section 15-20A-10(e)(1) whenever the adult sex offender vacates his or her residence or fails to spend three or more consecutive days at his or her residence without previously notifying local law enforcement or obtaining a travel notification document pursuant to Section 15-20A-15.

(f) An adult sex offender is exempt from subsections (a) and (b) during the time the adult sex offender is in the facility of a licensed health care provider or is incarcerated in a jail, prison, mental health facility, or any other correctional placement facility wherein the adult sex offender is not allowed unsupervised access to the public.

(g) An adult sex offender shall not be found in violation of subsection (a) on the basis of any address, street number, place, or parcel that has been approved in writing by local law enforcement prior to establishing a residence. Local law enforcement shall promulgate, publicize, and enforce a policy that affords sex offenders a reasonable opportunity to obtain preapproval of a proposed residence.

(h) For the purposes of this section, the 2,000-foot measurement shall be taken in a straight line from nearest property line to nearest property line.

(i) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 11; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-11, AL ST § 15-20A-11

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-12

§ 15-20A-12. Adult sex offender -- Homelessness.

Currentness

(a) An adult sex offender who no longer has a fixed residence shall be considered homeless and shall appear in person and report such change in fixed residence to local law enforcement where he or she is located immediately upon such change in fixed residence.

(b) In addition to complying with the registration and verification requirements pursuant to Section 15-20A-10, a homeless adult sex offender who lacks a fixed residence, or who does not provide an address at a fixed residence at the time of release or registration, shall report in person once every seven days to law enforcement agency where he or she resides. If the sex offender resides within the city limits of a municipality, he or she shall report to the chief of police. If the adult sex offender resides outside of the city limits of a municipality he or she shall report to the sheriff of the county. The weekly report shall be on a day specified by local law enforcement and shall occur during normal business hours.

(c) A homeless adult sex offender who lacks a fixed address shall comply with the residence restrictions set forth in Section 15-20A-11.

(d)(1) Each time a homeless adult sex offender reports under this section, he or she shall provide all of the following information:

a. Name.

b. Date of birth.

c. Social Security number.

d. A detailed description of the location or locations where he or she has resided during the week.

e. A list of the locations where he or she plans to reside in the upcoming week with as much specificity as possible.

(2) The registering agency is not required to obtain the remaining required registration information from the homeless adult sex offender each time he or she reports to the registering agency unless the homeless adult sex offender has any changes to the remaining required registration information.

(e) If an adult sex offender who was homeless obtains a fixed residence in compliance with the provisions of Section 15-20A-11, the adult sex offender shall immediately appear in person to update the information with local law enforcement in each county of residence.

(f) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 12; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-12, AL ST § 15-20A-12

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-13

§ 15-20A-13. Adult sex offender -- Employment restrictions.

Currentness

(a) No adult sex offender shall accept or maintain employment or a volunteer position at any school, childcare facility, mobile vending business that provides services primarily to children, or any other business or organization that provides services primarily to children, or any amusement or water park.

(b) No adult sex offender shall accept or maintain employment or a volunteer position within 2,000 feet of the property on which a school or childcare facility is located unless otherwise exempted pursuant to Sections 15-20A-24 and 15-20A-25.

(c) No adult sex offender, after having been convicted of a sex offense involving a child, shall accept or maintain employment or a volunteer position within 500 feet of a playground, park, athletic field or facility, or any other business or facility having a principal purpose of caring for, educating, or entertaining minors.

(d) Changes to property within 2,000 feet of an adult sex offender's place of employment which occur after an adult sex offender accepts employment shall not form the basis for finding that an adult sex offender is in violation of this section.

(e) It shall be unlawful for the owner or operator of any childcare facility or any other organization that provides services primarily to children to knowingly provide employment or a volunteer position to an adult sex offender.

(f) For purposes of this section, the 2,000-foot measurement shall be taken in a straight line from nearest property line to nearest property line.

(g) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 13; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-13, AL ST § 15-20A-13

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-14

§ 15-20A-14. Adult sex offender -- Requirements upon entering state.

Currentness

- (a) Any adult sex offender who declares he or she is entering the state to establish a residence or who enters this state to establish a residence shall immediately appear in person and register all required registration information with local law enforcement in the county where the adult sex offender intends to establish or establishes a residence.
- (b) Any adult sex offender who enters this state to accept employment or a volunteer position or to become a student shall immediately appear in person and register all required registration information with local law enforcement in the county where the adult sex offender accepts employment or the volunteer position or becomes a student.
- (c) Whenever an adult sex offender registers pursuant to this section, he or she shall be subject to the requirements of this chapter.
- (d) Within 30 days of initial registration, the adult sex offender shall provide each registering agency with a certified copy of his or her sex offense conviction; however, an adult sex offender shall be exempt from this subsection if the adult sex offender provides adequate documentation that the certified record is no longer available or has been destroyed.
- (e) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 14; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-14, AL ST § 15-20A-14

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-15

§ 15-20A-15. Adult sex offender -- Travel.

Currentness

- (a) Immediately before an adult sex offender temporarily leaves his or her county of residence for a period of three or more consecutive days, the adult sex offender shall report in person to the sheriff in each county of residence and complete and sign a travel notification document.
- (b) The travel notification document shall be a form prescribed by the Alabama State Law Enforcement Agency to collect dates of travel, the intended destination or destinations, temporary lodging information, and any other information reasonably necessary to monitor a sex offender who plans to travel.
- (c) If a sex offender intends to travel to another country, he or she shall report in person to the sheriff in each county of residence and complete a travel notification document at least 21 days prior to such travel. If the travel to another country is for a family or personal medical emergency or a death in the family, then the sex offender shall report in person to the sheriff in each county of residence immediately prior to travel. Any information reported to the sheriff in each county of residence shall immediately be reported to the United States Marshals Service and the Alabama State Law Enforcement Agency.
- (d) The travel notification document shall explain the duties of the adult sex offender regarding travel as prescribed by the Alabama State Law Enforcement Agency and a certification that the adult sex offender understands the duties required of him or her and that the information he or she provided on the travel notification document is true and correct. No sex offender shall provide false information on the travel notification document.
- (e) The sheriff in each county of residence shall immediately notify local law enforcement in the county or the jurisdiction to which the adult sex offender will be traveling.
- (f) Upon return to the county of residence, the adult sex offender shall immediately report to the sheriff in each county of residence.
- (g) All completed travel notification documents shall be included with the adult sex offender's required registration information.
- (h) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 15; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-15, AL ST § 15-20A-15

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-16

§ 15-20A-16. Adult sex offender -- Contact with former victims.

Currentness

(a) No adult sex offender shall contact, directly or indirectly, in person or through others, by phone, mail, or electronic means, any former victim.

(b) No adult sex offender shall knowingly come within 100 feet of a former victim.

(c) No sex offender shall make any harassing communication, directly or indirectly, in person or through others, by phone, mail, or electronic means to the victim or any immediate family member of the victim.

(d) A petition to exclude an adult sex offender from the requirements of subsections (a) and (b) of this section and Section 15-20A-11(b) may be filed in accordance with the requirements of Section 15-20A-24(c). The court shall conduct a hearing and shall exclude an adult sex offender from the provisions of this section provided that:

(1) The victim appears in court at the time of the hearing and requests the exemption in writing in open court.

(2) The court finds by clear and convincing evidence that the victim's court appearance and written request pursuant to subdivision (1) were made voluntarily.

(3) The victim is over the age of 19 at the time of the request.

(4) The district attorney or prosecuting attorney shall be notified of the hearing and shall have the right to be present and heard.

(e) Notwithstanding any state or local law or rule assigning costs and fees for filing and processing civil and criminal cases a petition filed shall be assessed a filing fee in the amount of two hundred dollars (\$200) to be distributed as provided in Section 15-20A-46.

(f) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 16; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-16, AL ST § 15-20A-16

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-17

§ 15-20A-17. Adult sex offender -- Loitering in certain areas; requirements
for entering K-12 school property or attending K-12 school events.

Currentness

(a)(1) No adult sex offender, after having been convicted of a sex offense involving a minor, shall loiter on or within 500 feet of the property line of any property on which there is a school, childcare facility, playground, park, athletic field or facility, school bus stop, college or university, or any other business or facility having a principal purpose of caring for, educating, or entertaining minors.

(2) Under this subsection, loiter means to enter or remain on property while having no legitimate purpose or, if a legitimate purpose exists, remaining on that property beyond the time necessary to fulfill that purpose. An adult sex offender does not violate this subsection unless he or she has first been asked to leave a prohibited location by a person authorized to exclude the adult sex offender from the premises. An authorized person includes, but is not limited to, any law enforcement officer, security officer, any owner or manager of the premises, a principal, teacher, or school bus driver if the premises is a school, childcare facility, or bus stop, a coach, if the premises is an athletic field or facility, or any person designated with that authority.

(3) For purposes of this subsection, a school bus stop is any location where a motor vehicle owned or operated by or on behalf of a public or private school stops on a regular basis for the purpose of transporting children to and from school.

(b)(1) No adult sex offender, after having been convicted of a sex offense involving a minor, shall enter onto the property of a K-12 school while school is in session or attend any K-12 school activity unless the adult sex offender does all of the following:

- a. Notifies the principal of the school, or his or her designee, before entering onto the property or attending the K-12 school activity.
- b. Immediately reports to the principal of the school, or his or her designee, upon entering the property or arriving at the K-12 school activity.
- c. Complies with any procedures established by the school to monitor the whereabouts of the sex offender for the duration of his or her presence on the school property or attendance at the K-12 school activity. For a public K-12 school, the local school board shall adopt a policy to effectuate this section.

(2) Procedures established to effectuate this subsection are limited to rules that allow the principal of the school, or his or her designee, to discreetly monitor the adult sex offender.

(3) For the purposes of this subsection, a K-12 school activity is an activity sponsored by a school in which students in grades K-12 are the primary intended participants or for whom students in grades K-12 are the primary intended audience including, but not limited to, school instructional time, after school care, after school tutoring, athletic events, field trips, school plays, or assemblies.

(c) Any person who knowingly violates subsection (a) or subsection (b) shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 17; Act 2014-421, p. 1537, § 1; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-17, AL ST § 15-20A-17

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-18

§ 15-20A-18. Adult sex offender -- Identification requirements.

Currentness

(a) Every adult sex offender who is a resident of this state shall obtain from the Alabama State Law Enforcement Agency, and always have in his or her possession, a valid driver license or identification card issued by the Alabama State Law Enforcement Agency. If any adult sex offender is ineligible to be issued a driver license or official identification card, the Alabama State Law Enforcement Agency shall provide the adult sex offender some other form of identification card or documentation that, if it is kept in the possession of the adult sex offender, shall satisfy the requirements of this section. If any adult sex offender is determined to be indigent, an identification card, or other form of identification or documentation that satisfies the requirements of this section, shall be issued to the adult sex offender at no cost. Indigence shall be determined by order of the court prior to each issuance of a driver license or identification card.

(b) The adult sex offender shall obtain from the Alabama State Law Enforcement Agency a valid driver license or identification card bearing a designation that enables law enforcement officers to identify the licensee as a sex offender within 14 days of his or her initial registration following release, initial registration upon entering the state to become a resident, or immediately following his or her next registration after July 1, 2011.

(c) Whenever the Alabama State Law Enforcement Agency issues or renews a driver license or identification card to an adult sex offender, the driver license or identification card shall bear a designation that, at a minimum, enables law enforcement officers to identify the licensee as a sex offender.

(d) Upon obtaining or renewing a driver license or identification card bearing a designation that enables law enforcement officers to identify the licensee as a sex offender, the adult sex offender shall relinquish to the Alabama State Law Enforcement Agency any other driver license or identification card previously issued to him or her by a state motor vehicle agency which does not bear any designation enabling law enforcement officers to identify the licensee as a sex offender. Nothing in this section shall require an adult sex offender to relinquish, or preclude an adult sex offender from possessing, any form of identification issued to him or her by an entity other than a state motor vehicle agency, including, but not limited to, the United States, a federal department or agency, a municipal or county government entity, an educational institution, or a private employer.

(e) No adult sex offender shall mutilate, mar, change, reproduce, alter, deface, disfigure, or otherwise change the form of any driver license or identification card which is issued to the adult sex offender by the Alabama State Law Enforcement Agency and which bears any designation enabling law enforcement officers to identify the licensee as a sex offender. An adult sex offender having in his or her possession a driver license or identification card issued to him or her by the Alabama State Law Enforcement Agency bearing any designation enabling law enforcement officers to identify the licensee as a sex offender which has been mutilated, marred, changed, reproduced, altered, defaced, disfigured, or otherwise changed shall be prima facie evidence that he or she has violated this section.

(f) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 18; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-18, AL ST § 15-20A-18

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-19

§ 15-20A-19. Adult sex offender -- Sexually violent predator.

Currentness

(a) The state, upon conviction and prior to sentencing, may petition the sentencing court to enter an order declaring a person convicted in this state of a sexually violent or predatory offense as a sexually violent predator.

(b) At sentencing, a court may declare a person to be a sexually violent predator. For the purposes of this section, a person is a sexually violent predator if either of the following applies:

(1) The person is a repeat sexually violent offender.

(2) The person commits a sexually violent offense and is likely to engage in one or more sexually violent offenses in the future.

(c) A person is a repeat sexually violent offender for the purposes of this section if the person is convicted of more than one sexually violent offense.

(d) For the purposes of this section, a sexually violent offense is any of the following:

(1) A sex offense committed by forcible compulsion, violence, duress, menace, fear of immediate bodily injury to the victim or another person, or threatening to retaliate in the future against the victim or any other person.

(2) A sex offense involving a child.

(3) Any sex offense involving the enticement or solicitation of a minor for sexual purposes.

(4) Any sex offense that is predatory in nature.

(5) Any solicitation, attempt, or conspiracy to commit any of the offenses listed in subdivisions (1) to (4), inclusive.

(6) Any other offense for which the court makes a specific finding on the record that, based on the circumstances of the case, the person's offense should be considered a sexually violent offense.

(e) Any of the following factors may be considered as evidence tending to indicate that there is a likelihood that the person will engage in the future in one or more sexually violent offenses:

- (1) The person has been convicted two or more times, in separate criminal actions, of a sexually violent offense. For purposes of this subdivision, convictions that result from or are connected with the same act or result from offenses committed at the same time are one conviction.
 - (2) The person has been convicted of a sexually violent offense involving two or more victims regardless of when the acts or convictions occurred.
 - (3) Available information or evidence suggests that the person chronically commits offenses with a sexual motivation.
 - (4) The person has committed one or more offenses in which the person has tortured or engaged in ritualistic acts with one or more victims.
 - (5) The person has committed one or more sex offenses in which one or more victims were physically harmed to the degree that the particular victim's life was in jeopardy.
 - (6) Any other evidence deemed relevant by the court.
- (f) If the state so petitions, it shall present clear and convincing evidence that the sex offender is likely to engage in one or more future sexually violent offenses or is likely to engage in future predatory sex offenses.
- (g) Any sex offender determined in any other state to be a sexually violent predator shall be considered a sexually violent predator in this state.
- (h) A sexually violent predator, as a condition of the sex offender's release from incarceration, shall be subject to electronic monitoring and be required to pay the costs of such monitoring, as set forth in Section 15-20A-20, for a period of no less than 10 years from the date of the sexually violent predator's release. This requirement shall be imposed by the sentencing court as a part of the sexually violent predator's sentence, as provided in subsection (c) of Section 13A-5-6, and Section 15-20A-20.

Credits

(Act 2011-640, p. 1569, § 19.)

Ala. Code 1975 § 15-20A-19, AL ST § 15-20A-19

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-20

§ 15-20A-20. Adult sex offender -- Electronic monitoring.

Currentness

(a) The Alabama State Law Enforcement Agency shall implement a system of active and passive electronic monitoring that identifies the location of a monitored person and that can produce upon request reports or records of the person's presence near or within a crime scene or prohibited area, the person's departure from specified geographic limitations, or curfew violations by the offender. The Director of the Alabama State Law Enforcement Agency may promulgate any rules as are necessary to implement and administer this system of active electronic monitoring including establishing policies and procedures to notify the person's probation and parole officer or other court-appointed supervising authority when a violation of his or her electronic monitoring restrictions has occurred.

(b) The Board of Pardons and Paroles or a court may require, as a condition of release on parole, probation, community corrections, court referral officer supervision, pretrial release, or any other community-based punishment option, that any person charged or convicted of a sex offense be subject to electronic monitoring as provided in subsection (a).

(c) Any person designated a sexually violent predator pursuant to Section 15-20A-19, upon release from incarceration, shall be subject to electronic monitoring supervised by the Board of Pardons and Paroles, as provided in subsection (a), for a period of no less than 10 years from the date of the sexually violent predator's release. This requirement shall be imposed by the sentencing court as a part of the sentence of the sexually violent predator in accordance with subsection (c) of Section 13A-5-6.

(d) Any person convicted of a Class A felony sex offense involving a child as defined in Section 15-20A-4, upon release from incarceration, shall be subject to electronic monitoring supervised by the Board of Pardons and Paroles, as provided in subsection (a), for a period of no less than 10 years from the date of the sex offender's release. This requirement shall be imposed by the sentencing court as a part of the sex offender's sentence in accordance with subsection (c) of Section 13A-5-6.

(e) Anyone subject to electronic monitoring pursuant to this section, unless he or she is indigent, shall be required to reimburse the supervising entity a reasonable fee to defray supervision costs. The Board of Pardons and Paroles, the sentencing court, or other supervising entity shall determine the amount to be paid based on the financial means and ability to pay of the person, but such amount shall not exceed fifteen dollars (\$15) per day.

(f) The supervising entity shall pay the Alabama State Law Enforcement Agency a fee, to be determined by the center, but not exceeding ten dollars (\$10) per day, to defray monitoring equipment and telecommunications costs.

(g) It shall constitute a Class C felony for any person to knowingly alter, disable, deactivate, tamper with, remove, damage, or destroy any device used to facilitate electronic monitoring under this section.

(h) The procurement of any product or services necessary for compliance with Act 2005-301, including any system of electronic monitoring, any equipment, and the building of a website, shall be subject to the competitive bid process.

Credits

(Act 2011-640, p. 1569, § 20; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-20, AL ST § 15-20A-20

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-21

§ 15-20A-21. Adult sex offender -- Community notification.

Currentness

(a) Immediately upon the release of an adult sex offender or immediately upon notice of where the adult sex offender plans to establish, or has established a fixed residence, the following procedures shall apply:

(1) In the Cities of Birmingham, Mobile, Huntsville, and Montgomery, the chief of police shall notify all persons who have a legal residence within 1,000 feet of the declared fixed residence of the adult sex offender and all schools and childcare facilities within three miles of the declared fixed residence of the adult sex offender that the adult sex offender will be establishing or has established as his or her fixed residence.

(2) In all other cities in Alabama with a resident population of 5,000 or more, the chief of police, or if none, then the sheriff of the county, shall notify all persons who have a legal residence within 1,500 feet of the declared fixed residence of the adult sex offender and all schools and childcare facilities within three miles of the declared fixed residence of the adult sex offender that the adult sex offender will be establishing or has established his or her fixed residence.

(3) In all other municipalities with a resident population of less than 5,000, and in all unincorporated areas, the sheriff of the county in which the adult sex offender intends to reside shall notify all persons who have a legal residence within 2,000 feet of the declared fixed residence of the adult sex offender and all schools and childcare facilities within three miles of the declared fixed residence of the adult sex offender that the adult sex offender will be establishing or has established as his or her fixed residence.

(b) A community notification flyer shall be made by regular mail or hand delivered to all legal residences required by this section and include registration information pursuant to Section 15-20A-8. In addition, any other method reasonably expected to provide notification may be utilized, including, but not limited to, posting a copy of the notice in a prominent place at the office of the sheriff and at the police station closest to the declared fixed residence of the released adult sex offender, publicizing the notice in a local newspaper, posting electronically, including the Internet, or other means available.

(c) Nothing in this chapter shall be construed as prohibiting the Secretary of the Alabama State Law Enforcement Agency, a sheriff, or a chief of police from providing community notification under the provisions of this chapter by regular mail, electronically, or by publication or periodically to persons whose legal residence is within the guidelines of this chapter or more than the applicable distance from the residence of an adult sex offender.

(d) When a homeless adult sex offender who lacks a fixed residence registers pursuant to Section 15-20A-12, notification shall be provided by posting a copy of the notice in a prominent place at the office of the sheriff and at the police station closest

to the declared residence of the released adult sex offender, publicizing the notice in a local newspaper, or posting the notice electronically, including the Internet or other means available.

Credits

(Act 2011-640, p. 1569, § 21; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-21, AL ST § 15-20A-21

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-22

§ 15-20A-22. Adult sex offender -- Registration fee.

Currentness

(a) An adult sex offender shall pay a registration fee in the amount of ten dollars (\$10) to each registering agency where the adult sex offender resides beginning with the first quarterly registration on or after July 1, 2011, and at each quarterly registration thereafter.

(b) Each time an adult sex offender terminates his or her residence and establishes a new residence, he or she shall pay a registration fee in the amount of ten dollars (\$10) to each registering agency where the adult sex offender establishes a new residence.

(c) If, at the time of registration, the adult sex offender is unable to pay the registration fee, the registering agency may require the adult sex offender to pay the fee in installments not to exceed 90 days. The registering agency shall waive the registration fee if the adult sex offender has an order from the court declaring his or her indigence. In the event the adult sex offender is determined to be indigent, a periodic review of the adult sex offender's indigent status shall be conducted by the court to determine if the offender is no longer indigent. Further, if the offender is determined to be indigent by the sentencing court, nothing in this chapter shall prohibit the offender from being placed on a payment plan where the entire fee is collected in total.

(d)(1) The fees collected under this section shall be appropriated to the registering agency to defray the costs associated with sex offender registration, verification, and notification.

(2) Any and all registration fees collected by the sheriff, or his or her designee, shall be deposited in the county general fund earmarked for use of the sheriff and shall be paid to the sheriff upon his or her request to be used at the discretion of the sheriff for any law enforcement purpose related to sex offender registration, notification, tracking, or apprehension.

(3) The monies provided in this section and the use of the funds shall in no way diminish or take the place of any other reimbursement or other source of income established for the sheriff or the operation of his or her office.

(4) Any and all registration fees collected by a chief of police, or his or her designee, shall be deposited into the municipal general fund and made available to the affected law enforcement agency or department upon requisition of the chief law enforcement official of such agency or department and shall be used for any lawful purpose related to sex offender registration, notification, tracking or apprehension.

(5) The monies provided in this section and the use of the funds shall in no way diminish or take the place of any other reimbursement or other source of income established for the chief of police or the operation of his or her office.

(e) Any person who willfully fails to pay the required registration fee at the time of registration, or at the time at which the installment payment is due, shall be guilty of a Class B misdemeanor. Upon a second or subsequent conviction for willful failure to pay the required registration fee, the adult sex offender shall be guilty of a Class A misdemeanor.

Credits

(Act 2011-640, p. 1569, § 22; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-22, AL ST § 15-20A-22

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-23

§ 15-20A-23. Adult sex offender -- Relief from residency restriction.

Currentness

(a) A sex offender required to register under this chapter may petition the court for relief from the residency restriction pursuant to subsection (a) of Section 15-20A-11 during the time a sex offender is terminally ill or permanently immobile, or the sex offender has a debilitating medical condition requiring substantial care or supervision or requires placement in a residential health care facility.

(b) A petition for relief pursuant to this section shall be filed in the civil division of the circuit court of the county in which the sex offender seeks relief from the residency restriction.

(c) The sex offender shall serve a copy of the petition by certified mail on all of the following:

(1) The prosecuting attorney in the county of adjudication or conviction, if the sex offender was adjudicated or convicted in this state.

(2) The prosecuting attorney of the county where the sex offender seeks relief from the residency restriction.

(3) Local law enforcement where the sex offender was adjudicated or convicted if the sex offender was adjudicated or convicted in this state.

(4) Local law enforcement where the adult sex offender seeks relief from the residency restriction.

(d) The petition and documentation to support the request for relief shall include all of the following:

(1) A certified copy of the adjudication or conviction requiring registration, including a detailed description of the sex offense.

(2) A list of each county, municipality, and jurisdiction where the sex offender is required to register or has ever been required to register.

(3) The sex offender's criminal record and an affidavit stating that the sex offender has no pending criminal charges.

- (4) Notarized documentation of the sex offender's condition by his or her medical provider.
 - (5) A release allowing the prosecuting attorney or the court to obtain any other medical records or documentation relevant to the petition.
 - (6) Any other information requested by the court relevant to the petition.
- (e) Upon notification of the petition, the prosecuting attorney shall make reasonable efforts to notify the victim of the crime for which the sex offender is required to register of the petition and the dates and times of any hearings or other proceedings in connection with the petition.
- (f) The court shall hold a hearing within 30 days of the filing of the petition. Upon request of the prosecuting attorney, and for good cause shown, the hearing may be continued to allow the prosecuting attorney to obtain any relevant records pertinent to the hearing. At the hearing the prosecuting attorney and the victim shall have the opportunity to be heard.
- (g) The court shall issue an order releasing the sex offender from the residency restrictions pursuant to subsection (a) of Section 15-20A-11 if the court finds by clear and convincing evidence that the sex offender (1) is terminally ill, permanently immobile, has a debilitating medical condition requiring substantial care or supervision, or requires placement in a residential health care facility and (2) does not pose a substantial risk of perpetrating any future sexual offense. The court may relieve a sex offender from any residency restrictions indefinitely or for a specific period of time.
- (h) The court shall send a copy of any order releasing a sex offender from residency restrictions pursuant to subsection (a) of Section 15-20A-11 to the prosecuting attorney and the Alabama State Law Enforcement Agency.
- (i) If the court finds that the sex offender still poses a risk, has provided false or misleading information in support of the petition, or failed to serve the petition and supporting documentation upon the parties as provided for in subsection (c), then the petition shall be denied.
- (j) If the petition for release is denied, the sex offender may not file a subsequent petition for at least 12 months from the date of the final order on the previous petition unless good cause is shown and the sex offender's mental or physical condition has severely changed.
- (k) If at any time the sex offender is no longer terminally ill, permanently immobile, or no longer suffers from a debilitating medical condition requiring substantial care or supervision or no longer requires placement in a residential health care facility, the sex offender shall immediately register in person with local law enforcement in each county of residence, update all required registration information, and comply with the residency restriction pursuant to subsection (a) of Section 15-20A-11.
- (l) No sex offender petitioning the court under this section for an order terminating the sex offender's obligation to comply with the residency restrictions is entitled to publicly funded experts or publicly funded witnesses.

(m) Upon request of the state, the court may reinstate the restrictions pursuant to subsection (a) of Section 15-20A-11 for good cause shown, including, but not limited to, whenever the grounds for a relief order issued pursuant to subsection (g) are revealed to be false or no longer true. No filing fee may be assessed for a petition filed under this subsection.

(n) Notwithstanding any state or local rule assigning costs and fees for filing and processing civil and criminal cases, a sex offender's petition under this section shall be assessed a filing fee in the amount of two hundred dollars (\$200) to be distributed as provided in Section 15-20A-46. The filing fee may be waived initially and taxed as costs at the conclusion of the case if the court finds that payment of the fee will constitute a substantial hardship. A verified statement of substantial hardship, signed by the sex offender and approved by the court, shall be filed with the clerk of court.

(o) If a sex offender seeks relief from the court pursuant to this section, the enforcement of this chapter shall not be stayed pending a ruling of the court.

(p) A person who knowingly provides false or misleading information pursuant to this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 23; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-23, AL ST § 15-20A-23

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-24

§ 15-20A-24. Adult sex offender -- Relief from registration and notification.

Currentness

(a) At disposition, sentencing, upon completion of probation, or upon completion of a term of registration ordered by the sentencing court, a sex offender may petition the court for relief from the requirements of this chapter resulting from any of the following offenses, provided that he or she meets the requirements set forth in subsection (b):

(1) Rape in the second degree, as provided by subdivision (1) of subsection (a) of Section 13A-6-62.

(2) Sodomy in the second degree, as provided by subdivision (1) of subsection (a) of Section 13A-6-64.

(3) Sexual abuse in the second degree, as provided by subdivision (2) of subsection (a) of Section 13A-6-67.

(4) Sexual misconduct, as provided by Section 13A-6-65.

(5) Any crime committed in this state or any other jurisdiction which, if had been committed in this state under the current provisions of law, would constitute an offense listed in subdivisions (1) to (4), inclusive.

(6) Any solicitation, attempt, or conspiracy to commit any of the offenses listed in subdivisions (1) to (5), inclusive.

(b) The sex offender shall prove by clear and convincing evidence all of the following to obtain relief under this section:

(1) The sex offense did not involve force and was only a crime due to the age of the victim.

(2) At the time of the commission of the sex offense, the victim was 13 years of age or older.

(3) At the time of the commission of the sex offense, the sex offender was less than five years older than the victim.

(c) If the petition for relief is filed after sentencing or disposition, the petition for relief shall be filed as follows:

(1) If the adult or youthful offender sex offender was adjudicated or convicted in this state, the petition for relief shall be filed in the civil division of the circuit court where the adult or youthful offender sex offender was adjudicated or convicted.

(2) If the adult or youthful offender sex offender was adjudicated or convicted in a jurisdiction outside of this state, the petition for relief shall be filed in the civil division of the circuit court in the county in which the adult or youthful offender sex offender resides.

(3) If the juvenile sex offender was adjudicated in this state, the petition for relief shall be filed in the juvenile court.

(4) If the juvenile sex offender was adjudicated in a jurisdiction outside of this state, the petition for relief shall be filed in the juvenile court in the county in which the juvenile sex offender resides.

(d)(1) The sex offender shall serve a copy of the petition by certified mail on all of the following:

a. The prosecuting attorney in the county of adjudication or conviction, if the sex offender was adjudicated or convicted in this state.

b. The prosecuting attorney of the county where the sex offender resides.

c. Local law enforcement where the sex offender was adjudicated or convicted, if the sex offender was adjudicated or convicted in this state.

d. Local law enforcement where the adult sex offender resides.

(2) Failure of the sex offender to serve a copy of the petition as required by this subsection shall result in an automatic denial of the petition.

(e) The petition and documentation to support the request for relief shall include all of the following:

(1) The offense that the sex offender was initially charged with and the offense that the sex offender was adjudicated or convicted of, if different.

(2) A certified copy of the adjudication or conviction requiring registration including a detailed description of the sex offense, if the petition is filed upon completion of probation or a term of registration.

(3) Proof of the age of the victim and the age of the sex offender at the time of the commission of the sex offense.

(4) A list of each registering agency in each county and jurisdiction in which the sex offender is required to or has ever been required to register, if the petition is filed upon completion of probation or a term of registration.

- (5) The sex offender's criminal record and an affidavit stating that the sex offender has no pending criminal charges.
- (6) Any other information requested by the court relevant to the request for relief.
- (f) Upon notification of the petition, the prosecuting attorney shall make reasonable efforts to notify the victim of the crime for which the sex offender is required to register of the petition and the dates and times of any hearings or other proceedings in connection with the petition.
- (g) The court shall hold a hearing prior to ruling on the petition. At the hearing, the prosecuting attorney and the victim shall have the opportunity to be heard.
- (h) The court shall issue an order releasing the sex offender from some or all requirements of this chapter pursuant to subsection (i) if the court finds by clear and convincing evidence that the sex offender does not pose a substantial risk of perpetrating any future sex offense. In determining whether to grant relief, the court may consider any of the following:
 - (1) Recommendations from the sex offender's probation officer, including, but not limited to, the recommendations in the presentence investigation report and the sex offender's compliance with supervision requirements.
 - (2) Recommendations from the prosecuting attorney.
 - (3) Any written or oral testimony submitted by the victim or the parent, guardian, or custodian of the victim.
 - (4) The facts and circumstances surrounding the offense.
 - (5) The relationship of the parties.
 - (6) The criminal history of the sex offender.
 - (7) The protection of society.
 - (8) Any other information deemed relevant by the court.
- (i) The court may grant full or partial relief from this chapter. If the court grants relief, the court shall enter an order detailing the relief granted and provide a copy of the order to the prosecuting attorney and the Alabama State Law Enforcement Agency.
- (j) If the court denies the petition, the sex offender may not petition the court again until 12 months after the date of the order denying the petition.

(k) A sex offender is not eligible for relief under this section if he or she was adjudicated or convicted of a sex offense previous to or subsequent to the offense of which he or she is petitioning the court for relief or has any pending criminal charges for any sex offense.

(l) In addition to sex offenders adjudicated or convicted of a sex offense on or after July 1, 2011, a sex offender adjudicated or convicted of any of the offenses specified in subsection (a) prior to July 1, 2011, who meets the eligibility requirements specified in subsection (b), except as otherwise provided for in subsection (k), may petition the court for relief pursuant to this section.

(m) Notwithstanding any state or local law or rule assigning costs and fees for filing and processing civil and criminal cases, except when this relief is sought at the time of sentencing or disposition, a sex offender's petition under this section shall be assessed a filing fee in the amount of two hundred dollars (\$200) to be distributed as provided in Section 15-20A-46. The filing fee may be waived initially and taxed as costs at the conclusion of the case if the court finds that payment of the fee will constitute a substantial hardship. A verified statement of substantial hardship, signed by the sex offender and approved by the court, shall be filed with the clerk of court.

(n) If a sex offender seeks relief from the court pursuant to this section, the enforcement of this chapter shall not be stayed pending a ruling of the court.

(o) Any person who knowingly provides false or misleading information pursuant to this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 24; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-24, AL ST § 15-20A-24

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-25

§ 15-20A-25. Adult sex offender -- Relief from employment restriction.

Currentness

(a) A sex offender may petition at sentencing, or if after sentencing, a sex offender may file a petition in the civil division of the circuit court in the county where the sex offender seeks to accept or maintain employment for relief from the employment restrictions pursuant to subsection (b) of Section 15-20A-13. A sex offender adjudicated or convicted of any of the following sex offenses shall not be entitled to relief under this section:

- (1) Rape in the first degree, as provided by Section 13A-6-61.
 - (2) Sodomy in the first degree, as provided by Section 13A-6-63.
 - (3) Sexual abuse in the first degree, as provided by Section 13A-6-66.
 - (4) Sex abuse of a child less than 12 years old, as provided by Section 13A-6-69.1.
 - (5) Sexual torture, as provided by Section 13A-6-65.1.
 - (6) Any sex offense involving a child.
 - (7) Any solicitation, attempt, or conspiracy to commit any of the offenses listed in subdivisions (1) to (6), inclusive.
 - (8) Any offense committed in any other jurisdiction which, if it had been committed in this state under the current provisions of law, would constitute an offense listed in subdivisions (1) to (7), inclusive.
- (b)(1) The sex offender shall serve a copy of the petition by certified mail on all of the following:
- a. The prosecuting attorney in the county of adjudication or conviction, if the sex offender was adjudicated or convicted in this state.
 - b. The prosecuting attorney of the county in which the sex offender seeks to accept or maintain employment.

c. Local law enforcement where the sex offender was adjudicated or convicted, if the sex offender was adjudicated or convicted in this state.

d. Local law enforcement where the sex offender seeks to accept or maintain employment.

(2) Failure of the sex offender to serve a copy of the petition as required by this subsection shall result in an automatic denial of the petition.

(c) The petition and documentation to support the petition shall include all of the following:

(1) A certified copy of the adjudication or conviction requiring registration, including a detailed description of the sex offense, if the petition is filed after sentencing.

(2) A list of each registering agency in each county and jurisdiction in which the sex offender is required to register or has ever been required to register, if the petition is filed after conviction.

(3) The sex offender's criminal record and an affidavit stating that the sex offender has no pending criminal charges.

(4) The location where the sex offender is employed or intends to obtain employment.

(5) Justification as to why the court should grant relief.

(6) Any other information requested by the court relevant to the petition.

(d) Upon notification of the petition, the prosecuting attorney shall make reasonable efforts to notify the victim of the crime for which the sex offender is required to register of the petition and the dates and times of any hearings or other proceedings in connection with the petition.

(e) The court shall hold a hearing prior to ruling on the petition. At the hearing, the prosecuting attorney and the victim shall have the opportunity to be heard.

(f) The court shall issue an order releasing the sex offender from the requirements of the employment restrictions pursuant to subsection (b) of Section 15-20A-13 if the court finds by clear and convincing evidence that the sex offender does not pose a substantial risk of perpetrating any future sex offense. The court may consider any of the following factors in determining whether to grant relief:

(1) The nature of the offense.

- (2) Past criminal history of the sex offender.
 - (3) The location where the sex offender is employed or intends to obtain employment.
 - (4) Any other information deemed relevant by the court.
- (g) If the court grants the petition, the court shall enter an order detailing the relief granted and provide a copy of the order to the prosecuting attorney where the petition was filed and to the Alabama State Law Enforcement Agency.
- (h) A sex offender is not eligible for relief under this section if he or she was adjudicated or convicted of a sex offense previous to or subsequent to the offense of which he or she is petitioning the court for relief or has any pending criminal charges for any sex offense.
- (i) Upon request of the state, the court may reinstate the restrictions pursuant to subsection (b) of Section 15-20A-13 for good cause shown, including, but not limited to, whenever the grounds for a relief order issued pursuant to subsection (f) are revealed to be false or no longer true. No filing fee may be assessed for a petition filed under this subsection.
- (j) Notwithstanding any state or local law or rule assigning costs and fees for filing and processing civil and criminal cases, except when this relief is sought at the time of sentencing, a sex offender's petition under this section shall be assessed a filing fee in the amount of two hundred dollars (\$200) to be distributed as provided in Section 15-20A-46. The filing fee may be waived initially and taxed as costs at the conclusion of the case if the court finds that payment of the fee will constitute a substantial hardship. A verified statement of substantial hardship, signed by the sex offender and approved by the court, shall be filed with the clerk of court.
- (k) If a sex offender seeks relief from the court pursuant to this section, the enforcement of this chapter shall not be stayed pending a ruling of the court.
- (l) A person who knowingly provides false or misleading information pursuant to this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 25; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-25, AL ST § 15-20A-25

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-26

§ 15-20A-26. Juvenile sex offender -- Treatment; risk assessment.

Currentness

(a) Upon adjudication of delinquency for a sex offense, a juvenile sex offender shall be required to receive sex offender treatment by a sex offender treatment program or provider approved by the Department of Youth Services.

(b) Upon completion of sex offender treatment, the juvenile sex offender shall be required to undergo a sex offender risk assessment. The treatment provider shall provide a copy of the risk assessment to the sentencing court, the prosecuting attorney, and the juvenile probation office not less than 60 days prior to the projected release of the juvenile sex offender from a facility where the juvenile sex offender does not have unsupervised access to the public or immediately upon completion of the risk assessment if the juvenile sex offender is not in a facility where the juvenile sex offender does not have unsupervised access to the public.

(c) Upon receiving the risk assessment, the juvenile probation office shall provide a copy of the risk assessment to the state and either the attorney for the juvenile sex offender or the parent, guardian, or custodian of the juvenile sex offender. In addition, the juvenile probation office shall immediately notify the attorney for the juvenile sex offender and either the parent, guardian, or custodian of the pending release of the juvenile sex offender from a facility where the juvenile sex offender does not have unsupervised access to the public.

(d) Within 60 days of receiving the risk assessment, the court shall conduct a hearing to determine the risk of the juvenile sex offender to the community and the level of notification that shall apply.

(e) No juvenile sex offender shall be removed from the supervision of the juvenile court until such time as the juvenile sex offender has completed treatment, the treatment provider has filed a risk assessment with the sentencing court, and the sentencing court has conducted a hearing to determine the risk of the juvenile sex offender to the community and the level of notification that shall apply.

Credits

(Act 2011-640, p. 1569, § 26; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-26, AL ST § 15-20A-26

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-27

§ 15-20A-27. Juvenile sex offender -- Community notification.

Currentness

(a) In determining whether to apply notification requirements to a juvenile sex offender, the sentencing court shall consider any of the following factors relevant to the risk of re-offense:

- (1) Conditions of release that minimize the risk of re-offense, including, but not limited to, whether the juvenile sex offender is under supervision of probation, parole, or aftercare; receiving counseling, therapy, or treatment; or residing in a home situation that provides guidance and supervision.
- (2) Physical conditions that minimize the risk of re-offense, including, but not limited to, advanced age or debilitating illness.
- (3) Criminal history factors indicative of high risk of re-offense, including whether the conduct of the juvenile sex offender was found to be characterized by repetitive and compulsive behavior.
- (4) Whether psychological or psychiatric profiles indicate a risk of recidivism.
- (5) The relationship between the juvenile sex offender and the victim.
- (6) The particular facts and circumstances surrounding the offense.
- (7) The level of planning and participation in the offense.
- (8) Whether the offense involved the use of a weapon, violence, or infliction of serious bodily injury.
- (9) The number, date, and nature of prior offenses.
- (10) The response to treatment of the juvenile sex offender.
- (11) Recent behavior, including behavior while confined or while under supervision in the community.
- (12) Recent threats against persons or expressions of intent to commit additional crimes.

(13) The protection of society.

(14) Any other factors deemed relevant by the court.

(b) If the sentencing court determines that the juvenile sex offender shall be subject to notification, the level of notification shall be applied as follows:

(1) If the risk of re-offense is low, notification that the juvenile sex offender will be establishing or has established a fixed residence shall be provided by local law enforcement to the principal of the public or nonpublic school where the juvenile sex offender will attend after release and, if a public school, to the local superintendent of education with jurisdiction over that school. This notification shall include the name, actual living address, date of birth of the juvenile sex offender, and a statement of the sex offense for which he or she has been adjudicated delinquent, including the age and gender of the victim. This information shall be considered confidential by the school and the local superintendent of education and be shared only with the teachers and staff with supervision over the juvenile sex offender. Whoever, except as specifically provided herein, directly or indirectly discloses or makes use of or knowingly permits the use of information concerning a juvenile sex offender described in this section, upon conviction thereof, shall be guilty of a Class C felony within the jurisdiction of the juvenile court.

(2) If the risk of re-offense is moderate, notification that the juvenile sex offender will be establishing, or has established, a fixed residence shall be provided by local law enforcement to all schools and childcare facilities within three miles of the declared fixed residence of the juvenile sex offender. A community notification flyer shall be mailed by regular mail or hand delivered to all schools or childcare facilities as required by this subsection. No other method may be used to disseminate this information.

(3) If the risk of re-offense is high, the public shall receive notification as though the juvenile sex offender were an adult sex offender in accordance with Section 15-20A-21.

(c) The sentencing court shall enter an order stating whether the juvenile sex offender shall be subject to notification and the level of notification that shall be applied. The court shall provide a copy of the order to the prosecuting attorney and to the Alabama State Law Enforcement Agency.

(d) The determination of notification by the sentencing court shall not be subject to appeal.

Credits

(Act 2011-640, p. 1569, § 27; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5; Act 2018-528, § 2.)

Ala. Code 1975 § 15-20A-27, AL ST § 15-20A-27

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-28

§ 15-20A-28. Juvenile sex offender -- Lifetime registration and notification.

Currentness

(a) A juvenile adjudicated delinquent of any of the following sex offenses, who was 14 or older at the time of the offense, shall be subject to registration and notification, if applicable, for life:

(1) Rape in the first degree, as provided by Section 13A-6-61.

(2) Sodomy in the first degree, as provided by Section 13A-6-63.

(3) Sexual abuse in the first degree, as provided by Section 13A-6-66.

(4) Sexual torture, as provided by Section 13A-6-65.1.

(5) Any offense committed in any other jurisdiction which, if had been committed in this state under the current provisions of law, would constitute an offense listed in subdivisions (1) to (4), inclusive.

(6) Any offense, committed in this state or any other jurisdiction, comparable to or more severe than aggravated sexual abuse as described in 18 U.S.C. § 2241(a) or (b).

(7) Any attempt or conspiracy to commit any of the offenses listed in subdivisions (1) to (6), inclusive.

(b) A juvenile sex offender subject to lifetime registration may petition the sentencing juvenile court for relief from registration and notification, if notification was ordered, 25 years after the juvenile sex offender is released from the offense subjecting the juvenile sex offender to registration in accordance with this chapter, pursuant to Section 15-20A-34.

(c) A juvenile sex offender who is not subject to lifetime registration pursuant to subsection (a), shall be subject to this chapter for a period of 10 years from the date of first registration.

(d) The sentencing court or the juvenile court where the juvenile sex offender resides, if the juvenile sex offender's adjudication of delinquency occurred in another jurisdiction, may give a juvenile sex offender credit for the time the juvenile sex offender was registered in another jurisdiction.

(e) A juvenile sex offender who is subsequently adjudicated as a youthful offender sex offender or convicted of another sex offense during his or her registration period shall be considered solely an adult sex offender.

Credits

(Act 2011-640, p. 1569, § 28; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-28, AL ST § 15-20A-28

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-29

§ 15-20A-29. Juvenile sex offender -- Requirements prior to release.

Currentness

(a) Prior to the release of a juvenile sex offender, the following shall apply:

(1) The juvenile sex offender and the parent, custodian, or guardian of the juvenile sex offender shall provide the required registration information to the responsible agency.

(2) If the juvenile sex offender or the parent, guardian, or custodian of the juvenile sex offender declares a residence outside of the state, the responsible agency shall immediately notify the Alabama State Law Enforcement Agency and the designated state law enforcement agency of the state to which the juvenile sex offender or the parent, guardian, or custodian of the juvenile sex offender has declared the residence. The notification shall include all information available to the responsible agency that would be necessary to identify and trace the juvenile sex offender, including, but not limited to, the risk assessment and a current photograph of the juvenile sex offender.

(3) If the juvenile sex offender or the parent, guardian, or custodian of the juvenile sex offender declares a residence within this state, the responsible agency shall immediately notify the Alabama State Law Enforcement Agency, and local law enforcement in each county, in which the juvenile sex offender or the parent, guardian, or custodian of the juvenile sex offender has declared the residence. The notification shall include all information available to the responsible agency that would be necessary to identify and trace the juvenile sex offender, including, but not limited to, the risk assessment and a current photograph of the juvenile sex offender.

(b) When a juvenile sex offender becomes the age of majority, the parent, guardian, or custodian of the juvenile sex offender shall no longer be subject to this section and the juvenile sex offender shall instead be solely responsible for all requirements pursuant to this section.

(c) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 29; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-29, AL ST § 15-20A-29

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-30

§ 15-20A-30. Juvenile sex offender -- Registration with local law enforcement; residence restrictions.

Currentness

(a) Immediately upon release or immediately upon adjudication of delinquency if the juvenile sex offender is not committed, the juvenile sex offender and the parent, custodian, or guardian shall register all required registration information with local law enforcement in each county in which the juvenile sex offender resides or intends to reside.

(b) Whenever a juvenile sex offender establishes a new residence, the juvenile sex offender and the parent, custodian, or guardian of the juvenile sex offender shall immediately appear in person to register all required registration information with local law enforcement in each county of residence.

(c) If the parent, custodian, or guardian of a juvenile sex offender transfers or terminates the residence of the juvenile sex offender, or the custody of the juvenile sex offender is changed to a different parent, custodian, or guardian resulting in a transfer of residence, the original parent, custodian, or guardian with custody shall immediately notify local law enforcement in each county of residence.

(d) Whenever a juvenile sex offender changes any required registration information including, but not limited to, his or her school attendance status, the juvenile sex offender and the parent, custodian, or guardian of the juvenile sex offender shall immediately appear in person to update the required registration information with local law enforcement in each county in which the juvenile sex offender resides.

(e) A juvenile sex offender required to register for life pursuant to Section 15-20A-28 shall appear in person with his or her parent, custodian, or guardian to verify all required registration information during the birth month of the juvenile sex offender and every three months thereafter with the local law enforcement in each county of residence unless the juvenile sex offender has been relieved from registration requirements pursuant to Section 15-20A-34.

(f) A juvenile sex offender required to register for 10 years pursuant to Section 15-20A-28 shall appear in person with his or her parent, custodian, or guardian to verify all required registration information during the birth month of the juvenile sex offender and every year thereafter with local law enforcement in each county of residence unless the juvenile sex offender has been relieved from registration requirements pursuant to Section 15-20A-24.

(g) At the time of registration, the juvenile sex offender shall be provided a form explaining all duties and any restrictions placed on the juvenile sex offender. The juvenile sex offender and the parent, custodian, or guardian of the juvenile sex offender shall read and sign this form stating that he or she understands the duties and restrictions placed on the juvenile sex offender and his or her parent, custodian, or guardian.

(h) When a juvenile sex offender becomes the age of majority, the parent, custodian, or guardian of the juvenile sex offender shall no longer be subject to the requirements of this section, and the juvenile sex offender shall instead be solely responsible for the requirements in this section.

(i) A person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 30; Act 2015-463, p. 1506, § 1; Act 2018-528, § 2.)

Ala. Code 1975 § 15-20A-30, AL ST § 15-20A-30

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-31

§ 15-20A-31. Juvenile sex offender -- Employment restrictions.

Currentness

(a) During the time a juvenile sex offender is subject to the registration requirements of this chapter, the juvenile sex offender shall not accept or maintain employment or a volunteer position at any school, childcare facility, or any other business or organization that provides services primarily to children.

(b) It shall be unlawful for the owner or operator of any childcare facility or any other organization that provides services primarily to children to knowingly provide employment or a volunteer position to a juvenile sex offender.

(c) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 31; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-31, AL ST § 15-20A-31

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-32

§ 15-20A-32. Juvenile sex offender -- Requirements upon entering state.

Currentness

(a) A juvenile sex offender or youthful offender sex offender, or equivalent thereto, who is not currently a resident of this state, shall immediately appear in person and register all required registration information upon establishing a residence, accepting employment or a volunteer position, or beginning school attendance in this state with local law enforcement in each county where the juvenile sex offender or youthful offender sex offender resides or intends to reside, accepts employment or a volunteer position, or begins school attendance.

(b) Within 30 days of initial registration, the juvenile sex offender or youthful offender sex offender shall provide each registering agency with a certified copy of his or her sex offense adjudication; however, a juvenile sex offender or youthful offender sex offender shall be exempt under this subsection if the court of adjudication seals the records and refuses to provide a certified copy or the records have been destroyed by the court.

(c) Whenever a juvenile sex offender enters this state to establish a residence, he or she shall be subject to the requirements of this chapter as it applies to juvenile sex offenders in this state.

(d) Whenever a youthful offender sex offender, or equivalent thereto, enters this state to establish a residence, he or she shall be subject to the requirements of this chapter as it applies to youthful offender sex offenders in this state.

(e) A juvenile sex offender or youthful offender sex offender entering this state to accept employment or a volunteer position or to begin school attendance, but not to establish a residence, must immediately appear in person and register any subsequent changes to the required registration information with local law enforcement in each county where he or she is required to register.

(f) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 32; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-32, AL ST § 15-20A-32

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-33

§ 15-20A-33. Juvenile sex offender -- Retention of court records.

Currentness

Notwithstanding any other provision of law, the court records of juvenile sex offenders are to be retained, either in paper format or electronically, and not to be destroyed for a period of 75 years from the date of adjudication.

Credits

(Act 2011-640, p. 1569, § 33.)

Ala. Code 1975 § 15-20A-33, AL ST § 15-20A-33

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-34

§ 15-20A-34. Juvenile sex offender -- Relief from lifetime registration requirements.

Currentness

(a) A juvenile sex offender subject to lifetime registration pursuant to Section 15-20A-28 may file a petition requesting the sentencing juvenile court to enter an order relieving the juvenile sex offender of the requirements pursuant to this chapter 25 years after the juvenile sex offender is released from the custody of the Department of Youth Services or sentenced, if the juvenile sex offender was placed on probation, for the sex offense requiring registration pursuant to this chapter.

(b) The petition shall be filed as follows:

(1) If the juvenile sex offender was adjudicated delinquent of a sex offense in this state, the petition shall be filed in the juvenile court of the county in which the juvenile sex offender was adjudicated delinquent.

(2) If the juvenile sex offender was adjudicated delinquent of a sex offense in a jurisdiction outside of this state, the petition shall be filed in the juvenile court of the county in which the juvenile sex offender resides.

(c)(1) The juvenile sex offender shall serve a copy of the petition by certified mail on all of the following:

a. The prosecuting attorney in the county of adjudication, if the juvenile sex offender was adjudicated delinquent in this state.

b. The prosecuting attorney of the county in which the juvenile sex offender resides.

c. Local law enforcement where the juvenile sex offender was adjudicated delinquent, if the juvenile sex offender was adjudicated delinquent in this state.

d. Local law enforcement where the juvenile sex offender resides.

(2) Failure of the juvenile sex offender to serve a copy of the petition as required by this subsection shall result in an automatic denial of the petition.

(d) The petition and documentation to support the petition shall include all of the following:

- (1) A certified copy of the adjudication of delinquency requiring registration.
 - (2) Documentation of the juvenile sex offender's release date or sentencing date if the juvenile sex offender was placed on probation.
 - (3) Evidence that the juvenile sex offender has completed a treatment program approved by the Department of Youth Services.
 - (4) A list of each county and jurisdiction in which the juvenile sex offender is required to register or has ever been required to register.
 - (5) The juvenile sex offender's criminal record and an affidavit stating that the juvenile sex offender has no pending criminal charges.
 - (6) Any other information requested by the court relevant to the petition.
- (e) Upon notification of the petition, the prosecuting attorney shall make reasonable efforts to notify the victim of the offense for which the juvenile sex offender is required to register of the petition and of the dates and times of any hearings or other proceedings in connection with the petition.
- (f) The court shall hold a hearing prior to ruling on the petition. At the hearing, the prosecuting attorney and the victim shall have the opportunity to be heard.
- (g) The court may consider any of the following factors to determine whether to grant relief:
- (1) Recommendations from the juvenile sex offender's probation officer, including, but not limited to, the recommendations in the predisposition report and the juvenile sex offender's compliance with supervision requirements.
 - (2) Recommendations from the juvenile sex offender's treatment provider, including, but not limited to, whether the juvenile sex offender successfully completed a treatment program approved by the Department of Youth Services.
 - (3) Recommendations from the prosecuting attorney.
 - (4) Any written or oral testimony submitted by the victim or the parent, custodian, or guardian of the victim.
 - (5) The facts and circumstances surrounding the offense including, but not limited to, the age and number of victims, whether the act was premeditated, and whether the offense involved the use of a weapon, violence, or infliction of serious bodily injury.
 - (6) Any criminal behavior of the juvenile sex offender before and after the adjudication of delinquency that requires reporting.

(7) The stability of the juvenile sex offender in employment and housing and his or her community and personal support system.

(8) The protection of society.

(9) Any other factors deemed relevant by the court.

(h) If the court is satisfied by clear and convincing evidence that the juvenile sex offender is rehabilitated and does not pose a threat to the safety of the public, the court shall grant relief.

(i) The court shall provide a copy of any order granting relief to the prosecuting attorney and to the Alabama State Law Enforcement Agency.

(j) Upon receipt of a copy of an order granting relief as provided in this section, the Alabama State Law Enforcement Agency shall remove the juvenile sex offender from the public registry website. If the registering agencies maintain a local registry of sex offenders who are registered with their agencies, the registering agencies shall remove the registration information of the juvenile sex offender from the local sex offender public registry, if notification applied.

(k) If the court denies the petition for relief, the juvenile sex offender shall wait at least 12 months from the date of the order denying the petition before petitioning the court again.

(l) Notwithstanding any state or local law or rule assigning costs and fees for filing and processing civil and criminal cases, the fee for filing the petition for relief under this section shall be two hundred dollars (\$200) to be distributed as provided in Section 15-20A-46. The filing fee may be waived initially and taxed as costs at the conclusion of the case if the court finds that payment of the fee will constitute a substantial hardship. A verified statement of substantial hardship, signed by the sex offender and approved by the court, shall be filed with the clerk of court.

(m) If a sex offender seeks relief from the court pursuant to this section, the enforcement of this chapter shall not be stayed pending a ruling of the court.

(n) A person who knowingly provides false or misleading information pursuant to this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 34; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-34, AL ST § 15-20A-34

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-35

§ 15-20A-35. Youthful offender treated as juvenile or adult.

Currentness

For the purposes of this chapter, a youthful offender sex offender who has not been previously adjudicated or convicted of a sex offense and who has not yet attained the age of 18 at the time of the offense shall be considered a juvenile sex offender. A youthful offender sex offender who has been previously adjudicated or convicted of a sex offense as a juvenile sex offender, youthful offender sex offender, or adult sex offender, or who has attained the age of 18 at the time of the offense shall be treated as an adult sex offender convicted of a sex offense. A youthful offender sex offender who is treated as a juvenile sex offender for purposes of this chapter may not be released from the jurisdiction of the sentencing court until the youthful offender sex offender has undergone sex offender treatment and a risk assessment as required by Section 15-20A-26.

Credits

(Act 2011-640, p. 1569, § 35; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-35, AL ST § 15-20A-35

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-36

§ 15-20A-36. Name change of offender.

Currentness

(a) No sex offender shall change his or her name unless the change is incident to a change in the marital status of the sex offender or is necessary to effect the exercise of the religion of the sex offender. Such a change shall be immediately reported to local law enforcement in each county in which the sex offender is required to register. If the sex offender is subject to the notification provisions of this chapter, the reporting of a name change under this section shall invoke notification.

(b) Any person who knowingly violates this section shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 36; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-36, AL ST § 15-20A-36

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-37

§ 15-20A-37. Failure to register; absconding.

Currentness

(a) When a sex offender declares, and the county is notified that a sex offender intends to reside, maintain employment or a volunteer position, or attend school in the county and the sex offender fails to appear for registration, the county that received the notice shall immediately inform the sheriff of the county that provided the notice that the sex offender failed to appear for registration.

(b) When a sex offender fails to register or cannot be located, an effort shall immediately be made by the sheriff in the county in which the sex offender failed to register or is unable to be located to determine whether the sex offender has absconded.

(c) If no determination can be made as to whether the sex offender has absconded, the sheriff of the county in which the sex offender failed to appear for registration shall immediately notify the Alabama State Law Enforcement Agency and the United States Marshals Service that the sex offender cannot be located and provide any information available to determine whether the sex offender absconded to the United States Marshals Service.

(d) Once a determination is made that the sex offender has absconded, the following shall occur:

(1) The sheriff of the county in which the sex offender has absconded shall immediately obtain a warrant for the arrest of the sex offender.

(2) The sheriff of the county in which the sex offender has absconded shall immediately notify the United States Marshals Service and the Alabama State Law Enforcement Agency.

(3) The Alabama State Law Enforcement Agency shall immediately update its public registry website to reflect that the sex offender has absconded.

(4) The Alabama State Law Enforcement Agency shall immediately notify the Criminal Justice Information Center, who shall immediately notify the National Criminal Information Center.

(5) The Alabama State Law Enforcement Agency shall immediately notify the National Sex Offender Registry to reflect that the sex offender has absconded and enter the information into the National Crime Center Wanted Person File.

(e) A sex offender who knowingly fails to appear for registration after declaring his or her intent to reside, be employed, or attend school in a county without notifying local law enforcement in that county that he or she will no longer establish a residence, maintain employment or a volunteer position, or attend school, shall be guilty of a Class C felony.

Credits

(Act 2011-640, p. 1569, § 37; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-37, AL ST § 15-20A-37

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-38

§ 15-20A-38. Escape from correctional facility.

Currentness

(a) If a sex offender escapes from a state or local correctional facility, juvenile detention facility, or any other facility that would not permit unsupervised access to the public, the responsible agency, within 24 hours, shall notify the Alabama State Law Enforcement Agency, local law enforcement who had jurisdiction at the time of adjudication or conviction of the sex offense, the sheriff of the county and each chief of police of every municipality in the county where the sex offender escaped, and the United States Marshals Service.

(b) The responsible agency shall provide each law enforcement agency listed in subsection (a) with the following information:

- (1) The name and aliases of the sex offender.
- (2) The amount of time remaining to be served by the sex offender.
- (3) The nature of the crime for which the sex offender was incarcerated.
- (4) A copy of the fingerprints and current photograph of the sex offender and a summary of the criminal record of the sex offender.

Credits

(Act 2011-640, p. 1569, § 38; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-38, AL ST § 15-20A-38

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-39

§ 15-20A-39. Harboring, assisting, concealing, or withholding information about a sex offender.

Currentness

(a) A person is guilty of the crime of harboring, assisting, concealing, or withholding information about a sex offender if the person has knowledge or reason to believe that a sex offender is required to register and the person assists the sex offender in avoiding a law enforcement agency that is seeking to find the sex offender to question the sex offender about, or to arrest the sex offender for, noncompliance with the requirements of this chapter if the person does any of the following:

- (1) Harbors, attempts to harbor, or assists another person in harboring or attempting to harbor the sex offender.
 - (2) Allows a sex offender to reside at his or her residence to avoid registration if the address is not the address the sex offender listed as his or her residence address.
 - (3) Warns a sex offender that a law enforcement agency is attempting to locate the sex offender.
 - (4) Provides the sex offender with money, transportation, weapon, disguise, or other means of avoiding discovery or apprehension.
 - (5) Conceals, attempts to conceal, or assists another in concealing or attempting to conceal the sex offender.
 - (6) Provides information to a law enforcement agency regarding a sex offender which the person knows to be false.
- (b) For the purposes of this section, the term law enforcement agency includes, but is not limited to, the Board of Pardons and Paroles.
- (c) Knowingly harboring, assisting, or concealing a sex offender is a Class C felony.

Credits

(Act 2011-640, p. 1569, § 39; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-39, AL ST § 15-20A-39

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-40

§ 15-20A-40. Public records -- Certified copies of adjudication or conviction.

Currentness

(a) It is the intent of the Legislature that a duplicate of a certified copy of a public record be admissible and is not dependent on the original custodian of record to gain admissibility. Further, the Legislature finds that the certification by the clerk of the court and the certification by the Alabama State Law Enforcement Agency assures reliability and trustworthiness.

(b) The clerk of the court shall forward a certified copy of a sex offender's adjudication or conviction to the Alabama State Law Enforcement Agency within 30 days of receipt of the order of adjudication or conviction of any of the offenses listed in Section 15-20A-5.

(c) Any state, county, or municipal law enforcement agency, the Attorney General, or a district attorney may request a duplicate of the sex offender's adjudication or conviction from the Alabama State Law Enforcement Agency.

(d) Upon the request of any of the agencies listed in subsection (c), the custodian of records, or its designee, of the Alabama State Law Enforcement Agency shall immediately certify all of the following:

(1) That the Alabama State Law Enforcement Agency received the certified copy of the sex offender's conviction or adjudication from the clerk of the court pursuant to subsection (b).

(2) That the original certified copy received from the clerk of the court remains in the possession of the Alabama State Law Enforcement Agency.

(3) That no changes or alterations have been made to the original certified copy.

(e) Upon certification by the Alabama State Law Enforcement Agency as provided in subsection (d), the Alabama State Law Enforcement Agency shall immediately forward the certified documents to the requesting agency.

(f) Notwithstanding any other law or rule of evidence, a certified copy of the record of adjudication or conviction as defined in subsection (b), provided by the Alabama State Law Enforcement Agency, as provided in subsection (d), shall be proof of the sex offender's adjudication or conviction of a sex offense and shall be admissible into evidence, without further proof, in any court in this state.

(g) For the purpose of this section, the term conviction or adjudication shall mean a final conviction or adjudication, regardless of whether the conviction or adjudication is on appeal.

(h) Any clerk of a court, who willfully or intentionally fails to report any such conviction or adjudication in his or her court shall be guilty of a Class A misdemeanor.

Credits

(Act 2011-640, p. 1569, § 40; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-40, AL ST § 15-20A-40

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-41

§ 15-20A-41. Victim assistance.

Currentness

(a) After a sex offender's conviction or adjudication, and upon request of the Attorney General's Office, the office of the prosecuting attorney or the clerk of the court shall immediately forward the victim's name and most current address, if available, to the Attorney General's Office of Victim Assistance.

(b) When providing notice of a parole hearing, the Board of Pardons and Paroles shall provide the Attorney General's Office of Victim Assistance with any victim information on victims whose offenders are subject to this chapter.

(c) Upon request of the victim, the Attorney General's Office of Victim Assistance shall send a notice to the victim notifying the victim of the pending release of the sex offender and the location at which the sex offender intends to reside. This request by the victim shall be made electronically or in writing to the Attorney General's Office of Victim Assistance.

(d) It shall be the responsibility of the victim to inform the Attorney General's Office of Victim Assistance of any change to the victim's address or any other pertinent information. If the notice sent by the Attorney General's Office of Victim Assistance is returned as undeliverable, no further action shall be required of the Attorney General's Office of Victim Assistance.

Credits

(Act 2011-640, p. 1569, § 41.)

Ala. Code 1975 § 15-20A-41, AL ST § 15-20A-41

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-42

§ 15-20A-42. Collection and dissemination of information by Alabama State Law Enforcement Agency.

Currentness

(a) Any jurisdiction or agency responsible for registering a sex offender shall immediately forward all required registration information and any changes to the required registration information received to the Alabama State Law Enforcement Agency in a manner determined by the Secretary of the Alabama State Law Enforcement Agency and promulgated in rule by the secretary upon recommendation of an advisory board consisting of representatives of the office of the Attorney General, District Attorneys Association, Chiefs of Police Association, Sheriffs Association, and the Alabama State Law Enforcement Agency. The advisory board members shall not receive any compensation or reimbursement for serving on the advisory board.

(b) Upon notification or discovery of the death of a sex offender, the registering agency shall immediately notify the Alabama State Law Enforcement Agency.

(c) The Alabama State Law Enforcement Agency shall immediately enter all registration information received into its sex offender database.

(d) All information received by the Alabama State Law Enforcement Agency shall be immediately forwarded to the following by the Alabama State Law Enforcement Agency:

(1) The National Criminal Information Center or any other law enforcement agency for any lawful criminal justice purpose.

(2) The Sex Offender Registration and Notification Act Exchange Portal.

(3) The National Sex Offender Registry.

(4) Each county and municipality where the sex offender resides, is an employee, or is a student.

(5) Each county and municipality from or to which a change of residence, employment, or student status occurs.

(6) The campus police in each county or jurisdiction where the sex offender is a student.

(7) The United States Marshals Service, if the sex offender is terminating residence in a jurisdiction to relocate to a foreign country.

(8) The Attorney General's Office of Victim Assistance.

(e) Upon request, all registration information shall be available in electric form to all federal, state, county, and municipal law enforcement agencies, prosecuting attorneys, probation officers, and any agency responsible for conducting employment-related background checks under the National Child Protection Act of 1993 (42 U.S.C. § 5119a).

(f) No existing state laws, including, but not limited to, statutes that would otherwise make juvenile and youthful offender records confidential, shall preclude the disclosure of any information requested by a responsible agency, a law enforcement officer, a criminal justice agency, the Office of the Attorney General, or a prosecuting attorney for purposes of administering, implementing, or enforcing this chapter. No state law shall preclude the disclosure of any information concerning a juvenile sex offender or youthful offender sex offender to the Department of Human Resources for the purpose of conducting an assessment with regard to a person as provided by law.

(g) The sheriff of each county shall maintain a register or roster of the names of all persons registered by him or her pursuant to this chapter. The information contained in the register or roster shall be made available, upon request, to all federal, state, county, and municipal law enforcement agencies, prosecuting attorneys, or probation officers for the administration, implementation, or enforcement of this chapter.

(h) Notwithstanding any other provision of law to the contrary, a sex offender's Internet identifiers as described in subdivision (9) of subsection (a) of Section 15-20A-7, and a sex offender's Internet service providers as described in subdivision (18) of subsection (a) of Section 15-20A-7, may only be disclosed pursuant to federal law or to law enforcement for the purpose of administering, implementing, or enforcing this chapter or to prevent or investigate a crime by the sex offender based on an articulable basis for suspicion. In no event shall such information be disclosed other than for one of the purposes identified in the preceding sentence. A violation of this subsection shall constitute a Class A misdemeanor.

Credits

(Act 2011-640, p. 1569, § 42; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-42, AL ST § 15-20A-42

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-43

§ 15-20A-43. Registration and notification requirements mandatory.

Currentness

(a) Except as provided in Sections 15-20A-5, 15-20A-16, 15-20A-23, 15-20A-24, 15-20A-25, 15-20A-34 or the former 15-20-21(4)(a), the requirements of this chapter are mandatory and shall not be altered, amended, waived, or suspended by any court. Any court order altering, amending, waiving, or suspending sex offender registration and notification requirements, except as provided in Sections 15-20A-5, 15-20A-16, 15-20A-23, 15-20A-24, 15-20A-25, 15-20A-34 or the former 15-20-21(4)(a), shall be null, void, and of no effect.

(b) The Board of Pardons and Paroles shall not grant relief from any provisions of this chapter to any sex offender unless all three of the following conditions are met:

(1) At the time of the commission of the sex offense, the sex offender was less than five years older than the victim.

(2) At the time of the commission of the sex offense, the victim was 13 years of age or older.

(3) The sex offense did not involve force and was only a crime due to the age of the victim.

Credits

(Act 2011-640, p. 1569, § 43; Act 2015-463, p. 1506, § 1; Act 2017-414, § 5.)

Ala. Code 1975 § 15-20A-43, AL ST § 15-20A-43

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-44

§ 15-20A-44. Rulemaking authority.

Currentness

(a) The Secretary of the Alabama State Law Enforcement Agency shall adopt rules establishing an administrative hearing for persons who are only made subject to this chapter pursuant to subdivision (35) of Section 15-20A-5.

(b) The Secretary of the Alabama State Law Enforcement Agency shall adopt rules setting forth a listing of offenses from other jurisdictions that are to be considered criminal sex offenses under subdivision (35) of Section 15-20A-5. Thereafter, any individual convicted of any offense set forth in the listing shall immediately be subject to this chapter and shall not be entitled to an administrative hearing as provided in subsection (a).

(c) The Secretary of the Alabama State Law Enforcement Agency may adopt any rules as are necessary to implement and enforce this chapter.

Credits

(Act 2011-640, p. 1569, § 44; Act 2015-463, p. 1506, § 1; Act 2018-528, § 4; Act 2019-465, § 1.)

Ala. Code 1975 § 15-20A-44, AL ST § 15-20A-44

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-45

§ 15-20A-45. Penalties.

Currentness

(a) A sex offender who is convicted of any offense specified in this chapter, in addition to any imprisonment or fine, or both, and in addition to any other fees, costs, and assessments, imposed for the commission of the underlying offense, shall be punished by a fine of two hundred fifty dollars (\$250).

(b) The fines collected in subsection (a) shall be distributed as follows:

(1) Fifty dollars (\$50) to the Highway Traffic Safety Fund in the Alabama State Law Enforcement Agency.

(2) Twenty-five dollars (\$25) to the Circuit Clerk's Restitution Recovery Fund.

(3) Twenty-five dollars (\$25) to the State General Fund.

(4) Fifty dollars (\$50) to the District Attorney's Fund or the fund prescribed by law for district attorney fees.

(5) Fifty dollars (\$50) to the Office of Prosecution Services for the Alabama Computer Forensics Labs.

(6) Fifty dollars (\$50) to the law enforcement agency who requested the warrant subject to the following:

a. If the warrant was requested by the sheriff, or his or her designee, any and all monies collected under this subsection shall be deposited in the county general fund earmarked for use by the sheriff and shall be paid to the sheriff upon request by the sheriff to be used at the discretion of the sheriff for any law enforcement purpose related to sex offender registration, notification, tracking, or apprehension.

b. The monies provided in this subdivision and the use of the funds shall in no way diminish or take the place of any other reimbursement or other source of income established for the sheriff or the operation of his or her office.

c. If the warrant was requested by a municipality, any proceeds from this subdivision shall be deposited into the municipal general fund and made available to the affected law enforcement agency or department upon requisition of the chief law enforcement official of such agency or department and shall be used for any lawful purpose related to sex offender registration notification, tracking, or apprehension. The monies provided in this paragraph shall in no way diminish or

take the place of any other reimbursement or other source of income established for the chief of police for the operation of his or her office.

(c) Fines ordered pursuant to this section shall not be waived, suspended, or remitted.

Credits

(Act 2011-640, p. 1569, § 45; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-45, AL ST § 15-20A-45

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-46

§ 15-20A-46. Disposition of funds.

Currentness

(a) The two hundred dollar (\$200) filing fee paid by a sex offender who petitions the court for relief pursuant to Sections 15-20A-16, 15-20A-23, 15-20A-24, 15-20A-25, or 15-20A-34 shall be distributed as follows:

(1) Fifty dollars (\$50) to the Circuit Clerk's Restitution Recovery Fund.

(2) Fifty dollars (\$50) to the sheriff of the county subject to the following:

a. Any and all monies collected under this subdivision shall be deposited in the county general fund earmarked for use by the sheriff and shall be paid to the sheriff upon request by the sheriff to be used at the discretion of the sheriff for any law enforcement purpose related to sex offender registration, notification, tracking, or apprehension.

b. The monies provided in this subdivision and the use of the funds shall in no way diminish or take the place of any other reimbursement or other source of income established for the sheriff or the operation of his or her office.

(3) Fifty dollars (\$50) to the District Attorney's Fund or the fund prescribed by law for district attorney fees.

(4) Fifty dollars (\$50) to Alabama Network of Children's Advocacy Centers.

(b) The filing fee shall not be remitted.

Credits

(Act 2011-640, p. 1569, § 46; Act 2015-463, p. 1506, § 1.)

Ala. Code 1975 § 15-20A-46, AL ST § 15-20A-46

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-47

§ 15-20A-47. Construction.

Currentness

Nothing in this chapter shall be construed as creating a cause of action against the state or any of its agencies, officials, employees, or political subdivisions based on the performance of any duty imposed by this chapter or the failure to perform any duty imposed by this chapter.

Credits

(Act 2011-640, p. 1569, § 47.)

Ala. Code 1975 § 15-20A-47, AL ST § 15-20A-47

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

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Code of Alabama

Title 15. Criminal Procedure. (Refs & Annos)

Chapter 20A. Alabama Sex Offender Registration and Community Notification Act. (Refs & Annos)

Ala.Code 1975 § 15-20A-48

§ 15-20A-48. Relation to other laws.

Currentness

(a) For the purposes of Sections 13A-5-2, 13A-5-6, 14-9-41, 15-18-8, 15-22-27.3, or any other section of the Code of Alabama 1975, a criminal sex offense involving a child shall mean a conviction for any sex offense in which the victim was a child under the age of 12 or any offense involving child pornography.

(b) For the purpose of Section 12-15-107(a)(7), a juvenile probation officer shall notify the state and either the parent, legal guardian, or legal custodian of a juvenile sex offender, or the child's attorney for the juvenile sex offender, of the pending release of the sex offender and provide them with a copy of the risk assessment pursuant to subsection (c) of Section 15-20A-26.

(c) For the purpose of Section 12-15-116(a)(5), a juvenile court shall have exclusive original jurisdiction to try any individual who is 18 years of age or older and violates any of the juvenile criminal sex offender provisions of subdivision (1) of subsection (b) of Section 15-20A-27.

(d) For the purpose of Section 13A-5-6(c), an offender is designated a sexually violent predator pursuant to Section 15-20A-19.

(e) For the purpose of Sections 36-18-24(b)(6) and 36-18-25(c)(1), sexual offenses shall include, but not be limited to, those offenses pursuant to Section 15-20A-5.

(f) For the purpose of Section 32-6-49.24, a person who is registered as a sex offender or convicted of a crime that requires registration as a sex offender is a person who is required to register as a sex offender pursuant to this chapter. A crime or offense that requires registration as a sex offender shall include, but not be limited to, those offenses pursuant to Section 15-20A-5.

(g) For the purpose of Sections 38-13-2 and 38-13-4, a sex crime shall also include any offense listed in this chapter pursuant to Section 15-20A-5.

Credits

(Act 2011-640, p. 1569, § 48.)

Ala. Code 1975 § 15-20A-48, AL ST § 15-20A-48

Current through the end of the 2025 Regular Session. Some provisions may be more current; see credits for details.

West's Alaska Statutes Annotated
Title 12. Code of Criminal Procedure
Chapter 63. Registration of Sex Offenders

AS T. 12, Ch. 63, Refs & Annos
Currentness

AS T. 12, Ch. 63, Refs & Annos, AK ST T. 12, Ch. 63, Refs & Annos
Current with amendments received through chapters 16, 18-20, and 22 of the 2025 First Regular Session of the 34th Legislature.
Some sections may be more current than others.

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West's Alaska Statutes Annotated
Title 12. Code of Criminal Procedure
Chapter 63. Registration of Sex Offenders (Refs & Annos)

AS § 12.63.010

§ 12.63.010. Registration of sex offenders and related requirements

Currentness

(a) A sex offender or child kidnapper who is physically present in the state shall register as provided in this section. The sex offender or child kidnapper shall register

(1) within the 30-day period before release from an in-state correctional facility;

(2) by the next working day following conviction for a sex offense or child kidnapping if the sex offender is not incarcerated at the time of conviction; or

(3) by the next working day of becoming physically present in the state.

(b) A sex offender or child kidnapper required to register under (a) of this section shall register with the Department of Corrections if the sex offender or child kidnapper is incarcerated or in person at the Alaska state trooper post or municipal police department located nearest to where the sex offender or child kidnapper resides at the time of registration. To fulfill the registration requirement, the sex offender or child kidnapper shall

(1) complete a registration form that includes the following information, if applicable:

(A) the sex offender's or child kidnapper's full name, mailing and physical addresses, school address, telephone numbers used by the sex offender or child kidnapper, social security number, passport information, citizenship status, physical address of employment, name of employer, job title, and date of birth;

(B) each conviction for a sex offense or child kidnapping for which the duty to register has not terminated under AS 12.63.020, the date of the sex offense or child kidnapping convictions, the place and court of the sex offense or child kidnapping convictions, and whether the sex offender or child kidnapper has been unconditionally discharged from the conviction for a sex offense or child kidnapping and the date of the unconditional discharge; if the sex offender or child kidnapper asserts that the offender or kidnapper has been unconditionally discharged, the offender or kidnapper shall supply proof of that discharge acceptable to the department;

(C) all aliases used;

(D) the sex offender's or child kidnapper's driver's license number;

(E) the description, license numbers, and vehicle identification numbers of motor vehicles, including watercraft, aircraft, motorcycles, and recreational vehicles, the sex offender or child kidnapper has access to, regardless of whether that access is regular or not;

(F) any identifying features of the sex offender or child kidnapper;

(G) anticipated changes of address and any temporary lodging used by the sex offender or child kidnapper for seven days or more;

(H) a statement concerning whether the offender or kidnapper has had treatment for a mental abnormality or personality disorder since the date of conviction for an offense requiring registration under this chapter;

(I) each electronic mail address, instant messaging address, and other Internet communication identifier used by the sex offender or child kidnapper; and

(J) professional licensing information;

(2) allow the Alaska state troopers, Department of Corrections, municipal police, or any peace officer to take a complete set of the sex offender's or child kidnapper's fingerprints and palm prints and to take the sex offender's or child kidnapper's photograph.

(c) If a sex offender or child kidnapper changes residence or obtains a change of name under AS 09.55.010 or AS 25.24.165 after having registered under (a) of this section, the sex offender or child kidnapper shall provide written notice of the change by the next working day following the change to the Alaska state trooper post or municipal police department located nearest to the new residence or, if the residence change is out of state, to the central registry. If a sex offender or child kidnapper establishes or changes an electronic mail address, instant messaging address, or other Internet communication identifier, the sex offender or child kidnapper shall, by the next working day, notify the department in writing of the changed or new address or identifier.

(d) A sex offender or child kidnapper required to register

(1) for 15 years under (a) of this section and AS 12.63.020 shall, annually, during the term of a duty to register under AS 12.63.020, on a date set by the department at the time of the sex offender's or child kidnapper's initial registration, provide written verification to the department, in the manner required by the department, of the information provided under (b)(1) of this section and notice of any changes to the information previously provided under (b)(1) of this section;

(2) for life under (a) of this section and AS 12.63.020 shall, not less than quarterly, on a date set by the department, provide written verification to the department, in the manner required by the department, of the information provided under (b)(1) of this section and notice of any changes to the information previously provided under (b)(1) of this section.

(e) The registration form required to be submitted under (b) of this section and the annual or quarterly verifications must be sworn to by the offender or kidnapper and contain an admonition that a false statement shall subject the offender or kidnapper to prosecution for perjury.

(f) If a sex offender or child kidnapper plans to leave the state for international travel after having registered under (a) of this section, the sex offender or child kidnapper shall provide to the department or a municipal police department in the state written notice of the plan for any intended travel outside the United States at least 21 days before leaving the state for international travel.

(g) If a sex offender or child kidnapper is away from the physical address provided to the department under (b)(1)(A) of this section for a period of seven days or more, the sex offender or child kidnapper shall notify the department in writing of the address being used by the sex offender or child kidnapper while away from the physical address provided under (b)(1)(A) of this section.

(h) In this section, “correctional facility” has the meaning given in AS 33.30.901.

Credits

SLA 1994, ch. 41, § 4; SLA 1998, ch. 106, §§ 7--11. Amended by SLA 2008, ch. 42, §§ 3, 4, eff. Jan. 1, 2009; 1st Sp. Sess. 2019, ch. 4, § 82, eff. July 9, 2019; SLA 2022, ch. 44, § 12, eff. Jan. 1, 2023; SLA 2024, ch. 11, §§ 37 to 39, eff. Jan. 1, 2025.

AS § 12.63.010, AK ST § 12.63.010

Current with amendments received through chapters 16, 18-20, and 22 of the 2025 First Regular Session of the 34th Legislature. Some sections may be more current than others.

West's Alaska Statutes Annotated
Title 12. Code of Criminal Procedure
Chapter 63. Registration of Sex Offenders (Refs & Annos)

AS § 12.63.020

§ 12.63.020. Duration of sex offender or child kidnapper duty to register

Currentness

(a) The duty of a sex offender or child kidnapper to comply with the requirements of AS 12.63.010 is as follows:

(1) for a sex offender or child kidnapper, as that term is defined in AS 12.63.100(6)(A), for each sex offense or child kidnapping, the duty

(A) continues for the lifetime of a sex offender or child kidnapper convicted of

(i) one aggravated sex offense; or

(ii) two or more sex offenses, two or more child kidnappings, or one sex offense and one child kidnapping; for purposes of this section, a person convicted of indecent exposure before a person under 16 years of age under AS 11.41.460 more than two times has been convicted of two or more sex offenses;

(B) ends 15 years following the sex offender's or child kidnapper's unconditional discharge from a conviction for a single sex offense that is not an aggravated sex offense or for a single child kidnapping if the sex offender or child kidnapper has supplied proof that is acceptable to the department of the unconditional discharge; the registration period under this subparagraph

(i) is tolled for the period that a sex offender or child kidnapper fails to comply with the requirements of this chapter or is incarcerated for the offense or kidnapping for which the offender or kidnapper is required to register or for any other offense;

(ii) may include the time a sex offender or child kidnapper was absent from this state if the sex offender or child kidnapper has complied with any sex offender or child kidnapper registration requirements of the jurisdiction in which the offender or kidnapper was located and if the sex offender or child kidnapper provides the department with proof of the compliance while the sex offender or child kidnapper was absent from this state; and

(iii) continues for a sex offender or child kidnapper who has not supplied proof acceptable to the department of the offender's or kidnapper's unconditional discharge for the sex offense or child kidnapping requiring registration;

(2) for a sex offender or child kidnapper, as that term is defined in AS 12.63.100(6)(B), the duty continues for the period determined by the department under (b) of this section.

(b) The department shall adopt, by regulation,

(1) procedures to notify a sex offender or child kidnapper

(A) who, on the registration form under AS 12.63.010, lists a conviction for a sex offense or child kidnapping that is a violation of a former law of this state or a law of another jurisdiction, of the duration of the offender's or kidnapper's duty under (a) of this section for that sex offense or child kidnapping;

(B) as that term is defined in AS 12.63.100(6)(B), of the duration of the sex offender or child kidnapper's duty under (a) of this section; in adopting regulations under this subparagraph, the department shall

(i) consider the period of registration required in the other jurisdiction; and

(ii) provide for tolling of the registration period if the sex offender or child kidnapper fails to comply with the requirements of this chapter or is incarcerated;

(2) a requirement that an offender or kidnapper supply proof acceptable to the department of unconditional discharge and the date it occurred.

Credits

SLA 1994, ch. 41, § 4; SLA 1998, ch. 81, § 15; SLA 1998, ch. 106, § 12. Amended by 1st Sp. Sess. 2019, ch. 4, § 83, eff. July 9, 2019; SLA 2024, ch. 11, § 40, eff. Jan. 1, 2025.

AS § 12.63.020, AK ST § 12.63.020

Current with amendments received through chapters 16, 18-20, and 22 of the 2025 First Regular Session of the 34th Legislature. Some sections may be more current than others.

West's Alaska Statutes Annotated
Title 12. Code of Criminal Procedure
Chapter 63. Registration of Sex Offenders (Refs & Annos)

AS § 12.63.030

§ 12.63.030. Notification of other jurisdictions

Currentness

(a) If a sex offender or child kidnapper notifies the department that the sex offender or child kidnapper is moving from the state, the department shall notify the Federal Bureau of Investigation and the state where the sex offender or child kidnapper is moving of the sex offender's or child kidnapper's intended address.

(b) If a sex offender or child kidnapper fails to register or to verify the sex offender's or child kidnapper's address and registration under this chapter, or the department does not know the location of a sex offender or child kidnapper required to register under this chapter, the department shall immediately notify the Federal Bureau of Investigation.

Credits

SLA 1998, ch. 106, § 13.

AS § 12.63.030, AK ST § 12.63.030

Current with amendments received through chapters 16, 18-20, and 22 of the 2025 First Regular Session of the 34th Legislature. Some sections may be more current than others.

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West's Alaska Statutes Annotated
Title 12. Code of Criminal Procedure
Chapter 63. Registration of Sex Offenders (Refs & Annos)

AS § 12.63.100

§ 12.63.100. Definitions

Currentness

In this chapter,

(1) “aggravated sex offense” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit a sexual offense, or a similar offense under the laws of the other jurisdiction; in this subparagraph, “sexual offense” has the meaning given in AS 11.41.100(a)(3);

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit one of the following crimes, or a similar law of another jurisdiction:

(i) sexual assault in the first degree;

(ii) sexual assault in the second degree;

(iii) sexual abuse of a minor in the first degree; or

(iv) sexual abuse of a minor in the second degree;

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under AS 11.41.410, 11.41.434, or a similar law of another jurisdiction or a similar provision under a former law of this state; or

(D) an offense, or an attempt, solicitation, or conspiracy to commit an offense, under

(i) AS 26.05.890, or a similar law of another jurisdiction, if the person engaged in or attempted to engage in sexual penetration; or

(ii) AS 26.05.893, or a similar law of another jurisdiction, if the prohibited sexual activity in which the member of the militia engaged or attempted to engage is sexual penetration;

(2) “child kidnapping” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit kidnapping;

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit kidnapping if the victim was under 18 years of age at the time of the offense;

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under AS 11.41.300, or a similar law of another jurisdiction or a similar provision under a former law of this state, if the victim was under 18 years of age at the time of the offense; or

(D) an offense, or an attempt, solicitation, or conspiracy to commit an offense, under AS 26.05.935(b), or a similar law of another jurisdiction, if the

(i) member of the militia commits the enumerated offense of kidnapping, punishable under Article 134, 10 U.S.C. 934 (Uniform Code of Military Justice); and

(ii) victim was under 18 years of age at the time of the offense;

(3) “conviction” means that an adult, or a juvenile charged as an adult under AS 47.12 or a similar procedure in another jurisdiction, has entered a plea of guilty, guilty but mentally ill, or nolo contendere, or has been found guilty or guilty but mentally ill by a court or jury, of a sex offense or child kidnapping regardless of whether the judgment was set aside under AS 12.55.085 or a similar procedure in another jurisdiction or was the subject of a pardon or other executive clemency; “conviction” does not include a judgment that has been reversed or vacated by a court;

(4) “department” means the Department of Public Safety;

(5) “sexual contact” has the meaning given in AS 11.81.900;

(6) “sex offender or child kidnapper” means

(A) a person convicted of a sex offense or child kidnapping in this state or another jurisdiction regardless of whether the conviction occurred before, after, or on January 1, 1999; or

(B) a person charged and convicted as an adult of an offense that requires registration as a sex offender or child kidnapper in another jurisdiction;

(7) “sex offense” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit a sexual offense, or a similar offense under the laws of the other jurisdiction; in this subparagraph, “sexual offense” has the meaning given in AS 11.41.100(a)(3);

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit one of the following crimes, or a similar law of another jurisdiction:

(i) sexual assault in the first degree;

(ii) sexual assault in the second degree;

(iii) sexual abuse of a minor in the first degree; or

(iv) sexual abuse of a minor in the second degree;

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under the following statutes or a similar law of another jurisdiction:

(i) AS 11.41.410--11.41.438;

(ii) AS 11.41.440(a)(2);

(iii) AS 11.41.450--11.41.458;

(iv) AS 11.41.460 or AS 26.05.900(c) if the indecent exposure is before a person under 16 years of age and the offender has previously been convicted under AS 11.41.460 or AS 26.05.900(c);

(v) AS 11.61.125--11.61.128;

(vi) AS 11.66.130(a)(2)(B) or AS 26.05.900(b) if the person who was induced or caused to engage in prostitution was under 20 years of age at the time of the offense;

(vii) former AS 11.15.120, former 11.15.134, or assault with the intent to commit rape under former AS 11.15.160, former AS 11.40.110, or former 11.40.200;

(viii) AS 11.61.118(a)(2) if the offender has a previous conviction for that offense;

(ix) AS 11.66.100(a)(2) if the offender is subject to punishment under former AS 11.66.100(e);

(x) AS 26.05.890 if the person engaged in sexual penetration or sexual contact with the victim;

(xi) AS 26.05.890 if, at the time of the offense, the victim is under a duty to obey the lawful orders of the offender, regardless of whether the offender is in the direct chain of command over the victim;

(xii) AS 26.05.893 if the person engaged in sexual penetration or sexual contact with the victim;

(xiii) AS 26.05.900(a) if the victim is under 18 years of age at the time of the offense;

(xiv) AS 26.05.900 if, at the time of the offense, the victim is under a duty to obey the lawful orders of the offender, regardless of whether the offender is in the direct chain of command over the victim;

(xv) AS 11.61.123 if the offender is subject to punishment under AS 11.61.123(g)(1) or (2)¹;

(xvi) AS 11.66.137;

(xvii) AS 11.61.130(a)(2); or

(xviii) AS 11.66.110 and 11.66.120;

(D) an offense, or an attempt, solicitation, or conspiracy to commit an offense, under AS 26.05.935(b), or a similar law of another jurisdiction, if the member of the militia commits one of the following enumerated offenses punishable under Article 134, 10 U.S.C. 934 (Uniform Code of Military Justice):

(i) child sexual abuse material; or

(ii) pandering and prostitution if the person who is induced, enticed, caused, or procured to engage in a sexual act is under 20 years of age at the time of the offense; or

(E) an offense in which the person is required to register as a sex offender under the laws of another jurisdiction;

(8) “sexual penetration” has the meaning given in AS 11.81.900;

(9) “unconditional discharge” has the meaning given in AS 12.55.185.

Credits

SLA 1994, ch. 41, § 4; SLA 1998, ch. 81, § 16; SLA 1998, ch. 106, §§ 14--16; SLA 1999, ch. 54, §§ 12--15; SLA 2006, ch. 14, §§ 8, 9, eff. April 28, 2006. Amended by SLA 2007, ch. 24, § 24, eff. July 1, 2007; SLA 2010, ch. 18, § 18, eff. July 1, 2010; SLA 2013, ch. 43, § 25, eff. July 1, 2013; 4th Sp. Sess. 2017, ch. 1, § 39, eff. Nov. 27, 2017; SLA 2018, ch. 85, §§ 1 to 4, eff. Jan. 1, 2019; 1st Sp. Sess. 2019, ch. 4, §§ 84, 85, eff. July 9, 2019; SLA 2024, ch. 11, § 41, eff. Jan. 1, 2025.

Footnotes

1 In 2019, the revisor redesignated AS 11.61.123(f) as AS 11.61.123(g).

AS § 12.63.100, AK ST § 12.63.100

Current with amendments received through chapters 16, 18-20, and 22 of the 2025 First Regular Session of the 34th Legislature. Some sections may be more current than others.

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Alaska Statutes Annotated - 2007

AS § 11.56.835

West's Alaska Statutes Annotated Currentness

Title 11. Criminal Law

Chapter 56. Offenses Against Public Administration

Article 5. Obstruction of Public Administration

§ 11.56.835. Failure to register as a sex offender or child kidnapper in the first degree

(a) A person commits the crime of failure to register as a sex offender or child kidnapper in the first degree if the person violates AS 11.56.840

(1) and the person has been previously convicted of a crime under this section or AS 11.56.840 or a law or ordinance of this or another jurisdiction with elements similar to a crime under this section or AS 11.56.840; or

(2) with intent to escape detection or identification and, by escaping detection or identification, to facilitate the person's commission of a sex offense or child kidnapping.

(b) In a prosecution under (a)(2) of this section, the fact that the defendant, for a period of at least one year, failed to register as a sex offender or child kidnapper, failed to file the annual or quarterly written verification, or changed the sex offender's or child kidnapper's address and did not file the required notice of change of address, is prima facie evidence that the defendant intended to escape detection or identification and, by escaping detection or identification, to facilitate the person's commission of a sex offense or child kidnapping.

(c) In this section, "child kidnapping" and "sex offense" have the meanings given in AS 12.63.100.

(d) Failure to register as a sex offender or child kidnapper in the first degree is a class C felony.

SLA 1998, ch. 106, § 1.

CROSS REFERENCES

Attempt, classification of offenses, see § 11.31.100.

Blood tests for sex offenders, see § 18.15.300 et seq.

Central registry, sex offenders, see § 18.65.087.

Civil claims based upon sexual abuse, see § 09.55.650.

Classification of offenses, see § 11.81.250.

DNA identification of sex offenders, see § 44.41.035.

Felonies, sentence of imprisonment, see § 12.55.125.

Fines, see § 12.55.035.

Legal accountability based upon the conduct of another, see §§ 11.16.110 and 11.16.120.

Offenses defined by statute, see § 11.81.220.

Prior convictions, effect on sentencing, see § 12.55.145.

Registration, sex offenders, see § 12.63.010 et seq.

Restitution and compensation, see § 12.55.045.

Victims and witnesses, sex offenses, see § 12.61.125.

Victims of crimes, rights, see § 12.61.010 et seq.

LIBRARY REFERENCES

Mental Health § 469(7).

Westlaw Key Number Search: 257Ak469(7).

NOTES OF DECISIONS

In general 1

1. In general

District Court improperly rejected plea agreement under which defendant would plead guilty to second-degree failure to register as a sex offender as a lesser charge of first-degree failure to register; ruling was based on premise that state was barred from reducing the charge because defendant had a prior conviction for failing to register, but state had discretion to charge defendant with a less serious crime than the undisputed facts would support. AS 11.56.835(a)(1), 11.56.840(a); Rules Crim.Proc., Rule 11(e). State v. District Court (2002) Alaska App., 53 P.3d 629. Constitutional Law § 2545(1); Criminal Law § 273.1(2)

Current through the 2007 First Regular and First and Second Special Sessions of the 25th Legislature

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Alaska Statutes Annotated - 2007

AS § 11.56.840

West's Alaska Statutes Annotated Currentness

Title 11. Criminal Law

Chapter 56. Offenses Against Public Administration

Article 5. Obstruction of Public Administration

§ 11.56.840. Failure to register as a sex offender or child kidnapper in the second degree

(a) A person commits the crime of failure to register as a sex offender or child kidnapper in the second degree if the person knowingly fails to (1) register, (2) file the written notice of change of address, (3) file the annual or quarterly written verification, or (4) supply all of the information required to be submitted under (1)—(3) of this subsection, as required in AS 12.63.010.

(b) Failure to register as a sex offender or child kidnapper in the second degree is a class A misdemeanor.

SLA 1994, ch. 41, § 2; SLA 1998, ch. 106, § 2.

CROSS REFERENCES

Attempt, classification of offenses, see § 11.31.100.

Blood tests for sex offenders, see § 18.15.300 et seq.

Central registry, sex offenders, see § 18.65.087.

Civil claims based upon sexual abuse, see § 09.55.650.

Classification of offenses, see § 11.81.250.

DNA identification of sex offenders, see § 44.41.035.

Fines, see § 12.55.035.

Gangs, additional penalties for activities punishable as misdemeanors, see § 12.55.137.

Legal accountability based upon the conduct of another, see §§ 11.16.110 and 11.16.120.

Misdemeanors, sentences of imprisonment, see § 12.55.135.

Offenses defined by statute, see § 11.81.220.

Prior convictions, effect on sentencing, see § 12.55.145.

Registration, sex offenders, see § 12.63.010 et seq.

Restitution and compensation, see § 12.55.045.

Victims and witnesses, sex offenses, see § 12.61.125.

Victims of crimes, rights, see § 12.61.010 et seq.

LIBRARY REFERENCES

Mental Health  469(7).

Westlaw Key Number Search: 257Ak469(7).

NOTES OF DECISIONS

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1. Retrospective and ex post facto laws

Mere fact that Alaska Registration Act required convicted sex offenders to present themselves to law enforcement authorities as part of registration process could not alone support finding of affirmative disability or restraint suggesting punitive effect for purposes of ex post facto challenge; restraint imposed on offenders' liberty was de minimis. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2821; Mental Health 433(2)

For purposes of convicted sex offenders' ex post facto challenge to Alaska Registration Act, act of registration could not be viewed historically as carrying punitive connotation, notwithstanding offenders' attempt to characterize registration as similar to conditions of parole or supervised release. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2821; Mental Health 433(2)

Mere fact that Alaska Registration Act was within title of Alaska statutes entitled "Criminal Procedure" did not establish that Act was punitive in design for purposes of convicted offenders' ex post facto challenge. U.S.C.A. Const. Art. 1, § 10, cl. 1; Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2810; Mental Health 433(2)

Although prosecuting sex offender for failure to register by July 1, 1994 deadline of Alaska Sex Offender Registration Act (ASORA), which was over a month before the law was enacted, would violate the ex post facto clause, ASORA imposed on sex offenders a continuing registration requirement, and thus state could prosecute defendant for failing to register by January 28, 1998. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 11.56.840 (1997). *State v. Hawkins* (2002) Alaska App., 39 P.3d 1126. Mental Health 469(7)

2. Registration requirements

Under statute governing registration of sex offenders, defendant was required to provide sworn quarterly verification form of his sex offender registration or risk committing offense of failure to register as a sex offender in the second degree; statute defining offense required defendant to file quarterly written verifications as required in registration statute, and registration statute required sworn quarterly verifications. AS 11.56.840(a), 12.63.010. *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

District Court improperly rejected plea agreement under which defendant would plead guilty to second-degree failure to register as a sex offender as a lesser charge of first-degree failure to register; ruling was based on premise that state was barred from reducing the charge because defendant had a prior conviction for failing to register, but state had discretion to charge defendant with a less serious crime than the undisputed facts would support. AS 11.56.835(a)(1), 11.56.840(a); Rules Crim.Proc., Rule 11(e). *State v. District Court* (2002) Alaska App., 53 P.3d 629. Constitutional Law 2545(1); Criminal Law 273.1(2)

Department of Public Safety had authority to promulgate regulation that extended registration deadline for certain sex offenders; regulation ensured that legislature's intent to regulate sex offenders, and to prosecute those who failed to register, would be implemented, and by extending initial registration deadline Department's regulation was consistent with purposes and policies of Alaska Sex Offender Registration Act (ASORA). AS 11.56.840 (1997); Alaska Admin. Code title 13, § 09.010(d). *State v. Hawkins* (2002) Alaska App., 39 P.3d 1126. Mental Health 469(2); Mental Health 469(7)

Sex offenders physically present in Alaska, who had been released from probation before the effective date of the Alaska Sex Offender Registration Act (ASORA), could be required to comply with general duty to register set forth in former. AS 12.63.010(a) (1997). *Nunley v. State* (2001) Alaska App., 26 P.3d 1113. Mental Health 469(2)

Former Alaska Sex Offender Registration Act (ASORA) provided defendants with sufficient notice that they were required to register as sex offenders, and thus had duty requiring them to register, although defendants had served prison terms and completed probation prior to effective date of Act; Act made clear that all sex offenders physically present in state should register, defined “sex offender” to include those convicted before, after, or on effective date, and only offenders excused were those with only one conviction who had been unconditionally discharged from that sex offense more than ten years prior to effective date. AS 12.63.010(a) (1997). *Nunley v. State* (2001) Alaska App., 26 P.3d 1113. Mental Health 469(7)

Statute under which all sex offenders who are required to make yearly reports shall make their report on a date set by Department of Public Safety at time of offender's initial registration does not preclude Department from promulgating a general rule to govern the reporting deadline for all sex offenders. AS 12.63.010(d)(1). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health 469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday did not exceed authority of Department of Public Safety pursuant to statute requiring sex offenders to make their yearly report on a date set by Department at time of offender's initial registration; statute does not preclude the Department from promulgating a general rule to govern reporting deadline for all sex offenders. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health 469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday, which was in effect at time offender had initially registered following his sexual assault conviction, sufficiently established date for yearly report at time of initial registration, as required by statute. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health 469(5)

Definition of “conviction” adopted by Department of Public Safety in regulations implementing sex offender registration statute, as including even convictions that were set aside after a defendant successfully completed probation from a suspended imposition of sentence (SIS), was a reasonable construction consistent with legislature's public safety concerns in adopting statute and would therefore be upheld in prosecutions for second-degree failure to register as sex offenders. (Per Stewart, J., with one Judge concurring.) AS 11.56.840, 12.63.010 et seq., 18.65.087; Alaska Admin. Code title 13, § 09.900(a)(2). *State v. Otness* (1999) Alaska App., 986 P.2d 890. Mental Health 469(2); Mental Health 469(7)

3. Federal courts

Federal district court could not override dictates of Eleventh Amendment and exercise pendent jurisdiction to pass on constitutionality of Alaska Registration Act under Alaska Constitution. U.S.C.A. Const.Amend. 11; Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Courts 265

Convicted sex offenders challenging Alaska Registration Act would not be allowed to prosecute action under fictitious names; although offenders sought to keep private their pleas concerning sex offenses, such information was already public, and offenders had pursued early termination of parole for their offenses; moreover, offenders had presented no evidence to establish that they faced threat of physical harm. Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure 101

Wife of convicted sex offender would not be allowed to prosecute action challenging Alaska Registration Act under fictitious name, despite her fear of stigmatization; although wife claimed that she would be stigmatized if her husband was required to disclose his true identity, parties' marriage was a matter of public record, and there was no fact that was not already known to public that would be protected by granting wife's request. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure 101

Convicted sex offenders challenging Alaska Registration Act were not entitled to prosecute action under pseudonyms on grounds that disclosing their names would result in injury they sought to avoid by bringing action; rather than seeking to keep facts private, offenders were seeking to limit dissemination of facts already public, i.e., that they had pled no contest to sex offenses,

and there would be no disclosure of intensely private fact. Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure  101

4. Injunctions

Convicted sex offenders were likely to prevail on merits of their ex post facto challenge to Alaska Registration Act to extent that Act provided for public dissemination of information concerning offenders whose convictions antedated Act; therefore, offenders would have to comply with Act's registration requirements but were entitled to preliminary injunction prohibiting such dissemination. U.S.C.A. Const. Art 1, § 10, cl. 1; AS 18.65.087(b). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

Sex offenders whose convictions antedated Alaska Registration Act were likely to succeed on merits of their claim that Act would violate not only constitutional prohibition against ex post facto laws but terms of plea bargains to extent that Act allowed for public dissemination of information. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

Convicted sex offenders failed to establish likelihood of success on merits of their claim that requirement under Alaska Registration Act that they submit to law enforcement authorities for photographs and fingerprinting violated Fourth Amendment; photographs and fingerprinting alone were nontestimonial in nature and were not likely to be considered search and, although involuntary surrender would likely be considered seizure under Fourth Amendment, it would not likely be considered unreasonable in light of society's interest in preventing sex crimes and minimal intrusion on offenders' rights. U.S.C.A. Const. Amend. 4; AS 12.63.010(b)(2). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

Convicted sex offenders failed to establish likelihood of success on merits of claim that Alaska Registration Act violated their right to privacy under United States Constitution; offenders' residences, job locations, driver's license numbers, dates of convictions, and nature of convictions are generally considered public information, and such information did not reveal intimate facts traditionally protected from disclosure by federal right to privacy. Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

For purposes of request for preliminary injunction, balance of hardship tipped in favor of convicted sex offenders challenging Alaska Registration Act only so long as there was to be public dissemination of registration information under Act. AS 18.65.087(b). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

5. Admissibility of evidence

Evidence of defendant's subsequent compliance with Alaska Sex Offender Registration Act (ASORA) was not admissible in prosecution for failing to comply with ASORA by knowingly failing to file quarterly written verification of sex offender registration; evidence that he began to file verified registration forms after charged with offenses was at best only marginally relevant to show mental state before being charged, and, prior to start of trial, magistrate had ruled marginal evidence was outweighed by risk of confusing or misleading jury. AS 11.56.840(a); Rules of Evid., Rule 403. *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Mental Health  469(7)

6. Instructions

Although jury instructions were incomplete in prosecution for failing to comply with Alaska Sex Offender Registration Act (ASORA) for knowingly failing to file quarterly written verification of sex offender registration because they failed to instruct that state had to prove defendant knew he was obliged to sign and attest to verification forms, error was harmless; defendant never testified he was unaware of duty, defendant had been sent notice that he was required to file complete verification forms, verification forms themselves instructed sex offenders to provide signature and date, and defendant conceded that he had been

told to sign one form, but he refused. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Criminal Law 1172.1(3); Mental Health 469(7)

In prosecution for failure to comply with Alaska Sex Offender Registration Act (ASORA) by knowingly failing to file quarterly written verification of sex offender registration, although jury instruction defining “knowingly” was proper, jury was not clearly instructed that state had to prove defendant was aware of circumstances giving rise to his duty to file signed and attested verifications. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

Magistrate's instruction, that jury not consider police officer's testimony that defendant had said he would refuse to file sworn sex offender verification forms in the future as evidence that defendant did not comply with Alaska Sex Offender Registration Act (ASORA) requirements, was adequate to address defendant's concern about rebutting officer's testimony in prosecution for failing to comply with ASORA by knowingly failing to file quarterly written verification forms. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

7. Sufficiency of evidence

Sufficient evidence supported conviction for failing to comply with Alaska Sex Offender Registration Act (ASORA) by knowingly failing to file quarterly written verification of sex offender registration; evidence showed that defendant knew he had duty to register as sex offender, that he was required by statute and by Department of Public Safety, to file sworn written quarterly verification forms, and that he knowingly failed to file them. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

Current through the 2007 First Regular and First and Second Special Sessions of the 25th Legislature

Alaska Statutes Annotated - 2007

AS § 12.63.010

West's Alaska Statutes Annotated Currentness

Title 12. Code of Criminal Procedure

Chapter 63. Registration of Sex Offenders (Refs & Annos)

§ 12.63.010. Registration of sex offenders and related requirements

(a) A sex offender or child kidnapper who is physically present in the state shall register as provided in this section. The sex offender or child kidnapper shall register

- (1) within the 30-day period before release from an in-state correctional facility;
- (2) by the next working day following conviction for a sex offense or child kidnapping if the sex offender is not incarcerated at the time of conviction; or
- (3) by the next working day of becoming physically present in the state.

(b) A sex offender or child kidnapper required to register under (a) of this section shall register with the Department of Corrections if the sex offender or child kidnapper is incarcerated or in person at the Alaska state trooper post or municipal police department located nearest to where the sex offender or child kidnapper resides at the time of registration. To fulfill the registration requirement, the sex offender or child kidnapper shall

- (1) complete a registration form that includes, at a minimum,
 - (A) the sex offender's or child kidnapper's name, address, place of employment, date of birth;
 - (B) each conviction for a sex offense or child kidnapping for which the duty to register has not terminated under AS 12.63.020, date of sex offense or child kidnapping convictions, place and court of sex offense or child kidnapping convictions, whether the sex offender or child kidnapper has been unconditionally discharged from the conviction for a sex offense or child kidnapping and the date of the unconditional discharge; if the sex offender or child kidnapper asserts that the offender or kidnapper has been unconditionally discharged, the offender or kidnapper shall supply proof of that discharge acceptable to the department;
 - (C) all aliases used;
 - (D) driver's license number;
 - (E) description, license numbers, and vehicle identification numbers of motor vehicles the sex offender or child kidnapper has access to regardless of whether that access is regular or not;
 - (F) any identifying features of the sex offender or child kidnapper;
 - (G) anticipated changes of address; and
 - (H) a statement concerning whether the offender or kidnapper has had treatment for a mental abnormality or personality disorder since the date of conviction for an offense requiring registration under this chapter;
- (2) allow the Alaska state troopers, Department of Corrections, or municipal police to take a complete set of the sex offender's or child kidnapper's fingerprints and to take the sex offender's or child kidnapper's photograph.

(c) If a sex offender or child kidnapper changes residence after having registered under (a) of this section, the sex offender or child kidnapper shall provide written notice of the change by the next working day following the change to the Alaska state trooper post or municipal police department located nearest to the new residence or, if the residence change is out of state, to the central registry.

(d) A sex offender or child kidnapper required to register

(1) for 15 years under (a) of this section and AS 12.63.020(a)(2) shall, annually, during the term of a duty to register under AS 12.63.020, on a date set by the department at the time of the sex offender's or child kidnapper's initial registration, provide written verification to the department, in the manner required by the department, of the sex offender's or child kidnapper's address and notice of any changes to the information previously provided under (b)(1) of this section;

(2) for life under (a) of this section and AS 12.63.020(a)(1) shall, not less than quarterly, on a date set by the department, provide written verification to the department, in the manner required by the department, of the sex offender's or child kidnapper's address and any changes to the information previously provided under (b)(1) of this section.

(e) The registration form required to be submitted under (b) of this section and the annual or quarterly verifications must be sworn to by the offender or kidnapper and contain an admonition that a false statement shall subject the offender or kidnapper to prosecution for perjury.

(f) In this section, “correctional facility” has the meaning given in AS 33.30.901.

SLA 1994, ch. 41, § 4; SLA 1998, ch. 106, §§ 7—11.

CROSS REFERENCES

Perjury, crimes, see § 11.56.200.

Search and seizure, constitutional provisions, see Const. Art. 1, § 14.

Search and seizure, see § 12.35.010 et seq.

LIBRARY REFERENCES

Mental Health 469.

Westlaw Key Number Search: 257Ak469.

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Treatises and Practice Aids

5 NO. 1 Criminal Practice Guide 21, Sex Offender Designation Offers No Ex Post Facto Problems, is Permitted to be Automatic, and is Available on the Internet at Www.

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1. Validity

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender's biographical data, photograph and finger prints could be disseminated to members of public by local law enforcement without determination as to likelihood that offender would re-offend, was not unconstitutionally overbroad. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1145(1); Mental Health 433(2)

2. In general

Because the Sex Offender Registration Act is a regulatory measure, the registration and reporting requirements imposed by the Act are not part of a defendant's sentence. AS 12.63.100. *Herreid v. State* (2003) Alaska App., 69 P.3d 507. Mental Health 469(1)

A sentencing court has no power to exempt a defendant from the requirements of the Sex Offender Registration Act, nor does a sentencing court have the power to impose sex offender registration and reporting on a defendant whose crime does not qualify as a "sex offense" under the Act. AS 12.63.100(1, 6). *Herreid v. State* (2003) Alaska App., 69 P.3d 507. Mental Health 469(2)

Under statute governing registration of sex offenders, defendant was required to provide sworn quarterly verification form of his sex offender registration or risk committing offense of failure to register as a sex offender in the second degree; statute defining offense required defendant to file quarterly written verifications as required in registration statute, and registration statute required sworn quarterly verifications. AS 11.56.840(a), 12.63.010. *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

Evidence of defendant's subsequent compliance with Alaska Sex Offender Registration Act (ASORA) was not admissible in prosecution for failing to comply with ASORA by knowingly failing to file quarterly written verification of sex offender registration; evidence that he began to file verified registration forms after charged with offenses was at best only marginally relevant to show mental state before being charged, and, prior to start of trial, magistrate had ruled marginal evidence was outweighed by risk of confusing or misleading jury. AS 11.56.840(a); Rules of Evid., Rule 403. *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

Convicted sex offender, who was unconditionally discharged after July 1984 but prior to August 1994, had duty to register under the Alaska Sex Offender Registration Act (ASORA), even though statute setting forth time period for registration did not by its explicit terms include him. AS 12.63.010(a) (1997). *State v. Hawkins* (2002) Alaska App., 39 P.3d 1126. Mental Health 469(2)

Sex offenders physically present in Alaska, who had been released from probation before the effective date of the Alaska Sex Offender Registration Act (ASORA), could be required to comply with general duty to register set forth in former. AS 12.63.010(a) (1997). *Nunley v. State* (2001) Alaska App., 26 P.3d 1113. Mental Health 469(2)

Former Alaska Sex Offender Registration Act (ASORA) provided defendants with sufficient notice that they were required to register as sex offenders, and thus had duty requiring them to register, although defendants had served prison terms and completed probation prior to effective date of Act; Act made clear that all sex offenders physically present in state should

register, defined “sex offender” to include those convicted before, after, or on effective date, and only offenders excused were those with only one conviction who had been unconditionally discharged from that sex offense more than ten years prior to effective date. AS 12.63.010(a) (1997). *Nunley v. State* (2001) Alaska App., 26 P.3d 1113. Mental Health 469(7)

Sex Offender Registration Act applies to defendants whose convictions have been set aside. AS 12.63.010 et seq. *State v. Martin* (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Mental Health 469(2)

Coercion is not a “sex offense” within meaning of Sex Offender Registration Act and therefore judge did not have authority to impose a special condition of probation requiring defendant, convicted of coercion, to register as a sex offender. AS 12.63.010-12.63.100. *Whitehead v. State* (1999) Alaska App., 985 P.2d 1019. Sentencing And Punishment 1969(2)

3. Equal protection

Sex Offender Registration Act did not violate offender's equal protection rights by including transitional provision that limited retroactive effect of Act on single-conviction sex offenders; legislature could reasonably conclude that it was not worth the effort to include, in the initial registration and reporting requirements, sex offenders who had been convicted of a single offense and who had been discharged more than ten years before. U.S.C.A. Const.Amend. 14; Laws 1994, c. 41, § 12. *State v. Martin* (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Constitutional Law 3176; Mental Health 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's equal protection rights under either federal or state constitution; sex offenders are not treated differently than similarly situated group of persons, and statute creates no suspect classification. U.S.C.A. Const.Amend. 14; Const. Art. 1, § 1; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 3176; Mental Health 433(2)

4. Double jeopardy

Prosecution of defendant for failure to comply with Alaska Sex Offender Registration Act (ASORA) did not constitute renewed jeopardy for underlying sex offense, but rather prosecution for separate crime of failing to perform duty required of all convicted sex offenders, and thus did not constitute double jeopardy violation. U.S.C.A. Const.Amend. 5; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Double Jeopardy 148

5. Due process

Application of Alaska Sex Offender Registration Act (ASORA), which required persons convicted of sex offenses to register with state, to defendant, whose conviction for sex offense was set aside before ASORA became effective, violated state constitution's guarantee of due process; ASORA compelled affirmative post-discharge conduct under threat of prosecution, conviction, since set aside, was event that triggered duties, requirement impaired defendant's post-set-aside freedom to be let alone, and thus, it violated defendant's liberty interests to require him to register under ASORA. Const. Art. 1, § 6; AS 12.55.085(e). *Doe v. State, Dept. of Public Safety* (2004) Alaska, 92 P.3d 398. Constitutional Law 4343; Mental Health 433(2)

State failed to demonstrate compelling governmental interest as required to justify restriction of fundamental liberty and procedural interests of defendant, whose conviction for sex offense was set aside, by requiring defendant to comply with Alaska Sex Offender Registration Act (ASORA), which became effective after defendant's conviction was set aside; absent likelihood defendant would commit new sex offenses, there was no compelling government interest in requiring defendant to comply with ASORA, and given ASORA's burden on defendant's liberty interests and its interference with his settled expectations, guarantee of due process prevented state from requiring defendant to satisfy ASORA; overruling *Patterson v. State*, 985 P.2d 1007. Const. Art. 1, § 6; AS 12.55.085. *Doe v. State, Dept. of Public Safety* (2004) Alaska, 92 P.3d 398. Constitutional Law 4343; Mental Health 433(2)

Sex Offender Registration Act did not violate offender's right to liberty by requiring him to go to office of local police agency to register. U.S.C.A. Const.Amend. 14; AS 12.63.010(b). State v. Martin (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Constitutional Law 4343; Mental Health 433(2)

State's later imposition of sex offender registration and reporting requirements on offender did not constitute an unlawful modification of his plea agreement in violation of due process clause, even though such requirements did not exist at time of his plea. U.S.C.A. Const.Amend. 14; AS 12.63.010(b). State v. Martin (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Constitutional Law 4590; Criminal Law 273.1(2)

A plea remains constitutionally valid, for due process purposes, even though the court may fail to comply with one or more provisions of rule requiring the court, before accepting a plea to a sex offense, to warn the defendant of requirements of sex offender registration act. AS 12.63.010-12.63.100; Rules Crim.Proc., Rule 11(c). Peterson v. State (1999) Alaska App., 988 P.2d 109, rehearing denied. Constitutional Law 4586

Defendant knowingly and voluntarily pled no contest to sexual assault, for due process purposes, even if trial court failed to inform him at the time he entered his plea that he would be required to register as sex offender under sex offender registration act. U.S.C.A. Const.Amend. 14; AS 12.63.010-12.63.100; Rules Crim.Proc., Rule 11(c). Peterson v. State (1999) Alaska App., 988 P.2d 109, rehearing denied. Constitutional Law 4588; Criminal Law 275.4(1)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's substantive due process rights; statute is rationally related to legislature's legitimate concern with public safety threat posed by sex offenders. U.S.C.A. Const.Amend. 5, 14; AS 12.63.010-12.63.100. Patterson v. State (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 4343; Mental Health 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender's biographical data, photograph and finger prints could be disseminated to members of public by local law enforcement without determination as to likelihood that offender would re-offend, neither deprived sex offender of liberty interest without procedural due process nor was fundamentally unfair; legislature's conclusion that prior sex offense conviction was sufficient reason to include offender in registry was reasonable response to potential for recidivism that sex offenders have as a group. U.S.C.A. Const.Amend. 5, 14; AS 12.63.010-12.63.100. Patterson v. State (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 4343; Mental Health 433(2)

6. Cruel and unusual punishment

Purpose of Alaska Sex Offender Registration Act (ASORA) is regulatory rather than punitive, and thus, statute does not constitute cruel and unusual punishment. U.S.C.A. Const.Amend. 8; AS 12.63.010-12.63.100. Patterson v. State (1999) Alaska App., 985 P.2d 1007, rehearing denied. Sentencing And Punishment 1601; Mental Health 433(2)

7. Retrospective and ex post facto laws

Mere fact that Alaska Registration Act required convicted sex offenders to present themselves to law enforcement authorities as part of registration process could not alone support finding of affirmative disability or restraint suggesting punitive effect for purposes of ex post facto challenge; restraint imposed on offenders' liberty was de minimis. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a). Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2821; Mental Health 433(2)

For purpose of determining whether the Alaska Sex Offender Registration Act (ASORA) violates the state and federal constitutional prohibitions against ex post facto laws, the legislative intent behind ASORA is regulatory, rather than punitive; ASORA merely requires convicted sex offenders to register with local law enforcement and to maintain and update that registration for minimum of 15 years, and involves no additional supervision, treatment or restriction. U.S.C.A. Const. Art.

1, §§ 9, cl. 3, 10, cl. 1; Const. Art. 1, § 15; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 2821; Mental Health 433(2)

The effect of the Alaska Sex Offender Registration Act (ASORA), although significant, is not so punitive as to violate the state and federal constitutional prohibitions against ex post facto laws; although law provides for dissemination of substantial personal and biographical information which convicted sex offenders must provide to local law enforcement, statute does not encourage acts of retribution or violence. U.S.C.A. Const. Art. 1, §§ 9, cl. 3, 10, cl. 1; Const. Art. 1, § 15; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 2821; Mental Health 433(2)

8. Separation of powers

Sex Offender Registration Act, requiring sex offenders to register and to report on regular basis for specified period of time, did not violate separation of powers between legislative and judicial branches of government, as Act was regulatory, not sentencing, measure, and length of time offender was subjected to reporting did not have to be modifiable depending on offender's level of dangerousness. U.S.C.A. Const. Art. 3, § 1 et seq. *Herreid v. State* (2003) Alaska App., 69 P.3d 507. Constitutional Law 2371; Mental Health 433(2)

9. Right to privacy

The Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's federal constitutional right to privacy; biographical data which sex offender is required to provide is already in public domain, and no person has objectively reasonable expectation of privacy in his or her appearance or physical characteristics. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1245; Mental Health 433(2)

Convicted sex offender's assumed expectation of privacy was outweighed by society's interest in protecting public safety and welfare, and thus Alaska Sex Offender Registration Act (ASORA), under which sex offender was required to supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's state constitutional right to privacy. Const. Art. 1, § 22; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1245; Mental Health 433(2)

10. Bills of attainder

The duty to register under the Alaska Sex Offender Registration Act (ASORA) is not punishment, and thus the statute is not a bill of attainder. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1100(5); Mental Health 433(2)

11. Criminal prosecutions

Although jury instructions were incomplete in prosecution for failing to comply with Alaska Sex Offender Registration Act (ASORA) for knowingly failing to file quarterly written verification of sex offender registration because they failed to instruct that state had to prove defendant knew he was obliged to sign and attest to verification forms, error was harmless; defendant never testified he was unaware of duty, defendant had been sent notice that he was required to file complete verification forms, verification forms themselves instructed sex offenders to provide signature and date, and defendant conceded that he had been told to sign one form, but he refused. AS 11.56.840(a). *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Criminal Law 1172.1(3); Mental Health 469(7)

In prosecution for failure to comply with Alaska Sex Offender Registration Act (ASORA) by knowingly failing to file quarterly written verification of sex offender registration, although jury instruction defining “knowingly” was proper, jury was not clearly instructed that state had to prove defendant was aware of circumstances giving rise to his duty to file signed and attested verifications. AS 11.56.840(a). *Dailey v. State* (2003) Alaska App., 65 P.3d 891. Mental Health 469(7)

Magistrate's instruction, that jury not consider police officer's testimony that defendant had said he would refuse to file sworn sex offender verification forms in the future as evidence that defendant did not comply with Alaska Sex Offender Registration Act (ASORA) requirements, was adequate to address defendant's concern about rebutting officer's testimony in prosecution for failing to comply with ASORA by knowingly failing to file quarterly written verification forms. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Mental Health  469(7)

Sufficient evidence supported conviction for failing to comply with Alaska Sex Offender Registration Act (ASORA) by knowingly failing to file quarterly written verification of sex offender registration; evidence showed that defendant knew he had duty to register as sex offender, that he was required by statute and by Department of Public Safety, to file sworn written quarterly verification forms, and that he knowingly failed to file them. AS 11.56.840(a). Dailey v. State (2003) Alaska App., 65 P.3d 891. Mental Health  469(7)

Although prosecuting sex offender for failure to register by July 1, 1994 deadline of Alaska Sex Offender Registration Act (ASORA), which was over a month before the law was enacted, would violate the ex post facto clause, ASORA imposed on sex offenders a continuing registration requirement, and thus state could prosecute defendant for failing to register by January 28, 1998. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 11.56.840 (1997). State v. Hawkins (2002) Alaska App., 39 P.3d 1126. Mental Health  469(7)

12. Pleas

For defendants who pled guilty or no contest to an offense listed in sex offense statute on or after effective date of statute, the court's failure to warn the defendant of sex offender registration is potentially “manifest injustice” permitting withdrawal of plea. AS 12.63.100; Rules Crim.Proc., Rule 11(h)(3). Peterson v. State (1999) Alaska App., 988 P.2d 109, rehearing denied. Criminal Law  274(3.1); Criminal Law  275.5(2)

The duty to register under the Alaska Sex Offender Registration Act (ASORA) constitutes a collateral, rather than a direct, consequence of certain sex offense convictions, and thus imposition of registration requirement on those who have previously pled guilty to one of the enumerated offenses will not violate any plea agreement. AS 12.63.010-12.63.100. Patterson v. State (1999) Alaska App., 985 P.2d 1007, rehearing denied. Criminal Law  273.1(2)

13. Administrative regulations

Department of Public Safety had authority to promulgate regulation that extended registration deadline for certain sex offenders; regulation ensured that legislature's intent to regulate sex offenders, and to prosecute those who failed to register, would be implemented, and by extending initial registration deadline Department's regulation was consistent with purposes and policies of Alaska Sex Offender Registration Act (ASORA). AS 11.56.840 (1997); Alaska Admin. Code title 13, § 09.010(d). State v. Hawkins (2002) Alaska App., 39 P.3d 1126. Mental Health  469(2); Mental Health  469(7)

Statute under which all sex offenders who are required to make yearly reports shall make their report on a date set by Department of Public Safety at time of offender's initial registration does not preclude Department from promulgating a general rule to govern the reporting deadline for all sex offenders. AS 12.63.010(d)(1). Semaken v. State (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday did not exceed authority of Department of Public Safety pursuant to statute requiring sex offenders to make their yearly report on a date set by Department at time of offender's initial registration; statute does not preclude the Department from promulgating a general rule to govern reporting deadline for all sex offenders. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). Semaken v. State (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday, which was in effect at time offender had initially registered following his sexual assault conviction,

sufficiently established date for yearly report at time of initial registration, as required by statute. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

Department of Public Safety's construction of sex offender registration statute, as reflected in regulations implementing it, would not be overruled except for weighty reasons. (Per Stewart, J., with one Judge concurring.) AS 12.63.010 et seq., 18.65.087. *State v. Otness* (1999) Alaska App., 986 P.2d 890. Statutes  219(9.1)

Definition of "conviction" adopted by Department of Public Safety in regulations implementing sex offender registration statute, as including even convictions that were set aside after a defendant successfully completed probation from a suspended imposition of sentence (SIS), was a reasonable construction consistent with legislature's public safety concerns in adopting statute and would therefore be upheld in prosecutions for second-degree failure to register as sex offenders. (Per Stewart, J., with one Judge concurring.) AS 11.56.840, 12.63.010 et seq., 18.65.087; Alaska Admin. Code title 13, § 09.900(a)(2). *State v. Otness* (1999) Alaska App., 986 P.2d 890. Mental Health  469(2); Mental Health  469(7)

14. Injunctions

Convicted sex offenders failed to establish likelihood of success on merits of their claim that requirement under Alaska Registration Act that they submit to law enforcement authorities for photographs and fingerprinting violated Fourth Amendment; photographs and fingerprinting alone were nontestimonial in nature and were not likely to be considered search and, although involuntary surrender would likely be considered seizure under Fourth Amendment, it would not likely be considered unreasonable in light of society's interest in preventing sex crimes and minimal intrusion on offenders' rights. U.S.C.A. Const. Amend. 4; AS 12.63.010(b)(2). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

15. Review

Application of sexual registration statute to defendant was not plain error, even though defendant alleged that disclosure of sex offender's registration information constituted additional punishment in violation of ex post facto clause. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a), 12.63.100(2, 3). *Bobby v. State* (1997) Alaska App., 950 P.2d 135. Criminal Law  1030(2)

Issue of whether application of sexual offender registration law to defendant would be unconstitutional under ex post facto clause was not preserved for appeal, even though defendant asserted that he should be allowed to withdraw his no contest pleas to charges of first-degree assault and second-degree sexual assault because he had entered them in ignorance of the sex offender registration law, where defendant failed to argue constitutional claim in superior court. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a), 12.63.100(2, 3). *Bobby v. State* (1997) Alaska App., 950 P.2d 135. Mental Health  467

Entry of no contest plea to first-degree assault and second-degree sexual assault did not preserve for appeal issue of whether sex offender registration law could constitutionally be applied to defendant under ex post facto clause; constitutionality of application of sex offender registration was not dispositive of defendant's case, since resolution of issue had no effect on authority of state to prosecute defendant, no effect on validity of conviction, and no effect on superior court's authority to sentence defendant. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a), 12.63.100(2, 3). *Bobby v. State* (1997) Alaska App., 950 P.2d 135. Mental Health  467

Court of Appeals did not have jurisdiction to consider defendant's unpreserved challenge to constitutionality of sex offender registration law as applied to him under ex post facto clause, where defendant was not prosecuted or sentenced for violating provisions of sex offender registration law but rather, defendant was prosecuted and sentenced for second-degree sexual assault. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 11.41.420(a)(1), 12.63.010(a), 12.63.100(2, 3). *Bobby v. State* (1997) Alaska App., 950 P.2d 135. Mental Health  467

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Alaska Statutes Annotated - 2007

AS § 12.63.020

West's Alaska Statutes Annotated Currentness

Title 12. Code of Criminal Procedure

Chapter 63. Registration of Sex Offenders (Refs & Annos)

§ 12.63.020. Duration of sex offender or child kidnapper duty to register

(a) The duty of a sex offender or child kidnapper to comply with the requirements of AS 12.63.010 for each sex offense or child kidnapping

(1) continues for the lifetime of a sex offender or child kidnapper convicted of

(A) one aggravated sex offense; or

(B) two or more sex offenses, two or more child kidnappings, or one sex offense and one child kidnapping; for purposes of this section, a person convicted of indecent exposure before a person under 16 years of age under AS 11.41.460 more than two times has been convicted of two or more sex offenses;

(2) ends 15 years following the sex offender's or child kidnapper's unconditional discharge from a conviction for a single sex offense that is not an aggravated sex offense or for a single child kidnapping if the sex offender or child kidnapper has supplied proof that is acceptable to the department of the unconditional discharge; the registration period under this paragraph

(A) is tolled for each year that a sex offender or child kidnapper

(i) fails to comply with the requirements of this chapter;

(ii) is incarcerated for the offense or kidnapping for which the offender or kidnapper is required to register or for any other offense;

(B) may include the time a sex offender or child kidnapper was absent from this state if the sex offender or child kidnapper has complied with any sex offender or child kidnapper registration requirements of the jurisdiction in which the offender or kidnapper was located and if the sex offender or child kidnapper provides the department with proof of the compliance while the sex offender or child kidnapper was absent from this state; and

(C) continues for a sex offender or child kidnapper who has not supplied proof acceptable to the department of the offender's or kidnapper's unconditional discharge for the sex offense or child kidnapping requiring registration.

(b) The department shall adopt, by regulation, procedures to notify a sex offender or child kidnapper who, on the registration form under AS 12.63.010, lists a conviction for a sex offense or child kidnapping that is a violation of a former law of this state or a law of another jurisdiction, of the duration of the offender's or kidnapper's duty under (a) of this section for that sex offense or child kidnapping. As a part of the regulations, the department shall require the offender or kidnapper to supply proof acceptable to the department of unconditional discharge and the date it occurred.

SLA 1994, ch. 41, § 4; SLA 1998, ch. 81, § 15; SLA 1998, ch. 106, § 12.

LIBRARY REFERENCES

Mental Health  469.

Westlaw Key Number Search: 257Ak469.

NOTES OF DECISIONS

Separation of powers 1

1. Separation of powers

Sex Offender Registration Act, requiring sex offenders to register and to report on regular basis for specified period of time, did not violate separation of powers between legislative and judicial branches of government, as Act was regulatory, not sentencing, measure, and length of time offender was subjected to reporting did not have to be modifiable depending on offender's level of dangerousness. U.S.C.A. Const. Art. 3, § 1 et seq. Herreid v. State (2003) Alaska App., 69 P.3d 507. Constitutional Law § 2371; Mental Health § 433(2)

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AS § 12.63.100

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Title 12. Code of Criminal Procedure

Chapter 63. Registration of Sex Offenders (Refs & Annos)

§ 12.63.100. Definitions

In this chapter,

(1) “aggravated sex offense” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit a sexual offense, or a similar offense under the laws of the other jurisdiction; in this subparagraph, “sexual offense” has the meaning given in AS 11.41.100(a)(3);

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit one of the following crimes, or a similar law of another jurisdiction:

(i) sexual assault in the first degree;

(ii) sexual assault in the second degree;

(iii) sexual abuse of a minor in the first degree; or

(iv) sexual abuse of a minor in the second degree; or

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under AS 11.41.410, 11.41.434, or a similar law of another jurisdiction or a similar provision under a former law of this state;

(2) “child kidnapping” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit kidnapping;

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit kidnapping if the victim was under 18 years of age at the time of the offense; or

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under AS 11.41.300, or a similar law of another jurisdiction or a similar provision under a former law of this state, if the victim was under 18 years of age at the time of the offense;

(3) “conviction” means that an adult, or a juvenile charged as an adult under AS 47.12 or a similar procedure in another jurisdiction, has entered a plea of guilty, guilty but mentally ill, or nolo contendere, or has been found guilty or guilty but mentally ill by a court or jury, of a sex offense or child kidnapping regardless of whether the judgment was set aside under AS 12.55.085 or a similar procedure in another jurisdiction or was the subject of a pardon or other executive clemency; “conviction” does not include a judgment that has been reversed or vacated by a court;

(4) “department” means the Department of Public Safety;

(5) “sex offender or child kidnapper” means a person convicted of a sex offense or child kidnapping in this state or another jurisdiction regardless of whether the conviction occurred before, after, or on January 1, 1999;

(6) “sex offense” means

(A) a crime under AS 11.41.100(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit a sexual offense, or a similar offense under the laws of the other jurisdiction; in this subparagraph, “sexual offense” has the meaning given in AS 11.41.100(a)(3);

(B) a crime under AS 11.41.110(a)(3), or a similar law of another jurisdiction, in which the person committed or attempted to commit one of the following crimes, or a similar law of another jurisdiction:

- (i) sexual assault in the first degree;
- (ii) sexual assault in the second degree;
- (iii) sexual abuse of a minor in the first degree; or
- (iv) sexual abuse of a minor in the second degree;

(C) a crime, or an attempt, solicitation, or conspiracy to commit a crime, under the following statutes or a similar law of another jurisdiction:

- (i) AS 11.41.410—11.41.438;
- (ii) AS 11.41.440(a)(2);
- (iii) AS 11.41.450—11.41.458;
- (iv) AS 11.41.460 if the indecent exposure is before a person under 16 years of age and the offender has a previous conviction for that offense;
- (v) AS 11.61.125—11.61.128;
- (vi) AS 11.66.110 or 11.66.130(a)(2) if the person who was induced or caused to engage in prostitution was 16 or 17 years of age at the time of the offense; or
- (vii) former AS 11.15.120, former 11.15.134, or assault with the intent to commit rape under former AS 11.15.160, former AS 11.40.110, or former 11.40.200;

(7) “unconditional discharge” has the meaning given in AS 12.55.185.

SLA 1994, ch. 41, § 4; SLA 1998, ch. 81, § 16; SLA 1998, ch. 106, §§ 14—16; SLA 1999, ch. 54, §§ 12—15; SLA 2006, ch. 14, §§ 8, 9, eff. April 28, 2006. Amended by SLA 2007, ch. 24, § 24, eff. July 1, 2007.

HISTORICAL AND STATUTORY NOTES

SLA 2006, ch. 14, §§ 8 and 9, added “or a similar provision under a former law of this state” at the end of par. (1)(C) and in par. (2)(C).

SLA 2007, ch. 24, in par. (6)(C)(v), substituted AS “11.61.125 - 11.61.128” for “11.61.125 - 11.61.127”.

CROSS REFERENCES

Violation by sex offender of condition of probation or parole, see § 11.56.759

NOTES OF DECISIONS

Conviction 1
Sex offense 2

1. Conviction

Sex Offender Registration Act applies to defendants whose convictions have been set aside. AS 12.63.010 et seq. *State v. Martin* (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Mental Health  469(2)

Definition of “conviction” adopted by Department of Public Safety in regulations implementing sex offender registration statute, as including even convictions that were set aside after a defendant successfully completed probation from a suspended imposition of sentence (SIS), was a reasonable construction consistent with legislature's public safety concerns in adopting statute and would therefore be upheld in prosecutions for second-degree failure to register as sex offenders. (Per Stewart, J., with one Judge concurring.) AS 11.56.840, 12.63.010 et seq., 18.65.087; Alaska Admin. Code title 13, § 09.900(a)(2). *State v. Otness* (1999) Alaska App., 986 P.2d 890. Mental Health  469(2); Mental Health  469(7)

2. Sex offense

A sentencing court has no power to exempt a defendant from the requirements of the Sex Offender Registration Act, nor does a sentencing court have the power to impose sex offender registration and reporting on a defendant whose crime does not qualify as a “sex offense” under the Act. AS 12.63.100(1, 6). Herreid v. State (2003) Alaska App., 69 P.3d 507. Mental Health 469(2)

Coercion is not a “sex offense” within meaning of Sex Offender Registration Act and therefore judge did not have authority to impose a special condition of probation requiring defendant, convicted of coercion, to register as a sex offender. AS 12.63.010-12.63.100. Whitehead v. State (1999) Alaska App., 985 P.2d 1019. Sentencing And Punishment 1969(2)

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Chapter 63. Registration of Sex Offenders

UNITED STATES CODE ANNOTATED

Jacob Wetterling crimes against children and sexually violent offender registration program, see 42 U.S.C.A. § 14071 et seq.

Sex offense prevention and control, see 42 U.S.C.A. § 9511 et seq.

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Alaska Statutes Annotated - 2007

AS § 12.63.030

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Title 12. Code of Criminal Procedure

Chapter 63. Registration of Sex Offenders (Refs & Annos)

§ 12.63.030. Notification of other jurisdictions

(a) If a sex offender or child kidnapper notifies the department that the sex offender or child kidnapper is moving from the state, the department shall notify the Federal Bureau of Investigation and the state where the sex offender or child kidnapper is moving of the sex offender's or child kidnapper's intended address.

(b) If a sex offender or child kidnapper fails to register or to verify the sex offender's or child kidnapper's address and registration under this chapter, or the department does not know the location of a sex offender or child kidnapper required to register under this chapter, the department shall immediately notify the Federal Bureau of Investigation.

SLA 1998, ch. 106, § 13.

LIBRARY REFERENCES

Mental Health  469.

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Alaska Statutes Annotated - 2007

AS § 18.65.087

West's Alaska Statutes Annotated Currentness

Title 18. Health, Safety, and Housing

Chapter 65. Police Protection

Article 1. State Troopers

§ 18.65.087. Central registry of sex offenders

(a) The Department of Public Safety shall maintain a central registry of sex offenders and child kidnappers and shall adopt regulations necessary to carry out the purposes of this section and AS 12.63. A post of the Alaska state troopers or a municipal police department that receives registration or change of address information under AS 12.63.010 shall forward the information within five working days of receipt to the central registry of sex offenders and child kidnappers. Unless the sex offender or child kidnapper provides proof satisfactory to the department that the sex offender or child kidnapper is not physically present in the state or that the time limits described in AS 12.63.010 have passed, the Department of Public Safety may enter and maintain in the registry information described in AS 12.63.010 about a sex offender or child kidnapper that the department obtains from

- (1) the sex offender or child kidnapper under AS 12.63;
- (2) a post of the Alaska state troopers or a municipal police department under this subsection;
- (3) a court judgment under AS 12.55.148;
- (4) the Department of Corrections under AS 33.30.012 or 33.30.035;
- (5) the Federal Bureau of Investigation or another sex offender registration agency outside this state if the information indicates that a sex offender or child kidnapper is believed to be residing or planning to reside in the state or cannot be located;
- (6) a criminal justice agency in the state or another jurisdiction;
- (7) the department's central repository under AS 12.62; information entered in the registry from the repository is not subject to the requirements of AS 12.62.160(c)(3) or (4); or
- (8) another reliable source as defined in regulations adopted by the department.

(b) Information about a sex offender or child kidnapper that is contained in the central registry, including sets of fingerprints, is confidential and not subject to public disclosure except as to the sex offender's or child kidnapper's name, aliases, address, photograph, physical description, description of motor vehicles, license numbers of motor vehicles, and vehicle identification numbers of motor vehicles, place of employment, date of birth, crime for which convicted, date of conviction, place and court of conviction, length and conditions of sentence, and a statement as to whether the offender or kidnapper is in compliance with requirements of AS 12.63 or cannot be located.

(c) Notwithstanding (b) of this section, if a sex offender has been convicted in this state or another jurisdiction of a sex offense identified as "incest," that offense may be disclosed under (b) of this section only as a "felony sexual abuse of a minor" conviction.

(d) The Department of Public Safety

- (1) shall adopt regulations to

- (A) allow a sex offender or child kidnapper to review sex offender or child kidnapper registration information that refers to that sex offender or child kidnapper, and if the sex offender or child kidnapper believes the information is inaccurate or incomplete, to request the department to correct the information; if the department finds the information is inaccurate or incomplete, the department shall correct or supplement the information;
 - (B) ensure the appropriate circulation to law enforcement agencies of information contained in the central registry;
 - (C) ensure the anonymity of members of the public who request information under this section;
- (2) shall provide to the Department of Corrections and municipal police departments the forms and directions necessary to allow sex offenders and child kidnappers to comply with AS 12.63.010;
- (3) may adopt regulations to establish fees to be charged for registration under AS 12.63.010 and for information requests; the fee for registration shall be based upon the actual costs of performing the registration and maintaining the central registry but may not be set at a level whereby registration is discouraged; the fee for an information request may not be greater than \$10;
- (4) shall remove from the central registry of sex offenders and child kidnappers under this section information about a sex offender or child kidnapper required to register under AS 12.63.020(a)(2) at the end of the sex offender's or child kidnapper's duty to register if the offender or kidnapper has not been convicted of another sex offense or child kidnapping and the offender or kidnapper has supplied proof of unconditional discharge acceptable to the department; in this paragraph, "sex offense" and "child kidnapping" have the meanings given in AS 12.63.100.
- (e) The name, address, and other identifying information of a member of the public who makes an information request under this section is not a public record under AS 40.25.100—40.25.220.
- (f) When a sex offender or child kidnapper registers under AS 12.63, the Department of Public Safety shall make reasonable attempts to verify that the sex offender or child kidnapper is residing at the registered address. Reasonable attempts at verifying an address include sending certified mail, return receipt requested, to the offender or kidnapper at the registered address. The department shall make reasonable efforts to locate an offender or kidnapper who cannot be located at the registered address.
- (g) The department, at least quarterly, shall compile a list of those persons with a duty to register under AS 12.63.010 who have failed to register, whose addresses cannot be verified under (f) of this section, or who otherwise cannot be located. The department shall post this list on the Internet and request the public's assistance in locating these persons.
- (h) The Department of Public Safety shall provide on the Internet website that the department maintains for the central registry of sex offenders and child kidnappers information as to how members of the public using the website may access or compile the information relating to sex offenders or child kidnappers for a particular geographic area on a map. The information may direct members to mapping programs available on the Internet and to Internet websites where information contained in the registry has already been converted to a map or geographic format.

SLA 1994, ch. 41, § 5; SLA 1998, ch. 106, §§ 17—20; SLA 2006, ch. 14, §12, eff. Apr. 28, 2006.

CROSS REFERENCES

Blood tests for sex offenders, see § 18.15.300 et seq.
Civil claims based upon sexual abuse, see § 09.55.650.
Registration, sex offenders, see § 12.63.010 et seq.
Search and seizure, constitutional provisions, see Const. Art. 1, § 14.
Search and seizure, see § 12.35.010 et seq.
Victims and witnesses, sex offenses, see § 12.61.125.

LIBRARY REFERENCES

Mental Health  469.
Westlaw Key Number Search: 257Ak469.

RESEARCH REFERENCES

ALR Library

78 ALR 5th 489, Validity, Construction, and Application of State Statutes Authorizing Community Notification of Release of Convicted Sex Offender.

NOTES OF DECISIONS

Confidentiality 3
Construction and application 2
Registration deadlines 4
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Validity 1

1. Validity

Purpose of Alaska Sex Offender Registration Act (ASORA) is regulatory rather than punitive, and thus, statute does not constitute cruel and unusual punishment. U.S.C.A. Const.Amend. 8; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Sentencing And Punishment 🔑 1601; Mental Health 🔑 433(2)

For purpose of determining whether the Alaska Sex Offender Registration Act (ASORA) violates the state and federal constitutional prohibitions against ex post facto laws, the legislative intent behind ASORA is regulatory, rather than punitive; ASORA merely requires convicted sex offenders to register with local law enforcement and to maintain and update that registration for minimum of 15 years, and involves no additional supervision, treatment or restriction. U.S.C.A. Const. Art. 1, §§ 9, cl. 3, 10, cl. 1; Const. Art. 1, § 15; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 🔑 2821; Mental Health 🔑 433(2)

The effect of the Alaska Sex Offender Registration Act (ASORA), although significant, is not so punitive as to violate the state and federal constitutional prohibitions against ex post facto laws; although law provides for dissemination of substantial personal and biographical information which convicted sex offenders must provide to local law enforcement, statute does not encourage acts of retribution or violence. U.S.C.A. Const. Art. 1, §§ 9, cl. 3, 10, cl. 1; Const. Art. 1, § 15; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 🔑 2821; Mental Health 🔑 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's equal protection rights under either federal or state constitution; sex offenders are not treated differently than similarly situated group of persons, and statute creates no suspect classification. U.S.C.A. Const.Amend. 14; Const. Art. 1, § 1; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 🔑 3176; Mental Health 🔑 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender's biographical data, photograph and finger prints could be disseminated to members of public by local law enforcement without determination as to likelihood that offender would re-offend, neither deprived sex offender of liberty interest without procedural due process nor was fundamentally unfair; legislature's conclusion that prior sex offense conviction was sufficient reason to include offender in registry was reasonable response to potential for recidivism that sex offenders have as a group. U.S.C.A. Const.Amend. 5, 14; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 🔑 4343; Mental Health 🔑 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's substantive due process rights; statute is rationally related to legislature's legitimate concern with public safety threat posed by sex offenders.

U.S.C.A. Const.Amends. 5, 14; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 4343; Mental Health 433(2)

The Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender must supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's federal constitutional right to privacy; biographical data which sex offender is required to provide is already in public domain, and no person has objectively reasonable expectation of privacy in his or her appearance or physical characteristics. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1245; Mental Health 433(2)

Convicted sex offender's assumed expectation of privacy was outweighed by society's interest in protecting public safety and welfare, and thus Alaska Sex Offender Registration Act (ASORA), under which sex offender was required to supply local law enforcement officials with biographical data and submit to being photographed and finger printed, does not violate sex offender's state constitutional right to privacy. Const. Art. 1, § 22; AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1245; Mental Health 433(2)

Alaska Sex Offender Registration Act (ASORA), under which convicted sex offender's biographical data, photograph and finger prints could be disseminated to members of public by local law enforcement without determination as to likelihood that offender would re-offend, was not unconstitutionally overbroad. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1145(1); Mental Health 433(2)

The duty to register under the Alaska Sex Offender Registration Act (ASORA) is not punishment, and thus the statute is not a bill of attainder. AS 12.63.010-12.63.100. *Patterson v. State* (1999) Alaska App., 985 P.2d 1007, rehearing denied. Constitutional Law 1100(5); Mental Health 433(2)

2. Construction and application

Sex offenders physically present in Alaska, who had been released from probation before the effective date of the Alaska Sex Offender Registration Act (ASORA), could be required to comply with general duty to register set forth in former. AS 12.63.010(a) (1997). *Nunley v. State* (2001) Alaska App., 26 P.3d 1113. Mental Health 469(2)

Sex Offender Registration Act applies to defendants whose convictions have been set aside. AS 12.63.010 et seq. *State v. Martin* (2001) Alaska App., 17 P.3d 72, vacated 98 P.3d 206. Mental Health 469(2)

Definition of "conviction" adopted by Department of Public Safety in regulations implementing sex offender registration statute, as including even convictions that were set aside after a defendant successfully completed probation from a suspended imposition of sentence (SIS), was a reasonable construction consistent with legislature's public safety concerns in adopting statute and would therefore be upheld in prosecutions for second-degree failure to register as sex offenders. (Per Stewart, J., with one Judge concurring.) AS 11.56.840, 12.63.010 et seq., 18.65.087; Alaska Admin. Code title 13, § 09.900(a)(2). *State v. Otness* (1999) Alaska App., 986 P.2d 890. Mental Health 469(2); Mental Health 469(7)

3. Confidentiality

Convicted sex offenders were likely to prevail on merits of their ex post facto challenge to Alaska Registration Act to extent that Act provided for public dissemination of information concerning offenders whose convictions antedated Act; therefore, offenders would have to comply with Act's registration requirements but were entitled to preliminary injunction prohibiting such dissemination. U.S.C.A. Const. Art 1, § 10, cl. 1; AS 18.65.087(b). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction 138.48

Sex offenders whose convictions antedated Alaska Registration Act were likely to succeed on merits of their claim that Act would violate not only constitutional prohibition against ex post facto laws but terms of plea bargains to extent that Act allowed

for public dissemination of information. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

For purposes of request for preliminary injunction, balance of hardship tipped in favor of convicted sex offenders challenging Alaska Registration Act only so long as there was to be public dissemination of registration information under Act. AS 18.65.087(b). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

4. Registration deadlines

Department of Public Safety had authority to promulgate regulation that extended registration deadline for certain sex offenders; regulation ensured that legislature's intent to regulate sex offenders, and to prosecute those who failed to register, would be implemented, and by extending initial registration deadline Department's regulation was consistent with purposes and policies of Alaska Sex Offender Registration Act (ASORA). AS 11.56.840 (1997); Alaska Admin. Code title 13, § 09.010(d). *State v. Hawkins* (2002) Alaska App., 39 P.3d 1126. Mental Health  469(2); Mental Health  469(7)

Convicted sex offender, who was unconditionally discharged after July 1984 but prior to August 1994, had duty to register under the Alaska Sex Offender Registration Act (ASORA), even though statute setting forth time period for registration did not by its explicit terms include him. AS 12.63.010(a) (1997). *State v. Hawkins* (2002) Alaska App., 39 P.3d 1126. Mental Health  469(2)

Statute under which all sex offenders who are required to make yearly reports shall make their report on a date set by Department of Public Safety at time of offender's initial registration does not preclude Department from promulgating a general rule to govern the reporting deadline for all sex offenders. AS 12.63.010(d)(1). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday did not exceed authority of Department of Public Safety pursuant to statute requiring sex offenders to make their yearly report on a date set by Department at time of offender's initial registration; statute does not preclude the Department from promulgating a general rule to govern reporting deadline for all sex offenders. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

Regulation requiring convicted sex offenders subject to registration requirements to make their annual reports within the 30 days preceding their birthday, which was in effect at time offender had initially registered following his sexual assault conviction, sufficiently established date for yearly report at time of initial registration, as required by statute. AS 12.63.010(d)(1); Alaska Admin. Code title 13, § 09.030(c). *Semaken v. State* (2000) Alaska App., 8 P.3d 368. Mental Health  469(5)

5. Sentencing and punishment

For purposes of convicted sex offenders' ex post facto challenge to Alaska Registration Act, act of registration could not be viewed historically as carrying punitive connotation, notwithstanding offenders' attempt to characterize registration as similar to conditions of parole or supervised release. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law  2821; Mental Health  433(2)

Because the Sex Offender Registration Act is a regulatory measure, the registration and reporting requirements imposed by the Act are not part of a defendant's sentence. AS 12.63.100. *Herreid v. State* (2003) Alaska App., 69 P.3d 507. Mental Health  469(1)

A sentencing court has no power to exempt a defendant from the requirements of the Sex Offender Registration Act, nor does a sentencing court have the power to impose sex offender registration and reporting on a defendant whose crime does not qualify as a "sex offense" under the Act. AS 12.63.100(1, 6). *Herreid v. State* (2003) Alaska App., 69 P.3d 507. Mental Health  469(2)

6. Review

Department of Public Safety's construction of sex offender registration statute, as reflected in regulations implementing it, would not be overruled except for weighty reasons. (Per Stewart, J., with one Judge concurring.) AS 12.63.010 et seq., 18.65.087. State v. Otness (1999) Alaska App., 986 P.2d 890. Statutes  219(9.1)

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Alaska Statutes Annotated - 2007

AS § 28.05.048

West's Alaska Statutes Annotated Currentness

Title 28. Motor Vehicles

Chapter 05. Administration

Article 1. Powers and Duties of Departments of Public Safety and Administration

§ 28.05.048. Sex offender registration

The department shall display notice of the registration requirements of AS 12.63.010 at a place where the public may apply for a driver's license, identification card, or vehicle registration.

SLA 1994, ch. 41, § 6.

CROSS REFERENCES

Search and seizure, constitutional provisions, see Const. Art. 1, § 14.

Search and seizure, see § 12.35.010 et seq.

LIBRARY REFERENCES

Mental Health  469(1).

Westlaw Key Number Search: 257Ak469(1).

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Alaska Statutes Annotated - 2007

AS § 33.30.035

West's Alaska Statutes Annotated Currentness

Title 33. Probation, Prisons, and Prisoners

Chapter 30. Prison Facilities and Prisoners

Article 1. Establishment, Control, and Management

§ 33.30.035. Notice to sex offenders or child kidnappers of registration and other requirements

The department shall provide written notice to a sex offender or child kidnapper of the registration, verification, and change of address requirements of AS 12.63.010 and shall obtain a written receipt of notice from the sex offender or child kidnapper (1) at the time of the sex offender's or child kidnapper's release from a state correctional facility; (2) immediately after taking supervision of a sex offender or child kidnapper under the Interstate Corrections Compact or AS 33.36.110. The department shall forward the written receipt to the Department of Public Safety, along with a description of any identifying features of the offender or kidnapper, the anticipated address of the offender or kidnapper, and a statement concerning whether the offender or kidnapper has received treatment for the offender's or kidnapper's mental abnormality or personality disorder related to the sex offense or child kidnapping. In this section, "sex offense" and "child kidnapping" have the meanings given in AS 12.63.100.

SLA 1994, ch. 41, § 8; SLA 1998, ch. 106, § 22.

CROSS REFERENCES

Search and seizure, constitutional provisions, see Const. Art. 1, § 14.

Search and seizure, see § 12.35.010 et seq.

LIBRARY REFERENCES

Mental Health  458.

Westlaw Key Number Search: 257Ak458.

NOTES OF DECISIONS

Ex post facto laws 1

Injunctive relief 3

Standing to contest validity 2

1. Ex post facto laws

Mere fact that Alaska Registration Act was within title of Alaska statutes entitled "Criminal Procedure" did not establish that Act was punitive in design for purposes of convicted offenders' ex post facto challenge. U.S.C.A. Const. Art. 1, § 10, cl. 1; Alaska Laws 1994, c. 41, § 1 et seq. *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law  2810; Mental Health  433(2)

Convicted sex offenders were likely to prevail on merits of their ex post facto challenge to Alaska Registration Act to extent that Act provided for public dissemination of information concerning offenders whose convictions antedated Act; therefore, offenders would have to comply with Act's registration requirements but were entitled to preliminary injunction prohibiting such dissemination. U.S.C.A. Const. Art 1, § 10, cl. 1; AS 18.65.087(b). *Rowe v. Burton*, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

Mere fact that Alaska Registration Act required convicted sex offenders to present themselves to law enforcement authorities as part of registration process could not alone support finding of affirmative disability or restraint suggesting punitive effect for purposes of ex post facto challenge; restraint imposed on offenders' liberty was de minimis. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 12.63.010(a). Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2821; Mental Health 433(2)

For purposes of convicted sex offenders' ex post facto challenge to Alaska Registration Act, act of registration could not be viewed historically as carrying punitive connotation, notwithstanding offenders' attempt to characterize registration as similar to conditions of parole or supervised release. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Constitutional Law 2821; Mental Health 433(2)

2. Standing to contest validity

Convicted sex offenders challenging Alaska Registration Act would not be allowed to prosecute action under fictitious names; although offenders sought to keep private their pleas concerning sex offenses, such information was already public, and offenders had pursued early termination of parole for their offenses; moreover, offenders had presented no evidence to establish that they faced threat of physical harm. Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure 101

Wife of convicted sex offender would not be allowed to prosecute action challenging Alaska Registration Act under fictitious name, despite her fear of stigmatization; although wife claimed that she would be stigmatized if her husband was required to disclose his true identity, parties' marriage was a matter of public record, and there was no fact that was not already known to public that would be protected by granting wife's request. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure 101

Convicted sex offenders challenging Alaska Registration Act were not entitled to prosecute action under pseudonyms on grounds that disclosing their names would result in injury they sought to avoid by bringing action; rather than seeking to keep facts private, offenders were seeking to limit dissemination of facts already public, i.e., that they had pled no contest to sex offenses, and there would be no disclosure of intensely private fact. Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Civil Procedure 101

Federal district court could not override dictates of Eleventh Amendment and exercise pendent jurisdiction to pass on constitutionality of Alaska Registration Act under Alaska Constitution. U.S.C.A. Const.Amend. 11; Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Federal Courts 265

3. Injunctive relief

Sex offenders whose convictions antedated Alaska Registration Act were likely to succeed on merits of their claim that Act would violate not only constitutional prohibition against ex post facto laws but terms of plea bargains to extent that Act allowed for public dissemination of information. U.S.C.A. Const. Art. 1, § 10, cl. 1; AS 18.65.087(b); Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction 138.48

Convicted sex offenders failed to establish likelihood of success on merits of their claim that requirement under Alaska Registration Act that they submit to law enforcement authorities for photographs and fingerprinting violated Fourth Amendment; photographs and fingerprinting alone were nontestimonial in nature and were not likely to be considered search and, although involuntary surrender would likely be considered seizure under Fourth Amendment, it would not likely be considered unreasonable in light of society's interest in preventing sex crimes and minimal intrusion on offenders' rights. U.S.C.A. Const.Amend. 4; AS 12.63.010(b)(2). Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction 138.48

Convicted sex offenders failed to establish likelihood of success on merits of claim that Alaska Registration Act violated their right to privacy under United States Constitution; offenders' residences, job locations, driver's license numbers, dates of convictions, and nature of convictions are generally considered public information, and such information did not reveal intimate facts traditionally protected from disclosure by federal right to privacy. Alaska Laws 1994, c. 41, § 1 et seq. Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

For purposes of request for preliminary injunction, balance of hardship tipped in favor of convicted sex offenders challenging Alaska Registration Act only so long as there was to be public dissemination of registration information under Act. AS 18.65.087(b). Rowe v. Burton, 1994, 884 F.Supp. 1372, appeal dismissed 85 F.3d 635. Injunction  138.48

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration

A.C.A. T. 12, Subt. 2, Ch. 12, Subch. 9, Refs & Annos

Currentness

A.C.A. T. 12, Subt. 2, Ch. 12, Subch. 9, Refs & Annos, AR ST T. 12, Subt. 2, Ch. 12, Subch. 9, Refs & Annos

The constitution and statutes are current through acts passed during the 2025 Regular Session of the 95th Arkansas General Assembly. The general effective date for the session is August 5, 2025. Some statute sections may be more current; see credits for details. Also included are changes made by the Arkansas Code Revision Commission received through November 30, 2025.

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-901

§ 12-12-901. Title

Currentness

This subchapter shall be known and may be cited as the “Sex Offender Registration Act of 1997”.

Credits

Acts of 1997, Act 989, § 1; Acts of 2001, Act 1743, § 1, eff. Aug. 13, 2001.

Formerly Acts of 1987, Act 587, § 1; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-901, AR ST § 12-12-901

The constitution and statutes are current through acts passed during the 2025 Regular Session of the 95th Arkansas General Assembly. The general effective date for the session is August 5, 2025. Some statute sections may be more current; see credits for details. Also included are changes made by the Arkansas Code Revision Commission received through November 30, 2025.

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-902

§ 12-12-902. Legislative findings

Currentness

The General Assembly finds that sex offenders pose a high risk of reoffending after release from custody, that protecting the public from sex offenders is a primary governmental interest, that the privacy interest of persons adjudicated guilty of sex offenses is less important than the government's interest in public safety, and that the release of certain information about sex offenders to criminal justice agencies and the general public will assist in protecting the public safety.

Credits

Acts of 1997, Act 989, § 2.

Formerly Acts of 1987, Act 587, § 2; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-902, AR ST § 12-12-902

The constitution and statutes are current through acts passed during the 2025 Regular Session of the 95th Arkansas General Assembly. The general effective date for the session is August 5, 2025. Some statute sections may be more current; see credits for details. Also included are changes made by the Arkansas Code Revision Commission received through November 30, 2025.

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-903

§ 12-12-903. Definitions

Effective: August 5, 2025

Currentness

As used in this subchapter:

(1) “Adjudication of guilt” or other words of similar import mean a:

(A) Plea of guilty;

(B) Plea of nolo contendere;

(C) Negotiated plea;

(D) Finding of guilt by a judge; or

(E) Finding of guilt by a jury;

(2)(A) “Administration of criminal justice” means performing functions of investigation, apprehension, detention, prosecution, adjudication, correctional supervision, or rehabilitation of accused persons or criminal offenders.

(B) “Administration of criminal justice” also includes criminal identification activities and the collection, maintenance, and dissemination of criminal justice information;

(3) “Aggravated sex offense” means an offense in the Arkansas Code substantially equivalent to “aggravated sexual abuse” as defined in 18 U.S.C. § 2241 as it existed on March 1, 2003, which principally encompasses:

(A) Causing another person to engage in a sexual act:

(i) By using force against that other person; or

(ii) By threatening or placing or attempting to threaten or place that other person in fear that any person will be subjected to death, serious bodily injury, or kidnapping;

(B) Knowingly:

(i) Rendering another person unconscious and then engaging in a sexual act with that other person; or

(ii) Administering to another person by force or threat of force, or without the knowledge or permission of that person, a drug, intoxicant, or similar substance and thereby:

(a) Substantially impairing the ability of that other person to appraise or control conduct; and

(b) Engaging or attempting to engage in a sexual act with that other person; or

(C) Crossing a state line with intent to:

(i) Engage or attempt to engage in a sexual act with a person who has not attained twelve (12) years of age;

(ii) Knowingly engage or attempt to engage in a sexual act with another person who has not attained twelve (12) years of age; or

(iii) Knowingly engage or attempt to engage in a sexual act under the circumstances described in subdivisions (3)(A) and (B) of this section with another person who has attained twelve (12) years of age but has not attained sixteen (16) years of age and is at least four (4) years younger than the alleged offender;

(4) “Change of address” or other words of similar import mean a change of residence or a change for more than thirty (30) days of temporary domicile, change of location of employment, education or training, or any other change that alters where a sex offender regularly spends a substantial amount of time;

(5) “Criminal justice agency” means a government agency or any subunit thereof which is authorized by law to perform the administration of criminal justice and which allocates more than one-half (1/2) of its annual budget to the administration of criminal justice;

(6) “Local law enforcement agency having jurisdiction” means the:

(A) Chief law enforcement officer of the municipality in which a sex offender:

(i) Resides or expects to reside;

(ii) Is employed; or

(iii) Is attending an institution of training or education; or

(B) County sheriff, if:

(i) The municipality does not have a chief law enforcement officer; or

(ii) A sex offender resides or expects to reside, is employed, or is attending an institution of training or education in an unincorporated area of a county;

(7) “Mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminally sexual acts to a degree that makes the person a menace to the health and safety of other persons;

(8) “Personality disorder” means an enduring pattern of inner experience and behavior that:

(A) Deviates markedly from the expectation of the person's culture;

(B) Is pervasive and inflexible across a broad range of personal and social situations;

(C) Leads to clinically significant distress or impairment in social, occupational, or other important areas of functioning;

(D) Is stable over time;

(E) Has its onset in adolescence or early adulthood;

(F) Is not better accounted for as a manifestation or consequence of another mental disorder; and

(G) Is not due to the direct physiological effects of a substance or a general medical condition;

(9) “Predatory” describes an act directed at a stranger or a person with whom a relationship has been established or promoted for the primary purpose of victimization of that person or individuals over whom that person has control;

(10)(A) “Residency” means the place where a person lives notwithstanding that there may be an intent to move or return at some future date to another place.

(B) “Residency” also includes:

(i) A place of employment;

(ii) A place of training;

(iii) A place of education; or

(iv) A temporary residence or domicile in which a person resides for an aggregate of five (5) or more consecutive days during a calendar year;

(11) “Sentencing court” means the judge of the court that sentenced the sex offender for the sex offense;

(12)(A) “Sex offender” means a person who is adjudicated guilty of a sex offense or acquitted on the grounds of mental disease or defect of a sex offense.

(B) Unless otherwise specified, “sex offender” includes those individuals classified by the court as a sexually dangerous person;

(13)(A) “Sex offense” includes, but is not limited to:

(i) The following offenses:

(a) Rape, § 5-14-103;

(b) Sexual indecency with a child, § 5-14-110, if the offense is a felony;

(c) Capital rape, § 5-14-114;

(d) Sexual assault in the first degree, § 5-14-124;

(e) Sexual assault in the second degree, § 5-14-125;

(f) Sexual assault in the third degree, § 5-14-126;

- (g) Sexual assault in the fourth degree, § 5-14-127;
- (h) Incest, § 5-26-202;
- (i) Engaging children in sexually explicit conduct for use in visual or print medium, § 5-27-303;
- (j) Transportation of minors for prohibited sexual conduct, § 5-27-305;
- (k) Employing or consenting to the use of a child in a sexual performance, § 5-27-402;
- (l) Pandering or possessing visual or print medium depicting sexually explicit conduct involving a child, § 5-27-304;
- (m) Producing, directing, or promoting a sexual performance by a child, § 5-27-403;
- (n) Promoting prostitution in the first degree, § 5-70-104;
- (o) Stalking, § 5-71-229, when ordered by the sentencing court to register as a sex offender;
- (p) Indecent exposure, § 5-14-112, if a felony level offense;
- (q) Exposing another person to human immunodeficiency virus, § 5-14-123, when ordered by the sentencing court to register as a sex offender;
- (r) Kidnapping pursuant to § 5-11-102(a), when the victim is a minor and the offender is not the parent of the victim;
- (s) False imprisonment in the first degree and false imprisonment in the second degree, §§ 5-11-103 and 5-11-104, when the victim is a minor and the offender is not the parent of the victim;
- (t) Permitting abuse of a minor, § 5-27-221, if the abuse of the minor consisted of sexual intercourse, deviant sexual activity, or sexual contact;
- (u) Electronic facilitation of child sexual abuse, § 5-27-603;
- (v) Computer exploitation of a child, § 5-27-605;
- (w) Permanent detention or restraint, § 5-11-106, when the offender is not the parent of the victim;

- (x) Distributing, possessing, or viewing of matter depicting sexually explicit conduct involving a child, § 5-27-602;
- (y) Internet stalking of a child, § 5-27-306;
- (z) Crime of video voyeurism, § 5-16-101, if a felony level offense;
- (aa) Voyeurism, § 5-16-102, if a felony level offense;
- (bb) Any felony-homicide offense under § 5-10-101, § 5-10-102, or § 5-10-104 if the underlying felony is an offense listed in this subdivision (13)(A)(i);
- (cc) Sexually grooming a child, § 5-27-307;
- (dd) Trafficking of persons under § 5-18-103(a)(4);
- (ee) Patronizing a victim of human trafficking, § 5-18-104; and
- (ff) Sexual extortion, § 5-14-113;
- (ii) An attempt, solicitation, or conspiracy to commit any of the offenses enumerated in subdivision (13)(A)(i) of this section;
- (iii) An adjudication of guilt for an offense of the law of another state:
 - (a) Which is similar to any of the offenses enumerated in subdivision (13)(A)(i) of this section; or
 - (b) When that adjudication of guilt requires registration under another state's sex offender registration laws;
- (iv) A violation of any former law of this state that is substantially equivalent to any of the offenses enumerated in this subdivision (13)(A);
- (v) An adjudication of guilt for an offense in any federal court, the District of Columbia, a United States territory, a federally recognized Indian tribe, or for a military offense:
 - (a) Which is similar to any of the offenses enumerated in subdivision (13)(A)(i) of this section;

(b) When the adjudication of guilt requires registration under sex offender registration laws of another state or jurisdiction; or

(c) If the conviction was for a violation of:

(1) 18 U.S.C. § 2252C;

(2) 18 U.S.C. § 2424; or

(3) 18 U.S.C. § 2425; or

(vi) An adjudication of guilt for an offense requiring registration under the laws of Canada, the United Kingdom, Australia, New Zealand, or any other foreign country where an independent judiciary enforces a right to a fair trial during the year in which the conviction occurred.

(B)(i) The sentencing court has the authority to order the registration of any offender shown in court to have attempted to commit or to have committed a sex offense even though the offense is not enumerated in subdivision (13)(A)(i) of this section.

(ii) This authority applies to sex offenses enacted, renamed, or amended at a later date by the General Assembly unless the General Assembly expresses its intent not to consider the offense to be a true sex offense for the purposes of this subchapter;

(14)(A) “Sexually dangerous person” means a person who has been adjudicated guilty or acquitted on the grounds of mental disease or defect of a sexually violent offense and who suffers from a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(B) A person previously classified as a sexually violent predator is now considered a sexually dangerous person;

(15) “Sexually violent offense” means any state, federal, tribal, or military offense which includes a sexual act as defined in 18 U.S.C. §§ 2241 and 2242 as they existed on March 1, 2003, with another person if the offense is nonconsensual regardless of the age of the victim;

(16)(A) “Social media account” means a personal account with an electronic medium or service in which a user may create, share, or access user-generated content, including without limitation:

(i) A video;

(ii) A photograph;

(iii) A blog post;

(iv) A podcast;

(v) A transmission or message; or

(vi) An email.

(B) “Social media account” includes without limitation an account established with:

(i) Facebook;

(ii) Twitter;

(iii) LinkedIn;

(iv) MySpace;

(v) Instagram;

(vi) Snapchat;

(vii) YouTube; or

(viii) Any other similar format, program, application, or internet service; and

(17) “Social media account information” means information concerning a social media account, including without limitation:

(A) A screen name;

(B) A user identification; or

(C) A user name.

Credits

Acts of 1997, Act 989, § 3; Acts of 1999, Act 1353, § 1, eff. Sept. 1, 1999; Acts of 2001, Act 1496, § 3, eff. Aug. 13, 2001; Acts of 2001, Act 1743, § 2, eff. Aug. 13, 2001; Acts of 2003, Act 1390, § 4, eff. July 16, 2003; Acts of 2003 (2nd Ex. Sess.), Act 21, §§ 1-3, eff. June 3, 2004; Acts of 2007, Act 394, § 2, eff. March 21, 2007; Acts of 2007, Act 210, § 1, eff. July 31, 2007; Acts of 2009, Act 165, § 6, eff. July 31, 2009; Acts of 2013, Act 172, § 1, eff. Aug. 16, 2013; Acts of 2013, Act 505, §§ 1, 2, eff. Aug. 16, 2013; Acts of 2013, Act 508, § 1, eff. Aug. 16, 2013; Acts of 2013, Act 1114, § 3, eff. Aug. 16, 2013; Acts of 2015, Act 357, § 1, eff. July 22, 2015; Acts of 2015, Act 1285, § 1, eff. July 22, 2015; Acts of 2017, Act 664, § 7, eff. Aug. 1, 2017; Acts of 2017, Act 916, § 1, eff. Aug. 1, 2017; Acts of 2023, Act 21, § 8, eff. Aug. 1, 2023; Acts of 2023, Act 619, § 14, eff. Aug. 1, 2023; Acts of 2025, Act 662, § 48, eff. Aug. 5, 2025.

Formerly Acts of 1987, Act 587, § 10; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-903, AR ST § 12-12-903

The constitution and statutes are current through acts passed during the 2025 Regular Session of the 95th Arkansas General Assembly. The general effective date for the session is August 5, 2025. Some statute sections may be more current; see credits for details. Also included are changes made by the Arkansas Code Revision Commission received through November 30, 2025.

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-904

§ 12-12-904. Failure to comply with registration and reporting requirements--Refusal to cooperate with assessment process

Effective: July 1, 2019

Currentness

(a)(1)(A) A person is guilty of a Class C felony who:

(i) Fails to register or verify registration as required under this subchapter;

(ii) Fails to report in person a change of address, employment, education, or training as required under this subchapter;

(iii) Refuses to cooperate with the assessment process as required under this subchapter; or

(iv) Files false paperwork or documentation regarding verification, change of information, or petitions to be removed from the Arkansas Sex Offender Registry.

(B)(i) Upon conviction, a sex offender who fails or refuses to provide any information necessary to update his or her registration file as required by § 12-12-906(b)(2) is guilty of a Class C felony.

(ii) If a sex offender fails or refuses to provide any information necessary to update his or her registration file as required by § 12-12-906(b)(2), as soon as administratively feasible the Division of Correction, the Division of Community Correction, the Arkansas State Hospital, or the Department of Human Services shall contact the local law enforcement agency having jurisdiction to report the violation of subdivision (a)(1)(B)(i) of this section.

(2) It is an affirmative defense to prosecution if the person:

(A) Delayed reporting a change in address because of:

(i) An eviction;

(ii) A natural disaster; or

(iii) Any other unforeseen circumstance; and

(B) Provided the new address to the local law enforcement agency having jurisdiction in person no later than five (5) business days after the person establishes residency.

(b) Any agency or official subject to reporting requirements under this subchapter that knowingly fails to comply with the reporting requirements under this subchapter is guilty of a Class B misdemeanor.

Credits

Acts of 1997, Act 989, § 11; Acts of 1999, Act 1353, § 2, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 3, eff. Aug. 13, 2001; Acts of 2006 (1st Ex. Sess.), Act 4, § 1, eff. April 7, 2006; Acts of 2007, Act 394, § 3, eff. March 21, 2007; Acts of 2013, Act 172, § 2, eff. Aug. 16, 2013; Acts of 2015, Act 358, § 1, eff. July 22, 2015; Acts of 2017, Act 916, § 2, eff. Aug. 1, 2017; Acts of 2019, Act 910, § 702, eff. July 1, 2019.

Formerly Acts of 1987, Act 587, §§ 3, 6; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-904, AR ST § 12-12-904

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Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-905

§ 12-12-905. Applicability

Effective: January 1, 2024

Currentness

(a) The registration or registration verification requirements of this subchapter apply to a person who:

(1) Is adjudicated guilty on or after August 1, 1997, of a sex offense, aggravated sex offense, or sexually violent offense;

(2) Is serving a sentence of incarceration, probation, parole, post-release supervision, or other form of community supervision as a result of an adjudication of guilt on or after August 1, 1997, for a sex offense, aggravated sex offense, or sexually violent offense;

(3) Is acquitted on or after August 1, 1997, on the grounds of mental disease or defect for a sex offense, aggravated sex offense, or sexually violent offense;

(4) Is serving a commitment as a result of an acquittal on or after August 1, 1997, on the grounds of mental disease or defect for a sex offense, aggravated sex offense, or sexually violent offense; or

(5) Was required to be registered under the Habitual Child Sex Offender Registration Act, former § 12-12-901 et seq.

(b) A person who has been adjudicated guilty of a sex offense and whose record of conviction will be expunged under the provisions of §§ 16-93-301--16-93-303 is not relieved of the duty to register or verify registration.

(c)(1) If the underlying conviction of the registrant is reversed, vacated, or set aside or if the registrant is pardoned, the registrant is relieved from the duty to register or verify registration.

(2) Registration or registration verification shall cease upon the receipt and verification by the Arkansas Crime Information Center of documentation from the:

(A) Court verifying the fact that the conviction has been reversed, vacated, or set aside; or

(B) Governor's office that the Governor has pardoned the registrant.

Credits

Acts of 1997, Act 989, § 4; Acts of 1999, Act 1353, § 3, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 4, eff. Aug. 13, 2001; Acts of 2003, Act 1265, § 2, eff. July 16, 2003; Acts of 2006 (1st Ex. Sess.), Act 4, § 2, eff. April 7, 2006; Acts of 2007, Act 394, § 4, eff. March 21, 2007; Acts of 2023, Act 659, § 59, eff. Jan. 1, 2024.

Formerly Acts of 1987, Act 587, §§ 4, 5; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-905, AR ST § 12-12-905

The constitution and statutes are current through acts passed during the 2025 Regular Session of the 95th Arkansas General Assembly. The general effective date for the session is August 5, 2025. Some statute sections may be more current; see credits for details. Also included are changes made by the Arkansas Code Revision Commission received through November 30, 2025.

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

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Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-906

§ 12-12-906. Duty to register or verify registration generally--Review of requirements with offenders

Effective: January 1, 2024

Currentness

(a)(1)(A)(i) At the time of adjudication of guilt, the sentencing court shall enter on the sentencing order that the offender is required to register as a sex offender and shall indicate whether the:

(a) Offense is an aggravated sex offense;

(b) Sex offender has been adjudicated guilty of a prior sex offense under a separate case number; or

(c) Sex offender has been classified as a sexually dangerous person.

(ii) If the sentencing court finds the offender is required to register as a sex offender, then at the time of adjudication of guilt the sentencing court shall require the sex offender to complete the sex offender registration form prepared by the Director of the Arkansas Crime Information Center pursuant to § 12-12-908 and shall forward the completed sex offender registration form to the Arkansas Crime Information Center.

(iii) A sex offender is not required to register as a sex offender under this subchapter if the:

(a) Victim was under eighteen (18) years of age and the sex offender was no more than three (3) years older than the victim at the time of the sex offense;

(b) Court determines that there was no evidence of force, compulsion, threat, or intimidation in the commission of the sex offense; and

(c) Court does not otherwise order registration under § 12-12-903(13)(B)(i).

(B)(i) The Division of Correction shall ensure that a sex offender received for incarceration has completed the sex offender registration form.

(ii) If the Division of Correction cannot confirm that the sex offender has completed the sex offender registration form, the Division of Correction shall require the sex offender to complete the sex offender registration form upon intake, release, or discharge.

(C)(i) The Division of Community Correction shall ensure that a sex offender placed on probation or another form of community supervision has completed the sex offender registration form.

(ii) If the Division of Community Correction cannot confirm that the sex offender has completed the sex offender registration form, the Division of Community Correction shall require the sex offender to complete the sex offender registration form upon intake, release, or discharge.

(D)(i) The Arkansas State Hospital shall ensure that the sex offender registration form has been completed for any sex offender found not guilty by reason of insanity and shall arrange an evaluation by Community Notification Assessment.

(ii) If the Arkansas State Hospital cannot confirm that the sex offender has completed the sex offender registration form, the Arkansas State Hospital shall ensure that the sex offender registration form is completed for the sex offender upon intake, release, or discharge.

(2)(A)(i) A sex offender who moves to or returns to this state from another jurisdiction and who would be required to register as a sex offender in the jurisdiction in which he or she was adjudicated guilty or delinquent of a sex offense, or in any other state in which he or she has been ordered by a court of that other state to register as a sex offender, shall register with the local law enforcement agency having jurisdiction in person within five (5) calendar days after the sex offender moves to a municipality or county of this state.

(ii) Actual registration in the other state is not required under this section, and it is sufficient that the sex offender was required by law to register in the other state.

(B)(i) Any person living in this state who would be required to register as a sex offender in the jurisdiction in which he or she was adjudicated guilty or delinquent of a sex offense, or in any other state, shall register as a sex offender in this state whether living, working, or attending school or other training in Arkansas.

(ii) A nonresident worker or student who enters the state shall register in compliance with the Adam Walsh Child Protection and Safety Act of 2006, Pub. L. No. 109-248,¹ as it existed on January 1, 2007.

(C) A sex offender sentenced and required to register outside of Arkansas shall:

(i)(a) Submit to assessment by Community Notification Assessment if he or she is at least eighteen (18) years of age at the time he or she enters this state to live, work, or attend school.

(b) If he or she is under eighteen (18) years of age at the time he or she enters this state to live, work, or attend school, he or she shall submit to assessment by the University of Arkansas for Medical Sciences Family Treatment Program or other agency or entity authorized to conduct juvenile sex offender assessments;

(ii) Provide a deoxyribonucleic acid (DNA) sample if a sample is not already accessible to the State Crime Laboratory; and

(iii)(a) Pay the mandatory fee of two hundred fifty dollars (\$250) to be deposited into the DNA Detection Fund established by § 12-12-1119 within ninety (90) days from the date of registration.

(b) Failure to pay the fee required under subdivision (a)(2)(C)(iii)(a) of this section is a Class A misdemeanor.

(b)(1) The registration file of a sex offender who is confined in a correctional facility or serving a commitment following acquittal on the grounds of mental disease or defect shall be inactive until the registration file is updated by the department responsible for supervision of the sex offender.

(2) Immediately prior to the release or discharge of a sex offender or immediately following a sex offender's escape or his or her absconding from supervision, the Division of Correction, the Division of Community Correction, the Arkansas State Hospital, or the Department of Human Services shall update the registration file of the sex offender who is to be released or discharged or who has escaped or has absconded from supervision.

(c)(1)(A) When registering a sex offender as provided in subsection (a) of this section, the sentencing court, the Division of Correction, the Division of Community Correction, the Arkansas State Hospital, the Department of Human Services, or the local law enforcement agency having jurisdiction shall:

(i) Inform the sex offender of the duty to submit to assessment and to register and obtain the information required for registration as described in § 12-12-908;

(ii) Inform the sex offender that if the sex offender changes residency within the state, the sex offender shall give the new address and place of employment, education, higher education, or training to the center in writing no later than five (5) calendar days before the sex offender establishes residency or is temporarily domiciled at the new address;

(iii)(a) Inform the sex offender that if the sex offender changes residency to another state or enters another state to work or attend school, the sex offender must also register in that state regardless of permanent residency.

(b) The sex offender shall register the new address and place of employment, education, higher education, or training with the center and with a designated law enforcement agency in the new state in person not later than five (5) calendar days after the sex offender establishes residency or is temporarily domiciled in the new state;

(iv) Obtain fingerprints, palm prints, and a photograph of the sex offender if these have not already been obtained in connection with the offense that triggered registration;

(v) Obtain a deoxyribonucleic acid (DNA) sample if one has not already been provided;

(vi) Require the sex offender to complete the entire registration process, including, but not limited to, requiring the sex offender to read and sign a form stating that the duty of the sex offender to register under this subchapter has been explained;

(vii) Inform the sex offender that if the sex offender's address changes within the state or to another state due to an eviction, natural disaster, or any other unforeseen circumstance, the sex offender shall give the new address to the local law enforcement agency having jurisdiction in person no later than five (5) calendar days after the sex offender establishes residency;

(viii) Inform a sex offender who has been granted probation that failure to comply with the provisions of this subchapter may be grounds for revocation of the sex offender's probation; and

(ix) Inform a sex offender subject to lifetime registration under § 12-12-919 of the duty to:

(a) Verify registration and obtain the information required for registration verification as described in subsections (g) and (h) of this section; and

(b) Ensure that the information required for reregistration verification under subsections (g) and (h) of this section is provided to the local law enforcement agency having jurisdiction.

(B)(i) Any offender required to register as a sex offender must provide a deoxyribonucleic acid (DNA) sample, that is, a blood sample or saliva sample, upon registering if a sample has not already been provided to the State Crime Laboratory.

(ii) Any offender required to register as a sex offender who is entering the State of Arkansas must provide a deoxyribonucleic acid (DNA) sample, that is, a blood sample or saliva sample, upon registration and must pay the mandatory fee of two hundred fifty dollars (\$250) to be deposited into the DNA Detection Fund established by § 12-12-1119.

(2) When updating the registration file of a sex offender, the Division of Correction, the Division of Community Correction, the Arkansas State Hospital, or the Department of Human Services shall:

(A) Review with the sex offender the duty to register and obtain current information required for registration as described in § 12-12-908;

(B) Review with the sex offender the requirement that if the sex offender changes address within the state, the sex offender shall give the new address to the local law enforcement agency having jurisdiction in person no later than five (5) calendar days before the sex offender establishes residency or is temporarily domiciled at the new address;

(C) Review with the sex offender the requirement that if the sex offender changes address to another state, the sex offender shall register the new address with the local law enforcement agency having jurisdiction in person and with a designated law enforcement agency in the new state in person not later than five (5) calendar days after the sex offender establishes residency or is temporarily domiciled in the new state if the new state has a registration requirement;

(D) Require the sex offender to read and sign a form stating that the duty of the sex offender to register under this subchapter has been reviewed;

(E) Inform the sex offender that if the sex offender's address changes within the state or to another state due to an eviction, natural disaster, or any other unforeseen circumstance, the sex offender shall give the new address to the local law enforcement agency having jurisdiction in person no later than five (5) calendar days after the sex offender establishes residency;

(F) Review with the sex offender the consequences of failure to provide any information required by subdivision (b)(2) of this section;

(G) Inform a sex offender subject to lifetime registration under § 12-12-919 of the duty to:

(i) Verify registration and report the information required for registration verification as described in subsections (g) and (h) of this section; and

(ii) Ensure that the information required for registration verification under subsections (g) and (h) of this section is provided in person to the local law enforcement agency having jurisdiction; and

(H) Review with a sex offender subject to lifetime registration under § 12-12-919 the consequences of failure to verify registration under § 12-12-904.

(d) When registering or updating the registration file of a sexually dangerous person, in addition to the requirements of subdivision (c)(1) or subdivision (c)(2) of this section, the sentencing court, the Division of Correction, the Division of Community Correction, the Arkansas State Hospital, the Department of Human Services, or the local law enforcement agency having jurisdiction shall obtain documentation of any treatment received for the mental abnormality or personality disorder of the sexually dangerous person.

(e) Any sex offender working, enrolled, or volunteering in a public or private elementary, secondary or postsecondary school, or institution of training shall notify the local law enforcement agency having jurisdiction in person of that status and shall register in person with the local law enforcement agency having jurisdiction over that campus.

(f)(1) A sex offender required to register under this subchapter shall not change his or her name unless the change is:

(A) Incident to a change in the marital status of the sex offender; or

(B) Necessary to effect the exercise of the religion of the sex offender.

(2) The change in the sex offender's name shall be reported to the local law enforcement agency having jurisdiction in person within five (5) calendar days after the change in name.

(3) A violation of this subsection is a Class C felony.

(g)(1) Except as provided in subsection (h) of this section, a sex offender subject to lifetime registration under § 12-12-919 shall report in person every six (6) months after registration to the local law enforcement agency having jurisdiction to verify registration.

(2)(A) The local law enforcement agency having jurisdiction may determine the appropriate times and days for in-person reporting by the sex offender, and the determination shall be consistent with the reporting requirements of subdivision (g) (1) of this section.

(B)(i) If the day a sex offender is scheduled to report under this section passes before the day a local law enforcement agency having jurisdiction has determined as appropriate, the sex offender shall not be considered out of compliance if he or she reports at the next date set by the local law enforcement agency having jurisdiction.

(ii) If a local law enforcement agency having jurisdiction sets specific times and days for reporting then the local law enforcement agency having jurisdiction shall have the appropriate staff available at those times and days for a sex offender to report under this section.

(3) Registration verification shall include reporting in person any change to the following information concerning the sex offender:

(A) Name;

(B) Social Security number;

(C) Age;

(D) Race;

(E) Gender;

(F) Date of birth;

(G) Height;

(H) Weight;

(I) Hair and eye color;

(J)(i) Address of any permanent residence and address of any current temporary residence within this state or out of this state, including a rural route address and a post office box.

(ii) A post office box shall not be provided in lieu of a physical residential address;

(K) Date and place of any employment or volunteer work;

(L) Vehicle make, model, color, and license tag number that the sex offender owns, operates, or to which he or she has access;

(M)(i) Fingerprints.

(ii) If the local law enforcement agency having jurisdiction cannot confirm that the sex offender's fingerprints are contained in the automated fingerprint identification system, the local law enforcement agency having jurisdiction shall:

(a) Take the sex offender's fingerprints in person at an office of the local law enforcement agency having jurisdiction;
and

(b) Submit the fingerprints to the center and to the Division of Arkansas State Police.

(iii) If the local law enforcement agency having jurisdiction cannot confirm that the sex offender's palm prints are contained in the automated palm print identification system, the local law enforcement agency having jurisdiction shall:

(a) Take the sex offender's palm prints in person at an office of the local law enforcement agency having jurisdiction;
and

(b) Submit the palm prints to the center and to the Division of Arkansas State Police;

(N)(i) Photograph.

(ii) The local law enforcement agency having jurisdiction shall take a photograph of the sex offender at each registration verification in person at an office of the local law enforcement agency having jurisdiction and submit the photograph to the center;

(O) All computers or other devices with internet capability to which the sex offender has access;

(P) All email addresses used by the sex offender;

(Q)(i) Passport.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any passport issued to the person by any country in the sex offender's name in person at an office of the local law enforcement agency having jurisdiction at each registration verification and submit the copy of any passport to the center;

(R)(i) Immigration documentation.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any immigration documents issued to the sex offender by any country in person at an office of the local law enforcement agency having jurisdiction at each registration verification and submit a copy of the documents to the center;

(S)(i) Professional licenses and permits.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any federal, state, or local professional license or permit issued to the sex offender in person at an office of the local law enforcement agency having jurisdiction at each registration verification and submit a copy of the documents to the center; and

(T) All social media account information.

(4) If the sex offender is enrolled or employed at an institution of higher education in this state, the sex offender shall also report in person to the local law enforcement agency having jurisdiction:

(A) The name and address of each institution of higher education where he or she is enrolled or employed, including each campus attended;

(B) The county where each campus is located; and

(C) His or her enrollment or employment status.

(5) If the place of residence of the sex offender is a motor vehicle, trailer, mobile home, modular home, or manufactured home, the sex offender shall report in person the following information concerning the motor vehicle, trailer, mobile home, modular home, or manufactured home:

(A) Vehicle identification number;

(B) License tag number;

(C) Registration number; and

(D) A description, including color scheme.

(6) If the place of residence of the sex offender is a vessel, live-aboard vessel, or houseboat, the sex offender shall report in person the following information concerning the vessel, live-aboard vessel, or houseboat:

(A) Hull identification number;

(B) Manufacturer's serial number;

(C) Name;

(D) Registration number; and

(E) A description, including color scheme.

(7) If a person who is required to register as a sex offender owns an aircraft, the person shall provide in person the following information concerning the aircraft:

(A) The aircraft registration number;

(B) The manufacturer and model of the aircraft; and

(C) A description of the color scheme of the aircraft.

(h)(1) A sexually dangerous person subject to lifetime registration under § 12-12-919 shall report in person every ninety (90) days after registration to the local law enforcement agency having jurisdiction to verify registration.

(2)(A) The local law enforcement agency having jurisdiction may determine the appropriate times and days for in-person reporting by the sexually dangerous person, and the determination shall be consistent with the reporting requirements of subdivision (h)(1) of this section.

(B)(i) If the day a sex offender is scheduled to report under this section passes before the day a local law enforcement agency having jurisdiction has determined as appropriate, the sex offender shall not be considered out of compliance if he or she reports at the next date set by the local law enforcement agency having jurisdiction.

(ii) If a local law enforcement agency having jurisdiction sets specific times and days for reporting then the local law enforcement agency having jurisdiction shall have the appropriate staff available at those times and days for a sex offender to report under this section.

(3) Registration verification shall include reporting in person any change to the following information concerning the sexually dangerous person:

(A) Name;

(B) Social Security number;

(C) Age;

(D) Race;

(E) Gender;

(F) Date of birth;

(G) Height;

(H) Weight;

(I) Hair and eye color;

(J)(i) Address of any permanent residence and address of any current temporary residence within this state or out of this state, including a rural route address and a post office box.

(ii) A post office box shall not be provided in lieu of a physical residential address;

(K) Date and place of any employment or volunteer work;

(L) Vehicle make, model, color, and license tag number that the sexually dangerous person owns, operates, or to which he or she has access;

(M)(i) Fingerprints.

(ii) If the local law enforcement agency having jurisdiction cannot confirm that the sexually dangerous person's fingerprints are contained in the automated fingerprint identification system, the local law enforcement agency having jurisdiction shall:

(a) Take the sexually dangerous person's fingerprints in person at an office of the law enforcement agency having jurisdiction; and

(b) Submit the fingerprints to the center and to the Division of Arkansas State Police.

(iii) If the local law enforcement agency having jurisdiction cannot confirm that the sexually dangerous person's palm prints are contained in the automated palm print identification system, the local law enforcement agency having jurisdiction shall:

(a) Take the sexually dangerous person's palm prints in person at an office of the law enforcement agency having jurisdiction; and

(b) Submit the palm prints to the center and to the Division of Arkansas State Police;

(N)(i) Photograph.

(ii) The local law enforcement agency having jurisdiction shall take a photograph of the sexually dangerous person at each registration verification in person at an office of the law enforcement agency having jurisdiction and submit the photograph to the center;

(O) All computers or other devices with internet capability to which the sex offender has access;

(P) All email addresses used by the sex offender;

(Q)(i) Passport.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any passport issued to the sexually dangerous person by any country in the sexually dangerous person's name in person at an office of the law enforcement agency having jurisdiction at each registration verification and submit the copy of any passport to the center;

(R)(i) Immigration documentation.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any immigration documents issued to the sexually dangerous person by any country in person at an office of the law enforcement agency having jurisdiction at each registration verification and submit a copy of the documents to the center;

(S)(i) Professional licenses and permits.

(ii) The local law enforcement agency having jurisdiction shall obtain a copy of any federal, state, or local professional license or permit issued to the sexually dangerous person in person at an office of the law enforcement agency having jurisdiction at each registration verification and submit a copy of the documents to the center; and

(T) All social media account information.

(4) If the sexually dangerous person is enrolled or employed at an institution of higher education in this state, the sexually dangerous person shall also report in person to the local law enforcement agency having jurisdiction:

(A) The name and address of each institution of higher education where he or she is enrolled or employed, including each campus attended;

(B) The county where each campus is located; and

(C) His or her enrollment or employment status.

(5) If the place of residence of the sexually dangerous person is a motor vehicle, trailer, mobile home, modular home, or manufactured home, the sexually dangerous person shall report in person the following information concerning the motor vehicle, trailer, mobile home, modular home, or manufactured home:

(A) Vehicle identification number;

(B) License tag number;

(C) Registration number; and

(D) A description, including color scheme.

(6) If the place of residence of the sexually dangerous person is a vessel, live-aboard vessel, or houseboat, the sexually dangerous person shall report in person the following information concerning the vessel, live-aboard vessel, or houseboat:

(A) Hull identification number;

(B) Manufacturer's serial number;

(C) Name;

(D) Registration number; and

(E) A description, including color scheme.

(7) If a sexually dangerous person who is required to register as a sexually dangerous person owns an aircraft, the sexually dangerous person shall report in person the following information concerning the aircraft:

(A) The aircraft registration number;

(B) The manufacturer and model of the aircraft; and

(C) A description of the color scheme of the aircraft.

(i) After verifying the registration of a sex offender under subsection (g) of this section or a sexually dangerous person under subsection (h) of this section, the local law enforcement agency having jurisdiction shall file the verification with the center in accordance with § 12-12-909.

Credits

Acts of 1997, Act 989, § 5; Acts of 1999, Act 353, § 4, eff. Sept. 1, 1999; Acts of 2001, Act 202, §§ 1 to 3, eff. Aug. 13, 2001; Acts of 2001, Act 1089, § 1, eff. Aug. 13, 2001; Acts of 2001, Act 1743, § 5, eff. Aug. 13, 2001; Acts of 2003, Act 1185, § 1185, eff. July 16, 2003; Acts of 2003, Act 1265, § 4, eff. July 16, 2003; Acts of 2003 (2nd Ex. Sess.), Act 21, § 4, eff. June 3, 2004; Acts of 2005, Act 1962, § 34, eff. Aug. 12, 2005; Acts of 2006 (1st Ex. Sess.), Act 4, § 3, eff. April 7, 2006; Acts of 2007, Act 394, § 5, eff. March 21, 2007; Acts of 2011, Act 143, §§ 1, 2, eff. July 27, 2011; Acts of 2011, Act 1009, § 1, eff. July 27, 2011; Acts of 2013, Act 172, § 3, eff. Aug. 16, 2013; Acts of 2013, Act 505, §§ 3 to 7, eff. Aug. 16, 2013; Acts of 2013, Act 508, §§ 2 to 8, eff. Aug. 16, 2013; Acts of 2013, Act 1129, §§ 2, 3, eff. Aug. 16, 2013; Acts of 2015, Act 358, §§ 2 to 7, eff. July 22, 2015; Acts of 2017, Act 916, § 3, eff. Aug. 1, 2017; Acts of 2019, Act 910, §§ 703 to 711, eff. July 1, 2019; Acts of 2019, Act 262, §§ 1 to 3, eff. July 24, 2019; Acts of 2019, Act 587, § 1, eff. July 24, 2019; Acts of 2021, Act 57, § 1, eff. July 28, 2021; Acts of 2023, Act 659, § 60, eff. Jan. 1, 2024.

Formerly Acts of 1987, Act 587, § 7; Acts of 1997, Act 989, § 23.

Footnotes

1 34 U.S.C.A. § 20901 et seq.

A.C.A. § 12-12-906, AR ST § 12-12-906

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-907

§ 12-12-907. Report to Arkansas Crime Information Center--Report to law enforcement agency

Effective: July 24, 2019

Currentness

(a)(1) Within three (3) days after registering or updating the registration file of a sex offender, the Division of Correction, the Division of Community Correction, the Department of Human Services, the sentencing court, or the local law enforcement agency having jurisdiction shall report, by electronic means, all information obtained from the sex offender and regarding the sex offender to the Arkansas Crime Information Center.

(2) The center shall immediately enter the information into its record system for maintenance in a central registry and notify the local law enforcement agency having jurisdiction.

(3) The center will share information with the National Sex Offender Public Website.

(b)(1)(A) No later than five (5) calendar days after release from incarceration or after the date of sentencing, a sex offender shall report in person to the local law enforcement agency having jurisdiction and update the information in the registration file.

(B) If the sex offender is not already registered, the local law enforcement agency having jurisdiction shall register the sex offender in accordance with this subchapter.

(2) Within three (3) days after registering a sex offender or receiving updated registry information on a sex offender, the local law enforcement agency having jurisdiction shall report, by electronic means, all information obtained from the sex offender to the center.

(3) The local law enforcement agency having jurisdiction shall verify the address of a sexually dangerous person on a quarterly basis and the address of all other sex offenders on a semiannual basis.

(4) The center shall have access to the offender tracking systems of the Division of Correction and the Division of Community Correction to confirm the location of registrants.

Credits

Acts of 1997, Act 989, § 6; Acts of 1999, Act 1353, § 5, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 6, eff. Aug. 13, 2001; Acts of 2013, Act 505, § 8, eff. Aug. 16, 2013; Acts of 2013, Act 508, § 9, eff. Aug. 16, 2013; Acts of 2015, Act 358, § 8, eff. July 22, 2015; Acts of 2017, Act 916, § 4, eff. Aug. 1, 2017; Acts of 2019, Act 910, §§ 712, 713, eff. July 1, 2019; Acts of 2019, Act 262, §§ 4 to 6, eff. July 24, 2019.

Formerly Acts of 1987, Act 587, § 8; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-907, AR ST § 12-12-907

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Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-908

§ 12-12-908. Registration format--Requirements

Effective: July 1, 2019

Currentness

(a) The Director of the Arkansas Crime Information Center shall prepare the format for registration as required in subsection (b) of this section and shall provide instructions for registration to each organized full-time municipal police department, county sheriff's office, the Division of Correction, the Division of Community Correction, the Department of Human Services, and the Administrative Office of the Courts.

(b) The registration file required by this subchapter shall include:

(1) The sex offender's full name and all aliases that the sex offender has used or under which the sex offender has been known;

(2) Date of birth;

(3) Sex;

(4) Race;

(5) Height;

(6) Weight;

(7) Hair and eye color;

(8) Address of any temporary residence;

(9) Anticipated address of legal residence;

(10) Driver's license number or state identification number, if available;

- (11) Social Security number;
- (12) Place of employment, education, or training;
- (13) Photograph, if not already obtained;
- (14) Fingerprints, if not already obtained;
- (15) Date of arrest, arresting agency, offense for which convicted or acquitted, and arrest tracking number for each adjudication of guilt or acquittal on the grounds of mental disease or defect;
- (16) A brief description of the crime or crimes for which registration is required;
- (17) The registration status of the sex offender as a sexually dangerous person, aggravated sex offender, or sex offender;
- (18) A statement in writing signed by the sex offender acknowledging that the sex offender has been advised of the duty to register imposed by this subchapter;
- (19) All computers or other devices with internet capability to which the sex offender has access;
- (20) All email addresses used by the sex offender;
- (21) Any other information that the center deems necessary, including without limitation:
 - (A) Criminal and corrections records;
 - (B) Nonprivileged personnel records;
 - (C) Treatment and abuse registry records; and
 - (D) Evidentiary genetic markers; and
- (22) All social media account information.

(c) Certain information such as Social Security number, driver's license number, employer, email addresses, user names, screen names, or instant message names, information that may lead to identification of the victim, and other similar information may be excluded from the information that is released during the course of notification.

Credits

Acts of 1997, Act 989, § 7; Acts of 1999, Act 1353, § 6, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 7, eff. Aug. 13, 2001; Acts of 2011, Act 143, § 1, eff. July 27, 2011; Acts of 2013, Act 505, § 9, eff. Aug. 16, 2013; Acts of 2017, Act 916, § 5, eff. Aug. 1, 2017; Acts of 2019, Act 910, § 714, eff. July 1, 2019.

Formerly Acts of 1987, Act 587, § 7; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-908, AR ST § 12-12-908

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Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-909

§ 12-12-909. Verification form--Change of address

Effective: January 1, 2024

Currentness

(a)(1) A sex offender required to register under this subchapter shall verify registration in person every six (6) months after the sex offender's initial registration date during the period of time in which the sex offender is required to register.

(2)(A)(i) The verification shall be done in person at a local law enforcement agency having jurisdiction at which time the sex offender shall sign and date a Sex Offender Acknowledgment Form and a law enforcement officer shall also witness and sign the Sex Offender Acknowledgment Form.

(ii) The Sex Offender Acknowledgment Form shall state the date of verification as well as a date that the sex offender is required to return in person to a specific local law enforcement agency having jurisdiction to verify his or her address.

(B) The Sex Offender Acknowledgment Form shall be uniform and created by the Arkansas Crime Information Center.

(C) The local law enforcement agency having jurisdiction shall file the verification of registration electronically with the center through a system provided by the center.

(3) If the sex offender changes his or her address without notice, notification shall be sent to law enforcement and supervising parole, post-release supervision, or probation authorities, and notice may be posted on the internet until proper reporting is again established or the sex offender is incarcerated.

(4) Subdivision (a)(1) of this section applies to a sex offender required to register as a sexually dangerous person, except that the sexually dangerous person shall verify the registration in person every ninety (90) days after the date of the initial release or commencement of parole or post-release supervision.

(5) Subdivision (a)(1) of this section applies to a sex offender required to register under this subchapter who claims to be homeless except that a sex offender claiming to be homeless shall verify the registration in person every thirty (30) days during the period of time in which the sex offender is required to register under this subchapter and claims to be homeless.

(b)(1)(A) Before a change of address within the state, a sex offender shall report the change of address to the local law enforcement agency having jurisdiction in person no later than five (5) calendar days before the sex offender establishes residency or is temporarily domiciled at the new address.

(B) The sex offender shall report to the local law enforcement agency having jurisdiction of the new address in person within five (5) calendar days after relocating to the new address.

(C) Upon receipt of a report of a change of address as described in subdivision (b)(1)(A) of this section, the local law enforcement agency having jurisdiction shall report the change of address to the center.

(D) Other than a change of address as provided in subdivision (b)(1)(A) of this section, a sex offender shall report a change of any other information required to be reported at registration under § 12-12-908 or required to be reported at the time of verification under § 12-12-906 to the local law enforcement agency having jurisdiction in person within five (5) calendar days of the change.

(2) When a change of address within the state is reported to the center, the center shall immediately report the change of address to the local law enforcement agency having jurisdiction where the sex offender expects to reside.

(c)(1) Before a change of address to another state, a sex offender shall register the new address with the local law enforcement agency having jurisdiction in person and with a designated law enforcement agency in the state to which the sex offender moves in person not later than five (5) calendar days before the sex offender establishes residency or is temporarily domiciled in the new state if the new state has a registration requirement.

(2) When a change of address to another state is reported to the center, the center shall immediately notify the law enforcement agency with which the sex offender must register in the new state if the new state has a registration requirement.

(d) The center shall require a sex offender to report any change of information through the local law enforcement agency having jurisdiction.

Credits

Acts of 1997, Act 989, § 8; Acts of 2001, Act 1743, § 8, eff. Aug. 13, 2001; Acts of 2007, Act 394, § 6, eff. March 21, 2007; Acts of 2011, Act 64, § 1, eff. July 27, 2011; Acts of 2013, Act 505, § 10, eff. Aug. 16, 2013; Acts of 2015, Act 358, § 9, eff. July 22, 2015; Acts of 2017, Act 916, § 6, eff. Aug. 1, 2017; Acts of 2019, Act 262, §§ 7 to 10, eff. July 24, 2019; Acts of 2023, Act 659, § 61, eff. Jan. 1, 2024.

Formerly Acts of 1987, Act 587, § 9; Acts of 1997, Act 989, § 23.

A.C.A. § 12-12-909, AR ST § 12-12-909

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-910

§ 12-12-910. Fine

Effective: August 5, 2025

Currentness

(a) The sentencing court shall assess at the time of sentencing a mandatory fine of two hundred fifty dollars (\$250) on any person who is required to register under this subchapter.

(b)(1) A person who relocates to this state and was convicted of an offense in another state that requires registration in this state shall pay a fee of two hundred fifty dollars (\$250) within ninety (90) days from the date of registration.

(2)(A) A person who fails to pay the fee required under subdivision (b)(1) of this section upon conviction is guilty of a Class A misdemeanor.

(B) The person required to register has an affirmative defense to failure to pay a fee if he or she shows that his or her failure to pay the fee was not attributable to a:

(i) Purposeful refusal to obey the sentence of the court; or

(ii) Failure on the defendant's part to make a good faith effort to obtain the funds required for payment.

(c)(1) The fine provided in subsection (a) of this section and collected in circuit court, district court, or city court shall be remitted by the tenth day of each month to the Administration of Justice Funds Section of the Office of Administrative Services of the Department of Finance and Administration on a form provided by that office for deposit into the Sex Offenders Registration Fund as established by § 12-12-911.

(2) The fee provided in subsection (b) of this section shall be collected by the law enforcement agency having jurisdiction over the person's sex offender verification and shall be remitted by the tenth day of each month to the Administration of Justice Funds Section of the Office of Administrative Services of the Department of Finance and Administration on a form provided by that office for deposit into the Sex Offenders Registration Fund as established by § 12-12-911.

Credits

Acts of 1997, Act 989, § 9; Acts of 2003, Act 1765, § 4, eff. July 16, 2003; Acts of 2011, Act 812, § 1, eff. July 27, 2011; Acts of 2013, Act 42, § 1, eff. Aug. 16, 2013; Acts of 2025, Act 419, § 108, eff. Aug. 5, 2025.

A.C.A. § 12-12-910, AR ST § 12-12-910

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-911

§ 12-12-911. Sex and Child Offenders Registration Fund

Effective: August 5, 2025

Currentness

(a) There is established on the books of the Treasurer of State, the Auditor of State, and the Chief Fiscal Officer of the State a fund to be known as the “Sex Offenders Registration Fund”.

(b)(1) This fund shall consist of special revenues collected pursuant to § 12-12-910, there to be used equally by the Arkansas Crime Information Center and the Department of Corrections for the administration of this subchapter.

(2) Any unexpended balance of this fund shall be carried forward and made available for the same purpose.

Credits

Acts of 1997, Act 989, § 10; Acts of 1999, Act 1353, § 7, eff. Sept. 1, 1999; Acts of 2003 (2nd Ex. Sess.), Act 21, § 5, eff. June 3, 2004; Acts of 2019, Act 910, § 715, eff. July 1, 2019; Acts of 2025, Act 723, § 4, eff. April 17, 2025; Acts of 2025, Act 419, § 109, eff. Aug. 5, 2025.

A.C.A. § 12-12-911, AR ST § 12-12-911

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-912

§ 12-12-912. Arrests for violations

Effective: August 1, 2017

Currentness

(a) In order for a sex offender to be charged with the commission of a violation of this subchapter so that an arrest warrant may be issued, the local law enforcement agency having jurisdiction shall notify the prosecutor when the local law enforcement agency having jurisdiction has reasonable grounds for believing that a sex offender is not registered, has not reported a change of address or change of any other information required to be provided by the sex offender, or has not verified the sex offender's address in violation of this subchapter.

(b) The address of a sex offender as listed in the sex offender's registration file shall determine which local law enforcement agency has jurisdiction.

(c) A law enforcement officer shall arrest a sex offender when a warrant has been issued for the sex offender's arrest, the law enforcement officer has probable cause to believe that a sex offender has committed an offense under this subchapter, or the law enforcement officer has reasonable grounds for believing that a sex offender is not registered or has not reported a change of address or change of any other information required to be provided by the sex offender in violation of this subchapter.

Credits

Acts of 1997, Act 989, § 12; Acts of 2001, Act 1743, § 9, eff. Aug. 13, 2001; Acts of 2015, Act 358, § 10, eff. July 22, 2015; Acts of 2017, Act 916, § 7, eff. Aug. 1, 2017.

A.C.A. § 12-12-912, AR ST § 12-12-912

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-913

§ 12-12-913. Disclosure

Effective: August 5, 2025

Currentness

(a)(1) Registration records maintained pursuant to this subchapter shall be open to any criminal justice agency in this state, the United States, or any other state.

(2) Registration records may also be open to government agencies authorized by law to conduct confidential background checks.

(3) Registration records shall be open to the Division of Medical Services of the Department of Human Services for Medicaid provider applicants under § 12-12-927.

(4) Registration records shall be open to the Office of Driver Services of the Department of Finance and Administration for the issuance of a driver's license or identification card to a registered sex offender under § 27-16-819.

(b) In accordance with guidelines promulgated by the Sex Offender Assessment Committee, local law enforcement agencies having jurisdiction shall disclose relevant and necessary information regarding sex offenders to the public when the disclosure of such information is necessary for public protection.

(c)(1)(A) The Sex Offender Assessment Committee shall promulgate guidelines and procedures for the disclosure of relevant and necessary information regarding sex offenders to the public when the release of the information is necessary for public protection.

(B) In developing the guidelines and procedures, the Sex Offender Assessment Committee shall consult with persons who, by experience or training, have a personal interest or professional expertise in law enforcement, crime prevention, victim advocacy, criminology, psychology, parole, post-release supervision, public education, and community relations.

(2)(A) The guidelines and procedures shall identify factors relevant to a sex offender's future dangerousness and likelihood of reoffense or threat to the community.

(B) The guidelines and procedures shall also address the extent of the information to be disclosed and the scope of the community to whom disclosure shall be made as these factors relate to the:

(i) Level of the sex offender's dangerousness;

(ii) Sex offender's pattern of offending behavior; and

(iii) Need of community members for information to enhance their individual and collective safety.

(3) The Sex Offender Assessment Committee shall submit the proposed guidelines and procedures to the House Committee on Public Health, Welfare, and Labor and the Senate Committee on Public Health, Welfare, and Labor for their review.

(d)(1) A local law enforcement agency having jurisdiction that decides to disclose information pursuant to this section shall make a good faith effort to notify the public and residents at least fourteen (14) days before a sex offender is released or placed into the community.

(2) If a change occurs in a sex offender's release plan, this notification provision shall not require an extension of the release date.

(3) In conjunction with the notice provided under § 12-12-914, the Department of Corrections and the Department of Human Services shall make available to a local law enforcement agency having jurisdiction all information that the Department of Corrections and the Department of Human Services have concerning the sex offender, including information on risk factors in the sex offender's history.

(e)(1) A local law enforcement agency having jurisdiction that decides to disclose information under this section shall make a good faith effort to conceal the identity of the victim or victims of the sex offender's offense.

(2) Except as provided in subsection (j) of this section, information under this section is not subject to disclosure under the Freedom of Information Act of 1967, § 25-19-101 et seq.

(f) A local law enforcement agency having jurisdiction may continue to disclose information on a sex offender under this section for as long as the sex offender is required to be registered under this subchapter.

(g)(1) The State Board of Education and the Career Education and Workforce Development Board shall promulgate guidelines for the disclosure to students and parents of information regarding a sex offender when such information is released to a local school district or institution of vocational training by a local law enforcement agency having jurisdiction.

(2) The Arkansas Higher Education Coordinating Board shall promulgate guidelines for the disclosure to students of information regarding a sex offender when information regarding a sex offender is released to an institution of higher education by a local law enforcement agency having jurisdiction.

- (3) In accordance with guidelines promulgated by the State Board of Education, the board of directors of a local school district or institution of vocational training shall adopt a written policy regarding the distribution to students and parents of information regarding a sex offender.
- (4) In accordance with guidelines promulgated by the Arkansas Higher Education Coordinating Board, the board of directors of an institution of higher education shall adopt a written policy regarding the distribution to students of information regarding a sex offender.
- (h) Nothing in this section shall prevent a law enforcement officer from notifying members of the public about a person who may pose a danger to the public for a reason that is not enumerated in this subchapter.
- (i) The medical records or treatment evaluations of a sex offender or sexually dangerous person are not subject to disclosure under the Freedom of Information Act of 1967, § 25-19-101 et seq.
- (j)(1)(A) The following information concerning a sex offender registered under this subchapter who is classified as a Level 3 or Level 4 offender by the Community Notification Assessment shall be made public:
- (i) The sex offender's complete name, as well as any alias;
 - (ii) The sex offender's date of birth;
 - (iii) Any sex offense to which the sex offender has pleaded guilty or nolo contendere or of which the sex offender has been found guilty by a court of competent jurisdiction;
 - (iv) The physical address of the sex offender, including without limitation the street name, house number, apartment or unit number, county, city, and zip code where the sex offender resides;
 - (v) The sex offender's race and gender;
 - (vi) The date of the last address verification of the sex offender provided to the Arkansas Crime Information Center;
 - (vii) The most recent photograph of the sex offender that has been submitted to the center;
 - (viii) The sex offender's parole, post-release supervision, or probation office;
 - (ix) The street name, block number, county, city, and zip code where the sex offender is employed;

(x) Any institution of higher education in which the sex offender is enrolled;

(xi) The vehicle identification number and license plate number of any vehicle the sex offender owns or operates; and

(xii) A physical description of the sex offender.

(B) If a sex offender registered under this subchapter was eighteen (18) years of age or older at the time of the commission of the sex offense that required registration under this subchapter and the victim of the sex offense was fourteen (14) years of age or younger and the sex offender is classified as a Level 2 offender by the Community Notification Assessment, the following information concerning the registered sex offender shall be made public:

(i) The sex offender's complete name, as well as any alias;

(ii) The sex offender's date of birth;

(iii) Any sex offense to which the sex offender has pleaded guilty or nolo contendere or of which the sex offender has been found guilty by a court of competent jurisdiction;

(iv) The physical address of the sex offender, including without limitation the street name, house number, apartment or unit number, county, city, and zip code where the sex offender resides;

(v) The sex offender's race and gender;

(vi) The date of the last address verification of the sex offender provided to the center;

(vii) The most recent photograph of the sex offender that has been submitted to the center;

(viii) The sex offender's parole, post-release supervision, or probation office;

(ix) The street name, block number, county, city, and zip code where the sex offender is employed;

(x) Any institution of higher education in which the sex offender is enrolled;

(xi) The vehicle identification number and license plate number of any vehicle the sex offender owns or operates; and

(xii) A physical description of the sex offender.

(C) The center shall prepare and place the information described in subdivisions (j)(1)(A) and (B) of this section on the internet home page of the State of Arkansas.

(2) The center may promulgate any rules necessary to implement and administer this subsection.

(k) This subchapter shall not be interpreted to prohibit the posting on the internet or by other appropriate means of offender fact sheets or the physical description of the sex offender for those sex offenders who are determined to be:

(1) High-risk or sexually dangerous persons, risk Level 3 and Level 4; or

(2) In noncompliance with the requirements of registration under rules promulgated by the Sex Offender Assessment Committee.

Credits

Acts of 1997, Act 989, § 13; Acts of 1999, Act 1353, § 8, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 10, eff. Aug. 13, 2001; Acts of 2003, Act 330, §§ 1, 2, eff. July 16, 2003; Acts of 2003 (2nd Ex. Sess.), Act 21, § 6, eff. June 3, 2004; Acts of 2005, Act 1962, § 35, eff. Aug. 12, 2005; Acts of 2007, Act 147, § 1, eff. July 31, 2007; Acts of 2007, Act 394, § 7, eff. March 21, 2007; Acts of 2009, Act 165, § 7, eff. July 31, 2009; Acts of 2013, Act 505, §§ 11 to 14, eff. Aug. 16, 2013; Acts of 2013, Act 508, §§ 10, 11, eff. Aug. 16, 2013;; Acts of 2013, Act 1504, § 1, eff. Aug. 16, 2013; Acts of 2017, Act 916, §§ 8, 9, eff. Aug. 1, 2017; Acts of 2019, Act 910, § 716, eff. July 1, 2019; Acts of 2019, Act 315, § 864, eff. July 24, 2019; Acts of 2023, Act 37, § 1, eff. Feb. 9, 2023; Acts of 2023, Act 659, §§ 62, 63, eff. Jan. 1, 2024; Acts of 2025, Act 723, § 5, eff. April 17, 2025; Acts of 2025, Act 172, § 1, eff. Aug. 5, 2025; Acts of 2025, Act 984, § 1, eff. Aug. 5, 2025.

A.C.A. § 12-12-913, AR ST § 12-12-913

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West's Arkansas Code Annotated

Title 12. Law Enforcement, Emergency Management, and Military Affairs

Subtitle 2. Law Enforcement Agencies and Programs (Chapters 6 to 24)

Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-914

§ 12-12-914. Notice of release

Effective: July 1, 2019

Currentness

(a)(1) The Division of Correction shall provide notice by written or electronic means to the Arkansas Crime Information Center of the anticipated release from incarceration in a county or state penal institution of a person serving a sentence for a sex offense.

(2) The Department of Human Services shall provide notice by written or electronic means to the center of the anticipated release from incarceration of a person committed following an acquittal on the grounds of mental disease or defect for a sex offense.

(b)(1)(A) If available, the notice required in subsection (a) of this section shall be provided to the center ninety (90) days before the offender's anticipated release.

(B) However, a good faith effort shall be made to provide the notice at least thirty (30) days before release.

(2) The notice shall include the person's name, identifying factors, offense history, and anticipated future residence.

(c) Upon receipt of notice, the center shall provide notice by written or electronic means to:

(1) The local law enforcement agency having jurisdiction; and

(2) Other state and local law enforcement agencies as appropriate for public safety.

(d)(1) Where possible, victim notification pursuant to this subchapter shall be accomplished by means of the computerized victim notification system established under § 12-12-1201 et seq.

(2) If notification cannot be made throughout the system established under § 12-12-1201 et seq., the Division of Correction shall provide the notification to the victim.

Credits

Acts of 1997, Act 989, § 14; Acts of 1999, Act 1353, § 9, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 11, eff. Aug. 13, 2001; Acts of 2019, Act 910, §§ 717, 718, eff. July 1, 2019.

A.C.A. § 12-12-914, AR ST § 12-12-914

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-915

§ 12-12-915. Authority--Rules

Effective: July 1, 2019

Currentness

(a) The Division of Correction, the Division of Community Correction, the Department of Human Services, the Administrative Office of the Courts, and the Arkansas Crime Information Center shall promulgate rules to establish procedures for:

(1) Notifying the sex offender of the obligation to register pursuant to this subchapter; and

(2) Registering the sex offender.

(b)(1) The Division of Community Correction shall monitor an adult sex offender under its supervisory authority who is subject to electronic monitoring under § 12-12-923.

(2) The Department of Human Services shall monitor an adult or juvenile sex offender under its supervisory authority who is subject to electronic monitoring under § 12-12-923.

(c)(1) The Division of Community Correction shall promulgate rules to establish procedures for monitoring an adult sex offender under its supervisory authority who is subject to electronic monitoring under § 12-12-923.

(2) The Department of Human Services shall promulgate rules to establish procedures for monitoring an adult or juvenile sex offender under its supervisory authority who is subject to electronic monitoring under § 12-12-923.

Credits

Acts of 1997, Act 989, § 15; Acts of 2003 (2nd Ex. Sess.), Act 21, § 7, eff. June 3, 2004; Acts of 2006 (1st Ex. Sess.), Act 4, § 4, eff. April 7, 2006; Acts of 2007, Act 394, § 8, eff. March 21, 2007; Acts of 2019, Act 910, § 719, eff. July 1, 2019.

A.C.A. § 12-12-915, AR ST § 12-12-915

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-916

§ 12-12-916. Notice of obligation to register

Currentness

The Office of Driver Services of the Department of Finance and Administration shall provide notice of the obligation to register pursuant to this subchapter in connection with each driver's license issued pursuant to § 27-16-801 and each identification card issued pursuant to § 27-16-805.

Credits

Acts of 1997, Act 989, § 16.

A.C.A. § 12-12-916, AR ST § 12-12-916

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-917

§ 12-12-917. Evaluation protocol--Sexually dangerous persons--Juveniles adjudicated delinquent--Examiners

Effective: August 5, 2025

Currentness

(a)(1) The Sex Offender Assessment Committee shall develop an evaluation protocol for preparing reports to assist courts in making determinations whether or not a person adjudicated guilty of a sex offense should be considered a sexually dangerous person for purposes of this subchapter.

(2) The committee shall also establish qualifications for examiners and qualify examiners to prepare reports in accordance with the evaluation protocol.

(b)(1) The committee shall cause an assessment to be conducted on a case-by-case basis of the public risk posed by a sex offender or sexually dangerous person:

(A) Who is required to register under § 12-12-905 after August 1, 1997; and

(B) For whom the Arkansas Crime Information Center has no record of an assessment's being done and a risk level established subsequent to August 1, 1997.

(2)(A)(i) An adult offender convicted of an offense described in 42 U.S.C. § 14071 et seq., as it existed on March 1, 2003,¹ Pub. L. No. 109-248, as it existed on January 1, 2007,² or § 12-12-903(13) shall be assessed.

(ii)(a) Subject to subdivision (c)(1) of this section, the prosecuting attorney and any law enforcement agency shall furnish the file relating to the offender to Community Notification Assessment at the Division of Correction within thirty (30) days of an offender's adjudication of guilt.

(b)(1) The prosecuting attorney shall make a copy of any relevant records concerning the offender and shall forward the copied relevant records to Community Notification Assessment within thirty (30) days of the adjudication.

(2) The relevant records include, but are not limited to:

- (A) Arrest reports;
- (B) Incident reports;
- (C) Offender statements;
- (D) Sentencing orders;
- (E) Medical records;
- (F) Witness statements; and
- (G) Any record considered relevant by the prosecuting attorney.

(B) A sex offender sentenced to life, life without parole, or death shall be assessed only if the sex offender is being considered for release.

(3) A sex offender currently in the state who has not been assessed and classified shall be identified by the center.

(4)(A) If a sex offender fails to appear for assessment, is aggressive, threatening, or disruptive to the point that Community Notification Assessment staff cannot proceed with the assessment process, or voluntarily terminates the assessment process after having been advised of the potential consequences:

- (i) The sex offender shall be classified as a risk Level 3 or referred to the committee as a risk Level 4; and
- (ii) The community supervision officer, if applicable, shall be notified.

(B) A sex offender has immunity for a statement made by him or her in the course of assessment with respect to prior conduct under the immunity provisions of § 16-43-601 et seq.

(C) Assessment personnel shall report ongoing child maltreatment as required under the Child Maltreatment Act, § 12-18-101 et seq.

(c)(1) To the extent permissible and under the procedures established by state rules and federal regulations, public agencies shall provide the committee access to all relevant records and information in the possession of public agencies or any private entity contracting with a public agency relating to the sex offender or sexually dangerous person under review.

(2) The records and information include, but are not limited to:

(A) Police reports;

(B) Statements of probable cause;

(C) Presentence investigations and reports;

(D) Complete judgments and sentences;

(E) Current classification referrals;

(F) Criminal history summaries;

(G) Violation and disciplinary reports;

(H) All psychological evaluations and psychiatric hospital reports;

(I) Sex offender or sexually dangerous person treatment program reports;

(J) Juvenile court records;

(K) Victim impact statements;

(L) Investigation reports to the Child Abuse Hotline, the Division of Children and Family Services of the Department of Human Services, and any entity contracting with the Department of Human Services for investigation or treatment of sexual or physical abuse or domestic violence; and

(M) Statements of medical providers treating victims of sex offenses indicating the extent of injury to the victim.

(d)(1) Records and information obtained under this section shall not be subject to the Freedom of Information Act of 1967, § 25-19-101 et seq., unless otherwise authorized by law.

(2)(A)(i) The sex offender or sexually dangerous person shall have access to records and information generated and maintained by the committee.

(ii) These records shall include any reports of the assessment and the tape of the interview but do not include restricted source documents of commercial psychological tests or working notes of staff.

(B)(i) Unless otherwise ordered by a court of competent jurisdiction, records and information generated by other agencies and obtained under this section shall not be available to the sex offender or sexually dangerous person except through the agency or individual having primary custody of the records.

(ii) Upon request, the sex offender shall be given a list of the records or information obtained.

(C) If the record or information generated contains the address of a victim or a person who has made a statement adverse to the sex offender or sexually dangerous person, the address shall be redacted and the sex offender or sexually dangerous person shall have access to records and information other than the identity and address.

(e) In classifying the sex offender into a risk level for the purposes of public notification under § 12-12-913, the committee, through its staff, shall review each sex offender or sexually dangerous person under its authority:

(1) Prior to the sex offender's release for confinement in a correctional facility;

(2) Prior to the release of a person who has been committed following an acquittal on the grounds of mental disease or defect;

(3) At the start of a sex offender's suspended imposition of sentence; or

(4) At the start of a sex offender's probation period.

(f)(1)(A) The committee shall issue the offender fact sheet to the local law enforcement agency having jurisdiction.

(B) The offender fact sheet is provided to assist the local law enforcement agency having jurisdiction in its task of community notification.

(2) The committee shall provide the Post-Prison Transfer Board with copies of the offender fact sheet on inmates of the Division of Correction.

(3) The committee shall provide the Division of Community Correction with copies of the offender fact sheet on any sex offender under the Division of Community Correction's supervision.

(4)(A)(i) The offender fact sheet shall be prepared on a standard form for ease of transmission and communication.

(ii) The offender fact sheet shall be on an internet-based application accessible to law enforcement, state boards, and licensing agencies.

(iii) The offender fact sheet of a sexually dangerous person or a sex offender found by the center to be in violation of the registration requirement shall be made available to the general public unless the release of the offender fact sheet, in the opinion of the committee based on a risk assessment, places an innocent individual at risk.

(B) The standard form shall include, but not be limited to:

(i) Registration information as required in § 12-12-908;

(ii) Risk level;

(iii) Date of deoxyribonucleic acid (DNA) sample;

(iv) Psychological factors likely to affect sexual control;

(v) Victim age and gender preference;

(vi) Treatment history and recommendations; and

(vii) Other relevant information deemed necessary by the committee or by professional staff performing sex offender assessments.

(5)(A) The committee shall ensure that the notice is complete in its entirety.

(B) A law enforcement officer shall notify the center if a sex offender has moved or is otherwise in violation of a registration requirement.

(6)(A) All material used in the assessment shall be kept on file in its original form for one (1) year.

(B) After one (1) year the file may be stored electronically.

(g)(1) In cooperation with the committee, the Department of Corrections shall promulgate rules to establish the review process for assessment determinations.

(2)(A) The sex offender or sexually dangerous person may request an administrative review of the assigned risk level under the conditions stated and following the procedures indicated under § 12-12-922.

(B) The sex offender shall be notified of these rights and procedures in the documentation sent with the notification of risk level.

(h)(1)(A) A sex offender or sexually dangerous person may request the committee to reassess the assigned risk level of the sex offender or sexually dangerous person after five (5) years have elapsed since initial risk assessment by the committee and may renew that request one (1) time every five (5) years.

(B) In the request for reassessment, the sex offender or sexually dangerous person shall list the facts and circumstances that demonstrate that the sex offender no longer poses the same degree of risk to the community.

(C) However, an incarcerated person shall not be eligible for reassessment until his or her release from incarceration.

(2)(A) A local law enforcement agency having jurisdiction, the Division of Community Correction, or the Post-Prison Transfer Board may request the committee to reassess a sex offender's assigned risk level at any time.

(B) In the request for reassessment, the local law enforcement agency having jurisdiction, the Division of Community Correction, or the Post-Prison Transfer Board shall list the facts and circumstances that prompted the requested reassessment.

(3) The committee shall also take into consideration any subsequent criminal act by the sex offender or sexually dangerous person during a reassessment.

Credits

Acts of 1997, Act 989, § 17; Acts of 1999, Act 1353, §§ 10, 11, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 12, eff. Aug. 13, 2001; Acts of 2003 (2nd Ex. Sess.), Act 21, § 8, eff. June 3, 2004; Acts of 2005, Act 1962, §§ 36, 37, eff. Aug. 12, 2005; Acts of 2006 (1st Ex. Sess.), Act 4, § 5, eff. April 7, 2006; Acts of 2007, Act 394, § 9, eff. March 21, 2007; Acts of 2009, Act 758, § 25, eff. July 31, 2009; Acts of 2013, Act 505, § 15, eff. Aug. 16, 2013; Acts of 2019, Act 910, §§ 720 to 723, eff. July 1, 2019; Acts of 2019, Act 315, §§ 865, 866, eff. July 24, 2019; Acts of 2023, Act 659, §§ 64 to 68, eff. Jan. 1, 2024; Acts of 2025, Act 723, § 6, eff. April 17, 2025; Acts of 2025, Act 357, § 1, eff. Aug. 5, 2025.

Footnotes

1 Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act (repealed).

2 34 U.S.C.A. § 20901 et seq.

A.C.A. § 12-12-917, AR ST § 12-12-917

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-918

§ 12-12-918. Classification as sexually dangerous person

Effective: April 17, 2025

Currentness

(a)(1) In order to classify a person as a sexually dangerous person, a prosecutor may allege on the face of an information that the prosecutor is seeking a determination that the defendant is a sexually dangerous person.

(2)(A) If the defendant is adjudicated guilty, the court shall enter an order directing an examiner qualified by the Sex Offender Assessment Committee to issue a report to the sentencing court that recommends whether or not the defendant should be classified as a sexually dangerous person.

(B) Copies of the report shall be forwarded immediately to the prosecutor and to the defense attorney.

(C) The report shall not be admissible for purposes of sentencing.

(3) After sentencing, the court shall make a determination regarding the defendant's status as a sexually dangerous person.

(b)(1) In order for the examiner qualified by the committee to prepare the report:

(A) The defendant may be sent for evaluation to a facility designated by the Division of Correction; or

(B) The committee may elect to send an examiner to the local or regional detention facility.

(2) The cost of the evaluation shall be paid by the Department of Corrections.

(c)(1) Should evidence be found in the course of any assessment conducted by the committee that a defendant appears to meet the criteria for being classified as a sexually dangerous person, the committee shall bring this information to the attention of the prosecutor, who will determine whether to file a petition with the court for the defendant to be classified as a sexually dangerous person.

(2) The sentencing court shall retain jurisdiction to determine whether a defendant is a sexually dangerous person for one (1) year after sentencing or for so long as the defendant remains incarcerated for the sex offense.

(d)(1) The sentencing order should state whether the offense qualifies as an aggravated sex offense.

(2) Should the aggravated sex offense box not be checked on the sentencing order, the court will be contacted by the committee and asked to furnish a written determination as to whether the offense qualifies as an aggravated sex offense.

Credits

Acts of 1997, Act 989, § 18; Acts of 1999, Act 1353, § 12, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 13, eff. Aug. 13, 2001; Acts of 2003 (2nd Ex. Sess.), Act 21, § 9, eff. June 3, 2004; Acts of 2013, Act 505, § 16, eff. Aug. 16, 2013; Acts of 2019, Act 910, §§ 724, 725, eff. July 1, 2019; Acts of 2023, Act 659, § 69, eff. Jan. 1, 2024; Acts of 2025, Act 723, § 7, eff. April 17, 2025.

A.C.A. § 12-12-918, AR ST § 12-12-918

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-919

§ 12-12-919. Termination of obligation to register

Effective: August 5, 2025

Currentness

(a) Lifetime registration is required for a sex offender who:

(1) Was found to have committed an aggravated sex offense;

(2) Was determined by the court to be or assessed as a Level 4 sexually dangerous person;

(3) Has pleaded guilty or nolo contendere to or been found guilty of a second or subsequent sex offense under a separate case number, not multiple counts on the same charge;

(4) Was convicted of rape by forcible compulsion, § 5-14-103(a)(1), capital rape, § 5-14-114, or other substantially similar offense in another jurisdiction;

(5) Has pleaded guilty or nolo contendere to or been found guilty of failing to comply with registration and reporting requirements under § 12-12-904 three (3) or more times; or

(6) At the time of the offense was more than twenty-four (24) years of age and the victim of the offense was less than fifteen (15) years of age.

(b)(1)(A)(i)(a) Any other sex offender required to register under this subchapter may apply in the jurisdiction in which he or she was convicted for an order terminating the obligation to register to the sentencing court fifteen (15) years after the date the sex offender first registered in Arkansas.

(b) If the sex offender was incarcerated in a correctional facility, the date the sex offender first registered in Arkansas is the date the sex offender registered upon his or her release from the correctional facility.

(ii) After fifteen (15) years of having been registered as a sex offender in Arkansas, a sex offender sentenced in another state but permanently residing in Arkansas may apply for an order terminating the obligation to register in the circuit court of the county in which the sex offender resides or has last resided within this state.

(B)(i) The court shall hold a hearing on the application under subdivision (b)(1)(A) of this section at which the applicant and any interested persons may present witnesses and other evidence.

(ii) No less than thirty (30) days before the date of the hearing on the application under subdivision (b)(1)(A) of this section, a copy of the application under subdivision (b)(1)(A) of this section shall be served on:

(a) The prosecutor of the county in which the adjudication of guilt triggering registration was obtained if the sex offender was convicted in this state; or

(b) The prosecutor of the county where a sex offender resides if the sex offender was convicted in another state.

(iii) A copy of the application under subdivision (b)(1)(A) of this section also shall be served on the Arkansas Sex Offender Registry in the Arkansas Crime Information Center and on Community Notification Assessment at least thirty (30) days before the hearing.

(iv)(a) Upon receipt of the application under subdivision (b)(1)(A) of this section, the court shall notify the computerized victim notification system under § 12-12-1201 of the filing of the application.

(b) The computerized victim notification system under § 12-12-1201 shall notify a victim who has opted in to receive notifications of the filing of an application to terminate an obligation to register under this section.

(C) If the sex offender has not been assessed in the five (5) years before making a request to terminate the obligation to register under this section, the prosecuting attorney may request a reassessment and an order terminating the obligation to register shall not be granted without a reassessment.

(2) The court shall grant an order terminating the obligation to register upon proof by a preponderance of the evidence that:

(A) The applicant, for a period of fifteen (15) years after the applicant was released from prison or other institution or placed on parole, post-release supervision, supervised release, or probation has not been adjudicated guilty of a sex offense; and

(B) The applicant is not likely to pose a threat to the safety of others.

(3)(A) A sex offender required to register as a result of a conviction for permitting the physical abuse of a minor under § 5-27-221 may apply for termination of the obligation to register at any time after July 22, 2015.

(B) The court shall grant an order under this subdivision (b)(3) terminating the obligation to register upon proof by a preponderance of the evidence that the facts underlying the offense for which the sex offender is required to register no longer support a requirement to register.

(c) If a court denies a petition to terminate the obligation to register under this section, the sex offender may not file a new petition to terminate the obligation to register under this section before three (3) years from the date the order denying the previous petition was filed.

(d) The center shall remove a sex offender from the registry upon receipt by the center of adequate proof that the sex offender has died.

Credits

Acts of 1997, Act 989, § 19; Acts of 1999, Act 1353, § 13, eff. Sept. 1, 1999; Acts of 2001, Act 1743, § 14, eff. Aug. 13, 2001; Acts of 2003 (2nd Ex. Sess.), Act 21, § 10, eff. June 3, 2004; Acts of 2013, Act 172, § 4, eff. Aug. 16, 2013; Acts of 2013, Act 505, § 17, eff. Aug. 16, 2013; Acts of 2013, Act 1248, § 1, eff. Aug. 16, 2013; Acts of 2015, Act 358, § 11, eff. July 22, 2015; Acts of 2015, Act 1285, § 2, eff. July 22, 2015; Acts of 2017, Act 382, § 1, eff. Aug. 1, 2017; Acts of 2017, Act 538, § 1, eff. Aug. 1, 2017; Acts of 2019, Act 800, § 1, eff. July 24, 2019; Acts of 2021, Act 881, § 1, eff. July 28, 2021; Acts of 2023, Act 613, § 1, eff. Aug. 1, 2023; Acts of 2023, Act 659, § 70, eff. Jan. 1, 2024; Acts of 2025, Act 362, § 2, eff. Aug. 5, 2025; Acts of 2025, Act 662, § 49, eff. Aug. 5, 2025.

A.C.A. § 12-12-919, AR ST § 12-12-919

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-920

§ 12-12-920. Immunity from civil liability

Currentness

(a) Public officials, public employees, and public agencies are immune from civil liability for good faith conduct under this subchapter.

(b) Nothing in this subchapter shall be deemed to impose any liability upon or to give rise to a cause of action against any public official, public employee, or public agency for any discretionary decision to release relevant and necessary information, unless it is shown that the public official, public employee, or public agency acted with gross negligence or in bad faith.

(c) The provisions of this section shall also apply to persons or organizations assisting a public official, public employee, or public agency in performing official duties upon a written request to assist them by the public official, public employee, or public agency.

Credits

Acts of 1997, Act 989, § 20; Acts of 1999, Act 1353, § 14, eff. Sept. 1, 1999.

A.C.A. § 12-12-920, AR ST § 12-12-920

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Chapter 12. Crime Reporting and Investigations

Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-921

§ 12-12-921. Sex Offender Assessment Committee

Effective: July 28, 2021

Currentness

(a) The Sex Offender Assessment Committee shall consist of nine (9) members as follows:

(1) The Governor shall appoint, subject to confirmation by the Senate:

(A) One (1) member who is a criminal defense attorney;

(B) One (1) member who is a prosecuting attorney;

(C) One (1) member who is a licensed mental health professional and has demonstrated expertise in the treatment of sex offenders;

(D) One (1) member who is a victims' rights advocate;

(E) One (1) member who is a law enforcement officer; and

(F) One (1) member with expertise in juvenile justice or treatment;

(2) The Director of the Division of Correction or the Director of the Division of Correction's designee;

(3) The Director of the Division of Community Correction or the Director of the Division of Community Correction's designee; and

(4) The Director of the Arkansas Crime Information Center or the Director of the Arkansas Crime Information Center's designee.

(b)(1) Members appointed by the Governor shall be for four-year staggered terms to be assigned by lot at the first meeting.

- (2) If a vacancy of one (1) of the members appointed by the Governor occurs for any reason other than expiration of a regular term, the vacancy shall be filled for the unexpired portion of the term by appointment of the Governor.
- (3) A member of the committee appointed by the Governor may be removed by the Governor for neglect of duty or malfeasance in office.
- (4) A member shall be considered active unless his or her resignation has been submitted or requested by the Governor or he or she has more than two (2) unexcused absences from meetings in a twelve-month period and this fact has been reported to the Governor's office.
- (c) The members of the committee shall elect annually a chair and a vice chair from their membership.
- (d) The Secretary of the Department of Corrections or the Secretary of the Department of Corrections' designee shall serve as the executive secretary of the committee, and the administrative functions of the committee shall be the responsibility of the Department of Corrections.
- (e)(1) A majority of the members of the committee shall constitute a quorum for the transaction of business.
- (2) The committee shall meet at least quarterly.
- (3) A special meeting may be called by the chair or as provided by the rules adopted by the committee.
- (f) The executive secretary of the committee shall keep full and true records of all committee proceedings and preserve all books, documents, and papers relating to the business of the committee.
- (g) The meetings shall be open to the public except when the committee is discussing, deliberating, or voting on an individual case.
- (h)(1) The committee shall report in writing to the Governor and to the Legislative Council by July 31 of each year.
- (2) The report shall contain:
- (A) A summary of the proceedings of the committee during the preceding fiscal year;
- (B) A detailed and itemized statement of all revenue and of all expenditures made by or on behalf of the committee;
- (C) Other information deemed necessary or useful; and

(D) Any additional information that may be requested by the Governor and the Legislative Council.

Credits

Acts of 2003 (2nd Ex. Sess.), Act 21, § 11, eff. June 3, 2004; Acts of 2005, Act 1962, § 38, eff. Aug. 12, 2005; Acts of 2021, Act 683, § 1, eff. July 28, 2021.

A.C.A. § 12-12-921, AR ST § 12-12-921

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-922

§ 12-12-922. Alternative procedure for sexually dangerous
person evaluations--Administrative review of assigned risk level

Effective: August 16, 2013

Currentness

(a)(1) The alternative procedure under this section may be used for sexually dangerous person evaluations if information that was not available to the court at the time of trial emerges in the course of a sex offender evaluation.

(2)(A) Examiners qualified by the Sex Offender Assessment Committee shall include in the assessment of any sex offender convicted of a sex offense a review as to whether the frequency, repetition over time, severity of trauma to the victim, or established pattern of predatory behaviors suggests that the sex offender is likely to engage in future predatory sexual offenses.

(B) If a mental abnormality or personality disorder is suspected, a licensed psychologist or psychiatrist qualified by the committee may conduct further assessment to determine the presence or absence of a mental abnormality or personality disorder.

(C) If further assessment under subdivision (a)(2)(B) of this section is conducted by a licensed psychologist or psychiatrist qualified by the committee, the report of the further assessment shall be presented to the committee.

(b)(1)(A) A sex offender may challenge an assigned risk level by submitting a written request for an administrative review.

(B) As part of the request for an administrative review, the sex offender may request in writing copies of all documents generated by the examiners, a listing by document name and source of all documents that may be available from other agencies having custody of those documents, and a copy of the tape of the interview.

(2) The request for an administrative review shall be made in accordance with instructions provided on the risk level notification and within fifteen (15) days of receipt of the advisement of risk level notification to the sex offender by certified mail and first-class mail.

(3)(A) The basis of the request for administrative review shall be clearly stated and any documentary evidence attached.

(B) The basis for administrative review is:

(i) The rules and procedures were not properly followed in reaching a decision on the risk level of the sex offender;

(ii) Documents or information not available at the time of assessment have a bearing on the risk that the sex offender poses to the community; or

(iii) The assessment is not supported by substantial evidence.

(4) Unless a request for an administrative review is received by the committee within twenty (20) days of postmark of the advisement of risk level notification sent to the sex offender sent by certified mail and first-class mail or delivered by personal service, an offender fact sheet shall be made available to law enforcement so that community notification may commence. Receipt of the advisement of risk level notification will be presumed within five (5) days of postmark of the advisement of risk level notification by both certified mail and first-class mail.

(5) If a request for an administrative review is received by the committee, the local law enforcement agency having jurisdiction may make community notification at the level upon which administrative review has been requested.

(6)(A) A member of the committee shall conduct the review and respond within thirty (30) days of receiving a request for an administrative review.

(B) If additional time is needed to obtain facts, the committee shall notify the sex offender requesting the review.

(7)(A)(i) The findings of the administrative review shall be sent to the sex offender by certified mail. Community notification at the risk level assigned in the administrative review shall commence five (5) calendar days after the postmark of the advisement of the findings of the administrative review.

(ii) Upon receipt of the findings, the sex offender has thirty (30) days to file a petition under the Arkansas Administrative Procedure Act, § 25-15-201 et seq., for judicial review in the Pulaski County Circuit Court or in the circuit court of the county where the sex offender resides or does business.

(B) The circuit court shall refuse to hear any appeal of an assigned risk level by a sex offender unless the circuit court finds that the administrative remedies available to the sex offender under this subsection have been exhausted.

(8)(A)(i) A copy of the petition for judicial review shall be served on the executive secretary of the committee in accordance with the Arkansas Rules of Civil Procedure.

(ii) When the petition for judicial review has been served on the executive secretary of the committee, a record of the committee's findings and copies of all records in its possession shall be furnished by the committee to the circuit court within thirty (30) days of service.

(B) The committee may ask the circuit court to seal statements of victims, medical records, and other items that could place third parties at risk of harm.

(9) A ruling by the circuit court on the petition for judicial review is considered a final judgment.

Credits

Acts of 2003 (2nd Ex. Sess.), Act 21, § 12, eff. June 3, 2004; Acts of 2005, Act 1962, § 39, eff. Aug. 12, 2005; Acts of 2006 (1st Ex. Sess.), Act 4, § 6, eff. April 7, 2006; Acts of 2007, Act 394, § 10, eff. March 21, 2007; Acts of 2011, Act 286, § 1, eff. July 27, 2011; Acts of 2013, Act 505, §§ 18, 19, eff. Aug. 16, 2013; Acts of 2013, Act 1129, § 4, eff. Aug. 16, 2013.

A.C.A. § 12-12-922, AR ST § 12-12-922

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A.C.A. § 12-12-923

§ 12-12-923. Electronic monitoring of sex offenders

Effective: August 16, 2013

Currentness

(a)(1) Upon release from incarceration, a sex offender determined to be a sexually dangerous person whose crime was committed after April 7, 2006, is subject to electronic monitoring for a period of not less than ten (10) years from the date of the sex offender's release.

(2) Within three (3) days after release from incarceration, a sex offender subject to electronic monitoring under subdivision (a)(1) of this section shall:

(A) Report to the agency responsible under § 12-12-915 for supervising the sex offender; and

(B) Submit to the placement of electronic monitoring equipment upon his or her body.

(b) The agency responsible under § 12-12-915 for supervising the sex offender subject to electronic monitoring shall:

(1) Use a system that actively monitors and identifies the sex offender's location and timely reports or records his or her presence near or within a crime scene or in a prohibited area or his or her departure from specified geographic limitations; and

(2) Contact the local law enforcement agency having jurisdiction as soon as administratively feasible if the sex offender is in a prohibited area.

(c)(1)(A) Unless a sex offender subject to electronic monitoring is indigent, he or she is required to reimburse the supervising agency a reasonable fee to defray the supervision costs.

(B)(i)(a) A sex offender who claims to be indigent shall provide a completed certificate of indigency to the supervising agency.

(b) The supervising agency may at any time review and redetermine whether a sex offender is indigent.

(ii) The certificate of indigency shall:

(a) Be in a form approved by the supervising agency;

(b) Be executed under oath by the sex offender; and

(c) State in bold print that a false statement is punishable as a Class D felony.

(2)(A) The supervising agency shall determine the amount to be paid by a sex offender based on his or her financial means and ability to pay.

(B) However, the amount under subdivision (c)(2)(A) of this section shall not exceed fifteen dollars (\$15.00) per day.

(d) A sex offender subject to electronic monitoring who violates subdivision (a)(2) of this section upon conviction is guilty of a Class C felony.

(e)(1) A person who knowingly alters, tampers with, damages, or destroys any electronic monitoring equipment worn by a sexually dangerous person under this section upon conviction is guilty of a Class C felony.

(2) Subdivision (e)(1) of this section does not apply to the owner of the electronic monitoring equipment or an agent of the owner performing ordinary maintenance or repairs to the electronic monitoring equipment.

Credits

Acts of 2006 (1st Ex. Sess.), Act 4, § 7, eff. April 7, 2006; Acts of 2013, Act 505, §§ 20, 21, eff. Aug. 16, 2013.

A.C.A. § 12-12-923, AR ST § 12-12-923

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-924

§ 12-12-924. Disclosure and notification concerning out-of-state sex offenders moving into Arkansas

Effective: July 27, 2011

Currentness

(a) A local law enforcement agency having jurisdiction where an out-of-state sex offender is moving or has moved may make immediate disclosure of the sex offender's registration in another state before the completion of a sex offender assessment assigning a community notification risk level.

(b) A local law enforcement agency having jurisdiction where an out-of-state individual is moving or has moved who has been convicted of an offense that would require registration as a sex offender in Arkansas may make immediate notification appropriate for public safety before the completion of a sex offender assessment assigning a community notification risk level.

Credits

Acts of 2011, Act 100, § 1, eff. July 27, 2011.

A.C.A. § 12-12-924, AR ST § 12-12-924

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-925

§ 12-12-925. Travel outside of the United States

Effective: August 1, 2017

Currentness

(a) A sex offender who is required to register under this subchapter must report in person at least twenty-one (21) days before traveling outside of the United States to the local law enforcement agency having jurisdiction that he or she intends to travel outside of the United States.

(b) The sex offender making the report in person under this section must also report in person to the local law enforcement agency having jurisdiction:

(1) The dates of travel; and

(2) The foreign country, colony, territory, or possessions that the sex offender will visit.

(c)(1) A local law enforcement agency having jurisdiction receiving a report under this section shall immediately report the information to the Arkansas Crime Information Center.

(2) Upon receiving information from a local law enforcement agency having jurisdiction under this section, the center shall immediately report the information to the National Sex Offender Public Website and to the United States Marshals Service.

Credits

Acts of 2013, Act 508, § 12, eff. Aug. 16, 2013; Acts of 2017, Act 916, § 10, eff. Aug. 1, 2017.

A.C.A. § 12-12-925, AR ST § 12-12-925

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A.C.A. § 12-12-926

§ 12-12-926. Release of motor vehicle records by the Department of Finance and Administration

Effective: August 16, 2013

Currentness

(a) The Department of Finance and Administration may release to a law enforcement officer or agency information contained in a person's motor vehicle record if:

(1) The information is required for the law enforcement officer or agency to comply with this subchapter; and

(2) The use of the information by the law enforcement officer or agency is related to public safety.

(b) A law enforcement officer or agency that obtains a record from the department as provided in subsection (a) of this section may publicly disclose information contained in a person's motor vehicle record if the disclosure of the information is:

(1) Required by this subchapter; and

(2) Related to public safety.

(c) This section does not authorize a law enforcement officer or agency to publicly disclose the following information obtained from a motor vehicle record:

(1) A person's Social Security number; or

(2) A person's medical or disability information.

Credits

Acts of 2013, Act 508, § 13, eff. Aug. 16, 2013.

A.C.A. § 12-12-926, AR ST § 12-12-926

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-927

§ 12-12-927. Medicaid services by sex offender prohibited

Effective: August 16, 2013

Currentness

If a court has entered an order requiring a person to register as a sex offender or if the person is listed in the Federal Bureau of Investigation's National Sex Offender Registry, the United States Department of Justice Dru Sjodin National Sex Offender Public Website, or both, the person shall not provide goods or services under the Arkansas Medicaid Program.

Credits

Acts of 2013, Act 1504, § 2, eff. Aug. 16, 2013.

A.C.A. § 12-12-927, AR ST § 12-12-927

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-928

§ 12-12-928. Prohibition against recording a person under 14 years of age--Notification

Effective: July 24, 2019

Currentness

A person required to register as a sex offender under this subchapter and who has been assessed as a Level 3 or Level 4 sex offender shall be notified at his or her assessment that he or she is prohibited from recording a person under fourteen (14) years of age under § 5-14-137.

Credits

Acts of 2019, Act 621, § 3, eff. July 24, 2019.

A.C.A. § 12-12-928, AR ST § 12-12-928

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-929

§ 12-12-929. Registered offender prohibited from holding a position of public trust

Effective: July 24, 2019

Currentness

(a) As used in this section, “position of public trust” means a position that:

(1) Is in a public agency that provides public safety services, including without limitation a fire department, law enforcement agency, or emergency medical services agency; and

(2) As part of the ordinary course of the duties of the position, requires a person holding the position to have direct physical contact with or come within the immediate vicinity of a member of the public outside of the building in which the public agency is located.

(b) A sex offender who is required to register under this subchapter and who has been assessed as a Level 2, Level 3, or Level 4 offender may not hold a position of public trust.

Credits

Acts of 2019, Act 987, § 1, eff. July 24, 2019.

A.C.A. § 12-12-929, AR ST § 12-12-929

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Subchapter 9. Sex Offender Registration (Refs & Annos)

A.C.A. § 12-12-930

§ 12-12-930. Repealed by Acts of 2023, Act 176, § 3, eff. Aug. 1, 2023

Effective: August 1, 2023

Currentness

Credits

Acts of 2023, Act 176, § 3, eff. Aug. 1, 2023.

Formerly Acts of 2021, Act 828, § 1, eff. July 28, 2021.

A.C.A. § 12-12-930, AR ST § 12-12-930

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West's Annotated California Codes

Penal Code

Part 1. Of Crimes and Punishments

Title 9. Of Crimes Against the Person Involving Sexual Assault, and Crimes Against Public Decency and Good
Morals

Chapter 5.5. Sex Offenders

West's Ann.Cal.Penal Code Pt. 1, T. 9, Ch. 5.5, Refs & Annos

Currentness

West's Ann. Cal. Penal Code Pt. 1, T. 9, Ch. 5.5, Refs & Annos, CA PENAL Pt. 1, T. 9, Ch. 5.5, Refs & Annos
Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

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West's Annotated California Codes

Penal Code (Refs & Annos)

Part 1. Of Crimes and Punishments (Refs & Annos)

Title 9. Of Crimes Against the Person Involving Sexual Assault, and Crimes Against Public Decency and Good Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290

§ 290. Sex Offender Registration Act; duty to register within specified number of days following entrance into or moving within a jurisdiction; offenses requiring mandatory registration; duration of registration requirement

Effective: January 1, 2026

Currentness

(a) Sections 290 to 290.024, inclusive, shall be known, and may be cited, as the Sex Offender Registration Act. All references to “the Act” in those sections are to the Sex Offender Registration Act.

(b) Every person described in subdivision (c), for the period specified in subdivision (d) while residing in California, or while attending school or working in California, as described in Sections 290.002 and 290.01, shall register with the chief of police of the city in which the person is residing, or the sheriff of the county if the person is residing in an unincorporated area or city that has no police department, and, additionally, with the chief of police of a campus of the University of California, the California State University, or community college if the person is residing upon the campus or in any of its facilities, within five working days of coming into, or changing the person's residence within, any city, county, or city and county, or campus in which the person temporarily resides, and shall register thereafter in accordance with the Act, unless the duty to register is terminated pursuant to Section 290.5 or as otherwise provided by law.

(c) The following persons shall register:

(1) A person who, since July 1, 1944, has been or is hereafter convicted in any court in this state or in any federal or military court of a violation of Section 187 committed in the perpetration, or an attempt to perpetrate, rape, or any act punishable under Section 286, 287, 288, or 289 or former Section 288a, Section 207 or 209 committed with intent to violate Section 261, subdivision (c) or (d) of Section 261.5 if the offense occurred on or after January 1, 2026, 286, 287, 288, or 289 or former Section 288a, Section 220, except assault to commit mayhem, subdivision (b) or (c) of Section 236.1, Section 243.4, Section 261, paragraph (1) of subdivision (a) of former Section 262 involving the use of force or violence for which the person is sentenced to the state prison, Section 264.1, 266, or 266c, subdivision (b) of Section 266h, subdivision (b) of Section 266i, Section 266j, 267, 269, 285, 286, 287, 288, 288.3, 288.4, 288.5, 288.7, 289, or 311.1, or former Section 288a, subdivision (b), (c), or (d) of Section 311.2, Section 311.3, 311.4, 311.10, 311.11, or 647.6, former Section 647a, subdivision (c) of Section 653f, subdivision 1 or 2 of Section 314, any offense involving lewd or lascivious conduct under Section 272, or any felony violation of Section 288.2; any statutory predecessor that includes all elements of one of the offenses described in this subdivision; or any person who since that date has been or is hereafter convicted of the attempt or conspiracy to commit any of the offenses described in this subdivision.

(2)(A) A person who is 18 years of age or older, is convicted on or after January 1, 2025, of a violation of paragraph (2) of subdivision (l) of Section 647, and has a prior conviction for a violation of subparagraph (A) of paragraph (2) of subdivision

(l) of Section 647 shall register if, at the time of the offense, the person was more than 10 years older than the solicited minor, as measured from the minor's date of birth to the person's date of birth, and the conviction is the only one requiring the person to register.

(B) This paragraph does not preclude the court from requiring a person to register pursuant to Section 290.006.

(3) Notwithstanding paragraph (1), a person convicted of a violation of subdivision (c) or (d) of Section 261.5, subdivision (b) of Section 286, subdivision (b) of Section 287, or subdivision (h) or (i) of Section 289 shall not be required to register if, at the time of the offense, the person is not more than 10 years older than the minor, as measured from the minor's date of birth to the person's date of birth, and the conviction is the only one requiring the person to register. This paragraph does not preclude the court from requiring a person to register pursuant to Section 290.006.

(d) A person described in subdivision (c), or who is otherwise required to register pursuant to the Act shall register for 10 years, 20 years, or life, following a conviction and release from incarceration, placement, commitment, or release on probation or other supervision, as follows:

(1)(A) A tier one offender is subject to registration for a minimum of 10 years. A person is a tier one offender if the person is required to register for conviction of a misdemeanor described in subdivision (c), or for conviction of a felony described in subdivision (c) that was not a serious or violent felony as described in subdivision (c) of Section 667.5 or subdivision (c) of Section 1192.7.

(B) This paragraph does not apply to a person who is subject to registration pursuant to paragraph (2) or (3).

(2)(A) A tier two offender is subject to registration for a minimum of 20 years. A person is a tier two offender if the person was convicted of an offense described in subdivision (c) that is also described in subdivision (c) of Section 667.5 or subdivision (c) of Section 1192.7, Section 285, subdivision (g) or (h) of Section 286, subdivision (g) or (h) of Section 287 or former Section 288a, subdivision (b) of Section 289, or Section 647.6 if it is a second or subsequent conviction for that offense that was brought and tried separately.

(B) This paragraph does not apply if the person is subject to lifetime registration as required in paragraph (3).

(3) A tier three offender is subject to registration for life. A person is a tier three offender if any one of the following applies:

(A) Following conviction of a registerable offense, the person was subsequently convicted in a separate proceeding of committing an offense described in subdivision (c) and the conviction is for commission of a violent felony described in subdivision (c) of Section 667.5, or the person was subsequently convicted of committing an offense for which the person was ordered to register pursuant to Section 290.006, and the conviction is for the commission of a violent felony described in subdivision (c) of Section 667.5.

(B) The person was committed to a state mental hospital as a sexually violent predator pursuant to Article 4 (commencing with Section 6600) of Chapter 2 of Part 2 of Division 6 of the Welfare and Institutions Code.

(C) The person was convicted of violating any of the following:

(i) Section 187 while attempting to commit or committing an act punishable under Section 261, 286, 287, 288, or 289 or former Section 288a.

(ii) Section 207 or 209 with intent to violate Section 261, 286, 287, 288, or 289 or former Section 288a.

(iii) Section 220.

(iv) Subdivision (b) of Section 266h.

(v) Subdivision (b) of Section 266i.

(vi) Section 266j.

(vii) Section 267.

(viii) Section 269.

(ix) Subdivision (b) or (c) of Section 288.

(x) Section 288.2.

(xi) Section 288.3, unless committed with the intent to commit a violation of subdivision (b) of Section 286, subdivision (b) of Section 287 or former Section 288a, or subdivision (h) or (i) of Section 289.

(xii) Section 288.4.

(xiii) Section 288.5.

(xiv) Section 288.7.

(xv) Subdivision (c) of Section 653f.

(xvi) Any offense for which the person is sentenced to a life term pursuant to Section 667.61.

- (D) The person's risk level on the static risk assessment instrument for sex offenders (SARATSO), pursuant to Section 290.04, is well above average risk at the time of release on the index sex offense into the community, as defined in the Coding Rules for that instrument.
- (E) The person is a habitual sex offender pursuant to Section 667.71.
- (F) The person was convicted of violating subdivision (a) of Section 288 in two proceedings brought and tried separately.
- (G) The person was sentenced to 15 to 25 years to life for an offense listed in Section 667.61.
- (H) The person is required to register pursuant to Section 290.004.
- (I) The person was convicted of a felony offense described in subdivision (b) or (c) of Section 236.1.
- (J) The person was convicted of a felony offense described in subdivision (a), (c), or (d) of Section 243.4.
- (K) The person was convicted of violating paragraph (2), (3), or (4) of subdivision (a) of Section 261 or was convicted of violating Section 261 and punished pursuant to paragraph (1) or (2) of subdivision (c) of Section 264.
- (L) The person was convicted of violating paragraph (1) of subdivision (a) of former Section 262.
- (M) The person was convicted of violating Section 264.1.
- (N) The person was convicted of any offense involving lewd or lascivious conduct under Section 272.
- (O) The person was convicted of violating paragraph (2) of subdivision (c) of, or subdivision (d), (f), or (i) of, Section 286.
- (P) The person was convicted of violating paragraph (2) of subdivision (c) of, or subdivision (d), (f), or (i) of, Section 287 or former Section 288a.
- (Q) The person was convicted of violating paragraph (1) of subdivision (a) of, or subdivision (d), (e), or (j) of, Section 289.
- (R) The person was convicted of a felony violation of Section 311.1 or 311.11 or of violating subdivision (b), (c), or (d) of Section 311.2, Section 311.3, 311.4, or 311.10.
- (4)(A) A person who is required to register pursuant to Section 290.005 shall be placed in the appropriate tier if the offense is assessed as equivalent to a California registerable offense described in subdivision (c).

(B) If the person's duty to register pursuant to Section 290.005 is based solely on the requirement of registration in another jurisdiction, and there is no equivalent California registerable offense, the person shall be subject to registration as a tier two offender, except that the person is subject to registration as a tier three offender if one of the following applies:

(i) The person's risk level on the static risk assessment instrument (SARATSO), pursuant to Section 290.06, is well above average risk at the time of release on the index sex offense into the community, as defined in the Coding Rules for that instrument.

(ii) The person was subsequently convicted in a separate proceeding of an offense substantially similar to an offense listed in subdivision (c) which is also substantially similar to an offense described in subdivision (c) of Section 667.5, or is substantially similar to Section 269 or 288.7.

(iii) The person has ever been committed to a state mental hospital or mental health facility in a proceeding substantially similar to civil commitment as a sexually violent predator pursuant to Article 4 (commencing with Section 6600) of Chapter 2 of Part 2 of Division 6 of the Welfare and Institutions Code.

(5)(A) The Department of Justice may place a person described in subdivision (c), or who is otherwise required to register pursuant to the Act, in a tier-to-be-determined category if the appropriate tier designation described in this subdivision cannot be immediately ascertained. An individual placed in this tier-to-be-determined category shall continue to register in accordance with the Act. The individual shall be given credit toward the mandated minimum registration period for any period for which the individual registers.

(B) The Department of Justice shall ascertain an individual's appropriate tier designation as described in this subdivision within 24 months of the individual's placement in the tier-to-be-determined category.

(e) The minimum time period for the completion of the required registration period in tier one or two commences on the date of release from incarceration, placement, or commitment, including any related civil commitment on the registerable offense. The minimum time for the completion of the required registration period for a designated tier is tolled during any period of subsequent incarceration, placement, or commitment, including any subsequent civil commitment, except that arrests not resulting in conviction, adjudication, or revocation of probation or parole shall not toll the required registration period. The minimum time period shall be extended by one year for each misdemeanor conviction of failing to register under this Act, and by three years for each felony conviction of failing to register under this Act, without regard to the actual time served in custody for the conviction. If a registrant is subsequently convicted of another offense requiring registration pursuant to the Act, a new minimum time period for the completion of the registration requirement for the applicable tier shall commence upon that person's release from incarceration, placement, or commitment, including any related civil commitment. If the subsequent conviction requiring registration pursuant to the Act occurs prior to an order to terminate the registrant from the registry after completion of a tier associated with the first conviction for a registerable offense, the applicable tier shall be the highest tier associated with the convictions.

(f) This section does not require a ward of the juvenile court to register under the Act, except as provided in Section 290.008.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 2.5, eff. Jan. 1, 2018, operative Jan. 1, 2021. Amended by Stats.2018, c. 423 (S.B.1494), § 52, eff. Jan. 1, 2019, operative Jan. 1, 2021; Stats.2020, c. 79 (S.B.145), § 2, eff. Jan. 1, 2021, operative Jan. 1,

2021; Stats.2021, c. 626 (A.B.1171), § 25, eff. Jan. 1, 2022; Stats.2024, c. 617 (S.B.1414), § 1, eff. Jan. 1, 2025; Stats.2025, c. 780 (S.B.680), § 1, eff. Jan. 1, 2026.)

West's Ann. Cal. Penal Code § 290, CA PENAL § 290

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.001

§ 290.001. Registration of sexually violent predators

Effective: October 13, 2007

Currentness

Every person who has ever been adjudicated a sexually violent predator, as defined in Section 6600 of the Welfare and Institutions Code, shall register in accordance with the Act.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 9, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.001, CA PENAL § 290.001

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.002

§ 290.002. Registration of out-of-state residents working or attending school in California

Effective: October 13, 2007

Currentness

Persons required to register in their state of residence who are out-of-state residents employed, or carrying on a vocation in California on a full-time or part-time basis, with or without compensation, for more than 14 days, or for an aggregate period exceeding 30 days in a calendar year, shall register in accordance with the Act. Persons described in the Act who are out-of-state residents enrolled in any educational institution in California, as defined in Section 22129 of the Education Code, on a full-time or part-time basis, shall register in accordance with the Act. The place where the out-of-state resident is located, for purposes of registration, shall be the place where the person is employed, carrying on a vocation, or attending school. The out-of-state resident subject to this section shall, in addition to the information required pursuant to Section 290.015, provide the registering authority with the name of his or her place of employment or the name of the school attended in California, and his or her address or location in his or her state of residence. The registration requirement for persons subject to this section shall become operative on November 25, 2000. The terms "employed or carries on a vocation" include employment whether or not financially compensated, volunteered, or performed for government or educational benefit.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 10, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.002, CA PENAL § 290.002

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.003

§ 290.003. Registration of persons released after July 1, 1944, from confinement for an offense requiring registration

Effective: October 13, 2007

Currentness

Any person who, since July 1, 1944, has been or hereafter is released, discharged, or paroled from a penal institution where he or she was confined because of the commission or attempted commission of one of the offenses described in subdivision (c) of Section 290, shall register in accordance with the Act.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 11, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.003, CA PENAL § 290.003

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.004

§ 290.004. Registration of mentally disordered sex offenders

Effective: January 1, 2018

Currentness

Any person who, since July 1, 1944, has been or hereafter is determined to be a mentally disordered sex offender under Article 1 (commencing with Section 6300) of Chapter 2 of Part 2 of Division 6 of the Welfare and Institutions Code, or any person who has been found guilty in the guilt phase of a trial for an offense for which registration is required by this act but who has been found not guilty by reason of insanity in the sanity phase of the trial shall register in accordance with the act.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 12, eff. Oct. 13, 2007. Amended by Stats.2017, c. 269 (S.B.811), § 8, eff. Jan. 1, 2018.)

West's Ann. Cal. Penal Code § 290.004, CA PENAL § 290.004

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.005

§ 290.005. Registration of persons convicted of registrable offenses in out-of-state, federal, or military courts

Effective: January 1, 2019

Currentness

The following persons shall register in accordance with the Act:

(a) Except as provided in subdivision (c) or (d), any person who, since July 1, 1944, has been, or is hereafter convicted in any other court, including any state, federal, or military court, of any offense that, if committed or attempted in this state, based on the elements of the convicted offense or facts admitted by the person or found true by the trier of fact or stipulated facts in the record of military proceedings, would have been punishable as one or more of the offenses described in subdivision (c) of Section 290, including offenses in which the person was a principal, as defined in Section 31.

(b) Any person ordered by any other court, including any state, federal, or military court, to register as a sex offender for any offense, if the court found at the time of conviction or sentencing that the person committed the offense as a result of sexual compulsion or for purposes of sexual gratification.

(c) Except as provided in subdivision (d), any person who would be required to register while residing in the state of conviction for a sex offense committed in that state.

(d) Notwithstanding any other law, a person convicted in another state of an offense similar to one of the following offenses who is required to register in the state of conviction shall not be required to register in California unless the out-of-state offense, based on the elements of the conviction offense or proven or stipulated facts in the record of conviction, contains all of the elements of a registerable California offense described in subdivision (c) of Section 290:

(1) Indecent exposure, pursuant to Section 314.

(2) Unlawful sexual intercourse, pursuant to Section 261.5.

(3) Incest, pursuant to Section 285.

(4) Sodomy, pursuant to Section 286, or oral copulation, pursuant to Section 287 or former Section 288a, provided that the offender notifies the Department of Justice that the sodomy or oral copulation conviction was for conduct between consenting adults, as described in Section 290.019, and the department is able, upon the exercise of reasonable diligence, to verify that fact.

(5) Pimping, pursuant to Section 266h, or pandering, pursuant to Section 266i.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 13, eff. Oct. 13, 2007. Amended by Stats.2011, c. 362 (S.B.622), § 1; Stats.2018, c. 423 (S.B.1494), § 53, eff. Jan. 1, 2019.)

West's Ann. Cal. Penal Code § 290.005, CA PENAL § 290.005

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.006

§ 290.006. Court order of registration for offenses committed out of sexual compulsion or for sexual gratification; determination of registration tier

Effective: January 1, 2021

Currentness

(a) Any person ordered by any court to register pursuant to the act, who is not required to register pursuant to Section 290, shall so register, if the court finds at the time of conviction or sentencing that the person committed the offense as a result of sexual compulsion or for purposes of sexual gratification. The court shall state on the record the reasons for its findings and the reasons for requiring registration.

(b) The person shall register as a tier one offender in accordance with paragraph (1) of subdivision (d) of Section 290, unless the court finds the person should register as a tier two or tier three offender and states on the record the reasons for its finding.

(c) In determining whether to require the person to register as a tier two or tier three offender, the court shall consider all of the following:

(1) The nature of the registerable offense.

(2) The age and number of victims, and whether any victim was personally unknown to the person at the time of the offense. A victim is personally unknown to the person for purposes of this paragraph if the victim was known to the offender for less than 24 hours.

(3) The criminal and relevant noncriminal behavior of the person before and after conviction for the registerable offense.

(4) Whether the person has previously been arrested for, or convicted of, a sexually motivated offense.

(5) The person's current risk of sexual or violent reoffense, including the person's risk level on the SARATSO static risk assessment instrument, and, if available from past supervision for a sexual offense, the person's risk level on the SARATSO dynamic and violence risk assessment instruments.

(d) This section shall become operative on January 1, 2021.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 4, eff. Jan. 1, 2018, operative Jan. 1, 2021. Amended by Stats.2020, c. 79 (S.B.145), § 4, eff. Jan. 1, 2021, operative Jan. 1, 2021.)

West's Ann. Cal. Penal Code § 290.006, CA PENAL § 290.006

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.007

§ 290.007. Duty to register regardless of dismissal under Section 1203.4 of the Penal Code

Effective: January 1, 2019

Currentness

A person required to register pursuant to any provision of the Act shall register in accordance with the Act, regardless of whether the person's conviction has been dismissed pursuant to Section 1203.4, unless the person obtains a certificate of rehabilitation and is entitled to relief from registration pursuant to Section 290.5, or is exonerated pursuant to subdivision (e) of Section 3007.05 of the conviction requiring registration and the person is not otherwise required to register.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 15, eff. Oct. 13, 2007. Amended by Stats.2018, c. 979 (S.B.1050), § 1, eff. Jan. 1, 2019.)

West's Ann. Cal. Penal Code § 290.007, CA PENAL § 290.007

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.008

§ 290.008. Juveniles adjudicated a ward of the juvenile court for specified sex offenses
and sent to the Division of Juvenile Justice, or equivalent thereof; duty to register

Effective: September 29, 2022

Currentness

(a) Any person who, on or after January 1, 1986, is discharged or paroled from the Department of Corrections and Rehabilitation to the custody of which they were committed after having been adjudicated a ward of the juvenile court pursuant to Section 602 of the Welfare and Institutions Code because of the commission or attempted commission of any offense described in subdivision (c) shall register in accordance with the Act unless the duty to register is terminated pursuant to Section 290.5 or as otherwise provided by law.

(b) Any person who is discharged or paroled from a facility in another state that is equivalent to the Division of Juvenile Justice, to the custody of which they were committed because of an offense which, if committed or attempted in this state, would have been punishable as one or more of the offenses described in subdivision (c) shall register in accordance with the Act.

(c) Any person described in this section who committed an offense in violation of any of the following provisions shall be required to register pursuant to the Act:

(1) Assault with intent to commit rape, sodomy, oral copulation, or any violation of Section 264.1, 288, or 289 under Section 220.

(2) Any offense defined in paragraph (1), (2), (3), (4), or (6) of subdivision (a) of Section 261, Section 264.1, 266c, or 267, paragraph (1) of subdivision (b) of, or subdivision (c) or (d) of, Section 286, paragraph (1) of subdivision (b) of, or subdivision (c) or (d) of, Section 287, Section 288 or 288.5, paragraph (1) of subdivision (b) of, or subdivision (c) or (d) of, former Section 288a, subdivision (a) of Section 289, or Section 647.6.

(3) A violation of Section 207 or 209 committed with the intent to violate Section 261, 286, 287, 288, or 289, or former Section 288a.

(d)(1) A tier one juvenile offender is subject to registration for a minimum of five years. A person is a tier one juvenile offender if the person is required to register after being adjudicated as a ward of the court and discharged or paroled from the Department of Corrections and Rehabilitation for an offense listed in subdivision (c) that is not a serious or violent felony as described in subdivision (c) of Section 667.5 or subdivision (c) of Section 1192.7.

(2) A tier two juvenile offender is subject to registration for a minimum of 10 years. A person is a tier two juvenile offender if the person is required to register after being adjudicated as a ward of the court and discharged or paroled from the Department of Corrections and Rehabilitation for an offense listed in subdivision (c) that is a serious or violent felony as described in subdivision (c) of Section 667.5 or subdivision (c) of Section 1192.7.

(3) A person who is required to register as a sex offender pursuant to this section may file a petition for termination from the sex offender registry in the juvenile court in the county in which they are registered at the expiration of their mandated minimum registration period, pursuant to Section 290.5.

(e) Prior to discharge or parole from the Department of Corrections and Rehabilitation, any person who is subject to registration under this section shall be informed of the duty to register under the procedures set forth in the Act. Department officials shall transmit the required forms and information to the Department of Justice.

(f) All records specifically relating to the registration in the custody of the Department of Justice, law enforcement agencies, and other agencies or public officials shall be destroyed when the person who is required to register has their records sealed under the procedures set forth in Section 781 of the Welfare and Institutions Code. This section shall not be construed as requiring the destruction of other criminal offender or juvenile records relating to the case that are maintained by the Department of Justice, law enforcement agencies, the juvenile court, or other agencies and public officials unless ordered by a court under Section 781 of the Welfare and Institutions Code.

(g) This section shall become operative on January 1, 2021.

(h) For purposes of this section, a discharged person shall include all of the following:

(1) A ward in the custody of the Department of Corrections and Rehabilitation, Division of Juvenile Justice on or after July 1, 2022, who, prior to discharge, is returned by the division or the chief probation officer of the county to the court of jurisdiction for alternative disposition, specifically due to the statutorily required closure of the division. The division shall inform the ward of the duty to register prior to the ward being returned to the court.

(2) A patient described in Section 1732.10 of the Welfare and Institutions Code. The division shall inform the patient of the duty to register immediately prior to closure of the division.

(3) A person described in Section 1732.9 of the Welfare and Institutions Code. The Department of Corrections and Rehabilitation shall inform the person of the duty to register immediately prior to the person being returned to the court of jurisdiction.

(i) The court of jurisdiction shall establish the point at which the ward described in subdivision (h) is required to register and notify the Department of Justice of its decision.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 6, eff. Jan. 1, 2018, operative Jan. 1, 2021. Amended by Stats.2018, c. 423 (S.B.1494), § 55, eff. Jan. 1, 2019, operative Jan. 1, 2021; Stats.2022, c. 771 (A.B.160), § 13, eff. Sept. 29, 2022.)

West's Ann. Cal. Penal Code § 290.008, CA PENAL § 290.008

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.009

§ 290.009. Persons required to register; duty to register on campus
if employed, student, or volunteer at institute of higher education

Effective: October 13, 2007

Currentness

Any person required to register under the Act who is enrolled as a student or is an employee or carries on a vocation, with or without compensation, at an institution of higher learning in this state, shall register pursuant to the provisions of the Act.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 17, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.009, CA PENAL § 290.009

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.010

§ 290.010. Multiple residences; duty to register in jurisdiction of each address where registrant regularly resides

Effective: October 13, 2007

Currentness

If the person who is registering has more than one residence address at which he or she regularly resides, he or she shall register in accordance with the Act in each of the jurisdictions in which he or she regularly resides, regardless of the number of days or nights spent there. If all of the addresses are within the same jurisdiction, the person shall provide the registering authority with all of the addresses where he or she regularly resides.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 18, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.010, CA PENAL § 290.010

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.011

§ 290.011. Registration of transients

Effective: January 1, 2011

Currentness

Every person who is required to register pursuant to the act who is living as a transient shall be required to register for the rest of his or her life as follows:

(a) He or she shall register, or reregister if the person has previously registered, within five working days from release from incarceration, placement or commitment, or release on probation, pursuant to subdivision (b) of Section 290, except that if the person previously registered as a transient less than 30 days from the date of his or her release from incarceration, he or she does not need to reregister as a transient until his or her next required 30-day update of registration. If a transient convicted in another jurisdiction enters the state, he or she shall register within five working days of coming into California with the chief of police of the city in which he or she is present or the sheriff of the county if he or she is present in an unincorporated area or city that has no police department. If a transient is not physically present in any one jurisdiction for five consecutive working days, he or she shall register in the jurisdiction in which he or she is physically present on the fifth working day following release, pursuant to subdivision (b) of Section 290. Beginning on or before the 30th day following initial registration upon release, a transient shall reregister no less than once every 30 days thereafter. A transient shall register with the chief of police of the city in which he or she is physically present within that 30-day period, or the sheriff of the county if he or she is physically present in an unincorporated area or city that has no police department, and additionally, with the chief of police of a campus of the University of California, the California State University, or community college if he or she is physically present upon the campus or in any of its facilities. A transient shall reregister no less than once every 30 days regardless of the length of time he or she has been physically present in the particular jurisdiction in which he or she reregisters. If a transient fails to reregister within any 30-day period, he or she may be prosecuted in any jurisdiction in which he or she is physically present.

(b) A transient who moves to a residence shall have five working days within which to register at that address, in accordance with subdivision (b) of Section 290. A person registered at a residence address in accordance with that provision who becomes transient shall have five working days within which to reregister as a transient in accordance with subdivision (a).

(c) Beginning on his or her first birthday following registration, a transient shall register annually, within five working days of his or her birthday, to update his or her registration with the entities described in subdivision (a). A transient shall register in whichever jurisdiction he or she is physically present on that date. At the 30-day updates and the annual update, a transient shall provide current information as required on the Department of Justice annual update form, including the information described in paragraphs (1) to (3), inclusive, of subdivision (a) of Section 290.015, and the information specified in subdivision (d).

(d) A transient shall, upon registration and reregistration, provide current information as required on the Department of Justice registration forms, and shall also list the places where he or she sleeps, eats, works, frequents, and engages in leisure activities. If a transient changes or adds to the places listed on the form during the 30-day period, he or she does not need to report the new place or places until the next required reregistration.

(e) Failure to comply with the requirement of reregistering every 30 days following initial registration pursuant to subdivision (a) shall be punished in accordance with subdivision (g) of Section 290.018. Failure to comply with any other requirement of this section shall be punished in accordance with either subdivision (a) or (b) of Section 290.018.

(f) A transient who moves out of state shall inform, in person, the chief of police in the city in which he or she is physically present, or the sheriff of the county if he or she is physically present in an unincorporated area or city that has no police department, within five working days, of his or her move out of state. The transient shall inform that registering agency of his or her planned destination, residence or transient location out of state, and any plans he or she has to return to California, if known. The law enforcement agency shall, within three days after receipt of this information, forward a copy of the change of location information to the Department of Justice. The department shall forward appropriate registration data to the law enforcement agency having local jurisdiction of the new place of residence or location.

(g) For purposes of the act, “transient” means a person who has no residence. “Residence” means one or more addresses at which a person regularly resides, regardless of the number of days or nights spent there, such as a shelter or structure that can be located by a street address, including, but not limited to, houses, apartment buildings, motels, hotels, homeless shelters, and recreational and other vehicles.

(h) The transient registrant's duty to update his or her registration no less than every 30 days shall begin with his or her second transient update following the date this section became effective.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 19, eff. Oct. 13, 2007. Amended by Stats.2009, c. 35 (S.B.174), § 6; Stats.2010, c. 328 (S.B.1330), § 153.)

West's Ann. Cal. Penal Code § 290.011, CA PENAL § 290.011

Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

West's Annotated California Codes

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.012

§ 290.012. Annual update; sexually violent predator update; transient update; no fee for registration or update

Effective: January 1, 2017

Currentness

(a) Beginning on his or her first birthday following registration or change of address, the person shall be required to register annually, within five working days of his or her birthday, to update his or her registration with the entities described in subdivision (b) of Section 290. At the annual update, the person shall provide current information as required on the Department of Justice annual update form, including the information described in paragraphs (1) to (4), inclusive, of subdivision (a) of Section 290.015. The registering agency shall give the registrant a copy of the registration requirements from the Department of Justice form.

(b) In addition, every person who has ever been adjudicated a sexually violent predator, as defined in Section 6600 of the Welfare and Institutions Code, shall, after his or her release from custody, verify his or her address no less than once every 90 days and place of employment, including the name and address of the employer, in a manner established by the Department of Justice. Every person who, as a sexually violent predator, is required to verify his or her registration every 90 days, shall be notified wherever he or she next registers of his or her increased registration obligations. This notice shall be provided in writing by the registering agency or agencies. Failure to receive this notice shall be a defense to the penalties prescribed in subdivision (f) of Section 290.018.

(c) In addition, every person subject to the Act, while living as a transient in California, shall update his or her registration at least every 30 days, in accordance with Section 290.011.

(d) No entity shall require a person to pay a fee to register or update his or her registration pursuant to this section. The registering agency shall submit registrations, including annual updates or changes of address, directly into the Department of Justice California Sex and Arson Registry (CSAR).

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 20, eff. Oct. 13, 2007. Amended by Initiative Measure (Prop. 35, § 10, approved Nov. 6, 2012, eff. Nov. 7, 2012); Stats.2014, c. 54 (S.B.1461), § 11, eff. Jan. 1, 2015; Stats.2016, c. 772 (S.B.448), § 2, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.012, CA PENAL § 290.012

Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.013

§ 290.013. Change of address, within or outside the state; notice to Department of Justice
by facility for persons being admitted to or released from Department of Corrections
and Rehabilitation facility, county or local custodial facility, or state mental institution

Effective: January 1, 2019

Currentness

- (a) A person who was last registered at a residence address pursuant to the Act who changes his or her residence address, whether within the jurisdiction in which he or she is currently registered or to a new jurisdiction inside or outside the state, shall, in person, within five working days of the move, inform the law enforcement agency or agencies with which he or she last registered of the move, the new address or transient location, if known, and any plans he or she has to return to California.
- (b) If the person does not know the new residence address or location at the time of the move, the registrant shall, in person, within five working days of the move, inform the last registering agency or agencies that he or she is moving. The person shall later notify the last registering agency or agencies, in writing, sent by certified or registered mail, of the new address or location within five working days of moving into the new residence address or location, whether temporary or permanent.
- (c) The law enforcement agency or agencies shall, within three working days after receipt of this information, forward a copy of the change of address information to the Department of Justice. The Department of Justice shall forward appropriate registration data to the law enforcement agency or agencies having local jurisdiction of the new place of residence.
- (d) If the person is being admitted to or released from a Department of Corrections and Rehabilitation facility, a county or local custodial facility, or state mental institution, an official of the place of incarceration, placement, or commitment shall, within 15 working days of both receipt and release of the person, forward the registrant's change of address information to the Department of Justice in a manner prescribed by the department. If the person is being admitted to the facility, the agency need not provide a physical address for the registrant but shall indicate that he or she is serving a period of incarceration or commitment in a facility under the agency's jurisdiction. This subdivision shall apply to persons received in a department facility, county or local custodial facility, or state mental institution on or after January 1, 1999. The Department of Justice shall forward the change of address information to the agency with which the person last registered.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 21, eff. Oct. 13, 2007. Amended by Stats.2018, c. 811 (A.B.1994), § 1, eff. Jan. 1, 2019.)

West's Ann. Cal. Penal Code § 290.013, CA PENAL § 290.013

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.014

§ 290.014. Name change by registrant; addition or change of Internet identifier

Effective: January 1, 2017

Currentness

(a) If any person who is required to register pursuant to the Act changes his or her name, the person shall inform, in person, the law enforcement agency or agencies with which he or she is currently registered within five working days. The law enforcement agency or agencies shall forward a copy of this information to the Department of Justice within three working days of its receipt.

(b) If any person who is required to register Internet identifiers pursuant to Section 290.024 adds or changes an Internet identifier, as defined in Section 290.024, the person shall send written notice by mail of the addition or change to the law enforcement agency or agencies with which he or she is currently registered within 30 working days of the addition or change. The law enforcement agency or agencies shall make the information available to the Department of Justice.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 22, eff. Oct. 13, 2007. Amended by Initiative Measure (Prop. 35, § 11, approved Nov. 6, 2012, eff. Nov. 7, 2012); Stats.2016, c. 772 (S.B.448), § 3, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.014, CA PENAL § 290.014

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.015

§ 290.015. Release from incarceration; registration requirement; information required at registration; failure to register

Effective: January 1, 2017

Currentness

(a) A person who is subject to the Act shall register, or reregister if he or she has previously registered, upon release from incarceration, placement, commitment, or release on probation pursuant to subdivision (b) of Section 290. This section shall not apply to a person who is incarcerated for less than 30 days if he or she has registered as required by the Act, he or she returns after incarceration to the last registered address, and the annual update of registration that is required to occur within five working days of his or her birthday, pursuant to subdivision (a) of Section 290.012, did not fall within that incarceration period. The registration shall consist of all of the following:

(1) A statement in writing signed by the person, giving information as shall be required by the Department of Justice and giving the name and address of the person's employer, and the address of the person's place of employment if that is different from the employer's main address.

(2) The fingerprints and a current photograph of the person taken by the registering official.

(3) The license plate number of any vehicle owned by, regularly driven by, or registered in the name of the person.

(4) A list of all Internet identifiers actually used by the person, as required by Section 290.024.

(5) A statement in writing, signed by the person, acknowledging that the person is required to register and update the information in paragraph (4), as required by this chapter.

(6) Notice to the person that, in addition to the requirements of the Act, he or she may have a duty to register in any other state where he or she may relocate.

(7) Copies of adequate proof of residence, which shall be limited to a California driver's license, California identification card, recent rent or utility receipt, printed personalized checks or other recent banking documents showing that person's name and address, or any other information that the registering official believes is reliable. If the person has no residence and no reasonable expectation of obtaining a residence in the foreseeable future, the person shall so advise the registering official and shall sign a statement provided by the registering official stating that fact. Upon presentation of proof of residence to the registering official

or a signed statement that the person has no residence, the person shall be allowed to register. If the person claims that he or she has a residence but does not have any proof of residence, he or she shall be allowed to register but shall furnish proof of residence within 30 days of the date he or she is allowed to register.

(b) Within three days thereafter, the registering law enforcement agency or agencies shall forward the statement, fingerprints, photograph, and vehicle license plate number, if any, to the Department of Justice.

(c)(1) If a person fails to register in accordance with subdivision (a) after release, the district attorney in the jurisdiction where the person was to be paroled or to be on probation may request that a warrant be issued for the person's arrest and shall have the authority to prosecute that person pursuant to Section 290.018.

(2) If the person was not on parole or probation or on postrelease community supervision or mandatory supervision at the time of release, the district attorney in the following applicable jurisdiction shall have the authority to prosecute that person pursuant to Section 290.018:

(A) If the person was previously registered, in the jurisdiction in which the person last registered.

(B) If there is no prior registration, but the person indicated on the Department of Justice notice of sex offender registration requirement form where he or she expected to reside, in the jurisdiction where he or she expected to reside.

(C) If neither subparagraph (A) nor (B) applies, in the jurisdiction where the offense subjecting the person to registration pursuant to this Act was committed.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 23, eff. Oct. 13, 2007. Amended by Stats.2011, c. 363 (S.B.756), § 1; Initiative Measure (Prop. 35, § 12, approved Nov. 6, 2012, eff. Nov. 7, 2012); Stats.2016, c. 772 (S.B.448), § 4, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.015, CA PENAL § 290.015

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.016

§ 290.016. Preregistration upon incarceration, placement, commitment, or prior to release on probation

Effective: October 13, 2007

Currentness

(a) On or after January 1, 1998, upon incarceration, placement, or commitment, or prior to release on probation, any person who is required to register under the Act shall preregister. The preregistering official shall be the admitting officer at the place of incarceration, placement, or commitment, or the probation officer if the person is to be released on probation. The preregistration shall consist of all of the following:

(1) A preregistration statement in writing, signed by the person, giving information that shall be required by the Department of Justice.

(2) The fingerprints and a current photograph of the person.

(3) Any person who is preregistered pursuant to this subdivision is required to be preregistered only once.

(b) Within three days thereafter, the preregistering official shall forward the statement, fingerprints, photograph, and vehicle license plate number, if any, to the Department of Justice.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 24, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.016, CA PENAL § 290.016

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.017

§ 290.017. Notification of duty to register prior to release from custody or confinement, or release on probation

Effective: October 13, 2007

Currentness

(a) Any person who is released, discharged, or paroled from a jail, state or federal prison, school, road camp, or other institution where he or she was confined, who is required to register pursuant to the Act, shall, prior to discharge, parole, or release, be informed of his or her duty to register under the Act by the official in charge of the place of confinement or hospital, and the official shall require the person to read and sign any form that may be required by the Department of Justice, stating that the duty of the person to register under the Act has been explained to the person. The official in charge of the place of confinement or hospital shall obtain the address where the person expects to reside upon his or her discharge, parole, or release and shall report the address to the Department of Justice. The official shall at the same time forward a current photograph of the person to the Department of Justice.

(b) The official in charge of the place of confinement or hospital shall give one copy of the form to the person and shall send one copy to the Department of Justice and one copy to the appropriate law enforcement agency or agencies having jurisdiction over the place the person expects to reside upon discharge, parole, or release. If the conviction that makes the person subject to the Act is a felony conviction, the official in charge shall, not later than 45 days prior to the scheduled release of the person, send one copy to the appropriate law enforcement agency or agencies having local jurisdiction where the person expects to reside upon discharge, parole, or release; one copy to the prosecuting agency that prosecuted the person; and one copy to the Department of Justice. The official in charge of the place of confinement or hospital shall retain one copy.

(c) Any person who is required to register pursuant to the Act and who is released on probation, shall, prior to release or discharge, be informed of the duty to register under the Act by the probation department, and a probation officer shall require the person to read and sign any form that may be required by the Department of Justice, stating that the duty of the person to register has been explained to him or her. The probation officer shall obtain the address where the person expects to reside upon release or discharge and shall report within three days the address to the Department of Justice. The probation officer shall give one copy of the form to the person, send one copy to the Department of Justice, and forward one copy to the appropriate law enforcement agency or agencies having local jurisdiction where the person expects to reside upon his or her discharge, parole, or release.

(d) Any person who is required to register pursuant to the Act and who is granted conditional release without supervised probation, or discharged upon payment of a fine, shall, prior to release or discharge, be informed of the duty to register under the Act in open court by the court in which the person has been convicted, and the court shall require the person to read and sign any form that may be required by the Department of Justice, stating that the duty of the person to register has been explained to him or her. If the court finds that it is in the interest of the efficiency of the court, the court may assign the bailiff to require the person to read and sign forms under the Act. The court shall obtain the address where the person expects to reside upon

release or discharge and shall report within three days the address to the Department of Justice. The court shall give one copy of the form to the person, send one copy to the Department of Justice, and forward one copy to the appropriate law enforcement agency or agencies having local jurisdiction where the person expects to reside upon his or her discharge, parole, or release.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 25, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.017, CA PENAL § 290.017

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.018

§ 290.018. Penalties for violation

Effective: January 1, 2017

Currentness

- (a) A person who is required to register under the Act based on a misdemeanor conviction or juvenile adjudication who willfully violates any requirement of the act is guilty of a misdemeanor punishable by imprisonment in a county jail not exceeding one year.
- (b) Except as provided in subdivisions (f), (h), (i), and (k), a person who is required to register under the act based on a felony conviction or juvenile adjudication who willfully violates any requirement of the act or who has a prior conviction or juvenile adjudication for the offense of failing to register under the act and who subsequently and willfully violates any requirement of the act is guilty of a felony and shall be punished by imprisonment in the state prison for 16 months, or two or three years.
- (c) If probation is granted or if the imposition or execution of sentence is suspended, it shall be a condition of the probation or suspension that the person serve at least 90 days in a county jail. The penalty described in subdivision (b) or this subdivision shall apply whether or not the person has been released on parole or has been discharged from parole.
- (d) A person determined to be a mentally disordered sex offender or who has been found guilty in the guilt phase of trial for an offense for which registration is required under the act, but who has been found not guilty by reason of insanity in the sanity phase of the trial, or who has had a petition sustained in a juvenile adjudication for an offense for which registration is required pursuant to Section 290.008, but who has been found not guilty by reason of insanity, who willfully violates any requirement of the act is guilty of a misdemeanor and shall be punished by imprisonment in a county jail not exceeding one year. For any second or subsequent willful violation of any requirement of the act, the person is guilty of a felony and shall be punished by imprisonment in the state prison for 16 months, or two or three years.
- (e) If, after discharge from parole, the person is convicted of a felony or suffers a juvenile adjudication as specified in this act, he or she shall be required to complete parole of at least one year, in addition to any other punishment imposed under this section. A person convicted of a felony as specified in this section may be granted probation only in the unusual case where the interests of justice would best be served. When probation is granted under this act, the court shall specify on the record and shall enter into the minutes the circumstances indicating that the interests of justice would best be served by the disposition.
- (f) A person who has ever been adjudicated a sexually violent predator, as defined in Section 6600 of the Welfare and Institutions Code, and who fails to verify his or her registration every 90 days as required pursuant to subdivision (b) of Section 290.012, shall be punished by imprisonment in the state prison or in a county jail not exceeding one year.

(g) Except as otherwise provided in subdivision (f), a person who is required to register or reregister pursuant to Section 290.011 and willfully fails to comply with the requirement that he or she reregister no less than every 30 days is guilty of a misdemeanor and shall be punished by imprisonment in a county jail for at least 30 days, but not exceeding six months. A person who willfully fails to comply with the requirement that he or she reregister no less than every 30 days shall not be charged with this violation more often than once for a failure to register in any period of 90 days. A person who willfully commits a third or subsequent violation of the requirements of Section 290.011 that he or she reregister no less than every 30 days shall be punished in accordance with either subdivision (a) or (b).

(h) A person who fails to provide proof of residence as required by paragraph (7) of subdivision (a) of Section 290.015, regardless of the offense upon which the duty to register is based, is guilty of a misdemeanor punishable by imprisonment in a county jail not exceeding six months.

(i) A person who fails to provide his or her Internet identifiers, as required by paragraph (4) of subdivision (a) of Section 290.015, regardless of the offense upon which the duty to register is based, is guilty of a misdemeanor punishable in a county jail not exceeding six months.

(j) A person who is required to register under the act who willfully violates any requirement of the act is guilty of a continuing offense as to each requirement he or she violated.

(k) In addition to any other penalty imposed under this section, the failure to provide information required on registration and reregistration forms of the Department of Justice, or the provision of false information, is a crime punishable by imprisonment in a county jail for a period not exceeding one year. This subdivision shall not be construed to limit or prevent prosecution under any applicable law.

(l) Whenever a person is released on parole or probation and is required to register under the act but fails to do so within the time prescribed, the parole authority or the court, as the case may be, shall order the parole or probation of the person revoked. For purposes of this subdivision, "parole authority" has the same meaning as described in Section 3000.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 26, eff. Oct. 13, 2007. Amended by Stats.2009, c. 60 (S.B.668), § 1; Stats.2011, c. 15 (A.B.109), § 318, eff. April 4, 2011, operative Oct. 1, 2011; Stats.2011, c. 39 (A.B.117), § 13, eff. June 30, 2011, operative Oct. 1, 2011; Stats.2016, c. 772 (S.B.448), § 6, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.018, CA PENAL § 290.018

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.019

§ 290.019. Relief from duty to register for decriminalized sex offenses; procedure for obtaining

Effective: January 1, 2020

Currentness

(a) Notwithstanding any other section in the Act, a person who was convicted before January 1, 1976, under subdivision (a) of Section 286, or former Section 288a, shall not be required to register pursuant to the Act for that conviction if the conviction was for conduct between consenting adults that was decriminalized by Chapter 71 of the Statutes of 1975 or Chapter 1139 of the Statutes of 1976. The Department of Justice shall remove that person from the California Sex Offender Registry, and the person is discharged from the person's duty to register pursuant to either of the following procedures:

(1) The person submits to the Department of Justice official documentary evidence, including court records or police reports, that demonstrate that the person's conviction pursuant to either of those sections was for conduct between consenting adults that was decriminalized.

(2) The person submits to the department a declaration stating that the person's conviction pursuant to either of those sections was for consensual conduct between adults that has been decriminalized. The declaration shall be confidential and not a public record, and shall include the person's name, address, telephone number, date of birth, and a summary of the circumstances leading to the conviction, including the date of the conviction and county of the occurrence.

(b) The department shall determine whether the person's conviction was for conduct between consensual adults that has been decriminalized. If the conviction was for consensual conduct between adults that has been decriminalized, and the person has no other offenses for which the person is required to register pursuant to the Act, the department shall, within 60 days of receipt of those documents, notify the person that the person is relieved of the duty to register, and shall notify the local law enforcement agency with which the person is registered that the person has been relieved of the duty to register. The local law enforcement agency shall remove the person's registration from its files within 30 days of receipt of notification. If the documentary or other evidence submitted is insufficient to establish the person's claim, the department shall, within 60 days of receipt of those documents, notify the person that the person's claim cannot be established, and that the person shall continue to register pursuant to the Act. The department shall provide, upon the person's request, any information relied upon by the department in making its determination that the person shall continue to register pursuant to the Act. Any person whose claim has been denied by the department pursuant to this subdivision may petition the court to appeal the department's denial of the person's claim.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 27, eff. Oct. 13, 2007. Amended by Stats.2018, c. 423 (S.B.1494), § 56, eff. Jan. 1, 2019; Stats.2019, c. 497 (A.B.991), § 193, eff. Jan. 1, 2020.)

West's Ann. Cal. Penal Code § 290.019, CA PENAL § 290.019

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.020

§ 290.020. Release of registrant on temporary assignment for
firefighting or disaster control; notice to local law enforcement agency

Effective: October 13, 2007

Currentness

In any case in which a person who would be required to register pursuant to the Act for a felony conviction is to be temporarily sent outside the institution where he or she is confined on any assignment within a city or county including firefighting, disaster control, or of whatever nature the assignment may be, the local law enforcement agency having jurisdiction over the place or places where the assignment shall occur shall be notified within a reasonable time prior to removal from the institution. This section shall not apply to any person who is temporarily released under guard from the institution where he or she is confined.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 28, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.020, CA PENAL § 290.020

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.021

§ 290.021. Statements, fingerprints, and photographs of registrants;
inspection limited to peace officers and other law enforcement officers

Effective: October 13, 2007

Currentness

Except as otherwise provided by law, the statements, photographs, and fingerprints required by the Act shall not be open to inspection by the public or by any person other than a regularly employed peace officer or other law enforcement officer.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 29, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.021, CA PENAL § 290.021

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.022

§ 290.022. Department of Justice; renovation of Violent Crime Information Network (VCIN) by specified date

Effective: October 13, 2007

Currentness

On or before July 1, 2010, the Department of Justice shall renovate the VCIN to do the following:

- (1) Correct all software deficiencies affecting data integrity and include designated data fields for all mandated sex offender data.
- (2) Consolidate and simplify program logic, thereby increasing system performance and reducing system maintenance costs.
- (3) Provide all necessary data storage, processing, and search capabilities.
- (4) Provide law enforcement agencies with full Internet access to all sex offender data and photos.
- (5) Incorporate a flexible design structure to readily meet future demands for enhanced system functionality, including public Internet access to sex offender information pursuant to Section 290.46.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 30, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.022, CA PENAL § 290.022

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.023

§ 290.023. Scope of Sex Offender Registration Act; retroactive application

Effective: October 13, 2007

Currentness

The registration provisions of the Act are applicable to every person described in the Act, without regard to when his or her crime or crimes were committed or his or her duty to register pursuant to the Act arose, and to every offense described in the Act, regardless of when it was committed.

Credits

(Added by Stats.2007, c. 579 (S.B.172), § 31, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.023, CA PENAL § 290.023

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.024

§ 290.024. Registration of Internet identifiers; criteria; “Internet identifier” and “private information” defined

Effective: January 1, 2017

Currentness

For purposes of this chapter:

(a) A person who is convicted of a felony on or after January 1, 2017, requiring registration pursuant to the Act, shall register his or her Internet identifiers if a court determines at the time of sentencing that any of the following apply:

(1) The person used the Internet to collect any private information to identify the victim of the crime to further the commission of the crime.

(2) The person was convicted of a felony pursuant to subdivision (b) or (c) of Section 236.1 and used the Internet to traffic the victim of the crime.

(3) The person was convicted of a felony pursuant to Chapter 7.5 (commencing with Section 311) and used the Internet to prepare, publish, distribute, send, exchange, or download the obscene matter or matter depicting a minor engaging in sexual conduct, as defined in subdivision (d) of Section 311.4.

(b) For purposes of this chapter:

(1) “Internet identifier” means any electronic mail address or user name used for instant messaging or social networking that is actually used for direct communication between users on the Internet in a manner that makes the communication not accessible to the general public. “Internet identifier” does not include Internet passwords, date of birth, social security number, or PIN number.

(2) “Private information” means any information that identifies or describes an individual, including, but not limited to, his or her name; electronic mail, chat, instant messenger, social networking, or similar name used for Internet communication; social security number; account numbers; passwords; personal identification numbers; physical description; physical location; home address; home telephone number; education; financial matters; medical or employment history; and statements made by, or attributed to, the individual.

Credits

(Added by Initiative Measure (Prop. 35, § 13, approved Nov. 6, 2012, eff. Nov. 7, 2012). Amended by Stats.2016, c. 772 (S.B.448), § 7, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.024, CA PENAL § 290.024

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.01

§ 290.01. Students or employees of universities, colleges, community colleges, or other institutions of higher learning; additional registration requirements; release of information to campus community

Effective: October 13, 2007

Currentness

(a)(1) Commencing October 28, 2002, every person required to register pursuant to Sections 290 to 290.009, inclusive, of the Sex Offender Registration Act who is enrolled as a student of any university, college, community college, or other institution of higher learning, or is, with or without compensation, a full-time or part-time employee of that university, college, community college, or other institution of higher learning, or is carrying on a vocation at the university, college, community college, or other institution of higher learning, for more than 14 days, or for an aggregate period exceeding 30 days in a calendar year, shall, in addition to the registration required by the Sex Offender Registration Act, register with the campus police department within five working days of commencing enrollment or employment at that university, college, community college, or other institution of higher learning, on a form as may be required by the Department of Justice. The terms “employed or carries on a vocation” include employment whether or not financially compensated, volunteered, or performed for government or educational benefit. The registrant shall also notify the campus police department within five working days of ceasing to be enrolled or employed, or ceasing to carry on a vocation, at the university, college, community college, or other institution of higher learning.

(2) For purposes of this section, a campus police department is a police department of the University of California, California State University, or California Community College, established pursuant to Section 72330, 89560, or 92600 of the Education Code, or is a police department staffed with deputized or appointed personnel with peace officer status as provided in Section 830.6 of the Penal Code and is the law enforcement agency with the primary responsibility for investigating crimes occurring on the college or university campus on which it is located.

(b) If the university, college, community college, or other institution of higher learning has no campus police department, the registrant shall instead register pursuant to subdivision (a) with the police of the city in which the campus is located or the sheriff of the county in which the campus is located if the campus is located in an unincorporated area or in a city that has no police department, on a form as may be required by the Department of Justice. The requirements of subdivisions (a) and (b) are in addition to the requirements of the Sex Offender Registration Act.

(c) A first violation of this section is a misdemeanor punishable by a fine not to exceed one thousand dollars (\$1,000). A second violation of this section is a misdemeanor punishable by imprisonment in a county jail for not more than six months, by a fine not to exceed one thousand dollars (\$1,000), or by both that imprisonment and fine. A third or subsequent violation of this section is a misdemeanor punishable by imprisonment in a county jail for not more than one year, by a fine not exceeding one thousand dollars (\$1,000), or by both that imprisonment and fine.

(d)(1)(A) The following information regarding a registered sex offender on campus as to whom information shall not be made available to the public via the Internet Web site as provided in Section 290.46 may be released to members of the campus community by any campus police department or, if the university, college, community college, or other institution of higher learning has no police department, the police department or sheriff's department with jurisdiction over the campus, and any employees of those agencies, as required by Section 1092(f)(1)(I) of Title 20 of the United States Code:

(i) The offender's full name.

(ii) The offender's known aliases.

(iii) The offender's gender.

(iv) The offender's race.

(v) The offender's physical description.

(vi) The offender's photograph.

(vii) The offender's date of birth.

(viii) Crimes resulting in registration under Section 290.

(ix) The date of last registration or reregistration.

(B) The authority provided in this subdivision is in addition to the authority of a peace officer or law enforcement agency to provide information about a registered sex offender pursuant to Section 290.45, and exists notwithstanding Section 290.021 or any other provision of law.

(2) Any law enforcement entity and employees of any law enforcement entity listed in paragraph (1) shall be immune from civil or criminal liability for good faith conduct under this subdivision.

(3) Nothing in this subdivision shall be construed to authorize campus police departments or, if the university, college, community college, or other institution has no police department, the police department or sheriff's department with jurisdiction over the campus, to make disclosures about registrants intended to reach persons beyond the campus community.

(4)(A) Before being provided any information by an agency pursuant to this subdivision, a member of the campus community who requests that information shall sign a statement, on a form provided by the Department of Justice, stating that he or she is not a registered sex offender, that he or she understands the purpose of the release of information is to allow members of the campus community to protect themselves and their children from sex offenders, and that he or she understands it is unlawful to use

information obtained pursuant to this subdivision to commit a crime against any registrant or to engage in illegal discrimination or harassment of any registrant. The signed statement shall be maintained in a file in the agency's office for a minimum of five years.

(B) An agency disseminating printed information pursuant to this subdivision shall maintain records of the means and dates of dissemination for a minimum of five years.

(5) For purposes of this subdivision, “campus community” means those persons present at, and those persons regularly frequenting, any place associated with an institution of higher education, including campuses; administrative and educational offices; laboratories; satellite facilities owned or utilized by the institution for educational instruction, business, or institutional events; and public areas contiguous to any campus or facility that are regularly frequented by students, employees, or volunteers of the campus.

Credits

(Added by Stats.2001, c. 544 (A.B.4), § 2. Amended by Stats.2003, c. 634 (A.B.1313), § 2, eff. Sept. 30, 2003; Stats.2004, c. 405 (S.B.1796), § 7; Stats.2005, c. 722 (A.B.1323), § 4, eff. Oct. 7, 2005; Stats.2007, c. 579 (S.B.172), § 32, eff. Oct. 13, 2007.)

West's Ann. Cal. Penal Code § 290.01, CA PENAL § 290.01

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.02

§ 290.02. Preventing use of publicly-funded prescription drugs or therapies to
treat erectile dysfunction in convicted sex offenders; information disclosure

Effective: October 4, 2005

Currentness

(a) Notwithstanding any other law, the Department of Justice shall identify the names of persons required to register pursuant to Section 290 from a list of persons provided by the requesting agency, and provide those names and other information necessary to verify proper identification, to any state governmental entity responsible for authorizing or providing publicly funded prescription drugs or other therapies to treat erectile dysfunction of those persons. State governmental entities shall use information received pursuant to this section to protect public safety by preventing the use of prescription drugs or other therapies to treat erectile dysfunction by convicted sex offenders.

(b) Use or disclosure of the information disclosed pursuant to this section is prohibited for any purpose other than that authorized by this section or Section 14133.225 of the Welfare and Institutions Code. The Department of Justice may establish a fee for requests, including all actual and reasonable costs associated with the service.

(c) Notwithstanding any other provision of law, any state governmental entity that is responsible for authorizing or providing publicly funded prescription drugs or other therapies to treat erectile dysfunction may use the sex offender database authorized by Section 290.46 to protect public safety by preventing the use of those drugs or therapies for convicted sex offenders.

Credits

(Added by Stats.2005, c. 469 (A.B.522), § 2, eff. Oct. 4, 2005.)

West's Ann. Cal. Penal Code § 290.02, CA PENAL § 290.02

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.03

§ 290.03. Identification, assessment, monitoring, and containment of sex offenders

Effective: September 20, 2006

Currentness

(a) The Legislature finds and declares that a comprehensive system of risk assessment, supervision, monitoring and containment for registered sex offenders residing in California communities is necessary to enhance public safety and reduce the risk of recidivism posed by these offenders. The Legislature further affirms and incorporates the following findings and declarations, previously reflected in its enactment of “Megan's Law”:

(1) Sex offenders pose a potentially high risk of committing further sex offenses after release from incarceration or commitment, and the protection of the public from reoffending by these offenders is a paramount public interest.

(2) It is a compelling and necessary public interest that the public have information concerning persons convicted of offenses involving unlawful sexual behavior collected pursuant to Sections 290 and 290.4 to allow members of the public to adequately protect themselves and their children from these persons.

(3) Persons convicted of these offenses involving unlawful sexual behavior have a reduced expectation of privacy because of the public's interest in public safety.

(4) In balancing the offenders' due process and other rights against the interests of public security, the Legislature finds that releasing information about sex offenders under the circumstances specified in the Sex Offender Punishment, Control, and Containment Act of 2006 will further the primary government interest of protecting vulnerable populations from potential harm.

(5) The registration of sex offenders, the public release of specified information about certain sex offenders pursuant to Sections 290 and 290.4, and public notice of the presence of certain high risk sex offenders in communities will further the governmental interests of public safety and public scrutiny of the criminal and mental health systems that deal with these offenders.

(6) To protect the safety and general welfare of the people of this state, it is necessary to provide for continued registration of sex offenders, for the public release of specified information regarding certain more serious sex offenders, and for community notification regarding high risk sex offenders who are about to be released from custody or who already reside in communities in this state. This policy of authorizing the release of necessary and relevant information about serious and high risk sex offenders to members of the general public is a means of assuring public protection and shall not be construed as punitive.

(7) The Legislature also declares, however, that in making information available about certain sex offenders to the public, it does not intend that the information be used to inflict retribution or additional punishment on any person convicted of a sex offense. While the Legislature is aware of the possibility of misuse, it finds that the dangers to the public of nondisclosure far outweigh the risk of possible misuse of the information. The Legislature is further aware of studies in Oregon and Washington indicating that community notification laws and public release of similar information in those states have resulted in little criminal misuse of the information and that the enhancement to public safety has been significant.

(b) In enacting the Sex Offender Punishment, Control, and Containment Act of 2006, the Legislature hereby creates a standardized, statewide system to identify, assess, monitor and contain known sex offenders for the purpose of reducing the risk of recidivism posed by these offenders, thereby protecting victims and potential victims from future harm.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 12, eff. Sept. 20, 2006.)

West's Ann. Cal. Penal Code § 290.03, CA PENAL § 290.03

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.04

§ 290.04. State-Authorized Risk Assessment Tool for Sex Offenders (SARATSO); SARATSO review committee

Effective: June 27, 2012

Currentness

(a)(1) The sex offender risk assessment tools authorized by this section for use with selected populations shall be known, with respect to each population, as the State-Authorized Risk Assessment Tool for Sex Offenders (SARATSO). If a SARATSO has not been selected for a given population pursuant to this section, no duty to administer the SARATSO elsewhere in this code shall apply with respect to that population. Every person required to register as a sex offender shall be subject to assessment with the SARATSO as set forth in this section and elsewhere in this code.

(2) A representative of the Department of Corrections and Rehabilitation, in consultation with a representative of the State Department of State Hospitals and a representative of the Attorney General's office, shall comprise the SARATSO Review Committee. The purpose of the committee, which shall be staffed by the Department of Corrections and Rehabilitation, shall be to ensure that the SARATSO reflects the most reliable, objective, and well-established protocols for predicting sex offender risk of recidivism, has been scientifically validated and cross validated, and is, or is reasonably likely to be, widely accepted by the courts. The committee shall consult with experts in the fields of risk assessment and the use of actuarial instruments in predicting sex offender risk, sex offending, sex offender treatment, mental health, and law, as it deems appropriate.

(b)(1) Commencing January 1, 2007, the SARATSO for adult males required to register as sex offenders shall be the STATIC-99 risk assessment scale, which shall be the SARATSO static tool for adult males.

(2) The SARATSO Review Committee shall determine whether the STATIC-99 should be supplemented with an empirically derived instrument that measures dynamic risk factors or whether the STATIC-99 should be replaced as the SARATSO with a different risk assessment tool. The SARATSO Review Committee shall select an empirically derived instrument that measures dynamic risk factors and an empirically derived instrument that measures risk of future violence. The selected instruments shall be the SARATSO dynamic tool for adult males and the SARATSO future violence tool for adult males. If the committee unanimously agrees on changes to be made to a designated SARATSO, it shall advise the Governor and the Legislature of the changes, and the Department of Corrections and Rehabilitation shall post the decision on its Internet Web site. Sixty days after the decision is posted, the selected tool shall become the SARATSO for adult males.

(c) On or before July 1, 2007, the SARATSO Review Committee shall research risk assessment tools for adult females required to register as sex offenders. If the committee unanimously agrees on an appropriate risk assessment tool to be used to assess this population, it shall advise the Governor and the Legislature of the selected tool, and the State Department of Mental Health shall

post the decision on its Internet Web site. Sixty days after the decision is posted, the selected tool shall become the SARATSO for adult females.

(d) On or before July 1, 2007, the SARATSO Review Committee shall research risk assessment tools for male juveniles required to register as sex offenders. If the committee unanimously agrees on an appropriate risk assessment tool to be used to assess this population, it shall advise the Governor and the Legislature of the selected tool, and the State Department of Mental Health shall post the decision on its Internet Web site. Sixty days after the decision is posted, the selected tool shall become the SARATSO for male juveniles.

(e) On or before July 1, 2007, the SARATSO Review Committee shall research risk assessment tools for female juveniles required to register as sex offenders. If the committee unanimously agrees on an appropriate risk assessment tool to be used to assess this population, it shall advise the Governor and the Legislature of the selected tool, and the State Department of Mental Health shall post the decision on its Internet Web site. Sixty days after the decision is posted, the selected tool shall become the SARATSO for female juveniles.

(f) The committee shall periodically evaluate the SARATSO static, dynamic, and risk of future violence tools for each specified population. If the committee unanimously agrees on a change to the SARATSO for any population, it shall advise the Governor and the Legislature of the selected tool, and the Department of Corrections and Rehabilitation shall post the decision on its Internet Web site. Sixty days after the decision is posted, the selected tool shall become the SARATSO for that population.

(g) The committee shall perform other functions consistent with the provisions of this act or as may be otherwise required by law, including, but not limited to, defining tiers of risk based on the SARATSO. The committee shall be immune from liability for good faith conduct under this act.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 13, eff. Sept. 20, 2006. Amended by Stats.2007, c. 579 (S.B.172), § 33, eff. Oct. 13, 2007; Stats.2009, c. 582 (S.B.325), § 1; Stats.2010, c. 219 (A.B.1844), § 10, eff. Sept. 9, 2010; Stats.2011, c. 357 (A.B.813), § 2; Stats.2012, c. 24 (A.B.1470), § 15, eff. June 27, 2012.)

West's Ann. Cal. Penal Code § 290.04, CA PENAL § 290.04

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.05

§ 290.05. SARATSO Training Committee; membership; training program;
submission of risk level override requests; authorized purposes and administrators

Effective: June 27, 2012

Currentness

(a) The SARATSO Training Committee shall be comprised of a representative of the State Department of State Hospitals, a representative of the Department of Corrections and Rehabilitation, a representative of the Attorney General's Office, and a representative of the Chief Probation Officers of California.

(b) On or before January 1, 2008, the SARATSO Training Committee, in consultation with the Corrections Standards Authority and the Commission on Peace Officer Standards and Training, shall develop a training program for persons authorized by this code to administer the static SARATSO, as set forth in Section 290.04.

(c)(1) The Department of Corrections and Rehabilitation shall be responsible for overseeing the training of persons who will administer the static SARATSO pursuant to paragraph (1) or (2) of subdivision (a) of Section 290.06.

(2) The State Department of State Hospitals shall be responsible for overseeing the training of persons who will administer the static SARATSO pursuant to paragraph (3) of subdivision (a) of Section 290.06.

(3) The Correction Standards Authority shall be responsible for developing standards for the training of persons who will administer the static SARATSO pursuant to paragraph (5) or (6) of subdivision (a) of Section 290.06.

(4) The Commission on Peace Officer Standards and Training shall be responsible for developing standards for the training of persons who will administer the static SARATSO pursuant to subdivision (b) of Section 290.06.

(d) The training shall be conducted by experts in the field of risk assessment and the use of actuarial instruments in predicting sex offender risk. Subject to requirements established by the committee, the Department of Corrections and Rehabilitation, the State Department of State Hospitals, probation departments, and authorized local law enforcement agencies shall designate key persons within their organizations to attend training and, as authorized by the department, to train others within their organizations designated to perform risk assessments as required or authorized by law. Any person who administers the static SARATSO shall receive training no less frequently than every two years.

(e) If the agency responsible for scoring the static SARATSO believes an individual score does not represent the person's true risk level, based on factors in the offender's record, the agency may submit the case to the experts retained by the SARATSO Review Committee to monitor the scoring of the SARATSO. Those experts shall be guided by empirical research in determining whether to raise or lower the risk level. Agencies that score the static SARATSO shall develop a protocol for submission of risk level override requests to the experts retained in accordance with this subdivision.

(f) The static SARATSO may be performed for purposes authorized by statute only by persons trained pursuant to this section. Persons who administer the dynamic SARATSO and the future violence SARATSO shall be trained to administer the dynamic and future violence SARATSO tools as required in Section 290.09. Probation officers or parole agents may be trained by SARATSO experts on the dynamic SARATSO tool and perform assessments on that tool only if authorized by the SARATSO Training Committee to do so after successful completion of training.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 14, eff. Sept. 20, 2006. Amended by Stats.2007, c. 579 (S.B.172), § 34, eff. Oct. 13, 2007; Stats.2009, c. 582 (S.B.325), § 2; Stats.2010, c. 219 (A.B.1844), § 11, eff. Sept. 9, 2010; Stats.2010, c. 302 (S.B.5), § 3.5, eff. Sept. 27, 2010; Stats.2012, c. 24 (A.B.1470), § 16, eff. June 27, 2012.)

West's Ann. Cal. Penal Code § 290.05, CA PENAL § 290.05

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.06

§ 290.06. Administration of static SARATSO

Effective: January 1, 2017

Currentness

The static SARATSO, as set forth in Section 290.04, shall be administered as follows:

(a)(1) The Department of Corrections and Rehabilitation shall assess every eligible person who is incarcerated in state prison. Whenever possible, the assessment shall take place at least four months, but no sooner than 10 months, prior to release from incarceration.

(2) The department shall assess every eligible person who is on parole if the person was not assessed prior to release from state prison. Whenever possible, the assessment shall take place at least four months, but no sooner than 10 months, prior to termination of parole. The department shall record in a database the risk assessment scores of persons assessed pursuant to this paragraph and paragraph (1), and any risk assessment score that was submitted to the department by a probation officer pursuant to Section 1203.

(3) The department shall assess every person on parole transferred from any other state or by the federal government to this state who has been, or is hereafter convicted in any other court, including any state, federal, or military court, of any offense that, if committed or attempted in this state, would have been punishable as one or more of the offenses described in subdivision (c) of Section 290. The assessment required by this paragraph shall occur no later than 60 days after a determination by the Department of Justice that the person is required to register as a sex offender in California pursuant to Section 290.005.

(4) The State Department of State Hospitals shall assess every eligible person who is committed to that department. Whenever possible, the assessment shall take place at least four months, but no sooner than 10 months, prior to release from commitment. The State Department of State Hospitals shall record in a database the risk assessment scores of persons assessed pursuant to this paragraph and any risk assessment score that was submitted to the department by a probation officer pursuant to Section 1203.

(5) Commencing January 1, 2010, the Department of Corrections and Rehabilitation and the State Department of State Hospitals shall send the scores obtained in accordance with paragraphs (2), (3), and (4) to the Department of Justice not later than 30 days after the date of the assessment. The risk assessment score of an offender shall be made part of his or her file maintained by the Department of Justice as soon as possible without financial impact, but no later than January 1, 2012.

(6) Each probation department shall, prior to sentencing, assess every eligible person as defined in subdivision (c), whether or not a report is prepared pursuant to Section 1203.

(7) Each probation department shall assess every eligible person under its supervision who was not assessed pursuant to paragraph (6). The assessment shall take place prior to the termination of probation, but no later than January 1, 2010.

(b) Eligible persons not assessed pursuant to subdivision (a) may be assessed as follows:

(1) Upon request of the law enforcement agency in the jurisdiction in which the person is registered pursuant to Sections 290 to 290.023, inclusive, the person shall be assessed. The law enforcement agency may enter into a memorandum of understanding with a probation department to perform the assessment. In the alternative, the law enforcement agency may arrange to have personnel trained to perform the risk assessment in accordance with subdivision (d) of Section 290.05.

(2) Eligible persons not assessed pursuant to subdivision (a) may request that a risk assessment be performed. A request form shall be available at registering law enforcement agencies. The person requesting the assessment shall pay a fee for the assessment that shall be sufficient to cover the cost of the assessment. The risk assessment so requested shall be performed either by the probation department, if a memorandum of understanding is established between the law enforcement agency and the probation department, or by personnel who have been trained to perform risk assessment in accordance with subdivision (d) of Section 290.05.

(c) For purposes of this section, “eligible person” means a person who was convicted of an offense that requires him or her to register as a sex offender pursuant to the Sex Offender Registration Act and who is eligible for assessment, pursuant to the official Coding Rules designated for use with the risk assessment instrument by the author of any risk assessment instrument (SARATSO) selected by the SARATSO Review Committee.

(d) Persons authorized to perform risk assessments pursuant to this section, Section 1203, and Section 706 of the Welfare and Institutions Code shall be immune from liability for good faith conduct under this act.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 15, eff. Sept. 20, 2006. Amended by Stats.2009, c. 582 (S.B.325), § 3; Stats.2010, c. 219 (A.B.1844), § 12, eff. Sept. 9, 2010; Stats.2010, c. 709 (S.B.1062), § 11; Stats.2010, c. 710 (S.B.1201), § 1.7; Stats.2012, c. 24 (A.B.1470), § 17, eff. June 27, 2012; Stats.2016, c. 59 (S.B.1474), § 1, eff. Jan. 1, 2017.)

West's Ann. Cal. Penal Code § 290.06, CA PENAL § 290.06

Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

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Title 9. Of Crimes Against the Person Involving Sexual Assault, and Crimes Against Public Decency and Good
Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.07

§ 290.07. Access to sex offender records by persons authorized to
administer SARATSO or authorized to train, monitor, or review scoring

Effective: January 1, 2023

Currentness

Notwithstanding any other provision of law, a person authorized by statute to administer the State Authorized Risk Assessment Tool for Sex Offenders (SARATSO) and trained pursuant to Section 290.06 or 290.09, and a person acting under authority from the SARATSO Review Committee as an expert to train, monitor, or review scoring by persons who administer the SARATSO pursuant to Section 290.05 or 1203 of this code or Section 706 of the Welfare and Institutions Code, shall be granted access to all relevant records pertaining to a registered sex offender, including, but not limited to, criminal histories, sex offender registration records, police reports, probation and presentencing reports, judicial records and case files, juvenile records, psychological evaluations and psychiatric hospital reports, sexually violent predator treatment program reports, and records that have been sealed by the courts or the Department of Justice. Records and information obtained under this section shall not be subject to the California Public Records Act, Division 10 (commencing with Section 7920.000) of Title 1 of the Government Code.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 16, eff. Sept. 20, 2006. Amended by Stats.2009, c. 582 (S.B.325), § 4; Stats.2012, c. 174 (A.B.1835), § 1; Stats.2021, c. 615 (A.B.474), § 332, eff. Jan. 1, 2022, operative Jan. 1, 2023.)

West's Ann. Cal. Penal Code § 290.07, CA PENAL § 290.07

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.08

§ 290.08. Retention of registered sex offender records; time period

Effective: September 20, 2006

Currentness

Every district attorney's office and the Department of Justice shall retain records relating to a person convicted of an offense for which registration is required pursuant to Section 290 for a period of 75 years after disposition of the case.

Credits

(Added by Stats.2006, c. 337 (S.B.1128), § 17, eff. Sept. 20, 2006.)

West's Ann. Cal. Penal Code § 290.08, CA PENAL § 290.08

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.09

§ 290.09. Administration of SARATSO dynamic tool and SARATSO future violence tool

Effective: January 1, 2025

Currentness

On or before July 2012, the SARATSO dynamic tool and the SARATSO future violence tool, as set forth in Section 290.04, shall be administered as follows:

(a)(1) Every sex offender required to register pursuant to Sections 290 to 290.023, inclusive, shall, while on parole or formal probation, participate in an approved sex offender management program pursuant to Sections 1203.067 and 3008.

(2) The sex offender management program shall meet the certification requirements developed by the California Sex Offender Management Board pursuant to Section 9003. Probation departments and the Department of Corrections and Rehabilitation shall not employ or contract with, and shall not allow a sex offender to employ or contract with, an individual or entity to provide sex offender evaluation or treatment services pursuant to this section unless the sex offender evaluation or treatment services to be provided by the individual or entity conform with the standards developed pursuant to Section 9003.

(b)(1) The sex offender management professionals certified by the California Sex Offender Management Board in accordance with Section 9003 who provide sex offender management programs for a probation department or the Department of Corrections and Rehabilitation shall assess each registered sex offender on formal probation or parole using the SARATSO dynamic tool when a dynamic risk factor changes and shall do a final dynamic assessment within six months of the offender's release from supervision. The management professional shall also assess the sex offenders in the program with the SARATSO future violence tool.

(2) The certified sex offender management professional shall, as soon as possible but not later than 30 days after the assessment, provide the person's score on the SARATSO dynamic tool and the future violence tool to the person's parole agent or probation officer. Within 30 days of the assessment, a certified sex offender management professional shall send the score to the Department of Justice using the dynamic and violence risk assessment tool database used by SARATSO. The score shall be accessible to law enforcement through the Department of Justice's internet website for the California Sex and Arson Registry (CSAR).

(c) The certified sex offender management professional shall communicate with the offender's probation officer or parole agent on a regular basis, but at least once a month, about the offender's progress in the program and dynamic risk assessment issues and shall share pertinent information with the certified polygraph examiner as required.

(d) The SARATSO Training Committee shall provide annual training on the SARATSO dynamic tool and the SARATSO future violence tool. Certified sex offender management professionals shall attend this training once to obtain authorization to perform the assessments and thereafter attend training updates as required by the SARATSO Training Committee. If a sex offender management professional is certified pursuant to Section 9003 to conduct an approved sex offender management program prior to attending SARATSO training on the dynamic and violent risk assessment tools, they shall present to the SARATSO Training Committee proof of training on these tools from a risk assessment expert approved by the SARATSO Training Committee.

Credits

(Added by Stats.2010, c. 219 (A.B.1844), § 13, eff. Sept. 9, 2010. Amended by Stats.2010, c. 302 (S.B.5), § 4, eff. Sept. 27, 2010; Stats.2011, c. 357 (A.B.813), § 3; Stats.2024, c. 191 (S.B.1473), § 1, eff. Jan. 1, 2025.)

West's Ann. Cal. Penal Code § 290.09, CA PENAL § 290.09

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.1

§ 290.1. Repealed by Stats.2005, c. 704 (A.B.439), § 2

Effective: January 1, 2006

Currentness

West's Ann. Cal. Penal Code § 290.1, CA PENAL § 290.1

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code 290.2

§ 290.2. Repealed by Stats.1998, c. 696 (A.B.1332), § 1

Currentness

West's Ann. Cal. Penal Code 290.2, CA PENAL 290.2

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.3

§ 290.3. Conviction of specified sex offenses; fine; disposition of moneys

Effective: January 1, 2009

Currentness

(a) Every person who is convicted of any offense specified in subdivision (c) of Section 290 shall, in addition to any imprisonment or fine, or both, imposed for commission of the underlying offense, be punished by a fine of three hundred dollars (\$300) upon the first conviction or a fine of five hundred dollars (\$500) upon the second and each subsequent conviction, unless the court determines that the defendant does not have the ability to pay the fine.

An amount equal to all fines collected pursuant to this subdivision during the preceding month upon conviction of, or upon the forfeiture of bail by, any person arrested for, or convicted of, committing an offense specified in subdivision (c) of Section 290, shall be transferred once a month by the county treasurer to the Controller for deposit in the General Fund. Moneys deposited in the General Fund pursuant to this subdivision shall be transferred by the Controller as provided in subdivision (b).

(b) Except as provided in subdivision (d), out of the moneys deposited pursuant to subdivision (a) as a result of second and subsequent convictions of Section 290, one-third shall first be transferred to the Department of Justice Sexual Habitual Offender Fund, as provided in paragraph (1) of this subdivision. Out of the remainder of all moneys deposited pursuant to subdivision (a), 50 percent shall be transferred to the Department of Justice Sexual Habitual Offender Fund, as provided in paragraph (1), 25 percent shall be transferred to the DNA Identification Fund, as established by Section 76104.6 of the Government Code, and 25 percent shall be allocated equally to counties that maintain a local DNA testing laboratory, as provided in paragraph (2).

(1) Those moneys so designated shall be transferred to the Department of Justice Sexual Habitual Offender Fund created pursuant to paragraph (5) of subdivision (b) of Section 11170 and, when appropriated by the Legislature, shall be used for the purposes of Chapter 9.5 (commencing with Section 13885) and Chapter 10 (commencing with Section 13890) of Title 6 of Part 4 for the purpose of monitoring, apprehending, and prosecuting sexual habitual offenders.

(2) Those moneys so designated shall be allocated equally and distributed quarterly to counties that maintain a local DNA testing laboratory. Before making any allocations under this paragraph, the Controller shall deduct the estimated costs that will be incurred to set up and administer the payment of these funds to the counties. Any funds allocated to a county pursuant to this paragraph shall be used by that county for the exclusive purpose of testing DNA samples for law enforcement purposes.

(c) Notwithstanding any other provision of this section, the Department of Corrections and Rehabilitation may collect a fine imposed pursuant to this section from a person convicted of a violation of any offense listed in subdivision (c) of Section 290, that results in incarceration in a facility under the jurisdiction of the Department of Corrections and Rehabilitation. All moneys

collected by the Department of Corrections and Rehabilitation under this subdivision shall be transferred, once a month, to the Controller for deposit in the General Fund, as provided in subdivision (a), for transfer by the Controller, as provided in subdivision (b).

(d) An amount equal to one-third of every first conviction fine collected and one-fifth of every second conviction fine collected pursuant to subdivision (a) shall be transferred to the Department of Corrections and Rehabilitation to help defray the cost of the global positioning system used to monitor sex offender parolees.

Credits

(Added by Stats.1988, c. 1134, § 1. Amended by Stats.1992, c. 1338 (S.B.1184), § 1; Stats.1993, c. 589 (A.B.2211), § 110; Stats.1994, c. 866 (A.B.304), § 1; Stats.1994, c. 867 (A.B.2500), § 3.5; Stats.1995, c. 91 (S.B.975), § 121; Stats.2006, c. 69 (A.B.1806), § 27, eff. July 12, 2006; Stats.2006, c. 337 (S.B.1128), § 18, eff. Sept. 20, 2006; Initiative Measure (Prop. 83, § 7, approved Nov. 7, 2006, eff. Nov. 8, 2006); Stats.2007, c. 579 (S.B.172), § 35, eff. Oct. 13, 2007; Stats.2008, c. 699 (S.B.1241), § 9.)

West's Ann. Cal. Penal Code § 290.3, CA PENAL § 290.3

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.4

§ 290.4. Sex offender registration; inquiries; fees; income deposit; violations; penalties

Effective: October 1, 2011

Currentness

(a) The department shall operate a service through which members of the public may provide a list of at least six persons on a form approved by the Department of Justice and inquire whether any of those persons is required to register as a sex offender and is subject to public notification. The Department of Justice shall respond with information on any person as to whom information may be available to the public via the Internet Web site as provided in Section 290.46, to the extent that information may be disclosed pursuant to Section 290.46. The Department of Justice may establish a fee for requests, including all actual and reasonable costs associated with the service.

(b) The income from the operation of the service specified in subdivision (a) shall be deposited in the Sexual Predator Public Information Account within the Department of Justice for the purpose of the implementation of this section by the Department of Justice.

The moneys in the account shall consist of income from the operation of the service authorized by subdivision (a), and any other funds made available to the account by the Legislature. Moneys in the account shall be available to the Department of Justice upon appropriation by the Legislature for the purpose specified in subdivision (a).

(c)(1) Any person who uses information disclosed pursuant to this section to commit a felony shall be punished, in addition and consecutive to, any other punishment, by a five-year term of imprisonment pursuant to subdivision (h) of Section 1170.

(2) Any person who, without authorization, uses information disclosed pursuant to this section to commit a misdemeanor shall be subject to, in addition to any other penalty or fine imposed, a fine of not less than five hundred dollars (\$500) and not more than one thousand dollars (\$1,000).

(d)(1) A person is authorized to use information disclosed pursuant to this section only to protect a person at risk.

(2) Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited:

(A) Health insurance.

(B) Insurance.

(C) Loans.

(D) Credit.

(E) Employment.

(F) Education, scholarships, or fellowships.

(G) Housing or accommodations.

(H) Benefits, privileges, or services provided by any business establishment.

(3) This section shall not affect authorized access to, or use of, information pursuant to, among other provisions, Sections 11105 and 11105.3 of this code, Section 226.55 of the Civil Code, Sections 777.5 and 14409.2 of the Financial Code, Sections 1522.01 and 1596.871 of the Health and Safety Code, and Section 432.7 of the Labor Code.

(4)(A) Any use of information disclosed pursuant to this section for purposes other than those provided by paragraph (1) or in violation of paragraph (2) shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars (\$250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars (\$25,000).

(B) Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the service specified in subdivision (a), in violation of paragraph (2), the Attorney General, any district attorney, or city attorney, or any person aggrieved by the misuse of the service is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for the pattern or practice of misuse. The foregoing remedies shall be independent of any other remedies or procedures that may be available to an aggrieved party under other provisions of law, including Part 2 (commencing with Section 43) of Division 1 of the Civil Code.

(e) The Department of Justice and its employees shall be immune from liability for good faith conduct under this section.

(f) The public notification provisions of this section are applicable to every person described in subdivision (a), without regard to when his or her crimes were committed or his or her duty to register pursuant to Section 290 arose, and to every offense subject to public notification pursuant to Section 290.46, regardless of when it was committed.

Credits

(Added by Stats.1994, c. 867 (A.B.2500), § 4, operative July 1, 1995. Amended by Stats.1995, c. 85 (A.B.173), § 2; Stats.1995, c. 840 (S.B.295), § 3; Stats.1996, c. 908 (A.B.1562), § 3, eff. Sept. 25, 1996; Stats.1997, c. 17 (S.B.947), § 97; Stats.1997, c.

817 (A.B.59), § 4; Stats.1997, c. 819 (S.B.314), § 2; Stats.1997, c. 821 (A.B.290), § 4, eff. Oct. 9, 1997; Stats.1997, c. 822 (S.B.1078), § 1.7; Stats.1998, c. 485, (A.B.2803), § 130; Stats.1998, c. 550 (A.B.2799), § 1; Stats.1998, c. 929 (A.B.1745), § 2.5; Stats.1999, c. 730 (S.B.1275), § 2; Stats.2000, c. 648 (A.B.1340), § 2; Stats.2002, c. 118 (S.B.1965), § 1; Stats.2003, c. 538 (S.B.356), § 2; Stats.2003, c. 634 (A.B.1313), § 3.1, eff. Sept. 30, 2003; Stats.2004, c. 731 (S.B.1289), § 2; Stats.2005, c. 279 (S.B.1107), § 4; Stats.2005, c. 722 (A.B.1323), § 5, eff. Oct. 7, 2005; Stats.2009, c. 35 (S.B.174), § 7; Stats.2011, c. 15 (A.B.109), § 319, eff. April 4, 2011, operative Oct. 1, 2011.)

West's Ann. Cal. Penal Code § 290.4, CA PENAL § 290.4

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.45

§ 290.45. Information to be provided to enumerated persons, agencies or organizations by law enforcement agency that a registered sex offender is likely to encounter in order to protect the public; information to be disclosed; releasing information with respect to high-risk sex offenders; immunity from liability; illegal use of information

Effective: January 1, 2021

Currentness

(a)(1) Notwithstanding any other law, and except as provided in paragraph (2), any designated law enforcement entity may provide information to the public about a person required to register as a sex offender pursuant to Section 290, by whatever means the entity deems appropriate, when necessary to ensure the public safety based upon information available to the entity concerning that specific person's current risk of sexual or violent reoffense, including, but not limited to, the person's static, dynamic, and violence risk levels on the SARATSO risk tools described in subdivision (f) of Section 290.04.

(2) The law enforcement entity shall include, with the disclosure, a statement that the purpose of the release of information is to allow members of the public to protect themselves and their children from sex offenders.

(3) Community notification by way of an Internet Web site shall be governed by Section 290.46, and a designated law enforcement entity may not post on an Internet Web site any information identifying an individual as a person required to register as a sex offender except as provided in that section unless there is a warrant outstanding for that person's arrest.

(b) Information that may be provided pursuant to subdivision (a) may include, but is not limited to, the offender's name, known aliases, gender, race, physical description, photograph, date of birth, address, which shall be verified prior to publication, description and license plate number of the offender's vehicles or vehicles the offender is known to drive, type of victim targeted by the offender, relevant parole or probation conditions, crimes resulting in classification under this section, and date of release from confinement, but excluding information that would identify the victim. It shall not include any Internet identifier submitted pursuant to this chapter.

(c)(1) The designated law enforcement entity may authorize persons and entities who receive the information pursuant to this section to disclose information to additional persons only if the entity determines that disclosure to the additional persons will enhance the public safety and identifies the appropriate scope of further disclosure. A law enforcement entity may not authorize any disclosure of this information by placing that information on an Internet Web site, and shall not authorize disclosure of Internet identifiers submitted pursuant to this chapter, except as provided in subdivision (h).

(2) A person who receives information from a law enforcement entity pursuant to paragraph (1) may disclose that information only in the manner and to the extent authorized by the law enforcement entity.

(d)(1) A designated law enforcement entity and its employees shall be immune from liability for good faith conduct under this section.

(2) A public or private educational institution, a day care facility, or a child care custodian described in Section 11165.7, or an employee of a public or private educational institution or day care facility which in good faith disseminates information as authorized pursuant to subdivision (c) shall be immune from civil liability.

(e)(1) A person who uses information disclosed pursuant to this section to commit a felony shall be punished, in addition and consecutive to any other punishment, by a five-year term of imprisonment pursuant to subdivision (h) of Section 1170.

(2) A person who uses information disclosed pursuant to this section to commit a misdemeanor shall be subject to, in addition to any other penalty or fine imposed, a fine of not less than five hundred dollars (\$500) and not more than one thousand dollars (\$1,000).

(f) For purposes of this section, “designated law enforcement entity” means the Department of Justice, a district attorney, the Department of Corrections and Rehabilitation, the Division of Juvenile Justice, and every state or local agency expressly authorized by statute to investigate or prosecute law violators.

(g) The public notification provisions of this section are applicable to every person required to register pursuant to Section 290, without regard to when his or her crimes were committed or his or her duty to register pursuant to Section 290 arose, and to each offense described in Section 290, regardless of when it was committed.

(h)(1) Notwithstanding any other law, a designated law enforcement entity shall only use an Internet identifier submitted pursuant to this chapter, or release that Internet identifier to another law enforcement entity, for the purpose of investigating a sex-related crime, a kidnapping, or human trafficking.

(2) A designated law enforcement entity shall not disclose or authorize persons or entities to disclose an Internet identifier submitted pursuant to this chapter to the public or other persons, except as required by court order.

(i) This section shall become operative on January 1, 2021.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 8, eff. Jan. 1, 2018, operative Jan. 1, 2021.)

West's Ann. Cal. Penal Code § 290.45, CA PENAL § 290.45

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.46

§ 290.46. Sex offender information made available to public via internet website; ongoing updates; information included and restricted; offenses and offenders included; notification; misuse of information

Effective: January 1, 2023

Currentness

(a)(1) On or before the dates specified in this section, the Department of Justice shall make available information concerning persons who are required to register pursuant to Section 290 to the public via an internet website as specified in this section. The department shall update the internet website on an ongoing basis. All information identifying the victim by name, birth date, address, or relationship to the registrant shall be excluded from the internet website. The name or address of the person's employer and the listed person's criminal history other than the specific crimes for which the person is required to register shall not be included on the internet website. The internet website shall be translated into languages other than English as determined by the department.

(2)(A) On or before July 1, 2010, the Department of Justice shall make available to the public, via an internet website as specified in this section, as to any person described in subdivision (b), the following information:

(i) The year of conviction of the person's most recent offense requiring registration pursuant to Section 290.

(ii) The year the person was released from incarceration for that offense.

However, no year of conviction shall be made available to the public unless the department also is able to make available the corresponding year of release of incarceration for that offense, and the required notation regarding any subsequent felony.

(B)(i) Any state facility that releases from incarceration a person who was incarcerated because of a crime for which the person is required to register as a sex offender pursuant to Section 290 shall, within 30 days of release, provide the year of release for the person's most recent offense requiring registration to the Department of Justice in a manner and format approved by the department.

(ii) Any state facility that releases a person who is required to register pursuant to Section 290 from incarceration whose incarceration was for a felony committed subsequently to the offense for which the person is required to register shall, within 30 days of release, advise the Department of Justice of that fact.

(iii) Any state facility that, prior to January 1, 2007, released from incarceration a person who was incarcerated because of a crime for which the person is required to register as a sex offender pursuant to Section 290 shall provide the year of release for the person's most recent offense requiring registration to the Department of Justice in a manner and format approved by the department. The information provided by the Department of Corrections and Rehabilitation shall be limited to information that is currently maintained in an electronic format.

(iv) Any state facility that, prior to January 1, 2007, released a person who is required to register pursuant to Section 290 from incarceration whose incarceration was for a felony committed subsequently to the offense for which the person is required to register shall advise the Department of Justice of that fact in a manner and format approved by the department. The information provided by the Department of Corrections and Rehabilitation shall be limited to information that is currently maintained in an electronic format.

(3) The State Department of State Hospitals shall provide to the Department of Justice the names of all persons committed to its custody pursuant to Article 4 (commencing with Section 6600) of Chapter 2 of Part 2 of Division 6 of the Welfare and Institutions Code, within 30 days of commitment, and shall provide the names of all of those persons released from its custody within five working days of release.

(b)(1) With respect to a person who has been convicted of the commission or the attempted commission of any of the offenses listed in, or who is otherwise described in, paragraph (2), or who is a tier three offender as described in paragraph (3) of subdivision (d) of Section 290, the Department of Justice shall make available to the public via the internet website the person's name and known aliases, a photograph, a physical description, including gender and race, date of birth, criminal history, prior adjudication as a sexually violent predator, the address at which the person resides, and any other information that the Department of Justice deems relevant, but not the information excluded pursuant to subdivision (a), except that information about persons required to register as a result of an adjudication as a ward of the juvenile court pursuant to Section 290.008 shall not be made available on the internet website. The department shall also make available to the public via the internet website the person's static SARATSO risk level, if any, and information on an elevated risk level based on the SARATSO future violence tool. Any registrant whose information is listed on the public internet website on January 1, 2022, by the Department of Justice pursuant to this subdivision, may continue to be included on the public internet website while the registrant is placed in the tier-to-be-determined category described in paragraph (5) of subdivision (d) of Section 290.

(2) This subdivision shall apply to the following offenses and offenders:

(A) Section 187 committed in the perpetration, or an attempt to perpetrate, rape or any act punishable under Section 286, 287, 288, or 289, or former Section 288a.

(B) Section 207 committed with intent to violate Section 261, 286, 287, 288, or 289, or former Section 288a.

(C) Section 209 committed with intent to violate Section 261, 286, 287, 288, or 289, or former Section 288a.

(D) Paragraph (2) or (6) of subdivision (a) of Section 261.

(E) Section 264.1.

(F) Section 269.

(G) Subdivision (c) or (d) of Section 286.

(H) Subdivision (a), (b), or (c) of Section 288, provided that the offense is a felony.

(I) Subdivision (c) or (d) of Section 287 or of former Section 288a.

(J) Section 288.3, provided that the offense is a felony.

(K) Section 288.4, provided that the offense is a felony.

(L) Section 288.5.

(M) Subdivision (a) or (j) of Section 289.

(N) Section 288.7.

(O) Any person who has ever been adjudicated a sexually violent predator, as defined in Section 6600 of the Welfare and Institutions Code.

(P) A felony violation of Section 311.1.

(Q) A felony violation of subdivision (b), (c), or (d) of Section 311.2.

(R) A felony violation of Section 311.3.

(S) A felony violation of subdivision (a), (b), or (c) of Section 311.4.

(T) Section 311.10.

(U) A felony violation of Section 311.11.

(V) A tier three offender, as described in paragraph (3) of subdivision (d) of Section 290.

(c)(1) With respect to a person who has been convicted of the commission or the attempted commission of any of the offenses listed in, or who is otherwise described in, paragraph (2) of subdivision (d) of Section 290 and who is a tier two offender, and with respect to a person who has been convicted of the commission or the attempted commission of Section 647.6, the Department of Justice shall make available to the public via the internet website the person's name and known aliases, a photograph, a physical description, including gender and race, date of birth, criminal history, the community of residence and ZIP Code in which the person resides or the county in which the person is registered as a transient, and any other information that the Department of Justice deems relevant, but not the information excluded pursuant to subdivision (a) or the address at which the person resides, except that information about persons required to register as a result of an adjudication as a ward of the juvenile court pursuant to Section 290.008 shall not be made available on the internet website. Any registrant whose information is listed on the public internet website on January 1, 2022, by the Department of Justice pursuant to this subdivision may continue to be included on the public internet website while the registrant is placed in the tier-to-be-determined category described in paragraph (5) of subdivision (d) of Section 290.

(2) Any registrant whose information was not included on the public internet website on January 1, 2022, and who is placed in the tier-to-be-determined category described in paragraph (5) of subdivision (d) of Section 290 may have the information described in this subdivision made available to the public via the public internet website.

(d)(1)(A) An offender who is required to register pursuant to the Sex Offender Registration Act may apply for exclusion from the internet website if the offender demonstrates that the person's only registerable offense is either of the following:

(i) An offense for which the offender successfully completed probation, provided that the offender submits to the department a certified copy of a probation report, presentencing report, report prepared pursuant to Section 288.1, or other official court document that clearly demonstrates that the offender was the victim's parent, stepparent, sibling, or grandparent and that the crime did not involve either oral copulation or penetration of the vagina or rectum of either the victim or the offender by the penis of the other or by any foreign object.

(ii) An offense for which the offender is on probation at the time of the offender's application, provided that the offender submits to the department a certified copy of a probation report, presentencing report, report prepared pursuant to Section 288.1, or other official court document that clearly demonstrates that the offender was the victim's parent, stepparent, sibling, or grandparent and that the crime did not involve either oral copulation or penetration of the vagina or rectum of either the victim or the offender by the penis of the other or by any foreign object.

(B) If, subsequent to the offender's application, the offender commits a violation of probation resulting in the offender's incarceration in county jail or state prison, the offender's exclusion, or application for exclusion, from the internet website shall be terminated.

(C) For the purposes of this paragraph, "successfully completed probation" means that during the period of probation the offender neither received additional county jail or state prison time for a violation of probation nor was convicted of another offense resulting in a sentence to county jail or state prison.

(2) If the department determines that a person who was granted an exclusion under a former version of this subdivision would not qualify for an exclusion under the current version of this subdivision, the department shall rescind the exclusion, make a reasonable effort to provide notification to the person that the exclusion has been rescinded, and, no sooner than 30 days after

notification is attempted, make information about the offender available to the public on the internet website as provided in this section.

(3) Effective January 1, 2012, no person shall be excluded pursuant to this subdivision unless the offender has submitted to the department documentation sufficient for the department to determine that the person has a SARATSO risk level of average, below average, or very low as determined by the Coding Rules for the SARATSO static risk assessment instrument.

(e)(1) A designated law enforcement entity, as defined in subdivision (f) of Section 290.45, may make available information concerning persons who are required to register pursuant to Section 290 to the public via an internet website as specified in paragraph (2), provided that the information about that person is also displayed on the Department of Justice's Megan's Law internet website.

(2) The law enforcement entity may make available by way of an internet website the information described in subdivision (c) if it determines that the public disclosure of the information about a specific offender by way of the entity's internet website is necessary to ensure the public safety based upon information available to the entity concerning the current risk posed by a specific offender, including the offender's risk of sexual or violent reoffense, as indicated by the person's SARATSO static, dynamic, and violence risk levels, as described in Section 290.04, if available.

(3) The information that may be provided pursuant to this subdivision may include the information specified in subdivision (b) of Section 290.45. However, that offender's address may not be disclosed unless the offender is a person whose address is on the Department of Justice's internet website pursuant to subdivision (b).

(f) For purposes of this section, "offense" includes the statutory predecessors of that offense, or any offense committed in another jurisdiction that, if committed or attempted to be committed in this state, would have been punishable in this state as an offense listed in subdivision (c) of Section 290.

(g) Notwithstanding Section 7921.505 of the Government Code, disclosure of information pursuant to this section is not a waiver of exemptions under Division 10 (commencing with Section 7920.000) of Title 1 of the Government Code and does not affect other statutory restrictions on disclosure in other situations.

(h)(1) Any person who uses information disclosed pursuant to this section to commit a misdemeanor shall be subject to, in addition to any other penalty or fine imposed, a fine of not less than ten thousand dollars (\$10,000) and not more than fifty thousand dollars (\$50,000).

(2) Any person who uses information disclosed pursuant to this section to commit a felony shall be punished, in addition and consecutive to any other punishment, by a five-year term of imprisonment pursuant to subdivision (h) of Section 1170.

(i) Any person who is required to register pursuant to Section 290 who enters an internet website established pursuant to this section shall be punished by a fine not exceeding one thousand dollars (\$1,000), imprisonment in a county jail for a period not to exceed six months, or by both that fine and imprisonment.

(j)(1) A person is authorized to use information disclosed pursuant to this section only to protect a person at risk.

(2) Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited:

(A) Health insurance.

(B) Insurance.

(C) Loans.

(D) Credit.

(E) Employment.

(F) Education, scholarships, or fellowships.

(G) Housing or accommodations.

(H) Benefits, privileges, or services provided by any business establishment.

(3) This section shall not affect authorized access to, or use of, information pursuant to, among other provisions, Sections 11105 and 11105.3 of this code, Section 8808 of the Family Code, Sections 777.5 and 14409.2 of the Financial Code, Sections 1522.01 and 1596.871 of the Health and Safety Code, and Section 432.7 of the Labor Code.

(4)(A) Any use of information disclosed pursuant to this section for purposes other than those provided by paragraph (1) or in violation of paragraph (2) shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars (\$250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars (\$25,000).

(B) Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the information available via an internet website established pursuant to this section in violation of paragraph (2), the Attorney General, any district attorney, or city attorney, or any person aggrieved by the misuse is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for the pattern or practice of misuse. The foregoing remedies shall be independent of any other remedies or procedures that may be available to an aggrieved party under other provisions of law, including Part 2 (commencing with Section 43) of Division 1 of the Civil Code.

(k) The public notification provisions of this section are applicable to every person described in this section, without regard to when the person's crimes were committed or the person's duty to register pursuant to Section 290 arose, and to every offense described in this section, regardless of when it was committed.

(l) A designated law enforcement entity and its employees shall be immune from liability for good faith conduct under this section.

(m) The Attorney General, in collaboration with local law enforcement and others knowledgeable about sex offenders, shall develop strategies to assist members of the public in understanding and using publicly available information about registered sex offenders to further public safety. These strategies may include, but are not limited to, a hotline for community inquiries, neighborhood and business guidelines for how to respond to information posted on this internet website, and any other resource that promotes public education about these offenders.

(n) This section shall become operative on January 1, 2022.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 10, eff. Jan. 1, 2018, operative Jan. 1, 2022. Amended by Stats.2018, c. 423 (S.B.1494), § 58, eff. Jan. 1, 2019, operative Jan. 1, 2022; Stats.2021, c. 615 (A.B.474), § 333, eff. Jan. 1, 2022, operative Jan. 1, 2023.)

West's Ann. Cal. Penal Code § 290.46, CA PENAL § 290.46

Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

West's Annotated California Codes

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Title 9. Of Crimes Against the Person Involving Sexual Assault, and Crimes Against Public Decency and Good
Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.47

§ 290.47. Recording addresses of registered sex offenders with unique identifiers

Effective: January 1, 2012

Currentness

The Department of Justice shall record the address at which a registered sex offender resides with a unique identifier for the address. The information for this identifier shall be captured pursuant to Section 290.015 and the identifier shall consist of a description of the nature of the dwelling, with the choices of a single family residence, an apartment/condominium, a motel/hotel, or a licensed facility. Each address and its association with any specific registered sex offender shall be stored by the department in the same database as the registration data recorded pursuant to Section 290.015. The department shall make that information available to the State Department of Social Services or any other state agency when the agency needs the information for law enforcement purposes relating to investigative responsibilities relative to sex offenders. This section shall become operative on January 1, 2012.

Credits

(Added by Stats.2009, c. 55 (S.B.583), § 1, operative Jan. 1, 2012.)

West's Ann. Cal. Penal Code § 290.47, CA PENAL § 290.47

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.5

§ 290.5. Termination of mandated minimum registration period; petition for termination from sex offender registry; time for repetition after denial of petition

Effective: July 1, 2021

Currentness

(a)(1) A person who is required to register pursuant to Section 290 and who is a tier one or tier two offender may file a petition in the superior court in the county in which the person is registered for termination from the sex offender registry on or after their next birthday after July 1, 2021, following the expiration of the person's mandated minimum registration period, or if the person is required to register pursuant to Section 290.008, the person may file the petition in juvenile court on or after their next birthday after July 1, 2021, following the expiration of the mandated minimum registration period. The petition shall contain proof of the person's current registration as a sex offender.

(2) The petition shall be served on the registering law enforcement agency and the district attorney in the county where the petition is filed and on the law enforcement agency and the district attorney of the county of conviction of a registerable offense if different than the county where the petition is filed. The registering law enforcement agency shall report receipt of service of a filed petition to the Department of Justice in a manner prescribed by the department. The registering law enforcement agency and the law enforcement agency of the county of conviction of a registerable offense if different than the county where the petition is filed shall, within 60 days of receipt of the petition, report to the district attorney and the superior or juvenile court in which the petition is filed regarding whether the person has met the requirements for termination pursuant to subdivision (e) of Section 290. If an offense which may require registration pursuant to Section 290.005 is identified by the registering law enforcement agency which has not previously been assessed by the Department of Justice, the registering law enforcement agency shall refer that conviction to the department for assessment and determination of whether the conviction changes the tier designation assigned by the department to the offender. If the newly discovered offense changes the tier designation for that person, the department shall change the tier designation pursuant to subdivision (d) of Section 290 within three months of receipt of the request by the registering law enforcement agency and notify the registering law enforcement agency. If more time is required to obtain the documents needed to make the assessment, the department shall notify the registering law enforcement agency of the reason that an extension of time is necessary to complete the tier designation. The registering law enforcement agency shall report to the district attorney and the court that the department has requested an extension of time to determine the person's tier designation based on the newly discovered offense, the reason for the request, and the estimated time needed to complete the tier designation. The district attorney in the county where the petition is filed may, within 60 days of receipt of the report from either the registering law enforcement agency, the law enforcement agency of the county of conviction of a registerable offense if different than the county where the petition is filed, or the district attorney of the county of conviction of a registerable offense, request a hearing on the petition if the petitioner has not fulfilled the requirement described in subdivision (e) of Section 290, or if community safety would be significantly enhanced by the person's continued registration. If no hearing is requested, the petition for termination shall be granted if the court finds the required proof of current registration is presented in the petition, provided that the registering agency reported that the person met the requirement for termination pursuant to

subdivision (e) of Section 290, there are no pending charges against the person which could extend the time to complete the registration requirements of the tier or change the person's tier status, and the person is not in custody or on parole, probation, or supervised release. The court may summarily deny a petition if the court determines the petitioner does not meet the statutory requirements for termination of sex offender registration or if the petitioner has not fulfilled the filing and service requirements of this section. In summarily denying a petition the court shall state the reason or reasons the petition is being denied.

(3) If the district attorney requests a hearing, the district attorney shall be entitled to present evidence regarding whether community safety would be significantly enhanced by requiring continued registration. In determining whether to order continued registration, the court shall consider: the nature and facts of the registerable offense; the age and number of victims; whether any victim was a stranger at the time of the offense (known to the offender for less than 24 hours); criminal and relevant noncriminal behavior before and after conviction for the registerable offense; the time period during which the person has not reoffended; successful completion, if any, of a Sex Offender Management Board-certified sex offender treatment program; and the person's current risk of sexual or violent reoffense, including the person's risk levels on SARATSO static, dynamic, and violence risk assessment instruments, if available. Any judicial determination made pursuant to this section may be heard and determined upon declarations, affidavits, police reports, or any other evidence submitted by the parties which is reliable, material, and relevant.

(4) If termination from the registry is denied, the court shall set the time period after which the person can repetition for termination, which shall be at least one year from the date of the denial, but not to exceed five years, based on facts presented at the hearing. The court shall state on the record the reason for its determination setting the time period after which the person may repetition.

(5) The court shall notify the Department of Justice, California Sex Offender Registry, when a petition for termination from the registry is granted, denied, or summarily denied, in a manner prescribed by the department. If the petition is denied, the court shall also notify the Department of Justice, California Sex Offender Registry, of the time period after which the person can file a new petition for termination.

(b)(1) A person required to register as a tier two offender, pursuant to paragraph (2) of subdivision (d) of Section 290, may petition the superior court for termination from the registry after 10 years from release from custody on the registerable offense if all of the following apply: (A) the registerable offense involved no more than one victim 14 to 17 years of age, inclusive; (B) the offender was under 21 years of age at the time of the offense; (C) the registerable offense is not specified in subdivision (c) of Section 667.5, except subdivision (a) of Section 288; and (D) the registerable offense is not specified in Section 236.1.

(2) A tier two offender described in paragraph (1) may file a petition with the superior court for termination from the registry only if the person has not been convicted of a new offense requiring sex offender registration or an offense described in subdivision (c) of Section 667.5 since the person was released from custody on the offense requiring registration pursuant to Section 290, and has registered for 10 years pursuant to subdivision (e) of Section 290. The court shall determine whether community safety would be significantly enhanced by requiring continued registration and may consider the following factors: whether the victim was a stranger (known less than 24 hours) at the time of the offense; the nature of the registerable offense, including whether the offender took advantage of a position of trust; criminal and relevant noncriminal behavior before and after the conviction for the registerable offense; whether the offender has successfully completed a Sex Offender Management Board-certified sex offender treatment program; whether the offender initiated a relationship for the purpose of facilitating the offense; and the person's current risk of sexual or violent reoffense, including the person's risk levels on SARATSO static, dynamic, and violence risk assessment instruments, if known. If the petition is denied, the person may not repetition for termination for at least one year.

(3) A person required to register as a tier three offender based solely on the person's risk level, pursuant to subparagraph (D) of paragraph (3) of subdivision (d) of Section 290, may petition the court for termination from the registry after 20 years from release from custody on the registerable offense, if the person (A) has not been convicted of a new offense requiring sex offender registration or an offense described in subdivision (c) of Section 667.5 since the person was released from custody on the offense requiring registration pursuant to Section 290, and (B) has registered for 20 years pursuant to subdivision (e) of Section 290; except that a person required to register for a conviction pursuant to Section 288 or an offense listed in subdivision (c) of Section 1192.7 who is a tier three offender based on the person's risk level, pursuant to subparagraph (D) of paragraph (3) of subdivision (d) of Section 290, shall not be permitted to petition for removal from the registry. The court shall determine whether community safety would be significantly enhanced by requiring continued registration and may consider the following factors: whether the victim was a stranger (known less than 24 hours) at the time of the offense; the nature of the registerable offense, including whether the offender took advantage of a position of trust; criminal and relevant noncriminal behavior before and after the conviction for the registerable offense; whether the offender has successfully completed a Sex Offender Management Board-certified sex offender treatment program; whether the offender initiated a relationship for the purpose of facilitating the offense; and the person's current risk of sexual or violent reoffense, including the person's risk levels on SARATSO static, dynamic, and violence risk assessment instruments, if known. If the petition is denied, the person may not re-petition for termination for at least three years.

(c) This section shall become operative on July 1, 2021.

Credits

(Added by Stats.2017, c. 541 (S.B.384), § 12, eff. Jan. 1, 2018, operative July 1, 2021. Amended by Stats.2020, c. 29 (S.B.118), § 11, eff. Aug. 6, 2020, operative July 1, 2021.)

West's Ann. Cal. Penal Code § 290.5, CA PENAL § 290.5

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.6

§ 290.6. Release of specified sex offenders; information to authorities

Effective: January 1, 2007

Currentness

(a) Fifteen days before the scheduled release date of a person described in subdivision (b), the Department of Corrections and Rehabilitation shall provide to local law enforcement all of the following information regarding the person:

(1) Name.

(2) Community residence and address, including ZIP Code.

(3) Physical description.

(4) Conviction information.

(b) This subdivision shall apply to any person sentenced to the state prison who is required to register pursuant to Section 290 for a conviction of an offense specified in subdivision (b), (c), or (d) of Section 290.46 and to any person described in those subdivisions.

(c) For the purpose of this section, "law enforcement" includes any agency with which the person will be required to register upon his or her release pursuant to Section 290 based upon the person's community of residence upon release.

(d) If it is not possible for the Department of Corrections and Rehabilitation to provide the information specified in subdivision (a) on a date that is 15 days before the scheduled release date, the information shall be provided on the next business day following that date.

(e) The Department of Corrections and Rehabilitation shall notify local law enforcement within 36 hours of learning of the change if the scheduled release date or any of the required information changes prior to the scheduled release date.

Credits

(Added by Stats.1993-94, 1st Ex.Sess., c. 22 (A.B.152), § 1, eff. Nov. 30, 1994. Amended by Stats.1998, c. 960 (A.B.2680), § 2; Stats.2005, c. 722 (A.B.1323), § 9, eff. Oct. 7, 2005; Stats.2006, c. 538 (S.B.1852), § 501.)

West's Ann. Cal. Penal Code § 290.6, CA PENAL § 290.6

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.7

§ 290.7. Release of certain inmates; blood and saliva samples provided to local DNA testing laboratories

Effective: January 1, 2000

Currentness

The Department of Corrections shall provide samples of blood and saliva taken from a prison inmate pursuant to the DNA and Forensic Identification Data Base and Data Bank Act of 1998 (Chapter 6 (commencing with Section 295) of Title 9 of Part 1 of the Penal Code) to the county in which the inmate is to be released if the county maintains a local DNA testing laboratory.

Credits

(Added by Stats.1994, c. 866 (A.B.304), § 3. Amended by Stats.1999, c. 475 (S.B.654), § 2.)

West's Ann. Cal. Penal Code § 290.7, CA PENAL § 290.7

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.8

§ 290.8. Notice when local law enforcement agency does not provide daily, business hour registration of sex offenders

Currentness

Effective January 1, 1999, any local law enforcement agency that does not register sex offenders during regular daytime business hours on a daily basis, excluding weekends and holidays, shall notify the regional parole office for the Department of Corrections and the regional parole office for the Department of the Youth Authority of the days, times, and locations the agency is available for registration of sex offenders pursuant to Section 290.

Credits

(Added by Stats.1998, c. 960 (A.B.2680), § 4.)

West's Ann. Cal. Penal Code § 290.8, CA PENAL § 290.8

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.85

§ 290.85. Persons released on probation or parole who are required to register as sex offender; proof of registration; changes or updates; role of probation officer or parole agent

Effective: January 1, 2004

Currentness

(a) Every person released on probation or parole who is required to register as a sex offender, pursuant to Section 290, shall provide proof of registration to his or her probation officer or parole agent within six working days of release on probation or parole. The six-day period for providing proof of registration may be extended only upon determination by the probation officer or parole agent that unusual circumstances exist relating to the availability of local law enforcement registration capabilities that preclude the person's ability to meet the deadline.

(b) Every person released on probation or parole who is required to register as a sex offender pursuant to Section 290 shall provide proof of any change or update to his or her registration information to his or her probation officer or parole agent within five working days for so long as he or she is required to be under the supervision of a probation officer or parole agent.

(c) A probation officer or parole agent who supervises an individual who is required to register as a sex offender pursuant to Section 290 shall inform that individual of his or her duties under this section not fewer than six days prior to the date on which proof of registration or proof of any change or update to registration information is to be provided to the probation officer or parole agent.

(d) For purposes of this section, "proof of registration" means a photocopy of the actual registration form. A law enforcement agency that registers an individual as a sex offender pursuant to Section 290 who is released on probation or parole and is therefore subject to this section shall provide that individual with proof of his or her registration free of charge when requested by the registrant to fulfill the requirements of this section or any other provision of law.

Credits

(Added by Stats.1998, c. 960 (A.B.2680), § 5. Amended by Stats.2003, c. 245 (A.B.1098), § 1.)

West's Ann. Cal. Penal Code § 290.85, CA PENAL § 290.85

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.9

§ 290.9. Addresses of persons who violate duty to register

Effective: January 1, 2005

Currentness

Notwithstanding any other provision of law, any state or local governmental agency shall, upon written request, provide to the Department of Justice the address of any person represented by the department to be a person who is in violation of his or her duty to register under Section 290.

Credits

(Added by Stats.2004, c. 127 (A.B.1937), § 1.)

West's Ann. Cal. Penal Code § 290.9, CA PENAL § 290.9

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 290.95

§ 290.95. Disclosure by person required to register as sex offender upon application or acceptance of position involving children; prohibition against employment or volunteering of registered sex offenders where victim was a minor under 16 years of age; violations

Effective: October 11, 2009

Currentness

(a) Every person required to register under Section 290, who applies for or accepts a position as an employee or volunteer with any person, group, or organization where the registrant would be working directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis or have supervision or disciplinary power over minor children, shall disclose his or her status as a registrant, upon application or acceptance of a position, to that person, group, or organization.

(b) Every person required to register under Section 290 who applies for or accepts a position as an employee or volunteer with any person, group, or organization where the applicant would be working directly and in an accompanied setting with minor children, and the applicant's work would require him or her to touch the minor children on more than an incidental basis, shall disclose his or her status as a registrant, upon application or acceptance of the position, to that person, group, or organization.

(c) No person who is required to register under Section 290 because of a conviction for a crime where the victim was a minor under 16 years of age shall be an employer, employee, or independent contractor, or act as a volunteer with any person, group, or organization in a capacity in which the registrant would be working directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis or have supervision or disciplinary power over minor children. This subdivision shall not apply to a business owner or an independent contractor who does not work directly in an unaccompanied setting with minors.

(d) For purposes of this section, “working directly and in an unaccompanied setting” includes, but is not limited to, providing goods or services to minors.

(e) A violation of this section is a misdemeanor punishable by imprisonment in a county jail for not exceeding six months, by a fine not exceeding one thousand dollars (\$1,000), or by both that imprisonment and fine, and a violation of this section shall not constitute a continuing offense.

Credits

(Added by Stats.1998, c. 959 (A.B.2259), § 1. Amended by Stats.2001, c. 224 (S.B.1192), § 1; Stats.2006, c. 340 (A.B.1900), § 1; Stats.2006, c. 341 (A.B.2263), § 1.5; Stats.2009, c. 430 (A.B.307), § 1, eff. Oct. 11, 2009.)

West's Ann. Cal. Penal Code § 290.95, CA PENAL § 290.95

Current with all laws through Ch. 790 of 2025 Reg.Sess., and Governor's Reorganization Plan No. 1 of 2025.

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 291

§ 291. School employees; arrest for sex offense; notice to school authorities

Effective: January 1, 2004

Currentness

Every sheriff, chief of police, or the Commissioner of the California Highway Patrol, upon the arrest for any of the offenses enumerated in Section 290, subdivision (a) of Section 261, or Section 44010 of the Education Code, of any school employee, shall, provided that he or she knows that the arrestee is a school employee, do either of the following:

(a) If the school employee is a teacher in any of the public schools of this state, the sheriff, chief of police, or Commissioner of the California Highway Patrol shall immediately notify by telephone the superintendent of schools of the school district employing the teacher and shall immediately give written notice of the arrest to the Commission on Teacher Credentialing and to the superintendent of schools in the county where the person is employed. Upon receipt of the notice, the county superintendent of schools and the Commission on Teacher Credentialing shall immediately notify the governing board of the school district employing the person.

(b) If the school employee is a nonteacher in any of the public schools of this state, the sheriff, chief of police, or Commissioner of the California Highway Patrol shall immediately notify by telephone the superintendent of schools of the school district employing the nonteacher and shall immediately give written notice of the arrest to the governing board of the school district employing the person.

Credits

(Added by Stats.1951, c. 872, p. 2391, § 1. Amended by Stats.1967, c. 1417, p. 3335, § 13; Stats.1973, c. 198, p. 516, § 17; Stats.1973, c. 489, p. 962, § 7; Stats.1989, c. 388, § 7; Stats.2003, c. 536 (A.B.608), § 2.)

West's Ann. Cal. Penal Code § 291, CA PENAL § 291

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 291.1

§ 291.1. Teachers; notice of arrest to private school authorities

Effective: January 1, 2004

Currentness

Every sheriff or chief of police, or Commissioner of the California Highway Patrol, upon the arrest for any of the offenses enumerated in Section 290 or Section 44010 of the Education Code, of any person who is employed as a teacher in any private school of this state, shall, provided that he or she knows that the arrestee is a school employee, immediately give written notice of the arrest to the private school authorities employing the teacher. The sheriff, chief of police, or Commissioner of the California Highway Patrol, provided that he or she knows that the arrestee is a school employee, shall immediately notify by telephone the private school authorities employing the teacher of the arrest.

Credits

(Added by Stats.1967, c. 1671, p. 4191, § 2. Amended by Stats.2003, c. 536 (A.B.608), § 3.)

West's Ann. Cal. Penal Code § 291.1, CA PENAL § 291.1

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Morals (Refs & Annos)

Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 291.5

§ 291.5. Teacher or instructor employed in community college district; notice of arrest

Currentness

Every sheriff or chief of police, upon the arrest for any of the offenses enumerated in Section 290 or in subdivision (1) of Section 261 of any teacher or instructor employed in any community college district shall immediately notify by telephone the superintendent of the community college district employing the teacher or instructor and shall immediately give written notice of the arrest to the Office of the Chancellor of the California Community Colleges. Upon receipt of such notice, the district superintendent shall immediately notify the governing board of the community college district employing the person.

Credits

(Added by Stats.1983, c. 1032, § 4.)

West's Ann. Cal. Penal Code § 291.5, CA PENAL § 291.5

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 292

§ 292. Sex offenses deemed felony offense involving act of violence and great bodily harm; denial of bail

Effective: January 1, 2022

Currentness

It is the intention of the Legislature in enacting this section to clarify that for the purposes of subdivisions (b) and (c) of Section 12 of Article I of the California Constitution, a violation of paragraph (2) or (6) of subdivision (a) of Section 261, paragraph (1) or (4) of subdivision (a) of former Section 262, Section 264.1, subdivision (c) or (d) of Section 286, subdivision (c) or (d) of Section 287 or former Section 288a, subdivision (b) of Section 288, or subdivision (a) of Section 289, shall be deemed to be a felony offense involving an act of violence and a felony offense involving great bodily harm.

Credits

(Added by Stats.1984, c. 1202, § 1, eff. Sept. 17, 1984. Amended by Stats.1994, c. 1188 (S.B.59), § 5; Stats.2018, c. 423 (S.B.1494), § 60, eff. Jan. 1, 2019; Stats.2021, c. 626 (A.B.1171), § 26, eff. Jan. 1, 2022.)

West's Ann. Cal. Penal Code § 292, CA PENAL § 292

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 293

§ 293. Alleged victims of sex offense; notice that name will become matter of public record; request that name not become matter of public record; disclosure of victim's name or address; disclosure of name, address, or images of alleged victim of human trafficking or victim's immediate family

Effective: January 1, 2023

Currentness

(a) An employee of a law enforcement agency who personally receives a report from a person, alleging that the person making the report has been the victim of a sex offense, shall inform that person that the person's name will become a matter of public record unless the person requests that it not become a matter of public record, pursuant to Section 7923.615 of the Government Code.

(b) A written report of an alleged sex offense shall indicate that the alleged victim has been properly informed pursuant to subdivision (a) and shall memorialize the victim's response.

(c) A law enforcement agency shall not disclose to a person, except the prosecutor, parole officers of the Department of Corrections and Rehabilitation, hearing officers of the parole authority, probation officers of county probation departments, or other persons or public agencies where authorized or required by law, the address of a person who alleges to be the victim of a sex offense.

(d) A law enforcement agency shall not disclose to a person, except the prosecutor, parole officers of the Department of Corrections and Rehabilitation, hearing officers of the parole authority, probation officers of county probation departments, or other persons or public agencies where authorized or required by law, the name of a person who alleges to be the victim of a sex offense if that person has elected to exercise the person's right pursuant to this section and Section 7923.615 of the Government Code.

(e) A law enforcement agency shall not disclose to a person, except the prosecutor, parole officers of the Department of Corrections and Rehabilitation, hearing officers of the parole authority, probation officers of county probation departments, or other persons or public agencies if authorized or required by law, names, addresses, or images of a person who alleges to be the victim of human trafficking, as defined in Section 236.1, or of that alleged victim's immediate family, other than a family member who is charged with a criminal offense arising from the same incident, and that information and those images shall be withheld and remain confidential. The law enforcement agency shall orally inform the person who alleges to be the victim of human trafficking of that person's right to have the person's name, addresses, and images, and the names, addresses, and images of the person's immediate family members withheld and kept confidential pursuant to this section and Section 7923.615

of the Government Code. For purposes of this subdivision, “immediate family” shall have the same meaning as that provided in paragraph (3) of subdivision (b) of Section 422.4 of the Penal Code.

(f) For purposes of this section, sex offense means any crime listed in subdivision (b) of Section 7923.615 of the Government Code.

(g) Parole officers of the Department of Corrections and Rehabilitation, hearing officers of the parole authority, and probation officers of county probation departments shall be entitled to receive information pursuant to subdivisions (c), (d), and (e) only if the person to whom the information pertains alleges that the person is the victim of a sex offense or is the victim of human trafficking, as defined in Section 236.1, the alleged perpetrator of which is a parolee who is alleged to have committed the offense while on parole, or in the case of a county probation officer, the person who is alleged to have committed the offense is a probationer or is under investigation by a county probation department.

Credits

(Added by Stats.1992, c. 502 (S.B.296), § 1. Amended by Stats.1993, c. 555 (A.B.191), § 2, eff. Sept. 28, 1993; Stats.1993-94, 1st Ex.Sess., c. 36 (A.B.62), § 3, eff. Nov. 30, 1994; Stats.2006, c. 92 (A.B.2615), § 1; Stats.2007, c. 578 (S.B.449), § 2; Stats.2008, c. 179 (S.B.1498), § 177; Stats.2008, c. 596 (A.B.3038), § 1, eff. Sept. 30, 2008; Stats.2008, c. 358 (A.B.2810), § 5; Stats.2008, c. 596 (A.B.3038), § 1.5, eff. Sept. 30, 2008, operative Jan. 1, 2009; Stats.2010, c. 328 (S.B.1330), § 154; Stats.2016, c. 644 (A.B.2498), § 2, eff. Jan. 1, 2017; Stats.2021, c. 615 (A.B.474), § 334, eff. Jan. 1, 2022, operative Jan. 1, 2023.)

West's Ann. Cal. Penal Code § 293, CA PENAL § 293

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 293.5

§ 293.5. Identification of alleged victim as Jane Doe or John Doe

Effective: January 1, 2023

Currentness

(a) Except as provided in Chapter 10 (commencing with Section 1054) of Part 2 of Title 7, or for cases in which the alleged victim of a sex offense, as specified in subdivision (f) of Section 293, has not elected to exercise the alleged victim's right pursuant to Section 7923.615 of the Government Code, the court, at the request of the alleged victim, may order the identity of the alleged victim in all records and during all proceedings to be either Jane Doe or John Doe, if the court finds that type of order is reasonably necessary to protect the privacy of the person and will not unduly prejudice the prosecution or the defense.

(b) If the court orders the alleged victim to be identified as Jane Doe or John Doe pursuant to subdivision (a) and if there is a jury trial, the court shall instruct the jury, at the beginning and at the end of the trial, that the alleged victim is being so identified only for the purpose of protecting the alleged victim's privacy pursuant to this section.

Credits

(Added by Stats.1992, c. 502 (S.B.296), § 2. Amended by Stats.2016, c. 644 (A.B.2498), § 3, eff. Jan. 1, 2017; Stats.2021, c. 615 (A.B.474), § 335, eff. Jan. 1, 2022, operative Jan. 1, 2023.)

West's Ann. Cal. Penal Code § 293.5, CA PENAL § 293.5

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Chapter 5.5. Sex Offenders (Refs & Annos)

West's Ann.Cal.Penal Code § 294

§ 294. Conviction of sexual offenses; restitution fine; transfer to children's trust fund for child abuse prevention purposes

Effective: January 1, 2019

Currentness

(a) Upon conviction of any person for a violation of Section 273a, 273d, 288.5, 311.2, 311.3, or 647.6, the court may, in addition to any other penalty or restitution fine imposed, order the defendant to pay a restitution fine based on the defendant's ability to pay not to exceed five thousand dollars (\$5,000), upon a felony conviction, or one thousand dollars (\$1,000), upon a misdemeanor conviction, to be deposited in the Restitution Fund to be transferred to the county children's trust fund for the purposes of child abuse prevention.

(b) Upon conviction of any person for a violation of Section 261, 264.1, 285, 286, 287, or 289 or former Section 288a, where the violation is with a minor under the age of 14 years, the court may, in addition to any other penalty or restitution fine imposed, order the defendant to pay a restitution fine based on the defendant's ability to pay not to exceed five thousand dollars (\$5,000), upon a felony conviction, or one thousand dollars (\$1,000), upon a misdemeanor conviction, to be deposited in the Restitution Fund to be transferred to the county children's trust fund for the purpose of child abuse prevention.

(c) If the perpetrator is a member of the immediate family of the victim, the court shall consider in its decision to impose a fine under this section any hardship that may impact the victim from the imposition of the fine.

(d) If the court orders a fine to be imposed pursuant to this section, the actual administrative cost of collecting that fine, not to exceed 2 percent of the total amount paid, may be paid into the general fund of the county treasury for the use and benefit of the county.

Credits

(Added by Stats.1993, c. 967 (A.B.931), § 1. Amended by Stats.2018, c. 423 (S.B.1494), § 61, eff. Jan. 1, 2019.)

West's Ann. Cal. Penal Code § 294, CA PENAL § 294

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West's Colorado Revised Statutes Annotated
Title 16. Criminal Proceedings
Offenders--Registration
Article 22. Colorado Sex Offender Registration Act

C.R.S.A. T. 16, Art. 22, Refs & Annos
Currentness

C. R. S. A. T. 16, Art. 22, Refs & Annos, CO ST T. 16, Art. 22, Refs & Annos
Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated
Title 16. Criminal Proceedings
Offenders--Registration
Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-101

§ 16-22-101. Short title

Currentness

This article shall be known and may be cited as the “Colorado Sex Offender Registration Act”.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002.

C. R. S. A. § 16-22-101, CO ST § 16-22-101

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-102

§ 16-22-102. Definitions

Effective: August 10, 2022

Currentness

As used in this article 22, unless the context otherwise requires:

(1) “Adjudicated” or “adjudication” means a determination by the court that it has been proven beyond a reasonable doubt to the trier of fact that a juvenile has committed a delinquent act or that a juvenile has pled guilty to committing a delinquent act. In addition, when a previous conviction must be pled and proven as an element of an offense or for purposes of sentence enhancement, “adjudication” means conviction.

(1.5) “Birthday” means a person's birthday as reflected on the notice provided to the person pursuant to section 16-22-106 or 16-22-107 or the person's actual date of birth if the notice does not reflect the person's birthday.

(2) “CBI” means the Colorado bureau of investigation established pursuant to part 4 of article 33.5 of title 24, C.R.S.

(3) “Convicted” or “conviction” means having received a verdict of guilty by a judge or jury, having pleaded guilty or nolo contendere, having received a disposition as a juvenile, having been adjudicated a juvenile delinquent, or having received a deferred judgment and sentence or a deferred adjudication.

(3.5) “Employed at an institution of postsecondary education” means a person:

(a) Is employed by or is an independent contractor with an institution of postsecondary education or is employed by or is an independent contractor with an entity that contracts with an institution of postsecondary education; and

(b) Spends any period of time in furtherance of the employment or independent contractor relationship on the campus of the postsecondary institution or at a site that is owned or leased by the postsecondary institution.

(4) “Immediate family” means a person's spouse, parent, grandparent, sibling, or child.

(4.2) “Juvenile” means a person who is under eighteen years of age at the time of the offense and who has not been criminally convicted in the district court of unlawful sexual behavior pursuant to section 19-2.5-801 or 19-2.5-802.

(4.3)(a) “Lacks a fixed residence” means that a person does not have a living situation that meets the definition of “residence” pursuant to subsection (5.7) of this section. “Lacks a fixed residence” may include, but need not be limited to, outdoor sleeping locations or any public or private locations not designed as traditional living accommodations. “Lacks a fixed residence” may also include temporary public or private housing or temporary shelter facilities, residential treatment facilities, or any other residential program or facility if the person remains at the location for less than fourteen days.

(b) “Lacks a fixed residence” also includes a person who is registered in any jurisdiction if the person:

(I) Ceases to reside at an address in that jurisdiction; and

(II) Fails to register:

(A) A change of address in the same jurisdiction; or

(B) In a new jurisdiction pursuant to section 16-22-108(4); or

(C) Pursuant to section 16-22-108(3).

(4.5) “Local law enforcement agency” means the law enforcement agency, including but not limited to a campus police agency, that has jurisdiction over a certain geographic area.

(5) “Register” and “registration” include initial registration pursuant to section 16-22-104, and registration, confirmation of registration, and reregistration, as required in section 16-22-108.

(5.5) “Registrant” means a person who is required to register in accordance with this article.

(5.7) “Residence” means a place or dwelling that is used, intended to be used, or usually used for habitation by a person who is required to register pursuant to section 16-22-103. “Residence” may include, but need not be limited to, a temporary shelter or institution, if the person resides at the temporary shelter or institution for fourteen consecutive days or longer, if the owner of the shelter or institution consents to the person utilizing the shelter or institution as his or her registered address as required by section 16-22-106(4) or 16-22-107(4)(a), and if the residence of the person at the shelter or institution can be verified as required by section 16-22-109(3.5). A person may establish multiple residences by residing in more than one place or dwelling.

(5.8) “Resides” includes residence and lacks a fixed residence.

(6) “Sex offender registry” means the Colorado sex offender registry created and maintained by the CBI pursuant to section 16-22-110.

(7) “Sexually violent predator” means a person who is found to be a sexually violent predator pursuant to section 18-3-414.5, C.R.S.

(8) “Temporary resident” means a person who is a resident of another state but in Colorado temporarily because the person is:

(a) Employed in this state on a full-time or part-time basis, with or without compensation, for more than fourteen consecutive business days or for an aggregate period of more than thirty days in any calendar year; or

(b) Enrolled in any type of educational institution in this state on a full-time or part-time basis; or

(c) Present in Colorado for more than fourteen consecutive business days or for an aggregate period of more than thirty days in a calendar year for any purpose, including but not limited to vacation, travel, or retirement.

(9) “Unlawful sexual behavior” means any of the following offenses or criminal attempt, conspiracy, or solicitation to commit any of the following offenses:

(a)(I) Sexual assault, in violation of section 18-3-402, C.R.S.; or

(II) Sexual assault in the first degree, in violation of section 18-3-402, C.R.S., as it existed prior to July 1, 2000;

(b) Sexual assault in the second degree, in violation of section 18-3-403, C.R.S., as it existed prior to July 1, 2000;

(c)(I) Unlawful sexual contact, in violation of section 18-3-404, C.R.S.; or

(II) Sexual assault in the third degree, in violation of section 18-3-404, C.R.S., as it existed prior to July 1, 2000;

(d) Sexual assault on a child, in violation of section 18-3-405, C.R.S.;

(e) Sexual assault on a child by one in a position of trust, in violation of section 18-3-405.3, C.R.S.;

(f) Sexual assault on a client by a psychotherapist, in violation of section 18-3-405.5, C.R.S.;

(g) Enticement of a child, in violation of section 18-3-305, C.R.S.;

(h) Incest, in violation of section 18-6-301, C.R.S.;

(i) Aggravated incest, in violation of section 18-6-302, C.R.S.;

- (j) Human trafficking of a minor for sexual servitude, as described in section 18-3-504(2), C.R.S.;
- (j.5) Human trafficking for sexual servitude, as described in section 18-3-504(1);
- (k) Sexual exploitation of children, in violation of section 18-6-403, C.R.S.;
- (l) Procurement of a child for sexual exploitation, in violation of section 18-6-404, C.R.S.;
- (m) Indecent exposure, in violation of section 18-7-302, C.R.S.;
- (n) Soliciting for child prostitution, in violation of section 18-7-402, C.R.S.;
- (o) Pandering of a child, in violation of section 18-7-403, C.R.S.;
- (p) Procurement of a child, in violation of section 18-7-403.5, C.R.S.;
- (q) Keeping a place of child prostitution, in violation of section 18-7-404, C.R.S.;
- (r) Pimping of a child, in violation of section 18-7-405, C.R.S.;
- (s) Inducement of child prostitution, in violation of section 18-7-405.5, C.R.S.;
- (t) Patronizing a prostituted child, in violation of section 18-7-406, C.R.S.;
- (u) Engaging in sexual conduct in a correctional institution, in violation of section 18-7-701, C.R.S.;
- (v) Wholesale promotion of obscenity to a minor, in violation of section 18-7-102(1.5), C.R.S.;
- (w) Promotion of obscenity to a minor, in violation of section 18-7-102(2.5), C.R.S.;
- (x) Class 4 felony internet luring of a child, in violation of section 18-3-306(3), C.R.S.;
- (y) Internet sexual exploitation of a child, in violation of section 18-3-405.4, C.R.S.;

(z) Public indecency, committed in violation of section 18-7-301(2)(b), C.R.S., if a second offense is committed within five years of the previous offense or a third or subsequent offense is committed;

(aa) Invasion of privacy for sexual gratification, in violation of section 18-3-405.6;

(bb) Second degree kidnapping, if committed in violation of section 18-3-302(3)(a);

(cc) Unlawful electronic sexual communication, in violation of section 18-3-418; or

(dd) Unlawful sexual conduct by a peace officer, in violation of section 18-3-405.7.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2004, Ch. 239, § 1, eff. May 21, 2004; Laws 2004, Ch. 297, § 1, eff. May 27, 2004; Laws 2006, Ch. 219, § 3, eff. July 1, 2006; Laws 2006, Ch. 362, § 2, eff. July 1, 2006; Laws 2010, Ch. 156, § 6, eff. April 21, 2010; Laws 2010, Ch. 262, § 2, eff. July 1, 2010; Laws 2010, Ch. 359, § 3, eff. Aug. 11, 2010; Laws 2010, Ch. 415, § 8, eff. July 1, 2012; Laws 2011, Ch. 224, § 3, eff. May 27, 2011; Laws 2012, Ch. 220, § 1, eff. July 1, 2012; Laws 2014, Ch. 282, § 13, eff. July 1, 2014; Laws 2017, Ch. 250, § 3, eff. Sept. 1, 2017; Laws 2019, Ch. 145 (H.B. 19-1030), § 3, eff. July 1, 2019; Laws 2019, Ch. 287 (H.B. 19-1250), § 3, eff. July 1, 2019; Laws 2021, Ch. 320 (H.B. 21-1064), § 1, eff. Sept. 1, 2021; Laws 2022, Ch. 421 (S.B. 22-212), § 27, eff. Aug. 10, 2022.

C. R. S. A. § 16-22-102, CO ST § 16-22-102

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-103

§ 16-22-103. Sex offender registration--required--applicability--exception

Effective: September 1, 2021

Currentness

(1) Effective July 1, 1998, the following persons are required to register pursuant to section 16-22-108 and are subject to the requirements and other provisions specified in this article 22:

(a) Any person who was convicted on or after July 1, 1991, in the state of Colorado of an unlawful sexual offense, as defined in section 18-3-411(1), enticement of a child, as described in section 18-3-305, or internet luring of a child, as described in section 18-3-306(3);

(b) Any person who was convicted on or after July 1, 1991, in another state or jurisdiction, including but not limited to a military, tribal, territorial, or federal jurisdiction, of an offense that, if committed in Colorado, would constitute an unlawful sexual offense, as defined in section 18-3-411(1), C.R.S., enticement of a child, as described in section 18-3-305, C.R.S., or internet luring of a child, as described in section 18-3-306, C.R.S.; and

(c) Any person who was released on or after July 1, 1991, from the custody of the department of corrections of this state or any other state, having served a sentence for an unlawful sexual offense, as defined in section 18-3-411(1), C.R.S., enticement of a child, as described in section 18-3-305, C.R.S., or internet luring of a child, as described in section 18-3-306, C.R.S.

(2)(a) On and after July 1, 1994, any person who is convicted in the state of Colorado of unlawful sexual behavior or of another offense, the underlying factual basis of which involves unlawful sexual behavior, or any person who is released from the custody of the department of corrections having completed serving a sentence for unlawful sexual behavior or for another offense, the underlying factual basis of which involved unlawful sexual behavior, shall be required to register in the manner prescribed in section 16-22-104, section 16-22-106 or 16-22-107, whichever is applicable, and section 16-22-108.

(b) A person shall be deemed to have been convicted of unlawful sexual behavior if he or she is convicted of one or more of the offenses specified in section 16-22-102(9), or of attempt, solicitation, or conspiracy to commit one or more of the offenses specified in said section.

(c)(I) For convictions entered on or after July 1, 2002, a person shall be deemed to be convicted of an offense, the underlying factual basis of which involves unlawful sexual behavior, if:

(A) The person is convicted of an offense that requires proof of unlawful sexual behavior as an element of the offense; or

(B) The person is convicted of an offense and is eligible for and receives an enhanced sentence based on a circumstance that requires proof of unlawful sexual behavior; or

(C) The person was originally charged with unlawful sexual behavior or with an offense that meets the description in sub-subparagraph (A) or (B) of this subparagraph (I), the person pleads guilty to an offense that does not constitute unlawful sexual behavior, and, as part of the plea agreement, the person admits, after advisement as provided in subparagraph (III) of this paragraph (c), that the underlying factual basis of the offense to which he or she is pleading guilty involves unlawful sexual behavior; or

(D) The person was charged with and convicted of an offense that does not constitute unlawful sexual behavior and the person admits on the record, after advisement as provided in subparagraph (III) of this paragraph (c), that the underlying factual basis of the offense involved unlawful sexual behavior.

(II) If a person is originally charged with unlawful sexual behavior or with an offense that meets the description in sub-subparagraph (A) or (B) of subparagraph (I) of this paragraph (c), the court may accept a plea agreement to an offense that does not constitute unlawful sexual behavior only if:

(A) The district attorney stipulates that the underlying factual basis of the offense to which the person is pleading guilty does not involve unlawful sexual behavior; or

(B) The person admits, after advisement as provided in subparagraph (III) of this paragraph (c), that the underlying factual basis of the offense to which he or she is pleading guilty involves unlawful sexual behavior.

(III) The advisement provided for purposes of this paragraph (c), in addition to meeting the requirements of the Colorado rules of criminal procedure, shall advise the person that admitting that the underlying factual basis of the offense to which the person is pleading or of which the person is convicted involves unlawful sexual behavior will have the collateral result of making the person subject to the requirements of this article. Notwithstanding any provision of this paragraph (c) to the contrary, failure to advise a person pursuant to the provisions of this subparagraph (III) shall not constitute a defense to the offense of failure to register as a sex offender if there is evidence that the defendant had actual notice of the duty to register.

(IV) In any case in which a person is deemed to have been convicted of an offense, the underlying factual basis of which involves unlawful sexual behavior, as provided in this paragraph (c), the judgment of conviction shall specify that the person is convicted of such an offense and specify the particular crime of unlawful sexual behavior involved.

(V) The provisions of this paragraph (c) shall apply to juveniles for purposes of determining whether a juvenile is convicted of an offense, the underlying factual basis of which involves unlawful sexual behavior.

(d)(I) Notwithstanding any other provision of this section, any stipulation by a district attorney and any finding by the court with regard to whether the offense of which the person is convicted includes an underlying factual basis involving unlawful sexual behavior, as defined in section 16-22-102, shall be binding on the department of corrections for purposes of classification. On or after July 1, 2008, if the department of corrections receives a mittimus that does not indicate the necessary findings

as required by subsection (2)(c)(II) of this section, the department shall notify the court and request that the court enter the necessary findings pursuant to subsection (2)(c)(II) of this section.

(II) The department of corrections shall have the authority to make a determination that a person is a sex offender, as defined in section 16-11.7-102(2)(a), for the purposes of classification and treatment if:

(A) The person has one or more prior convictions for a sex offense as defined in section 16-11.7-102(3);

(B) The person has a prior offense for which a determination has been made by the court that the underlying factual basis involved a sex offense as defined in section 16-11.7-102(3); or

(C) The person has been classified as a sex offender in accordance with procedures established by the department of corrections.

(III) The procedures established by the department of corrections to classify a person as a sex offender shall require that:

(A) The classification proceeding be conducted by a licensed attorney who shall serve as an administrative hearing officer;

(B) The offender's attorney be permitted to attend, represent, and assist the offender at the classification proceeding; and

(C) The offender be entitled to written notice of the reason for the proceeding, disclosure of the evidence to be presented against him or her, an opportunity to be heard in person and to present witnesses and documentary evidence, the right to confront and cross-examine adverse witnesses, unless the administrative hearing officer finds good cause for not allowing confrontation, and written findings and conclusions indicating the evidence and reasons relied upon for the classification as a sex offender.

(IV) Notwithstanding any statutory provisions to the contrary, the department of corrections shall ensure that all procedures and policies comply with the federal "Prison Rape Elimination Act of 2003", Pub.L. 108-79, as amended.

(3)(a) In addition to the persons specified in subsections (1) and (2) of this section, and except as set forth in subsection (3)(b) of this section, any person convicted of an offense in any other state or jurisdiction, including but not limited to a military or federal jurisdiction, for which the person, as a result of the conviction, is required to register if the person resided in the state or jurisdiction of conviction, or for which the person would be required to register if convicted in Colorado, is required to register in the manner specified in section 16-22-108, so long as the person is a temporary or permanent resident of Colorado. The person may petition the court for an order to discontinue the requirement for registration in this state at the times specified in section 16-22-113 for offense classifications that are comparable to the classification of the offense for which the person was convicted in the other state or jurisdiction. The person may petition the court for an order to discontinue the requirement for registration in this state for offense classifications that the person would not be required to register for if convicted in Colorado.

(b) If a juvenile is required to register only pursuant to subsection (3)(a) of this section and the juvenile's duty to register in another state or jurisdiction has been terminated by a court order, or if a trial court has determined that the juvenile is not required to register in that state or jurisdiction, then the juvenile is not required to fulfill the requirements for registration in

Colorado, as set forth in section 16-22-108, and is therefore not required to petition the court for removal from the Colorado sex offender registry pursuant to section 16-22-113.

(4) This article 22 applies to any person who receives a disposition or is adjudicated a juvenile delinquent based on the commission of any act that may constitute unlawful sexual behavior or who receives a deferred adjudication based on commission of any act that may constitute unlawful sexual behavior; except that, with respect to section 16-22-113(1)(a) to (1)(e), a person who is adjudicated or receives a disposition as a juvenile may petition the court for an order to discontinue the duty to register as provided in those subsections, but only if the person has not subsequently been convicted as an adult of any offense involving unlawful sexual behavior or convicted as an adult of another offense, the underlying factual basis of which involves unlawful sexual behavior. In addition, the duty to provide notice to a person of the duty to register, as set forth in sections 16-22-105 to 16-22-107, applies to juvenile parole and probation officers and appropriate personnel of the division of youth services in the department of human services. If a person is required to register pursuant to this article 22 due to an adjudication or disposition as a juvenile, the duty to register automatically terminates either when the person reaches twenty-five years of age or seven years from the date the juvenile was required to register, whichever occurs later.

(5)(a) Notwithstanding any provision of this article 22 to the contrary, if, pursuant to a motion filed by a person described in this subsection (5) or on its own motion, a court determines that exempting the person from the registration requirement would not pose a significant risk to the community, the court, upon consideration of the totality of the circumstances, may exempt the person from the registration requirements imposed pursuant to this section if:

(I) The person was younger than eighteen years of age at the time of the commission of the offense; and

(II) The person has not been previously adjudicated or received a disposition for a separate offense involving unlawful sexual behavior; and

(III) The person was adjudicated or received a disposition for any offense of unlawful sexual behavior or another offense, the underlying factual basis of which involved unlawful sexual behavior; and

(IV) The person has received an evaluation that conforms with the standards developed pursuant to section 16-11.7-103(4)(i) from an evaluator who meets the standards established by the sex offender management board, and the evaluator recommends exempting the person from the registration requirements based upon the best interests of that person and the community; and

(IV.5) The court has considered a written or oral statement by the victim of the offense for which the juvenile would otherwise be required to register, if provided by the victim, on the question of whether the juvenile should be exempted from the statutory duty to register as a sex offender; and

(V) The court makes written findings of fact specifying the grounds for granting such exemption.

(b) Any defendant who files a motion pursuant to this subsection (5) or the court, if considering its own motion, shall provide notice of the motion to the prosecuting district attorney. In addition, the court shall provide notice of the motion to the victim of the offense. Prior to deciding the motion, the court shall conduct a hearing on the motion at which both the district attorney and the victim shall have opportunity to be heard.

(6) Any person who is required to register pursuant to this section and fails to do so or otherwise fails to comply with the provisions of this article may be subject to prosecution for the offense of failure to register as a sex offender, as described in section 18-3-412.5, C.R.S. Failure of any governmental entity or any employee of any governmental entity to comply with any requirement of this article shall not constitute a defense to the offense of failure to register as a sex offender if there is evidence that the defendant had actual notice of the duty to register.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2004, Ch. 297, § 2, eff. May 27, 2004; Laws 2007, Ch. 383, § 3, eff. July 1, 2007; Laws 2008, Ch. 224, § 1, eff. May 14, 2008; Laws 2008, Ch. 378, § 1, eff. July 1, 2008; Laws 2011, Ch. 224, § 4, eff. May 27, 2011; Laws 2011, Ch. 236, § 9, eff. May 27, 2011; Laws 2017, Ch. 381, § 17, eff. June 6, 2017; Laws 2017, Ch. 390, § 2, eff. Jan. 1, 2018; Laws 2018, Ch. 143, § 1, eff. Aug. 8, 2018; Laws 2021, Ch. 320 (H.B. 21-1064), § 2, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-103, CO ST § 16-22-103

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-104

§ 16-22-104. Initial registration--effective date

Currentness

(1)(a)(I) Beginning January 1, 2005, for any person required to register pursuant to section 16-22-103, the court, within the later of twenty-four hours or the next business day after sentencing the person, shall electronically file with the CBI the initial registration of the person, providing the information required by the CBI.

(II) Beginning May 27, 2004, the court shall specify on the judgment of conviction the person's duty to register as required in section 16-22-108, including but not limited to the duty to confirm registration if the person is sentenced on or after January 1, 2005, and the person's duty to reregister.

(b) Any person who is sentenced prior to January 1, 2005, and who is required to register pursuant to section 16-22-103 shall initially register in the manner provided and within the times specified in section 16-22-108(1)(a) for registration.

(c) The state court administrator is hereby authorized to receive and expend any public or private gifts, grants, or donations that may be available to offset the costs incurred in implementing the provisions of this subsection (1).

(2) Repealed by Laws 2004, Ch. 297, § 3, eff. July 1, 2005.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2003, Ch. 76, § 1, eff. March 25, 2003; Laws 2004, Ch. 297, § 3, eff. May 27, 2004.

C. R. S. A. § 16-22-104, CO ST § 16-22-104

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-105

§ 16-22-105. Notice--requirements--residence--presumption

Currentness

(1) Any person who is required to register pursuant to section 16-22-103 shall receive notice of the duty to register as provided in section 16-22-106 or 16-22-107, whichever is applicable. Such notice shall inform the person of the duty to register, in the manner provided in section 16-22-108, with the local law enforcement agency of each jurisdiction in which the person resides. The notice shall inform the person that he or she has a duty to register with local law enforcement agencies in any state or other jurisdiction to which the person may move and that the CBI shall notify the agency responsible for registration in the new state as provided in section 16-22-108(4). The notice shall also inform the person that, at the time the person registers, he or she must provide his or her date of birth, a current photograph, and a complete set of fingerprints.

(2) Failure of any person to sign the notice of duty to register, as required in sections 16-22-106 and 16-22-107, shall not constitute a defense to the offense of failure to register as a sex offender if there is evidence that the person had actual notice of the duty to register.

(3) For purposes of this article, any person who is required to register pursuant to section 16-22-103 shall register in all jurisdictions in which he or she establishes a residence. A person establishes a residence through an intent to make any place or dwelling his or her residence. The prosecution may prove intent to establish residence by reference to hotel or motel receipts or a lease of real property, ownership of real property, proof the person accepted responsibility for utility bills, proof the person established a mailing address, or any other action demonstrating such intent. Notwithstanding the existence of any other evidence of intent, occupying or inhabiting any dwelling for more than fourteen days in any thirty-day period shall constitute the establishment of residence.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2004, Ch. 297, § 4, eff. May 27, 2004.

C. R. S. A. § 16-22-105, CO ST § 16-22-105

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-106

§ 16-22-106. Duties--probation department--community corrections administrator--court personnel--jail personnel--notice

Effective: July 1, 2012

Currentness

(1)(a) If a person who is required to register pursuant to section 16-22-103 is sentenced to probation, the probation department, as soon as possible following sentencing, shall provide notice, as described in section 16-22-105, to the person of his or her duty to register in accordance with the provisions of this article with the local law enforcement agency of each jurisdiction in which the person resides, and the notice shall include the requirements for a person who registers as “lacks a fixed residence”. The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address or addresses at which the person resides or a statement that the person lacks a fixed residence. Beginning on May 27, 2004, the court shall specify on the judgment of conviction the duty to register as required in section 16-22-108, including but not limited to the duty to confirm registration if sentenced on or after January 1, 2005, and to reregister.

(b) The probation department shall electronically notify the CBI of the date on which the person's probation is terminated, and the probation department shall notify the CBI if the person absconds or dies prior to the probation termination date. The CBI shall electronically notify the local law enforcement agency of each jurisdiction in which the person resides of the occurrence of any of the events specified in this paragraph (b).

(2)(a) If a person who is required to register pursuant to section 16-22-103 receives a direct sentence to community corrections, the administrator for the community corrections program, or his or her designee, as soon as possible following sentencing, shall provide notice, as described in section 16-22-105, to the person of the duty to register in accordance with the provisions of this article with the local law enforcement agency of each jurisdiction in which the person resides. The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address or addresses at which the person resides. The court shall specify on the judgment of conviction the duty to register as required in section 16-22-108, including but not limited to the duty to confirm registration, if sentenced on or after January 1, 2005, and to reregister.

(b) The administrator of the community corrections program, or his or her designee, shall electronically notify the CBI of the date on which the sentence to community corrections is terminated, and the administrator of the community corrections program shall notify the CBI if the person escapes or dies prior to the sentence termination date. The CBI shall electronically notify the local law enforcement agency of each jurisdiction in which the person resides of the occurrence of any of the events specified in this paragraph (b).

(3)(a)(I) If a person who is required to register pursuant to section 16-22-103 is held for more than five business days in a county jail pending court disposition for any offense, the sheriff of the county in which the county jail is located, or his or her designee, shall transmit to the local law enforcement agency of the jurisdiction in which the person was last registered and to the CBI confirmation of the person's registration. The confirmation shall be transmitted on a standardized form provided by the CBI

and shall include the address or addresses at which the person will reside while in custody of the county jail, the person's date of birth, a current photograph of the person, and the person's fingerprints.

(II) If a person who is required to register pursuant to section 16-22-103 is sentenced to a county jail for any offense, the sheriff of the county in which the county jail is located, or his or her designee, as soon as possible following sentencing, shall transmit to the local law enforcement agency of the jurisdiction in which the person was last registered and to the CBI confirmation of the person's registration. The confirmation shall be transmitted on a standardized form provided by the CBI and shall include the address or addresses at which the person will reside while in custody of the county jail, the person's date of birth, a current photograph of the person, and the person's fingerprints.

(III) The provisions of this paragraph (a) shall apply to persons sentenced on or after January 1, 2005.

(b) At least five days prior to the discharge of the person from custody, the sheriff, or his or her designee, shall provide notice, as described in section 16-22-105, to the person of the duty to register in accordance with the provisions of this article with the local law enforcement agency of each jurisdiction in which the person resides. The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address at which the person intends to reside upon discharge.

(c) Within five days, but not fewer than two days, prior to the discharge of the person from custody, the sheriff, or his or her designee, shall notify the CBI and the local law enforcement agency of the jurisdiction in which the person intends to reside of the date of the person's discharge. Such notice, at a minimum, shall include the address at which the person plans to reside upon discharge, provided by the person pursuant to paragraph (b) of this subsection (3), and the person's date of birth, fingerprints, and current photograph.

(3.5) With regard to a person who is required to register within a state, military, or federal jurisdiction other than Colorado, the chief local law enforcement officer, or his or her designee, of the Colorado jurisdiction in which the person resides shall provide notice, as described in section 16-22-105, to the person as soon as possible after discovering the person's presence in the jurisdiction, of the duty to register in accordance with the provisions of this article with the local law enforcement agency of each Colorado jurisdiction in which the person resides. The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address or addresses at which the person resides.

(4) For any person who is required to register pursuant to section 16-22-103, who is not committed to the department of human services, and who is not sentenced to probation, community corrections, county jail, or the department of corrections, the judge or magistrate who has jurisdiction over the person shall, at sentencing, provide notice, as described in section 16-22-105, to the person of the duty to register in accordance with the provisions of this article with the local law enforcement agency of each jurisdiction in which the person resides, and the notice shall include the requirements for a person who registers as "lacks a fixed residence". The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address or addresses at which the person resides or a statement that the person lacks a fixed residence.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2003, Ch. 76, § 2, eff. March 25, 2003; Laws 2004, Ch. 297, §§ 5, 6, eff. May 27, 2004; Laws 2008, Ch. 392, § 25, eff. Aug. 5, 2008; Laws 2011, Ch. 224, § 5, eff. May 27, 2011; Laws 2012, Ch. 220, § 2, eff. July 1, 2012.

C. R. S. A. § 16-22-106, CO ST § 16-22-106

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Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-107

§ 16-22-107. Duties--department of corrections--department of human
services--confirmation of registration--notice--address verification

Effective: July 1, 2012

Currentness

(1)(a) If a person who is required to register pursuant to section 16-22-103 is sentenced to the department of corrections, the department of corrections shall transmit to the CBI confirmation of the person's registration on a standardized form provided by the CBI, including the person's date of birth and the person's fingerprints. The department of corrections shall also transmit a photograph of the person if requested by the CBI.

(b) The provisions of this subsection (1) shall apply to persons sentenced on or after January 1, 2005.

(2) At least ten business days prior to the release or discharge of any person who has been sentenced to the department of corrections and is required to register pursuant to section 16-22-103, the department of corrections shall provide notice, as described in section 16-22-105, to the person of the duty to register in accordance with the provisions of this article with the local law enforcement agency of each jurisdiction in which the person resides, and the notice shall include the requirements for a person who registers as "lacks a fixed residence". The person shall be required to sign the notice as confirmation of receipt and to provide the person's date of birth and the address at which the person intends to reside upon release or discharge or a statement that the person lacks a fixed residence.

(3) Within five days, but not fewer than two days, prior to the release or discharge of any person who has been sentenced to the department of corrections and is required to register pursuant to section 16-22-103, the department shall notify the CBI and the local law enforcement agency of the jurisdiction in which the person intends to reside of the date of the person's release or discharge. Such notice shall include the address at which the person intends to reside upon release or discharge, provided by the person pursuant to subsection (2) of this section, and the person's date of birth and the person's current photograph if requested by the CBI. In addition, such notice may include additional information concerning the person, including but not limited to any information obtained in conducting the assessment to determine whether the person may be subject to community notification pursuant to section 16-13-903.

(4)(a) Prior to the release or discharge of any person who has been sentenced to the department of corrections and is required to register pursuant to section 16-22-103, department of corrections personnel, if the person is being released on parole, or the local law enforcement agency of the jurisdiction in which the person intends to reside, if the person is being discharged, shall verify that:

(I) The address provided by the person pursuant to subsection (2) of this section is a residence;

(II) The occupants or owners of the residence know of the person's history of unlawful sexual behavior;

(III) The occupants or owners of the residence have agreed to allow the person to reside at the address; and

(IV) If the person is being released on parole, the address complies with any conditions imposed by the parole board.

(b) If, in attempting to verify the address provided by the person, department of corrections personnel or local law enforcement officers determine that any of the information specified in paragraph (a) of this subsection (4) is not true, the person shall be deemed to have provided false information to department personnel concerning the address at which the person intends to reside upon release.

(4.5) With regard to a person who has been sentenced to the department of corrections, is released on parole, and is required to register pursuant to section 16-22-103, the department shall electronically notify the CBI of the date on which the person's parole is terminated, and the department shall notify the CBI if the person absconds or dies prior to the parole termination date. The CBI shall electronically notify the local law enforcement agency of each jurisdiction in which the person resides of the occurrence of any of the events specified in this subsection (4.5).

(5) In the case of a juvenile who is required to register pursuant to section 16-22-103 and is committed to the department of human services, said department shall have and carry out the duties specified in this section for the department of corrections with regard to said juvenile.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2003, Ch. 76, § 3, eff. March 25, 2003; Laws 2004, Ch. 297, § 7, eff. May 27, 2004; Laws 2012, Ch. 220, § 3, eff. July 1, 2012.

C. R. S. A. § 16-22-107, CO ST § 16-22-107

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-108

§ 16-22-108. Registration--procedure--frequency--place--change of address--fee

Effective: September 1, 2021

Currentness

(1)(a)(I) Each person who is required to register pursuant to section 16-22-103 shall register with the local law enforcement agency in each jurisdiction in which the person resides. A local law enforcement agency shall accept the registration of a person who lacks a fixed residence; except that the law enforcement agency is not required to accept the person's registration if it includes a residence or location that would violate state law or local ordinance. If the residence or location with which the person attempts to register constitutes such a violation, the law enforcement agency shall so advise the person and give the person an opportunity to secure an alternate location within five days.

(II) Each person who is required to register pursuant to section 16-22-103 shall initially register or, if sentenced on or after January 1, 2005, confirm his or her initial registration within five business days after release from incarceration for commission of the offense requiring registration or within five business days after receiving notice of the duty to register, if the person was not incarcerated. The person shall register with the local law enforcement agency during business hours by completing a standardized registration form provided to the person by the local law enforcement agency and paying the registration fee imposed by the local law enforcement agency as provided in subsection (7) of this section. After the initial registration, the local law enforcement agency may waive the requirement that the person reregister in person if the registrant suffers from a chronic physical or intellectual disability that substantially limits the person's ability to function independently and participate in major life activities to the extent that it is a severe hardship to reregister in person and there is a medical record of such disability. If the law enforcement agency waives the requirement to reregister in person, the law enforcement agency shall reregister the person after verifying the person's current address with the person and at least one other reliable source which may include: His or her caregiver, his or her family, the facility where the person resides, or another source of verification satisfactory to the law enforcement agency. The law enforcement agency shall provide verification of the waiver, by the submission of a form developed by the CBI, to the CBI and any other law enforcement agency with which the registrant is required to register. If the law enforcement agency issues such a waiver, every three years the agency must determine whether the registrant still meets the waiver requirements and reauthorize the waiver. If the law enforcement agency issues a waiver or reauthorizes the waiver, the law enforcement agency shall also notify the victim of the offense for which the petitioner is required to register, if the victim of the offense has requested notice and provided contact information. The CBI shall provide standardized registration forms to the local law enforcement agencies pursuant to section 16-22-109.

(b) Except as otherwise provided in paragraph (d) of this subsection (1), each person who is required to register pursuant to section 16-22-103 shall reregister within five business days before or after the person's first birthday following initial registration and annually within five business days before or after the person's birthday thereafter. Such person shall reregister pursuant to this paragraph (b) with the local law enforcement agency of each jurisdiction in which the person resides within five business days before or after his or her birthday, in the manner provided in paragraph (a) of this subsection (1).

(c) Each person who is required to register pursuant to section 16-22-103 and who establishes an additional residence shall, within five business days after establishing an additional residence in any city, town, county, or city and county within Colorado, register with the local law enforcement agency of the jurisdiction in which he or she establishes the additional residence. The person shall register in said jurisdiction in the manner provided in paragraph (a) of this subsection (1) and shall reregister as provided in paragraph (b) of this subsection (1) or paragraph (d) of this subsection (1), whichever is applicable, in said jurisdiction so long as the person resides in said jurisdiction. For purposes of this paragraph (c), “additional residence” shall include, when the person's residence is a trailer or motor home, an address at which the person's trailer or motor home is lawfully located.

(d)(I) Any person who is a sexually violent predator and any person who is convicted as an adult of any of the offenses specified in subsection (1)(d)(II) of this section has a duty to register for the remainder of his or her natural life; except that, if the person receives a deferred judgment and sentence for one of the offenses specified in subsection (1)(d)(II) of this section, the person's duty to register may discontinue as provided in section 16-22-113(1)(d). In addition to registering as required in subsection (1)(a) of this section, the person shall reregister within five business days before or after the date that is three months after the date on which the person was released from incarceration for commission of the offense requiring registration or, if the person was not incarcerated, after the date on which he or she received notice of the duty to register. The person shall register within five business days before or after that date every three months thereafter until the person's birthday. The person shall reregister within five business days before or after his or her next birthday and shall reregister within five business days before or after that date every three months thereafter. The person shall reregister pursuant to this subsection (1)(d) with the local law enforcement agency of each jurisdiction in which the person resides or in any jurisdiction if the person lacks a fixed residence on the reregistration date, in the manner provided in subsection (1)(a) of this section.

(I.5)(A) A person convicted as an adult of an offense in another state or jurisdiction, including but not limited to a military or federal jurisdiction, who, as a result of the conviction, is required to register quarterly as a sex offender in the state or jurisdiction of conviction is required to register as provided in subsection (1)(d)(I) of this section, so long as the person is a temporary or permanent resident of Colorado.

(B) A person convicted as an adult of an offense in another state or jurisdiction, including but not limited to a military or federal jurisdiction, which conviction would require the person to register as provided in subsection (1)(d)(I) of this section if the conviction occurred in Colorado, is required to register as provided in subsection (1)(d)(I) of this section, so long as the person is a temporary or permanent resident of Colorado.

(II) The provisions of this paragraph (d) shall apply to persons convicted of one or more of the following offenses:

(A) Felony sexual assault, in violation of section 18-3-402, C.R.S., or sexual assault in the first degree, in violation of section 18-3-402, C.R.S., as it existed prior to July 1, 2000, or felony sexual assault in the second degree, in violation of section 18-3-403, C.R.S., as it existed prior to July 1, 2000; or

(B) Sexual assault on a child in violation of section 18-3-405, C.R.S.; or

(C) Sexual assault on a child by one in a position of trust, in violation of section 18-3-405.3, C.R.S.; or

(D) Sexual assault on a client by a psychotherapist, in violation of section 18-3-405.5, C.R.S.; or

(E) Incest, in violation of section 18-6-301, C.R.S.; or

(F) Aggravated incest, in violation of section 18-6-302, C.R.S.

(e) Notwithstanding the time period for registration specified in paragraph (a) of this subsection (1), any person who is discharged from the department of corrections of this state or another state without supervision shall register in the manner provided in paragraph (a) of this subsection (1) no later than the next business day following discharge.

(2) Persons who reside within the corporate limits of any city, town, or city and county shall register at the office of the chief law enforcement officer of such city, town, or city and county; except that, if there is no chief law enforcement officer of the city, town, or city and county in which a person resides, the person shall register at the office of the county sheriff of the county in which the person resides. Persons who reside outside of the corporate limits of any city, town, or city and county shall register at the office of the county sheriff of the county where such person resides.

(2.5)(a) Any person who is required to register pursuant to section 16-22-103 and who has been convicted of a child sex crime shall be required to register all e-mail addresses, instant-messaging identities, or chat room identities prior to using the address or identity. The entity that accepts the registration of a person required to register all e-mail addresses shall make a reasonable effort to verify all e-mail addresses provided by the person.

(b) Notwithstanding the provisions of paragraph (a) of this subsection (2.5), a person shall not be required to register an employment e-mail address if:

(I) The person's employer provided the e-mail address for use primarily in the course of the person's employment;

(II) The e-mail address identifies the employer by name, initials, or other commonly recognized identifier; and

(III) The person required to register is not an owner or operator of the employing entity that provided the e-mail address.

(c) For purposes of this section, "child sex crime" means sexual assault on a child, as described in section 18-3-405, C.R.S.; sexual assault on a child by one in a position of trust, as described in section 18-3-405.3, C.R.S.; unlawful sexual contact, as described in section 18-3-404(1.5), C.R.S.; enticement of a child, as described in section 18-3-305, C.R.S.; aggravated incest, as described in section 18-6-302(1)(b), C.R.S.; human trafficking of a minor for sexual servitude, as described in section 18-3-504(2), C.R.S.; sexual exploitation of children, as described in section 18-6-403, C.R.S.; procurement of a child for sexual exploitation, as described in section 18-6-404, C.R.S.; soliciting for child prostitution, as described in section 18-7-402, C.R.S.; pandering of a child, as described in section 18-7-403, C.R.S.; procurement of a child, as described in section 18-7-403.5, C.R.S.; keeping a place of child prostitution, as described in section 18-7-404, C.R.S.; pimping of a child, as described in section 18-7-405, C.R.S.; inducement of child prostitution, as described in section 18-7-405.5, C.R.S.; patronizing a prostituted child, as described in section 18-7-406, C.R.S.; internet luring of a child, as described in section 18-3-306, C.R.S.; internet sexual exploitation of a child, as described in section 18-3-405.4, C.R.S.; wholesale promotion of obscenity to a minor, as described in section 18-7-102(1.5), C.R.S.; promotion of obscenity to a minor, as described in section 18-7-102(2.5), C.R.S.; sexual assault, as described in section 18-3-402(1)(d) and (1)(e), C.R.S.; sexual assault in the second degree as it existed prior to July 1, 2000,

as described in section 18-3-403(1)(e) and (1)(e.5), C.R.S.; or criminal attempt, conspiracy, or solicitation to commit any of the acts specified in this paragraph (c).

(d) The entity that accepts the registration of a person required to register all e-mail addresses, instant-messaging identities, or chat room identities pursuant to paragraph (a) of this subsection (2.5) shall require the person to sign a statement that the e-mail addresses, instant-messaging identities, or chat room identities provided on the registration form are e-mail addresses, instant-messaging identities, or chat room identities that the person has the authority to use. The statement shall also state that providing false information related to the person's e-mail addresses, instant-messaging identities, or chat room identities may constitute a misdemeanor or felony criminal offense. This signed statement constitutes a reasonable effort to verify all e-mail addresses provided by the person as required by paragraph (a) of this subsection (2.5), but does not preclude additional verification efforts.

(3) Any person who is required to register pursuant to section 16-22-103 shall be required to register within five business days before or after each time the person:

(a) Changes such person's address, regardless of whether such person has moved to a new address within the jurisdiction of the law enforcement agency with which such person previously registered;

(a.5) Changes the address at which a vehicle, trailer, or motor home is located, if the vehicle, trailer, or motor home is the person's place of residence, regardless of whether the new address is within the jurisdiction of the law enforcement agency with which such person previously registered;

(b) Legally changes such person's name;

(c) Establishes an additional residence in another jurisdiction or an additional residence in the same jurisdiction;

(d) Becomes employed or changes employment or employment location, if employed at an institution of postsecondary education;

(e) Becomes enrolled or changes enrollment in an institution of postsecondary education, or changes the location of enrollment;

(f) Becomes a volunteer or changes the volunteer work location, if volunteering at an institution of postsecondary education;

(g) Changes his or her e-mail address, instant-messaging identity, or chat room identity, if the person is required to register that information pursuant to subsection (2.5) of this section. The person shall register the e-mail address, instant-messaging identity, or chat room identity prior to using it.

(h) Ceases to lack a fixed residence and establishes a residence; or

(i) Ceases to reside at an address and lacks a fixed residence.

(4)(a)(I) Any time a person who is required to register pursuant to section 16-22-103 ceases to reside at an address, the person shall register with the local law enforcement agency for his or her new address and include the address at which the person will no longer reside and all addresses at which the person will reside. The person shall file the new registration form within five business days after ceasing to reside at an address. The local law enforcement agency that receives the new registration form shall inform the previous jurisdiction of the cancellation of that registration and shall electronically notify the CBI of the registration cancellation.

(II) Any time a person who is required to register pursuant to section 16-22-103 ceases to reside at an address and moves to another state, the person shall notify the local law enforcement agency of the jurisdiction in which said address is located by completing a written registration cancellation form, available from the local law enforcement agency. At a minimum, the registration cancellation form shall indicate the address at which the person will no longer reside and all addresses at which the person will reside. The person shall file the registration cancellation form within five business days after ceasing to reside at an address. A local law enforcement agency that receives a registration cancellation form shall electronically notify the CBI of the registration cancellation. If the person moves to another state, the CBI shall promptly notify the agency responsible for registration in the other state.

(b) If a person fails to submit the new registration form or registration cancellation form as required in paragraph (a) of this subsection (4) and the address at which the person is no longer residing is a group facility, officials at such facility may provide information concerning the person's cessation of residency to the local law enforcement agency of the jurisdiction in which the address is located. If the person is a juvenile or developmentally disabled and fails to submit the registration cancellation form as required in paragraph (a) of this subsection (4) and the address at which the person is no longer residing is the residence of his or her parent or legal guardian, the person's parent or legal guardian may provide information concerning the person's cessation of residency to the local law enforcement agency of the jurisdiction in which the address is located. Any law enforcement agency that receives such information shall reflect in its records that the person no longer resides at said group facility or the parent's or legal guardian's residence and shall transmit such information to the CBI. Provision of information by a group facility or a person's parent or legal guardian pursuant to this paragraph (b) shall not constitute a defense to a charge of failure to register as a sex offender.

(5) During the initial registration process for a temporary resident, the local law enforcement agency with which the temporary resident is registering shall provide the temporary resident with the registration information specified in section 16-22-105. A temporary resident who is required to register pursuant to the provisions of section 16-22-103 shall, within five business days after arrival in Colorado, register with the local law enforcement agency of each jurisdiction in which the temporary resident resides.

(6) Any person required to register pursuant to section 16-22-103, at the time the person registers with any local law enforcement agency in this state, and thereafter when annually reregistering on the person's birthday or the first business day following the birthday as required in paragraph (b) of subsection (1) of this section, shall sit for a current photograph or image of himself or herself and shall supply a set of fingerprints to verify the person's identity. The person shall bear the cost of the photograph or image and fingerprints.

(7)(a) A local law enforcement agency may establish a registration fee to be paid by persons registering and reregistering annually or quarterly with the local law enforcement agency pursuant to the provisions of this section. The amount of the fee shall reflect the actual direct costs incurred by the local law enforcement agency in implementing the provisions of this article but shall not exceed seventy-five dollars for the initial registration with the local law enforcement agency and twenty-five dollars for any subsequent annual or quarterly registration.

(b) The local law enforcement agency may waive the fee for an indigent person. For all other persons, the local law enforcement agency may pursue payment of the fee through a civil collection process or any other lawful means if the person is unable to pay at the time of registration. A local law enforcement agency shall accept a timely registration in all circumstances even if the person is unable to pay the fee at the time of registration.

(c) A local law enforcement agency may not charge a fee to a person who provides an update to his or her information pursuant to subsection (3) of this section.

(8)(a) If a person whose duty to register has automatically terminated pursuant to section 16-22-103(4) either attempts to register or inquires with local law enforcement as to whether the duty to register has automatically terminated, local law enforcement shall advise the person that the person's duty to register terminated, remove the person from any local law enforcement registry, and notify the CBI that the person's duty to register has terminated.

(b) A local law enforcement agency or the CBI may establish a fee to determine whether a person's duty to register has terminated pursuant to section 16-22-103(4). The amount of the fee must reflect the actual direct costs incurred but must not exceed fifteen dollars. The fee may be waived for an indigent person.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2002, Ch. 299, § 3, eff. July 1, 2002; Laws 2004, Ch. 297, §§ 8, 9 eff. May 27, 2004; Laws 2007, Ch. 54, §§ 2, 3, eff. March 26, 2007; Laws 2007, Ch. 382, § 1, 2, eff. July 1, 2007; Laws 2010, Ch. 156, § 7, eff. April 21, 2010; Laws 2011, Ch. 224, § 6, eff. May 27, 2011; Laws 2012, Ch. 220, § 4, eff. July 1, 2012; Laws 2014, Ch. 282, § 14, eff. July 1, 2014; Laws 2018, Ch. 143, § 2, eff. Aug. 8, 2018; Laws 2021, Ch. 320 (H.B. 21-1064), § 3, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-108, CO ST § 16-22-108

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-109

§ 16-22-109. Registration forms--local law enforcement agencies--duties--report

Effective: September 1, 2021

Currentness

(1) The director of the CBI shall prescribe standardized forms to be used to comply with this article, and the CBI shall provide copies of the standardized forms to the courts, probation departments, community corrections programs, the department of corrections, the department of human services, and local law enforcement agencies. The standardized forms may be provided in electronic form. The standardized forms shall be used to register persons pursuant to this article and to enable persons to cancel registration, as necessary. The standardized forms shall provide that the persons required to register pursuant to section 16-22-103 disclose such information as is required on the standardized forms. The information required on the standardized forms shall include, but need not be limited to:

(a) The name, date of birth, address, and place of employment of the person required to register, and, if the place of employment is at an institution of postsecondary education, all addresses and locations of the institution of postsecondary education at which the person may be physically located;

(a.3) If the person's place of residence is a trailer or motor home, the address at which the trailer or motor home is lawfully located and the vehicle identification number, license tag number, registration number, and description, including color scheme, of the trailer or motor home;

(a.5) If the person is volunteering at an institution of postsecondary education, all addresses and locations of the institution of postsecondary education at which the person may be physically located;

(a.7) If the person enrolls or is enrolled in an institution of a postsecondary education, all addresses and locations of the institution of postsecondary education at which the person attends classes or otherwise participates in required activities;

(a.9) If a person lacks a fixed residence, any public or private locations where the person may be found or habitually sleeps, which information may include, but need not be limited to, cross-streets, intersections, directions to or identifiable landmarks of the locations, or any other information necessary to accurately identify the locations;

(b) All names used at any time by the person required to register, including both aliases and legal names;

(c) For any person who is a temporary resident of the state, the person's address in his or her state of permanent residence and the person's place of employment in this state or the educational institution in which he or she is enrolled in this state and,

if the temporary resident of the state is enrolled in, employed by, or volunteers at an institution of postsecondary education, all addresses and locations of the institution of postsecondary education at which the temporary resident attends classes or otherwise participates in required activities or works or performs volunteer activities;

(d) The name, address, and location of any institution of postsecondary education where the person required to register is enrolled;

(e) The name, address, and location of any institution of postsecondary education where the person required to register volunteers;

(f) The vehicle identification number, license tag number, registration number, and description, including color scheme, of any motor vehicle owned or leased by the person;

(g) All e-mail addresses, instant-messaging identities, and chat room identities to be used by the person if the person is required to register that information pursuant to section 16-22-108(2.5).

(2) The standardized forms prepared by the CBI pursuant to this section, including electronic versions of said forms, shall be admissible in court without exclusion on hearsay or other evidentiary grounds and shall be self-authenticating as a public record pursuant to the Colorado rules of evidence.

(3) Upon receipt of any completed registration form pursuant to this article, the local law enforcement agency shall retain a copy of such form and shall report the registration to the CBI in the manner and on the standardized form prescribed by the director of the CBI. The local law enforcement agency shall, within three business days after the date on which a person is required to register, report to the CBI such registration and, if it is the registrant's first registration with the local law enforcement agency, transmit the registrant's fingerprints to the CBI. The local law enforcement agency shall transfer additional sets of fingerprints only when requesting CBI to conduct a comparison. The local law enforcement agency shall transmit a photograph of a registrant only upon request of the CBI.

(3.5)(a) The local law enforcement agency with which a person registers pursuant to this article shall, as soon as possible following the registrant's first registration with the local law enforcement agency and at least annually thereafter, verify the residential address reported by the registrant on the standardized form; except that, if the registrant is a sexually violent predator, the local law enforcement agency shall verify the registrant's residential address quarterly.

(b) If a person registers as "lacks a fixed residence", verification of the location or locations reported by the person shall be accomplished by the self-verification enhanced reporting process as described in paragraph (c) of this subsection (3.5). A local law enforcement agency shall not be required to verify the physical location of a person who is required to comply with the self-verification enhanced reporting process.

(c)(I) In addition to any other requirements pursuant to this article, a person who is subject to annual registration and who lacks a fixed residence shall, at least every three months, report to the local law enforcement agency in whose jurisdiction or jurisdictions the person is registered for the self-verification enhancement reporting of the location or locations where the person remains without a fixed residence. The self-verification process shall be accomplished consistent with any time schedule established by the local jurisdiction, which may include a time schedule that is within five business days before or after the

person's birthday. The person shall be required to verify his or her location or locations and verify any and all information required to be reported pursuant to this section.

(II) In addition to any other requirements pursuant to this article, a person who is subject to quarterly registration or registration every three months and who lacks a fixed residence shall, at least every month, report to each local law enforcement agency in whose jurisdiction the person is registered for the self-verification enhanced reporting of the location or locations where the person remains without a fixed residence. The self-verification process shall be accomplished consistent with any time schedule established by the local jurisdiction, which may include a time schedule that is within five business days before or after the person's birthday. The person shall be required to verify his or her location or locations and verify any and all information required to be reported pursuant to this section.

(III) A person required to register pursuant to this article who lacks a fixed residence and who fails to comply with the provisions of subparagraphs (I) and (II) of this paragraph (c) is subject to prosecution for the crime of failure to verify location as defined in section 18-3-412.6, C.R.S.

(d) Beginning on July 1, 2012, and ending January 1, 2015, the Colorado bureau of investigation and each local law enforcement agency, subject to available resources, shall report every six months to the department of public safety the number of persons who registered without a fixed residence. The department may require additional information to be reported. By March 31, 2015, the department shall assess the effectiveness of the registration for offenders who lack a fixed residence.

(4) The forms completed by persons required to register pursuant to this article 22 are confidential and are not open to inspection by the public or any person other than law enforcement personnel, except as provided in sections 16-22-110(6), 16-22-111, 16-22-112, and 25-1-124.5.

(5) Notwithstanding any provision of this article to the contrary, a requirement for electronic notification or electronic transmission of information specified in this article shall be effective on and after January 1, 2005. Prior to said date, or if an agency does not have access to electronic means of transmitting information, the notification and information requirements shall be met by providing the required notification or information by a standard means of transmittal.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2002, Ch. 299, § 4, eff. July 1, 2002; Laws 2003, Ch. 76, § 4, eff. March 25, 2003; Laws 2004, Ch. 297, §§ 10, 11, eff. May 27, 2004; Laws 2006, Ch. 219, § 2, eff. July 1, 2006; Laws 2007, Ch. 54, § 1, eff. March 26, 2007; Laws 2007, Ch. 382, § 3, eff. July 1, 2007; Laws 2012, Ch. 220, § 5, eff. July 1, 2012; Laws 2021, Ch. 320 (H.B. 21-1064), § 4, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-109, CO ST § 16-22-109

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-110

§ 16-22-110. Colorado sex offender registry--creation--maintenance--release of information--data collection

Effective: September 1, 2021

Currentness

(1) The director of the Colorado bureau of investigation shall establish a statewide central registry of persons required to register pursuant to section 16-8-115 or 16-8-118 or as a condition of parole or pursuant to this article, to be known as the Colorado sex offender registry. The CBI shall create and maintain the sex offender registry as provided in this section. In addition, the CBI shall be the official custodian of all registration forms completed pursuant to this article and other documents associated with sex offender registration created pursuant to this article.

(2) The sex offender registry shall provide, at a minimum, the following information to all criminal justice agencies with regard to registered persons:

(a) Identification of a person's registration status;

(b) A person's date of birth;

(c) Descriptions of the offenses of unlawful sexual behavior of which a person has been convicted;

(d) Identification of persons who are identified as sexually violent predators;

(e) Notification to local law enforcement agencies when a person who is required to register pursuant to section 16-22-103 fails to register, when a person is required to reregister as provided in section 16-22-108, or when a person reregisters with another jurisdiction in accordance with the provisions of section 16-22-108;

(f) Specification of modus operandi information concerning any person who is required to register pursuant to section 16-22-103.

(3)(a) In addition to the sex offender registry, the CBI shall maintain one or more interactive database systems to provide, at a minimum, cross validation of a registrant's known names and known addresses with information maintained by the department of revenue concerning driver's licenses and identification cards issued under article 2 of title 42, C.R.S. Discrepancies between the known names or known addresses listed in the sex offender registry and information maintained by the department of revenue shall be reported through the Colorado crime information center to each local law enforcement agency that has jurisdiction over the location of the person's last-known residences.

(b) The Colorado integrated criminal justice information system established pursuant to article 20.5 of this title shall be used to facilitate the exchange of information among agencies as required in this subsection (3) whenever practicable.

(3.5) The Colorado bureau of investigation shall develop an interactive database within the sex offender registry to provide, at a minimum, the following information to all criminal justice agencies in whose jurisdictions an institution of postsecondary education is located:

(a) Identification of all persons required to register pursuant to section 16-22-103 who volunteer or are employed or enrolled at an institution of postsecondary education and the institution at which each such person volunteers, is employed, or is enrolled;

(b) Identification of all persons who are sexually violent predators who volunteer or are employed or enrolled at an institution of postsecondary education and the institution at which each such person volunteers, is employed, or is enrolled.

(4) Upon development of the interactive databases pursuant to subsection (3) of this section, personnel in the judicial department, the department of corrections, and the department of human services shall be responsible for entering and maintaining in the databases the information specified in subsection (2) of this section for persons in those departments' legal or physical custody. Each local law enforcement agency shall be responsible for entering and maintaining in the databases the information for persons registered with the agency who are not in the physical or legal custody of the judicial department, the department of corrections, or the department of human services.

(5) The CBI, upon receipt of fingerprints and conviction data concerning a person convicted of unlawful sexual behavior, shall transmit promptly such fingerprints and conviction data to the federal bureau of investigation.

(6)(a) The general assembly recognizes the need to balance the expectations of persons convicted of offenses involving unlawful sexual behavior and the public's need to adequately protect themselves and their children from these persons, as expressed in section 16-22-112(1). The general assembly declares, however, that, in making information concerning persons convicted of offenses involving unlawful sexual behavior available to the public, it is not the general assembly's intent that the information be used to inflict retribution or additional punishment on any person convicted of unlawful sexual behavior or of another offense, the underlying factual basis of which involves unlawful sexual behavior.

(b) Pursuant to a request for a criminal history record check pursuant to part 3 of article 72 of title 24, unless the person who is the subject of the criminal history record check was required to register solely because the person was adjudicated or received a disposition as a juvenile, the CBI may inform the requesting party as to whether the person who is the subject of the criminal history check is on the sex offender registry. If such person is on the sex offender registry solely as a result of being adjudicated or receiving a disposition as a juvenile, the CBI shall not release such information to a person other than law enforcement, probation and parole personnel, the division of child welfare, the division of youth services, or the victim, as defined in section 24-4.1-302 (5).

(c) A person may request from the CBI a list of persons on the sex offender registry. The list must not include persons who are on the sex offender registry solely for having been adjudicated or received dispositions as juveniles.

(d) (Deleted by amendment, L. 2005, p. 611, § 1, effective May 27, 2005.)

(e) Any person requesting information pursuant to subsection (6)(c) of this section shall show proper identification.

(f) If information is released pursuant to this subsection (6), it must, at a minimum, include the name, address or addresses, and aliases of the registrant; the registrant's date of birth; a photograph of the registrant, if requested and readily available; the offense that led to the registration requirement; and the date of the offense resulting in the registrant being required to register pursuant to this article 22. Information concerning victims must not be released pursuant to this section.

(g) Notwithstanding this subsection (6) to the contrary, the CBI may release information, as described in subsection (6)(i) of this section, about the person registered as a result of being adjudicated or receiving a disposition as a juvenile if a person, other than the victim, submits a request to the CBI for the sex offender registry record of a named person who was adjudicated or received a disposition as a juvenile, and the requesting person affirms in writing that the requested record shall not be:

(I) Placed in publication or posted to a website;

(II) Used for the purpose of obtaining a pecuniary gain or financial benefit for any person or entity; or

(III) Used or disseminated in any manner with the intent to harass, intimidate, coerce, or cause serious emotional distress to any person, including the named person.

(h) In addition to the written affirmation required by subsection (6)(g) of this section, the person requesting information shall affirm in writing that he or she has a need for the sex offender information concerning the person who was adjudicated or received a disposition as a juvenile and describe that need in writing.

(i) Upon receipt of the written affirmations required by subsections (6)(g) and (6)(h) of this section, the CBI shall release to the requesting person the sex offender registry record that is limited to include only the person's registration status, full name, aliases, date of birth, and current address or addresses; a photograph of the registrant, if requested and readily available; the offense that led to the registration; and the date of the offense as such information concerns the person who was adjudicated or received a disposition as a juvenile. Information concerning victims must not be released pursuant to this section.

(j) Nothing in this subsection (6) limits the victim's access to information pursuant to section 24-4.1-302.5.

(7) The CBI may assess reasonable fees for the search, retrieval, and copying of information requested pursuant to subsection (6) of this section. The amount of such fees shall reflect the actual costs, including but not limited to personnel and equipment, incurred in operating and maintaining the sex offender registry. Any such fees received shall be credited to the sex offender registry fund, which fund is hereby created in the state treasury. The moneys in the sex offender registry fund shall be subject to annual appropriation by the general assembly for the costs, including but not limited to personnel and equipment, incurred in operating and maintaining the sex offender registry. The sex offender registry fund shall consist of the moneys credited thereto pursuant to this subsection (7) and subsection (9) of this section and any additional moneys that may be appropriated thereto by the general assembly. All interest derived from the deposit and investment of moneys in the sex offender registry fund shall be

credited to the fund. At the end of any fiscal year, all unexpended and unencumbered moneys in the sex offender registry fund shall remain therein and shall not be credited or transferred to the general fund or any other fund.

(8) Any information released pursuant to this section shall include in writing the following statement:

The Colorado sex offender registry includes only those persons who have been required by law to register and who are in compliance with the sex offender registration laws. Persons should not rely solely on the sex offender registry as a safeguard against perpetrators of sexual assault in their communities. The crime for which a person is convicted may not accurately reflect the level of risk.

(9) The CBI shall seek and is hereby authorized to receive and expend any public or private gifts, grants, or donations that may be available to implement the provisions of this article pertaining to establishment and maintenance of the sex offender registry, including but not limited to provisions pertaining to the initial registration of persons pursuant to section 16-22-104 and the transmittal of information between and among local law enforcement agencies, community corrections programs, the judicial department, the department of corrections, the department of human services, and the CBI. Any moneys received pursuant to this subsection (9), except federal moneys that are custodial funds, shall be transmitted to the state treasurer for deposit in the sex offender registry fund created in subsection (7) of this section.

(10) On or before July 1, 2022, and every July 1 thereafter, the CBI shall prepare a report that details the number of requests for sex offender registration information for juveniles received annually pursuant to subsection (6) of this section as well as the number of times such information was released. The CBI shall include the report as a part of its presentation to its committee of reference at a hearing held pursuant to section 2-7-203 of the “State Measurement for Accountable, Responsive, and Transparent (SMART) Government Act”.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2002, Ch. 158, § 5, eff. July 1, 2002; Laws 2002, Ch. 299, § 5, eff. July 1, 2002; Laws 2004, Ch. 297, § 12, eff. May 27, 2004; Laws 2005, Ch. 174, § 1, eff. May 27, 2005; Laws 2021, Ch. 320 (H.B. 21-1064), § 5, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-110, CO ST § 16-22-110

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-111

§ 16-22-111. Internet posting of sex offenders--procedure

Effective: September 1, 2021

Currentness

(1) The CBI shall post a link on the state of Colorado home page on the internet to a list containing the names, addresses, and physical descriptions of certain persons and descriptions of the offenses committed by said persons. A person's physical description must include, but need not be limited to, the person's sex, height, and weight, any identifying characteristics of the person, and a digitized photograph or image of the person. The list must specifically exclude any reference to any victims of the offenses. The list must specifically exclude persons who are required to register solely because they were adjudicated or received dispositions as juveniles but must include the following persons:

(a) Any person who is a sexually violent predator;

(b) Any person sentenced as or found to be a sexually violent predator under the laws of another state or jurisdiction;

(c) Any person who is required to register pursuant to section 16-22-103 and who has been convicted as an adult of two or more of the following offenses:

(I) A felony offense involving unlawful sexual behavior; or

(II) A crime of violence as defined in section 18-1.3-406, C.R.S.; and

(d) Any person who is required to register pursuant to section 16-22-103 because the person was convicted of a felony as an adult and who fails to register as required by section 16-22-108.

(1.5) In addition to the posting required by subsection (1) of this section, the CBI may post a link on the state of Colorado home page on the internet to a list, including but not limited to the names, addresses, and physical descriptions of any person required to register pursuant to section 16-22-103, as a result of a conviction for a felony. A person's physical description shall include, but need not be limited to, the person's sex, height, weight, and any other identifying characteristics of the person. The list shall specifically exclude any reference to any victims of the offenses.

(2)(a) For purposes of paragraph (d) of subsection (1) of this section, a person's failure to register shall be determined by the CBI. Whenever the CBI's records show that a person has failed to register as required by this article, the CBI shall forward to each law

enforcement agency with which the person is required to register notice of the person's failure to register by the required date. Each law enforcement agency, within three business days after receiving the notice, shall submit to the CBI written confirmation of the person's failure to register. Upon receipt of the written confirmation from the law enforcement agency, the CBI shall post the information concerning the person on the internet as required in this section.

(b) If a local law enforcement agency files criminal charges against a person for failure to register as a sex offender, as described in section 18-3-412.5, C.R.S., the local law enforcement agency shall notify the CBI. On receipt of the notification, the CBI shall post the information concerning the person on the internet, as specified in subsection (1) of this section.

(3) The internet posting required by this section shall be in addition to any other release of information authorized pursuant to this article or pursuant to part 9 of article 13 of this title, or any other provision of law.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2002, Ch. 318, § 394, eff. Oct. 1, 2002; Laws 2004, Ch. 297, § 13, eff. May 27, 2004; Laws 2005, Ch. 174, § 3, eff. May 27, 2005; Laws 2021, Ch. 320 (H.B. 21-1064), § 6, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-111, CO ST § 16-22-111

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-112

§ 16-22-112. Release of information--law enforcement agencies

Effective: September 1, 2021

Currentness

(1) The general assembly finds that persons convicted of offenses involving unlawful sexual behavior have a reduced expectation of privacy because of the public's interest in public safety. The general assembly further finds that the public must have access to information concerning persons convicted of offenses involving unlawful sexual behavior that is collected pursuant to this article to allow them to adequately protect themselves and their children from these persons. The general assembly declares, however, that, in making this information available to the public, as provided in this section and section 16-22-110(6), it is not the general assembly's intent that the information be used to inflict retribution or additional punishment on any person convicted of unlawful sexual behavior or of another offense, the underlying factual basis of which involves unlawful sexual behavior.

(2)(a) A local law enforcement agency shall release information regarding any person, except for a person who is required to register solely because the person was adjudicated or received a disposition as a juvenile, registered with the local law enforcement agency pursuant to this article 22 to any person residing within the local law enforcement agency's jurisdiction. In addition, the local law enforcement agency may post the information specified in subsection (2)(b) of this section on the law enforcement agency's website.

(b) A local law enforcement agency may post on its website sex offender registration information of a person from its registration list only if the person is:

(I) An adult convicted of a felony requiring the adult to register pursuant to section 16-22-103; or

(II) An adult convicted of a second or subsequent offense of any of the following misdemeanors:

(A) Sexual assault as described in section 18-3-402(1)(e), C.R.S.;

(B) Unlawful sexual contact as described in section 18-3-404, C.R.S.;

(C) Sexual assault on a client as described in section 18-3-405.5(2), C.R.S.;

(D) Sexual exploitation of a child by possession of sexually exploitive material as described in section 18-6-403, C.R.S.;

(E) Indecent exposure as described in section 18-7-302, C.R.S.; or

(F) Sexual conduct in a correctional institution as described in section 18-7-701, C.R.S.

(III) Repealed by Laws 2021, Ch. 320 (H.B. 21-1064), § 7, eff. Sept. 1, 2021.

(IV) Repealed by Laws 2021, Ch. 320 (H.B. 21-1064), § 7, eff. Sept. 1, 2021.

(3)(a) Deleted by Laws 2005, Ch. 174, § 2, eff. May 27, 2005.

(b) At its discretion, a local law enforcement agency may release information regarding any person, except for a person who is required to register solely because the person was adjudicated or received a disposition as a juvenile, registered with the local law enforcement agency pursuant to this article 22 to any person who does not reside within the local law enforcement agency's jurisdiction or may post the information specified in subsection (2)(b) of this section on the law enforcement agency's website. If a local law enforcement agency does not elect to release information regarding any person registered with the local law enforcement agency to a person not residing within the local law enforcement agency's jurisdiction, the local law enforcement agency may submit a request from the person to the CBI.

(c) Deleted by Laws 2005, Ch. 174, § 2, eff. May 27, 2005.

(d) Upon receipt of a request for information from a law enforcement agency pursuant to this subsection (3), the CBI shall mail the requested information to the person making the request.

(e) Deleted by Laws 2007, Ch. 177, § 1, eff. April 26, 2007.

(3.5) To assist members of the public in protecting themselves from persons who commit offenses involving unlawful sexual behavior, a local law enforcement agency that chooses to post sex offender registration information on its website shall either post educational information concerning protection from sex offenders on its website or provide a link to the educational information included on the CBI website maintained pursuant to section 16-22-111. A local law enforcement agency that posts the educational information shall work with the sex offender management board created pursuant to section 16-11.7-103 and sexual assault victims' advocacy groups in preparing the educational information.

(4) Information released pursuant to this section, at a minimum, shall include the name, address or addresses, and aliases of the registrant; the registrant's date of birth; a photograph of the registrant, if requested and readily available; and a history of the convictions of unlawful sexual behavior resulting in the registrant being required to register pursuant to this article. Information concerning victims shall not be released pursuant to this section.

(5) Any information released pursuant to this section shall include in writing the following statement:

The Colorado sex offender registry includes only those persons who have been required by law to register and who are in compliance with the sex offender registration laws. Persons should not rely solely on the sex offender registry as a safeguard

against perpetrators of sexual assault in their communities. The crime for which a person is convicted may not accurately reflect the level of risk.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2004, Ch. 297, § 14, eff. May 27, 2004; Laws 2005, Ch. 174, § 2, eff. May 27, 2005; Laws 2006, Ch. 122, § 2, eff. April 13, 2006; Laws 2006, Ch. 359, § 2, eff. July 1, 2006; Laws 2007, Ch. 177, § 1, eff. April 26, 2007; Laws 2010, Ch. 262, § 3, eff. July 1, 2010; Laws 2021, Ch. 320 (H.B. 21-1064), § 7, eff. Sept. 1, 2021.

C. R. S. A. § 16-22-112, CO ST § 16-22-112

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-113

§ 16-22-113. Petition for removal from sex offender registry--mandatory hearing for discontinuation and removal

Effective: October 1, 2021

Currentness

(1) Except as required in subsection (3) of this section, any person required to register pursuant to section 16-22-103 or whose information is required to be posted on the internet pursuant to section 16-22-111 may file a petition with the court that issued the order of judgment for the conviction that requires the person to register for an order to discontinue the requirement for such registration or internet posting, or both, as follows:

(a) Except as otherwise provided in paragraphs (d), (e), and (f) of this subsection (1), if the offense that required such person to register constituted or would constitute a class 1, 2, or 3 felony, after a period of twenty years from the date of such person's discharge from the department of corrections, if such person was sentenced to incarceration, or discharge from the department of human services, if such person was committed, or final release from the jurisdiction of the court for such offense, if such person has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior;

(a.5) Except as otherwise provided in subsections (1)(d), (1)(e), and (1)(f) of this section, if the offense that required the person to register constituted human trafficking for sexual servitude pursuant to section 18-3-504(1)(a), upon completion of the person's sentence and his or her discharge from the department of corrections, if he or she was sentenced to incarceration, or discharge from the department of human services, if he or she was committed to such department, or final release from the jurisdiction of the court for the offense, if the person has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior, the person may file a petition with the court pursuant to subsection (2) of this section. Notwithstanding any other information obtained by the court during the hearing of the petition, a court shall not issue an order discontinuing the petitioner's duty to register unless the petitioner has at least established by a preponderance of the evidence that at the time he or she committed the offense of human trafficking for sexual servitude, he or she had been trafficked by another person, as described in section 18-3-503 or 18-3-504, for the purpose of committing the offense. Failure to make the required showing pursuant to this subsection (1)(a.5) requires the person to comply with the provisions of subsection (1)(a) of this section for any subsequent petition to discontinue the person's duty to register.

(b) Except as otherwise provided in paragraphs (d), (e), and (f) of this subsection (1), if the offense that required such person to register constituted or would constitute a class 4, 5, or 6 felony or the class 1 misdemeanor of unlawful sexual contact, as described in section 18-3-404, C.R.S., or sexual assault in the third degree as described in section 18-3-404, C.R.S., as it existed prior to July 1, 2000, after a period of ten years from the date of such person's discharge from the department of corrections, if such person was sentenced to incarceration, or discharge from the department of human services, if such person was committed, or final release from the jurisdiction of the court for such offense, if such person has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior;

(c) Except as otherwise provided in paragraphs (d), (e), and (f) of this subsection (1), if the offense that required such person to register constituted or would constitute a misdemeanor other than the class 1 misdemeanor of unlawful sexual contact, as described in section 18-3-404, C.R.S., or sexual assault in the third degree as described in section 18-3-404, C.R.S., as it existed prior to July 1, 2000, after a period of five years from the date of such person's final release from the jurisdiction of the court for such offense, if such person has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior;

(d) If the person was required to register due to being placed on a deferred judgment and sentence or a deferred adjudication for an offense involving unlawful sexual behavior, after the successful completion of the deferred judgment and sentence or deferred adjudication and dismissal of the case, if the person prior to such time has not been subsequently convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior and the court did not issue an order either continuing the duty to register or discontinuing the duty to register pursuant to paragraph (a) of subsection (1.3) of this section;

(e) Except as otherwise required by subsection (1.3)(b)(II) of this section, if the person was younger than eighteen years of age at the time of commission of the offense, after the successful completion of and discharge from a juvenile sentence or disposition, and if the person prior to such time has not been subsequently convicted as an adult of unlawful sexual behavior, or for any other offense, the underlying factual basis of which involved unlawful sexual behavior, or does not have a pending prosecution for unlawful sexual behavior as an adult or for any other offense, the underlying factual basis of which involved unlawful sexual behavior, and the court did not issue an order to either continue or discontinue the duty to register pursuant to subsection (1.3)(b) of this section. A person petitioning pursuant to this subsection (1)(e) may also petition for an order to remove the person's name from the sex offender registry. In determining whether to grant the order, the court shall consider whether the person is likely to commit a subsequent offense of or involving unlawful sexual behavior. The court shall base its determination on the following, if available: Recommendations from the person's probation or community parole officer; the person's treatment provider; the prosecuting attorney for the jurisdiction in which the person was tried; and on the recommendations included in the person's presentence investigation report. In addition, the court shall consider any written or oral testimony submitted by the victim of the offense for which the petitioner was required to register. Notwithstanding any other requirements of this subsection (1), a juvenile who files a petition pursuant to this section may file the petition with the court to which venue is transferred pursuant to section 19-2.5-104, if any.

(f) If the information about the person was required to be posted on the internet pursuant to section 16-22-111(1)(d) only for failure to register, if the person has fully complied with all registration requirements for a period of not less than one year and if the person, prior to such time, has not been subsequently convicted of unlawful sexual behavior or of any other offense, the underlying factual basis of which involved unlawful sexual behavior; except that the provisions of this paragraph (f) shall apply only to a petition to discontinue the requirement for internet posting.

(g) If a person's duty to register pursuant to this article 22 due to an adjudication or disposition as a juvenile has automatically terminated pursuant to section 16-22-103 (4), and the person's name has not already been removed from the sex offender registry by local law enforcement or the CBI, the person may petition for an order to remove the person's name from the sex offender registry. If the person has reached twenty-five years of age or seven years have passed from the date the person was required to register, whichever occurs later, and the person has not subsequently been convicted as an adult of unlawful sexual behavior, or for any other offense, the underlying factual basis of which involved unlawful sexual behavior, or does not have a pending prosecution for unlawful sexual behavior as an adult or for any other offense, the underlying factual basis of which involved unlawful sexual behavior, the court shall issue an order to remove the person's name from the sex offender registry.

(1.3)(a) If a person is eligible to petition to discontinue his or her duty to register pursuant to paragraph (d) of subsection (1) of this section, the court, at least sixty-three days before dismissing the case, shall notify each of the parties described in paragraph (a) of subsection (2) of this section, the person, and the victim of the offense for which the person was required to register, if the victim has requested notice and has provided current contact information, that the court will consider whether to order that the person may discontinue his or her duty to register when the court dismisses the case as a result of the person's successful completion of the deferred judgment and sentence or deferred adjudication. The court shall set the matter for hearing if any of the parties described in paragraph (a) of subsection (2) of this section or the victim of the offense objects or if the person requests a hearing. If the court enters an order discontinuing the person's duty to register, the person shall send a copy of the order to each local law enforcement agency with which the person is registered and to the CBI. If the victim of the offense has requested notice, the court shall notify the victim of its decision either to continue or discontinue the person's duty to register.

(b)(I) If a person adjudicated or who received a disposition as a juvenile is required to register pursuant to section 16-22-103, the court, within fourteen days of the end of the juvenile's sentence, shall notify each of the parties described in subsection (2) (a) of this section, the juvenile, and the victim of the offense for which the juvenile was required to register, if the victim has requested notice and has provided current contact information, that the court shall consider whether to order that the juvenile may discontinue the juvenile's duty to register when the court discharges the juvenile's sentence. The court shall set the matter for hearing if any district attorney or a victim of the offense objects, or if the juvenile requests a hearing. If an objection is not filed within sixty-three days after receipt of the notice, the court shall, on the sixty-fourth day or the next day the court is in session if the sixty-fourth day falls on a Saturday, Sunday, or court holiday, either issue an order, after determination that the juvenile is eligible to discontinue registration pursuant to subsection (1)(e) of this section and a review of the relevant criteria that discontinues the juvenile's duty to register, or set the matter for a hearing to determine if the juvenile's duty to register continues. At any hearing, the court shall determine whether the juvenile is eligible to discontinue registration pursuant to subsection (1)(e) of this section and, if eligible, consider the criteria in subsection (1)(e) of this section in determining whether to continue or discontinue the duty to register. If the court enters an order to discontinue the juvenile's duty to register, the court shall send a copy of the order to each local law enforcement agency with which the juvenile is registered, the juvenile parole board, and to the CBI. If the victim of the offense has requested notice, the court shall notify the victim of its decision either to continue or discontinue the juvenile's duty to register.

(II) If a juvenile is eligible to petition to discontinue his or her registration pursuant to paragraph (e) of subsection (1) of this section and is under the custody of the department of human services and yet to be released on parole by the juvenile parole board, the department of human services may petition the court to set a hearing pursuant to paragraph (e) of subsection (1) of this section at least sixty-three days before the juvenile is scheduled to appear before the juvenile parole board.

(III) If a juvenile is eligible to petition to discontinue his or her registration pursuant to paragraph (e) of subsection (1) of this section and is under the custody of the department of human services and yet to be released on parole by the juvenile parole board, the department of human services, prior to setting the matter for hearing, shall modify the juvenile's parole plan or parole hearing to acknowledge the court order or petition unless it is already incorporated in the parole plan.

(1.5) If the conviction that requires a person to register pursuant to the provisions of section 16-22-103 was not obtained from a Colorado court, the person seeking to discontinue registration or internet posting or both may file a civil case with the district court of the judicial district in which the person resides and seek a civil order to discontinue the requirement to register or internet posting or both under the circumstances specified in subsection (1) of this section.

(2)(a) A registrant who is eligible to petition to discontinue registration pursuant to the provisions of subsection (1) of this section must file a petition with the court of proper jurisdiction and shall provide a copy of the petition by certified mail to each of the following parties:

(I) Each law enforcement agency with which the registrant is required to register;

(II) The district attorney for the jurisdiction in which the petition to discontinue registration has been filed; and

(III) The prosecuting attorney who obtained the conviction of the registrant.

(b) Within twenty-one days after filing the petition, the petitioner shall file with the court copies of the return receipts received from each party notified and any documents supporting his or her eligibility to petition to discontinue registration. The supporting documents must include records documenting the completion of treatment if ordered by the court, when such records are available.

(c) Upon receipt of the petition, the court shall set a date for a hearing and shall notify the petitioner and the district attorney for that jurisdiction of the hearing date. The court shall also notify the victim of the offense for which the petitioner was required to register, if the victim of the offense has requested notice and provided contact information.

(d) If the district attorney or the victim objects to the registrant's petition, the district attorney shall file the objection with the court within sixty-three days after receiving the notice of the petition.

(e) If no objection is filed by the district attorney or made by the victim, the court may consider the petition without a hearing and shall grant the petition if the court finds that the petitioner has completed the sentence for which he or she was required to register; the petitioner has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying basis of which involved unlawful sexual behavior; the waiting time period described in subsection (1) of this section has expired; and the petitioner is not likely to commit a subsequent offense of or involving unlawful sexual behavior. In determining whether to grant the petition, the court shall consider any treatment records provided pursuant to subsection (2)(b) of this section, any written or oral statement of the victim of the offense for which the petitioner was required to register, and any other relevant information presented by the petitioner or district attorney.

(f) If there is objection to the petition by the district attorney or victim, the court shall conduct a hearing on the petition. The court may grant the petition if the court finds the petitioner has completed the sentence for which he or she was required to register; the petitioner has not subsequently been convicted of unlawful sexual behavior or of any other offense, the underlying basis of which involved unlawful sexual behavior; the waiting time period described in subsection (1) of this section has expired; and the petitioner is not likely to commit a subsequent offense of or involving unlawful sexual behavior. In determining whether to grant the petition, the court shall consider any treatment records provided pursuant to subsection (2)(b) of this section, any written or oral statement of the victim of the offense for which the petitioner was required to register, and any other relevant information presented by the petitioner or district attorney.

(g) If the court enters an order discontinuing registration, the petitioner shall provide a copy of the order to each local law enforcement agency with which the petitioner is registered and the CBI. The court shall also notify the victim, if the victim of the offense has requested notice and provided current contact information.

(h) On receipt of a copy of an order discontinuing a petitioner's duty to register:

(I) The CBI shall remove the petitioner's sex offender registration information from the state sex offender registry; and

(II) The local law enforcement agency shall remove the petitioner's sex offender registration information from the local sex offender registry.

(2.5)(a) Notwithstanding any provision of this section to the contrary, a registrant or his or her legal representative may file a petition to discontinue registration if the registrant suffers from a severe physical or intellectual disability to the extent that he or she is permanently incapacitated and does not present an unreasonable risk to public safety.

(b) The registrant or his or her legal representative must file a petition with the court of proper jurisdiction and shall provide a copy of the petition by certified mail to each of the following parties:

(I) Each law enforcement agency with which the registrant is required to register;

(II) The district attorney for the jurisdiction in which the petition to discontinue registration has been filed; and

(III) The prosecuting attorney who obtained the conviction of the registrant.

(c) Within twenty-one days after filing the petition, the petitioner shall file with the court copies of the return receipts received from each party notified and any documents supporting his or her eligibility to petition to discontinue registration. The supporting documents must include records documenting the completion of treatment if ordered by the court, when such records are available.

(d) Upon receipt of the petition, the court shall set a date for a hearing and shall notify the petitioner and the district attorney for that jurisdiction of the hearing date. The court shall also notify the victim of the offense for which the petitioner was required to register, if the victim of the offense has requested notice and provided contact information.

(e) If the district attorney or the victim objects to the registrant's petition, the district attorney shall file the objection with the court within sixty-three days of receiving the notice of the petition.

(f) If no objection is filed by the district attorney or made by the victim, the court may consider the petition without a hearing and shall grant the petition if the court finds the petitioner suffers from a severe physical or intellectual disability to the extent that the petitioner is permanently incapacitated, does not present an unreasonable risk to public safety, and is not likely to commit a subsequent offense of or involving unlawful sexual behavior. In determining whether to grant the petition, the court

shall consider any treatment records provided pursuant to subsection (2.5)(c) of this section, any written or oral statement of the victim of the offense for which the petitioner was required to register, and any other relevant information presented by the petitioner or district attorney.

(g) If there is objection to the petition by the district attorney or victim, the court shall conduct a hearing on the petition. The court may grant the petition if the court finds the petitioner suffers from a severe physical or intellectual disability to the extent that the petitioner is permanently incapacitated, does not present an unreasonable risk to public safety, and is not likely to commit a subsequent offense of or involving unlawful sexual behavior. In determining whether to grant the petition, the court shall consider any treatment records provided pursuant to subsection (2.5)(c) of this section, any written or oral statement of the victim of the offense for which the petitioner was required to register, and any other relevant information presented by the petitioner or district attorney.

(h) If the court enters an order discontinuing registration, the petitioner shall provide a copy of the order to each local law enforcement agency with which the petitioner is registered and the CBI. The court shall also notify the victim, if the victim of the offense has requested notice and provided contact information.

(i) On receipt of a copy of an order discontinuing a petitioner's duty to register:

(I) The CBI shall remove the petitioner's sex offender registration information from the state sex offender registry; and

(II) The local law enforcement agency shall remove the petitioner's sex offender registration information from the local sex offender registry.

(3) The following persons are not eligible for relief pursuant to this section, but are subject for the remainder of their natural lives to the registration requirements specified in this article 22 or to the comparable requirements of any other jurisdictions in which they may reside:

(a) Any person who is a sexually violent predator;

(b) Any person who is convicted as an adult of:

(I) Sexual assault, in violation of section 18-3-402; or sexual assault in the first degree, in violation of section 18-3-402, as it existed prior to July 1, 2000; or sexual assault in the second degree, in violation of section 18-3-403, as it existed prior to July 1, 2000; or

(II) Sexual assault on a child, in violation of section 18-3-405, C.R.S.; or

(III) Sexual assault on a child by one in a position of trust, in violation of section 18-3-405.3, C.R.S.; or

(IV) Sexual assault on a client by a psychotherapist, in violation of section 18-3-405.5, C.R.S.; or

(V) Incest, in violation of section 18-6-301, C.R.S.; or

(VI) Aggravated incest, in violation of section 18-6-302, C.R.S.;

(c) Any adult who has more than one conviction as an adult for unlawful sexual behavior or any other offense, the underlying factual basis of which is unlawful sexual behavior pursuant to section 16-22-103(2), in this state or any other jurisdiction, except as provided in section 18-6-403(5.7), or has a conviction as an adult and one or more adjudications as a juvenile for unlawful sexual behavior or for any other offense, the underlying factual basis of which is unlawful sexual behavior pursuant to section 16-22-103(2), in this state or any other jurisdiction.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002. Amended by Laws 2004, Ch. 297, §§ 15, 16 eff. May 27, 2004; Laws 2008, Ch. 187, § 2, eff. April 25, 2008; Laws 2008, Ch. 378, § 2, eff. July 1, 2008; Laws 2011, Ch. 224, § 7, eff. May 27, 2011; Laws 2012, Ch. 208, § 100, eff. July 1, 2012; Laws 2013, Ch. 272, § 5, eff. July 1, 2013; Laws 2017, Ch. 250, § 4, eff. Sept. 1, 2017; Laws 2018, Ch. 143, § 3, eff. Aug. 8, 2018; Laws 2021, Ch. 136 (S.B. 21-059), § 31, eff. Oct. 1, 2021; Laws 2021, Ch. 320 (H.B. 21-1064), § 8, eff. Sept. 1, 2021; Laws 2021, Ch. 446 (H.B. 21-1069), § 3, eff. Sept. 7, 2021.

C. R. S. A. § 16-22-113, CO ST § 16-22-113

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated
Title 16. Criminal Proceedings
Offenders--Registration
Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-114

§ 16-22-114. Immunity

Currentness

State agencies and their employees and local law enforcement agencies and their employees are immune from civil or criminal liability for the good faith implementation of this article.

Credits

Added by Laws 2002, Ch. 297, § 1, eff. July 1, 2002.

C. R. S. A. § 16-22-114, CO ST § 16-22-114

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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West's Colorado Revised Statutes Annotated

Title 16. Criminal Proceedings

Offenders--Registration

Article 22. Colorado Sex Offender Registration Act (Refs & Annos)

C.R.S.A. § 16-22-115

§ 16-22-115. CBI assistance in apprehending sex offenders who fail to register

Currentness

In an effort to ensure that a sexual offender who fails to respond to address-verification attempts or who otherwise absconds from registration is located in a timely manner, the Colorado bureau of investigation shall share information with local law enforcement agencies. The Colorado bureau of investigation shall use analytical resources to assist local law enforcement agencies to determine the potential whereabouts of sex offenders who fail to respond to address-verification attempts or who otherwise abscond from registration. The Colorado bureau of investigation shall review and analyze all available information concerning a sex offender who fails to respond to address-verification attempts or otherwise absconds from registration and provide the information to local law enforcement agencies in order to assist in locating and apprehending the sex offender.

Credits

Added by Laws 2006, Ch. 219, § 1, eff. July 1, 2006.

C. R. S. A. § 16-22-115, CO ST § 16-22-115

Current through the First Regular and Extraordinary Sessions, 75th General Assembly (2025). Some statute sections may be more current. See credits for details.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders

C.G.S.A. T. 54, Ch. 969, Refs & Annos
Currentness

C. G. S. A. T. 54, Ch. 969, Refs & Annos, CT ST T. 54, Ch. 969, Refs & Annos

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-250

§ 54-250. Definitions

Effective: October 1, 2019

Currentness

For the purposes of sections 54-102g and 54-250 to 54-258a, inclusive:

(1) “Conviction” means a judgment entered by a court upon a plea of guilty, a plea of nolo contendere or a finding of guilty by a jury or the court notwithstanding any pending appeal or habeas corpus proceeding arising from such judgment.

(2) “Criminal offense against a victim who is a minor” means (A) a violation of subdivision (2) of section 53-21 of the general statutes in effect prior to October 1, 2000, subdivision (2) of subsection (a) of section 53-21, subdivision (2) of subsection (a) of section 53a-70, subdivision (1), (4), (8) or (10) or subparagraph (B) of subdivision (9) of subsection (a) of section 53a-71, subdivision (3) of subsection (a) of section 53a-72a, subdivision (2) of subsection (a) of section 53a-86, subdivision (2) of subsection (a) of section 53a-87, section 53a-90a, 53a-196a, 53a-196b, 53a-196c, 53a-196d, 53a-196e or 53a-196f, (B) a violation of subparagraph (A) of subdivision (9) of subsection (a) of section 53a-71 or section 53a-92, 53a-92a, 53a-94, 53a-94a, 53a-95, 53a-96 or 53a-186, provided the court makes a finding that, at the time of the offense, the victim was under eighteen years of age, (C) a violation of any of the offenses specified in subparagraph (A) or (B) of this subdivision for which a person is criminally liable under section 53a-8, 53a-48 or 53a-49, or (D) a violation of any predecessor statute to any offense specified in subparagraph (A), (B) or (C) of this subdivision the essential elements of which are substantially the same as said offense.

(3) “Identifying factors” means fingerprints, a photographic image, and a description of any other identifying characteristics as may be required by the Commissioner of Emergency Services and Public Protection. The commissioner shall also require a sample of the registrant's blood or other biological sample be taken for DNA (deoxyribonucleic acid) analysis, unless such sample has been previously obtained in accordance with section 54-102g.

(4) “Mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

(5) “Nonviolent sexual offense” means (A) a violation of section 53a-73a or subdivision (2), (3) or (4) of subsection (a) of section 53a-189a, or (B) a violation of any of the offenses specified in subparagraph (A) of this subdivision for which a person is criminally liable under section 53a-8, 53a-48 or 53a-49.

(6) “Not guilty by reason of mental disease or defect” means a finding by a court or jury of not guilty by reason of mental disease or defect pursuant to section 53a-13 notwithstanding any pending appeal or habeas corpus proceeding arising from such finding.

(7) “Personality disorder” means a condition as defined in the most recent edition of the Diagnostic and Statistical Manual of Mental Disorders, published by the American Psychiatric Association.

(8) “Registrant” means a person required to register under section 54-251, 54-252, 54-253 or 54-254.

(9) “Registry” means a central record system in this state, any other state or the federal government that receives, maintains and disseminates information on persons convicted or found not guilty by reason of mental disease or defect of criminal offenses against victims who are minors, nonviolent sexual offenses, sexually violent offenses and felonies found by the sentencing court to have been committed for a sexual purpose.

(10) “Release into the community” means, with respect to a conviction or a finding of not guilty by reason of mental disease or defect of a criminal offense against a victim who is a minor, a nonviolent sexual offense, a sexually violent offense or a felony found by the sentencing court to have been committed for a sexual purpose, (A) any release by a court after such conviction or finding of not guilty by reason of mental disease or defect, a sentence of probation or any other sentence under section 53a-28 that does not result in the offender's immediate placement in the custody of the Commissioner of Correction; (B) release from a correctional facility at the discretion of the Board of Pardons and Paroles, by the Department of Correction to a program authorized by section 18-100c or upon completion of the maximum term or terms of the offender's sentence or sentences, or to the supervision of the Court Support Services Division in accordance with the terms of the offender's sentence; or (C) temporary leave to an approved residence by the Psychiatric Security Review Board pursuant to section 17a-587, conditional release from a hospital for mental illness or a facility for persons with intellectual disability by the Psychiatric Security Review Board pursuant to section 17a-588, or release upon termination of commitment to the Psychiatric Security Review Board.

(11) “Sexually violent offense” means (A) a violation of section 53a-70b of the general statutes, revision of 1958, revised to January 1, 2019, or section 53a-70, except subdivision (2) of subsection (a) of said section, 53a-70a, 53a-71, except subdivision (1), (4), (8) or (10) or subparagraph (B) of subdivision (9) of subsection (a) of said section or subparagraph (A) of subdivision (9) of subsection (a) of said section if the court makes a finding that, at the time of the offense, the victim was under eighteen years of age, 53a-72a, except subdivision (2) of subsection (a) of said section, or 53a-72b, or of section 53a-92 or 53a-92a, provided the court makes a finding that the offense was committed with intent to sexually violate or abuse the victim, (B) a violation of any of the offenses specified in subparagraph (A) of this subdivision for which a person is criminally liable under section 53a-8, 53a-48 or 53a-49, or (C) a violation of any predecessor statute to any of the offenses specified in subparagraph (A) or (B) of this subdivision the essential elements of which are substantially the same as said offense.

(12) “Sexual purpose” means that a purpose of the defendant in committing the felony was to engage in sexual contact or sexual intercourse with another person without that person's consent. A sexual purpose need not be the sole purpose of the commission of the felony. The sexual purpose may arise at any time in the course of the commission of the felony.

(13) “Employed” or “carries on a vocation” means employment that is full-time or part-time for more than fourteen days, or for a total period of time of more than thirty days during any calendar year, whether financially compensated, volunteered or for the purpose of government or educational benefit.

(14) “Student” means a person who is enrolled on a full-time or part-time basis, in any public or private educational institution, including any secondary school, trade or professional institution or institution of higher learning.

Credits

(1998, P.A. 98-111, § 1; 1999, P.A. 99-183, § 1, eff. July 1, 1999; 2001, P.A. 01-84, § 22, eff. July 1, 2001; 2002, May 9 Sp.Sess., P.A. 02-7, § 78, eff. Aug. 15, 2002; 2002, P.A. 02-89, § 85; 2002, P.A. 02-132, § 51; 2004, P.A. 04-234, § 2, eff. July 1, 2004; 2004, P.A. 04-139, § 10; 2004, P.A. 04-188, § 4; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, §§ 31-33; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2011, P.A. 11-129, § 20; 2013, P.A. 13-73, § 1, eff. July 1, 2013; 2015, P.A. 15-213, § 3; 2019, P.A. 19-16, § 18, eff. Oct. 1, 2019; 2019, P.A. 19-189, § 40, eff. Oct. 1, 2019.)

C. G. S. A. § 54-250, CT ST § 54-250

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-251

§ 54-251. Registration of person who has committed a criminal
offense against a victim who is a minor or a nonviolent sexual offense

Effective: October 1, 2015

Currentness

(a) Any person who has been convicted or found not guilty by reason of mental disease or defect of a criminal offense against a victim who is a minor or a nonviolent sexual offense, and is released into the community on or after October 1, 1998, shall, within three days following such release or, if such person is in the custody of the Commissioner of Correction, at such time prior to release as the commissioner shall direct, and whether or not such person's place of residence is in this state, register such person's name, identifying factors, criminal history record, residence address and electronic mail address, instant message address or other similar Internet communication identifier, if any, with the Commissioner of Emergency Services and Public Protection, on such forms and in such locations as the commissioner shall direct, and shall maintain such registration for ten years from the date of such person's release into the community, except that any person who has one or more prior convictions of any such offense or who is convicted of a violation of subdivision (2) of subsection (a) of section 53a-70 shall maintain such registration for life. Prior to accepting a plea of guilty or nolo contendere from a person with respect to a criminal offense against a victim who is a minor or a nonviolent sexual offense, the court shall (1) inform the person that the entry of a finding of guilty after acceptance of the plea will subject the person to the registration requirements of this section, and (2) determine that the person fully understands the consequences of the plea. If any person who is subject to registration under this section changes such person's name, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new name. If any person who is subject to registration under this section changes such person's address, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new address and, if the new address is in another state, such person shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. If any person who is subject to registration under this section establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of such identifier. If any person who is subject to registration under this section is employed at, carries on a vocation at or is a student at a trade or professional institution or institution of higher learning in this state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection of such status and of any change in such status. If any person who is subject to registration under this section is employed in another state, carries on a vocation in another state or is a student in another state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection and shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. During such period of registration, each registrant shall complete and return forms mailed to such registrant to verify such registrant's residence address and shall submit to the retaking of a photographic image upon request of the Commissioner of Emergency Services and Public Protection.

(b) Notwithstanding the provisions of subsection (a) of this section, the court may exempt any person who has been convicted or found not guilty by reason of mental disease or defect of a violation of subdivision (1) of subsection (a) of section 53a-71 from the registration requirements of this section if the court finds that such person was under nineteen years of age at the time of the offense and that registration is not required for public safety.

(c) Notwithstanding the provisions of subsection (a) of this section, the court may exempt any person who has been convicted or found not guilty by reason of mental disease or defect of a violation of subdivision (2) of subsection (a) of section 53a-73a or subdivision (2), (3) or (4) of subsection (a) of section 53a-189a, from the registration requirements of this section if the court finds that registration is not required for public safety.

(d) Any person who files an application with the court to be exempted from the registration requirements of this section pursuant to subsection (b) or (c) of this section shall, pursuant to subsection (b) of section 54-227, notify the Office of Victim Services and the Victim Services Unit within the Department of Correction of the filing of such application. The Office of Victim Services or the Victim Services Unit within the Department of Correction, or both, shall, pursuant to section 54-230 or 54-230a, notify any victim who has requested notification of the filing of such application. Prior to granting or denying such application, the court shall consider any information or statement provided by the victim.

(e) Any person who violates the provisions of subsection (a) of this section shall be guilty of a class D felony, except that, if such person violates the provisions of this section by failing to notify the Commissioner of Emergency Services and Public Protection without undue delay of a change of name, address or status or another reportable event, such person shall be subject to such penalty if such failure continues for five business days.

Credits

(1998, P.A. 98-111, § 2; 1999, P.A. 99-183, § 2, eff. July 1, 1999; 2001, P.A. 01-211, § 1; 2002, May 9 Sp.Sess., P.A. 02-7, § 79, eff. Aug. 15, 2002; 2005, P.A. 05-146, § 5; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, §§ 34-36; 2007, June Sp.Sess., P.A. 07-4, § 90; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2015, P.A. 15-211, § 5; 2015, P.A. 15-213, § 4.)

C. G. S. A. § 54-251, CT ST § 54-251

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-252

§ 54-252. Registration of person who has committed a sexually violent offense

Effective: October 1, 2015

Currentness

(a) Any person who has been convicted or found not guilty by reason of mental disease or defect of a sexually violent offense, and (1) is released into the community on or after October 1, 1988, and prior to October 1, 1998, and resides in this state, shall, on October 1, 1998, or within three days of residing in this state, whichever is later, or (2) is released into the community on or after October 1, 1998, shall, within three days following such release or, if such person is in the custody of the Commissioner of Correction, at such time prior to release as the commissioner shall direct, register such person's name, identifying factors and criminal history record, documentation of any treatment received by such person for mental abnormality or personality disorder, and such person's residence address and electronic mail address, instant message address or other similar Internet communication identifier, if any, with the Commissioner of Emergency Services and Public Protection on such forms and in such locations as said commissioner shall direct, and shall maintain such registration for life. Prior to accepting a plea of guilty or nolo contendere from a person with respect to a sexually violent offense, the court shall (A) inform the person that the entry of a finding of guilty after acceptance of the plea will subject the person to the registration requirements of this section, and (B) determine that the person fully understands the consequences of the plea. If any person who is subject to registration under this section changes such person's name, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new name. If any person who is subject to registration under this section changes such person's address, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new address and, if the new address is in another state, such person shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. If any person who is subject to registration under this section establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of such identifier. If any person who is subject to registration under this section is employed at, carries on a vocation at or is a student at a trade or professional institution or institution of higher learning in this state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection of such status and of any change in such status. If any person who is subject to registration under this section is employed in another state, carries on a vocation in another state or is a student in another state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection and shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. During such period of registration, each registrant shall complete and return forms mailed to such registrant to verify such registrant's residence address and shall submit to the retaking of a photographic image upon request of the Commissioner of Emergency Services and Public Protection.

(b) Any person who has been subject to the registration requirements of section 54-102r of the general statutes, revised to January 1, 1997, as amended by section 1 of public act 97-183, shall, not later than three working days after October 1, 1998, register under this section and thereafter comply with the provisions of sections 54-102g and 54-250 to 54-258a, inclusive, except that any person who was convicted or found not guilty by reason of mental disease or defect of an offense that is classified as a criminal offense against a victim who is a minor under subdivision (2) of section 54-250 and that is subject to a ten-year period of registration under section 54-251 shall maintain such registration for ten years from the date of such person's release into the community.

(c) Notwithstanding the provisions of subsections (a) and (b) of this section, during the initial registration period following October 1, 1998, the Commissioner of Emergency Services and Public Protection may phase in completion of the registration procedure for persons released into the community prior to said date over the first three months following said date, and no such person shall be prosecuted for failure to register under this section during those three months provided such person complies with the directives of said commissioner regarding registration procedures.

(d) Any person who violates the provisions of this section shall be guilty of a class D felony, except that, if such person violates the provisions of this section by failing to notify the Commissioner of Emergency Services and Public Protection without undue delay of a change of name, address or status or another reportable event, such person shall be subject to such penalty if such failure continues for five business days.

Credits

(1998, P.A. 98-111, § 3; 1999, P.A. 99-183, § 3, eff. July 1, 1999; 2002, May 9 Sp.Sess., P.A. 02-7, § 80, eff. Aug. 15, 2002; 2002, P.A. 02-89, § 86; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, § 37; 2007, June Sp.Sess., P.A. 07-4, § 91; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2015, P.A. 15-211, § 6.)

C. G. S. A. § 54-252, CT ST § 54-252

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-253

§ 54-253. Registration of person who has committed a sexual offense in another jurisdiction

Effective: July 1, 2011

Currentness

(a) Any person who has been convicted or found not guilty by reason of mental disease or defect in any other state, in a federal or military court or in any foreign jurisdiction of any crime (1) the essential elements of which are substantially the same as any of the crimes specified in subdivisions (2), (5) and (11) of section 54-250, or (2) which requires registration as a sexual offender in such other state or in the federal or military system, and who resides in this state on and after October 1, 1998, shall, without undue delay upon residing in this state, register with the Commissioner of Emergency Services and Public Protection in the same manner as if such person had been convicted or found not guilty by reason of mental disease or defect of such crime in this state, except that the commissioner shall maintain such registration until such person is released from the registration requirement in such other state, federal or military system or foreign jurisdiction.

(b) If any person who is subject to registration under this section changes such person's name, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new name. If any person who is subject to registration under this section changes such person's address, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new address and, if the new address is in another state, such person shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. If any person who is subject to registration under this section establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of such identifier. If any person who is subject to registration under this section is employed at, carries on a vocation at or is a student at a trade or professional institution or institution of higher learning in this state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection of such status and of any change in such status. If any person who is subject to registration under this section is employed in another state, carries on a vocation in another state or is a student in another state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection and shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. During such period of registration, each registrant shall complete and return forms mailed to such registrant to verify such registrant's residence address and shall submit to the retaking of a photographic image upon request of the Commissioner of Emergency Services and Public Protection.

(c) Any person not a resident of this state who is registered as a sexual offender under the laws of any other state and who is employed in this state, carries on a vocation in this state or is a student in this state, shall, without undue delay after the commencement of such employment, vocation or education in this state, register such person's name, identifying factors and criminal history record, locations visited on a recurring basis, and such person's residence address, if any, in this state, residence address in such person's home state and electronic mail address, instant message address or other similar Internet communication identifier, if any, with the Commissioner of Emergency Services and Public Protection on such forms and in such locations as said commissioner shall direct and shall maintain such registration until such employment, vocation or education terminates or until such person is released from registration as a sexual offender in such other state. If such person terminates such person's

employment, vocation or education in this state, changes such person's address in this state or establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of such termination, new address or identifier.

(d) Any person not a resident of this state who is registered as a sexual offender under the laws of any other state and who travels in this state on a recurring basis for periods of less than five days shall notify the Commissioner of Emergency Services and Public Protection of such person's temporary residence in this state and of a telephone number at which such person may be contacted.

(e) Any person who violates the provisions of this section shall be guilty of a class D felony, except that, if such person violates the provisions of this section by failing to register with the Commissioner of Emergency Services and Public Protection without undue delay or notify the Commissioner of Emergency Services and Public Protection without undue delay of a change of name, address or status or another reportable event, such person shall be subject to such penalty if such failure continues for five business days.

Credits

(1998, P.A. 98-111, § 4; 1999, P.A. 99-183, § 4, eff. July 1, 1999; 2002, May 9 Sp.Sess., P.A. 02-7, § 81, eff. Aug. 15, 2002; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, § 38; 2007, June Sp.Sess., P.A. 07-4, §§ 92, 93; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011.)

C. G. S. A. § 54-253, CT ST § 54-253

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-254

§ 54-254. Registration of person who has committed a felony for a sexual purpose

Effective: October 1, 2015

Currentness

(a) Any person who has been convicted or found not guilty by reason of mental disease or defect in this state on or after October 1, 1998, of any felony that the court finds was committed for a sexual purpose, may be required by the court upon release into the community or, if such person is in the custody of the Commissioner of Correction, at such time prior to release as the commissioner shall direct to register such person's name, identifying factors, criminal history record, residence address and electronic mail address, instant message address or other similar Internet communication identifier, if any, with the Commissioner of Emergency Services and Public Protection, on such forms and in such locations as the commissioner shall direct, and to maintain such registration for ten years from the date of such person's release into the community. If the court finds that a person has committed a felony for a sexual purpose and intends to require such person to register under this section, prior to accepting a plea of guilty or nolo contendere from such person with respect to such felony, the court shall (1) inform the person that the entry of a finding of guilty after acceptance of the plea will subject the person to the registration requirements of this section, and (2) determine that the person fully understands the consequences of the plea. If any person who is subject to registration under this section changes such person's name, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new name. If any person who is subject to registration under this section changes such person's address, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of the new address and, if the new address is in another state, such person shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. If any person who is subject to registration under this section establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection in writing of such identifier. If any person who is subject to registration under this section is employed at, carries on a vocation at or is a student at a trade or professional institution or institution of higher learning in this state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection of such status and of any change in such status. If any person who is subject to registration under this section is employed in another state, carries on a vocation in another state or is a student in another state, such person shall, without undue delay, notify the Commissioner of Emergency Services and Public Protection and shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders. During such period of registration, each registrant shall complete and return forms mailed to such registrant to verify such registrant's residence address and shall submit to the retaking of a photographic image upon request of the Commissioner of Emergency Services and Public Protection.

(b) Any person who violates the provisions of this section shall be guilty of a class D felony, except that, if such person violates the provisions of this section by failing to notify the Commissioner of Emergency Services and Public Protection without undue delay of a change of name, address or status or another reportable event, such person shall be subject to such penalty if such failure continues for five business days.

Credits

(1998, P.A. 98-111, § 5; 1999, P.A. 99-183, § 5, eff. July 1, 1999; 2002, May 9 Sp.Sess., P.A. 02-7, § 82, eff. Aug. 15, 2002; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, § 39; 2007, June Sp.Sess., P.A. 07-4, § 94; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2015, P.A. 15-211, § 7.)

C. G. S. A. § 54-254, CT ST § 54-254

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-255

§ 54-255. Restriction on dissemination of registration information for certain offenders

Effective: October 1, 2019

Currentness

(a) Upon the conviction or finding of not guilty by reason of mental disease or defect of any person for a violation of section 53a-70b of the general statutes, revision of 1958, revised to January 1, 2019, the court may order the Department of Emergency Services and Public Protection to restrict the dissemination of the registration information to law enforcement purposes only and to not make such information available for public access, provided the court finds that dissemination of the registration information is not required for public safety and that publication of the registration information would be likely to reveal the identity of the victim within the community where the victim resides. The court shall remove the restriction on the dissemination of such registration information if, at any time, the court finds that public safety requires that such person's registration information be made available to the public or that a change of circumstances makes publication of such registration information no longer likely to reveal the identity of the victim within the community where the victim resides. Prior to ordering or removing the restriction on the dissemination of such person's registration information, the court shall consider any information or statements provided by the victim.

(b) Upon the conviction or finding of not guilty by reason of mental disease or defect of any person of a criminal offense against a victim who is a minor, a nonviolent sexual offense or a sexually violent offense, where the victim of such offense was, at the time of the offense, under eighteen years of age and related to such person within any of the degrees of kindred specified in section 46b-21, the court may order the Department of Emergency Services and Public Protection to restrict the dissemination of the registration information to law enforcement purposes only and to not make such information available for public access, provided the court finds that dissemination of the registration information is not required for public safety and that publication of the registration information would be likely to reveal the identity of the victim within the community where the victim resides. The court shall remove the restriction on the dissemination of such registration information if, at any time, it finds that public safety requires that such person's registration information be made available to the public or that a change in circumstances makes publication of the registration information no longer likely to reveal the identity of the victim within the community where the victim resides.

(c) Any person who: (1) Has been convicted or found not guilty by reason of mental disease or defect of a violation of subdivision (1) of subsection (a) of section 53a-71 between October 1, 1988, and June 30, 1999, and was under nineteen years of age at the time of the offense; (2) has been convicted or found not guilty by reason of mental disease or defect of a violation of subdivision (2) of subsection (a) of section 53a-73a between October 1, 1988, and June 30, 1999; (3) has been convicted or found not guilty by reason of mental disease or defect of a criminal offense against a victim who is a minor, a nonviolent sexual offense or a sexually violent offense, between October 1, 1988, and June 30, 1999, where the victim of such offense was, at the time of the offense, under eighteen years of age and related to such person within any of the degrees of kindred specified in section 46b-21; (4) has been convicted or found not guilty by reason of mental disease or defect of a violation of section 53a-70b of the general statutes, revision of 1958, revised to January 1, 2019, between October 1, 1988, and June 30, 1999; or (5) has been convicted or found not guilty by reason of mental disease or defect of any crime between October 1, 1988, and September 30, 1998, which requires registration under sections 54-250 to 54-258a, inclusive, and (A) served no jail or prison time as a result of such

conviction or finding of not guilty by reason of mental disease or defect, (B) has not been subsequently convicted or found not guilty by reason of mental disease or defect of any crime which would require registration under sections 54-250 to 54-258a, inclusive, and (C) has registered with the Department of Emergency Services and Public Protection in accordance with sections 54-250 to 54-258a, inclusive; may petition the court to order the Department of Emergency Services and Public Protection to restrict the dissemination of the registration information to law enforcement purposes only and to not make such information available for public access. Any person who files such a petition shall, pursuant to subsection (b) of section 54-227, notify the Office of Victim Services and the Victim Services Unit within the Department of Correction of the filing of such petition. The Office of Victim Services or the Victim Services Unit within the Department of Correction, or both, shall, pursuant to section 54-230 or 54-230a, notify any victim who has requested notification pursuant to subsection (b) of section 54-228 of the filing of such petition. Prior to granting or denying such petition, the court shall consider any information or statements provided by the victim. The court may order the Department of Emergency Services and Public Protection to restrict the dissemination of the registration information to law enforcement purposes only and to not make such information available for public access, provided the court finds that dissemination of the registration information is not required for public safety.

Credits

(1998, P.A. 98-111, § 6; 1999, P.A. 99-183, § 6, eff. July 1, 1999; 2001, P.A. 01-211, § 2; 2002, P.A. 02-89, § 87; 2005, P.A. 05-146, § 6; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2019, P.A. 19-189, § 41, eff. Oct. 1, 2019.)

C. G. S. A. § 54-255, CT ST § 54-255

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-256

§ 54-256. Responsibilities of courts and agencies in registration process

Effective: July 1, 2011

Currentness

(a) Any court, the Commissioner of Correction or the Psychiatric Security Review Board, prior to releasing into the community any person convicted or found not guilty by reason of mental disease or defect of a criminal offense against a victim who is a minor, a nonviolent sexual offense, a sexually violent offense or a felony found by the sentencing court to have been committed for a sexual purpose, except a person being released unconditionally at the conclusion of such person's sentence or commitment, shall require as a condition of such release that such person complete the registration procedure established by the Commissioner of Emergency Services and Public Protection under sections 54-251, 54-252 and 54-254. The court, the Commissioner of Correction or the Psychiatric Security Review Board, as the case may be, shall provide the person with a written summary of the person's obligations under sections 54-102g and 54-250 to 54-258a, inclusive, and transmit the completed registration package to the Commissioner of Emergency Services and Public Protection who shall enter the information into the registry established under section 54-257. If a court transmits the completed registration package to the Commissioner of Emergency Services and Public Protection with respect to a person released by the court, such package need not include identifying factors for such person. In the case of a person being released unconditionally who declines to complete the registration package through the court or the releasing agency, the court or agency shall: (1) Except with respect to information that is not available to the public pursuant to court order, rule of court or any provision of the general statutes, provide to the Commissioner of Emergency Services and Public Protection the person's name, date of release into the community, anticipated residence address, if known, and criminal history record, any known treatment history of such person, any electronic mail address, instant message address or other similar Internet communication identifier for such person, if known, and any other relevant information; (2) inform the person that such person has an obligation to register within three days with the Commissioner of Emergency Services and Public Protection for a period of ten years following the date of such person's release or for life, as the case may be, that if such person changes such person's address such person shall within five days register the new address in writing with the Commissioner of Emergency Services and Public Protection and, if the new address is in another state or if such person is employed in another state, carries on a vocation in another state or is a student in another state, such person shall also register with an appropriate agency in that state, provided that state has a registration requirement for such offenders, and that if such person establishes or changes an electronic mail address, instant message address or other similar Internet communication identifier such person shall, within five days, register such identifier with the Commissioner of Emergency Services and Public Protection; (3) provide the person with a written summary of the person's obligations under sections 54-102g and 54-250 to 54-258a, inclusive, as explained to the person under subdivision (2) of this subsection; and (4) make a specific notation on the record maintained by that agency with respect to such person that the registration requirements were explained to such person and that such person was provided with a written summary of such person's obligations under sections 54-102g and 54-250 to 54-258a, inclusive.

(b) Whenever a person is convicted or found not guilty by reason of mental disease or defect of an offense that will require such person to register under section 54-251, 54-252 or 54-254, the court shall provide to the Department of Emergency Services and Public Protection a written summary of the offense that includes the age and sex of any victim of the offense and a specific description of the offense. Such summary shall be added to the registry information made available to the public through the Internet.

Credits

(1998, P.A. 98-111, § 7; 1999, P.A. 99-183, § 7, eff. July 1, 1999; 2002, May 9 Sp.Sess., P.A. 02-7, § 83, eff. Aug. 15, 2002; 2002, P.A. 02-89, § 88; 2006, P.A. 06-187, § 28, eff. July 1, 2007; 2007, June Sp.Sess., P.A. 07-4, § 95; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011.)

C. G. S. A. § 54-256, CT ST § 54-256

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-257

§ 54-257. Registry. Suspension of registration. Verification of address. Retake of photographic image. Change of name

Effective: October 1, 2023

Currentness

(a) The Department of Emergency Services and Public Protection shall, not later than January 1, 1999, establish and maintain a registry of all persons required to register under sections 54-251, 54-252, 54-253 and 54-254. The department shall, in cooperation with the Office of the Chief Court Administrator, the Department of Correction and the Psychiatric Security Review Board, develop appropriate forms for use by agencies and individuals to report registration information, including changes of residence address. Upon receipt of registration information, the department shall enter the information into the registry and notify the local police department or state police troop having jurisdiction where the registrant resides or plans to reside. If a registrant notifies the Department of Emergency Services and Public Protection that such registrant is employed at, carries on a vocation at or is a student at a trade or professional institution or institution of higher learning in this state, the department shall notify the law enforcement agency with jurisdiction over such institution. If a registrant reports a residence in another state, the department shall notify the state police agency of that state or such other agency in that state that maintains registry information, if known. The department shall also transmit all registration information, conviction data, photographic images and fingerprints to the Federal Bureau of Investigation in such form as said bureau shall require for inclusion in a national registry.

(b) The Department of Emergency Services and Public Protection may suspend the registration of any person registered under section 54-251, 54-252, 54-253 or 54-254 while such person is incarcerated, under civil commitment or residing outside this state. During the period that such registration is under suspension, the department is not required to verify the residence address of the registrant pursuant to subsection (c) of this section and may withdraw the registration information from public access. Upon the release of the registrant from incarceration or civil commitment or resumption of residency in this state by the registrant, the department shall reinstate the registration, redistribute the registration information in accordance with subsection (a) of this section and resume verifying the residence address of the registrant in accordance with subsection (c) of this section. Suspension of registration shall not affect the date of expiration of the registration obligation of the registrant under section 54-251, 54-252 or 54-253.

(c) Except as provided in subsection (b) of this section, the Department of Emergency Services and Public Protection shall verify the residence address of each registrant by mailing a nonforwardable verification form to the registrant at the registrant's last reported residence address. Such form shall require the registrant to sign a statement that the registrant continues to reside at the registrant's last reported residence address and return the form by mail, facsimile or electronic mail by a date which is ten days after the date such form was mailed to the registrant. The form shall contain a statement that failure to return the form or providing false information is a violation of section 54-251, 54-252, 54-253 or 54-254, as the case may be. In the case of a registrant who resides at a residence address for which there is no residential mail delivery, the local police department or the state police troop having jurisdiction where the registrant resides shall verify in person such registrant's residence address. Each person required to register under section 54-251, 54-252, 54-253 or 54-254 shall have such person's residence address verified in such manner every ninety days after such person's initial registration date. In the event that a registrant fails to return the residence address verification form, the Department of Emergency Services and Public Protection shall notify the local police department or the state police troop having jurisdiction over the registrant's last reported residence address, and that agency

shall apply for a warrant to be issued for the registrant's arrest under section 54-251, 54-252, 54-253 or 54-254, as the case may be. The Department of Emergency Services and Public Protection shall not verify the address of registrants whose last reported residence address was outside this state.

(d) The Department of Emergency Services and Public Protection shall include in the registry the most recent photographic image of each registrant taken by the department, the Department of Correction, a law enforcement agency or the Court Support Services Division of the Judicial Department and shall retake the photographic image of each registrant at least once every five years.

(e) Whenever the Commissioner of Emergency Services and Public Protection receives notice from a superior court pursuant to section 52-11 or a probate court pursuant to section 45a-99 that such court has ordered the change of name of a person, and the department determines that such person is listed in the registry, the department shall revise such person's registration information accordingly.

(f) The Commissioner of Emergency Services and Public Protection shall develop a protocol for the notification of other state agencies, the Judicial Department and local police departments whenever a person listed in the registry changes such person's name and notifies the commissioner of the new name pursuant to section 54-251, 54-252, 54-253 or 54-254 or whenever the commissioner determines pursuant to subsection (e) of this section that a person listed in the registry has changed such person's name.

Credits

(1998, P.A. 98-111, § 8; 1999, P.A. 99-183, § 8, eff. July 1, 1999; 2002, May 9 Sp.Sess., P.A. 02-7, § 84, eff. Aug. 15, 2002; 2003, P.A. 03-202, § 19; 2006, P.A. 06-196, § 292, eff. June 7, 2006; 2006, P.A. 06-187, § 40; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2023, P.A. 23-193, § 1, eff. Oct. 1, 2023.)

C. G. S. A. § 54-257, CT ST § 54-257

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-258

§ 54-258. Availability of registration information. Immunity

Effective: October 1, 2023

Currentness

(a) (1) Notwithstanding any other provision of the general statutes, except subdivisions (3), (4) and (5) of this subsection, the registry maintained by the Department of Emergency Services and Public Protection shall be a public record and shall be accessible to the public during normal business hours. The Department of Emergency Services and Public Protection shall make registry information available to the public through the Internet. Not less than once per calendar quarter, the Department of Emergency Services and Public Protection shall issue notices to all print and electronic media in the state regarding the availability and means of accessing the registry. Each local police department and each state police troop shall keep a record of all registration information transmitted to it by the Department of Emergency Services and Public Protection, and shall make such information accessible to the public during normal business hours.

(2) (A) Any state agency, the Judicial Department, any state police troop or any local police department may, at its discretion, notify any government agency, private organization or individual of registration information when such agency, said department, such troop or such local police department, as the case may be, believes such notification is necessary to protect the public or any individual in any jurisdiction from any person who is subject to registration under section 54-251, 54-252, 54-253 or 54-254.

(B) (i) Whenever a registrant is released into the community, or whenever a registrant changes such registrant's residence address and notifies the Department of Emergency Services and Public Protection of such change pursuant to section 54-251, 54-252, 54-253 or 54-254, the Department of Emergency Services and Public Protection shall, by electronic mail, notify the superintendent of schools for the school district in which the registrant resides, or plans to reside, of such release or new residence address, and provide such superintendent with the same registry information for such registrant that the department makes available to the public through the Internet under subdivision (1) of this subsection.

(ii) Whenever a registrant is released into the community, or whenever a registrant changes such registrant's residence address and notifies the Department of Emergency Services and Public Protection of such change pursuant to section 54-251, 54-252, 54-253 or 54-254, the Department of Emergency Services and Public Protection shall, by electronic mail, notify the chief executive officer of the municipality in which the registrant resides, or plans to reside, of such release or new residence address, and provide such chief executive officer with the same registry information for such registrant that the department makes available to the public through the Internet under subdivision (1) of this subsection.

(3) Notwithstanding the provisions of subdivisions (1) and (2) of this subsection, state agencies, the Judicial Department, state police troops and local police departments shall not disclose the identity of any victim of a crime committed by a registrant or treatment information provided to the registry pursuant to sections 54-102g and 54-250 to 54-258a, inclusive, except to government agencies for bona fide law enforcement or security purposes.

(4) Notwithstanding the provisions of subdivisions (1) and (2) of this subsection, registration information the dissemination of which has been restricted by court order pursuant to section 54-255 and which is not otherwise subject to disclosure, shall not be a public record and shall be released only for law enforcement purposes until such restriction is removed by the court pursuant to said section.

(5) Notwithstanding the provisions of subdivisions (1) and (2) of this subsection, a registrant's electronic mail address, instant message address or other similar Internet communication identifier shall not be a public record, except that the Department of Emergency Services and Public Protection may release such identifier for law enforcement or security purposes in accordance with regulations adopted by the department. The department shall adopt regulations in accordance with chapter 54¹ to specify the circumstances under which and the persons to whom such identifiers may be released including, but not limited to, providers of electronic communication service or remote computing service, as those terms are defined in section 54-260b, and operators of Internet web sites, and the procedure therefor.

(6) When any registrant completes the registrant's term of registration or is otherwise released from the obligation to register under section 54-251, 54-252, 54-253 or 54-254, the Department of Emergency Services and Public Protection shall notify any state police troop or local police department having jurisdiction over the registrant's last reported residence address that the person is no longer a registrant, and the Department of Emergency Services and Public Protection, state police troop and local police department shall remove the registrant's name and information from the registry.

(b) Neither the state nor any political subdivision of the state nor any officer or employee thereof, shall be held civilly liable to any registrant by reason of disclosure of any information regarding the registrant that is released or disclosed in accordance with subsection (a) of this section. The state and any political subdivision of the state and, except in cases of wanton, reckless or malicious conduct, any officer or employee thereof, shall be immune from liability for good faith conduct in carrying out the provisions of subdivision (2) of subsection (a) of this section.

Credits

(1998, P.A. 98-111, § 9; 1999, P.A. 99-183, § 9, eff. July 1, 1999; 2002, P.A. 02-89, § 89; 2007, June Sp.Sess., P.A. 07-4, § 96; 2009, P.A. 09-199, § 1, eff. Sept. 1, 2009; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011; 2014, P.A. 14-192, § 6, eff. July 1, 2014; 2014, P.A. 14-213, § 1, eff. July 1, 2014; 2015, P.A. 15-14, § 18; 2023, P.A. 23-193, § 2, eff. Oct. 1, 2023.)

Footnotes

¹ C.G.S.A. § 4-166 et seq.

C. G. S. A. § 54-258, CT ST § 54-258

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-258a

§ 54-258a. Warning against wrongful use of registry information

Currentness

Any agency of the state or any political subdivision thereof that provides public access to information contained in the registry shall post a warning that states: “Any person who uses information in this registry to injure, harass or commit a criminal act against any person included in the registry or any other person is subject to criminal prosecution.” Such warning shall be in a suitable size and location to ensure that it will be seen by any person accessing registry information.

Credits

(1999, P.A. 99-183, § 10, eff. July 1, 1999.)

C. G. S. A. § 54-258a, CT ST § 54-258a

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-259

§ 54-259. Repealed. (2002, P.A. 02-89, § 90.)

Currentness

C. G. S. A. § 54-259, CT ST § 54-259

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated

Title 54. Criminal Procedure

Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-259a

§ 54-259a. Repealed. (2013, P.A. 13-299, § 95, eff. July 1, 2013.)

Effective: July 1, 2013

Currentness

C. G. S. A. § 54-259a, CT ST § 54-259a

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-260

§ 54-260. Notification of change of name or address of sexual offenders on parole or probation

Effective: October 1, 2019

Currentness

(a) For the purposes of this section, “sexual offender” means any person convicted of a violation of section 53a-70b of the general statutes, revision of 1958, revised to January 1, 2019, or subdivision (2) of section 53-21 of the general statutes in effect prior to October 1, 2000, or subdivision (2) of subsection (a) of section 53-21, or section 53a-70, 53a-70a, 53a-71, 53a-72a or 53a-72b committed on or after October 1, 1995.

(b) Any sexual offender who is released from a correctional institution on parole or who is sentenced to a period of probation shall, during the period of such parole or probation and as a condition of such parole or probation, immediately notify such person's parole officer or probation officer, as the case may be, whenever such person changes such person's name or residence address. Each parole officer or probation officer who is notified of such change of address shall notify the chief of police of the police department or resident state trooper for the municipality of the new address of the parolee or probationer and any other law enforcement official such parole officer or probation officer deems appropriate.

(c) Nothing in this section shall be construed to prohibit a parole officer or probation officer acting in the performance of his duties and within the scope of his employment from disclosing any information concerning the parolee or probationer to any person whenever he deems such disclosure to be appropriate.

Credits

(1958 Rev., § 54-102s; 1995, P.A. 95-142, § 6; 2001, P.A. 01-84, § 23, eff. July 1, 2001; 2003, P.A. 03-202, § 20; 2019, P.A. 19-189, § 42, eff. Oct. 1, 2019.)

C. G. S. A. § 54-260, CT ST § 54-260

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-260a

§ 54-260a. Report on number of registrants being electronically monitored and need for additional resources

Currentness

Not later than January fifteenth of each year, the Department of Correction, the Board of Pardons and Paroles and the Court Support Services Division of the Judicial Department shall each submit a report setting forth the number of persons subject to registration under this chapter who are being electronically monitored while being supervised in the community by such agency, including monitoring by global positioning system devices, and what, if any, additional resources are needed by such agency to ensure that persons subject to registration under this chapter are being supervised while in the community.

Credits

(2006, P.A. 06-187, § 41, eff. July 1, 2006.)

C. G. S. A. § 54-260a, CT ST § 54-260a

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-260b

§ 54-260b. Criminal investigation of registrants using the Internet. Ex parte
court order to compel disclosure of basic subscriber information of registrants

Effective: July 1, 2011

Currentness

(a) For the purposes of this section:

(1) “Basic subscriber information” means: (A) Name, (B) address, (C) age or date of birth, (D) electronic mail address, instant message address or other similar Internet communication identifier, and (E) subscriber number or identity, including any assigned Internet protocol address;

(2) “Electronic communication” means “electronic communication” as defined in 18 USC 2510, as amended from time to time;

(3) “Electronic communication service” means “electronic communication service” as defined in 18 USC 2510, as amended from time to time;

(4) “Registrant” means a person required to register under section 54-251, 54-252, 54-253 or 54-254; and

(5) “Remote computing service” means “remote computing service” as defined in section 18 USC 2711, as amended from time to time.

(b) The Commissioner of Emergency Services and Public Protection shall designate a sworn law enforcement officer to serve as liaison between the Department of Emergency Services and Public Protection and providers of electronic communication services or remote computing services to facilitate the exchange of non-personally-identifiable information concerning registrants.

(c) Whenever such designated law enforcement officer ascertains from such exchange of non-personally-identifiable information that there are subscribers, customers or users of such providers who are registrants, such officer shall initiate a criminal investigation to determine if such registrants are in violation of the registration requirements of section 54-251, 54-252, 54-253 or 54-254 or of the terms and conditions of their parole or probation by virtue of being subscribers, customers or users of such providers.

(d) Such designated law enforcement officer may request an ex parte order from a judge of the Superior Court to compel a provider of electronic communication service or remote computing service to disclose basic subscriber information pertaining

to subscribers, customers or users who have been identified by such provider to be registrants. The judge shall grant such order if the law enforcement officer offers specific and articulable facts showing that there are reasonable grounds to believe that the basic subscriber information sought is relevant and material to the ongoing criminal investigation. The order shall state upon its face the case number assigned to such investigation, the date and time of issuance and the name of the judge authorizing the order. The law enforcement officer shall have any ex parte order issued pursuant to this subsection signed by the authorizing judge within forty-eight hours or not later than the next business day, whichever is earlier.

(e) A provider of electronic communication service or remote computing service shall disclose basic subscriber information to such designated law enforcement officer when an order is issued pursuant to subsection (d) of this section.

(f) A provider of electronic communication service or remote computing service that provides information in good faith pursuant to an order issued pursuant to subsection (d) of this section shall be afforded the legal protections provided under 18 USC 3124, as amended from time to time, with regard to such actions.

Credits

(2007, June Sp.Sess., P.A. 07-4, § 98; 2010, P.A. 10-36, § 32, eff. July 1, 2010; 2011, P.A. 11-51, § 134(a), eff. July 1, 2011.)

C. G. S. A. § 54-260b, CT ST § 54-260b

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated
Title 54. Criminal Procedure
Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-261

§ 54-261. Community response education program

Effective: July 1, 2021

Currentness

(a) The Court Support Services Division, in conjunction with state-wide experts in law enforcement, the treatment of sexual offenders and sexual assault victim services, shall, within available appropriations, develop a community response education program to be offered to neighborhoods and municipalities that have been notified pursuant to section 54-258 that a person who has registered under said section is or will be residing in that community.

(b) The purpose of such program shall be to assist neighborhoods, senior centers and other facilities serving or housing senior citizens in such neighborhoods, parents and children to learn how to better protect themselves from sexual abuse and sexual assault. The program shall develop educational materials and community information resources on prevention and risk reduction concerning sexual abuse and sexual assault and the enforcement of requirements concerning the registration and supervision of sexual offenders and the notification of communities where such offenders reside.

(c) The program may include the following:

(1) An initial community meeting following a community notification, sponsored by the Court Support Services Division and held in conjunction with the chief of police, chief elected officials, the superintendent of schools and other municipal officials of the community, to discuss the implementation of the statutory requirements concerning the registration of a sexual offender and the notification of the community where such offender resides, to provide information on the crime or crimes involved and to provide information on how the offender will be monitored by the Court Support Services Division and the specific conditions of probation applicable to the offender;

(2) Information on how and where concerned residents may report observed violations by an offender of the conditions of such offender's probation;

(3) Resources to educate families, children and senior citizens in the prevention and avoidance of sexual abuse and sexual assault and for parents seeking supportive methods for discussing relevant issues with their children;

(4) Resources on when and how a community may wish to establish a network of "Safe Houses" for neighborhood children to use when they seek safe shelter or the creation of a neighborhood block watch or crime watch;

(5) Resources for police departments and boards of education to use in consulting with parents on appropriate school-based classroom programs stressing safety, prevention and risk reduction and to use in developing educational programs for parents to discuss relevant issues with their children;

(6) Resources for police departments and municipal officials to provide programs stressing safety, prevention and risk reduction for senior citizens living in the community or receiving services at a senior center or other facility located in the community; and

(7) Compilation and distribution of a list of child protective agencies, child guidance clinics and rape crisis centers for families seeking more in-depth counseling after a community notification has occurred.

(d) The Court Support Services Division may apply for and receive grants from the federal government or any agency thereof or from any foundation, corporation, association or individual for purposes of the development of the community response education program under this section.

Credits

(1998, P.A. 98-135, § 1, eff. May 27, 1998; 1998, June Sp.Sess., P.A. 98-1, § 111; 2002, P.A. 02-132, § 52; 2021, P.A. 21-7, § 5, eff. July 1, 2021.)

C. G. S. A. § 54-261, CT ST § 54-261

The statutes and Constitution are current with all enactments of the 2025 Regular Session and the 2025 November Special Session.

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Connecticut General Statutes Annotated

Title 54. Criminal Procedure

Chapter 969. Registration of Sexual Offenders (Refs & Annos)

C.G.S.A. § 54-262

§§ 54-262 to 54-279. Reserved for future use

Effective: February 1, 2011

Currentness

C. G. S. A. § 54-262, CT ST § 54-262

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Subtitle III. Sex Offenders.
Chapter 40. Sex Offender Registration.

DC ST § 22-4001

§ 22-4001. Definitions.

Effective: June 8, 2024

Currentness

For the purposes of this chapter, the term:

(1) “Agency” means the Court Services and Offender Supervision Agency for the District of Columbia, established pursuant to § 24-133 or, until that agency assumes its duties, the Trustee appointed under § 24-132(a).

(2) “Attends school” means being enrolled on a full-time or part-time basis in any type of public or private educational institution.

(3)(A) “Committed a registration offense” means:

(i) Was convicted or found not guilty by reason of insanity of a registration offense; or

(ii) Was determined to be a sexual psychopath under §§ 22-3803 through 22-3811.

(B) A person is not deemed to have committed a registration offense for purposes of this chapter, if the disposition described in subparagraph (A) of this paragraph has been reversed or vacated, or if the person has been pardoned for the offense on the ground of innocence.

(4) “Court” means the Superior Court of the District of Columbia.

(5) “In custody or under supervision” means:

(A) Detained, incarcerated, confined, hospitalized, civilly committed, on probation, on parole, on supervised release, or on conditional release because of:

(i) Being convicted of or found not guilty by reason of insanity of an offense under the District of Columbia Official Code; or

(ii) A sexual psychopath determination under §§ 22-3803 through 22-3811; or

(B) In any comparable status under the jurisdiction of the District of Columbia pursuant to subchapter II of Chapter 4 of Title 24, Chapter 10 of Title 24, or any other transfer agreement between the District of Columbia and another jurisdiction.

(6) “Lifetime registration offense” means:

(A) First or second degree sexual abuse as proscribed by § 22-3002 or § 22-3003; forcible rape as this offense was proscribed until May 23, 1995 by § 22-4801; or sodomy as this offense was proscribed until May 23, 1995 by § 22-3802(a) where the offense was forcible;

(B) First degree child sexual abuse as proscribed by § 22-3008 committed against a person under the age of 13 years, carnal knowledge or statutory rape as these offenses were proscribed until May 23, 1995 by § 22-4801 committed against a person under the age of 13 years, or sodomy as this offense was proscribed until May 23, 1995 by § 22-3802(a) committed against a person under the age of 13 years;

(C) Murder or manslaughter as proscribed by § 22-2101 committed before, during or after engaging in or attempting to engage in a sexual act or sexual contact, or rape as this offense was proscribed until May 23, 1995 by § 22-4801;

(D) An attempt or conspiracy to commit an offense as proscribed by § 22-1803 or § 22-1805a or § 22-3018 or assault with intent to commit rape, carnal knowledge, statutory rape, first degree sexual abuse, second degree sexual abuse, or child sexual abuse, as proscribed by § 22-401, which involved an attempt, conspiracy or assault with intent to commit an offense described in subparagraphs (A) through (C) of this paragraph; and

(E) An offense under the law of any state, under federal law, or under the law of any other jurisdiction, which involved conduct that would constitute an offense described in subparagraphs (A) through (D) of this paragraph if committed in the District of Columbia or prosecuted under the District of Columbia Official Code, or conduct which is substantially similar to that described in subparagraphs (A) through (D) of this paragraph.

(7) “Minor” means a person under 18 years of age.

(8) “Registration offense” means:

(A) An offense under Chapter 30 of this title;

(B) Forcible rape, carnal knowledge or statutory rape as these offenses were proscribed until May 23, 1995 by § 22-4801; indecent acts with children as this offense was proscribed until May 23, 1995 by § 22-3801(a); enticing a child as this offense was proscribed until May 23, 1995 by § 22-3801(b); or sodomy as this offense was proscribed until May 23, 1995 by § 22-3802(a) where the offense was forcible or committed against a minor;

(C) Any of the following offenses where the victim is a minor: acts proscribed by § 22-1312 (lewd, indecent, or obscene acts), acts proscribed by § 22-2201 (obscenity), acts proscribed by § 22-3102 (sexual performances using minors), acts proscribed by § 22-1901 (incest), acts proscribed by § 22-2001 (kidnapping), and acts proscribed by §§ 22-2701, 22-2701.01, 22-2703, 22-2704, 22-2705 to 22-2712, 22-2713 to 22-2720, 22-2722 and 22-2723 (prostitution; pandering);

(D) Any offense under the District of Columbia Official Code that involved a sexual act or sexual contact without consent or with a minor, assaulting or threatening another with the intent to engage in a sexual act or sexual contact or with the intent to commit rape, or causing the death of another in the course of, before, or after engaging or attempting to engage in a sexual act or sexual contact or rape;

(E) An attempt or a conspiracy to commit a crime, as proscribed by § 22-1803 or § 22-1805a which involved an attempt or conspiracy to commit an offense described in subparagraphs (A) through (D) of this paragraph, or assault with intent to commit rape, carnal knowledge, statutory rape, first degree sexual abuse, second degree sexual abuse, or child sexual abuse, as proscribed by § 22-401;

(F) Assault with intent to commit any other crime, as proscribed by § 22-403, or kidnapping or burglary, as proscribed by § 22-801 or § 22-2001 where the offense involved an intent, attempt or conspiracy to commit an offense described in subparagraphs (A) through (D) of this paragraph;

(G) An offense under the law of any state, under federal law, or under the law of any other jurisdiction, which involved conduct that would constitute an offense described in subparagraphs (A) through (F) of this paragraph if committed in the District of Columbia or prosecuted under the District of Columbia Official Code, or conduct which is substantially similar to that described in subparagraphs (A) through (F) of this paragraph; and

(H) Any other offense where the offender agrees in a plea agreement to be subject to sex offender registration requirements.

(9) “Sex offender” means a person who lives, resides, works, or attends school in the District of Columbia, and who:

(A) Committed a registration offense on or after July 11, 2000;

(B) Committed a registration offense at any time and is in custody or under supervision on or after July 11, 2000;

(C) Was required to register under the law of the District of Columbia on the day before July 11, 2000; or

(D) Committed a registration offense at any time in another jurisdiction and, within the registration period, enters the District of Columbia to live, reside, work or attend school.

(10) “Sexual act” has the meaning stated in § 22-3001(8).

(11) “Sexual contact” has the meaning stated in § 22-3001(9).

(12) “State” means a state of the United States, or any territory, commonwealth, or possession of the United States.

(13) “Works” means engaging in any type of full-time or part-time employment or occupation, whether paid or unpaid, for a period of time exceeding 14 calendar days or for an aggregate period of time exceeding 30 days during any calendar year.

Credits

(July 11, 2000, D.C. Law 13-137, § 2, 47 DCR 797; Apr. 24, 2007, D.C. Law 16-306, § 221, 53 DCR 8610; June 8, 2024, D.C. Law 25-175, § 26, 71 DCR 2732.)

DC CODE § 22-4001

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DC ST § 22-4002

§ 22-4002. Registration period.

Currentness

(a) Except as set forth in subsection (b) of this section, the registration period shall start when a disposition described in § 22-4001(3)(A) occurs and continue until the expiration of any time being served on probation, parole, supervised release, conditional release, or convalescent leave, or 10 years after the sex offender is placed on probation, parole, supervised release, conditional release, or convalescent leave, or is unconditionally released from a correctional facility, prison, hospital or other place of confinement, whichever is latest, except that:

(1) The Agency may give a sex offender credit for the time the sex offender was registered in another jurisdiction;

(2) The Agency may deny a sex offender credit for any time in which the sex offender is detained, incarcerated, confined, civilly committed, or hospitalized and for any time in which a sex offender was registered prior to a revocation of probation, parole, supervised release, conditional release, or convalescent leave; and

(3) The registration period is tolled for any time the sex offender fails to register or otherwise fails to comply with the requirements of this chapter.

(b) The registration period shall start when a disposition described in § 22-4001(3)(A) occurs and continue throughout the lifetime of a sex offender who:

(1) Committed a registration offense that is a lifetime registration offense;

(2) Was determined to be a sexual psychopath under §§ 22-3803 through 22-3811;

(3) Has been subject on 2 or more occasions to a disposition described in § 22-4001(3)(A) that involved a felony registration offense or a registration offense against a minor; or

(4) Has been subject to 2 or more dispositions described in § 22-4001(3)(A), relating to different victims, each of which involved a felony registration offense or a registration offense against a minor.

(c) The Agency may suspend the requirement to register or any other requirement under this chapter during any period of time in which a sex offender is detained, incarcerated, confined, civilly committed or hospitalized in a secure facility.

(d) Other than a suspension under subsection (c) of this section, a sex offender shall not be eligible for relief from the registration requirements.

Credits

(July 11, 2000, D.C. Law 13-137, § 3, 47 DCR 797.)

DC CODE § 22-4002

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DC ST § 22-4003

§ 22-4003. Certification duties of the Superior Court.

Currentness

(a) Upon a finding that a defendant committed a registration offense, the Court shall enter an order certifying that the defendant is a sex offender and that the defendant will be subject to registration for the period set forth in § 22-4002(a) or (b). The Court shall advise the sex offender of that person's duties under this chapter, shall order the sex offender to report to the Agency to register as required by the Agency and to comply with the requirements of this chapter, and shall require the sex offender to read and sign the order.

(b) The Court shall provide to the Agency a copy of the certification and order and such other records and information as will assist in the registration of the sex offender.

(c) In any case where the Court orders the release of a sex offender into the community following a period of detention, incarceration, confinement, civil commitment, or hospitalization, the Court shall:

(1) If the sex offender has been certified as a sex offender under subsection (a) of this section, provide the sex offender with a copy of the order required under subsection (a) of this section and require the sex offender to read and sign the copy of the order; or

(2) If the sex offender has not been certified as a sex offender under subsection (a) of this section, follow the procedures set forth under subsection (a) of this section.

(d) The applicability of the requirements of this chapter to a person otherwise subject to this chapter does not depend on the Court's making a certification under subsection (a) of this section. The Court is required to enter an order certifying that a person is a sex offender only when-

(1) A defendant is found in a proceeding before the Court to have committed a registration offense;

(2) The Court, on or after July 11, 2000, orders the release of a sex offender into the community following a period of detention, incarceration, confinement, civil commitment, or hospitalization;

(3) The government makes a motion for such a certification and the Court grants the motion; or

(4) A motion is filed as authorized under § 22-4004 and the Court denies the motion.

Credits

(July 11, 2000, D.C. Law 13-137, § 4, 47 DCR 797.)

DC CODE § 22-4003

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DC ST § 22-4004

§ 22-4004. Dispute resolution procedures in the Superior Court.

Currentness

(a)(1) A person, other than a person for whom a certification has been made under § 22-4003(a), may seek review of a determination by the Agency that the person is required to register or to register for life under this chapter if:

(A) The determination depends on a finding or findings which are not apparent from the disposition described in § 22-4001(3)(A), including, but not limited to, a finding not apparent from the disposition as to:

(i) Whether the victim of an offense was a minor or under 12 year of age;

(ii) Whether certain sexual acts or contacts were forcible;

(iii) Whether the exemption of § 22-4016(b) applies; or

(iv) Whether the standards under § 22-4001(6)(E) or (8)(G) for coverage offenses under the laws of other jurisdictions are satisfied; or

(B) The person asserts that the records establishing that he or she was convicted or found not guilty by reason of insanity of a registration offense or offenses or a lifetime registration offense or offenses, or that he or she was determined to be a sexual psychopath as provided in § 22-4001(3)(A)(ii), are erroneous.

(2) In order to seek review of a determination, as authorized by paragraph (1) of this subsection, the person shall:

(A) At the time the person is first informed by the Agency that it has determined that the person must register as a sex offender or must register as a sex offender for life, provide the Agency with a notice of intent to seek review of the determination; and

(B) Within 30 days of providing the notice of intent described in subparagraph (A) of this paragraph, file a motion in the Court setting forth the facts which he or she disputes and attaching any documents or affidavits upon which he or she intends to rely. The Court shall decide the motion within 60 days of its filing.

(3) If a person fails to follow the procedures set forth in paragraph (2) of this subsection, he or she may nevertheless seek review of a determination, as authorized by paragraph (1) of this subsection, but only for good cause shown and to prevent manifest injustice, by filing a motion within 3 years of the date on which a determination is made by the Agency that the person must register as a sex offender or must register as a sex offender for life. The release and dissemination of information concerning the person, including community notification, as authorized by this chapter for sex offenders will, however, proceed unless and until the Court issues an order that the person is not required to register as a sex offender.

(b) Unless the motion described in subsection (a) of this section and attached documents and affidavits conclusively show that the person is entitled to no relief, the Court shall cause notice thereof to be served upon the prosecuting attorney.

(c)(1) The Court may, in its sole discretion, decide a motion made under subsection (a) of this section on the basis of the motion, affidavits, the files and records of the case, other written documents, proffers of the parties, or an evidentiary hearing. If the Court determines that a hearing is necessary to decide the issue or if the interests of justice otherwise require, the Court shall appoint counsel for the person if he or she is not represented by counsel and meets the financial criteria for the appointment of counsel.

(2) If the Court concludes that the person is required to register under this chapter, the Court shall follow the procedures set forth in § 22-4003(a) and (b). If the Court concludes that the person is not required to register under this chapter or is not required to register for life under this chapter, the Court shall enter an order certifying that the person is not required to register under this chapter or is not required to register for life under this chapter and shall provide the Agency with a copy of that order.

Credits

(July 11, 2000, D.C. Law 13-137, § 5, 47 DCR 797.)

DC CODE § 22-4004

Current through December 6, 2025. Some sections may be more current, see credits for details.

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DC ST § 22-4005

§ 22-4005. Duties of the Department of Corrections.

Currentness

(a) Immediately before the release into the community of a sex offender in its custody or under its supervision, or immediately before the transfer of a sex offender to a halfway house, whichever is earlier, the Department of Corrections shall notify the Agency of the sex offender's proposed release, and shall provide to the Agency such records and information as will assist the Agency in carrying out its responsibilities under this chapter.

(b) Immediately before the release into the community of a sex offender in its custody or under its supervision or immediately before a sex offender transfers to a halfway house, whichever is earlier, the Department of Corrections shall inform the sex offender orally and in writing of the duty to register and of the time when and place where he or she is to appear to register and shall require the sex offender to read and sign the notice.

Credits

(July 11, 2000, D.C. Law 13-137, § 6, 47 DCR 797.)

DC CODE § 22-4005

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DC ST § 22-4006

§ 22-4006. Duties of the Department of Mental Health.

Currentness

(a) The Agency shall have the authority to notify the Department of Mental Health in writing of those sex offenders in the custody or under the supervision of the Department of Mental Health who are required to register pursuant to this chapter.

(b) With respect to sex offenders for whom notice has been given pursuant to subsection (a) of this section, the Department of Mental Health shall inform the Agency when a sex offender:

(1) Is first granted unaccompanied access to the hospital grounds or is placed on convalescent leave;

(2) If first conditionally or unconditionally released; or

(3) Is on unauthorized leave.

(c) The information provided to the Agency by the Department of Mental Health shall include:

(1) The name of and other identifying information about a sex offender, including a physical description and photograph, if available;

(2) The action taken under subsection (b) of this section;

(3) The date on which the action was taken;

(4) To the extent known, the address at which the sex offender is living or intends to live, works or intends to work, or attends school or intends to attend school; and

(5) Administrative information that may assist the Agency or the Metropolitan Police Department in locating the sex offender.

(d) The Agency and the Metropolitan Police Department are authorized to make further disclosures of the information provided by the Department of Mental Health pursuant to this section as necessary to ensure compliance with this chapter and to prosecute violations of this chapter.

Credits

(July 11, 2000, D.C. Law 13-137, § 7, 47 DCR 797; Dec. 18, 2001, D.C. Law 14-56, § 116(h), 48 DCR 7674.)

DC CODE § 22-4006

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DC ST § 22-4007

§ 22-4007. Registration functions of the Court Services and Offender Supervision Agency.

Currentness

(a) The Agency shall have the authority to adopt and implement procedures and requirements for the registration of sex offenders under this chapter. The procedures and requirements may include, but need not be limited to, requirements that a responsible officer or official shall:

- (1) Inform the sex offender of the duty to register and the penalties for failure to register;
- (2) Obtain the information required for registration, which may include such information as the sex offender's name, all aliases used, date of birth, sex, race, height, weight, eye color, identifying marks and characteristics, driver's license number, social security number, PDID, DCDC, FBI and NCIC numbers, home address or expected place of residence, and any current or expected place of employment or school attendance;
- (3) Obtain a photograph and set of fingerprints of the sex offender;
- (4) Obtain a detailed description of the offense on the basis of which the sex offender is required to register, the victim impact statement, the date of conviction or other disposition related to the offense, and any sentence imposed;
- (5) Obtain the sex offender's criminal record and a detailed description of any relevant offense;
- (6) Inform the sex offender of the duty to report any change of address, and of any duty to update other registration information, and the procedures for reporting such changes;
- (7) Inform the sex offender that if the sex offender moves to another state, or works or attends school in another state, then the sex offender also must report this information, and must register in any such state;
- (8) Require the sex offender to read and sign a form stating that the duties of the sex offender under this chapter have been explained; and
- (9) Inform a person that if the person disagrees with the determination that he or she is required to register or to register for life under this chapter, he or she must follow the procedures set forth in § 22-4004.

(b) The Agency shall have the authority to direct that a sex offender meet with a responsible officer or official at a reasonable time for the purpose of complying with any requirement adopted by the Agency under this chapter.

(c) The Agency shall have the authority to ensure that the sex offender registry is updated regularly and that outdated information is promptly removed from publicly available information.

Credits

(July 11, 2000, D.C. Law 13-137, § 8, 47 DCR 797.)

DC CODE § 22-4007

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DC ST § 22-4008

§ 22-4008. Verification functions of the Court Services and Offender Supervision Agency.

Currentness

(a) The Agency shall have the authority to adopt and implement procedures and requirements for verification of address information and other information required for registration under this chapter. The procedures and requirements may include, but need not be limited to, requirements that the sex offender:

- (1) Verify address information or other information at least annually, or at more frequent intervals as specified by the Agency;
- (2) Return address verification forms;
- (3) Appear in person for purposes of verification;
- (4) Cooperate in the taking of fingerprints and photographs, as part of the verification process; and
- (5) Update any information that has changed since any preceding registration or verification as part of the verification process.

(b) The Agency shall have the authority to immediately notify the Metropolitan Police Department if the Agency is unable to verify the address of or locate a sex offender who is required to register under this chapter or if the sex offender otherwise fails to comply with any requirements of this chapter.

Credits

(July 11, 2000, D.C. Law 13-137, § 9, 47 DCR 797.)

DC CODE § 22-4008

Current through December 6, 2025. Some sections may be more current, see credits for details.

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DC ST § 22-4009

§ 22-4009. Change of address or other information.

Currentness

(a) The Agency shall have the authority to adopt and implement procedures and requirements for the reporting by sex offenders of changes in address and changes in other information required for registration.

(b)(1) The Agency shall have the authority to notify the responsible registration agency or authorities in any other jurisdiction to which a sex offender moves, or in which a sex offender works or attends school.

(2) The Agency shall have the authority to provide to the responsible agency or authorities in the other jurisdiction all information concerning the sex offender that may be necessary or useful for registration of the sex offender in that jurisdiction, or for purposes of risk assessment, community notification, or other comparable functions in that jurisdiction.

Credits

(July 11, 2000, D.C. Law 13-137, § 10, 47 DCR 797.)

DC CODE § 22-4009

Current through December 6, 2025. Some sections may be more current, see credits for details.

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DC ST § 22-4010

§ 22-4010. Maintenance and release of sex offender registration
information by the Court Services and Offender Supervision Agency.

Currentness

(a) The Agency shall have the authority to maintain and operate the sex offender registry for the District of Columbia, including the authority to maintain the information obtained on sex offenders.

(b) The Agency shall have the authority to enter the information obtained on sex offenders into appropriate record systems and databases and:

(1) Ensure that conviction data and fingerprints are promptly transmitted to the Federal Bureau of Investigation;

(2) Participate in the National Sex Offender Registry on behalf of the District, including providing to the Federal Bureau of Investigation all information required for such participation;

(3) Ensure that information concerning sex offenders is promptly provided or made available to the Metropolitan Police Department, and to other law enforcement and governmental agencies as appropriate; and

(4) Inform the Metropolitan Police Department that a person has provided the Agency with a notice of intent to seek review of the determination that he or she must register under this chapter in conformity with § 22-4004(a)(2)(A) and that registration information on the person shall not be made publicly available unless and until the Agency informs the Metropolitan Police Department that the Court has certified that the person must register under this chapter, the person has failed to file a motion in the Court within the time allowed by § 22-4004(a)(2)(B), or the person's motion seeking review of the determination has been withdrawn or dismissed.

(c) This chapter does not authorize the Agency to make sex offender registration information publicly available, except as authorized by the rules promulgated under § 22-4011(g), or through the provision of such information to the Metropolitan Police Department or other agencies or authorities as authorized by this chapter.

Credits

(July 11, 2000, D.C. Law 13-137, § 11, 47 DCR 797.)

DC CODE § 22-4010

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DC ST § 22-4011

§ 22-4011. Community notification and education duties of the Metropolitan Police Department.

Currentness

(a) The Metropolitan Police Department shall have the authority to release and disseminate the information obtained on sex offenders. The authorized activities of the Metropolitan Police Department under this section include, but are not limited to, active and passive notification to all or parts of the community concerning a sex offender, including but not limited to:

- (1) Victims and witnesses;
- (2) Public and private educational institutions, day care entities and other institutions or organizations that provide services to or employ individuals who may be victimized by a sex offender;
- (3) Members of the public or governmental agencies requesting information on identified individuals for employment or foster care background checks or similar purposes;
- (4) The public at large; and
- (5) Any unit of the Metropolitan Police Department and other law enforcement agencies.

(b)(1)(A) Active notification under this section refers to affirmatively informing persons or entities about sex offenders. Authorized means of active notification include, but are not limited to, community meetings, flyers, telephone calls, door-to-door contacts, electronic notification, direct mailings, and media releases.

(B) Passive notification under this section refers to making information about sex offenders available for public inspection or in response to inquiries. Authorized means of passive notification include, but are not limited to, Internet postings, making registration lists and information about registrants available for inspection at police stations and other locations, and responding to written or oral inquiries in person, through the mail, by telephone, or through email or other electronic means. The Metropolitan Police Department shall develop and implement a system to make available for public inspection by means of the Internet all or part of the portions of the sex offender registry relating to Class A and Class B offenders, as defined in paragraph (2) of this subsection.

- (2) For purposes of this section:

(A) Class A offenders shall consist of sex offenders who are required to register for life as provided in § 22-4002(b);

(B) Class B offenders shall consist of sex offenders, other than Class A offenders, who are required to register for an offense against a minor, or who are required to register for sexual abuse of a ward or sexual abuse of a patient or client under Chapter 30 of this title; and

(C) Class C offenders shall consist of sex offenders other than Class A and Class B offenders.

(3) Passive notification may be carried out concerning any sex offender, except that information made available under this section for public inspection by means of the Internet shall be limited to information on Class A and Class B offenders. Active notification concerning Class A offenders may be provided to any person or entity. Active notification concerning Class B and Class C offenders may be provided to:

(A) Law enforcement agencies;

(B) Organizations that deal with or provide services to vulnerable populations or victims of sexual offenses, including but not limited to schools, day care centers, other child care and youth-serving organizations, facilities caring for or providing services to the elderly or persons with impairments, shelters, churches, and victims rights and victims services entities;

(C) Victims of and witnesses to a sex offender's crime or crimes and parents, guardians, and family member of such persons; and

(D) Any person where the Metropolitan Police Department has information indicating that the sex offender may pose a specific risk to that person, and parents, guardians, and family members of such a person.

(c) The Metropolitan Police Department shall conduct community education about the appropriate use of sex offender registration information.

(d) All publicly disseminated sex offender registration information shall contain a warning that crimes committed against sex offenders will be prosecuted to the full extent of the law.

(e) This section does not limit the authority of the Metropolitan Police Department to release information concerning any person, except that the identity of a victim of an offense requiring registration shall be treated as confidential information as provided in the regulations issued under subsection (g) of this section.

(f) If the Agency informs the Metropolitan Police Department that a person has provided the Agency with a notice of intent to seek review of the determination that he or she must register under this chapter in conformity with § 22-4004(a)(2)(A), the Metropolitan Police Department shall not release registration information on the person to the public unless and until the Agency informs the Metropolitan Police Department that the Court has certified that the person must register under this chapter,

the person has failed to file a motion in the Court within the time allowed by § 22-4004(a)(2)(B), or the person's motion for review of the determination has been withdrawn or dismissed.

(g) Within 210 days of the effective date of this chapter, the Mayor shall promulgate proposed rules, in accordance with subchapter I of Chapter 5 of Title 2, to carry out all functions of this chapter. Not less than 75 days prior to the proposed effective date of the proposed rules, the Mayor shall submit them to the Council for a 30-day review period, excluding Saturdays, Sundays, legal holidays and days of Council recess. If the Council does not approve or disapprove the proposed rules, or amendments to existing rules in whole or in part, by resolution within this 30-day review period, the proposed rules or amendments to existing rules shall be deemed approved.

Credits

(July 11, 2000, D.C. Law 13-137, § 12, 47 DCR 797.)

DC CODE § 22-4011

Current through December 6, 2025. Some sections may be more current, see credits for details.

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West's District of Columbia Code Annotated 2001 Edition
Division IV. Criminal Law and Procedure and Prisoners.
Title 22. Criminal Offenses and Penalties. (Refs & Annos)
Subtitle III. Sex Offenders.
Chapter 40. Sex Offender Registration.

DC ST § 22-4012

§ 22-4012. Interagency coordination.

Currentness

(a) The Agency may request that any agency of the District of Columbia, of another state, or of the United States provide assistance in carrying out the functions described in this chapter.

(b) Notwithstanding any other law, all agencies of the District of Columbia shall:

(1) Have the authority to provide any requested assistance to the Agency in carrying out the functions described in this chapter;

(2) Make available to the Agency information requested by the Agency for the purpose of identifying sex offenders and otherwise carrying out its functions under this chapter; and

(3) Cooperate with the Agency in posting notices and making available information concerning registration requirements in locations where persons entering the District from other jurisdictions may apply for driver's licenses, motor vehicle tags and inspections, housing, or other public assistance or benefits.

(c) Except for the disclosure of information authorized by § 22-4006, nothing in this chapter shall supersede the non-disclosure provisions of Chapter 12 of Title 7.

Credits

(July 11, 2000, D.C. Law 13-137, § 13, 47 DCR 797.)

DC CODE § 22-4012

Current through December 6, 2025. Some sections may be more current, see credits for details.

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Chapter 40. Sex Offender Registration.

DC ST § 22-4013

§ 22-4013. Immunity.

Currentness

(a) The District of Columbia government and its agencies, officials, employees, and agents and the United States government and its agencies, officials, employees, and agents shall be immune from suit for any claim arising from any good faith act of omission under this chapter.

(b) Notwithstanding subsection (a) of this section, the District of Columbia government may be held liable for the negligent disclosure of information to the public in violation of this chapter. A person subjected to such a violation may bring suit in the Court for injunctive or declaratory relief to abate a continuing violation, and for compensatory damages. The action under this subsection shall be the exclusive remedy under the law of the District of Columbia for the negligent disclosure of information in violation of this chapter. Except as provided by this subsection or § 22-4004(a), nothing in this chapter shall be construed to create any private right of action or give rise to any rights enforceable by injunction, mandamus, or otherwise.

(c) If the Court has made a determination under § 22-4003 or § 22-4004 that a person must register or must register for life, or if the Agency has made such a determination and the person has failed to seek review of the determination in conformity with § 22-4004, then the person shall be barred in a suit under this section from contesting the determination or any fact, finding, or issue that was resolved by or necessary to the determination.

(d) Nothing in this section shall be construed as limiting any other defense or immunity that would otherwise be available to the District of Columbia government, its agencies, officials, employees, or agents or the United States government, its agencies, officials, employees, or agents, or to obligate the District of Columbia government or the United States government to represent or indemnify any official, employee, or agent where such person acts beyond the scope of his or her authority.

Credits

(July 11, 2000, D.C. Law 13-137, § 14, 47 DCR 797.)

DC CODE § 22-4013

Current through December 6, 2025. Some sections may be more current, see credits for details.

West's District of Columbia Code Annotated 2001 Edition
Division IV. Criminal Law and Procedure and Prisoners.
Title 22. Criminal Offenses and Penalties. (Refs & Annos)
Subtitle III. Sex Offenders.
Chapter 40. Sex Offender Registration.

DC ST § 22-4014

§ 22-4014. Duties of sex offenders.

Currentness

During the registration period, a sex offender shall, in the time and manner specified by the Agency:

- (1) Register with the Agency as a sex offender;
- (2) Provide any information required for registration, and cooperate in photographing and fingerprinting;
- (3) Report any change of residence or other change in registration information;
- (4) Periodically verify address and such other registration information as the Agency may specify, including complying with any requirement to return address verification forms or appear in person for the purpose of verification;
- (5) Report if the sex offender is moving to another state, or works or attends school in another state, and register in any such state;
- (6) Acknowledge receipt of information concerning the sex offender's duties under this chapter, including reading and signing a form or forms stating that these duties have been explained to the sex offender; and
- (7) Meet with responsible officers and officials for the purpose of carrying out any requirements adopted by the Agency under this chapter.

Credits

(July 11, 2000, D.C. Law 13-137, § 15, 47 DCR 797.)

DC CODE § 22-4014

Current through December 6, 2025. Some sections may be more current, see credits for details.

West's District of Columbia Code Annotated 2001 Edition
Division IV. Criminal Law and Procedure and Prisoners.
Title 22. Criminal Offenses and Penalties. (Refs & Annos)
Subtitle III. Sex Offenders.
Chapter 40. Sex Offender Registration.

DC ST § 22-4015

§ 22-4015. Penalties; mandatory release condition.

Effective: June 11, 2013

Currentness

(a) Any sex offender who knowingly violates any requirement of this chapter, including any requirement adopted by the Agency pursuant to this chapter, shall be fined not more than the amount set forth in § 22-3571.01, or imprisoned for not more than 180 days, or both. In the event that a sex offender convicted under this section has a prior conviction under this section, or a prior conviction in any other jurisdiction for failing to comply with the requirements of a sex offender registration program, the sex offender shall be fined not more than the amount set forth in § 22-3571.01, or imprisoned not more than 5 years, or both.

(b) Compliance with the requirements of this chapter, including any requirements adopted by the Agency pursuant to this chapter, shall be a mandatory condition of probation, parole, supervised release, and conditional release of any sex offender.

Credits

(July 11, 2000, D.C. Law 13-137, § 16, 47 DCR 797; June 11, 2013, D.C. Law 19-317, § 236, 60 DCR 2064.)

DC CODE § 22-4015

Current through December 6, 2025. Some sections may be more current, see credits for details.

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DC ST § 22-4016

§ 22-4016. No change in age of consent; registration not required for offenses between consenting adults.

Currentness

- (a) This chapter does not change the age of consent for any sexual conduct under any law of the District of Columbia.
- (b) Notwithstanding any other provision of this chapter, the following do not constitute registration offenses:
- (1) Any sexual offense between consenting adults or an attempt, conspiracy or solicitation to commit such an offense, except for offenses to which consent is not a defense as provided in § 22-3017;
 - (2) Any misdemeanor offense that involved a person's sexual touching or attempted or solicited sexual touching of an undercover law enforcement officer where the person believed that the officer was an adult; and
 - (3) Any misdemeanor offense committed against an adult, except where the offender agrees in a plea agreement to be subject to sex offender registration requirements.

Credits

(July 11, 2000, D.C. Law 13-137, § 17, 47 DCR 797.)

DC CODE § 22-4016

Current through December 6, 2025. Some sections may be more current, see credits for details.

West's District of Columbia Code Annotated 2001 Edition
Division IV. Criminal Law and Procedure and Prisoners.
Title 22. Criminal Offenses and Penalties. (Refs & Annos)
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Chapter 40. Sex Offender Registration.

DC ST § 22-4017

§ 22-4017. Freedom of Information Act exception.

Currentness

Except for records made public according to the regulations promulgated by the Mayor pursuant to § 22-4011(g), no sex offender registration information shall be available as a public record under § 2-532.

Credits

(July 11, 2000, D.C. Law 13-137, § 18, 47 DCR 797.)

DC CODE § 22-4017

Current through December 6, 2025. Some sections may be more current, see credits for details.

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West's Delaware Code Annotated
Title 11. Crimes and Criminal Procedure
Part II. Criminal Procedure Generally
Chapter 41. Fines, Costs, Penalties and Forfeitures
Subchapter III. Sex Offender Management and Public Safety

11 Del.C. Pt. II, Ch. 41, Subch. III, Refs & Annos
Currentness

11 Del.C. Pt. II, Ch. 41, Subch. III, Refs & Annos, DE ST TI 11 T. 11, Pt. II, Ch. 41, Subch. III, Refs & Annos
Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits
for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

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West's Delaware Code Annotated

Title 11. Crimes and Criminal Procedure

Part II. Criminal Procedure Generally

Chapter 41. Fines, Costs, Penalties and Forfeitures

Subchapter III. Sex Offender Management and Public Safety (Refs & Annos)

11 Del.C. § 4120

§ 4120. Registration of sex offenders

Effective: October 16, 2013

Currentness

(a) Unless otherwise indicated, the definitions set forth in § 4121(a) of this title shall apply to this section. In addition, when used in this section, the phrase “custodial institution” includes any Level IV or V facility operated by or for the Department of Correction, the Division of Youth Rehabilitative Services or the Delaware Psychiatric Center, or any like institution, and the phrase “temporary resident” shall include any person who is for more than 7 days or for more than an aggregate of 30 days in any 12-month period, employed or works in Delaware, or who is a full- or part-time student in Delaware. A student is any person who attends or enrolls in any public or private educational facility, including, but not limited to, colleges or universities.

(b)(1) Any sex offender who is released, discharged or paroled from any Level IV or Level V facility or other custodial institution after that sex offender has completed a sentence imposed following a conviction for any offense specified in § 4121(a)(4) of this title shall be required to register as a sex offender, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register. The registration shall be completed during the Level IV or V sentence, but not more than 90 days, nor less than 45 days, prior to the offender's release, discharge or parole. The registration information shall be collected from the sex offender by the agency having custody over the sex offender at the time specified herein for registration. This subsection shall apply to any sex offender who is sentenced to serve any portion of the sex offender's sentence at Level IV or V, unless such sentence is suspended in its entirety, in which case subsection (c) of this section shall apply. The registration required by this subsection shall be required whenever the sex offender is released from any Level V facility to any Level IV facility, and again when the offender is released from the Level IV facility.

(2) If an offender is released to a treatment program by the Division of Youth Rehabilitative Services and the date of release could not have been determined 45 days prior to release, registration shall be completed within 48 hours of determining the release date, or upon release, whichever is earlier, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register.

(3) If an offender is attending school, the offender shall inform the principal of the school upon enrollment of the offender's registration, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register.

(c) Any sex offender who is sentenced to Level IV home confinement, or to a period of probation at Level III or below, or who is required to pay a fine of any amount following a conviction for any offense specified in § 4121(a)(4) of this title shall be required to register as a sex offender, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile

adjudicated delinquent of a sex offense to register. The registration information shall be collected from the sex offender by the sentencing court following the conviction, but no later than the time of sentencing.

(d)(1) Registration information shall be collected by the agency or court specified in subsections (b) and (c) of this section on registration forms provided by the Superintendent of the Delaware State Police. The original copy of the completed and executed registration form shall be forwarded by the registering agency or court to the Superintendent of the Delaware State Police within 3 business days following the completion of the form. The completed registration form shall be signed by the sex offender and by a witness to the signature representing the registering agency or court. The Superintendent of the Delaware State Police shall notify the chief law-enforcement officer having jurisdiction over the sex offender's residence, place of employment, and/or study. The notice shall include, but is not limited to, all available registration information pertaining to the sex offender as set forth herein. The registration information shall be immediately entered into DELJIS by the registering agency or court, unless such agency or court does not have access to DELJIS in which case the completed registration form shall be immediately forwarded to the Superintendent of the Delaware State Police who shall immediately enter the registration information into DELJIS. Registration information entered into DELJIS pursuant to this subsection shall be entered into a database of registered sex offenders which shall be developed and maintained by DELJIS. Nothing herein shall prevent the use of the registered sex offender database for any lawful purpose. The Superintendent of the Delaware State Police shall have the authority to audit the registration forms and information, and shall have the authority to require the sex offender to provide revised or additional information, photographs, fingerprints or exemplars if those submitted are deemed to be insufficient, and the sex offender may be required to appear at a Delaware State Police facility for such purposes.

(2) The registration forms shall include, but are not limited to, the following information: the sex offender's legal name, any previously used names, aliases or nicknames, Social Security number, e-mail address or addresses, Internet identifiers, and the age, gender, race and physical description of the sex offender. The registration form shall also include all other known identifying factors, the offense history and the sex offender's current residences or anticipated place of future residences, places of study and/or places of employment, and the registration plate numbers and descriptions of any vehicles owned or operated by the offender, including any watercraft or aircraft with the locations where such vehicles are docked, parked or otherwise stored, copies of that offender's passport, any licenses to engage in an occupation or to carry out a trade or business, and the offender's home telephone number and any cellular telephone numbers. The forms shall also include a statement of any relevant conditions of release, discharge, parole or probation applicable to the sex offender. Additionally, the form shall identify the age of the victim or victims of the offense or offenses and describe the victim's relationship to the offender. The form shall also indicate on its face that false statements therein are punishable by law. A photograph of the offender taken at the time of registration shall be appended to the registration form. Notwithstanding any provision to the contrary, a DNA sample will also be taken from the offender. The resulting DNA profile will be submitted for entry into the Combined DNA Index System (CODIS). All information collected pursuant to this paragraph shall be kept in digitized form in an electronic database maintained by the designated Delaware Police facility responsible for registration.

(e)(1) Any person convicted of any offense specified in the laws of another state, commonwealth, territory, or other jurisdiction of the United States or any foreign government, which is the same as, or equivalent to, any of the offenses set forth in § 4121(a) (4) of this title; or any person convicted of any federal or military offense enumerated in 42 U.S.C. Sec. 16911(5)(A)(iii) and (iv), who is a permanent or temporary resident of the State on the date of that person's conviction shall register as a sex offender within 3 business days of conviction, unless the person is confined in a penal institution located outside the State at the time of conviction, in which case the person shall register as a sex offender within 3 business days of that person's first return to the State of Delaware after release from custody. Any such person shall register at a designated Delaware State Police facility, and the Delaware State Police shall be deemed to be the registering agency.

(2) Any person convicted of any offense specified in the laws of another state, the United States or any territory of the United States, or any foreign government, which is the same as, or equivalent to, any of the offenses set forth in § 4121(a)(4) of this title; or any person convicted of any federal or military offense enumerated in 42 U.S.C. § 16911(5)(A)(iii) and (iv), who is not a permanent or temporary resident of the State on the date of that person's conviction, and who thereafter becomes a permanent or temporary resident of the State shall register as a sex offender within 3 business days of establishing permanent or temporary residency within the State. Any such person shall register at a designated Delaware State Police facility, and the Delaware State Police shall be deemed to be the registering agency.

(3) Any person convicted as described in paragraph (1) or paragraph (2) of this subsection, who is thereafter released on probation, parole or any form of early release which is supervised or monitored by the Department of Correction or the Division of Youth Rehabilitative Services shall be registered pursuant to this subsection. The Department of Correction or the Division of Rehabilitative Services shall ensure and verify such registration.

(f)(1) Any sex offender who is required to register pursuant to this section who thereafter changes the sex offender's own name, residence address or place of employment and/or study shall reregister with the Delaware State Police by appearing in person within 3 business days of the change. The sex offender shall be required to provide adequate verification of residence at the stated address. The Superintendent of the Delaware State Police shall be deemed to be the registering agency and shall comply with the requirements of subsection (d) of this section.

(2) Within 3 business days of receiving a re-registration as provided in paragraph (f)(1) of this section, the Superintendent of the Delaware State Police shall notify the chief law-enforcement officer having jurisdiction over the sex offender's prior residence, place of employment or study and the chief law-enforcement officer having jurisdiction over the offender's new residence, or place of employment or study. The notice shall include, but is not limited to, all available registration information pertaining to the sex offender as set forth in subsection (d) of this section.

(3) Whenever a sex offender who is required to register re-registers pursuant to this subsection, notification shall be provided pursuant to the requirements of § 4121 of this title.

(4) Any agency or court which collects information from a sex offender pursuant to this section shall, at the time of registration, provide written notice to the sex offender of the offender's duty to re-register pursuant to this section. The written notice shall also inform the offender that if the offender changes residence to another State, such new address must be registered with the Delaware State Police, with the law-enforcement agency having jurisdiction over the offender's new residence, and that the offender must comply with any sex offender registration requirement in the new state of residence. The written notice shall also inform the offender that the offender must also comply with any sex offender registration requirement in any state where the offender is employed, carries on a vocation, or is a student. The written notice shall be provided on forms provided by the Superintendent of the Delaware State Police. Receipt of this written notice shall be acknowledged by the sex offender, who shall sign the original copy of the written notice. The original copy of the written notice shall be forwarded to the Superintendent of the Delaware State Police along with the registration form. Failure of the registering agency to provide such written notice shall not constitute a defense to any prosecution based upon a violation of this section.

(5) The requirements of this subsection shall apply regardless of whether the sex offender's new residence is located within or without the State.

(6) Any sex offender who is required to re-register pursuant to this subsection, who is serving a sentence at Level II, III or IV at the time of such re-registration, may re-register with the agency supervising that sex offender's sentence within 3 business days of the change of address.

(7) For purposes of this subchapter, "residence" shall be defined as the real property the person owns as a place of abode, the real property the person leases as a place of abode, the real property the person uses as a place of abode, the real property where the person vacations for a period greater than 2 weeks within a 1-year period, and the real property where the person is an overnight guest for a period greater than 2 weeks within a 1-year period. A sex offender may have more than 1 address that meets this definition of residence at the same time. If the sex offender has more than 1 residence address at the same time, the offender must register each of those addresses. In any prosecution for the offense of failing to re-register as a sex offender, the prosecution shall not be required to prove that the sex offender abandoned one residence in order to establish that the offender established another residence.

(g) Any person required to register as a sex offender pursuant to this section shall be required periodically to verify that the person continues to reside at the address provided at the time of registration. The frequency of periodic address verification shall be:

(1) Every 90 days for life following the date of completion of the initial registration form if the person is designated to Risk Assessment Tier III pursuant to § 4121 of this title. A Tier III offender shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registry information every 90 days for life; or

(2) Every 6 months after the completion of the initial registration form, if the person is designated to Risk Assessment Tier II pursuant to § 4121 of this title. A Tier II offender shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registry information every 6 months unless relieved of registration obligations.

(3) Every year after the completion of the initial registration form, if the person is designated to Risk Assessment Tier I pursuant to § 4121 of this title. A Tier I offender shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registry information every 12 months unless relieved of registration obligations.

There shall be assessed an annual administrative fee in the amount of \$30 collected from the offender by January 31 of each year payable at the time of verification.

(h) Any sex offender required to register pursuant to this section who seeks relief or redesignation must petition the Superior Court for release from the registration requirements as set forth in § 4121(e)(2) of this title.

(i) Any agency responsible for complying with this section may promulgate reasonable regulations, policies and procedures for the purpose of implementing this section. Such rules, regulations, policies and procedures shall be effective and enforceable upon their adoption by the agency, and shall not be subject to Chapter 11 or Chapter 101 of Title 29.

(j) All elected and appointed public officials, public employees or public agencies including but not limited to the members of the Sex Offender Management Board, are immune from civil liability for any discretionary decision to release relevant information, unless it is shown that the official, employee or agency acted with gross negligence or in bad faith. The immunity provided under this section applies to the release of relevant information to other employees or officials or to the general public. There

shall be no civil legal remedies available as a cause of action against any public official, public employee or public agency for failing to release information as authorized in this section.

(k) A warrant shall issue for any sex offender required to register who knowingly or recklessly fails to register or re-register or provide verification on the date on which it is required pursuant to this section or § 4121 of this title or to otherwise comply with any of the provisions of this section or § 4121 of this title, and any sex offender doing so shall be guilty of a class G felony.

(l) Any registration or re-registration information collected by the Superintendent of the Delaware State Police pursuant to this section shall be promptly forwarded to the Federal Bureau of Investigation for use pursuant to 42 U.S.C. § 14072 [repealed, but see 42 U.S.C. § 16919].

(m) Notwithstanding any law, rule or regulation to the contrary, any law-enforcement agency may release relevant information collected pursuant to this section where it is necessary to protect the public concerning a sex offender required to register pursuant to this section, except that the identity of a victim of the offense, any arrests not resulting in conviction, the offender's social security number and travel and/or immigration document numbers shall not be released.

Credits

69 Laws 1994, ch. 282, § 1. Amended by 70 Laws 1995, ch. 186, § 1, eff. July 10, 1995; 70 Laws 1996, ch. 397, §§ 1-19, 23[24], 24[25], 25[26], 23[27]; 71 Laws 1997, ch. 203, §§ 1-5; 71 Laws 1998, ch. 429, eff. March 1, 1999; 73 Laws 2001, ch. 122, §§ 2, 3, eff. July 9, 2001; 73 Laws 2002, ch. 245, §§ 1-3, eff. April 25, 2002; 73 Laws 2002 (3rd Sp. Sess.), ch. 418, §§ 1, 2, eff. July 22, 2002; 76 Laws 2007, ch. 25, §§ 1-8; 76 Laws 2007, ch. 88, § 4, eff. July 5, 2007; 76 Laws 2008, ch. 374, §§ 1-3, eff. July 16, 2008; 77 Laws 2009, ch. 148, §§ 1-11, eff. July 10, 2009; 78 Laws 2012, ch. 367, § 1, eff. July 27, 2012; 79 Laws 2013, ch. 123, § 3, eff. Oct. 16, 2013.

11 Del.C. § 4120, DE ST TI 11 § 4120

Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

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Title 11. Crimes and Criminal Procedure

Part II. Criminal Procedure Generally

Chapter 41. Fines, Costs, Penalties and Forfeitures

Subchapter III. Sex Offender Management and Public Safety (Refs & Annos)

11 Del.C. § 4120A

§ 4120A. Sex Offender Management Board

Effective: May 28, 2015

Currentness

(a) The General Assembly hereby declares that the comprehensive evaluation, identification, classification, treatment, and continued monitoring of sex offenders who are subject to the supervision of the criminal justice system is necessary in order to work toward the reduction of recidivism by such offenders. Therefore, the General Assembly hereby creates a Board which shall develop and standardize the evaluation, identification, classification, treatment, and continued monitoring of sex offenders at each stage of the criminal justice system so that such offenders will curtail recidivistic behavior and the protection of victims and potential victims will be enhanced. The General Assembly hereby recognizes that some sex offenders cannot or will not respond to treatment and that, in creating the Board described in this section, the General Assembly does not intend to imply that all sex offenders can be successful in treatment. Further, the General Assembly mandates that each member agency as outlined below must act in accordance with the standards established by the Board.

(b) *Definitions.*--As used in this section, unless the context otherwise requires, the following words and phrases shall have the meaning ascribed to them in this section:

(1) "Board" means the Sex Offender Management Board created in this § 4120A.

(2) "Sex offender" or "offender" means any person who has ever been convicted or adjudicated of an offense as defined in Title 11, §§ 761 and 4121(a)(4) of this title.

(3) "Treatment" means therapy, monitoring, and supervision of any sex offender which conforms to the standards created by the State's Sex Offender Management Board.

(c) *Creation of the Sex Offender Management Board.*--(1) There is hereby created, in the Delaware Department of Safety and Homeland Security, a Sex Offender Management Board which shall consist of the following members:

a. The President Judge of the Delaware Superior Court, or the President Judge's designee;

b. The Commissioner of the Delaware Department of Correction, or the Commissioner's designee;

- c. A representative from the Office of Probation and Parole appointed by the Commissioner of the Delaware Department of Correction;
- d. The Chairperson of the Board of Parole or the Chairperson's designee;
- e. A representative from the Division of Prevention and Behavioral Health Services appointed by the Secretary for the Delaware Department of Children, Youth and Their Families;
- f. One licensed mental health professional with experience in treatment of adult sex offenders appointed by the Governor, and who shall serve on the Board for a term of 4 years;
- g. One member at-large who can represent sex abuse victims, victims' rights organizations, and/or the community at large appointed by the Governor, and who shall serve on the Board for a term of 4 years;
- h. The Secretary for the Delaware Department of Health and Social Services, or the Secretary's designee;
- i. The Superintendent of the Delaware State Police, or the Superintendent's designee;
- j. One member who is a recognized expert in the treatment of juvenile sex offenders, appointed by the Governor, and who shall serve on the Board for a term of 4 years;
- k. The Attorney General for the State, or the Attorney General's designee;
- l. The Chief Defender of the State, or the Chief Defender's designee;
- m. The Chairperson of the Police Chief's Council of Delaware, or the Chairperson's designee;
- n. Two members appointed by the Governor who are recognized experts in the field of sexual abuse and who can represent sexual abuse victims and victims' rights organizations, and who shall serve on the Board for a term of 4 years;
- o. A member of the Delaware State Police Sex Offender Registry appointed by the Superintendent of the Delaware State Police;
- p. The Executive Director of Delaware Criminal Justice Information System (DELJIS), or the Executive Director's designee;
- q. A representative from Youth Rehabilitative Services appointed by the Secretary for the Delaware Department of Children, Youth and Their Families;

r. One member from the Delaware Department of Education who has experience in dealing with juvenile sex offenders in the public school system appointed by the Secretary for the Delaware Department of Education;

s. The Chief Judge of Family Court or the Chief Judge's designee; and,

t. The Secretary for the Delaware Department of Safety and Homeland Security, or the Secretary's designee.

(2) Members shall serve without compensation.

(3) The Secretary of the Delaware Department of Safety and Homeland Security shall preside as Chairperson of the Board or shall appoint a presiding officer for the Board from among the members appointed in paragraph (c)(1) of this section who shall preside over the Board as Chairperson for a period not to exceed 2 years.

(4) The Board shall elect from amongst its membership, a Vice Chair, who shall become the Chairperson of the Board upon the expiration of the Chairperson's term.

(5) The Board shall meet on a regular basis. Meetings shall be subject to all relevant open-meeting laws and regulations.

(6) The Sex Offender Management Board shall adopt bylaws, within 6 months from the enactment of this section, to govern itself. Such bylaws shall include, at a minimum, the factors outlined within this section.

(7) The Board may, as needed and appropriate, create subcommittees, task forces, or working groups to explore specific issues or opportunities or to provide subject matter expertise in the promulgation of the rules and regulations and the development of standards and programs as they relate to the evaluation, identification, classification, treatment and continued monitoring of sex offenders within the criminal justice system.

(8) The Board shall adopt rules and regulations to effectuate compliance by all affected agencies.

(d) The duties and authority of the Sex Offender Management Board shall be as follows:

(1) Prior to January 1, 2011, the Board shall develop and prescribe a standardized procedure for the evaluation, identification, and classification of adult and juvenile sex offenders. Such procedure shall provide for an evaluation, identification, and classification of the offender and recommend behavior management, monitoring, and treatment based upon the knowledge that some sex offenders are extremely habituated and that there is no known cure for the propensity to commit sexual abuse. The Board shall develop and implement measures of success based upon a no-cure policy for intervention. The Board shall develop and implement methods of intervention for sex offenders which have as a priority the physical and psychological safety of victims and potential victims and which are appropriate to the needs of the particular offender, so long as there is no reduction of the safety of victims and potential victims.

(2) Prior to January 1, 2011, the Board shall develop guidelines and standards for a system of programs for the treatment of sex offenders which can be utilized by offenders who are incarcerated or under the supervision of the Department of Correction or the Board of Parole. The programs developed pursuant to this subsection shall be as flexible as possible so that such programs may be utilized by each offender to prevent the offender from harming victims and potential victims. Such programs shall be structured in such a manner that the programs provide a continuing monitoring process as well as a continuum of treatment programs for each offender as that offender proceeds through the criminal justice system and may include, but shall not be limited to, group counseling, individual counseling, outpatient treatment, inpatient treatment, or treatment in a therapeutic community. Also, such programs shall be developed in such a manner that, to the extent possible, the programs continue to be accessible by all offenders in the criminal justice system.

(3) On or before January 1, 2011, the Board shall consult on and approve the risk assessment screening instrument to assist any sentencing authority in determining the likelihood that an offender would commit 1 or more sex offenses. In carrying out this duty, the Board shall consider sex offender risk assessment research and shall consider as 1 element the risk posed by a sex offender who suffers from a mental abnormality, psychosis, or personality disorder that makes the person more likely to engage in sexually violent predatory offenses.

(4) The Board shall develop criteria for measuring a sex offender's progress in treatment. The criteria shall be designed to assist the Courts and the State Board of Parole in determining whether a sex offender would pose an undue public safety threat to the community if that sex offender were released from incarceration, released to a reduced level of supervision, or discharged from probation or parole. The criteria shall not limit the decision-making authority of the courts or the State Board of Parole.

(5) The Board shall research and analyze the effectiveness of the monitoring and tracking, evaluation, identification, classification, and treatment procedures and programs developed pursuant to this section. The Board shall also develop and prescribe a system for implementation of the guidelines and standards developed pursuant to this § 4120A and for tracking offenders who have been subjected to evaluation, identification, classification, and treatment pursuant to this section. The Board shall implement the guidelines and standards so developed in this § 4120A by no later than January 1, 2012.

(6) The Board shall research and analyze the safety issues raised by living arrangements for and the location of sex offenders within the community, including but not limited to shared or structured living arrangements. At a minimum, the Board shall consider the issues raised by the location of sex offender residences, especially in proximity to public or private schools and child care facilities, and public notification of the location of sex offender residences. On or before July 15, 2010, the Board shall prepare and submit a report concerning the research and analysis conducted pursuant to this paragraph and any related legislative recommendations. The Board shall submit the report to the Public Safety, Judiciary and Corrections Committees of the House of Representatives and the Senate. On or before January 1, 2012, the Board shall adopt such guidelines as it may deem appropriate regarding the living arrangements and location of sex offenders. The Board shall accomplish the requirements specified in this paragraph within existing appropriations.

(7) Prior to January 1, 2012, the Board, in collaboration with law-enforcement agencies, victim advocacy organizations, the Department of Education, and the Department of Safety and Homeland Security, shall develop, for use by schools, educational materials regarding general information about sex offenders, safety concerns related to sex offenders, and other relevant material. The Board shall provide these materials to the Department of Education, and the Department of Education shall make these materials available to schools in the State.

(8) The Board and the individual members thereof shall be immune from any liability, whether civil or criminal, for the good faith performance of the duties of the Board as specified in this section except when such performance constitutes wilful or wanton conduct or gross negligence.

(e) Each sex offender sentenced by a court for an offense committed on or after January 1, 2010, shall be required, as a part of any sentence to probation, community corrections, or incarceration with the Department of Correction, to undergo treatment to the extent appropriate to such offender based upon the recommendations of the evaluation and identification.

(f) Each sex offender placed on parole by the State Board of Parole on or after January 1, 2010, shall be required, as a condition of such parole, to undergo treatment based upon the recommendations of the evaluation and identification regarding such offender during the offender's incarceration or any period of parole.

(g) The Board shall require any person who applies for placement, including any person who applies for continued placement, on the list of persons who may provide sex offender treatment and sex offender services pursuant to this section, to submit fingerprints and other necessary information in order to obtain the following:

(1) A report of the applicant's entire criminal history record from the State Bureau of Identification or a statement from the State Bureau of Identification that the State Bureau of Identification Central Repository contains no such information relating to that person.

(2) A report of the applicant's entire federal criminal history record pursuant to the Federal Bureau of Investigation appropriation of Title II of Public Law 92-544 (28 U.S.C. § 534). The State Bureau of Identification shall be the intermediary for the purposes of this section and the Board shall be the screening point for the receipt of said federal criminal history records.

(3) The Board may obtain such other information and recommendations from third parties which may be relevant to the applicant's fitness to provide sex offender treatment and sex offender services pursuant to this section.

(h) The Board shall use the information obtained from the State and national criminal history record check and the current background investigation in determining whether to place or continue the placement of the person on the approved provider list.

Credits

Added by 76 Laws 2007, ch. 88, § 1, eff. July 5, 2007. Amended by 70 Laws 1995, ch. 186, § 1; 77 Laws 2009, ch. 148, §§ 30 to 32, eff. July 10, 2009; 77 Laws 2010, ch. 327, § 210, eff. July 1, 2010; 79 Laws 2013, ch. 123, § 4, eff. Oct. 16, 2013; 80 Laws 2015, ch. 26, § 3, eff. May 28, 2015.

11 Del.C. § 4120A, DE ST TI 11 § 4120A

Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

West's Delaware Code Annotated

Title 11. Crimes and Criminal Procedure

Part II. Criminal Procedure Generally

Chapter 41. Fines, Costs, Penalties and Forfeitures

Subchapter III. Sex Offender Management and Public Safety (Refs & Annos)

11 Del.C. § 4121

§ 4121. Community notification of sex offenders on probation, parole, conditional release, or release from confinement

Effective: August 12, 2025

Currentness

(a) As used in this subchapter:

(1) “Community notification” means notice that includes, to the extent possible, all information required to be included in the searchable records available to the public under paragraph (a)(3) of this section and that is provided by any method devised specifically to notify members of the public who are likely to encounter a sex offender. Methods of notification may include door-to-door appearances, mail, e-mail, telephone, fax, newspapers or notices, or any combination of methods to schools, licensed day care facilities, public libraries, any other organization, company or individual upon request, and other accessible public facilities within the community. “Community notification” also includes notice provided through an alert system added to the Delaware State Police Sex Offender Central Registry website that allows governmental agencies; public officials such as county or municipal executives, mayors, commissioners, or council members; and members of the general public to register to receive updates by geographical region whenever a sex offender is added to, deleted from, or has any change in status on the registry created pursuant to § 4120 of this title.

(2) “Conviction” and “convicted” shall include, in addition to their ordinary meanings, adjudications of delinquency and persons who enter a plea of guilty, or are found guilty but mentally ill or not guilty by reason of insanity, as provided in § 401 of this title.

(3)a. “Searchable records available to the public” means records regarding every sex offender who is designated to Risk Assessment Tier II or III under this section.

b. The searchable records available to the public must include all of the following information:

1. The last verified addresses for the sex offender.
2. The specific sex offense or offenses of which the sex offender was convicted.
3. The date of each conviction.

4. All information required for registration under § 4120(d)(2) of this title as is practicable given the method of community notification. But the sex offender's relationship to the victim may not be included in the searchable records available to the public and age of the victim may be searchable only by age ranges birth to 11 years, 12 to 15 years, 16 to 17 years, and 18 years and older.

c. The searchable records available to the public may also include other information designated for public access by the Superintendent of the Delaware State Police. But the searchable records available to the public must not include the identity of the victims, the Social Security number of the offender, and arrests that do not result in conviction.

d. The searchable records available to the public must include a warning that information should not be used to unlawfully injure, harass, or commit a crime against any individual named in the registry or residing or working at any reported address. The warning must note that any such action could result in civil or criminal penalties.

e. The searchable records available to the public must be searchable by the name of the sex offender, by suitable geographic criteria, and by as many other required data elements as is technically feasible.

f. The searchable records available to the public must be made available upon request through police agencies and the Delaware State Police Sex Offender Central Registry website.

g. The Delaware State Police, shall maintain the searchable records available to the public as required by this section and § 4120 of this title. The records must be updated as often as practicable, but not less than every 3 months.

(4) "Sex offender" means any person who is, or has been:

a. Convicted of any of the offenses specified in §§ 765 through 780, § 787(b)(3)-(4), § 1100A, §§ 1108 through 1112B, § 1335(a)(6), § 1335(a)(7), § 1352(2), § 1353(2) or § 1361(b) of this title, or of any attempt or conspiracy to commit any of the aforementioned offenses; or

b. Any juvenile who is adjudicated delinquent of any offense which would constitute any of the offenses set forth in paragraph (a)(4)a. of this section if that juvenile delinquent had been charged as an adult; or

c. Convicted or adjudicated delinquent of any offense specified in the laws of another state, commonwealth, territory, or other jurisdiction of the United States requiring registration in that jurisdiction, or a conviction or adjudication in any foreign government, which is the same as, or equivalent to, any of the offenses set forth in paragraph (a)(4)a., (a)(4)b. or (a)(4)d. of this section; or convicted of any federal or military offense enumerated in 42 U.S.C. § 16911(5)(A)(iii) and (iv); or

d. Convicted or adjudicated delinquent of a violation of § 783(4) or § 783(6) or § 783A(4) or § 783A(6) of this title; or

e. Charged by complaint, petition, information or indictment with any of the offenses set forth in paragraph (a)(4)a., (a)(4)b., (a)(4)c. or (a)(4)d. of this section, and who thereafter pleads guilty to any offense included in the originally charged

offense, as provided in § 206 of this title, if the person is thereafter designated as a sex offender by the sentencing judge pursuant to subsection (c) of this section; or

f. Convicted or adjudicated delinquent of any of the offenses set forth in paragraph (a)(4)a., (a)(4)b., (a)(4)c. or (a)(4)d. of this section, or of any offense which is the same as or equivalent to such offenses as the same existed and were defined under the laws of this State existing at the time of such conviction; or

g. Any person convicted after June 27, 1994, of a violation of § 764 of this title if the person had previously been convicted of the same offense or any other offense set forth in this paragraph, and the previous conviction occurred within 5 years of the date of the conviction for the current offense.

(b) Upon a person's conviction or adjudication of delinquency or at the time of sentencing for any offense set forth in paragraph (a)(4)a., (a)(4)b., (a)(4)d., (a)(4)e., (a)(4)f., or (a)(4)g. of this section, the court shall inform the person that the person shall be designated as a sex offender and that a Risk Assessment Tier will be assigned to that person by the court, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register.

(c) Following the sentencing of a person convicted or adjudicated delinquent for any offense described in paragraph (a)(4)e. of this section, or following a finding by the sentencing court that the person has violated the terms of that person's own probation or parole as set forth in paragraph (a)(4)f. of this section, the sentencing court shall assign the defendant to the Risk Assessment Tier applicable for the originally charged offense, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register.

(d) Sex offenders shall be assigned to a Risk Assessment Tier as follows, unless pursuant to § 4123 of this title, the Family Court has not required a juvenile adjudicated delinquent of a sex offense to register:

(1) *Risk Assessment Tier III.*--Any sex offender convicted or adjudicated delinquent of any of the following offenses shall be designated by the court to Risk Assessment Tier III:

a. Rape in the first degree, rape in the second degree, rape in the third degree if the offense involved a child under the age of 13 or the offense involved force or threat of physical violence, or was without consent, unlawful sexual contact in the first degree, unlawful sexual intercourse in the first or second degree, unlawful sexual penetration in the first or second degree, unlawful sexual contact in the first degree, sexual abuse of a child by a person in a position of trust, authority or supervision in the first degree, sexual abuse of a child by a person in a position of trust, authority or supervision in the second degree if the offense involved a child under the age of 13, continuous sexual abuse of a child, sexual exploitation of a child, trafficking in persons where the victim is under the age of 13 or the offense involved sexual servitude of a minor through force or threat of force, sexual extortion if the offense involved force or threat of force, dangerous crime against a child if the offense involved force or the threat of force; or

b. Kidnapping in the first or second degree, if a purpose of the crime was to take or entice any child less than 18 years of age from the custody of the child's parent, guardian, or lawful custodian, where the defendant is not a parent, step parent, or guardian of the victim, to inflict physical injury upon the victim, or to violate or abuse the victim sexually; or

c. Federal offenses found at 18 U.S.C. § 2241, § 2242, § 2244, or any comparable military offense specified by the Secretary of Defense under § 115(a)(8)(C)(i) of Public Law 105-119 (10 U.S.C. § 951 note); or

d. Any attempt or conspiracy to commit any of the offenses set forth in paragraph (d)(1)a. or (d)(1)b. of this section; or

e. Any offense specified in the laws of another state, any territory of the United States or any foreign government, which is the same as, or equivalent to, any offense set forth in paragraphs (d)(1)a. through (d)(1)e. of this section; or

f. Upon motion of the State, any person convicted of any felony set forth in §§ 761 through 777 or §§ 1108 through 1112A of this title which is not otherwise set forth in paragraphs (d)(1)a. through (d)(1)c. of this section, if the victim of the offense had not yet reached that victim's sixteenth birthday at the time of the crime, and if the sentencing court determines by a preponderance of the evidence, after it weighs all relevant evidence which bears upon the particular facts and circumstances of the offense and the character and propensities of the offender, that public safety will be enhanced by assigning the offender to Risk Assessment Tier III.

(2) *Risk Assessment Tier II.*--Any sex offender convicted or adjudicated delinquent of any of the following offenses shall be designated by the court to Risk Assessment Tier II:

a. Rape in the third degree unless the offense involved a child under 12 or the offense involved force or the threat of physical violence, rape in the fourth degree, sexual abuse of a child by a person in a position of trust, authority or supervision in the second degree unless the offense involved a child under 12, unlawful sexual contact in the second degree, unlawful sexual intercourse in the third degree, unlawful sexual penetration in the third degree, sexual extortion unless the offense involved force or the threat of force, bestiality, dangerous crime against a child unless the offense involved force or the threat of force, unlawfully dealing in child pornography, possession of child pornography, providing obscene materials to a person under the age of 18, sexual solicitation of a child, trafficking in persons where the offense involved sexual servitude of a minor aged 13 to 17 years old unless the offense involved force or threat of force, promoting prostitution in the second degree, promoting prostitution in the first degree; or

b. Federal offenses found at 18 U.S.C. § 2243, § 2244, § 2251, § 2251A, § 2252, § 2252A, § 2260, § 2421, § 2422(b), § 2423(a); or

c. Any comparable military offense specified by the Secretary of Defense under § 115(a)(8)(C)(i) of Public Law 105-119 (10 U.S.C. § 951 note); or

d. Any attempt or conspiracy to commit any of the offenses set forth in paragraph (d)(2)a. of this section; or

e. Any offense specified in the laws of another state, the United States, any territory of the United States or any foreign government, which is the same as, or equivalent to, any of the offenses set forth in paragraph (d)(2)a. and b. of this section; or

f. Upon motion of the State, any person convicted of any offense set forth in §§ 761 through 767 or §§ 1108 through 1111 or § 1321(5) or § 1352(2) or § 1353(2) of this title which is not otherwise specified in this paragraph, or in paragraph (d)(1) of this section, if the sentencing court determines by a preponderance of the evidence after it weighs all relevant evidence which bears upon the particular facts and circumstances or details of the commission of the offense and the character and propensities of the offender, that public safety will be enhanced by assigning the offender to Risk Assessment Tier II; or

g. Any person described in paragraph (a)(4)f. of this section.

(3) *Risk Assessment Tier I.*--Any sex offender not otherwise designated to Risk Assessment Tier II or III in accord with paragraphs (d)(1) and (2) of this section shall be designated by the court to Risk Assessment Tier I. Moreover, offenders convicted of the following federal offenses shall register under Tier I: 18 U.S.C. § 1591; § 1801; § 2252(CP) [sic]; § 2252B; § 2252C; § 2422(a); § 2423(b), (c); § 2424; § 2425; or any comparable military offense specified by the Secretary of Defense under § 115(a)(8)(C)(i) of Public Law 105-119 (10 U.S.C. § 951 note).

(4) Notwithstanding any provision of this section to the contrary, any sex offender who has previously been convicted of any offense set forth in paragraph (d)(1) or paragraph (d)(2) of this section and who is thereafter convicted of any second or subsequent offense set forth in paragraph (d)(1) or paragraph (d)(2) of this section shall be designated to Risk Assessment Tier III.

(5) Notwithstanding any provision in this section to the contrary, any sex offender who has previously been convicted of any offense set forth in paragraph (d)(3) of this section and who is thereafter convicted of an offense which would otherwise result in a designation to Risk Assessment Tier I shall be designated to Risk Assessment Tier II if the conviction for the subsequent offense occurred within 5 years of the previous conviction.

(6) Notwithstanding any provision in this section or in § 4120 of this title to the contrary, any person who would otherwise be designated as a sex offender pursuant to this section and to § 4120 of this title may petition the sentencing court for relief from such designation, and from all obligations imposed by this section and § 4120 of this title if:

a. The Tier II or Tier III offense for which the person was convicted was a misdemeanor and the victim was not a child under 13 years of age; and

b. The person has not previously been convicted of a violent felony, or any other offense set forth in paragraph (a)(4) of this section, or of any offense specified in the laws of another state, the United States or any territory of the United States, or any offense in a foreign jurisdiction which is the same as, or equivalent to, such offenses; and

c. The sentencing court determines by a preponderance of the evidence that such person is not likely to pose a threat to public safety if released from the obligations imposed by this section, and by § 4120 of this title.

Notwithstanding anything in this paragraph to the contrary, no person designated as a Tier II or Tier III sex offender shall be afforded relief from designation as a sex offender if the victim of any of the offenses for which the person was convicted were less than 12 years old at the time of the crime, unless the person was also less than 18 years old at the time of the crime in which case the prohibition set forth in this sentence shall not apply. Any person seeking relief from designation as a sex offender under this paragraph shall file a petition with the sentencing court prior to sentencing requesting such relief. The petition shall

be granted or denied by the sentencing court after it weighs all relevant evidence which bears upon the particular facts and circumstances of the offense, and the character and propensities of the offender.

(7) In any case in which the State seeks to have the offender designated to a Risk Assessment Tier higher than the presumptive tier, the motion required by this subsection shall be filed by the State before sentencing, provided that such a motion shall be unnecessary if any written plea agreement relating to the conviction clearly informs the defendant of the State's intention to request a higher Tier designation.

(e)(1) Any person designated as a sex offender under this section who is required to register shall comply with the registration provisions of § 4120 of this title as follows:

a. For life, if the sex offender is designated to Risk Assessment Tier III, or if the person is designated to Risk Assessment Tier I or II, and has previously been convicted of any of the offenses specified in paragraph (a)(4)a., (a)(4)c. or (a)(4)d. of this section;

b. For 25 years following the sex offender's release from Level V custody, or for 25 years following the effective date of any sentence to be served at Level IV or below, if the person is designated to Risk Assessment Tier II, and is not otherwise required to register for life pursuant to this subsection, except that any time spent at any subsequent period of Level V custody shall not be counted against such 25-year period; or

c. For 15 years following the sex offender's release from Level V custody, or for 15 years following the effective date of any sentence to be served at Level IV or below, if the person is designated to Risk Assessment Tier I, and is not otherwise required to register for life pursuant to this subsection, except that any time spent at any subsequent period of Level V custody shall not be counted against such 15-year period.

(2) Notwithstanding any provision in this section to the contrary:

a. Any sex offender designated to Risk Assessment Tier III may petition to the Superior Court for redesignation to Risk Assessment Tier II if 25 years have elapsed from the last day of any Level IV or V sentence imposed at the time of the original conviction, or from the date of sentencing if no Level IV or V sentence was imposed, and the offender has successfully completed an appropriate sex offender treatment program certified by the State, has not been convicted of any crime (other than a motor vehicle offense) during such time. If the offender has been convicted of any subsequent offense (other than a motor vehicle offense) or has been otherwise found to have violated the terms of any probation, parole or conditional release relating to the sentence originally imposed following the conviction for the underlying sex offense, no petition or redesignation shall be permitted until 25 years have elapsed from the date of the subsequent conviction or finding of a violation, during which time no additional convictions or findings of violation can have occurred. Notwithstanding any provision of this section or § 4120 of this title to the contrary, any sex offender who is redesignated from Risk Assessment Tier III to Risk Assessment Tier II shall continue to comply with the registration and re-registration requirements imposed by § 4120(g) upon Tier III offenders for life. Any re-designation from Risk Assessment Tier III to Risk Assessment Tier II shall not release the offender from the requirement of lifetime registration or address verification every 90 days pursuant to § 4120(g)(1)(a) of this title [repealed] and paragraph (e)(1) of this section.

b. Any sex offender designated to Risk Assessment Tier II may petition the Superior Court for redesignation to Risk Assessment Tier I if the victim was not a child under 18 years of age and 10 years have elapsed from the last day of any Level IV or V sentence imposed at the time of the original conviction, or from the date of sentencing if no Level IV or V sentence was imposed, and the offender has successfully completed an appropriate sex offender treatment program certified by the State and has not been convicted of any crime (other than a motor vehicle offense) during such time. If the offender has been convicted of any subsequent offense (other than a motor vehicle offense) or has been otherwise found to have violated the terms of any probation, parole or conditional release relating to the sentence originally imposed following the conviction for the underlying sex offense, no petition or redesignation shall be permitted until 10 years have elapsed from the date of the subsequent conviction or finding of violation, during which time no additional convictions or findings of violation can have occurred.

c. Any sex offender designated to Risk Assessment Tier I may petition the Superior Court for relief from designation as a sex offender, and from all obligations imposed pursuant to this section and § 4120 of this title, if 10 years have elapsed from the last day of any Level IV or V sentence imposed at the time of the original conviction, or from the date of sentencing if no Level IV or V sentence was imposed, and if the offender has successfully completed an appropriate sex offender treatment program certified by the State and has not been convicted of any crime (other than a motor vehicle offense) during such time. If the offender has been convicted of any subsequent offense (other than a motor vehicle offense) or has been otherwise found to have violated the terms of any probation, parole or conditional release relating to the sentence originally imposed following the conviction for the underlying sex offense, no petition or redesignation shall be permitted until 10 years have elapsed from the date of the subsequent conviction or finding of violation, during which time no additional convictions or findings of violation can have occurred.

d. The Superior Court shall not grant a petition for redesignation or relief filed pursuant to this subsection unless:

1. The sex offender establishes, by a preponderance of the evidence, that the public safety no longer requires preservation of the original designation; and

2. The Court provides the Attorney General with notice of the petition and with a reasonable period of time to be heard upon the matter.

e. When considering a petition for redesignation, the Court shall weigh all the relevant evidence which bears upon the character and propensities of the offender, and the facts and circumstances of that offender's prior offenses. The Court may in its discretion hold a hearing on the petition. If the Court grants the petition, it shall promptly notify the Sex Offender registry.

(f) Whenever a sex offender is released, discharged or paroled from any Level IV or V or other custodial institution after that sex offender has completed a Level IV or V sentence imposed following a conviction for any offense specified in paragraph (a) (4) of this section, the agency having custody over the sex offender at the time of the release, discharge or parole shall provide written notice of the release, discharge or parole to the Superintendent of the Delaware State Police, to the chief law-enforcement officer having jurisdiction over the offender's intended residence, to the original arresting law-enforcement agency and to the Attorney General. Such notice shall be provided not more than 90 days, and not less than 45 days, prior to the offender's release, discharge or parole. The notice shall include, but is not limited to, the sex offender's legal name, and any previously used names, aliases or nicknames, and the age, gender, race and physical characteristics of the sex offender, a photograph of the offender taken within 90 days of that offender's release, along with any other known identifying factors, the person's offense history and

that person's place of anticipated future residence, school and/or employment. The notice shall also include a statement of any relevant conditions of release, discharge, parole or probation applicable to the offender. Additionally, the form shall identify or describe that offender's relationship to the victim. Notwithstanding any law, rule or regulation to the contrary, no person shall be released from any Level V facility unless and until that person has made a good faith effort to cooperate with the appropriate authorities pursuant to this section except that no such person shall be held at Level V pursuant to this subsection beyond the maximum period of such custody originally ordered by the sentencing court. The notice required by this subsection shall be required whenever the offender is released from any Level V facility to any Level IV facility, and again when such offender is released from the Level IV facility.

(g) Whenever a sex offender is sentenced to a period of probation at Level III or below, or is required to pay a fine in any amount following a conviction for any offense specified in paragraph (a)(4) of this section, the sentencing court shall provide the notice specified in subsection (f) of this section to the entities specified therein. This subsection shall not apply whenever a sex offender is sentenced to serve a portion of that sex offender's sentence at Level IV or Level V, unless such sentence is suspended in its entirety. Notice pursuant to this subsection shall be provided within 3 business days of sentencing.

(h) Upon receipt of the notice specified in subsections (f) and (g) of this section, the Attorney General shall use any reasonable means to notify the victim or victims of the crime or crimes for which the sex offender was convicted of the release or sentencing unless the victim has requested not to be notified. Such notice may include any information provided pursuant to subsections (f) and (g) of this section.

(i) Whenever a sex offender assigned to Risk Assessment Tier II or III provides registration information under § 4120 of this title, the chief law-enforcement officer of the local jurisdiction where the offender intends to reside, or the Superintendent of the State Police if no local police agency exists, shall provide public notification as follows:

(1) For sex offenders assigned to Risk Assessment Tier II, notification must consist of searchable records available to the public, and may also consist of community notification under paragraph (l)(3) of this section.

(2) For sex offenders assigned to Risk Assessment Tier III, notification must consist of searchable records available to the public and community notification.

(3) For sex offenders assigned to Tier II or III, notice must be given to any school the offender plans to attend and to the chief law-enforcement officer of the local jurisdiction where the offender plans to study or be employed.

(j) A complete register of all persons convicted of any of the offenses specified in paragraph (a)(4) of this section, who are thereafter designated sex offenders pursuant to this section, shall be created, maintained and routinely updated and audited by the Delaware State Police. The register shall be immediately accessible by the use of DELJIS computer by all law-enforcement agencies. The register shall be searchable by the name of the sex offender and by suitable geographic criteria.

(k) Notwithstanding any law, rule or regulation to the contrary, if after the exercise of due diligence by the sex offender, the offender is unable to secure an anticipated place of future residence, for the purposes of this subsection the offender shall be designated as "homeless." "Homeless persons" must report their habitual locale, park or locations during the day and night, public buildings, restaurants, and libraries frequented. The term "homeless" shall also include any person who anticipates a future place of residence in or at any temporary homeless shelter or other similar place of temporary residence for 7 or more

days. The fact that a sex offender has secured an anticipated place of future residence at a homeless shelter or other similar place of temporary residence shall be reported by the court or agency having custody of the offender, along with the name and address of the shelter or residence as required by subsections (h) and (i) of this section, but such information shall not be included in any public notification required or permitted by subsection (i) or subsection (j) of this section, except that such information shall be provided to the agency, organization or entity having supervisory or operational authority over such shelter or similar place of temporary residence. Notwithstanding any law, rule or regulation to the contrary, any sex offender who is designated as “homeless” pursuant to this section shall verify the sex offender’s own registration information as follows:

- (1) A Tier III sex offender designated as “homeless” shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registration information every week following the date of completion of the initial registration form;
 - (2) A Tier II sex offender designated as “homeless” shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registration information every 30 days following the date of completion of the initial registration form;
 - (3) A Tier I sex offender designated as “homeless” shall appear in person at locations designated by the Superintendent of the Delaware State Police to verify all registration information every 90 days following the date of completion of the initial registration form.
- (l)(1) All elected public officials, public employees and public agencies are immune from civil liability for any discretionary decision to release relevant information unless it is shown that the official, employee, or agency acted with gross negligence or in bad faith. The immunity provided under this section applies to the release of relevant information to other employees, officials, or public agencies, and the general public.
- (2) There shall be no civil legal remedies available as a cause of action against any public official, public employee or public agency for failing to release information as authorized in this section.
 - (3) Any information contained in searchable records available to the public may be used in any manner by any person or by any public, governmental or private entity, organization or official, or any agent thereof, for any purpose consistent with the enhancement of public safety.
- (m) Notwithstanding any law, rule or regulation to the contrary, upon a finding of probable cause that a sex offender has failed to comply with any provision of § 4120 of this title, the sex offender may be designated to Risk Assessment Tier III until such time as the agency or court to which the sex offender is obligated to provide notice determines that the sex offender is again in compliance with § 4120 of this title. In such cases, the agency or court which investigates the alleged noncompliance shall, upon a finding of probable cause that a violation has occurred, immediately notify the Superintendent of the Delaware State Police that a violation of the provisions of § 4120 of this title has occurred and that, as a result, the sex offender is redesignated to Risk Assessment Tier III until such time as the offender complies fully with § 4120 of this title. The agency or court shall also immediately notify the Superintendent of the Delaware State Police when the sex offender is again in compliance with § 4120 of this title, at which time the sex offender will be returned to that sex offender’s originally designated Risk Assessment Tier.

(n) Notwithstanding any provision of this section to the contrary, any sex offender convicted of any offense specified in paragraph (a)(4)c. of this section shall be designated to a Risk Assessment Tier by the court. The designation shall be in accord with the provisions of subsection (d) of this section.

(o) When a sex offender is designated to a Risk Assessment Tier pursuant to this section, that fact shall be made a part of any written or electronic sentencing order produced by the sentencing court, and shall be entered into the DELJIS system by the sentencing court. The agency responsible for registering the offender shall have the information entered into the DELJIS system for any offender designated pursuant to subsection (n) of this section.

(p) Any agency responsible for complying with this section shall be permitted to promulgate reasonable regulations, policies and procedures to implement this statute. Such rules, regulations, policies and procedures shall be effective and enforceable upon their adoption by the agency, and shall not be subject to Chapter 11 or Chapter 101 of Title 29.

(q) This section shall be effective notwithstanding any law, rule or regulation to the contrary.

(r) Any sex offender who knowingly or recklessly fails to comply with any provision of this section shall be guilty of a class G felony.

(s) Subject to § 4122 of this title, this section shall apply to all persons convicted.

(t)(1)a. For purposes of this paragraph (t)(1), “school and child-care notification” means notice of all of the following information:

1. That searchable records available to the public can be obtained online at the Delaware State Police Sex Offender Central Registry website or in person at a Delaware State Police troop or the Delaware State Bureau of Identification.
2. That the public can register to receive community notifications through the Delaware State Police Sex Offender Central Registry website.
3. The Uniform Resource Locator address of the Delaware State Police Sex Offender Central Registry website.

b. A school, school district, and licensed child-care provider shall provide school and child care notification as follows:

1. By posting the school and child-care notification on its website if the school, school district, or licensed child-care provider has a website.
2. By sending the school and child-care notification to faculty, staff, and a parent or guardian of an enrolled child in writing at least annually if the school, school district, or licensed child-care provider does not have a website.

3. By providing the school and child-care notification to staff, faculty, or a parent or guardian of an enrolled child upon a request for sex offender registry information.

(2) The physical posting of community notifications in public school buildings and licensed child care facilities is prohibited.

(3) Schools shall ensure that students are taught personal safety and awareness skills in an age-appropriate manner consistent with the Delaware Health Education Curriculum Framework.

(u) Notwithstanding any provision of this section or title to the contrary, any Tier III sex offender being monitored at Level IV, III, II or I, shall as a condition of their probation, wear a GPS locator ankle bracelet paid for by the probationer. The obligation to pay for the GPS locator ankle bracelet shall not apply to any juvenile who is adjudicated delinquent and designated a Tier III sex offender pursuant to this title.

(v) If any provision of this subchapter or any amendment hereto, or the application thereof to any person, thing or circumstances is held invalid, such invalidity shall not affect the provisions or application of this subchapter or such amendments that can be given effect without the invalid provisions or application, and to this end the provisions of this subchapter and such amendments are declared to be severable.

Credits

71 Laws 1998, ch. 429, § 2, eff. March 1, 1999. Amended by 70 Laws, ch. 186, § 1; 72 Laws, ch. 410, §§ 1 to 3, eff. July 13, 2000; 72 Laws 2000, ch. 480, § 16, eff. July 26, 2000; 73 Laws 2001, ch. 122, §§ 1, 4, 5, 6, 7, 8, 9, 10, 11; 73 Laws, ch. 172, § 4; 73 Laws, ch. 177, § 1; 73 Laws, ch. 230, § 2; 73 Laws, ch. 245, §§ 4-8; 74 Laws, ch. 26, § 1; 76 Laws, ch. 25, §§ 9-51; 76 Laws 2007, ch. 123, § 1, eff. July 12, 2007; 76 Laws 2008, ch. 374, §§ 4-24, eff. July 16, 2008; 77 Laws 2009, ch. 148, §§ 12-29, eff. July 10, 2009; 77 Laws 2010, ch. 318, §§ 6, 11, 12, eff. June 30, 2010; 78 Laws 2012, ch. 406, § 1, eff. Sept. 12, 2012; 79 Laws 2013, ch. 58, § 1, eff. Aug. 1, 2013; 79 Laws 2013, ch. 123, § 5, eff. Oct. 16, 2013; 79 Laws 2014, ch. 276, § 5, eff. June 30, 2014; 80 Laws 2015, ch. 175, § 9, eff. Sept. 3, 2015; 85 Laws 2025, ch. 126, § 1, eff. Aug. 12, 2025.

11 Del.C. § 4121, DE ST TI 11 § 4121

Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

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West's Delaware Code Annotated

Title 11. Crimes and Criminal Procedure

Part II. Criminal Procedure Generally

Chapter 41. Fines, Costs, Penalties and Forfeitures

Subchapter III. Sex Offender Management and Public Safety (Refs & Annos)

11 Del.C. § 4122

§ 4122. Transition provisions

Effective: June 27, 2018

Currentness

(a) Section 4121 of this title and this section shall be retroactively applicable to any person convicted of a registering offense.

(b) Notwithstanding any law, rule or regulation to the contrary, as soon after March 1, 1999, as is practicable, the Attorney General shall apply § 4121 of this title to those persons identified by subsection (a) of this section, and will redesignate those persons to a Risk Assessment Tier pursuant to § 4121 of this title. Upon the redesignation, the Attorney General will provide notice of such redesignation by registered or certified mail to the person's last registered address, or by any other means which creates a reliable record of the receipt by the offender of such notice or of the attempts to provide the offender with the notice. The notice shall advise the person as to the duties and consequences imposed by law upon persons designated to the particular Risk Assessment Tier, and of the person's right to elect a hearing on the issue of the new Risk Assessment Tier designation. The Attorney General shall have the authority to promulgate reasonable regulations to implement this subsection. Such regulations shall be effective and enforceable upon their adoption, and shall not be subject to Chapters 11 and 101 of Title 29.

(c) Any sex offender redesignated to a Risk Assessment Tier pursuant to this section shall have the right to request that the Superior Court review and finally determine such designation. The request shall be made in writing and delivered to the Superior Court within 10 days of the receipt by the offender of the notice described in subsection (b) of this section. The Superior Court shall promptly forward a copy of the request to the Attorney General. Failure of the offender to deliver the request to the Superior Court within the time limits specified shall constitute a waiver of the offender's right to review.

(d) Following receipt of timely notice by the Superior Court, it shall hold a hearing to determine the appropriateness of the Attorney General's new Risk Assessment Tier designation. The person and the Attorney General shall have the right to be heard at the hearing. This hearing shall not be held unless written notice of the hearing is provided to the Attorney General at least 30 days prior to the scheduled hearing date. A copy of the application for review shall be provided to the Attorney General along with written notice of the hearing date.

(e), (f) Repealed by 81 Laws 2018, ch. 277, § 1.

(g) Whenever an offender fails to elect a hearing in a timely fashion, the Attorney General shall forward notice of the redesignated Risk Assessment Tier to the Superintendent of the Delaware State Police and to the chief law-enforcement officer of the jurisdiction where the person is residing at the time of the redesignation. In the event the person requests a hearing, at the conclusion of the hearing, the Attorney General shall forward a notice of the redesignated Risk Assessment Tier to the Superintendent of the Delaware State Police and to the chief law-enforcement officer of the jurisdiction where the person is

residing at the time of the redesignation. The Superintendent of the Delaware State Police shall enter information pertaining to any redesignation pursuant to this section into the DELJIS computer system.

(h) Upon Risk Assessment Tier redesignation pursuant to this section, §§ 4120 and 4121 of this title shall apply. Until redesignation, §§ 4120 and 4336 of this title shall remain in full force and effect.

Credits

71 Laws 1998, ch. 429, § 2, eff. March 1, 1999. Amended by 76 Laws 2008, ch. 374, § 25, eff. July 16, 2008; 80 Laws 2015, ch. 167, § 1, eff. Aug. 17, 2015; 81 Laws 2018, ch. 277, § 1, eff. June 27, 2018.

11 Del.C. § 4122, DE ST TI 11 § 4122

Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

West's Delaware Code Annotated

Title 11. Crimes and Criminal Procedure

Part II. Criminal Procedure Generally

Chapter 41. Fines, Costs, Penalties and Forfeitures

Subchapter III. Sex Offender Management and Public Safety (Refs & Annos)

11 Del.C. § 4123

§ 4123. Juveniles adjudicated delinquent of sex offenses

Effective: October 18, 2023

Currentness

(a) Notwithstanding any law, rule or regulation to the contrary, this section shall apply to any sex offender who was a juvenile on the date of the offense and adjudicated delinquent by the Family Court.

(b) Prior to sentencing any juvenile adjudicated delinquent of a sex offense, Family Court shall order and receive a comprehensive evaluation, risk assessment and treatment recommendations for said juvenile by a certified mental health professional who specializes in the evaluation and/or treatment of juvenile sex offenders. If said juvenile is already in treatment at the time of adjudication, the current treatment provider may provide the evaluation, risk assessment and treatment recommendations required above.

(c) Following receipt by Family Court and the parties of the comprehensive evaluation, risk assessment and treatment recommendations required by subsection (b) of this section, Family Court shall conduct a sentencing hearing in which the Court shall address appropriate treatment for the juvenile, and the registration and community notification requirements for the juvenile as follows:

(1) If the juvenile was at least 14 years old on the date of the sex offense, and was adjudicated delinquent of any of the offenses enumerated in § 770(a)(3)a., § 771, § 772, § 773, § 776, or § 778 of this title, or of conspiracy, under §§ 512 and 513 of this title, or attempt, under § 531 of this title, to commit any of those enumerated offenses, the juvenile shall be immediately registered as a sex offender as prescribed by § 4120 of this title, and the community shall be provided notification as prescribed by § 4121 of this title.

(2) If the juvenile does not fit the criteria set forth in paragraph (c)(1) of this section above, the Family Court shall have the discretion to relieve the juvenile of registration and community notification requirements or to assign such juvenile to a lower tier than that prescribed by § 4121 of this title if the Court determines by a preponderance of the evidence that such juvenile is not likely to pose a threat to public safety if relieved of the requirements or assigned to a lower tier. In making this determination, the Family Court shall consider all relevant factors, including:

a. The risk the juvenile poses to the victim, the community and to other potential victims;

b. The nature and circumstances of the offense;

- c. The impact on the victim, including the effects of registration and community notification;
- d. The comprehensive evaluation, risk assessment and treatment recommendations or outcomes for the juvenile required by subsection (b) of this section;
- e. The likelihood of successful rehabilitation, if known; and
- f. The adverse impact of public registration on the juvenile and the rehabilitative process.

(d) A juvenile may through the juvenile's parent or guardian, or upon becoming an adult, petition Family Court for a registry review hearing. For offenses enumerated in paragraph (c)(1) of this section, a registry review petition may be filed no sooner than 5 years from the date of the adjudication. For all other offenses, a registry review petition may be filed no sooner than at the conclusion of treatment or 2 years from the date of the adjudication, whichever comes first. Following a hearing, Family Court may maintain the current tier designation for the adjudicated offense pursuant to § 4121 of this title, or where it appears by a preponderance of the evidence after consideration of the factors set forth in paragraph (c)(2) of this section above that modification will not pose a threat to public safety, the Court may relieve the person of all registration and notification requirements or assign the person to a lower tier. All such petitions shall be filed in the Family Court in the county in which such case was adjudicated. The provisions of this paragraph apply to adjudications occurring both before and after October 18, 2023.

(e) The decision of the Family Court with regard to discretionary registration, modification, or removal may be appealed by the State or the juvenile.

Credits

Added by 79 Laws 2013, ch. 123, § 6, eff. Oct. 16, 2013. Amended by 70 Laws 1995, ch. 186, § 1, eff. July 10, 1995; 81 Laws 2017, ch. 79, § 15, eff. July 17, 2017; 84 Laws 2023, ch. 42, § 1, eff. May 31, 2023; 84 Laws 2023, ch. 239, § 1, eff. Oct. 18, 2023.

11 Del.C. § 4123, DE ST TI 11 § 4123

Current through ch. 236 of the 153rd General Assembly (2025-2026). Some statute sections may be more current, see credits for details. Revisions to 2026 Acts by the Delaware Code Revisors were unavailable at the time of publication.

West's Florida Statutes Annotated

Title XLVII. Criminal Procedure and Corrections (Chapters 900-999) (Refs & Annos)

Chapter 943. Department of Law Enforcement (Refs & Annos)

West's F.S.A. § 943.0435

943.0435. Sexual offenders required to register with the department; penalty

Effective: October 1, 2025

Currentness

(1) As used in this section, the term:

(a) “Change in status at an institution of higher education” has the same meaning as provided in s. 775.21.

(b) “Convicted” means that there has been a determination of guilt as a result of a trial or the entry of a plea of guilty or nolo contendere, regardless of whether adjudication is withheld, and includes an adjudication of delinquency of a juvenile as specified in this section. Conviction of a similar offense includes, but is not limited to, a conviction by a federal or military tribunal, including courts-martial conducted by the Armed Forces of the United States, and includes a conviction or entry of a plea of guilty or nolo contendere in any state of the United States or other jurisdiction.

(c) “Electronic mail address” has the same meaning as provided in s. 668.602.

(d) “Institution of higher education” has the same meaning as provided in s. 775.21.

(e) “Internet identifier” has the same meaning as provided in s. 775.21.

(f) “Permanent residence,” “temporary residence,” and “transient residence” have the same meaning as provided in s. 775.21.

(g) “Professional license” has the same meaning as provided in s. 775.21.

(h) 1. “Sexual offender” means a person who meets the criteria in sub-subparagraph a., sub-subparagraph b., sub-subparagraph c., or sub-subparagraph d., as follows:

a. (I) Has been convicted of committing, or attempting, soliciting, or conspiring to commit, any of the criminal offenses proscribed in the following statutes in this state or similar offenses in another jurisdiction: s. 393.135(2); s. 394.4593(2); s. 787.01, s. 787.02, or s. 787.025(2)(c), where the victim is a minor; s. 787.06(3)(b), (d), (f), or (g), or (5); former s. 787.06(3)(h); s. 794.011, excluding s. 794.011(10); s. 794.05; former s. 796.03; former s. 796.035; s. 800.04; s. 810.145(8); s. 825.1025; s. 827.071; s. 847.0133; s. 847.0135, excluding s. 847.0135(6); s. 847.0137; s. 847.0138; s. 847.0145; s. 895.03, if the court makes a written finding that the racketeering activity involved at least one sexual offense listed in this sub-sub-subparagraph or at least one offense listed in this sub-sub-subparagraph with sexual intent or motive; s. 916.1075(2); or s. 985.701(1); or

any similar offense committed in this state which has been redesignated from a former statute number to one of those listed in this sub-sub-subparagraph; and

(II) Has been released on or after October 1, 1997, from a sanction imposed for any conviction of an offense described in sub-sub-subparagraph (I) and does not otherwise meet the criteria for registration as a sexual offender under chapter 944 or chapter 985. For purposes of this sub-sub-subparagraph, a sanction imposed in this state or in any other jurisdiction means probation, community control, parole, conditional release, control release, or incarceration in a state prison, federal prison, contractor-operated correctional facility, or local detention facility. If no sanction is imposed, the person is deemed to be released upon conviction;

b. Establishes or maintains a residence in this state and who has not been designated as a sexual predator by a court of this state but who has been designated as a sexual predator, as a sexually violent predator, or any other sexual offender designation in another state or jurisdiction and was, as a result of such designation, subjected to registration or community or public notification, or both, or would be if the person were a resident of that state or jurisdiction, without regard to whether the person otherwise meets the criteria for registration as a sexual offender;

c. Establishes or maintains a residence in this state who is in the custody or control of, or under the supervision of, any other state or jurisdiction as a result of a conviction for committing, or attempting, soliciting, or conspiring to commit, any of the criminal offenses proscribed in the following statutes or similar offense in another jurisdiction: s. 393.135(2); s. 394.4593(2); s. 787.01, s. 787.02, or s. 787.025(2)(c), where the victim is a minor; s. 787.06(3)(b), (d), (f), or (g), or (5); former s. 787.06(3)(h); s. 794.011, excluding s. 794.011(10); s. 794.05; former s. 796.03; former s. 796.035; s. 800.04; s. 810.145(8); s. 825.1025; s. 827.071; s. 847.0133; s. 847.0135, excluding s. 847.0135(6); s. 847.0137; s. 847.0138; s. 847.0145; s. 895.03, if the court makes a written finding that the racketeering activity involved at least one sexual offense listed in this sub-subparagraph or at least one offense listed in this sub-subparagraph with sexual intent or motive; s. 916.1075(2); or s. 985.701(1); or any similar offense committed in this state which has been redesignated from a former statute number to one of those listed in this sub-subparagraph; or

d. On or after July 1, 2007, has been adjudicated delinquent for committing, or attempting, soliciting, or conspiring to commit, any of the criminal offenses proscribed in the following statutes in this state or similar offenses in another jurisdiction when the juvenile was 14 years of age or older at the time of the offense:

(I) Section 794.011, excluding s. 794.011(10);

(II) Section 800.04(4)(a) 2. where the victim is under 12 years of age or where the court finds sexual activity by the use of force or coercion;

(III) Section 800.04(5)(c) 1. where the court finds molestation involving unclothed genitals;

(IV) Section 800.04(5)(d) where the court finds the use of force or coercion and unclothed genitals; or

(V) Any similar offense committed in this state which has been redesignated from a former statute number to one of those listed in this sub-subparagraph.

2. For all qualifying offenses listed in sub-subparagraph 1.d., the court shall make a written finding of the age of the offender at the time of the offense.

For each violation of a qualifying offense listed in this subsection, except for a violation of s. 794.011, the court shall make a written finding of the age of the victim at the time of the offense. For a violation of s. 800.04(4), the court shall also make a written finding indicating whether the offense involved sexual activity and indicating whether the offense involved force or coercion. For a violation of s. 800.04(5), the court shall also make a written finding that the offense did or did not involve unclothed genitals or genital area and that the offense did or did not involve the use of force or coercion.

(i) "Vehicles owned" has the same meaning as provided in s. 775.21.

(2) Upon initial registration, a sexual offender shall:

(a) Report in person at the sheriff's office:

1. In the county in which the offender establishes or maintains a permanent, temporary, or transient residence within 48 hours after:

a. Establishing permanent, temporary, or transient residence in this state; or

b. Being released from the custody, control, or supervision of the Department of Corrections or from the custody of a contractor-operated correctional facility; or

2. In the county where he or she was convicted within 48 hours after being convicted for a qualifying offense for registration under this section if the offender is not in the custody or control of, or under the supervision of, the Department of Corrections, or is not in the custody of a contractor-operated correctional facility.

Any change in the information required to be provided pursuant to paragraph (b), including, but not limited to, any change in the sexual offender's permanent, temporary, or transient residence; name; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home telephone numbers and cellular telephone numbers; employment information; and any change in status at an institution of higher education after the sexual offender reports in person at the sheriff's office must be reported in the manner provided in subsections (4), (7), and (8).

(b) Provide his or her name; date of birth; social security number; race; sex; height; weight; tattoos or other identifying marks; hair and eye color; fingerprints; palm prints; photograph; employment information, including occupation, business name, employment address, and telephone number; address of permanent or legal residence and address of any current temporary residence, within this state or out of state, including a rural route address and a post office box; if he or she has no permanent or temporary address, any transient residence within this state; address, location or description, and dates of any current or known future temporary residence within this state or out of state; the make, model, color, vehicle identification number (VIN), and license tag number of all vehicles owned; home telephone numbers and cellular telephone numbers; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; date and place of each conviction; and a brief description of the crime or crimes committed by the sexual offender. A post office box may not be provided in lieu of a physical residential address. The sexual offender shall also produce his or her passport, if he or she has a

passport, and, if he or she is an alien, shall produce or provide information about documents establishing his or her immigration status. The sexual offender shall also provide information about any professional licenses he or she has.

1. If the sexual offender's place of residence is a motor vehicle, trailer, mobile home, or manufactured home, as those terms are defined in chapter 320, the sexual offender shall also provide to the department through the sheriff's office written notice of the vehicle identification number (VIN); the license tag number; the registration number; and a description, including color scheme, of the motor vehicle, trailer, mobile home, or manufactured home. If the sexual offender's place of residence is a vessel, live-aboard vessel, or houseboat, as those terms are defined in chapter 327, the sexual offender shall also provide to the department through the sheriff's office written notice of the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number of the vessel, live-aboard vessel, or houseboat; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat.

2. If the sexual offender is enrolled or employed, whether for compensation or as a volunteer, at an institution of higher education in this state, the sexual offender shall also provide to the department the name, address, and county of each institution, including each campus attended, and the sexual offender's enrollment, volunteer, or employment status. The sheriff, the Department of Corrections, or the Department of Juvenile Justice shall promptly notify each institution of higher education of the sexual offender's presence and any change in the sexual offender's enrollment, volunteer, or employment status.

3. A sexual offender shall report with the department through the department's online system or in person to the sheriff's office within 48 hours after any change in vehicles owned to report those vehicle information changes.

(c) Provide any other information determined necessary by the department, including criminal and corrections records; nonprivileged personnel and treatment records; and evidentiary genetic markers, when available.

When a sexual offender reports at the sheriff's office, the sheriff shall take a photograph, a set of fingerprints, and palm prints of the offender and forward the photographs, palm prints, and fingerprints to the department, along with the information the sexual offender is required to provide pursuant to this section. The sheriff shall promptly provide to the department the information received from the sexual offender.

(3) Within 48 hours after the report required under subsection (2), a sexual offender shall report in person at a driver license office of the Department of Highway Safety and Motor Vehicles, unless a driver license or identification card that complies with the requirements of s. 322.141(3) was previously secured or updated under s. 944.607. At the driver license office the sexual offender shall:

(a) If otherwise qualified, secure a Florida driver license, renew a Florida driver license, or secure an identification card. The sexual offender shall identify himself or herself as a sexual offender who is required to comply with this section and shall provide proof that the sexual offender reported as required in subsection (2). The sexual offender shall provide any of the information specified in subsection (2), if requested. The sexual offender shall submit to the taking of a photograph for use in issuing a driver license, renewed license, or identification card, and for use by the department in maintaining current records of sexual offenders.

(b) Pay the costs assessed by the Department of Highway Safety and Motor Vehicles for issuing or renewing a driver license or identification card as required by this section. The driver license or identification card issued must comply with s. 322.141(3).

(c) Provide, upon request, any additional information necessary to confirm the identity of the sexual offender, including a set of fingerprints.

(4)(a) 1. Each time a sexual offender's driver license or identification card is subject to renewal, and, without regard to the status of the offender's driver license or identification card, within 48 hours after any change in the sexual offender's permanent, temporary, or transient residence or change in the sexual offender's name by reason of marriage or other legal process, the sexual offender shall report in person to a driver license office and is subject to the requirements specified in subsection (3). The Department of Highway Safety and Motor Vehicles shall forward to the department all photographs and information provided by sexual offenders. Notwithstanding the restrictions set forth in s. 322.142, the Department of Highway Safety and Motor Vehicles may release a reproduction of a color-photograph or digital-image license to the Department of Law Enforcement for purposes of public notification of sexual offenders as provided in this section and ss. 943.043 and 944.606. A sexual offender who is unable to secure or update a driver license or an identification card with the Department of Highway Safety and Motor Vehicles as provided in subsection (3) and this subsection shall report any change in the sexual offender's permanent, temporary, or transient residence or change in the offender's name by reason of marriage or other legal process within 48 hours after the change in person to the sheriff's office in the county where the offender resides or is located. The reporting requirements under this subparagraph do not negate the requirement for a sexual offender to obtain a Florida driver license or an identification card as required in this section. This subparagraph does not apply to an in-state travel residence.

2. A sexual offender shall report an in-state travel residence within 48 hours after establishing the residence. The report shall be made through the department's online system; in person at the sheriff's office in the county in which the sexual offender is located; in person at the Department of Corrections if the sexual offender is in the custody or control of, or under the supervision of, the Department of Corrections; or in person at the Department of Juvenile Justice if the sexual offender is in the custody or control of, or under the supervision of, the Department of Juvenile Justice.

(b) 1. A sexual offender who vacates a permanent, temporary, or transient residence and fails to establish or maintain another permanent, temporary, or transient residence shall, within 48 hours after vacating the permanent, temporary, or transient residence, report in person to the sheriff's office of the county in which he or she is located. The sexual offender shall specify the date upon which he or she intends to or did vacate such residence. The sexual offender must provide or update all of the registration information required under paragraph (2)(b). The sexual offender must provide an address for the residence or other place where he or she is or will be located during the time in which he or she fails to establish or maintain a permanent or temporary residence.

2. A sexual offender shall report in person at the sheriff's office in the county in which he or she is located within 48 hours after establishing a transient residence and thereafter must report in person every 30 days to the sheriff's office in the county in which he or she is located while maintaining a transient residence. The sexual offender must provide the addresses and locations where he or she maintains a transient residence. Each sheriff's office shall report transient residence information in a manner prescribed by the department and provide notice to transient registrants to report transient residence information as required in this subparagraph. Reporting to the sheriff's office as required by this subparagraph does not exempt registrants from any reregistration requirement. The sheriff may coordinate and enter into agreements with police departments and other governmental entities to facilitate additional reporting sites for transient residence registration required in this subparagraph. The sheriff's office shall electronically submit to and update with the department all such information within 2 business days after the sexual offender provides it to the sheriff's office.

(c) A sexual offender who remains at a permanent, temporary, or transient residence after reporting his or her intent to vacate such residence shall, within 48 hours after the date upon which the offender indicated he or she would or did vacate such

residence, report in person to the agency to which he or she reported pursuant to paragraph (b) for the purpose of reporting his or her address at such residence. When the sheriff receives the report, the sheriff shall promptly convey the information to the department. A sexual offender who makes a report as required under paragraph (b) but fails to make a report as required under this paragraph commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(d) The failure of a sexual offender who maintains a transient residence to report in person to the sheriff's office every 30 days as required in subparagraph (b)2. is punishable as provided in subsection (9).

(e) 1. A sexual offender shall register all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, with the department through the department's online system or in person at the sheriff's office within 48 hours after using such electronic mail addresses or Internet identifiers. If the sexual offender is in the custody or control, or under the supervision, of the Department of Corrections, he or she must report all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, to the Department of Corrections before using such electronic mail addresses or Internet identifiers. If the sexual offender is in the custody or control, or under the supervision, of the Department of Juvenile Justice, he or she must report all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, to the Department of Juvenile Justice before using such electronic mail addresses or Internet identifiers.

2. A sexual offender shall register all changes to home telephone numbers and cellular telephone numbers, including added and deleted numbers, all changes to employment information, including the creation of a new business if self-employed, and all changes in status related to enrollment, volunteering, or employment at institutions of higher education, through the department's online system; in person at the sheriff's office; in person at the Department of Corrections if the sexual offender is in the custody or control, or under the supervision, of the Department of Corrections; or in person at the Department of Juvenile Justice if the sexual offender is in the custody or control, or under the supervision, of the Department of Juvenile Justice. All changes required to be reported under this subparagraph must be reported within 48 hours after the change.

3. The department shall establish an online system through which sexual offenders may securely access, submit, and update all changes in status to in-state travel residences; vehicles owned; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home telephone numbers and cellular telephone numbers; employment information; and institution of higher education information.

(f) If the sexual offender is in the custody of a local jail, the custodian of the local jail shall register the sexual offender within 3 business days after intake of the sexual offender for any reason and upon release, and shall forward the registration information to the department. The custodian of the local jail shall also take a digitized photograph of the sexual offender while the sexual offender remains in custody and shall provide the digitized photograph to the department. The custodian shall notify the department if the sexual offender escapes from custody or dies.

(5) This section does not apply to a sexual offender who is also a sexual predator, as defined in s. 775.21. A sexual predator must register as required under s. 775.21.

(6) County and local law enforcement agencies, in conjunction with the department, shall verify the addresses of sexual offenders who are not under the care, custody, control, or supervision of the Department of Corrections at least one time per calendar year, and may verify the addresses of sexual offenders who are under the care, custody, control, or supervision of the Department of Corrections. The system for verifying addresses of sexual offenders must be consistent with the federal Adam Walsh Child

Protection and Safety Act of 2006 and any other federal standards applicable to such verification or required to be met as a condition for the receipt of federal funds by the state. Local law enforcement agencies shall report to the department any failure by a sexual offender to comply with registration requirements.

(7) A sexual offender who intends to establish a permanent, temporary, or transient residence in another state or jurisdiction other than the State of Florida shall report in person to the sheriff of the county of current residence at least 48 hours before the date he or she intends to leave this state to establish residence in another state or jurisdiction or at least 21 days before the date he or she intends to travel outside of the United States. Any travel that is not known by the sexual offender 48 hours before he or she intends to establish a residence in another state or jurisdiction, or 21 days before the departure date for travel outside of the United States, must be reported in person to the sheriff's office as soon as possible before departure. The sexual offender shall provide to the sheriff the address, municipality, county, state, and country of intended residence. For international travel, the sexual offender shall also provide travel information, including, but not limited to, expected departure and return dates, flight number, airport of departure, cruise port of departure, or any other means of intended travel. The sheriff shall promptly provide to the department the information received from the sexual offender. The department shall notify the statewide law enforcement agency, or a comparable agency, in the intended state, jurisdiction, or country of residence or the intended country of travel of the sexual offender's intended residence or intended travel. The failure of a sexual offender to provide his or her intended place of residence or intended travel is punishable as provided in subsection (9).

(8) A sexual offender who indicates his or her intent to establish a permanent, temporary, or transient residence in another state, a jurisdiction other than the State of Florida, or intent to travel to another country and later decides to remain in this state shall, within 48 hours after the date upon which the sexual offender indicated he or she would leave this state, report in person to the sheriff's office to which the sexual offender reported the intended change of residence or intended international travel, and report his or her intent to remain in this state. The sheriff shall promptly report this information to the department. A sexual offender who reports his or her intent to establish a permanent, temporary, or transient residence in another state, a jurisdiction other than the State of Florida, or intent to travel to another country, but who remains in this state without reporting to the sheriff in the manner required by this subsection commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(9)(a) Except as otherwise specifically provided, a sexual offender who fails to register; who fails, after registration, to maintain, acquire, or renew a driver license or an identification card; who fails to provide required location information or change-of-name information; who fails to provide electronic mail addresses, Internet identifiers, and each Internet identifier's corresponding website homepage or application software name; who fails to provide all home telephone numbers and cellular telephone numbers; who fails to report any changes to employment information, including the addition of new employment, termination of existing employment, and changes to the occupation, business name, employment address, and telephone number of previously reported employment; who fails to report any changes in status at an institution of higher education; who fails to report any changes to vehicles owned, including the addition of new vehicles and changes to the make, model, color, vehicle identification number (VIN), and license tag numbers of previously reported vehicles; who fails to make a required report in connection with vacating a permanent residence; who fails to reregister as required; who fails to respond to any address verification correspondence from the department or from county or local law enforcement agencies within 3 weeks after the date of the correspondence; who knowingly provides false registration information by act or omission; or who otherwise fails, by act or omission, to comply with the requirements of this section commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084. Each instance of a failure to register or report changes to the required information specified in this paragraph constitutes a separate offense.

(b) For a felony violation of this section, excluding subsection (13), committed on or after July 1, 2018, if the court does not impose a prison sentence, the court shall impose a mandatory minimum term of community control, as defined in s. 948.001, as follows:

1. For a first offense, a mandatory minimum term of 6 months with electronic monitoring.
2. For a second offense, a mandatory minimum term of 1 year with electronic monitoring.
3. For a third or subsequent offense, a mandatory minimum term of 2 years with electronic monitoring.

(c) A sexual offender who commits any act or omission in violation of this section may be prosecuted for the act or omission in the county in which the act or omission was committed, in the county of the last registered address of the sexual offender, in the county in which the conviction occurred for the offense or offenses that meet the criteria for designating a person as a sexual offender, in the county where the sexual offender was released from incarceration, or in the county of the intended address of the sexual offender as reported by the offender prior to his or her release from incarceration.

(d) An arrest on charges of failure to register when the offender has been provided and advised of his or her statutory obligations to register under subsection (2), the service of an information or a complaint for a violation of this section, or an arraignment on charges for a violation of this section constitutes actual notice of the duty to register. A sexual offender's failure to immediately register as required by this section following such arrest, service, or arraignment constitutes grounds for a subsequent charge of failure to register. A sexual offender charged with the crime of failure to register who asserts, or intends to assert, a lack of notice of the duty to register as a defense to a charge of failure to register shall immediately register as required by this section. A sexual offender who is charged with a subsequent failure to register may not assert the defense of a lack of notice of the duty to register. Registration following such arrest, service, or arraignment is not a defense and does not relieve the sexual offender of criminal liability for the failure to register.

(10) The department, the Department of Highway Safety and Motor Vehicles, the Department of Corrections, the Department of Juvenile Justice, any law enforcement agency in this state, and the personnel of those departments; an elected or appointed official, public employee, or school administrator; or an employee, agency, or any individual or entity acting at the request or upon the direction of any law enforcement agency is immune from civil liability for damages for good faith compliance with the requirements of this section or for the release of information under this section, and shall be presumed to have acted in good faith in compiling, recording, reporting, or releasing the information. The presumption of good faith is not overcome if a technical or clerical error is made by the department, the Department of Highway Safety and Motor Vehicles, the Department of Corrections, the Department of Juvenile Justice, the personnel of those departments, or any individual or entity acting at the request or upon the direction of any of those departments in compiling or providing information, or if information is incomplete or incorrect because a sexual offender fails to report or falsely reports his or her current place of permanent, temporary, or transient residence.

(11) Except as provided in s. 943.04354, a sexual offender shall maintain registration with the department for the duration of his or her life unless the sexual offender has received a full pardon or has had a conviction set aside in a postconviction proceeding for any offense that meets the criteria for classifying the person as a sexual offender for purposes of registration. However, a sexual offender shall be considered for removal of the requirement to register as a sexual offender only if the person:

(a) 1. Has been lawfully released from confinement, supervision, or sanction, whichever is later, for at least 25 years and has not been arrested for any felony or misdemeanor offense since release, provided that the sexual offender's requirement to register was not based upon an adult conviction:

a. For a violation of s. 787.01 or s. 787.02;

b. For a violation of s. 794.011, excluding s. 794.011(10);

c. For a violation of s. 800.04(4)(a) 2. where the court finds the offense involved a victim under 12 years of age or sexual activity by the use of force or coercion;

d. For a violation of s. 800.04(5)(b);

e. For a violation of s. 800.04(5)(c) 2. where the court finds the offense involved the use of force or coercion and unclothed genitals or genital area;

f. For a violation of s. 825.1025(2)(a);

g. For any attempt or conspiracy to commit any such offense;

h. For a violation of similar law of another jurisdiction; or

i. For a violation of a similar offense committed in this state which has been redesignated from a former statute number to one of those listed in this subparagraph.

2. If the sexual offender meets the criteria in subparagraph 1., the sexual offender may, for the purpose of removing the requirement for registration as a sexual offender, petition the criminal division of the circuit court of the circuit:

a. Where the conviction or adjudication occurred, for a conviction in this state;

b. Where the sexual offender resides, for a conviction of a violation of similar law of another jurisdiction; or

c. Where the sexual offender last resided, for a sexual offender with a conviction of a violation of similar law of another jurisdiction who no longer resides in this state.

3. The court may grant or deny relief if the offender demonstrates to the court that he or she has not been arrested for any crime since release; the requested relief complies with the federal Adam Walsh Child Protection and Safety Act of 2006¹ and any other federal standards applicable to the removal of registration requirements for a sexual offender or required to be met as

a condition for the receipt of federal funds by the state; and the court is otherwise satisfied that the offender is not a current or potential threat to public safety. The department and the state attorney in the circuit in which the petition is filed must be given notice of the petition at least 3 weeks before the hearing on the matter. The department and the state attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied. If the court denies the petition, the court may set a future date at which the sexual offender may again petition the court for relief, subject to the standards for relief provided in this subsection.

4. The department shall remove an offender from classification as a sexual offender for purposes of registration if the offender provides to the department a certified copy of the court's written findings or order that indicates that the offender is no longer required to comply with the requirements for registration as a sexual offender.

(b) Maintains registration with the department as described in sub-subparagraph (1)(h)1.b. for the duration of his or her life until the person provides the department with an order issued by the court that designated the person as a sexual predator, as a sexually violent predator, or any other sexual offender designation in the state or jurisdiction in which the order was issued which states that such designation has been removed or demonstrates to the department that such designation, if not imposed by a court, has been removed by operation of law or court order in the state or jurisdiction in which the designation was made, provided that such person no longer meets the criteria for registration as a sexual offender under the laws of this state. To qualify for removal of the registration requirements under this paragraph, a sexual offender described in sub-subparagraph (1)(h)1.b. must establish that his or her designation has been removed and establish that he or she does not meet the criteria for registration under any other sub-subparagraph under subparagraph (1)(h)1.

(12) The Legislature finds that sexual offenders, especially those who have committed offenses against minors, often pose a high risk of engaging in sexual offenses even after being released from incarceration or commitment and that protection of the public from sexual offenders is a paramount government interest. Sexual offenders have a reduced expectation of privacy because of the public's interest in public safety and in the effective operation of government. Releasing information concerning sexual offenders to law enforcement agencies and to persons who request such information, and the release of such information to the public by a law enforcement agency or public agency, will further the governmental interests of public safety. The designation of a person as a sexual offender is not a sentence or a punishment but is simply the status of the offender which is the result of a conviction for having committed certain crimes.

(13) Any person who has reason to believe that a sexual offender is not complying, or has not complied, with the requirements of this section and who, with the intent to assist the sexual offender in eluding a law enforcement agency that is seeking to find the sexual offender to question the sexual offender about, or to arrest the sexual offender for, his or her noncompliance with the requirements of this section:

(a) Withholds information from, or does not notify, the law enforcement agency about the sexual offender's noncompliance with the requirements of this section, and, if known, the whereabouts of the sexual offender;

(b) Harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the sexual offender;

(c) Conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the sexual offender; or

(d) Provides information to the law enforcement agency regarding the sexual offender that the person knows to be false information,

commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(14)(a) A sexual offender must report in person each year during the month of the sexual offender's birthday and during the sixth month following the sexual offender's birth month to the sheriff's office in the county in which he or she resides or is otherwise located to reregister.

(b) However, a sexual offender who is required to register as a result of a conviction for:

1. Section 787.01 or s. 787.02 where the victim is a minor;
2. Section 794.011, excluding s. 794.011(10);
3. Section 800.04(4)(a) 2. where the court finds the offense involved a victim under 12 years of age or sexual activity by the use of force or coercion;
4. Section 800.04(5)(b);
5. Section 800.04(5)(c) 1. where the court finds molestation involving unclothed genitals or genital area;
6. Section 800.04(5)(c) 2. where the court finds molestation involving the use of force or coercion and unclothed genitals or genital area;
7. Section 800.04(5)(d) where the court finds the use of force or coercion and unclothed genitals or genital area;
8. Section 825.1025(2)(a);
9. Any attempt or conspiracy to commit such offense;
10. A violation of a similar law of another jurisdiction; or
11. A violation of a similar offense committed in this state which has been redesignated from a former statute number to one of those listed in this paragraph,

must reregister each year during the month of the sexual offender's birthday and every third month thereafter.

(c) The sheriff's office may determine the appropriate times and days for reporting by the sexual offender, which must be consistent with the reporting requirements of this subsection. Reregistration must include any changes to the following information:

1. Name; social security number; age; race; sex; date of birth; height; weight; tattoos or other identifying marks; hair and eye color; address of any permanent residence and address of any current temporary residence, within this state or out of state, including a rural route address and a post office box; if he or she has no permanent or temporary address, any transient residence within this state; address, location or description, and dates of any current or known future temporary residence within this state or out of state; all electronic mail addresses or Internet identifiers and each Internet identifier's corresponding website homepage or application software name; all home telephone numbers and cellular telephone numbers; employment information, including occupation, business name, employment address, and telephone number; the make, model, color, vehicle identification number (VIN), and license tag number of all vehicles owned; fingerprints; palm prints; and photograph. A post office box may not be provided in lieu of a physical residential address. The sexual offender shall also produce his or her passport, if he or she has a passport, and, if he or she is an alien, shall produce or provide information about documents establishing his or her immigration status. The sexual offender shall also provide information about any professional licenses he or she has.

2. If the sexual offender is enrolled or employed, whether for compensation or as a volunteer, at an institution of higher education in this state, the sexual offender shall also provide to the department the name, address, and county of each institution, including each campus attended, and the sexual offender's enrollment, volunteer, or employment status.

3. If the sexual offender's place of residence is a motor vehicle, trailer, mobile home, or manufactured home, as those terms are defined in chapter 320, the sexual offender shall also provide the vehicle identification number (VIN); the license tag number; the registration number; and a description, including color scheme, of the motor vehicle, trailer, mobile home, or manufactured home. If the sexual offender's place of residence is a vessel, live-aboard vessel, or houseboat, as those terms are defined in chapter 327, the sexual offender shall also provide the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number of the vessel, live-aboard vessel, or houseboat; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat.

(d) The sheriff's office shall electronically submit to and update with the department, in a manner prescribed by the department, all such information within 2 business days after the sexual offender provides it to the sheriff's office.

Credits

Added by Laws 1997, c. 97-299, § 8, eff. Oct. 1, 1997. Amended by Laws 1998, c. 98-81, § 7, eff. July 1, 1998; Laws 1999, c. 99-3, § 114, eff. June 29, 1999; Laws 2000, c. 2000-207, § 3, eff. July 1, 2000; Laws 2000, c. 2000-246, § 3, eff. Oct. 1, 2000; Laws 2002, c. 2002-58, § 3, eff. July 1, 2002; Laws 2004, c. 2004-371, § 2, eff. July 1, 2004; Laws 2005, c. 2005-28, § 9, eff. Sept. 1, 2005; Laws 2006, c. 2006-200, § 3, eff. July 1, 2006; Laws 2006, c. 2006-299, § 4, eff. July 1, 2006; Laws 2007, c. 2007-05, § 159, eff. July 3, 2007; Laws 2007, c. 2007-143, § 10, eff. Oct. 1, 2007; Laws 2007, c. 2007-207, § 4, eff. July 1, 2007; Laws 2007, c. 2007-209, § 2, eff. July 1, 2007; Laws 2009, c. 2009-194, § 3, eff. July 1, 2009; Laws 2010, c. 2010-92, § 4, eff. May 26, 2010; Laws 2012, c. 2012-19, § 4, eff. Oct. 1, 2012; Laws 2012, c. 2012-97, § 11, eff. July 1, 2012; Laws 2013, c. 2013-116, § 11, eff. July 1, 2013; Laws 2014, c. 2014-4, § 10, eff. Oct. 1, 2014; Laws 2014, c. 2014-5, § 5, eff. Oct. 1, 2014; Laws 2014, c. 2014-160, § 26, eff. Oct. 1, 2014; Laws 2015, c. 2015-2, § 99, eff. June 30, 2015; Laws 2016, c. 2016-24, §§ 10, 51, eff. Oct. 1, 2016; Laws 2016, c. 2016-104, § 3, eff. Oct. 1, 2016; Laws 2017, c. 2017-170, § 2, eff. June 26, 2017; Laws 2018, c. 2018-105, § 2, eff. July 1, 2018; Laws 2021, c. 2021-156, § 2, eff. June 22, 2021; Laws 2021, c. 2021-189, § 8, eff. July 1, 2021; Laws 2024, c. 2024-73, § 2, eff. Oct. 1, 2024; Laws 2024, c. 2024-84, § 14, eff. July 1, 2024; Laws 2025, c. 2025-134, § 2, eff. Oct. 1, 2025; Laws 2025, c. 2025-156, §§ 10, 41, eff. Oct. 1, 2025.

Footnotes

1 See 42 U.S.C.A. § 16901 et seq.

West's F. S. A. § 943.0435, FL ST § 943.0435

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West's Florida Statutes Annotated

Title XLVII. Criminal Procedure and Corrections (Chapters 900-999) (Refs & Annos)

Chapter 943. Department of Law Enforcement (Refs & Annos)

West's F.S.A. § 943.04354

943.04354. Removal of the requirement to register as a sexual offender or sexual predator in special circumstances

Effective: October 1, 2016

Currentness

(1) For purposes of this section, a person shall be considered for removal of the requirement to register as a sexual offender or sexual predator only if the person:

(a) Was convicted, regardless of adjudication, or adjudicated delinquent of a violation of s. 800.04, s. 827.071, or s. 847.0135(5) or of a similar offense in another jurisdiction and if the person does not have any other conviction, regardless of adjudication, or adjudication of delinquency for a violation of s. 794.011, s. 800.04, s. 827.071, or s. 847.0135(5) or for a similar offense in another jurisdiction;

(b) 1. Was convicted, regardless of adjudication, or adjudicated delinquent of an offense listed in paragraph (a) and is required to register as a sexual offender or sexual predator solely on the basis of this conviction or adjudication; or

2. Was convicted, regardless of adjudication, or adjudicated delinquent of an offense in another jurisdiction which is similar to an offense listed in paragraph (a) and no longer meets the criteria for registration as a sexual offender or sexual predator under the laws of the jurisdiction in which the similar offense occurred; and

(c) Is not more than 4 years older than the victim of this violation who was 13 years of age or older but younger than 18 years of age at the time the person committed this violation.

(2)(a) If a person meets the criteria in subsection (1), the person may, for the purpose of removing the requirement that he or she register as a sexual offender or sexual predator, move the criminal division of the circuit court of the circuit:

1. Where the conviction or adjudication for the qualifying offense occurred for a conviction in this state;

2. Where the sexual offender or sexual predator resides for a conviction for a violation of similar law of another jurisdiction; or

3. Where the sexual offender or sexual predator last resided for a sexual offender or sexual predator with a conviction of a violation of a similar law of another jurisdiction who no longer resides in this state.

(b) The person must allege in the motion that he or she meets the criteria in subsection (1) and that removal of the registration requirement will not conflict with federal law that requires that the sexual act be consensual, notwithstanding the age of the

victim. A person convicted or adjudicated delinquent of an offense in another jurisdiction which is similar to an offense listed in paragraph (1)(a) must provide the court written confirmation that he or she is not required to register in the jurisdiction in which the conviction or adjudication occurred. The state attorney and the department must be given notice of the motion at least 21 days before the date of sentencing, disposition of the violation, or hearing on the motion and may present evidence in opposition to the requested relief or may otherwise demonstrate why the motion should be denied. At sentencing, disposition of the violation, or hearing on the motion, the court shall rule on the motion, and, if the court determines the person meets the criteria in subsection (1) and the removal of the registration requirement will not conflict with federal law that requires that the sexual act be consensual, notwithstanding the age of the victim, it may grant the motion and order the removal of the registration requirement. The court shall instruct the person to provide the department a certified copy of the order granting relief. If the court denies the motion, the person is not authorized under this section to file another motion for removal of the registration requirement.

(3) If a person provides to the Department of Law Enforcement a certified copy of the court's order removing the requirement that the person register as a sexual offender or sexual predator for the violation of s. 794.011, s. 800.04, s. 827.071, or s. 847.0135(5), or a similar offense in another jurisdiction, the registration requirement will not apply to the person and the department shall remove all information about the person from the public registry of sexual offenders and sexual predators maintained by the department. However, the removal of this information from the public registry does not mean that the public is denied access to information about the person's criminal history or record that is otherwise available as a public record.

Credits

Added by Laws 2007, c. 2007-209, § 3, eff. July 1, 2007. Amended by Laws 2008, c. 2008-172, § 26, eff. Oct. 1, 2008; Laws 2010, c. 2010-92, § 6, eff. May 26, 2010; Laws 2014, c. 2014-5, § 6, eff. Oct. 1, 2014; Laws 2016, c. 2016-104, § 4, eff. Oct. 1, 2016.

West's F. S. A. § 943.04354, FL ST § 943.04354

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Title XLVII. Criminal Procedure and Corrections (Chapters 900-999) (Refs & Annos)

Chapter 943. Department of Law Enforcement (Refs & Annos)

West's F.S.A. § 943.0436

943.0436. Duty of the court to uphold laws governing sexual predators and sexual offenders

Effective: October 1, 2025

Currentness

(1) The Legislature finds that, for the purpose of approving a plea agreement or for other reasons, certain courts enter orders that effectively limit or nullify requirements imposed upon sexual predators and sexual offenders pursuant to the laws of this state and prevent persons or entities from carrying out the duties imposed, or exercising the authority conferred, by such laws. The laws relating to sexual predators and sexual offenders are substantive law. Furthermore, the Congress of the United States has expressly encouraged every state to enact such laws, and has provided that, to the extent that a state's laws do not meet certain federal requirements, the state will lose significant federal funding provided to the state for law enforcement and public safety programs. Unless a court that enters such an order determines that a person or entity is not operating in accordance with the laws governing sexual predators or sexual offenders, or that such laws or any part of such laws are unconstitutional or unconstitutionally applied, the court unlawfully encroaches on the Legislature's exclusive power to make laws and places at risk significant public interests of the state.

(2) If a person meets the criteria in chapter 775 for designation as a sexual predator or meets the criteria in s. 943.0435, s. 944.606, s. 944.607, or any other law for classification as a sexual offender, the court may not enter an order, for the purpose of approving a plea agreement or for any other reason, which:

(a) Exempts a person who meets the criteria for designation as a sexual predator or classification as a sexual offender from such designation or classification, or exempts such person from the requirements for registration or community and public notification imposed upon sexual predators and sexual offenders;

(b) Restricts the compiling, reporting, or release of public records information that relates to sexual predators or sexual offenders; or

(c) Prevents any person or entity from performing its duties or operating within its statutorily conferred authority as such duty or authority relates to sexual predators or sexual offenders.

(3) If the court enters an order that affects an agency's performance of a duty imposed under the laws governing sexual predators or sexual offenders, or that limits the agency's exercise of authority conferred under such laws, the Legislature strongly encourages the affected agency to file a motion in the court that entered such order. The affected agency may, within 1 year after the receipt of any such order, move to modify or set aside the order or, if such order is in the nature of an injunction, move to dissolve the injunction. Grounds for granting any such motion include, but need not be limited to:

(a) The affected agency was not properly noticed.

(b) The court is not authorized to enjoin the operation of a statute that has been duly adjudged constitutional and operative unless the statute is illegally applied or unless the statute or the challenged part of it is unconstitutional on adjudicated grounds.

(c) Jurisdiction may not be conferred by consent of the parties.

(d) To the extent that the order is based upon actions the agency might take, the court's order is premature and, if and when such actions are taken, these actions may be challenged in appropriate proceedings to determine their enforceability.

(e) The injunction affects the public interest and would cause injury to the public.

(f) The order creates an unenforceable, perpetual injunction.

(g) The order seeks to restrict the agency in the performance of its duties outside the court's territorial jurisdiction.

Credits

Added by Laws 2002, c. 2002-58, § 4, eff. July 1, 2002. Amended by Laws 2004, c. 2004-371, § 6, eff. July 1, 2004; Laws 2016, c. 2016-24, § 68, eff. Oct. 1, 2016; Laws 2021, c. 2021-156, § 23, eff. June 22, 2021; Laws 2025, c. 2025-156, §§ 71, 85, 92, eff. Oct. 1, 2025.

West's F. S. A. § 943.0436, FL ST § 943.0436

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Chapter 943. Department of Law Enforcement (Refs & Annos)

West's F.S.A. § 943.44353

943.44353. Automatic notification of registration information regarding sexual predators and offenders

Effective: July 1, 2007

Currentness

(1) No later than January 1, 2008, the department shall develop and maintain a system to provide automatic notification of registration information regarding sexual predators and sexual offenders to the public.

(2) In accordance with the federal Adam Walsh Child Protection and Safety Act of 2006,¹ schools, public housing agencies, agencies responsible for conducting employment-related background checks under s. 3 of the National Child Protection Act of 1993, 42 U.S.C. s. 5119a, as amended, social service entities responsible for protecting minors in the child welfare system, volunteer organizations in which contact with minors or other vulnerable individuals might occur, and any other such organization, company, or individual shall have access to the notification system.

Credits

Added by Laws 2007, c. 2007-209, § 4, eff. July 1, 2007.

Footnotes

¹ See, 42 U.S.C.A. § 16901 et seq.

West's F. S. A. § 943.44353, FL ST § 943.44353

Current with laws, joint and concurrent resolutions and memorials in effect from the 2025 Special Session C and through July 1, 2025, of the 2025 first regular session.

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West's Florida Statutes Annotated
Title XLVI. Crimes (Chapters 775-899)
Chapter 775. General Penalties; Registration of Criminals (Refs & Annos)

West's F.S.A. § 775.21

775.21. The Florida Sexual Predators Act

Effective: October 1, 2025

Currentness

(1) Short title.--This section may be cited as “The Florida Sexual Predators Act.”

(2) Definitions.--As used in this section, the term:

(a) “Change in status at an institution of higher education” means the commencement or termination of enrollment, including, but not limited to, traditional classroom setting or online courses, or employment, whether for compensation or as a volunteer, at an institution of higher education or a change in location of enrollment or employment, whether for compensation or as a volunteer, at an institution of higher education.

(b) “Chief of police” means the chief law enforcement officer of a municipality.

(c) “Child care facility” has the same meaning as provided in s. 402.302.

(d) “Community” means any county where the sexual predator lives or otherwise establishes or maintains a permanent, temporary, or transient residence.

(e) “Conviction” means a determination of guilt which is the result of a trial or the entry of a plea of guilty or nolo contendere, regardless of whether adjudication is withheld. A conviction for a similar offense includes, but is not limited to, a conviction by a federal or military tribunal, including courts-martial conducted by the Armed Forces of the United States, and includes a conviction or entry of a plea of guilty or nolo contendere in any state of the United States or other jurisdiction.

(f) “Department” means the Department of Law Enforcement.

(g) “Electronic mail address” has the same meaning as provided in s. 668.602.

(h) “Entering the county” includes being discharged from a correctional facility or jail or secure treatment facility within the county or being under supervision within the county for the commission of a violation enumerated in subsection (4).

(i) “Institution of higher education” means a career center, a community college, a college, a state university, or an independent postsecondary educational institution.

(j) “Internet identifier” means any designation, moniker, screen name, username, or other name used for self-identification to send or receive social Internet communication. Internet identifier does not include a date of birth, social security number, personal identification number (PIN), or password. A sexual offender's or sexual predator's use of an Internet identifier that discloses his or her date of birth, social security number, PIN, password, or other information that would reveal the identity of the sexual offender or sexual predator waives the disclosure exemption in this paragraph for such personal information.

(k) “Permanent residence” means a place where the person abides, lodges, or resides for 3 or more consecutive days that is the person's home or other place where the person primarily lives. For the purpose of calculating a permanent residence under this paragraph, the first day that a person abides, lodges, or resides at a place is excluded and each subsequent day is counted. A day includes any part of a calendar day.

(l) “Professional license” means the document of authorization or certification issued by an agency of this state for a regulatory purpose, or by any similar agency in another jurisdiction for a regulatory purpose, to a person to engage in an occupation or to carry out a trade or business.

(m) “Social Internet communication” means any communication through a commercial social networking website as defined in s. 943.0437, or application software. The term does not include any of the following:

1. Communication for which the primary purpose is the facilitation of commercial transactions involving goods or services;
2. Communication on an Internet website for which the primary purpose of the website is the dissemination of news; or
3. Communication with a governmental entity.

As used in this paragraph, the term “application software” means any computer program designed to run on a mobile device such as a smartphone or tablet computer, that allows users to create web pages or profiles that provide information about themselves and are available publicly or to other users, and that offers a mechanism for communication with other users through a forum, a chatroom, electronic mail, or an instant messenger.

(n)1. “Temporary residence” means a place where the person abides, lodges, or resides, including, but not limited to, vacation, business, or personal travel destinations in or out of this state, for 3 or more days in the aggregate during any calendar year that is not the person's permanent or transient residence. For a person whose permanent residence is not in this state, the term also includes a place where the person is employed, practices a vocation, or is enrolled as a student for any period of time in this state.

2. The term includes an “in-state travel residence,” which means a temporary residence in this state established by a person who already has an existing permanent, temporary, or transient residence in this state.

For the purpose of calculating a temporary residence under this paragraph, the first day that a person abides, lodges, or resides at a place is excluded and each subsequent day is counted. A day includes any part of a calendar day.

(o) “Transient residence” means a county where the person lives, remains, or is located for the purpose of abiding, lodging, or residing for 3 or more days in the aggregate during a calendar year that is not the person's permanent or temporary residence. The term includes, but is not limited to, a place where the person sleeps or seeks shelter and a location that has no specific street address. For the purpose of calculating a transient residence under this paragraph, the first day that a person lives, remains, or is located in a county for the purpose of abiding, lodging, or residing is excluded and each subsequent day is counted. A day includes any part of a calendar day.

(p) “Vehicles owned” means any motor vehicle as defined in s. 320.01, which is registered, coregistered, leased, titled, or rented by a sexual predator or sexual offender; a rented vehicle that a sexual predator or sexual offender is authorized to drive; or a vehicle for which a sexual predator or sexual offender is insured as a driver. The term also includes any motor vehicle as defined in s. 320.01, which is registered, coregistered, leased, titled, or rented by a person or persons residing at a sexual predator's or sexual offender's permanent residence for 5 or more consecutive days.

(3) Legislative findings and purpose; legislative intent.--

(a) Repeat sexual offenders, sexual offenders who use physical violence, and sexual offenders who prey on children are sexual predators who present an extreme threat to the public safety. Sexual offenders are extremely likely to use physical violence and to repeat their offenses, and most sexual offenders commit many offenses, have many more victims than are ever reported, and are prosecuted for only a fraction of their crimes. This makes the cost of sexual offender victimization to society at large, while incalculable, clearly exorbitant.

(b) The high level of threat that a sexual predator presents to the public safety, and the long-term effects suffered by victims of sex offenses, provide the state with sufficient justification to implement a strategy that includes:

1. Incarcerating sexual predators and maintaining adequate facilities to ensure that decisions to release sexual predators into the community are not made on the basis of inadequate space.
2. Providing for specialized supervision of sexual predators who are in the community by specially trained probation officers with low caseloads, as described in ss. 947.1405(7) and 948.30. The sexual predator is subject to specified terms and conditions implemented at sentencing or at the time of release from incarceration, with a requirement that those who are financially able must pay all or part of the costs of supervision.
3. Requiring the registration of sexual predators, with a requirement that complete and accurate information be maintained and accessible for use by law enforcement authorities, communities, and the public.
4. Providing for community and public notification concerning the presence of sexual predators.
5. Prohibiting sexual predators from working with children, either for compensation or as a volunteer.

(c) The state has a compelling interest in protecting the public from sexual predators and in protecting children from predatory sexual activity, and there is sufficient justification for requiring sexual predators to register and for requiring community and public notification of the presence of sexual predators.

(d) It is the purpose of the Legislature that, upon the court's written finding that an offender is a sexual predator, in order to protect the public, it is necessary that the sexual predator be registered with the department and that members of the community and the public be notified of the sexual predator's presence. The designation of a person as a sexual predator is neither a sentence nor a punishment but simply a status resulting from the conviction of certain crimes.

(e) It is the intent of the Legislature to address the problem of sexual predators by:

1. Requiring sexual predators supervised in the community to have special conditions of supervision and to be supervised by probation officers with low caseloads;
2. Requiring sexual predators to register with the department, as provided in this section; and
3. Requiring community and public notification of the presence of a sexual predator, as provided in this section.

(4) Sexual predator criteria.--

(a) For a current offense committed on or after October 1, 1993, upon conviction, an offender shall be designated as a “sexual predator” under subsection (5), and subject to registration under subsection (6) and community and public notification under subsection (7) if:

1. The felony is:

a. A capital, life, or first degree felony violation, or any attempt thereof, of s. 787.01 or s. 787.02, where the victim is a minor, or s. 787.06(3)(f) or (g), where the victim is a minor, or (5); s. 794.011, s. 800.04, or s. 847.0145, or a violation of a similar law of another jurisdiction; or

b. Any felony violation, or any attempt thereof, of s. 393.135(2); s. 394.4593(2); s. 787.01, s. 787.02, or s. 787.025(2)(c), where the victim is a minor; s. 787.06(3)(b), (d), (f), or (g), or (5); former s. 787.06(3)(h); s. 794.011, excluding s. 794.011(10); s. 794.05; former s. 796.03; former s. 796.035; s. 800.04; s. 810.145(8)(b); s. 825.1025; s. 827.071; s. 847.0135, excluding s. 847.0135(6); s. 847.0145; s. 895.03, if the court makes a written finding that the racketeering activity involved at least one sexual offense listed in this sub-subparagraph or at least one offense listed in this sub-subparagraph with sexual intent or motive; s. 916.1075(2); or s. 985.701(1); or a violation of a similar law of another jurisdiction, and the offender has previously been convicted of or found to have committed, or has pled nolo contendere or guilty to, regardless of adjudication, any violation of s. 393.135(2); s. 394.4593(2); s. 787.01, s. 787.02, or s. 787.025(2)(c), where the victim is a minor; s. 787.06(3)(b), (d), (f), or (g), or (5); former s. 787.06(3)(h); s. 794.011, excluding s. 794.011(10); s. 794.05; former s. 796.03; former s. 796.035; s. 800.04; s. 825.1025; s. 827.071; s. 847.0133; s. 847.0135, excluding s. 847.0135(6); s. 847.0145; s. 895.03, if the court makes a written finding that the racketeering activity involved at least one sexual offense listed in this sub-subparagraph or at least

one offense listed in this sub-subparagraph with sexual intent or motive; s. 916.1075(2); or s. 985.701(1); or a violation of a similar law of another jurisdiction;

2. The offender has not received a pardon for any felony or similar law of another jurisdiction that is necessary for the operation of this paragraph; and

3. A conviction of a felony or similar law of another jurisdiction necessary to the operation of this paragraph has not been set aside in any postconviction proceeding.

(b) In order to be counted as a prior felony for purposes of this subsection, the felony must have resulted in a conviction sentenced separately, or an adjudication of delinquency entered separately, prior to the current offense and sentenced or adjudicated separately from any other felony conviction that is to be counted as a prior felony regardless of the date of offense of the prior felony.

(c) If an offender has been registered as a sexual predator by the Department of Corrections, the department, or any other law enforcement agency and if:

1. The court did not, for whatever reason, make a written finding at the time of sentencing that the offender was a sexual predator; or

2. The offender was administratively registered as a sexual predator because the Department of Corrections, the department, or any other law enforcement agency obtained information that indicated that the offender met the criteria for designation as a sexual predator based on a violation of a similar law in another jurisdiction,

the department shall remove that offender from the department's list of sexual predators and, for an offender described under subparagraph 1., shall notify the state attorney who prosecuted the offense that met the criteria for administrative designation as a sexual predator, and, for an offender described under this paragraph, shall notify the state attorney of the county where the offender establishes or maintains a permanent, temporary, or transient residence. The state attorney shall bring the matter to the court's attention in order to establish that the offender meets the criteria for designation as a sexual predator. If the court makes a written finding that the offender is a sexual predator, the offender must be designated as a sexual predator, must register or be registered as a sexual predator with the department as provided in subsection (6), and is subject to the community and public notification as provided in subsection (7). If the court does not make a written finding that the offender is a sexual predator, the offender may not be designated as a sexual predator with respect to that offense and is not required to register or be registered as a sexual predator with the department.

(d) An offender who has been determined to be a sexually violent predator pursuant to a civil commitment proceeding under chapter 394 shall be designated as a "sexual predator" under subsection (5) and subject to registration under subsection (6) and community and public notification under subsection (7).

(5) Sexual predator designation.--An offender is designated as a sexual predator as follows:

(a) 1. An offender who meets the sexual predator criteria described in paragraph (4)(d) is a sexual predator, and the court shall make a written finding at the time such offender is determined to be a sexually violent predator under chapter 394 that such

person meets the criteria for designation as a sexual predator for purposes of this section. The clerk shall transmit a copy of the order containing the written finding to the department within 48 hours after the entry of the order;

2. An offender who meets the sexual predator criteria described in paragraph (4)(a) who is before the court for sentencing for a current offense committed on or after October 1, 1993, is a sexual predator, and the sentencing court must make a written finding at the time of sentencing that the offender is a sexual predator, and the clerk of the court shall transmit a copy of the order containing the written finding to the department within 48 hours after the entry of the order; or

3. If the Department of Corrections, the department, or any other law enforcement agency obtains information which indicates that an offender who establishes or maintains a permanent, temporary, or transient residence in this state meets the sexual predator criteria described in paragraph (4)(a) or paragraph (4)(d) because the offender was civilly committed or committed a similar violation in another jurisdiction on or after October 1, 1993, the Department of Corrections, the department, or the law enforcement agency shall notify the state attorney of the county where the offender establishes or maintains a permanent, temporary, or transient residence of the offender's presence in the community. The state attorney shall file a petition with the criminal division of the circuit court for the purpose of holding a hearing to determine if the offender's criminal record or record of civil commitment from another jurisdiction meets the sexual predator criteria. If the court finds that the offender meets the sexual predator criteria because the offender has violated a similar law or similar laws in another jurisdiction, the court shall make a written finding that the offender is a sexual predator.

When the court makes a written finding that an offender is a sexual predator, the court shall inform the sexual predator of the registration and community and public notification requirements described in this section. Within 48 hours after the court designates an offender as a sexual predator, the clerk of the circuit court shall transmit a copy of the court's written sexual predator finding to the department. If the offender is sentenced to a term of imprisonment or supervision, a copy of the court's written sexual predator finding must be submitted to the Department of Corrections.

(b) If a sexual predator is not sentenced to a term of imprisonment, the clerk of the court shall ensure that the sexual predator's fingerprints are taken and forwarded to the department within 48 hours after the court renders its written sexual predator finding. The fingerprints shall be clearly marked, "Sexual Predator Registration." The clerk of the court that convicts and sentences the sexual predator for the offense or offenses described in subsection (4) shall forward to the department and to the Department of Corrections a certified copy of any order entered by the court imposing any special condition or restriction on the sexual predator that restricts or prohibits access to the victim, if the victim is a minor, or to other minors.

(c) If the Department of Corrections, the department, or any other law enforcement agency obtains information which indicates that an offender meets the sexual predator criteria but the court did not make a written finding that the offender is a sexual predator as required in paragraph (a), the Department of Corrections, the department, or the law enforcement agency shall notify the state attorney who prosecuted the offense for offenders described in subparagraph (a)1., or the state attorney of the county where the offender establishes or maintains a residence upon first entering the state for offenders described in subparagraph (a)3. The state attorney shall bring the matter to the court's attention in order to establish that the offender meets the sexual predator criteria. If the state attorney fails to establish that an offender meets the sexual predator criteria and the court does not make a written finding that an offender is a sexual predator, the offender is not required to register with the department as a sexual predator. The Department of Corrections, the department, or any other law enforcement agency shall not administratively designate an offender as a sexual predator without a written finding from the court that the offender is a sexual predator.

(d) A person who establishes or maintains a residence in this state and who has not been designated as a sexual predator by a court of this state but who has been designated as a sexual predator, as a sexually violent predator, or any other sexual offender designation in another state or jurisdiction and was, as a result of such designation, subjected to registration or community or

public notification, or both, or would be if the person was a resident of that state or jurisdiction, without regard to whether the person otherwise meets the criteria for registration as a sexual offender, shall register in the manner provided in s. 943.0435 or s. 944.607 and shall be subject to community and public notification as provided in s. 943.0435 or s. 944.607. A person who meets the criteria of this section is subject to the requirements and penalty provisions of s. 943.0435 or s. 944.607 until the person provides the department with an order issued by the court that designated the person as a sexual predator, as a sexually violent predator, or any other sexual offender designation in the state or jurisdiction in which the order was issued which states that such designation has been removed or demonstrates to the department that such designation, if not imposed by a court, has been removed by operation of law or court order in the state or jurisdiction in which the designation was made, provided that such person no longer meets the criteria for registration as a sexual offender under the laws of this state. To qualify for removal of the registration requirements under this paragraph, a sexual offender described in this paragraph must meet the criteria for removal under s. 943.0435.

(6) Registration.--

(a) A sexual predator shall register with the department through the sheriff's office by providing the following information to the department:

1. Name; social security number; age; race; sex; date of birth; height; weight; tattoos or other identifying marks; hair and eye color; photograph; address of permanent or legal residence and address of any current temporary residence, within this state or out of state, including a rural route address and a post office box; if he or she has no permanent or temporary address, any transient residence within this state; address, location or description, and dates of any current or known future temporary residence within this state or out of state; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home telephone numbers and cellular telephone numbers; employment information, including occupation, business name, employment address, and telephone number; the make, model, color, vehicle identification number (VIN), and license tag number of all vehicles owned; date and place of each conviction; fingerprints; palm prints; and a brief description of the crime or crimes committed by the sexual predator. A post office box may not be provided in lieu of a physical residential address. The sexual predator shall also produce his or her passport, if he or she has a passport, and, if he or she is an alien, shall produce or provide information about documents establishing his or her immigration status. The sexual predator shall also provide information about any professional licenses he or she has.

a. Any change that occurs after the sexual predator registers in person at the sheriff's office as provided in this subparagraph in any of the following information related to the sexual predator must be reported as provided in paragraphs (g), (i), and (j): permanent, temporary, or transient residence; name; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home and cellular telephone numbers; employment information; and status at an institution of higher education.

b. If the sexual predator's place of residence is a motor vehicle, trailer, mobile home, or manufactured home, as those terms are defined in chapter 320, the sexual predator shall also provide to the department written notice of the vehicle identification number (VIN); the license tag number; the registration number; and a description, including color scheme, of the motor vehicle, trailer, mobile home, or manufactured home. If a sexual predator's place of residence is a vessel, live-aboard vessel, or houseboat, as those terms are defined in chapter 327, the sexual predator shall also provide to the department written notice of the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number of the vessel, live-aboard vessel, or houseboat; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat.

c. If the sexual predator is enrolled or employed, whether for compensation or as a volunteer, at an institution of higher education in this state, the sexual predator shall also provide to the department the name, address, and county of each institution, including each campus attended, and the sexual predator's enrollment, volunteer, or employment status. The sheriff, the Department of Corrections, or the Department of Juvenile Justice shall promptly notify each institution of higher education of the sexual predator's presence and any change in the sexual predator's enrollment, volunteer, or employment status.

d. A sexual predator shall report to the department through the department's online system or in person to the sheriff's office within 48 hours after any change in vehicles owned to report those vehicle information changes. A sexual predator who is under the supervision of the Department of Corrections, or under the supervision of the Department of Juvenile Justice shall report in person to the sheriff's office within 48 hours after any change in vehicles owned to report those vehicle information changes.

2. Any other information determined necessary by the department, including criminal and corrections records; nonprivileged personnel and treatment records; and evidentiary genetic markers when available.

(b) If the sexual predator is in the custody or control of, or under the supervision of, the Department of Corrections, or is in the custody of a contractor-operated correctional facility, the sexual predator shall register with the Department of Corrections. A sexual predator who is under the supervision of the Department of Corrections but who is not incarcerated shall register with the Department of Corrections within 3 business days after the court finds the offender to be a sexual predator. The Department of Corrections shall provide to the department registration information and the location of, and local telephone number for, any Department of Corrections office that is responsible for supervising the sexual predator. In addition, the Department of Corrections shall notify the department if the sexual predator escapes or absconds from custody or supervision or if the sexual predator dies.

(c) If the sexual predator is in the custody of a local jail, the custodian of the local jail shall register the sexual predator within 3 business days after intake of the sexual predator for any reason and upon release, and shall forward the registration information to the department. The custodian of the local jail shall also take a digitized photograph of the sexual predator while the sexual predator remains in custody and shall provide the digitized photograph to the department. The custodian shall notify the department if the sexual predator escapes from custody or dies.

(d) If the sexual predator is under federal supervision, the federal agency responsible for supervising the sexual predator may forward to the department any information regarding the sexual predator which is consistent with the information provided by the Department of Corrections under this section, and may indicate whether use of the information is restricted to law enforcement purposes only or may be used by the department for purposes of public notification.

(e) 1. If the sexual predator is not in the custody or control of, or under the supervision of, the Department of Corrections or is not in the custody of a contractor-operated correctional facility, the sexual predator shall register in person:

a. At the sheriff's office in the county where he or she establishes or maintains a residence within 48 hours after establishing or maintaining a residence in this state; and

b. At the sheriff's office in the county where he or she was designated a sexual predator by the court within 48 hours after such finding is made.

2. Any change that occurs after the sexual predator registers in person at the sheriff's office as provided in subparagraph 1. in any of the following information related to the sexual predator must be reported as provided in paragraphs (g), (i), and (j): permanent, temporary, or transient residence; name; vehicles owned; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home and cellular telephone numbers; employment information; and change in status at an institution of higher education. When a sexual predator registers with the sheriff's office, the sheriff shall take a photograph, a set of fingerprints, and palm prints of the sexual predator and forward the photographs, palm prints, and fingerprints to the department, along with the information that the sexual predator is required to provide pursuant to this section.

(f) Within 48 hours after the registration required under paragraph (a) or paragraph (e), a sexual predator who is not incarcerated and who resides in the community, including a sexual predator under the supervision of the Department of Corrections, shall report in person at a driver license office of the Department of Highway Safety and Motor Vehicles and shall present proof of registration unless a driver license or an identification card that complies with the requirements of s. 322.141(3) was previously secured or updated under s. 944.607. At the driver license office the sexual predator shall:

1. If otherwise qualified, secure a Florida driver license, renew a Florida driver license, or secure an identification card. The sexual predator shall identify himself or herself as a sexual predator who is required to comply with this section, provide his or her place of permanent, temporary, or transient residence, including a rural route address and a post office box, and submit to the taking of a photograph for use in issuing a driver license, a renewed license, or an identification card, and for use by the department in maintaining current records of sexual predators. A post office box may not be provided in lieu of a physical residential address. If the sexual predator's place of residence is a motor vehicle, trailer, mobile home, or manufactured home, as those terms are defined in chapter 320, the sexual predator shall also provide to the Department of Highway Safety and Motor Vehicles the vehicle identification number (VIN); the license tag number; the registration number; and a description, including color scheme, of the motor vehicle, trailer, mobile home, or manufactured home. If a sexual predator's place of residence is a vessel, live-aboard vessel, or houseboat, as those terms are defined in chapter 327, the sexual predator shall also provide to the Department of Highway Safety and Motor Vehicles the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number of the vessel, live-aboard vessel, or houseboat; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat.

2. Pay the costs assessed by the Department of Highway Safety and Motor Vehicles for issuing or renewing a driver license or an identification card as required by this section. The driver license or identification card issued to the sexual predator must comply with s. 322.141(3).

3. Provide, upon request, any additional information necessary to confirm the identity of the sexual predator, including a set of fingerprints.

(g)1. a. Each time a sexual predator's driver license or identification card is subject to renewal, and, without regard to the status of the sexual predator's driver license or identification card, within 48 hours after any change of the sexual predator's residence or change in the sexual predator's name by reason of marriage or other legal process, the sexual predator shall report in person to a driver license office and is subject to the requirements specified in paragraph (f). The Department of Highway Safety and Motor Vehicles shall forward to the department and to the Department of Corrections all photographs and information provided by sexual predators. Notwithstanding the restrictions set forth in s. 322.142, the Department of Highway Safety and Motor Vehicles may release a reproduction of a color-photograph or digital-image license to the Department of Law Enforcement for purposes of public notification of sexual predators as provided in this section. A sexual predator who is unable to secure or update a driver license or an identification card with the Department of Highway Safety and Motor Vehicles as provided in

paragraph (f) and this paragraph shall report any change in the sexual predator's permanent, temporary, or transient residence or change in the sexual predator's name by reason of marriage or other legal process within 48 hours after the change in person to the sheriff's office in the county where the sexual predator resides or is located. The reporting requirements under this sub-subparagraph do not negate the requirement for a sexual predator to obtain a Florida driver license or identification card as required by this section. This sub-subparagraph does not apply to an in-state travel residence.

b. A sexual predator shall report an in-state travel residence within 48 hours after establishing the residence. The report shall be made through the department's online system; in person at the sheriff's office in the county in which the sexual predator is located; in person at the Department of Corrections if the sexual predator is in the custody or control of, or under the supervision of, the Department of Corrections; or in person at the Department of Juvenile Justice if the sexual predator is in the custody or control of, or under the supervision of, the Department of Juvenile Justice.

2. a. A sexual predator who vacates a permanent, temporary, or transient residence and fails to establish or maintain another permanent, temporary, or transient residence shall, within 48 hours after vacating the permanent, temporary, or transient residence, report in person to the sheriff's office of the county in which he or she is located. The sexual predator shall specify the date upon which he or she intends to or did vacate such residence. The sexual predator shall provide or update all of the registration information required under paragraph (a). The sexual predator shall provide an address for the residence or other place where he or she is or will be located during the time in which he or she fails to establish or maintain a permanent or temporary residence.

b. A sexual predator shall report in person at the sheriff's office in the county in which he or she is located within 48 hours after establishing a transient residence and thereafter must report in person every 30 days to the sheriff's office in the county in which he or she is located while maintaining a transient residence. The sexual predator must provide the addresses and locations where he or she maintains a transient residence. Each sheriff's office shall report transient residence information in a manner prescribed by the department and provide notice to transient registrants to report transient residence information as required in this sub-subparagraph. Reporting to the sheriff's office as required by this sub-subparagraph does not exempt registrants from any reregistration requirement. The sheriff may coordinate and enter into agreements with police departments and other governmental entities to facilitate additional reporting sites for transient residence registration required in this sub-subparagraph. The sheriff's office shall electronically submit to and update with the department all such information within 2 business days after the sexual predator provides it to the sheriff's office.

3. A sexual predator who remains at a permanent, temporary, or transient residence after reporting his or her intent to vacate such residence shall, within 48 hours after the date upon which the sexual predator indicated he or she would or did vacate such residence, report in person to the sheriff's office to which he or she reported pursuant to subparagraph 2. for the purpose of reporting his or her address at such residence. When the sheriff receives the report, the sheriff shall promptly convey the information to the department. A sexual predator who makes a report as required under subparagraph 2. but fails to make a report as required under this subparagraph commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

4. The failure of a sexual predator who maintains a transient residence to report in person to the sheriff's office every 30 days as required by sub-subparagraph 2.b. is punishable as provided in subsection (10).

5. a. A sexual predator shall register all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, with the department through the department's online system or in person at the sheriff's office within 48 hours after using such electronic mail addresses or Internet identifiers. If the sexual

predator is in the custody or control, or under the supervision, of the Department of Corrections, he or she must report all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, to the Department of Corrections before using such electronic mail addresses or Internet identifiers. If the sexual predator is in the custody or control, or under the supervision, of the Department of Juvenile Justice, he or she must report all electronic mail addresses and Internet identifiers, and each Internet identifier's corresponding website homepage or application software name, to the Department of Juvenile Justice before using such electronic mail addresses or Internet identifiers.

b. A sexual predator shall register all changes to home telephone numbers and cellular telephone numbers, including added and deleted numbers, all changes to employment information, including the creation of a new business if self-employed, and all changes in status related to enrollment, volunteering, or employment at institutions of higher education, through the department's online system; in person at the sheriff's office; in person at the Department of Corrections if the sexual predator is in the custody or control, or under the supervision, of the Department of Corrections; or in person at the Department of Juvenile Justice if the sexual predator is in the custody or control, or under the supervision, of the Department of Juvenile Justice. All changes required to be reported in this sub-subparagraph shall be reported within 48 hours after the change.

c. The department shall establish an online system through which sexual predators may securely access, submit, and update all changes in status to in-state travel residences; all vehicles owned; electronic mail addresses; Internet identifiers and each Internet identifier's corresponding website homepage or application software name; home telephone numbers and cellular telephone numbers; employment information; and institution of higher education information.

(h) The department shall notify the sheriff and the state attorney of the county and, if applicable, the police chief of the municipality, where the sexual predator maintains a residence.

(i) A sexual predator who intends to establish a permanent, temporary, or transient residence in another state or jurisdiction other than the State of Florida shall report in person to the sheriff of the county of current residence at least 48 hours before the date he or she intends to leave this state to establish residence in another state or jurisdiction or at least 21 days before the date he or she intends to travel outside of the United States. Any travel that is not known by the sexual predator 48 hours before he or she intends to establish a residence in another state or jurisdiction, or 21 days before the departure date for travel outside of the United States, must be reported to the sheriff's office as soon as possible before departure. The sexual predator shall provide to the sheriff the address, municipality, county, state, and country of intended residence. For international travel, the sexual predator shall also provide travel information, including, but not limited to, expected departure and return dates, flight number, airport of departure, cruise port of departure, or any other means of intended travel. The sheriff shall promptly provide to the department the information received from the sexual predator. The department shall notify the statewide law enforcement agency, or a comparable agency, in the intended state, jurisdiction, or country of residence or the intended country of travel of the sexual predator's intended residence or intended travel. The failure of a sexual predator to provide his or her intended place of residence or intended travel is punishable as provided in subsection (10).

(j) A sexual predator who indicates his or her intent to establish a permanent, temporary, or transient residence in another state, a jurisdiction other than the State of Florida, or intent to travel to another country, and later decides to remain in this state shall, within 48 hours after the date upon which the sexual predator indicated he or she would leave this state, report in person to the sheriff's office to which the sexual predator reported the intended change of residence or intended international travel, and report his or her intent to remain in this state. If the sheriff is notified by the sexual predator that he or she intends to remain in this state, the sheriff shall promptly report this information to the department. A sexual predator who reports his or her intent to establish a permanent, temporary, or transient residence in another state, a jurisdiction other than the State of Florida, or intent to travel to another country, but who remains in this state without reporting to the sheriff in the manner required by this paragraph, commits a felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(k) 1. The department is responsible for the online maintenance of current information regarding each registered sexual predator. The department shall maintain hotline access for state, local, and federal law enforcement agencies to obtain instantaneous locator file and offender characteristics information on all released registered sexual predators for purposes of monitoring, tracking, and prosecution. The photograph, palm prints, and fingerprints do not have to be stored in a computerized format.

2. The department's sexual predator registration list, containing the information described in subparagraph (a)1., is a public record, unless otherwise made exempt or confidential and exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution. The department may disseminate this public information by any means deemed appropriate, including operating a toll-free telephone number for this purpose. When the department provides information regarding a registered sexual predator to the public, department personnel shall advise the person making the inquiry that positive identification of a person believed to be a sexual predator cannot be established unless a fingerprint comparison is made, and that it is illegal to use public information regarding a registered sexual predator to facilitate the commission of a crime.

3. The department shall adopt guidelines as necessary regarding the registration of sexual predators and the dissemination of information regarding sexual predators as required by this section.

(l) A sexual predator shall maintain registration with the department for the duration of his or her life, unless the sexual predator has received a full pardon or has had a conviction set aside in a postconviction proceeding for any offense that met the criteria for the sexual predator designation.

(7) Community and public notification.--

(a) Law enforcement agencies must inform members of the community and the public of a sexual predator's presence. Upon notification of the presence of a sexual predator, the sheriff of the county or the chief of police of the municipality where the sexual predator establishes or maintains a permanent or temporary residence shall notify members of the community and the public of the presence of the sexual predator in a manner deemed appropriate by the sheriff or the chief of police. Within 48 hours after receiving notification of the presence of a sexual predator, the sheriff of the county or the chief of police of the municipality where the sexual predator temporarily or permanently resides shall notify each licensed child care facility, elementary school, middle school, and high school within a 1-mile radius of the temporary or permanent residence of the sexual predator of the presence of the sexual predator. Information provided to members of the community and the public regarding a sexual predator must include:

1. The name of the sexual predator;
2. A description of the sexual predator, including a photograph;
3. The sexual predator's current permanent, temporary, and transient addresses, and descriptions of registered locations that have no specific street address, including the name of the county or municipality if known;
4. The circumstances of the sexual predator's offense or offenses; and

5. Whether the victim of the sexual predator's offense or offenses was, at the time of the offense, a minor or an adult.

This paragraph does not authorize the release of the name of any victim of the sexual predator.

(b) The sheriff or the police chief may coordinate the community and public notification efforts with the department. Statewide notification to the public is authorized, as deemed appropriate by local law enforcement personnel and the department.

(c) The department shall notify the public of all designated sexual predators through the Internet. The Internet notice shall include the information required by paragraph (a).

(d) The department shall adopt a protocol to assist law enforcement agencies in their efforts to notify the community and the public of the presence of sexual predators.

(8) Verification.--The department and the Department of Corrections shall implement a system for verifying the addresses of sexual predators. The system must be consistent with the federal Adam Walsh Child Protection and Safety Act of 2006¹ and any other federal standards applicable to such verification or required to be met as a condition for the receipt of federal funds by the state. The Department of Corrections shall verify the addresses of sexual predators who are not incarcerated but who reside in the community under the supervision of the Department of Corrections and shall report to the department any failure by a sexual predator to comply with registration requirements. County and local law enforcement agencies, in conjunction with the department, shall verify the addresses of sexual predators who are not under the care, custody, control, or supervision of the Department of Corrections at least four times per calendar year, and may verify the addresses of sexual predators who are under the care, custody, control, or supervision of the Department of Corrections. Local law enforcement agencies shall report to the department any failure by a sexual predator to comply with registration requirements.

(a) A sexual predator shall report in person each year during the month of the sexual predator's birthday and during every third month thereafter to the sheriff's office in the county in which he or she resides or is otherwise located to reregister. The sheriff's office may determine the appropriate times and days for reporting by the sexual predator, which must be consistent with the reporting requirements of this paragraph. Reregistration must include any changes to the following information:

1. Name; social security number; age; race; sex; date of birth; height; weight; tattoos or other identifying marks; hair and eye color; address of any permanent residence and address of any current temporary residence, within this state or out of state, including a rural route address and a post office box; if he or she has no permanent or temporary address, any transient residence within this state including the address, location or description of the transient residences, and dates of any current or known future temporary residence within this state or out of state; all electronic mail addresses; all Internet identifiers and each Internet identifier's corresponding website homepage or application software name; all home telephone numbers and cellular telephone numbers; employment information, including occupation, business name, employment address, and telephone number; the make, model, color, vehicle identification number (VIN), and license tag number of all vehicles owned; fingerprints; palm prints; and photograph. A post office box may not be provided in lieu of a physical residential address. The sexual predator shall also produce his or her passport, if he or she has a passport, and, if he or she is an alien, shall produce or provide information about documents establishing his or her immigration status. The sexual predator shall also provide information about any professional licenses he or she has.

2. If the sexual predator is enrolled or employed, whether for compensation or as a volunteer, at an institution of higher education in this state, the sexual predator shall also provide to the department the name, address, and county of each institution, including each campus attended, and the sexual predator's enrollment, volunteer, or employment status.

3. If the sexual predator's place of residence is a motor vehicle, trailer, mobile home, or manufactured home, as those terms are defined in chapter 320, the sexual predator shall also provide the vehicle identification number (VIN); the license tag number; the registration number; and a description, including color scheme, of the motor vehicle, trailer, mobile home, or manufactured home. If the sexual predator's place of residence is a vessel, live-aboard vessel, or houseboat, as those terms are defined in chapter 327, the sexual predator shall also provide the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number of the vessel, live-aboard vessel, or houseboat; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat.

(b) The sheriff's office shall electronically submit to and update with the department, in a manner prescribed by the department, all such information within 2 business days after the sexual predator provides it to the sheriff's office.

(9) Immunity.-- The department, the Department of Highway Safety and Motor Vehicles, the Department of Corrections, the Department of Juvenile Justice, any law enforcement agency in this state, and the personnel of those departments; an elected or appointed official, public employee, or school administrator; or an employee, agency, or any individual or entity acting at the request or upon the direction of any law enforcement agency is immune from civil liability for damages for good faith compliance with the requirements of this section or for the release of information under this section, and shall be presumed to have acted in good faith in compiling, recording, reporting, or releasing the information. The presumption of good faith is not overcome if a technical or clerical error is made by the department, the Department of Highway Safety and Motor Vehicles, the Department of Corrections, the Department of Juvenile Justice, the personnel of those departments, or any individual or entity acting at the request or upon the direction of any of those departments in compiling or providing information, or if information is incomplete or incorrect because a sexual predator fails to report or falsely reports his or her current place of permanent or temporary residence.

(10) Penalties.--

(a) Except as otherwise specifically provided, a sexual predator who fails to register; who fails, after registration, to maintain, acquire, or renew a driver license or an identification card; who fails to provide required location information or change-of-name information; who fails to provide electronic mail addresses, Internet identifiers, and each Internet identifier's corresponding website homepage or application software name; who fails to provide all home telephone numbers and cellular telephone numbers; who fails to report any changes to employment information, including the addition of new employment, termination of existing employment, and changes to the occupation, business name, employment address, and telephone number of previously reported employment; who fails to report any changes in status at an institution of higher education; who fails to report any changes to vehicles owned, including the addition of new vehicles and changes to the make, model, color, vehicle identification number (VIN), and license tag numbers of previously reported vehicles; who fails to make a required report in connection with vacating a permanent residence; who fails to reregister as required; who fails to respond to any address verification correspondence from the department or from county or local law enforcement agencies within 3 weeks after the date of the correspondence; who knowingly provides false registration information by act or omission; or who otherwise fails, by act or omission, to comply with the requirements of this section commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084. Each instance of a failure to register or report changes to the required information specified in this paragraph constitutes a separate offense.

(b) A sexual predator who has been convicted of or found to have committed, or has pled *nolo contendere* or guilty to, regardless of adjudication, any violation, or attempted violation, of s. 787.01, s. 787.02, or s. 787.025(2)(c), where the victim is a minor; s. 794.011, excluding s. 794.011(10); s. 794.05; former s. 796.03; former s. 796.035; s. 800.04; s. 827.071; s. 847.0133; s. 847.0135(5); s. 847.0145; or s. 985.701(1); or a violation of a similar law of another jurisdiction when the victim of the offense was a minor, and who works, whether for compensation or as a volunteer, at any business, school, child care facility, park, playground, or other place where children regularly congregate, commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

(c) For a felony violation of this section, excluding paragraph (g), committed on or after July 1, 2018, if the court does not impose a prison sentence, the court shall impose a mandatory minimum term of community control, as defined in s. 948.001, as follows:

1. For a first offense, a mandatory minimum term of 6 months with electronic monitoring.
2. For a second offense, a mandatory minimum term of 1 year with electronic monitoring.
3. For a third or subsequent offense, a mandatory minimum term of 2 years with electronic monitoring.

(d) Any person who misuses public records information relating to a sexual predator, as defined in this section, or a sexual offender, as defined in s. 943.0435 or s. 944.607, to secure a payment from such a predator or offender; who knowingly distributes or publishes false information relating to such a predator or offender which the person misrepresents as being public records information; or who materially alters public records information with the intent to misrepresent the information, including documents, summaries of public records information provided by law enforcement agencies, or public records information displayed by law enforcement agencies on websites or provided through other means of communication, commits a misdemeanor of the first degree, punishable as provided in s. 775.082 or s. 775.083.

(e) A sexual predator who commits any act or omission in violation of this section may be prosecuted for the act or omission in the county in which the act or omission was committed, in the county of the last registered address of the sexual predator, in the county in which the conviction occurred for the offense or offenses that meet the criteria for designating a person as a sexual predator, in the county where the sexual predator was released from incarceration, or in the county of the intended address of the sexual predator as reported by the sexual predator prior to his or her release from incarceration. In addition, a sexual predator may be prosecuted for any such act or omission in the county in which he or she was designated a sexual predator.

(f) An arrest on charges of failure to register, the service of an information or a complaint for a violation of this section, or an arraignment on charges for a violation of this section constitutes actual notice of the duty to register when the predator has been provided and advised of his or her statutory obligation to register under subsection (6). A sexual predator's failure to immediately register as required by this section following such arrest, service, or arraignment constitutes grounds for a subsequent charge of failure to register. A sexual predator charged with the crime of failure to register who asserts, or intends to assert, a lack of notice of the duty to register as a defense to a charge of failure to register shall immediately register as required by this section. A sexual predator who is charged with a subsequent failure to register may not assert the defense of a lack of notice of the duty to register. Registration following such arrest, service, or arraignment is not a defense and does not relieve the sexual predator of criminal liability for the failure to register.

(g) Any person who has reason to believe that a sexual predator is not complying, or has not complied, with the requirements of this section and who, with the intent to assist the sexual predator in eluding a law enforcement agency that is seeking to find the sexual predator to question the sexual predator about, or to arrest the sexual predator for, his or her noncompliance with the requirements of this section:

1. Withholds information from, or does not notify, the law enforcement agency about the sexual predator's noncompliance with the requirements of this section, and, if known, the whereabouts of the sexual predator;
2. Harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the sexual predator;
3. Conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the sexual predator; or
4. Provides information to the law enforcement agency regarding the sexual predator which the person knows to be false information,

commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084. This paragraph does not apply if the sexual predator is incarcerated in or is in the custody of a state correctional facility, a contractor-operated correctional facility, a local jail, or a federal correctional facility.

Credits

Added by Laws 1993, c. 93-277, § 1, eff. Oct. 1, 1993. Amended by Laws 1995, c. 95-264, § 1, eff. Oct. 1, 1995; Laws 1995, c. 95-283, § 54, eff. June 15, 1995; Laws 1996, c. 96-388, § 61, eff. July 1, 1996; Laws 1997, c. 97-299, § 5, eff. Oct. 1, 1997; Laws 1998, c. 98-81, § 3, eff. Oct. 1, 1998; Laws 1998, c. 98-267, § 1, eff. July 1, 1998; Laws 2000, c. 2000-207, § 1, eff. July 1, 2000; Laws 2000, c. 2000-246, § 3, eff. Oct. 1, 2000; Laws 2000, c. 2000-349, § 113, eff. Sept. 1, 2000; Laws 2002, c. 2002-58, § 1, eff. July 1, 2002; Laws 2004, c. 2004-371, § 1, eff. July 1, 2004; Laws 2004, c. 2004-373, § 33, eff. July 1, 2004; Laws 2005, c. 2005-28, § 3, eff. Sept. 1, 2005; Laws 2005, c. 2005-67, § 5, eff. Jan. 1, 2006; Laws 2006, c. 2006-200, § 1, eff. July 1, 2006; Laws 2006, c. 2006-235, § 1, eff. July 1, 2006; Laws 2006, c. 2006-299, § 2, eff. July 1, 2006; Laws 2007, c. 2007-5, § 150, eff. July 3, 2007; Laws 2007, c. 2007-143, § 9, eff. Oct. 1, 2007; Laws 2007, c. 2007-207, § 3, eff. July 1, 2007; Laws 2007, c. 2007-209, § 1, eff. July 1, 2007; Laws 2008, c. 2008-172, § 16, eff. Oct. 1, 2008; Laws 2009, c. 2009-194, § 2, eff. July 1, 2009; Laws 2010, c. 2010-92, § 2, eff. May 26, 2010; Laws 2012, c. 2012-19, § 2, eff. Oct. 1, 2012; Laws 2012, c. 2012-97, § 3, eff. July 1, 2012; Laws 2013, c. 2013-116, § 59, eff. July 1, 2013; Laws 2014, c. 2014-5, § 2, eff. Oct. 1, 2014; Laws 2014, c. 2014-160, § 18, eff. Oct. 1, 2014; Laws 2015, c. 2015-2, § 92, eff. June 30, 2015; Laws 2016, c. 2016-24, §§ 9, 66, eff. Oct. 1, 2016; Laws 2016, c. 2016-104, § 1, eff. Oct. 1, 2016; Laws 2017, c. 2017-170, § 1, eff. June 26, 2017; Laws 2018, c. 2018-105, § 1, eff. July 1, 2018; Laws 2021, c. 2021-156, § 14, eff. June 22, 2021; Laws 2021, c. 2021-189, § 7, eff. July 1, 2021; Laws 2024, c. 2024-71, § 2, eff. July 1, 2024; Laws 2024, c. 2024-73, § 1, eff. Oct. 1, 2024; Laws 2024, c. 2024-84, § 10, eff. July 1, 2024; Laws 2025, c. 2025-134, § 1, eff. Oct. 1, 2025; Laws 2025, c. 2025-156, § 4, eff. Oct. 1, 2025.

Footnotes

1 42 U.S.C.A. § 16901 et seq.

West's F. S. A. § 775.21, FL ST § 775.21

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West's Florida Statutes Annotated

Title XLVI. Crimes (Chapters 775-899)

Chapter 775. General Penalties; Registration of Criminals (Refs & Annos)

West's F.S.A. § 775.215

775.215. Residency restriction for persons convicted of certain sex offenses

Effective: May 12, 2014

Currentness

(1) As used in this section, the term:

(a) “Child care facility” has the same meaning as provided in s. 402.302.

(b) “Park” means all public and private property specifically designated as being used for recreational purposes and where children regularly congregate.

(c) “Playground” means a designated independent area in the community or neighborhood that is designated solely for children and has one or more play structures.

(d) “School” has the same meaning as provided in s. 1003.01 and includes a private school as defined in s. 1002.01, a voluntary prekindergarten education program as described in s. 1002.53(3), a public school as described in s. 402.3025(1), the Florida School for the Deaf and the Blind, and the Florida Virtual School established under s. 1002.37 but does not include facilities dedicated exclusively to the education of adults.

(2)(a) A person who has been convicted of a violation of s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145, regardless of whether adjudication has been withheld, in which the victim of the offense was less than 16 years of age, may not reside within 1,000 feet of any school, child care facility, park, or playground. However, a person does not violate this subsection and may not be forced to relocate if he or she is living in a residence that meets the requirements of this subsection and a school, child care facility, park, or playground is subsequently established within 1,000 feet of his or her residence.

(b) A person who violates this subsection and whose conviction under s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145 was classified as a felony of the first degree or higher commits a felony of the third degree, punishable as provided in s. 775.082 or s. 775.083. A person who violates this subsection and whose conviction under s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145 was classified as a felony of the second or third degree commits a misdemeanor of the first degree, punishable as provided in s. 775.082 or s. 775.083.

(c) This subsection applies to any person convicted of a violation of s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145 for offenses that occur on or after October 1, 2004, excluding persons who have been removed from the requirement to register as a sexual offender or sexual predator pursuant to s. 943.04354.

(3)(a) A person who has been convicted of an offense in another jurisdiction that is similar to a violation of s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145, regardless of whether adjudication has been withheld, in which the victim of the offense was less than 16 years of age, may not reside within 1,000 feet of any school, child care facility, park, or playground. However, a person does not violate this subsection and may not be forced to relocate if he or she is living in a residence that meets the requirements of this subsection and a school, child care facility, park, or playground is subsequently established within 1,000 feet of his or her residence.

(b) A person who violates this subsection and whose conviction in another jurisdiction resulted in a penalty that is substantially similar to a felony of the first degree or higher commits a felony of the third degree, punishable as provided in s. 775.082 or s. 775.083. A person who violates this subsection and whose conviction in another jurisdiction resulted in a penalty that is substantially similar to a felony of the second or third degree commits a misdemeanor of the first degree, punishable as provided in s. 775.082 or s. 775.083.

(c) This subsection applies to any person convicted of an offense in another jurisdiction that is similar to a violation of s. 794.011, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145 if such offense occurred on or after May 26, 2010, excluding persons who have been removed from the requirement to register as a sexual offender or sexual predator pursuant to s. 943.04354.

Credits

Added by Laws 2004, c. 2004-55, § 2, eff. Oct. 1, 2004. Amended by Laws 2008, c. 2008-172, § 21, eff. Oct. 1, 2008. Renumbered from 794.065 and amended by Laws 2010, c. 2010-92, § 3, eff. May 26, 2010. Amended by Laws 2010, c. 2010-92, § 18, eff. May 26, 2010; Laws 2014, c. 2014-39, § 6, eff. May 12, 2014.

West's F. S. A. § 775.215, FL ST § 775.215

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West's Florida Statutes Annotated

Title XLVI. Crimes (Chapters 775-899)

Chapter 775. General Penalties; Registration of Criminals (Refs & Annos)

West's F.S.A. § 775.24

775.24. Duty of the court to uphold laws governing sexual predators and sexual offenders

Effective: October 1, 2025

Currentness

(1) The Legislature finds that, for the purpose of approving a plea agreement or for other reasons, certain courts enter orders that effectively limit or nullify requirements imposed upon sexual predators and sexual offenders pursuant to the laws of this state and prevent persons or entities from carrying out the duties imposed, or exercising the authority conferred, by such laws. The laws relating to sexual predators and sexual offenders are substantive law. Furthermore, the Congress of the United States has expressly encouraged every state to enact such laws, and has provided that, to the extent that a state's laws do not meet certain federal requirements, the state will lose significant federal funding provided to the state for law enforcement and public safety programs. Unless a court that enters such an order determines that a person or entity is not operating in accordance with the laws governing sexual predators or sexual offenders, or that such laws or any part of such laws are unconstitutional or unconstitutionally applied, the court unlawfully encroaches on the Legislature's exclusive power to make laws and places at risk significant public interests of the state.

(2) If a person meets the criteria in this chapter for designation as a sexual predator or meets the criteria in s. 943.0435, s. 944.606, s. 944.607, or any other law for classification as a sexual offender, the court may not enter an order, for the purpose of approving a plea agreement or for any other reason, which:

(a) Exempts a person who meets the criteria for designation as a sexual predator or classification as a sexual offender from such designation or classification, or exempts such person from the requirements for registration or community and public notification imposed upon sexual predators and sexual offenders;

(b) Restricts the compiling, reporting, or release of public records information that relates to sexual predators or sexual offenders; or

(c) Prevents any person or entity from performing its duties or operating within its statutorily conferred authority as such duty or authority relates to sexual predators or sexual offenders.

(3) If the court enters an order that affects an agency's performance of a duty imposed under the laws governing sexual predators or sexual offenders, or that limits the agency's exercise of authority conferred under such laws, the Legislature strongly encourages the affected agency to file a motion in the court that entered such order. The affected agency may, within 1 year after the receipt of any such order, move to modify or set aside the order or, if such order is in the nature of an injunction, move to dissolve the injunction. Grounds for granting any such motion include, but need not be limited to:

(a) The affected agency was not properly noticed.

(b) The court is not authorized to enjoin the operation of a statute that has been duly adjudged constitutional and operative unless the statute is illegally applied or unless the statute or the challenged part of it is unconstitutional on adjudicated grounds.

(c) Jurisdiction may not be conferred by consent of the parties.

(d) To the extent that the order is based upon actions the agency might take, the court's order is premature and, if and when such actions are taken, these actions may be challenged in appropriate proceedings to determine their enforceability.

(e) The injunction affects the public interest and would cause injury to the public.

(f) The order creates an unenforceable, perpetual injunction.

(g) The order seeks to restrict the agency in the performance of its duties outside the court's territorial jurisdiction.

Credits

Added by Laws 1998, c. 98-81, § 4, eff. July 1, 1998. Amended by Laws 2002, c. 2002-58, § 2, eff. July 1, 2002; Laws 2004, c. 2004-371, § 7, eff. July 1, 2004; Laws 2016, c. 2016-24, § 67, eff. Oct. 1, 2016; Laws 2016, c. 2016-104, § 28, eff. Oct. 1, 2016; Laws 2021, c. 2021-156, § 15, eff. June 22, 2021; Laws 2025, c. 2025-156, §§ 63, 83, 90, eff. Oct. 1, 2025.

West's F. S. A. § 775.24, FL ST § 775.24

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West's Florida Statutes Annotated

Title XLVI. Crimes (Chapters 775-899)

Chapter 775. General Penalties; Registration of Criminals (Refs & Annos)

West's F.S.A. § 775.26

775.26. Registration of career offenders and public notification; legislative findings and intent

Effective: July 1, 2002

Currentness

The Legislature finds that certain career offenders, by virtue of their histories of offenses, present a threat to the public and to communities. The Legislature finds that requiring these career offenders to register for the purpose of tracking these career offenders and that providing for notifying the public and a community of the presence of a career offender are important aids to law enforcement agencies, the public, and communities if a career offender engages again in criminal conduct. Registration is intended to aid law enforcement agencies in timely apprehending a career offender. Registration is not a punishment, but merely a status. Notification to the public and communities of the presence of a career offender aids the public and communities in avoiding being victimized by a career offender. The Legislature intends to require the registration of career offenders and to authorize law enforcement agencies to notify the public and communities of the presence of a career offender.

Credits

Added by Laws 2002, c. 2002-266, § 2, eff. July 1, 2002.

West's F. S. A. § 775.26, FL ST § 775.26

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions
Article 2. Sexual Offender Risk Review Board

Ga. Code Ann., T. 42, Ch. 1, Art. 2, Refs & Annos
Currentness

Ga. Code Ann., T. 42, Ch. 1, Art. 2, Refs & Annos, GA ST T. 42, Ch. 1, Art. 2, Refs & Annos

The statutes and Constitution are current through legislation passed at the 2025 Regular Session of the Georgia General Assembly. Some sections may be more current, see credits for details. The statutes are subject to changes by the Georgia Code Commission.

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions (Refs & Annos)
Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-12

§ 42-1-12. Registration of sex offenders

Effective: July 1, 2025

Currentness

(a) As used in this article, the term:

(1) “Address” means the street or route address of the sexual offender's residence. For purposes of this Code section, the term shall not mean a post office box.

(2) “Appropriate official” means:

(A) With respect to a sexual offender who is sentenced to probation without any sentence of incarceration in the state prison system or who is sentenced pursuant to Article 3 of Chapter 8 of this title, relating to first offenders, the Department of Community Supervision;

(B) With respect to a sexual offender who is sentenced to a period of incarceration in a prison under the jurisdiction of the Department of Corrections and who is subsequently released from prison or placed on probation, the commissioner of corrections or his or her designee;

(C) With respect to a sexual offender who is placed on parole, the chairperson of the State Board of Pardons and Paroles or his or her designee; and

(D) With respect to a sexual offender who is placed on probation through a private probation agency, the director of the private probation agency or his or her designee.

(3) “Area where minors congregate” shall include all public and private parks and recreation facilities, playgrounds, skating rinks, neighborhood centers, gymnasiums, school bus stops, public libraries, and public and community swimming pools.

(4) “Assessment criteria” means the tests that the board members use to determine the likelihood that a sexual offender will commit another criminal offense against a victim who is a minor or commit a dangerous sexual offense.

(5) “Board” means the Sexual Offender Risk Review Board.

(6) “Child care facility” means all public and private pre-kindergarten facilities, child care learning centers, preschool facilities, and long-term care facilities for children.

(6.1) “Child care learning center” shall have the same meaning as set forth in paragraph (3) of Code Section 20-1A-2.

(7) “Church” means a place of public religious worship.

(8) “Conviction” includes a final judgment of conviction entered upon a verdict or finding of guilty of a crime, a plea of guilty, or a plea of nolo contendere. A defendant who is discharged without adjudication of guilt and who is not considered to have a criminal conviction pursuant to Article 3 of Chapter 8 of this title, relating to first offenders, shall be subject to the registration requirements of this Code section for the period of time prior to the defendant's discharge after completion of his or her sentence or upon the defendant being adjudicated guilty. Unless otherwise required by federal law, a defendant who is discharged without adjudication of guilt and who is not considered to have a criminal conviction pursuant to Article 3 of Chapter 8 of this title, relating to first offenders, shall not be subject to the registration requirements of this Code section upon the defendant's discharge.

(8.1) “Criminal history record information” shall have the same meaning as set forth in Code Section 35-3-30.

(9)(A) “Criminal offense against a victim who is a minor” with respect to convictions occurring on or before June 30, 2001, means any criminal offense under Title 16 or any offense under federal law or the laws of another state or territory of the United States which consists of:

(i) Kidnapping of a minor, except by a parent;

(ii) False imprisonment of a minor, except by a parent;

(iii) Criminal sexual conduct toward a minor;

(iv) Solicitation of a minor to engage in sexual conduct;

(v) Use of a minor in a sexual performance;

(vi) Solicitation of a minor to practice prostitution; or

(vii) Any conviction resulting from an underlying sexual offense against a victim who is a minor.

(B) “Criminal offense against a victim who is a minor” with respect to convictions occurring after June 30, 2001, means any criminal offense under Title 16 or any offense under federal law or the laws of another state or territory of the United States which consists of:

- (i) Kidnapping of a minor, except by a parent;
- (ii) False imprisonment of a minor, except by a parent;
- (iii) Criminal sexual conduct toward a minor;
- (iv) Solicitation of a minor to engage in sexual conduct;
- (v) Use of a minor in a sexual performance;
- (vi) Solicitation of a minor to practice prostitution;
- (vii) Use of a minor to engage in any sexually explicit conduct to produce any visual medium depicting such conduct;
- (viii) Creating, publishing, selling, distributing, or possessing any material depicting a minor or a portion of a minor's body engaged in sexually explicit conduct;
- (ix) Transmitting, making, selling, buying, or disseminating by means of a computer any descriptive or identifying information regarding a child for the purpose of offering or soliciting sexual conduct of or with a child or the visual depicting of such conduct;
- (x) Conspiracy to transport, ship, receive, or distribute visual depictions of minors engaged in sexually explicit conduct;
or
- (xi) Any conduct which, by its nature, is a sexual offense against a victim who is a minor.

(C) For purposes of this paragraph, a conviction for a misdemeanor shall not be considered a criminal offense against a victim who is a minor, and conduct which is adjudicated in juvenile court shall not be considered a criminal offense against a victim who is a minor.

(10)(A) “Dangerous sexual offense” with respect to convictions occurring on or before June 30, 2006, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this paragraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

- (i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;

(ii) Rape in violation of Code Section 16-6-1;

(iii) Aggravated sodomy in violation of Code Section 16-6-2;

(iv) Aggravated child molestation in violation of Code Section 16-6-4; or

(v) Aggravated sexual battery in violation of Code Section 16-6-22.2.

(B) “Dangerous sexual offense” with respect to convictions occurring between July 1, 2006, and June 30, 2015, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this paragraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

(i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;

(ii) Kidnapping in violation of Code Section 16-5-40 which involves a victim who is less than 14 years of age, except by a parent;

(iii) False imprisonment in violation of Code Section 16-5-41 which involves a victim who is less than 14 years of age, except by a parent;

(iv) Rape in violation of Code Section 16-6-1;

(v) Sodomy in violation of Code Section 16-6-2;

(vi) Aggravated sodomy in violation of Code Section 16-6-2;

(vii) Statutory rape in violation of Code Section 16-6-3, if the individual convicted of the offense is 21 years of age or older;

(viii) Child molestation in violation of Code Section 16-6-4;

(ix) Aggravated child molestation in violation of Code Section 16-6-4, unless the person was convicted of a misdemeanor offense;

(x) Enticing a child for indecent purposes in violation of Code Section 16-6-5;

(xi) Sexual assault against persons in custody in violation of Code Section 16-6-5.1;

- (xii) Incest in violation of Code Section 16-6-22;
- (xiii) A second conviction for sexual battery in violation of Code Section 16-6-22.1;
- (xiv) Aggravated sexual battery in violation of Code Section 16-6-22.2;
- (xv) Sexual exploitation of children in violation of Code Section 16-12-100;
- (xvi) Electronically furnishing obscene material to minors in violation of Code Section 16-12-100.1;
- (xvii) Computer pornography and child exploitation in violation of Code Section 16-12-100.2;
- (xviii) Obscene telephone contact in violation of Code Section 16-12-100.3; or
- (xix) Any conduct which, by its nature, is a sexual offense against a victim who is a minor or an attempt to commit a sexual offense against a victim who is a minor.

(B.1) “Dangerous sexual offense” with respect to convictions occurring between July 1, 2015, and June 30, 2017, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this subparagraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

- (i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;
- (ii) Kidnapping in violation of Code Section 16-5-40 which involves a victim who is less than 14 years of age, except by a parent;
- (iii) Trafficking a person for sexual servitude in violation of Code Section 16-5-46;
- (iv) Rape in violation of Code Section 16-6-1;
- (v) Sodomy in violation of Code Section 16-6-2;
- (vi) Aggravated sodomy in violation of Code Section 16-6-2;
- (vii) Statutory rape in violation of Code Section 16-6-3, if the individual convicted of the offense is 21 years of age or older;

- (viii) Child molestation in violation of Code Section 16-6-4;
- (ix) Aggravated child molestation in violation of Code Section 16-6-4, unless the person was convicted of a misdemeanor offense;
- (x) Enticing a child for indecent purposes in violation of Code Section 16-6-5;
- (xi) Sexual assault against persons in custody in violation of Code Section 16-6-5.1;
- (xii) Incest in violation of Code Section 16-6-22;
- (xiii) A second conviction for sexual battery in violation of Code Section 16-6-22.1;
- (xiv) Aggravated sexual battery in violation of Code Section 16-6-22.2;
- (xv) Sexual exploitation of children in violation of Code Section 16-12-100;
- (xvi) Electronically furnishing obscene material to minors in violation of Code Section 16-12-100.1;
- (xvii) Computer pornography and child exploitation in violation of Code Section 16-12-100.2;
- (xviii) Obscene telephone contact in violation of Code Section 16-12-100.3; or
- (xix) Any conduct which, by its nature, is a sexual offense against a victim who is a minor or an attempt to commit a sexual offense against a victim who is a minor.

(B.2) “Dangerous sexual offense” with respect to convictions occurring between July 1, 2017, and June 30, 2019, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this subparagraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

- (i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;
- (ii) Kidnapping in violation of Code Section 16-5-40 which involves a victim who is less than 14 years of age, except by a parent;
- (iii) Trafficking an individual for sexual servitude in violation of Code Section 16-5-46;

- (iv) Rape in violation of Code Section 16-6-1;
- (v) Sodomy in violation of Code Section 16-6-2;
- (vi) Aggravated sodomy in violation of Code Section 16-6-2;
- (vii) Statutory rape in violation of Code Section 16-6-3, if the individual convicted of the offense is 21 years of age or older;
- (viii) Child molestation in violation of Code Section 16-6-4;
- (ix) Aggravated child molestation in violation of Code Section 16-6-4, unless the person was convicted of a misdemeanor offense;
- (x) Enticing a child for indecent purposes in violation of Code Section 16-6-5;
- (xi) Sexual assault against persons in custody in violation of Code Section 16-6-5.1;
- (xii) Incest in violation of Code Section 16-6-22;
- (xiii) A second conviction for sexual battery in violation of Code Section 16-6-22.1;
- (xiv) Aggravated sexual battery in violation of Code Section 16-6-22.2;
- (xv) Sexual exploitation of children in violation of Code Section 16-12-100;
- (xvi) Electronically furnishing obscene material to minors in violation of Code Section 16-12-100.1;
- (xvii) Computer pornography and child exploitation in violation of Code Section 16-12-100.2;
- (xviii) Obscene telephone contact in violation of Code Section 16-12-100.3; or
- (xix) Any conduct which, by its nature, is a sexual offense against a victim who is a minor or an attempt to commit a sexual offense against a victim who is a minor.

(B.3) “Dangerous sexual offense” with respect to convictions occurring between July 1, 2019, and June 30, 2021, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this subparagraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

- (i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;
- (ii) Kidnapping in violation of Code Section 16-5-40 which involves a victim who is less than 14 years of age, except by a parent;
- (iii) Trafficking an individual for sexual servitude in violation of Code Section 16-5-46;
- (iv) Rape in violation of Code Section 16-6-1;
- (v) Sodomy in violation of Code Section 16-6-2;
- (vi) Aggravated sodomy in violation of Code Section 16-6-2;
- (vii) Statutory rape in violation of Code Section 16-6-3, if the individual convicted of the offense is 21 years of age or older;
- (viii) Child molestation in violation of Code Section 16-6-4;
- (ix) Aggravated child molestation in violation of Code Section 16-6-4, unless the person was convicted of a misdemeanor offense;
- (x) Enticing a child for indecent purposes in violation of Code Section 16-6-5;
- (xi) Improper sexual contact by employee or agent in the first or second degree in violation of Code Section 16-6-5.1, unless the punishment imposed was not subject to Code Section 17-10-6.2;
- (xii) Incest in violation of Code Section 16-6-22;
- (xiii) A second or subsequent conviction for sexual battery in violation of Code Section 16-6-22.1;
- (xiv) Aggravated sexual battery in violation of Code Section 16-6-22.2;
- (xv) Sexual exploitation of children in violation of Code Section 16-12-100;

(xvi) Electronically furnishing obscene material to minors in violation of Code Section 16-12-100.1;

(xvii) Computer pornography and child exploitation in violation of Code Section 16-12-100.2;

(xviii) A second or subsequent conviction for obscene telephone contact in violation of Code Section 16-12-100.3; or

(xix) Any conduct which, by its nature, is a sexual offense against a victim who is a minor or an attempt to commit a sexual offense against a victim who is a minor.

(B.4) “Dangerous sexual offense” with respect to convictions occurring after June 30, 2021, means any criminal offense, or the attempt to commit any criminal offense, under Title 16 as specified in this subparagraph or any offense under federal law or the laws of another state or territory of the United States which consists of the same or similar elements of the following offenses:

(i) Aggravated assault with the intent to rape in violation of Code Section 16-5-21;

(ii) Kidnapping in violation of Code Section 16-5-40 which involves a victim who is less than 14 years of age, except by a parent;

(iii) Trafficking an individual for sexual servitude in violation of Code Section 16-5-46;

(iv) Rape in violation of Code Section 16-6-1;

(v) Sodomy in violation of Code Section 16-6-2;

(vi) Aggravated sodomy in violation of Code Section 16-6-2;

(vii) Statutory rape in violation of Code Section 16-6-3, if the individual convicted of the offense is 21 years of age or older;

(viii) Child molestation in violation of Code Section 16-6-4;

(ix) Aggravated child molestation in violation of Code Section 16-6-4;

(x) Enticing a child for indecent purposes in violation of Code Section 16-6-5;

(xi) Improper sexual contact by employee or agent in the first or second degree or improper sexual contact by person in a position of trust in the first or second degree in violation of Code Section 16-6-5.1, unless the punishment imposed was not subject to Code Section 17-10-6.2;

(xii) Incest in violation of Code Section 16-6-22;

(xiii) A second or subsequent conviction for sexual battery in violation of Code Section 16-6-22.1;

(xiv) Aggravated sexual battery in violation of Code Section 16-6-22.2;

(xv) Sexual exploitation of children in violation of Code Section 16-12-100;

(xvi) Computer pornography and child exploitation in violation of Code Section 16-12-100.2;

(xvii) A second or subsequent conviction for obscene telephone contact in violation of Code Section 16-12-100.3; or

(xviii) Any conduct which, by its nature, is a felony sexual offense against a victim who is a minor or an attempt to commit a felony sexual offense against a victim who is a minor.

(C) For purposes of this paragraph, a conviction for a misdemeanor shall not be considered a dangerous sexual offense, and conduct which is adjudicated in juvenile court shall not be considered a dangerous sexual offense.

(11) “Institution of higher education” means a private or public community college, state university, state college, or independent postsecondary institution.

(12) “Level I risk assessment classification” means the sexual offender is a low sex offense risk and low recidivism risk for future sexual offenses.

(13) “Level II risk assessment classification” means the sexual offender is an intermediate sex offense risk and intermediate recidivism risk for future sexual offenses and includes all sexual offenders who do not meet the criteria for classification either as a sexually dangerous predator or for Level I risk assessment.

(14) “Minor” means any individual under the age of 18 years and any individual that the sexual offender believed at the time of the offense was under the age of 18 years if such individual was the victim of an offense.

(15) “Public and community swimming pools” includes municipal, school, hotel, motel, or any pool to which access is granted in exchange for payment of a daily fee. The term includes apartment complex pools, country club pools, or subdivision pools which are open only to residents of the subdivision and their guests. This term does not include a private pool or hot tub serving a single-family dwelling and used only by the residents of the dwelling and their guests.

(16) “Required registration information” means:

(A) Name; social security number; age; race; sex; date of birth; height; weight; hair color; eye color; fingerprints; and photograph;

(B) Address, within this state or out of state, and, if applicable in addition to the address, a rural route address and a post office box;

(C) If the place of residence is a motor vehicle or trailer, the vehicle identification number, the license tag number, and a description, including color scheme, of the motor vehicle or trailer;

(D) If the place of residence is a mobile home, the mobile home location permit number; the name and address of the owner of the home; a description, including the color scheme of the mobile home; and, if applicable, a description of where the mobile home is located on the property;

(E) If the place of residence is a manufactured home, the name and address of the owner of the home; a description, including the color scheme of the manufactured home; and, if applicable, a description of where the manufactured home is located on the property;

(F) If the place of residence is a vessel, live-aboard vessel, or houseboat, the hull identification number; the manufacturer's serial number; the name of the vessel, live-aboard vessel, or houseboat; the registration number; and a description, including color scheme, of the vessel, live-aboard vessel, or houseboat;

(F.1) If the place of residence is the status of homelessness, information as provided under paragraph (2.1) of subsection (f) of this Code section;

(G) Date of employment, place of any employment, and address of employer;

(H) Place of vocation and address of the place of vocation;

(I) Vehicle make, model, color, and license tag number;

(J) If enrolled, employed, or carrying on a vocation at an institution of higher education in this state, the name, address, and county of each institution, including each campus attended, and enrollment or employment status;

(K) The name of the crime or crimes for which the sexual offender is registering and the date released from prison or placed on probation, parole, or supervised release; and

(L) The landline and mobile telephone numbers of the sexual offender.

(17) “Risk assessment classification” means the notification level into which a sexual offender is placed based on the board's assessment.

(18) “School” means all public and private kindergarten, elementary, and secondary schools.

(19) “School bus stop” means a school bus stop as designated by local school boards of education or by a private school.

(20) “Sexual offender” means any individual:

(A) Who has been convicted of a criminal offense against a victim who is a minor or any dangerous sexual offense;

(B) Who has been convicted under the laws of another state or territory, under the laws of the United States, under the Uniform Code of Military Justice, or in a tribal court of a criminal offense against a victim who is a minor or a dangerous sexual offense; or

(C) Who is required to register pursuant to subsection (e) of this Code section.

(21) “Sexually dangerous predator” means a sexual offender:

(A) Who was designated as a sexually violent predator between July 1, 1996, and June 30, 2006; or

(B) Who is determined by the Sexual Offender Risk Review Board to be at risk of perpetrating any future dangerous sexual offense.

(22) “Vocation” means any full-time, part-time, or volunteer employment with or without compensation exceeding 14 consecutive days or for an aggregate period of time exceeding 30 days during any calendar year.

(b) Before a sexual offender who is required to register under this Code section is released from prison or placed on parole, supervised release, or probation, the appropriate official shall:

(1) Inform the sexual offender of the obligation to register, the amount of associated fees, and how to maintain registration;

(2) Obtain the information necessary for the required registration information;

(3) Inform the sexual offender that, if the sexual offender changes any of the required registration information, other than residence address, the sexual offender shall give the new information to the sheriff of the county with whom the sexual

offender is registered within 72 hours of the change of information; if the information is the sexual offender's new residence address, the sexual offender shall give the information to the sheriff of the county with whom the sexual offender last registered within 72 hours prior to moving and to the sheriff of the county to which the sexual offender is moving within 72 hours prior to moving;

(4) Inform the sexual offender that he or she shall also register in any state where he or she is employed, carries on a vocation, or is a student;

(5) Inform the sexual offender that, if he or she changes residence to another state, the sexual offender shall register the new address with the sheriff of the county with whom the sexual offender last registered and that the sexual offender shall also register with a designated law enforcement agency in the new state within 72 hours after establishing residence in the new state;

(6) Obtain fingerprints and a current photograph of the sexual offender;

(7) Require the sexual offender to read and sign a form stating that the obligations of the sexual offender have been explained;

(8) Obtain and forward any information obtained from the clerk of court pursuant to Code Section 42-5-50 to the sheriff's office of the county in which the sexual offender will reside; and

(9) If required by a court or by Code Section 42-1-13.1, place any required location tracking device upon a sexual offender and explain its operation and cost.

(c) The Department of Corrections shall:

(1) Forward to the Georgia Bureau of Investigation a copy of the form stating that the obligations of the sexual offender have been explained;

(2) Forward any required registration information to the Georgia Bureau of Investigation;

(3) Forward the sexual offender's fingerprints and photograph to the sheriff's office of the county where the sexual offender is going to reside;

(4) Inform the board and the prosecuting attorney for the jurisdiction in which a sexual offender was convicted of the impending release of a sexual offender at least eight months prior to such release so as to facilitate compliance with Code Section 42-1-14; and

(5) Keep all records of sexual offenders in a secure facility in accordance with Code Sections 15-1-10, 15-6-62, and 15-6-62.1 until official proof of death of a registered sexual offender; thereafter, the records shall be destroyed.

(c.1) The Department of Community Supervision shall keep all records of sexual offenders in a secure facility in accordance with Code Sections 15-1-10, 15-6-62, and 15-6-62.1 until official proof of death of a registered sexual offender; thereafter, the records shall be destroyed.

(d) No sexual offender shall be released from prison or placed on parole, supervised release, or probation until:

(1) The appropriate official has provided the Georgia Bureau of Investigation and the sheriff's office in the county where the sexual offender will be residing with the sexual offender's required registration information and risk assessment classification level; and

(2) The sexual offender's name has been added to the list of sexual offenders maintained by the Georgia Bureau of Investigation and the sheriff's office as required by this Code section.

(e) Registration pursuant to this Code section shall be required by any individual who:

(1) Is convicted on or after July 1, 1996, of a criminal offense against a victim who is a minor;

(2) Is convicted on or after July 1, 1996, of a dangerous sexual offense;

(3) Has previously been convicted of a criminal offense against a victim who is a minor and may be released from prison or placed on parole, supervised release, or probation on or after July 1, 1996;

(4) Has previously been convicted of a sexually violent offense or dangerous sexual offense and may be released from prison or placed on parole, supervised release, or probation on or after July 1, 1996;

(5) Is a resident of Georgia who intends to reside in this state and who is convicted under the laws of another state or the United States, under the Uniform Code of Military Justice, or in a tribal court of a sexually violent offense, a criminal offense against a victim who is a minor on or after July 1, 1999, or a dangerous sexual offense on or after July 1, 1996;

(6) Is a nonresident who changes residence from another state or territory of the United States or any other place to Georgia who is required to register as a sexual offender under federal law, military law, tribal law, or the laws of another state or territory or who has been convicted in this state of a criminal offense against a victim who is a minor or any dangerous sexual offense;

(7) Is a nonresident sexual offender who enters this state for the purpose of employment or any other reason for a period exceeding 14 consecutive days or for an aggregate period of time exceeding 30 days during any calendar year regardless of whether such sexual offender is required to register under federal law, military law, tribal law, or the laws of another state or territory; or

(8) Is a nonresident sexual offender who enters this state for the purpose of attending school as a full-time or part-time student regardless of whether such sexual offender is required to register under federal law, military law, tribal law, or the laws of another state or territory.

(f) Any sexual offender required to register under this Code section shall:

(1) Provide the required registration information to the appropriate official before being released from prison or placed on parole, supervised release, or probation;

(2) Register in person with the sheriff of the county in which the sexual offender resides within 72 hours after the sexual offender's release from prison or placement on parole, supervised release, probation, or entry into this state;

(2.1) In the case of a sexual offender whose place of residence is the status of homelessness, in lieu of the requirements of paragraph (2) of this subsection, register in person with the sheriff of the county in which the sexual offender sleeps within 72 hours after the sexual offender's release from prison or placement on parole, supervised release, probation, or entry into this state and provide the location where he or she sleeps;

(3) Maintain the required registration information with the sheriff of each county in which the sexual offender resides or sleeps;

(4) Renew the required registration information with the sheriff of the county in which the sexual offender resides or sleeps by reporting in person to the sheriff within 72 hours prior to such offender's birthday each year to be photographed and fingerprinted;

(4.1) In the case of a sexual offender who resides in a state or privately operated hospice facility, skilled nursing home, or residential health care facility, with the approval of the sheriff of the county where such sexual offender resides, the sexual offender may satisfy the annual registration requirements of paragraph (4) of this subsection by registering at any time during the sexual offender's month of birth. Additionally, in the case of a sexual offender who resides in a state or privately operated hospice facility, skilled nursing home, or residential health care facility, with the approval of the sheriff of the county where such sexual offender resides, such sexual offender shall not be required to be fingerprinted pursuant to paragraph (4) of this subsection but the sheriff shall be authorized to photograph the offender;

(5) Update the required registration information with the sheriff of the county in which the sexual offender resides within 72 hours of any change to the required registration information, other than where he or she resides or sleeps if such person is homeless. If the information is the sexual offender's new address, the sexual offender shall give the information regarding the sexual offender's new address to the sheriff of the county in which the sexual offender last registered within 72 hours prior to any change of address and to the sheriff of the county to which the sexual offender is moving within 72 hours prior to establishing such new address. If the sexual offender is homeless and the information is the sexual offender's new sleeping location, within 72 hours of changing sleeping locations, the sexual offender shall give the information regarding the sexual offender's new sleeping location to the sheriff of the county in which the sexual offender last registered, and if the county has changed, to the sheriff of the county to which the sexual offender has moved; and

(6) Continue to comply with the registration requirements of this Code section for the entire life of the sexual offender, excluding ensuing periods of incarceration.

(g) A sexual offender required to register under this Code section may petition to be released from the registration requirements and from the residency or employment restrictions of this Code section in accordance with the provisions of Code Section 42-1-19.

(h)(1) The appropriate official or sheriff shall, within 72 hours after receipt of the required registration information, forward such information to the Georgia Bureau of Investigation. Once the data is entered into the Criminal Justice Information System by the appropriate official or sheriff, the Georgia Crime Information Center shall notify the sheriff of the sexual offender's county of residence, either permanent or temporary, the sheriff of the county of employment, and the sheriff of the county where the sexual offender attends an institution of higher education within 24 hours of entering the data or any change to the data.

(2) The Georgia Bureau of Investigation shall:

(A) Transmit all information, including the conviction data and fingerprints, to the Federal Bureau of Investigation within 24 hours of entering the data;

(B) Establish operating policies and procedures concerning record ownership, quality, verification, modification, and cancellation; and

(C) Perform mail out and verification duties as follows:

(i) Send each month Criminal Justice Information System network messages to sheriffs listing sexual offenders due for verification;

(ii) Create a photo image file from original entries and provide such entries to sheriffs to assist in sexual offender identification and verification;

(iii) Mail a nonforwardable verification form to the last reported address of the sexual offender within ten days prior to the sexual offender's birthday;

(iv) If the sexual offender changes residence to another state, notify the law enforcement agency with which the sexual offender shall register in the new state; and

(v) Maintain records required under this Code section.

(i) The sheriff's office in each county shall:

- (1) Prepare and maintain a list of all sexual offenders and sexually dangerous predators residing in each county. Such list shall include the sexual offender's name; age; physical description; address; crime of conviction, including conviction date and the jurisdiction of the conviction; photograph; and the risk assessment classification level provided by the board, and an explanation of how the board classifies sexual offenders and sexually dangerous predators;
- (2) Electronically submit and update all information provided by the sexual offender within two business days to the Georgia Bureau of Investigation in a manner prescribed by the Georgia Bureau of Investigation;
- (3) Maintain and provide a list, manually or electronically, of every sexual offender residing in each county so that it may be available for inspection:
 - (A) In the sheriff's office;
 - (B) In any county administrative building;
 - (C) In the main administrative building for any municipal corporation;
 - (D) In the office of the clerk of the superior court so that such list is available to the public; and
 - (E) On a website maintained by the sheriff of the county for the posting of general information;
- (4) Update the public notices required by paragraph (3) of this subsection within two business days of the receipt of such information;
- (5) Inform the public of the presence of sexual offenders in each community;
- (6) Update the list of sexual offenders residing in the county upon receipt of new information affecting the residence address of a sexual offender or upon the registration of a sexual offender moving into the county by virtue of release from prison, relocation from another county, conviction in another state, federal court, military tribunal, or tribal court. Such list, and any additions to such list, shall be delivered, within 72 hours of updating the list of sexual offenders residing in the county, to all schools or institutions of higher education located in the county;
- (7) Within 72 hours of the receipt of changed required registration information, notify the Georgia Bureau of Investigation through the Criminal Justice Information System of each change of information;
- (8) Retain the verification form stating that the sexual offender still resides at the address last reported;
- (9) Enforce the criminal provisions of this Code section. The sheriff may request the assistance of the Georgia Bureau of Investigation to enforce the provisions of this Code section;

- (10) Cooperate and communicate with other sheriffs' offices in this state and in the United States to maintain current data on the location of sexual offenders;
- (11) Determine the appropriate time of day for reporting by sexual offenders, which shall be consistent with the reporting requirements of this Code section; and
- (12) Provide current information on names and addresses of all registered sexual offenders to campus police with jurisdiction for the campus of an institution of higher education if the campus is within the sheriff's jurisdiction.
- (j)(1) The sheriff of the county where the sexual offender resides or last registered shall be the primary law enforcement official charged with communicating the whereabouts of the sexual offender and any changes in required registration information to the sheriff's office of the county or counties where the sexual offender is employed, volunteers, attends an institution of higher education, or moves.
- (2) The sheriff's office may post the list of sexual offenders in any public building in addition to those locations enumerated in subsection (h) of this Code section.
- (k) The Georgia Crime Information Center shall create the Criminal Justice Information System network transaction screens by which appropriate officials shall enter original data required by this Code section. Screens shall also be created for sheriffs' offices for the entry of record confirmation data; employment; changes of residence, institutions of higher education, or employment; or other pertinent data to assist in sexual offender identification.
- (l)(1) On at least an annual basis, the Department of Education shall obtain from the Georgia Bureau of Investigation a complete list of the names and addresses of all registered sexual offenders and shall provide access to such information, accompanied by a hold harmless provision, to each school in this state. In addition, the Department of Education shall provide information to each school in this state on accessing and retrieving from the Georgia Bureau of Investigation's website a list of the names and addresses of all registered sexual offenders.
- (2) On at least an annual basis, the Department of Early Care and Learning shall provide current information to all child care programs regulated pursuant to Code Section 20-1A-10 and to all child care learning centers, day-care, group day-care, and family day-care programs regulated pursuant to Code Section 49-5-12 on accessing and retrieving from the Georgia Bureau of Investigation's website a list of the names and addresses of all registered sexual offenders and shall include, on a continuing basis, such information with each application for licensure, commissioning, or registration for early care and education programs.
- (3) On at least an annual basis, the Department of Human Services shall provide current information to all long-term care facilities for children on accessing and retrieving from the Georgia Bureau of Investigation's website a list of the names and addresses of all registered sexual offenders.

(m) Within ten days of the filing of a defendant's discharge and exoneration of guilt pursuant to Article 3 of Chapter 8 of this title, the clerk of court shall transmit the order of discharge and exoneration to the Georgia Bureau of Investigation and any sheriff maintaining records required under this Code section.

(n) Any individual who:

(1) Is required to register under this Code section and who fails to comply with the requirements of this Code section;

(2) Provides false information; or

(3) Fails to respond directly to the sheriff of the county where he or she resides or sleeps within 72 hours prior to such individual's birthday

shall be guilty of a felony and shall be punished by imprisonment for not less than one nor more than 30 years; provided, however, that upon the conviction of the second offense under this subsection, the defendant shall be punished by imprisonment for not less than five nor more than 30 years.

(o) The information collected pursuant to this Code section shall be treated as private data except that:

(1) Such information may be disclosed to law enforcement agencies for law enforcement purposes;

(2) Such information may be disclosed to government agencies conducting confidential background checks; and

(3) The Georgia Bureau of Investigation or any sheriff maintaining records required under this Code section shall, in addition to the requirements of this Code section to inform the public of the presence of sexual offenders in each community, release such other relevant information collected under this Code section that is necessary to protect the public concerning sexual offenders required to register under this Code section, except that the identity of a victim of an offense that requires registration under this Code section shall not be released.

(p) The Board of Public Safety is authorized to promulgate rules and regulations necessary for the Georgia Bureau of Investigation and the Georgia Crime Information Center to implement and carry out the provisions of this Code section.

(q) Law enforcement agencies, employees of law enforcement agencies, and state officials shall be immune from liability for good faith conduct under this article.

(r) Any violation of this Code section is declared to be a continuous offense, and venue for such offense shall be considered to have been committed in any county where:

(1) A sexual offender is required to register;

(2) An accused fails to comply with the requirements of this Code section; or

(3) An accused provides false information.

Credits

Laws 1996, p. 1520, § 1; Laws 1997, p. 143, § 42; Laws 1997, p. 380, § 1; Laws 1998, p. 831, § 1; Laws 1999, p. 81, § 42; Laws 1999, p. 837, § 1; Laws 2001, p. 1004, § 1; Laws 2002, p. 571, § 1; Laws 2002, p. 1400, §§ 1, 2; Laws 2003, Act 9, § 42, eff. May 14, 2003; Laws 2003, Act 47, § 1, eff. May 28, 2003; Laws 2004, Act 565, § 5, eff. Oct. 1, 2004; Laws 2004, Act 790, §§ 1, 2, eff. July 1, 2004; Laws 2005, Act 71, § 1, eff. July 1, 2005; Laws 2006, Act 453, § 42, eff. April 14, 2006; Laws 2006, Act 571, § 24, eff. July 1, 2006; Laws 2008, Act 582, §§ 2, 3, eff. July 1, 2008; Laws 2008, Act 715, §§ 3, 4, eff. Jan. 1, 2009; Laws 2009, Act 8, § 42, eff. April 14, 2009; Laws 2009, Act 102, § 2-2, eff. July 1, 2009; Laws 2010, Act 388, § 1, eff. July 1, 2010; Laws 2010, Act 389, §§ 5 to 11, eff. May 20, 2010; Laws 2011, Act 245, § 42, eff. May 13, 2011; Laws 2012, Act 599, § 2-9, eff. July 1, 2012; Laws 2013, Act 32, § 10, eff. July 1, 2013; Laws 2015, Act 73, § 5-65, eff. July 1, 2015; Laws 2015, Act 95, § 4-2, eff. July 1, 2015; Laws 2017, Act 194, § 6, eff. July 1, 2017; Laws 2019, Act 295, § 5, eff. July 1, 2019; Laws 2020, Act 554, § 1, eff. Jan. 1, 2021; Laws 2021, Act 199, § 2, eff. July 1, 2021; Laws 2021, Act 237, § 4, eff. July 1, 2021; Laws 2022, Act 782, § 42, eff. May 2, 2022; Laws 2023, Act 347, § 6-1, eff. May 4, 2023; Laws 2025, Act 371, § 42, eff. July 1, 2025.

Ga. Code Ann., § 42-1-12, GA ST § 42-1-12

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions (Refs & Annos)
Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-13

§ 42-1-13. Sexual Offender Risk Review Board

Effective: May 4, 2023

Currentness

(a) The Sexual Offender Risk Review Board shall be composed of three professionals licensed under Title 43 and knowledgeable in the field of the behavior and treatment of sexual offenders; at least one representative from a victims' rights advocacy group or agency; and at least two representatives from law enforcement, each of whom is either employed by a law enforcement agency as a certified peace officer under Title 35 or retired from such employment. The members of the board shall be appointed by the commissioner of behavioral health and developmental disabilities for terms of four years. On and after July 1, 2006, successors to the members of the board shall be appointed by the Governor. Members of the board shall take office on the first day of September immediately following the expired term of that office and shall serve for a term of four years and until the appointment of their respective successors. No member shall serve on the board more than two consecutive terms. Vacancies occurring on the board, other than those caused by expiration of a term of office, shall be filled in the same manner as the original appointment to the position vacated for the remainder of the unexpired term and until a successor is appointed. Members shall be entitled to an expense allowance and travel cost reimbursement the same as members of certain other boards and commissions as provided in Code Section 45-7-21.

(b) The board shall be attached to the Department of Behavioral Health and Developmental Disabilities for administrative purposes and, provided there is adequate funding, shall:

- (1) Exercise its quasi-judicial, rule-making, or policy-making functions independently of the department and without approval or control of the department;
 - (2) Prepare its budget, if any, and submit its budgetary requests, if any, through the department; and
 - (3) Hire its own personnel, including, but not limited to, administrative personnel and clinical evaluators.
- (c)(1) The board shall acquire, collect, and analyze information, including, but not limited to, criminal history record information, in determining a sexual offender's risk assessment as provided for under Code Section 42-1-14.
- (2) The board may employ investigators under the board's administration and supervision to complete the duties provided for under paragraph (1) of this subsection. The Georgia Bureau of Investigation shall maintain at least one position under the bureau's administration and supervision which shall facilitate the provision of summarized criminal history record information to the board from the Georgia Crime Information Center and the National Crime Information Center.

(d) Members of the board shall be immune from liability for good faith conduct under this article.

Credits

Laws 2006, Act 571, § 24, eff. July 1, 2006; Laws 2009, Act 102, §§ 3-2, 3-3, eff. July 1, 2009; Laws 2012, Act 715, § 2, eff. July 1, 2012; Laws 2021, Act 199, § 3, eff. July 1, 2021; Laws 2023, Act 347, § 6-2, eff. May 4, 2023.

Ga. Code Ann., § 42-1-13, GA ST § 42-1-13

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions (Refs & Annos)
Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-13.1

§ 42-1-13.1. Tracking devices

Effective: May 4, 2023

Currentness

(a)(1) A sexual offender shall be fitted by the Department of Community Supervision with a device capable of tracking the location of the sexual offender by means including electronic surveillance or global positioning satellite systems while he or she is on probation or parole and awaiting risk assessment classification from the board and when:

(A) Such offender has previously been convicted of a felony sexual offense in violation of Chapter 6 of Title 16; or

(B) His or her assigned community supervision officer determines that a special need exists for an offender to be fitted with such device due to the immediate danger to society the offender poses based upon a substantial risk of perpetrating a future dangerous sexual offense.

(2) Except when a petition for release has been granted pursuant to subsection (b) of this Code section or location tracking has been issued as a condition of probation or term of parole, a sexual offender shall be released from the location tracking requirements of this Code section upon the conclusion of his or her term of probation or parole.

(3) The costs relating to the fitting of a location tracking device and any monitoring thereof shall be borne by the sexual offender.

(b) A sexual offender required to be fitted by the department with a device capable of tracking the location of such offender pursuant to this Code section may petition the superior court of the county where the offender resides for release from such location tracking requirements within 30 days of the fitting. The court shall hold a hearing on the petition for release if requested by the petitioner. The court may issue an order suspending a sexual offender from the location tracking requirements of this Code section if the court finds by a preponderance of the evidence that the offender does not pose an immediate danger to society due to substantial risk of perpetrating any future dangerous sexual offense. The court shall send a copy of any order suspending an individual from the location tracking requirements of this Code section to the Department of Community Supervision.

Credits

Laws 2023, Act 347, § 6-2A, eff. May 4, 2023.

Ga. Code Ann., § 42-1-13.1, GA ST § 42-1-13.1

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West's Code of Georgia Annotated

Title 42. Penal Institutions

Chapter 1. General Provisions (Refs & Annos)

Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-14

§ 42-1-14. Determinations of board; risk assessment

Effective: May 4, 2023

Currentness

(a)(1) The board shall determine the likelihood that a sexual offender will engage in another crime against a victim who is a minor or a dangerous sexual offense. Any sexual offender who changes residence from another state or territory of the United States or any other place to this state and who is not already designated under Georgia law as a sexually dangerous predator, sexual predator, or sexually violent predator shall have his or her required registration information forwarded by the sheriff of his or her county of registration to the board for the purpose of risk assessment classification. The board shall also make such risk assessment classification upon the request of a superior court judge for purposes of considering a petition to be released from registration requirements or residency or employment restrictions as provided for in Code Section 42-1-19.

(2) A sexual offender shall be placed into Level I risk assessment classification, Level II risk assessment classification, or sexually dangerous predator classification based upon the board's assessment criteria and by information obtained and reviewed by the board. The sexual offender may provide the board with information, including, but not limited to, psychological evaluations, sexual history polygraph information, treatment history, and personal, social, educational, and work history. If the sexual offender has undergone treatment or supervision through the Department of Corrections or the Department of Community Supervision, such treatment records shall also be submitted to the board for evaluation. The prosecuting attorney shall provide the board with any information available to assist the board in rendering an opinion, including, but not limited to, criminal history and records related to previous criminal history and shall provide the same information to the sexual offender as was provided to the board. The board shall be authorized to obtain available information from supervision records prior to July 1, 2015, and all public records obtained and electronically retained by the State Board of Pardons and Paroles during its investigation of such sexual offender and shall provide the same information to such sexual offender as was provided to the board, but if such records are classified as confidential state secrets, such records shall remain confidential state secrets in accordance with Code Section 42-9-53 and shall not be made available to any other person or entity or be subject to subpoena unless declassified by the State Board of Pardons and Paroles. Any person divulging or causing to be divulged any confidential state secret shall be guilty of a misdemeanor. The clerk of the court of the appropriate jurisdiction where the sexual offender resides shall send a copy of the order seeking classification for purposes of sentencing and a copy of the sexual offender's conviction to the board and notify the board that a sexual offender's risk assessment evaluation will need to be performed. The board shall render its recommendation for risk assessment classification within:

(A) Sixty days of receipt of a request for a risk assessment evaluation if the sexual offender is being sentenced pursuant to subsection (c) of Code Section 17-10-6.2 or as part of a presentence investigation pursuant to subsection (b) of Code Section 42-8-34;

(B) Six months prior to the sexual offender's proposed release from confinement if the offender is incarcerated;

(C) Sixty days of receipt of the required registration information from the sheriff when the sexual offender changes residence from another state or territory of the United States or any other place to this state and is not already classified;

(D) Sixty days if the sexual offender is sentenced to a probated or suspended sentence; and

(E) Ninety days if such classification is requested by the court pursuant to a petition filed under Code Section 42-1-19.

(3) The board shall notify the sexual offender by first-class mail of its determination of risk assessment classification and shall send a copy of such classification to the Georgia Bureau of Investigation, the Department of Corrections, the State Board of Pardons and Paroles, the Department of Community Supervision, the sheriff of the county in which the sexual offender is registered, and to counsel for the sexual offender and the sentencing court, if applicable.

(b) If the board determines that a sexual offender should be classified as a Level II risk assessment classification or as a sexually dangerous predator, the sexual offender may petition the board to reevaluate his or her classification. To file a petition for reevaluation, the sexual offender shall be required to submit his or her written petition for reevaluation to the board within 30 days from the date of the letter notifying the sexual offender of his or her classification. The sexual offender shall have 120 days from the date of the notification letter to submit information as provided in subsection (a) of this Code section in support of such sexual offender's petition for reevaluation. If the sexual offender fails to submit the petition or supporting documents within the time limits provided, the classification shall be final. The board shall notify the sexual offender by first-class mail of its decision on the petition for reevaluation of risk assessment classification and shall send a copy of such notification to the Georgia Bureau of Investigation, the Department of Corrections, the State Board of Pardons and Paroles, the Department of Community Supervision, the sheriff of the county in which the sexual offender is registered, and to counsel for the sexual offender and the sentencing court, if applicable. The sexual offender may request reevaluation after ten years following his or her initial classification and no more than once every five years thereafter.

(c) A sexual offender who is classified by the board as a Level II risk assessment classification or as a sexually dangerous predator may file a petition for judicial review of his or her classification within 30 days of the date of the notification letter or, if the sexual offender has requested reevaluation pursuant to subsection (b) of this Code section, within 30 days of the date of the letter denying the petition for reevaluation. The petition for judicial review shall name the board as defendant, and the petition shall be filed in the superior court of the county in which the offices of the board are located. Within 30 days after service of the appeal on the board, the board shall submit a summary of its findings to the court and mail a copy, by first-class mail, to the sexual offender. The findings of the board shall be considered prima-facie evidence of the classification. The court shall also consider any relevant evidence submitted, and such evidence and documentation shall be mailed to the parties as well as submitted to the court. The court shall hold a hearing to determine the issue of classification. The court may uphold the classification of the board, or, if the court finds by a preponderance of the evidence that the sexual offender is not placed in the appropriate classification level, the court shall place the sexual offender in the appropriate risk assessment classification. The court's determination shall be forwarded by the clerk of the court to the board, the sexual offender, the Georgia Bureau of Investigation, the Department of Corrections, the State Board of Pardons and Paroles, and the Department of Community Supervision, and the sheriff of the county in which the sexual offender is registered, and counsel for the sexual offender, if applicable.

(d) Any individual who was classified as a sexually violent predator prior to July 1, 2006, shall be classified as a sexually dangerous predator on and after July 1, 2006.

(e) In addition to the requirements of registration for all sexual offenders, a sexually dangerous predator shall report in person to the sheriff of the county in which such predator resides six months following his or her birth month and update or verify his or her required registration information.

Credits

Laws 2023, Act 347, § 6-3, eff. May 4, 2023.

Ga. Code Ann., § 42-1-14, GA ST § 42-1-14

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions (Refs & Annos)
Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-15

§ 42-1-15. Restrictions on residence of or loitering by registered sex offender for acts committed after July 1, 2008; employment of sexually dangerous predator; civil liability or criminal prosecution of entity other than individual required to register

Effective: July 1, 2017
Currentness

(a) As used in this Code section, the term:

(1) “Individual” means a person who is required to register pursuant to Code Section 42-1-12.

(2) “Lease” means a right of occupancy pursuant to a written and valid lease or rental agreement.

(3) “Minor” means any person who is under 18 years of age.

(4) “Volunteer” means to engage in an activity in which one could be, and ordinarily would be, employed for compensation, and which activity involves working with, assisting, or being engaged in activities with minors; provided, however, that such term shall not include participating in activities limited to persons who are 18 years of age or older or participating in worship services or engaging in religious activities or activities at a place of worship that do not include supervising, teaching, directing, or otherwise participating with minors who are not supervised by an adult who is not an individual required to register pursuant to Code Section 42-1-12.

(b) On and after July 1, 2008, no individual shall reside within 1,000 feet of any child care facility, church, school, or area where minors congregate if the commission of the act for which such individual is required to register occurred on or after July 1, 2008. Such distance shall be determined by measuring from the outer boundary of the property on which the individual resides to the outer boundary of the property of the child care facility, church, school, or area where minors congregate at their closest points.

(c)(1) On and after July 1, 2008, no individual shall be employed by or volunteer at any child care facility, school, or church or by or at any business or entity that is located within 1,000 feet of a child care facility, a school, or a church if the commission of the act for which such individual is required to register occurred on or after July 1, 2008. Such distance shall be determined by measuring from the outer boundary of the property of the location at which such individual is employed or volunteers to the outer boundary of the child care facility, school, or church at their closest points.

(2) On or after July 1, 2008, no individual who is a sexually dangerous predator shall be employed by or volunteer at any business or entity that is located within 1,000 feet of an area where minors congregate if the commission of the act for which

such individual is required to register occurred on or after July 1, 2008. Such distance shall be determined by measuring from the outer boundary of the property of the location at which the sexually dangerous predator is employed or volunteers to the outer boundary of the area where minors congregate at their closest points.

(d) Notwithstanding any ordinance or resolution adopted pursuant to Code Section 16-6-24 or subsection (d) of Code Section 16-11-36, it shall be unlawful for any individual or for any person who is or should be registered on another state's sexual offender registry to loiter, as prohibited by Code Section 16-11-36, at any child care facility, school, or area where minors congregate.

(e)(1) If an individual owns or leases real property and resides on such property and a child care facility, church, school, or area where minors congregate thereafter locates itself within 1,000 feet of such property, or if an individual has established employment at a location and a child care facility, church, or school thereafter locates itself within 1,000 feet of such employment, or if a sexual predator has established employment and an area where minors congregate thereafter locates itself within 1,000 feet of such employment, such individual shall not be guilty of a violation of subsection (b) or (c) of this Code section, as applicable, if such individual successfully complies with subsection (f) of this Code section.

(2) An individual owning or leasing real property and residing on such property or being employed within 1,000 feet of a prohibited location, as specified in subsection (b) or (c) of this Code section, shall not be guilty of a violation of this Code section if such individual had established such property ownership, leasehold, or employment prior to July 1, 2008, and such individual successfully complies with subsection (f) of this Code section.

(f)(1) If an individual is notified that he or she is in violation of subsection (b) or (c) of this Code section, and if such individual claims that he or she is exempt from such prohibition pursuant to subsection (e) of this Code section, such individual shall provide sufficient proof demonstrating his or her exemption to the sheriff of the county where the individual is registered within ten days of being notified of any such violation.

(2) For purposes of providing proof of residence, the individual may provide a driver's license, government issued identification, or any other documentation evidencing where the individual's habitation is fixed. For purposes of providing proof of property ownership, the individual shall provide a copy of his or her warranty deed, quitclaim deed, or voluntary deed, or other documentation evidencing property ownership.

(3) For purposes of providing proof of a leasehold, the individual shall provide a copy of the applicable lease agreement. Leasehold exemptions shall only be for the duration of the executed lease.

(4) For purposes of providing proof of employment, the individual may provide an Internal Revenue Service Form W-2, a pay check, or a notarized verification of employment from the individual's employer, or other documentation evidencing employment. Such employment documentation shall evidence the location in which such individual actually carries out or performs the functions of his or her job.

(5) Documentation provided pursuant to this subsection may be required to be date specific, depending upon the individual's exemption claim.

(g) Any individual who knowingly violates this Code section shall be guilty of a felony and shall be punished by imprisonment for not less than ten nor more than 30 years.

(h) Nothing in this Code section shall create, either directly or indirectly, any civil cause of action against or result in criminal prosecution of any person, firm, corporation, partnership, trust, or association other than an individual required to be registered under Code Section 42-1-12.

Credits

Laws 2008, Act 582, § 4, eff. July 1, 2008; Laws 2010, Act 389, § 13, eff. May 20, 2010; Laws 2017, Act 171, § 1, eff. July 1, 2017.

Ga. Code Ann., § 42-1-15, GA ST § 42-1-15

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West's Code of Georgia Annotated
Title 42. Penal Institutions
Chapter 1. General Provisions (Refs & Annos)
Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-16

§ 42-1-16. Restrictions on residence of or loitering by registered sex offender for acts committed between July 1, 2006 and June 30, 2008; employment of sexually dangerous predator; civil liability or criminal prosecution of entity other than individual required to register

Effective: May 20, 2010
Currentness

(a) As used in this Code section, the term:

- (1) "Area where minors congregate" shall include all public and private parks and recreation facilities, playgrounds, skating rinks, neighborhood centers, gymnasiums, school bus stops, and public and community swimming pools.
- (2) "Individual" means a person who is required to register pursuant to Code Section 42-1-12.
- (3) "Lease" means a right of occupancy pursuant to a written and valid lease or rental agreement.
- (4) "Minor" means any person who is under 18 years of age.

(b) Any individual who committed an act between July 1, 2006, and June 30, 2008, for which such individual is required to register shall not reside within 1,000 feet of any child care facility, church, school, or area where minors congregate. Such distance shall be determined by measuring from the outer boundary of the property on which the individual resides to the outer boundary of the property of the child care facility, church, school, or area where minors congregate at their closest points.

(c)(1) Any individual who committed an act between July 1, 2006, and June 30, 2008, for which such individual is required to register shall not be employed by any child care facility, school, or church or by or at any business or entity that is located within 1,000 feet of a child care facility, a school, or a church. Such distance shall be determined by measuring from the outer boundary of the property of the location at which such individual is employed to the outer boundary of the child care facility, school, or church at their closest points.

(2) Any individual who committed an act between July 1, 2006, and June 30, 2008, for which such individual is required to register who is a sexually dangerous predator shall not be employed by any business or entity that is located within 1,000 feet of an area where minors congregate. Such distance shall be determined by measuring from the outer boundary of the property of the location at which the sexually dangerous predator is employed to the outer boundary of the area where minors congregate at their closest points.

(d) Notwithstanding any ordinance or resolution adopted pursuant to Code Section 16-6-24 or subsection (d) of Code Section 16-11-36, it shall be unlawful for any individual to loiter, as prohibited by Code Section 16-11-36, at any child care facility, school, or area where minors congregate.

(e)(1) If an individual owns or leases real property and resides on such property and a child care facility, church, school, or area where minors congregate thereafter locates itself within 1,000 feet of such property, or if an individual has established employment at a location and a child care facility, church, or school thereafter locates itself within 1,000 feet of such employment, or if a sexual predator has established employment and an area where minors congregate thereafter locates itself within 1,000 feet of such employment, such individual shall not be guilty of a violation of subsection (b) or (c) of this Code section, as applicable, if such individual successfully complies with subsection (f) of this Code section.

(2) An individual owning or leasing real property and residing on such property or being employed within 1,000 feet of a prohibited location, as specified in subsection (b) or (c) of this Code section, shall not be guilty of a violation of this Code section if such individual had established such property ownership, leasehold, or employment prior to July 1, 2006, and such individual successfully complies with subsection (f) of this Code section.

(f)(1) If an individual is notified that he or she is in violation of subsection (b) or (c) of this Code section, and if such individual claims that he or she is exempt from such prohibition pursuant to subsection (e) of this Code section, such individual shall provide sufficient proof demonstrating his or her exemption to the sheriff of the county where the individual is registered within ten days of being notified of any such violation.

(2) For purposes of providing proof of residence, the individual may provide a driver's license, government issued identification, or any other documentation evidencing where the individual's habitation is fixed. For purposes of providing proof of property ownership, the individual shall provide a copy of his or her warranty deed, quitclaim deed, or voluntary deed, or other documentation evidencing property ownership.

(3) For purposes of providing proof of a leasehold, the individual shall provide a copy of the applicable lease agreement. Leasehold exemptions shall only be for the duration of the executed lease.

(4) For purposes of providing proof of employment, the individual may provide an Internal Revenue Service Form W-2, a pay check, or a notarized verification of employment from the individual's employer, or other documentation evidencing employment. Such employment documentation shall evidence the location in which such individual actually carries out or performs the functions of his or her job.

(5) Documentation provided pursuant to this subsection may be required to be date specific, depending upon the individual's exemption claim.

(g) Any individual who knowingly violates this Code section shall be guilty of a felony and shall be punished by imprisonment for not less than ten nor more than 30 years.

(h) Nothing in this Code section shall create, either directly or indirectly, any civil cause of action against or result in criminal prosecution of any person, firm, corporation, partnership, trust, or association other than an individual required to be registered under Code Section 42-1-12.

Credits

Laws 2010, Act 389, § 14, eff. May 20, 2010.

Ga. Code Ann., § 42-1-16, GA ST § 42-1-16

The statutes and Constitution are current through legislation passed at the 2025 Regular Session of the Georgia General Assembly. Some sections may be more current, see credits for details. The statutes are subject to changes by the Georgia Code Commission.

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West's Code of Georgia Annotated

Title 42. Penal Institutions

Chapter 1. General Provisions (Refs & Annos)

Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-17

§ 42-1-17. Restrictions on residence of or loitering by registered sex offender for acts committed between June 4, 2003 and June 30, 2006; employment of sexually dangerous predator; civil liability or criminal prosecution of entity other than individual required to register

Effective: July 1, 2013

Currentness

(a) As used in this Code section, the term:

(1) "Area where minors congregate" shall include all public and private parks and recreation facilities, playgrounds, skating rinks, neighborhood centers, gymnasiums, and similar facilities providing programs or services directed towards persons under 18 years of age.

(2) "Child care facility" means all public and private pre-kindergarten facilities, child care learning centers, and preschool facilities.

(3) "Individual" means a person who is required to register pursuant to Code Section 42-1-12.

(4) "Lease" means a right of occupancy pursuant to a written and valid lease or rental agreement.

(5) "Minor" means any person who is under 18 years of age.

(b) Any individual who committed an act between June 4, 2003, and June 30, 2006, for which such individual is required to register shall not reside within 1,000 feet of any child care facility, school, or area where minors congregate. Such distance shall be determined by measuring from the outer boundary of the property on which the individual resides to the outer boundary of the property of the child care facility, school, or area where minors congregate at their closest points.

(c)(1) If an individual owns or leases real property and resides on such property and a child care facility, school, or area where minors congregate thereafter locates itself within 1,000 feet of such property, such individual shall not be guilty of a violation of subsection (b) of this Code section if such individual successfully complies with subsection (d) of this Code section.

(2) An individual owning or leasing real property and residing on such property within 1,000 feet of a prohibited location, as specified in subsection (b) of this Code section, shall not be guilty of a violation of this Code section if such individual

had established such property ownership or leasehold prior to June 4, 2003, and such individual successfully complies with subsection (d) of this Code section.

(d)(1) If an individual is notified that he or she is in violation of subsection (b) of this Code section, and if such individual claims that he or she is exempt from such prohibition pursuant to subsection (c) of this Code section, such individual shall provide sufficient proof demonstrating his or her exemption to the sheriff of the county where the individual is registered within ten days of being notified of any such violation.

(2) For purposes of providing proof of residence, the individual may provide a driver's license, government issued identification, or any other documentation evidencing where the individual's habitation is fixed. For purposes of providing proof of property ownership, the individual shall provide a copy of his or her warranty deed, quitclaim deed, or voluntary deed, or other documentation evidencing property ownership.

(3) For purposes of providing proof of a leasehold, the individual shall provide a copy of the applicable lease agreement. Leasehold exemptions shall only be for the duration of the executed lease.

(4) Documentation provided pursuant to this subsection may be required to be date specific, depending upon the individual's exemption claim.

(e) Any individual who knowingly violates this Code section shall be guilty of a felony and shall be punished by imprisonment for not less than one nor more than three years.

(f) Nothing in this Code section shall create, either directly or indirectly, any civil cause of action against or result in criminal prosecution of any person, firm, corporation, partnership, trust, or association other than an individual required to be registered under Code Section 42-1-12.

Credits

Laws 2010, Act 389, § 14, eff. May 20, 2010; Laws 2013, Act 32, § 12, eff. July 1, 2013.

Ga. Code Ann., § 42-1-17, GA ST § 42-1-17

The statutes and Constitution are current through legislation passed at the 2025 Regular Session of the Georgia General Assembly. Some sections may be more current, see credits for details. The statutes are subject to changes by the Georgia Code Commission.

West's Code of Georgia Annotated

Title 42. Penal Institutions

Chapter 1. General Provisions (Refs & Annos)

Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-18

§ 42-1-18. Sexual offenders photographing minors without consent prohibited

Effective: July 1, 2024

Currentness

(a) As used in this Code section, the term:

(1) “Minor” shall have the same meaning as set forth in Code Section 42-1-12.

(2) “Photograph” means to create, capture, transmit, or record by electronic or other means a photographic image or similar visual representation or image of a person.

(3) “Unmanned aircraft system” means a powered, aerial vehicle, not including a satellite, that:

(A) Does not carry a human operator and is operated without the possibility of direct human intervention from within or on the vehicle;

(B) Uses aerodynamic forces to provide vehicle lift;

(C) Can fly autonomously or be piloted remotely;

(D) Can be expendable or recoverable; and

(E) Has the ability to photograph.

(b)(1) No person required to register as a sexual offender pursuant to Code Section 42-1-12 shall intentionally photograph a minor without the consent of the minor's parent or guardian.

(2) Any person who commits the offense of intentionally photographing a minor without the consent of such minor's parent or guardian in violation of paragraph (1) of this subsection shall, upon the first conviction thereof, be guilty of a misdemeanor of a high and aggravated nature and shall be punished as provided by Code Section 17-10-4; provided, however, that, if a fine is imposed pursuant to Code Section 17-10-4, such fine shall not be less than \$1,500.00.

(3) Any person who commits the offense of intentionally photographing a minor without the consent of such minor's parent or guardian in violation of paragraph (1) of this subsection shall, upon a second or subsequent conviction thereof, be guilty of a felony and shall be punished by imprisonment for not less than one nor more than 30 years and a fine of not less than \$5,000.00 nor more than \$100,000.00.

(4) For the purpose of this subsection, the term “conviction” shall include a plea of nolo contendere.

(c)(1) No person required to register as a sexual offender pursuant to Code Section 42-1-12 shall knowingly possess, own, or operate an unmanned aircraft system with the intent to photograph, observe, follow, or contact any particular person without his or her consent or photograph, observe, follow, or contact any person in a way that violates the person's reasonable expectation of privacy.

(2) Any person who violates paragraph (1) of this subsection shall be guilty of a felony and shall be punished by imprisonment for not less than five nor more than ten years and a fine of not less than \$20,000.00 nor more than \$100,000.00.

Credits

Laws 2010, Act 389, § 14, eff. May 20, 2010; Laws 2011, Act 122, § 1, eff. May 11, 2011; Laws 2024, Act 426, § 1, eff. July 1, 2024.

Ga. Code Ann., § 42-1-18, GA ST § 42-1-18

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West's Code of Georgia Annotated

Title 42. Penal Institutions

Chapter 1. General Provisions (Refs & Annos)

Article 2. Sexual Offender Risk Review Board (Refs & Annos)

Ga. Code Ann., § 42-1-19

§ 42-1-19. Petition for release from registration requirements or
restrictions on residence of or loitering by registered sex offender

Effective: July 1, 2024

Currentness

(a) An individual required to register pursuant to Code Section 42-1-12 may petition a superior court for release from registration requirements and from any residency or employment restrictions of this article if the individual:

(1) Has completed all prison, parole, supervised release, and probation for the offense which required registration pursuant to Code Section 42-1-12 and:

(A) Is confined to a hospice facility, skilled nursing home, residential care facility for the elderly, or nursing home;

(B) Is totally and permanently disabled as such term is defined in Code Section 49-4-80;

(C) Is otherwise seriously physically incapacitated due to illness or injury; or

(D) Has reached the age of 80 years;

(2) Was sentenced for a crime that became punishable as a misdemeanor on or after July 1, 2006, and meets the criteria set forth in subparagraphs (c)(1)(A) through (c)(1)(F) of Code Section 17-10-6.2;

(3) Is required to register solely because he or she was convicted of kidnapping or false imprisonment involving a minor and such offense did not involve a sexual offense against such minor or an attempt to commit a sexual offense against such minor. For purposes of this paragraph, the term “sexual offense” means any offense listed in division (a)(10)(B)(i) or (a)(10)(B)(iv) through (a)(10)(B)(xix) of Code Section 42-1-12;

(4) Has completed all prison, parole, supervised release, and probation for the offense which required registration pursuant to Code Section 42-1-12 and meets the criteria set forth in subparagraphs (c)(1)(A) through (c)(1)(F) of Code Section 17-10-6.2;
or

(5) Was convicted of a sexual offense and required to register under the laws of another state or territory, under the laws of the United States, under the Uniform Code of Military Justice, or in a tribal court and:

(A) Has completed all prison, parole, supervised release, and probation for the offense which required registration pursuant to Code Section 42-1-12 and meets the criteria set forth in subparagraphs (c)(1)(A) through (c)(1)(F) of Code Section 17-10-6.2; and

(B) Has been removed from the registry in the other state or territory and can provide the court with documentation supporting the same.

(b)(1) A petition for release pursuant to this Code section shall be filed in the superior court of the jurisdiction in which the individual was convicted; provided, however, that, if the individual was not convicted in this state, such petition shall be filed in the superior court of the county where the individual resides.

(2) Such petition shall be served on the district attorney of the jurisdiction where the petition is filed, the sheriff of the county where the petition is filed, and the sheriff of the county where the individual resides. Service on the district attorney and sheriff may be had by mailing a copy of the petition with a proper certificate of service.

(3) If a petition for release is denied, another petition for release shall not be filed within a period of two years from the date of the final order on a previous petition.

(c)(1) An individual who meets the requirements of paragraph (1), (2), or (3) of subsection (a) of this Code section shall be considered for release from registration requirements and from residency or employment restrictions.

(2) An individual who meets the requirements of paragraph (4) of subsection (a) of this Code section may be considered for release from registration requirements and from residency or employment restrictions only if:

(A) Five years have elapsed since the individual completed all prison, parole, supervised release, and probation for the offense which required registration pursuant to Code Section 42-1-12; and

(B) The individual has been classified by the board as a Level I risk assessment classification, provided that, if the board has not done a risk assessment classification for such individual within the last five years, the court shall order such classification to be completed prior to considering the petition for release.

(3) An individual who meets the requirements of paragraph (5) of subsection (a) of this Code section may be considered for release from registration requirements and from residency or employment restrictions only if:

(A) Ten years have elapsed since the individual completed all prison, parole, supervised release, and probation for the offense which required registration pursuant to Code Section 42-1-12; and

(B) The individual has been classified by the board as a Level I risk assessment classification, provided that, if the board has not done a risk assessment classification for such individual within the last five years, the court shall order such classification to be completed prior to considering the petition for release.

(d) In considering a petition pursuant to this Code section, the court may consider:

- (1) Any evidence introduced by the petitioner;
- (2) Any evidence introduced by the district attorney, board, or sheriff; and
- (3) Any other relevant evidence.

(e) The court shall hold a hearing on the petition if requested by the petitioner.

(f) The court may issue an order releasing the individual from registration requirements or residency or employment restrictions, in whole or part, if the court finds by a preponderance of the evidence that the individual does not pose a substantial risk of perpetrating any future dangerous sexual offense. The court may release an individual from such requirements or restrictions for a specific period of time. The court shall send a copy of any order releasing an individual from any requirements or restrictions to the sheriff and the district attorney of the jurisdiction where the petition is filed, to the sheriff of the county where the individual resides, to the Department of Corrections, to the Department of Community Supervision, and to the Georgia Bureau of Investigation.

Credits

Laws 2010, Act 389, § 15, eff. May 20, 2010; Laws 2015, Act 73, § 5-67, eff. July 1, 2015; Laws 2024, Act 426, § 2, eff. July 1, 2024.

Ga. Code Ann., § 42-1-19, GA ST § 42-1-19

The statutes and Constitution are current through legislation passed at the 2025 Regular Session of the Georgia General Assembly. Some sections may be more current, see credits for details. The statutes are subject to changes by the Georgia Code Commission.

West's Hawai'i Revised Statutes Annotated

Division 5. Crimes and Criminal Proceedings

Title 38. Procedural and Supplementary Provisions

Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration Information

HRS D. 5, T. 38, Ch. 846E, Refs & Annos

Currentness

H R S D. 5, T. 38, Ch. 846E, Refs & Annos, HI ST D. 5, T. 38, Ch. 846E, Refs & Annos

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West's Hawai'i Revised Statutes Annotated

Division 5. Crimes and Criminal Proceedings

Title 38. Procedural and Supplementary Provisions

Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration Information (Refs & Annos)

HRS § 846E-1

§ 846E-1. Definitions

Effective: June 3, 2025

Currentness

As used in this chapter, unless the context clearly requires otherwise:

“Agency having jurisdiction” means that agency with the authority to direct the release of a person serving a sentence or term of confinement or place a person on probation, supervised release, or parole and includes the department of corrections and rehabilitation, the Hawaii paroling authority, the courts, and the department of health.

“Attorney general” means the attorney general of the State of Hawaii, the department of the attorney general, or an authorized representative of the attorney general.

“Chief of police” means the county chief of police, the county police department, or an authorized representative of the chief of police.

“Clean record” means no conviction for a felony or covered offense, if placed on probation or parole, completion of probation or parole without more than one revocation, and, for sex offenders, successful completion of an appropriate sex offender treatment program, if such program was ordered.

“Conviction” means a judgment on the verdict, or a finding of guilt after a plea of guilty or nolo contendere, excluding the adjudication of a minor, and occurs on the date judgment is entered.

“Covered offender” means a “sex offender” or an “offender against minors”, as defined in this section.

“Covered offense” means a criminal offense that is:

(1) A crime within the definition of “crimes against minors” in this section; or

(2) A crime within the definition of “sexual offense” in this section.

“Crime against minors” excludes “sexual offenses” as defined in this section and means a criminal offense that consists of:

(1) Kidnapping of a minor, by someone other than a parent;

- (2) Unlawful imprisonment in the first or second degree that involves the unlawful imprisonment of a minor by someone other than a parent;
- (3) An act, as described in chapter 705, that is an attempt, criminal solicitation, or criminal conspiracy to commit one of the offenses designated in paragraph (1) or (2);
- (4) A criminal offense that is comparable to or which exceeds one of the offenses designated in paragraphs (1) through (3); or
- (5) Any federal, military, out-of-state, tribal, or foreign conviction for any offense that, under the laws of this State, would be a crime against minors as designated in paragraphs (1) through (4).

“Foreign conviction” means a conviction under the laws of:

- (1) Canada, United Kingdom, Australia, or New Zealand; or
- (2) Any other foreign country, if the United States Department of State, in its Country Reports on Human Rights Practices, has concluded that an independent judiciary vigorously enforced the right to a fair trial in that country during the year in which the conviction occurred and enforces the right to a fair trial to the same or higher standard as the countries listed in paragraph (1).

“Offender against minors” means a person who is not a “sex offender”, as defined in this section, and is or has been:

- (1) Convicted at any time, whether before or after May 9, 2005, of a “crime against minors” as defined in this section; or
- (2) Charged at any time, whether before or after May 9, 2005, with a “crime against minors” as defined in this section and who is found unfit to proceed and is released into the community or who is acquitted due to a physical or mental disease, disorder, or defect pursuant to chapter 704 and is released into the community.

“Out-of-state conviction” means a conviction in any other state of the United States, the District of Columbia, or the five principal United States territories, including the Commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana Islands, and the United States Virgin Islands.

“Parent” means a parent, legal guardian, or a person who has a substantial familial or hanai relationship with the minor.

“Permanent residence” means a building, permanent structure or unit therein, or watercraft where the covered offender resides and intends to reside indefinitely, or at least for the next one hundred eighty days, and which the offender owns, rents, or occupies with the consent of the owner.

“Registration information” means the information specified in section 846E-2(d) and (e).

“Release” means release from:

- (1) Imprisonment;

- (2) Imprisonment and placed on parole;
- (3) Imprisonment and placed on furlough;
- (4) Any form of commitment, custody, or confinement resulting from an order made pursuant to chapter 704; or
- (5) A halfway house or other equivalent facility,

whichever is later.

“Repeat covered offender” means:

- (1) A person who is or has been convicted at any time, whether before or after May 9, 2005, of more than one covered offense as defined in this section, except that a conviction for multiple counts within a single charging document that allege covered offenses against the same victim and that allege the same date of the covered offense against that single victim shall be considered, for the purposes of this definition, a single covered offense; or
- (2) A person who is or has been charged at any time, whether before or after May 9, 2005, with more than one covered offense as defined in this section and who has been, more than once, either:
 - (A) Convicted;
 - (B) Found unfit to proceed pursuant to chapter 704; or
 - (C) Acquitted due to a physical or mental disease, disorder, or defect pursuant to chapter 704.

“Sex offender” means:

- (1) A person who is or has been convicted at any time, whether before or after May 9, 2005, of a “sexual offense”; or
- (2) A person who is or has been charged at any time, whether before or after May 9, 2005, with a “sexual offense” and is or has been found unfit to proceed and is or has been released into the community or who is acquitted due to a physical or mental disease, disorder, or defect pursuant to chapter 704 and is released into the community.

“Sexual offense” means an offense that is:

- (1) Set forth in section 707-730(1), 707-731(1), 707-732(1), 707-733(1)(a), (b), or (d), 707-733.6, 707-741, 711-1109.8, 712-1200.5(4), 712-1202(1), or 712-1203(1), but excludes conduct that is criminal pursuant to section 707-730(1)(b), 707-732(1)(b), or 707-741, if the perpetrator is under the age of eighteen, and also excludes conduct that is criminal pursuant to section 707-733(1)(b) or (d) if the perpetrator is under the age of twenty-five at the time of the offense;

- (2) An act defined in section 707-720 if the charging document for the offense for which there has been a conviction alleged intent to subject the victim to a sexual offense;
- (3) An act that consists of:
 - (A) Criminal sexual conduct toward a minor, including but not limited to an offense set forth in section 707-759;
 - (B) Solicitation of a minor who is less than fourteen years old to engage in sexual conduct;
 - (C) Use of a minor in a sexual performance;
 - (D) Production, distribution, or possession of child pornography chargeable as a felony under section 707-750, 707-751, or 707-752;
 - (E) Electronic enticement of a child chargeable under section 707-756 or 707-757 if the offense was committed with the intent to promote or facilitate the commission of another covered offense as defined in this section; or
 - (F) Commercial sexual exploitation of a minor in violation of section 712-1209.1;
- (4) A violation of privacy under section 711-1110.9;
- (5) An act that consists of use of a computer in the commission of a separate crime under section 708-893, wherein the separate crime is a covered offense, as defined in this section;
- (6) An act, as described in chapter 705, that is an attempt, criminal solicitation, or criminal conspiracy to commit one of the offenses designated in paragraphs (1) through (5);
- (7) A criminal offense that is comparable to or that exceeds a sexual offense as defined in paragraphs (1) through (6); or
- (8) Any federal, military, out-of-state, tribal, or foreign conviction for any offense that under the laws of this State would be a sexual offense as defined in paragraphs (1) through (7).

“Temporary residence” means a building, permanent structure or unit therein, watercraft, emergency shelter, or transitional housing facility where the covered offender resides, but does not intend to reside for more than one hundred eighty days.

“Tribal conviction” means a conviction by a tribal court of an Indian tribe recognized by the government of the United States.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, § 1; Laws 2003, ch. 62, § 3; Laws 2004, ch. 59, § 1; Laws 2005, ch. 45, § 3; Laws 2006, ch. 60, § 5; Laws 2006, ch. 106, § 1; Laws 2008, ch. 80, § 4, eff. Jan. 1, 2009; Laws 2009, ch. 11, § 10, eff. Apr. 21, 2009; Laws 2011, ch. 125 § 1, eff. July 1, 2011; Laws 2013, ch. 64, §§ 3, 4, eff. April 30, 2013; Laws 2013, ch. 247, § 5, eff. July 1, 2013; Laws 2021, ch. 68, § 14, eff. June 24, 2021; Laws 2022, ch. 278, § 29, eff. Jan. 1, 2024; Laws 2025, ch. 149, § 2, eff. June 3, 2025.

H R S § 846E-1, HI ST § 846E-1

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West's Hawai'i Revised Statutes Annotated

Division 5. Crimes and Criminal Proceedings

Title 38. Procedural and Supplementary Provisions

Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration Information (Refs & Annos)

HRS § 846E-2

§ 846E-2. Registration requirements

Effective: June 7, 2021

Currentness

(a) A covered offender shall register with the attorney general and comply with the provisions of this chapter for life or for a shorter period of time as provided in this chapter. Registration under this subsection is required whenever the covered offender, whether or not a resident of this State, remains in this State for more than ten days or for an aggregate period exceeding thirty days in one calendar year. A covered offender shall be eligible to petition the court in a civil proceeding for an order that the covered offender's registration requirements under this chapter be terminated, as provided in section 846E-10.

(b) A person who establishes or maintains a residence in this State or who remains in this State for more than ten days or for an aggregate period exceeding thirty days in one calendar year, and who has not been designated as a covered offender by a court of this State but who has been designated as a covered offender, sex offender, offender against minors, repeat covered offender, sexually violent predator, or any other sexual offender designation in another state or jurisdiction and was, as a result of the designation, subjected to registration or community or public notification, or both, or would be if the person was a resident of that state or jurisdiction, without regard to whether the person otherwise meets the criteria for registration as a covered offender, shall register in the manner provided in this section. A person who meets the criteria of this subsection is subject to the requirements of this chapter for covered offenders and penalty provisions of section 846E-9 until the person successfully petitions:

- (1) The attorney general for termination of registration requirements by providing an order issued by the court that designated the person as a covered offender, sex offender, offender against minors, repeat covered offender, sexually violent predator, or any other sexual offender designation in the state or jurisdiction in which the order was issued, which states that the designation has been removed or demonstrates to the attorney general that the designation, if not imposed by a court, has been removed by operation of law or court order in the state or jurisdiction in which the designation was made, and the person does not meet the criteria for registration as a covered offender under the laws of this State; provided that if the person is not satisfied with the decision of the attorney general on the request for termination of registration requirements, the person may appeal the decision pursuant to chapter 91; or
- (2) The court for termination of registration requirements pursuant to section 846E-10.

(c) Each provision of this chapter applicable to sex offenders shall also be applicable to offenders against minors, unless offenders against minors are specifically excluded. Whenever a covered offender's public information is made publicly accessible, separate registries shall be maintained for:

- (1) Sex offenders; and

- (2) Offenders against minors.
- (d) Registration information for each covered offender shall include a signed statement by the covered offender containing:
- (1) The name, all prior names, nicknames and pseudonyms, and all aliases used by the covered offender or under which the covered offender has been known and other identifying information, including date of birth and any alias date of birth, social security number and any alias social security number, sex, race, height, weight, and hair and eye color;
 - (2) The actual address and telephone number of the covered offender's permanent residence or the address of the covered offender's current temporary residence, or if an address is not available, a description of the place or area in which the covered offender resides for at least thirty nonconsecutive days within a sixty-day period, and for each address or place where the covered offender resides, how long the covered offender has resided there;
 - (3) The actual address or description of the place or area, the actual length of time of the stay, and telephone number where the covered offender is staying for a period of more than ten days, if other than the stated residence;
 - (4) If known, the future address and telephone number of the place where the covered offender is planning to reside, if other than the stated residence;
 - (5) Any electronic mail address, any instant message name, any internet designation or moniker, and any internet address used for routing or self-identification;
 - (6) Any cell phone number and other designations used for routing or self-identification in telephonic communications;
 - (7) Names and, if known, actual business addresses of current and known future employers, including information for any place where the covered offender works as a volunteer or otherwise works without remuneration, and the starting and ending dates of any such employment;
 - (8) For covered offenders who may not have a fixed place of employment, a description of the places where such a covered offender works, such as information about normal travel routes or the general area or areas in which the covered offender works;
 - (9) Professional licenses held by the covered offender;
 - (10) Names and actual addresses of current and known future educational institutions with which the covered offender is affiliated in any way, whether or not compensated, including but not limited to affiliation as a faculty member, an employee, or a student, and the starting and ending dates of any such affiliation;

- (11) The year, make, model, color, and license or registration or other identifying number of all vehicles, including automobiles, watercrafts, and aircrafts, currently owned or operated by the covered offender and the address or description of the place or places where the covered offender's vehicle or vehicles are habitually parked, docked, or otherwise kept;
 - (12) Passports and information about the passports, if the covered offender has passports, and documents establishing immigration status and information about these documents, if the covered offender is an alien;
 - (13) A statement listing all covered offenses for which the covered offender has been convicted or found unfit to proceed or acquitted pursuant to chapter 704;
 - (14) A statement indicating whether the covered offender has received or is currently receiving treatment ordered by a court of competent jurisdiction or by the Hawaii paroling authority;
 - (15) A statement indicating whether the covered offender is a United States citizen; and
 - (16) Any additional identifying information about the covered offender.
- (e) The following information shall also be included in the registry for each covered offender:
- (1) A current photograph of the covered offender;
 - (2) A physical description of the covered offender, including a description of particular identifying characteristics such as scars or tattoos;
 - (3) Confirmation that the covered offender has provided digitized fingerprints and palm prints of the covered offender;
 - (4) Judgment of conviction, judgment of acquittal, or judicial determination of unfitness to proceed documenting the criminal offense or offenses for which the covered offender is registered;
 - (5) The text, or an electronic link to the text, of the provision of law defining the criminal offense or offenses for which the covered offender is registered;
 - (6) The criminal history of the covered offender, or an electronic link to the criminal history, including the date of all arrests and convictions, the status of parole, probation, or supervised release, registration status, and the existence of any outstanding arrest warrants for the covered offender;
 - (7) Confirmation that the covered offender has provided a DNA buccal swab sample as required by chapter 844D;

(8) Digitized copies of a valid driver's license or identification card issued to the covered offender, or an electronic link to such records; and

(9) Digitized copies of passports and documents establishing immigration status, or an electronic link to such records.

(f) Whenever a covered offender provides registration information, during initial registration as a covered offender or when providing notice of a change in registration information, the covered offender also shall sign a statement verifying that all of the registration information is accurate and current.

(g) In addition to the requirement under subsection (a) to register with the attorney general and comply with the provisions of this chapter until a court relieves the covered offender of the registration requirements of this chapter, each covered offender shall also register in person with the chief of police where the covered offender resides or is present. Registration under this subsection is for the purpose of providing the covered offender's photograph, fingerprints, and registration information. Registration under this subsection is required whenever the covered offender, whether or not a resident of this State, remains in this State for more than ten days or for an aggregate period exceeding thirty days in one calendar year. Covered offenders required to register in person with the chief of police under this subsection shall register no later than three working days after the earliest of:

(1) Arrival in this State;

(2) Release from incarceration;

(3) Release from commitment;

(4) Release on furlough;

(5) Conviction for a covered offense, unless incarcerated;

(6) Release on probation;

(7) Placement on parole; or

(8) Arrival in a county in which the covered offender resides or expects to be present for a period exceeding ten days.

In addition to any other requirement to register under this subsection or subsection (a), each covered offender shall report in person every five years until June 30, 2009, and beginning on July 1, 2009, every year, within the thirty-day period following the offender's date of birth, to the chief of police where the covered offender resides, or to such other department or agency that may be designated by the attorney general in rules adopted pursuant to chapter 91 for purposes of the administration of this subsection, and shall review the existing information in the registry that is within the offender's knowledge, correct any information that has changed or is inaccurate, provide any new information that may be required, and allow the police and such other department or agency designated by the attorney general to take a current photograph of the offender.

(h) The registration provisions of this section shall apply to all covered offenders without regard to:

- (1) The date of the covered offender's conviction;
- (2) The date of finding, pursuant to chapter 704, of the covered offender's unfitness to proceed; or
- (3) The date of the covered offender's acquittal due to mental disease, disorder, or defect, pursuant to chapter 704.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, § 2; Laws 2002, ch. 234, § 1; Laws 2003, ch. 62, § 4; Laws 2004, ch. 59, § 2; Laws 2005, ch. 45, § 4; Laws 2006, ch. 106, § 2; Laws 2008, ch. 80, § 5, eff. Jan. 1, 2009; Laws 2013, ch. 64, § 5, eff. April 30, 2013; Laws 2021, ch. 40, § 2, eff. June 7, 2021.

H R S § 846E-2, HI ST § 846E-2
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HRS § 846E-3

§ 846E-3. Access to registration information

Effective: June 3, 2025

Currentness

(a) Registration information shall be disclosed as follows:

- (1) The information shall be disclosed to law enforcement agencies for law enforcement purposes;
- (2) The information shall be disclosed to government agencies conducting confidential background checks; and
- (3) The attorney general and any county police department shall release public information as provided in subsection (b) concerning a specific person required to register under this chapter; provided that the identity of a victim of an offense that requires registration under this chapter shall not be released.

(b) For purposes of this section, “public information” means:

- (1) Name, prior names, nicknames and pseudonyms, and all aliases used by the covered offender or under which the covered offender has been known;
- (2) The year of the covered offender's date of birth and the year of the covered offender's alias dates of birth;
- (3) A physical description of the covered offender, including a description of particular identifying characteristics such as scars or tattoos;
- (4) The actual address where the covered offender resides or any current, temporary address where the covered offender resides or, if an address is not available, a description of any place or area in which the covered offender resides for at least thirty nonconsecutive days within a sixty-day period, and, for each address or place where the covered offender resides, how long the covered offender has resided there;
- (5) The actual address or description of the place or area where the covered offender is staying for more than ten days, if other than the stated residence, and the actual length of time of the stay;

- (6) The future actual address, if known, where the covered offender is planning to reside, if other than the stated residence;
- (7) The street name and zip code of the covered offender's current locations of employment, including information for any place where the covered offender works as a volunteer or otherwise works without remuneration;
- (8) For covered offenders who may not have a fixed place of employment, a description of the places where such a covered offender works;
- (9) Professional licenses held by the covered offender;
- (10) Names and actual addresses of current and known future educational institutions with which the covered offender is affiliated as a faculty member, an employee, or a student, and the starting and ending dates of any such affiliation;
- (11) The year, make, model, color, and license number of all vehicles, including automobiles, watercrafts, and aircrafts, currently owned or operated by the covered offender, excluding vehicles operated exclusively for purposes of work;
- (12) A statement listing all covered offenses for which the covered offender has been convicted or found unfit to proceed or acquitted pursuant to chapter 704;
- (13) Judgment of conviction, judgment of acquittal, or judicial determination of unfitness to proceed documenting the criminal offense or offenses for which the covered offender is registered;
- (14) The text, or an electronic link to the text, of the provision of law defining the criminal offense or offenses for which the covered offender is registered; and
- (15) A recent photograph of the covered offender.

The identity of any victim of a sexual offense shall not be disclosed and any documentation containing such information shall be redacted to prevent disclosure.

(c) To facilitate community notification, after a covered offender registers or updates a registration, the attorney general may provide public information in the registry about that offender to any organization, company, or individual who requests such notification pursuant to procedures established by the attorney general through rules adopted pursuant to chapter 91.

(d) A covered offender may seek correction of erroneous public information by petitioning the attorney general to make the correction. If the covered offender is not satisfied with the decision of the attorney general on the request for correction, the covered offender may appeal the decision pursuant to chapter 91.

(e) Public access to a covered offender's public information shall be permitted with regard to each covered offender beginning the next working day following the filing of a judgment of conviction, a finding of unfitness to proceed or an acquittal due to

mental disease, disorder, or defect, for a covered offense, or as soon thereafter as is practical. When a notice of appeal has been filed, the public information shall note that the covered offender has filed a notice of appeal. The public information shall be removed upon the reversal of the covered offender's conviction or the granting of a pardon to the covered offender.

(f) Public access authorized by this section shall be provided by both public internet access and on-site public access; provided that on-site public access shall be provided for each covered offender at the Hawaii criminal justice data center and at one or more designated police stations in each county, to be designated by the attorney general, between the hours of 8:00 a.m. and 4:30 p.m. on weekdays, excluding holidays.

(g) Public access to the public information for each covered offender shall be permitted while the covered offender is subject to sex offender registration, except that after forty years have elapsed after release or sentencing, whichever is later, a covered offender may petition the court in a civil proceeding to terminate public access. In the civil proceeding to terminate public access, the State shall be represented by the attorney general; provided that the attorney general, with the prosecuting agency's consent, may designate the prosecuting agency that prosecuted the covered offender for the most recent covered offense within the State to represent the State. For covered offenders who have never been convicted of a covered offense within the State of Hawaii, the attorney general shall represent the State; provided that the attorney general, with the prosecuting agency's consent, may designate the prosecuting agency for the county in which the covered offender resides to represent the State. The court may order this termination upon substantial evidence and more than proof by a preponderance of the evidence that:

- (1) The covered offender has had no new convictions for covered offenses;
- (2) The covered offender is very unlikely to commit a covered offense ever again; and
- (3) Public access to the covered offender's public information will not assist in protecting the safety of the public or any member thereof;

provided that a denial by the court for relief pursuant to a petition under this section shall preclude the filing of another petition for five years from the date of the last denial.

(h) If a covered offender has been convicted of only one covered offense and that covered offense is a misdemeanor and was not committed against a minor, the covered offender shall not be subject to the public access requirements set forth in this section.

(i) The following message shall be posted at both the site of internet access and on-site public access locations:

“Information regarding covered offenders is permitted pursuant to chapter 846E. Public access to this information is based solely on the fact of each offender's criminal conviction and is not based on an estimate of the offender's level of dangerousness. By allowing public access to this information, the State makes no representation as to whether the covered offenders listed are dangerous. Any person who uses the information in this registry to injure, harass, or commit a criminal act against any person included in the registry may be subject to criminal prosecution, civil liability, or both.”

(j) The public access provisions of this section shall apply to all covered offenders without regard to the date of conviction.

(k) “Conviction” as used in this section means:

- (1) A judgment on the verdict, or a finding of guilt after a plea of guilty or nolo contendere, excluding the adjudication of a minor;
- (2) A finding of unfitness to proceed resulting in the release of the covered offender into the community, excluding such a finding as to a minor; or
- (3) An acquittal due to a physical or mental disease, disorder, or defect pursuant to chapter 704 resulting in the release of the covered offender into the community, excluding such acquittal as to a minor.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, § 3; Laws 2002, ch. 234, § 2; Laws 2003, ch. 62, § 5; Laws 2004, ch. 59, § 3; Laws 2005, ch. 45, § 5; Laws 2006, ch. 106, § 3; Laws 2008, ch. 80, § 6, eff. Jan. 1, 2009; Laws 2025, ch. 149, § 3, eff. June 3, 2025.

H R S § 846E-3, HI ST § 846E-3

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HRS § 846E-4

§ 846E-4. Duties upon discharge, parole, or release of covered offender

Currentness

(a) Each person, or that person's designee, in charge of a jail, prison, hospital, school, or other institution to which a covered offender has been committed pursuant to a conviction, or an acquittal or finding of unfitness to proceed pursuant to chapter 704, for a covered offense, and each judge, or that judge's designee, who continues bail for or releases a covered offender following sentencing and the entry of a judgment of conviction, who releases a covered offender on probation or who discharges a covered offender upon payment of a fine, and each agency having jurisdiction, shall, prior to the discharge, parole, or release of the covered offender:

- (1) Explain to the covered offender the duty to register and the consequences of failing to register under this chapter;
- (2) Obtain from the covered offender all of the registration information required by this chapter;
- (3) Inform the covered offender that if at any time the covered offender changes any of the covered offender's registration information, the covered offender shall notify the attorney general of the new registration information in writing within three working days;
- (4) Inform the covered offender that, if at any time the covered offender changes residence to another state, the covered offender shall register the new address with the attorney general and also with a designated law enforcement agency in the new state, if the new state has a registration requirement, within the period of time mandated by the new state's sex offender registration laws;
- (5) Obtain and verify fingerprints and a photograph of the covered offender, if these have not already been obtained or verified in connection with the offense that triggers the registration;
- (6) Require the covered offender to sign a statement indicating that the duty to register has been explained to the covered offender; and
- (7) Give one copy of the signed statement and one copy of the registration information to the covered offender.

(b) No covered offender required to register under this chapter shall be discharged, released from any confinement, or placed on parole or probation unless the requirements of subsection (a) have been satisfied and all registration information required under section 846E-2 has been obtained.

(c) Notwithstanding any law to the contrary, a copy of the signed statement and one copy of the registration information shall be transmitted to the attorney general within three working days.

(d) Following receipt of the information from the agency having jurisdiction over the covered offender, the attorney general immediately shall enter the information into a statewide record system, unless the information has been previously entered into a statewide record system, and notify the county police department or appropriate law enforcement agency having jurisdiction where the covered offender expects to reside. The attorney general immediately shall transmit the conviction data and verified fingerprints to the Federal Bureau of Investigation, unless the items have been previously transmitted to the Federal Bureau of Investigation.

(e) The chief of police shall transmit any covered offender registration information required by this chapter to the attorney general, by entering the information into a statewide record system, if the information has not previously been entered into the system, and also shall provide the attorney general with a photograph and fingerprints of the covered offender, taken at the time the covered offender registers with the chief of police. The covered offender shall report in person every five years until June 30, 2009, and beginning on July 1, 2009, every year, within the thirty-day period following the offender's date of birth, to the chief of police where the covered offender's residence is located, or to such other department or agency that may be designated by the attorney general in rules adopted pursuant to chapter 91 for purposes of the administration of this subsection, and shall review the existing information in the registry that is within the offender's knowledge, correct any information that has changed or is inaccurate, provide any new information that may be required, and allow the police and such other department or agency designated by the attorney general to take a current photograph of the offender.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, §§ 4 to 6; Laws 2003, ch. 62, §§ 6, 7; Laws 2005, ch. 45, § 6; Laws 2008, ch. 80, § 7, eff. Jan. 1, 2009; Laws 2013, ch. 64, § 6, eff. April 30, 2013.

H R S § 846E-4, HI ST § 846E-4

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HRS § 846E-5

§ 846E-5. Periodic verification of registration information

Currentness

(a) For the covered offender who has registered a permanent residence address to which the United States Postal Service will deliver mail or a permanent residence and a registered post office box, during the first week of the months of January, April, July, and October of every year, the attorney general shall mail a nonforwardable verification form to the last reported permanent residence address or post office box of the covered offender. Upon receipt of the verification form:

- (1) The covered offender shall sign the verification form and state that the covered offender still resides at the address last reported to the attorney general and that no other registration information has changed or shall provide the new information; and
- (2) The covered offender shall mail the signed and completed verification form to the attorney general within ten days after receipt of the form.

(b) For the covered offender who has registered:

- (1) A temporary residence address;
- (2) A description of a place or area in which the covered offender resides for at least thirty nonconsecutive days within a sixty-day period;
- (3) No place of residence; or
- (4) A permanent residence address, to which the United States Postal Service will not deliver mail, and has no registered post office box,

during the first week of the months of January, April, July, and October of every year, the covered offender shall report to the chief of police where the covered offender resides, or to such other department or agency that may be designated by the attorney general in rules adopted pursuant to chapter 91 for purposes of administration of this section, and shall review the existing information in the registry that is within the covered offender's knowledge, correct any information that has changed or is inaccurate, and provide any new information that may be required.

(c) The periodic verification provisions of this section shall not apply to covered offenders who are incarcerated or have registered with a designated law enforcement agency after establishing residence in another state.

Credits

Laws 1997, ch. 316, § 2; Laws 2005, ch. 45, § 7; Laws 2013, ch. 64, § 7, eff. April 30, 2013.

H R S § 846E-5, HI ST § 846E-5

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HRS § 846E-6

§ 846E-6. Requirement to register a change of registration information; verification by the attorney general

Currentness

(a) A covered offender required to register under this chapter, who changes any of the covered offender's registration information after an initial registration with the attorney general, shall notify the attorney general of the new registration information in writing within three working days of the change. For purposes of this section, a person shall be deemed to have established a new residence during any period in which the person is absent from the person's registered residence for ten or more days. If, at any time, a covered offender required to register under this chapter is absent from the person's registered residence for ten or more days, the covered offender shall notify the attorney general in writing within three working days of the covered offender's current residence information. If the covered offender leaves the State and establishes a new residence in another state that has a registration requirement, the person shall register with the designated law enforcement agency in the state to which the person moves, within the period of time mandated by the new state's sex offender registration laws.

(b) If the attorney general receives notice from the Federal Bureau of Investigation that a covered offender required to be registered under this chapter or under any federal law has entered the State, the attorney general shall notify the Federal Bureau of Investigation of the offender's new residence.

(c) If the attorney general cannot verify the address of or locate a covered offender required to be registered under this chapter or under federal law, the attorney general immediately shall notify the Federal Bureau of Investigation.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, §§ 7, 8; Laws 2003, ch. 62, § 8; Laws 2004, ch. 59, § 4; Laws 2005, ch. 45, § 8; Laws 2006, ch. 106, § 4; Laws 2013, ch. 64, § 8, eff. April 30, 2013.

H R S § 846E-6, HI ST § 846E-6

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HRS § 846E-7

§ 846E-7. Notification by the attorney general of changes in registration information

Currentness

Immediately, and in no event, not later than ten days after receiving notice of a change of registration information, the attorney general shall report the change of registration information by a covered offender required to register under this chapter to the county police department where the covered offender is residing and, in the event the covered offender changes address to another county or state, shall report such change of address to the Federal Bureau of Investigation. If the person changes residence to another state, the attorney general also shall notify the law enforcement agency with which the person must register in the new state, if the new state has a registration requirement.

Credits

Laws 1997, ch. 316, § 2; Laws 1998, ch. 194, § 9; Laws 2005, ch. 45, § 9.

H R S § 846E-7, HI ST § 846E-7

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HRS § 846E-8

[§ 846E-8]. Good faith immunity

Currentness

Law enforcement agencies, employees of law enforcement agencies, and state and county officials shall be immune from liability for good faith conduct under this chapter.

Credits

Laws 1997, ch. 316, § 2.

H R S § 846E-8, HI ST § 846E-8

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HRS § 846E-9

§ 846E-9. Failure to comply with covered offender registration requirements

Effective: June 3, 2025

Currentness

(a) A person commits the offense of failure to comply with covered offender registration requirements if the person is required to register under this chapter and the person intentionally, knowingly, or recklessly:

- (1) Fails to register with the attorney general by providing to the attorney general or the Hawaii criminal justice data center the person's registration information;
- (2) Fails to report in person every five years until June 30, 2009, and beginning on July 1, 2009, once every year, during the thirty-day period following the offender's birthday to the chief of police where the covered offender's residence is located, or to such other department or agency designated by the attorney general;
- (3) While reporting to the chief of police or such other department or agency designated by the attorney general, fails to correct information in the registry within the offender's knowledge that has changed or is inaccurate regarding information required by section 846E-2(d)(1) through (12);
- (4) While reporting to the chief of police or such other department or agency designated by the attorney general, fails to provide new information that may be required by section 846E-2(d)(1) through (12);
- (5) While reporting to the chief of police or such other department or agency designated by the attorney general, does not allow the police or other designated department or agency to take a current photograph of the person;
- (6) Fails to register in person with the chief of police having jurisdiction of the area where the covered offender resides or is present within three working days whenever the provisions of section 846E-2(g) require the person to do so;
- (7) Fails to notify the attorney general or the Hawaii criminal justice data center of a change of any of the covered offender's registration information in writing within three working days of the change;
- (8) Provides false registration information to the attorney general, the Hawaii criminal justice data center, or a chief of police;

- (9) Signs a statement verifying that all of the registration information is accurate and current when any of the registration information is not substantially accurate and current;
- (10) Having failed to establish a new residence within the ten days while absent from the person's registered residence for ten or more days, fails to notify the attorney general in writing within three working days of the covered offender's current residence information;
- (11) Fails to mail or deliver the periodic verification of registration information form to the attorney general within ten days of receipt, as required by section 846E-5; provided that it shall be an affirmative defense that the periodic verification form mailed to the covered offender was delivered when the covered offender was absent from the registered address and the covered offender had previously notified the Hawaii criminal justice data center that the covered offender would be absent during the period that the periodic verification form was delivered; or
- (12) Fails to report to the chief of police where the covered offender resides, or to such other department or agency that may be designated by the attorney general in rules adopted pursuant to chapter 91, during the first week of the months of January, April, July, and October of every year, and verify and update the covered offender's registration information as required by section 846E-5(b).
- (b) With respect to subsection (a)(1), (2), (6), (7), (10), (11), or (12), if a defendant intends to rely upon the defense that the covered offender was in custody or civilly committed, the defendant shall within the time provided for the filing of pretrial motions or at a later time as the court may direct, notify the prosecutor in writing of the defendant's intention and file a copy of the notice with the court.
- (c) Failure to comply with covered offender registration requirements is a class C felony.

Credits

Laws 1997, ch. 316, § 2; Laws 2004, ch. 59, § 5; Laws 2005, ch. 45, § 10; Laws 2006, ch. 106, § 5; Laws 2008, ch. 80, § 8, eff. Jan. 1, 2009; Laws 2013, ch. 64, § 9, eff. April 30, 2013; Laws 2025, ch. 149, § 4, eff. June 3, 2025.

H R S § 846E-9, HI ST § 846E-9
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HRS § 846E-10

§ 846E-10. Termination of registration requirements

Effective: June 3, 2025

Currentness

(a) Tier 3 offenses. A covered offender whose covered offense is any of the following offenses shall register for life and, except as provided in subsection (f), shall not petition the court, in a civil proceeding, for termination of registration requirements:

(1) Any offense set forth in section 707-730(1)(a), (b), (d), or (e); 707-731(1)(a) or (b); 707-732(1)(a), (b), or (g); or 707-733.6;

(2) An offense set forth in section 707-720; provided that the offense involves kidnapping of a minor by someone other than a parent;

(3) An offense that is an attempt, criminal solicitation, or criminal conspiracy to commit any of the offenses in paragraph (1) or (2);

(4) Any criminal offense that is comparable to one of the offenses in paragraph (1), (2), or (3); or

(5) Any federal, military, out-of-state, tribal, or foreign offense that is comparable to one of the offenses in paragraph (1), (2), or (3).

(b) A repeat covered offender shall register for life and, except as provided in subsection (f), shall not petition the court, in a civil proceeding, for termination of registration requirements.

(c) Tier 2 offenses. A covered offender who has maintained a clean record for the previous twenty-five years, excluding any time the offender was in custody or civilly committed, and who has substantially complied with the registration requirements of this chapter for the previous twenty-five years, or for the portion of that twenty-five years that this chapter has been applicable, and who is not a repeat covered offender may petition the court, in a civil proceeding, for termination of registration requirements; provided that the covered offender's most serious covered offense is one of the following:

(1) Any offense set forth in section 707-730(1)(c), 707-731(1)(c) or (d), 707-732(1)(c), 707-750, 707-751, 712-1202, or 712-1203(1)(b), as section 712-1203(1)(b) read before its amendment pursuant to section 9 of Act 147, Session Laws of Hawaii 2008;

- (2) An offense set forth in section 707-720; provided that the charging document for the offense for which there has been a conviction alleged intent to subject the victim to a sexual offense;
 - (3) An offense set forth in section 707-756 that includes an intent to promote or facilitate the commission of another felony covered offense as defined in section 846E-1;
 - (4) An offense that is an attempt, criminal solicitation, or criminal conspiracy to commit any of the offenses in paragraph (1), (2), or (3);
 - (5) Any criminal offense that is comparable to one of the offenses in paragraph (1), (2), (3), or (4); or
 - (6) Any federal, military, out-of-state, tribal, or foreign offense that is comparable to one of the offenses in paragraph (1), (2), (3), or (4).
- (d) Tier 1 offenses. A covered offender who has maintained a clean record for the previous ten years, excluding any time the offender was in custody or civilly committed, and who has substantially complied with the registration requirements of this chapter for the previous ten years, or for the portion of that ten years that this chapter has been applicable, and who is not a repeat covered offender may petition the court, in a civil proceeding, for termination of registration requirements; provided that the covered offender's most serious covered offense is one of the following:
- (1) Any offense set forth in section 707-732(1)(d), (e), or (f); 707-733(1)(a), (b), or (d); 707-741; 707-752; 707-759; 711-1109.8; 711-1110.9; 712-1203(1); or 712-1209.1;
 - (2) An offense set forth in section 707-721 or 707-722; provided that the offense involves unlawful imprisonment of a minor by someone other than a parent;
 - (3) An offense set forth in section 707-757 that includes an intent to promote or facilitate the commission of another covered offense as defined in section 846E-1;
 - (4) An offense that is an attempt, criminal solicitation, or criminal conspiracy to commit any of the offenses in paragraph (1), (2), or (3);
 - (5) Any criminal offense that is comparable to one of the offenses in paragraph (1), (2), (3), or (4);
 - (6) Any federal, military, out-of-state, tribal, or foreign offense that is comparable to one of the offenses in paragraph (1), (2), (3), or (4); or
 - (7) Any other covered offense that is not specified in subsection (a) or (c) or paragraph (1), (2), (3), (4), (5), or (6).

(e) If the covered offender's most serious covered offense is set forth in section 708-893, then the designated tier of the separate crime as provided in section 708-893, shall set forth the covered offender's appropriate termination of registration requirements.

(f) Notwithstanding any other provisions in this section, any covered offender, forty years after the covered offender's date of release or sentencing, whichever is later, for the covered offender's most recent covered offense, may petition the court, in a civil proceeding, for termination of registration requirements.

(g) In the civil proceeding for termination of registration requirements, the State shall be represented by the attorney general; provided that the attorney general, with the prosecuting agency's consent, may designate the prosecuting agency that prosecuted the covered offender for the most recent covered offense within the State to represent the State. For covered offenders who have never been convicted of a covered offense within the State, the attorney general shall represent the State; provided that the attorney general, with the prosecuting agency's consent, may designate the prosecuting agency for the county in which the covered offender resides to represent the State. The court may order this termination upon substantial evidence and more than proof by a preponderance of the evidence that:

- (1) The covered offender has met the statutory requirements of eligibility to petition for termination;
- (2) The covered offender has substantially complied with registration requirements;
- (3) The covered offender is very unlikely to commit a covered offense ever again; and
- (4) Registration by the covered offender will not assist in protecting the safety of the public or any member thereof.

(h) A person who does not meet the criteria for registration as a covered offender under the laws of this State, but is subject to registration pursuant to section 846E-2(b), may petition the court, in a civil proceeding, for termination of registration requirements; provided that the person has maintained a clean record for the previous ten years, excluding any time the person was in custody or civilly committed; has substantially complied with the registration requirements of this chapter for the previous ten years; and was not designated a repeat covered offender in any state or jurisdiction. The attorney general shall represent the State; provided that the attorney general, with the prosecuting agency's consent, may designate the prosecuting agency for the county in which the person resides to represent the State. The court may order this termination upon substantial evidence and more than proof by a preponderance of the evidence that:

- (1) The person has met the statutory requirements of eligibility to petition for termination;
- (2) The person has substantially complied with registration requirements;
- (3) The person is very unlikely to commit a covered offense; and
- (4) Registration by the person will not assist in protecting the safety of the public or any member thereof.

(i) A denial by the court for relief pursuant to a petition under this section shall preclude the filing of another petition for five years from the date of the most recent denial.

Credits

Laws 2005, ch. 45, § 1; Laws 2008, ch. 80, § 9, eff. Jan. 1, 2009; Laws 2011, ch. 125, § 2, eff. July 1, 2011; Laws 2013, ch. 64, § 10, eff. April 30, 2013; Laws 2013, ch. 247, § 6, eff. July 1, 2013; Laws 2016, ch. 206, § 19, eff. July 1, 2016; Laws 2021, ch. 40, § 3, eff. June 7, 2021; Laws 2021, ch. 239, § 4, eff. July 6, 2021; Laws 2025, ch. 149, § 5, eff. June 3, 2025.

H R S § 846E-10, HI ST § 846E-10

Current through the 2025 Regular Session.

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West's Hawai'i Revised Statutes Annotated

Division 5. Crimes and Criminal Proceedings

Title 38. Procedural and Supplementary Provisions

Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration Information (Refs & Annos)

HRS § 846E-11

§ 846E-11. Repealed by Laws 2008, ch. 80, § 10, eff. January 1, 2009

Currentness

H R S § 846E-11, HI ST § 846E-11

Current through the 2025 Regular Session.

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West's Hawai'i Revised Statutes Annotated
Division 5. Crimes and Criminal Proceedings
Title 38. Procedural and Supplementary Provisions
Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration
Information (Refs & Annos)

HRS § 846E-12

[§ 846E-12]. Tolling

Currentness

The time periods provided for in this chapter shall be tolled during any period of time the covered offender is committed or recommitted to prison or confined to a halfway house, or an equivalent facility, pursuant to a parole or probation violation.

Credits

Laws 2005, ch. 45, § 1.

H R S § 846E-12, HI ST § 846E-12

Current through the 2025 Regular Session.

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West's Hawai'i Revised Statutes Annotated

Division 5. Crimes and Criminal Proceedings

Title 38. Procedural and Supplementary Provisions

Chapter 846E. Registration of Sex Offenders and Other Covered Offenders and Public Access to Registration Information (Refs & Annos)

HRS § 846E-13

§ 846E-13. Repealed by Laws 2008, ch. 80, § 11, eff. January 1, 2009

Currentness

H R S § 846E-13, HI ST § 846E-13

Current through the 2025 Regular Session.

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act

I.C. T. 18, Ch. 83, Refs & Annos

Currentness

I.C. T. 18, Ch. 83, Refs & Annos, ID ST T. 18, Ch. 83, Refs & Annos

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

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West's Idaho Code Annotated
Title 18. Crimes and Punishments
Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8301

§ 18-8301. Short title

Currentness

This chapter shall be known and may be cited as the “Sexual Offender Registration Notification and Community Right-to-Know Act.”

Credits

S.L. 1998, ch. 411, § 2.

I.C. § 18-8301, ID ST § 18-8301

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8302

§ 18-8302. Findings

Currentness

The legislature finds that sexual offenders present a danger and that efforts of law enforcement agencies to protect their communities, conduct investigations and quickly apprehend offenders who commit sexual offenses are impaired by the lack of current information available about individuals who have been convicted of sexual offenses who live within their jurisdiction. The legislature further finds that providing public access to certain information about convicted sexual offenders assists parents in the protection of their children. Such access further provides a means for organizations that work with youth or other vulnerable populations to prevent sexual offenders from threatening those served by the organizations. Finally, public access assists the community in being observant of convicted sexual offenders in order to prevent them from recommitting sexual crimes. Therefore, this state's policy is to assist efforts of local law enforcement agencies to protect communities by requiring sexual offenders to register with local law enforcement agencies and to make certain information about sexual offenders available to the public as provided in this chapter.

Credits

S.L. 1998, ch. 411, § 2. Amended by S.L. 2011, ch. 311, § 1, eff. July 1, 2011.

I.C. § 18-8302, ID ST § 18-8302

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8303

§ 18-8303. Definitions

Effective: July 1, 2024

Currentness

As used in this chapter:

(1) “Aggravated offense” means any of the following crimes: 18-1506A (ritualized abuse of a child); 18-1508 (lewd conduct); 18-4003(d) (murder committed in the perpetration of rape); 18-4502 (first-degree kidnapping committed for the purpose of rape, committing any lewd and lascivious act upon any child under the age of sixteen years or for purposes of sexual gratification or arousal); 18-4503 (second-degree kidnapping where the victim is an unrelated minor child and the kidnapping is committed for the purpose of rape, committing any lewd and lascivious act upon any child under the age of sixteen years or for purposes of sexual gratification or arousal); 18-6101 (rape, but excluding section 18-6101(1) where the victim is at least twelve (12) years of age or the defendant is eighteen (18) years of age and section 18-6101(2) where the victim is sixteen (16) or seventeen (17) years of age and the defendant is no more than five (5) years older than the victim); 18-6604 (forcible penetration by use of a foreign object); chapter 86, title 18, (human trafficking); and any other offense set forth in section 18-8304, Idaho Code, if at the time of the commission of the offense the victim was below the age of thirteen (13) years or an offense that is substantially similar to any of the foregoing offenses under the laws of another jurisdiction or military court or the court of another country.

(2) “Board” means the sexual offender management board described in section 18-8312, Idaho Code.

(3) “Central registry” means the registry of convicted sexual offenders maintained by the Idaho state police pursuant to this chapter.

(4) “Certified evaluator” means either a psychiatrist licensed by this state pursuant to chapter 18, title 54, Idaho Code, or a master's or doctoral level mental health professional licensed by this state pursuant to chapter 23, chapter 32, or chapter 34, title 54, Idaho Code. Such person shall have, by education, experience and training, expertise in the assessment and treatment of sexual offenders, and such person shall meet the qualifications and shall be approved by the board to perform psychosexual evaluations in this state, as described in section 18-8314, Idaho Code.

(5) “Department” means the Idaho state police.

(6) “Employed” means full-time or part-time employment exceeding ten (10) consecutive working days or for an aggregate period exceeding thirty (30) days in any calendar year, or any employment that involves counseling, coaching, teaching, supervising or working with minors in any way regardless of the period of employment, whether such employment is financially compensated, volunteered or performed for the purpose of any government or education benefit.

(7) “Foreign conviction” means a conviction under the laws of Canada, Great Britain, Australia or New Zealand, or a conviction under the laws of any foreign country deemed by the U.S. department of state, in its country reports on human rights practices, to have been obtained with sufficient safeguards for fundamental fairness and due process.

(8) “Incarceration” means committed to the custody of the Idaho department of correction or department of juvenile corrections, but excluding cases where the court has retained jurisdiction.

(9) “Jurisdiction” means any of the following: a state, the District of Columbia, the commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana Islands, the United States Virgin Islands, the federal government or a federally recognized Indian tribe.

(10) “Minor” means an individual who has not attained the age of eighteen (18) years.

(11) “Offender” means an individual convicted of an offense listed and described in section 18-8304, Idaho Code, or a substantially similar offense under the laws of another jurisdiction or military court or the court of another country deemed by the U.S. department of state, in its country reports on human rights practices, to have sufficient safeguards for fundamental fairness and due process.

(12) “Offense” means a sexual offense listed in section 18-8304, Idaho Code.

(13) “Psychosexual evaluation” means an evaluation that specifically addresses sexual development, sexual deviancy, sexual history and risk of reoffense as part of a comprehensive evaluation of an offender.

(14) “Recidivist” means an individual convicted two (2) or more times of any offense requiring registration under this chapter.

(15) “Residence” means the offender's present place of abode.

(16) “Student” means a person who is enrolled on a full-time or part-time basis in any public or private educational institution, including any secondary school, trade or professional institution or institution of higher education.

(17) “Violent sexual predator” means a person who was designated as a violent sexual predator by the sexual offender management board where such designation has not been removed by judicial action or otherwise.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 349, § 1; S.L. 2000, ch. 236, § 1; S.L. 2000, ch. 469, § 30; S.L. 2001, ch. 194, § 1; S.L. 2002, ch. 183, § 1; S.L. 2003, ch. 235, § 1; S.L. 2004, ch. 125, § 1; S.L. 2009, ch. 250, § 1, eff. July 1, 2009. Amended by S.L. 2010, ch. 352, § 6, eff. July 1, 2010; S.L. 2011, ch. 311, § 2, eff. July 1, 2011; S.L. 2016, ch. 296, § 9, eff. July 1, 2016; S.L. 2019, ch. 30, § 1, eff. July 1, 2019; S.L. 2019, ch. 143, § 5, eff. July 1, 2019; S.L. 2022, ch. 124, § 17, eff. July 1, 2022; S.L. 2024, ch. 147, § 46, eff. July 1, 2024; S.L. 2024, ch. 258, § 1, eff. July 1, 2024.

I.C. § 18-8303, ID ST § 18-8303

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8304

§ 18-8304. Application of chapter--Rulemaking authority

Effective: July 1, 2025

Currentness

(1) The provisions of this chapter shall apply to any person who:

(a) On or after July 1, 1993, is convicted of the crime, or an attempt, a solicitation, or a conspiracy to commit a crime provided for in section 18-909 (assault with intent to commit rape or lewd and lascivious conduct with a minor, but excluding mayhem, murder or robbery), 18-911 (battery with intent to commit rape or lewd and lascivious conduct with a minor, but excluding mayhem, murder or robbery), 18-919 (sexual exploitation by a medical care provider), 18-925 (aggravated sexual battery), 18-1505B (sexual abuse and exploitation of a vulnerable adult), 18-1506 (sexual abuse of a child under sixteen years of age), 18-1506A (ritualized abuse of a child), felony violations of 18-1507 (sexual exploitation of a child), 18-1508 (lewd conduct with a minor child), 18-1508A (sexual battery of a minor child sixteen or seventeen years of age), 18-1508B (aggravated lewd conduct with a minor child under sixteen), 18-1508C (aggravated lewd conduct with a minor child twelve or under), 18-1509A (enticing a child over the internet), 18-4003(d) (murder committed in perpetration of rape), 18-4116 (indecent exposure, but excluding a misdemeanor conviction), 18-4502 (first degree kidnapping committed for the purpose of rape or for committing any lewd and lascivious act upon any child under the age of sixteen, or for purposes of sexual gratification or arousal), 18-4503 (second degree kidnapping where the victim is an unrelated minor child), 18-5605 (detention for commercial sexual activity), 18-5609 (inducing a child into commercial sexual activity), 18-5610 (utilizing a child for commercial sexual activity), 18-5611 (inducing a child to engage in commercial sexual activity), 18-6101 (rape, but excluding 18-6101(1) where the defendant is eighteen years of age), 18-6110 (sexual contact with a prisoner), 18-6601 (incest), 18-6602 (sexual abuse of an animal), 18-6603 (sexual abuse of human remains), 18-6604 (forcible penetration by use of a foreign object), 18-6605 (video voyeurism where the victim is a minor or upon a second or subsequent conviction), 18-7804 (if the racketeering act involves kidnapping of a minor) or chapter 86, title 18 (human trafficking), Idaho Code.

(b) On or after July 1, 1993, has been convicted of any crime, an attempt, a solicitation or a conspiracy to commit a crime in another jurisdiction, including military courts, or who has a foreign conviction that is substantially equivalent to the offenses listed in paragraphs (a) or (f) of this subsection and enters this state to establish residence or for employment purposes or to attend, on a full-time or part-time basis, any public or private educational institution including any secondary school, trade or professional institution or institution of higher education.

(c) Has been convicted of any crime, an attempt, a solicitation or a conspiracy to commit a crime in another jurisdiction, including military courts, or who has a foreign conviction that is substantially equivalent to the offenses listed in paragraphs (a) or (f) of this subsection and was required to register as a sex offender in any other state or jurisdiction when he established residency in Idaho.

- (d) Pleads guilty to or has been found guilty of a crime covered in this chapter prior to July 1, 1993, and the person, as a result of the offense, is incarcerated in a county jail facility or a penal facility or is under probation or parole supervision, on or after July 1, 1993.
- (e) Is a nonresident regularly employed or working in Idaho or is a student in the state of Idaho and was convicted, found guilty or pleaded guilty to a crime covered by this chapter and, as a result of such conviction, finding or plea, is required to register in his state of residence.
- (f) On or after July 1, 1993, is convicted of the crime or an attempt, solicitation, or conspiracy to commit the infamous crime against nature, a felony offense formerly codified in chapter 66, title 18, Idaho Code, and whose conviction is entered before July 1, 2022.
- (2) An offender shall not be required to comply with the registration provisions of this chapter while incarcerated in a correctional institution of the department of correction, a county jail facility, committed to the department of juvenile corrections or committed to a mental health institution of the department of health and welfare.
- (3) A conviction for purposes of this chapter means that the person has pled guilty or has been found guilty, notwithstanding the form of the judgment or withheld judgment.
- (4) The department shall have authority to promulgate rules to implement the provisions of this chapter.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 302, § 1; S.L. 1999, ch. 349, § 2; S.L. 2001, ch. 194, § 2; S.L. 2003, ch. 145, § 2; S.L. 2004, ch. 122, § 2; S.L. 2005, ch. 233, § 1; S.L. 2006, ch. 408, § 1, eff. July 1, 2006; S.L. 2009, ch. 250, § 2, eff. July 1, 2009. Amended by S.L. 2010, ch. 352, § 7, eff. July 1, 2010; S.L. 2011, ch. 27, § 2, eff. July 1, 2011; S.L. 2011, ch. 311, § 3, eff. July 1, 2011; S.L. 2012, ch. 269, § 4, eff. July 1, 2012; S.L. 2012, ch. 271, § 1, eff. July 1, 2012; S.L. 2013, ch. 240, § 3, eff. July 1, 2013; S.L. 2016, ch. 296, § 5, eff. July 1, 2016; S.L. 2016, ch. 377, § 3, eff. July 1, 2016; S.L. 2018, ch. 322, § 3, eff. July 1, 2018; S.L. 2019, ch. 30, § 2, eff. July 1, 2019; S.L. 2019, ch. 143, § 6, eff. July 1, 2019; S.L. 2022, ch. 124, § 18, eff. July 1, 2022; S.L. 2023, ch. 181, § 1, eff. July 1, 2023; S.L. 2024, ch. 147, § 47, eff. July 1, 2024; S.L. 2025, ch. 177, § 6, eff. July 1, 2025.

I.C. § 18-8304, ID ST § 18-8304

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8305

§ 18-8305. Central registry--Notice to agencies

Currentness

(1) The department shall establish and maintain a central sexual offender registry separate from other records maintained by the department. The information contained in the registry shall be in digital form or include links or identification numbers that provide access to the information in other databases in which it is included in digital form. The registry shall include, but is not limited to, the following information:

(a) Name and all aliases that the offender has used or under which the offender has been known including the offender's primary or given name, nicknames and pseudonyms generally, regardless of the context in which they are used, any designations or monikers used for self-identification in internet communications or postings and traditional names given by family or clan pursuant to ethnic or tribal tradition;

(b) A complete physical description of the person including any identifying marks, such as scars or tattoos, the offender's date of birth including any date the offender uses as his or her purported date of birth and the offender's social security number including any number the offender uses as his or her purported social security number;

(c) The criminal history of the offender including the jurisdiction of all arrests and convictions, the name under which the offender was convicted of each offense, the status of parole, probation or supervised release; registration status; and the existence of any outstanding arrest warrants for the offender;

(d) The text of the provision of law defining the criminal offense for which the sexual offender is registered as formulated at the time the offender was convicted;

(e) The name and location of each hospital, jail or penal institution to which the offender was committed for each offense covered under this chapter;

(f) The address or physical description of each residence at which the offender resides;

(g) The name and address of any place where the offender is a student or will be a student unless the offender is only participating in courses remotely through the mail or the internet;

(h) The license plate number and a description of any vehicle owned or regularly operated by the sexual offender including any vehicle the offender drives, either for personal use or in the course of employment, regardless of to whom the vehicle

is registered. The term “vehicle” includes watercraft and aircraft. To the extent the vehicle does not have a license plate, a registration number or other identifying information shall be provided;

(i) Any e-mail or instant messaging address used by the offender;

(j) The offender's telephone numbers including, but not limited to, fixed location telephone numbers, voice over internet protocol numbers and cell phone numbers;

(k) The name and address of any place where the offender is employed or will be employed and the name and address of any place where the offender works as a volunteer or otherwise works without remuneration or if the offender does not have a fixed place of employment, a description of normal travel routes or the general areas in which the offender works;

(l) Information regarding any professional license maintained by the offender that authorizes the offender to engage in an occupation or carry out a trade or business;

(m) Information about the offender's passport, if any, and if the offender is an alien, information about documents establishing the offender's immigration status including document type and number information for such documents and a digitized copy of the documents;

(n) A set of fingerprints and palm prints of the offender;

(o) A current photograph of the offender; and

(p) A photocopy of a valid driver's license or identification card issued to the offender, if any.

(2) The department shall adopt rules relating to providing notice of address changes to law enforcement agencies, developing forms, operating the central registry, reviewing and correcting records, and expunging records of persons who are deceased, whose convictions have been reversed or who have been pardoned, and those for whom an order of expungement or relief from registration has been entered pursuant to section 18-8310, Idaho Code.

(3) The department shall develop and distribute to appropriate agencies the standardized forms necessary for the administration of the registry and shall provide appropriate agencies with instructions for completing and submitting the forms. The attorney general shall approve the forms and instructions prior to distribution.

(4) The department shall notify the attorney general of the United States and appropriate law enforcement agencies of any failure by an offender to comply with the requirements of this chapter and shall revise the registry to reflect the nature of that failure.

Credits

S.L. 1998, ch. 411, § 2. Amended by S.L. 2011, ch. 311, § 4, eff. July 1, 2011.

I.C. § 18-8305, ID ST § 18-8305

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8306

§ 18-8306. Notice of duty to register and initial registration

Currentness

(1) When a person is sentenced for an offense identified in section 18-8304, Idaho Code, the prosecuting attorney shall seek and the court shall order a designated law enforcement agency to immediately photograph that person and obtain fingerprints and palm prints unless the person has been photographed and has provided fingerprints and palm prints previously for the same offense. Fingerprints, palm prints and photographs may be taken at the jail or correctional facility to which the person is remanded or sentenced. The fingerprints, palm prints and photographs taken pursuant to this subsection shall be submitted to the department as provided in section 67-3005, Idaho Code.

(2) A person convicted of an offense identified in section 18-8304, Idaho Code, and released on probation without a sentence of incarceration in a county jail or correctional facility, including release pursuant to a withheld judgment or release from any mental institution, shall be notified by the sentencing court of the duty to register pursuant to the provisions of this chapter and the offender shall register in accordance with this chapter no later than two (2) working days after sentence is imposed or judgment is withheld. The written notification shall be a form provided by the department and approved by the attorney general and shall be signed by the defendant. The court shall retain one (1) copy, provide one (1) copy to the offender, and submit one (1) copy to the central registry within three (3) working days of release.

(3) With respect to an offender convicted of a sexual offense identified in section 18-8304, Idaho Code, and sentenced to a period of immediate incarceration in a jail or correctional facility and subsequently released, placed on probation, or paroled, the department of correction or jail shall provide, prior to release from confinement, written notification of the duty to register and the offender shall register prior to his or her release. The written notification shall be a form provided by the department and approved by the attorney general and shall be signed by the offender. The department of correction or jail shall retain one (1) copy, provide one (1) copy to the offender, and submit one (1) copy to the central registry within three (3) working days of release.

(4) The sheriff of each county shall provide written notification, on a form provided by the Idaho transportation department and approved by the attorney general, of the registration requirements of this chapter to any person who enters this state from another jurisdiction and makes an application for an identification card or a license to operate a motor vehicle in this state. The written notice shall be signed by the person and one (1) copy shall be retained by the sheriff's office and one (1) copy shall be provided to the person.

(5) The notification form provided by the department and approved by the attorney general shall:

(a) Explain the duty to register, the procedure for registration and penalty for failure to comply with registration requirements;

- (b) Inform the offender of the requirement to provide notice of any change of address within Idaho or to another jurisdiction within two (2) working days of such change and of the immediate notification requirements set forth in subsections (2) and (3) of section 18-8309, Idaho Code;
 - (c) Inform the offender of the requirement to register in a new jurisdiction within two (2) working days of changing residence to that jurisdiction, becoming employed in that jurisdiction or becoming a student in that jurisdiction; and
 - (d) Obtain from the offender and agency or court, the information required for initial registration in the central registry as set forth in section 18-8305, Idaho Code, and any other information required by rules promulgated by the department.
- (6) The official conducting the notice and initial registration shall ensure that the notification form is complete, that the offender has read and signed the form, and that a copy is forwarded to the central repository within three (3) working days of the registration.
- (7) No person subject to registration shall willfully furnish false or misleading information when complying with registration and notification requirements of this chapter.
- (8) An offender required to register under this chapter shall initially register in the jurisdiction in which he or she was convicted as well as any other jurisdiction requiring registration under this chapter. If the jurisdiction in which the offender is initially required to register is Idaho, the offender shall register in the county in which he or she primarily intends to reside. The county of initial registration shall then notify the department, which shall notify any other county or jurisdiction in which the offender is required to register.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 249, § 4; S.L. 1999, ch. 302, § 2; S.L. 2004, ch. 126, § 2. Amended by S.L. 2011, ch. 311, § 5, eff. July 1, 2011.

I.C. § 18-8306, ID ST § 18-8306

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8307

§ 18-8307. Registration

Effective: July 1, 2022

Currentness

(1) Registration shall consist of a form provided by the department and approved by the attorney general, which shall be signed by the offender and shall require the information set forth in subsection (1) of section 18-8305, Idaho Code.

(2) At the time of registration, the sheriff shall obtain a photograph and fingerprints, in a manner approved by the department, and require the offender to provide full palm print impressions of each hand. A violent sexual predator shall pay a fee of fifty dollars (\$50.00) to the sheriff at the time of the first calendar quarter registration and ten dollars (\$10.00) per registration every subsequent quarter in the same calendar year. All other offenders shall pay an annual fee of eighty dollars (\$80.00) to the sheriff for registration. The sheriff may waive the registration fee if the violent sexual predator or other offender demonstrates indigency. The fees collected under this section shall be used by the sheriff to defray the costs of violent sexual predator and other sexual offender registration and verification and for electronic notification, law enforcement information sharing and tracking. Irrespective of the classification or designation of the offender or predator, each county shall cause forty dollars (\$40.00) per offender per year of the fees collected under this section to be used for development, continuous use and maintenance of a statewide electronic notification, information sharing and tracking system as implemented by the Idaho sheriffs' association.

(3) The sheriff shall forward the completed and signed form, photograph, fingerprints and palm prints to the department within three (3) working days of the registration.

(a) The official conducting the registration shall ensure that the notification form is complete and that the offender has read and signed the form.

(b) No person subject to registration shall furnish false or misleading information when complying with registration and notification requirements of this chapter.

(4)(a) Within two (2) working days of coming into any county to establish residence, an offender shall register with the sheriff of the county. The offender thereafter shall register annually, unless the offender is designated as a violent sexual predator, in which case the offender shall register with the sheriff every three (3) months as provided in this section. If the offender intends to reside in another jurisdiction, the offender shall register in the other jurisdiction within two (2) days of moving to that jurisdiction and will not be removed from the sexual offender registry in Idaho until registration in another jurisdiction is complete.

(b) A nonresident required to register pursuant to section 18-8304(1)(b), Idaho Code, shall register with the sheriff of the county where employed or enrolled as a student within two (2) working days of the commencement of employment or enrollment as a student in an educational institution, provided that nonresidents employed in counseling, coaching,

teaching, supervising or working with minors in any way, regardless of the period of employment, must register prior to the commencement of such employment.

(5) Registration shall be conducted as follows:

(a) For violent sexual predators the department shall mail a nonforwardable notice of quarterly registration to the offender's last reported address within three (3) months following the last registration;

(b) For all other sex offenders the department shall mail an annual, nonforwardable notice of registration to the offender's last reported address;

(c) Within seven (7) days of the mailing date of the notice, the offender shall appear in person at the office of the sheriff in the county in which the offender is required to register for the purpose of completing the registration process;

(d) If the notice is returned to the department as not delivered, the department shall inform the sheriff with whom the offender last registered of the returned notice.

(6) All written notifications of duty to register as provided herein shall include a warning that it is a felony as provided in section 18-8327, Idaho Code, for an offender to accept employment in any day care center, group day care facility or family day care home, as those terms are defined in chapter 11, title 39, Idaho Code, or to be upon or to remain on the premises of a day care center, group day care facility or family day care home while children are present, other than to drop off or pick up the offender's child or children.

(7) An offender shall keep the registration current for the full registration period. The full registration period is for life; however, offenders may petition for release from the full registration period as set forth in section 18-8310, Idaho Code.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 302, § 3; S.L. 1999, ch. 349, § 3; S.L. 2004, ch. 270, § 4; S.L. 2005, ch. 233, § 2; S.L. 2006, ch. 178, § 10, eff. March 24, 2006. Amended by S.L. 2011, ch. 311, § 6, eff. July 1, 2011; S.L. 2013, ch. 131, § 1, eff. July 1, 2013; S.L. 2022, ch. 146, § 1, eff. July 1, 2022.

I.C. § 18-8307, ID ST § 18-8307

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8308

§ 18-8308. Verification of address and electronic monitoring of violent sexual predators

Effective: July 1, 2022

Currentness

(1)(a) The address or physical residence of an offender designated as a violent sexual predator shall be verified by the department between registrations.

(b) The procedure for verification shall be as follows:

(i) The department shall mail a nonforwardable notice of address verification every thirty (30) days between registrations to each offender designated as a violent sexual predator.

(ii) Each offender designated as a violent sexual predator shall complete, sign and return the notice of address verification form to the department within fourteen (14) days of the mailing date of the notice. If the notice of address verification is returned to the department as not delivered, or if the signed notice is not returned on time, the department shall, within five (5) days, notify the sheriff with whom the offender designated as a violent sexual predator last registered.

(iii) The sheriff shall verify the address of the offender by visiting the offender's residence once every six (6) months or, if the offender fails to comply with the provisions of subparagraph (ii) of this paragraph, at any reasonable time to verify the address provided at registration.

(2) The address or physical residence of any sex offender not designated as a violent sexual predator shall be verified by the department between registrations. The procedure for verification shall be as follows:

(a) The department shall mail a nonforwardable notice of address verification every four (4) months between annual registrations.

(b) Each offender shall complete, sign and return the notice of address verification form to the department within fourteen (14) days of the mailing date of the notice. If the notice of address verification is returned as not delivered or if the signed notice is not returned on time, the department shall notify the sheriff within five (5) days and the sheriff shall visit the residence of the registered offender at any reasonable time to verify the address provided at registration.

(3) Any individual designated as a violent sexual predator shall be monitored with electronic monitoring technology for the duration of the individual's probation or parole period as set forth in section 20-219(2), Idaho Code. Any person who, without

authority, intentionally alters, tampers with, damages or destroys any electronic monitoring equipment required to be worn or used by a violent sexual predator shall be guilty of a felony.

(4) A sexual offender who does not provide a physical residence address at the time of registration shall report, in person, once every fourteen (14) days to the sheriff of the county in which he resides. Each time the offender reports to the sheriff, he shall complete a form provided by the department that includes the offender's name, date of birth, social security number and a detailed description of the location where he is residing. The sheriff shall visit the described location at least once each month to verify the location of the offender.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2006, ch. 178, § 11, eff. March 24, 2006; S.L. 2009, ch. 156, § 1, eff. July 1, 2009; S.L. 2009, ch. 250, § 3, eff. July 1, 2009. Amended by S.L. 2010, ch. 79, § 2, eff. July 1, 2010; S.L. 2011, ch. 311, § 7, eff. July 1, 2011; S.L. 2022, ch. 146, § 2, eff. July 1, 2022.

I.C. § 18-8308, ID ST § 18-8308

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I.C. § 18-8309

§ 18-8309. Duty to update registration information

Currentness

(1) If an offender subject to registration changes his or her name, street address or actual address, employment or student status, the offender shall appear in person within two (2) working days after the change at the office of the sheriff of the county where the offender is required to register and notify the sheriff of all changes in the information required for that offender in the sex offender registry. Provided however, nonresidents employed in this jurisdiction in counseling, coaching, teaching, supervising or working with minors in any way, regardless of the period of employment, shall register before the commencement of such employment. Within three (3) working days after receipt of the notice, the sheriff shall notify the department of the changed information and the department shall notify all other counties and jurisdictions in which the offender is required to register. An offender satisfies the notification requirements set forth in this subsection if he or she appears in another jurisdiction in which registration is required and notifies that jurisdiction of the changed information.

(2) An offender required to register shall immediately notify the department of any lodging lasting seven (7) days or more, regardless of whether the lodging would be considered a residence as defined in section 18-8303, Idaho Code. The department shall immediately notify the jurisdiction in which the lodging will occur if different than the jurisdiction in which the offender is required to register.

(3) An offender required to register shall immediately notify the department of any changes in his or her vehicle information and of any changes in designations used for self-identification or routing in internet communications or postings or telephonic communications.

(4) If this jurisdiction is notified that an offender who is required to register is expected to commence residence, employment or school attendance in this jurisdiction, but the offender fails to appear for registration as required, this jurisdiction shall inform the jurisdiction that provided the notification that the offender failed to appear and shall follow the procedures for cases involving possible violations of registration requirements set forth in the rules of procedures promulgated by the department.

(5) An offender required to register in Idaho shall notify the county in which he or she is registered of his or her intent to commence residence, employment or school attendance outside of the United States. Once notified, the county shall notify the central registry, which shall notify all other counties and jurisdictions in which the offender is required to register and notify the United States marshals service and update the registry accordingly.

(6) Upon receipt of information pursuant to this section, the department shall notify the law enforcement agencies in the counties where the offender resides or will reside, enter information in the central registry and transmit the appropriate information as required pursuant to section 18-8324, Idaho Code. Upon receipt of a notice of an offender changing residence to another jurisdiction or entering another jurisdiction for employment purposes or to attend school, the department shall notify those agencies entitled to notification pursuant to section 18-8324, Idaho Code.

(7) The department shall notify the attorney general of the United States and appropriate law enforcement agencies of any failure by an offender to comply with the requirements of this chapter and revise the registry to reflect the nature of that failure.

Credits

Added by S.L. 2011, ch. 311, § 9, eff. July 1, 2011.

I.C. § 18-8309, ID ST § 18-8309

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I.C. § 18-8310

§ 18-8310. Release from registration requirements--Expungement

Effective: July 1, 2023

Currentness

(1) Registration under this act is for life; however, any offender, other than a recidivist, an offender who has been convicted of an aggravated offense, or an offender designated as a violent sexual predator, may, after a period of ten (10) years from the date the offender was released from incarceration or placed on parole, supervised release or probation, whichever is greater, petition the district court for a show cause hearing to determine whether the offender shall be exempted from the duty to register as a sexual offender. If the offender was convicted in Idaho, the offender shall file his or her petition in the county in which he or she was convicted. If the offender was convicted in a jurisdiction other than Idaho, then the offender shall file his or her petition in the county in which he or she resides. In the petition the petitioner shall:

- (a) Provide clear and convincing evidence that the petitioner has completed all periods of supervised release, probation, or parole for the conviction requiring registration without revocation;
- (b) Provide an affidavit indicating that the petitioner does not have a criminal charge pending nor is the petitioner knowingly under criminal investigation for any violent crime or crime identified in section 18-8304, Idaho Code;
- (c) Provide proof of service of such petition and supporting documents upon the county prosecuting attorney for the county in which the application is made and upon the central registry;
- (d) Provide a certified copy of the judgment of conviction which caused the petitioner to report as a sexual offender;
- (e) Provide clear and convincing evidence that the petitioner has successfully completed a sexual offender treatment program;
- (f) Provide an affidavit demonstrating that the petitioner has no felony convictions during the period for which the petitioner has been registered; and
- (g) Provide an affidavit demonstrating that the petitioner has committed no sex offenses during the period for which the petitioner has been registered.

(2) The county prosecuting attorney and the central registry may submit evidence, including by affidavit, rebutting the assertions contained within the offender's petition, affidavits or other documents filed in support of the petition.

(3) The district court may grant a hearing if it finds that the petition is sufficient. The court shall provide at least sixty (60) days' prior notice of the hearing to the petitioner, the county prosecuting attorney and the central registry. The central registry may appear or participate as a party.

(4) The court may exempt the petitioner from the registration requirement only after a hearing on the petition in open court and only upon proof by clear and convincing evidence and upon written findings of fact and conclusions of law by the court that:

(a) The petitioner has complied with the requirements set forth in subsection (1) of this section;

(b) The court has reviewed the petitioner's criminal history and has determined that the petitioner is not a recidivist, has not been convicted of an aggravated offense or has not been designated as a violent sexual predator; and

(c) It is highly probable or reasonably certain the petitioner is not a risk to commit a new violation for any violent crime or crime identified in section 18-8304, Idaho Code.

(5) Concurrent with the entry of any order exempting the petitioner from the registration requirement, the court may further order that any information regarding the petitioner be expunged from the central registry.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2000, ch. 236, § 2; S.L. 2001, ch. 194, § 3; S.L. 2009, ch. 68, § 1, eff. July 1, 2009. Amended by S.L. 2011, ch. 311, § 10, eff. July 1, 2011; S.L. 2023, ch. 183, § 1, eff. July 1, 2023.

I.C. § 18-8310, ID ST § 18-8310

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I.C. § 18-8310A

§ 18-8310A. District court to release from registration requirements--expungement

Currentness

Any person who was convicted under section 18-6101 1., Idaho Code, as it existed before July 1, 2010, where such person would not have been convicted under section 18-6101(1) or (2), Idaho Code, may petition the district court for a determination to be exempted from the duty to register as a sexual offender. If the district court finds that such person would not have been convicted under section 18-6101(1) or (2), Idaho Code, then the district court may exempt the petitioner from the duty to register as a sexual offender and may order that any information regarding the petitioner be expunged from the central registry. In the petition, the petitioner shall:

- (1) Provide a certified copy of the judgment of conviction which caused the petitioner to report as a sexual offender; and
- (2) Provide an affidavit that states the following:
 - (a) The specific underlying facts of petitioner's conviction and that such facts do not come within the provisions of section 18-6101(1) or (2), Idaho Code;
 - (b) The petitioner does not have a criminal charge pending nor is the petitioner knowingly under criminal investigation for any crime identified in section 18-8304, Idaho Code; and
 - (c) The petitioner is not required to register as a sexual offender for any other reason set forth in this chapter.

Credits

Added by S.L. 2012, ch. 271, § 2, eff. July 1, 2012.

I.C. § 18-8310A, ID ST § 18-8310A

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I.C. § 18-8311

§ 18-8311. Penalties

Currentness

(1) An offender subject to registration who knowingly fails to register, verify his address, or provide any information or notice as required by this chapter shall be guilty of a felony and shall be punished by imprisonment in the state prison system for a period not to exceed ten (10) years and by a fine not to exceed five thousand dollars (\$5,000). If the offender is on probation or other supervised release or suspension from incarceration at the time of the violation, the probation or supervised release or suspension shall be revoked and the penalty for violating this chapter shall be served consecutively to the offender's original sentence.

(2) An offender subject to registration under this chapter, who willfully provides false or misleading information in the registration required, shall be guilty of a felony and shall be punished by imprisonment in a state prison for a period not to exceed ten (10) years and a fine not to exceed five thousand dollars (\$5,000).

Credits

S.L. 1998, ch. 411, § 2; S.L. 2000, ch. 236, § 3; S.L. 2006, ch. 178, § 13, eff. Mar. 24, 2006. Amended by S.L. 2011, ch. 311, § 11, eff. July 1, 2011.

I.C. § 18-8311, ID ST § 18-8311

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I.C. § 18-8312

§ 18-8312. Sexual offender management board--Appointment--Terms--Vacancies--
Chairman--Quorum--Qualifications of members--Compensation of members

Currentness

(1) A sexual offender management board is hereby created within the Idaho department of correction. The board shall consist of ten (10) voting members appointed by the governor by and with the advice and consent of the senate. Present members shall continue to serve for the balance of their initial terms of appointment. Thereafter, any member appointed or reappointed shall serve for a term of three (3) years. Members shall be eligible for reappointment to the board without limitation. The board shall be charged with the advancement and oversight of sexual offender management policies and practices statewide.

(2) Vacancies in the membership of the board shall be filled in the same manner in which the original appointments are made. Members appointed to a vacant position shall serve the remainder of the unexpired term.

(3) Qualifications of members.

(a) One (1) member of the board shall have, by education, experience and training, expertise in the assessment and treatment of adult sexual offenders.

(b) One (1) member of the board shall have, by education, experience and training, expertise in the assessment and treatment of juveniles who have been adjudicated for sexual offenses.

(c) One (1) member of the board shall have, by education, experience and training, expertise in cultural diversity and behavior of sexual offenders as they relate to assessment and treatment.

(d) One (1) member of the board shall be from the Idaho department of correction.

(e) One (1) member of the board shall be from the Idaho department of juvenile corrections.

(f) One (1) member of the board shall be an attorney who has experience in the prosecution of sexual offenders through the criminal justice process.

(g) One (1) member of the board shall be an attorney who has experience in the defense of sexual offenders through the criminal justice process.

- (h) One (1) member of the board shall be from the Idaho sheriffs' association.
 - (i) One (1) member of the board shall be a representative of the public.
 - (j) One (1) member of the board shall have, by education, experience and training, expertise in postconviction sexual offender polygraph examination.
- (4) In addition, there shall be advisory to the board, one (1) non-voting member representing the judiciary who shall be appointed by the chief justice of the Idaho supreme court. The term of appointment for the judicial member shall be four (4) years.
- (5) The board may create subcommittees to address specific issues. Such subcommittees may include board members as well as invited experts and other stakeholders or participants.
- (6) The board shall elect a chairman from its members.
- (7) A quorum shall exist when a majority of the board is present.
- (8) Members shall be compensated as provided by section 59-509(o), Idaho Code.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2002, ch. 183, § 2. Amended by S.L. 2011, ch. 311, § 12, eff. July 1, 2011; S.L. 2015, ch. 306, § 1, eff. July 1, 2015.

I.C. § 18-8312, ID ST § 18-8312

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

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I.C. § 18-8313

§ 18-8313. Removal of board members

Currentness

The governor may remove members of the board for reasons of inefficiency, neglect of duty, malfeasance in office, commission of a felony or inability to perform the duties of office.

Credits

S.L. 1998, ch. 411, § 2.

I.C. § 18-8313, ID ST § 18-8313

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I.C. § 18-8314

§ 18-8314. Powers and duties of the sexual offender management board

Effective: March 12, 2021

Currentness

- (1) The board shall develop, advance and oversee sound sexual offender management policies and practices statewide as demonstrated by evidence-based best practices.
- (2) The board shall carry out the following duties:
- (a) Establish standards for psychosexual evaluations performed pursuant to section 18-8316, Idaho Code, and sexual offender treatment programs based on current and evolving best practices.
 - (b) Establish qualifications, set forth procedures for approval and certification, and administer the certification process for:
 - (i) Professionals conducting psychosexual evaluations pursuant to section 18-8316, Idaho Code, or adjudication proceedings on juvenile sexual offenders;
 - (ii) Professionals providing treatment to adult or juvenile sexual offenders as ordered or required by the court, the Idaho department of correction, the Idaho commission of pardons and parole, or the Idaho department of juvenile corrections; and
 - (iii) Professionals conducting post-conviction sexual offender polygraphs as ordered or required by the court, the Idaho department of correction, or the Idaho commission of pardons and parole.
 - (c) Establish a nonrefundable processing fee not to exceed one hundred fifty dollars (\$150) for each initial certification and a nonrefundable processing fee not to exceed one hundred fifty dollars (\$150) for each annual recertification.
 - (d) Set forth and administer procedures for quality assurance of the standards and qualifications established in this section.
 - (e) The board shall have authority to deny, revoke, restrict or suspend a certification if standards or qualifications are not met or to otherwise monitor a provider.
 - (f) Establish and implement standard protocols for sexual offender management, assessment and classification based on current and evolving best practices.

- (g) Manage and maintain the records of the former sexual offender classification board.
- (3) The board shall have authority to promulgate rules to carry out the provisions of this chapter.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2000, ch. 235, § 1; S.L. 2000, ch. 236, § 4; S.L. 2002, ch. 183, § 3; S.L. 2003, ch. 235, § 2; S.L. 2004, ch. 125, § 2; S.L. 2006, ch. 379, § 1, eff. April 7, 2006. Amended by S.L. 2010, ch. 352, § 8, eff. July 1, 2010; S.L. 2011, ch. 311, § 13, eff. July 1, 2011; S.L. 2021, ch. 30, § 2, eff. March 12, 2021.

I.C. § 18-8314, ID ST § 18-8314

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I.C. § 18-8315

§ 18-8315. Compliance with open meetings law

Effective: July 1, 2019

Currentness

All meetings of the board shall be held in accordance with the open meetings law as provided in chapter 2, title 74, Idaho Code.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2000, ch. 469, § 31; S.L. 2004, ch. 125, § 3. Amended by S.L. 2011, ch. 311, § 14, eff. July 1, 2011; S.L. 2019, ch. 161, § 1, eff. July 1, 2019.

I.C. § 18-8315, ID ST § 18-8315

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I.C. § 18-8316

§ 18-8316. Requirement for psychosexual evaluations upon conviction

Currentness

If ordered by the court, an offender convicted of any offense listed in section 18-8304, Idaho Code, may submit to an evaluation to be completed and submitted to the court in the form of a written report from a certified evaluator as defined in section 18-8303, Idaho Code, for the court's consideration prior to sentencing and incarceration or release on probation. The court shall select the certified evaluator from a central roster of evaluators compiled by the sexual offender management board. A certified evaluator performing such an evaluation shall be disqualified from providing any treatment ordered as a condition of any sentence, unless waived by the court. An evaluation conducted pursuant to this section shall be done in accordance with the standards established by the board pursuant to section 18-8314, Idaho Code.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 380, § 1; S.L. 2003, ch. 235, § 3. Amended by S.L. 2011, ch. 311, § 15, eff. July 1, 2011.

I.C. § 18-8316, ID ST § 18-8316

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I.C. § 18-8318

§ 18-8318. Offender required to pay for psychosexual evaluation

Currentness

The offender shall be required to pay for the cost of the psychosexual evaluations performed under this chapter, unless the offender demonstrates indigency. In such case, the psychosexual evaluation performed pursuant to section 18-8316, Idaho Code, shall be paid for by the county. As a condition of sentence, indigent offenders for whom the county has paid the cost of evaluation performed pursuant to section 18-8316, Idaho Code, shall be required to repay the county for the cost.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 302, § 6. Amended by S.L. 2011, ch. 311, § 17, eff. July 1, 2011.

I.C. § 18-8318, ID ST § 18-8318

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I.C. § 18-8323

§ 18-8323. Public access to sexual offender registry information

Currentness

Information within the sexual offender registry collected pursuant to this chapter is subject to release only as provided by this section.

(1) The department or sheriff shall provide public access to information contained in the central sexual offender registry by means of the internet.

(2) Information that shall be made available to the public is limited to:

(a) The offender's name including any aliases or prior names;

(b) The offender's date of birth;

(c) The address of each residence at which the offender resides or will reside and, if the offender does not have any present or expected residence address, other information about where the offender has his or her home or habitually lives;

(d) The address of any place where the offender is a student or will be a student;

(e) A physical description of the offender;

(f) The offense for which the offender is registered and any other sex offense for which the offender has been convicted and the place of the convictions;

(g) A current photograph of the offender; and

(h) Temporary lodging information including the place and the period of time the offender is staying at such lodging. "Temporary lodging" means any place in which the offender is staying when away from his or her residence for seven (7) or more days. If current information regarding the offender's residence is not available because the offender is in violation of the requirement to register or cannot be located, then the website shall so note.

(3) The following information shall not be disclosed to the public:

- (a) The identity of the victim;
 - (b) The offender's social security number;
 - (c) Any reference to arrests of the offender that did not result in conviction;
 - (d) Any internet identifier associated with and/or provided by the offender;
 - (e) Any information pertaining to the offender's passports and immigration documents; and
 - (f) Any information identifying any person related to, living with, working for, employing or otherwise associated with a registered sexual offender.
- (4) Where a crime category such as “incest” may serve to identify a victim, that crime will be reported as a violation of section 18-1506, Idaho Code.
- (5) The department shall include a cautionary statement relating to completeness, accuracy and use of registry information when releasing information to the public or noncriminal justice agencies as well as a statement concerning the penalties provided in section 18-8326, Idaho Code, for misuse of registry information.
- (6) Information released pursuant to this section may be used only for the protection of the public.
- (7) Further dissemination of registry information by any person or entity shall include the cautionary statements required in subsection (5) of this section.

Credits

S.L. 1998, ch. 411, § 2; S.L. 1999, ch. 302, § 7; S.L. 2001, ch. 195, § 1. Amended by S.L. 2011, ch. 311, § 22, eff. July 1, 2011.

I.C. § 18-8323, ID ST § 18-8323

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I.C. § 18-8324

§ 18-8324. Dissemination of registry information

Currentness

(1) The department shall, within three (3) business days, disseminate any registration information collected under this chapter, including any changes in registry information, to:

- (a) The attorney general of the United States for inclusion in the national sex offender registry or other appropriate databases;
- (b) Each school and public housing agency in each area in which the offender resides, is an employee or is a student;
- (c) Each jurisdiction where the sexual offender resides, is an employee or is a student and each jurisdiction from or to which a change of residence, employment or student status occurs;
- (d) Criminal justice agencies through the public safety and security information system established in section 19-5202, Idaho Code;
- (e) Any agency responsible for conducting employment-related background checks under section 3 of the national child protection act of 1993, 42 U.S.C. section 5119a;
- (f) Social service entities responsible for protecting minors in the child welfare system;
- (g) Volunteer organizations in which contact with minors or other vulnerable adults might occur; and
- (h) Any organization, company or individual who requests notification of changes in registry information.

(2) Registry information provided under this section shall be used only for the administration of criminal justice or for the protection of the public as permitted by this chapter.

(3) The department shall include a cautionary statement relating to completeness, accuracy and use of registry information when releasing information to the public or noncriminal justice agencies as well as a statement concerning the penalties provided in section 18-8326, Idaho Code, for misuse of registry information.

(4) Information released pursuant to this section may be used only for the protection of the public.

(5) Further dissemination of registry information by any person or entity shall include the cautionary statements required in subsection (3) of this section.

Credits

S.L. 1998, ch. 411, § 2; S.L. 2003, ch. 28, § 1; S.L. 2005, ch. 115, § 1; S.L. 2006, ch. 35, § 1, eff. July 1, 2006. Amended by S.L. 2011, ch. 311, § 23, eff. July 1, 2011.

I.C. § 18-8324, ID ST § 18-8324

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8325

§ 18-8325. Exemption from civil liability

Currentness

(1) No person or governmental entity, other than those specifically charged in this chapter with a duty to collect information under this chapter regarding registered sexual offenders, has a duty to inquire, investigate or disclose any information regarding registered sexual offenders.

(2) No person or governmental entity, other than those specifically charged in this chapter with an affirmative duty to provide public access to information regarding registered sexual offenders, shall be held liable for any failure to disclose any information regarding registered sexual offenders to any other person or entity.

(3) Every person or governmental entity who, acting without malice or criminal intent, obtains or disseminates information under this chapter shall be immune from civil liability for any damages claimed as a result of such disclosures made or received.

Credits

S.L. 1998, ch. 411, § 2.

I.C. § 18-8325, ID ST § 18-8325

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Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8326

§ 18-8326. Penalties for vigilantism or other misuse of information obtained under this chapter

Currentness

Any person who uses information obtained pursuant to this chapter to commit a crime or to cause physical harm to any person or damage to property shall be guilty of a misdemeanor and, in addition to any other punishment, be subject to imprisonment in the county jail for a period not to exceed one (1) year, or by a fine not to exceed one thousand dollars (\$1,000) or both.

Credits

S.L. 1998, ch. 411, § 2.

I.C. § 18-8326, ID ST § 18-8326

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8327

§ 18-8327. Adult criminal sex offender--Prohibited employment

Currentness

(1) Except as provided in section 18-8328, Idaho Code, it is a felony for any person to: apply for or to accept employment at a day care center, group day care facility or family day care home; or to be upon or to remain on the premises of a day care center, group day care facility or family day care home while children are present, other than to drop off or pick up the person's child or children if the person is currently registered or is required to register under the sex offender registration act as provided in chapter 83, title 18, Idaho Code.

(2) The owner or operator of any day care center, group day care facility or family day care home who knowingly employs a person or who knowingly accepts volunteer services from a person, which person is currently registered or is required to register under the sex offender registration act as provided in chapter 83, title 18, Idaho Code, to work in the day care center, group day care facility or family day care home is guilty of a misdemeanor unless judicial relief has been granted pursuant to section 18-8328, Idaho Code.

Credits

S.L. 2004, ch. 270, § 1.

I.C. § 18-8327, ID ST § 18-8327

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8328

§ 18-8328. Action for relief by offender or juvenile offender

Currentness

Any person who is required to register pursuant to chapter 83, title 18, Idaho Code, or chapter 84, title 18, Idaho Code, may file a petition in a district court in the judicial district where the person resides, to have relief from the provisions of section 18-8327 or 18-8414, Idaho Code, pertaining to employment in or being upon or remaining on the premises of a day care center, group day care facility or family day care home while children are present, other than to drop off or pick up the sex offender's or juvenile sex offender's child or children. To be granted relief pursuant to this section, the person shall show by clear and convincing evidence that the person required to register pursuant to chapter 83, title 18, Idaho Code, or chapter 84, title 18, Idaho Code, does not pose a threat to children in a day care center, group day care facility or family day care home, it has been at least ten (10) years since the person's last conviction, finding of guilt or adjudication that required the person to register pursuant to chapter 83, title 18, Idaho Code, or chapter 84, title 18, Idaho Code, and the petitioner presents testimony from a licensed physician or psychologist about the petitioner's chance of success of not committing an act against children.

Credits

S.L. 2004, ch. 270, § 6.

I.C. § 18-8328, ID ST § 18-8328

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8329

§ 18-8329. Adult criminal sex offenders--Prohibited access to school children--Exceptions

Effective: July 1, 2020

Currentness

(1) If a person is currently registered or is required to register under the sex offender registration act as provided in chapter 83, title 18, Idaho Code, it is a misdemeanor for such person to:

(a) Be upon or to remain on the premises of any school building or school grounds in this state, upon the premises or grounds of any daycare, or upon other properties posted with a notice that they are used by a school or daycare, when the person has reason to believe children under the age of eighteen (18) years are present and are involved in a school or daycare activity, or when children are present within thirty (30) minutes before or after a scheduled school or daycare activity.

(b) Knowingly loiter on a public way within five hundred (500) feet from the property line of school or daycare grounds in this state, including properties posted with a notice that they are used by a school or daycare, when children under the age of eighteen (18) years are present and are involved in a school or daycare activity, or when children are present within thirty (30) minutes before or after a scheduled school or daycare activity.

(c) Be in any conveyance owned or leased by a school or daycare to transport students to or from school or daycare or a school- or daycare-related activity when children under the age of eighteen (18) years are present in the conveyance.

(d) Reside within five hundred (500) feet of the property on which a school or daycare is located, measured from the nearest point of the exterior wall of the offender's dwelling unit to the school's or daycare's property line, provided however, that this paragraph shall not apply if such person's residence was established prior to July 1, 2006, for a school, and prior to July 1, 2020, for a daycare in existence on that date. This paragraph shall not apply to such person whose residence is established prior to the establishment of a daycare within five hundred (500) feet of his dwelling unit.

(e) For purposes of this chapter, "school" means any public or private school. "Daycare" means any licensed daycare as defined in chapter 11, title 39, Idaho Code.

The posted notices required in this subsection shall be at least one hundred (100) square inches, shall make reference to section 18-8329, Idaho Code, shall include the term "registered sex offender" and shall be placed at all public entrances to the property.

(2) The provisions of subsection (1)(a) and (b) of this section shall not apply when the person:

(a) Is a student in attendance at the school; or

(b) Is exercising his right to vote in public elections; or

(c) Is taking delivery of his mail through an official post office located on school grounds; or

(d) Contacts the school district or daycare office annually and prior to his first visit of a school year and has obtained written permission from the district or daycare to be on the school or daycare grounds or upon other property posted with a notice that the property is used by a school or daycare. For the purposes of this section, “contacts the school district or daycare office” shall include mail, facsimile machine, or by computer using the internet. The provisions of this subsection are required for an individual who:

(i) Is dropping off or picking up a child or children and the person is the child or children's parent or legal guardian; or

(ii) Is attending an academic conference or other scheduled extracurricular school event with school officials present when the offender is a parent or legal guardian of a child who is participating in the conference or extracurricular event. “Extracurricular” means any school-sponsored activity that is outside the regular curriculum, occurring during or outside regular school hours, including but not limited to academic, artistic, athletic or recreational activities; or

(iii) Is temporarily on school or daycare grounds, during school hours, for the purpose of making a mail, food, or other delivery.

(3) The provisions of subsection (1)(d) of this section shall not apply when the person:

(a) Resides at a state-licensed or certified facility for incarceration, health, or convalescent care; or

(b) Stays at a homeless shelter or resides at a recovery facility, if such shelter or facility has been approved for sex offenders by the county sheriff or municipal police chief.

(4) Nothing in this section shall prevent a school district or daycare from adopting more stringent safety and security requirements for employees and nonemployees while they are in district or daycare facilities and/or on district or daycare properties. If adopting more stringent safety and security requirements, the school district or daycare shall provide the requirements to any individual listed in subsection (2)(d)(i) through (iii) by mail, facsimile machine, or by computer using the internet.

Credits

Added by S.L. 2006, ch. 354, § 1, eff. April 7, 2006. Amended by S.L. 2008, ch. 250, § 1, eff. July 1, 2008; S.L. 2011, ch. 266, § 1, eff. July 1, 2011; S.L. 2020, ch. 314, § 1, eff. July 1, 2020.

I.C. § 18-8329, ID ST § 18-8329

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

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West's Idaho Code Annotated

Title 18. Crimes and Punishments

Chapter 83. Sexual Offender Registration Notification and Community Right-to-Know Act (Refs & Annos)

I.C. § 18-8331

§ 18-8331. Adult criminal sex offenders--Prohibited group dwelling--Exceptions

Currentness

(1) Except as otherwise provided in this section, when a person is required to register pursuant to this chapter, that person may not reside in any residential dwelling unit with more than one (1) other person who is also required to register pursuant to this chapter. If, on the effective date of this section, any person required to register pursuant to this chapter, is legally residing in a residential dwelling unit with more than one (1) other person required to so register, the person may continue to reside in that residential dwelling unit without violating the provisions of this section, provided that no additional persons so required to register shall move into that residential dwelling unit if the person moving in would be in violation of this section.

(2) For purposes of this section:

(a) "Reside" and "residing" mean occupying the residential dwelling unit as a fixed place of abode or habitation for any period and to which place the person has the intention of returning after a departure or absence therefrom regardless of the duration of absence.

(b) "Residential dwelling unit" includes, but is not limited to, single family dwellings and units in multifamily dwellings including units in duplexes, apartment dwellings, mobile homes, condominiums and townhouses in areas zoned as residential. For the purposes of this section a state or federally licensed health care or convalescent facility is not a residential dwelling unit.

(3)(a) A judge of the district court may, upon petition and after an appropriate hearing, authorize a person required to register pursuant to this chapter, to reside in a residential dwelling unit with more than one (1) other person who is also required to register pursuant to this chapter, if the judge determines that:

(i) Upon clear and convincing evidence that not doing so would deprive the petitioner of a constitutionally guaranteed right; and

(ii) That such right is more compelling under the facts of the case than is the interest of the state and local government in protecting neighboring citizens, including minors, from risk of physical or psychological harm. Such risk of harm shall be presumed absent clear and convincing evidence to the contrary given the applicant's status as a person required to register pursuant to this chapter;

(b) Any exception allowed under this section shall be limited to alleviate only a deprivation of constitutional right which is more compelling than the interest of the state and local government in minimizing the risk of harm to the neighboring citizens;

(c) Any order of exception under this section shall be made a part of the registry maintained pursuant to this chapter.

(4) Any city or county may establish standards for the establishment and operation of residential houses for registered sex offenders which exceed the number of registered sex offenders allowed to reside in a residential dwelling unit under subsection (1) of this section. Applicable standards shall include establishing procedures to allow comment of neighboring residents within a specified distance, and may include, but are not limited to:

(a) Designating permissible zones in which such houses may be located;

(b) Designating permissible distances between such houses;

(c) Designating the maximum number of registered sex offenders allowed to reside in such houses;

(d) Designating qualifications and standards for supervision and care of such houses and the residents;

(e) Designating requirements and procedures to qualify as the operator of such houses, including any requirement that the residents be engaged in treatment or support programs for sex offenders and related addiction treatment or support programs; and

(f) Designating any health and safety requirements which are different than those applicable to other residential dwelling units in the zone.

(5) No person or entity shall operate a residence house for registered sex offenders in violation of the limitations of subsection (1) of this section except as otherwise provided under subsection (4) of this section. If, on the effective date of this section, any individual or entity is operating an existing residence house for persons required to register pursuant to this chapter, and when such individual or entity also requires such persons to be participants in a sex offender treatment or support program such individual or entity shall not be precluded from continuing to operate such residence house, provided that:

(a) The residence house shall not operate at a capacity exceeding eight (8) residents in the dwelling unit and two (2) residents per bedroom, or the existing number of residents, whichever is less;

(b) Once the governing city or county enacts an ordinance pursuant to subsection (4) of this section establishing standards for the operation of a residence house for sex offenders, the operator of the residence house shall, no later than one (1) year after enactment of the ordinance, comply with all standards of the ordinance, except any requirement that is less than the maximum capacity provided for under subsection (5)(a) of this section or which requires a relocation of the residence;

(c) The burden of proving that an existing residence house qualifies for continuing operation under this subsection shall be upon the operator of the residence house;

- (d) Any change in the use of an existing residence house shall void the exception for the continuing operation of the house under the provisions of this section.
- (6) If any person required to register pursuant to this chapter, is on parole or probation under the supervision of the Idaho department of correction, the department shall be notified by the person or the person's agent of any intent to reside with another person required to register under this chapter. The department must approve the living arrangement in advance as consistent with the terms of the parole or probation, and consistent with the objective of reducing the risk of recidivism. The department shall establish rules governing the application of this subsection.
- (7) Any person who knowingly and with intent violates the provisions of this section is guilty of a misdemeanor.
- (8) Any city or county is entitled to injunctive relief against any person or entity operating a residence house within its jurisdiction in violation of this section.

Credits

Added by S.L. 2008, ch. 124, § 1, eff. Mar. 17, 2008.

I.C. § 18-8331, ID ST § 18-8331

Statutes and Constitution are current with effective legislation through the First Regular Session of the Sixty-Eighth Idaho Legislature, which convened on January 6, 2025 and adjourned sine die on April 4, 2025. Some sections may be more current; see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act

ILCS Ch. 730, ACT 150, Refs & Annos
Currentness

I.L.C.S. Ch. 730, ACT 150, Refs & Annos, IL ST Ch. 730, ACT 150, Refs & Annos
Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/1

Formerly cited as IL ST CH 38 ¶ 221

150/1. Short title

Currentness

§ 1. Short title. This Article may be cited as the Sex Offender Registration Act.

Credits

P.A. 84-1279, Art. I, § 1, eff. Aug. 15, 1986. Amended by P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 221.

730 I.L.C.S. 150/1, IL ST CH 730 § 150/1

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/2
Formerly cited as IL ST CH 38 ¶ 222

150/2. Definitions

Effective: January 1, 2026
Currentness

§ 2. Definitions.

(A) As used in this Article, “sex offender” means any person who is:

(1) charged pursuant to Illinois law, or any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law, with a sex offense set forth in subsection (B) of this Section or the attempt to commit an included sex offense, and:

(a) is convicted of such offense or an attempt to commit such offense; or

(b) is found not guilty by reason of insanity of such offense or an attempt to commit such offense; or

(c) is found not guilty by reason of insanity pursuant to Section 104-25(c) of the Code of Criminal Procedure of 1963¹ of such offense or an attempt to commit such offense; or

(d) is the subject of a finding not resulting in an acquittal at a hearing conducted pursuant to Section 104-25(a) of the Code of Criminal Procedure of 1963 for the alleged commission or attempted commission of such offense; or

(e) is found not guilty by reason of insanity following a hearing conducted pursuant to a federal, Uniform Code of Military Justice, sister state, or foreign country law substantially similar to Section 104-25(c) of the Code of Criminal Procedure of 1963 of such offense or of the attempted commission of such offense; or

(f) is the subject of a finding not resulting in an acquittal at a hearing conducted pursuant to a federal, Uniform Code of Military Justice, sister state, or foreign country law substantially similar to Section 104-25(a) of the Code of Criminal Procedure of 1963 for the alleged violation or attempted commission of such offense; or

(2) declared as a sexually dangerous person pursuant to the Illinois Sexually Dangerous Persons Act,² or any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law; or

(3) subject to the provisions of Section 2 of the Interstate Agreements on Sexually Dangerous Persons Act;³ or

(4) found to be a sexually violent person pursuant to the Sexually Violent Persons Commitment Act⁴ or any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law; or

(5) adjudicated a juvenile delinquent as the result of committing or attempting to commit an act which, if committed by an adult, would constitute any of the offenses specified in item (B), (C), or (C-5) of this Section or a violation of any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law, or found guilty under Article V of the Juvenile Court Act of 1987 of committing or attempting to commit an act which, if committed by an adult, would constitute any of the offenses specified in item (B), (C), or (C-5) of this Section or a violation of any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law.

Convictions that result from or are connected with the same act, or result from offenses committed at the same time, shall be counted for the purpose of this Article as one conviction. Any conviction set aside pursuant to law is not a conviction for purposes of this Article.

For purposes of this Section, “convicted” shall have the same meaning as “adjudicated”.

(B) As used in this Article, “sex offense” means:

(1) A violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012:⁵

11-20.1 (child sexual abuse material or child pornography),⁶

11-20.1B or 11-20.3 (aggravated child pornography),

11-6 (indecent solicitation of a child),⁷

11-9.1 (sexual exploitation of a child),⁸

11-9.2 (custodial sexual misconduct),

11-9.5 (sexual misconduct with a person with a disability),

11-14.4 (promoting commercial sexual exploitation of a child),

11-15.1 (soliciting for a sexually exploited child),⁹

11-18.1 (patronizing a sexually exploited child),¹⁰

11-17.1 (keeping a place of commercial sexual exploitation of a child),¹¹

11-19.1 (juvenile pimping),¹²

11-19.2 (exploitation of a child),¹³

11-25 (grooming),

11-26 (traveling to meet a minor or traveling to meet a child),

11-1.20 or 12-13 (criminal sexual assault),¹⁴

11-1.30 or 12-14 (aggravated criminal sexual assault),¹⁵

11-1.40 or 12-14.1 (predatory criminal sexual assault of a child),¹⁶

11-1.50 or 12-15 (criminal sexual abuse),¹⁷

11-1.60 or 12-16 (aggravated criminal sexual abuse),¹⁸

12-33 (ritualized abuse of a child).¹⁹

An attempt to commit any of these offenses.

(1.5) A violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012, when the victim is a person under 18 years of age, the defendant is not a parent of the victim, the offense was sexually motivated as defined in Section 10 of the Sex Offender Evaluation and Treatment Act, and the offense was committed on or after January 1, 1996:

10-1 (kidnapping),²⁰

10-2 (aggravated kidnapping),²¹

10-3 (unlawful restraint),²²

10-3.1 (aggravated unlawful restraint).²³

If the offense was committed before January 1, 1996, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(1.6) First degree murder under Section 9-1 of the Criminal Code of 1961 or the Criminal Code of 2012,²⁴ provided the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act.

(1.7) (Blank).

(1.8) A violation or attempted violation of Section 11-11 (sexual relations within families) of the Criminal Code of 1961 or the Criminal Code of 2012,²⁵ and the offense was committed on or after June 1, 1997. If the offense was committed before June 1, 1997, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(1.9) Child abduction under paragraph (10) of subsection (b) of Section 10-5 of the Criminal Code of 1961 or the Criminal Code of 2012²⁶ committed by luring or attempting to lure a child under the age of 16 into a motor vehicle, building, house trailer, or dwelling place without the consent of the parent or lawful custodian of the child for other than a lawful purpose and the offense was committed on or after January 1, 1998, provided the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act. If the offense was committed before January 1, 1998, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(1.10) A violation or attempted violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012 when the offense was committed on or after July 1, 1999:

10-4 (forcible detention, if the victim is under 18 years of age),²⁷ provided the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act,

11-6.5 (indecent solicitation of an adult),²⁸

11-14.3 that involves soliciting for a person engaged in the sex trade, or 11-15 (soliciting for a person engaged in the sex trade, if the victim is under 18 years of age),²⁹

subdivision (a)(2)(A) or (a)(2)(B) of Section 11-14.3, or Section 11-16 (pandering, if the victim is under 18 years of age),³⁰

11-18 (patronizing a person engaged in the sex trade, if the victim is under 18 years of age),³¹

subdivision (a)(2)(C) of Section 11-14.3, or Section 11-19 (pimping, if the victim is under 18 years of age).³²

If the offense was committed before July 1, 1999, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(1.11) A violation or attempted violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012 when the offense was committed on or after August 22, 2002:

11-9 or 11-30 (public indecency for a third or subsequent conviction).

If the third or subsequent conviction was imposed before August 22, 2002, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(1.12) A violation or attempted violation of Section 5.1 of the Wrongs to Children Act or Section 11-9.1A of the Criminal Code of 1961 or the Criminal Code of 2012 (permitting sexual abuse) when the offense was committed on or after August

22, 2002. If the offense was committed before August 22, 2002, it is a sex offense requiring registration only when the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(2) A violation of any former law of this State substantially equivalent to any offense listed in subsection (B) of this Section.

(C) A conviction for an offense of federal law, Uniform Code of Military Justice, or the law of another state or a foreign country that is substantially equivalent to any offense listed in subsections (B), (C), (E), and (E-5) of this Section shall constitute a conviction for the purpose of this Article. A finding or adjudication as a sexually dangerous person or a sexually violent person under any federal law, Uniform Code of Military Justice, or the law of another state or foreign country that is substantially equivalent to the Sexually Dangerous Persons Act or the Sexually Violent Persons Commitment Act shall constitute an adjudication for the purposes of this Article.

(C-5) A person at least 17 years of age at the time of the commission of the offense who is convicted of first degree murder under Section 9-1 of the Criminal Code of 1961 or the Criminal Code of 2012, against a person under 18 years of age, shall be required to register for natural life. A conviction for an offense of federal, Uniform Code of Military Justice, sister state, or foreign country law that is substantially equivalent to any offense listed in subsection (C-5) of this Section shall constitute a conviction for the purpose of this Article. This subsection (C-5) applies to a person who committed the offense before June 1, 1996 if: (i) the person is incarcerated in an Illinois Department of Corrections facility on August 20, 2004 (the effective date of Public Act 93-977), or (ii) subparagraph (i) does not apply and the person is convicted of any felony after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(C-6) A person who is convicted or adjudicated delinquent of first degree murder as defined in Section 9-1 of the Criminal Code of 1961 or the Criminal Code of 2012, against a person 18 years of age or over, shall be required to register for his or her natural life. A conviction for an offense of federal, Uniform Code of Military Justice, sister state, or foreign country law that is substantially equivalent to any offense listed in subsection (C-6) of this Section shall constitute a conviction for the purpose of this Article. This subsection (C-6) does not apply to those individuals released from incarceration more than 10 years prior to January 1, 2012 (the effective date of Public Act 97-154).

(D) As used in this Article, “law enforcement agency having jurisdiction” means the Chief of Police in each of the municipalities in which the sex offender expects to reside, work, or attend school (1) upon his or her discharge, parole or release or (2) during the service of his or her sentence of probation or conditional discharge, or the Sheriff of the county, in the event no Police Chief exists or if the offender intends to reside, work, or attend school in an unincorporated area. “Law enforcement agency having jurisdiction” includes the location where out-of-state students attend school and where out-of-state employees are employed or are otherwise required to register.

(D-1) As used in this Article, “supervising officer” means the assigned Illinois Department of Corrections parole agent or county probation officer.

(E) As used in this Article, “sexual predator” means any person who, after July 1, 1999, is:

(1) Convicted for an offense of federal, Uniform Code of Military Justice, sister state, or foreign country law that is substantially equivalent to any offense listed in subsection (E) or (E-5) of this Section shall constitute a conviction for the

purpose of this Article. Convicted of a violation or attempted violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012:

10-5.1 (luring of a minor),

11-14.4 that involves keeping a place of commercial sexual exploitation of a child, or 11-17.1 (keeping a place of commercial sexual exploitation of a child),

subdivision (a)(2) or (a)(3) of Section 11-14.4, or Section 11-19.1 (juvenile pimping),

subdivision (a)(4) of Section 11-14.4, or Section 11-19.2 (exploitation of a child),

11-20.1 (child sexual abuse material or child pornography),

11-20.1B or 11-20.3 (aggravated child pornography),

11-1.20 or 12-13 (criminal sexual assault),

11-1.30 or 12-14 (aggravated criminal sexual assault),

11-1.40 or 12-14.1 (predatory criminal sexual assault of a child),

11-1.60 or 12-16 (aggravated criminal sexual abuse),

12-33 (ritualized abuse of a child);

(2) (blank);

(3) declared as a sexually dangerous person pursuant to the Sexually Dangerous Persons Act or any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law;

(4) found to be a sexually violent person pursuant to the Sexually Violent Persons Commitment Act or any substantially similar federal, Uniform Code of Military Justice, sister state, or foreign country law;

(5) convicted of a second or subsequent offense which requires registration pursuant to this Act. For purposes of this paragraph (5), “convicted” shall include a conviction under any substantially similar Illinois, federal, Uniform Code of Military Justice, sister state, or foreign country law;

(6) (blank); or

(7) if the person was convicted of an offense set forth in this subsection (E) on or before July 1, 1999, the person is a sexual predator for whom registration is required only when the person is convicted of a felony offense after July 1, 2011, and paragraph (2.1) of subsection (c) of Section 3 of this Act applies.

(E-5) As used in this Article, “sexual predator” also means a person convicted of a violation or attempted violation of any of the following Sections of the Criminal Code of 1961 or the Criminal Code of 2012:

(1) Section 9-1 (first degree murder, when the victim was a person under 18 years of age and the defendant was at least 17 years of age at the time of the commission of the offense, provided the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act);

(2) Section 11-9.5 (sexual misconduct with a person with a disability);

(3) when the victim is a person under 18 years of age, the defendant is not a parent of the victim, the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act, and the offense was committed on or after January 1, 1996: (A) Section 10-1 (kidnapping), (B) Section 10-2 (aggravated kidnapping), (C) Section 10-3 (unlawful restraint), and (D) Section 10-3.1 (aggravated unlawful restraint); and

(4) Section 10-5(b)(10) (child abduction committed by luring or attempting to lure a child under the age of 16 into a motor vehicle, building, house trailer, or dwelling place without the consent of the parent or lawful custodian of the child for other than a lawful purpose and the offense was committed on or after January 1, 1998, provided the offense was sexually motivated as defined in Section 10 of the Sex Offender Management Board Act).

(E-10) As used in this Article, “sexual predator” also means a person required to register in another State due to a conviction, adjudication or other action of any court triggering an obligation to register as a sex offender, sexual predator, or substantially similar status under the laws of that State.

(F) As used in this Article, “out-of-state student” means any sex offender, as defined in this Section, or sexual predator who is enrolled in Illinois, on a full-time or part-time basis, in any public or private educational institution, including, but not limited to, any secondary school, trade or professional institution, or institution of higher learning.

(G) As used in this Article, “out-of-state employee” means any sex offender, as defined in this Section, or sexual predator who works in Illinois, regardless of whether the individual receives payment for services performed, for a period of time of 10 or more days or for an aggregate period of time of 30 or more days during any calendar year. Persons who operate motor vehicles in the State accrue one day of employment time for any portion of a day spent in Illinois.

(H) As used in this Article, “school” means any public or private educational institution, including, but not limited to, any elementary or secondary school, trade or professional institution, or institution of higher education.

(I) As used in this Article, “fixed residence” means any and all places that a sex offender resides for an aggregate period of time of 5 or more days in a calendar year.

(J) As used in this Article, “Internet protocol address” means the string of numbers by which a location on the Internet is identified by routers or other computers connected to the Internet.

Credits

P.A. 84-1279, Art. I, § 2, eff. Aug. 15, 1986. Amended by P.A. 87-457, § 2, eff. Jan. 1, 1992; P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 88-467, § 35, eff. July 1, 1994; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 89-428, Art. 1, § 197, eff. June 1, 1996; P.A. 89-462, Art. 1, § 197, eff. June 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 90-494, § 5, eff. Jan. 1, 1998; P.A. 90-655, § 164, eff. July 30, 1998; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-977, § 5, eff. Aug. 20, 2004; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-166, § 5, eff. Jan. 1, 2006; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 94-945, § 1025, eff. June 27, 2006; P.A. 94-1053, § 10, eff. July 24, 2006; P.A. 95-331, § 1075, eff. Aug. 21, 2007; P.A. 95-579, § 15, eff. June 1, 2008; P.A. 95-625, § 15, eff. June 1, 2008; P.A. 95-658, § 5, eff. Oct. 11, 2007; P.A. 95-876, § 360, eff. Aug. 21, 2008; P.A. 96-301, § 5, eff. Aug. 11, 2009; P.A. 96-1089, § 5, eff. Jan. 1, 2011; P.A. 96-1551, Art. 2, § 1075, eff. July 1, 2011; P.A. 97-154, § 25, eff. Jan. 1, 2012; P.A. 97-578, § 5, eff. Jan. 1, 2012; P.A. 97-1073, § 10, eff. Jan. 1, 2013; P.A. 97-1098, § 195, eff. Jan. 1, 2013; P.A. 97-1109, § 15-70, eff. Jan. 1, 2013; P.A. 97-1150, § 690, eff. Jan. 25, 2013; P.A. 100-428, § 15, eff. Jan. 1, 2018; P.A. 103-1071, § 160, eff. July 1, 2025; P.A. 104-245, § 70, eff. Jan. 1, 2026.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 222.

Footnotes

- 1 725 ILCS 5/104-25.
- 2 725 ILCS 205/0.01 et seq.
- 3 45 ILCS 20/2.
- 4 725 ILCS 207/1 et seq.
- 5 720 ILCS 5/1-1 et seq.
- 6 720 ILCS 5/11-20.1.
- 7 720 ILCS 5/11-6.
- 8 720 ILCS 5/11-9.1.
- 9 720 ILCS 5/11-15.1 (repealed).
- 10 720 ILCS 5/11-18.1.
- 11 720 ILCS 5/11-17.1 (repealed).
- 12 720 ILCS 5/11-19.1 (repealed).
- 13 720 ILCS 5/11-19.2 (repealed).
- 14 720 ILCS 5/11-1.20.
- 15 720 ILCS 5/11-1.30.
- 16 720 ILCS 5/11-1.40.

- 17 720 ILCS 5/11-1.50.
- 18 720 ILCS 5/11-1.60.
- 19 720 ILCS 5/12-33.
- 20 720 ILCS 5/10-1.
- 21 720 ILCS 5/10-2.
- 22 720 ILCS 5/10-3.
- 23 720 ILCS 5/10-3.1.
- 24 720 ILCS 5/9-1.
- 25 720 ILCS 5/11-11.
- 26 720 ILCS 5/10-5.
- 27 720 ILCS 5/10-4.
- 28 720 ILCS 5/11-6.5.
- 29 720 ILCS 5/11-14.3 or 5/11-15 (repealed).
- 30 720 ILCS 5/11-14.3 or 5/11-16 (repealed).
- 31 720 ILCS 5/11-18.
- 32 720 ILCS 5/11-14.3 or 5/11-19 (repealed).

730 I.L.C.S. 150/2, IL ST CH 730 § 150/2

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

End of Document

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/3

Formerly cited as IL ST CH 38 ¶ 223

150/3. Duty to register

Effective: August 20, 2021 to August 31, 2026

Currentness

<Text of section effective until Sept. 1, 2026. See, also, text of section 730 ILCS 150/3, effective Sept. 1, 2026.>

§ 3. Duty to register.

(a) A sex offender, as defined in Section 2 of this Act, or sexual predator shall, within the time period prescribed in subsections (b) and (c), register in person and provide accurate information as required by the Illinois State Police. Such information shall include a current photograph, current address, current place of employment, the sex offender's or sexual predator's telephone number, including cellular telephone number, the employer's telephone number, school attended, all e-mail addresses, instant messaging identities, chat room identities, and other Internet communications identities that the sex offender uses or plans to use, all Uniform Resource Locators (URLs) registered or used by the sex offender, all blogs and other Internet sites maintained by the sex offender or to which the sex offender has uploaded any content or posted any messages or information, extensions of the time period for registering as provided in this Article and, if an extension was granted, the reason why the extension was granted and the date the sex offender was notified of the extension. The information shall also include a copy of the terms and conditions of parole or release signed by the sex offender and given to the sex offender by his or her supervising officer or aftercare specialist, the county of conviction, license plate numbers for every vehicle registered in the name of the sex offender, the age of the sex offender at the time of the commission of the offense, the age of the victim at the time of the commission of the offense, and any distinguishing marks located on the body of the sex offender. A sex offender convicted under Section 11-6, 11-20.1, 11-20.1B, 11-20.3, or 11-21 of the Criminal Code of 1961 or the Criminal Code of 2012 shall provide all Internet protocol (IP) addresses in his or her residence, registered in his or her name, accessible at his or her place of employment, or otherwise under his or her control or custody. If the sex offender is a child sex offender as defined in Section 11-9.3 or 11-9.4 of the Criminal Code of 1961 or the Criminal Code of 2012, the sex offender shall report to the registering agency whether he or she is living in a household with a child under 18 years of age who is not his or her own child, provided that his or her own child is not the victim of the sex offense. The sex offender or sexual predator shall register:

(1) with the chief of police in the municipality in which he or she resides or is temporarily domiciled for a period of time of 3 or more days, unless the municipality is the City of Chicago, in which case he or she shall register at a fixed location designated by the Superintendent of the Chicago Police Department; or

(2) with the sheriff in the county in which he or she resides or is temporarily domiciled for a period of time of 3 or more days in an unincorporated area or, if incorporated, no police chief exists.

If the sex offender or sexual predator is employed at or attends an institution of higher education, he or she shall also register:

(i) with:

(A) the chief of police in the municipality in which he or she is employed at or attends an institution of higher education, unless the municipality is the City of Chicago, in which case he or she shall register at a fixed location designated by the Superintendent of the Chicago Police Department; or

(B) the sheriff in the county in which he or she is employed or attends an institution of higher education located in an unincorporated area, or if incorporated, no police chief exists; and

(ii) with the public safety or security director of the institution of higher education which he or she is employed at or attends.

The registration fees shall only apply to the municipality or county of primary registration, and not to campus registration.

For purposes of this Article, the place of residence or temporary domicile is defined as any and all places where the sex offender resides for an aggregate period of time of 3 or more days during any calendar year. Any person required to register under this Article who lacks a fixed address or temporary domicile must notify, in person, the agency of jurisdiction of his or her last known address within 3 days after ceasing to have a fixed residence.

A sex offender or sexual predator who is temporarily absent from his or her current address of registration for 3 or more days shall notify the law enforcement agency having jurisdiction of his or her current registration, including the itinerary for travel, in the manner provided in Section 6 of this Act for notification to the law enforcement agency having jurisdiction of change of address.

Any person who lacks a fixed residence must report weekly, in person, with the sheriff's office of the county in which he or she is located in an unincorporated area, or with the chief of police in the municipality in which he or she is located. The agency of jurisdiction will document each weekly registration to include all the locations where the person has stayed during the past 7 days.

The sex offender or sexual predator shall provide accurate information as required by the Illinois State Police. That information shall include the sex offender's or sexual predator's current place of employment.

(a-5) An out-of-state student or out-of-state employee shall, within 3 days after beginning school or employment in this State, register in person and provide accurate information as required by the Illinois State Police. Such information will include current place of employment, school attended, and address in state of residence. A sex offender convicted under Section 11-6, 11-20.1, 11-20.1B, 11-20.3, or 11-21 of the Criminal Code of 1961 or the Criminal Code of 2012 shall provide all Internet protocol (IP) addresses in his or her residence, registered in his or her name, accessible at his or her place of employment, or otherwise under his or her control or custody. The out-of-state student or out-of-state employee shall register:

(1) with:

(A) the chief of police in the municipality in which he or she attends school or is employed for a period of time of 5 or more days or for an aggregate period of time of more than 30 days during any calendar year, unless the municipality is the City of Chicago, in which case he or she shall register at a fixed location designated by the Superintendent of the Chicago Police Department; or

(B) the sheriff in the county in which he or she attends school or is employed for a period of time of 5 or more days or for an aggregate period of time of more than 30 days during any calendar year in an unincorporated area or, if incorporated, no police chief exists; and

(2) with the public safety or security director of the institution of higher education he or she is employed at or attends for a period of time of 5 or more days or for an aggregate period of time of more than 30 days during a calendar year.

The registration fees shall only apply to the municipality or county of primary registration, and not to campus registration.

The out-of-state student or out-of-state employee shall provide accurate information as required by the Illinois State Police. That information shall include the out-of-state student's current place of school attendance or the out-of-state employee's current place of employment.

(a-10) Any law enforcement agency registering sex offenders or sexual predators in accordance with subsections (a) or (a-5) of this Section shall forward to the Attorney General a copy of sex offender registration forms from persons convicted under Section 11-6, 11-20.1, 11-20.1B, 11-20.3, or 11-21 of the Criminal Code of 1961 or the Criminal Code of 2012, including periodic and annual registrations under Section 6 of this Act.

(b) Any sex offender, as defined in Section 2 of this Act, or sexual predator, regardless of any initial, prior, or other registration, shall, within 3 days of beginning school, or establishing a residence, place of employment, or temporary domicile in any county, register in person as set forth in subsection (a) or (a-5).

(c) The registration for any person required to register under this Article shall be as follows:

(1) Any person registered under the Habitual Child Sex Offender Registration Act¹ or the Child Sex Offender Registration Act² prior to January 1, 1996, shall be deemed initially registered as of January 1, 1996; however, this shall not be construed to extend the duration of registration set forth in Section 7.

(2) Except as provided in subsection (c)(2.1) or (c)(4), any person convicted or adjudicated prior to January 1, 1996, whose liability for registration under Section 7 has not expired, shall register in person prior to January 31, 1996.

(2.1) A sex offender or sexual predator, who has never previously been required to register under this Act, has a duty to register if the person has been convicted of any felony offense after July 1, 2011. A person who previously was required to register under this Act for a period of 10 years and successfully completed that registration period has a duty to register if: (i) the person has been convicted of any felony offense after July 1, 2011, and (ii) the offense for which the 10 year registration was served currently requires a registration period of more than 10 years. Notification of an offender's duty to register under this subsection shall be pursuant to Section 5-7 of this Act.

(2.5) Except as provided in subsection (c)(4), any person who has not been notified of his or her responsibility to register shall be notified by a criminal justice entity of his or her responsibility to register. Upon notification the person must then register within 3 days of notification of his or her requirement to register. Except as provided in subsection (c)(2.1), if notification is

not made within the offender's 10 year registration requirement, and the Illinois State Police determines no evidence exists or indicates the offender attempted to avoid registration, the offender will no longer be required to register under this Act.

(3) Except as provided in subsection (c)(4), any person convicted on or after January 1, 1996, shall register in person within 3 days after the entry of the sentencing order based upon his or her conviction.

(4) Any person unable to comply with the registration requirements of this Article because he or she is confined, institutionalized, or imprisoned in Illinois on or after January 1, 1996, shall register in person within 3 days of discharge, parole or release.

(5) The person shall provide positive identification and documentation that substantiates proof of residence at the registering address.

(6) The person shall pay a \$100 initial registration fee and a \$100 annual renewal fee to the registering law enforcement agency having jurisdiction. The registering agency may waive the registration fee if it determines that the person is indigent and unable to pay the registration fee. Thirty-five dollars for the initial registration fee and \$35 of the annual renewal fee shall be retained and used by the registering agency for official purposes. Having retained \$35 of the initial registration fee and \$35 of the annual renewal fee, the registering agency shall remit the remainder of the fee to State agencies within 30 days of receipt for deposit into the State funds as follows:

(A) Five dollars of the initial registration fee and \$5 of the annual fee shall be remitted to the State Treasurer who shall deposit the moneys into the Sex Offender Management Board Fund under Section 19 of the Sex Offender Management Board Act. Money deposited into the Sex Offender Management Board Fund shall be administered by the Sex Offender Management Board and shall be used by the Board to comply with the provisions of the Sex Offender Management Board Act.

(B) Thirty dollars of the initial registration fee and \$30 of the annual renewal fee shall be remitted to the Illinois State Police which shall deposit the moneys into the Offender Registration Fund.

(C) Thirty dollars of the initial registration fee and \$30 of the annual renewal fee shall be remitted to the Attorney General who shall deposit the moneys into the Attorney General Sex Offender Awareness, Training, and Education Fund. Moneys deposited into the Fund shall be used by the Attorney General to administer the I-SORT program and to alert and educate the public, victims, and witnesses of their rights under various victim notification laws and for training law enforcement agencies, State's Attorneys, and medical providers of their legal duties concerning the prosecution and investigation of sex offenses.

The registering agency shall establish procedures to document the receipt and remittance of the \$100 initial registration fee and \$100 annual renewal fee.

(d) Within 3 days after obtaining or changing employment and, if employed on January 1, 2000, within 5 days after that date, a person required to register under this Section must report, in person to the law enforcement agency having jurisdiction, the business name and address where he or she is employed. If the person has multiple businesses or work locations, every business and work location must be reported to the law enforcement agency having jurisdiction.

Credits

P.A. 84-1279, Art. I, § 3, eff. Aug. 15, 1986. Amended by P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 91-394, § 5, eff. Jan. 1, 2000; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-616, § 30, eff. Jan. 1, 2004; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-166, § 5, eff. Jan. 1, 2006; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 94-994, § 5, eff. Jan. 1, 2007; P.A. 95-229, § 5, eff. Aug. 16, 2007; P.A. 95-579, § 15, eff. June 1, 2008; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 95-658, § 5, eff. Oct. 11, 2007; P.A. 95-876, § 360, eff. Aug. 21, 2008;

P.A. 96-1094, § 10, eff. Jan. 1, 2011; P.A. 96-1096, § 10, eff. Jan. 1, 2011; P.A. 96-1097, § 5, eff. Jan. 1, 2011; P.A. 96-1102, § 5, eff. Jan. 1, 2011; P.A. 96-1104, § 5, eff. Jan. 1, 2011; P.A. 96-1551, Art. 2, § 1075, eff. July 1, 2011; P.A. 97-155, § 5, eff. Jan. 1, 2012; P.A. 97-333, § 565, eff. Aug. 12, 2011; P.A. 97-578, § 5, eff. Jan. 1, 2012; P.A. 97-1098, § 195, eff. Jan. 1, 2013; P.A. 97-1109, § 15-70, eff. Jan. 1, 2013; P.A. 97-1150, § 690, eff. Jan. 25, 2013; P.A. 98-558, § 115, eff. Jan. 1, 2014; P.A. 98-612, § 10, eff. Dec. 27, 2013; P.A. 99-755, § 10, eff. Aug. 5, 2016; P.A. 101-571, § 20, eff. Aug. 23, 2019; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 223.

Footnotes

1 Short title so in enrolled bill; see 730 ILCS 150/1 et seq.

2 Short title so in enrolled bill; see 730 ILCS 152/101 et seq.

730 I.L.C.S. 150/3, IL ST CH 730 § 150/3

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/3-5

150/3-5. Application of Act to adjudicated juvenile delinquents

Effective: January 1, 2014

Currentness

§ 3-5. Application of Act to adjudicated juvenile delinquents.

(a) In all cases involving an adjudicated juvenile delinquent who meets the definition of sex offender as set forth in paragraph (5) of subsection (A) of Section 2 of this Act, the court shall order the minor to register as a sex offender.

(b) Once an adjudicated juvenile delinquent is ordered to register as a sex offender, the adjudicated juvenile delinquent shall be subject to the registration requirements set forth in Sections 3, 6, 6-5, 8, 8-5, and 10 for the term of his or her registration.

(c) For a minor adjudicated delinquent for an offense which, if charged as an adult, would be a felony, no less than 5 years after registration ordered pursuant to subsection (a) of this Section, the minor may petition for the termination of the term of registration. For a minor adjudicated delinquent for an offense which, if charged as an adult, would be a misdemeanor, no less than 2 years after registration ordered pursuant to subsection (a) of this Section, the minor may petition for termination of the term of registration.

(d) The court may upon a hearing on the petition for termination of registration, terminate registration if the court finds that the registrant poses no risk to the community by a preponderance of the evidence based upon the factors set forth in subsection (e).

Notwithstanding any other provisions of this Act to the contrary, no registrant whose registration has been terminated under this Section shall be required to register under the provisions of this Act for the offense or offenses which were the subject of the successful petition for termination of registration. This exemption shall apply only to those offenses which were the subject of the successful petition for termination of registration, and shall not apply to any other or subsequent offenses requiring registration under this Act.

(e) To determine whether a registrant poses a risk to the community as required by subsection (d), the court shall consider the following factors:

- (1) a risk assessment performed by an evaluator licensed under the Sex Offender Evaluation and Treatment Provider Act;
- (2) the sex offender history of the adjudicated juvenile delinquent;

- (3) evidence of the adjudicated juvenile delinquent's rehabilitation;
 - (4) the age of the adjudicated juvenile delinquent at the time of the offense;
 - (5) information related to the adjudicated juvenile delinquent's mental, physical, educational, and social history;
 - (6) victim impact statements; and
 - (7) any other factors deemed relevant by the court.
- (f) At the hearing set forth in subsections (c) and (d), a registrant shall be represented by counsel and may present a risk assessment conducted by an evaluator who is licensed under the Sex Offender Evaluation and Treatment Provider Act.
- (g) After a registrant completes the term of his or her registration, his or her name, address, and all other identifying information shall be removed from all State and local registries.
- (h) This Section applies retroactively to cases in which adjudicated juvenile delinquents who registered or were required to register before the effective date of this amendatory Act of the 95th General Assembly. On or after the effective date of this amendatory Act of the 95th General Assembly, a person adjudicated delinquent before the effective date of this amendatory Act of the 95th General Assembly may request a hearing regarding status of registration by filing a Petition Requesting Registration Status with the clerk of the court. Upon receipt of the Petition Requesting Registration Status, the clerk of the court shall provide notice to the parties and set the Petition for hearing pursuant to subsections (c) through (e) of this Section.
- (i) This Section does not apply to minors prosecuted under the criminal laws as adults.

Credits

P.A. 84-1279, Art. I, § 3-5, added by P.A. 95-658, § 5, eff. Oct. 11, 2007. Amended by P.A. 97-578, § 5, eff. Jan. 1, 2012; P.A. 97-1098, § 195, eff. Jan. 1, 2014.

730 I.L.C.S. 150/3-5, IL ST CH 730 § 150/3-5

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
 Chapter 730. Corrections
 Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/4
 Formerly cited as IL ST CH 38 ¶ 224

150/4. Discharge of sex offender, as defined in Section 2 of this Act, or sexual predator from
 Department of Corrections facility or other penal institution; duties of official in charge

Effective: August 20, 2021

Currentness

§ 4. Discharge of sex offender, as defined in Section 2 of this Act, or sexual predator from Department of Corrections facility or other penal institution; duties of official in charge. Any sex offender, as defined in Section 2 of this Act, or sexual predator, as defined by this Article, who is discharged, paroled or released from a Department of Corrections or Department of Juvenile Justice facility, a facility where such person was placed by the Department of Corrections or Department of Juvenile Justice or another penal institution, and whose liability for registration has not terminated under Section 7 shall, prior to discharge, parole or release from the facility or institution, be informed of his or her duty to register in person within 3 days of release by the facility or institution in which he or she was confined. The facility or institution shall also inform any person who must register that if he or she establishes a residence outside of the State of Illinois, is employed outside of the State of Illinois, or attends school outside of the State of Illinois, he or she must register in the new state within 3 days after establishing the residence, beginning employment, or beginning school.

The facility shall require the person to read and sign such form as may be required by the Illinois State Police stating that the duty to register and the procedure for registration has been explained to him or her and that he or she understands the duty to register and the procedure for registration. The facility shall further advise the person in writing that the failure to register or other violation of this Article shall result in revocation of parole, aftercare release, mandatory supervised release or conditional release. The facility shall obtain information about where the person expects to reside, work, and attend school upon his or her discharge, parole or release and shall report the information to the Illinois State Police. The facility shall give one copy of the form to the person and shall send one copy to each of the law enforcement agencies having jurisdiction where the person expects to reside, work, and attend school upon his or her discharge, parole or release and retain one copy for the files. Electronic data files which includes all notification form information and photographs of sex offenders being released from an Illinois Department of Corrections or Illinois Department of Juvenile Justice facility will be shared on a regular basis as determined between the Illinois State Police, the Department of Corrections, and Department of Juvenile Justice.

Credits

P.A. 84-1279, Art. I, § 4, eff. Aug. 15, 1986. Amended by P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 98-558, § 115, eff. Jan. 1, 2014; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 224.

730 I.L.C.S. 150/4, IL ST CH 730 § 150/4

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/5
Formerly cited as IL ST CH 38 ¶ 225

150/5. Release of sex offender, as defined in Section 2 of this Act, or sexual predator; duties of the Court

Effective: August 20, 2021
Currentness

§ 5. Release of sex offender, as defined in Section 2 of this Act, or sexual predator; duties of the Court. Any sex offender, as defined in Section 2 of this Act, or sexual predator, as defined by this Article, who is released on probation or discharged upon payment of a fine because of the commission of one of the offenses defined in subsection (B) of Section 2 of this Article, shall, prior to such release be informed of his or her duty to register under this Article by the Court in which he or she was convicted. The Court shall also inform any person who must register that if he or she establishes a residence outside of the State of Illinois, is employed outside of the State of Illinois, or attends school outside of the State of Illinois, he or she must register in the new state within 3 days after establishing the residence, beginning employment, or beginning school. The Court shall require the person to read and sign such form as may be required by the Illinois State Police stating that the duty to register and the procedure for registration has been explained to him or her and that he or she understands the duty to register and the procedure for registration. The Court shall further advise the person in writing that the failure to register or other violation of this Article shall result in probation revocation. The Court shall obtain information about where the person expects to reside, work, and attend school upon his or her release, and shall report the information to the Illinois State Police. The Court shall give one copy of the form to the person and retain the original in the court records. The Illinois State Police shall notify the law enforcement agencies having jurisdiction where the person expects to reside, work and attend school upon his or her release.

Credits

P.A. 84-1279, Art. I, § 5, eff. Aug. 15, 1986. Amended by P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 225.

730 I.L.C.S. 150/5, IL ST CH 730 § 150/5

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/5-5

150/5-5. Discharge of sex offender or sexual predator from a
hospital or other treatment facility; duties of the official in charge

Effective: August 20, 2021

Currentness

§ 5-5. Discharge of sex offender or sexual predator from a hospital or other treatment facility; duties of the official in charge. Any sex offender, as defined in Section 2 of this Act, or sexual predator, as defined in this Article, who is discharged or released from a hospital or other treatment facility where he or she was confined shall be informed by the hospital or treatment facility in which he or she was confined, prior to discharge or release from the hospital or treatment facility, of his or her duty to register under this Article.

The facility shall require the person to read and sign such form as may be required by the Illinois State Police stating that the duty to register and the procedure for registration has been explained to him or her and that he or she understands the duty to register and the procedure for registration. The facility shall give one copy of the form to the person, retain one copy for their records, and forward the original to the Illinois State Police. The facility shall obtain information about where the person expects to reside, work, and attend school upon his or her discharge, parole, or release and shall report the information to the Illinois State Police within 3 days. The facility or institution shall also inform any person who must register that if he or she establishes a residence outside of the State of Illinois, is employed outside of the State of Illinois, or attends school outside of the State of Illinois, he or she must register in the new state within 3 days after establishing the residence, beginning school, or beginning employment. The Illinois State Police shall notify the law enforcement agencies having jurisdiction where the person expects to reside, work, and attend school upon his or her release.

Credits

P.A. 84-1279, Art. I, § 5-5, added by P.A. 90-193, § 15, eff. July 24, 1997. Amended by P.A. 91-48, § 5, eff. July 1, 1999; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

730 I.L.C.S. 150/5-5, IL ST CH 730 § 150/5-5

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/5-7

150/5-7. Notification and release or discharge of sex offender or sexual
predator upon conviction for a felony offense committed after July 1, 2011

Effective: January 1, 2012
Currentness

§ 5-7. Notification and release or discharge of sex offender or sexual predator upon conviction for a felony offense committed after July 1, 2011. A person with a duty to register under paragraph (2.1) of subsection (c) of Section 3, who is released on probation or conditional discharge for conviction on a felony offense committed on or after July 1, 2011, shall, prior to release be notified of his or her duty to register as set forth in Section 5 of this Act. A person with a duty to register under paragraph (2.1) of subsection (c) of Section 3 who is discharged, paroled, or released from a Department of Corrections facility or other penal institution shall be notified of his or her duty to register as set forth in Section 4 of this Act. Any other person with a duty to register under paragraph (2.1) of subsection (c) of Section 3, who is unable to comply with the registration requirements because he or she is otherwise confined or institutionalized shall register in person within 3 days after release or discharge.

Credits

P.A. 84-1279, Art. I, § 5-7, added by P.A. 97-578, § 5, eff. Jan. 1, 2012.

730 I.L.C.S. 150/5-7, IL ST CH 730 § 150/5-7

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Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/5-10

150/5-10. Nonforwardable verification letters

Effective: August 20, 2021

Currentness

§ 5-10. Nonforwardable verification letters. The Illinois State Police shall mail a quarterly nonforwardable verification letter to each registered person who has been adjudicated to be sexually dangerous or is a sexually violent person and is later released, or found to be no longer sexually dangerous or no longer a sexually violent person and discharged, beginning 90 days from the date of his or her last registration. To any other person registered under this Article, the Illinois State Police shall mail an annual nonforwardable verification letter, beginning one year from the date of his or her last registration. A person required to register under this Article who is mailed a verification letter shall complete, sign, and return the enclosed verification form to the Illinois State Police postmarked within 10 days after the mailing date of the letter. A person's failure to return the verification form to the Illinois State Police within 10 days after the mailing date of the letter shall be considered a violation of this Article.

Credits

P.A. 84-1279, Art. I, § 5-10, added by P.A. 90-193, § 15, eff. July 24, 1997. Amended by P.A. 91-48, § 5, eff. July 1, 1999; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

730 I.L.C.S. 150/5-10, IL ST CH 730 § 150/5-10

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/6
Formerly cited as IL ST CH 38 ¶ 226

150/6. Duty to report; change of address, school, name, or employment; duty to inform

Effective: July 1, 2024

Currentness

§ 6. Duty to report; change of address, school, name, or employment; duty to inform. A person who has been adjudicated to be sexually dangerous or is a sexually violent person and is later released, or found to be no longer sexually dangerous or no longer a sexually violent person and discharged, or convicted of a violation of this Act after July 1, 2005, shall report in person to the law enforcement agency with whom he or she last registered no later than 90 days after the date of his or her last registration and every 90 days thereafter and at such other times at the request of the law enforcement agency not to exceed 4 times a year. Such sexually dangerous or sexually violent person must report all new or changed e-mail addresses, all new or changed instant messaging identities, all new or changed chat room identities, and all other new or changed Internet communications identities that the sexually dangerous or sexually violent person uses or plans to use, all new or changed Uniform Resource Locators (URLs) registered or used by the sexually dangerous or sexually violent person, and all new or changed blogs and other Internet sites maintained by the sexually dangerous or sexually violent person or to which the sexually dangerous or sexually violent person has uploaded any content or posted any messages or information. Any person who lacks a fixed residence must report weekly, in person, to the appropriate law enforcement agency where the sex offender is located. Any other person who is required to register under this Article shall report in person to the appropriate law enforcement agency with whom he or she last registered within one year from the date of last registration and every year thereafter and at such other times at the request of the law enforcement agency not to exceed 4 times a year. If any person required to register under this Article lacks a fixed residence or temporary domicile, he or she must notify, in person, the agency of jurisdiction of his or her last known address within 3 days after ceasing to have a fixed residence and if the offender leaves the last jurisdiction of residence, he or she, must within 3 days after leaving register in person with the new agency of jurisdiction. If any other person required to register under this Article changes his or her residence address, place of employment, telephone number, cellular telephone number, or school, he or she shall report in person, to the law enforcement agency with whom he or she last registered, his or her new address, change in employment, telephone number, cellular telephone number, or school, all new or changed e-mail addresses, all new or changed instant messaging identities, all new or changed chat room identities, and all other new or changed Internet communications identities that the sex offender uses or plans to use, all new or changed Uniform Resource Locators (URLs) registered or used by the sex offender, and all new or changed blogs and other Internet sites maintained by the sex offender or to which the sex offender has uploaded any content or posted any messages or information, and register, in person, with the appropriate law enforcement agency within the time period specified in Section 3. If any person required to register under this Article is granted a legal name change pursuant to subsection (b) of Section 21-101 of the Code of Civil Procedure, the person shall report, in person, within 3 days of the legal name change, to the law enforcement agency with whom the person last registered. If the sex offender is a child sex offender as defined in Section 11-9.3 or 11-9.4 of the Criminal Code of 1961 or the Criminal Code of 2012, the sex offender shall within 3 days after beginning to reside in a household with a child under 18 years of age who is not his or her own child, provided that his or her own child is not the victim of the sex offense, report that information to the registering law enforcement agency. The law enforcement agency shall, within 3 days of the reporting in person by the person required to register under this Article, notify the Illinois State Police of the new place of residence, change in employment, telephone number, cellular telephone number, or school.

If any person required to register under this Article intends to establish a residence or employment outside of the State of Illinois, at least 10 days before establishing that residence or employment, he or she shall report in person to the law enforcement agency with which he or she last registered of his or her out-of-state intended residence or employment. The law enforcement agency with which such person last registered shall, within 3 days after the reporting in person of the person required to register under this Article of an address or employment change, notify the Illinois State Police. The Illinois State Police shall forward such information to the out-of-state law enforcement agency having jurisdiction in the form and manner prescribed by the Illinois State Police.

Credits

P.A. 84-1279, Art. I, § 6, eff. Aug. 15, 1986. Amended by P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 91-394, § 5, eff. Jan. 1, 2000; P.A. 92-16, § 92, eff. June 28, 2001; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-977, § 5, eff. Aug. 20, 2004; P.A. 94-166, § 5, eff. Jan. 1, 2006; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-229, § 5, eff. Aug. 16, 2007; P.A. 95-331, § 1075, eff. Aug. 21, 2007; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 95-876, § 360, eff. Aug. 21, 2008; P.A. 96-1094, § 10, eff. Jan. 1, 2011; P.A. 96-1104, § 5, eff. Jan. 1, 2011; P.A. 97-333, § 565, eff. Aug. 12, 2011; P.A. 97-1150, § 690, eff. Jan. 25, 2013; P.A. 102-538, § 1065, eff. Aug. 20, 2021; P.A. 102-1133, § 10, eff. Jan. 1, 2024; P.A. 103-605, § 575, eff. July 1, 2024.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 226.

730 I.L.C.S. 150/6, IL ST CH 730 § 150/6

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/6-5

150/6-5. Out-of-State employee or student; duty to report change

Effective: June 1, 2008

Currentness

§ 6-5. Out-of-State employee or student; duty to report change. Every out-of-state student or out-of-state employee must notify the agency having jurisdiction of any change of employment or change of educational status, in writing, within 3 days of the change. The law enforcement agency shall, within 3 days after receiving the notice, enter the appropriate changes into LEADS.

Credits

P.A. 84-1279, Art. I, § 6-5, added by P.A. 91-48, § 5, eff. July 1, 1999. Amended by P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-640, § 25, eff. June 1, 2008.

730 I.L.C.S. 150/6-5, IL ST CH 730 § 150/6-5

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Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/7

Formerly cited as IL ST CH 38 ¶ 227

150/7. Duration of registration

Effective: August 20, 2021

Currentness

§ 7. Duration of registration. A person who has been adjudicated to be sexually dangerous and is later released or found to be no longer sexually dangerous and discharged, shall register for the period of his or her natural life. A sexually violent person or sexual predator shall register for the period of his or her natural life after conviction or adjudication if not confined to a penal institution, hospital, or other institution or facility, and if confined, for the period of his or her natural life after parole, discharge, or release from any such facility. A person who becomes subject to registration under paragraph (2.1) of subsection (c) of Section 3 of this Article who has previously been subject to registration under this Article shall register for the period currently required for the offense for which the person was previously registered if not confined to a penal institution, hospital, or other institution or facility, and if confined, for the same period after parole, discharge, or release from any such facility. Except as otherwise provided in this Section, a person who becomes subject to registration under this Article who has previously been subject to registration under this Article or under the Murderer and Violent Offender Against Youth Registration Act or similar registration requirements of other jurisdictions shall register for the period of his or her natural life if not confined to a penal institution, hospital, or other institution or facility, and if confined, for the period of his or her natural life after parole, discharge, or release from any such facility. Any other person who is required to register under this Article shall be required to register for a period of 10 years after conviction or adjudication if not confined to a penal institution, hospital or any other institution or facility, and if confined, for a period of 10 years after parole, discharge or release from any such facility. A sex offender who is allowed to leave a county, State, or federal facility for the purposes of work release, education, or overnight visitations shall be required to register within 3 days of beginning such a program. Liability for registration terminates at the expiration of 10 years from the date of conviction or adjudication if not confined to a penal institution, hospital or any other institution or facility and if confined, at the expiration of 10 years from the date of parole, discharge or release from any such facility, providing such person does not, during that period, again become liable to register under the provisions of this Article. Reconfinement due to a violation of parole or other circumstances that relates to the original conviction or adjudication shall extend the period of registration to 10 years after final parole, discharge, or release. Reconfinement due to a violation of parole, a conviction reviving registration, or other circumstances that do not relate to the original conviction or adjudication shall toll the running of the balance of the 10-year period of registration, which shall not commence running until after final parole, discharge, or release. The Director of the Illinois State Police, consistent with administrative rules, shall extend for 10 years the registration period of any sex offender, as defined in Section 2 of this Act, who fails to comply with the provisions of this Article. The registration period for any sex offender who fails to comply with any provision of the Act shall extend the period of registration by 10 years beginning from the first date of registration after the violation. If the registration period is extended, the Illinois State Police shall send a registered letter to the law enforcement agency where the sex offender resides within 3 days after the extension of the registration period. The sex offender shall report to that law enforcement agency and sign for that letter. One copy of that letter shall be kept on file with the law enforcement agency of the jurisdiction where the sex offender resides and one copy shall be returned to the Illinois State Police.

Credits

P.A. 84-1279, Art. I, § 7, eff. Aug. 15, 1986. Amended by P.A. 87-1064, § 1, eff. Jan. 1, 1993; P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-166, § 5, eff. Jan. 1, 2006; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 95-169, § 5, eff. Aug. 14, 2007; P.A. 95-331, § 1075, Aug. 21, 2007; P.A. 95-513, § 5, eff. June 1, 2008; P.A. 95-640, § 25, eff. June 1, 2008; P.A. 95-876, § 360, eff. Aug. 21, 2008; P.A. 97-154, § 25, eff. Jan. 1, 2012; P.A. 97-578, § 5, eff. Jan. 1, 2012; P.A. 97-813, § 660, eff. July 13, 2012; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 227.

730 I.L.C.S. 150/7, IL ST CH 730 § 150/7

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Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/8
Formerly cited as IL ST CH 38 ¶ 228

150/8. Registration and DNA submission requirements

Effective: August 20, 2021
Currentness

§ 8. Registration and DNA submission requirements.

(a) Registration. Registration as required by this Article shall consist of a statement in writing signed by the person giving the information that is required by the Illinois State Police, which may include the fingerprints and must include a current photograph of the person, to be updated annually. If the sex offender is a child sex offender as defined in Section 11-9.3 or 11-9.4 of the Criminal Code of 1961 or the Criminal Code of 2012, he or she shall sign a statement that he or she understands that according to Illinois law as a child sex offender he or she may not reside within 500 feet of a school, park, or playground. The offender may also not reside within 500 feet of a facility providing services directed exclusively toward persons under 18 years of age unless the sex offender meets specified exemptions. The registration information must include whether the person is a sex offender as defined in the Sex Offender Community Notification Law¹. Within 3 days, the registering law enforcement agency shall forward any required information to the Illinois State Police. The registering law enforcement agency shall enter the information into the Law Enforcement Agencies Data System (LEADS) as provided in Sections 6 and 7 of the Intergovernmental Missing Child Recovery Act of 1984.²

(b) DNA submission. Every person registering as a sex offender pursuant to this Act, regardless of the date of conviction or the date of initial registration who is required to submit specimens of blood, saliva, or tissue for DNA analysis as required by subsection (a) of Section 5-4-3 of the Unified Code of Corrections shall submit the specimens as required by that Section. Registered sex offenders who have previously submitted a DNA specimen which has been uploaded to the Illinois DNA database shall not be required to submit an additional specimen pursuant to this Section.

Credits

P.A. 84-1279, Art. I, § 8, eff. Aug. 15, 1986. Amended by P.A. 87-1065, § 2, eff. Sept. 13, 1992; P.A. 89-428, Art. 1, § 197, eff. June 1, 1996; P.A. 89-462, Art. 1, § 197, eff. June 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 91-224, § 5, eff. July 1, 2000; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-166, § 5, eff. Jan. 1, 2006; P.A. 94-945, § 1025, eff. June 27, 2006; P.A. 97-383, § 10, eff. Jan. 1, 2012; P.A. 97-1150, § 690, eff. Jan. 25, 2013; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 228.

Footnotes

1 730 ILCS 152/101 et seq.

2 325 ILCS 40/6 and 40/7.

730 I.L.C.S. 150/8, IL ST CH 730 § 150/8

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/8-5

150/8-5. Verification requirements

Effective: August 20, 2021
Currentness

§ 8-5. Verification requirements.

(a) Address verification. The agency having jurisdiction shall verify the address of sex offenders, as defined in Section 2 of this Act, or sexual predators required to register with their agency at least once per year. The verification must be documented in LEADS in the form and manner required by the Illinois State Police.

(a-5) Internet Protocol address verification. The agency having jurisdiction may verify the Internet protocol (IP) address of sex offenders, as defined in Section 2 of this Act, who are required to register with their agency under Section 3 of this Act. A copy of any such verification must be sent to the Attorney General for entrance in the Illinois Cyber-crimes Location Database pursuant to Section 5-4-3.2 of the Unified Code of Corrections.

(b) Registration verification. The supervising officer or aftercare specialist, shall, within 15 days of sentencing to probation or release from an Illinois Department of Corrections or Illinois Department of Juvenile Justice facility or other penal institution, contact the law enforcement agency in the jurisdiction in which the sex offender or sexual predator designated as his or her intended residence and verify compliance with the requirements of this Act. Revocation proceedings shall be immediately commenced against a sex offender or sexual predator on probation, parole, aftercare release, or mandatory supervised release who fails to comply with the requirements of this Act.

(c) In an effort to ensure that sexual predators and sex offenders who fail to respond to address-verification attempts or who otherwise abscond from registration are located in a timely manner, the Illinois State Police shall share information with local law enforcement agencies. The Department shall use analytical resources to assist local law enforcement agencies to determine the potential whereabouts of any sexual predator or sex offender who fails to respond to address-verification attempts or who otherwise absconds from registration. The Department shall review and analyze all available information concerning any such predator or offender who fails to respond to address-verification attempts or who otherwise absconds from registration and provide the information to local law enforcement agencies in order to assist the agencies in locating and apprehending the sexual predator or sex offender.

Credits

P.A. 84-1279, Art. I, § 8-5, added by P.A. 91-48, § 5, eff. July 1, 1999. Amended by P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-988, § 15, eff. Jan. 1, 2007; P.A. 95-579, § 15, eff. June 1, 2008; P.A. 98-558, § 115, eff. Jan. 1, 2014; P.A. 102-538, § 1065, eff. Aug. 20, 2021.

730 I.L.C.S. 150/8-5, IL ST CH 730 § 150/8-5

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Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/9

Formerly cited as IL ST CH 38 ¶ 229

150/9. Public inspection of registration data

Effective: June 27, 2006

Currentness

§ 9. Public inspection of registration data. Except as provided in the Sex Offender Community Notification Law,¹ the statements or any other information required by this Article shall not be open to inspection by the public, or by any person other than by a law enforcement officer or other individual as may be authorized by law and shall include law enforcement agencies of this State, any other state, or of the federal government. Similar information may be requested from any law enforcement agency of another state or of the federal government for purposes of this Act. It is a Class B misdemeanor to permit the unauthorized release of any information required by this Article.

Credits

P.A. 84-1279, Art. I, § 9, eff. Aug. 15, 1986. Amended by P.A. 88-76, § 10, eff. Jan. 1, 1994; P.A. 89-428, Art. 1, § 197, eff. June 1, 1996; P.A. 89-462, Art. 1, § 197, eff. June 1, 1996; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 94-945, § 1025, eff. June 27, 2006.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 229.

Footnotes

¹ 730 ILCS 152/101 et seq.

730 I.L.C.S. 150/9, IL ST CH 730 § 150/9

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/10
Formerly cited as IL ST CH 38 ¶ 230

150/10. Penalty

Effective: January 1, 2024 to August 31, 2026
Currentness

<Text of section effective until Sept. 1, 2026. See, also, text of section 730 ILCS 150/10, effective Sept. 1, 2026.>

§ 10. Penalty.

(a) Any person who is required to register under this Article who violates any of the provisions of this Article and any person who is required to register under this Article who seeks to change his or her name under Article XXI of the Code of Civil Procedure¹ is guilty of a Class 3 felony, unless, as provided under Section 21-101 of the Code of Civil Procedure, that person verifies under oath that the petition for the name change is due to marriage, religious beliefs, status as a victim of trafficking or gender-related identity as defined by the Illinois Human Rights Act. Any person who is convicted for a violation of this Act for a second or subsequent time is guilty of a Class 2 felony, unless, as provided under Section 21-101 of the Code of Civil Procedure, that person verifies under oath that the petition for the name change is due to marriage, religious beliefs, status as a victim of trafficking or gender-related identity as defined by the Illinois Human Rights Act. Any person who is required to register under this Article who knowingly or willfully gives material information required by this Article that is false is guilty of a Class 3 felony. Any person convicted of a violation of any provision of this Article shall, in addition to any other penalty required by law, be required to serve a minimum period of 7 days confinement in the local county jail. The court shall impose a mandatory minimum fine of \$500 for failure to comply with any provision of this Article. These fines shall be deposited in the Offender Registration Fund. Any sex offender, as defined in Section 2 of this Act, or sexual predator who violates any provision of this Article may be arrested and tried in any Illinois county where the sex offender can be located. The local police department or sheriff's office is not required to determine whether the person is living within its jurisdiction.

(b) Any person, not covered by privilege under Part 8 of Article VIII of the Code of Civil Procedure or the Illinois Supreme Court's Rules of Professional Conduct, who has reason to believe that a sexual predator is not complying, or has not complied, with the requirements of this Article and who, with the intent to assist the sexual predator in eluding a law enforcement agency that is seeking to find the sexual predator to question the sexual predator about, or to arrest the sexual predator for, his or her noncompliance with the requirements of this Article is guilty of a Class 3 felony if he or she:

(1) provides false information to the law enforcement agency having jurisdiction about the sexual predator's noncompliance with the requirements of this Article, and, if known, the whereabouts of the sexual predator;

(2) harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the sexual predator; or

(3) conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the sexual predator.

(c) Subsection (b) does not apply if the sexual predator is incarcerated in or is in the custody of a State correctional facility, a private correctional facility, a county or municipal jail, a State mental health facility or a State treatment and detention facility, or a federal correctional facility.

(d) Subsections (a) and (b) do not apply if the sex offender accurately registered his or her Internet protocol address under this Act, and the address subsequently changed without his or her knowledge or intent.

Credits

P.A. 84-1279, Art. I, § 10, eff. Aug. 15, 1986. Amended by P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996; P.A. 89-462, Art. 1, § 197, eff. June 1, 1996; P.A. 90-125, § 5, eff. Jan. 1, 1998; P.A. 90-193, § 15, eff. July 24, 1997; P.A. 90-655, § 164, eff. July 30, 1998; P.A. 91-48, § 5, eff. July 1, 1999; P.A. 91-221, § 5, eff. July 22, 1999; P.A. 92-16, § 92, eff. June 28, 2001; P.A. 92-828, § 5, eff. Aug. 22, 2002; P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 94-168, § 5, eff. Jan. 1, 2006; P.A. 94-988, § 15, eff. Jan. 1, 2007; P.A. 95-579, § 15, eff. June 1, 2008; P.A. 99-78, § 525, eff. July 20, 2015; P.A. 101-571, § 20, eff. Aug. 23, 2019; P.A. 102-1133, § 10, eff. Jan. 1, 2024.

Formerly Ill.Rev.Stat.1991, ch. 38, ¶ 230.

Footnotes

1 735 ILCS 5/21-101 et seq.

730 I.L.C.S. 150/10, IL ST CH 730 § 150/10

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/10.9

150/10.9. Severability

Currentness

§ 10.9. Severability. If a provision or application of this Article is held to be invalid with respect to any person or class of persons, that invalidity does not affect other persons or classes of persons whose registration obligations can be given effect without the invalid provision or application. To this end an invalid provision or application of this Article is declared to be severable.

Credits

P.A. 84-1279, Art. I, § 10.9, added by P.A. 89-8, Art. 20, § 20-20, eff. Jan. 1, 1996.

730 I.L.C.S. 150/10.9, IL ST CH 730 § 150/10.9

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/11

150/11. Offender Registration Fund

Effective: July 1, 2024 to August 31, 2026

Currentness

<Text of section effective until Sept. 1, 2026. See, also, text of section 730 ILCS 150/11, effective Sept. 1, 2026.>

§ 11. Offender Registration Fund. There is created the Offender Registration Fund (formerly known as the Sex Offender Registration Fund). Moneys in the Fund shall be used to cover costs incurred by the criminal justice system to administer this Article and the Murderer and Violent Offender Against Youth Registration Act, and for purposes as authorized under this Section. The Illinois State Police shall establish and promulgate rules and procedures regarding the administration of this Fund. Fifty percent of the moneys in the Fund shall be allocated by the Department for sheriffs' offices and police departments. The remaining moneys in the Fund received under Public Act 101-571 shall be allocated to the Illinois State Police for education and administration of the Act.

Credits

P.A. 84-1279, Art. I, § 11, added by P.A. 90-193, § 15, eff. July 24, 1997. Amended by P.A. 93-979, § 10, eff. Aug. 20, 2004; P.A. 101-571, § 20, eff. Aug. 23, 2019; P.A. 102-538, § 1065, eff. Aug. 20, 2021; P.A. 103-34, § 50, eff. June 9, 2023; P.A. 103-616, § 5-150, eff. July 1, 2024.

730 I.L.C.S. 150/11, IL ST CH 730 § 150/11

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Smith-Hurd Illinois Compiled Statutes Annotated
Chapter 730. Corrections
Act 150. Sex Offender Registration Act (Refs & Annos)

730 ILCS 150/12

150/12. Access to State of Illinois databases

Effective: June 23, 2006

Currentness

§ 12. Access to State of Illinois databases. The Department of State Police shall have access to State of Illinois databases containing information that may help in the identification or location of persons required to register under this Article, including, but not limited to, information obtained in the course of administering the Unemployment Insurance Act. Interagency agreements shall be implemented, consistent with security and procedures established by the State agency and consistent with the laws governing the confidentiality of the information in the databases. Information shall be used only for administration of this Article.

Credits

P.A. 84-1279, Art. I, § 12, added by P.A. 90-193, § 15, eff. July 24, 1997. Amended by P.A. 94-911, § 5, eff. June 23, 2006.

730 I.L.C.S. 150/12, IL ST CH 730 § 150/12

Current through P.A. 104-459 of the 2025 Reg. Sess. Some statute sections may be more current, see credits for details.

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West's Annotated Indiana Code

Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-0.1

11-8-8-0.1 Repealed by P.L.63-2012, SEC.15, eff. July 1, 2012

Effective: July 1, 2012

Currentness

I.C. 11-8-8-0.1, IN ST 11-8-8-0.1

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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West's Annotated Indiana Code
Title 11. Corrections
Article 8. General Provisions: Department of Correction
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IC 11-8-8-0.2

11-8-8-0.2 Application of certain P.L.33-1996 amendments

Effective: July 1, 2012

Currentness

Sec. 0.2. The amendments made to IC 5-2-12-4, IC 5-2-12-9, and IC 5-2-12-12 (before their repeal) by P.L.33-1996 apply to a child who is adjudicated a delinquent child after June 30, 1996, for an act that would be an offense described in IC 5-2-12-4(1) (before its repeal), as amended by P.L.33-1996.

Credits

As added by P.L.220-2011, SEC.245. Amended by P.L.63-2012, SEC.16.

I.C. 11-8-8-0.2, IN ST 11-8-8-0.2

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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Title 11. Corrections
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Chapter 8. Sex Offender Registration

IC 11-8-8-1

11-8-8-1 “Correctional facility”

Effective: July 1, 2018

Currentness

Sec. 1. As used in this chapter, “correctional facility” has the meaning set forth in IC 5-1.2-2.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.189-2018, SEC.105, eff. July 1, 2018.

I.C. 11-8-8-1, IN ST 11-8-8-1

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-1.2

11-8-8-1.2 “Electronic chat room username”

Effective: July 1, 2008

Currentness

Sec. 1.2. As used in this chapter, “electronic chat room username” means an identifier that allows a person to communicate over the Internet in real time using typed text.

Credits

As added by P.L.119-2008, SEC.1.

I.C. 11-8-8-1.2, IN ST 11-8-8-1.2

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-1.4

11-8-8-1.4 “Electronic mail address”

Effective: July 1, 2008

Currentness

Sec. 1.4. As used in this chapter, “electronic mail address” means a destination, commonly expressed as a string of characters, to which electronic mail may be sent or delivered.

Credits

As added by P.L.119-2008, SEC.2.

I.C. 11-8-8-1.4, IN ST 11-8-8-1.4

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IC 11-8-8-1.6

11-8-8-1.6 “Instant messaging username”

Effective: July 1, 2008

Currentness

Sec. 1.6. As used in this chapter, “instant messaging username” means an identifier that allows a person to communicate over the Internet in real time using typed text.

Credits

As added by P.L.119-2008, SEC.3.

I.C. 11-8-8-1.6, IN ST 11-8-8-1.6

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IC 11-8-8-1.8

11-8-8-1.8 “Social networking web site username”

Effective: July 1, 2025

Currentness

Sec. 1.8. As used in this chapter, “social networking website username” means an identifier or profile that allows a person to create, use, or modify a social networking website, as defined in IC 35-31.5-2-307.

Credits

As added by P.L.119-2008, SEC.4. Amended by P.L.85-2017, SEC.43, eff. April 20, 2017; P.L.1-2025, SEC.154, eff. July 1, 2025.

I.C. 11-8-8-1.8, IN ST 11-8-8-1.8

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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West's Annotated Indiana Code

Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-2

11-8-8-2 “Local law enforcement authority”

Currentness

Sec. 2. As used in this chapter, “local law enforcement authority” means the:

- (1) chief of police of a consolidated city; or
- (2) sheriff of a county that does not contain a consolidated city.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13.

I.C. 11-8-8-2, IN ST 11-8-8-2

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-3

11-8-8-3 “Principal residence”

Effective: July 1, 2007

Currentness

Sec. 3. As used in this chapter, “principal residence” means the residence where a sex or violent offender spends the most time. The term includes a residence owned or leased by another person if the sex or violent offender:

(1) does not own or lease a residence; or

(2) spends more time at the residence owned or leased by the other person than at the residence owned or leased by the sex or violent offender.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.10.

I.C. 11-8-8-3, IN ST 11-8-8-3

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-4

11-8-8-4 “Register”

Effective: July 1, 2007

Currentness

Sec. 4. As used in this chapter, “register” means to report in person to a local law enforcement authority and provide the information required under section 8 of this chapter.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.11.

I.C. 11-8-8-4, IN ST 11-8-8-4

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-4.5

11-8-8-4.5 “Sex offender”

Effective: July 1, 2025

Currentness

Sec. 4.5. (a) Except as provided in section 22 of this chapter, as used in this chapter, “sex offender” means a person convicted of any of the following offenses:

- (1) Rape (IC 35-42-4-1).
- (2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).
- (3) Child molesting (IC 35-42-4-3).
- (4) Child exploitation (IC 35-42-4-4(b) or IC 35-42-4-4(c)).
- (5) Vicarious sexual gratification (including performing sexual conduct in the presence of a minor) (IC 35-42-4-5).
- (6) Child solicitation (IC 35-42-4-6).
- (7) Child seduction (IC 35-42-4-7).
- (8) Sexual misconduct with a minor (IC 35-42-4-9) as a Class A, Class B, or Class C felony (for a crime committed before July 1, 2014) or a Level 1, Level 2, Level 4, or Level 5 felony (for a crime committed after June 30, 2014), unless:
 - (A) the person is convicted of sexual misconduct with a minor as a Class C felony (for a crime committed before July 1, 2014) or a Level 5 felony (for a crime committed after June 30, 2014);
 - (B) the person is not more than:
 - (i) four (4) years older than the victim if the offense was committed after June 30, 2007; or

(ii) five (5) years older than the victim if the offense was committed before July 1, 2007; and

(C) the sentencing court finds that the person should not be required to register as a sex offender.

(9) Incest (IC 35-46-1-3).

(10) Sexual battery (IC 35-42-4-8).

(11) Kidnapping (IC 35-42-3-2), if the victim is less than eighteen (18) years of age, and the person who kidnapped the victim is not the victim's parent or guardian.

(12) Criminal confinement (IC 35-42-3-3), if the victim is less than eighteen (18) years of age, and the person who confined or removed the victim is not the victim's parent or guardian.

(13) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)).

(14) Promoting prostitution (IC 35-45-4-4) as a Class B felony (for a crime committed before July 1, 2014) or a Level 4 felony (for a crime committed after June 30, 2014).

(15) Promotion of human sexual trafficking under IC 35-42-3.5-1.1.

(16) Promotion of child sexual trafficking under IC 35-42-3.5-1.2(a).

(17) Promotion of sexual trafficking of a younger child (IC 35-42-3.5-1.2(c)).

(18) Child sexual trafficking (IC 35-42-3.5-1.3).

(19) Human trafficking under IC 35-42-3.5-1.4 if the victim is less than eighteen (18) years of age.

(20) Sexual misconduct by a service provider with a detained or supervised child (IC 35-44.1-3-10(c)).

(b) The term includes:

(1) a person who is required to register as a sex offender in any jurisdiction; and

(2) a child who has committed a delinquent act, or a person prosecuted under IC 31-30-1-4(d) for an offense described in subsection (a) committed when the person was less than eighteen (18) years of age, but who was at least twenty-one (21) years of age when the charge was filed, and who:

(A) is at least fourteen (14) years of age;

(B) is on probation, is on parole, is discharged from a facility by the department of correction, is discharged from a secure private facility (as defined in IC 31-9-2-115), or is discharged from a juvenile detention facility as a result of an adjudication as a delinquent child for an act that would be an offense described in subsection (a) if committed by an adult; and

(C) is found by a court by clear and convincing evidence to be likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(c) In making a determination under subsection (b)(2)(C), the court shall consider expert testimony concerning whether a child is likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(d) A person ordered to register under subsection (b)(2) may petition the court to reconsider the order at any time after completing court ordered sex offender treatment. The court shall consider expert testimony concerning whether a child or person is likely to repeat an offense described in subsection (a) or an act that would be an offense described in subsection (a) if committed by an adult.

Credits

As added by P.L.216-2007, SEC.12. Amended by P.L.1-2012, SEC.2, eff. Jan. 30, 2012; P.L.72-2012, SEC.1; P.L.13-2013, SEC.41, eff. April 1, 2013; P.L.214-2013, SEC.4, eff. July 1, 2013; P.L.158-2013, SEC.171, eff. July 1, 2014; P.L.168-2014, SEC.20, eff. July 1, 2014; P.L.185-2014, SEC.2, eff. July 1, 2014; P.L.13-2016, SEC.4, eff. July 1, 2016; P.L.75-2016, SEC.1, eff. July 1, 2016; P.L.144-2018, SEC.3, eff. July 1, 2018; P.L.142-2020, SEC.12, eff. July 1, 2020; P.L.115-2023, SEC.1, eff. July 1, 2023; P.L.218-2025, SEC.3, eff. July 1, 2025.

I.C. 11-8-8-4.5, IN ST 11-8-8-4.5

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

West's Annotated Indiana Code

Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-5

11-8-8-5 “Sex or violent offender”

Effective: July 1, 2025

Currentness

Sec. 5. (a) Except as provided in section 22 of this chapter, as used in this chapter, “sex or violent offender” means a person convicted of any of the following offenses:

- (1) Rape (IC 35-42-4-1).
- (2) Criminal deviate conduct (IC 35-42-4-2) (before its repeal).
- (3) Child molesting (IC 35-42-4-3).
- (4) Child exploitation (IC 35-42-4-4(b) or IC 35-42-4-4(c)).
- (5) Vicarious sexual gratification (including performing sexual conduct in the presence of a minor) (IC 35-42-4-5).
- (6) Child solicitation (IC 35-42-4-6).
- (7) Child seduction (IC 35-42-4-7).
- (8) Sexual misconduct with a minor (IC 35-42-4-9) as a Class A, Class B, or Class C felony (for a crime committed before July 1, 2014) or a Level 1, Level 2, Level 4, or Level 5 felony (for a crime committed after June 30, 2014), unless:
 - (A) the person is convicted of sexual misconduct with a minor as a Class C felony (for a crime committed before July 1, 2014) or a Level 5 felony (for a crime committed after June 30, 2014);
 - (B) the person is not more than:
 - (i) four (4) years older than the victim if the offense was committed after June 30, 2007; or

(ii) five (5) years older than the victim if the offense was committed before July 1, 2007; and

(C) the sentencing court finds that the person should not be required to register as a sex offender.

(9) Incest (IC 35-46-1-3).

(10) Sexual battery (IC 35-42-4-8).

(11) Kidnapping (IC 35-42-3-2), if the victim is less than eighteen (18) years of age, and the person who kidnapped the victim is not the victim's parent or guardian.

(12) Criminal confinement (IC 35-42-3-3), if the victim is less than eighteen (18) years of age, and the person who confined or removed the victim is not the victim's parent or guardian.

(13) Possession of child sex abuse material (IC 35-42-4-4(d) or IC 35-42-4-4(e)).

(14) Promoting prostitution (IC 35-45-4-4) as a Class B felony (for a crime committed before July 1, 2014) or a Level 4 felony (for a crime committed after June 30, 2014).

(15) Promotion of human sexual trafficking under IC 35-42-3.5-1.1.

(16) Promotion of child sexual trafficking under IC 35-42-3.5-1.2(a).

(17) Promotion of sexual trafficking of a younger child (IC 35-42-3.5-1.2(c)).

(18) Child sexual trafficking (IC 35-42-3.5-1.3).

(19) Human trafficking under IC 35-42-3.5-1.4 if the victim is less than eighteen (18) years of age.

(20) Murder (IC 35-42-1-1).

(21) Voluntary manslaughter (IC 35-42-1-3).

(22) Sexual misconduct by a service provider with a detained or supervised child (IC 35-44.1-3-10(c)).

(b) The term includes:

(1) a person who is required to register as a sex or violent offender in any jurisdiction; and

(2) a child who has committed a delinquent act, or a person prosecuted under IC 31-30-1-4(d) for an offense described in subsection (a) committed when the person was less than eighteen (18) years of age, but who was at least twenty-one (21) years of age when the charge was filed, and who:

(A) is at least fourteen (14) years of age;

(B) is on probation, is on parole, is discharged from a facility by the department of correction, is discharged from a secure private facility (as defined in IC 31-9-2-115), or is discharged from a juvenile detention facility as a result of an adjudication as a delinquent child for an act that would be an offense described in subsection (a) if committed by an adult; and

(C) is found by a court by clear and convincing evidence to be likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(c) In making a determination under subsection (b)(2)(C), the court shall consider expert testimony concerning whether a child is likely to repeat an act that would be an offense described in subsection (a) if committed by an adult.

(d) A person ordered to register under subsection (b)(2) may petition the court to reconsider the order at any time after completing court ordered sex offender treatment. The court shall consider expert testimony concerning whether a child or person is likely to repeat an offense described in subsection (a) or an act that would be an offense described in subsection (a) if committed by an adult.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.13; P.L.1-2012, SEC.3, eff. Jan. 30, 2012; P.L.72-2012, SEC.2; P.L.13-2013, SEC.42, eff. April 1, 2013; P.L.214-2013, SEC.5, eff. July 1, 2013; P.L.158-2013, SEC.172, eff. July 1, 2014; P.L.168-2014, SEC.21, eff. July 1, 2014; P.L.185-2014, SEC.3, eff. July 1, 2014; P.L.13-2016, SEC.5, eff. July 1, 2016; P.L.75-2016, SEC.2, eff. July 1, 2016; P.L.144-2018, SEC.4, eff. July 1, 2018; P.L.142-2020, SEC.13, eff. July 1, 2020; P.L.115-2023, SEC.2, eff. July 1, 2023; P.L.218-2025, SEC.4, eff. July 1, 2025.

I.C. 11-8-8-5, IN ST 11-8-8-5

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-5.2

11-8-8-5.2 “Sex offense”

Effective: July 1, 2007

Currentness

Sec. 5.2. As used in this chapter, “sex offense” means an offense listed in section 4.5(a) of this chapter.

Credits

As added by P.L.216-2007, SEC.14.

I.C. 11-8-8-5.2, IN ST 11-8-8-5.2

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IC 11-8-8-6

11-8-8-6 “Sexually violent predator”

Currentness

Sec. 6. As used in this chapter, “sexually violent predator” has the meaning set forth in IC 35-38-1-7.5.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13.

I.C. 11-8-8-6, IN ST 11-8-8-6

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IC 11-8-8-7

11-8-8-7 Registration with law enforcement authorities; jurisdiction; residency; photographs of offender;
publication on Indiana sex offender registry web site; notification and distribution of information

Effective: July 1, 2025

Currentness

Sec. 7. (a) Subject to section 19 of this chapter, the following persons must register under this chapter:

(1) A sex or violent offender who resides in Indiana. A sex or violent offender resides in Indiana if either of the following applies:

(A) The sex or violent offender spends or intends to spend at least seven (7) days (including part of a day) in Indiana during a one hundred eighty (180) day period.

(B) The sex or violent offender owns real property in Indiana and returns to Indiana at any time.

(2) A sex or violent offender who works or carries on a vocation or intends to work or carry on a vocation full time or part time for a period:

(A) exceeding seven (7) consecutive days; or

(B) for a total period exceeding fourteen (14) days;

during any calendar year in Indiana regardless of whether the sex or violent offender is financially compensated, volunteered, or is acting for the purpose of government or educational benefit.

(3) A sex or violent offender who is enrolled or intends to be enrolled on a full-time or part-time basis in any public or private educational institution, including any secondary school, trade, or professional institution, or postsecondary educational institution.

(b) Except as provided in subsection (e), a sex or violent offender who resides in Indiana shall register with the local law enforcement authority in the county where the sex or violent offender resides. If a sex or violent offender resides in more than one (1) county, the sex or violent offender shall register with the local law enforcement authority in each county in which the sex or violent offender resides. If the sex or violent offender is also required to register under subsection (a)(2) or (a)(3), the sex

or violent offender shall also register with the local law enforcement authority in the county in which the offender is required to register under subsection (c) or (d).

(c) A sex or violent offender described in subsection (a)(2) shall register with the local law enforcement authority in the county where the sex or violent offender is or intends to be employed or carry on a vocation. If a sex or violent offender is or intends to be employed or carry on a vocation in more than one (1) county, the sex or violent offender shall register with the local law enforcement authority in each county. If the sex or violent offender is also required to register under subsection (a)(1) or (a)(3), the sex or violent offender shall also register with the local law enforcement authority in the county in which the offender is required to register under subsection (b) or (d).

(d) A sex or violent offender described in subsection (a)(3) shall register with the local law enforcement authority in the county where the sex or violent offender is enrolled or intends to be enrolled as a student. If the sex or violent offender is also required to register under subsection (a)(1) or (a)(2), the sex or violent offender shall also register with the local law enforcement authority in the county in which the offender is required to register under subsection (b) or (c).

(e) A sex or violent offender described in subsection (a)(1)(B) shall register with the local law enforcement authority in the county in which the real property is located. If the sex or violent offender is also required to register under subsection (a)(1)(A), (a)(2), or (a)(3), the sex or violent offender shall also register with the local law enforcement authority in the county in which the offender is required to register under subsection (b), (c), or (d).

(f) A sex or violent offender committed to the department shall register with the department before the sex or violent offender is placed in a community transition program, placed in a work release program, or released from incarceration, whichever occurs first. The department shall forward the sex or violent offender's registration information to the local law enforcement authority of every county in which the sex or violent offender is required to register. If a sex or violent offender released from the department under this subsection:

(1) informs the department of the offender's intended location of residence upon release; and

(2) does not move to this location upon release;

the offender shall, not later than seventy-two (72) hours after the date on which the offender is released, report in person to the local law enforcement authority having jurisdiction over the offender's current address or location.

(g) This subsection does not apply to a sex or violent offender who is a sexually violent predator. A sex or violent offender not committed to the department shall register not more than seven (7) days after the sex or violent offender:

(1) is released from a penal facility (as defined in IC 35-31.5-2-232);

(2) is released from a secure private facility (as defined in IC 31-9-2-115);

(3) is released from a juvenile detention facility;

(4) is transferred to a community transition program;

(5) is placed on parole;

(6) is placed on probation;

(7) is placed on home detention; or

(8) arrives at the place where the sex or violent offender is required to register under subsection (b), (c), or (d);

whichever occurs first. A sex or violent offender required to register in more than one (1) county under subsection (b), (c), (d), or (e) shall register in each appropriate county not more than seventy-two (72) hours after the sex or violent offender's arrival in that county or acquisition of real estate in that county.

(h) This subsection applies to a sex or violent offender who is a sexually violent predator. A sex or violent offender who is a sexually violent predator shall register not more than seventy-two (72) hours after the sex or violent offender:

(1) is released from a penal facility (as defined in IC 35-31.5-2-232);

(2) is released from a secure private facility (as defined in IC 31-9-2-115);

(3) is released from a juvenile detention facility;

(4) is transferred to a community transition program;

(5) is placed on parole;

(6) is placed on probation;

(7) is placed on home detention; or

(8) arrives at the place where the sexually violent predator is required to register under subsection (b), (c), or (d);

whichever occurs first. A sex or violent offender who is a sexually violent predator required to register in more than one (1) county under subsection (b), (c), (d), or (e) shall register in each appropriate county not more than seventy-two (72) hours after the offender's arrival in that county or acquisition of real estate in that county.

(i) The local law enforcement authority with whom a sex or violent offender registers under this section shall make and publish a photograph of the sex or violent offender on the Indiana sex and violent offender registry website established under IC 36-2-13-5.5. The local law enforcement authority shall make a photograph of the sex or violent offender that complies with the requirements of IC 36-2-13-5.5 at least once per year. The sheriff of a county containing a consolidated city shall provide the police chief of the consolidated city with all photographic and computer equipment necessary to enable the police chief of the consolidated city to transmit sex or violent offender photographs (and other identifying information required by IC 36-2-13-5.5) to the Indiana sex and violent offender registry website established under IC 36-2-13-5.5. In addition, the sheriff of a county containing a consolidated city shall provide all funding for the county's financial obligation for the establishment and maintenance of the Indiana sex and violent offender registry website established under IC 36-2-13-5.5.

(j) When a sex or violent offender registers, the local law enforcement authority shall:

(1) immediately update the Indiana sex and violent offender registry website established under IC 36-2-13-5.5;

(2) notify every law enforcement agency having jurisdiction in the county where the sex or violent offender resides; and

(3) update the National Crime Information Center National Sex Offender Registry data base via the Indiana data and communications system (IDACS).

When a sex or violent offender from a jurisdiction outside Indiana registers a change of address, electronic mail address, instant messaging username, electronic chat room username, social networking website username, employment, vocation, or enrollment in Indiana, the local law enforcement authority shall provide the department with the information provided by the sex or violent offender during registration.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.2-2007, SEC.151; P.L.216-2007, SEC.15; P.L.119-2008, SEC.5; P.L.114-2012, SEC.24; P.L.214-2013, SEC.6, eff. July 1, 2013; P.L.1-2025, SEC.155, eff. July 1, 2025.

I.C. 11-8-8-7, IN ST 11-8-8-7

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-8

11-8-8-8 Required registration information; updates

Effective: July 1, 2025

Currentness

Sec. 8. (a) The registration required under this chapter must include the following information:

(1) The sex or violent offender's full name, alias, any name by which the sex or violent offender was previously known, date of birth, sex, race, height, weight, hair color, eye color, any scars, marks, or tattoos, Social Security number, driver's license number or state identification card number, vehicle description, vehicle plate number, and vehicle identification number for any vehicle the sex or violent offender owns or operates on a regular basis, principal residence address, other address where the sex or violent offender spends more than seven (7) nights in a fourteen (14) day period, and mailing address, if different from the sex or violent offender's principal residence address.

(2) A description of the offense for which the sex or violent offender was convicted, the date of conviction, the county of the conviction, the cause number of the conviction, and the sentence imposed, if applicable.

(3) If the person is required to register under section 7(a)(2) or 7(a)(3) of this chapter, the name and address of each of the sex or violent offender's employers in Indiana, the name and address of each campus or location where the sex or violent offender is enrolled in school in Indiana, and the address where the sex or violent offender stays or intends to stay while in Indiana.

(4) A recent photograph of the sex or violent offender.

(5) If the sex or violent offender is a sexually violent predator, that the sex or violent offender is a sexually violent predator.

(6) If the sex or violent offender is required to register for life, that the sex or violent offender is required to register for life.

(7) Any electronic mail address, instant messaging username, electronic chat room username, or social networking website username that the sex or violent offender uses or intends to use.

(8) Any other information required by the department.

(b) If a sex or violent offender on probation or parole registers any information under subsection (a)(7), the offender shall sign a consent form authorizing the:

(1) search of the sex or violent offender's personal computer or device with Internet capability, at any time; and

(2) installation on the sex or violent offender's personal computer or device with Internet capability, at the sex or violent offender's expense, of hardware or software to monitor the sex or violent offender's Internet usage.

(c) If the information described in subsection (a) changes, the sex or violent offender shall report in person to the local law enforcement authority having jurisdiction over the sex or violent offender's principal address not later than seventy-two (72) hours after the change and submit the new information to the local law enforcement authority. Upon request of the local law enforcement authority, the sex or violent offender shall permit a new photograph of the sex or violent offender to be made.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.16; P.L.119-2008, SEC.6; P.L.214-2013, SEC.7, eff. July 1, 2013; P.L.1-2025, SEC.156, eff. July 1, 2025.

I.C. 11-8-8-8, IN ST 11-8-8-8

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IC 11-8-8-9

11-8-8-9 Duties of facility officials; release or parole of offender

Effective: March 13, 2008

Currentness

Sec. 9. (a) Not more than seven (7) days before an Indiana sex or violent offender who is required to register under this chapter is scheduled to be released from a secure private facility (as defined in IC 31-9-2-115), or released from a juvenile detention facility, an official of the facility shall do the following:

(1) Orally inform the sex or violent offender of the sex or violent offender's duty to register under this chapter and require the sex or violent offender to sign a written statement that the sex or violent offender was orally informed or, if the sex or violent offender refuses to sign the statement, certify that the sex or violent offender was orally informed of the duty to register.

(2) Deliver a form advising the sex or violent offender of the sex or violent offender's duty to register under this chapter and require the sex or violent offender to sign a written statement that the sex or violent offender received the written notice or, if the sex or violent offender refuses to sign the statement, certify that the sex or violent offender was given the written notice of the duty to register.

(3) Obtain the address where the sex or violent offender expects to reside after the sex or violent offender's release.

(4) Transmit to the local law enforcement authority in the county where the sex or violent offender expects to reside the sex or violent offender's name, date of release or transfer, new address, and the offense or delinquent act committed by the sex or violent offender.

(b) Not more than seventy-two (72) hours after a sex or violent offender who is required to register under this chapter is released or transferred as described in subsection (a), an official of the facility shall transmit to the state police the following:

(1) The sex or violent offender's fingerprints, photograph, and identification factors.

(2) The address where the sex or violent offender expects to reside after the sex or violent offender's release.

(3) The complete criminal history data (as defined in IC 10-13-3-5) or, if the sex or violent offender committed a delinquent act, juvenile history data (as defined in IC 10-13-4-4) of the sex or violent offender.

(4) Information regarding the sex or violent offender's past treatment for mental disorders.

(5) Information as to whether the sex or violent offender has been determined to be a sexually violent predator.

(c) This subsection applies if a sex or violent offender is placed on probation or in a community corrections program without being confined in a penal facility. The probation office serving the court in which the sex or violent offender is sentenced shall perform the duties required under subsections (a) and (b).

(d) For any sex or violent offender who is not committed to the department, the probation office of the sentencing court shall transmit to the department a copy of:

(1) the sex or violent offender's:

(A) sentencing order; and

(B) presentence investigation; and

(2) any other information required by the department to make a determination concerning sex or violent offender registration.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.17; P.L.3-2008, SEC.87, eff. March 13, 2008.

I.C. 11-8-8-9, IN ST 11-8-8-9

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-10

11-8-8-10 Sending fingerprints to FBI

Effective: July 1, 2007

Currentness

Sec. 10. Notwithstanding any other law, upon receiving a sex or violent offender's fingerprints from a correctional facility, the state police shall immediately send the fingerprints to the Federal Bureau of Investigation.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.18.

I.C. 11-8-8-10, IN ST 11-8-8-10

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IC 11-8-8-11

11-8-8-11 Change of offender residence, employment, or enrollment; notification of local law enforcement authority

Effective: July 1, 2025

Currentness

Sec. 11. (a) If a sex or violent offender who is required to register under this chapter changes:

(1) principal residence address; or

(2) if section 7(a)(2) or 7(a)(3) of this chapter applies, the place where the sex or violent offender stays in Indiana;

the sex or violent offender shall report in person to the local law enforcement authority having jurisdiction over the sex or violent offender's current principal address or location and, if the offender moves to a new county in Indiana, to the local law enforcement authority having jurisdiction over the sex or violent offender's new principal address or location not more than seventy-two (72) hours after the address change.

(b) If a sex or violent offender moves to a new county in Indiana, the local law enforcement authority where the sex or violent offender's current principal residence address is located shall inform the local law enforcement authority in the new county in Indiana of the sex or violent offender's residence and forward all relevant registration information concerning the sex or violent offender to the local law enforcement authority in the new county. The local law enforcement authority receiving notice under this subsection shall verify the address of the sex or violent offender under section 13 of this chapter not more than seven (7) days after receiving the notice.

(c) If a sex or violent offender who is required to register under section 7(a)(2) or 7(a)(3) of this chapter changes the sex or violent offender's principal place of employment, principal place of vocation, or campus or location where the sex or violent offender is enrolled in school, the sex or violent offender shall report in person:

(1) to the local law enforcement authority having jurisdiction over the sex or violent offender's current principal place of employment, principal place of vocation, or campus or location where the sex or violent offender is enrolled in school; and

(2) if the sex or violent offender changes the sex or violent offender's place of employment, vocation, or enrollment to a new county in Indiana, to the local law enforcement authority having jurisdiction over the sex or violent offender's new principal place of employment, principal place of vocation, or campus or location where the sex or violent offender is enrolled in school;

not more than seventy-two (72) hours after the change.

(d) If a sex or violent offender moves the sex or violent offender's place of employment, vocation, or enrollment to a new county in Indiana, the local law enforcement authority having jurisdiction over the sex or violent offender's current principal place of employment, principal place of vocation, or campus or location where the sex or violent offender is enrolled in school shall inform the local law enforcement authority in the new county of the sex or violent offender's new principal place of employment, vocation, or enrollment by forwarding relevant registration information to the local law enforcement authority in the new county.

(e) If a sex or violent offender moves the sex or violent offender's residence, place of employment, vocation, or enrollment to a new state, the local law enforcement authority shall inform the state police in the new state of the sex or violent offender's new place of residence, employment, vocation, or enrollment.

(f) If a sex or violent offender who is required to register under this chapter changes or obtains a new:

(1) electronic mail address;

(2) instant messaging username;

(3) electronic chat room username; or

(4) social networking website username;

the sex or violent offender shall report in person to the local law enforcement authority having jurisdiction over the sex or violent offender's current principal address or location and shall provide the local law enforcement authority with the new address or username not more than seventy-two (72) hours after the change or creation of the address or username.

(g) A local law enforcement authority shall make registration information, including information concerning the duty to register and the penalty for failing to register, available to a sex or violent offender.

(h) A local law enforcement authority who is notified of a change under subsection (a), (c), or (f) shall:

(1) immediately update the Indiana sex and violent offender registry website established under IC 36-2-13-5.5;

(2) update the National Crime Information Center National Sex Offender Registry data base via the Indiana data and communications system (IDACS); and

(3) notify the department.

(i) If a sex or violent offender who is registered with a local law enforcement authority becomes incarcerated, the local law enforcement authority shall transmit a copy of the information provided by the sex or violent offender during registration to the department.

(j) If a sex or violent offender is no longer required to register due to the expiration of the registration period, or if a court grants a petition under section 22 of this chapter that removes the offender's duty to register under this chapter, the local law enforcement authority shall:

(1) ensure the offender's information is no longer published to the public portal of the sex and violent offender registry website established under IC 36-2-13-5.5; and

(2) transmit a copy of the information provided by the sex or violent offender during registration to the department.

(k) This subsection applies only to a sex or violent offender who has:

(1) informed the local law enforcement authority of the offender's intention to move the offender's residence to a new location; and

(2) not moved the offender's residence to the new location.

Not later than seventy-two (72) hours after the date on which a sex or violent offender to whom this subsection applies was scheduled to move (according to information the offender provided to the local law enforcement authority before the move), the sex or violent offender shall report in person to the local law enforcement authority having jurisdiction over the offender's current address or location, even if the offender's address has not changed. An offender who fails to report as provided in this subsection may be prosecuted in the offender's original county of residence, in the county to which the offender intended to move, or in the offender's current county of residence.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.1-2007, SEC.100, eff. March 30, 2007; P.L.216-2007, SEC.19; P.L.119-2008, SEC.7; P.L.214-2013, SEC.8, eff. July 1, 2013; P.L.1-2025, SEC.157, eff. July 1, 2025.

I.C. 11-8-8-11, IN ST 11-8-8-11

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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IC 11-8-8-12

11-8-8-12 Registration when offender resides in temporary residence

Effective: July 1, 2007

Currentness

Sec. 12. (a) As used in this section, "temporary residence" means a residence:

- (1) that is established to provide transitional housing for a person without another residence; and
- (2) in which a person is not typically permitted to reside for more than thirty (30) days in a sixty (60) day period.

(b) This section applies only to a sex or violent offender who resides in a temporary residence. In addition to the other requirements of this chapter, a sex or violent offender who resides in a temporary residence shall register in person with the local law enforcement authority in which the temporary residence is located:

- (1) not more than seventy-two (72) hours after the sex or violent offender moves into the temporary residence; and
- (2) during the period in which the sex or violent offender resides in a temporary residence, at least once every seven (7) days following the sex or violent offender's initial registration under subdivision (1).

(c) A sex or violent offender who does not have a principal residence or temporary residence shall report in person to the local law enforcement authority in the county where the sex or violent offender resides at least once every seven (7) days to report an address for the location where the sex or violent offender will stay during the time in which the sex or violent offender lacks a principal address or temporary residence.

(d) A sex or violent offender's obligation to register in person once every seven (7) days terminates when the sex or violent offender no longer resides in the temporary residence or location described in subsection (c). However, all other requirements imposed on a sex or violent offender by this chapter continue in force, including the requirement that a sex or violent offender register the sex or violent offender's new address with the local law enforcement authority.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.20.

I.C. 11-8-8-12, IN ST 11-8-8-12

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IC 11-8-8-13

11-8-8-13 Verification of offender's current residence

Effective: July 1, 2013

Currentness

Sec. 13. (a) To verify a sex or violent offender's current residence, the local law enforcement authority having jurisdiction over the area of the sex or violent offender's current principal address or location shall do the following:

- (1) Contact each offender in a manner approved or prescribed by the department at least one (1) time per year.
- (2) Contact each offender who is designated a sexually violent predator in a manner approved or prescribed by the department at least once every ninety (90) days.
- (3) Personally visit each sex or violent offender in the county at the sex or violent offender's listed address at least one (1) time per year, beginning seven (7) days after the local law enforcement authority receives a notice under section 7 of this chapter or the date the sex or violent offender is:
 - (A) released from a penal facility (as defined in IC 35-31.5-2-232), a secure private facility (as defined in IC 31-9-2-115), or a juvenile detention facility;
 - (B) placed in a community transition program;
 - (C) placed in a community corrections program;
 - (D) placed on parole; or
 - (E) placed on probation;

whichever occurs first.

- (4) Personally visit each sex or violent offender who is designated a sexually violent predator under IC 35-38-1-7.5 at least once every ninety (90) days, beginning seven (7) days after the local law enforcement authority receives a notice under section 7 of this chapter or the date the sex or violent offender is:

(A) released from a penal facility (as defined in IC 35-31.5-2-232), a secure private facility (as defined in IC 31-9-2-115), or a juvenile detention facility;

(B) placed in a community transition program;

(C) placed in a community corrections program;

(D) placed on parole; or

(E) placed on probation;

whichever occurs first.

(b) If a sex or violent offender appears not to reside at the sex or violent offender's listed address, the local law enforcement authority shall immediately notify the department and the prosecuting attorney.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.21; P.L.114-2012, SEC.25; P.L.214-2013, SEC.9, eff. July 1, 2013.

I.C. 11-8-8-13, IN ST 11-8-8-13

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IC 11-8-8-14

11-8-8-14 Yearly personal registration and photograph

Effective: July 1, 2013

Currentness

Sec. 14. (a) This subsection does not apply to a sex or violent offender who is a sexually violent predator. In addition to the other requirements of this chapter, a sex or violent offender who is required to register under this chapter shall, at least one (1) time every three hundred sixty-five (365) days:

(1) report in person to the local law enforcement authority;

(2) register; and

(3) be photographed by the local law enforcement authority;

in each location where the offender is required to register.

(b) This subsection applies to a sex or violent offender who is a sexually violent predator. In addition to the other requirements of this chapter, a sex or violent offender who is a sexually violent predator under IC 35-38-1-7.5 shall:

(1) report in person to the local law enforcement authority;

(2) register; and

(3) be photographed by the local law enforcement authority in each location where the sex or violent offender is required to register;

every ninety (90) days.

(c) Each time a sex or violent offender who claims to be working or attending school registers in person, the sex or violent offender shall provide documentation to the local law enforcement authority providing evidence that the sex or violent offender is still working or attending school at the registered location.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.22; P.L.214-2013, SEC.10, eff. July 1, 2013.

I.C. 11-8-8-14, IN ST 11-8-8-14

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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West's Annotated Indiana Code
Title 11. Corrections
Article 8. General Provisions: Department of Correction
Chapter 8. Sex Offender Registration

IC 11-8-8-15

11-8-8-15 Requirement to possess identification; violations; defenses

Effective: January 1, 2016

Currentness

Sec. 15. (a) A sex or violent offender who is a resident of Indiana shall obtain and keep in the sex or violent offender's possession:

(1) a valid Indiana driver's license; or

(2) a valid Indiana identification card (as described in IC 9-24-16) or a photo exempt identification card (as described in IC 9-24-16.5);

that contains the offender's current address and current physical description.

(b) A sex or violent offender required to register in Indiana who is not a resident of Indiana shall obtain and keep in the sex or violent offender's possession:

(1) a valid driver's license issued by the state in which the sex or violent offender resides; or

(2) a valid state issued identification card issued by the state in which the sex or violent offender resides;

that contains the offender's current address and current physical description.

(c) A person who knowingly or intentionally violates this section commits failure of a sex or violent offender to possess identification, a Class A misdemeanor. However, the offense is a Level 6 felony if the person:

(1) is a sexually violent predator; or

(2) has a prior unrelated conviction:

(A) under this section; or

(B) based on the person's failure to comply with any requirement imposed on an offender under this chapter.

(d) It is a defense to a prosecution under this section that:

(1) the person has been unable to obtain a valid driver's license, state issued identification card, or photo exempt identification card because less than thirty (30) days have passed since the person's release from incarceration;

(2) the person possesses a driver's license, state issued identification card, or photo exempt identification card that expired not more than thirty (30) days before the date the person violated subsection (a) or (b); or

(3) the person possesses a valid driver's license, state issued identification card, or photo exempt identification card, but the card does not reflect the person's current address or current physical description because fewer than thirty (30) days have passed since the person changed the person's current address or physical characteristics.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.23; P.L.214-2013, SEC.11, eff. July 1, 2013; P.L.158-2013, SEC.173, eff. July 1, 2014; P.L.168-2014, SEC.22, eff. July 1, 2014; P.L.197-2015, SEC.14, eff. Jan. 1, 2016.

I.C. 11-8-8-15, IN ST 11-8-8-15

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IC 11-8-8-16

11-8-8-16 Change of name of offender

Effective: July 1, 2007

Currentness

Sec. 16. (a) A sex or violent offender who is required to register under this chapter may not petition for a change of name under IC 34-28-2.

(b) If a sex or violent offender who is required to register under this chapter changes the sex or violent offender's name due to marriage, the sex or violent offender must register with the local law enforcement authority not more than seven (7) days after the name change.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.24.

I.C. 11-8-8-16, IN ST 11-8-8-16

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Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-17

11-8-8-17 Failure to register

Effective: July 1, 2020

Currentness

Sec. 17. (a) A sex or violent offender who knowingly or intentionally:

- (1) fails to register when required to register under this chapter;
- (2) fails to register in every location where the sex or violent offender is required to register under this chapter;
- (3) makes a material misstatement or omission while registering as a sex or violent offender under this chapter;
- (4) fails to register in person as required under this chapter; or
- (5) does not reside at the sex or violent offender's registered address or location;

commits a Level 6 felony.

(b) The offense described in subsection (a) is a Level 5 felony if the sex or violent offender has a prior unrelated conviction for an offense:

- (1) under this section;
- (2) based on the person's failure to comply with any requirement imposed on a sex or violent offender under this chapter or under IC 5-2-12 before its repeal; or
- (3) that is based on the person's failure to comply with a requirement imposed on the person that is the same or substantially similar to a requirement imposed on a sex or violent offender under this chapter or under IC 5-2-12 before its repeal.

(c) It is not a defense to a prosecution under this section that the sex or violent offender was unable to pay the sex or violent offender registration fee or the sex or violent offender address change fee described under IC 36-2-13-5.6.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.25; P.L.158-2013, SEC.174, eff. July 1, 2014; P.L.44-2018, SEC.1, eff. July 1, 2018; P.L.142-2020, SEC.14, eff. July 1, 2020.

I.C. 11-8-8-17, IN ST 11-8-8-17

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West's Annotated Indiana Code

Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-18

11-8-8-18 Sexually violent predator; notification of absence from principal residence; notice of stay in county where registration not required; violations

Effective: July 1, 2014

Currentness

Sec. 18. (a) A sexually violent predator who will be absent from the sexually violent predator's principal residence for more than seventy-two (72) hours shall inform the local law enforcement authority in the county where the sexually violent predator's principal address is located, in person, of the following:

- (1) That the sexually violent predator will be absent from the sexually violent predator's principal residence for more than seventy-two (72) hours.
- (2) The location where the sexually violent predator will be located during the absence from the sexually violent predator's principal residence.
- (3) The length of time the sexually violent predator will be absent from the sexually violent predator's principal residence.

(b) A sexually violent predator who will spend more than seventy-two (72) hours in a county in which the sexually violent predator is not required to register shall inform the local law enforcement authority in the county in which the sexually violent predator is not required to register, in person, of the following:

- (1) That the sexually violent predator will spend more than seventy-two (72) hours in the county.
- (2) The location where the sexually violent predator will be located while spending time in the county.
- (3) The length of time the sexually violent predator will remain in the county.

Upon request of the local law enforcement authority of the county in which the sexually violent predator is not required to register, the sexually violent predator shall provide the local law enforcement authority with any additional information that will assist the local law enforcement authority in determining the sexually violent predator's whereabouts during the sexually violent predator's stay in the county.

(c) A sexually violent predator who knowingly or intentionally violates this section commits failure to notify, a Class A misdemeanor. However, the offense is a Level 6 felony if the person has a prior unrelated conviction under this section based on the person's failure to comply with any requirement imposed on a sex or violent offender under this chapter.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.26; P.L.158-2013, SEC.175, eff. July 1, 2014.

I.C. 11-8-8-18, IN ST 11-8-8-18

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Chapter 8. Sex Offender Registration

IC 11-8-8-19

11-8-8-19 Termination of duty to register; registration for life

Effective: July 1, 2025

Currentness

Sec. 19. (a) Except as provided in subsections (b) through (f), a sex or violent offender is required to register under this chapter until the expiration of ten (10) years after the date the sex or violent offender:

- (1) is released from a penal facility (as defined in IC 35-31.5-2-232) or a secure juvenile detention facility of a state or another jurisdiction;
- (2) is placed in a community transition program;
- (3) is placed in a community corrections program;
- (4) is placed on parole; or
- (5) is placed on probation;

for the sex or violent offense requiring registration, whichever occurs last. The registration period is tolled during any period that the sex or violent offender is incarcerated. The registration period does not restart if the offender is convicted of a subsequent offense. However, if the subsequent offense is a sex or violent offense, or an offense under section 17 of this chapter, a new registration period may be imposed in accordance with this chapter. The department shall ensure that an offender who is no longer required to register as a sex or violent offender is notified that the obligation to register has expired, and shall ensure that the offender's information is no longer published to the public portal of the sex and violent offender registry website established under IC 36-2-13-5.5.

(b) A sex or violent offender who is a sexually violent predator is required to register for life.

(c) A sex or violent offender who is convicted of at least one (1) offense under section 5(a) of this chapter that the sex or violent offender committed:

- (1) when the person was at least eighteen (18) years of age; and

(2) against a victim who was less than twelve (12) years of age at the time of the crime;

is required to register for life.

(d) A sex or violent offender who is convicted of at least one (1) offense under section 5(a) of this chapter in which the sex offender:

(1) proximately caused serious bodily injury or death to the victim;

(2) used force or the threat of force against the victim or a member of the victim's family, unless the offense is sexual battery as a Class D felony (for an offense committed before July 1, 2014) or a Level 6 felony (for a crime committed after June 30, 2014); or

(3) rendered the victim unconscious or otherwise incapable of giving voluntary consent;

is required to register for life.

(e) A sex or violent offender who is convicted of at least two (2) unrelated offenses under section 5(a) of this chapter is required to register for life.

(f) A person who is required to register as a sex or violent offender in any jurisdiction shall register for the period required by the other jurisdiction or the period described in this section, whichever is longer.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.27; P.L.119-2008, SEC.8; P.L.114-2012, SEC.26; P.L.214-2013, SEC.12, eff. July 1, 2013; P.L.158-2013, SEC.176, eff. July 1, 2014; P.L.168-2014, SEC.23, eff. July 1, 2014; P.L.5-2015, SEC.33, eff. April 15, 2015; P.L.40-2019, SEC.1, eff. July 1, 2019; P.L.1-2025, SEC.158, eff. July 1, 2025.

I.C. 11-8-8-19, IN ST 11-8-8-19

The statutes and Constitution are current with all legislation of the 2025 First Regular Session of the 124th General Assembly effective through July 1, 2025. Some statute sections may be more current, see credits for details.

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Chapter 8. Sex Offender Registration

IC 11-8-8-20

11-8-8-20 Compacts with jurisdictions outside Indiana to exchange information regarding offenders

Effective: July 1, 2025

Currentness

Sec. 20. (a) The department may enter into a compact or agreement with one (1) or more jurisdictions outside Indiana to exchange notifications concerning the change of address, employment, vocation, or enrollment of a sex or violent offender between Indiana and the other jurisdiction or the other jurisdiction and Indiana.

(b) If the department receives information that a sex or violent offender has relocated to Indiana to reside, engage in employment or a vocation, or enroll in school, or that a sex or violent offender has been convicted in Indiana but not sentenced to the department, the department shall determine:

(1) whether the person is defined as a:

(A) sex offender under section 4.5 of this chapter; or

(B) sex or violent offender under section 5 of this chapter;

(2) whether the person is a sexually violent predator under IC 35-38-1-7.5;

(3) the period for which the person will be required to register as a sex or violent offender in Indiana; and

(4) any other matter required by law to make a registration determination.

(c) After the department has made a determination under subsection (b), the department shall update the sex and violent offender registry website and transmit the department's determination to the local law enforcement authority having jurisdiction over the county where the sex or violent offender resides, is employed, and attends school. The department shall transmit:

(1) the sex or violent offender's name, date of relocation, and new address (if applicable), the offense or delinquent act committed by the sex or violent offender, and any other available descriptive information;

(2) whether the sex or violent offender is a sexually violent predator;

(3) the period for which the sex or violent offender will be required to register in Indiana; and

(4) anything else required by law to make a registration determination.

Credits

As added by P.L.140-2006, SEC.13; P.L.173-2006, SEC.13. Amended by P.L.216-2007, SEC.28; P.L.3-2008, SEC.88, eff. March 13, 2008; P.L.1-2025, SEC.159, eff. July 1, 2025.

I.C. 11-8-8-20, IN ST 11-8-8-20

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Chapter 8. Sex Offender Registration

IC 11-8-8-21

11-8-8-21 Sex and violent offender administration fund

Effective: July 1, 2007

Currentness

Sec. 21. (a) The state sex and violent offender administration fund is established to assist the department in carrying out its duties under IC 11-8-2-12.4 concerning the Indiana sex and violent offender registry. The fund shall be administered by the department.

(b) The expenses of administering the fund shall be paid from money in the fund.

(c) The fund consists of:

(1) grants;

(2) donations;

(3) appropriations;

(4) money from the annual sex or violent offender registration fee (IC 36-2-13-5.6(a)(1)(A)); and

(5) money from the sex or violent offender address change fee (IC 36-2-13-5.6(a)(1)(B)).

(d) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public money may be invested.

(e) Money in the fund is continually appropriated to carry out the purposes of the fund.

Credits

As added by P.L.216-2007, SEC.29.

I.C. 11-8-8-21, IN ST 11-8-8-21

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Title 11. Corrections

Article 8. General Provisions: Department of Correction

Chapter 8. Sex Offender Registration

IC 11-8-8-22

11-8-8-22 Petition to remove designation or register under less restrictive conditions

Effective: July 1, 2025

Currentness

Sec. 22. (a) As used in this section, “offender” means a sex offender (as defined in section 4.5 of this chapter) and a sex or violent offender (as defined in section 5 of this chapter).

(b) Subsection (g) applies to an offender required to register under this chapter if, due to a change in federal or state law after June 30, 2007, an individual who engaged in the same conduct as the offender:

(1) would not be required to register under this chapter; or

(2) would be required to register under this chapter but under less restrictive conditions than the offender is required to meet.

(c) A person to whom this section applies may petition a court to:

(1) remove the person's designation as an offender and order the department to remove all information regarding the person from the public portal of the sex and violent offender registry website established under IC 36-2-13-5.5; or

(2) require the person to register under less restrictive conditions.

(d) A petition under this section shall be filed in the circuit or superior court of the county in which the offender resides. If the offender resides in more than one (1) county, the petition shall be filed in the circuit or superior court of the county in which the offender resides the greatest time. If the offender does not reside in Indiana, the petition shall be filed in the circuit or superior court of the county where the offender is employed the greatest time. If the offender does not reside or work in Indiana, but is a student in Indiana, the petition shall be filed in the circuit or superior court of the county where the offender is a student. If the offender is not a student in Indiana and does not reside or work in Indiana, the petition shall be filed in the county where the offender was most recently convicted of a crime listed in section 5 of this chapter.

(e) After receiving a petition under this section, the court may:

(1) summarily dismiss the petition; or

(2) give notice to:

(A) the department;

(B) the attorney general;

(C) the prosecuting attorney of:

(i) the county where the petition was filed;

(ii) the county where offender was most recently convicted of an offense listed in section 5 of this chapter; and

(iii) the county where the offender resides; and

(D) the sheriff of the county where the offender resides;

and set the matter for hearing. The date set for a hearing must not be less than sixty (60) days after the court gives notice under this subsection.

(f) If a court sets a matter for a hearing under this section, the prosecuting attorney of the county in which the action is pending shall appear and respond, unless the prosecuting attorney requests the attorney general to appear and respond and the attorney general agrees to represent the interests of the state in the matter. If the attorney general agrees to appear, the attorney general shall give notice to:

(1) the prosecuting attorney; and

(2) the court.

(g) A court may grant a petition under this section if, following a hearing, the court makes the following findings:

(1) The law requiring the petitioner to register as an offender has changed since the date on which the petitioner was initially required to register.

(2) If the petitioner who was required to register as an offender before the change in law engaged in the same conduct after the change in law occurred, the petitioner would:

(A) not be required to register as an offender; or

(B) be required to register as an offender, but under less restrictive conditions.

(3) If the petitioner seeks relief under this section because a change in law makes a previously unavailable defense available to the petitioner, that the petitioner has proved the defense.

The court has the discretion to deny a petition under this section, even if the court makes the findings under this subsection.

(h) The petitioner has the burden of proof in a hearing under this section.

(i) If the court grants a petition under this section, the court shall notify:

(1) the victim of the offense, if applicable;

(2) the department of correction; and

(3) the local law enforcement authority of every county in which the petitioner is currently required to register.

(j) An offender may base a petition filed under this section on a claim that the application or registration requirements constitute ex post facto punishment.

(k) A petition filed under this section must:

(1) be submitted under the penalties of perjury;

(2) list each of the offender's criminal convictions and state for each conviction:

(A) the date of the judgment of conviction;

(B) the court that entered the judgment of conviction;

(C) the crime that the offender pled guilty to or was convicted of; and

(D) whether the offender was convicted of the crime in a trial or pled guilty to the criminal charges; and

(3) list each jurisdiction in which the offender is required to register as a sex offender or a violent offender.

(l) The attorney general may initiate an appeal from any order granting an offender relief under this section.

Credits

As added by P.L.216-2007, SEC.30. Amended by P.L.103-2010, SEC.2, eff. March 24, 2010; P.L.214-2013, SEC.13, eff. July 1, 2013; P.L.1-2025, SEC.160, eff. July 1, 2025.

I.C. 11-8-8-22, IN ST 11-8-8-22

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IC 11-8-8-23

11-8-8-23 Change of name of offender; application; notification

Effective: July 1, 2020

Currentness

Sec. 23. (a) This section applies to the local law enforcement authority in the county of conviction who has received notice that a lifetime sex or violent offender (as defined in IC 34-28-2-1.5) has changed the offender's name under:

- (1) IC 31-11-4-11 (marriage);
- (2) IC 31-15-2-19 (dissolution of marriage);
- (3) IC 31-19-2-1.1 (adult adoption); or
- (4) IC 34-28-2-1.5 (an action for name change).

(b) A local law enforcement authority to which this section applies shall take reasonable steps, including consulting with the prosecuting attorney or a victim assistance program in the county of conviction, to notify the victim (or the spouse or immediate family member of a deceased victim):

- (1) that the lifetime sex or violent offender has changed the offender's name;
- (2) of the reason for the name change; and
- (3) of the lifetime sex or violent offender's new name.

Credits

As added by P.L.244-2019, SEC.1, eff. July 1, 2019. Amended by P.L.156-2020, SEC.52, eff. July 1, 2020.

I.C. 11-8-8-23, IN ST 11-8-8-23

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Iowa Code Annotated

Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

Subtitle 1. Crime Control and Criminal Acts [Chs. 687-747] (Refs & Annos)

Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.101

692A.101. Definitions

Effective: July 1, 2020

Currentness

As used in this chapter and unless the context otherwise requires:

1. a. “Aggravated offense” means a conviction for any of the following offenses:

(1) Sexual abuse in the first degree in violation of section 709.2.

(2) Sexual abuse in the second degree in violation of section 709.3.

(3) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “a”.

(4) Lascivious acts with a child in violation of section 709.8, subsection 1, paragraph “a” or “b”.

(5) Assault with intent to commit sexual abuse in violation of section 709.11.

(6) Burglary in the first degree in violation of section 713.3, subsection 1, paragraph “d”.

(7) Kidnapping, if sexual abuse as defined in section 709.1 is committed during the commission of the offense.

(8) Murder in violation of section 707.2 or 707.3, if sexual abuse as defined in section 709.1 is committed during the offense.

(9) Continuous sexual abuse of a child in violation of section 709.23.

b. Any conviction for an offense specified in the laws of another jurisdiction or prosecuted in federal, military, or foreign court that is comparable to an offense listed in paragraph “a” shall be considered an aggravated offense for purposes of registering under this chapter.

2. a. “Aggravated offense against a minor” means a conviction for any of the following offenses, if such offense was committed against a minor, or otherwise involves a minor:

(1) Sexual abuse in the first degree in violation of section 709.2.

(2) Sexual abuse in the second degree in violation of section 709.3.

(3) Sexual abuse in the third degree in violation of section 709.4, except for a violation of section 709.4, subsection 1, paragraph “b”, subparagraph (2), subparagraph division (d).

(4) Continuous sexual abuse of a child in violation of section 709.23.

b. Any offense specified in the laws of another jurisdiction or prosecuted in a federal, military, or foreign court that is comparable to an offense listed in paragraph “a” shall be considered an aggravated offense against a minor if such an offense was committed against a minor or otherwise involves a minor.

3. “Appearance” means to appear in person at a sheriff’s office.

4. “Business day” means every day except Saturday, Sunday, or any paid holiday for county employees in the applicable county.

5. “Change” means to add, begin, or terminate.

6. “Child care facility” means the same as defined in section 237A.1.

7. “Convicted” means found guilty of, pleads guilty to, or is sentenced or adjudicated delinquent for an act which is an indictable offense in this state or in another jurisdiction including in a federal, military, tribal, or foreign court, including but not limited to a juvenile who has been adjudicated delinquent, but whose juvenile court records have been sealed under section 232.150, and a person who has received a deferred sentence or a deferred judgment or has been acquitted by reason of insanity. “Conviction” includes the conviction of a juvenile prosecuted as an adult. “Convicted” also includes a conviction for an attempt or conspiracy to commit an offense. “Convicted” does not mean a plea, sentence, adjudication, deferred sentence, or deferred judgment which has been reversed or otherwise set aside.

8. “Criminal or juvenile justice agency” means an agency or department of any level of government or an entity wholly owned, financed, or controlled by one or more such agencies or departments which performs as its principal function the apprehension, prosecution, adjudication, incarceration, or rehabilitation of criminal or juvenile offenders.

9. “Department” means the department of public safety.

10. “Employee” means an offender who is self-employed, employed by another, and includes a person working under contract, or acting or serving as a volunteer, regardless of whether the self-employment, employment by another, or volunteerism is performed for compensation.

11. “Employment” means acting as an employee.

12. “Foreign court” means a court of a foreign nation that is recognized by the United States department of state that enforces the right to a fair trial during the period in which a conviction occurred.

13. “Habitually lives” means living in a place with some regularity, and with reference to where the sex offender actually lives, which could be some place other than a mailing address or primary address but would entail a place where the sex offender lives on an intermittent basis.

14. “Incarcerated” means to be imprisoned by placing a person in a jail, prison, penitentiary, juvenile facility, or other correctional institution or facility or a place or condition of confinement or forcible restraint regardless of the nature of the institution in which the person serves a sentence for a conviction.

15. “Internet identifier” means an electronic mail address, instant message address or identifier, or any other designation or moniker used for self-identification during internet communication or posting, including all designations used for the purpose of routing or self-identification in internet communications or postings.

16. “Jurisdiction” means any state of the United States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana Islands, the United States Virgin Islands, or a federally recognized Indian tribe.

17. “Loiter” means remaining in a place or circulating around a place under circumstances that would warrant a reasonable person to believe that the purpose or effect of the behavior is to enable a sex offender to become familiar with a location where a potential victim may be found, or to satisfy an unlawful sexual desire, or to locate, lure, or harass a potential victim.

18. “Military offense” means a sex offense specified by the secretary of defense under 10 U.S.C. § 951.

19. “Minor” means a person under eighteen years of age.

20. “Principal residence” for a sex offender means:

a. The residence of the offender, if the offender has only one residence in this state.

b. The residence at which the offender resides, sleeps, or habitually lives for more days per year than another residence in this state, if the offender has more than one residence in this state.

c. The place of employment or attendance as a student, or both, if the sex offender does not have a residence in this state.

21. “Professional licensing information” means the name or other description, number, if applicable, and issuing authority or agency of any license, certification, or registration required by law to engage in a profession or occupation held by a sex offender who is required at the time of the initial requirement to register under this chapter, or any such license, certification, or registration that was issued to an offender within the five-year period prior to conviction for a sex offense that requires registration under this chapter, or any such license, certification, or registration that is issued to an offender at any time during the duration of the registration requirement.

22. “Public library” means any library that receives financial support from a city or county pursuant to section 8A.222.

23. a. “Relevant information” means the following information with respect to a sex offender:

(1) Criminal history, including warrants, articles, status of parole, probation, or supervised release, date of arrest, date of conviction, and registration status.

(2) Date of birth.

(3) Passport and immigration documents.

(4) Government issued driver's license or identification card.

(5) DNA sample.

(6) Educational institutions attended as a student, including the name and address of such institutions.

(7) Employment information including name and address of employer.

(8) Fingerprints.

(9) Internet identifiers.

(10) Names, nicknames, aliases, or ethnic or tribal names, and if applicable, the real names of an offender protected under 18 U.S.C. § 3521.

(11) Palm prints.

(12) Photographs.

(13) Physical description, including scars, marks, or tattoos.

(14) Professional licensing information.

(15) Residence.

(16) Social security number.

(17) Telephone numbers, including any landline or wireless numbers.

(18) Temporary lodging information, including dates when residing in temporary lodging.

(19) Statutory citation and text of offense committed that requires registration under this chapter.

(20) Vehicle information for a vehicle owned or operated by an offender including license plate number, registration number, or other identifying number, vehicle description, and the permanent or frequent locations where the vehicle is parked, docked, or otherwise kept.

(21) The name, gender, and date of birth of each person residing in the residence.

b. “Relevant information” does not include relevant information in paragraph “a”, subparagraphs (1) and (19), when a sex offender is required to provide relevant information pursuant to this chapter.

24. “Residence” means each dwelling or other place where a sex offender resides, sleeps, or habitually lives, or will reside, sleep, or habitually live, including a shelter or group home. If a sex offender does not reside, sleep, or habitually live in a fixed place, “residence” means a description of the locations where the offender is stationed regularly, including any mobile or transitory living quarters. “Residence” shall be construed to refer to the places where a sex offender resides, sleeps, habitually lives, or is stationed with regularity, regardless of whether the offender declares or characterizes such place as the residence of the offender.

25. “Sex act” means as defined in section 702.17.

26. “Sex offender” means a person who is required to be registered under this chapter.

27. “Sex offense” means an indictable offense for which a conviction has been entered that is enumerated in section 692A.102, and means any comparable offense for which a conviction has been entered under prior law, or any comparable offense for which a conviction has been entered in a federal, military, or foreign court, or another jurisdiction.

28. “Sex offense against a minor” means an offense for which a conviction has been entered for a sex offense classified as a tier I, tier II, or tier III offense under this chapter if such offense was committed against a minor, or otherwise involves a minor.

29. “Sexually motivated” means the same as defined in section 229A.2.

30. “Sexually violent offense” means an offense for which a conviction has been entered for any of the following indictable offenses:

a. Sexual abuse as defined under section 709.1.

b. Assault with intent to commit sexual abuse in violation of section 709.11.

c. Sexual misconduct with offenders and juveniles in violation of section 709.16.

d. Any of the following offenses, if the offense involves sexual abuse or assault with intent to commit sexual abuse: murder, attempted murder, kidnapping, burglary, or manslaughter.

e. A criminal offense committed in another jurisdiction, including a conviction in a federal, military, or foreign court, which would constitute an indictable offense under paragraphs “a” through “d” if committed in this state.

31. “Sexually violent predator” means a sex offender who has been convicted of an offense which would qualify the offender as a sexually violent predator under the federal Violent Crime Control and Law Enforcement Act of 1994, 42 U.S.C. § 14071(a)(3)(B), (C), (D), and (E).

32. “SORNA” means the Sex Offender Registration and Notification Act, which is Tit. I of the federal Adam Walsh Child Protection and Safety Act of 2006.¹

33. “Student” means a sex offender who enrolls in or otherwise receives instruction at an educational institution, including a public or private elementary school, secondary school, trade or professional school, or institution of higher education. “Student” does not mean a sex offender who enrolls in or attends an educational institution as a correspondence student, distance learning student, or any other form of learning that occurs without physical presence on the real property of an educational institution.

34. “Superintendent” means the superintendent or superintendent’s designee of a public school or the authorities in charge of a nonpublic school.

35. “Vehicle” means a vehicle owned or operated by an offender, including but not limited to a vehicle for personal or work-related use, and including a watercraft or aircraft, that is subject to registration requirements under chapter 321, 328, or 462A.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 1. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, §§ 1 to 3, eff. March 26, 2010; Acts 2013 (85 G.A.) ch. 30, H.F. 417, §§ 242, 243; Acts 2014 (85 G.A.) ch. 1119, S.F. 2297, § 6, eff. May 30, 2014; Acts 2014 (85 G.A.) ch. 1092, H.F. 2423, §§ 139, 140, eff. July 1, 2014; Acts 2020 (88 G.A.) ch. 1115, H.F. 2554, §§ 1, 2, eff. July 1, 2020.

Footnotes

1 See 42 U.S.C.A. § 16901 et seq.

I. C. A. § 692A.101, IA ST § 692A.101

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Iowa Code Annotated

Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

Subtitle 1. Crime Control and Criminal Acts [Chs. 687-747] (Refs & Annos)

Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.102

692A.102. Sex offense classifications

Effective: July 1, 2025

Currentness

1. For purposes of this chapter, all individuals required to register shall be classified as a tier I, tier II, or tier III offender. For purposes of this chapter, sex offenses are classified into the following tiers:

a. Tier I offenses include a conviction for the following sex offenses:

(1) Sexual abuse in the second degree in violation of section 709.3, subsection 1, paragraph “b”, if committed by a person under the age of fourteen.

(2) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “a”, “c”, or “d”, if committed by a person under the age of fourteen.

(3) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “b”, subparagraph (1), if committed by a person under the age of fourteen.

(4) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “b”, subparagraph (2).

(5) Grooming in violation of section 709.8A.

(6) Indecent exposure in violation of section 709.9.

(7) (a) Except as provided in subparagraph division (b), harassment in violation of section 708.7, subsection 1, 2, or 3, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(b) Harassment in violation of section 708.7, subsection 1, paragraph “a”, subparagraph (5), if committed by a person eighteen years of age or older.

- (c) Stalking in violation of section 708.11, if a determination is made that the offense was sexually motivated pursuant to section 692A.126, except a violation of section 708.11, subsection 3, paragraph “a”, subparagraph (3), shall be classified a tier II offense as provided in paragraph “b”.
- (d) Any other indictable offense in violation of chapter 708 if the offense is committed against a minor and if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (8) Pimping in violation of section 725.2 if the offense was committed against a minor or otherwise involves a minor and if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (9) Pandering in violation of section 725.3, subsection 2, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (10) Any indictable offense in violation of chapter 726 if the offense is committed against a minor or otherwise involves a minor and if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (11) (a) Dissemination or exhibition of obscene material to minors in violation of section 728.2 or telephone dissemination of obscene material to minors in violation of section 728.15.
- (b) Rental or sale of hard-core pornography, if delivery is to a minor, in violation of section 728.4.
- (12) Admitting minors to premises where obscene material is exhibited in violation of section 728.3.
- (13) Receipt or possession of child pornography in violation of 18 U.S.C. § 2252.
- (14) Material containing child pornography in violation of 18 U.S.C. § 2252A.
- (15) Misleading domain names on the internet in violation of 18 U.S.C. § 2252B.
- (16) Misleading words or digital images on the internet in violation of section 18 U.S.C. § 2252C.
- (17) Failure to file a factual statement about an alien individual in violation of 18 U.S.C. § 2424.
- (18) Transmitting information about a minor to further criminal sexual conduct in violation of 18 U.S.C. § 2425.
- (19) Any sex offense specified in the laws of another jurisdiction, or any sex offense that may be prosecuted in federal, military, or foreign court, that is comparable to an offense listed in subparagraphs (1) through (17).

(20) Any sex offense under the prior laws of this state or another jurisdiction, or any sex offense under prior law that was prosecuted in a federal, military, or foreign court, that is comparable to an offense listed in subparagraphs (1) through (18).

b. Tier II offenses include a conviction for the following sex offenses:

(1) Lascivious acts with a child in violation of section 709.8, subsection 1, paragraph “d” or “e”.

(2) Solicitation of a minor to engage in an illegal sex act in violation of section 705.1.

(3) Solicitation of a minor to engage in an illegal act under section 709.8, subsection 1, paragraph “d”, in violation of section 705.1.

(4) Solicitation of a minor to engage in an illegal act under section 709.12, in violation of section 705.1.

(5) False imprisonment of a minor in violation of section 710.7, except if committed by a parent.

(6) Assault with intent to commit sexual abuse if no injury results in violation of section 709.11.

(7) Invasion of privacy-nudity in violation of section 709.21.

(8) Stalking in violation of section 708.11, subsection 3, paragraph “a”, subparagraph (3), if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(9) Indecent contact with a child in violation of section 709.12, if the child is thirteen years of age.

(10) Lascivious conduct with a minor in violation of section 709.14.

(11) Sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction in violation of section 709.15, if the victim is thirteen years of age or older.

(12) Sexual misconduct with offenders and juveniles in violation of section 709.16, if the victim is thirteen years of age or older.

(13) Sexual abuse of a corpse in violation of section 709.18.

(14) Kidnapping of a person who is not a minor in violation of section 710.2, 710.3, or 710.4, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

- (15) Pandering in violation of section 725.3.
 - (16) Solicitation of a minor to engage in an illegal act under section 725.3, subsection 2, in violation of section 705.1.
 - (17) Incest committed against a dependent adult as defined in section 235B.2 in violation of section 726.2.
 - (18) Incest committed against a minor in violation of section 726.2.
 - (19) Sexual exploitation of a minor in violation of section 728.12, subsection 2 or 3.
 - (20) Material involving the sexual exploitation of a minor in violation of 18 U.S.C. § 2252(a), except receipt or possession of child pornography.
 - (21) Production of sexually explicit depictions of a minor for import into the United States in violation of 18 U.S.C. § 2260.
 - (22) Transportation of a minor for illegal sexual activity in violation of 18 U.S.C. § 2421.
 - (23) Coercion and enticement of a minor for illegal sexual activity in violation of 18 U.S.C. § 2422(a) or (b).
 - (24) Transportation of minors for illegal sexual activity in violation of 18 U.S.C. § 2423(a).
 - (25) Travel with the intent to engage in illegal sexual conduct with a minor in violation of 18 U.S.C. § 2423.
 - (26) Engaging in illicit sexual conduct in foreign places in violation of 18 U.S.C. § 2423(c).
 - (27) Video voyeurism of a minor in violation of 18 U.S.C. § 1801.
 - (28) Any sex offense specified in the laws of another jurisdiction, or any sex offense that may be prosecuted in a federal, military, or foreign court, that is comparable to an offense listed in subparagraphs (1) through (27).
 - (29) Any sex offense under the prior laws of this state or another jurisdiction, or any sex offense under prior law that was prosecuted in a federal, military, or foreign court, that is comparable to a sex offense listed in subparagraphs (1) through (27).
- c. Tier III offenses include a conviction for the following sex offenses:

- (1) Murder in violation of section 707.2 or 707.3 if sexual abuse as defined in section 709.1 is committed during the commission of the offense.

- (2) Murder in violation of section 707.2 or 707.3, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (3) Voluntary manslaughter in violation of section 707.4, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (4) Involuntary manslaughter in violation of section 707.5, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (5) Attempt to commit murder in violation of section 707.11, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
- (6) Penetration of the genitalia or anus with an object in violation of section 708.2, subsection 6.
- (7) Sexual abuse in the first degree in violation of section 709.2.
- (8) Sexual abuse in the second degree in violation of section 709.3, subsection 1, paragraph “a” or “c”.
- (9) Sexual abuse in the second degree in violation of section 709.3, subsection 1, paragraph “b”, if committed by a person fourteen years of age or older.
- (10) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “a”, “c”, or “d”, if committed by a person fourteen years of age or older.
- (11) Sexual abuse in the third degree in violation of section 709.4, subsection 1, paragraph “b”, subparagraph (1), if committed by a person fourteen years of age or older.
- (12) Sexual abuse in the fourth degree in violation of section 709.4A, subsection 3, if the perpetrator is a health care professional as defined in section 714I.2, who used or provided the health care professional's own human reproductive material for assisted reproduction in violation of section 714I.3, subsection 2.
- (13) Lascivious acts with a child in violation of section 709.8, subsection 1, paragraph “a” or “b”.
- (14) Continuous sexual abuse of a child in violation of section 709.23.
- (15) Kidnapping in violation of section 710.2 if sexual abuse as defined in section 709.1 is committed during the commission of the offense.

(16) Kidnapping of a minor in violation of section 710.2, 710.3, or 710.4, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(17) Assault with intent to commit sexual abuse resulting in serious or bodily injury in violation of section 709.11.

(18) Burglary in the first degree in violation of section 713.3, subsection 1, paragraph “d”.

(19) Any other burglary in the first degree offense in violation of section 713.3 that is not included in subparagraph (18), if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(20) Attempted burglary in the first degree in violation of section 713.4, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(21) Burglary in the second degree in violation of section 713.5, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(22) Attempted burglary in the second degree in violation of section 713.6, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(23) Burglary in the third degree in violation of section 713.6A, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(24) Attempted burglary in the third degree in violation of section 713.6B, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(25) Human trafficking in violation of section 710A.2 if sexual abuse or assault with intent to commit sexual abuse is committed or sexual conduct or sexual contact is an element of the offense.

(26) Purchase or sale of an individual in violation of section 710.11 if a determination is made that the offense was sexually motivated pursuant to section 692A.126.

(27) Sexual exploitation of a minor in violation of section 728.12, subsection 1.

(28) Indecent contact with a child in violation of section 709.12 if the child is under thirteen years of age.

(29) Sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction in violation of section 709.15, if the child is under thirteen years of age.

- (30) Sexual misconduct with offenders and juveniles in violation of section 709.16, if the child is under thirteen years of age.
 - (31) Child stealing in violation of section 710.5, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
 - (32) Enticing a minor in violation of section 710.10, if the violation includes an intent to commit sexual abuse, sexual exploitation, sexual contact, or sexual conduct directed towards a minor.
 - (33) Solicitation of commercial sexual activity in violation of section 710A.2A.
 - (34) Extortion in violation of section 711.4, if a determination is made that the offense was sexually motivated pursuant to section 692A.126.
 - (35) Sex trafficking of children in violation of 18 U.S.C. § 1591.
 - (36) Aggravated sexual abuse in violation of 18 U.S.C. § 2241.
 - (37) Sexual abuse in violation of 18 U.S.C. § 2242.
 - (38) Sexual abuse of a minor or ward in violation of 18 U.S.C. § 2243.
 - (39) Abusive sexual contact in violation of 18 U.S.C. § 2244.
 - (40) Offenses resulting in death in violation of 18 U.S.C. § 2245.
 - (41) Sexual exploitation of children in violation of 18 U.S.C. § 2251.
 - (42) Selling or buying of children in violation of 18 U.S.C. § 2251A.
 - (43) Any sex offense specified in the laws of another jurisdiction, or any sex offense that may be prosecuted in federal, military, or foreign court, that is comparable to an offense listed in subparagraphs (1) through (42).
 - (44) Any sex offense under the prior laws of this state or another jurisdiction, or any sex offense under prior law that was prosecuted in federal, military, or foreign court, that is comparable to a sex offense listed in subparagraphs (1) through (42).
2. A sex offender classified as a tier I offender shall be reclassified as a tier II offender, if it is determined the offender has one previous conviction for an offense classified as a tier I offense.

3. A sex offender classified as a tier II offender, shall be reclassified as a tier III offender, if it is determined the offender has a previous conviction for a tier II offense or has been reclassified as a tier II offender because of a previous conviction.
4. Notwithstanding the classifications of sex offenses in subsection 1, any sex offense which would qualify a sex offender as a sexually violent predator shall be classified as a tier III offense.
5. An offense classified as a tier II offense if committed against a person under thirteen years of age shall be reclassified as a tier III offense.
6. Convictions of more than one sex offense which require registration under this chapter but which are prosecuted within a single indictment shall be considered as a single offense for purposes of registration.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 2. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, §§ 4 to 7, eff. March 26, 2010; Acts 2010 (83 G.A.) ch. 1043, H.F. 2286, § 2; Acts 2010 (83 G.A.) ch. 1074, H.F. 2392, § 2; Acts 2010 (83 G.A.) ch. 1193, H.F. 2531, § 65; Acts 2011 (84 G.A.) ch. 95, S.F. 236, § 8; Acts 2012 (84 G.A.) ch. 1057, H.F. 2390, § 1; Acts 2013 (85 G.A.) ch. 30, H.F. 417, §§ 244 to 246; Acts 2013 (85 G.A.) ch. 90, H.F. 556, §§ 250, 251; Acts 2014 (85 G.A.) ch. 1119, S.F. 2297, § 7, eff. May 30, 2014; Acts 2014 (85 G.A.) ch. 1092, H.F. 2423, §§ 141 to 143, eff. July 1, 2014; Acts 2020 (88 G.A.) ch. 1115, H.F. 2554, § 3, eff. July 1, 2020; Acts 2021 (89 G.A.) ch. 102, S.F. 562, §§ 2, 3, eff. July 1, 2021; Acts 2021 (89 G.A.) ch. 37, S.F. 253, §§ 1, 2, eff. July 1, 2021; Acts 2021 (89 G.A.) ch. 89, H.F. 201, § 1, eff. July 1, 2021; Acts 2022 (89 G.A.) ch. 1123, S.F. 529, § 6, eff. July 1, 2022; Acts 2022 (89 G.A.) ch. 1153, H.F. 2589, § 14, eff. July 1, 2022; Acts 2023 (90 G.A.) ch. 74, S.F. 84, §§ 9, 10, eff. July 1, 2023; Acts 2024 (90 G.A.) ch. 1065, H.F. 2240, §§ 1, 2, eff. July 1, 2024; Acts 2025 (91 G.A.) ch. 8, H.F. 180, § 1, eff. July 1, 2025.

I. C. A. § 692A.102, IA ST § 692A.102

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Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

Subtitle 1. Crime Control and Criminal Acts [Chs. 687-747] (Refs & Annos)

Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.103

692A.103. Offenders required to register

Effective: July 1, 2009

Currentness

1. A person who has been convicted of any sex offense classified as a tier I, tier II, or tier III offense, or an offender required to register in another jurisdiction under the other jurisdiction's sex offender registry, shall register as a sex offender as provided in this chapter if the offender resides, is employed, or attends school in this state. A sex offender shall, upon a first or subsequent conviction, register in compliance with the procedures specified in this chapter, for the duration of time specified in this chapter, commencing as follows:

a. From the date of placement on probation.

b. From the date of release on parole or work release.

c. From the date of release from incarceration.

d. Except as otherwise provided in this section, from the date an adjudicated delinquent is released from placement in a juvenile facility ordered by a court pursuant to section 232.52.

e. Except as otherwise provided in this section, from the date an adjudicated delinquent commences attendance as a student at a public or private educational institution, other than an educational institution located on the real property of a juvenile facility if the juvenile has been ordered placed at such facility pursuant to section 232.52.

f. From the date of conviction for a sex offense requiring registration if probation, incarceration, or placement ordered pursuant to section 232.52 in a juvenile facility is not included in the sentencing, order, or decree of the court, except as otherwise provided in this section for juvenile cases.

2. A sex offender is not required to register while incarcerated. However, the running of the period of registration is tolled pursuant to section 692A.107 if a sex offender is incarcerated.

3. A juvenile adjudicated delinquent for an offense that requires registration shall be required to register as required in this chapter unless the juvenile court waives the requirement and finds that the person should not be required to register under this chapter.

4. Notwithstanding subsections 3 and 5, a juvenile fourteen years of age or older at the time the offense was committed shall be required to register if the adjudication was for an offense committed by force or the threat of serious violence, by rendering the victim unconscious, or by involuntary drugging of the victim. At the time of adjudication the judge shall make a determination as to whether the offense was committed by force or the threat of serious violence, by rendering the victim unconscious, or by involuntary drugging of the victim.

5. If a juvenile is required to register pursuant to subsection 3, the juvenile court may, upon motion of the juvenile, and after reasonable notice to the parties and hearing, modify or suspend the registration requirements if good cause is shown.

a. The motion to modify or suspend shall be made and the hearing shall occur prior to the discharge of the juvenile from the jurisdiction of the juvenile court for the sex offense that requires registration.

b. If at the time of the hearing the juvenile is participating in an appropriate outpatient treatment program for juvenile sex offenders, the juvenile court may enter orders temporarily suspending the requirement that the juvenile register and may defer entry of a final order on the matter until such time that the juvenile has completed or been discharged from the outpatient treatment program.

c. Final orders shall then be entered within thirty days from the date of the juvenile's completion or discharge from outpatient treatment.

d. Any order entered pursuant to this subsection that modifies or suspends the requirement to register shall include written findings stating the reason for the modification or suspension, and shall include appropriate restrictions upon the juvenile to protect the public during any period of time the registry requirements are modified or suspended. Upon entry of an order modifying or suspending the requirement to register, the juvenile court shall notify the superintendent or the superintendent's designee where the juvenile is enrolled of the decision.

e. This subsection does not apply to a juvenile fourteen years of age or older at the time the offense was committed if the adjudication was for a sex offense committed by force or the threat of serious violence, by rendering the victim unconscious, or by involuntary drugging of the victim.

6. If a juvenile is required to register and the court later modifies or suspends the order regarding the requirement to register, the court shall notify the department within five days of the decision.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 3.

I. C. A. § 692A.103, IA ST § 692A.103

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Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

Subtitle 1. Crime Control and Criminal Acts [Chs. 687-747] (Refs & Annos)

Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.104

692A.104. Registration process

Effective: July 1, 2009

Currentness

1. A sex offender shall appear in person to register with the sheriff of each county where the offender has a residence, maintains employment, or is in attendance as a student, within five business days of being required to register under section 692A.103 by providing all relevant information to the sheriff. A sheriff shall accept the registration of any person who is required to register in the county pursuant to the provisions of this chapter.
2. A sex offender shall, within five business days of changing a residence, employment, or attendance as a student, appear in person to notify the sheriff of each county where a change has occurred.
3. A sex offender shall, within five business days of a change in relevant information, other than relevant information enumerated in subsection 2, notify the sheriff of the county where the principal residence of the offender is maintained about the change to the relevant information. The department shall establish by rule what constitutes proper notification under this subsection.
4. A sex offender who is required to verify information pursuant to the provisions of section 692A.108 is only required to appear in person in the county where the principal residence of the offender is maintained to verify such information.
5. A sex offender shall, within five business days of the establishment of a residence, employment, or attendance as a student in another jurisdiction, appear in person to notify the sheriff of the county where the principal residence of the offender is maintained, about the establishment of a residence, employment, or attendance in another jurisdiction. A sex offender shall, within five business days of establishing a new residence, employment, or attendance as a student in another jurisdiction, register with the registering agency of the other jurisdiction, if the offender is required to register under the laws of the other jurisdiction. The department shall notify the registering agency in the other jurisdiction of the sex offender's new residence, employment, or attendance as a student in the other jurisdiction.
6. A sex offender, who has multiple residences in this state, shall appear in person to notify the sheriff of each county where a residence is maintained, of the dates the offender will reside at each residence including the date when the offender will move from one residence to another residence.
7. Except as provided in subsection 8, the initial or subsequent registration and any notifications required in subsections 1, 2, 4, 5, and 6 shall be by appearance at the sheriff's office and completion of the initial or subsequent registration or notification shall be on a printed form, which shall be signed and dated by the sex offender. If the sheriff uses an electronic form to complete the initial registration or notification, the electronic form shall be printed upon completion and signed and dated by the sex offender.

The sheriff shall transmit the registration or notification form completed by the sex offender within five business days by paper copy, or electronically, using procedures established by the department by rule.

8. The collection of relevant information by a court or releasing agency under section 692A.109 shall serve as the sex offender's initial or subsequent registration for purposes of this section. However, the sex offender shall register by appearing in person in the county of residence to verify the offender's arrival and relevant information. The court or releasing agency shall forward a copy of the registration to the department within five business days of completion of registration using procedures established by the department by rule.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 4.

I. C. A. § 692A.104, IA ST § 692A.104

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Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.105

692A.105. Additional registration requirements--temporary lodging

Effective: July 1, 2009

Currentness

In addition to the registration provisions specified in section 692A.104, a sex offender, within five business days of a change, shall also appear in person to notify the sheriff of the county of principal residence, of any location in which the offender is staying when away from the principal residence of the offender for more than five days, by identifying the location and the period of time the offender is staying in such location.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 5.

I. C. A. § 692A.105, IA ST § 692A.105

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.106

692A.106. Duration of registration

Effective: July 1, 2022

Currentness

1. Except as otherwise provided in section 232.54, 692A.103, or 692A.128, or this section, the duration of registration required under this chapter shall be for a period of ten years. The registration period shall begin as provided in section 692A.103.
2. A sex offender who has been sentenced to a special sentence under section 903B.1 or 903B.2, shall be required to register for a period equal to the term of the special sentence, but in no case not less than the period specified in subsection 1.
3. If a sex offender is placed on probation, parole, or work release and the probation, parole, or work release is revoked, the period of registration shall commence anew upon release from custody.
4. A sex offender who is convicted of violating any of the requirements of this chapter shall register for an additional ten years, commencing from the date the offender's registration would have expired under subsection 1 or, in the case of an offender who has been sentenced to a special sentence under section 903B.1 or 903B.2, commencing from the date the offender's registration would have expired under subsection 2.
5. A sex offender, upon a second or subsequent conviction that requires a second registration, upon conviction of an aggravated offense, or if the sex offender has previously been convicted of one or more offenses that would have required registration under this chapter, shall register for life.
6. A sexually violent predator shall register for life.
7. If a sex offender ceases to maintain a residence, employment, or attendance as a student in this state, the offender shall no longer be required to register, and the offender shall be placed on inactive status and relevant information shall not be placed on the sex offender registry internet site, after the department verifies that the offender has complied with the registration requirements in another jurisdiction. If the sex offender subsequently reestablishes residence, employment, or attendance as a student in this state, the registration requirement under this chapter shall apply and the department shall remove the offender from inactive status and place any relevant information and any updated relevant information in the possession of the department on the sex offender registry internet site.

8. A sex offender who is required to register in another jurisdiction under the other jurisdiction's sex offender registry but who resides, is employed, or attends school in this state shall be required to register for a period of time equal to the period of time required under the other jurisdiction's requirements or under Iowa law, whichever is longer.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 6. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, § 8, eff. March 26, 2010; Acts 2021 (89 G.A.) ch. 89, H.F. 201, § 2, eff. July 1, 2021; Acts 2022 (89 G.A.) ch. 1021, S.F. 2295, § 171, eff. July 1, 2022.

I. C. A. § 692A.106, IA ST § 692A.106

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.107

692A.107. Tolling of registration period

Effective: July 1, 2009

Currentness

1. If a sex offender is incarcerated during a period of registration, the running of the period of registration is tolled until the offender is released from incarceration for that crime.
2. If a sex offender violates any requirements of section 692A.104, 692A.105, 692A.108, 692A.112, 692A.113, 692A.114, or 692A.115, in addition to any criminal penalty prescribed for such violation, the period of registration is tolled until the offender complies with the registration provisions of this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 7.

I. C. A. § 692A.107, IA ST § 692A.107

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.108

692A.108. Verification of relevant information

Effective: July 1, 2009

Currentness

1. A sex offender shall appear in person in the county of principal residence after the offender was initially required to register, to verify residence, employment, and attendance as a student, to allow the sheriff to photograph the offender, and to verify the accuracy of other relevant information during the following time periods after the initial registration:

- a. For a sex offender classified as a tier I offender, every year.
- b. For a sex offender classified as a tier II offender, every six months.
- c. For a sex offender classified as a tier III offender, every three months.

2. A sheriff may require a sex offender to appear in person more frequently than provided in subsection 1 to verify relevant information if good cause is shown. The circumstances under which more frequent appearances are required shall be reasonable, documented by the sheriff, and provided to the offender and the department in writing. Any modification to such requirement shall also be provided to the sex offender and the department in writing.

3. a. At least thirty days prior to an appearance for the verification of relevant information as required by this section, the department shall mail notification of the required appearance to each reported residence of the sex offender. The department shall not be required to mail notification to any sex offender if the residence described or listed in the sex offender's relevant information is insufficient for the delivery of mail.

b. The notice shall state that the sex offender shall appear in person in the county of principal residence on or before a date specified in the notice to verify and update relevant information. The notice shall not be forwarded to another address and shall be returned to the department if the sex offender no longer resides at the address.

4. A photograph of the sex offender shall be updated, at a minimum, annually. The sheriff shall send the updated photograph to the department using procedures established by the department by rule within five business days of the photograph being taken and the department shall post the updated photograph on the sex offender registry's internet site. The sheriff may require the sex offender to submit to being photographed, fingerprinted, or palm printed, more than once per year during any required appearance to verify relevant information.

5. The sheriff may make a reasonable modification to the date requiring a sex offender to make an appearance based on exigent circumstances including man-made or natural disasters. The sheriff shall notify the department of any modification using procedures established by the department by rule.

6. A waiver of the next immediate in-person verification pursuant to this section may be granted at the discretion of the sheriff, if the sex offender appears in person at the sheriff's office because of changes to relevant information pursuant to section 692A.104 or 692A.105, and if the in-person verification pursuant to this section is within thirty days of such in-person appearance. If a waiver is granted, the sheriff shall notify the department of granting the waiver.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 8.

I. C. A. § 692A.108, IA ST § 692A.108

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.109

692A.109. Duty to facilitate registration

Effective: July 1, 2009

Currentness

1. When a sex offender is released from incarceration from a jail, prison, juvenile facility, or other correctional institution or facility, or when the offender is convicted but not incarcerated, the sheriff, warden, or superintendent of a facility or, in the case of release from foster care or residential treatment or conviction without incarceration, the court shall do the following prior to release or sentencing of the convicted offender:

a. Obtain all relevant information from the sex offender. Additional information for a sex offender required to register as a sexually violent predator shall include but not be limited to other identifying factors, anticipated future places of residence, offense history, and documentation of any treatment received by the person for a mental abnormality or personality disorder.

b. Inform the sex offender of the duty to register under this chapter and SORNA and ensure registration forms are completed and signed.

c. Inform the sex offender that, within five business days of changing a residence, employment, or attendance as a student, an appearance is required before the sheriff in the county where the change occurred.

d. Inform the sex offender that, within five business days of a change in relevant information other than a change of residence, employment, or attendance as a student, the sex offender shall notify, in a manner prescribed by rule, the sheriff of the county of principal residence of the change.

e. Inform the sex offender that if the offender establishes residence in another jurisdiction, or becomes employed, or becomes a student in another jurisdiction, the offender must report the offender's new residence, employment, or attendance as a student, to the sheriff's office in the county of the offender's principal residence within five business days, and that, if the other jurisdiction has a registration requirement, the offender shall also be required to register in such jurisdiction.

f. Require the sex offender to read and sign a form stating that the duty of the offender to register under this chapter has been explained and the offender understands the registration requirement. If the sex offender cannot read, is unable to write, or refuses to cooperate, the duty and the form shall be explained orally and a written record shall be maintained by the sheriff, warden, superintendent of a facility, or court explaining the duty and the form.

g. Inform the sex offender who was convicted of a sex offense against a minor of the prohibitions established under section 692A.113 by providing the offender with a written copy of section 692A.113 and relevant definitions of section 692A.101.

h. Inform the sex offender who was convicted of an aggravated offense against a minor of the prohibitions established under section 692A.114 by providing the offender with a written copy of section 692A.114 and relevant definitions of section 692A.101.

i. Inform the sex offender that the offender must submit to being photographed by the sheriff of any county in which the offender is required to register upon initial registration and during any appearance to verify relevant information required under this chapter.

j. Inform the sex offender that any violation of this chapter may result in state or federal prosecution.

2. a. When a sex offender is released from incarceration from a jail, prison, juvenile facility, or other correctional institution or facility, or when the offender is convicted but not incarcerated, the sheriff, warden, superintendent of a facility, or court shall verify that the person has completed initial or subsequent registration forms, and accept the forms on behalf of the sheriff of the county of registration. The sheriff, warden, superintendent of a facility, or the court shall send the initial or subsequent registration information to the department within five business days of completion of the registration. Probation, parole, work release, or any other form of release after conviction shall not be granted unless the offender has registered as required under this chapter.

b. If the sex offender refuses to register, the sheriff, warden, superintendent of a facility, or court shall notify within five business days the county attorney in the county in which the offender was convicted or, if the offender no longer resides in that county, in the county in which the offender resides of the refusal to register. The county attorney shall bring a contempt of court action against the sex offender in the county in which the offender was convicted or, if the offender no longer resides in that county, in the county in which the offender resides. A sex offender who refuses to register shall be held in contempt and may be incarcerated pursuant to the provisions of chapter 665 following the entry of judgment by the court on the contempt action until the offender complies with the registration requirements.

3. The sheriff, warden, or superintendent of a facility, or if the sex offender is placed on probation, the court shall forward one copy of the registration information to the department and to the sheriff of the county in which the principal residence is established within five business days after completion of the registration.

4. The court may order an appropriate law enforcement agency or the county attorney to assist the court in performing the requirements of subsection 1 or 2.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 9.

I. C. A. § 692A.109, IA ST § 692A.109

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.110

692A.110. Registration fees and civil penalty for offenders

Effective: July 1, 2021

Currentness

1. A sex offender shall pay an annual fee in the amount of twenty-five dollars to the sheriff of the county of principal residence, beginning with the first required in-person appearance at the sheriff's office after July 1, 2009. If the sex offender has more than one principal residence in this state, the offender shall pay the annual fee in the county where the offender is first required to appear in person after July 1, 2009. The sheriff shall accept the registration. If, at the time of registration, the sex offender is unable to pay the fee, the sheriff may allow the offender time to pay the fee, permit the payment of the fee in installments, or may waive payment of the fee. Fees paid to the sheriff shall be used to defray the costs of duties related to the registration of sex offenders under this chapter.

2. In addition to any other penalty, at the time of conviction for a public offense committed on or after July 1, 1995, which requires a sex offender to register under this chapter, the offender shall be assessed a civil penalty payable to the clerk of the district court as provided in section 602.8105 and distributed as provided in section 602.8108.

3. The fee and penalty required by this section shall not be assessed against a person who has been acquitted by reason of insanity of the offense which requires registration under this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 10. Amended by Acts 2021 (89 G.A.) ch. 145, S.F. 367, § 7, eff. July 1, 2021.

I. C. A. § 692A.110, IA ST § 692A.110

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.111

692A.111. Failure to comply--penalty

Effective: March 26, 2010

Currentness

1. A sex offender who violates any requirements of section 692A.104, 692A.105, 692A.108, 692A.112, 692A.113, 692A.114, or 692A.115 commits an aggravated misdemeanor for a first offense and a class “D” felony for a second or subsequent offense. However, a sex offender convicted of an aggravated offense against a minor, a sex offense against a minor, or a sexually violent offense committed while in violation of any of the requirements specified in section 692A.104, 692A.105, 692A.108, 692A.112, 692A.113, 692A.114, or 692A.115 is guilty of a class “C” felony, in addition to any other penalty provided by law. Any fine imposed for a second or subsequent violation shall not be suspended. Notwithstanding section 907.3, the court shall not defer judgment or sentence for any violation of any requirements specified in this chapter. For purposes of this subsection, a violation occurs when a sex offender knows or reasonably should know of the duty to fulfill a requirement specified in this chapter as referenced in the offense charged.

2. Violations in any other jurisdiction under sex offender registry provisions that are substantially similar to those contained in this section shall be counted as previous offenses. The court shall judicially notice the statutes of other states which are substantially similar to this section.

3. Any violation of this chapter prior to July 1, 2009, shall be considered a previous offense for purposes of enhancing any penalty or period of registration under this chapter.

4. A sex offender who violates any provision of this chapter may be prosecuted in any county where registration is required by the provisions of this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 11. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, § 9, eff. March 26, 2010.

I. C. A. § 692A.111, IA ST § 692A.111

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.112

692A.112. Knowingly providing false information

Effective: July 1, 2009

Currentness

A sex offender shall not knowingly provide false information upon registration, change of relevant information, or during an appearance to verify relevant information.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 12.

I. C. A. § 692A.112, IA ST § 692A.112

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.113

692A.113. Exclusion zones and prohibition of certain employment-related activities

Effective: July 1, 2024

Currentness

1. A sex offender who has been convicted of a sex offense against a minor or a person required to register as a sex offender in another jurisdiction for an offense involving a minor shall not do any of the following:

a. Be present upon the real property of a public or nonpublic elementary or secondary school without the written permission of the school administrator or school administrator's designee, unless enrolled as a student at the school.

b. Loiter within three hundred feet of the real property boundary of a public or nonpublic elementary or secondary school, unless enrolled as a student at the school.

c. Be present on or in any vehicle or other conveyance owned, leased, or contracted by a public or nonpublic elementary or secondary school without the written permission of the school administrator or school administrator's designee when the vehicle is in use to transport students to or from a school or school-related activities, unless enrolled as a student at the school or unless the vehicle is simultaneously made available to the public as a form of public transportation.

d. Be present upon the real property of a child care facility without the written permission of the child care facility administrator.

e. Loiter within three hundred feet of the real property boundary of a child care facility.

f. Be present upon the real property of a public library without the written permission of the library administrator.

g. Loiter within three hundred feet of the real property boundary of a public library.

h. Loiter on or within three hundred feet of the premises of any place intended primarily for the use of minors including but not limited to a playground available to the public, a children's play area available to the public, a recreational or sport-related activity area when in use by a minor, a swimming or wading pool available to the public when in use by a minor, or a beach available to the public when in use by a minor.

2. A sex offender who has been convicted of a sex offense against a minor:

a. Who resides in a dwelling located within three hundred feet of the real property boundary of public or nonpublic elementary or secondary school, child care facility, public library, or place intended primarily for the use of minors as specified in subsection 1, paragraph “h”, shall not be in violation of subsection 1 for having an established residence within the exclusion zone.

b. Who is the parent or legal guardian of a minor shall not be in violation of subsection 1 solely during the period of time reasonably necessary to transport the offender's own minor child or protected person to or from a place specified in subsection 1.

c. Who is legally entitled to vote shall not be in violation of subsection 1 solely for the period of time reasonably necessary to exercise the right to vote in a public election if the polling location of the offender is located in a place specified in subsection 1.

3. A sex offender who has been convicted of a sex offense against a minor shall not do any of the following:

a. Operate, manage, be employed by, or act as a contractor or volunteer at any municipal, county, or state fair or carnival when a minor is present on the premises.

b. Operate, manage, be employed by, or act as a contractor or volunteer on the premises of any children's arcade, an amusement center having coin or token operated devices for entertainment, or facilities providing programs or services intended primarily for minors, when a minor is present.

c. Operate, manage, be employed by, or act as a contractor or volunteer at a public or nonpublic elementary or secondary school, child care facility, or public library.

d. Operate, manage, be employed by, or act as a contractor or volunteer at any place intended primarily for use by minors including but not limited to a playground, a children's play area, recreational or sport-related activity area, a swimming or wading pool, or a beach.

e. Operate, manage, be employed by, or act as a contractor or volunteer at a business that operates a motor vehicle primarily marketing, from or near the motor vehicle, the sale and dispensing of ice cream or other food products to minors.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 13. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, § 10, eff. March 26, 2010; Acts 2011 (84 G.A.) ch. 34, S.F. 475, § 144; Acts 2013 (85 G.A.) ch. 140, S.F. 452, § 23; Acts 2024 (90 G.A.) ch. 1009, S.F. 295, § 96, eff. July 1, 2024.

I. C. A. § 692A.113, IA ST § 692A.113

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.114

692A.114. Residency restrictions--presence--child care facilities and schools

Effective: July 1, 2024

Currentness

1. As used in this section:

- a. “Minor” means a person who is under eighteen years of age or who is enrolled in a secondary school.
- b. “School” means a public or nonpublic elementary or secondary school.
- c. “Sex offender” means a person required to be registered under this chapter who has been convicted of an aggravated offense against a minor.

2. A sex offender shall not reside within two thousand feet of the real property comprising a school or a child care facility.

3. A sex offender residing within two thousand feet of the real property comprising a school or a child care facility does not commit a violation of this section if any of the following apply:

- a. The sex offender is required to serve a sentence at a jail, prison, juvenile facility, or other correctional institution or facility.
- b. The sex offender is subject to an order of commitment under chapter 229A.
- c. The sex offender has established a residence prior to July 1, 2002.
- d. The sex offender has established a residence prior to any newly located school or child care facility being established.
- e. The sex offender is a minor.
- f. The sex offender is a protected person in a guardianship, and a district judge or associate probate judge grants an exemption from the residency restriction.

g. The sex offender is a patient or resident at a health care facility as defined in section 135C.1 or a patient in a hospice program, and a district judge or associate probate judge grants an exemption from the residency restriction.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 14. Amended by Acts 2024 (90 G.A.) ch. 1009, S.F. 295, § 97, eff. July 1, 2024.

I. C. A. § 692A.114, IA ST § 692A.114

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.115

692A.115. Employment where dependent adults reside

Effective: July 1, 2010

Currentness

1. Unless authorized as provided in subsection 2, a sex offender shall not be an employee of a facility providing services for dependent adults or at events where dependent adults participate in programming and shall not loiter on the premises or grounds of a facility or at an event providing such services or programming.

2. An adult sex offender who is a patient or resident of a health care facility as defined in section 135C.1, a participant in a medical assistance program home and community-based services waiver program, or a participant in a medical assistance state plan employment services as part of the participant's habilitation plan shall not be considered to be in violation of subsection 1.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 15. Amended by Acts 2010 (83 G.A.) ch. 1192, H.F. 2526, § 83.

I. C. A. § 692A.115, IA ST § 692A.115

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.116

692A.116. Determination of requirement to register

Effective: July 1, 2009

Currentness

1. An offender may request that the department determine whether the offense for which the offender has been convicted requires the offender to register under this chapter or whether the period of time during which the offender is required to register under this chapter has expired.
2. Application for determination shall be filed with the department and shall be made on forms provided by the department and accompanied by copies of sentencing or adjudicatory orders with respect to each offense for which the offender asks that a determination be made.
3. The department, after filing of the request and after all documentation or information requested by the department is received, shall have ninety days from the filing of the request, to determine whether the offender is required to register under this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 16.

I. C. A. § 692A.116, IA ST § 692A.116

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.117

692A.117. Registration forms and electronic registration system

Effective: July 1, 2009

Currentness

1. Registration forms and an electronic registration system shall be made available by the department.
2. Copies of blank forms shall be available upon request to any registering agency.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 17.

I. C. A. § 692A.117, IA ST § 692A.117

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.118

692A.118. Department duties--registry

Effective: July 1, 2012

Currentness

The department shall perform all of the following duties:

1. Develop an electronic system and standard forms for use in the registration of, verifying addresses of, and verifying understanding of registration requirements by sex offenders. Forms used to verify addresses of sex offenders shall contain a warning against forwarding a form to another address and of the requirement to return the form if the offender to whom the form is directed no longer resides at the address listed on the form or the mailing.
2. Maintain a central registry of information collected from sex offenders, which shall be known as the sex offender registry.
3. In consultation with the attorney general, adopt rules under chapter 17A which list specific offenses under present and former law which constitute sex offenses or sex offenses against a minor under this chapter.
4. Adopt rules under chapter 17A, as necessary, to ensure compliance with registration and verification requirements of this chapter, to provide guidelines for persons required to assist in obtaining registry information, and to provide a procedure for the dissemination of information contained in the registry. The procedure for the dissemination of information shall include but not be limited to practical guidelines for use by criminal or juvenile justice agencies in determining when public release of relevant information contained in the registry is appropriate and a requirement that if a member of the general public requests information regarding a specific individual in the manner provided in section 692A.121, the relevant information shall be released. The department, in developing the procedure, shall consult with associations which represent the interests of law enforcement officers. Rules adopted shall also include a procedure for removal of information from the registry upon the reversal or setting aside of a conviction of an offender.
5. Submit sex offender registry data to the federal bureau of investigation for entry of the data into the national sex offender registry.
6. Perform the requirements under this chapter and under federal law in cooperation with the office of sex offender sentencing, monitoring, apprehending, registering, and tracking of the office of justice programs of the United States department of justice.
7. Enter and maintain fingerprints and palm prints of sex offenders in an automated fingerprint identification system maintained by the department and made accessible to law enforcement agencies in this state, of the federal government, or in another

jurisdiction. The department or any law enforcement agency may use such prints for criminal investigative purposes, to include comparison against finger and palm prints identified or recovered as evidence in a criminal investigation.

8. Notify a jurisdiction that provided information that a sex offender has or intends to maintain a residence, employment, or attendance as a student, in this state, of the failure of the sex offender to register as required under this chapter.

9. Submit a DNA sample to the combined DNA index system, if a sample has not been submitted.

10. Submit the social security number to the national crime information center, if the number has not been submitted.

11. When the department has a reasonable basis to believe that a sex offender has changed residence to an unknown location, has become a fugitive from justice, or has otherwise taken flight, make a reasonable effort to ascertain the whereabouts of the offender, and if such effort fails to identify the location of the offender, an appropriate notice shall be made on the sex offender registry internet site of this state and shall be transmitted to the national sex offender registry. The department shall notify other law enforcement agencies as deemed appropriate.

12. Notify appropriate law enforcement agencies including the United States marshal service to investigate and verify possible violations. The department shall ensure any warrants for arrest are entered into the Iowa online warrant and articles system and the national crime information center and pursue prosecution of stated violations through state or federal court.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 18. Amended by Acts 2011 (84 G.A.) ch. 25, S.F. 474, § 78; Acts 2012 (84 G.A.) ch. 1021, S.F. 2285, § 111.

I. C. A. § 692A.118, IA ST § 692A.118

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Iowa Code Annotated

Title XVI. Criminal Law and Procedure [Chs. 687-916] (Refs & Annos)

Subtitle 1. Crime Control and Criminal Acts [Chs. 687-747] (Refs & Annos)

Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.119

692A.119. Sex offender registry fund

Effective: July 1, 2009

Currentness

A sex offender registry fund is established as a separate fund within the state treasury under the control of the department. The fund shall consist of moneys received as a result of the imposition of the penalty imposed under section 692A.110 and other funds allocated for purposes of establishing and maintaining the sex offender registry, conducting research and analysis related to sex crimes and offenders, and to perform other duties required under this chapter. Notwithstanding section 8.33, unencumbered or unobligated moneys and any interest remaining in the fund on June 30 of any fiscal year shall not revert to the general fund of the state, but shall remain available for expenditure in subsequent fiscal years.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 19.

I. C. A. § 692A.119, IA ST § 692A.119

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.120

692A.120. Duties of the sheriff

Effective: July 1, 2009

Currentness

The sheriff of each county shall comply with the requirements of this chapter and rules adopted by the department pursuant to this chapter. The sheriff of each county shall provide information and notices as provided in section 282.9.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 20.

I. C. A. § 692A.120, IA ST § 692A.120

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.121

692A.121. Availability of records

Effective: July 1, 2013

Currentness

1. The department shall maintain an internet site for the public and others to access relevant information about sex offenders. The internet site, at a minimum, shall be searchable by name, county, city, zip code, and geographic radius.

2. The department shall provide updated or corrected relevant information within five business days of the information being updated or corrected, from the sex offender registry to the following:

a. A criminal or juvenile justice agency, an agency of the state, a sex offender registry of another jurisdiction, or the federal government.

b. The general public through the sex offender registry internet site.

(1) The following relevant information about a sex offender shall be disclosed on the internet site:

(a) The date of birth.

(b) The name, nickname, aliases, including ethnic or tribal names.

(c) Photographs.

(d) The physical description, including scars, marks, or tattoos.

(e) The residence.

(f) The statutory citation and text of the offense committed that requires registration under this chapter.

(g) A specific reference indicating whether a particular sex offender is subject to residency restrictions pursuant to section 692A.114.

(h) A specific reference indicating whether a particular sex offender is subject to exclusion zone restrictions pursuant to section 692A.113.

(2) The following relevant information shall not be disclosed on the internet site:

(a) The relevant information about a sex offender who was under twenty years of age at the time the offender committed a violation of section 709.4, subsection 1, paragraph “b”, subparagraph (2), subparagraph division (d).

(b) The employer name, address, or location where a sex offender acts as an employee in any form of employment.

(c) The address and name of any school where a student required to be on the registry attends.

(d) The real name of a sex offender protected under 18 U.S.C. § 3521.

(e) The statutory citation and text of the offense committed for an incest conviction in violation of section 726.2, however, the citation and text of an incest conviction shall be disclosed on the internet site as a conviction of section 709.4 or 709.8.

(f) Any other relevant information not described in subparagraph (1).

c. The general public through any other means, at the discretion of the department, any relevant information that is available on the internet site.

3. A criminal or juvenile justice agency may provide relevant information from the sex offender registry to the following:

a. A criminal or juvenile justice agency, an agency of the state, or a sex offender registry of another jurisdiction, or the federal government.

b. The general public, any information available to the general public in subsection 2, including public and private agencies, organizations, public places, child care facilities, religious and youth organizations, neighbors, neighborhood associations, community meetings, and employers. The relevant information available to the general public may be distributed to the public through printed materials, visual or audio press releases, radio communications, or through a criminal or juvenile justice agency's internet site.

4. When a sex offender moves into a school district or moves within a school district, the county sheriff of the county of the offender's new residence shall provide relevant information that is available to the general public in subsection 2 to the administrative office of the school district in which the person required to register resides, and shall also provide relevant information to any nonpublic school near the offender's residence.

5. a. A member of the public may contact a county sheriff's office to request relevant information from the registry regarding a specific sex offender. A person making a request for relevant information may make the request by telephone, in writing, or in person, and the request shall include the name of the person and at least one of the following identifiers pertaining to the sex offender about whom the information is sought:

- (1) The date of birth of the person.
- (2) The social security number of the person.
- (3) The address of the person.
- (4) Internet identifiers.
- (5) Telephone numbers, including any landline or wireless numbers.

b. The relevant information made available to the general public pursuant to this subsection shall include all the relevant information provided to the general public on the internet site pursuant to subsection 2, and the following additional relevant information:

- (1) Educational institutions attended as a student, including the name and address of such institution.
- (2) Employment information including the name and address of employer.
- (3) Temporary lodging information, including the dates when residing at the temporary lodging.
- (4) Vehicle information.

c. A county sheriff or police department shall not charge a fee relating to a request for relevant information.

6. A county sheriff shall also provide to a person upon request access to a list of all registrants in that county.

7. The following relevant information shall not be provided to the general public:

- a. The identity of the victim.
- b. Arrests not resulting in a conviction.

c. Passport and immigration documents.

d. A government issued driver's license or identification card.

e. DNA information.

f. Fingerprints.

g. Palm prints.

h. Professional licensing information.

i. Social security number.

j. Real name protected under 18 U.S.C. § 3521.

8. Notwithstanding sections 232.147 through 232.151, records concerning convictions which are committed by a minor may be released in the same manner as records of convictions of adults.

9. A person may contact the department or a county sheriff's office to verify if a particular internet identifier or telephone number is one that has been included in a registration by a sex offender.

10. The department shall include links to sex offender safety information, educational resources pertaining to the prevention of sexual assaults, and the national sex offender registry.

11. The department shall include on the sex offender registry internet site instructions and any applicable forms necessary for a person seeking correction of information that the person contends is erroneous.

12. When the department receives and approves registration data, such data shall be made available on the sex offender registry internet site within five business days.

13. The department shall maintain an automated electronic mail notification system, which shall be available by free subscription to any person, to provide notice of addition, deletion, or changes to any sex offender registration, relevant information within a postal zip code or, if selected by a subscriber, a geographic radius or, if selected by a subscriber, specific to a sex offender.

14. Sex offender registry records are confidential records not subject to examination and copying by a member of the public and shall only be released as provided in this section.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 21. Amended by Acts 2013 (85 G.A.) ch. 30, H.F. 417, § 247.

I. C. A. § 692A.121, IA ST § 692A.121

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.122

692A.122. Cooperation with registration

Effective: July 1, 2009

Currentness

An agency of state and local government that possesses information relevant to requirements that an offender register under this chapter shall provide that information to the court or the department upon request. All confidential records provided under this section shall remain confidential, unless otherwise ordered by a court, by the lawful custodian of the records, or by another person duly authorized to release such information.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 22.

I. C. A. § 692A.122, IA ST § 692A.122

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.123

692A.123. Immunity for good faith conduct

Effective: March 26, 2010

Currentness

Criminal or juvenile justice agencies, state agencies, schools as defined in section 692A.114, public libraries, and child care facilities, and their employees shall be immune from liability for acts or omissions arising from a good faith effort to comply with this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 23. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, § 11, eff. March 26, 2010.

I. C. A. § 692A.123, IA ST § 692A.123

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.124

692A.124. Electronic monitoring

Effective: July 1, 2009

Currentness

1. A sex offender who is placed on probation, parole, work release, special sentence, or any other type of conditional release, may be supervised by an electronic tracking and monitoring system in addition to any other conditions of supervision.
2. The determination to use electronic tracking and monitoring to supervise a sex offender shall be based upon a validated risk assessment approved by the department of corrections, and also upon the sex offender's criminal history, progress in treatment and supervision, and other relevant factors.
3. If a sex offender is under the jurisdiction of the juvenile court, the determination to use electronic tracking and monitoring to supervise the sex offender shall be based upon a risk assessment performed by a juvenile court officer.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 24.

I. C. A. § 692A.124, IA ST § 692A.124

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.125

692A.125. Applicability of chapter and retroactivity

Effective: March 26, 2010

Currentness

1. The registration requirements of this chapter shall apply to sex offenders convicted on or after July 1, 2009, of a sex offense classified under section 692A.102.
2. The registration requirements of this chapter shall apply to a sex offender convicted of a sex offense or a comparable offense under prior law prior to July 1, 2009, under the following circumstances:
 - a. Any sex offender including a juvenile offender who is required to be on the sex offender registry as of June 30, 2009.
 - b. Any sex offender who is incarcerated on or after July 1, 2009, for conviction of a sex offense committed prior to July 1, 2009.
 - c. Any sex offender who is serving a special sentence pursuant to section 903B.1 or 903B.2 prior to July 1, 2009, or any other person who is sentenced for a criminal offense prior to July 1, 2009, that requires serving a special sentence.
3. For an offense requiring registration due to sexual motivation, the registration requirements of section 692A.126 shall apply to a person convicted of an offense if the department makes the determination that the offense was sexually motivated as provided in section 692A.126, subsection 2.
4. For a sex offender required to register pursuant to subsection 1 or 2, each conviction or adjudication for a sex offense requiring registration, regardless of whether such conviction or adjudication occurred prior to, on, or after July 1, 2009, shall be included in determining the tier requirements pursuant to this chapter.
5. An offender on the sex offender registry as of June 30, 2009, and who is required to be on the registry on or after July 1, 2009, shall be credited for any time on the registry prior to July 1, 2009.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 25. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, §§ 12, 13, eff. March 26, 2010.

I. C. A. § 692A.125, IA ST § 692A.125

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.126

692A.126. Sexually motivated offense--determination

Effective: July 1, 2021

Currentness

1. If a judge or jury makes a determination, beyond a reasonable doubt, that any of the following offenses for which a conviction has been entered on or after July 1, 2009, are sexually motivated, the person shall be required to register as provided in this chapter:

- a. Murder in the first degree in violation of section 707.2.
- b. Murder in the second degree in violation of section 707.3.
- c. Voluntary manslaughter in violation of section 707.4.
- d. Involuntary manslaughter in violation of section 707.5.
- e. Attempt to commit murder in violation of section 707.11.
- f. Harassment in violation of section 708.7, subsection 1, 2, or 3.
- g. Stalking in violation of section 708.11.
- h. Any other indictable offense in violation of chapter 708 if the offense was committed against a minor or otherwise involves a minor.
- i. Kidnapping in the first degree in violation of section 710.2.
- j. Kidnapping in the second degree in violation of section 710.3.
- k. Kidnapping in the third degree in violation of section 710.4.

- l. Child stealing in violation of section 710.5.
 - m. Purchase or sale or attempted purchase or sale of an individual in violation of section 710.11.
 - n. Burglary in the first degree in violation of section 713.3, subsection 1, paragraph “a”, “b”, or “c”.
 - o. Attempted burglary in the first degree in violation of section 713.4.
 - p. Burglary in the second degree in violation of section 713.5.
 - q. Attempted burglary in the second degree in violation of section 713.6.
 - r. Burglary in the third degree in violation of section 713.6A.
 - s. Attempted burglary in the third degree in violation of section 713.6B.
 - t. Pimping in violation of section 725.2 if the offense was committed against a minor or otherwise involves a minor.
 - u. Pandering in violation of section 725.3, subsection 2.
 - v. Any indictable offense in violation of chapter 726 if the offense was committed against a minor or otherwise involves a minor.
 - w. Extortion in violation of section 711.4.
2. a. The following persons shall be required to register as provided in this chapter if the department makes a determination that the offense was sexually motivated:
- (1) A person convicted of an offense in this state specified under subsection 1 prior to July 1, 2009.
 - (2) A person convicted of an offense in another jurisdiction, or convicted of an offense that was prosecuted in a federal, military, or foreign court, prior to, on, or after July 1, 2009, that is comparable to an offense specified in subsection 1.
 - (3) A juvenile convicted of an offense in another jurisdiction, or convicted of an offense as a juvenile in a similar juvenile court proceeding in a federal, military, or foreign court, prior to, on, or after July 1, 2009, that is comparable to an offense specified in subsection 1.

b. A determination made pursuant to this subsection shall be issued in writing and shall include a summary of the information and evidence considered in making the determination that the offense was sexually motivated.

c. The determination made by the department shall be subject to judicial review in accordance with chapter 17A.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 26. Amended by Acts 2010 (83 G.A.) ch. 1104, S.F. 2305, § 14, eff. March 26, 2010; Acts 2011 (84 G.A.) ch. 95, S.F. 236, § 9; Acts 2021 (89 G.A.) ch. 89, H.F. 201, § 3, eff. July 1, 2021.

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.127

692A.127. Limitations on political subdivisions

Effective: July 1, 2009

Currentness

A political subdivision of the state shall not adopt any motion, resolution, or ordinance regulating the residency location of a sex offender or any motion, resolution, or ordinance regulating the exclusion of a sex offender from certain real property. A motion, resolution, or ordinance adopted by a political subdivision of the state in violation of this section is void and unenforceable and any enforcement activity conducted in violation of this section is void.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 27.

I. C. A. § 692A.127, IA ST § 692A.127

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.128

692A.128. Modification

Effective: July 1, 2023

Currentness

1. A sex offender may file an application in district court seeking to modify the registration requirements under this chapter.
2. For an offender whose requirement to register as a sex offender commenced prior to July 1, 2022, an application shall not be granted unless all of the following apply:
 - a. The date of the commencement of the requirement to register occurred at least two years prior to the filing of the application for a tier I offender and five years prior to the filing of the application for a tier II or tier III offender.
 - b. The sex offender has successfully completed all sex offender treatment programs that have been required.
 - c. A risk assessment has been completed and the sex offender was classified as a low risk to reoffend. The risk assessment used to assess an offender as a low risk to reoffend shall be a validated risk assessment approved by the department of corrections.
 - d. The sex offender is not incarcerated when the application is filed.
 - e. The director of the judicial district department of correctional services supervising the sex offender, or the director's designee, stipulates to the modification, and a certified copy of the stipulation is attached to the application.
3. For an offender whose requirement to register as a sex offender commenced on or after July 1, 2022, an application shall not be granted unless all of the following apply:
 - a. A period of time has elapsed since the offender's initial registration as follows:
 - (1)(a) Except as otherwise provided in subparagraph division (b), a tier I offender initially registered at least ten years prior to the filing of the application.

(b) A tier I offender who was under twenty years of age at the time the offender committed a violation of section 709.4, subsection 1, paragraph “b”, subparagraph (2), subparagraph division (d), initially registered at least five years prior to the filing of the application.

(2) A tier II or tier III offender initially registered at least fifteen years prior to the filing of the application.

b. The sex offender has successfully completed all sex offender treatment programs that have been required.

c. A risk assessment has been completed and the sex offender was classified as a low risk to reoffend. The risk assessment used to assess an offender as a low risk to reoffend shall be a validated risk assessment approved by the department of corrections.

d. The sex offender has successfully completed any pretrial release, probation, parole, or work release for the offense requiring registration.

e. The director of the judicial district department of correctional services supervising the sex offender, or the director's designee, stipulates to the modification, and a certified copy of the stipulation is attached to the application.

f. The sex offender is not incarcerated when the application is filed.

g. A tier I offender must not have been convicted of any criminal offense other than a simple misdemeanor, or a simple or serious misdemeanor or traffic violation under chapter 321, for the ten-year period immediately preceding the filing of the application.

h. A tier II or tier III offender shall not have been convicted of any criminal offense other than a simple misdemeanor, or a simple or serious misdemeanor or traffic violation under chapter 321, for the fifteen-year period immediately preceding the filing of the application.

4. The application shall be filed in the sex offender's county of principal residence.

5. Notice of any application shall be provided to the county attorney of the county of the sex offender's principal residence, the county attorney of any county in this state where a conviction requiring the sex offender's registration occurred, and the department. The county attorney where the conviction occurred shall notify the victim of an application if the victim's address is known.

6. The court may, but is not required to, conduct a hearing on the application to hear any evidence deemed appropriate by the court. The court may modify the registration requirements under this chapter by reducing the registration period.

7. If the court modifies the registration requirements under this chapter, the court shall send a copy of the order to the department, the sheriff of the county of the sex offender's principal residence, any county attorney notified in subsection 4, and the victim, if the victim's address is known.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 28. Amended by Acts 2022 (89 G.A.) ch. 1063, S.F. 2363, § 1, eff. July 1, 2022; Acts 2023 (90 G.A.) ch. 64, H.F. 567, § 99, eff. July 1, 2023; Acts 2023 (90 G.A.) ch. 66, H.F. 573, §§ 149, 150, eff. July 1, 2023.

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.129

692A.129. Probation and parole officers

Effective: July 1, 2009

Currentness

A probation or parole officer supervising a sex offender is not precluded from imposing more restrictive exclusion zone requirements, employment prohibitions, and residency restrictions than under sections 692A.113 and 692A.114.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 29.

I. C. A. § 692A.129, IA ST § 692A.129

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Chapter 692A. Sex Offender Registry (Refs & Annos)

I.C.A. § 692A.130

692A.130. Rules

Effective: July 1, 2009

Currentness

The department shall adopt rules pursuant to chapter 17A to administer this chapter.

Credits

Added by Acts 2009 (83 G.A.) ch. 119, S.F. 340, § 30.

I. C. A. § 692A.130, IA ST § 692A.130

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4901

22-4901. Citation of act

Currentness

K.S.A. 22-4901 through 22-4911 and 22-4913, and amendments thereto, shall be known and may be cited as the Kansas offender registration act.

Credits

Laws 1993, ch. 253, § 17; Laws 1994, ch. 107, § 1; Laws 1997, ch. 181, § 7; Laws 2011, ch. 95, § 1, eff. July 1, 2011.

K. S. A. 22-4901, KS ST 22-4901

Statutes are current through laws enacted during the 2025 Regular Session of the Kansas Legislature effective on or before July 1, 2025. Some statute sections may be more current, see credits for details.

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4902

22-4902. Definitions

Effective: May 12, 2022
Currentness

As used in the Kansas offender registration act, unless the context otherwise requires:

(a) “Offender” means:

- (1) A sex offender;
- (2) a violent offender;
- (3) a drug offender;
- (4) any person who has been required to register under out-of-state law or is otherwise required to be registered; and
- (5) any person required by court order to register for an offense not otherwise required as provided in the Kansas offender registration act.

(b) “Sex offender” includes any person who:

- (1) On or after April 14, 1994, is convicted of any sexually violent crime;
- (2) on or after July 1, 2002, is adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute the commission of a sexually violent crime, unless the court, on the record, finds that the act involved non-forcible sexual conduct, the victim was at least 14 years of age and the offender was not more than four years older than the victim;
- (3) has been determined to be a sexually violent predator;
- (4) on or after July 1, 1997, is convicted of any of the following crimes when one of the parties involved is less than 18 years of age:

(A) Adultery, as defined in K.S.A. 21-3507, prior to its repeal, or K.S.A. 21-5511, and amendments thereto;

(B) criminal sodomy, as defined in K.S.A. 21-3505(a)(1), prior to its repeal, or K.S.A. 21-5504(a)(1) or (a)(2), and amendments thereto;

(C) promoting prostitution, as defined in K.S.A. 21-3513, prior to its repeal, or K.S.A. 21-6420, prior to its amendment by section 17 of chapter 120 of the 2013 Session Laws of Kansas on July 1, 2013;

(D) patronizing a prostitute, as defined in K.S.A. 21-3515, prior to its repeal, or K.S.A. 21-6421, prior to its amendment by section 18 of chapter 120 of the 2013 Session Laws of Kansas on July 1, 2013; or

(E) lewd and lascivious behavior, as defined in K.S.A. 21-3508, prior to its repeal, or K.S.A. 21-5513, and amendments thereto;

(5) is convicted of sexual battery, as defined in K.S.A. 21-3517, prior to its repeal, or K.S.A. 21-5505(a), and amendments thereto;

(6) is convicted of sexual extortion, as defined in K.S.A. 21-5515, and amendments thereto;

(7) is convicted of breach of privacy, as defined in K.S.A. 21-6101(a)(6), (a)(7) or (a)(8), and amendments thereto;

(8) is convicted of an attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302, 21-5303, and amendments thereto, of an offense defined in this subsection; or

(9) has been convicted of an offense that is comparable to any crime defined in this subsection, or any out-of-state conviction for an offense that under the laws of this state would be an offense defined in this subsection.

(c) “Sexually violent crime” means:

(1) Rape, as defined in K.S.A. 21-3502, prior to its repeal, or K.S.A. 21-5503, and amendments thereto;

(2) indecent liberties with a child, as defined in K.S.A. 21-3503, prior to its repeal, or K.S.A. 21-5506(a), and amendments thereto;

(3) aggravated indecent liberties with a child, as defined in K.S.A. 21-3504, prior to its repeal, or K.S.A. 21-5506(b), and amendments thereto;

- (4) criminal sodomy, as defined in K.S.A. 21-3505(a)(2) or (a)(3), prior to its repeal, or K.S.A. 21-5504(a)(3) or (a)(4), and amendments thereto;
- (5) aggravated criminal sodomy, as defined in K.S.A. 21-3506, prior to its repeal, or K.S.A. 21-5504(b), and amendments thereto;
- (6) indecent solicitation of a child, as defined in K.S.A. 21-3510, prior to its repeal, or K.S.A. 21-5508(a), and amendments thereto;
- (7) aggravated indecent solicitation of a child, as defined in K.S.A. 21-3511, prior to its repeal, or K.S.A. 21-5508(b), and amendments thereto;
- (8) sexual exploitation of a child, as defined in K.S.A. 21-3516, prior to its repeal, or K.S.A. 21-5510, and amendments thereto;
- (9) aggravated sexual battery, as defined in K.S.A. 21-3518, prior to its repeal, or K.S.A. 21-5505(b), and amendments thereto;
- (10) aggravated incest, as defined in K.S.A. 21-3603, prior to its repeal, or K.S.A. 21-5604(b), and amendments thereto;
- (11) electronic solicitation, as defined in K.S.A. 21-3523, prior to its repeal, and K.S.A. 21-5509, and amendments thereto;
- (12) unlawful sexual relations, as defined in K.S.A. 21-3520, prior to its repeal, or K.S.A. 21-5512, and amendments thereto;
- (13) aggravated human trafficking, as defined in K.S.A. 21-3447, prior to its repeal, or K.S.A. 21-5426(b), and amendments thereto, if committed in whole or in part for the purpose of the sexual gratification of the defendant or another;
- (14) commercial sexual exploitation of a child, as defined in K.S.A. 21-6422, and amendments thereto;
- (15) promoting the sale of sexual relations, as defined in K.S.A. 21-6420, and amendments thereto;
- (16) internet trading in child pornography or aggravated internet trading in child pornography, as defined in K.S.A. 21-5514, and amendments thereto;
- (17) any conviction or adjudication for an offense that is comparable to a sexually violent crime as defined in this subsection, or any out-of-state conviction or adjudication for an offense that under the laws of this state would be a sexually violent crime as defined in this subsection;

(18) an attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302, 21-5303, and amendments thereto, of a sexually violent crime, as defined in this subsection; or

(19) any act that has been determined beyond a reasonable doubt to have been sexually motivated, unless the court, on the record, finds that the act involved non-forcible sexual conduct, the victim was at least 14 years of age and the offender was not more than four years older than the victim. As used in this paragraph, “sexually motivated” means that one of the purposes for which the defendant committed the crime was for the purpose of the defendant's sexual gratification.

(d) “Sexually violent predator” means any person who, on or after July 1, 2001, is found to be a sexually violent predator pursuant to K.S.A. 59-29a01 et seq., and amendments thereto.

(e) “Violent offender” includes any person who:

(1) On or after July 1, 1997, is convicted of any of the following crimes:

(A) Capital murder, as defined in K.S.A. 21-3439, prior to its repeal, or K.S.A. 21-5401, and amendments thereto;

(B) murder in the first degree, as defined in K.S.A. 21-3401, prior to its repeal, or K.S.A. 21-5402, and amendments thereto;

(C) murder in the second degree, as defined in K.S.A. 21-3402, prior to its repeal, or K.S.A. 21-5403, and amendments thereto;

(D) voluntary manslaughter, as defined in K.S.A. 21-3403, prior to its repeal, or K.S.A. 21-5404, and amendments thereto;

(E) involuntary manslaughter, as defined in K.S.A. 21-3404, prior to its repeal, or K.S.A. 21-5405(a)(1), (a)(2) or (a)(4), and amendments thereto. The provisions of this paragraph shall not apply to violations of K.S.A. 21-5405(a)(3), and amendments thereto, that occurred on or after July 1, 2011, through July 1, 2013;

(F) kidnapping, as defined in K.S.A. 21-3420, prior to its repeal, or K.S.A. 21-5408(a), and amendments thereto;

(G) aggravated kidnapping, as defined in K.S.A. 21-3421, prior to its repeal, or K.S.A. 21-5408(b), and amendments thereto;

(H) criminal restraint, as defined in K.S.A. 21-3424, prior to its repeal, or K.S.A. 21-5411, and amendments thereto, except by a parent, and only when the victim is less than 18 years of age; or

(I) aggravated human trafficking, as defined in K.S.A. 21-3447, prior to its repeal, or K.S.A. 21-5426(b), and amendments thereto, if not committed in whole or in part for the purpose of the sexual gratification of the defendant or another;

(2) on or after July 1, 2006, is convicted of any person felony and the court makes a finding on the record that a deadly weapon was used in the commission of such person felony;

(3) has been convicted of an offense that is comparable to any crime defined in this subsection, any out-of-state conviction for an offense that under the laws of this state would be an offense defined in this subsection; or

(4) is convicted of an attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302 and 21-5303, and amendments thereto, of an offense defined in this subsection.

(f) “Drug offender” includes any person who, on or after July 1, 2007:

(1) Is convicted of any of the following crimes:

(A) Unlawful manufacture or attempting such of any controlled substance or controlled substance analog, as defined in K.S.A. 65-4159, prior to its repeal, K.S.A. 21-36a03, prior to its transfer, or K.S.A. 21-5703, and amendments thereto;

(B) possession of ephedrine, pseudoephedrine, red phosphorus, lithium metal, sodium metal, iodine, anhydrous ammonia, pressurized ammonia or phenylpropanolamine, or their salts, isomers or salts of isomers with intent to use the product to manufacture a controlled substance, as defined in K.S.A. 65-7006(a), prior to its repeal, K.S.A. 21-36a09(a), prior to its transfer, or K.S.A. 21-5709(a), and amendments thereto;

(C) K.S.A. 65-4161, prior to its repeal, K.S.A. 21-36a05(a)(1), prior to its transfer, or K.S.A. 21-5705(a)(1), and amendments thereto. The provisions of this paragraph shall not apply to violations of K.S.A. 21-36a05(a)(2) through (a)(6) or (b) that occurred on or after July 1, 2009, through April 15, 2010;

(2) has been convicted of an offense that is comparable to any crime defined in this subsection, any out-of-state conviction for an offense that under the laws of this state would be an offense defined in this subsection; or

(3) is or has been convicted of an attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302 and 21-5303, and amendments thereto, of an offense defined in this subsection.

(g) Convictions or adjudications that result from or are connected with the same act, or result from crimes committed at the same time, shall be counted for the purpose of this section as one conviction or adjudication. Any conviction or adjudication set aside pursuant to law is not a conviction or adjudication for purposes of this section. A conviction or adjudication from any out-of-state court shall constitute a conviction or adjudication for purposes of this section.

(h) "School" means any public or private educational institution, including, but not limited to, postsecondary school, college, university, community college, secondary school, high school, junior high school, middle school, elementary school, trade school, vocational school or professional school providing training or education to an offender for three or more consecutive days or parts of days, or for 10 or more nonconsecutive days in a period of 30 consecutive days.

(i) "Employment" means any full-time, part-time, transient, day-labor employment or volunteer work, with or without compensation, for three or more consecutive days or parts of days, or for 10 or more nonconsecutive days in a period of 30 consecutive days.

(j) "Reside" means to stay, sleep or maintain with regularity or temporarily one's person and property in a particular place other than a location where the offender is incarcerated. It shall be presumed that an offender resides at any and all locations where the offender stays, sleeps or maintains the offender's person for three or more consecutive days or parts of days, or for ten or more nonconsecutive days in a period of 30 consecutive days.

(k) "Residence" means a particular and definable place where an individual resides. Nothing in the Kansas offender registration act shall be construed to state that an offender may only have one residence for the purpose of such act.

(l) "Transient" means having no fixed or identifiable residence.

(m) "Law enforcement agency having initial jurisdiction" means the registering law enforcement agency of the county or location of jurisdiction where the offender expects to most often reside upon the offender's discharge, parole or release.

(n) "Registering law enforcement agency" means the sheriff's office or tribal police department responsible for registering an offender.

(o) "Registering entity" means any person, agency or other governmental unit, correctional facility or registering law enforcement agency responsible for obtaining the required information from, and explaining the required registration procedures to, any person required to register pursuant to the Kansas offender registration act. "Registering entity" includes, but is not limited to, sheriff's offices, tribal police departments and correctional facilities.

(p) "Treatment facility" means any public or private facility or institution providing inpatient mental health, drug or alcohol treatment or counseling, but does not include a hospital, as defined in K.S.A. 65-425, and amendments thereto.

(q) "Correctional facility" means any public or private correctional facility, juvenile detention facility, prison or jail.

(r) "Out-of-state" means: the District of Columbia; any federal, military or tribal jurisdiction, including those within this state; any foreign jurisdiction; or any state or territory within the United States, other than this state.

(s) "Duration of registration" means the length of time during which an offender is required to register for a specified offense or violation.

(t)(1) Notwithstanding any other provision of this section, “offender” shall not include any person who is:

(A) Convicted of unlawful transmission of a visual depiction of a child, as defined in K.S.A. 21-5611(a), and amendments thereto, aggravated unlawful transmission of a visual depiction of a child, as defined in K.S.A. 21-5611(b), and amendments thereto, or unlawful possession of a visual depiction of a child, as defined in K.S.A. 21-5610, and amendments thereto;

(B) adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute the commission of a crime defined in subsection (t)(1)(A);

(C) adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute the commission of sexual extortion as defined in K.S.A. 21-5515, and amendments thereto; or

(D) adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute a violation of K.S.A. 21-6101(a)(6), (a)(7) or (a)(8), and amendments thereto.

(2) Notwithstanding any other provision of law, a court shall not order any person to register under the Kansas offender registration act for the offenses described in subsection (t)(1).

Credits

Laws 1993, ch. 253, § 18; Laws 1994, ch. 107, § 2; Laws 1997, ch. 181, § 8; Laws 1999, ch. 164, § 29; Laws 2001, ch. 208, § 10; Laws 2002, ch. 55, § 1; Laws 2002, ch. 163, § 6; Laws 2003, ch. 123, § 3; Laws 2006, ch. 214, § 6; Laws 2007, ch. 183, § 1, eff. July 1, 2007; Laws 2008, ch. 74, § 1, eff. Apr. 17, 2008; Laws 2009, ch. 32, § 44, eff. July 1, 2009; Laws 2010, ch. 74, § 11, eff. April 15, 2010; Laws 2010, ch. 147, § 8, eff. July 1, 2010; Laws 2011, ch. 95, § 2, eff. July 1, 2011; Laws 2012, ch. 149, § 1, eff. July 1, 2012; Laws 2013, ch. 127, § 1, eff. July 1, 2013; Laws 2014, ch. 117, § 2, eff. July 1, 2014; Laws 2016, ch. 96, § 7, eff. July 1, 2016; Laws 2017, ch. 78, § 21, eff. July 1, 2017; Laws 2021, ch. 103, § 7, eff. July 1, 2021; Laws 2022, ch. 83, § 2, eff. May 12, 2022.

K. S. A. 22-4902, KS ST 22-4902

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West's Kansas Statutes Annotated
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K.S.A. 22-4903

22-4903. Violation of act; aggravated violation; penalties; new and separate offense; prosecution, venue

Currentness

(a) Violation of the Kansas offender registration act is the failure by an offender, as defined in K.S.A. 22-4902, and amendments thereto, to comply with any and all provisions of such act, including any and all duties set forth in K.S.A. 22-4905 through 22-4907, and amendments thereto. Any violation of the Kansas offender registration act which continues for more than 30 consecutive days shall, upon the 31st consecutive day, constitute a new and separate offense, and shall continue to constitute a new and separate offense every 30 days thereafter for as long as the violation continues.

(b) Aggravated violation of the Kansas offender registration act is violation of the Kansas offender registration act which continues for more than 180 consecutive days. Any aggravated violation of the Kansas offender registration act which continues for more than 180 consecutive days shall, upon the 181st consecutive day, constitute a new and separate offense, and shall continue to constitute a new and separate violation of the Kansas offender registration act every 30 days thereafter, or a new and separate aggravated violation of the Kansas offender registration act every 180 days thereafter, for as long as the violation continues.

(c)(1) Except as provided in subsection (c)(3), violation of the Kansas offender registration act is:

(A) Upon a first conviction, a severity level 6 felony;

(B) upon a second conviction, a severity level 5 felony; and

(C) upon a third or subsequent conviction, a severity level 3 felony.

Such violation shall be designated as a person or nonperson crime in accordance with the designation assigned to the underlying crime for which the offender is required to be registered under the Kansas offender registration act. If the offender is required to be registered under both a person and nonperson underlying crime, the violation shall be designated as a person crime.

(2) Except as provided in subsection (c)(3), aggravated violation of the Kansas offender registration act is a severity level 3 felony.

Such violation shall be designated as a person or nonperson crime in accordance with the designation assigned to the underlying crime for which the offender is required to be registered under the Kansas offender registration act. If the offender is required to be registered under both a person and nonperson underlying crime, the violation shall be designated as a person crime.

(3) Violation of the Kansas offender registration act or aggravated violation of the Kansas offender registration act consisting only of failing to remit payment to the sheriff's office as required in K.S.A. 22-4905(l), and amendments thereto, is:

(A) Except as provided in subsection (c)(3)(B), a class A misdemeanor if, within 15 days of registration, full payment is not remitted to the sheriff's office;

(B) a severity level 9 felony if, within 15 days of the most recent registration, two or more full payments have not been remitted to the sheriff's office.

Such violation shall be designated as a person or nonperson crime in accordance with the designation assigned to the underlying crime for which the offender is required to be registered under the Kansas offender registration act. If the offender is required to be registered under both a person and nonperson underlying crime, the violation shall be designated as a person crime.

(d) Prosecution of violations of this section may be held:

(1) In any county in which the offender resides;

(2) in any county in which the offender is required to be registered under the Kansas offender registration act;

(3) in any county in which the offender is located during which time the offender is not in compliance with the Kansas offender registration act; or

(4) in the county in which any conviction or adjudication occurred for which the offender is required to be registered under the Kansas offender registration act.

Credits

Laws 1993, ch. 253, § 19; Laws 1999, ch. 164, § 30; Laws 2003, ch. 123, § 4; Laws 2006, ch. 212, § 20; Laws 2007, ch. 183, § 2, eff. July 1, 2007; Laws 2011, ch. 95, § 3, eff. July 1, 2011; Laws 2012, ch. 149, § 2, eff. July 1, 2012; Laws 2013, ch. 127, § 2, eff. July 1, 2013; Laws 2016, ch. 97, § 4, eff. July 1, 2016; Laws 2017, ch. 100, § 3, eff. July 1, 2017.

K. S. A. 22-4903, KS ST 22-4903

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West's Kansas Statutes Annotated
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K.S.A. 22-4904

22-4904. Registration of offender; duties of court, correctional facility, treatment facility, registering law enforcement agency, Kansas bureau of investigation, attorney general; notification of schools and licensed child care facilities

Currentness

(a)(1) At the time of conviction or adjudication for an offense requiring registration as provided in K.S.A. 22-4902, and amendments thereto, the court shall:

(A) Inform any offender, on the record, of the procedure to register and the requirements of K.S.A. 22-4905, and amendments thereto; and

(B) if the offender is released:

(i) Complete a notice of duty to register, which shall include title and statute number of conviction or adjudication, date of conviction or adjudication, case number, county of conviction or adjudication, and the following offender information: Name, address, date of birth, social security number, race, ethnicity and gender;

(ii) require the offender to read and sign the notice of duty to register, which shall include a statement that the requirements provided in this subsection have been explained to the offender;

(iii) order the offender to report within three business days to the registering law enforcement agency in the county or tribal land of conviction or adjudication and to the registering law enforcement agency in any place where the offender resides, maintains employment or attends school, to complete the registration form with all information and any updated information required for registration as provided in K.S.A. 22-4907, and amendments thereto; and

(iv) provide one copy of the notice of duty to register to the offender and, within three business days, send a copy of the form to the law enforcement agency having initial jurisdiction and to the Kansas bureau of investigation.

(2) At the time of sentencing or disposition for an offense requiring registration as provided in K.S.A. 22-4902, and amendments thereto, the court shall ensure the age of the victim is documented in the journal entry of conviction or adjudication.

(3) Upon commitment for control, care and treatment by the Kansas department for aging and disability services pursuant to K.S.A. 59-29a07, and amendments thereto, the court shall notify the registering law enforcement agency of the county where

the offender resides during commitment of such offender's commitment. Such notice shall be prepared by the office of the attorney general for transmittal by the court by electronic means, including by fax or e-mail.

(b) The staff of any correctional facility or the registering law enforcement agency's designee shall:

(1) At the time of initial custody, register any offender within three business days:

(A) Inform the offender of the procedure for registration and of the offender's registration requirements as provided in K.S.A. 22-4905, and amendments thereto;

(B) complete the registration form with all information and updated information required for registration as provided in K.S.A. 22-4907, and amendments thereto;

(C) require the offender to read and sign the registration form, which shall include a statement that the requirements provided in this subsection have been explained to the offender;

(D) provide one copy of the form to the offender and, within three business days, send a copy of the form to the Kansas bureau of investigation; and

(E) enter all offender information required by the national crime information center into the national sex offender registry system within three business days of completing the registration or electronically submit all information and updated information required for registration as provided in K.S.A. 22-4907, and amendments thereto, within three business days to the Kansas bureau of investigation;

(2) notify the Kansas bureau of investigation of the incarceration of any offender and of the location or any change in location of the offender while in custody;

(3) prior to any offender being discharged, paroled, furloughed or released on work or school release that does not require the daily return to a correctional facility:

(A) Inform the offender of the procedure for registration and of the offender's registration requirements as provided in K.S.A. 22-4905, and amendments thereto;

(B) complete the registration form with all information and updated information required for registration as provided in K.S.A. 22-4907, and amendments thereto;

(C) require the offender to read and sign the registration form, which shall include a statement that the requirements provided in this subsection have been explained to the offender;

(D) photograph the offender's face and any identifying marks;

(E) obtain fingerprint and palm prints of the offender; and

(F) provide one copy of the form to the offender and, within three business days, send a copy of the form and of the photograph or photographs to the law enforcement agency having initial jurisdiction and to the Kansas bureau of investigation; and

(4) notify the law enforcement agency having initial jurisdiction and the Kansas bureau of investigation seven business days prior to any offender being discharged, paroled, furloughed or released on work or school release.

(c) The staff of any treatment facility shall:

(1) Within three business days of an offender's arrival for inpatient treatment, inform the registering law enforcement agency of the county or location of jurisdiction in which the treatment facility is located of the offender's presence at the treatment facility and the expected duration of the treatment, and immediately notify the registering law enforcement agency of an unauthorized or unexpected absence of the offender during the offender's treatment;

(2) inform the registering law enforcement agency of the county or location of jurisdiction in which the treatment facility is located within three business days of an offender's discharge or release; and

(3) provide information upon request to any registering law enforcement agency having jurisdiction relevant to determining the presence of an offender within the treatment facility.

(d) The registering law enforcement agency, upon the reporting of any offender, shall:

(1) Inform the offender of the duty to register as provided by the Kansas offender registration act;

(2)(A) explain the procedure for registration and the offender's registration requirements as provided in K.S.A. 22-4905, and amendments thereto;

(B) obtain the information required for registration as provided in K.S.A. 22-4907, and amendments thereto; and

(C) require the offender to read and sign the registration form, which shall include a statement that the requirements provided in this subsection have been explained to the offender;

(3) complete the registration form with all information and updated information required for registration, as provided in K.S.A. 22-4907, and amendments thereto, each time the offender reports to the registering law enforcement agency. All information and updated information reported by an offender shall be forwarded to the Kansas bureau of investigation within three business days;

- (4) maintain the original signed registration form, provide one copy of the completed registration form to the offender and, within three business days, send one copy of the completed form to the Kansas bureau of investigation;
 - (5) forward a copy of any certified letter used for reporting pursuant to K.S.A. 22-4905, and amendments thereto, when utilized, within three business days to the Kansas bureau of investigation;
 - (6) obtain registration information from every offender required to register regardless of whether or not the offender remits payment;
 - (7) upon every required reporting, update the photograph or photographs of the offender's face and any new identifying marks and immediately forward copies or electronic files of the photographs to the Kansas bureau of investigation;
 - (8) enter all offender information required by the national crime information center into the national sex offender registry system within three business days of completing the registration or electronically submit all information and updated information required for registration as provided in K.S.A. 22-4907, and amendments thereto, within three business days to the Kansas bureau of investigation;
 - (9) maintain a special fund for the deposit and maintenance of fees paid by offenders. All funds retained by the registering law enforcement agency pursuant to the provisions of this section shall be credited to a special fund of the registering law enforcement agency which shall be used solely for law enforcement and criminal prosecution purposes and which shall not be used as a source of revenue to reduce the amount of funding otherwise made available to the registering law enforcement agency; and
 - (10) forward any initial registration and updated registration information within three business days to any out-of-state jurisdiction where the offender is expected to reside, maintain employment or attend school.
- (e)(1) The Kansas bureau of investigation shall:
- (A) Forward all additions or changes in information to any registering law enforcement agency, other than the agency that submitted the form, where the offender expects to reside, maintain employment or attend school;
 - (B) ensure that offender information is immediately entered in the state registered offender database and the Kansas registered offender website, as provided in K.S.A. 22-4909, and amendments thereto;
 - (C) transmit offender conviction or adjudication data, fingerprints and palm prints to the federal bureau of investigation; and
 - (D) ensure all offender information required by the national crime information center is transmitted into the national sex offender registry system within three business days of such information being electronically submitted to the Kansas bureau of investigation.

(2) The director of the Kansas bureau of investigation may adopt rules and regulations necessary to implement the provisions of the Kansas offender registration act.

(f) The attorney general shall, within 10 business days of an offender being declared a sexually violent predator, forward to the Kansas bureau of investigation all relevant court documentation declaring an offender a sexually violent predator.

(g) The state department of education shall annually notify any school of the Kansas bureau of investigation internet website, and any internet website containing information on the Kansas offender registration act sponsored or created by the registering law enforcement agency of the county or location of jurisdiction in which the school is located, for the purpose of locating offenders who reside near such school. Such notification shall include information that the registering law enforcement agency of the county or location of jurisdiction where such school is located is available to the school to assist in using the registry and providing additional information on registered offenders.

(h) The secretary of health and environment shall annually notify any licensed child care facility of the Kansas bureau of investigation internet website, and any internet website containing information on the Kansas offender registration act sponsored or created by the registering law enforcement agency of the county in which the facility is located, for the purpose of locating offenders who reside near such facility. Such notification shall include information that the registering law enforcement agency of the county or location of jurisdiction where such child care facility is located is available to the child care facilities to assist in using the registry and providing additional information on registered offenders.

(i) Upon request, the clerk of any court of record shall provide the Kansas bureau of investigation copies of complaints, indictments, information, journal entries, commitment orders or any other documents necessary to the performance of the duties of the Kansas bureau of investigation under the Kansas offender registration act. No fees or charges for providing such documents may be assessed.

Credits

Laws 1993, ch. 253, § 20; Laws 1994, ch. 107, § 3; Laws 1996, ch. 224, § 4; Laws 1997, ch. 181, § 9; Laws 1999, ch. 164, § 31; Laws 2000, ch. 150, § 2; Laws 2001, ch. 208, § 11; Laws 2003, ch. 123, § 5; Laws 2006, ch. 214, § 7; Laws 2007, ch. 183, § 3, eff. July 1, 2007; Laws 2010, ch. 135, § 35, eff. July 1, 2010; Laws 2011, ch. 95, § 4, eff. July 1, 2011; Laws 2012, ch. 149, § 3, eff. July 1, 2012; Laws 2013, ch. 127, § 3, eff. July 1, 2013; Laws 2016, ch. 64, § 2, eff. July 1, 2016.

K. S. A. 22-4904, KS ST 22-4904

Statutes are current through laws enacted during the 2025 Regular Session of the Kansas Legislature effective on or before July 1, 2025. Some statute sections may be more current, see credits for details.

West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4905

22-4905. Duties of offender required to register; reporting; updated photograph; fee; driver's license; identification card

Currentness

Any offender required to register as provided in the Kansas offender registration act shall:

- (a) Except as otherwise provided in this subsection, register in person with the registering law enforcement agency within three business days of coming into any county or location of jurisdiction in which the offender resides or intends to reside, maintains employment or intends to maintain employment, or attends school or intends to attend school. Any such offender who cannot physically register in person with the registering law enforcement agency for such reasons including, but not limited to, incapacitation or hospitalization, as determined by a person licensed to practice medicine or surgery, or involuntarily committed pursuant to the Kansas sexually violent predator act, shall be subject to verification requirements other than in-person registration, as determined by the registering law enforcement agency having jurisdiction;
- (b) except as provided further, for any: (1) Sex offender, including a violent offender or drug offender who is also a sex offender, report in person four times each year to the registering law enforcement agency in the county or location of jurisdiction in which the offender resides, maintains employment or is attending a school; and (2) violent offender or drug offender, report in person four times each year to the registering law enforcement agency in the county or location of jurisdiction in which the offender resides, maintains employment or is attending a school, except that, at the discretion of the registering law enforcement agency, one of the four required reports may be conducted by certified letter. When utilized, the certified letter for reporting shall be sent by the registering law enforcement agency to the reported residence of the offender. The offender shall indicate any changes in information as required for reporting in person. The offender shall respond by returning the certified letter to the registering law enforcement agency within 10 business days by certified mail. The offender shall be required to report to the registering law enforcement agency once during the month of the offender's birthday and every third, sixth and ninth month occurring before and after the month of the offender's birthday. The registering law enforcement agency may determine the appropriate times and days for reporting by the offender, consistent with this subsection. Nothing contained in this subsection shall be construed to alleviate any offender from meeting the requirements prescribed in the Kansas offender registration act;
- (c) provide the information required for registration as provided in K.S.A. 22-4907, and amendments thereto, and verify all information previously provided is accurate;
- (d) if in the custody of a correctional facility, register with the correctional facility within three business days of initial custody and shall not be required to update such registration until discharged, paroled, furloughed or released on work or school release from a correctional facility. A copy of the registration form and any updated registrations for an offender released on work or school release shall be sent, within three business days, to the registering law enforcement agency where the offender is incarcerated, maintains employment or attends school, and to the Kansas bureau of investigation;

(e) if involuntarily committed pursuant to the Kansas sexually violent predator act, register within three business days of arrival in the county where the offender resides during commitment. The offender shall not be required to update such registration until placed in a reintegration facility, on transitional release or on conditional release. Upon placement in a reintegration facility, on transitional release or on conditional release, the offender shall be personally responsible for complying with the provisions of the Kansas offender registration act;

(f) notwithstanding subsections (a) and (b), if the offender is transient, report in person to the registering law enforcement agency of such county or location of jurisdiction in which the offender is physically present within three business days of arrival in the county or location of jurisdiction. Such offender shall be required to register in person with the registering law enforcement agency every 30 days, or more often at the discretion of the registering law enforcement agency. Such offender shall comply with the provisions of the Kansas offender registration act and, in addition, shall:

(1) Provide a list of places where the offender has slept and otherwise frequented during the period of time since the last date of registration; and

(2) provide a list of places where the offender may be contacted and where the offender intends to sleep and otherwise frequent during the period of time prior to the next required date of registration;

(g) if required by out-of-state law, register in any out-of-state jurisdiction, where the offender resides, maintains employment or attends school;

(h) register in person upon any commencement, change or termination of residence location, employment status, school attendance or other information as provided in K.S.A. 22-4907, and amendments thereto, within three business days of such commencement, change or termination, to the registering law enforcement agency or agencies where last registered and provide written notice to the Kansas bureau of investigation;

(i) report in person to the registering law enforcement agency or agencies within three business days of any change in name;

(j) if receiving inpatient treatment at any treatment facility, inform the treatment facility of the offender's status as an offender and inform the registering law enforcement agency of the county or location of jurisdiction in which the treatment facility is located of the offender's presence at the treatment facility and the expected duration of the treatment;

(k) submit to the taking of an updated photograph by the registering law enforcement agency on each occasion when the offender registers with or reports to the registering law enforcement agency in the county or location of jurisdiction in which the offender resides, maintains employment or attends school. In addition, such offender shall submit to the taking of a photograph to document any changes in identifying characteristics, including, but not limited to, scars, marks and tattoos;

(l) remit payment to the sheriff's office in the amount of \$20 as part of the reporting process required pursuant to subsection (b) in each county in which the offender resides, maintains employment or is attending school. Registration will be completed regardless of whether or not the offender remits payment. Failure of the offender to remit full payment within 15 days of registration is a violation of the Kansas offender registration act and is subject to prosecution pursuant to K.S.A. 22-4903, and amendments thereto. Notwithstanding other provisions herein, payment of this fee is not required:

(1) When an offender provides updates or changes in information or during an initial registration unless such updates, changes or initial registration is during the month of such offender's birthday and every third, sixth and ninth month occurring before and after the month of the offender's birthday;

(2) when an offender is transient and is required to register every 30 days, or more frequently as ordered by the registering law enforcement agency, except during the month of the offender's birthday and every third, sixth and ninth month occurring before and after the month of the offender's birthday; or

(3) if an offender has, prior to the required reporting and within the last three years, been determined to be indigent by a court of law, and the basis for that finding is recorded by the court;

(m) annually renew any driver's license pursuant to K.S.A. 8-247, and amendments thereto, and annually renew any identification card pursuant to K.S.A. 8-1325a, and amendments thereto;

(n) if maintaining primary residence in this state, surrender all driver's licenses and identification cards from other states, territories and the District of Columbia, except if the offender is presently serving and maintaining active duty in any branch of the United States military or the offender is an immediate family member of a person presently serving and maintaining active duty in any branch of the United States military;

(o) read and sign the registration form noting whether the requirements provided in this section have been explained to the offender; and

(p) report in person to the registering law enforcement agency in the jurisdiction of the offender's residence and provide written notice to the Kansas bureau of investigation 21 days prior to any travel outside of the United States, and provide an itinerary including, but not limited to, destination, means of transport and duration of travel, or if under emergency circumstances, within three business days of making travel arrangements.

Credits

Laws 1993, ch. 253, § 21; Laws 1994, ch. 107, § 4; Laws 1997, ch. 181, § 10; Laws 1999, ch. 164, § 32; Laws 2001, ch. 208, § 12; Laws 2003, ch. 123, § 6; Laws 2006, ch. 214, § 8; Laws 2010, ch. 135, § 36, eff. July 1, 2010; Laws 2011, ch. 95, § 5, eff. July 1, 2011; Laws 2012, ch. 149, § 4, eff. July 1, 2012; Laws 2013, ch. 127, § 4, eff. July 1, 2013; Laws 2016, ch. 64, § 3, eff. July 1, 2016.

K. S. A. 22-4905, KS ST 22-4905

Statutes are current through laws enacted during the 2025 Regular Session of the Kansas Legislature effective on or before July 1, 2025. Some statute sections may be more current, see credits for details.

West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4906

22-4906. Duration and termination of registration requirement

Effective: May 12, 2022

Currentness

(a)(1) Except as provided in subsection (c), if convicted of any of the following offenses, an offender's duration of registration shall be, if confined, 15 years after the date of parole, discharge or release, whichever date is most recent, or, if not confined, 15 years from the date of conviction:

(A) Sexual battery, as defined in K.S.A. 21-3517, prior to its repeal, or K.S.A. 21-5505(a), and amendments thereto;

(B) adultery, as defined in K.S.A. 21-3507, prior to its repeal, or K.S.A. 21-5511, and amendments thereto, when one of the parties involved is less than 18 years of age;

(C) promoting the sale of sexual relations, as defined in K.S.A. 21-6420, and amendments thereto;

(D) patronizing a prostitute, as defined in K.S.A. 21-3515, prior to its repeal, or K.S.A. 21-6421, prior to its amendment by section 18 of chapter 120 of the 2013 Session Laws of Kansas on July 1, 2013, when one of the parties involved is less than 18 years of age;

(E) lewd and lascivious behavior, as defined in K.S.A. 21-3508, prior to its repeal, or K.S.A. 21-5513, and amendments thereto, when one of the parties involved is less than 18 years of age;

(F) capital murder, as defined in K.S.A. 21-3439, prior to its repeal, or K.S.A. 21-5401, and amendments thereto;

(G) murder in the first degree, as defined in K.S.A. 21-3401, prior to its repeal, or K.S.A. 21-5402, and amendments thereto;

(H) murder in the second degree, as defined in K.S.A. 21-3402, prior to its repeal, or K.S.A. 21-5403, and amendments thereto;

(I) voluntary manslaughter, as defined in K.S.A. 21-3403, prior to its repeal, or K.S.A. 21-5404, and amendments thereto;

(J) involuntary manslaughter, as defined in K.S.A. 21-3404, prior to its repeal, or K.S.A. 21-5405(a)(1), (a)(2) or (a)(4), and amendments thereto;

(K) criminal restraint, as defined in K.S.A. 21-3424, prior to its repeal, or K.S.A. 21-5411, and amendments thereto, except by a parent, and only when the victim is less than 18 years of age;

(L) sexual extortion, as defined in K.S.A. 21-5515, and amendments thereto, when one of the parties involved is less than 18 years of age;

(M) breach of privacy, as defined in K.S.A. 21-6101(a)(6), (a)(7) or (a)(8), and amendments thereto;

(N) any act that has been determined beyond a reasonable doubt to have been sexually motivated, unless the court, on the record, finds that the act involved non-forcible sexual conduct, the victim was at least 14 years of age and the offender was not more than four years older than the victim;

(O) conviction of any person required by court order to register for an offense not otherwise required as provided in the Kansas offender registration act;

(P) conviction of any person felony and the court makes a finding on the record that a deadly weapon was used in the commission of such person felony;

(Q) unlawful manufacture or attempting such of any controlled substance or controlled substance analog, as defined in K.S.A. 65-4159, prior to its repeal, K.S.A. 21-36a03, prior to its transfer, or K.S.A. 21-5703, and amendments thereto;

(R) possession of ephedrine, pseudoephedrine, red phosphorus, lithium metal, sodium metal, iodine, anhydrous ammonia, pressurized ammonia or phenylpropanolamine, or their salts, isomers or salts of isomers with intent to use the product to manufacture a controlled substance, as defined by K.S.A. 65-7006(a), prior to its repeal, K.S.A. 21-36a09(a), prior to its transfer, or K.S.A. 21-5709(a), and amendments thereto;

(S) K.S.A. 65-4161, prior to its repeal, K.S.A. 21-36a05(a)(1), prior to its transfer, or K.S.A. 21-5705(a)(1), and amendments thereto; or

(T) any attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302 and 21-5303, and amendments thereto, of an offense defined in this subsection.

(2) Except as otherwise provided by the Kansas offender registration act, the duration of registration terminates, if not confined, at the expiration of 15 years from the date of conviction. Any period of time during which any offender is incarcerated in any jail or correctional facility or during which the offender does not comply with any and all requirements of the Kansas offender registration act shall not count toward the duration of registration.

(b)(1) Except as provided in subsection (c), if convicted of any of the following offenses, an offender's duration of registration shall be, if confined, 25 years after the date of parole, discharge or release, whichever date is most recent, or, if not confined, 25 years from the date of conviction:

(A) Criminal sodomy, as defined in K.S.A. 21-3505(a)(1), prior to its repeal, or K.S.A. 21-5504(a)(1) or (a)(2), and amendments thereto, when one of the parties involved is less than 18 years of age;

(B) indecent solicitation of a child, as defined in K.S.A. 21-3510, prior to its repeal, or K.S.A. 21-5508(a), and amendments thereto;

(C) electronic solicitation, as defined in K.S.A. 21-3523, prior to its repeal, or K.S.A. 21-5509, and amendments thereto;

(D) aggravated incest, as defined in K.S.A. 21-3603, prior to its repeal, or K.S.A. 21-5604(b), and amendments thereto;

(E) indecent liberties with a child, as defined in K.S.A. 21-3503, prior to its repeal, or K.S.A. 21-5506(a), and amendments thereto;

(F) unlawful sexual relations, as defined in K.S.A. 21-3520, prior to its repeal, or K.S.A. 21-5512, and amendments thereto;

(G) sexual exploitation of a child, as defined in K.S.A. 21-3516, prior to its repeal, or K.S.A. 21-5510, and amendments thereto, if the victim is 14 or more years of age but less than 18 years of age;

(H) aggravated sexual battery, as defined in K.S.A. 21-3518, prior to its repeal, or K.S.A. 21-5505(b), and amendments thereto;

(I) internet trading in child pornography, as defined in K.S.A. 21-5514, and amendments thereto;

(J) aggravated internet trading in child pornography, as defined in K.S.A. 21-5514, and amendments thereto, if the victim is 14 or more years of age but less than 18 years of age;

(K) promoting prostitution, as defined in K.S.A. 21-3513, prior to its repeal, or K.S.A. 21-6420, prior to its amendment by section 17 of chapter 120 of the 2013 Session Laws of Kansas on July 1, 2013, if the person selling sexual relations is 14 or more years of age but less than 18 years of age; or

(L) any attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302 and 21-5303, and amendments thereto, of an offense defined in this subsection.

(2) Except as otherwise provided by the Kansas offender registration act, the duration of registration terminates, if not confined, at the expiration of 25 years from the date of conviction. Any period of time during which any offender is incarcerated in any jail or correctional facility or during which the offender does not comply with any and all requirements of the Kansas offender registration act shall not count toward the duration of registration.

(c) Upon a second or subsequent conviction of an offense requiring registration, an offender's duration of registration shall be for such offender's lifetime.

(d) The duration of registration for any offender who has been convicted of any of the following offenses shall be for such offender's lifetime:

(1) Rape, as defined in K.S.A. 21-3502, prior to its repeal, or K.S.A. 21-5503, and amendments thereto;

(2) aggravated indecent solicitation of a child, as defined in K.S.A. 21-3511, prior to its repeal, or K.S.A. 21-5508(b), and amendments thereto;

(3) aggravated indecent liberties with a child, as defined in K.S.A. 21-3504, prior to its repeal, or K.S.A. 21-5506(b), and amendments thereto;

(4) criminal sodomy, as defined in K.S.A. 21-3505(a)(2) or (a)(3), prior to its repeal, or K.S.A. 21-5504(a)(3) or (a)(4), and amendments thereto;

(5) aggravated criminal sodomy, as defined in K.S.A. 21-3506, prior to its repeal, or K.S.A. 21-5504(b), and amendments thereto;

(6) aggravated human trafficking, as defined in K.S.A. 21-3447, prior to its repeal, or K.S.A. 21-5426(b), and amendments thereto;

(7) sexual exploitation of a child, as defined in K.S.A. 21-3516, prior to its repeal, or K.S.A. 21-5510, and amendments thereto, if the victim is less than 14 years of age;

(8) promoting prostitution, as defined in K.S.A. 21-3513, prior to its repeal, or K.S.A. 21-6420, prior to its amendment by section 17 of chapter 120 of the 2013 Session Laws of Kansas on July 1, 2013, if the person selling sexual relations is less than 14 years of age;

(9) kidnapping, as defined in K.S.A. 21-3420, prior to its repeal, or K.S.A. 21-5408(a), and amendments thereto;

(10) aggravated kidnapping, as defined in K.S.A. 21-3421, prior to its repeal, or K.S.A. 21-5408(b), and amendments thereto;

(11) aggravated internet trading in child pornography, as defined in K.S.A. 21-5514, and amendments thereto, if the victim is less than 14 years of age;

(12) commercial sexual exploitation of a child, as defined in K.S.A. 21-6422, and amendments thereto; or

(13) any attempt, conspiracy or criminal solicitation, as defined in K.S.A. 21-3301, 21-3302 or 21-3303, prior to their repeal, or K.S.A. 21-5301, 21-5302 and 21-5303, and amendments thereto, of an offense defined in this subsection.

(e) Any person who has been declared a sexually violent predator pursuant to K.S.A. 59-29a01 et seq., and amendments thereto, shall register for such person's lifetime.

(f) Notwithstanding any other provisions of this section, for an offender less than 14 years of age who is adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute a sexually violent crime set forth in K.S.A. 22-4902(c), and amendments thereto, the court shall:

(1) Require registration until such offender reaches 18 years of age, at the expiration of five years from the date of adjudication or, if confined, from release from confinement, whichever date occurs later. Any period of time during which the offender is incarcerated in any jail, juvenile facility or correctional facility or during which the offender does not comply with any and all requirements of the Kansas offender registration act shall not count toward the duration of registration;

(2) not require registration if the court, on the record, finds substantial and compelling reasons therefor; or

(3) require registration, but such registration information shall not be open to inspection by the public or posted on any internet website, as provided in K.S.A. 22-4909, and amendments thereto. If the court requires registration but such registration is not open to the public, such offender shall provide a copy of such court order to the registering law enforcement agency at the time of registration. The registering law enforcement agency shall forward a copy of such court order to the Kansas bureau of investigation.

If such offender violates a condition of release during the term of the conditional release, the court may require such offender to register pursuant to paragraph (1).

(g) Notwithstanding any other provisions of this section, for an offender 14 years of age or more who is adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute a sexually violent crime set forth in K.S.A. 22-4902(c), and amendments thereto, and such crime is not an off-grid felony or a felony ranked in severity level 1 of the nondrug grid as provided in K.S.A. 21-4704, prior to its repeal, or K.S.A. 21-6804, and amendments thereto, the court shall:

(1) Require registration until such offender reaches 18 years of age, at the expiration of five years from the date of adjudication or, if confined, from release from confinement, whichever date occurs later. Any period of time during which the offender is incarcerated in any jail, juvenile facility or correctional facility or during which the offender does not comply with any and all requirements of the Kansas offender registration act shall not count toward the duration of registration;

(2) not require registration if the court, on the record, finds substantial and compelling reasons therefor; or

(3) require registration, but such registration information shall not be open to inspection by the public or posted on any internet website, as provided in K.S.A. 22-4909, and amendments thereto. If the court requires registration but such registration is not open to the public, such offender shall provide a copy of such court order to the registering law enforcement agency

at the time of registration. The registering law enforcement agency shall forward a copy of such court order to the Kansas bureau of investigation.

If such offender violates a condition of release during the term of the conditional release, the court may require such offender to register pursuant to paragraph (1).

(h) Notwithstanding any other provisions of this section, an offender 14 years of age or more who is adjudicated as a juvenile offender for an act which, if committed by an adult, would constitute a sexually violent crime set forth in K.S.A. 22-4902(c), and amendments thereto, and such crime is an off-grid felony or a felony ranked in severity level 1 of the nondrug grid as provided in K.S.A. 21-4704, prior to its repeal, or K.S.A. 21-6804, and amendments thereto, shall be required to register for such offender's lifetime.

(i) Notwithstanding any other provision of law, if a diversionary agreement or probation order, either adult or juvenile, or a juvenile offender sentencing order, requires registration under the Kansas offender registration act for an offense that would not otherwise require registration as provided in K.S.A. 22-4902(a)(5), and amendments thereto, then all provisions of the Kansas offender registration act shall apply, except that the duration of registration shall be controlled by such diversionary agreement, probation order or juvenile offender sentencing order.

(j) The duration of registration does not terminate if the convicted or adjudicated offender again becomes liable to register as provided by the Kansas offender registration act during the required period of registration.

(k) For any person moving to Kansas who has been convicted or adjudicated in an out-of-state court, or who was required to register under an out-of-state law, the duration of registration shall be the length of time required by the out-of-state jurisdiction or by the Kansas offender registration act, whichever length of time is longer. The provisions of this subsection shall apply to convictions or adjudications prior to June 1, 2006, and to persons who moved to Kansas prior to June 1, 2006, and to convictions or adjudications on or after June 1, 2006, and to persons who moved to Kansas on or after June 1, 2006.

(l) For any person residing, maintaining employment or attending school in this state who has been convicted or adjudicated by an out-of-state court of an offense that is comparable to any crime requiring registration pursuant to the Kansas offender registration act, but who was not required to register in the jurisdiction of conviction or adjudication, the duration of registration shall be the duration required for the comparable offense pursuant to the Kansas offender registration act.

Credits

Laws 1993, ch. 253, § 22; Laws 1994, ch. 107, § 5; Laws 1997, ch. 181, § 11; Laws 1999, ch. 164, § 33; Laws 2001, ch. 208, § 13; Laws 2002, ch. 55, § 2; Laws 2005, ch. 202, § 1; Laws 2006, ch. 214, § 9; Laws 2007, ch. 183, § 4, eff. July 1, 2007; Laws 2010, ch. 66, § 1, eff. July 1, 2010; Laws 2010, ch. 155, § 10, eff. July 1, 2010; Laws 2011, ch. 95, § 6, eff. July 1, 2011; Laws 2012, ch. 149, § 5, eff. July 1, 2012; Laws 2013, ch. 127, § 5, eff. July 1, 2013; Laws 2014, ch. 117, § 3, eff. July 1, 2014; Laws 2017, ch. 78, § 22, eff. July 1, 2017; Laws 2021, ch. 103, § 8, eff. July 1, 2021; Laws 2022, ch. 83, § 3, eff. May 12, 2022.

K. S. A. 22-4906, KS ST 22-4906

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4907

22-4907. Information required in registration

Currentness

(a) Registration as required by the Kansas offender registration act shall consist of a form approved by the Kansas bureau of investigation, which shall include a statement that the requirements provided in this section have been reviewed and explained to the offender, and shall be signed by the offender and, except when such reporting is conducted by certified letter as provided in subsection (b) of K.S.A. 22-4905, and amendments thereto, witnessed by the person registering the offender. Such registration form shall include the following offender information:

- (1) Name and all alias names;
- (2) date and city, state and country of birth, and any alias dates or places of birth;
- (3) title and statute number of each offense or offenses committed, date of each conviction or adjudication and court case numbers for each conviction or adjudication;
- (4) city, county, state or country of conviction or adjudication;
- (5) sex and date of birth or purported age of each victim of all offenses requiring registration;
- (6) current residential address, any anticipated future residence and any temporary lodging information including, but not limited to, address, telephone number and dates of travel for any place in which the offender is staying for seven or more days; and, if transient, the locations where the offender has stayed and frequented since last reporting for registration;
- (7) all telephone numbers at which the offender may be contacted including, but not limited to, all mobile telephone numbers;
- (8) social security number, and all alias social security numbers;
- (9) identifying characteristics such as race, ethnicity, skin tone, sex, age, height, weight, hair and eye color, scars, tattoos and blood type;
- (10) occupation and name, address or addresses and telephone number of employer or employers, and name of any anticipated employer and place of employment;

(11) all current driver's licenses or identification cards, including a photocopy of all such driver's licenses or identification cards and their numbers, states of issuance and expiration dates;

(12) all vehicle information, including the license plate number, registration number and any other identifier and description of any vehicle owned or operated by the offender, or any vehicle the offender regularly drives, either for personal use or in the course of employment, and information concerning the location or locations such vehicle or vehicles are habitually parked or otherwise kept;

(13) license plate number, registration number or other identifier and description of any aircraft or watercraft owned or operated by the offender, and information concerning the location or locations such aircraft or watercraft are habitually parked, docked or otherwise kept;

(14) all professional licenses, designations and certifications;

(15) documentation of any treatment received for a mental abnormality or personality disorder of the offender; for purposes of documenting the treatment received, registering law enforcement agencies, correctional facility officials, treatment facility officials and courts may rely on information that is readily available to them from existing records and the offender;

(16) a photograph or photographs;

(17) fingerprints and palm prints;

(18) any and all schools and satellite schools attended or expected to be attended and the locations of attendance and telephone number;

(19) any and all: E-mail addresses; online identities used by the offender on the internet; information relating to membership in any and all personal web pages or online social networks; and internet screen names;

(20) all travel and immigration documents; and

(21) name and telephone number of the offender's probation, parole or community corrections officer.

(b) The offender shall provide biological samples for DNA analysis to the registering law enforcement agency as required by K.S.A. 21-2511, and amendments thereto. The biological samples shall be in the form using a DNA databank kit authorized by the Kansas bureau of investigation. The registering law enforcement agency shall forward such biological samples to the Kansas bureau of investigation. Prior to taking such sample, the registering law enforcement agency shall search the Kansas criminal justice information system to determine if such person's DNA profile is currently on file. If such person's DNA profile is on file with the Kansas bureau of investigation, the registering law enforcement agency is not required to take biological samples.

Credits

Laws 1993, ch. 253, § 23; Laws 1996, ch. 224, § 5; Laws 1997, ch. 181, § 12; Laws 2001, ch. 208, § 14; Laws 2007, ch. 183, § 5, eff. July 1, 2007; Laws 2010, ch. 135, § 37, eff. July 1, 2010; Laws 2011, ch. 95, § 7, eff. July 1, 2011; Laws 2012, ch. 149, § 6, eff. July 1, 2012; Laws 2013, ch. 127, § 6, eff. July 1, 2013.

K. S. A. 22-4907, KS ST 22-4907

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4908

22-4908. Petition for relief from registration; procedure; elements of proof; expungement

Effective: May 12, 2022

Currentness

(a) Except as provided in subsection (b), a drug offender who is required to register under the Kansas offender registration act may file a verified petition for relief from registration requirements if the offender has registered for a period of at least five years after the date of parole, discharge or release, whichever date is most recent, or, if not confined, five years from the date of conviction or adjudication.

(b) An offender who is required to register pursuant to K.S.A. 22-4906(k), and amendments thereto, because of an out-of-state conviction or adjudication may not petition for relief from registration requirements in this state if the offender would be required to register under the law of the state or jurisdiction where the conviction or adjudication occurred. If the offender would no longer be required to register under the law of the state or jurisdiction where the conviction or adjudication occurred, the offender may file a verified petition pursuant to subsection (a).

(c) Any period of time during which an offender is incarcerated in any jail or correctional facility or during which the offender does not substantially comply with the requirements of the Kansas offender registration act shall not count toward the duration of registration required in subsection (a).

(d)(1) A verified petition for relief from registration requirements shall be filed in the district court in the county where the offender was convicted or adjudicated of the offense requiring registration. If the offender was not convicted or adjudicated in this state of the offense requiring registration, such petition shall be filed in the district court of any county where the offender is currently required to register. The docket fee shall be as provided in K.S.A. 60-2001, and amendments thereto.

(2) The petition shall include:

(A) The offender's full name;

(B) the offender's full name at the time of conviction or adjudication for the offense or offenses requiring registration, if different than the offender's current name;

(C) the offender's sex, race and date of birth;

(D) the offense or offenses requiring registration;

(E) the date of conviction or adjudication for the offense or offenses requiring registration;

(F) the court in which the offender was convicted or adjudicated of the offense or offenses requiring registration;

(G) whether the offender has been arrested, convicted, adjudicated or entered into a diversion agreement for any crime during the period the offender is required to register; and

(H) the names of all treatment providers and agencies that have treated the offender for mental health, substance abuse and offense-related behavior since the date of the offense or offenses requiring registration.

(3) The judicial council shall develop a petition form for use under this section.

(4) When a petition is filed, the court shall set a date for a hearing on such petition and cause notice of the hearing to be given to the county or district attorney in the county where the petition is filed. Any person who may have relevant information about the offender may testify at the hearing.

(5) The county or district attorney shall notify any victim of the offense requiring registration who is alive and whose address is known or, if the victim is deceased, the victim's family if the family's address is known. The victim or victim's family shall not be compelled to testify or provide any discovery to the offender.

(6) The county or district attorney shall have access to all applicable records, including records that are otherwise confidential or privileged.

(e)(1) The court may require a drug offender who is petitioning for relief under this section to undergo a risk assessment.

(2) Any risk assessment ordered under this subsection shall be performed by a professional agreed upon by the parties or a professional approved by the court. Such risk assessment shall be performed at the offender's expense.

(f) The court shall order relief from registration requirements if the offender shows by clear and convincing evidence that:

(1) The offender has not been convicted or adjudicated of a felony, other than a felony violation or aggravated felony violation of K.S.A. 22-4903, and amendments thereto, within the five years immediately preceding the filing of the petition, and no proceedings involving any such felony are presently pending or being instituted against the offender;

(2) the offender's circumstances, behavior and treatment history demonstrate that the offender is sufficiently rehabilitated to warrant relief; and

(3) registration of the offender is no longer necessary to promote public safety.

(g) If the court denies an offender's petition for relief, the offender shall not file another petition for relief until three years have elapsed, unless a shorter time period is ordered by the court.

(h) If the court grants relief from registration requirements, the court shall order that the offender be removed from the offender registry and that the offender is no longer required to comply with registration requirements. Within 14 days of any order, the court shall notify the Kansas bureau of investigation and any local law enforcement agency that registers the offender that the offender has been granted relief from registration requirements. The Kansas bureau of investigation shall remove such offender from any internet website maintained pursuant to K.S.A. 22-4909, and amendments thereto.

(i) An offender may combine a petition for relief under this section with a petition for expungement under K.S.A. 21-6614, and amendments thereto, if the offense requiring registration is otherwise eligible for expungement.

Credits

Laws 1993, ch. 253, § 24; Laws 1994, ch. 107, § 6; Laws 1997, ch. 181, § 13; Laws 1999, ch. 164, § 34; Laws 2001, ch. 208, § 15; Laws 2011, ch. 95, § 8, eff. July 1, 2011; Laws 2012, ch. 149, § 7, eff. July 1, 2012; Laws 2022, ch. 83, § 4, eff. May 12, 2022.

K. S. A. 22-4908, KS ST 22-4908

Statutes are current through laws enacted during the 2025 Regular Session of the Kansas Legislature effective on or before July 1, 2025. Some statute sections may be more current, see credits for details.

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4909

22-4909. Information subject to open records act; website posting; exceptions; nondisclosure of certain information

Currentness

(a) Except as prohibited by subsections (c), (d), (e) and (f) of this section and subsections (f) and (g) of K.S.A. 22-4906, and amendments thereto, the statements or any other information required by the Kansas offender registration act shall be open to inspection by the public at the registering law enforcement agency, at the headquarters of the Kansas bureau of investigation and on any internet website sponsored or created by a registering law enforcement agency or the Kansas bureau of investigation that contains such statements or information, and specifically are subject to the provisions of the Kansas open records act, K.S.A. 45-215 et seq., and amendments thereto.

(b) Any information posted on an internet website sponsored or created by a registering law enforcement agency or the Kansas bureau of investigation shall identify, in a prominent manner, whether an offender is a sex offender, a violent offender or a drug offender. Such internet websites shall include the following information for each offender:

(1) Name of the offender, including any aliases;

(2) address of each residence at which the offender resides or will reside and, if the offender does not have any present or expected residence address, other information about where the offender has their home or habitually lives. If current information of this type is not available because the offender is in violation of the requirement to register or cannot be located, the website must so note;

(3) temporary lodging information;

(4) address of any place where the offender is a student or will be a student;

(5) license plate number and a description of any vehicle owned or operated by the offender, including any aircraft or watercraft;

(6) physical description of the offender;

(7) the offense or offenses for which the offender is registered and any other offense for which the offender has been convicted or adjudicated;

(8) a current photograph of the offender; and

(9) all professional licenses, designations and certifications.

(c) Notwithstanding subsection (a), information posted on an internet website sponsored or created by a registering law enforcement agency or the Kansas bureau of investigation shall not contain the address of any place where the offender is an employee or any other information about where the offender works. Such internet website shall contain a statement that employment information is publicly available and may be obtained by contacting the appropriate registering law enforcement agency or by signing up for community notification through the official website of the Kansas bureau of investigation.

(d) Notwithstanding subsection (a), pursuant to a court finding petitioned by the prosecutor, any offender who is required to register pursuant to the Kansas offender registration act, but has been provided a new identity and relocated under the federal witness security program or who has worked as a confidential informant, or is otherwise a protected witness, shall be required to register pursuant to the Kansas offender registration act, but shall not be subject to public registration.

(e) Notwithstanding subsection (a), when a court orders expungement of a conviction or adjudication that requires an offender to register pursuant to the Kansas offender registration act, the registration requirement for such conviction or adjudication does not terminate. Such offender shall be required to continue registering pursuant to the Kansas offender registration act, but shall not be subject to public registration. If a court orders expungement of a conviction or adjudication that requires an offender to register pursuant to the Kansas offender registration act, and the offender has any other conviction or adjudication that requires registration, such offender shall be required to register pursuant to the Kansas offender registration act, and the registration for such other conviction or adjudication shall be open to inspection by the public and shall be subject to the provisions of subsection (a), unless such registration has been ordered restricted pursuant to subsection (f) or (g) of K.S.A. 22-4906, and amendments thereto.

(f) Notwithstanding subsection (a), the following information shall not be disclosed other than to law enforcement agencies:

(1) The name, address, telephone number or any other information which specifically and individually identifies the identity of any victim of a registerable offense;

(2) the social security number of the offender;

(3) the offender's criminal history arrests that did not result in convictions or adjudications;

(4) travel and immigration document numbers of the offender; and

(5) internet identifiers of the offender.

Credits

Laws 1993, ch. 253, § 25; Laws 1994, ch. 107, § 7; Laws 1997, ch. 181, § 14; Laws 2001, ch. 208, § 16; Laws 2005, ch. 202, § 2; Laws 2006, ch. 214, § 10; Laws 2011, ch. 95, § 9, eff. July 1, 2011; Laws 2012, ch. 149, § 8, eff. July 1, 2012.

K. S. A. 22-4909, KS ST 22-4909

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4910

22-4910. Effective date of act

Currentness

K.S.A. 22-4901 through 22-4910 shall be effective on and after July 1, 1993.

Credits

Laws 1993, ch. 253, § 26.

K. S. A. 22-4910, KS ST 22-4910

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4911

22-4911. No cause of action created against employee related to registration requirements

Currentness

Nothing in the Kansas offender registration act shall create a cause of action against the state or an employee of the state acting within the scope of the employee's employment as a result of requiring an offender to register or an offender's failure to register. This includes, but is not limited to, the person or persons assigned to a registering law enforcement agency to register offenders, and the person or persons assigned to enter all offender information required by the national crime information center into the national sex offender registry system.

Credits

Laws 1999, ch. 164, § 36; Laws 2011, ch. 95, § 10, eff. July 1, 2011.

K. S. A. 22-4911, KS ST 22-4911

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West's Kansas Statutes Annotated
Chapter 22. Criminal Procedure
Article 49. Offender Registration

K.S.A. 22-4913

22-4913. Offender residency restrictions; prohibition from adopting or enforcing; exceptions; definitions

Currentness

- (a) Except as provided in subsection (b), on and after June 1, 2006, cities and counties shall be prohibited from adopting or enforcing any ordinance, resolution or regulation establishing residential restrictions for offenders as defined by K.S.A. 22-4902, and amendments thereto.
- (b) The prohibition in subsection (a), shall not apply to any city or county residential licensing or zoning program for correctional placement residences that includes regulations for the housing of such offenders.
- (c) As used in this section, “correctional placement residence” means a facility that provides residential services for individuals or offenders who reside or have been placed in such facility due to any one of the following situations:
- (1) Prior to, or instead of, being sentenced to prison;
 - (2) as a conditional release prior to a hearing;
 - (3) as a part of a sentence of confinement of not more than one year;
 - (4) in a privately operated facility housing parolees;
 - (5) as a deferred sentence when placed in a facility operated by community corrections;
 - (6) as a requirement of court-ordered treatment services for alcohol or drug abuse; or
 - (7) as part of voluntary treatment services for alcohol or drug abuse.

Correctional placement residence shall not include a single or multi-family dwelling or commercial residential building that provides a residence to staff and persons other than those described in paragraphs (1) through (7).

Credits

Laws 2006, ch. 214, § 2; Laws 2008, ch. 57, § 1, eff. July 1, 2008; Laws 2011, ch. 95, § 11, eff. July 1, 2011.

K. S. A. 22-4913, KS ST 22-4913

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.500

17.500 Definitions for KRS 17.500 to 17.580

Effective: June 27, 2025

Currentness

As used in KRS 17.500 to 17.580:

- (1) “Approved provider” means a mental health professional licensed or certified in Kentucky whose scope of practice includes providing mental health treatment services and who is approved by the Sex Offender Risk Assessment Advisory Board, under administrative regulations promulgated by the board, to provide comprehensive sex offender presentence evaluations or treatment to adults and youthful offenders, as defined in KRS 600.020;
- (2) “Cabinet” means the Justice and Public Safety Cabinet;
- (3) (a) Except as provided in paragraph (b) of this subsection, “criminal offense against a victim who is a minor” means any of the following offenses if the victim is under the age of eighteen (18) at the time of the commission of the offense:
1. Kidnapping, as set forth in KRS 509.040, except by a parent;
 2. Unlawful imprisonment, as set forth in KRS 509.020, except by a parent;
 3. Sex crime;
 4. Promoting a sexual performance of a minor, as set forth in KRS 531.320;
 5. Human trafficking involving commercial sexual activity, as set forth in KRS 529.100;
 6. Promoting human trafficking involving commercial sexual activity, as set forth in KRS 529.110;
 7. Promoting prostitution, as set forth in KRS 529.040, when the defendant advances or profits from the prostitution of a person under the age of eighteen (18);

8. Use of a minor in a sexual performance, as set forth in KRS 531.310;
 9. Sexual abuse, as set forth in KRS 510.120 and 510.130;
 10. Unlawful transaction with a minor in the first degree, as set forth in KRS 530.064(1)(a);
 11. Any offense involving a minor or depictions of a minor, as set forth in KRS Chapter 531;
 12. Any attempt to commit any of the offenses described in subparagraphs 1. to 11. of this paragraph;
 13. Solicitation to commit any of the offenses described in subparagraphs 1. to 11. of this paragraph; or
 14. Any offense from another state or territory, any federal offense, or any offense subject to a court martial of the United States Armed Forces, which is similar to any of the offenses described in subparagraphs 1. to 13. of this paragraph.
- (b) Conduct which is criminal only because of the age of the victim shall not be considered a criminal offense against a victim who is a minor if the perpetrator was under the age of eighteen (18) at the time of the commission of the offense;
- (4) “Law enforcement agency” means any lawfully organized investigative agency, sheriff’s office, police unit, or police force of federal, state, county, urban-county government, charter county, city, consolidated local government, or a combination of these, responsible for the detection of crime and the enforcement of the general criminal federal or state laws;
- (5) “Registrant” means:
- (a) Any person eighteen (18) years of age or older at the time of the offense or any youthful offender, as defined in KRS 600.020, who has committed:
 1. A sex crime; or
 2. A criminal offense against a victim who is a minor; or
 - (b) Any person required to register under KRS 17.510; or
 - (c) Any sexually violent predator; or
 - (d) Any person whose sexual offense has been diverted pursuant to KRS 533.250, until the diversionary period is successfully completed;

- (6) “Registrant information” means the name, including any lawful name change together with the previous name, Social Security number, age, race, sex, date of birth, height, weight, hair and eye color, fingerprints, palm prints, DNA sample, a photograph, aliases used, residence, motor vehicle operator's license number as well as any other government-issued identification card numbers, if any, a brief description of the crime or crimes committed, and other information the cabinet determines, by administrative regulation, may be useful in the identification of registrants;

- (7) “Residence” means any place where a person sleeps. For the purposes of this statute, a registrant may have more than one (1) residence. A registrant is required to register each residence address;

- (8) “Sex crime” means:
 - (a) A felony offense defined in KRS Chapter 510, KRS 529.100 or 529.110 involving commercial sexual activity, 530.020, 530.064(1)(a), 531.125, 531.310, 531.320, 531.335, 531.340, 531.365, 531.366, 531.367, or 531.368.

 - (b) A felony attempt to commit a felony offense specified in paragraph (a) of this subsection; or

 - (c) A federal felony offense, a felony offense subject to a court-martial of the United States Armed Forces, or a felony offense from another state or a territory where the felony offense is similar to a felony offense specified in paragraph (a) of this subsection;

- (9) “Sexual offender” means any person convicted of, pleading guilty to, or entering an Alford plea to a sex crime as defined in this section, as of the date the verdict is entered by the court;

- (10) “Sexually violent predator” means any person who has been subjected to involuntary civil commitment as a sexually violent predator, or a similar designation, under a state, territory, or federal statutory scheme;

- (11) “The board” means the Sex Offender Risk Assessment Advisory Board created under KRS 17.554;

- (12) “Victim” has the same meaning as in KRS 421.500;

- (13) “DNA sample” or “deoxyribonucleic acid sample” means a blood or swab specimen from a person, as prescribed by administrative regulation, that is required to provide a DNA sample pursuant to KRS 17.170 or 17.510, that shall be submitted to the Department of Kentucky State Police forensic laboratory for law enforcement identification purposes and inclusion in law enforcement identification databases; and

- (14) “Authorized personnel” means an agent of state government who is properly trained in DNA sample collection pursuant to administrative regulation.

Credits

HISTORY: 2025 c 9, § 3, eff. 6-27-25; 2024 c 15, § 1, eff. 7-15-24; 2020 c 75, § 1, eff. 7-15-20; 2018 c 121, § 1, c 42, § 2, eff. 7-14-18; 2017 c 171, § 1, eff. 6-29-17; 2014 c 94, § 4, eff. 7-15-14; 2009 c 105, § 4, eff. 3-27-09

LRC NOTES

Legislative Research Commission Note (6-29-17): Under the authority of KRS 7.136(1)(h), references to “subparagraphs 1. to 10. of this paragraph” in subsection (3)(a) of this statute have been changed to “subparagraphs 1. to 11. of this paragraph” by the Reviser of Statutes following the enactment of 2017 Ky. Acts ch. 171, sec. 1, which inserted a new subparagraph into KRS 17.500(3)(a) and renumbered the subsequent subparagraphs, but overlooked the internal references in the existing language.

KRS § 17.500, KY ST § 17.500

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.510

17.510 Registration system for adults who have committed sex crimes or crimes
against minors; persons required to register; exemption for registration for juveniles
to be retroactive; manner of registration; penalties; notifications of violations required

Effective: January 1, 2024
Currentness

- (1) The cabinet shall develop and implement a registration system for registrants which includes creating a new computerized information file to be accessed through the Law Information Network of Kentucky.
- (2) A registrant shall, on or before the date of his or her release by the court, the parole board, the cabinet, or any detention facility, register with the appropriate local probation and parole office in the county in which he or she intends to reside. The person in charge of the release shall facilitate the registration process.
- (3) Any person required to register pursuant to subsection (2) of this section shall be informed of the duty to register by the court at the time of sentencing if the court grants probation or conditional discharge or does not impose a penalty of incarceration, or if incarcerated, by the official in charge of the place of confinement upon release. The court and the official shall require the person to read and sign any form that may be required by the cabinet, stating that the duty of the person to register has been explained to the person. The court and the official in charge of the place of confinement shall require the releasee to complete the acknowledgment form and the court or the official shall retain the original completed form. The official shall then send the form to the Sex Offender Registry Section, Department of Kentucky State Police, Frankfort, Kentucky 40601.
- (4) The court or the official shall order the person to register with the appropriate local probation and parole office which shall obtain the person's fingerprints, palm prints, DNA sample, photograph, and a copy of his or her motor vehicle operator's license as well as any other government-issued identification cards, if any. Thereafter, the registrant shall return to the appropriate local probation and parole office not less than one (1) time every two (2) years in order for a new photograph to be obtained, and the registrant shall pay the cost of updating the photo for registration purposes. Any registrant who has not provided palm prints, a copy of his or her motor vehicle operator's license, or a copy of any other government-issued identification cards, if any, as of July 14, 2018, shall provide the information to the appropriate local probation and parole office when the registrant appears for a new photograph to be obtained. Any change to a registrant's motor vehicle operator's license number or any other government-issued identification card after the registrant appears for a new photograph shall be registered in accordance with subsection (11) of this section. Failure to comply with this requirement shall be punished as set forth in subsection (12) of this section.
- (5) (a) The appropriate probation and parole office shall send the registration form containing the registrant information, fingerprints, palm prints, photograph, and a copy of his or her motor vehicle operator's license as well as any other government-issued identification cards, if any, and any special conditions imposed by the court or the Parole Board, to the

Sex Offender Registry Section, Department of Kentucky State Police, Frankfort, Kentucky 40601. The appropriate probation and parole office shall send the DNA sample to the Department of Kentucky State Police forensic laboratory in accordance with administrative regulations promulgated by the cabinet.

(b) The Sex Offender Registry Section, upon request by a state or local law enforcement agency, shall make available to that agency registrant information, including a person's fingerprints and photograph, where available, as well as any special conditions imposed by the court or the Parole Board.

(c) Any employee of the Justice and Public Safety Cabinet who disseminates, or does not disseminate, registrant information in good-faith compliance with the requirements of this subsection shall be immune from criminal and civil liability for the dissemination or lack thereof.

(6) (a) Except as provided in paragraph (b) of this subsection, any person who has been convicted in a court of any state or territory, a court of the United States, or a similar conviction from a court of competent jurisdiction in any other country, or a court martial of the United States Armed Forces of a sex crime or criminal offense against a victim who is a minor and who has been notified of the duty to register by that state, territory, or court, or who has been committed as a sexually violent predator under the laws of another state, laws of a territory, or federal laws, or has a similar conviction from a court of competent jurisdiction in any other country, shall comply with the registration requirement of this section, including the requirements of subsection (4) of this section, and shall register with the appropriate local probation and parole office in the county of residence within five (5) working days of relocation. No additional notice of the duty to register shall be required of any official charged with a duty of enforcing the laws of this Commonwealth.

(b) No person shall be required to register under this subsection for a juvenile adjudication if such an adjudication in this Commonwealth would not create a duty to register. This paragraph shall be retroactive.

(7) (a) Except as provided in paragraph (b) of this subsection, if a person is required to register under federal law or the laws of another state or territory, or if the person has been convicted of an offense in a court of the United States, in a court martial of the United States Armed Forces, or under the laws of another state or territory that would require registration if committed in this Commonwealth, that person upon changing residence from the other state or territory of the United States to the Commonwealth or upon entering the Commonwealth for employment, to carry on a vocation, or as a student shall comply with the registration requirement of this section, including the requirements of subsection (4) of this section, and shall register within five (5) working days with the appropriate local probation and parole office in the county of residence, employment, vocation, or schooling. A person required to register under federal law or the laws of another state or territory shall be presumed to know of the duty to register in the Commonwealth. As used in this subsection, "employment" or "carry on a vocation" includes employment that is full-time or part-time for a period exceeding fourteen (14) days or for an aggregate period of time exceeding thirty (30) days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit. As used in this subsection, "student" means a person who is enrolled on a full-time or part-time basis, in any public or private educational institution, including any secondary school, trade or professional institution, or institution of higher education.

(b) No person shall be required to register under this subsection for a juvenile adjudication if such an adjudication in this Commonwealth would not create a duty to register. This paragraph shall be retroactive.

- (8) The registration form shall be a written statement signed by the person which shall include registrant information, including an up-to-date photograph of the registrant for public dissemination.
- (9) For purposes of KRS 17.500 to 17.580 and 17.991, a post office box number shall not be considered an address.
- (10) (a) If a registrant does not have an established and fixed residence of regular return, he or she shall report in person no less than every thirty (30) days to the local probation and parole office in the county in which he or she is present and register the approximate area where he or she can be located.
- (b) If the registrant changes his or her location to a new county, the person shall notify his or her current local probation and parole office of the new location on or before the date of the change of location.
- (c) The registrant shall also report in person to the appropriate local probation and parole office in the county of his or her new location no later than five (5) working days after the date of the change of location.
- (11) (a) If the residence address of any registrant changes, but the registrant remains in the same county, the person shall register, on or before the date of the change of address, with the appropriate local probation and parole office in the county in which he or she resides.
- (b) 1. If the registrant changes his or her residence to a new county, the person shall notify his or her current local probation and parole office of the new residence address on or before the date of the change of address.
2. The registrant shall also register with the appropriate local probation and parole office in the county of his or her new residence no later than five (5) working days after the date of the change of address.
- (c) If the:
1. Motor vehicle operator's license number or any other government-issued identification card number of any registrant changes; or
2. Registrant obtains for the first time a motor vehicle operator's license number or any other government-issued identification card number;
- the registrant shall register the change or addition no later than five (5) working days after the date of the change or the date of the addition, with the appropriate local probation and parole office in the county in which he or she resides.
- (d) 1. As soon as a probation and parole office learns of the person's new address under paragraph (b)1. of this subsection, that probation and parole office shall notify the appropriate local probation and parole office in the county of the new address of the effective date of the new address.

2. As soon as a probation and parole office learns of the person's new address under paragraph (b)2. of this subsection, that office shall forward this information as set forth under subsection (5) of this section.
- (e) 1. A registrant shall register the following information with the appropriate local probation and parole office no less than twenty-one (21) days before traveling outside of the United States:
- a. His or her passport number and country of issue;
 - b. The dates of departure, travel, and return; and
 - c. The foreign countries, colonies, territories, or possessions that the registrant will visit.
2. The registrant shall register the following information with the appropriate local probation and parole office no later than five (5) working days after the date of his or her return from traveling outside of the United States:
- a. The date he or she departed, traveled, and returned; and
 - b. The foreign countries, colonies, territories, or possessions that the registrant visited.
- (12) Any person required to register under this section who knowingly violates any of the provisions of this section or prior law is guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.
- (13) Any person required to register under this section or prior law who knowingly provides false, misleading, or incomplete information is guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.
- (14) (a) The cabinet shall verify the addresses, names, motor vehicle operator's license numbers, and government-issued identification card numbers of individuals required to register under this section. Verification shall occur at least once every ninety (90) days for a person required to register under KRS 17.520(2), at least once every calendar year for a person required to register under KRS 17.520(3), and at least once every thirty (30) days for a person who does not have an established and fixed residence of regular return.
- (b) If the cabinet determines that a person has:
1. Moved without providing his or her new address;
 2. Failed to notify the local probation and parole office of his or her presence in a new county without an established and fixed residence of regular return; or

3. A new name, motor vehicle operator's license number, or government-issued identification card number that he or she has not provided;

to the appropriate local probation and parole office or offices as required under subsection (11)(a), (b), and (c) of this section, the cabinet shall notify the appropriate local probation and parole office of the new address, name, motor vehicle operator's license number, or government-issued identification card number used by the person. The office shall then forward this information as set forth under subsection (5) of this section. The cabinet shall also notify the appropriate court, Parole Board, and appropriate Commonwealth's attorney, sheriff's office, probation and parole office, corrections agency, and law enforcement agency responsible for the investigation of the report of noncompliance.

(c) An agency that receives notice of the noncompliance from the cabinet under paragraph (a) of this subsection:

1. Shall consider revocation of the parole, probation, postincarceration supervision, or conditional discharge of any person released under its authority; and
2. Shall notify the appropriate county or Commonwealth's Attorney for prosecution.

(15) The provisions of subsections (10) and (14) of this section relating to registrants who do not have an established and fixed residence of regular return shall apply to any person required to register on or after January 1, 2024.

Credits

HISTORY: 2023 c 109, § 2, eff. 1-1-24; 2018 c 121, § 2, c 42, § 3, eff. 7-14-18; 2017 c 158, § 16, eff. 6-29-17; 2011 c 2, § 92, eff. 6-8-11; 2009 c 100, § 6, eff. 6-25-09; 2009 c 105, § 5, eff. 3-27-09; 2008 c 158, § 13, eff. 7-1-08; 2007 c 85, § 100, eff. 6-26-07; 2006 c 182, § 6, eff. 7-12-06; 2000 c 401, § 16, eff. 4-11-00; 1998 c 606, § 138, eff. 7-15-98; 1994 c 392, § 2, eff. 7-15-94

LRC NOTES

Legislative Research Commission Note (7-14-18): This statute was amended by 2018 Ky. Acts chs. 42 and 121. Where these Acts are not in conflict, they have been codified together. Where a conflict exists, Acts ch. 121, which was last enacted by the General Assembly, prevails under KRS 446.250.

Legislative Research Commission Note (6-26-07): 2007 Ky. Acts ch. 85, relating to the creation and organization of the Justice and Public Safety Cabinet, instructs the Reviser of Statutes to correct statutory references to agencies and officers whose names have been changed in that Act. Such a correction has been made in this section.

KRS § 17.510, KY ST § 17.510

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

Baldwin's Kentucky Revised Statutes Annotated
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KRS § 17.520

17.520 Period of registration

Effective: July 14, 2018

Currentness

(1) A registrant, upon his or her release by the court, the Parole Board, the cabinet, or any detention facility, shall be required to register for a period of time required under this section.

(2) (a) Lifetime registration is required for:

1. Any person who has been convicted of kidnapping, as set forth in KRS 509.040, when the victim is under the age of eighteen (18) at the time of the commission of the offense, except when the offense is committed by a parent;
2. Any person who has been convicted of unlawful imprisonment, as set forth in KRS 509.020, when the victim is under the age of eighteen (18) at the time of the commission of the offense, except when the offense is committed by a parent;
3. Any person convicted of a sex crime:
 - a. Who has one (1) or more prior convictions of a felony criminal offense against a victim who is a minor; or
 - b. Who has one (1) or more prior sex crime convictions;
4. Any person who has been convicted of two (2) or more felony criminal offenses against a victim who is a minor;
5. Any person who has been convicted of:
 - a. Rape in the first degree under KRS 510.040; or
 - b. Sodomy in the first degree under KRS 510.070; and
6. Any sexually violent predator.

- (3) All other registrants are required to register for twenty (20) years following discharge from confinement or twenty (20) years following the maximum discharge date on probation, shock probation, conditional discharge, parole, or other form of early release, whichever period is greater.
- (4) If a person required to register under this section is reincarcerated for another offense or as the result of having violated the terms of probation, parole, postincarceration supervision, or conditional discharge, the registration requirements and the remaining period of time for which the registrant shall register are tolled during the reincarceration.
- (5) A person who has pled guilty, entered an Alford plea, or been convicted in a court of another state or territory, in a court of the United States, or in a court-martial of the United States Armed Forces who is required to register in Kentucky shall be subject to registration in Kentucky based on the conviction in the foreign jurisdiction. The Justice and Public Safety Cabinet shall promulgate administrative regulations to carry out the provisions of this subsection.
- (6) The court shall designate the registration period as mandated by this section in its judgment and shall cause a copy of its judgment to be mailed to the Information Services Center, Department of Kentucky State Police, Frankfort, Kentucky 40601.

Credits

HISTORY: 2018 c 121, § 3, eff. 7-14-18; 2011 c 2, § 93, eff. 6-8-11; 2007 c 85, § 101, eff. 6-26-07; 2006 c 182, § 7, eff. 7-12-06; 2000 c 401, § 17, eff. 4-11-00; 1998 c 606, § 139, eff. 1-15-99; 1994 c 392, § 3, eff. 7-15-94

LRC NOTES

Legislative Research Commission Note (6-26-07): 2007 Ky. Acts ch. 85, relating to the creation and organization of the Justice and Public Safety Cabinet, instructs the Reviser of Statutes to correct statutory references to agencies and officers whose names have been changed in that Act. Such a correction has been made in this section.

KRS § 17.520, KY ST § 17.520

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.530

17.530 Authority to share information from registrations

Effective: July 12, 2006

Currentness

The cabinet may share information gathered pursuant to KRS 17.510 with law enforcement agencies of this state, other states, and the federal government in the course of their official duties.

Credits

HISTORY: 2006 c 182, § 8, eff. 7-12-06; 1994 c 392, § 4, eff. 7-15-94

KRS § 17.530, KY ST § 17.530

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.540

17.540 Short title for KRS 17.500 to 17.540

Currentness

KRS 17.500 to 17.540 may be cited as the “Sex Offender Registration Act.”

Credits

HISTORY: 1994 c 392, § 5, eff. 7-15-94

KRS § 17.540, KY ST § 17.540

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.544

17.544 Restrictions on use of social media platform by registrants; retroactivity; penalties

Effective: July 15, 2024

Currentness

(1) As used in this section, “social media platform”:

(a) Means a website or application that is open to the public, allows a user to create an account, and enables users to do all of the following:

1. Interact socially with other users within the confines of the website or application;
2. Construct a public or semipublic profile for the purpose of signing into and using the website or application;
3. Populate a list of other users with whom an individual shares or has the ability to share a social connection within the website or application; and
4. Create or post content viewable by others, including on message boards, chat rooms, video channels, direct or private messages, or chats, or on a landing page or main feed that presents the user with content generated by other users; and

(b) Does not include:

1. A broadband internet access service as defined by the Federal Communications Commission;
2. An electronic mail service;
3. A search engine service;
4. A cloud storage or cloud computing service;
5. An online service, application, or website in which interaction between users is limited to reviewing products offered for sale by electronic commerce or commenting on reviews posted by other users; or

6. An online service, application, or website:

- a. That consists primarily of information or content that is not user-generated but is preselected by the provider; and
- b. For which any chat, comments, or interactive functionality is incidental to, directly related to, or dependent upon the provision of the content described by subdivision a. of this subparagraph.

(2) A registrant who has committed a criminal offense against a victim who is a minor shall not create or have control of an account on a social media platform unless the account displays his or her full legal name.

(3) This section shall apply retroactively.

(4) Any person who violates subsection (2) of this section shall be guilty of a Class A misdemeanor for the first offense, and a Class D felony for a second or subsequent offense.

Credits

HISTORY: 2024 c 204, § 1, eff. 7-15-24

KRS § 17.544, KY ST § 17.544

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.545

17.545 Registrant prohibited from residing or being present in certain areas; violations; exception

Effective: June 29, 2023

Currentness

- (1) No registrant, as defined in KRS 17.500, shall reside within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned or leased playground, or licensed day care facility. The measurement shall be taken in a straight line from the nearest property line to the nearest property line of the registrant's place of residence.
- (2) (a) No registrant, as defined in KRS 17.500, nor any person residing outside of Kentucky who would be required to register under KRS 17.510 if the person resided in Kentucky, shall be on, loiter within one thousand (1,000) feet of, or work in or operate any mobile business within one thousand (1,000) feet of the clearly defined grounds of a high school, middle school, elementary school, preschool, publicly owned or leased playground, licensed day care facility, publicly owned or leased swimming pool, or splash pad as defined in KRS 211.205, except with the advance written permission of the school principal, the school board, the local legislative body with jurisdiction over the publicly owned or leased playground, publicly owned or leased swimming pool, or splash pad, or the day care director that has been given after full disclosure of the person's status as a registrant or sex offender from another state and all registrant information as required in KRS 17.500.
- (b) As used in this subsection:
1. "Local legislative body" means the chief governing body of a city, county, urban-county government, consolidated local government, charter county government, or unified local government that has legislative powers;
 2. "Loiter" includes remaining in or about the clearly defined grounds of a location described in paragraph (a) of this subsection, while not having any reason or relationship involving custody of or responsibility for a minor or any other specific legitimate reason for being there; and
 3. "Mobile business" means any business that operates from a motor vehicle or wheeled cart that can be operated, pushed, or pulled on a sidewalk, street, or highway where food, goods, or services are prepared, processed, or sold or dispensed to the public.
- (c) The measurement in paragraph (a) of this subsection shall be taken in a straight line from the nearest property line.
- (3) For purposes of this section:

- (a) The registrant shall have the duty to ascertain whether any property listed in subsection (1) of this section is within one thousand (1,000) feet of the registrant's residence; and
 - (b) If a new facility opens, the registrant shall be presumed to know and, within ninety (90) days, shall comply with this section.
- (4) (a) Except as provided in paragraph (b) of this subsection, no registrant who is eighteen (18) years of age or older and has committed a criminal offense against a victim who is a minor shall have the same residence as a minor.
- (b) A registrant who is eighteen (18) years of age or older and has committed a criminal offense against a victim who is a minor may have the same residence as a minor if the registrant is the spouse, parent, grandparent, stepparent, sibling, stepsibling, or court-appointed guardian of the minor, unless the spouse, child, grandchild, stepchild, sibling, stepsibling, or ward was a victim of the registrant.
- (c) This subsection shall not operate retroactively and shall apply only to a registrant that committed a criminal offense against a victim who is a minor after July 14, 2018.
- (5) Any person who violates subsection (1) or (4) of this section shall be guilty of:
- (a) A Class A misdemeanor for a first offense; and
 - (b) A Class D felony for the second and each subsequent offense.
- (6) Any registrant residing within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned playground, or licensed day care facility on July 12, 2006, shall move and comply with this section within ninety (90) days of July 12, 2006, and thereafter, shall be subject to the penalties set forth under subsection (5) of this section.
- (7) The prohibition against a registrant:
- (a) Residing within one thousand (1,000) feet of a publicly leased playground as outlined in subsection (1) of this section; or
 - (b) Being on the grounds of a publicly leased playground as outlined in subsection (2) of this section;
- shall not operate retroactively.
- (8) The prohibition against a registrant loitering or working in or operating any mobile business within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned or leased playground, licensed day care facility, publicly owned or leased swimming pool, or splash pad as defined in KRS 211.205 shall not operate retroactively.

(9) This section shall not apply to a youthful offender probated or paroled during his or her minority or while enrolled in an elementary or secondary education program.

Credits

HISTORY: 2023 c 109, § 1, eff. 6-29-23; 2020 c 23, § 1, eff. 7-15-20; 2018 c 181, § 1, eff. 7-14-18; 2017 c 76, § 1, eff. 6-29-17; 2009 c 38, § 2, eff. 6-25-09; 2006 c 182, § 3, eff. 7-12-06

LRC NOTES

Legislative Research Commission Note (6-25-09): A reference in subsection (5) of this statute to “subsection (3) of this section” has been changed in codification to “subsection (4) of this section” to accurately reflect the renumbering of subsections of this statute in 2009 Ky. Acts ch. 38, sec. 2.

KRS § 17.545, KY ST § 17.545

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
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KRS § 17.546

17.546 Registrant prohibited from using electronic communications to communicate with or gather information about minors, exception for parents; registrant prohibited from photographing, filming, or making a video of a minor without consent of minor's parent or guardian

Effective: July 14, 2018
Currentness

- (1) (a) As used in this subsection, “electronic communications” means any transfer of information, including signs, signals, data, writings, images, sounds, text, voice, and video, transmitted primarily through the use of electrons or electromagnetic waves or particles.
- (b) Except as provided in paragraph (c) of this subsection, a registrant who has committed a criminal offense against a victim who is a minor after July 14, 2018, shall not knowingly or intentionally use electronic communications for communicating with or gathering information about a person who is less than eighteen (18) years of age.
- (c) It is not a violation of paragraph (b) of this subsection for a registrant to use electronic communications to communicate with or gather information about a person under the age of eighteen (18) years of age if:
1. The registrant is the parent of the person; and
 2. The registrant is not prohibited by court order, or the terms of probation, shock probation, conditional discharge, parole, or any other form of early release, from communicating with or gathering information about a person.
- (2) No registrant shall intentionally photograph, film, or video a minor through traditional or electronic means without the written consent of the minor's parent, legal custodian, or guardian unless the registrant is the minor's parent, legal custodian, or guardian. The written consent required under this subsection shall state that the person seeking the consent is required to register as a sex offender under Kentucky law.
- (3) Any person who violates subsection (1) or (2) of this section shall be guilty of a Class A misdemeanor.

Credits

HISTORY: 2018 c 42, § 1, eff. 7-14-18; 2013 c 41, § 1, eff. 6-25-13; 2009 c 100, § 5, eff. 6-25-09

KRS § 17.546, KY ST § 17.546

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.547

17.547 Persons immune from suit for good faith conduct under KRS 17.500 to 17.580 and 17.991

Effective: June 26, 2007

Currentness

The following shall be immune from suit for good faith conduct under KRS 17.500 to 17.580 and 17.991:

- (1) Law enforcement agencies including the cabinet;
- (2) Independent contractors acting under the direction of law enforcement agencies;
- (3) State and county officials;
- (4) Approved providers, as defined in KRS 17.500; and
- (5) Employees of any of the agencies, entities, and persons identified in subsections (1), (2), (3), and (4) of this section.

Credits

HISTORY: 2007 c 85, § 102, eff. 6-26-07; 2006 c 182, § 4, eff. 7-12-06

KRS § 17.547, KY ST § 17.547

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.549

17.549 False statements to law enforcement officials regarding noncompliant registrant; harboring; violation

Effective: July 12, 2006

Currentness

- (1) A person shall be guilty of making a false statement to a law enforcement official when he or she intentionally misleads any law enforcement official regarding a noncompliant registrant.
- (2) A person shall be guilty of harboring when he or she intentionally allows a registrant to reside at his or her residence to avoid registration if the address is not the address the registrant listed as his or her residence address.
- (3) For the purposes of this section, law enforcement officials include the Attorney General, elected sheriffs, deputy sheriffs, city police officers, county police officers, state police officers, probation and parole officers, state and federal prosecutors, and investigators employed by any of these officers.
- (4) A person who violates this section shall be guilty of a Class A misdemeanor for a first offense and a Class D felony for each subsequent offense.

Credits

HISTORY: 2006 c 182, § 14, eff. 7-12-06

KRS § 17.549, KY ST § 17.549

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.550

17.550 Definitions for KRS 17.550 to 17.991

Currentness

As used in KRS 17.550 to 17.991, the following definitions shall apply:

- (1) “The board” means the Sex Offender Risk Assessment Advisory Board created under KRS 17.554;
- (2) “Sex offender” means a person who has been convicted of a sex crime as defined in KRS 17.500;
- (3) “Approved provider” means a mental health professional licensed or certified in Kentucky whose scope of practice includes providing mental health treatment services and who is approved by the Sex Offender Risk Assessment Advisory Board, under administrative regulations promulgated by the board, to provide comprehensive sex offender presentence evaluations or treatment to adults and youthful offenders, as defined in KRS 600.020; and
- (4) “Victim” means victim as defined by KRS 421.500.

Credits

HISTORY: 2000 c 401, § 18, eff. 4-11-00; 1998 c 606, § 140, eff. 7-15-98

KRS § 17.550, KY ST § 17.550

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.552

17.552 Approval requirement for sexual offender risk evaluations or treatment; exemptions

Currentness

No person shall conduct comprehensive sex offender presentence evaluations or treatment without first obtaining approval from the Sex Offender Risk Assessment Advisory Board, except that the Department of Corrections sex offender treatment program shall be regulated under KRS 197.400 to 197.440 and excluded from the application of this statute, and the Department of Juvenile Justice sex offender treatment program shall be regulated under KRS 635.500 and 635.520 and excluded from the application of this statute.

Credits

HISTORY: 2004 c 160, § 10, eff. 7-13-04; 2002 c 11, § 8, eff. 7-15-02; 2000 c 401, § 20, eff. 4-11-00; 1998 c 606, § 141, eff. 1-15-99

KRS § 17.552, KY ST § 17.552

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KRS § 17.554

17.554 Sex Offender Risk Assessment Advisory Board; risk assessment procedure

Currentness

- (1) A Sex Offender Risk Assessment Advisory Board is hereby created. The board shall approve providers who shall conduct comprehensive sex offender presentence evaluations and treatment.
- (2) The board shall develop a comprehensive sex offender presentence evaluation that shall be used by approved providers in assessing the risk of recommitting a sex crime by a sex offender, the threat posed to public safety, amenability to sex offender treatment, and the nature of the required sex offender treatment. The evaluation shall be based upon, but not limited to the following factors:
 - (a) Criminal history;
 - (b) Nature of the offense;
 - (c) Conditions of release that minimize risk;
 - (d) Physical conditions that minimize risk;
 - (e) Psychological or psychiatric profiles;
 - (f) Recent behavior that indicates an increased risk of recommitting a sex crime;
 - (g) Recent threats or gestures against persons or expressions of an intent to commit additional offenses; and
 - (h) Review of the victim impact statement.

Credits

HISTORY: 2000 c 401, § 21, eff. 4-11-00; 1998 c 606, § 142, eff. 7-15-98

KRS § 17.554, KY ST § 17.554

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KRS § 17.556

17.556 Membership of board; chair; terms; committees

Effective: July 12, 2012

Currentness

The board shall consist of the members named in subsections (1) and (2) of this section:

- (1) (a) The commissioner of the Department of Corrections, or the commissioner's designee;
- (b) The commissioner of the Department of Juvenile Justice, or the commissioner's designee;
- (c) The program administrator of the Sex Offender Treatment Program created pursuant to KRS 197.400; and
- (d) The commissioner of the Department for Behavioral Health, Developmental and Intellectual Disabilities, or the commissioner's designee.
- (2) The following members, appointed by the Governor:
 - (a) One (1) probation and parole officer;
 - (b) Four (4) mental health professionals licensed or certified pursuant to KRS Chapter 309, 311, 314, 319, or 335 who demonstrated expertise in working with sex offenders;
 - (c) One (1) professional working in an agency which provides services to adult or child victims of sex offenses; and
 - (d) One (1) representative of an advocacy group with a demonstrated interest in the welfare of victims of sex offenses.
- (3) The Governor shall appoint the first chair of the board who shall serve for a term of two (2) years after which the chair shall be elected by the members of the board.

- (4) The probation and parole officer and the members identified in subsection (2) of this section shall serve for the remainder of the term of office of the Governor during whose incumbency they were appointed, unless removed sooner for cause, but they shall remain on the board until their successors are appointed or until they are reappointed.
- (5) No member appointed pursuant to subsection (4) of this section may be represented by a designee.
- (6) No member appointed pursuant to subsection (4) of this section shall serve more than four (4) years unless reappointed.
- (7) All members identified under subsection (1) of this section shall serve during their terms of office.
- (8) All members of the board shall be reimbursed for their necessary travel and other expenses actually incurred in the discharge of their duties on the board.
- (9) The board shall be empowered to create committees for the purpose of carrying out its statutory duties.
- (10) The board shall be attached to the Department of Corrections for administrative purposes.

Credits

HISTORY: 2012 c 146, § 4, c 158, § 6, eff. 7-12-12; 1998 c 606, § 143, eff. 7-15-98

LRC NOTES

Legislative Research Commission Note (7-12-12): This statute was amended by 2012 Ky. Acts chs. 146 and 158, which do not appear to be in conflict and have been codified together.

KRS § 17.556, KY ST § 17.556

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.558

17.558 Issuance of approvals

Currentness

- (1) The board may issue, refuse to issue, reissue, or renew a provider approval, or may probate, suspend, or revoke the approval of a provider.
- (2) The board shall revoke the approval of a provider while his or her approval is suspended.

Credits

HISTORY: 2000 c 401, § 22, eff. 4-11-00; 1998 c 606, § 144, eff. 7-15-98

KRS § 17.558, KY ST § 17.558

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.560

17.560 Hearing; order; appeal

Currentness

- (1) Prior to the refusal to issue, renew, probate, suspend, or revoke the approval of a provider, the board shall conduct a hearing in accordance with the provisions of this chapter and KRS Chapter 13B.
- (a) The hearing may be conducted by a hearing officer;
- (b) The hearing officer may only issue a recommended order, and the recommended order shall be subject to review by a majority of the full board, which shall issue a final order.
- (2) The board may proceed against an approved provider on its own initiative, on the basis of either information contained in its own records, or information obtained through its informal investigation.
- (3) If a formal complaint verified by affidavit is filed with the board by a responsible citizen or organization containing allegations that if true would warrant action, the board may proceed against the approved provider.
- (4) Any final order of the board may be appealed to the Franklin Circuit Court in accordance with KRS Chapter 13B.

Credits

HISTORY: 2000 c 401, § 23, eff. 4-11-00; 1998 c 606, § 145, eff. 7-15-98

KRS § 17.560, KY ST § 17.560

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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KRS § 17.562

17.562 Quorum; votes for action of board

Currentness

A quorum of the board shall consist of at least six (6) members. The concurring votes of five (5) members shall be considered as the action of the board, except in the case of revoking a certificate, in which case the concurring votes of at least seven (7) members shall be required.

Credits

HISTORY: 1998 c 606, § 146, eff. 7-15-98

KRS § 17.562, KY ST § 17.562

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KRS § 17.564

17.564 Authority for administrative regulations

Effective: July 12, 2006

Currentness

- (1) The board may promulgate all reasonable administrative regulations not inconsistent with this chapter that are necessary to carry into effect the purposes of KRS 17.500 to 17.580 and 17.991.
- (2) The board may promulgate administrative regulations requiring mandatory continuing education for approved providers as a condition for obtaining their renewal approvals.

Credits

HISTORY: 2006 c 182, § 9, eff. 7-12-06; 2000 c 401, § 24, eff. 4-11-00; 1998 c 606, § 147, eff. 7-15-98

KRS § 17.564, KY ST § 17.564

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KRS § 17.566

17.566 Use of “approved provider” designation restricted

Effective: July 12, 2006

Currentness

Only persons approved under KRS 17.500 to 17.580 and 17.991 may be known as approved providers in the Commonwealth of Kentucky, or use any words or letters or assume any titles or description tending to convey the impression that they are approved providers.

Credits

HISTORY: 2006 c 182, § 10, eff. 7-12-06; 2000 c 401, § 25, eff. 4-11-00; 1998 c 606, § 148, eff. 7-15-98

KRS § 17.566, KY ST § 17.566

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.568

17.568 Injunctive relief

Effective: July 12, 2006

Currentness

Whenever in the judgment of the board any person has engaged or is about to engage in any acts or practices that constitute or will constitute a violation of KRS 17.500 to 17.580 and 17.991, the board may apply to the Franklin Circuit Court for an order enjoining these acts or practices.

(1) Upon a showing by the board that a person has engaged or is about to engage in any of these acts or practices, an injunction, restraining order, or other order as may be appropriate shall be granted by the court.

(2) Any order of the Franklin Circuit Court shall be enforceable and shall be valid anywhere in this state, and the order of the court shall be reviewable as provided in the Rules of Civil Procedure in the case of other injunctions and restraining orders.

Credits

HISTORY: 2006 c 182, § 11, eff. 7-12-06; 1998 c 606, § 149, eff. 7-15-98

KRS § 17.568, KY ST § 17.568

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.574

17.574 Forwarding of relevant information by certain facilities
to approved provider for review prior to release; confidentiality

Effective: July 12, 2006

Currentness

(1) Any statutes to the contrary notwithstanding, all state or local detention or correctional facilities, hospitals, or institutions shall forward all relevant information pertaining to a sexual offender to be discharged, paroled, or released to the approved provider for review prior to the release or discharge for consideration in making recommendations to the sentencing court. The relevant information shall include but is not limited to:

(a) The institutional record;

(b) The medical record including all psychological records; and

(c) The treatment record.

(2) All confidential records provided pursuant to this section shall remain confidential, unless otherwise ordered by a court or by another person duly authorized to release the information.

Credits

HISTORY: 2006 c 182, § 12, eff. 7-12-06; 2000 c 401, § 26, eff. 4-11-00; 1998 c 606, § 152, eff. 1-15-99

KRS § 17.574, KY ST § 17.574

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.576

17.576 Privileged communications; written waiver

Currentness

Communications made in the course of comprehensive sex offender presentence evaluations or treatment to the approved provider and any employee of the approved provider who is assigned to assist in the assessments shall be privileged from disclosure in any civil or criminal proceeding, other than to determine sentence, unless the offender consents in writing to the disclosure or the communication is related to an ongoing criminal investigation. The sexual offender shall be informed in writing of the limits of the privilege created in this section.

Credits

HISTORY: 2000 c 401, § 27, eff. 4-11-00; 1998 c 606, § 153, eff. 1-15-99

KRS § 17.576, KY ST § 17.576

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.578

17.578 Termination of duty to register

Currentness

A person required to register under the provisions of KRS 17.510 and 17.520 shall be relieved of any further duty to register only upon reversal of the underlying conviction or upon a pardon.

Credits

HISTORY: 2000 c 401, § 28, eff. 4-11-00; 1998 c 606, § 154, eff. 1-15-99

KRS § 17.578, KY ST § 17.578

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

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Baldwin's Kentucky Revised Statutes Annotated
Title III. Executive Branch
Chapter 17. Public Safety (Refs & Annos)
Sex Offender Registration

KRS § 17.580

17.580 Duty of Department of Kentucky State Police to maintain and update Web site containing information about adults who have committed sex crimes or crimes against minors; immunity from liability for good faith dissemination of information; Justice and Public Safety Cabinet to establish toll-free telephone number; permission for local law enforcement agency to notify of registrants in jurisdiction

Effective: July 14, 2018
Currentness

- (1) The Department of Kentucky State Police shall establish a Web site available to the public. The Web site shall display:
- (a) The registrant information, except for information that identifies a victim, DNA samples, fingerprints, palm prints, Social Security numbers, motor vehicle operator's license numbers, and government-issued identification card numbers obtained by the Information Services Center, Department of Kentucky State Police, under KRS 17.510;
 - (b) The sex offender information, except for information that identifies a victim, DNA samples, Social Security numbers, and vehicle registration data, obtained by the Information Services Center, Department of Kentucky State Police, under KRS 17.510 prior to April 11, 2000; and
 - (c) The registrant's conviction, the elements of the offense for which the registrant was convicted, whether the registrant is currently on probation or parole, and whether the registrant is compliant or noncompliant.
- The Web site shall be updated every day except for Saturdays, Sundays, and state holidays.
- (2) The information pertaining to an individual shall be maintained on the Web site so long as that individual is registered in accordance with KRS 17.500 to 17.580.
- (3) The following language shall be prominently displayed on the Web site: “UNDER KRS 525.070 AND 525.080, USE OF INFORMATION OBTAINED FROM THIS WEB SITE TO HARASS A PERSON IDENTIFIED ON THIS WEB SITE IS A CRIMINAL OFFENSE PUNISHABLE BY UP TO NINETY (90) DAYS IN THE COUNTY JAIL. MORE SEVERE CRIMINAL PENALTIES APPLY FOR MORE SEVERE CRIMES COMMITTED AGAINST A PERSON IDENTIFIED ON THIS WEB SITE.”
- (4) (a) Any Department of Kentucky State Police employee who disseminates, or does not disseminate, registrant information or sex offender information in good-faith compliance with the requirements of this section shall be immune from criminal and civil liability for the dissemination or lack thereof.

- (b) Any person, including an employee of a sheriff's office, acting in good faith in disseminating, or not disseminating, information previously disseminated by the Department of Kentucky State Police shall be immune from criminal and civil liability for the dissemination or lack thereof.
- (5) The cabinet shall establish a toll-free telephone number for a person to call to learn the identity of the Web site created in this section and the location of public access to the Web site in the county where the person resides.
- (6) In addition to the Web site, a local law enforcement agency may provide personal notification regarding the registrants located in its jurisdiction. Any notification shall contain the warning specified in subsection (3) of this section.

Credits

HISTORY: 2018 c 121, § 4, c 42, § 4, eff. 7-14-18; 2009 c 100, § 7, eff. 6-25-09; 2009 c 105, § 6, eff. 3-27-09; 2008 c 158, § 14, eff. 7-1-08; 2007 c 85, § 103, eff. 6-26-07; 2006 c 182, § 13, eff. 7-12-06; 2000 c 401, § 19, eff. 4-11-00

LRC NOTES

Legislative Research Commission Note (7-14-18): This statute was amended by 2018 Ky. Acts chs. 42 and 121, which do not appear to be in conflict and have been codified together.

Legislative Research Commission Note (6-25-09): A reference in subsection (7) of this statute to “subsection (3) of this section” has been changed in codification to “subsection (4) of this section” by the Reviser of Statutes under the authority of KRS 7.136(1) to reflect the addition of a new subsection and renumbering of succeeding subsections in 2009 Ky. Acts ch. 100, sec. 7.

KRS § 17.580, KY ST § 17.580

Current through the 2025 Regular Legislative Session and the Nov. 5, 2024 election. Some sections may be more current, see credits for details.

West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators

LSA-R.S. T. 15, Ch. 3-B, Refs & Annos

Currentness

LSA-R.S. T. 15, Ch. 3-B, Refs & Annos, LA R.S. T. 15, Ch. 3-B, Refs & Annos

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:540

§ 540. Findings; purpose

Currentness

A. The legislature finds that sex offenders, sexually violent predators, and child predators often pose a high risk of engaging in sex offenses, and crimes against victims who are minors even after being released from incarceration or commitment and that protection of the public from sex offenders, sexually violent predators, and child predators is of paramount governmental interest. The legislature further finds that local law enforcement officers' efforts to protect their communities, conduct investigations, and quickly apprehend offenders who commit sex offenses and crimes against victims who are minors, are impaired by the lack of information available to law enforcement agencies about convicted sex offenders, sexually violent predators, and child predators who live within the agency's jurisdiction, and the penal and mental health components of our justice system are largely hidden from public view and that lack of information from either may result in failure of both systems to meet this paramount concern of public safety. Restrictive confidentiality and liability laws governing the release of information about sex offenders, sexually violent predators, and child predators have reduced willingness to release information that could be appropriately released under the public disclosure laws, and have increased risks to public safety. Persons found to have committed a sex offense or a crime against a victim who is a minor have a reduced expectation of privacy because of the public's interest in public safety and in the effective operation of government. Release of information about sex offenders, sexually violent predators, and child predators to public agencies, and under limited circumstances to the general public, will further the governmental interests of public safety and public scrutiny of the criminal and mental health systems so long as the information released is rationally related to the furtherance of those goals.

B. Therefore, this state's policy is to assist local law enforcement agencies' efforts to protect their communities by requiring sex offenders, sexually violent predators, and child predators to register with state and local law enforcement agencies and to require the exchange of relevant information about sex offenders, sexually violent predators, and child predators among state, local, and federal public agencies and officials and to authorize the release of necessary and relevant information about sex offenders, sexually violent predators, and child predators to members of the general public as provided in this Chapter.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1997, No. 1147, § 1, eff. July 14, 1997.

LSA-R.S. 15:540, LA R.S. 15:540

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:541

§ 541. Definitions

Effective: August 1, 2025

Currentness

For the purposes of this Chapter, the definitions of terms in this Section shall apply:

(1) “Administration of criminal justice” means performance of any of the following activities: detection, apprehension, detention, pretrial release, post-trial release, prosecution, adjudication, correctional supervision, or rehabilitation of accused persons or criminal offenders. The term also includes criminal identification activities, the collection, storage, and dissemination of criminal history record information, and the compensation of victims of crime.

(2) “Aggravated offense” means a conviction for the perpetration or attempted perpetration of, or conspiracy to commit, any of the following:

(a)(i) Aggravated rape (R.S. 14:42), which occurred prior to August 1, 2015, and which shall include convictions for the perpetration or attempted perpetration of, or conspiracy to commit, aggravated oral sexual battery (formerly R.S. 14:43.4, Repealed by Acts 2001, No. 301, § 2) occurring prior to August 15, 2001.

(ii) First degree rape (R.S. 14:42) which occurred on or after August 1, 2015.

(b)(i) Forcible rape (R.S. 14:42.1) which occurred prior to August 1, 2015.

(ii) Second degree rape (R.S. 14:42.1) which occurred on or after August 1, 2015.

(c)(i) Simple rape under the provisions of R.S. 14:43 which occurred prior to August 1, 2015.

(ii) Third degree rape under the provisions of R.S. 14:43 which occurred on or after August 1, 2015.

(d) Sexual battery prosecuted under the provisions of R.S. 14:43.1(C)(2).

(e) Second degree sexual battery (R.S. 14:43.2).

- (f) Aggravated kidnapping (R.S. 14:44) of a child who has not attained the age of eighteen years.
- (g) Second degree kidnapping (R.S. 14:44.1) of a child who has not attained the age of eighteen years.
- (h) Aggravated kidnapping of child (R.S. 14:44.2).
- (i) Simple kidnapping (R.S. 14:45) of a child who has not attained the age of eighteen years.
- (j) Aggravated crime against nature as defined by R.S. 14:89.1(A)(2) involving sexual intercourse, second degree sexual battery, oral sexual battery, or when prosecuted under the provisions of R.S. 14:89.1(C)(2).
- (k) Crime against nature when prosecuted under the provisions of R.S. 14:89(B)(2) or (3).
- (l) Molestation of a juvenile or a person with a physical or mental disability prosecuted under the provisions of R.S. 14:81.2(C)(1), (D)(1), or (D)(2).
- (m) Aggravated crime against nature (R.S. 14:89.1(A)(1)).
- (n) Sexual battery of persons with infirmities (R.S. 14:93.5).
- (o) Trafficking of children for sexual purposes (R.S. 14:46.3).
- (p) Human trafficking (R.S. 14:46.2) when the trafficking involves a person under the age of twenty-one years or when the services include commercial sexual activity or any sexual conduct constituting a crime under the laws of this state.
- (q) Purchase of commercial sexual activity with a person under the age of eighteen years or with a victim of human trafficking (R.S. 14:82.2(C)(4) and (5)).
- (r) Any offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to the offenses listed in Subparagraphs (a) through (q) of this Paragraph.
- (3) “Bureau” means the Louisiana Bureau of Criminal Identification and Information as established in Chapter 6 of this Title.
- (4) “Chat room” means any internet web site through which users have the ability to communicate via text and which allows messages to be visible to all other users or to a designated segment of all other users.
- (5) “Child predator” means a person who has been convicted of a criminal offense against a victim who is a minor, as defined in Paragraph (12).

(6) “Child sexual predator” means a person defined as such in accordance with the provisions of R.S. 15:560.1.

(7) “Conviction” means any disposition of charges adverse to the defendant, including a plea of guilty, deferred adjudication, or adjudication withheld for the perpetration or attempted perpetration of or conspiracy to commit a “sex offense” or “criminal offense against a victim who is a minor” as those terms are defined by this Section. “Conviction” shall not include a decision not to prosecute, a dismissal, or an acquittal, except when the acquittal is due to a finding of not guilty by reason of insanity and the person was committed. A dismissal entered after a period of probation, suspension, or deferral of sentence shall be included in the definition of “conviction” for purposes of this Chapter.

(8) “Conviction record” means criminal history record information relating to an incident which has led to a conviction or other disposition adverse to the subject.

(9) “Court determination” means a determination that a person is a sexually violent predator or a determination that a person is no longer a sexually violent predator that shall be made by the sentencing court after receiving a report by the commission.

(10) “Criminal history record information” means information contained in records collected by criminal justice agencies, other than courts, on individuals, consisting of identifiable descriptions and notations of arrests, detention, indictments, information, or other formal criminal charges, and any disposition arising therefrom, including sentences, correctional supervision, and release. The term includes information contained in records maintained by or obtained from criminal justice agencies, other than courts, which records provide individual identification of a person together with any portion of the individual's record of involvement in the criminal justice system as an alleged or convicted offender, except:

(a) Posters, announcements, or lists for identifying or apprehending fugitives or wanted persons.

(b) Original records of entry maintained by criminal justice agencies to the extent that such records are compiled and maintained chronologically and are accessible only on a chronological basis.

(c) Court indices and records of public judicial proceedings, court decisions, and opinions, and information disclosed during judicial proceedings.

(d) Records of traffic violations which are not punishable by a maximum term of imprisonment of more than ninety days.

(e) Records of any traffic offenses as maintained by the office of motor vehicles for the purpose of regulating the issuance, suspension, revocation, or renewal of drivers' or other operators' licenses.

(f) Records of any aviation violation or offenses as maintained by the Department of Transportation and Development for the purpose of regulating pilots or other aviation operators.

(g) Announcements of pardons.

(11) “Criminal justice agency” means:

(a) A court.

(b) A government agency which performs the administration of criminal justice pursuant to a statute or executive order and which allocates a substantial part of its annual budget to the administration of criminal justice.

(12) “Criminal offense against a victim who is a minor” for the purposes of this Chapter means conviction for the perpetration or attempted perpetration of or conspiracy to commit any of the following offenses:

(a) A violation of R.S. 14:44, 44.1, 44.2, 45, 45.1, 46, or 46.1 when the victim is under eighteen years of age and the defendant is not the parent of the victim.

(b)(i) A violation of any of the following provisions when the victim is under eighteen years of age: R.S. 14:84(1), (3), (5), or (6), or 86, or R.S. 23:251(A)(4).

(ii) A violation of R.S. 14:46.2 when the victim is under twenty-one years of age.

(c) A violation of R.S. 14:83, 83.1, 83.2, or 282 when the prostitution involves persons under the age of eighteen years.

(d) A felony violation of R.S. 14:40.2, punishable by imprisonment at hard labor, when the victim is under the age of eighteen, unless either of the following are applicable:

(i) The defendant is the parent of the victim.

(ii) The defendant is not more than four years older than the victim and is convicted under Subparagraph R.S. 14:40.2(B)(1)(b).

(e) Any conviction for an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to the offenses listed in Subparagraphs (a) through (d) of this Paragraph.

(13) “Disposition” means the formal conclusion of a criminal proceeding at whatever stage it occurs in the criminal justice system.

(14) “Dissemination” means disclosing criminal history record information or disclosing the absence of criminal history record information to any person or agency outside the agency possessing the information, subject to the following exceptions:

(a) When criminal justice agencies jointly participate in the maintenance of a single recordkeeping department as an alternative to maintaining separate records, the furnishing of information by that department to personnel of any participating agency.

(b) The furnishing of information by any criminal justice agency to another for the purpose of processing a matter through the criminal justice system, such as a police department providing information to a prosecutor for use in preparing a charge.

(c) The reporting of an event to a recordkeeping agency for the purpose of maintaining the record.

(15) “Instant message address” means an identifier that allows a person to communicate with another person using the internet.

(16) “Institution of postsecondary education” means any public or private institution of postsecondary education in the state licensed by the Board of Regents under the provisions of R.S. 17:1808 or each proprietary school licensed by the Board of Regents under the provisions of R.S. 17:3141.4.

(17) “Interactive computer service” means any information service, system, or access software provider that offers users the capability for generating, acquiring, storing, transforming, processing, retrieving, utilizing, or making available information, including a service or system that provides or enables computer access by multiple users to a computer server, including specifically a service or system that provides access to the internet and such systems operated or services offered by libraries or educational institutions.

(18) “Mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of others. Nothing in this definition is intended to supersede or apply to the definitions found in R.S. 14:10 or 14 in reference to criminal intent or insanity.

(19) “Nonconviction data” consists of all criminal history record information relating to an incident which has not led to a conviction or other disposition adverse to the subject, and for which proceedings are no longer actively pending. There shall be a rebuttable presumption that proceedings are no longer actively pending if more than one year has elapsed since arrest, citation, or service of warrant and no disposition has been entered.

(20) “Online identifier” means any electronic e-mail address, instant message name, chat name, social networking name, or other similar internet communication name.

(20.1) “Out-of-state offender” means any offender convicted or adjudicated in any court system, other than a court in this state, of any offense having elements equivalent to a “sex offense” or a “criminal offense against a victim who is a minor”, as defined in this Section.

(20.2) “Out-of-state offense” means any offense, as defined by the laws of any jurisdiction other than the state of Louisiana, the elements of which are comparable to a Louisiana “sex offense” or “criminal offense against a victim who is a minor”, as defined in this Section.

(21) “Predatory” means an act directed at a stranger or a person with whom a relationship has been established or promoted for the primary purpose of victimization.

(22) “Residence” means a dwelling where an offender regularly resides, regardless of the number of days or nights spent there. For those offenders who lack a fixed abode or dwelling, “residence” shall include the area or place where the offender habitually lives, including but not limited to a rural area with no address or a shelter.

(23) “School” includes any public or nonpublic school which the person attends, including but not limited to institutions of postsecondary education.

(24)(a) “Sex offense” means deferred adjudication, adjudication withheld, or conviction for the perpetration or attempted perpetration of or conspiracy to commit human trafficking when prosecuted under the provisions of R.S. 14:46.2(B)(2), R.S. 14:46.3 (trafficking of children for sexual purposes), R.S. 14:89 (crime against nature), R.S. 14:89.1 (aggravated crime against nature), R.S. 14:89.2(B)(3) (crime against nature by solicitation), R.S. 14:80 (felony carnal knowledge of a juvenile), R.S. 14:81 (indecent behavior with juveniles), R.S. 14:81.1 (pornography involving juveniles) which occurred prior to August 1, 2025, R.S. 14:81.2 (molestation of a juvenile or a person with a physical or mental disability), R.S. 14:81.3 (computer-aided solicitation of a minor), R.S. 14:81.4 (prohibited sexual conduct between an educator and student), R.S. 14:82.1 (prostitution; persons under eighteen), R.S. 14:82.2(C)(4) or (5) (purchase of commercial sexual activity), R.S. 14:83(B)(2) or (3) (soliciting for prostitutes), R.S. 14:92(A)(7) (contributing to the delinquency of juveniles), R.S. 14:93.5 (sexual battery of persons with infirmities), R.S. 14:106(A)(5) (obscenity by solicitation of a person under the age of seventeen), R.S. 14:283 (video voyeurism), R.S. 14:41 (rape), R.S. 14:42 (aggravated or first degree rape), R.S. 14:42.1 (forcible or second degree rape), R.S. 14:43 (simple or third degree rape), R.S. 14:43.1 (sexual battery), R.S. 14:43.2 (second degree sexual battery), R.S. 14:43.3 (oral sexual battery), R.S. 14:43.5 (intentional exposure to HIV), a second or subsequent conviction of R.S. 14:283.1 (voyeurism), or a second or subsequent conviction of R.S. 14:89.3 (sexual abuse of an animal), committed on or after June 18, 1992, or committed prior to June 18, 1992, if the person, as a result of the offense, is under the custody of the Department of Public Safety and Corrections on or after June 18, 1992. A conviction for any offense provided in this definition includes a conviction for the offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to an offense provided for in this Chapter, unless the tribal court or foreign conviction was not obtained with sufficient safeguards for fundamental fairness and due process for the accused as provided by the federal guidelines adopted pursuant to the Adam Walsh Child Protection and Safety Act of 2006.¹

(b) For purposes of this Chapter, “sex offense” shall include deferred adjudication, adjudication withheld, or conviction for the perpetration or attempted perpetration of or conspiracy to commit aggravated oral sexual battery (formerly R.S. 14:43.4, repealed by Acts 2001, No. 301, § 2) occurring prior to August 15, 2001.

(c) For purposes of this Chapter, “sex offense” shall include deferred adjudication, adjudication withheld, or conviction for the perpetration or attempted perpetration of or conspiracy to commit child sexual abuse materials (R.S. 14:81.1) occurring on or after August 1, 2025.

(25) “Sexual offense against a victim who is a minor” means a conviction for the perpetration or attempted perpetration of, or conspiracy to commit, any of the following:

(a) Sexual battery (R.S. 14:43.1) when the victim is under the age of eighteen, except when prosecuted under the provisions of R.S. 14:43.1(C)(2).

- (b) Oral sexual battery (R.S. 14:43.3).
- (c) Aggravated crime against nature as defined by R.S. 14:89.1(A)(2) under the circumstances not listed as those which constitute an “aggravated offense” as defined in this Section.
- (d)(i) Pornography involving juveniles (R.S. 14:81.1), which occurred prior to August 1, 2025.
- (ii) Child sexual abuse materials (R.S. 14:81.1), which occurred on or after August 1, 2025.
- (e) Molestation of a juvenile or a person with a physical or mental disability (R.S. 14:81.2), except when prosecuted under the provisions of R.S. 14:81.2(C)(1), (D)(1), or (2).
- (f) Computer-aided solicitation of a minor (R.S. 14:81.3).
- (g) Prostitution; persons under eighteen (R.S. 14:82.1).
- (h) Enticing minors into prostitution (R.S. 14:86).
- (i) Pandering in violation of R.S. 14:84(1), (3), (5), and (6).
- (j) Soliciting for prostitutes when the persons being solicited for prostitution are under the age of eighteen years (R.S. 14:83).
- (k) Inciting prostitution when the prostitution involves persons under the age of eighteen years (R.S. 14:83.1).
- (l) Promoting prostitution when the prostitution being promoted involves persons under the age of eighteen years (R.S. 14:83.2).
- (m) Operation of places of prostitution when the prostitution involves persons under the age of eighteen years (R.S. 14:282).
- (n) Crime against nature prosecuted under the provisions of R.S. 14:89 other than R.S. 14:89(B)(2) or (3) and the victim of the offense has not attained the age of eighteen.
- (o) Any conviction for an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to the offenses listed in Subparagraphs (a) through (n) of this Paragraph.
- (26) “Sexual predator commission”, the commission, means an advisory panel containing not less than two nor more than three physicians who are licensed to practice medicine in Louisiana, who have been in the actual practice of medicine for not less than three consecutive years immediately preceding the appointment, and who are qualified by training or experience in forensic evaluations of sex offenders. The court may appoint, in lieu of one physician, a psychologist who is licensed to practice

psychology in Louisiana, who has been engaged in the practice of clinical or counseling psychology for not less than three consecutive years immediately preceding the appointment, and who is qualified by training or experience in forensic evaluations of sex offenders. A list of qualified physicians and psychologists shall be provided to the court by the Louisiana Department of Health.

(27) “Sexually violent predator” means a person who has been convicted of a sex offense as defined in Paragraph (24) of this Section and who has a mental abnormality or anti-social personality disorder that makes the person likely to engage in predatory sexually violent offenses as determined by the sentencing court upon receipt and review of relevant information including the recommendation of the sexual predator commission as defined in Paragraph (26) of this Section.

(28) “Social networking web site” means an internet web site that:

- (a) Allows users to create web pages or profiles about themselves that are available publicly or available to other users; or
- (b) Offers a mechanism for communication among users, such as a forum, chat room, electronic e-mail, or instant messaging.

(29) “Student at an institution of postsecondary education” means a person who is enrolled in and attends, on a full-time or part-time basis, any course of academic or vocational instruction conducted at an institution of postsecondary education.

(30)(a) “Worker” or “employee” means a person who engages in or who knows or reasonably should know that he will engage in any type of occupation, employment, work, or volunteer service on a full-time or part-time basis, with or without compensation, within this state for more than seven consecutive days, or an aggregate of thirty days or more in a calendar year.

(b) The term includes but is not limited to:

- (i) A person who is self-employed.
- (ii) An employee or independent contractor.
- (iii) A paid or unpaid intern, extern, aide, assistant, or volunteer.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1997, No. 1147, § 1, eff. July 14, 1997; Acts 1999, No. 594, § 1; Acts 2001, No. 1206, § 1; Acts 2003, No. 215, § 1; Acts 2003, No. 574, § 1; Acts 2003, No. 690, § 2; Acts 2004, No. 147, § 1; Acts 2004, No. 888, § 2; Acts 2006, No. 186, § 2, eff. June 2, 2006; Acts 2006, No. 204, § 1; Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 273, § 1; Acts 2008, No. 462, § 1, eff. June 25, 2008; Acts 2008, No. 672, § 2; Acts 2008, No. 816, § 1; Acts 2010, No. 387, § 2; Acts 2010, No. 400, § 1; Acts 2011, No. 223, § 2; Acts 2012, No. 50, § 1; Acts 2012, No. 446, § 2; Acts 2012, No. 536, § 1, eff. June 5, 2012; Acts 2014, No. 522, § 1; Acts 2014, No. 564, § 2; Acts 2014, No. 602, § 5, eff. June 12, 2014; Acts 2014, No. 811, § 7, eff. June 23, 2014; Acts 2015, No. 184, § 2; Acts 2015, No. 256, § 2; Acts 2016, No. 269, § 2; Acts 2016, No. 560, § 1; Acts 2017, No. 307, § 1; Acts 2018, No. 485, § 2, eff. May 25, 2018; Acts 2025, No. 230, § 2; Acts 2025, No. 261, § 2.

Footnotes

1 34 U.S.C.A. § 20901 et seq.

LSA-R.S. 15:541, LA R.S. 15:541

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:541.1

§ 541.1. Posting of the National Human Trafficking Resource Center hotline; content; languages; notice; civil penalty

Effective: August 1, 2019

Currentness

A. All of the following establishments shall be required to post information regarding the National Human Trafficking Resource Center hotline:

(1) Every massage parlor, spa, or hotel that has been found to be a public nuisance for prostitution as set forth in R.S. 13:4711.

(2) Every strip club or other sexually-oriented business as set forth in R.S. 37:3558(C).

(3)(a) Every full-service fuel facility adjacent to an interstate highway.

(b) Every highway rest stop.

(4) Every outpatient abortion facility as defined by R.S. 40:2175.3.

(5)(a) Every hotel as defined in this Paragraph. Each hotel shall post the information in the same location where other employee notices required by state or federal law are posted.

(b) For purposes of this Paragraph, "hotel" shall mean and include any establishment, both public and private, engaged in the business of furnishing or providing rooms and overnight camping facilities intended or designed for dwelling, lodging, or sleeping purposes to transient guests and does not encompass any hospital, convalescent or nursing home or sanitarium, or any hotel-like facility operated by or in connection with a hospital or medical clinic providing rooms exclusively for patients and their families.

(c) For purposes of this Paragraph, "hotel" shall not include bed and breakfasts or camp and retreat facilities owned and operated by nonprofit organizations exempt from federal income tax under Section 501(a) of the Internal Revenue Code as an organization described in Section 501(c)(3) of the Internal Revenue Code provided that the net revenue derived from the organization's property is devoted wholly to the nonprofit organization's purposes.

(d) For purposes of this Paragraph, "bed and breakfast" shall mean a lodging facility having no more than ten guest rooms where transient guests are fed and lodged for pay.

(6) Every airport as defined in R.S. 2:1 and by the Federal Aviation Administration, including private-use airports. Each airport shall post the information in the same location where other employee notices required by state or federal law are posted.

(7) Every bus terminal or station or railroad passenger station, including terminals or stations that are privately owned or owned by the state or a local governing authority. Each bus station or terminal or railroad passenger station shall post the information in the same location where other employee notices required by state or federal law are posted.

B. (1)(a) Such posting shall be no smaller than eight and one-half inches by eleven inches and shall contain the following wording in bold typed print of not less than fourteen-point font:

“If you or someone you know is being forced to engage in any activity and cannot leave, whether it is commercial sex, housework, farm work, or any other activity, call the National Human Trafficking Resource Center hotline at 1-888-373-7888 or text “Help” to 233733 (Be Free) in order to access help and services.

(b) Such posting shall also comply with any other requirements established by regulations promulgated by the commissioner of the office of alcohol and tobacco control in accordance with the Administrative Procedure Act.

(2) The language in the posting shall be printed in English, Louisiana French, Spanish, and any other languages that the commissioner of alcohol and tobacco control shall require.

C. The following departments of the state shall provide each establishment described in Subsection A of this Section over which that department exercises any regulatory control or authority with the notice required by this Section. The departments shall post on their websites a sample of the posting described in Subsection B of this Section which shall be accessible for download. The departments are as follows:

(1) Department of Revenue and the office of alcohol and tobacco control.

(2) Department of Transportation and Development.

(3) The Louisiana Department of Health.

D. (1) In addition to the posting required in Subsection B of this Section, beginning on January 1, 2020, each establishment listed in Subsection A of this Section shall affix a flyer to the inside of the door to each bathroom stall at the establishment.

(2) The flyer shall be designed by the Greater New Orleans Human Trafficking Task Force, with the approval of the commissioner of the office of alcohol and tobacco control, and shall be no larger than eight and one-half inches by eleven inches.

(3) No later than December 1, 2019, the Greater New Orleans Human Trafficking Task Force shall transfer the flyer in an electronic format to the commissioner for posting on the website for the office of alcohol and tobacco.

E. A civil penalty in accordance with R.S. 26:96(A) may be assessed for each violation of this Section. The departments listed in Subsection C of this Section or any law enforcement agency with jurisdiction are charged with the enforcement of this Section.

Credits

Added by Acts 2012, No. 154, § 1. Amended by Acts 2013, No. 430, § 1; Acts 2014, No. 565, § 1; Acts 2016, No. 298, § 1; Acts 2018, No. 361, § 1, eff. May 20, 2018; Acts 2019, No. 280, § 2.

LSA-R.S. 15:541.1, LA R.S. 15:541.1

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:542

§ 542. Registration of sex offenders and child predators

Effective: August 1, 2016

Currentness

A. The following persons shall be required to register and provide notification as a sex offender or child predator in accordance with the provisions of this Chapter:

(1) Any adult residing in this state who has pled guilty to, has been convicted of, or where adjudication has been deferred or withheld for the perpetration or attempted perpetration of, or any conspiracy to commit either of the following:

(a) A sex offense as defined in R.S. 15:541, with the exception of those convicted of felony carnal knowledge of a juvenile as provided in Subsection F of this Section.

(b) A criminal offense against a victim who is a minor as defined in R.S. 15:541.

(2) Any juvenile who has pled guilty or has been convicted of a sex offense or second degree kidnapping as provided for in Children's Code Article 305 or 857, with the exception of simple or third degree rape but including any conviction for an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to the offenses listed herein for which a juvenile would have to register.

(3) Any juvenile, who has attained the age of fourteen years at the time of commission of the offense, who has been adjudicated delinquent based upon the perpetration, attempted perpetration, or conspiracy to commit any of the following offenses:

(a) Aggravated or first degree rape (R.S. 14:42), which shall include those that have been adjudicated delinquent based upon the perpetration, attempted perpetration, or conspiracy to commit aggravated oral sexual battery (formerly R.S. 14:43.4, Repealed by Acts 2001, No. 301, § 2) occurring prior to August 15, 2001.

(b) Forcible or second degree rape (R.S. 14:42.1).

(c) Second degree sexual battery (R.S. 14:43.2).

(d) Aggravated kidnapping of a child who has not attained the age of thirteen years (R.S. 14:44).

- (e) Second degree kidnapping of a child who has not attained the age of thirteen years (R.S. 14:44.1).
- (f) Aggravated crime against nature as defined by R.S. 14:89.1(A)(2) involving circumstances defined by R.S. 15:541 as an “aggravated offense”.
- (g) Aggravated crime against nature (R.S. 14:89.1(A)(1)).
- (h) An offense under the laws of another state, or military, territorial, foreign, tribal, or federal law which is equivalent to the offenses listed in Subparagraphs (a) through (g) of this Paragraph.

B. (1) The persons listed in Subsection A of this Section shall register in person with the sheriff of the parish of the person's residence, or residences, if there is more than one, and with the chief of police if the address of any of the person's residences is located in an incorporated area which has a police department. If the offender resides in a municipality with a population in excess of three hundred thousand persons, he shall register in person with the police department of his municipality of residence.

(2) The offender shall also register in person with the sheriff of the parish or parishes where the offender is an employee and with the sheriff of the parish or parishes where the offender attends school. If the offender is employed or attends school in a municipality with a population in excess of three hundred thousand persons, then he shall register only, pursuant to this Paragraph, with the police department of the municipality where he is employed or attends school. The offender shall also register in the parish of conviction for the initial registration only. No registration in the parish of conviction is necessary if the offender is incarcerated at the time of conviction or immediately taken into custody by law enforcement after the conviction.

(3) If the sex offender is a student at an institution of postsecondary education in this state, the sex offender shall also register with the campus law enforcement agency of the institution at least one business day prior to the beginning of the school term or semester.

C. (1) The offender shall register and provide all of the following information to the appropriate law enforcement agencies listed in Subsection B of this Section in accordance with the time periods provided for in this Subsection:

- (a) Name and any aliases used by the offender.
- (b) Physical address or addresses of residence.
- (c) Name and physical address of place of employment. If the offender does not have a fixed place of employment, the offender shall provide information with as much specificity as possible regarding the places where he works, including but not limited to travel routes used by the offender.
- (d) Name and physical address of the school in which he is a student.

(e) Two forms of proof of residence for each residential address provided, including but not limited to a driver's license, bill for utility service, and bill for telephone service. If those forms of proof of residence are not available, the offender may provide an affidavit of an adult resident living at the same address. The affidavit shall certify that the affiant understands his obligation to provide written notice pursuant to R.S. 15:542.1.4 to the appropriate law enforcement agency with whom the offender last registered when the offender no longer resides at the residence provided in the affidavit.

(f) The crime for which he was convicted and the date and place of such conviction, and if known by the offender, the court in which the conviction was obtained, the docket number of the case, the specific statute under which he was convicted, and the sentence imposed.

(g) A current photograph.

(h) Fingerprints, palm prints, and a DNA sample.

(i) Telephone numbers, including fixed location phone and mobile phone numbers assigned to the offender or associated with any residence address of the offender.

(j) A description of every motorized vehicle registered to or operated by the offender, including license plate number and vehicle identification number, and a copy of the offender's driver's license and identification card. This information shall be provided prior to the offender's operation of the vehicle.

(k) Social security number and date of birth.

(l) A description of the physical characteristics of the offender, including but not limited to sex, race, hair color, eye color, height, age, weight, scars, tattoos, or other identifying marks on the body of the offender.

(m) Every e-mail address, online screen name, or other online identifiers used by the offender to communicate on the internet. If the offender uses a static internet protocol address, that address shall also be provided to the appropriate law enforcement agency. Required notice must be given before any online identifier or static internet protocol address is used to communicate on the internet. For purposes of this Subparagraph, "static internet protocol address" is a numerical label assigned to a computer by an internet service provider to be the computer's permanent address on the internet.

(n)(i) Temporary lodging information regarding any place where the offender plans to stay for seven or more days. This information shall be provided at least three days prior to the date of departure unless an emergency situation has prevented the timely disclosure of the information.

(ii) Temporary lodging information regarding international travel shall be provided regardless of the number of days or nights the offender plans to stay. This information shall be provided at least twenty-one days prior to the date of departure unless an emergency situation has prevented the timely disclosure of the information. Upon receipt of this information by the bureau from the law enforcement agency pursuant to Subsection E of this Section, this information shall then be sent by the bureau to the United States Marshals Service's National Sex Offender Targeting Center for transmission to the proper authorities.

(o) Travel and immigration documents, including but not limited to passports and documents establishing immigration status.

(2) Unless an earlier time period is specified in the provisions of Paragraph (1) of this Subsection, every offender required to register in accordance with this Section shall appear in person and provide the information required by Paragraph (1) of this Subsection to the appropriate law enforcement agencies within three business days of establishing residence in Louisiana. If the offender is a current resident of Louisiana and is not immediately taken into custody or incarcerated after conviction or adjudication, he shall provide the information on the date of conviction to the sheriffs of the parish where the offender was convicted or adjudicated and shall, within three business days after conviction or adjudication, provide the information to the sheriff of the parishes of the offender's residence, employment, and school. If incarcerated immediately after conviction or placed in a secure facility immediately after adjudication, the information required by Paragraph (1) of this Subsection shall be provided to the secretary of the Department of Public Safety and Corrections, or his designee, or the deputy secretary for youth services, or his designee, whichever has custody of the offender, within ten days prior to release from confinement. Once released from confinement, every offender shall appear in person within three business days to register with the appropriate law enforcement agencies pursuant to the provision of this Section. The offender shall register with the sheriff of the parish in which the residence address he initially supplied to the Department of Public Safety and Corrections is located, unless his residence address has changed and he has registered with the sheriff of the parish in which his new residence address is located.

(3) Knowingly providing false information to any law enforcement officer, office, or agency required to receive registration information pursuant to the provisions of this Chapter shall constitute a failure to register pursuant to R.S. 15:542.1.4(A)(1).

D. The offender shall pay to the appropriate law enforcement agencies with whom he is required to register, except for the campus law enforcement agency of an institution of postsecondary education, an annual registration fee of sixty dollars to defray the costs of maintaining the record of the offender. The payment of such a fee shall be made in accordance with any rule regarding indigency adopted by the judges of the judicial district court in the jurisdiction or as determined by criteria established by the Department of Public Safety and Corrections. The offender shall pay such fee upon the initial registration and on the anniversary thereof. Failure by the offender to pay the fee within thirty days of initial registration shall constitute a failure to register and shall subject the offender to prosecution under the provisions of R.S. 15:542.1.4(A)(3). The offender shall not be prevented from registering in accordance with this Section for failure to pay the annual registration fee.

E. Upon receipt of the registration information as required by the provisions of this Section, the law enforcement agency shall immediately forward such information to the bureau electronically.

F. (1) Except as provided in Paragraphs (2) and (3) of this Subsection, the sex offender registration and notification requirements required by this Chapter are mandatory and shall not be waived or suspended by any court. Any order waiving or suspending sex offender registration and notification requirements shall be null, void, and of no effect. Any order waiving or suspending registration and notification requirements shall not be construed to invalidate an otherwise valid conviction.

(2) Upon joint written motion by the district attorney and the petitioner, the court of conviction may waive sex offender registration and notification requirements imposed by the provisions of this Chapter for a person convicted of felony carnal knowledge of a juvenile (R.S. 14:80) on, before, or after January 1, 2008, when the victim is at least thirteen years of age and the offender was not more than four years older than the victim at the time of the commission of the offense. Relief shall not be granted unless the motion is accompanied by supporting documentary proof of the age of the victim and the age of the perpetrator at the time of commission of the offense. If the court of conviction was not a Louisiana district court, this joint

motion may be brought in the district court of the parish of the offender's residence after the bureau has made the determination, pursuant to the provisions of R.S. 15:542.1.3, on the grounds that the elements of the offense of conviction are equivalent to the elements of R.S. 14:80. The court may grant the motion upon clear and convincing evidence that the ages of the victim and offender at the time of commission of the offense were within the limitations provided in this Section.

(3)(a) Any person who was convicted of carnal knowledge of a juvenile (R.S. 14:80) prior to August 15, 2001, may petition the court of conviction to be relieved of the sex offender registration and notification requirements of this Chapter if the offense for which the offender was convicted would be defined as misdemeanor carnal knowledge of a juvenile (R.S. 14:80.1) had the offender been convicted on or after August 15, 2001. Offenders convicted of an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law may petition the district court of his parish of residence once the administrative procedures of R.S. 15:542.1.3 have been exhausted, and the elements of the offense of conviction have been found to be equivalent to the current definition of misdemeanor carnal knowledge of a juvenile (R.S. 14:80.1).

(b) The following procedures shall apply to the provisions of this Paragraph:

(i) The petition shall be accompanied with supporting documentation to establish that the age of the perpetrator and the victim at the time the offense was committed are within the parameters set forth in R.S. 14:80.1.

(ii) The district attorney shall be served with a copy of the petition.

(iii) The court shall order a contradictory hearing to determine whether the offender is entitled to be relieved of the registration and notification requirements pursuant to the provisions of this Paragraph.

(c) The provisions of this Paragraph shall not apply to any person who was convicted of more than one offense which requires registration pursuant to the provisions of this Chapter.

(4)(a) Any person who was convicted of crime against nature (R.S. 14:89) prior to August 15, 2010, or the district attorney in the parish where the offender was convicted, may file a motion in the court of conviction to relieve the offender of the sex offender registration and notification requirements of this Chapter if the offense for which the offender was convicted would be defined as crime against nature by solicitation (R.S. 14:89.2) had the offender been convicted on or after August 15, 2010. Offenders convicted of an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law may file a motion in the district court of his parish of residence once the administrative procedures of R.S. 15:542.1.3 have been exhausted, and the elements of the offense of conviction have been found to be equivalent to the current definition of crime against nature by solicitation (R.S. 14:89.2). The provisions of this Subparagraph shall not apply to persons whose conviction for crime against nature pursuant to R.S. 14:89 involved the solicitation of a person under the age of seventeen and would authorize sentencing of the offender pursuant to R.S. 14:89.2(B)(3), had the offender been convicted on or after August 15, 2010.

(b) The motion shall be accompanied by supporting documentation to establish that the person was convicted of crime against nature prior to August 15, 2010, and that the offense for which the offender was convicted would be defined as crime against nature by solicitation (R.S. 14:89.2) had the offender been convicted on or after August 15, 2010. If the motion is filed by the offender and the district attorney objects, the district attorney shall have the burden of proof by use of an affidavit that the person being solicited was under the age of seventeen. If the motion is filed by the district attorney, an affidavit establishing that the facts of the case and the underlying conviction meet these requirements shall be deemed sufficient for the granting of relief.

(c) If the offender files a motion pursuant to the provisions of this Paragraph, the district attorney, office of state police, and the Department of Justice, shall be served with a copy of the motion and any order granting relief. If the district attorney files a motion pursuant to the provisions of this Paragraph, the office of state police and the Department of Justice shall be served with a copy of the motion and any order granting relief.

(d) If the supporting documentation described in Subparagraph (b) of this Paragraph is provided and meets the requirements of Subparagraph (4)(b), relief shall be granted unless the district attorney objects and provides supporting documentation proving that the offense for which the person was convicted, and which requires registration and notification pursuant to the provisions of this Chapter, involved the solicitation of a person under the age of seventeen.

(e) If the district attorney proves by clear and convincing evidence that the conviction for crime against nature pursuant to R.S. 14:89 involved the solicitation of a person under the age of seventeen, the court shall deny the motion to be relieved of the sex offender registration and notification requirements as provided by the provisions of this Paragraph.

(f) The provisions of this Paragraph shall not apply to any person who was convicted of one or more offenses which otherwise require registration pursuant to the provisions of this Chapter.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1995, No. 928, § 1; Acts 1995, No. 1290, § 2; Acts 1997, No. 134, § 2; Acts 1997, No. 137, § 2; Acts 1997, No. 928, § 1, eff. July 10, 1997; Acts 1997, No. 1135, § 1, eff. July 14, 1997; Acts 1997, No. 1148, § 2, eff. July 14, 1997; Acts 1999, No. 930, § 1; Acts 1999, No. 1150, § 1; Acts 2001, No. 78, § 1; Acts 2001, No. 1206, § 1; Acts 2002, 1st Ex.Sess., No. 83, § 1; Acts 2003, No. 215, § 1; Acts 2003, No. 574, § 1; Acts 2004, No. 338, § 1; Acts 2005, 1st Ex.Sess., No. 11, § 1; Acts 2006, No. 204, § 1; Acts 2006, No. 284, § 1; Acts 2006, No. 663, § 1; Acts 2006, No. 683, § 1; Acts 2006, No. 791, § 1; Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 147, § 1; Acts 2008, No. 273, § 1; Acts 2008, No. 814, § 1; Acts 2008, No. 816, § 1; Acts 2010, No. 400, § 1; Acts 2011, 1st Ex.Sess., No. 18, § 1; Acts 2011, No. 216, § 1; Acts 2012, No. 402, § 1; Acts 2013, No. 408, § 1; Acts 2014, No. 602, § 5, eff. June 12, 2014; Acts 2015, No. 184, § 2; Acts 2015, No. 256, § 2; Acts 2016, No. 375, § 1.

LSA-R.S. 15:542, LA R.S. 15:542

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West's Louisiana Statutes Annotated

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:542.1

§ 542.1. Notification of sex offenders and child predators

Effective: August 1, 2012

Currentness

A. Any adult residing in this state who has pled guilty to, has been convicted of, or where adjudication has been deferred or withheld for the perpetration or attempted perpetration of, or conspiracy to commit, a sex offense as defined in R.S. 15:541 or a criminal offense against a minor as defined in R.S. 15:541 shall be required to provide the following notifications:

(1) Give notice of the crime for which he was convicted, his name, residential address, a description of his physical characteristics as provided in R.S. 15:542(C)(1), and a photograph or copy thereof to all of the following:

(a) At least one person in every residence or business within a one-mile radius in a rural area and a three-tenths of a mile radius in an urban or suburban area of the address of the residence where the offender will reside upon release, including all adults residing in the residence of the offender.

(b)(i) The superintendent of the school district where the offender will reside, who shall notify the principal of every school located within a one-mile radius of the address where the offender will reside and may notify the principals of other schools as he deems appropriate. The notice sent by the superintendent shall be accompanied by two clear, recent photographs, or a clear photocopy thereof, of the offender. The photographs, which shall be provided by the offender, shall be taken after release and within sufficient time to accompany the notification which is required under the provisions of this Chapter. The principal of any such school, upon receipt of the notification from the superintendent pursuant to the provisions of this Subparagraph, shall post notices at the school, in conspicuous areas accessible by all students attending the school, which contain a photograph of the offender and which state the offender's name, address, and a statement on the notice, commensurate with the education level of the school, which in the discretion of the principal, appropriately notifies the students of the potential danger of the offender.

(ii) Failure of the superintendent or principal to comply with the provisions of this Subparagraph shall not be construed to impose civil liability on any person.

(c) The lessor, landlord, or owner of the residence or the property on which he resides.

(d) The superintendent of any park, playground, or recreation districts within the designated area where the offender will reside, who shall notify the custodians of the parks, playgrounds, and recreational facilities in the designated area and may notify the custodians of other parks, playgrounds, and recreational facilities as he deems appropriate. The custodian of any such park, playground, and recreational facility, upon receipt of the notification, shall post notices in conspicuous areas at the park, playground, or recreational facility which state the offender's name, address, and the crime for which he was convicted. Failure

of the superintendent or custodian to comply with the provisions of this Subparagraph shall not be construed to impose civil liability on any person. The notice sent by the superintendent shall be accompanied by two clear, recent photographs, or a clear photocopy thereof, of the offender. The photographs, which shall be provided by the offender, shall be taken after release and within sufficient time to accompany the notification which is required under the provisions of this Chapter.

(e) Notwithstanding the provisions of Paragraph (1) of this Subsection, persons convicted of R.S. 14:89 shall not be required to furnish a photograph as required by that Paragraph.

(2)(a) Give notice of the crime for which he was convicted, his name, jurisdiction of conviction, a description of his physical characteristics as required by this Section, and his physical address by mail to all people residing within the designated area within twenty-one days of the date of conviction, if the offender is not taken into custody at the time of conviction, or within twenty-one days of the date of release from confinement or within twenty-one days of establishing residency in the locale where the offender plans to have his domicile, and the notice shall be published on two separate days within the applicable period provided for herein, without cost to the state, in the official journal of the governing authority of the parish where the defendant plans to reside and, if ordered by the sheriff or police department or required by local ordinance, in a newspaper which meets the requirements of R.S. 43:140(3) for qualification as an official journal and which has a larger or smaller circulation in the parish than the official journal. The notice provided to the official journal or other designated newspaper pursuant to this Subparagraph shall also include a recent photograph of the offender or a clear photocopy of a recent photograph of the offender.

(b) Those persons required to provide community notification pursuant to the provisions of this Section shall provide such community notification every five years from the date of the previous notification.

(c) The sheriff or police department may order that the notice be published in a newspaper which meets the requirements of R.S. 43:140(3) for qualification as an official journal and which has a larger circulation in the parish than the official journal.

(d) Notwithstanding the provisions of Subparagraphs (a) and (b) of this Paragraph, persons convicted of R.S. 14:92(A)(7) shall not be required to publish notice of the crime for which they were convicted in the official journal or any newspaper required by those Subparagraphs.

(3) Give any other notice deemed appropriate by the court in which the defendant was convicted of the offense that subjects him to the duty to register, including but not limited to signs, handbills, bumper stickers, or clothing labeled to that effect.

(4) State under oath, at the time of sentencing, where he will reside after sentencing or release.

(5) Post the number of his physical address in a conspicuous place on the outside of his residence. The posted number shall be prominently displayed and shall be of a sufficient size and legibility such that it will be visible to an ordinarily observant person approaching the residence during the daylight hours.

B. (1) Any person required to register pursuant to R.S. 15:542 who provides recreational instruction to persons under the age of seventeen years shall post a notice in the building or facility where such instruction is being given. This notice shall contain the name and photograph of the sex offender, the date and jurisdiction of conviction, and the crime for which he was convicted. Such notification shall be prominently displayed and shall be of sufficient size to alert persons entering such building or facility that the recreational instructor is a convicted sex offender.

(2) For purposes of this Subsection, “recreational instruction” refers to instruction or lessons on noneducational activities, including but not limited to martial arts, dancing, theater, and music.

C. Any juvenile required to register in accordance with the provisions of this Chapter shall be exempt from any notification requirements of this Section except for the notification required by the provisions of Subsection B of this Section.

D. (1) Any person who is required to register pursuant to the provisions of this Chapter, who is otherwise not prohibited from using a networking website, and who creates a profile or who uses the functionality of a networking website to contact or attempt to contact other networking website users shall include in his profile for the networking website an indication that he is a sex offender or child predator and shall include notice of the crime for which he was convicted, the jurisdiction of conviction, a description of his physical characteristics as required by this Section, and his residential address. The person shall ensure that this information is displayed in his profile for the networking website and that such information is visible to, or is able to be viewed by, other users and visitors of the networking website.

(2)(a) For purposes of this Subsection, “networking website” means an Internet website, the purpose of which is social interaction with other networking website users, which contains profile web pages of the members of the website that include the names or nicknames of such members, that allows photographs and any other personal or personally identifying information to be placed on the profile web pages by such members, and which provides links to other profile web pages on the networking website of friends or associates of such members that can be accessed by other members or visitors to the website. A networking website provides members of, or visitors to, such website the ability to leave messages or comments on the profile web page that are visible to all or some visitors to the profile web page and may also include a form of electronic mail for members of the networking website.

(b) For purposes of this Subsection, “networking website” shall not include any of the following:

(i) An Internet website the primary purpose of which is the facilitation of commercial transactions involving goods or services between its members or visitors.

(ii) An Internet website the primary purpose of which is the dissemination of news.

(iii) An Internet website of a governmental entity.

Credits

Added by Acts 1997, No. 1147, § 1, eff. July 14, 1997. Amended by Acts 1999, No. 594, § 1; Acts 2001, No. 1206, § 1; Acts 2002, 1st Ex.Sess., No. 83, § 1; Acts 2003, No. 215, § 1; Acts 2003, No. 216, § 1; Acts 2003, No. 821, § 1; Acts 2003, No. 892, § 1; Acts 2004, No. 147, § 1; Acts 2006, No. 186, § 2, eff. June 2, 2006; Acts 2006, No. 204, § 1; Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 816, § 1; Acts 2010, No. 413, § 1; Acts 2010, No. 859, § 1; Acts 2012, No. 50, § 1; Acts 2012, No. 385, § 1.

LSA-R.S. 15:542.1, LA R.S. 15:542.1

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:542.1.1

§ 542.1.1. In-person periodic renewal of registration by offenders

Effective: August 1, 2014

Currentness

A. (1) Any person convicted of an aggravated offense as defined in R.S. 15:541 or any person with a prior conviction or adjudication for an offense which requires registration pursuant to this Chapter, regardless of whether or not the prior offense required registration at the time of commission or conviction, who is subsequently convicted of or adjudicated for an offense which requires registration pursuant to the provisions of this Chapter, shall renew and update his registration required by R.S. 15:542 in person every three months from the date of initial registration.

(2) Any person convicted of a sexual offense against a victim who is a minor as defined in R.S. 15:541 shall renew and update his registration required by R.S. 15:542 in person every six months from the date of initial registration.

(3) Any other person subject to registration as provided in R.S. 15:542 shall update his registration in person annually from the date of initial registration.

(4)(a) Notwithstanding any other provision of this Section, any person required to register as a sex offender or child predator pursuant to the provisions of this Chapter who does not have a fixed place of residence, or who is homeless, shall renew and update his registration with the sheriff of the parish in which he is homeless, or is living without a fixed residence, in person every fourteen days from the date on which the offender initially appeared to register with the sheriff of that parish pursuant to the provisions of this Chapter. If the offender regularly resides homeless, or without a fixed place of residence, in more than one parish, he shall register with the sheriff of each parish in which he regularly resides and shall renew and update his registration every fourteen days with each sheriff of those parishes. If an offender no longer plans to reside without a fixed residence in a particular parish, he shall give notice, in person, to the sheriff of the parish in which he intends to no longer reside. Failure to update or to give notice of change of residence pursuant to the provisions of this Paragraph shall be a violation of R.S. 15:542.1.4.

(b) For purposes of this Section, the “parish of residence” for such offenders shall be the parish in which the offender is living homeless or without a fixed residence address.

B. (1) Each periodic renewal shall occur with the sheriff of the parish of residence or residences of the offender. Such periodic registration renewals shall continue for the period of registration required by the provisions of R.S. 15:544. The sheriff of the parish of residence shall immediately forward the information obtained through the periodic renewals to each law enforcement agency as provided in R.S. 15:542(B) and to the bureau for inclusion in the State Sex Offender and Child Predator Registry. The sheriff shall also comply with the requirements in R.S. 15:543(B) at least annually with each offender.

(2) Notwithstanding the in-person periodic renewals with the sheriff required by the provisions of this Subsection, any offender who lives within the jurisdiction of a municipality with a police department shall appear in person annually on the anniversary of his registration period start date at the police department in his municipality of residence to update his registration and pay the annual registration fee as provided in R.S. 15:542 (D).

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008. Amended by Acts 2008, No. 816, § 1; Acts 2013, No. 408, § 1; Acts 2014, No. 339, § 1.

LSA-R.S. 15:542.1.1, LA R.S. 15:542.1.1

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:542.1.2

§ 542.1.2. Duty of offenders to notify law enforcement of change of address, residence, or other registration information

Effective: August 1, 2013

Currentness

A. Unless an earlier time period is otherwise specified in the provisions of this Chapter, those persons required to register pursuant to the provisions of this Chapter shall appear in person at the sheriff's office in the parish of residence, or the police department in the case of a municipality with a population in excess of three hundred thousand, where the offender is currently registered to update information within three business days of establishing a new or additional physical residential address or of changes in information previously provided when any of the following occur:

- (1) The offender changes his place of residence or establishes a new or additional residence.
- (2) The offender has vacated his current address of registration with the intent not to return.
- (3) The offender has been absent from his current address of registration for more than thirty consecutive days or an aggregate of thirty days or more per calendar year and is physically present at another address during that same time period.
- (4) The offender has a change in name, place of employment, or any information previously provided pursuant to R.S. 15:542(C).

B. If the new or additional residence is located in a different parish than where the offender was previously registered, then he shall appear in person with the sheriff of the parish of the new or additional residence to register within the same time period established in Subsection A.

C. (1) Any person required to register in accordance with the provisions of this Chapter shall also be required to send a written notice of change of address or other information to the law enforcement agency with whom he was previously registered within three business days of establishing a new or additional residence.

(2) Upon receipt of a notice of change of address or updated information, the sheriff shall forward such information immediately to each law enforcement agency with which the offender is required to register pursuant to R.S. 15:542(A) and to the bureau.

D. The notice of change of address required by this Section shall include proof of residence as required by R.S. 15:542(C).

E. (1) Any person who is required to appear in person to give notice of a new address in accordance with the provisions of Subsection A of this Section shall also be required to provide new notification based upon the new address as provided for in R.S. 15:542.1, as applicable.

(2) Any sex offender who fails to provide change of address or other information as provided in this Section shall be subject to criminal prosecution as provided in R.S. 15:542.1.4.

F. (1) The offender shall appear in person at the sheriff's office in the parish of residence at least three days prior to establishing temporary lodging to provide temporary lodging information regarding any place where the offender plans to stay for seven consecutive days or more.

(2) If the location of the temporary lodging is outside of the boundaries of the parish of registration, then the sheriff shall notify the sheriff of the parish of temporary lodging. If the location of the temporary lodging is out of state, then the sheriff shall notify the bureau.

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008. Amended by Acts 2011, 1st Ex.Sess., No. 18, § 1; Acts 2012, No. 200, § 1; Acts 2012, No. 552, § 1; Acts 2013, No. 408, § 1.

LSA-R.S. 15:542.1.2, LA R.S. 15:542.1.2

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LSA-R.S. 15:542.1.3

§ 542.1.3. Procedures for offenders convicted or adjudicated under the laws of another state, or military, territorial, foreign, tribal, or federal law; procedures for Louisiana offenders with out-of-state activities

Effective: August 1, 2013

Currentness

A. Any person who is convicted or adjudicated of an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law for which R.S. 15:542 requires registration shall be subject to and shall comply with all of the registration requirements of this Chapter within three business days of establishing a residence in Louisiana and shall comply with all notification requirements required in R.S. 15:542.1 within twenty-one days of establishing a residence in Louisiana. Such person shall also notify the bureau within three business days of establishing residence in Louisiana and shall provide the bureau, within thirty days of establishing residence in Louisiana, certified copies of court records pertaining to the offense or offenses which require registration as a sex offender, including but not limited to the bill of information, indictment, court minutes, and final disposition.

B. (1) When the bureau receives notification that a person described in Subsection A of this Section is establishing residence in Louisiana, it shall immediately notify the appropriate law enforcement agencies as provided in R.S. 15:542.

(2)(a) Except as provided in Subparagraph (c) of this Paragraph, within sixty days of receiving the certified copies of court records from the offender as required by the provisions of Subsection A of this Section, the bureau shall determine which time period of registration under the provisions of R.S. 15:544 and the frequency of in-person periodic renewals under the provisions of R.S. 15:542.1 is applicable to the offender while residing in Louisiana. This determination shall be based on a comparison of the elements of the offense of conviction or adjudication with the elements of the most comparable Louisiana offense. The bureau shall post this official notification on the state sex offender and child predator registry within the ninety-day period provided in this Paragraph. If the most comparable Louisiana offense is carnal knowledge of a juvenile, the bureau shall indicate so and give notice to the offender that he may qualify for relief from registration pursuant to the provisions of R.S. 15:542(F) (2) or (3) if the offender's age and the age of the victim are within the limitations provided by R.S. 15:542.

(b) Until the bureau makes a determination and posts an official notification as to the frequency of in-person periodic renewals, the offender shall renew and update his registration required by R.S. 15:542 in person every three months from the date of establishing a residence in Louisiana. Thereafter, the frequency of in-person periodic renewals of the offender shall be pursuant to the provisions of R.S. 15:542.1.1, based on the determination made by the bureau, comparing the elements of the offense of conviction or adjudication with the elements of the most comparable Louisiana offense, as required by Subparagraph (a) of this Paragraph.

(c) If the period of registration required by the offender's jurisdiction of conviction is for the duration of the offender's lifetime, the bureau shall not be required to determine which time period of registration and the frequency of in-person periodic renewals

that would be applicable to the offender while residing in Louisiana as required by Subparagraph (a) of this Paragraph. The duration of the registration for any such offender shall be for the duration of his lifetime pursuant to R.S. 15:544, and the frequency of in-person periodic renewals for the offender shall be every three months from the date of initial registration as required by R.S. 15:542.1.1(A)(1).

(3) Within ninety days of the effective date of the provisions of Paragraph (2) of this Subsection, the bureau shall make a determination of the appropriate time period of registration under R.S. 15:544 and the number of required in-person periodic renewals under the provisions of R.S. 15:542.1.1 applicable to each sex offender or child predator convicted under the laws of another state, or military, territorial, foreign, tribal, or federal law who established a residence in this state prior to January 1, 2008. The bureau shall post this official notification on the registry within the ninety-day time period provided in this Paragraph. If the most comparable Louisiana offense is carnal knowledge of a juvenile, the bureau shall indicate so and give notice to the offender that he may qualify for relief from registration pursuant to R.S. 15:542 (F)(2) or (3) if the offender's age and the age of the victim are within the limitations provided by R.S. 15:542.

(4) Any offender convicted or adjudicated under the laws of another state, or military, territorial, foreign, tribal, or federal law who establishes a residence in this state and is required to register and notify pursuant to the provisions of this Chapter may appeal the bureau's determination of the applicable time period of registration and frequency of in-person periodic renewals through an administrative hearing as provided in R.S. 49:950 et seq. The offender shall have one year from the date that the bureau posted its determination on the registry to appeal. The duty to register and notify according to the determination of the bureau made pursuant to the provisions of this Subsection shall be binding and shall not be suspended or stayed pending appeal of the classification of the offender.

C. Any nonresident full-time or part-time worker employed in this state who would be required to register in his state of residence shall register with the appropriate law enforcement agencies as provided in R.S. 15:542 within three business days of employment. The provisions of this Subsection shall apply to any person employed in this state, with or without compensation.

D. Nonresident full-time or part-time students enrolled in this state who are required to register in their state of residence shall register within three business days with the appropriate law enforcement agencies as provided in R.S. 15:542.

E. Any resident of this state required to register as required by R.S. 15:542 shall notify the appropriate law enforcement agencies as provided in R.S. 15:542 if he leaves the state for full-time or part-time employment in another state, with or without compensation, for a period of more than seven consecutive days or for an aggregate of thirty days or more during the calendar year.

F. Any resident of this state required to register under the provisions of this Chapter shall notify the appropriate law enforcement agencies as provided in R.S. 15:542 within three business days if he leaves the state to enroll in any school as a full-time or part-time student.

G. Any resident of this state required to register under the provisions of this Chapter shall notify the bureau of his intent to establish a residence in another state within three days prior to establishing residence in the other state.

H. When an offender who was convicted of or adjudicated for an offense under the laws of another state, or military, territorial, foreign, tribal, or federal law requiring registration pursuant to the provisions of this Chapter appears in person for initial

registration with the appropriate law enforcement agency in his parish of residence, the law enforcement agency shall follow the procedures set forth in R.S. 15:543(B)(1) through (7).

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008. Amended by Acts 2008, No. 816, § 1; Acts 2010, No. 400, § 1; Acts 2012, No. 129, § 1, eff. May 14, 2012; Acts 2013, No. 132, § 1.

LSA-R.S. 15:542.1.3, LA R.S. 15:542.1.3

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LSA-R.S. 15:542.1.4

§ 542.1.4. Failure to register and notify as a sex offender or child predator; penalties

Effective: August 1, 2014

Currentness

A. (1) A person who fails to timely register, fails to timely provide any information required by the provisions of this Chapter, fails to timely and periodically renew and update registration as required by the provisions of this Chapter, fails to timely provide proof of residence, fails to timely provide notification of change of address or other registration information, or fails to provide community notification as required by the provisions of this Chapter, and a person who knowingly provides false information as provided in R.S. 15:542(C)(3), shall, upon first conviction, be fined not more than one thousand dollars and imprisoned with hard labor for not less than two years nor more than ten years without benefit of parole, probation, or suspension of sentence.

(2) Upon second or subsequent convictions, the offender shall be fined three thousand dollars and imprisoned with hard labor for not less than five years nor more than twenty years without benefit of parole, probation, or suspension of sentence.

(3) An offender who fails to pay the annual registration fee in accordance with the provisions of R.S. 15:542 shall be fined not more than five hundred dollars, imprisoned for not more than six months, or both. Upon a second or subsequent conviction for the failure to pay the annual registration fee, the offender shall be punished in accordance with the provisions of Paragraphs (1) and (2) of this Subsection.

B. (1) Any person who certifies by affidavit the location of the residence of the offender shall send written notice to the appropriate law enforcement agency with whom the person last registered when the offender no longer resides at the residence provided in the affidavit. This notification shall be made any time the sex offender is absent from the residence for a period of thirty days or more, or the offender vacates the residence with the intent to establish a new residence at another location. This notification shall be sent within three days of the end of the thirty-day period or within three days of the offender vacating the residence with the requisite intent.

(2) Any person who fails to provide the notice required by this Subsection shall be fined not more than five hundred dollars or imprisoned for not more than six months, with or without hard labor, or both.

C. (1) Any person who either fails to meet the requirements of R.S. 32:412(I) or R.S. 40:1321(J), who is in possession of any document required by R.S. 32:412(I) or R.S. 40:1321(J) that has been altered with the intent to defraud, or who is in possession of a counterfeit of any document required by R.S. 32:412(I) or R.S. 40:1321(J), shall, on a first conviction, be fined not more than one thousand dollars and imprisoned at hard labor for not less than two years nor more than ten years without benefit of parole, probation, or suspension of sentence.

(2) Upon a second or subsequent conviction for a violation of the provisions of this Subsection, the offender shall be fined three thousand dollars and imprisoned at hard labor for not less than five years nor more than twenty years without benefit of parole, probation, or suspension of sentence.

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008. Amended by Acts 2008, No. 147, § 1; Acts 2011, No. 74, § 1; Acts 2014, No. 190, § 1.

LSA-R.S. 15:542.1.4, LA R.S. 15:542.1.4

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LSA-R.S. 15:542.1.5

§ 542.1.5. State Sex Offender and Child Predator Registry; duties
of the Louisiana Bureau of Criminal Identification and Information

Effective: August 1, 2016

Currentness

A. (1) The Louisiana Bureau of Criminal Identification and Information shall develop and maintain the central registry known as the State Sex Offender and Child Predator Registry. The registry shall contain the information transmitted to the bureau pursuant to the provisions of this Chapter and shall be developed and maintained in accordance with the provisions of the federal Adam Walsh Child Protection and Safety Act of 2006¹ and any federal guidelines adopted pursuant thereto. Upon receipt of the registration and information of any person subject to the provisions of this Chapter, including juveniles required to register, the bureau shall immediately enter the appropriate information in the public registry. The bureau shall accept electronically submitted information and registration renewal information from law enforcement.

(2)(a) The bureau shall provide for public access to the information contained in the registry, including Internet-based access, which shall have field-search capabilities which comply with the provisions of the federal Adam Walsh Child Protection and Safety Act of 2006 and any federal guidelines adopted pursuant thereto.

(b) Notwithstanding the provisions of Subparagraph (2)(a) of this Subsection, the following information shall be exempt from public access as well as any other mandatory exemptions which are required by the federal Adam Walsh Child Protection and Safety Act of 2006 and any federal guidelines adopted pursuant thereto:

(i) Social security numbers.

(ii) Names of the victims of the offenses requiring registration.

(iii) Any information with regard to arrests that did not result in convictions.

(iv) Telephone numbers, subject to the provisions of Subparagraphs (b) and (c) of this Paragraph.

(v) Travel and immigration documents.

(vi) E-mail addresses, online screen names, or other online identities used by offenders to communicate on the internet, subject to the provisions of Subparagraphs (b) and (c) of this Paragraph.

(c) Notwithstanding the provisions of Subparagraph (2)(b) of this Subsection which provides for exemptions to public access of telephone numbers, e-mail addresses, online screen names, or other online identities, the registry shall contain the ability to search by telephone numbers, e-mail addresses, online screen names, or other online identities to provide information to the person conducting the search regarding whether or not that information has been linked to a sex offender or child predator. This search shall not disclose the name or any other identifying information about the offender to the person conducting the search, except to identify that the information has been linked to a sex offender or child predator.

(d) Notwithstanding the provisions of Subparagraphs (2)(b) and (c) of this Subsection, the bureau shall, upon request by any person or entity in a manner prescribed by the bureau, provide a list of telephone numbers, e-mail addresses, online screen names, static internet protocol addresses, or other online identities of persons in the State Sex Offender and Child Predator Registry for the purpose of identifying and monitoring a registered user associated with the telephone number, e-mail address, online screen name, static internet protocol address, or other online identity. The information provided to the person or entity shall not disclose the name or other identifying information of the sex offender that is associated with, or who is using, any of the telephone numbers, e-mail addresses, online screen names, static internet protocol addresses, or other online identities in the provided list.

B. The bureau shall develop and maintain the registry as to provide for automatic e-mail notifications at the time in which an offender begins residence, employment, or school attendance within a certain geographic radius or zip code. This function of the registry shall allow members of the public and organizations to request automatic e-mail notifications to be sent to an e-mail address provided by the requestor for a certain geographic radius or zip code specified by the requestor.

C. The bureau shall participate in the Dru Sjodin National Sex Offender Registry in accordance with the provisions of the federal Adam Walsh Child Protection and Safety Act of 2006 and any federal guidelines adopted pursuant thereto.

D. (1) Immediately upon entry of the required information into the registry, the bureau shall notify the sheriff of the parish in which the offender's address of residence is located, and the chief of police if the address is located in an incorporated area which has a police department. Additionally, the bureau shall notify the sheriff of the parish in which the offender is employed or attends school.

(2) Immediately upon entry of the required information into the registry, the bureau shall transmit to the Federal Bureau of Investigation the conviction data and fingerprints of the offender registered.

(3) Immediately upon entry of information that a person required to register under this Section is enrolled as a student or employed as a worker at any institution of postsecondary education into the registry, the bureau shall notify all law enforcement agencies having jurisdiction over the institution at which the offender is enrolled or employed, including but not limited to the campus law enforcement agency.

E. The bureau is hereby designated as the state agency to receive information regarding out-of-state sex offenders and child predators who establish a residence in this state pursuant to R.S. 15:542.1.3.

F. The bureau may promulgate rules and regulations in accordance with the Administrative Procedure Act to implement the provisions of this Chapter, provided that such rules and regulations are promulgated in accordance with the federal Adam Walsh Child Protection and Safety Act of 2006 and any federal guidelines adopted pursuant thereto.

G. (1) The bureau shall provide for the capability which would allow a social networking web site to compare the database of registered users of that social networking web site to the list of electronic mail addresses, instant message addresses, and other similar online identifiers of persons in the State Sex Offender and Child Predator Registry.

(2) A social networking web site desiring to compare its database of registered users to the list of electronic mail addresses, instant message addresses, and other online identifiers of persons in the registry shall provide to the bureau all of the following information:

(a) The name, address, and telephone number of the entity operating the social networking web site.

(b) The legal nature and corporate status of the entity operating the social networking web site.

(c) A statement signed by the chief legal officer of the social networking web site to the effect that the information obtained from the registry shall not be disclosed for any purpose other than for comparing the database of registered users of the social networking web site against the list of electronic mail addresses, instant message addresses, and other online identifiers of persons contained in the state registry to protect children from online sexual predators, and that disclosure of this information for any other purpose may be unlawful.

(d) The name, address, and telephone number of a natural person who is authorized to receive service of process for the entity operating the social networking web site.

(3) After complying with the requirements of Paragraph (2) of this Subsection, the entity operating the social networking web site may screen users or compare its database of registered users to the list of electronic mail addresses, instant message addresses, and other online identifiers of persons contained in the State Sex Offender and Child Predator Registry as frequently as the bureau will allow for the purpose of identifying, monitoring, or removing a registered user associated with electronic mail addresses, instant message addresses, and other online identifiers contained in the registry.

(4) An entity operating a social networking web site which complies with the provisions of Paragraphs (2) and (3) of this Subsection, the entity, its directors, officers, employees, or agents may claim such compliance as a defense to a claim for liability arising against the entity or such persons.

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008. Amended by Acts 2008, No. 273, § 1; Acts 2008, No. 816, § 1; Acts 2016, No. 375, § 1.

Footnotes

1 34 U.S.C.A. § 20901 et seq.

LSA-R.S. 15:542.1.5, LA R.S. 15:542.1.5

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LSA-R.S. 15:542.1.6

§ 542.1.6. Repealed by Acts 2009, No. 205, § 2

Effective: August 15, 2009

Currentness

LSA-R.S. 15:542.1.6, LA R.S. 15:542.1.6

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LSA-R.S. 15:542.1.7

§ 542.1.7. Court records; disclosure

Effective: January 1, 2008

Currentness

Notwithstanding any other provision of law to the contrary, any records in the possession of any court are subject to disclosure to the district attorney, sheriff, or any other law enforcement officers including agents of the Department of Public Safety and Corrections, division of probation and parole, for the purpose of fulfilling their duties with regard to the provisions of this Chapter, and without the necessity of obtaining any order of the court or other authorization for the release of such records.

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008.

LSA-R.S. 15:542.1.7, LA R.S. 15:542.1.7

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LSA-R.S. 15:542.2

§ 542.2. Redesignated as R.S. 15:539 by Acts 2007, No. 460, § 4, eff. Jan. 1, 2008

Effective: January 1, 2008

Currentness

LSA-R.S. 15:542.2, LA R.S. 15:542.2

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Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:543

§ 543. Duties of the courts, sheriffs, and the Department of Public Safety and Corrections and the office of juvenile justice; informing the offender of the registration and notification requirements

Effective: August 15, 2008

Currentness

A. The court shall provide written notification to any person convicted of a sex offense and a criminal offense against a victim who is a minor of the registration requirements and the notification requirements of this Chapter. For purposes of this Subsection, the court shall use the form contained in R.S. 15:543.1 and shall provide a copy of the registration and notification statutes to the offender. Such notice shall be included on any guilty plea forms and judgment and sentence forms provided to the defendant, and an entry shall be made in the court minutes stating that the written notification was provided to such offenders. If the offender is not sentenced to incarceration, then the court shall notify the bureau of the conviction of the offender.

B. When a person who is required to register under this Chapter is released from incarceration or placed under parole, supervised release, or probation, the Department of Public Safety and Corrections for adult offenders, or the office of juvenile justice for juvenile offenders, or the sheriff if the offender is housed in the parish jail, or the court if the offender is not incarcerated or placed in the jurisdictional custody of the Department of Public Safety and Corrections or the office of juvenile justice, shall:

- (1) Inform the person of the duty to register in accordance with the provisions of this Chapter.
- (2) Inform the person of the duty to provide community notification as required by the provisions of this Chapter.
- (3) Inform the person of the duty to provide in-person verification as required by the provisions of this Chapter.
- (4) Inform the person of the duty to provide information regarding a change of address and other information and proof of residence as required by the provisions of this Chapter.
- (5) Inform the person that if the person changes residence to another state, the person shall notify in writing both the bureau and the law enforcement agency designated for sex offender reporting under the laws of the state in which the new address is located if that state has a registration requirement, within three days from the date the person establishes residence in the new state.
- (6) Obtain fingerprints, if not already on file, the registration information required by the provisions of R.S. 15:542 for inclusion into the state sex offender and child predator registry, and a current photograph of the person. The agency responsible in this Section for collecting the registration information shall, before release of the offender, transfer that information to the bureau for immediate inclusion in the registry which shall constitute preregistration, but which shall only be deemed completed registration

upon the in-person verification by the offender with the appropriate law enforcement agency as provided in R.S. 15:542, within three business days of conviction, if not incarcerated immediately after conviction, or of release from confinement.

(7) Require the person to read and sign a form stating that the requirements of the provisions of this Chapter and the penalty for failure to comply with those requirements have been explained.

C. The Department of Public Safety and Corrections shall provide written notification to an individual convicted of a sex offense or a criminal offense against a victim who is a minor from another state of the registration and notification requirements of this Chapter at the time the department accepts supervision and has legal authority of the individual under the terms and conditions of the interstate compact agreement under R.S. 15:574.31. The sheriff of the parish of the offender's residence shall also provide written notification of the registration and notification requirements contained in this Chapter to every offender who presents himself to the sheriff for the purpose of fulfilling the registration requirements contained in this Chapter as well as a copy of the registration and notification statutes. The offender shall sign an affidavit confirming receipt of such notification.

D. Repealed by Acts 2007, No. 460, § 3, eff. Jan. 1, 2008.

E. At the time a person renews his driver's license or identification card, or surrenders a driver's license from another jurisdiction and makes an application for a driver's license or an identification card, the Department of Public Safety and Corrections shall provide the applicant with written information on the registration requirements of R.S. 15:542.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 816, § 1.

LSA-R.S. 15:543, LA R.S. 15:543

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:543.1

§ 543.1. Written notification by the courts; form to be used

Effective: August 1, 2025

Currentness

STATE V. _____ JUDICIAL DISTRICT COURT

DOCKET # _____ PARISH OF _____

DIVISION _____

STATE OF LOUISIANA

Notification to Sex Offender

In accordance with R.S. 15:543, this court has the duty to provide _____ (name of offender) with the information necessary for awareness of sex offender and child predator registration and notification requirements. _____ has pled guilty to, been found guilty of, or been adjudicated delinquent of a violation of Title 14, Section ____ Subsection ____ of the Louisiana Revised Statutes of 1950. This crime of conviction or adjudication is:

() Under R.S. 15:541, defined as an aggravated offense or, with regard to offenders adjudicated as juveniles, an offense listed in R.S. 15:542(A)(3) which, pursuant to R.S. 15:544(B)(2)(a) or (b), requires lifetime registration and notification under Chapter 3-B of Title 15 of the Louisiana Revised Statutes of 1950.

() A second conviction for an offense requiring registration and notification under the provisions of Chapter 3-B of Title 15 of the Louisiana Revised Statutes of 1950 which, pursuant to R.S. 15:544(B)(2)(c), requires lifetime registration and notification under Chapter 3-B of Title 15 of the Louisiana Revised Statutes of 1950.

() Under R.S. 15:541, defined as a sexual offense against a victim who is a minor which, pursuant to R.S. 15:544(B)(1), requires 25 years of registration and notification under Chapter 3-B of Title 15 of the Louisiana Revised Statutes of 1950.

() Is defined neither as an aggravated offense nor a sexual offense against a victim who is a minor under R.S. 15:541 which, pursuant to R.S. 15:544(A), requires 15 years of registration and notification under Chapter 3-B of Title 15 of the Louisiana Revised Statutes of 1950.

The above registration and notification periods shall begin to toll from the date you are released from prison, from the date of being placed on parole, supervised release or probation, or from the date of your conviction, if you are not sentenced to a term of imprisonment or jail. Additionally, you have been convicted of:

() An aggravated offense as defined in R.S. 15:541, you must update your registration, in person, every ninety days from the date of initial registration, with the appropriate law enforcement agencies as provided in R.S. 15:542.

() A sexual offense involving a victim who is a minor as defined in R.S. 15:541, you must update your registration, in person, every six months from the date of initial registration, with the appropriate law enforcement agencies as provided in R.S. 15:542.

() An offense not defined in R.S. 15:541 as an aggravated offense or a sexual offense involving a victim who is a minor, you must update your registration, in person, annually from the date of initial registration, with the appropriate law enforcement agencies as provided in R.S. 15:542.

Based on the foregoing, you are hereby notified of the following:

(1) That you, within three (3) business days of establishing residence in Louisiana or if a current resident, within three (3) business days after conviction or adjudication if not immediately incarcerated or taken into custody, or within three (3) business days after release from confinement, shall obtain and provide the following information to each sheriff or police department in accordance with R.S. 15:542(B) (except in Orleans Parish where registration shall take place with the New Orleans Police Department):

(a) Name and any aliases used by you.

(b) Physical address or addresses of residence.

(c) Name and physical address of place of employment. If you do not have a fixed place of employment, you shall provide information with as much specificity as possible regarding the places where you work, including but not limited to travel routes used by you.

(d) Name and physical address of the school in which you are a student.

(e) Two forms of proof of residence for each residential address provided, including but not limited to a driver's license, bill for utility service, and bill for telephone service. If those forms of proof of residence are not available, you may provide an affidavit of an adult resident living at the same address. The affidavit shall certify that the affiant understands his obligation to provide written notice pursuant to R.S. 15:542.1.4 to the appropriate law enforcement agency with whom you last registered when you no longer reside at the residence provided in the affidavit.

(f) The crime for which you were convicted and the date and place of such conviction, and if known by you, the court in which the conviction was obtained, the docket number of the case, the specific statute under which you were convicted, and the sentence imposed.

(g) A current photograph, fingerprints, palm prints, and a DNA sample.

(h) Telephone numbers, including fixed location phone and mobile phone numbers assigned to you or associated with your residence address.

(i) A description of every motorized vehicle registered to or operated by you, including license plate number and vehicle identification number, and a copy of your driver's license and identification card. This information should always be provided

before the vehicle is operated and, if the vehicle is registered to you, no more than three days after the vehicle is registered, even if it has not yet been operated.

(j) Social security number and date of birth.

(k) A description of your physical characteristics, including but not limited to sex, race, hair color, eye color, height, age, weight, scars, tattoos, or other identifying marks on your body.

(l) Every e-mail address, online screen name, or other online identity used by you to communicate on the Internet.

(m)(i) Temporary lodging information regarding any place where you plan to stay for seven or more days and the length of the stay. This information shall be provided at least three days prior to the date of departure unless an emergency situation has prevented the timely disclosure of the information.

(ii) Temporary lodging information regarding international travel shall be provided regardless of the number of days or nights you plan to stay. This information shall be provided at least twenty-one days prior to the date of departure unless an emergency situation has prevented the timely disclosure of the information. Upon receipt of this information by the bureau from the law enforcement agency, this information shall then be sent by the bureau to the United States Marshals Service's National Sex Offender Targeting Center for transmission to the proper authorities.

(n) Travel and immigration documents, including but not limited to passports and documents establishing immigration status.

(o) A state sex offender identification card from the office of motor vehicles.

(2) You shall register with the sheriff and police chief in each parish and municipality where you maintain your residence(s) and with the sheriff of the parish in which you are employed and attend school in accordance with R.S. 15:542. For initial registration only, you, if you are not immediately taken into physical custody, shall register on the date of conviction or adjudication with the sheriff in the parish of your conviction or adjudication in accordance with R.S. 15:542. If you live, work, or attend school in Orleans Parish, however, you shall register with the New Orleans Police Department and not with the sheriff of that parish.

(3) If you are incarcerated as a result of the crime, you shall provide all information listed in Paragraph (1) of this Section to the Department of Public Safety and Corrections, or if a juvenile, to the office of juvenile justice, within ten (10) days prior to release from confinement. You shall still appear in person at the sheriff's office within three (3) business days of release from confinement. You shall register with the sheriff of the parish in which the residence address you initially supplied to the department is located, unless the residence has changed and you have registered with the sheriff of the parish in which the new residence address is located.

(4) During the declaration of an emergency, if you enter an emergency shelter you shall, within the first twenty-four (24) hours of admittance, notify the management of the facility, the chief of police of the municipality, and the sheriff of the parish in which the shelter is located of your sex offender status in accordance with R.S. 15:543.2.

(5) You have a duty to provide notice of change of address or other registration information to the sheriff of the parish of residence within three business days. If the new or additional residence is located in a different parish, then you must register with the sheriff of the parish in which the new or additional residence is located. You shall also send written notice within three business days of re-registering in the new parish to the sheriff of the parish of former registration in accordance with R.S. 15:542.1.2. If the new address is situated within a municipality, you must also register with the police department of that municipality within three business days of establishing the residence.

(6) You shall give notice of the crime for which you were convicted, your name, address, a physical description, and a photograph to the following in accordance with R.S. 15:542.1:

(a) At least one person in every residence or business within a one-mile radius in a rural area and a three-tenths of a mile radius in an urban or suburban area of the address of the residence where you will reside upon release, including all adult residents of your residence.

(b) The superintendent of the school district where you will reside.

(c) The lessor, landlord, or owner of the residence or the property on which you reside.

(d) The superintendent of the park, playground, and recreation districts within the designated area where you will reside only if the victim was under eighteen (18) years of age at the time of the commission of the offense.

*Any person convicted of a violation of R.S. 14:89 shall not have to include a photograph in the notice described in Paragraph (6).

*Juveniles adjudicated for a crime requiring registration DO NOT have to provide this community notice.

(7) In accordance with R.S. 15:542.1, community notification shall be given by mail within twenty-one days of the date of conviction, if you are not taken into custody at the time of conviction, and within twenty-one days of the date of release from confinement if sentenced to a term of imprisonment. This notification shall also occur within twenty-one days of each time you change residence within twenty-one days of establishing residency in the new locale. This notification shall also occur at least every five years, whether or not you change residences. This notification shall occur in each jurisdiction in which you regularly reside.

*Juveniles adjudicated for a crime requiring registration DO NOT have to provide this community notice.

(8) In accordance with R.S. 15:542.1, community notice shall be published on two (2) separate days within this period in the official journal of the governing authority of the parish where you plan to reside, unless ordered to be published in a different journal or newspaper by the sheriff or local ordinance.

*Those convicted of R.S. 14:92(A)(7) are not required to publish notice in the newspaper or official journal as provided in Paragraph (8).

*Juveniles who are adjudicated for a crime requiring registration DO NOT have to provide this community notice.

(9) In accordance with R.S. 15:542.1(B), an offender who provides recreational instruction to persons under the age of seventeen (17) shall post a notice in the building or facility where such instruction is being given. This notice shall contain your name and photograph, the date and jurisdiction of conviction, and the crime for which you were convicted.

(10) In accordance with R.S. 15:542(C)(2), you must, within ten (10) days prior to release from a correctional facility, provide a photograph and all other required registration information to the Department of Public Safety and Corrections, or if a juvenile, to the office of juvenile justice for purposes of the State Sex Offender and Child Predator Registry. Providing false information during this process constitutes failure to register exposing you to prosecution and the penalties detailed at the end of this document. The address provided to the Department of Public Safety and Corrections through this process shall be presumed to be your residence address. In accordance with R.S. 15:542(C)(2), you must register with the sheriff of the parish in which this address is located within three business days of your release from confinement, whether or not you actually establish a residence there, unless you establish a residence elsewhere AND register with that jurisdiction within three business days of your release from confinement. Failure to do so is a violation of the registration statutes and will subject you to prosecution under R.S. 15:542.1.4.

(11) In accordance with R.S. 15:542.1.2, if you change your place of residence or establish a new or additional residence, you shall appear in person at the office of the sheriff of your parish of residence where you are currently registered within three (3) business days of the change to register the new address. If the new address is located in a different parish, then you shall also appear in person at the office of the sheriff of your new parish of residence within the same time period. If your parish of residence is in Orleans Parish, then the registration shall take place at the New Orleans Police Department and not with the Orleans Parish Sheriff.

(12) In accordance with R.S. 15:542.1.2, if you are absent from your current address of registration for more than thirty (30) consecutive days or an aggregate of thirty (30) days or more in a calendar year, and are physically present at another address during that same period of time, you shall register in person the new address as one of your addresses of residence. If the new address is in a parish different from your current address, you shall also register in person with the sheriff of the new parish within three (3) business days of the tolling of the time periods listed. This requirement notwithstanding, you shall still notify the sheriff of one of your parishes of residence in person if you are to take up temporary lodging for seven (7) or more days. It is only after the thirty-day limit is exceeded that the new registration shall occur.

(13) You shall also appear in person at the office of the sheriff of any of your parishes of residence when there is a change in your name, place of employment, or enrollment. This appearance shall occur within three (3) business days of the change. If your address of residence is in Orleans Parish, this registration update shall take place at the New Orleans Police Department and not with the Orleans Parish Sheriff's Office.

(14) You shall be prohibited from certain types of employment in accordance with R.S. 15:553 for the duration of the registration period. A copy of this statute is provided to you with this notification.

(15) In accordance with R.S. 15:542(C), you shall update your registration annually on the anniversary of the initial registration by appearing in person at the office of each law enforcement agency with which you are required to register and shall pay an annual registration fee of sixty dollars (\$60.00).

(16) Failure to comply with any of these registration and notification requirements is a felony for which you shall be punished by a fine of up to one thousand dollars (\$1,000.00) and imprisonment at hard labor for not less than two years nor more than ten years without benefit of parole, probation, or suspension of sentence. Upon a second or subsequent conviction, you shall be punished by a fine of up to three thousand dollars (\$3,000.00) and imprisonment at hard labor for not less than five years, nor more than twenty years without benefit of parole, probation, or suspension of sentence.

(17) For those offenders who have been convicted of a sex offense as defined in R.S. 15:541 involving a victim who was under the age of thirteen (13) at the time of the offense, R.S. 14:91.2 is applicable which prohibits such offenders from residing or being present in certain locations. A copy of this statute is provided to you with this notification.

(18) For those offenders who have been convicted of R.S. 14:81 (indecent behavior with juveniles), R.S. 14:81.1 (pornography involving juveniles) which occurred prior to August 1, 2025, R.S. 14:81.1 (child sexual abuse materials) which occurred on or after August 1, 2025, R.S. 14:81.3 (computer-aided solicitation of a minor), or R.S. 14:283 (video voyeurism) or have been convicted of a sex offense as defined in R.S. 15:541 in which the victim of the sex offense was a minor, R.S. 14:91.5, which prohibits such offenders from using certain social networking websites, is applicable. A copy of this statute is provided to you with this notification.

THUS DONE AND SIGNED this ____ day of _____, 20__ in open court, in _____, Louisiana.

Judge, _____ Judicial District Court

I hereby certify that the above requirements have been explained to me, that I have received a copy of the above notice of sex offender registration and notification requirements, and a copy of the statutes providing for such requirements. I also understand that I will be subject to any changes made by the legislature to the registration laws from this day forward.

(Name of Sex Offender)

Defense Counsel Signature

Credits

Added by Acts 2006, No. 175, § 1. Amended by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 816, § 1; Acts 2010, No. 973, § 2, eff. July 6, 2010; Acts 2012, No. 50, § 1; Acts 2012, No. 205, § 2; Acts 2013, No. 408, § 1; Acts 2016, No. 562, § 1; Acts 2025, No. 261, § 2.

LSA-R.S. 15:543.1, LA R.S. 15:543.1

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

End of Document

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West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:543.2

§ 543.2. Sex offenders; emergency situations

Effective: August 15, 2008

Currentness

A. (1) Notwithstanding any other provision of law to the contrary, during a declaration of emergency, any person who has been required to register as a sex offender as provided for in this Section who enters an emergency shelter shall, within the first twenty-four hours of admittance, notify the management of the facility, the chief of police of the municipality, if the shelter is located in a municipality, and the sheriff of the parish in which the shelter is located of their sex offender status. The sex offender shall provide his full name, date of birth, social security number, and last address of registration prior to the declaration of emergency. Within seventy-two hours of receiving the notification required by the provisions of this Paragraph, the chief of police and the sheriff shall forward that information to the Louisiana Bureau of Criminal Identification and Information.

(2) For purposes of this Subsection, “emergency shelter” includes the use of any facility, building, or structure operated by a nonprofit, tax-exempt organization under Section 501(c)(3) of the Internal Revenue Code,¹ which provides the basic necessities of life, including but not limited to water, food, and shelter, to persons who are displaced from their homes due to a man-made or natural emergency or disaster.

(3) The manager or director of the emergency shelter shall make a reasonable effort to notify the chief law enforcement officer of the parish or municipality in which the shelter is located of the presence of the sex offender in the emergency shelter. No person associated with a nonprofit organization which operates an emergency shelter shall be liable for any injury or claim arising out of the failure of the manager or operator to communicate the presence of a sex offender in the shelter to the appropriate law enforcement official.

B. The Department of Public Safety and Corrections shall provide information to every sex offender who is under the supervision of the department with respect to the protocol to be followed in emergency situations. To implement the provisions of this Section, the department shall adopt rules in accordance with the Administrative Procedure Act which include but are not limited to the following:

(1) The establishment of a toll-free telephone number which shall be provided to each sex offender for use in contacting the department in emergency situations.

(2) Dissemination of information to each sex offender of his obligation to notify the management of an emergency shelter of his sex offender status in accordance with the provisions of R.S. 15:542 and of his obligation to report to the Department of Public Safety and Corrections, division of probation and parole.

C. For purposes of this Section, “sex offender” shall mean any person who has committed a sex offense as defined in R.S. 15:541.

D. The failure of the offender to comply with the provisions of this Section shall be considered a violation of a condition of probation and parole and subject the offender to revocation.

Credits

Added by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008.

Footnotes

1 26 U.S.C.A. § 501(c)(3).

LSA-R.S. 15:543.2, LA R.S. 15:543.2

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

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Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:544

§ 544. Duration of registration and notification period

Effective: August 1, 2017

Currentness

A. Except as provided for in Subsection B of this Section, a person required to register and provide notification pursuant to the provisions of this Chapter shall comply with the requirement for a period of fifteen years from the date of the initial registration in Louisiana, or the duration of the lifetime of the offender as provided in Subsection E of this Section, unless the underlying conviction is reversed, set aside, or vacated, except for those convictions that were reversed, set aside, or vacated pursuant to Code of Criminal Procedure Article 893 or 894, or a similar provision of federal law or law from another state or military jurisdiction. The requirement to register shall apply to an offender who receives a pardon as a first-time offender pursuant to Article IV, Section 5(E)(1) of the Constitution of Louisiana and R.S. 15:572(B)(1).

B. (1) A person required to register pursuant to this Chapter who was convicted of a sexual offense against a victim who is a minor as defined in R.S. 15:541 shall register and maintain his registration and provide community notification pursuant to the provisions of this Chapter for a period of twenty-five years from the date of initial registration in Louisiana, or the duration of the lifetime of the offender as provided in Subsection E of this Section, unless the underlying conviction is reversed, set aside, or vacated, except for those convictions that were reversed, set aside, or vacated pursuant to Code of Criminal Procedure Article 893 or 894, or a similar provision of federal law or law from another state or military jurisdiction. The requirement to register shall apply to an offender who receives a pardon as a first-time offender pursuant to Article IV, Section 5(E)(1) of the Constitution of Louisiana and R.S. 15:572(B)(1).

(2) Any of the following persons required to register pursuant to this Chapter shall register and provide notification for the duration of their lifetime, even if granted a first offender pardon, unless the underlying conviction is reversed, set aside, or vacated, except for those convictions that were reversed, set, aside, or vacated pursuant to Code of Criminal Procedure Article 893 or 894, or a similar provision of federal law or law from another state or military jurisdiction:

(a) A person required to register pursuant to this Chapter who was convicted of an aggravated offense as defined in R.S. 15:541.

(b) A juvenile adjudicated for the enumerated offenses in R.S. 15:542(A)(3).

(c) A person with a prior conviction or adjudication for an offense for which registration is required by the provisions of this Chapter, whether or not the prior offense required registration at the time of commission or conviction, who subsequently is convicted of or adjudicated for an offense which requires registration under the provisions of this Chapter.

C. A person who is required to register pursuant to the provisions of R.S. 15:542.1.3 shall register and maintain his registration and provide community notification pursuant to the provisions of this Chapter for the period of registration provided by the jurisdiction of conviction or for the period of registration provided by the provisions of this Section, whichever period is longer.

D. (1) If an offender begins the period of registration and notification and is subsequently incarcerated for any reason other than a misdemeanor arrest or a misdemeanor conviction or for a felony arrest which does not result in a conviction, then the period of registration and notification shall begin anew on the day the offender is released from incarceration, with no credit for the period of time in which the offender complied with registration and notification requirements prior to his incarceration.

(2) An offender required to register pursuant to the provisions of this Chapter shall receive credit only for the period of time in which he resides in this state and is in compliance with all registration and notification requirements of this state.

E. (1) The registration period of fifteen years established in Subsection A of this Section may be reduced to a period of ten years if the offender maintains a clean record for the entire ten-year period of registration upon motion to be relieved of the sex offender registration in the court of conviction for those convicted in Louisiana, or the court of the parish of residence for those convicted under the laws of another state, or military, territorial, foreign, tribal, or federal law which have been determined to be comparable to a Louisiana offense requiring a fifteen-year registration period by the bureau pursuant to the provisions of R.S. 15:542.1.3. The court shall consider a motion filed pursuant to the provisions of this Subsection only if the motion is accompanied by documentation of completion of an appropriate sex offender treatment program as described in Subparagraph (3)(d) of this Subsection.

(2) The lifetime registration period established in Paragraph (B)(2) of this Section may be reduced to a period of twenty-five years if the offender was adjudicated delinquent for the offense which requires registration and maintains a clean record for twenty-five years upon motion to be relieved of the sex offender registration in the court of adjudication for those adjudicated in Louisiana, or court of the parish of residence for those adjudicated under the laws of another state, or military, territorial, foreign, tribal, or federal law. The court shall consider a motion filed pursuant to the provisions of this Subsection only if the motion is accompanied by documentation of completion of an appropriate sex offender treatment program as described in Subparagraph (3)(d) of this Subsection.

(3) For purposes of this Subsection, an offender maintains a “clean record” by:

(a) Not being convicted of any offense for which imprisonment for more than one year may be imposed.

(b) Not being convicted of any sex offense.

(c) Successfully completing any periods of supervised release, probation, or parole.

(d) Successfully completing an appropriate sex offender treatment program by a registered treatment as provided in R.S. 24:936 or an appropriate sex offender treatment program certified by the Attorney General of the United States.

(e) Complying with all sex offender registration and notification requirements in Louisiana each year for the prescribed period of time pursuant to the provisions of this Chapter.

(4) The following procedures shall apply to the provisions of Paragraphs (1) and (2) of this Subsection:

(a) The district attorney, the Department of Public Safety and Corrections, the office of state police, and the Sexual Predator Apprehension Team of the Department of Justice shall be served with a copy of the motion and documentation related to the successful completion of the appropriate sex offender treatment program as required by Paragraphs (1) and (2) of this Subsection. Upon receipt of the motion and documentation, the following shall occur:

(i) The office of state police shall issue a certification of the offender's history of registration in Louisiana to the court in which the motion was filed. The certification issued by the office of state police shall be admissible and shall be deemed prima facie evidence of the offender's history of registration in Louisiana.

(ii) The Sexual Predator Apprehension Team of the Department of Justice shall conduct a review of the offender's registration, notification, and criminal history and shall determine whether the offender maintained a clean record as defined by Paragraph (3) of this Subsection.

(iii) The district attorney shall review the facts of the underlying sex offense for which the offender is required to comply with the provisions of this Chapter to determine if an objection to the motion is warranted based on continued concerns for public safety.

(b) The court shall order a contradictory hearing to be held not less than sixty days after the date of service of the motion to determine whether the offender is entitled to be relieved of the registration and notification requirements pursuant to the provisions of Paragraphs (1) and (2) of this Subsection. The Department of Public Safety and Corrections, office of state police, and the Department of Justice shall be given notice of the hearing date and shall have a right to oppose the granting of relief if either determines that the offender does not meet the criteria of having maintained a clean record as defined by Paragraph (3) of this Subsection.

(c) The provisions of Paragraphs (1) and (2) of this Subsection shall not apply to any person who was convicted of more than one offense which requires registration pursuant to the provisions of this Chapter.

(d) The offender has the burden of proving that he has maintained a clean record, as defined by the provisions of Paragraph (3) of this Subsection, for the requisite period of time and that continued registration and notification will no longer serve the purposes of this Chapter.

(e) The court may grant the motion, relieving the offender of the duty to register and give notice pursuant to the provisions of this Chapter, only if the offender shows, by clear and convincing evidence, that he has maintained a clean record, as defined by the provisions of Paragraph (3) of this Subsection, for the requisite period of time and that future registration and notification will not serve the purposes of this Chapter.

F. (1) Notwithstanding the provisions of Subsection A or Paragraph (B)(1) of this Section, the court, upon motion of the district attorney, and after a contradictory hearing, shall have the authority to order a person required to register and provide notification pursuant to the provisions of this Chapter to register and notify for the duration of the lifetime of the offender upon a showing by a preponderance of the evidence that the offender poses a substantial risk of committing another offense requiring registration pursuant to this Chapter. The district attorney and the offender may enter into a plea agreement requiring the offender to register and provide notification for the duration of the lifetime of the offender without a contradictory hearing.

(2) Whenever the registration and notification period of a sex offender has been increased to lifetime pursuant to the provisions of Paragraph (1) of this Subsection, upon maintenance of a clean record for the minimum time period applicable to the offense of conviction as provided by the provisions of Subsection A or Paragraph (B)(1) of this Section, the offender may petition the court in the jurisdiction of conviction, or if convicted under the laws of another state, or military, territorial, foreign, tribal, or federal law, in the jurisdiction of the offender's residence, to be relieved of the registration and notification requirements of this Chapter. The district attorney shall be served with the petition, and the matter shall be set for contradictory hearing. Upon a finding by clear and convincing evidence that the offender has maintained a “clean record” as defined in this Section and that the offender does not pose a substantial risk of committing another offense requiring registration pursuant to this Chapter, the court may order that the offender be relieved of the obligation to register and notify pursuant to this Chapter.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1995, No. 928, § 1; Acts 2006, No. 24, § 1; Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 462, § 1, eff. June 25, 2008; Acts 2008, No. 816, § 1; Acts 2010, No. 149, § 1; Acts 2010, No. 400, § 1; Acts 2011, No. 318, § 1, eff. June 28, 2011; Acts 2012, No. 129, § 1, eff. May 14, 2012; Acts 2017, No. 307, § 1.

LSA-R.S. 15:544, LA R.S. 15:544

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:544.1

§ 544.1. Petitions for injunctive relief or declaratory judgments

Effective: August 1, 2017

Currentness

Any petition for injunctive relief or for declaratory judgment regarding the application or interpretation of the registration and notification requirements of this Chapter, other than the summary proceeding provided for in R.S. 15:542(F) and 544(E), shall be filed through ordinary civil proceedings in the district court for the parish where the state capitol is situated. Appeals from determinations made pursuant to R.S. 15:542.1.3 shall comply with the deadlines and other procedures as required by R.S. 15:542.1.3.

Credits

Added by Acts 2013, No. 284, § 1. Amended by Acts 2017, No. 307, § 1.

LSA-R.S. 15:544.1, LA R.S. 15:544.1

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Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:544.2

§ 544.2. Registration and notification period end date; determination; procedures

Effective: August 1, 2017

Currentness

A. (1) Except as provided in Subsections B and C of this Section, for an offender who is required to register as a sex offender or child predator pursuant to the provisions of this Chapter, at least fourteen years from the initial date of registration in Louisiana after the date of conviction for which the offender is required to register pursuant to the provisions of this Chapter or from the date of the offender's latest release from any incarceration, except pursuant to a misdemeanor arrest or conviction or a felony arrest that does not result in a felony conviction, whichever is later, the following procedures shall apply:

(a) The office of state police and the sheriff of each parish in which the offender resides, or has resided, shall upload the offender's registration history to the offender's file in the State Sex Offender and Child Predator Registry.

(b) The Department of Justice shall review the offender's criminal history and registration history and post a prospective registration and notification period end date to the offender's file in the Sex Offender and Child Predator Registry. When posting the prospective registration and notification period end date, the Department of Justice shall include any details relied upon at the time to calculate the registration and notification period end date. If at any time after the determination of the registration and notification period end date the offender's criminal history or registration history reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the running of the registration period to begin anew or to be suspended, the registration and notification period end date shall be revised by the Department of Justice accordingly.

(c) Within thirty days from the date on which the Department of Justice posts its determination of the registration and notification period end date to the offender's file in the State Sex Offender and Child Predator Registry, the Department of Justice or its authorized agent shall give the offender written notice of the prospective registration and notification period end date which shall inform the offender that the registration and notification period end date shall be revised if the offender's criminal history or registration history subsequently reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the end date to be recalculated. The written notice shall also inform the offender of his right to seek review of the Department of Justice's determination as provided in Subsections E and G of this Section. The date on which the letter is sent notifying the offender of his registration and notification period end date shall be entered by the Department of Justice or its authorized agent in the offender's registry profile.

(2) The provisions of this Subsection shall not apply to any of the following:

(a) Any person convicted of a sexual offense against a victim who is a minor as defined by R.S. 15:541.

(b) Any person convicted of an aggravated offense as defined by R.S. 15:541.

(c) Any person who has been convicted of more than one offense that requires registration pursuant to the provisions of this Chapter.

B. For an offender who is required to register pursuant to the provisions of this Chapter for a conviction of a sexual offense against a victim who is a minor as defined by R.S. 15:541, at least twenty-four years after the date of conviction for which the offender is required to register pursuant to the provisions of this Chapter or the date of the offender's latest release from any incarceration, except pursuant to a misdemeanor arrest or conviction or for a felony arrest that does not result in a felony conviction, the following procedures shall apply:

(1) The office of state police and the sheriff of each parish in which the offender resides shall upload the offender's registration history to the offender's file in the Sex Offender and Child Predator Registry.

(2) The Sexual Predator Apprehension Team of the Department of Justice shall review the offender's criminal history and registration history and post a prospective registration and notification period end date to the offender's file in the State Sex Offender and Child Predator Registry. When posting the prospective registration and notification period end date, the Department of Justice shall include any details relied upon at the time to calculate the registration and notification period end date. If at any time after the determination of the registration and notification period end date the offender's criminal history or registration history reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the running of the registration period to begin anew or to be suspended, the registration and notification period end date shall be revised by the Department of Justice accordingly.

(3) Within thirty days from the date on which the Sexual Predator Apprehension Team of the Department of Justice posts its determination of the registration and notification period end date to the offender's file in the State Sex Offender and Child Predator Registry, the Department of Justice or its authorized agent shall give the offender written notice of the prospective registration and notification period end date which shall inform the offender that the registration and notification period end date shall be revised if the offender's criminal history or registration history subsequently reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the end date to be recalculated. The written notice shall also inform the offender of his right to seek review of the Department of Justice's determination as provided in Subsections E and G of this Section. The date on which the letter is sent notifying the offender of his registration and notification period end date shall be entered by the Department of Justice or its authorized agent in the offender's registry profile.

(4) The provisions of this Subsection shall not apply to any person who has been convicted of more than one offense that requires registration pursuant to the provisions of this Chapter or to anyone convicted of an aggravated offense as defined by R.S. 15:541.

C. Whenever there is a question regarding whether an offender, convicted or adjudicated in a Louisiana state court of an offense requiring registration and notification pursuant to the provisions of this Chapter, as a fifteen-year, a twenty-five-year, or a lifetime registrant, the Sexual Predator Apprehension Team of the Department of Justice shall have the authority to make determinations regarding the appropriate time period of registration in accordance with the provisions of this Chapter. When such a determination is made by the Sexual Predator Apprehension Team of the Department of Justice, the determination shall be noted in the offender's profile on the State Sex Offender and Child Predator Registry. These determinations shall be binding for purposes of enforcement of the registration and notification provisions of this Chapter unless overturned by a court of competent

jurisdiction pursuant to R.S. 15:544.1 when a petition is filed within one hundred eighty days of the date of the written notice. Failure to timely file a petition for such relief pursuant to the provisions of this Subsection shall constitute a waiver by the offender and shall make the registration and notification period determination by the Department of Justice binding and final.

D. The registration and notification period end date, calculated and maintained by the Department of Justice pursuant to the provisions of Subsections A and B of this Section, shall be set in accordance with the provisions of this Chapter and shall be binding for purposes of enforcement of the registration and notification provisions of this Chapter unless overturned by the court of competent jurisdiction pursuant to R.S. 15:544.1.

E. If an offender, who is currently residing in this state and is under an active obligation to register and provide notification pursuant to the provisions of this Chapter, believes that the determined registration and notification period end date is incorrect, the offender may seek further review of the end date determination by the Department of Justice within forty-five days of the date on which the notice was sent pursuant to Subparagraph (A)(1)(c) or Paragraph (B)(3) of this Section. The request shall be made in writing and addressed to: Office of the Attorney General, SPAT Unit, Post Office Box 94005, Baton Rouge, Louisiana 70804-9005. The request for review shall include all of the following:

- (1) Name, date of birth, social security number, and phone number of the offender.
- (2) Address of residence and parish in which the offender is currently residing.
- (3) The offense for which the offender was convicted that requires registration and notification pursuant to the provisions of this Chapter, the jurisdiction of conviction, the court of conviction, the date of conviction, and the latest release from incarceration for the conviction that requires registration and notification pursuant to the provisions of this Chapter.
- (4) Specific legal or factual reasons why the offender believes the current registration and notification period end date as determined by the Department of Justice is incorrect.
- (5) A copy of the most recent offender contract signed by the offender at the office of the sheriff of the parish in which the offender resides.
- (6) An affidavit of verification that all allegations of fact are true and accurate.

F. If the request for review meets all of the requirements set forth in Subsection E of this Section, the request shall be reviewed by the Department of Justice. The Department of Justice shall post its decision, and any pertinent law and facts relied upon in making its decision, to the offender's registry file. The Department of Justice or its authorized agent shall provide written notice of the department's decision to the offender within thirty days from the date on which the decision was posted to the offender's file in the State Sex Offender and Child Predator Registry by the Department of Justice. If the request for review submitted by the offender does not meet the procedural requirements set forth in Subsection E of this Section, the request for review shall be rejected and the offender shall be given notice of the rejection through the same method as the notification of the prospective registration and notification end date determination and the date of such notice shall be entered into the offender's registry profile.

G. Within one hundred eighty days of the issuance of notice pursuant to Subsection A, B, E, or F of this Section, whichever is later, the offender may file a petition for injunctive relief or for a declaratory judgment pursuant to the provisions of R.S. 15:544.1. Failure to timely file a petition for such relief pursuant to the provisions of this Subsection shall constitute a waiver by the offender and shall make the registration and notification period end date determination by the Department of Justice final, unless the registration and notification period end date is revised by the Department of Justice because the offender's criminal history or registration history reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the running of the registration period to begin anew or to be suspended.

H. When an offender has complied with all registration and notification requirements for the period of time required by the provisions of this Chapter, the Department of Justice shall, upon request by the offender, issue a formal letter verifying that the offender has completed all his requirements. This letter shall state that the offender is no longer required to register and notify as a sex offender or a child predator for the underlying sex offense or criminal offense against a victim who is a minor, as defined by R.S. 15:541, which gave rise to his obligation to register, unless the offender is convicted of another offense which requires registration and notification pursuant to the provisions of this Chapter.

I. If at any time after the determination of the registration and notification period end date is made pursuant to the provisions of this Chapter, the offender's criminal history or registration history reflects actions or inaction that, pursuant to the provisions of this Chapter, requires the running of the registration period to begin anew or to be suspended, and the registration and notification period end date is revised by the Department of Justice, the Department of Justice shall post the updated registration and notification period end date to the offender's file in the State Sex Offender and Child Predator Registry. Within thirty days from the date on which the Department of Justice posts the revised registration and notification period end date to the offender's file, the Department of Justice or its authorized agent shall give the offender written notice by mail of the revised end date and notify the offender of his right to seek review of the determination by the Department of Justice as provided in Subsections E and G of this Section.

J. The Department of Justice is not required to make the determination of the registration and notification period end date for any offender who is incarcerated or living out of state and is, therefore, not under an active obligation to register and provide notification in Louisiana. Once the offender is released from incarceration or returns to live in Louisiana and is under an active obligation to register and provide notification in this state, the determination of registration and notification period end date shall be made pursuant to the provisions of this Section.

K. Nothing in this Section shall be construed to relieve an offender of the obligation to register and provide notification pursuant to the provisions of this Chapter prior to complying with the obligations of this Chapter for the requisite period of time.

Credits

Added by Acts 2014, No. 798, § 1. Amended by Acts 2017, No. 307, § 1.

LSA-R.S. 15:544.2, LA R.S. 15:544.2

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:545

§ 545. Duty of law enforcement

Effective: August 1, 2022

Currentness

A. (1) It shall be the duty of the sheriff of every parish, the chief of police of each municipality, and every chief officer of every other law enforcement agency operating within this state to record the fingerprints of all persons held in or remanded to their custody when convicted of any sex offense or any criminal offense against a victim who is a minor for which the penalty of imprisonment might be imposed and to disseminate and file such fingerprints in the same manner as those recorded upon every arrest. The sheriff and the police chief or, if the residence is in a municipality with a population in excess of three hundred thousand, the police department shall forward the fingerprints and information obtained pursuant to R.S. 15:542 and 542.1, a copy of the criminal history of the offender, and the text of the law defining the criminal offense which requires registration to the Louisiana Bureau of Criminal Identification and Information within three business days for inclusion into the State Sex Offender and Child Predator Registry.

(2) Each emergency shelter opened or operating in the state of Louisiana in anticipation of a state of emergency being declared or a state of emergency having been declared in the state or any portion of the state shall either access the current sex offender information posted on the State Police Sex Offender and Child Predator Internet Registry or request that the Bureau of Criminal Identification and Information provide the shelter with a copy of the most recent central registry of sex offenders registered under provisions of R.S. 15:542 and 542.1.

(3) It shall be the duty of the sheriff of every parish, the chief of police of each municipality, and every chief officer of every other law enforcement agency operating within this state to record the fingerprints of all persons arrested for any offense involving the operation of a vehicle while intoxicated, including local ordinances pertaining to operating a motor vehicle while intoxicated. However, there shall be no duty to record fingerprints if the fingerprint system at the local prison is unavailable.

B. Every time a furlough is authorized, the Department of Public Safety and Corrections shall notify, forty-eight hours prior to the beginning of such furlough, the bureau that the named prisoner has been granted a furlough, the place to which furloughed, and the dates and times during which the prisoner will be on furlough status. In the case of an emergency furlough the forty-eight hour time period shall not be required but notification shall be made as promptly as possible and before the prisoner is released on furlough. Upon receipt of furlough information pursuant to this Subsection, the bureau shall notify the sheriff of the parish or the chief of police of the municipality to which the prisoner is being furloughed, the nearest Louisiana state police troop unit wherein the furloughed prisoner shall be residing, and such other criminal justice agencies as the bureau may deem necessary.

C. Disposition of the charge for which the arrest was made shall be reported to the bureau at whatever stage in the proceedings a final disposition occurs by the arresting law enforcement agency, district attorney, parish attorney, city attorney, or court having jurisdiction over the offense.

D. Whenever a person serving a sentence for a term of incarceration in a state correctional facility for convicted felons, pursuant to court commitment, is released on an order of the committee on parole or office of adult services, or is discharged from custody on expiration of sentence, the Department of Public Safety and Corrections shall promptly notify the bureau that the named person has been released or discharged, and the conditions of his release or discharge, and shall additionally notify the bureau of change in residence or conditions of release or discharge of a person on active parole supervision, and shall notify the bureau when the person is discharged from active parole supervision. Any person released or discharged shall register with the sheriff pursuant to R.S. 15:542. In addition, nothing in this Chapter shall be construed to prevent any local law enforcement agency from recording the residency and other information concerning any convicted felon or other person convicted of a criminal offense when such information is obtained from a source other than from registration pursuant to R.S. 15:542, which source may include any law enforcement officer or other agency or subdivision of the state.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1999, No. 816, § 1; Acts 2005, 1st Ex.Sess., No. 11, § 1; Acts 2006, No. 285, § 1; Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2011, 1st Ex.Sess., No. 18, § 1; Acts 2022, No. 334, § 1.

LSA-R.S. 15:545, LA R.S. 15:545

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LSA-R.S. 15:545.1

§ 545.1. Duty of interactive computer service

Effective: August 1, 2025

Currentness

A. (1) Upon request from a law enforcement agency, the interactive computer service shall take all steps necessary to preserve records and other evidence in its possession pending the issuance of a court order or other legal process. The provider of interactive computer service shall comply with the request as soon as reasonably practical following receipt.

(2) Records referred to in Paragraph (1) of this Subsection shall be retained for ninety days. This time period shall be extended for an additional ninety days upon further request of the law enforcement agency when the law enforcement agency requests the extension within the original ninety day period.

(3) Paragraphs (1) and (2) of this Subsection shall be interpreted in a manner consistent with the requirements of federal law that apply to providers of Internet service provided for in Chapter 121 of Title 18 of the United States Code and 42 U.S.C. 13032.

B. (1) An interactive computer service shall release evidence regarding all categories of information identified in 18 U.S.C. 2703(c)(2) that are in its possession as soon as reasonably practical, considering other outstanding law enforcement and legal requests, after receiving a court order requiring the interactive computer service to release such evidence to law enforcement.

(2) Paragraph (1) of this Subsection shall be interpreted in a manner consistent with the requirements of federal law that apply to providers of Internet service provided for in Chapter 121 of Title 18 of the United States Code and 42 U.S.C. 13032.

C. An interactive computer service doing business in this state that obtains knowledge of facts or circumstances from which a violation of any law in this state prohibiting possession, distribution, or creation of images containing child pornography or child sexual abuse materials or prohibiting sexual activity involving a child is apparent, shall make a report, as soon as reasonably possible, of such facts or circumstances to the CyberTipline at the National Center for Missing and Exploited Children consistent with the requirements of 42 U.S.C. 13032.

Credits

Added by Acts 2008, No. 672, § 2. Amended by Acts 2025, No. 261, § 2.

LSA-R.S. 15:545.1, LA R.S. 15:545.1

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Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:546

§ 546. Release of information

Currentness

A. Criminal justice agencies shall release relevant and necessary information regarding sex offenders, child predators, and sexually violent predators to the public when the release of the information is necessary for public protection, according to the provisions set forth by the board pursuant to R.S. 15:547(C).

B. (1) An elected official, public employee, public agency, or criminal justice agency shall be immune from civil liability for damages for any discretionary decision to release relevant and necessary information, unless it is shown that the official, employee, or agency acted with gross negligence or in bad faith. The authorization and immunity in this Chapter apply to information regarding:

(a) A person who has been convicted of a sex offense or criminal offense against a victim who is a minor, or who has been determined to be a sexually violent predator as defined in this Chapter.

(b) A person found not guilty by reason of insanity of a sex offense or criminal offense against a victim who is a minor.

(c) A person found incompetent to stand trial for a sex offense or criminal offense against a victim who is a minor and subsequently committed to a treatment facility or institution or hospital.

(2) The immunity provided under this Section applies to the release of relevant information to other employees or officials or to the general public.

(3) The identity of a victim, or information leading to the identity of a victim, of an offense that requires registration under this Section shall not be released.

C. Nothing in this Chapter, except as otherwise provided, shall impose any liability upon a public official, public employee, or public agency for failing to release information as provided in this Chapter.

D. An offender's pending appeal or writ of habeas corpus shall not restrict the agency's, official's, or employee's authority to release relevant information concerning an offender's prior criminal history. However, the agency shall release the latest dispositions of the charges as they are provided.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1997, No. 1147, § 1, eff. July 14, 1997.

LSA-R.S. 15:546, LA R.S. 15:546

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LSA-R.S. 15:547

§ 547. Committee on parole

Currentness

A. The committee on parole, hereinafter referred to as “the committee”, shall cause a complete record to be kept of every prisoner released on parole. Such records shall be organized in accordance with the most modern methods of filing and indexing so that there will be always immediately available complete information about such prisoner. The committee may make rules as to the privacy of such records and their use by persons other than the committee and its staff. In determining the rules regarding dissemination of information regarding convicted sex offenders, child predators, or persons determined to be sexually violent predators under the committee's jurisdiction, the committee shall institute rules pursuant to the provisions of R.S. 15:546, and shall be immune from liability for the release of information concerning any sex offender, sexually violent predator, or child predator.

B. In addition to any other information required to be released under this Chapter, the committee may, pursuant to R.S. 15:546, release information concerning any inmate under the jurisdiction of the committee who is convicted of any sex offense or criminal offense against a victim who is a minor, or who has been determined to be a sexually violent predator.

C. (1) The committee shall conduct one public hearing in each municipality with a population of not less than fifty thousand and otherwise in accordance with the provisions of the Administrative Procedure Act, and receive information and input from the public and shall establish and promulgate rules, regulations, policy, and guidelines governing the disclosure and dissemination of information regarding sex offenders, sexually violent predators, and child predators to the public pursuant to the intent and purposes of this Chapter.

(2) Every criminal justice agency and other agency, committee, office, or other entity of the state or any political subdivision thereof, shall cooperate, consult with, and otherwise assist the committee in the promulgation, implementation, and enforcement of the rules, regulations, guidelines, and policy required and established pursuant to the full implementation of this Chapter.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1997, No. 1147, § 1, eff. July 14, 1997.

LSA-R.S. 15:547, LA R.S. 15:547

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:548

§ 548. Dissemination policy

Currentness

A. Conviction records may be disseminated without restriction.

B. Any criminal history record information which pertains to an incident for which a person is currently being processed by the criminal justice system, including the entire period of correctional supervision extending through final discharge from parole, when applicable, may be disseminated without restriction.

C. Criminal history record information which includes nonconviction data may be disseminated by a criminal justice agency to another criminal justice agency for any purpose associated with the administration of criminal justice, or in connection with the employment of the subject of the record by a criminal justice or juvenile justice agency. A criminal justice agency may respond to any inquiry from another criminal justice agency without any obligation to ascertain the purpose for which the information is to be used by the agency making the inquiry.

D. Criminal history record information which includes nonconviction data may be disseminated by a criminal justice agency to implement a statute, ordinance, executive order, or a court rule, decision, or order which expressly refers to records of arrest, charges, or allegations of criminal conduct or other nonconviction data and authorizes or directs that it be available or accessible for a specific purpose.

E. Criminal history record information which includes nonconviction data may be disseminated to individuals and agencies pursuant to a contract with a criminal justice agency to provide services related to the administration of criminal justice. Such contract must specifically authorize access to criminal history record information, but need not specifically state that access to nonconviction data is included. The agreement must limit the use of the criminal history record information to stated purposes and insure the confidentiality and security of the information consistent with state law and any applicable federal statutes and regulations.

F. Criminal history record information which includes nonconviction data may be disseminated to individuals and agencies for the express purpose of research, evaluative, or statistical activities pursuant to an agreement with a criminal justice agency. Such agreement must authorize the access to nonconviction data, limit the use of that information which identifies specific individuals to research, evaluative, or statistical purposes, and contain provisions giving notice to the person or organization to which the records are disseminated that the use of information obtained therefrom and further dissemination of such information are subject to this Chapter and applicable federal statutes and regulations, which shall be cited with express reference to the penalties provided for a violation thereof.

G. (1) Every criminal justice agency that maintains and disseminates criminal history record information shall maintain information pertaining to each dissemination of criminal history record information, except a dissemination to the effect that the agency has no record concerning an individual. Information pertaining to disseminations shall include:

(a) An indication as to which agency or person to whom the criminal history record information was disseminated.

(b) The date on which the information was disseminated.

(c) The individual to whom the information relates.

(d) A brief description of the information disseminated.

(2) The information pertaining to dissemination required to be maintained shall be retained for a period of not less than one year.

H. In addition to the other provisions in this Chapter allowing dissemination of criminal history record information, R.S. 15:546 governs dissemination of information concerning any offender who commits a sex offense or criminal offense against a victim who is a minor, or who has been determined to be a sexually violent predator. Criminal justice agencies, their employees, and officials shall be immune from civil liability for dissemination of criminal history record information concerning sex offenders, sexually violent predators, or child predators as provided in this Chapter.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 1997, No. 1147, § 1, eff. July 14, 1997.

LSA-R.S. 15:548, LA R.S. 15:548

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Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:549

§ 549. Notification of release or escape of inmate

Effective: August 15, 2008

Currentness

A. At the earliest possible date, and in no event later than ten days before release, except in the event of escape or emergency furloughs, the Department of Public Safety and Corrections shall send written notice of parole, community placement, work release placement, furlough, or escape, about a specific inmate convicted of a sex offense or a criminal offense against a victim who is a minor, to all of the following:

(1) The chief of police of the municipality in which the inmate will reside or in which placement will be made in a work release program.

(2) The sheriff of the parish in which the inmate will reside or in which placement will be made in a work release program.

B. The same notice as required in Subsection A of this Section shall be sent to the following if such notice has been requested in writing about a specific inmate convicted of a sex offense or a criminal offense against a victim who is a minor:

(1) The victim of the crime for which the inmate was convicted.

(2) Any witnesses who testified against the inmate in any court proceedings involving the offense.

(3) Any person specified in writing by the prosecuting district attorney.

C. Information regarding any victim, a relative of the victim, or witness requesting the notice, information regarding any other person specified in writing by the prosecuting district attorney to receive the notice, and the notice are confidential and shall not be available to the inmate.

D. If an inmate convicted of a sex offense or a criminal offense against a victim who is a minor escapes from a correctional facility, the Department of Public Safety and Corrections shall immediately notify, by the most reasonable and expedient means available, the chief of police of the municipality and the sheriff of the parish in which the inmate resided immediately before the inmate's arrest and conviction. If previously requested, the department shall also notify the witnesses and the victim of the crime for which the inmate was convicted. If the inmate is recaptured, the department shall send notice to the persons designated in this Subsection as soon as possible but in no event later than two working days after the department learns of such recapture.

E. If the victim or any witness is under the age of sixteen, the notice required by this Section shall be sent to the parents, tutor, or legal guardian of the child.

F. The Department of Public Safety and Corrections shall send the notices required by this Chapter to the last address provided to the department by the requesting party. The requesting party shall furnish the department with a current address.

G. Nothing in this Section shall impose any liability upon a chief of police of a municipality or sheriff of a parish for failing to request in writing a notice as provided in this Section.

H. The state shall make the electronic mail address or addresses and instant message names or names collected for the sex offender registry available to any commercial or non-profit entity who makes a request and which promotes child safety, including any of the following:

(1) Child safety organizations who attempt to deter the sexual exploitation of children.

(2) Educational institutions.

(3) Interactive computer services.

I. No provider of interactive computer services shall be liable under this Chapter or any other provision of law for any of the following:

(1) Identifying, removing, disabling, blocking or otherwise affecting a user on a good faith belief that such user's electronic mail address, instant message name, username, or other similar Internet identifier appeared in the National Sex Offender Registry or any analogous state registry.

(2) For failing to identify, block or otherwise prevent a person from registering for its service, or for failing to remove, disable or otherwise affect a registered user, whose electronic mail address, instant message name or names, or other similar Internet identifier appears in the National Sex Offender Registry or any analogous state registry.

Credits

Added by Acts 1992, No. 388, § 1, eff. June 18, 1992. Amended by Acts 2007, No. 460, § 2, eff. Jan. 1, 2008; Acts 2008, No. 672, § 2.

LSA-R.S. 15:549, LA R.S. 15:549

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Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:551

§ 551. Harboring or concealing a sexual offender, sexually violent predator, or child predator; penalties

Effective: August 15, 2006

Currentness

A. Harboring or concealing a sexual offender, sexually violent predator, or child predator is committed when a person knows or has reason to know that a sexual offender, sexually violent predator, or child predator convicted of a sex offense and required to register as a sex offender as provided for in Chapter 3-B of this Title has failed to comply with the registration requirements of this Chapter and with the intent of assisting the sexual offender, sexually violent predator, or child predator in eluding a state or local law enforcement agency does any of the following:

(1) Withholds information from or does not notify the law enforcement agency about a sexual offender, sexually violent predator, or child predator's noncompliance with the requirements of this Chapter.

(2) Harbors or attempts to harbor or assists another person in harboring or attempting to harbor a sexual offender, sexually violent predator, or child predator.

(3) Conceals or attempts to conceal or assists another person in concealing or attempting to conceal a sexual offender, sexually violent predator, or child predator.

(4) Provides information to the law enforcement agency regarding a sexual offender, sexually violent predator, or child predator which the person knows to be false.

B. Whoever commits the crime of harboring or concealing a sexual offender, sexually violent predator, or child predator shall be imprisoned not more than five years or fined not more than five thousand dollars, or both. At least two years of the sentence imposed shall be served without benefit of parole, probation, or suspension of sentence.

Credits

Added by Acts 2006, No. 137, § 1.

LSA-R.S. 15:551, LA R.S. 15:551

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:552

§ 552. Sexual Predator Apprehension Team

Effective: August 15, 2006

Currentness

The attorney general shall maintain a statewide Sexual Predator Apprehension Team within the Department of Justice. The Sexual Predator Apprehension Team shall be comprised of special agents, intelligence analysts, and prosecutors. The team shall focus on repeat sex offenders and perform the following activities:

(1) Coordinate with state and local investigative resources including but not limited to the Department of Public Safety and Corrections, office of probation and parole, and office of state police, sheriffs' departments, police departments, and district attorneys' offices to apprehend sexual offenders and persons required to register under R.S. 15:542 and 542.1 who violate the law or conditions of probation or parole.

(2) Give priority to proactively targeting and monitoring sex offenders required to register under R.S. 15:542 and 542.1 before the commission of additional sexual offenses who are not currently being monitored by the Department of Public Safety and Corrections, office of probation and parole, or office of state police.

(3) Offer specialized training and assistance to local law enforcement and prosecutors in the apprehension and prosecution of sexual offenders and violators of sexual offender registration requirements.

(4) Identify, monitor, arrest, and assist in the prosecution of sexual offenders who violate the terms and conditions of their probation or parole, who fail to comply with the registration and notification requirements of R.S. 15:542 and 542.1, or who commit new sexual assault offenses.

(5) Collect data to determine if the proactive law enforcement procedures adopted by the program are effective in reducing sexual assault offenses.

(6) Develop procedures for operating a multi-jurisdictional task force.

Credits

Added by Acts 2006, No. 354, § 1.

LSA-R.S. 15:552, LA R.S. 15:552

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

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West's Louisiana Statutes Annotated

Louisiana Revised Statutes

Title 15. Criminal Procedure (Refs & Annos)

Chapter 3-B. Registration of Sex Offenders, Sexually Violent Predators, and Child Predators (Refs & Annos)

LSA-R.S. 15:553

§ 553. Prohibition of employment for certain sex offenders

Effective: August 1, 2016

Currentness

A. It shall be unlawful for any person who is required to maintain registration pursuant to Chapter 3-B of Title 15 to operate any bus, taxicab, or limousine for hire.

B. It shall be unlawful for any person who is required to maintain registration pursuant to Chapter 3-B of Title 15 to engage in employment as a service worker who goes into a residence to provide any type of service.

C. It shall be unlawful for any person whose offense involved a minor child and who is required to maintain registration pursuant to Chapter 3-B of Title 15 to operate any carnival or amusement ride.

D. It shall be unlawful for any person who is required to maintain registration pursuant to Chapter 3-B of Title 15 to engage in employment as a door-to-door solicitor, peddler, or itinerant vendor selling any type of goods or services including magazines or periodicals or subscriptions to magazines or periodicals.

E. For the purposes of this Section, the following terms and phrases shall have the meanings ascribed to them:

(1) "Bus" means a motor vehicle with a seating capacity of six or more persons, exclusive of the operator, which is used in the transportation of passengers for hire, excluding any vehicle leased without the provision of a driver.

(2) "Carnival or amusement ride" means either of the following:

(a) A device that is intended to give amusement, excitement, pleasure, or thrills to riders whom the device carries along or around a fixed or restricted course or within a defined area.

(b) A structure that gives amusement, excitement, pleasure, or thrills to people who move around, over, or through the structure without the aid of a moving device integral to the structure.

(3) "Taxicab" means all motor vehicles for hire, carrying six passengers or less, including the driver thereof, which are subject to call from a garage, office, taxi stand, or otherwise.

F. Any person who violates the provisions of this Section shall be fined not more than ten thousand dollars and imprisoned for not less than five years nor more than ten years at hard labor. Three years shall be served without the benefit of parole, probation, or suspension of sentence.

G. The provisions of this Section shall apply only to a person ordered by the court to register as a sex offender on or after August 15, 2010.

Credits

Added by Acts 2010, No. 973, § 2, eff. July 6, 2010. Amended by Acts 2016, No. 267, § 1.

LSA-R.S. 15:553, LA R.S. 15:553

The Constitution, Revised Statutes, and the Codes are current through the 2025 Regular and First Extraordinary Sessions.

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Maine Revised Statutes Annotated

Title 34-a. Corrections

Chapter 13. Sex Offender Registration and Notification Act [Repealed]

34-A M.R.S.A. Ch. 13, Refs & Annos

Currentness

34-A M. R. S. A. Ch. 13, Refs & Annos, ME ST T. 34-A, Ch. 13, Refs & Annos

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 1. General Provisions [Repealed]

34-A M.R.S.A. § 11101

§§ 11101 to 11105. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11101, ME ST T. 34-A § 11101

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 1. General Provisions [Repealed]

34-A M.R.S.A. § 11102

§§ 11101 to 11105. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11102, ME ST T. 34-A § 11102

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 1. General Provisions [Repealed]

34-A M.R.S.A. § 11103

§§ 11101 to 11105. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11103, ME ST T. 34-A § 11103

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 1. General Provisions [Repealed]

34-A M.R.S.A. § 11104

§§ 11101 to 11105. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11104, ME ST T. 34-A § 11104

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 1. General Provisions [Repealed]

34-A M.R.S.A. § 11105

§§ 11101 to 11105. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11105, ME ST T. 34-A § 11105

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 2. Sex Offender Registration [Repealed]

34-A M.R.S.A. § 11121

§ 11121. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11121, ME ST T. 34-A § 11121

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 3. Notification [Repealed]

34-A M.R.S.A. § 11141

§§ 11141 to 11144. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11141, ME ST T. 34-A § 11141

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 3. Notification [Repealed]

34-A M.R.S.A. § 11142

§§ 11141 to 11144. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11142, ME ST T. 34-A § 11142

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 3. Notification [Repealed]

34-A M.R.S.A. § 11143

§§ 11141 to 11144. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11143, ME ST T. 34-A § 11143

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 13. Sex Offender Registration and Notification Act [Repealed] (Refs & Annos)

Subchapter 3. Notification [Repealed]

34-A M.R.S.A. § 11144

§§ 11141 to 11144. Repealed. Laws 2001, c. 439, § 000-5

Currentness

34-A M. R. S. A. § 11144, ME ST T. 34-A § 11144

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections

Chapter 15. Sex Offender Registration and Notification Act of 1999

34-A M.R.S.A. Ch. 15, Refs & Annos

Currentness

34-A M. R. S. A. Ch. 15, Refs & Annos, ME ST T. 34-A, Ch. 15, Refs & Annos

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 1. General Provisions

34-A M.R.S.A. § 11201

§ 11201. Short title

Effective: September 12, 2009

Currentness

This chapter may be known and cited as the “Sex Offender Registration and Notification Act of 1999.” The purpose of this chapter is to protect the public from potentially dangerous registrants and offenders by enhancing access to information concerning those registrants and offenders.

Credits

1999, c. 437, § 2; 2001, c. 439, § 000-6; 2003, c. 711, § C-4; 2009, c. 365, § B-1.

34-A M. R. S. A. § 11201, ME ST T. 34-A § 11201

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 1. General Provisions

34-A M.R.S.A. § 11202

§ 11202. Application

Effective: September 12, 2009

Currentness

Unless excepted under section 11202-A, this chapter applies to:

1. Maine. A person sentenced in this State on or after January 1, 1982 for a sex offense or a sexually violent offense as an adult or as a juvenile sentenced as an adult; and

2. Other jurisdictions. A person sentenced in another jurisdiction as an adult or as a juvenile sentenced as an adult:

A. At any time of an offense that requires registration in the jurisdiction of conviction pursuant to that jurisdiction's sex offender registration laws or that would have required registration had the person remained there;

B. On or after January 1, 1982, of an offense that contains the essential elements of a sex offense or sexually violent offense; or

C. At any time for a military, tribal or federal offense requiring registration pursuant to:

(1) The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248.

Credits

1999, c. 437, § 2; 2001, c. 439, § 000-7; 2003, c. 711, § C-5; 2005, c. 423, § 1; 2009, c. 365, § B-2.

34-A M. R. S. A. § 11202, ME ST T. 34-A § 11202

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 1. General Provisions

34-A M.R.S.A. § 11202-A

§ 11202-A. Exception

Effective: October 15, 2015

Currentness

1. Exception. Notwithstanding section 11202, a person is not required to register under this chapter if that person submits to the bureau, in a form to be determined by the bureau, documentation to establish the following:

A. The person was sentenced in the State on or after January 1, 1982 and prior to June 30, 1992 and was finally discharged from the correctional system at least 10 years prior to submitting documentation to the bureau under this section; the person was sentenced in the State on or after June 30, 1992 and prior to September 18, 1999 and was finally discharged from the correctional system at least 10 years prior to submitting documentation to the bureau under this section; the person was sentenced in another jurisdiction prior to September 18, 1999, was finally discharged from the correctional system at least 10 years prior to submitting documentation to the bureau under this section and has been in compliance with the registration duties as a resident required under subchapter 2 since September 12, 2009; or the person was sentenced in the State on or after September 18, 1999 and prior to July 30, 2004 for a violation of former Title 17-A, section 252 and was finally discharged from the correctional system at least 10 years prior to submitting documentation to the bureau under this section. For purposes of this paragraph, “finally discharged from the correctional system” includes completion of probation;

B. The person's convictions do not include more than one Class A sex offense or sexually violent offense or more than one conviction in another jurisdiction for an offense that contains the essential elements of a Class A sex offense or sexually violent offense, whether or not the convictions occurred on the same date;

C. At the time of the offense, the person had not been previously sentenced in this State as an adult or as a juvenile sentenced as an adult for a sex offense or a sexually violent offense;

D. At the time of the offense, the person had not been previously sentenced in another jurisdiction as an adult or as a juvenile sentenced as an adult for an offense that contains the essential elements of a sex offense or a sexually violent offense;

E. Subsequent to the conviction for the sex offense or sexually violent offense, the person has not been convicted of and sentenced for a crime under Title 17 or Title 17-A in this State that is punishable by imprisonment for a term of one year or more; and

F. Subsequent to the conviction for the sex offense or sexually violent offense, the person has not been convicted of and sentenced for a crime under the laws of any other jurisdiction that is punishable by a term of imprisonment exceeding one

year. This paragraph does not include a crime under the laws of another jurisdiction that is classified by the laws of that jurisdiction as a misdemeanor and is punishable by a term of imprisonment of 2 years or less.

2. Duty continues. A person's duty to register continues until the bureau determines that the documentation meets the requirements of this section and any rules adopted by the bureau.

3. Costs. A person who submits documentation under this section is responsible for the costs of any criminal history record checks required.

4. Restoration of registration status. The registration obligation of a person that is discharged pursuant to this section is restored by any subsequent conviction for a crime described in subsection 1, paragraph E or F.

5. Appeal. A decision to deny an application for relief under this section is a final agency action, which may be appealed by filing a petition for review pursuant to Title 5, chapter 375, subchapter 7.¹

6. Subsequent offenses and consideration of prior offense. If application for relief is approved and a duty to register is extinguished under this section, and the person is subsequently sentenced for a new sex offense or sexually violent offense, the prior offense for which the duty to register was extinguished must be counted as a prior offense for the purposes of classifying the person as a lifetime registrant.

Credits

2009, c. 365, § B-3; 2009, c. 570, § 1, eff. March 30, 2010; 2015, c. 280, § 1, eff. Oct. 15, 2015.

Footnotes

¹ 5 M.R.S.A. § 11001 et seq.

34-A M. R. S. A. § 11202-A, ME ST T. 34-A § 11202-A

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 1. General Provisions

34-A M.R.S.A. § 11203

§ 11203. Definitions

Effective: October 9, 2013

Currentness

As used in this chapter, unless the context otherwise indicates, the following terms have the following meanings.

1. Bureau. “Bureau” means the State Bureau of Identification.

1-A. Conditional release. “Conditional release” means supervised release of a registrant or an offender from institutional confinement for placement on probation, parole, supervised release for sex offenders, supervised community confinement, home release monitoring or release under Title 15, section 104-A or Title 17-A, chapter 54-G.¹

1-B. Discharge. “Discharge” means unconditional release and discharge of a registrant from institutional confinement upon the expiration of a sentence or upon discharge under Title 15, section 104-A.

1-C. Another state. “Another state” means each of the several states except Maine, the District of Columbia, the Commonwealth of Puerto Rico, the U.S. Virgin Islands, Guam, American Samoa and the Northern Mariana Islands.

2. Domicile. “Domicile” means the place where a person has that person's established, fixed, permanent or ordinary dwelling place or legal residence to which, whenever the person is absent, the person has the intention of returning. A person may have more than one residence but only one domicile.

3. FBI. “FBI” means the Federal Bureau of Investigation.

3-A. Jurisdiction. “Jurisdiction” means the Federal Government, including the military, this State or another state or tribe.

4. Law enforcement agency having jurisdiction. “Law enforcement agency having jurisdiction” means the chief of police in the municipality where a registrant or an offender expects to be or is domiciled. If the municipality does not have a chief of police, “law enforcement agency having jurisdiction” means the sheriff of the county where the municipality is located. “Law enforcement agency having jurisdiction” also means the sheriff of the county in an unorganized territory.

4-A. Risk assessment instrument. “Risk assessment instrument” means an instrument created and modified as necessary by reviewing and analyzing precursors to a sex offense, victim populations of a registrant or an offender, living conditions and environment of a registrant or an offender and other factors predisposing a person to become a registrant or an offender, for the ongoing purpose of identifying risk factors.

4-B. Sentence. “Sentence,” in addition to any punishment alternatives, includes an involuntary commitment under Title 15, section 103, or similar statute from another jurisdiction, following a verdict of not criminally responsible by reason of mental disease or defect or similar verdict in another jurisdiction.

4-C. Registrant. “Registrant” means a 10-year registrant or a lifetime registrant or, when appropriate, both a 10-year registrant and a lifetime registrant.

4-D. Residence. “Residence” means that place or those places, other than a domicile, in which a person may spend time living, residing or dwelling. Proof that an offender has lived in the State for 14 days continuously or an aggregate of 30 days within a period of one year gives rise to a permissible inference under the Maine Rules of Evidence, Rule 303 that the person has established a residence for the purposes of registration requirements imposed by this chapter.

4-E. Offender. “Offender” means a person to whom this chapter applies pursuant to section 11202.

5. Ten-year registrant. “Ten-year registrant” means a person who has complied with the initial duty to register under this chapter as an adult convicted and sentenced or a juvenile convicted and sentenced as an adult of a sex offense.

6. Sex offense. “Sex offense” means a conviction for one of the following offenses or for an attempt or solicitation of one of the following offenses if the victim was less than 18 years of age at the time of the criminal conduct:

A. Repealed. Laws 2005, c. 423, § 4.

B. A violation under former Title 17, section 2922; former Title 17, section 2923; former Title 17, section 2924; Title 17-A, section 253, subsection 2, paragraph E, F, G, H, I or J; Title 17-A, section 254; former Title 17-A, section 255, subsection 1, paragraph A, E, F, G, I or J; former Title 17-A, section 255, subsection 1, paragraph B or D if the crime was not elevated a class under former Title 17-A, section 255, subsection 3; Title 17-A, section 255-A, subsection 1, paragraph A, B, C, F-2, G, I, J, K, L, M, N, Q, R, S or T; Title 17-A, section 256; Title 17-A, section 258; former Title 17-A, section 259; Title 17-A, section 282; Title 17-A, section 283; Title 17-A, section 284; Title 17-A, section 301, subsection 1, paragraph A, subparagraph (3), unless the actor is a parent of the victim; Title 17-A, section 511, subsection 1, paragraph D; Title 17-A, section 556; Title 17-A, section 852, subsection 1, paragraph B; or Title 17-A, section 855;

C. A violation in another jurisdiction that includes the essential elements of an offense listed in paragraph B; or

D. A conviction for a military, tribal or federal offense requiring registration pursuant to:

(1) The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248.

6-A. Sex offense; after October 1, 2011. For persons convicted and sentenced on or after October 1, 2011, “sex offense” means, in addition to the offenses listed in subsection 6, a conviction for one of the following offenses or for an attempt or solicitation of one of the following offenses, without regard to the age of the victim:

A. Title 17-A, section 253, subsection 2, paragraphs J, K and L and Title 17-A, section 255-A, subsection 1, paragraphs C, G, Q, R, R-1, R-2, W and X;

B. A violation in another jurisdiction that includes the essential elements of an offense listed in paragraph A; or

C. A conviction for a military, tribal or federal offense requiring registration pursuant to:

(1) The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248.

6-B. Sex offense; after October 1, 2012. For persons convicted and sentenced on or after October 1, 2012, “sex offense” means, in addition to the offenses listed in subsections 6 and 6-A:

A. A conviction for an offense under Title 17-A, section 259-A or for an attempt or conspiracy to commit an offense under Title 17-A, section 259-A;

B. A violation in another jurisdiction that includes the essential elements of an offense listed under Title 17-A, section 259-A; or

C. A conviction for a military, tribal or federal offense requiring registration pursuant to:

(1) The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248.

7. Sexually violent offense. “Sexually violent offense” means:

A. A conviction for one of the offenses or for an attempt to commit one of the offenses under former Title 17-A, section 252; under Title 17-A, section 253, subsection 1; Title 17-A, section 253, subsection 2, paragraph A, B, C or D; former Title 17-A, section 255, subsection 1, paragraph C or H; former Title 17-A, section 255, subsection 1, paragraph B or D, if the crime was elevated a class under former Title 17-A, section 255, subsection 3; Title 17-A, section 255-A, subsection 1, paragraph D, E, E-1, F, F-1, H, O or P;

B. A conviction for an offense or for an attempt to commit an offense of the law in another jurisdiction that includes the essential elements of an offense listed in paragraph A; or

C. A conviction for a military, tribal or federal offense requiring registration pursuant to:

(1) The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248.

8. Lifetime registrant. “Lifetime registrant” means a person who has complied with the initial duty to register under this chapter as an adult convicted and sentenced or a juvenile convicted and sentenced as an adult of a:

A. Sexually violent offense; or

B. Sex offense when the person has another conviction for or an attempt to commit an offense that includes the essential elements of a sex offense or sexually violent offense. For purposes of this paragraph, “another conviction” means:

(1) For persons convicted and sentenced before September 17, 2005, a conviction for an offense for which sentence was imposed prior to the occurrence of the new offense; and

(2) For persons convicted and sentenced on or after September 17, 2005, a conviction that occurred at any time. Convictions that occur on the same day may be counted as other offenses for the purposes of classifying a person as a lifetime registrant if:

(a) There is more than one victim; or

(b) The convictions are for offenses based on different conduct or arising from different criminal episodes.

9. Tribe. “Tribe” means the Passamaquoddy Tribe or the Penobscot Nation.

Credits

1999, c. 437, § 2; 2001, c. 383, §§ 153, 154, eff. Jan. 31, 2003; 2001, c. 439, §§ OOO-8 to OOO-10; 2001, c. 553, §§ 1, 2 and 4 to 9, eff. March 25, 2002; 2001, c. 553, § 3, eff. Jan. 31, 2003; 2003, c. 371, §§ 1 to 3; 2003, c. 711, §§ C-6 to C-16; 2005, c. 423, §§ 2 to 7; 2009, c. 365, §§ B-4 to B-14; 2011, c. 423, § 10; 2011, c. 597, §§ 6, 7, eff. April 6, 2012; 2011, c. 604, § 3; 2013, c. 133, § 32, eff. Oct. 9, 2013; 2013, c. 424, § A-19, eff. July 16, 2013.

Footnotes

1 17-A M.R.S.A. § 1349 et seq.

34-A M. R. S. A. § 11203, ME ST T. 34-A § 11203

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 1. General Provisions

34-A M.R.S.A. § 11204

§ 11204. Rulemaking

Currentness

The bureau may adopt rules necessary to implement this chapter. Rules adopted pursuant to this chapter are routine technical rules as defined by Title 5, chapter 375, subchapter 2-A.¹

Credits

2005, c. 423, § 8.

Footnotes

¹ 5 M.R.S.A. § 8071 et seq.

34-A M. R. S. A. § 11204, ME ST T. 34-A § 11204

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11221

§ 11221. Maintenance of sex offender registry

Effective: October 15, 2015

Currentness

1. Maintenance of registry. The bureau shall establish and maintain a registry of persons required to register pursuant to this subchapter. The registry must include the following information on each registrant:

- A. The registrant's name, aliases, date of birth, sex, race, height, weight, eye color, mailing address and physical location of expected domicile and residence;
- B. Place of employment and college or school being attended, if applicable, and the corresponding address and location;
- C. Offense history;
- D. Notation of any treatment received for a mental abnormality or personality disorder;
- E. A photograph and set of fingerprints;
- F. A description of the offense for which the registrant was convicted, the date of conviction and the sentence imposed; and
- G. Any other information the bureau determines important.

2. National or regional registry. The bureau is authorized to make the registry available to and accept files from a national or regional registry of registrants for the purpose of sharing information.

3. Registration form. The bureau shall develop a standardized registration form to be made available to the appropriate reporting authorities and persons required to register.

4. Verification form. The bureau shall develop and mail a nonforwardable verification form to the last reported mailing address of each person required to meet the verification requirements of this chapter.

5. Repealed. Laws 2003, c. 371, § 5.

6. Distribution of information to department and law enforcement agencies. The bureau shall distribute information described in subsection 1 to the department and law enforcement agencies having jurisdiction over the address and location of the registrant's domicile, residence, place of employment and college or school being attended.

7. Repealed. Laws 2005, c. 423, § 11.

8. Criminal justice agency access to information. The bureau shall provide access to the information described in subsection 1 to criminal justice agencies. For purposes of this subsection, “criminal justice agency” has the same meaning as in Title 16, section 703, subsection 4.

9. Public access to information. The bureau shall provide information to the public as follows.

A. The bureau shall post on the Internet for public inspection the following information concerning a registrant:

- (1) The registrant's name, date of birth and photograph;
- (2) The registrant's city or town of domicile and residence;
- (3) The registrant's place of employment and college or school being attended, if applicable, and the corresponding address and location;
- (4) The statutory citation and name of the offense for which the registrant was convicted; and
- (5) The registrant's designation as a 10-year registrant or a lifetime registrant.

B. Upon receiving a written request that includes the name and date of birth of a registrant, the bureau shall provide the following information concerning a registrant to the requestor:

- (1) The registrant's name, aliases, date of birth, sex, race, height, weight, eye color, mailing address and physical location of domicile and residence;
- (2) The registrant's place of employment and college or school being attended, if applicable, and the corresponding address and location;
- (3) A description of the offense for which the registrant was convicted, the date of conviction and the sentence imposed; and

(4) The registrant's photograph.

9-A. Registry information. Registry information created, collected or maintained by the bureau, including, but not limited to, information relating to the identity of persons accessing the registry, is confidential, except the following are public records:

A. Information provided to the public pursuant to subsection 9; and

B. Applications and bureau decisions, including any documents made part of those decisions, pursuant to section 11202-A.

10. Registrant access to information. The bureau shall provide all information described in subsection 1, paragraphs A to F to a registrant who requests that person's own information. The process for access and review of that information is governed by Title 16, section 709.

11. Maintenance by bureau. Only the bureau is authorized to maintain a sex offender registry on the Internet for purposes of public access as described in subsection 9.

12. Law enforcement agency website. A law enforcement agency may maintain its own sex offender website and may make that information available for use by the public if:

A. A notice is prominently posted on the website that expressly states that the website is not the official state sex offender registry under subsection 1 and that the law enforcement agency posting the website is solely responsible for the website's content;

B. The website provides a link to the bureau's Internet sex offender registry under subsection 1;

C. The website contains information regarding only registrants who are domiciled, reside, attend college or school or work within the posting law enforcement agency's jurisdiction; and

D. The information on the website is updated by the law enforcement agency as frequently as available resources permit, but no less than every 7 days. The law enforcement agency shall also prominently post on the website the date and time of the most recent update to the website.

13. Access to registrant information existing in electronic form restricted. Notwithstanding Title 1, chapter 13:

A. The bureau may not disseminate in electronic form information about a registrant that is created, collected or maintained in electronic form by or for the bureau, except as made available to the public through the bureau's Internet website pursuant to subsection 9 and made available to the Background Check Center established pursuant to Title 22, chapter 1691; and

B. Except as made available to the public through an Internet website maintained by a law enforcement agency pursuant to subsection 12, a law enforcement agency may not disseminate in electronic form information about a registrant that is collected or maintained in electronic form by or for the law enforcement agency.

Credits

1999, c. 437, § 2; 2003, c. 371, §§ 4 to 7; 2003, c. 711, §§ C-17 to C-20; 2005, c. 423, §§ 9 to 13; 2005, c. 545, §§ 1, 2; 2011, c. 299, §§ 1 to 3; 2011, c. 307, § 1; 2013, c. 267, §§ B-28, B-29, eff. Oct. 9, 2013; 2015, c. 299, § 26, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11221, ME ST T. 34-A § 11221

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11222

§ 11222. Duty of offender to register

Effective: October 15, 2015

Currentness

1. Notification by court, the department, the bureau or a law enforcement agency. An offender has a duty to register under this chapter after notification has been given to the offender by a court of jurisdiction, the department, the bureau or a law enforcement agency. A court shall notify the offender at the time of sentence of the duty to register pursuant to this chapter. Notification of the duty to register under this chapter also may be given to the offender at any time after the imposition of sentence.

At any time, the bureau may correct the term of a registration erroneously assigned to an offender or registrant. In such instances, the bureau shall notify the offender or registrant, the district attorney and court in the jurisdiction where the conviction occurred and the law enforcement agency having jurisdiction where the offender or registrant is domiciled, resides, is employed or attends college or school, if applicable.

1-A. When duty to register must be exercised. Following notification by a court, the department, the bureau or a law enforcement agency under subsection 1, an offender shall register as follows.

A. If the offender is sentenced to a wholly suspended sentence with probation or administrative release, or to a punishment alternative not involving imprisonment, the duty to register is triggered at the time the person commences in actual execution of the wholly suspended sentence or at the time of sentence imposition when no punishment alternative involving imprisonment is imposed, unless the court orders a stay of execution, in which event the duty is triggered by the termination of the stay.

B. If the offender is sentenced to a straight term of imprisonment or to a split sentence, the duty to register is triggered by discharge or conditional release.

C. If the offender is committed under Title 15, section 103, the duty to register is triggered by discharge or conditional release under Title 15, section 104-A.

D. If the events stated in paragraphs A to C have passed, an offender must register within 5 days after having received notice of that duty from a court, the department, the bureau or a law enforcement agency.

E. Proof that the name and date of birth of the person notified of the duty to register pursuant to this chapter are the same as those of a person who has been convicted of an offense requiring registration pursuant to this chapter gives rise to a

permissible inference under the Maine Rules of Evidence, Rule 303 that the person notified of the duty to register is the same person as that person convicted of the offense requiring registration.

1-B. Duty to notify law enforcement agency. An offender shall notify the law enforcement agency having jurisdiction in those areas where the offender is domiciled, resides, works or attends school within 24 hours of becoming a domiciliary or a resident or beginning work or attending school. If the location is a municipality with an organized municipal police department, the law enforcement agency having jurisdiction is the municipal police department. If the location is a school having an organized police department, the law enforcement agency having jurisdiction is the campus police department. If the location is neither a municipality nor a school with an organized police department, the law enforcement agency having jurisdiction is the sheriff's department.

2. Responsibility of ensuring initial registration. The department, the county jail or the state mental health institute that has custody of an offender shall inform the offender, prior to discharge or conditional release, of the duty to register. If an offender does not serve a period of institutional confinement, the court shall inform the offender at the time of sentencing of the duty to register. The department, county jail, state mental health institute or court shall:

A. Inform the offender of the duty to register and obtain the information required for the initial registration;

A-1. Inform the offender of the requirement to notify the law enforcement agency having jurisdiction pursuant to subsection 1-B;

B. Inform the offender that if the offender changes domicile or changes residence, place of employment or college or school being attended, the offender shall give the new address to the bureau in writing within 5 days and shall notify the law enforcement agency having jurisdiction within 24 hours;

C. Inform the offender that if that offender changes domicile to another state, the offender shall register the new address with the bureau and if the new state has a registration requirement, the offender shall register with a designated law enforcement agency in the new state not later than 5 days after establishing domicile in the new state;

D. Inform the offender that if that offender has part-time or full-time employment in another state, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year or if that offender enrolls in any type of school in another state on a part-time or full-time basis, the offender shall give the bureau the offender's place of employment or school to be attended in writing within 5 days after beginning work or attending school and if the other state has a registration requirement, shall register with the designated law enforcement agency in the other state;

E. Obtain fingerprints and a photograph of the offender or the court may order the offender to submit to the taking of fingerprints and a photograph at a specified law enforcement agency within 3 days if the fingerprints and photograph have not already been obtained in connection with the offense that necessitates registration; and

F. Enforce the requirement that the offender read and sign a form provided by the bureau that states that the duty of the offender to register under this section has been explained.

2-A. Duty of registrant sentenced from June 30, 1992 to September 17, 1999 to register. Notwithstanding subsection 1, a person coming within the definition of a 10-year registrant or lifetime registrant who has been sentenced on or after June 30, 1992 but before September 18, 1999 for a sex offense or a sexually violent offense shall register either as a 10-year registrant or lifetime registrant, whichever is applicable, if the duty to register has been triggered under subsection 1-A, paragraph A, B or C and the offender has been notified of the duty to register by a court of jurisdiction, the department, the bureau or a law enforcement agency. The offender shall register with the bureau within 5 days of notice.

2-B. Duty to register for new crimes. For a person who has been sentenced for a crime added by an amendment to the definition of sex offense or sexually violent offense in section 11203 since September 1, 2002, if the duty to register has been triggered under subsection 1-A, paragraph A, B or C and the offender has been notified of the duty to register by a court of jurisdiction, the department, the bureau or a law enforcement agency, that person shall register as a 10-year registrant or a lifetime registrant, whichever is applicable. The offender shall register with the bureau within 5 days of notice.

2-C. Duty of registrant sentenced from January 1, 1982 to June 29, 1992 to register. Notwithstanding subsection 1, a person who meets the definition of a 10-year registrant or a lifetime registrant who has been sentenced on or after January 1, 1982 but before June 30, 1992 for a sex offense or a sexually violent offense shall register either as a 10-year registrant or a lifetime registrant, whichever is applicable, if the duty to register has been triggered under subsection 1-A, paragraph A, B or C and the offender has been notified of the duty to register by a court of jurisdiction, the department, the bureau or a law enforcement agency. The offender shall register with the bureau within 5 days of notice.

3. Transfer of initial registration information to bureau and FBI. The department, county jail, state mental health institute or court within 3 days of receipt of the information described in subsection 2 shall forward the information to the bureau. If the court orders the offender to submit to the taking of fingerprints and a photograph at a specified law enforcement agency, the law enforcement agency shall submit the fingerprints and photograph to the bureau within 3 days. The bureau shall immediately enter the information into the registration system, notify the law enforcement agencies having jurisdiction where the offender expects to be domiciled and reside and transmit the information to the FBI for inclusion in the national FBI sex offender database.

4. Verification for persons sentenced on or after September 18, 1999. During the period a registrant sentenced on or after September 18, 1999 is required to register, the bureau shall require the registrant to verify registration information including domicile, residence, mailing address, place of employment and college or school being attended. Unless verifications are suspended, the bureau shall verify the registration information of a 10-year registrant on each anniversary of the 10-year registrant's initial registration date and shall verify a lifetime registrant's registration information every 3 months after that lifetime registrant's initial registration date. Verification of the registration information of a 10-year registrant or lifetime registrant occurs as set out in this subsection.

A. At least 10 days prior to the required verification date, the bureau shall mail a nonforwardable verification form to the last reported mailing address of the registrant. The verification form is deemed received 3 days after mailing unless returned by postal authorities.

B. Deleted. Laws 2005, c. 423, § 17.

C. The registrant shall take the completed verification form and a current photograph of the registrant to the law enforcement agency having jurisdiction within 5 days of receipt of the form.

D. The law enforcement agency having jurisdiction shall verify the registrant's identity, have the registrant sign the verification form, take the registrant's fingerprints, complete the law enforcement portion of the verification form and immediately forward the fingerprints, photograph and form to the bureau.

4-A. Verification for person sentenced on or after January 1, 1982 and prior to September 18, 1999 who is a 10-year registrant. During the period a 10-year registrant sentenced on or after January 1, 1982 and prior to September 18, 1999 is required to register, the bureau shall require the 10-year registrant to verify registration information including domicile, residence, mailing address, place of employment and college or school being attended. Unless verifications are suspended, the bureau shall verify the registration information of a 10-year registrant in writing as provided by the bureau on each anniversary of the 10-year registrant's initial registration date and once every 5 years in person. Verification of the registration information of a 10-year registrant occurs as set out in this subsection.

A. At least 10 days prior to the required verification date, the bureau shall mail a nonforwardable verification form to the last reported mailing address of the 10-year registrant. The verification form is deemed received 3 days after mailing unless returned by postal authorities.

B. The 10-year registrant shall mail to the bureau the completed written verification form and a current photograph on each anniversary of the 10-year registrant's initial registration date within 5 days of receipt of the form, except as provided in paragraph C.

C. In lieu of mailing the completed verification form under paragraph B, the 10-year registrant shall take the completed verification form and a current photograph of the 10-year registrant to the law enforcement agency having jurisdiction once every 5 years on the anniversary of the 10-year registrant's initial registration or, if there is a reason to believe the offender's appearance has changed significantly, the law enforcement agency having jurisdiction or the bureau may instruct the 10-year registrant in writing:

(1) To appear in person at the law enforcement agency having jurisdiction with a current photograph or to allow a photograph to be taken; or

(2) If authorized in writing by the law enforcement agency having jurisdiction or the bureau, to submit a new photograph without appearing in person.

D. Whenever in-person verification is mandated pursuant to paragraph C, the law enforcement agency having jurisdiction shall verify the 10-year registrant's identity, have the 10-year registrant sign the verification form, take the registrant's fingerprints, complete the law enforcement portion of the verification form and immediately forward the fingerprints, photograph and form to the bureau.

4-B. Verification for person sentenced on or after January 1, 1982 and prior to September 18, 1999 who is a lifetime registrant. During the period a lifetime registrant sentenced on or after January 1, 1982 and prior to September 18, 1999 is required to register, the bureau shall require the lifetime registrant to verify registration information including domicile, residence, mailing address, place of employment and college or school being attended. Unless verifications are suspended, the bureau shall verify the registration information of a lifetime registrant in writing as provided by the bureau every 3 months after

that lifetime registrant's initial registration date and once every 5 years in person. Verification of the registration information of a lifetime registrant occurs as set out in this subsection.

A. At least 10 days prior to the required verification date, the bureau shall mail a nonforwardable verification form to the last reported mailing address of the lifetime registrant. The verification form is deemed received 3 days after mailing unless returned by postal authorities.

B. The lifetime registrant shall mail to the bureau the completed written verification form and a current photograph every 3 months after that lifetime registrant's initial registration date within 5 days of receipt of the form, except as provided in paragraph C.

C. In lieu of mailing the completed verification form under paragraph B, the lifetime registrant shall take the completed verification form and a current photograph of the lifetime registrant to the law enforcement agency having jurisdiction once every 5 years on the anniversary of the lifetime registrant's initial registration or, if there is a reason to believe the lifetime registrant's appearance has changed significantly, the law enforcement agency having jurisdiction or the bureau may instruct the lifetime registrant in writing:

(1) To appear in person at the law enforcement agency having jurisdiction with a current photograph or to allow a photograph to be taken; or

(2) If authorized in writing by the law enforcement agency having jurisdiction or the bureau, to submit a new photograph without appearing in person.

D. Whenever in-person verification is mandated pursuant to paragraph C, the law enforcement agency having jurisdiction shall verify the lifetime registrant's identity, have the lifetime registrant sign the verification form, take the lifetime registrant's fingerprints, complete the law enforcement portion of the verification form and immediately forward the fingerprints, photograph and form to the bureau.

4-C. Verification for person sentenced in another jurisdiction before January 1, 1982 who is a lifetime registrant. During the period a lifetime registrant sentenced in another jurisdiction before January 1, 1982 is required to register, the bureau shall require the lifetime registrant to verify registration information including domicile, residence, mailing address, place of employment and college or school being attended. Unless verifications are suspended, the bureau shall verify the registration information of a lifetime registrant in writing as provided by the bureau every 3 months after that lifetime registrant's initial registration date and once every 5 years in person. Verification of the registration information of a lifetime registrant occurs as set out in this subsection.

A. At least 10 days prior to the required verification date, the bureau shall mail a nonforwardable verification form to the last reported mailing address of the lifetime registrant. The verification form is deemed received 3 days after mailing unless returned by postal authorities.

B. The lifetime registrant shall mail to the bureau the completed written verification form and a current photograph every 3 months after that lifetime registrant's initial registration date within 5 days of receipt of the form, except as provided in paragraph C.

C. In lieu of mailing the completed verification form under paragraph B, the lifetime registrant shall take the completed verification form and a current photograph of the lifetime registrant to the law enforcement agency having jurisdiction once every 5 years on the anniversary of the lifetime registrant's initial registration or, if there is a reason to believe the lifetime registrant's appearance has changed significantly, the law enforcement agency having jurisdiction or the bureau may instruct the lifetime registrant in writing:

- (1) To appear in person at the law enforcement agency having jurisdiction with a current photograph or to allow a photograph to be taken; or
- (2) If authorized in writing by the law enforcement agency having jurisdiction or the bureau, to submit a new photograph without appearing in person.

D. Whenever in-person verification is mandated pursuant to paragraph C, the law enforcement agency having jurisdiction shall verify the lifetime registrant's identity, have the lifetime registrant sign the verification form, take the lifetime registrant's fingerprints, complete the law enforcement portion of the verification form and immediately forward the fingerprints, photograph and form to the bureau.

5. Change of domicile, residence, place of employment or college or school being attended. An offender or registrant shall notify the bureau in writing of a change of residence, domicile, place of employment or college or school being attended within 5 days and shall notify the law enforcement agency having jurisdiction within 24 hours after changing that domicile, residence, place of employment or college or school being attended.

A. If the offender or registrant establishes a new domicile, residence, place of employment or college or school being attended in the State, the bureau shall notify, within 3 days, both the law enforcement agency having jurisdiction where the offender or registrant was formerly domiciled or resided or was employed or enrolled and the law enforcement agency having jurisdiction where the offender or registrant is currently domiciled, residing, employed or enrolled.

B. If the offender or registrant establishes a domicile, residence, place of employment or college or school being attended in another state, the bureau shall notify, within 3 days, the law enforcement agency having jurisdiction where the offender or registrant was formerly domiciled or resided or was employed or enrolled and the law enforcement agency having jurisdiction where the offender or registrant is currently domiciled, residing, employed or enrolled.

Credits

1999, c. 437, § 2; 2001, c. 439, § OOO-11; 2001, c. 553, §§ 5, 6 eff. March 25, 2002; 2003, c. 371, §§ 8 to 10; 2003, c. 711, § C-21; 2005, c. 423, §§ 14 to 18; 2005, c. 683, § B-28, eff. June 2, 2006; 2009, c. 365, § B-15; 2009, c. 570, §§ 2 to 4, eff. March 30, 2010; 2011, c. 420, §§ C-4, C-5, eff. July 6, 2011; 2015, c. 280, §§ 2 to 6, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11222, ME ST T. 34-A § 11222

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11223

§ 11223. Duty of person establishing domicile or residence to register

Effective: September 12, 2009

Currentness

A person sentenced at any time for a military, tribal or federal offense requiring registration pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or the Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248; or in a jurisdiction other than this State who is required under that jurisdiction to register pursuant to that jurisdiction's sex offender registration statute or would have been required to register if the person had remained in the jurisdiction or, if not so required, who has been sentenced on or after January 1, 1982 for an offense that includes the essential elements of a sex offense or a sexually violent offense shall register as a 10-year registrant or lifetime registrant, whichever is applicable, within 5 days and shall notify the law enforcement agency having jurisdiction within 24 hours of establishing domicile or residence in this State. The person shall contact the bureau, which shall provide the person with the registration form and direct the person to take the form and a photograph of the person to the law enforcement agency having jurisdiction. The law enforcement agency shall supervise the completion of the form, take the person's fingerprints and immediately forward the form, photograph and fingerprints to the bureau.

Credits

1999, c. 437, § 2; 2003, c. 371, § 11; 2003, c. 711, § C-22; 2005, c. 423, § 19; 2009, c. 365, § B-16.

34-A M. R. S. A. § 11223, ME ST T. 34-A § 11223

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Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11224

§ 11224. Duty of person employed or attending college or school

Effective: September 12, 2009

Currentness

The following provisions govern registration duties for a person not domiciled or residing in this State but who is employed or attending college or school in this State.

1. Time. A person who has been sentenced at any time for a military, tribal or federal offense requiring registration pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or the Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248; or in a jurisdiction other than this State and who is required under that jurisdiction to register pursuant to that jurisdiction's sex offender registration statute or would have been required to register if the person had remained in that jurisdiction or, if not so required, who has been sentenced on or after January 1, 1982 for an offense that includes the essential elements of a sex offense or a sexually violent offense shall register as a 10-year registrant or lifetime registrant, whichever is applicable, within 5 days and shall notify the law enforcement agency having jurisdiction:

A. Within 24 hours of beginning full-time or part-time employment, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year in this State; or

B. Within 24 hours of beginning college or school on a full-time or part-time basis in this State.

2. Process for notifying bureau. The person under subsection 1 shall contact the bureau, which shall provide the person with a registration form and direct the person to take the form and a photograph of the person to the law enforcement agency having jurisdiction. The law enforcement agency shall supervise the completion of the form, take the person's fingerprints and immediately forward the form, photograph and fingerprints to the bureau.

Credits

1999, c. 437, § 2; 2003, c. 371, § 11; 2003, c. 711, § C-22; 2005, c. 423, § 20; 2009, c. 365, § B-17.

34-A M. R. S. A. § 11224, ME ST T. 34-A § 11224

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Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11225

§ 11225. Repealed. Laws 2005, c. 423, § 21

Currentness

34-A M. R. S. A. § 11225, ME ST T. 34-A § 11225

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Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11225-A

§ 11225-A. Duration of registration

Effective: October 15, 2015

Currentness

1. Ten-year registrant convicted and sentenced in State. The following provisions apply to a 10-year registrant convicted and sentenced in this State.

A. Deleted. Laws 2009, c. 570, § 5, eff. March 30, 2010.

B. A 10-year registrant sentenced in this State shall register for a period of 10 years. The 10-year period is calculated as follows.

(1) If the 10-year registrant was sentenced prior to September 18, 1999 to a wholly suspended sentence with probation or administrative release or to a punishment alternative not involving imprisonment, the 10-year period is treated as having begun at the time the person commenced an actual execution of the wholly suspended sentence or at the time of sentence imposition when no punishment alternative involving imprisonment was imposed, unless the court ordered a stay of execution, in which event the 10-year period is treated as having begun at the termination of the stay.

(2) If the 10-year registrant was sentenced prior to September 18, 1999 to a straight term of imprisonment or to a split sentence, the 10-year period is treated as having begun at the time of discharge or conditional release.

(3) If the 10-year registrant was committed under Title 15, section 103 prior to September 18, 1999, the 10-year period is treated as having begun at the time of discharge or conditional release under Title 15, section 104-A.

(4) If the 10-year registrant was sentenced prior to September 18, 1999 and the person's duty to register has not yet been triggered, the 10-year period commences upon registration by the person in compliance with section 11222, subsection 1-A, paragraph A, B or C.

(5) If the 10-year registrant was sentenced on or after September 18, 1999, the 10-year period commences from the date the person in fact initially registers once the legal duty to register arises under section 11222.

2. Ten-year registrant convicted and sentenced in another jurisdiction. The following provisions apply to a 10-year registrant convicted and sentenced in another jurisdiction and required to register in this State pursuant to section 11223, section 11224 or both.

A. A 10-year registrant shall register in this State for a period of 10 years if, pursuant to the other jurisdiction's sex offender registration statute, the registration period is for a period of years rather than for a lifetime. The 10-year period commences from the date the person in fact initially registers in this State once the legal duty to register arises under section 11223, section 11224 or both. However, the 10-year registrant may receive day-for-day credit for the time actually registered pursuant to the other jurisdiction's sex offender registration statutes prior to registering in this State upon applying to the bureau for credit. The bureau may grant credit if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau.

B. A 10-year registrant shall register for a period of 10 years if registration was not required in that other jurisdiction and the person was sentenced on or after January 1, 1982 in that jurisdiction for a crime that includes the essential elements of a sex offense. The 10-year period is calculated by applying subsection 1, paragraph B, subparagraphs (1) to (4) but interpreted and applied to take into account substantially similar sentencing alternatives imposed in the other jurisdiction.

3. Lifetime registrant convicted and sentenced in this State. A lifetime registrant sentenced on or after January 1, 1982 in this State shall register for the duration of that registrant's life.

4. Lifetime registrant convicted and sentenced in another jurisdiction. The following provisions apply to a lifetime registrant convicted and sentenced in another jurisdiction and required to register in this State pursuant to section 11223, section 11224 or both.

A. A person shall register in this State for the duration of that person's life if, pursuant to that other jurisdiction's sex offender registration statute, the registration period is for a lifetime.

B. A person shall register in this State for the duration of that person's life if no registration was required in that other jurisdiction and the person was sentenced on or after January 1, 1982 in that jurisdiction for a crime that includes the essential elements of a sexually violent offense or the person has 2 or more prior convictions in that or any other jurisdiction for an offense or for an attempted offense that includes the essential elements of a sex offense or a sexually violent offense.

5. Suspending verifications. Notwithstanding subsections 1 and 3, the bureau, pursuant to any rules the bureau may adopt, may suspend the requirement that the 10-year registrant or lifetime registrant verify registration information during any period in which the 10-year registrant or lifetime registrant:

A. Leaves this State, establishes a domicile or residence in another state and remains physically absent from this State;

B. Is incarcerated; or

C. Is incapacitated or hospitalized.

6. Relief from duty to register. The following provisions apply to an offender's, a 10-year registrant's or a lifetime registrant's duty to register.

A. An offender's or a 10-year registrant's duty to register for a period of 10 years pursuant to subsection 2 is not required if the circumstances triggering the registration requirements under section 11223, section 11224 or both no longer exist.

B. An offender's or a lifetime registrant's duty to register for the duration of that person's life pursuant to subsection 4 is not required if the circumstances triggering the registration requirements under section 11223, section 11224 or both no longer exist.

C. If the underlying conviction in this State or in another jurisdiction that triggers the registration requirement is reversed, vacated or set aside, or if the offender or registrant is pardoned for the crime, registration is no longer required.

Credits

2005, c. 423, § 22; 2009, c. 365, § B-18; 2009, c. 570, § 5, eff. March 30, 2010; 2015, c. 280, §§ 7, 8, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11225-A, ME ST T. 34-A § 11225-A

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Title 34-a. Corrections (Refs & Annos)

Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11226

§ 11226. Fee

Currentness

The bureau may charge a \$25 annual fee to persons required to register under this chapter. Registrants shall pay the fee at the time of initial registration and shall pay the fee on each anniversary of their initial registration.

The fee must be credited to the General Fund and the Highway Fund in an amount consistent with currently budgeted appropriations and allocations.

Credits

1999, c. 437, § 2; 2003, c. 711, § C-24.

34-A M. R. S. A. § 11226, ME ST T. 34-A § 11226

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34-A M.R.S.A. § 11227

§ 11227. Violation

Effective: September 12, 2009

Currentness

1. Failure to comply; first offense. A person to whom this chapter applies pursuant to section 11202 who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class D crime.

2. Failure to comply; 2nd offense. A person who has one prior conviction under this section and who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class C crime.

3. Failure to comply; 3rd offense. A person who has 2 or more prior convictions under this section and who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class B crime.

4. Strict liability. Violation of this section is a strict liability crime as defined in Title 17-A, section 34, subsection 4-A.

5. Prior convictions. Title 17-A, section 9-A governs the use of prior convictions when determining a sentence.

6. Affirmative defense. It is an affirmative defense that the failure to comply with a duty imposed under this chapter or a rule adopted pursuant to this chapter resulted from just cause.

7. Permissible inference. Proof that the name and date of birth of the person charged with a violation of this section are the same as those of a person who has been convicted of an offense requiring registration pursuant to this chapter gives rise to a permissible inference under the Maine Rules of Evidence, Rule 303 that the person charged with a violation of this section is the same person as that person convicted of the offense requiring registration.

Credits

1999, c. 437, § 2; 2001, c. 439, § 000-13; 2001, c. 553, § 9, eff. March 25, 2002; 2003, c. 452, § S-1, eff. July 1, 2004; 2003, c. 711, § C-25; 2005, c. 423, § 23; 2009, c. 365, §§ B-19, B-20.

34-A M. R. S. A. § 11227, ME ST T. 34-A § 11227

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34-A M.R.S.A. § 11228

§ 11228. Certification by record custodian

Effective: October 15, 2015

Currentness

1. Certificate admissible. Notwithstanding any other law or rule of evidence, a certificate by the custodian of the records of the bureau, when signed and sworn to by that custodian, or the custodian's designee, is admissible in a judicial or administrative proceeding as prima facie evidence of any fact stated in the certificate or in any documents attached to the certificate.

2. Qualified witness. With 10 days' written notice to the prosecution, the defendant may request that a qualified witness testify to the matters of which the certificate under subsection 1 constitutes prima facie evidence. The notice must specify those matters concerning which the defendant requests testimony. The certificate is not prima facie evidence in those matters.

Credits

2003, c. 371, § 12; 2009, c. 365, § B-21; 2015, c. 280, § 9, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11228, ME ST T. 34-A § 11228

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34-A M.R.S.A. § 11251

§ 11251. Repealed. Laws 2001, c. 439, § 000-14

Currentness

34-A M. R. S. A. § 11251, ME ST T. 34-A § 11251

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34-A M.R.S.A. § 11252

§ 11252. Immunity from liability

Currentness

Neither the failure to perform the requirements of this chapter nor compliance with this chapter subjects any state, municipal or county official or employee to liability in a civil action. The immunity provided under this section applies to the release of relevant information to other officials or employees or to the general public.

Credits

1999, c. 437, § 2.

34-A M. R. S. A. § 11252, ME ST T. 34-A § 11252

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Subchapter 3. Notification

34-A M.R.S.A. § 11253

§ 11253. Risk assessment

Currentness

The department shall establish and apply a risk assessment instrument to each registrant under its jurisdiction for the purpose of notification to law enforcement agencies and to the public.

Credits

2001, c. 439, § 000-15; 2003, c. 711, § C-26.

34-A M. R. S. A. § 11253, ME ST T. 34-A § 11253

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Subchapter 3. Notification

34-A M.R.S.A. § 11254

§ 11254. Mandatory notification of conditional release or discharge of registrants

Currentness

The department, county jails, state mental health institutes and the Department of Public Safety, State Bureau of Identification are governed by the following notice provisions when a registrant is conditionally released or discharged.

1. Duties. The department, a county jail or a state mental health institute shall give the Department of Public Safety, State Bureau of Identification notice of the following:

- A. The address where the registrant will be domiciled and reside;
- B. The address where the registrant will work and attend college or school, if applicable;
- C. The geographic area to which a registrant's conditional release is limited, if any; and
- D. The status of the registrant when released as determined by the risk assessment instrument, the registrant's risk assessment score, a copy of the risk assessment instrument and applicable contact standards for the registrant.

2. Duties of the Department of Public Safety, State Bureau of Identification. Upon receipt of the information concerning the conditional release or discharge of a registrant pursuant to subsection 1, the Department of Public Safety, State Bureau of Identification shall forward the information in subsection 1 to all law enforcement agencies that have jurisdiction in those areas where the registrant may be domiciled, reside, work or attend college or school.

Credits

2001, c. 439, § 000-15; 2003, c. 371, § 13; 2003, c. 711, § C-27.

34-A M. R. S. A. § 11254, ME ST T. 34-A § 11254

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Chapter 15. Sex Offender Registration and Notification Act of 1999 (Refs & Annos)

Subchapter 3. Notification

34-A M.R.S.A. § 11255

§ 11255. Public notification

Currentness

1. Department. Upon the conditional release or discharge of a registrant from a state correctional institution, the department shall give notice of the information under section 11254, subsection 1 to members of the public the department determines appropriate to ensure public safety.

2. Law enforcement agencies. Upon receipt of the information concerning the conditional release or discharge of a registrant pursuant to section 11254, subsection 2, a law enforcement agency shall notify members of a municipality that the law enforcement agency determines appropriate to ensure public safety.

Credits

2001, c. 439, § 000-15; 2003, c. 711, § C-28.

34-A M. R. S. A. § 11255, ME ST T. 34-A § 11255

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Subchapter 3. Notification

34-A M.R.S.A. § 11256

§ 11256. Risk assessment assistance

Currentness

Upon request, the department shall provide to law enforcement agencies technical assistance concerning risk assessment for purposes of notification to the public of a registrant's conditional release or discharge.

Credits

2001, c. 439, § 000-15; 2003, c. 711, § C-28.

34-A M. R. S. A. § 11256, ME ST T. 34-A § 11256

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Subchapter 1. General Provisions

34-A M.R.S.A. § 11271

§ 11271. Short title

Effective: August 30, 2012

Currentness

This chapter may be known and cited as “the Sex Offender Registration and Notification Act of 2013.” The purpose of this chapter is to protect the public from potentially dangerous registrants and offenders by enhancing access to information concerning those registrants and offenders.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11271, ME ST T. 34-A § 11271

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34-A M.R.S.A. § 11272

§ 11272. Application

Effective: August 30, 2012

Currentness

This chapter applies to:

1. Maine. A person who commits criminal conduct and is sentenced in this State on or after January 1, 2013 as an adult or as a juvenile sentenced as an adult for that criminal conduct and that criminal conduct is a Tier I offense, Tier II offense or Tier III offense; and

2. Other jurisdictions. A person who commits criminal conduct and is sentenced in another jurisdiction for that criminal conduct on or after January 1, 2013 as an adult or as a juvenile sentenced as an adult:

A. For an offense that requires registration in the jurisdiction of conviction pursuant to that jurisdiction's sex offender registration laws or that would have required registration had the person remained there;

B. For an offense that contains the essential elements of a Tier I offense, Tier II offense or Tier III offense; or

C. For a military, tribal or federal offense requiring registration pursuant to:

(1) The federal Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, also known as the Jacob Wetterling Act, Section 170101 of the federal Violent Crime Control and Law Enforcement Act of 1994, Public Law 103-322, as amended; or

(2) The federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11272, ME ST T. 34-A § 11272

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34-A M.R.S.A. § 11273

§ 11273. Definitions

Effective: May 30, 2025

Currentness

As used in this chapter, unless the context otherwise indicates, the following terms have the following meanings.

1. Another state. “Another state” means each of the several states except Maine, and includes the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, Guam, American Samoa and the Northern Mariana Islands.

2. Bureau. “Bureau” means the Department of Public Safety, Bureau of State Police, State Bureau of Identification.

3. Conditional release. “Conditional release” means supervised release of a registrant or an offender from institutional confinement for placement on probation, parole, supervised release for sex offenders, supervised community confinement, home release monitoring or release under Title 15, section 104-A or Title 17-A, chapter 67, subchapter 2.

4. Discharge. “Discharge” means unconditional release and discharge of a registrant from institutional confinement upon the expiration of a sentence or upon discharge under Title 15, section 104-A.

5. Domicile. “Domicile” means the place where a person has that person's established, fixed, permanent or ordinary dwelling place or legal residence to which, whenever the person is absent, the person has the intention of returning. A person may have more than one residence but only one domicile.

6. FBI. “FBI” means the Federal Bureau of Investigation.

7. Jurisdiction. “Jurisdiction” means the Federal Government, including the military, this State, another state or a tribe.

8. Law enforcement agency having jurisdiction. “Law enforcement agency having jurisdiction” means the chief of police in the municipality where a registrant or an offender expects to be or is domiciled. If the municipality does not have a chief of police, “law enforcement agency having jurisdiction” means the sheriff of the county where the municipality is located. “Law enforcement agency having jurisdiction” also means the sheriff of the county in an unorganized territory.

9. Motor vehicle. “Motor vehicle” means a vehicle that is required to be registered pursuant to Title 29-A, section 351.

10. Offender. “Offender” means a person to whom this chapter applies pursuant to section 11272.

11. Registrant. “Registrant” means a Tier I registrant, Tier II registrant or Tier III registrant.

12. Residence. “Residence” means that place or those places, other than a domicile, in which a person may spend time living, residing or dwelling. Proof that an offender has lived in the State for 14 days continuously or an aggregate of 30 days within a period of one year gives rise to a permissible inference under the Maine Rules of Evidence, Rule 303 that the person has established a residence for the purposes of registration requirements imposed by this chapter.

13. Sentence. “Sentence,” in addition to any punishment alternatives, includes an involuntary commitment under Title 15, section 103, or similar statute from another jurisdiction, following a verdict of not criminally responsible by reason of insanity or similar verdict in another jurisdiction.

14. Tier I offense. “Tier I offense” means a conviction for a Class E or Class D crime under the following or for an attempt, solicitation or conspiracy to commit a Class E, Class D or Class C crime under the following if the victim was less than 18 years of age at the time of the criminal conduct unless otherwise specified:

A. Title 17-A, chapter 11 including the following:

- (1) Title 17-A, section 255-A, subsection 1, paragraph C, regardless of the age of the victim;
- (2) Title 17-A, section 255-A, subsection 1, paragraph F-2, regardless of the age of the victim;
- (3) Title 17-A, section 255-A, subsection 1, paragraph G, regardless of the age of the victim;
- (3-A) Title 17-A, section 255-A, subsection 1, paragraph K, regardless of the age of the victim if the crime is committed on or after October 1, 2017;
- (4) Title 17-A, section 255-A, subsection 1, paragraph Q, regardless of the age of the victim;
- (5) Title 17-A, section 255-A, subsection 1, paragraph W, regardless of the age of the victim; and
- (6) Title 17-A, section 255-A, subsection 1, paragraph X, regardless of the age of the victim;

B. Title 17-A, chapter 12;

C. Title 17-A, section 511, subsection 1, paragraph D, regardless of the age of the victim;

C-1. Title 17-A, section 511, subsection 1, paragraph F;

D. Title 17-A, section 556, subsection 1, paragraph A, regardless of the age of the victim;

E. Title 17-A, section 855, subsection 1, paragraph A, if:

(1) The crime is committed before October 18, 2021; and

(2) The person is convicted of the crime without regard to whether the person who sought the prostitution knew or believed that the person whose prostitution was sought had not attained 18 years of age; and

F. A military, tribal or federal offense requiring registration pursuant to the federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151.

If, pursuant to another jurisdiction's sex offender registration statute, the registration period is a period of up to 10 years or if the sex offender was not required to register in that other jurisdiction but the crime includes the essential elements of an offense included in this subsection, the crime is a Tier I offense.

“Tier I offense” does not include unlawful sexual contact under Title 17-A, section 255-A, subsection 1, paragraph U or unlawful sexual touching under Title 17-A, section 260.

15. Tier II offense. “Tier II offense” means a conviction for a Class C crime under the following, or for an attempt, solicitation or conspiracy to commit a Class B crime under the following, if the victim was less than 18 years of age at the time of the criminal conduct unless otherwise specified:

A. Title 17-A, chapter 11 including the following:

(1) Title 17-A, section 253, subsection 2, paragraph J, regardless of the age of the victim;

(1-A) Title 17-A, section 253, subsection 2, paragraph F, regardless of the age of the victim if the crime is committed on or after October 1, 2017;

(2) Title 17-A, section 253, subsection 2, paragraph K, regardless of the age of the victim;

(3) Title 17-A, section 253, subsection 2, paragraph L, regardless of the age of the victim;

(3-A) Title 17-A, section 253, subsection 2, paragraph M, regardless of the age of the victim, if the crime is committed on or after the effective date of this subparagraph;

(3-B) Title 17-A, section 255-A, subsection 1, paragraph D, regardless of the age of the victim, if the crime is committed on or after October 1, 2025;

(4) Title 17-A, section 255-A, subsection 1, paragraph J, regardless of the age of the victim;

(4-A) Title 17-A, section 255-A, subsection 1, paragraph L, regardless of the age of the victim if the crime is committed on or after October 1, 2017;

(5) Title 17-A, section 255-A, subsection 1, paragraph R-1, regardless of the age of the victim;

(6) Title 17-A, section 255-A, subsection 1, paragraph R-2, regardless of the age of the victim; and

(7) Title 17-A, section 258, subsection 1-A, if the victim had not attained 12 years of age;

B. Title 17-A, chapter 12;

C. Title 17-A, section 855, subsection 1, paragraph A, if:

(1) The crime is committed on or after October 18, 2021; or

(2) Both:

(a) The crime is committed before October 18, 2021; and

(b) The person who sought the prostitution knew that the person whose prostitution was sought had not attained 18 years of age; and

D. A military, tribal or federal offense requiring registration pursuant to the federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151.

If, pursuant to another jurisdiction's sex offender registration statute, the registration period is a period of more than 10 years but less than 26 years or if the sex offender was not required to register in that other jurisdiction but the crime includes the essential elements of an offense included in this subsection, the crime is a Tier II offense.

“Tier II offense” does not include unlawful sexual contact under Title 17-A, section 255-A, subsection 1, paragraph V or unlawful sexual touching under Title 17-A, section 260.

16. Tier III offense. “Tier III offense” means a conviction for a Class B or Class A crime under the following or for an attempt, solicitation or conspiracy to commit a Class A crime under the following:

A. Title 17-A, chapter 11;

B. Title 17-A, chapter 12;

C. Title 17-A, section 301, subsection 1, paragraph A, subparagraph (3) if the crime is committed prior to January 1, 2022;

C-1. Title 17-A, section 301, subsection 1, paragraph A, subparagraph (3-A) if the crime is committed on or after January 1, 2022;

D. Title 17-A, section 852, subsection 1;

D-1. Title 17-A, section 852, subsection 1-A, if the crime is committed on or after March 1, 2022;

E. A military, tribal or federal offense requiring registration pursuant to the federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151; and

F. Title 17-A, section 556, subsection 1, paragraph B, regardless of the age of the victim.

If, pursuant to another jurisdiction's sex offender registration statute, the registration period is a period of more than 25 years or if the sex offender was not required to register in that other jurisdiction but the crime includes the essential elements of an offense included in this subsection, the crime is a Tier III offense.

17. Tier I registrant. “Tier I registrant” means a person who is an adult convicted and sentenced or a juvenile convicted and sentenced as an adult for a Tier I offense.

18. Tier II registrant. “Tier II registrant” means a person who is an adult convicted and sentenced or a juvenile convicted and sentenced as an adult for a Tier II offense.

19. Tier III registrant. “Tier III registrant” means a person who is an adult convicted and sentenced or a juvenile convicted and sentenced as an adult for a Tier III offense or as provided for under section 11285, subsection 7.

20. Tribe. “Tribe” means the Passamaquoddy Tribe, the Penobscot Nation or the Houlton Band of Maliseet Indians.

Credits

2011, c. 663, § 3; 2013, c. 133, § 33, eff. Oct. 9, 2013; 2015, c. 280, §§ 10 to 12, eff. Oct. 15, 2015; 2017, c. 65, §§ 1, 2, eff. Nov. 1, 2017; 2017, c. 377, § 4, eff. April 11, 2018; 2019, c. 113, § C-107, eff. May 16, 2019; 2021, c. 299, §§ B-2, B-3, eff. Oct. 18, 2021; 2021, c. 447, § 5, eff. Oct. 18, 2021; 2021, c. 527, §§ 1 to 3, eff. March 31, 2022; 2023, c. 227, § 5, eff. Oct. 25, 2023; 2025, c. 153, § 1, eff. May 30, 2025.

34-A M. R. S. A. § 11273, ME ST T. 34-A § 11273

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34-A M.R.S.A. § 11274

§ 11274. Rulemaking

Effective: August 30, 2012

Currentness

The bureau may adopt rules necessary to implement this chapter. Rules adopted pursuant to this section are routine technical rules as defined by Title 5, chapter 375, subchapter 2-A.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11274, ME ST T. 34-A § 11274

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Chapter 17. Sex Offender Registration and Notification Act of 2013

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11281

§ 11281. Maintenance of sex offender registry

Effective: October 15, 2015

Currentness

1. Maintenance of registry. The bureau shall establish and maintain a registry of persons required to register pursuant to this subchapter, referred to in this section as “the registry.” After initial registration, the registry must include the following information on each registrant:

A. The registrant's name, aliases, date of birth, sex, race, height, weight, eye color, land line and cellular telephone numbers, Internet identifiers, mailing address and physical location of expected domicile and residence. For purposes of this paragraph, “Internet identifiers” means e-mail addresses and other designations used for self-identification or routing in Internet communication or posting;

B. Place of employment and college or school being attended, if applicable, and the corresponding mailing address and physical location;

C. Offense history;

D. A current photograph and set of fingerprints;

E. A description of the offense for which the registrant was convicted, the date of conviction and the sentence imposed;

F. Whether the registrant is a Tier I registrant, Tier II registrant or Tier III registrant;

G. A copy of any driver's license information and copy of the driver's license;

H. A copy of any professional license;

I. Passport and immigration documents and social security number;

J. Temporary lodging and dates of travel;

K. Information about motor vehicles owned, leased or used and registration and location of those motor vehicles. For purposes of this paragraph, “lease” means a transfer of the right to possession and use of a motor vehicle for a term of 30 days or more in return for consideration; and

L. Any other information the bureau determines important.

2. National or regional registry. The bureau is authorized to make the registry available to and accept files from a national or regional registry of registrants for the purpose of sharing information.

3. Registration form. The bureau shall develop a standardized registration form to be made available to the appropriate reporting authorities and persons required to register.

4. Verification form. The bureau shall develop and mail a nonforwardable verification form to the last reported mailing address of each person required to meet the verification requirements of this chapter.

5. Distribution of information to department and law enforcement agencies. The bureau shall distribute information described in subsection 1 to the department and law enforcement agencies having jurisdiction over the mailing address and physical location of the registrant's domicile, residence, place of employment and college or school being attended, if applicable.

6. Criminal justice agency access to information. The bureau shall provide access to the information described in subsection 1 to criminal justice agencies. For purposes of this subsection, “criminal justice agency” has the same meaning as in Title 16, section 703, subsection 4.

7. Public access to registrant information. After initial registration, the bureau shall provide information to the public as follows.

A. The bureau shall post on the Internet for public inspection the following information concerning a registrant who is a Tier I registrant, Tier II registrant or Tier III registrant:

- (1)** The registrant's name, aliases and date of birth and a current photograph;
- (2)** The registrant's city or town of domicile and residence;
- (3)** The registrant's place of employment and college or school being attended, if applicable, and the corresponding mailing address and physical location;
- (4)** The statutory citation and name of the offense for which the registrant was convicted;
- (5)** Whether the registrant is a Tier I registrant, a Tier II registrant or a Tier III registrant;

(6) Verification requirements and date of last verification; and

(7) The registrant's address and its location on a map.

B. The bureau shall establish an e-mail notification system to alert a member of the public who has subscribed annually to the e-mail notification system when a registrant moves into the subscriber's geographic area.

C. Upon receiving a written request that includes the name and date of birth of a registrant, the bureau shall provide the following information concerning a registrant to the requestor:

(1) The registrant's name, aliases, date of birth, sex, race, height, weight, eye color, mailing address and physical location of domicile and residence;

(2) The registrant's place of employment and college or school being attended, if applicable, and the corresponding mailing address and physical location;

(3) A description of the offense for which the registrant was convicted, the date of conviction and the sentence imposed; and

(4) The registrant's photograph.

8. Registrant access to information. The bureau shall provide all information described in subsection 1 to a registrant who requests that person's own information.

9. Registry information. Registry information created, collected or maintained by the bureau, including, but not limited to, information relating to the identity of persons accessing the registry, is confidential except information provided to the public pursuant to subsection 7.

10. Maintenance by bureau. Only the bureau is authorized to maintain a sex offender registry on the Internet for purposes of public access.

11. Law enforcement agency website. Notwithstanding subsection 10, a law enforcement agency may maintain its own sex offender website and may make that information available for use by the public if:

A. A notice is prominently posted on the website that expressly states that the website is not the official state sex offender registry under subsection 7, paragraph A and that the law enforcement agency posting the website is solely responsible for the website's content;

B. The website provides a link to the bureau's Internet sex offender registry under subsection 7, paragraph A;

C. The website contains information regarding only registrants who are domiciled, reside, attend college or school or work within the posting law enforcement agency's jurisdiction; and

D. The information on the website is updated by the law enforcement agency as frequently as available resources permit, but no less often than every 7 days. The law enforcement agency shall also prominently post on the website the date and time of the most recent update to the website.

12. Access to registrant information existing in electronic form restricted. Notwithstanding Title 1, chapter 13:

A. The bureau may not disseminate in electronic form information about a registrant that is created, collected or maintained in electronic form by or for the bureau, except for the information provided pursuant to subsection 2 and made available to the public through the bureau's website pursuant to subsection 7, paragraph A and made available to the Background Check Center established pursuant to Title 22, chapter 1691; and

B. Except for information made available to the public through a website maintained by a law enforcement agency pursuant to subsection 11, a law enforcement agency may not disseminate in electronic form information about a registrant that is collected or maintained in electronic form by or for that law enforcement agency.

Credits

2011, c. 663, § 3; 2013, c. 267, § B-30, eff. Oct. 9, 2013; 2015, c. 280, §§ 13, 14, eff. Oct. 15, 2015; 2015, c. 299, § 27, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11281, ME ST T. 34-A § 11281

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11282

§ 11282. Duty of offender to register

Effective: October 15, 2015

Currentness

1. Notification by court, department, bureau or law enforcement agency. An offender has a duty to register under this chapter after notification has been given to the offender by a court of jurisdiction, the department, the bureau or a law enforcement agency. The court shall notify the offender at the time of sentence of the duty to register pursuant to this chapter. Notification of the duty to register under this chapter also may be given to the offender at any time after the imposition of sentence.

At any time, the bureau may correct the term of a registration erroneously assigned to an offender or registrant. In such instances, the bureau shall notify the offender or registrant, the district attorney and the court in the jurisdiction where the conviction occurred and the law enforcement agency having jurisdiction where the offender or registrant is domiciled, resides, is employed or attends college or school, if applicable.

2. When duty to register must be exercised. Following notification by a court, the department, the bureau or a law enforcement agency under subsection 1, an offender shall register as follows.

A. If the offender is sentenced to a wholly suspended sentence with probation or administrative release, or to a punishment alternative not involving imprisonment, the duty to register is triggered at the time the person commences in actual execution of the wholly suspended sentence or at the time of sentence imposition when no punishment alternative involving imprisonment is imposed, unless the court orders a stay of execution, in which event the duty is triggered by the termination of the stay.

B. If the offender is sentenced to a straight term of imprisonment or to a split sentence, the duty to register is triggered by discharge or conditional release.

C. If the offender is committed under Title 15, section 103, the duty to register is triggered by discharge or conditional release under Title 15, section 104-A.

D. If the events stated in paragraphs A to C have passed, an offender must register within 3 days after having received notice of that duty from a court, the department, the bureau or a law enforcement agency.

E. Proof that the name and date of birth of the person notified of the duty to register pursuant to this chapter are the same as those of a person who has been found not guilty by reason of insanity or convicted of an offense requiring registration

pursuant to this chapter gives rise to a permissible inference under the Maine Rules of Evidence, Rule 303 that the person notified of the duty to register is the same person as that person convicted of the offense requiring registration.

3. Duty to notify law enforcement agency. An offender shall notify the law enforcement agency having jurisdiction in those areas where the offender is domiciled, resides, works or attends school within 24 hours of becoming a domiciliary or a resident or beginning work or attending school. If the location is a municipality with an organized municipal police department, the law enforcement agency having jurisdiction is the municipal police department. If the location is a school having an organized police department, the law enforcement agency having jurisdiction is the campus police department. If the location is neither a municipality nor a school with an organized police department, the law enforcement agency having jurisdiction is the sheriff's department.

4. Responsibility of ensuring initial registration. The department, the county jail or the state mental health institute that has custody of an offender shall inform the offender, prior to discharge or conditional release, of the duty to register. If an offender does not serve a period of institutional confinement, the court shall inform the offender at the time of sentencing of the duty to register. The department, county jail, state mental health institute or court shall:

- A. Inform the offender of the duty to register and obtain the information required for the initial registration;
- B. Inform the offender of the requirement to notify the law enforcement agency having jurisdiction pursuant to subsection 3;
- C. Inform the offender that if the offender changes domicile or changes residence, place of employment or college or school being attended, the offender shall give the new address to the bureau in writing within 3 days and shall notify the law enforcement agency having jurisdiction within 24 hours;
- D. Inform the offender that if that offender changes domicile to another jurisdiction, the offender shall register the new address with the bureau and if the new jurisdiction has a registration requirement, the offender shall register with a designated law enforcement agency in the new state not later than 3 days after establishing domicile in the new state;
- E. Inform the offender that if that offender has part-time or full-time employment in another state, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year or if that offender enrolls in any type of school in another state on a part-time or full-time basis, the offender shall give the bureau the offender's place of employment or school to be attended in writing within 3 days after beginning work or attending school and if the other state has a registration requirement, shall register with the designated law enforcement agency in the other state;
- F. Obtain fingerprints and a current photograph of the offender. The court may order the offender to submit to the taking of fingerprints and a photograph at a specified law enforcement agency within 3 days if the fingerprints and photograph have not already been obtained in connection with the offense that necessitates registration; and
- G. Enforce the requirement that the offender read and sign a form provided by the bureau that states that the duty of the offender to register under this section has been explained.

5. Transfer of initial registration information to bureau and FBI. The department, county jail, state mental health institute or court within 3 days of receipt of the information described in subsection 4 shall forward the information to the bureau. If the court orders the offender to submit to the taking of fingerprints and a photograph at a specified law enforcement agency, the law enforcement agency shall submit the fingerprints and photograph to the bureau within 3 days. The bureau shall immediately enter the information into the registration system, notify the law enforcement agencies having jurisdiction where the offender expects to be domiciled and reside and transmit the information to the FBI for inclusion in the national FBI sex offender database.

6. Verification. During the period a registrant is required to register, the bureau shall require the registrant to verify all registration information unless verifications are suspended. The following provisions govern the verification of registration information.

A. At least 10 days prior to the required verification date, the bureau shall mail a nonforwardable verification form to the last reported mailing address of the registrant. The verification form is deemed received 3 days after mailing unless returned by postal authorities.

B. The registrant shall bring the completed verification form and a current photograph of the registrant to the law enforcement agency having jurisdiction within 5 days of receipt of the form.

C. The law enforcement agency having jurisdiction shall verify the registrant's identity, have the registrant sign the verification form, take the registrant's fingerprints, complete the law enforcement portion of the verification form and immediately forward the fingerprints, photograph and form to the bureau.

7. Frequency of verification. The frequency of in-person verification of registration information is dependent upon the registrant's tier classification as follows.

A. A Tier III registrant shall register for the duration of the registrant's life and shall verify registration information every 3 months after the registrant's initial registration date.

B. A Tier II registrant shall register for 25 years and shall verify registration information every 6 months after the registrant's initial registration date.

C. A Tier I registrant shall register for 10 years and shall verify registration information annually after the registrant's initial registration date.

8. Change of domicile, residence, place of employment or college or school being attended. An offender or registrant shall notify the bureau in writing of a change of residence, domicile, place of employment or college or school being attended within 3 days and shall notify the law enforcement agency having jurisdiction within 24 hours after changing that domicile, residence, place of employment or college or school being attended.

A. If the offender or registrant establishes a new domicile, residence, place of employment or college or school being attended in the State, the bureau shall notify, within 3 days, both the law enforcement agency having jurisdiction where

the offender or registrant was formerly domiciled or resided or was employed or enrolled and the law enforcement agency having jurisdiction where the offender or registrant is currently domiciled, residing, employed or enrolled.

B. If the offender or registrant establishes a domicile, residence, place of employment or college or school being attended in another state, the bureau shall notify, within 3 days, the law enforcement agency having jurisdiction where the offender or registrant was formerly domiciled or resided or was employed or enrolled and the law enforcement agency having jurisdiction where the offender or registrant is currently domiciled, residing, employed or enrolled.

Credits

2011, c. 663, § 3; 2015, c. 280, §§ 15, 16, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11282, ME ST T. 34-A § 11282

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Maine Revised Statutes Annotated

Title 34-a. Corrections (Refs & Annos)

Chapter 17. Sex Offender Registration and Notification Act of 2013

Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11283

§ 11283. Duty of person establishing domicile or residence in this State to register

Effective: August 30, 2012

Currentness

A person who has been sentenced for a military, tribal or federal offense requiring registration pursuant to the federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151 or in a jurisdiction other than this State who is required under that jurisdiction to register pursuant to that jurisdiction's sex offender registration statute or would have been required to register if the person had remained in the jurisdiction or, if not so required, who has been sentenced for an offense that includes the essential elements of a Tier I, Tier II or Tier III offense shall register as a Tier I registrant, a Tier II registrant or a Tier III registrant, whichever is applicable, within 3 days and shall notify the law enforcement agency having jurisdiction within 24 hours of establishing domicile or residence in this State. The person shall contact the bureau, which shall provide the person with the registration form and direct the person to take the form and a current photograph of the person to the law enforcement agency having jurisdiction. The law enforcement agency shall supervise the completion of the form, take the person's fingerprints and immediately forward the form, photograph and fingerprints to the bureau.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11283, ME ST T. 34-A § 11283

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
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34-A M.R.S.A. § 11284

§ 11284. Duty of person employed or attending college or school in this State to register

Effective: August 30, 2012

Currentness

The following provisions govern registration duties for a person not domiciled or residing in this State but who is employed or attending college or school in this State.

1. Time. A person who has been sentenced for a military, tribal or federal offense requiring registration pursuant to the federal Adam Walsh Child Protection and Safety Act of 2006, Public Law 109-248, 42 United States Code, Chapter 151 or in a jurisdiction other than this State and who is required under that jurisdiction to register pursuant to that jurisdiction's sex offender registration statute or would have been required to register if the person had remained in that jurisdiction or, if not so required, who has been sentenced for an offense that includes the essential elements of a Tier I, Tier II or Tier III offense shall register as a Tier I registrant, a Tier II registrant or a Tier III registrant, whichever is applicable, within 3 days and shall notify the law enforcement agency having jurisdiction:

A. Within 24 hours of beginning full-time or part-time employment, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year in this State; or

B. Within 24 hours of beginning college or school on a full-time or part-time basis in this State.

2. Process for notifying bureau. The person under subsection 1 shall contact the bureau, which shall provide the person with a registration form and direct the person to take the form and a current photograph of the person to the law enforcement agency having jurisdiction. The law enforcement agency shall supervise the completion of the form, take the person's fingerprints and immediately forward the form, photograph and fingerprints to the bureau.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11284, ME ST T. 34-A § 11284

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11285

§ 11285. Duration of registration

Effective: October 15, 2015

Currentness

The following provisions govern the duration of registration.

1. Offender convicted and sentenced in State for Tier I offense. An offender convicted and sentenced in this State for a Tier I offense shall register for a period of 10 years. The 10-year period commences from the date the person in fact initially registers once the legal duty arises under section 11282, subsection 2.

2. Offender convicted and sentenced in another jurisdiction for Tier I offense. An offender convicted and sentenced in another jurisdiction and required to register in this State pursuant to section 11283 or 11284 shall register for a period of 10 years or as provided in subsection 7. The following provisions apply.

A. A Tier I registrant shall register in this State for a period of 10 years if, pursuant to the other jurisdiction's sex offender registration statute, the registration period is for a period of no more than 10 years. The 10-year period commences from the date the person in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284. However, the Tier I registrant may receive day-for-day credit for the time actually registered pursuant to the other jurisdiction's sex offender registration statute prior to registering in this State upon applying to the bureau for credit. The bureau may grant credit if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau.

B. A Tier I registrant shall register for a period of 10 years if registration was not required in that other jurisdiction and the person has been sentenced in that jurisdiction for a crime that includes the essential elements of a Tier I offense. The 10-year period commences from the date the person in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284. However, the Tier I registrant may receive day-for-day credit from the time of sentencing in the other jurisdiction to when the offender in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284 and upon applying to the bureau for credit. The bureau may grant credit if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau.

3. Offender convicted and sentenced in State for Tier II offense. An offender convicted and sentenced in this State for a Tier II offense shall register for a period of 25 years. The 25-year period commences from the date the person in fact initially registers once the legal duty arises under section 11282, subsection 2.

4. Offender convicted and sentenced in another jurisdiction for Tier II offense. An offender convicted and sentenced in another jurisdiction and required to register in this State pursuant to section 11283 or 11284 shall register for a period of 25 years. The following provisions apply.

A. A Tier II registrant shall register in this State for a period of 25 years if, pursuant to the other jurisdiction's sex offender registration statute, the registration period is for a period of more than 10 years and no more than 25 years. The 25-year period commences from the date the person in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284. However, the Tier II registrant may receive day-for-day credit for the time actually registered pursuant to the other jurisdiction's sex offender registration statute prior to registering in this State upon applying to the bureau for credit. The bureau may grant credit if the registrant provides sufficient documentation in accordance with rules adopted by the bureau.

B. A Tier II registrant shall register for a period of 25 years if registration was not required in that other jurisdiction and the person has been sentenced in that jurisdiction for a crime that includes the essential elements of a Tier II offense. The 25-year period commences from the date the person in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284. However, the Tier II registrant may receive day-for-day credit from the time of sentencing in the other jurisdiction to when the offender in fact initially registers in this State once the legal duty to register arises under section 11283 or 11284 and upon applying to the bureau for credit. The bureau may grant credit if the registrant provides sufficient documentation in accordance with any rules adopted by the bureau.

5. Offender convicted and sentenced in State for Tier III offense. An offender convicted and sentenced in this State for a Tier III offense shall register for the duration of the offender's life.

6. Offender convicted and sentenced in another jurisdiction for Tier III offense. An offender convicted and sentenced in another jurisdiction and required to register in this State pursuant to section 11283 or 11284 shall register for the duration of the registrant's life.

A. A Tier III registrant shall register in this State for the duration of the registrant's life if, pursuant to the other jurisdiction's sex offender registration statute, the registration period is for the duration of the offender's life.

B. A Tier III registrant shall register in this State for the duration of the registrant's life if registration was not required in that other jurisdiction and the person was convicted and sentenced in that jurisdiction for a crime that includes the essential elements of a Tier III offense.

7. Additional offense. Notwithstanding section 11273, subsections 14 and 15, a person who has been convicted and sentenced at any time for 2 or more offenses each of which is a Tier I offense or Tier II offense or includes the essential elements of a Tier I offense or Tier II offense is required to register as a Tier III registrant. For purposes of this subsection, convictions that occur on the same day count as separate offenses.

8. Suspending verifications. Notwithstanding any other provision of this section, the bureau, pursuant to any rules the bureau may adopt, may suspend the requirement that the registrant or offender verify registration information during any period in which a registrant or offender:

- A. Leaves this State, establishes a domicile or residence in another state and remains physically absent from this State;
- B. Is incarcerated; or
- C. Is incapacitated or hospitalized.

9. Relief from duty to register. The following provisions apply to relief from the duty to register.

- A. An offender's or a registrant's duty to register is not required if the circumstances triggering the registration requirements under section 11283 or 11284 no longer exist.
- B. If the underlying conviction in this State or in another jurisdiction that triggers the registration requirement is reversed, vacated or set aside or if the offender or registrant is pardoned for the crime, registration is no longer required.

Credits

2011, c. 663, § 3; 2015, c. 280, § 17, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11285, ME ST T. 34-A § 11285

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34-A M.R.S.A. § 11286

§ 11286. Duty of person traveling beyond the jurisdiction of the United States

Effective: August 30, 2012

Currentness

An offender shall notify the bureau at least 21 days prior to travel beyond the jurisdiction of the United States. The offender shall provide the bureau with information about the date of departure from and return to the United States and the destination beyond the jurisdiction of the United States.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11286, ME ST T. 34-A § 11286

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34-A M.R.S.A. § 11287

§ 11287. Fee

Effective: August 30, 2012

Currentness

The bureau may charge a \$25 annual fee to persons required to register under this chapter. Registrants shall pay the fee at the time of initial registration and shall pay the fee on each anniversary of their initial registration.

The fee must be credited to the General Fund and the Highway Fund in an amount consistent with budgeted appropriations and allocations in the fiscal year of the credit.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11287, ME ST T. 34-A § 11287

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Title 34-a. Corrections (Refs & Annos)
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Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11288

§ 11288. Violation

Effective: October 15, 2015

Currentness

1. Failure to comply; first offense. An offender who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class D crime.

2. Failure to comply; 2nd offense. A person who has one prior conviction under this section or section 11227 and who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class C crime.

3. Failure to comply; 3rd offense. A person who has 2 or more prior convictions under this section or section 11227 and who in fact fails to comply with any duty imposed under this chapter or a rule adopted pursuant to this chapter commits a Class B crime.

4. Strict liability. Violation of this section is a strict liability crime as defined in Title 17-A, section 34, subsection 4-A.

5. Prior convictions. Title 17-A, section 9-A governs the use of prior convictions when determining a sentence.

6. Affirmative defense. It is an affirmative defense that the failure to comply with a duty imposed under this chapter or a rule adopted pursuant to this chapter resulted from just cause.

7. Permissible inference. Proof that the name and date of birth of the person charged with a violation of this section are the same as those of a person who has been sentenced for an offense requiring registration pursuant to this chapter gives rise to a permissible inference under the Maine Rules of Evidence, Rule 303 that the person charged with a violation of this section is the same person as that person convicted of the offense requiring registration.

Credits

2011, c. 663, § 3; 2015, c. 280, § 18, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11288, ME ST T. 34-A § 11288

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 2. Sex Offender Registration

34-A M.R.S.A. § 11289

§ 11289. Certification by record custodian

Effective: October 15, 2015

Currentness

1. Certificate admissible. Notwithstanding any other law or rule of evidence, a certificate by the custodian of the records of the bureau, when signed and sworn to by that custodian, or the custodian's designee, is admissible in a judicial or administrative proceeding as prima facie evidence of any fact stated in the certificate or in any documents attached to the certificate.

2. Qualified witness. With 10 days' written notice to the prosecution, the defendant may request that a qualified witness testify to the matters of which the certificate under subsection 1 constitutes prima facie evidence. The notice must specify those matters concerning which the defendant requests testimony. The certificate is not prima facie evidence in those matters.

Credits

2011, c. 663, § 3; 2015, c. 280, § 19, eff. Oct. 15, 2015.

34-A M. R. S. A. § 11289, ME ST T. 34-A § 11289

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 3. Notification

34-A M.R.S.A. § 11301

§ 11301. Immunity from liability

Effective: August 30, 2012

Currentness

Neither the failure to perform the requirements of this chapter nor compliance with this chapter subjects any state, municipal or county official or employee to liability in a civil action. The immunity provided under this section applies to the release of relevant information to other officials or employees or to the general public.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11301, ME ST T. 34-A § 11301

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Maine Revised Statutes Annotated
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Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 3. Notification

34-A M.R.S.A. § 11302

§ 11302. Community education

Effective: August 30, 2012

Currentness

The department shall provide law enforcement agencies technical assistance concerning community education curricula for purposes of notification to the public of a registrant's conditional release or discharge.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11302, ME ST T. 34-A § 11302

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 3. Notification

34-A M.R.S.A. § 11303

§ 11303. Mandatory notification of conditional release or discharge of registrants

Effective: August 30, 2012

Currentness

The department, county jails, state mental health institutes and the bureau are governed by the following notice provisions when a registrant is conditionally released or discharged.

1. Duties. The department, a county jail or a state mental health institute shall give the bureau notice of the following:

- A. The address where the registrant will be domiciled and reside;
- B. The address where the registrant will work and attend college or school, if applicable;
- C. The mailing address of the registrant; and
- D. The geographic area to which a registrant's conditional release is limited, if any.

2. Duties of the bureau. Upon receipt of the information concerning the conditional release or discharge of a registrant pursuant to subsection 1, the bureau shall forward the information to all law enforcement agencies that have jurisdiction in those areas where the registrant may be domiciled, reside, work or attend college or school.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11303, ME ST T. 34-A § 11303

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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Maine Revised Statutes Annotated
Title 34-a. Corrections (Refs & Annos)
Chapter 17. Sex Offender Registration and Notification Act of 2013
Subchapter 3. Notification

34-A M.R.S.A. § 11304

§ 11304. Public notification

Effective: August 30, 2012

Currentness

1. Department. Upon the conditional release or discharge of a registrant from a state correctional institution, the department shall give notice of the information under section 11303, subsection 1 to members of the public the department determines appropriate to ensure public safety.

2. Law enforcement agencies. Upon receipt of the information concerning the conditional release or discharge of a registrant pursuant to section 11303, subsection 2, a law enforcement agency shall notify members of the public that the law enforcement agency determines appropriate to ensure public safety.

Credits

2011, c. 663, § 3.

34-A M. R. S. A. § 11304, ME ST T. 34-A § 11304

Current with the emergency Chapter 546 of the 2025 Second Regular Session of the 132nd Legislature of Maine. The Second Regular Session convened January 7, 2026, and scheduled to adjourn April 15, 2026.

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West's Annotated Code of Maryland
Criminal Procedure
Title 11. Victims and Witnesses
Subtitle 7. Sex Offender Registration

MD Code, Criminal Procedure, T. 11, Subt. 7, Refs & Annos
Currentness

MD Code, Criminal Procedure, T. 11, Subt. 7, Refs & Annos, MD CRIM PROC T. 11, Subt. 7, Refs & Annos
Current with legislation effective through February 24, 2026, from the 2026 Regular Session of the General Assembly. Some statute sections may be more current, see credits for details.

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West's Annotated Code of Maryland
Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-701

§ 11-701. Definitions

Effective: October 1, 2023

Currentness

- (a) In this subtitle the following words have the meanings indicated.
- (b) “Board” means the Sexual Offender Advisory Board.
- (c) “Employment” means an occupation, job, or vocation that is full time or part time for a period exceeding 14 days or for an aggregate period exceeding 30 days during a calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit.
- (d)(1) “Habitually lives” means any place where a person lives, sleeps, or visits with any regularity, including where a homeless person is stationed during the day or sleeps at night.
- (2) “Habitually lives” includes any place where a person visits for longer than 5 hours per visit more than 5 times within a 30-day period.
- (e) “Homeless” means having no fixed residence.
- (f) “Imprisonment” means incarceration pursuant to a conviction, regardless of the nature of the institution in which the offender serves the sentence.
- (g) “Jurisdiction” means a state or a Native American tribe that elects to function as a registration jurisdiction under federal law.
- (h) “Local law enforcement unit” means the law enforcement unit in a county that has been designated by resolution of the county governing body as the primary law enforcement unit in the county.
- (i)(1) Except as otherwise provided in this subsection, “release” means any type of release from the custody of a supervising authority.
- (2) “Release” means:

(i) release on parole;

(ii) mandatory supervision release;

(iii) release from a correctional facility with no required period of supervision;

(iv) work release;

(v) placement on home detention; and

(vi) the first instance of entry into the community that is part of a supervising authority's graduated release program.

(3) "Release" does not include:

(i) an escape; or

(ii) leave that is granted on an emergency basis.

(j) "Sexually violent offense" means:

(1) a violation of § 3-303, § 3-304, § 3-309, or § 3-310 of the Criminal Law Article, or § 3-305, § 3-306, § 3-311, or § 3-312 of the Criminal Law Article as the sections existed before October 1, 2017;

(2) assault with intent to commit rape in the first or second degree or a sexual offense in the first or second degree as prohibited on or before September 30, 1996, under former Article 27, § 12 of the Code; or

(3) a crime committed in another jurisdiction, federal or military court, or foreign country that, if committed in this State, would constitute one of the crimes listed in item (1) or (2) of this subsection.

(k) "Sexually violent predator" means a person who:

(1) is convicted of a sexually violent offense; and

(2) has been determined in accordance with this subtitle to be at risk of committing another sexually violent offense.

(l) "Sex offender" means a person who has been convicted of:

- (1) an offense that would require the person to be classified as a tier I sex offender, tier II sex offender, or tier III sex offender;
 - (2) an offense committed in another state or in a federal, military, or tribal jurisdiction that, if committed in this State, would require the person to be classified as a tier I sex offender, tier II sex offender, or tier III sex offender; or
 - (3) an offense in a court of Canada, Great Britain, Australia, New Zealand, or any other foreign country where the United States Department of State has determined in its Country Reports on Human Rights Practices that an independent judiciary generally or vigorously enforced the right to a fair trial during the year in which the conviction occurred that, if committed in this State, would require the person to be classified as a tier I sex offender, tier II sex offender, or tier III sex offender.
- (m) “Student” means an individual who is enrolled in or attends an education institution, including a public or private secondary school, trade or professional school, or an institution of higher education.
- (n) “Supervising authority” means an agency or person that is responsible for collecting the information for the initial registration of a sex offender and is:
- (1) the Secretary, if the registrant is in the custody of a correctional facility operated by the Department;
 - (2) the administrator of a local correctional facility, if the registrant, including a participant in a home detention program, is in the custody of the local correctional facility;
 - (3) the court that granted the probation or suspended sentence, except as provided in item (9) of this subsection, if the registrant is granted probation before judgment, probation after judgment, or a suspended sentence;
 - (4) the Director of the Patuxent Institution, if the registrant is in the custody of the Patuxent Institution;
 - (5) the Secretary of Health, if the registrant is in the custody of a facility operated by the Maryland Department of Health;
 - (6) the court in which the registrant was convicted, if the registrant's sentence does not include a term of imprisonment or if the sentence is modified to time served;
 - (7) the Secretary, if the registrant is in the State under terms and conditions of the Interstate Compact for Adult Offender Supervision, set forth in Title 6, Subtitle 2 of the Correctional Services Article, or the Interstate Corrections Compact, set forth in Title 8, Subtitle 6 of the Correctional Services Article;
 - (8) the local law enforcement unit where the sex offender is a resident, is a transient, or habitually lives on moving from another jurisdiction or foreign country that requires registration if the sex offender is not under the supervision, custody, or control of another supervising authority;

- (9) the Director of Parole and Probation, if the registrant is under the supervision of the Division of Parole and Probation; or
 - (10) the Secretary of Juvenile Services, if the registrant was a minor at the time the act was committed for which registration is required.
- (o) “Tier I sex offender” means a person who has been convicted of:
- (1) conspiring to commit, attempting to commit, or committing a violation of § 3-308 of the Criminal Law Article;
 - (2) conspiring to commit, attempting to commit, or committing a violation of § 3-902 or § 11-208 of the Criminal Law Article, if the victim is a minor;
 - (3) a crime committed in a federal, military, tribal, or other jurisdiction that, if committed in this State, would constitute one of the crimes listed in item (1) or (2) of this subsection;
 - (4) any of the following federal offenses:
 - (i) misleading domain names on the Internet under 18 U.S.C. § 2252B;
 - (ii) misleading words or digital images on the Internet under 18 U.S.C. § 2252C;
 - (iii) engaging in illicit conduct in foreign places under 18 U.S.C. § 2423(c);
 - (iv) failure to file a factual statement about an alien individual under 18 U.S.C. § 2424;
 - (v) transmitting information about a minor to further criminal sexual conduct under 18 U.S.C. § 2425;
 - (vi) sex trafficking by force, fraud, or coercion under 18 U.S.C. § 1591; or
 - (vii) travel with intent to engage in illicit conduct under 18 U.S.C. § 2423(b);
 - (5) any military offense specified by the Secretary of Defense under Section 115(A)(8)(C)(i) of Public Law 105-119 (codified at 10 U.S.C. § 951 Note) that is similar to those offenses listed in item (4) of this subsection; or
 - (6) a crime in a court of Canada, Great Britain, Australia, New Zealand, or any other foreign country where the United States Department of State has determined in its Country Reports on Human Rights Practices that an independent judiciary generally or vigorously enforced the right to a fair trial during the year in which the conviction occurred that, if the crime were committed in this State, would constitute one of the crimes listed in items (1) through (5) of this subsection.

(p) “Tier II sex offender” means a person who has been convicted of:

- (1) conspiring to commit, attempting to commit, or committing a violation of § 3-307(a)(4) or (5), § 3-324, § 11-207, or § 11-209 of the Criminal Law Article;
- (2) conspiring to commit, attempting to commit, or committing a violation of § 3-1102, § 3-1103, § 11-303, § 11-305, § 11-306, or § 11-307 of the Criminal Law Article, if the intended prostitute or victim is a minor;
- (3) conspiring to commit, attempting to commit, or committing a violation of § 3-314 or § 3-603 of the Criminal Law Article, if the victim is a minor who is at least 14 years old;
- (4) conspiring to commit, attempting to commit, or committing an offense that would require the person to register as a tier I sex offender after the person was already registered as a tier I sex offender;
- (5) a crime that was committed in a federal, military, tribal, or other jurisdiction that, if committed in this State, would constitute one of the crimes listed in items (1) through (3) of this subsection; or
- (6) a crime in a court of Canada, Great Britain, Australia, New Zealand, or any other foreign country where the United States Department of State has determined in its Country Reports on Human Rights Practices that an independent judiciary generally or vigorously enforced the right to a fair trial during the year in which the conviction occurred that, if the crime were committed in this State, would constitute one of the crimes listed in items (1) through (3) of this subsection.

(q) “Tier III sex offender” means a person who has been convicted of:

- (1) conspiring to commit, attempting to commit, or committing a violation of:
 - (i) § 2-201(a)(4)(viii), (x), or (xi) of the Criminal Law Article;
 - (ii) § 3-303, § 3-304, § 3-307(a)(1) or (2), § 3-309, § 3-310, § 3-311, § 3-312, § 3-315, § 3-323, or § 3-602 of the Criminal Law Article;
 - (iii) § 3-502 of the Criminal Law Article, if the victim is a minor;
 - (iv) § 3-502 of the Criminal Law Article, if the victim is an adult, and the person has been ordered by the court to register under this subtitle;
 - (v) the common law offense of sodomy, as that offense existed before October 1, 2020, or § 3-322 of the Criminal Law Article, as that offense existed before October 1, 2023, if the offense was committed with force or threat of force; or

(vi) § 3-305 or § 3-306 of the Criminal Law Article as the sections existed before October 1, 2017;

(2) conspiring to commit, attempting to commit, or committing a violation of § 3-307(a)(3), § 3-314, § 3-503, or § 3-603 of the Criminal Law Article, if the victim is under the age of 14 years;

(3) conspiring to commit, attempting to commit, or committing the common law offense of false imprisonment, if the victim is a minor;

(4) conspiring to commit, attempting to commit, or committing an offense that would require the person to register as a tier I or tier II sex offender after the person was already registered as a tier II sex offender;

(5) a crime committed in a federal, military, tribal, or other jurisdiction that, if committed in this State, would constitute one of the crimes listed in items (1) through (3) of this subsection; or

(6) a crime in a court of Canada, Great Britain, Australia, New Zealand, or any other foreign country where the United States Department of State has determined in its Country Reports on Human Rights Practices that an independent judiciary generally or vigorously enforced the right to a fair trial during the year in which the conviction occurred that, if the crime were committed in this State, would constitute one of the crimes listed in items (1) through (3) of this subsection.

(r) “Transient” means a nonresident registrant who enters a county of this State with the intent to be in the State or is in the State for a period exceeding 14 days or for an aggregate period exceeding 30 days during a calendar year for a purpose other than employment or to attend an educational institution.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2001, c. 249, § 1, eff. Oct. 1, 2001; Acts 2001, c. 674, § 1, eff. Oct. 1, 2001; Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2002, c. 213, § 6, eff. Oct. 1, 2002; Acts 2002, c. 273, § 3, eff. Oct. 1, 2002; Acts 2003, c. 21, § 1, eff. April 8, 2003; Acts 2005, c. 236, § 1, eff. Oct. 1, 2005; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2009, c. 524, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2010, c. 176, § 1, eff. Oct. 1, 2010; Acts 2010, c. 177, § 1, eff. Oct. 1, 2010; Acts 2011, c. 65, § 1, eff. April 12, 2011; Acts 2011, c. 374, § 1, eff. June 1, 2011; Acts 2012, c. 66, § 1, eff. April 10, 2012; Acts 2012, c. 259, § 1, eff. June 1, 2012; Acts 2012, c. 260, § 1, eff. June 1, 2012; Acts 2017, c. 62, § 6; Acts 2017, c. 161, § 1, eff. Oct. 1, 2017; Acts 2017, c. 162, § 1, eff. Oct. 1, 2017; Acts 2019, c. 21, § 2, eff. Oct. 1, 2019; Acts 2019, c. 22, § 2, eff. Oct. 1, 2019; Acts 2020, c. 45, § 1, eff. Oct. 1, 2020; Acts 2023, c. 796, § 1, eff. Oct. 1, 2023; Acts 2023, c. 797, § 1, eff. Oct. 1, 2023.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-701, MD CRIM PROC § 11-701

Current with legislation effective through February 24, 2026, from the 2026 Regular Session of the General Assembly. Some statute sections may be more current, see credits for details.

West's Annotated Code of Maryland
Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-702

§ 11-702. Convicted persons

Effective: October 1, 2010

Currentness

For the purposes of this subtitle, a person is convicted when the person:

- (1) is found guilty of a crime by a jury or judicial officer;
- (2) enters a plea of guilty or nolo contendere;
- (3) is granted a probation before judgment after a finding of guilt for a crime if the court, as a condition of probation, orders compliance with the requirements of this subtitle; or
- (4) is found not criminally responsible for a crime.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-702, MD CRIM PROC § 11-702

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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-702.1

§ 11-702.1. Retroactive application of subtitle

Effective: June 1, 2011

Currentness

(a) Notwithstanding any other provision of law to the contrary, this subtitle shall be applied retroactively to include a person who:

(1) is under the custody or supervision of a supervising authority on October 1, 2010;

(2) was subject to registration under this subtitle on September 30, 2010;

(3) is convicted of any felony on or after October 1, 2010, and has a prior conviction for an offense for which registration as a sex offender is required under this subtitle; or

(4) was convicted on or after October 1, 2010, of a violation of § 3-324 of the Criminal Law Article, regardless of whether the victim was a minor.

(b) The term of registration for a sex offender registered under subsection (a) of this section shall be calculated from the date of release.

Credits

Added by Acts 2001, c. 221, § 1, eff. Oct. 1, 2001. Amended by Acts 2009, c. 541, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2011, c. 374, § 1, eff. June 1, 2011.

MD Code, Criminal Procedure, § 11-702.1, MD CRIM PROC § 11-702.1

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Criminal Procedure (Refs & Annos)
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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-703

§ 11-703. Determination of sexually violent predator status

Effective: October 1, 2023

Currentness

(a)(1) Subject to subsections (b) and (c) of this section, if a person is convicted of a sexually violent offense, the State's Attorney before sentencing may ask the court to determine whether the person is a sexually violent predator.

(2) If the State's Attorney makes a request under paragraph (1) of this subsection, the court shall determine, before or at sentencing, whether the person is a sexually violent predator.

(b) In making a determination under subsection (a) of this section, the court shall consider:

(1) evidence that the court considers appropriate to the determination of whether the person is a sexually violent predator, including the presentencing investigation and sexually violent offender's incarcerated individual record;

(2) evidence introduced by the person convicted; and

(3) at the request of the State's Attorney, evidence that a victim of the sexually violent offense presents.

(c) The State's Attorney may not ask a court to determine whether a person is a sexually violent predator under this section unless the State's Attorney serves written notice of intent to make the request on the defendant or the defendant's counsel at least 30 days before trial.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2023, c. 721, § 3, eff. Oct. 1, 2023.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-703, MD CRIM PROC § 11-703

Current with legislation effective through February 24, 2026, from the 2026 Regular Session of the General Assembly. Some statute sections may be more current, see credits for details.

West's Annotated Code of Maryland
Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-704

§ 11-704. Persons subject to registration

Effective: October 1, 2017

Currentness

(a) A person shall register with the person's supervising authority if the person is:

(1) a tier I sex offender;

(2) a tier II sex offender;

(3) a tier III sex offender; or

(4) a sex offender who is required to register by another jurisdiction, a federal, military, or tribal court, or a foreign government, and who is not a resident of this State, and who enters this State:

(i) to begin residing or to habitually live;

(ii) to carry on employment;

(iii) to attend a public or private educational institution, including a secondary school, trade or professional institution, or institution of higher education, as a full-time or part-time student; or

(iv) as a transient.

(b) Notwithstanding any other provision of law, a person is no longer subject to registration under this subtitle if:

(1) the underlying conviction requiring registration is reversed, vacated, or set aside; or

(2) the registrant is pardoned for the underlying conviction.

(c)(1) A person who has been adjudicated delinquent for an act that, if committed by an adult, would constitute a violation of § 3-303 or § 3-304 of the Criminal Law Article, § 3-305 or § 3-306 of the Criminal Law Article as the sections existed before October 1, 2017, or § 3-307(a)(1) or (2) or § 3-308(b)(1) of the Criminal Law Article involving conduct described in § 3-301(e)(2) of the Criminal Law Article, shall register with the person's supervising authority if:

(i) the person was a minor who was at least 13 years old at the time the delinquent act was committed;

(ii) the State's Attorney or the Department of Juvenile Services requests that the person be required to register;

(iii) 90 days prior to the time the juvenile court's jurisdiction over the person terminates under § 3-8A-07 of the Courts Article, the court, after a hearing, determines under a clear and convincing evidence standard that the person is at significant risk of committing a sexually violent offense or an offense for which registration as a tier II sex offender or tier III sex offender is required; and

(iv) the person is at least 18 years old.

(2) If the person has committed a delinquent act that would cause the court to make a determination regarding registration under paragraph (1) of this subsection:

(i) the State's Attorney shall serve written notice to the person or the person's counsel at least 30 days before a hearing to determine if the person is required to register under this section; and

(ii) the Department of Juvenile Services shall:

1. provide the court with any information necessary to make the determination; and

2. conduct any follow-up the court requires.

(3) The form of petitions and all other pleadings under this subsection and, except as otherwise provided under Title 3 of the Courts Article, the procedures to be followed by the court under this subsection shall be specified in the Maryland Rules.

(4) The court may order an evaluation of the person in making the determination under paragraph (1) of this subsection.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2002, c. 112, § 1, eff. Oct. 1, 2002; Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2009, c. 524, § 1, eff. Oct. 1, 2009; Acts 2009, c. 541, § 1, eff. Oct. 1, 2009; Acts 2009, c. 636, § 1, eff. Oct. 1, 2009; Acts 2009, c. 637, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2016, c. 8, § 5; Acts 2017, c. 161, § 1, eff. Oct. 1, 2017; Acts 2017, c. 162, § 1, eff. Oct. 1, 2017.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-704, MD CRIM PROC § 11-704

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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-704.1

§ 11-704.1. Listing of juvenile sex offenders

Effective: October 1, 2017

Currentness

(a) In this section, “juvenile registrant” means a person who is required to be included in the registry of juvenile sex offenders under subsection (b) of this section.

(b) A person shall be included in a registry of juvenile sex offenders that is maintained by the Department separately from the sex offender registry if:

(1) the person has been adjudicated delinquent for an act that, if committed by an adult:

(i) would constitute a violation of § 3-303, § 3-304, or § 3-307(a)(1) or (2) of the Criminal Law Article; or

(ii) would constitute a violation of § 3-305 or § 3-306(a)(1) or (2) of the Criminal Law Article as the sections existed before October 1, 2017; and

(2) the person was a minor who was at least 14 years old at the time the delinquent act was committed.

(c) The registry of juvenile sex offenders shall be accessible only by law enforcement personnel for law enforcement purposes.

(d) When the juvenile court's jurisdiction over a juvenile registrant terminates under § 3-8A-07 of the Courts Article, the juvenile registrant shall be removed from the registry.

(e) A juvenile registrant shall appear in person at a location designated by the Department of Juvenile Services every 3 months to:

(1) update and verify with the Department of Juvenile Services the information included in the registry of juvenile sex offenders under this section; and

(2) allow the Department of Juvenile Services to take a digital image of the juvenile registrant.

Credits

Added by Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010. Amended by Acts 2011, c. 374, § 1, eff. June 1, 2011; Acts 2017, c. 161, § 1, eff. Oct. 1, 2017; Acts 2017, c. 162, § 1, eff. Oct. 1, 2017.

MD Code, Criminal Procedure, § 11-704.1, MD CRIM PROC § 11-704.1

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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-704.2

§ 11-704.2. Exemption from registration for individuals in witness protection programs

Effective: October 1, 2010

Currentness

(a) On written request by a federal agency operating a federal witness security program established under 18 U.S.C. 3521, the registration requirement for a sex offender under the protection of a federal witness security program is waived and the person under protection is exempt from registration.

(b) On written request by a nonfederal agency that operates a witness protection program comparable to a federal program established under 18 U.S.C. 3521, the registration requirement for a sex offender under the protection of a witness protection program is waived and the person under protection is exempt from registration.

(c) A waiver granted under this section is terminated, and registration is required, if a sex offender exempted from registration under this section subsequently is convicted of an offense that requires registration under this subtitle.

Credits

Added by Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

MD Code, Criminal Procedure, § 11-704.2, MD CRIM PROC § 11-704.2

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MD Code, Criminal Procedure, § 11-705

§ 11-705. Deadline for registration and other registration requirements

Effective: October 1, 2017

Currentness

(a) In this section, “resident” means a person who has a home or other place where the person habitually lives located in this State when the person:

- (1) is released;
- (2) is granted probation;
- (3) is granted a suspended sentence;
- (4) receives a sentence that does not include a term of imprisonment; or
- (5) is released from the juvenile court's jurisdiction under § 3-8A-07 of the Courts Article, if the person was a minor who lived in the State at the time the act was committed for which registration is required.

(b) A registrant shall register with the appropriate supervising authority in the State:

- (1) if the registrant was sentenced to a term of imprisonment before the date that the registrant is released; or
- (2) within 3 days of the date that the registrant:
 - (i) is granted probation before judgment;
 - (ii) is granted probation after judgment;
 - (iii) is granted a suspended sentence; or
 - (iv) receives a sentence that does not include a term of imprisonment;

(3) if the registrant was a resident who was a minor at the time the act was committed for which registration is required, within 3 days after the juvenile court's jurisdiction over the person terminates under § 3-8A-07 of the Courts Article;

(4) if the registrant moves into the State, within 3 days after the earlier of the date that the registrant:

(i) establishes a temporary or permanent residence in the State;

(ii) begins to habitually live in the State; or

(iii) applies for a driver's license in the State; or

(5) if the registrant is not a resident, within 3 days after the registrant:

(i) begins employment in the State;

(ii) registers as a student in the State; or

(iii) enters the State as a transient.

(c)(1) A sex offender shall also register in person with the local law enforcement unit of each county where the sex offender resides within 3 days of:

(i) release from any period of imprisonment or arrest; or

(ii) registering with the supervising authority, if the registrant is moving into this State and the local law enforcement unit is not the supervising authority.

(2) A sex offender may be required to give to the local law enforcement unit more information than required under § 11-706 of this subtitle.

(d)(1) A homeless registrant also shall register in person with the local law enforcement unit in each county where the registrant habitually lives:

(i) within 3 days after the earlier of the date of release or after registering with the supervising authority; and

(ii) within 3 days after entering and remaining in a county.

- (2) After initially registering with a local law enforcement unit under this subsection, a homeless registrant shall register once a week in person during the time the homeless registrant habitually lives in the county.
- (3) The registration requirements under this subsection are in addition to any other requirements the homeless registrant is subject to according to the registrant's classification as a tier I sex offender, tier II sex offender, tier III sex offender, or sexually violent predator.
- (4) If a registrant who was homeless obtains a fixed address, the registrant shall register with the appropriate supervising authority and local law enforcement unit within 3 days after obtaining a fixed address.
- (e) Within 3 days of any change, a registrant shall notify the local law enforcement unit where the registrant most recently registered and each local law enforcement unit where the registrant will reside or habitually live of changes in:
- (1) residence;
 - (2) the county in which the registrant habitually lives;
 - (3) vehicle or license plate information;
 - (4) electronic mail or Internet identifiers;
 - (5) home or cell phone numbers; or
 - (6) employment.
- (f)(1) A registrant who commences or terminates enrollment as a full-time or part-time student at an institution of higher education in the State shall provide notice in person to the local law enforcement unit where the institution of higher education is located within 3 days after the commencement or termination of enrollment.
- (2) A registrant who commences or terminates carrying on employment at an institution of higher education in the State shall provide notice in person to the local law enforcement unit where the institution of higher education is located within 3 days after the commencement or termination of employment.
- (g) A registrant who is granted a legal change of name by a court shall send written notice of the change to each local law enforcement unit where the registrant resides or habitually lives within 3 days after the change is granted.
- (h) A registrant shall notify each local law enforcement unit where the registrant resides or habitually lives at least 21 days prior to leaving the United States to commence residence or employment or attend school in a foreign country.

(i)(1) A registrant shall notify each local law enforcement unit where the registrant resides or habitually lives when the registrant obtains a temporary residence or alters the location where the registrant resides or habitually lives for more than 5 days or when the registrant will be absent from the registrant's residence or location where the registrant resides or habitually lives for more than 7 days.

(2) Notification under this subsection shall:

(i) be made in writing or in person prior to obtaining a temporary residence, commencing the period of absence, or temporarily altering a location where the registrant resides or habitually lives;

(ii) include the temporary address or detailed description of the temporary location where the registrant will reside or habitually live; and

(iii) contain the anticipated dates that the temporary residence or location will be used by the registrant and the anticipated dates that the registrant will be absent from the registrant's permanent residence or locations where the registrant regularly resides or habitually lives.

(j) A registrant who establishes a new electronic mail address, computer log-in or screen name or identity, instant-message identity, or electronic chat room identity shall send written notice of the new information to the State registry within 3 days after the electronic mail address, computer log-in or screen name or identity, instant-message identity, or electronic chat room identity is established.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2003, c. 405, § 1, eff. Oct. 1, 2003; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2009, c. 524, § 1, eff. Oct. 1, 2009; Acts 2009, c. 636, § 1, eff. Oct. 1, 2009; Acts 2009, c. 637, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2017, c. 649, § 1, eff. Oct. 1, 2017.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-705, MD CRIM PROC § 11-705

Current with legislation effective through February 24, 2026, from the 2026 Regular Session of the General Assembly. Some statute sections may be more current, see credits for details.

West's Annotated Code of Maryland
Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-706

§ 11-706. Registration statements

Effective: October 1, 2010

Currentness

(a) For all sex offenders in the State, a registration statement shall include:

- (1) the registrant's full name, including any suffix, and all addresses and places where the registrant resides or habitually lives;
- (2) the name and address of each of the registrant's employers and a description of each location where the registrant performs employment duties, if that location differs from the address of the employer;
- (3) the name of the registrant's educational institution or place of school enrollment and the registrant's educational institution or school address;
- (4) a description of the crime for which the registrant was convicted;
- (5) the date that the registrant was convicted;
- (6) the jurisdiction and the name of the court in which the registrant was convicted;
- (7) a list of any aliases, former names, names by which the registrant legally has been known, traditional names given by family or clan under ethnic or tribal tradition, electronic mail addresses, computer log-in or screen names or identities, instant-messaging identities, and electronic chat room identities that the registrant has used;
- (8) the registrant's Social Security number and any purported Social Security numbers, the registrant's date of birth, purported dates of birth, and place of birth;
- (9) all identifying factors, including a physical description;
- (10) a copy of the registrant's passport or immigration papers;

- (11) information regarding any professional licenses the registrant holds;
 - (12) the license plate number, registration number, and description of any vehicle, including all motor vehicles, boats, and aircraft, owned or regularly operated by the registrant;
 - (13) the permanent or frequent addresses or locations where all vehicles are kept;
 - (14) all landline and cellular telephone numbers and any other designations used by the sex offender for the purposes of routing or self-identification in telephonic communications;
 - (15) a copy of the registrant's valid driver's license or identification card;
 - (16) the registrant's fingerprints and palm prints;
 - (17) the criminal history of the sex offender, including the dates of all arrests and convictions, the status of parole, probation, or supervised release, and the existence of any outstanding arrest warrants; and
 - (18) the registrant's signature and date signed.
- (b) If the registrant is determined to be a sexually violent predator, the registration statement shall also include:
- (1) anticipated future residence, if known at the time of registration; and
 - (2) documentation of treatment received for a mental abnormality or personality disorder.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2003, c. 405, § 1, eff. Oct. 1, 2003; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2008, c. 352, § 1, eff. Oct. 1, 2008; Acts 2008, c. 353, § 1, eff. Oct. 1, 2008; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-706, MD CRIM PROC § 11-706

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West's Annotated Code of Maryland
Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-707

§ 11-707. Term of registration

Effective: October 1, 2010

Currentness

(a)(1)(i) A tier I sex offender and a tier II sex offender shall register in person every 6 months with a local law enforcement unit for the term provided under paragraph (4) of this subsection.

(ii) Registration shall include a digital image that shall be updated every 6 months.

(2)(i) A tier III sex offender shall register in person every 3 months with a local law enforcement unit for the term provided under paragraph (4) of this subsection.

(ii) Registration shall include a digital image that shall be updated every 6 months.

(3)(i) A sexually violent predator shall register in person every 3 months with a local law enforcement unit for the term provided under paragraph (4) of this subsection.

(ii) Registration shall include a digital image that shall be updated every 6 months.

(4) Subject to subsection (c) of this section, the term of registration is:

(i) 15 years, if the registrant is a tier I sex offender;

(ii) 25 years, if the registrant is a tier II sex offender;

(iii) the life of the registrant, if the registrant is a tier III sex offender; or

(iv) up to 5 years, if the registrant is a person described under § 11-704(c)(1) of this subtitle, subject to reduction by the juvenile court on the filing of a petition by the registrant for a reduction in the term of registration.

(5) A registrant who is not a resident of the State shall register for the appropriate time specified in this subsection or until the registrant's employment, student enrollment, or transient status in the State ends.

(b) A term of registration described in this section shall be computed from:

(1) the last date of release;

(2) the date granted probation;

(3) the date granted a suspended sentence; or

(4) the date the juvenile court's jurisdiction over the registrant terminates under § 3-8A-07 of the Courts Article if the registrant was a minor who lived in the State at the time the act was committed for which registration is required.

(c) The term of registration for a tier I sex offender shall be reduced to 10 years if, in the 10 years following the date on which the registrant was required to register, the registrant:

(1) is not convicted of any offense for which a term of imprisonment of more than 1 year may be imposed;

(2) is not convicted of any sex offense;

(3) successfully completes, without revocation, any period of supervised release, parole, or probation; and

(4) successfully completes an appropriate sex offender treatment program.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2002, c. 112, § 1, eff. Oct. 1, 2002; Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2002, c. 213, § 6, eff. Oct. 1, 2002; Acts 2005, c. 577, § 1, eff. Oct. 1, 2005; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2009, c. 524, § 1, eff. Oct. 1, 2009; Acts 2009, c. 657, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-707, MD CRIM PROC § 11-707

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Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-708

§ 11-708. Duties of supervising authority

Effective: October 1, 2010

Currentness

(a) When a registrant registers, the supervising authority shall:

(1) give written notice to the registrant of the requirements of this subtitle;

(2) explain the requirements of this subtitle to the registrant, including:

(i) the duties of a registrant when the registrant changes residence address in this State or changes the county in which the registrant habitually lives;

(ii) the duties of a registrant under § 11-705 of this subtitle;

(iii) the requirement for a sex offender to register in person with the local law enforcement unit of each county where the sex offender will reside or habitually live or where the sex offender who is not a resident of this State is a transient or will work or attend school; and

(iv) the requirement that if the registrant changes residence address, employment, or school enrollment to another state that has a registration requirement, the registrant shall register with the designated law enforcement unit or sex offender registration unit of that state within 3 days after the change; and

(3) obtain a statement signed by the registrant acknowledging that the supervising authority explained the requirements of this subtitle and gave written notice of the requirements to the registrant.

(b)(1) The supervising authority shall obtain an updated digital image, fingerprints, and palm prints of the registrant and forward the updated digital image, fingerprints, and palm prints to the Department.

(2) For a registrant who has not submitted a DNA sample, as defined in § 2-501 of the Public Safety Article, for inclusion in the statewide DNA database system of the Department of State Police Crime Laboratory, the supervising authority shall:

(i) obtain a DNA sample from the registrant at the registrant's initial registration; and

(ii) provide the sample to the statewide DNA database system of the Department of State Police Crime Laboratory.

(c)(1) Within 3 days after obtaining a registration statement, the supervising authority shall send a copy of the registration statement with the attached fingerprints, palm prints, and updated digital image of the registrant to the local law enforcement unit in each county where the registrant will reside or habitually live or where a registrant who is not a resident is a transient or will work or attend school.

(2)(i) If the registrant is enrolled in or carries on employment at, or is expecting to enroll in or carry on employment at, an institution of higher education in the State, within 3 days after obtaining a registration statement, the supervising authority shall send a copy of the registration statement with the attached fingerprints, palm prints, and updated digital image of the registrant to the campus police agency of the institution of higher education.

(ii) If an institution of higher education does not have a campus police agency, the copy of the registration statement with the attached fingerprints, palm prints, and updated digital image of the registrant shall be provided to the local law enforcement agency having primary jurisdiction for the campus.

(d) As soon as possible but not later than 3 working days after the registration is complete, a supervising authority that is not a unit of the Department shall send the registration statement to the Department.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2003, c. 405, § 1, eff. Oct. 1, 2003; Acts 2005, c. 577, § 1, eff. Oct. 1, 2005; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2009, c. 657, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-708, MD CRIM PROC § 11-708

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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-709

§ 11-709. Notice requirements of local law enforcement units and police departments

Effective: January 1, 2012

Currentness

(a)(1)(i) Within 3 days after a tier III sex offender or a sexually violent predator completes the registration requirements of § 11-707(a) of this subtitle, a local law enforcement unit shall send notice of the tier III sex offender's or sexually violent predator's quarterly registration to the Department.

(ii) Every 6 months within 3 days after a tier I sex offender or a tier II sex offender completes the registration requirements of § 11-707(a) of this subtitle, a local law enforcement unit shall send notice of the tier I sex offender's or tier II sex offender's biannual registration to the Department.

(2) Every 6 months, a local law enforcement unit shall send a tier III sex offender's and sexually violent predator's updated digital image to the Department within 6 days after the digital image is submitted.

(b)(1) As soon as possible but not later than 3 working days after receiving a registration statement of a sex offender, notice of a change of address of a sex offender, or change in a county in which a homeless sex offender habitually lives, a local law enforcement unit shall send written notice of the registration statement, change of address, or change of county to the county superintendent, as defined in § 1-101 of the Education Article, and all nonpublic primary and secondary schools in the county within 1 mile of where the sex offender is to reside or habitually live or where a sex offender who is not a resident of the State is a transient or will work or attend school.

(2) As soon as possible but not later than 10 working days after receiving notice from the local law enforcement unit under paragraph (1) of this subsection, the county superintendent shall send written notice of the registration statement to principals of the schools under the superintendent's supervision that the superintendent considers necessary to protect the students of a school from a sex offender.

(c) A local law enforcement unit that receives a notice from a supervising authority under this subtitle shall send a copy of the notice to the police department, if any, of a municipal corporation if the registrant:

(1) is to reside or habitually live in the municipal corporation after release;

(2) escapes from a facility but resided or habitually lived in the municipal corporation before being committed to the custody of a supervising authority; or

- (3) is to change addresses to another place of residence within the municipal corporation.
- (d) As soon as possible but not later than 3 working days after receiving notice from a local law enforcement unit under this section, a police department of a municipal corporation shall send a copy of the notice to the commander of each local police precinct or district in which the sex offender is to reside or habitually live or where a sex offender who is not a resident of the State will work or attend school.
- (e) As soon as possible but not later than 3 working days after receiving a notice from a supervising authority under this subtitle, a local law enforcement unit shall send a copy of the notice to the commander of the law enforcement unit in each district or area in which the sex offender is to reside or habitually live or where a sex offender who is not a resident of the State will work or attend school.
- (f) A local law enforcement unit may notify the following entities that are located within the community in which a sex offender is to reside or habitually live or where a sex offender who is not a resident of the State will work or attend school of the filing of a registration statement or notice of change of address or county where the registrant will habitually live by the sex offender:
- (1) family child care homes or child care centers registered, licensed, or issued a letter of compliance under Title 5, Subtitle 5 of the Family Law Article;
 - (2) child recreation facilities;
 - (3) faith institutions; and
 - (4) other organizations that serve children and other individuals vulnerable to sex offenders who victimize children.
- (g) As soon as possible, but not later than 3 working days after receipt of a registrant's change of residence or change in the county in which the registrant habitually lives, the local law enforcement unit shall notify the Department of the change.
- (h) As soon as possible, but not later than 3 working days after receipt of notice under § 11-705(e) of this subtitle, the local law enforcement unit shall give notice to the Department of the registrant's intent to change residence, a county in which the registrant habitually lives, vehicle or license plate information, electronic mail or Internet identifiers, or landline or cellular phone numbers.
- (i) As soon as possible, but not later than 3 working days after receipt of notice under § 11-705(g) of this subtitle, the local law enforcement unit shall give notice to the Department of the change of name.
- (j) As soon as possible, but not later than 3 working days after receipt of notice under § 11-705(h) of this subtitle, the local law enforcement unit shall give notice to the Department of the registrant's intent to leave the United States.

(k) As soon as possible, but not later than 3 working days after receipt of notice under § 11-705(i) of this subtitle, the local law enforcement unit shall give notice to the Department of the registrant's intent to obtain temporary lodging or to be absent from the registrant's permanent residence or locations where the registrant habitually lives.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2005, c. 577, § 1, eff. Oct. 1, 2005; Acts 2005, c. 578, § 1, eff. Oct. 1, 2005; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2007, c. 5, § 1, eff. March 22, 2007; Acts 2009, c. 657, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2011, c. 564, § 3, eff. Jan. 1, 2012.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-709, MD CRIM PROC § 11-709

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Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-710

§ 11-710. Notice of registrant's change of address or change of name

Effective: October 1, 2010

Currentness

(a) As soon as possible but not later than 3 working days after receipt of notice of a registrant's change of address, a county in which a registrant habitually lives, vehicle or license plate information, electronic mail or Internet identifiers, or landline or cellular phone numbers, the Department shall give notice of the change:

(1) if the registration is premised on a conviction under federal, military, or Native American tribal law, to the designated federal unit;

(2) to any other jurisdiction or foreign country where the sex offender is required to register; and

(3)(i) to each local law enforcement unit in whose county the new residence is located or where the registrant intends to habitually live; or

(ii) if the new residence or location where the registrant will habitually live is in a different state that has a registration requirement, to the designated law enforcement unit or sex offender registration unit in that state.

(b)(1)(i) As soon as possible but not later than 3 working days after receipt of notice under § 11-705(f) of this subtitle, the Department shall give notice to the campus police agency of the institution of higher education where the registrant is commencing or terminating enrollment or employment.

(ii) If an institution of higher education does not have a campus police agency, the notice required under this section shall be provided to the local law enforcement unit having primary law enforcement authority for the campus.

(2) Institutions of higher education currently required to disclose campus security policy and campus crime statistics data shall advise the campus community where law enforcement agency information provided by a state concerning registered sex offenders may be obtained.

(3) An institution of higher education is not prohibited from disclosing information provided to the institution under this subtitle concerning registered sex offenders.

(c) As soon as possible but not later than 3 working days after receipt of notice under § 11-705(g) of this subtitle, the Department shall give notice of the change of name:

(1) if the registration is due to a conviction under federal, military, or Native American tribal law, to the designated federal unit;

(2) to each local law enforcement unit in whose county the registrant resides or habitually lives or where a registrant who is not a resident of the State will work or attend school; and

(3) if the registrant is enrolled in or employed at an institution of higher education in the State, to:

(i) the campus police agency of the institution of higher education; or

(ii) if the institution does not have a campus police agency, the local law enforcement unit having primary jurisdiction for the campus.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2003, c. 405, § 1, eff. Oct. 1, 2003; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-710, MD CRIM PROC § 11-710

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Criminal Procedure (Refs & Annos)
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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-712

§ 11-712. Notice of escape and recapture of registrants

Effective: October 1, 2010

Currentness

(a) If a registrant escapes from a facility, the supervising authority of the facility by the most reasonable and expedient means available shall immediately notify:

(1) each local law enforcement unit where the registrant resided or habitually lived before the registrant was committed to the custody of the supervising authority; and

(2) each person who is entitled to receive notice under § 11-715(a) of this subtitle.

(b) If the registrant is recaptured, the supervising authority shall send notice, as soon as possible but not later than 2 working days after the supervising authority learns of the recapture, to:

(1) each local law enforcement unit where the registrant resided or habitually lived before the registrant was committed to the custody of the supervising authority; and

(2) each person who is entitled to receive notice under § 11-715(a) of this subtitle.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-712, MD CRIM PROC § 11-712

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Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-713

§ 11-713. Duties of Department

Effective: January 1, 2014

Currentness

The Department:

- (1) as soon as possible but not later than 3 working days after receiving the conviction data and fingerprints of a registrant, shall transmit the data and fingerprints to the Federal Bureau of Investigation if the Bureau does not have that information;
- (2) shall keep a central registry of registrants and a listing of juvenile sex offenders;
- (3) shall weekly transmit the central registry of registrants to the State Department of Education in a format that can be used by the State Superintendent to cross-reference with the database of licensed child care centers, registered family child care homes, and approved Child Care Subsidy Program informal providers;
- (4) shall reimburse local law enforcement units for the cost of processing the registration statements of registrants, including the cost of taking fingerprints, palm prints, and digital images;
- (5) shall reimburse local law enforcement units for the reasonable costs of implementing community notification procedures;
- (6) shall be responsible for receiving and distributing all intrastate, federal, and foreign government communications relating to the registration of sex offenders; and
- (7) shall notify all jurisdictions where the registrant will reside, carry on employment, or attend school within 3 days of changes in the registrant's registration.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010; Acts 2013, c. 51, § 1, eff. Jan. 1, 2014; Acts 2013, c. 52, § 1, eff. Jan. 1, 2014.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-713, MD CRIM PROC § 11-713

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Criminal Procedure (Refs & Annos)
Title 11. Victims and Witnesses (Refs & Annos)
Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-714

§ 11-714. Registration statements

Effective: October 1, 2010

Currentness

A registration statement given to a person under this subtitle shall include a copy of the completed registration form and a copy of the registrant's digital image, but need not include the fingerprints or palm prints of the registrant.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-714, MD CRIM PROC § 11-714

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MD Code, Criminal Procedure, § 11-715

§ 11-715. Persons entitled to copies of registration statements

Currentness

- (a)(1) On request for a copy of a registration statement about a specific person, the supervising authority shall send a copy to:
- (i) each witness who testified against the registrant in a court proceeding involving the crime; and
 - (ii) each person specified in writing by the State's Attorney.
- (2) Subject to paragraph (3) of this subsection, the supervising authority shall send a copy of a registration statement to each:
- (i) victim of the crime for which the registrant was convicted; or
 - (ii) if the victim is a minor, the parents or legal guardian of the victim.
- (3) A copy of the registration statement shall be sent if:
- (i) a request is made in writing about a specific registrant; or
 - (ii) a notification request form has been filed under § 11-104 of this title.
- (b) Information about a person who receives a copy of a registration statement under this section is confidential and may not be disclosed to the registrant or any other person.
- (c) A supervising authority shall send a notice required under subsection (a)(2) of this section or § 11-712(a)(2) or (b)(2) of this subtitle to the last address given to the supervising authority.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 35, § 1, eff. Oct. 1, 2001.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-715, MD CRIM PROC § 11-715

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MD Code, Criminal Procedure, § 11-716

§ 11-716. Requests for registration statements

Currentness

(a) Subject to subsection (b) of this section, on written request to a local law enforcement unit, the unit shall send to the person who submitted the request one copy of the registration statement of each registrant on record with the unit.

(b) A request under subsection (a) of this section shall contain:

(1) the name and address of the person who submits the request; and

(2) the reason for the request.

(c) A local law enforcement unit shall keep records of all written requests received under subsection (a) of this section.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2001, c. 249, § 1, eff. Oct. 1, 2001.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-716, MD CRIM PROC § 11-716

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MD Code, Criminal Procedure, § 11-717

§ 11-717. Registration statements made available to public and listing registrants on the Internet

Effective: October 1, 2010

Currentness

- (a)(1) The Department shall make available to the public registration statements or information about registration statements.
- (2) Information about registration statements shall include, in plain language that can be understood without special knowledge of the criminal laws of the State, a factual description of the crime of the offender that is the basis for the registration, excluding details that would identify the victim.
- (3) Registration information provided to the public may not include a sex offender's Social Security number, driver's license number, medical or therapeutic treatment, travel and immigration document numbers, and arrests not resulting in conviction.
- (b) The Department shall post on the Internet:
- (1) a current listing of each registrant's name and other identifying information; and
- (2) in plain language that can be understood without special knowledge of the criminal laws of the State, a factual description of the crime of the offender that is the basis for the registration, excluding details that would identify the victim.
- (c) The Department, through an Internet posting of current registrants, shall:
- (1) allow the public to electronically transmit information the public may have about a registrant to the Department, a parole agent of a registrant, and each local law enforcement unit where a registrant resides or habitually lives or where a registrant who is not a resident of the State will work or attend school; and
- (2) provide information regarding the out-of-state registration status for each registrant who is also registered in another state as available through a national sex offender public registry website.
- (d) The Department shall allow members of the public who live in a county in which a registrant is to reside or habitually live or where the registrant, if not a resident of the State, will work or attend school, by request, to receive electronic mail notification of the release from incarceration of the registered offender and the registration information of the offender.

(e) The Department shall establish regulations to carry out this section.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-717, MD CRIM PROC § 11-717

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MD Code, Criminal Procedure, § 11-718

§ 11-718. Notice of registration in order to protect public

Effective: October 1, 2010

Currentness

(a)(1) If the Department or a local law enforcement unit finds that, to protect the public from a specific registrant, it is necessary to give notice of a registration statement, a change of address of the registrant, or a change in a county in which the registrant habitually lives to a particular person not otherwise identified under § 11-709 of this subtitle, then the Department or a local law enforcement unit shall give notice of the registration statement to that person.

(2) This notice is in addition to the notice required under § 11-709(b)(1) of this subtitle.

(b)(1) The Department and local law enforcement units shall establish procedures to carry out the notification requirements of this section, including the circumstances under and manner in which notification shall be provided.

(2) Appropriate notification procedures include those identified in § 11-709 of this subtitle.

(c) A local law enforcement unit and the Department may not release the identity of a victim of a crime that requires registration under this subtitle.

(d) A disclosure under this section does not limit or prohibit any other disclosure allowed or required under law.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-718, MD CRIM PROC § 11-718

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MD Code, Criminal Procedure, § 11-719

§ 11-719. Immunity of public officials, employees, and units

Currentness

An elected public official, public employee, or public unit has the immunity described in §§ 5-302 and 5-522 of the Courts Article regarding civil liability for damages arising out of any action relating to the provisions of this subtitle, unless it is proven that the official, employee, or unit acted with gross negligence or in bad faith.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-719, MD CRIM PROC § 11-719

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MD Code, Criminal Procedure, § 11-720

§ 11-720. Regulations

Currentness

With advice from the Criminal Justice Information Advisory Board established under § 10-207 of this article, the Secretary shall adopt regulations to carry out this subtitle.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-720, MD CRIM PROC § 11-720

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MD Code, Criminal Procedure, § 11-721

§ 11-721. Knowing failure to register, provide notice or required information prohibited

Effective: October 1, 2010

Currentness

(a) A registrant may not knowingly fail to register, knowingly fail to provide the notice required under § 11-705 of this subtitle, knowingly fail to provide any information required to be included in a registration statement described in § 11-706 of this subtitle, or knowingly provide false information of a material fact as required by this subtitle.

(b) A person who violates this section:

(1) for a first offense, is guilty of a misdemeanor and on conviction is subject to imprisonment not exceeding 3 years or a fine not exceeding \$5,000 or both; and

(2) for a second or subsequent offense, is guilty of a felony and on conviction is subject to imprisonment not exceeding 5 years or a fine not exceeding \$10,000 or both.

(c) A person who violates this section is subject to § 5-106(b) of the Courts Article.

Credits

Added by Acts 2001, c. 10, § 2, eff. Oct. 1, 2001. Amended by Acts 2002, c. 194, § 1, eff. Sept. 30, 2002; Acts 2003, c. 21, § 1, eff. April 8, 2003; Acts 2003, c. 405, § 1, eff. Oct. 1, 2003; Acts 2004, c. 25, § 1, eff. April 13, 2004; Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006; Acts 2009, c. 636, § 1, eff. Oct. 1, 2009; Acts 2009, c. 637, § 1, eff. Oct. 1, 2009; Acts 2010, c. 174, § 1, eff. Oct. 1, 2010; Acts 2010, c. 175, § 1, eff. Oct. 1, 2010.

Formerly Art. 27, § 792.

MD Code, Criminal Procedure, § 11-721, MD CRIM PROC § 11-721

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Subtitle 7. Sex Offender Registration (Refs & Annos)

MD Code, Criminal Procedure, § 11-722

§ 11-722. Schools and child care facilities

Effective: November 1, 2024

Currentness

(a)(1) In this section the following words have the meanings indicated.

(2) “County board” has the meaning stated in § 1-101 of the Education Article.

(3) “Juvenile registrant” has the meaning stated in § 11-704.1 of this subtitle.

(4) “State Board” has the meaning stated in § 1-101 of the Education Article.

(b) This section does not apply to a registrant or a juvenile registrant who enters real property:

(1) where the registrant's or juvenile registrant's child is a student or receives child care, if:

(i) within the past year the registrant or juvenile registrant has been given the specific written permission of the Superintendent of Schools, the local school board, the principal of the school, or the owner or operator of the registered family child care home, licensed child care home, or licensed child care institution, as applicable; and

(ii) the registrant or juvenile registrant promptly notifies an agent or employee of the school, home, or institution of the registrant's or juvenile registrant's presence and purpose of visit; or

(2) for the purpose of voting at a school on an election day in the State if the registrant or juvenile registrant is properly registered to vote and the registrant's or juvenile registrant's polling place is at the school.

(c) Except as provided in subsection (e) of this section, a registrant or juvenile registrant may not knowingly enter onto real property:

(1) that is used for public or nonpublic elementary or secondary education; or

(2) on which is located:

(i) a family child care home registered under Title 5, Subtitle 5 of the Family Law Article;

(ii) a child care home or a child care institution licensed under Title 5, Subtitle 5 of the Family Law Article; or

(iii) a home where informal child care, as defined in child care subsidy regulations adopted under Title 13A of the Code of Maryland Regulations, is being provided or will be provided to a child who does not reside there.

(d) A person who enters into a contract with a county board or a nonpublic school may not knowingly employ an individual to work at a school if the individual is a registrant or juvenile registrant.

(e)(1) A registrant or juvenile registrant who is a student may receive an education in accordance with State law in any of the following locations:

(i) a location other than a public or nonpublic elementary or secondary school, including by:

1. participating in the Home and Hospital Teaching Program for Students; or

2. participating in or attending a program approved by a county board under paragraph (2) of this subsection;

(ii) a Regional Institute for Children and Adolescents; or

(iii) a nonpublic educational program as provided by § 8-406 of the Education Article if:

1. the registrant or juvenile registrant has notified an agent or employee of the nonpublic educational program that the registrant or juvenile registrant is required to register under this subtitle; and

2. the registrant or juvenile registrant has been given specific written permission by an agent or employee of the nonpublic educational program to attend the nonpublic educational program.

(2) Each county board shall develop and adopt a policy that enables a registrant or juvenile registrant who is a student to receive an education as described under paragraph (1) of this subsection.

(3) The State Board shall develop and adopt guidelines and a model policy to assist a county board with the development of a policy under paragraph (2) of this subsection.

(f) A person who violates subsection (c) or (d) of this section is guilty of a misdemeanor and on conviction is subject to imprisonment not exceeding 5 years or a fine not exceeding \$5,000 or both.

Credits

Added by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006. Amended by Acts 2011, c. 564, § 3, eff. Jan. 1, 2012; Acts 2013, c. 51, § 1, eff. Jan. 1, 2014; Acts 2013, c. 52, § 1, eff. Jan. 1, 2014; Acts 2021, c. 259, § 1, eff. May 18, 2021; Acts 2024, c. 735, § 1, eff. Nov. 1, 2024.

MD Code, Criminal Procedure, § 11-722, MD CRIM PROC § 11-722

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MD Code, Criminal Procedure, § 11-723

§ 11-723. Lifetime sexual offender supervision

Effective: October 1, 2023

Currentness

(a) Except where a term of natural life without the possibility of parole is imposed, a sentence for the following persons shall include a term of lifetime sexual offender supervision:

(1) a person who is a sexually violent predator;

(2) a person who has been convicted of a violation of:

(i) § 3-303 or § 3-304 of the Criminal Law Article; or

(ii) § 3-305 or § 3-306 of the Criminal Law Article as the sections existed before October 1, 2017, if the person was an adult at the time of the offense;

(3) a person who has been convicted of a violation of § 3-309 or § 3-310 of the Criminal Law Article, § 3-311 of the Criminal Law Article as the section existed before October 1, 2017, or, if the person was an adult at the time of the offense, an attempt to commit a violation of § 3-306 of the Criminal Law Article as the section existed before October 1, 2017;

(4) a person who has been convicted of a violation of § 3-602 of the Criminal Law Article:

(i) that was committed when the person was an adult against a child under the age of 13 years; or

(ii) that was committed when the person was at least 21 years old against a child under the age of 16 years;

(5) a person who is required to register under § 11-704(c) of this subtitle; and

(6) a person who has been convicted more than once arising out of separate incidents of a crime that requires registration under this subtitle.

(b) Except where a term of natural life without the possibility of parole is imposed, a sentence for a violation of § 3-307(a)(1) or (2) of the Criminal Law Article may include a term of lifetime sexual offender supervision.

(c)(1) Except as provided in paragraph (2) of this subsection, the term of lifetime sexual offender supervision imposed on a person for a crime committed on or after October 1, 2010, shall:

(i) be a term of life; and

(ii) commence on the expiration of the later of any term of imprisonment, probation, parole, or mandatory supervision.

(2) For a person who is required to register under § 11-704(c) of this subtitle, the term of lifetime sexual offender supervision imposed for an act committed on or after October 1, 2010, shall:

(i) commence when the person's obligation to register commences; and

(ii) expire when the person's obligation to register expires, unless the juvenile court:

1. finds after a hearing that there is a compelling reason for the supervision to continue; and

2. orders the supervision to continue for a specified period of time.

(d)(1) For a sentence that includes a term of lifetime sexual offender supervision, the sentencing court, or juvenile court in the case of a person who is required to register under § 11-704(c) of this subtitle, shall impose special conditions of lifetime sexual offender supervision on the person at the time of sentencing, or imposition of the registration requirement in juvenile court, and advise the person of the length, conditions, and consecutive nature of that supervision.

(2) Before imposing special conditions, the sentencing court or juvenile court shall order:

(i) a presentence investigation in accordance with § 6-112 of the Correctional Services Article; and

(ii) for a sentence for a violation of § 3-307(a)(1) or (2) of the Criminal Law Article, a risk assessment of the person conducted by a sexual offender treatment provider.

(3) The conditions of lifetime sexual offender supervision may include:

(i) monitoring through global positioning satellite tracking or equivalent technology;

(ii) where appropriate and feasible, restricting a person from living in proximity to or loitering near schools, family child care homes, child care centers, and other places used primarily by minors;

(iii) restricting a person from obtaining employment or from participating in an activity that would bring the person into contact with minors;

(iv) requiring a person to participate in a sexual offender treatment program;

(v) prohibiting a person from using illicit drugs or alcohol;

(vi) authorizing a parole and probation agent to access the person's personal computer to check for material relating to sexual relations with minors;

(vii) requiring a person to take regular polygraph examinations;

(viii) prohibiting a person from contacting specific individuals or categories of individuals; and

(ix) any other conditions deemed appropriate by the sentencing court or juvenile court.

(4) The sentencing court or juvenile court may adjust the special conditions of lifetime sexual offender supervision, in consultation with the person's sexual offender management team.

Credits

Added by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006. Amended by Acts 2010, c. 72, § 5, eff. April 13, 2010; Acts 2010, c. 176, § 1, eff. Oct. 1, 2010; Acts 2010, c. 177, § 1, eff. Oct. 1, 2010; Acts 2011, c. 564, § 3, eff. Jan. 1, 2012; Acts 2012, c. 66, § 1, eff. April 10, 2012; Acts 2017, c. 161, § 1, eff. Oct. 1, 2017; Acts 2017, c. 162, § 1, eff. Oct. 1, 2017; Acts 2023, c. 691, § 1, eff. Oct. 1, 2023; Acts 2023, c. 692, § 1, eff. Oct. 1, 2023.

MD Code, Criminal Procedure, § 11-723, MD CRIM PROC § 11-723

Current with legislation effective through February 24, 2026, from the 2026 Regular Session of the General Assembly. Some statute sections may be more current, see credits for details.

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MD Code, Criminal Procedure, § 11-724

§ 11-724. Fines and penalties for violating conditions of lifetime sexual offender supervision

Effective: October 1, 2010

Currentness

(a) A person subject to lifetime sexual offender supervision may not knowingly or willfully violate the conditions of the lifetime sexual offender supervision imposed under § 11-723 of this subtitle.

(b) A person who violates any conditions imposed under § 11-723 of this subtitle:

(1) for a first offense, is guilty of a misdemeanor and on conviction is subject to imprisonment not exceeding 5 years or a fine not exceeding \$5,000 or both; and

(2) for a second or subsequent offense, is guilty of a felony and on conviction is subject to imprisonment not exceeding 10 years or a fine not exceeding \$10,000 or both.

(c) Imprisonment for a lifetime sexual offender supervision violation is not subject to diminution credits.

(d)(1) A violation of subsection (a) of this section does not discharge a person from lifetime sexual offender supervision.

(2) On release from a sentence imposed under subsection (b) of this section, a person remains on lifetime sexual offender supervision, subject to the original terms of supervision, until discharged under subsection (f) of this section.

(e) During the period of lifetime sexual offender supervision, the court may:

(1) remand the person to a correctional facility or release the person with or without bail pending the hearing or determination of a charge of violation of a condition of lifetime sexual offender supervision; and

(2) if the court finds that the person committed a violation of a condition of supervision, impose a sentence as prescribed in subsection (b) of this section.

(f)(1) The sentencing court shall hear and adjudicate a petition for discharge from lifetime sexual offender supervision.

- (2) A person may file a petition for discharge after serving at least 5 years of extended sexual offender supervision.
- (3) If a petition for discharge is denied, a person may not renew the petition for a minimum of 1 year.
- (4) A petition for discharge shall include:
 - (i) a risk assessment of the person conducted by a sexual offender treatment provider within 3 months before the date of the filing of the petition; and
 - (ii) a recommendation regarding the discharge of the person from the sexual offender management team.
- (5)(i) The sentencing court may not deny a petition for discharge without a hearing.
 - (ii) The court may not discharge a person from lifetime sexual offender supervision unless the court makes a finding on the record that the petitioner is no longer a danger to others.
- (6)(i) The judge who originally imposed the lifetime sexual offender supervision shall hear a petition for discharge.
 - (ii) If the judge has been removed from office, has died or resigned, or is otherwise incapacitated, another judge may act in the matter.

Credits

Added by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006. Amended by Acts 2010, c. 176, § 1, eff. Oct. 1, 2010; Acts 2010, c. 177, § 1, eff. Oct. 1, 2010.

MD Code, Criminal Procedure, § 11-724, MD CRIM PROC § 11-724

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MD Code, Criminal Procedure, § 11-725

§ 11-725. Sexual offender management teams

Effective: October 1, 2010

Currentness

(a) Under the supervision of the Division of Parole and Probation, a sexual offender management team shall conduct lifetime sexual offender supervision and the supervision of probation, parole, or mandatory release of a person subject to lifetime sexual offender supervision.

(b) A sexual offender management team:

(1) consists of:

(i) a specially trained parole and probation agent; and

(ii) a representative of a sexual offender treatment program or provider; and

(2) may include:

(i) victim advocates or victim service providers with recognized expertise in sexual abuse and victimization;

(ii) faith counselors;

(iii) employment counselors;

(iv) community leaders;

(v) a polygraph examiner with recognized expertise in sexual offender-specific polygraph examination;

(vi) a law enforcement officer;

(vii) an assistant State's Attorney;

(viii) an assistant public defender; and

(ix) a foreign or sign language interpreter.

(c)(1) A sexual offender management team shall submit a progress report on each person under supervision to the sentencing court, or juvenile court in the case of a person who is required to register under § 11-704(c) of this subtitle, once every 6 months.

(2) Unless disclosure of a report would be in violation of laws regarding confidentiality of treatment records, a sexual offender management team shall provide copies of each progress report to local law enforcement units of the county in which the person resides.

Credits

Added by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006. Amended by Acts 2010, c. 176, § 1, eff. Oct. 1, 2010; Acts 2010, c. 177, § 1, eff. Oct. 1, 2010.

MD Code, Criminal Procedure, § 11-725, MD CRIM PROC § 11-725

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MD Code, Criminal Procedure, § 11-726

§ 11-726. Regulations relating to lifetime sexual offender supervision

Effective: October 1, 2010

Currentness

The Department of Public Safety and Correctional Services shall adopt regulations necessary to carry out the duties of the Department relating to lifetime sexual offender supervision under this subtitle.

Credits

Added by Acts 2006, 1st Sp. Sess., c. 4, § 1, eff. June 22, 2006. Amended by Acts 2010, c. 176, § 1, eff. Oct. 1, 2010; Acts 2010, c. 177, § 1, eff. Oct. 1, 2010.

MD Code, Criminal Procedure, § 11-726, MD CRIM PROC § 11-726

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MD Code, Criminal Procedure, § 11-727

§ 11-727. Presentence investigations and mental health assessments prior to sentencing

Effective: October 1, 2007

Currentness

(a) Unless waived by the State's Attorney and defense counsel, before sentencing a defendant who is required to register under § 11-704 of this subtitle for a violation of § 3-602 of the Criminal Law Article, the court shall order the defendant to submit to:

(1) a presentence investigation conducted by the Division of Parole and Probation; and

(2) a mental health assessment, including whether the defendant is a danger to self or others, conducted by a qualified mental health professional employed or engaged by the Maryland Department of Health.

(b) The court shall consider the presentence investigation and mental health evaluation when sentencing the defendant.

Credits

Added by Acts 2007, c. 519, § 1, eff. Oct. 1, 2007; Acts 2007, c. 601, § 1, eff. Oct. 1, 2007. Amended by Acts 2017, c. 62, § 6.

MD Code, Criminal Procedure, § 11-727, MD CRIM PROC § 11-727

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Massachusetts General Laws Annotated

Part I. Administration of the Government (Ch. 1-182)

Title II. Executive and Administrative Officers of the Commonwealth (Ch. 6-28a)

Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council,
and State Library (Refs & Annos)

M.G.L.A. 6 § 178C

§ 178C. Definitions applicable to Secs. 178C to 178P

Effective: November 6, 2024

Currentness

As used in sections 178C to 178P, inclusive, the following words shall have the following meanings:--

“Agency”, an agency, department, board, commission or entity within the executive or judicial branch, excluding the committee for public counsel services, which has custody of, supervision of or responsibility for a sex offender as defined in accordance with this chapter, including an individual participating in a program of any such agency, whether such program is conducted under a contract with a private entity or otherwise. Each agency shall be responsible for the identification of such individuals within its custody, supervision or responsibility. Notwithstanding any general or special law to the contrary, each such agency shall be certified to receive criminal offender record information maintained by the department for the purpose of identifying such individuals.

“Employment”, includes employment that is full-time or part-time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether compensated or uncompensated.

“Institution of higher learning”, a post secondary institution.

“Mental abnormality”, a congenital or acquired condition of a person that affects the emotional or volitional capacity of such person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes such person a menace to the health and safety of other persons.

“Predatory”, an act directed at a stranger or person with whom a relationship has been established, promoted or utilized for the primary purpose of victimization.

“Secondary addresses”, the addresses of all places where a sex offender lives, abides, lodges, or resides for a period of 14 or more days in the aggregate during any calendar year and which is not a sex offender's primary address; or a place where a sex offender routinely lives, abides, lodges, or resides for a period of 4 or more consecutive or nonconsecutive days in any month and which is not a sex offender's permanent address, including any out-of-state address.

“Sentencing court”, the court that sentenced a sex offender for the most recent sexually violent offense or sex offense or the superior court if such sentencing occurred in another jurisdiction or the sex offender registry board to the extent permitted by federal law and established by the board's regulations.

“Sex offender”, a person who resides, has secondary addresses, works or attends an institution of higher learning in the commonwealth and who has been convicted of a sex offense or who has been adjudicated as a youthful offender or as a delinquent juvenile by reason of a sex offense or a person released from incarceration or parole or probation supervision or custody with the

department of youth services for such a conviction or adjudication or a person who has been adjudicated a sexually dangerous person under section 14 of chapter 123A, as in force at the time of adjudication, or a person released from civil commitment pursuant to section 9 of said chapter 123A, whichever last occurs, on or after August 1, 1981.

“Sex offender registry”, the collected information and data that is received by the department pursuant to sections 178C to 178P, inclusive, as such information and data is modified or amended by the sex offender registry board or a court of competent jurisdiction pursuant to said sections 178C to 178P, inclusive.

“Sex offense”, an indecent assault and battery on a child under 14 under section 13B of chapter 265; aggravated indecent assault and battery on a child under the age of 14 under section 13B ½ of said chapter 265; a repeat offense under section 13B ¾ of said chapter 265; indecent assault and battery on a mentally retarded person under section 13F of said chapter 265; indecent assault and battery on a person age 14 or over under section 13H of said chapter 265; indecent assault and battery on vulnerable persons in custody by law enforcement under section 13H ½ of said chapter 265; indecent assault and battery on a patient or client by a health care provider under section 13H ¾ of said chapter 265; rape under section 22 of said chapter 265; rape of a child under 16 with force under section 22A of said chapter 265; aggravated rape of a child under 16 with force under section 22B of said chapter 265; a repeat offense under section 22C of said chapter 265; rape and abuse of a child under section 23 of said chapter 265; rape of a patient or client by a health care provider under section 22D of said chapter 265; aggravated rape and abuse of a child under section 23A of said chapter 265; a repeat offense under section 23B of said chapter 265; assault with intent to commit rape under section 24 of said chapter 265; assault of a child with intent to commit rape under section 24B of said chapter 265; kidnapping of a child under section 26 of said chapter 265; enticing a child under the age of 16 for the purposes of committing a crime under section 26C of said chapter 265; enticing a child under 18 via electronic communication to engage in prostitution, human trafficking or commercial sexual activity under section 26D of said chapter 265; trafficking of persons for sexual servitude under section 50 of said chapter 265; a second or subsequent violation of human trafficking for sexual servitude under section 52 of chapter 265; enticing away a person for prostitution or sexual intercourse under section 2 of chapter 272; drugging persons for sexual intercourse under section 3 of said chapter 272; inducing a minor into prostitution under section 4A of said chapter 272; living off or sharing earnings of a minor prostitute under section 4B of said chapter 272; second and subsequent adjudication or conviction for open and gross lewdness and lascivious behavior under section 16 of said chapter 272, but excluding a first or single adjudication as a delinquent juvenile before August 1, 1992; incestuous marriage or intercourse under section 17 of said chapter 272; disseminating to a minor matter harmful to a minor under section 28 of said chapter 272; posing or exhibiting a child in a state of nudity under section 29A of said chapter 272; dissemination of visual material of a child in a state of nudity or sexual conduct under section 29B of said chapter 272; possession of child pornography under section 29C of said chapter 272; unnatural and lascivious acts with a child under 16 under section 35A of said chapter 272; engaging in sexual contact with an animal under section 77C of said chapter 272; aggravated rape under section 39 of chapter 277; and any attempt to commit a violation of any of the aforementioned sections pursuant to section 6 of chapter 274 or a like violation of the laws of another state, the United States or a military, territorial or Indian tribal authority.

“Sex offense involving a child”, an indecent assault and battery on a child under 14 under section 13B of chapter 265; aggravated indecent assault and battery on a child under the age of 14 under section 13B ½ of said chapter 265; a repeat offense under section 13B ¾ of said chapter 265; rape of a child under 16 with force under section 22A of said chapter 265; aggravated rape of a child under 16 with force under section 22B of said chapter 265; a repeat offense under section 22C of said chapter 265; rape and abuse of a child under section 23 of said chapter 265; aggravated rape and abuse of a child under section 23A of said chapter 265; a repeat offense under section 23B of said chapter 265; assault of a child with intent to commit rape under section 24B of said chapter 265; kidnapping of a child under the age of 16 under section 26 of said chapter 265; enticing a child under the age of 16 for the purposes of committing a crime under section 26C of said chapter 265; enticing a child under 18 via electronic communication to engage in prostitution, human trafficking or commercial sexual activity under section 26D of said chapter 265; trafficking of persons for sexual servitude upon a person under 18 years of age under subsection (b) of section 50 of said chapter 265; inducing a minor into prostitution under section 4A of chapter 272; living off or sharing earnings of a minor prostitute under section 4B of said chapter 272; disseminating to a minor matter harmful to a minor under section 28 of said chapter 272; posing or exhibiting a child in a state of nudity under section 29A of said chapter 272; dissemination of visual

material of a child in a state of nudity or sexual conduct under section 29B of said chapter 272; unnatural and lascivious acts with a child under 16 under section 35A of said chapter 272; aggravated rape under section 39 of chapter 277; and any attempt to commit a violation of any of the aforementioned sections pursuant to section 6 of chapter 274 or a like violation of the laws of another state, the United States or a military, territorial or Indian tribal authority.

“Sexually violent offense”, indecent assault and battery on a child under 14 under section 13B of chapter 265; aggravated indecent assault and battery on a child under the age of 14 under section 13B ½ of said chapter 265; a repeat offense under section 13B ¾ of said chapter 265; indecent assault and battery on a mentally retarded person under section 13F of said chapter 265; rape under section 22 of said chapter 265; rape of a child under 16 with force under section 22A of said chapter 265; aggravated rape of a child under 16 with force under section 22B of said chapter 265; a repeat offense under section 22C of said chapter 265; assault with intent to commit rape under section 24 of said chapter 265; assault of a child with intent to commit rape under section 24B of said chapter 265; enticing a child under 18 via electronic communication to engage in prostitution, human trafficking or commercial sexual activity under section 26D of said chapter 265; trafficking of persons for sexual servitude under section 50 of chapter 265; a second or subsequent violation of human trafficking for sexual servitude under section 52 of chapter 265; drugging persons for sexual intercourse under section 3 of chapter 272; unnatural and lascivious acts with a child under 16 under section 35A of said chapter 272; aggravated rape under section 39 of chapter 277; and any attempt to commit a violation of any of the aforementioned sections pursuant to section 6 of chapter 274 or a like violation of the law of another state, the United States or a military, territorial or Indian tribal authority, or any other offense that the sex offender registry board determines to be a sexually violent offense pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071.

“Sexually violent predator”, a person who has been convicted of a sexually violent offense or who has been adjudicated as a youthful offender or as a delinquent juvenile by reason of a sexually violent offense, or a person released from incarceration, parole, probation supervision or commitment under chapter 123A or custody with the department of youth services for such a conviction or adjudication, whichever last occurs, on or after August 1, 1981, and who suffers from a mental abnormality or personality disorder that makes such person likely to engage in predatory sexually violent offenses.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, §§ 1 to 3, eff. Sept. 30, 2003; St.2006, c. 139, §§ 5, 6, eff. July 1, 2006; St.2010, c. 256, § 38, eff. Nov. 4, 2010; St.2010, c. 267, §§ 1 to 3, eff. Nov. 5, 2010; St.2011, c. 178, §§ 1 to 3, eff. Feb. 19, 2012; St.2018, c. 219, § 1, eff. Nov. 7, 2018; St.2024, c. 167, §§ 1, 2, eff. Nov. 6, 2024.

M.G.L.A. 6 § 178C, MA ST 6 § 178C

Current through Chapter 11 of the 2026 2nd Annual Session. Some sections may be more current; see credits for details.

Massachusetts General Laws Annotated

Part I. Administration of the Government (Ch. 1-182)

Title II. Executive and Administrative Officers of the Commonwealth (Ch. 6-28a)

Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council, and State Library (Refs & Annos)

M.G.L.A. 6 § 178D

§ 178D. Sex offender registry

Effective: July 1, 2013

Currentness

The sex offender registry board, known as the board, in cooperation with the department, shall establish and maintain a central computerized registry of all sex offenders required to register pursuant to sections 178C to 178P, inclusive, known as the sex offender registry. The sex offender registry shall be updated based on information made available to the board, including information acquired pursuant to the registration provisions of said sections 178C to 178P, inclusive. The file on each sex offender required to register pursuant to said sections 178C to 178P, inclusive, shall include the following information, hereinafter referred to as registration data:

(a) the sex offender's name, aliases used, date and place of birth, sex, race, height, weight, eye and hair color, social security number, home address, any secondary addresses and work address and, if the sex offender works at or attends an institution of higher learning, the name and address of the institution;

(b) a photograph and set of fingerprints;

(c) a description of the offense for which the sex offender was convicted or adjudicated, the city or town where the offense occurred, the date of conviction or adjudication and the sentence imposed;

(d) any other information which may be useful in assessing the risk of the sex offender to reoffend; and

(e) any other information which may be useful in identifying the sex offender.

Notwithstanding sections 178C to 178P, inclusive, or any other general or special law to the contrary and in addition to any responsibility otherwise imposed upon the board, the board shall make the sex offender information contained in the sex offender registry, delineated below in subsections (i) to (viii), inclusive, available for inspection by the general public in the form of a comprehensive database published on the internet, known as the "sex offender internet database"; provided, however, that no registration data relating to a sex offender given a level 1 designation by the board under section 178K shall be published in the sex offender internet database but may be disseminated by the board as otherwise permitted by said sections 178C to 178P, inclusive; and provided further, that the board shall keep confidential and shall not publish in the sex offender internet database any information relating to requests for registration data under sections 178I and 178J:

(i) the name of the sex offender;

- (ii) the offender's home address and any secondary addresses;
- (iii) the offender's work address;
- (iv) the offense for which the offender was convicted or adjudicated and the date of the conviction or adjudication;
- (v) the sex offender's age, sex, race, height, weight, eye and hair color;
- (vi) a photograph of the sex offender, if available;
- (vii) whether the sex offender has been designated a sexually violent predator; and
- (viii) whether the offender is in compliance with the registration obligations of sections 178C to 178P, inclusive.

All information provided to the general public through the sex offender internet database shall include a warning regarding the criminal penalties for use of sex offender registry information to commit a crime or to engage in illegal discrimination or harassment of an offender and the punishment for threatening to commit a crime under section 4 of chapter 275. The sex offender internet database shall be updated regularly, based on information available to the board and shall be open to searches by the public at any time without charge or subscription. The board shall promulgate rules and regulations to implement, update and maintain such a sex offender internet database, to ensure the accuracy, integrity and security of information contained therein, to ensure the prompt and complete removal of registration data for persons whose duty to register has terminated or expired under section 178G, 178L or 178M or any other law and to protect against the inaccurate, improper or inadvertent publication of registration data on the internet.

The board shall develop standardized registration and verification forms, which shall include registration data as required pursuant to sections 178C to 178P. The board shall make blank copies of such forms available to all agencies having custody of sex offenders and all city and town police departments; provided, however, that the board shall determine the format for the collection and dissemination of registration data, which may include the electronic transmission of data. Records maintained in the sex offender registry shall be open to any law enforcement agency in the commonwealth, the United States or any other state. The board shall promulgate rules and regulations to implement the provisions of sections 178C to 178P, inclusive. Such rules and regulations shall include provisions which may permit police departments located in a city or town that is divided into more than one zip code to disseminate information pursuant to the provisions of section 178J categorized by zip code and to disseminate such information limited to one or more zip codes if the request for such dissemination is so qualified; provided, however, that for the city of Boston dissemination of information may be limited to one or more police districts.

The board may promulgate regulations further defining in a manner consistent with maintaining or establishing eligibility for federal funding pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071, the eligibility of sex offenders to be relieved of the obligation to register, including but not limited to, regulations limiting motions under subsection (e) of section 178E, section 178G and relief from registration pursuant to paragraph (d) of subsection (2) of section 178K.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, § 4, eff. Sept. 30, 2003; St.2003, c. 140, § 5, eff. Nov. 26, 2003; St.2006., c. 139, §§ 7, 8, eff. July 1, 2006; St.2010, c. 256, § 39, eff. Nov. 4, 2010; St.2013, c. 38, § 7, eff. July 1, 2013.

M.G.L.A. 6 § 178D, MA ST 6 § 178D

Current through Chapter 11 of the 2026 2nd Annual Session. Some sections may be more current; see credits for details.

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Massachusetts General Laws Annotated

Part I. Administration of the Government (Ch. 1-182)

Title II. Executive and Administrative Officers of the Commonwealth (Ch. 6-28a)

Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council, and State Library (Refs & Annos)

M.G.L.A. 6 § 178E

§ 178E. Transmission of registration data to criminal history systems board, police departments, and FBI

Effective: December 20, 2006

Currentness

(a) Within 5 days of receiving upon sentence any sex offender required to register under sections 178C to 178Q, inclusive, the agency which has custody of the sex offender, including the department of correction, the department of youth services and each of the houses of correction, shall transmit to the board said sex offender's registration data, which shall include identifying factors, anticipated future residence, any anticipated secondary addresses, offense history, documentation of any treatment received for a mental abnormality, the official version of any sex offenses, the mittimus, any prior incarceration history, and the projected maximum release date and the earliest possible release date for the sex offender. All custodial agencies shall inform the board immediately of any transfers of sex offenders so that there may be contact with the offender throughout the classification process. The bureau shall classify such a sex offender at least 10 days before the offender's earliest possible release date. The board shall promptly transmit the registration data to the police departments in the municipalities where the sex offender intends to live, maintain any secondary address and work and where the offense was committed and to the Federal Bureau of Investigation. The sex offender shall be informed by, and shall acknowledge in writing to, the agency which has custody of the sex offender of the duty to register in the commonwealth and in any state where he resides, is employed, carries on a vocation or is a student, to verify registration information, to give notice of change of address or intended change of address within the commonwealth or in another state and the penalties for failure to do so and for giving false registration information, and of his right to submit to the board, according to section 178L, documentary evidence relative to his risk of reoffense, the degree of dangerousness posed to the public and of his duty to register under this section. If such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record. The agency shall transmit such acknowledgment to the board within ten days of receipt of such acknowledgment. Not later than two days before his release from custody, a sex offender shall register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution. No sex offender shall be released from custody unless such registration has been filled out, signed and mailed to the board.

(b) An agency that has supervision of a sex offender required to register pursuant to sections 178C to 178P, inclusive, on probation or parole shall, within five days of assuming supervision of such sex offender, transmit to the board such sex offender's registration data which, for purposes of this paragraph, shall include identifying factors, residential address or anticipated future residence, secondary addresses or anticipated secondary addresses, work address, offense history, documentation of any sex offender treatment and documentation of any treatment received for a mental abnormality. The agency shall also report any changes of address of any sex offender required to register pursuant to said sections 178E to 178P, inclusive, within its jurisdiction to the board. The board shall promptly transmit the registration data to the police departments in the municipalities where such sex offender intends to live and work and where the offense was committed and to the Federal Bureau

of Investigation. The sex offender shall be informed by, and shall acknowledge in writing to, the agency which has custody of the sex offender of the duty to register in the commonwealth and in any state where he resides, has any secondary addresses, is employed, carries on a vocation or is a student, to verify registration information and to give notice of change of address, or any secondary addresses or intended change of address within the commonwealth or in another state and the penalties for failure to do so and for giving false registration information, and of his right to submit to the board, according to section 178L, documentary evidence relative to his risk of reoffense, the degree of dangerousness posed to the public and his duty to register under this section. If such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or agency having custody of the juvenile in the absence of a legal guardian, and his most recent attorney of record. A sex offender shall, within two days of receiving such notice, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution.

(c) Any court which enters a conviction for a sex offense or adjudication as a youthful offender or as a delinquent juvenile by reason of a sex offense, but does not impose a sentence of confinement of 90 days or more to be served immediately shall inform the sex offender and require the sex offender to acknowledge, in writing, his duty to register in the commonwealth and in any state where he resides, is employed, carries on a vocation or is a student, to verify registration information and to give notice of change of address or intended change of address within the commonwealth or in another state and the penalties for failure to do so and for giving false registration information, and of his right to submit to the board, according to section 178L, documentary evidence relative to his risk of reoffense, the degree of dangerousness posed to the public and of his duty to register under this section. If such sex offender is a juvenile at the time of such adjudication, the legal guardian or agency having custody of the juvenile and his most recent attorney of record shall also be required to acknowledge, in writing, such information. The court shall cause such sex offender's registration data which, for purposes of this paragraph, shall include identifying factors, anticipated future residence, any anticipated secondary addresses, offense history and documentation of any treatment received for a mental abnormality to be transmitted to the board within five days of sentencing. The board shall promptly transmit the registration data to the police departments in the municipalities where such sex offender intends to live and work and where the offense was committed and to the Federal Bureau of Investigation. A sex offender shall, within two days of receiving such notice or of release from confinement, whichever is later, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution.

(d) Any court which accepts a plea for a sex offense shall inform the sex offender prior to acceptance and require the sex offender to acknowledge, in writing, that such plea may result in such sex offender being subject to the provisions of sections 178C to 178P, inclusive. Failure to so inform the sex offender shall not be grounds to vacate or invalidate the plea.

(e) Upon written motion of the commonwealth, a court which enters a conviction or adjudication of delinquent or as a youthful offender may, at the time of sentencing, having determined that the circumstances of the offense in conjunction with the offender's criminal history does not indicate a risk of reoffense or a danger to the public, find that a sex offender shall not be required to register under sections 178C to 178P, inclusive. Such motion by the commonwealth shall state the reasons for such motion with specificity. The court may not make such a finding if the sex offender has been determined to be a sexually violent predator; has been convicted of two or more sex offenses defined as sex offenses pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071, committed on different occasions;

has been convicted of a sex offense involving a child or a sexually violent offense; or if the sex offender is otherwise subject to minimum or lifetime registration requirements as determined by the board pursuant to section 178D.

(f) In the case of a sex offender who has been convicted of a sex offense or adjudicated as a youthful offender or as a delinquent juvenile by reason of a sex offense, on or after December 12, 1999, and who has not been sentenced to immediate confinement, the court shall, within 14 days of sentencing, determine whether the circumstances of the offense in conjunction with the offender's criminal history indicate that the sex offender does not pose a risk of reoffense or a danger to the public. If the court so determines, the court shall relieve such sex offender of the obligation to register under sections 178C to 178P, inclusive. The court may not make such a determination or finding if the sex offender has been determined to be a sexually violent predator; has been convicted of two or more sex offenses defined as sex offenses pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071, committed on different occasions; has been convicted of a sex offense involving a child or a sexually violent offense; or if the sex offender is otherwise subject to minimum or lifetime registration requirements as determined by the board pursuant to section 178D.

(g) A sex offender who moves into the commonwealth from another jurisdiction shall, within two days of moving into the commonwealth, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution. The board shall transmit the registration data to the police department in the municipality where such sex offender intends to live and work and, if the sex offender intends to work at or become a student at an institution of higher learning, to the police departments in the municipalities where the sex offender will work or attend such institution and shall transmit the same to the Federal Bureau of Investigation.

(h) A sex offender required to register pursuant to sections 178C to 178P, inclusive, who intends to move to a different city or town within the commonwealth shall, not later than ten days prior to establishing such new residence, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution. The board shall transmit notice of such change of address to all the police departments in the municipalities where the offense was committed, where the sex offender last registered and where the sex offender intends to live or attend an institution of higher learning and shall transmit the same to the Federal Bureau of Investigation. A sex offender required to register pursuant to said sections 178C to 178P, inclusive, who intends to change his address within a city or town shall notify the board in writing not later than ten days prior to establishing such new residence. The board shall transmit notice of the change of address to the police departments within such city or town, in the municipality where the offense was committed and to the Federal Bureau of Investigation.

(i) A sex offender required to register pursuant to sections 178C to 178P, inclusive, who intends to move out of the commonwealth shall notify the board not later than ten days before leaving the commonwealth. The board shall transmit notice of the change of address to the police departments in the municipalities where such sex offender last registered, where the offense was committed and to the Federal Bureau of Investigation. The board shall notify such sex offender of the duty to register in the new jurisdiction and shall forward a copy of his registration data to the appropriate law enforcement agency in such new jurisdiction.

(j) A sex offender required to register pursuant to sections 178C to 178P, inclusive, who intends to change his work address shall notify the board in writing not later than ten days prior to establishing the new work address. The board shall transmit notice of the change of address and, if the sex offender is or intends to become employed part-time or full-time at an institution of higher learning, the name and address of the institution to the police department in the municipalities where such sex offender previously worked, where such sex offender intends to work, where such sex offender resides or intends to reside and where the offense was committed. The board shall transmit notice of the change of address to the Federal Bureau of Investigation.

(k) The registrar of motor vehicles shall inform a person applying for or renewing a license to operate a motor vehicle that he has a duty to register with the board if such person is a sex offender, pursuant to regulations established by the board.

(l) Except as hereinbefore provided, a sex offender residing or working in the commonwealth or working at or attending an institution of higher learning in the commonwealth shall, within ten days of the effective date of this section, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of the institution, and, if the sex offender is or intends to become a part-time or full-time student of an institution of higher learning, the name and address of the institution. The board shall promptly transmit the registration data to the police departments where the sex offender intends to live and work, where the offense was committed and, if the sex offender intends to work at or become a student at an institution of higher learning, to the police departments in the municipalities where the sex offender will work or attend such institution and to the Federal Bureau of Investigation. The board shall send written notification of the requirements of sections 178C to 178P, inclusive, to the last known address of all sex offenders residing in the commonwealth who, prior to the effective date of this section, have been released from all custody and supervision. If any such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or the agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record.

(m) Upon registering, verifying registration information or giving notice of change of address or intended change of address under this section, a sex offender shall provide independent written verification of the address at which he is registered or, if changing address, will be registered.

(n) Registration data received by the board and disseminated to law enforcement pursuant to this section shall not be disseminated to the public except in accordance with sections 178D, 178I, 178J and 178K.

(o) A sex offender who plans to work at or attend an institution of higher learning part-time or full-time in the commonwealth shall, within 10 days prior to commencing employment or enrollment in classes at an institution of higher learning, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address, and the name and address of the institution of higher learning. The board shall transmit notice of such change of address to all police departments in the municipalities where the sex offender plans to work at or attend an institution of higher learning and shall transmit the same to the Federal Bureau of Investigation.

(p) A sex offender required to register pursuant to section 178C to 178F, inclusive, who intends to transfer from the institution of higher learning he is attending or stop attending shall notify the board in writing not later than 10 days before leaving the present institution of higher learning and shall provide the board with the name and address of the new institution of higher learning,

if applicable. The board shall transmit notice of any such change of address to all police departments in the municipalities where the sex offender previously attended an institution of higher learning and, if applicable, to the police department in the municipality where the sex offender plans to attend an institution of higher learning. The board shall transmit notice of any change of address for the institution of higher learning to the Federal Bureau of Investigation.

(q) Any nonresident person enrolled on a full-time or part-time basis, in any public or private education institution in the commonwealth, including any secondary school, trade or professional institution, shall register with the board if such person is required to register as a sex offender in the state in which he resides. Such student shall, within 10 days of attending such institution, register by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the student's name, date of birth, home address, any secondary addresses and the name and address of the educational institution he is attending.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, §§ 5 to 11, eff. Sept. 30, 2003; St.2003, c. 140, §§ 6 to 11, eff. Nov. 26, 2003; St.2006, c. 139, §§ 9 to 20, eff. July 1, 2006; St.2006, c. 303, § 1, eff. Dec. 20, 2006.

M.G.L.A. 6 § 178E, MA ST 6 § 178E

Current through Chapter 11 of the 2026 2nd Annual Session. Some sections may be more current; see credits for details.

Massachusetts General Laws Annotated

Part I. Administration of the Government (Ch. 1-182)

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M.G.L.A. 6 § 178F

§ 178F. Annual verification of registration data; homeless sex offenders; juveniles; disclosure of information

Effective: November 4, 2010

Currentness

Except as provided in section 178F ½ for a sex offender finally classified by the board as a level 2 or a level 3 sex offender, a sex offender required to register pursuant to sections 178C to 178P, inclusive, shall annually verify that the registration data on file with the board remains true and accurate by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury, the sex offender's name, date of birth, home address or intended home address, any secondary addresses or intended secondary addresses, work address or intended work address and, if the sex offender is or intends to become a part-time or full-time employee of an institution of higher learning, the name and address of said institution and, if the sex offender is a part-time or full-time student at an institution of higher learning or intends to become a part-time or full-time student of an institution of higher learning, the name and address of said institution of higher learning. A homeless sex offender shall verify registration data every 30 days with the board by mailing to the board on a form approved by the board and signed under the pains and penalties of perjury the sex offender's name, date of birth, primary address, any secondary addresses and work address. A homeless shelter receiving state funding shall cooperate in providing information in the possession of or known to such shelter, when a request for information is made to such shelter by the board; provided, however, that such request for information shall be limited to that which is necessary to verify an offender's registration data or a sex offender's whereabouts. A shelter that violates the provisions of this paragraph shall be punished by a fine of \$100 a day for each day that such shelter continues to violate the provisions of this paragraph. In addition, in each subsequent year during the month of birth of any sex offender required to register, the board shall mail a nonforwardable verification form to the last reported address of such sex offender. If such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or the agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record. Such sex offender shall, within five days of receipt, sign the verification form under the penalties of perjury and mail it back to the board. The board shall periodically, and at least annually, send written notice to a city or town police department regarding any sex offender required to register whose last known address was in such city or town or who gave notice of his intent to move to or is otherwise believed to live or work or attend an institution of higher learning in such city or town, but who has failed to register or verify registration information as required.

The board shall examine through electronic transfer of information the tax returns, wage reports, child support enforcement records, papers or other documents on file with the commissioner of revenue or any other entity within the executive branch when there is reason to believe a sex offender required to register has not so registered in accordance with this chapter or where the address of such sex offender cannot be verified through other means; provided, however, that nothing herein shall be construed to authorize the disclosure, directly or indirectly, of any information other than the address of such sex offender.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, §§ 12 to 14, eff. Sept. 30, 2003; St.2006, c. 139, §§ 21, 22, eff. July 1, 2006; St.2006, c. 303, § 2, eff. Dec. 20, 2006; St.2010, c. 256, § 40, eff. Nov. 4, 2010.

M.G.L.A. 6 § 178F, MA ST 6 § 178F

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M.G.L.A. 6 § 178F 1/2

§ 178F ½ . Registration by personal appearance; level 2 or level 3 sex offenders

Effective: August 7, 2013

Currentness

An incarcerated sex offender finally classified by the board as a level 2 or level 3 sex offender who is required to register under sections 178C to 178P, inclusive, shall appear in person within 2 days of release from the custody of an agency, including the department of correction, the department of youth services or any of the houses of correction, at the local police department in the city or town in which the sex offender lives, or if the sex offender does not reside in the commonwealth, in the city or town in the commonwealth in which the sex offender has a secondary address, works or attends an institution of higher learning, to register; but no such obligation to register in person shall arise where the pertinent address is the same as that provided to the board by the offender before his release under subsection (a) of section 178E. The sex offender shall be informed by, and shall acknowledge in writing to, the agency that has custody of the sex offender of the duty to comply with this section. A sex offender who is finally classified by the board as a level 2 or level 3 offender and who is required to register under said sections 178C to 178P, inclusive, shall appear in person annually at the local police department in the city or town in which the sex offender lives or, if the sex offender does not reside in the commonwealth, in the city or town in the commonwealth in which the sex offender has a secondary address, works or attends an institution of higher learning, to verify that the registration data on file remains true and accurate. At such time, the sex offender's photograph and fingerprints shall be updated. Such sex offender who has been determined to be a sexually violent predator under paragraph (c) of subsection (2) of section 178K shall also appear in person at such police department every 45 days to verify, under the pains and penalties of perjury, that the registration data on file remains true and accurate. A homeless sex offender shall appear in person at such local police department every 30 days to verify, under the pains and penalties of perjury, that the registration data on file remains true and accurate. A homeless shelter receiving state funding shall cooperate in providing information in the possession of or known to such shelter, when a request for information is made to such shelter by the board or such local police department; provided, however, that such request for information shall be limited to that which is necessary to verify an offender's registration data or a sex offender's whereabouts. A shelter that violates the provisions of this paragraph shall be punished by a fine of \$100 a day for each day that such shelter continues to violate the provisions of this paragraph. In addition, in each subsequent year during the month of birth of any sex offender required to register, the board shall mail a nonforwardable verification form to the last reported address of such sex offender. If such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or the agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record. Such sex offender shall, within five days of receipt, sign the verification form under the penalties of perjury and register in person at the police department in the municipality in which such sex offender lives, or if such sex offender does not reside in the commonwealth, in the city or town in which such sex offender has a secondary address, works or attends an institution of higher learning. The board shall periodically, and at least annually, send written notice to a city or town police department regarding any sex offender required to register whose last known address was in such city or town or who gave notice of his intent to move to or is otherwise believed to live or work in such city or town, but who has failed to register or verify registration information as required. A sex offender finally classified as a level 2 or level 3 offender shall also comply with the provisions of paragraphs (g) to (j), inclusive, of section 178E, but the offender shall give the required notice in person at the police department

in the city or town where such sex offender resides, or if such sex offender does not reside in the commonwealth, in the city or town in which such sex offender has a secondary address, works or attends an institution of higher learning.

The board shall examine through electronic transfer of information the tax returns, wage reports, child support enforcement records, papers or other documents on file with the commissioner of revenue or any other entity within the executive branch when there is reason to believe a sex offender required to register has not so registered in accordance with this chapter or where the address of such sex offender cannot be verified through other means; provided, however, that nothing herein shall be construed to authorize the disclosure, directly or indirectly, of any information other than the address of such sex offender, except as otherwise provided by sections 178C to 178P, inclusive.

Credits

Added by St.1999, c. 74, § 2. Amended by St.2003, c. 77, § 15, eff. Sept. 30, 2003; St.2003, c. 140, § 12, eff. Nov. 26, 2003; St.2006, c. 139, §§ 23 to 25, eff. July 1, 2006; St.2006, c. 303, § 3, eff. Dec. 20, 2006; St.2010, c. 256, § 41, eff. Nov. 4, 2010; St.2013, c. 63, § 1, eff. Aug. 7, 2013.

M.G.L.A. 6 § 178F 1/2, MA ST 6 § 178F 1/2

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M.G.L.A. 6 § 178F 3/4

§ 178F ¾ . Global positioning system device to be worn by homeless sex offender

Effective: November 4, 2010

Currentness

A homeless sex offender shall wear a global positioning system device, or any comparable device, administered by the commissioner of probation.

Credits

Added by St.2010, c. 256, § 42, eff. Nov. 4, 2010.

M.G.L.A. 6 § 178F 3/4, MA ST 6 § 178F 3/4

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M.G.L.A. 6 § 178G

§ 178G. Termination of obligation to register

Effective: September 30, 2003

Currentness

The duty of a sex offender required to register pursuant to this chapter and to comply with the requirements hereof shall, unless sooner terminated by the board under section 178L, end 20 years after such sex offender has been convicted or adjudicated or has been released from all custody or supervision, whichever last occurs, unless such sex offender was convicted of two or more sex offenses defined as sex offenses pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071, committed on different occasions, has been convicted of a sexually violent offense; has been determined by the sentencing court to be a sexually violent predator, or if such sex offender is otherwise subject to lifetime registration requirements as determined by the board pursuant to section 178D, in which cases the duty to register shall never be terminated. A person required to register with the sex offender registry board may make an application to said board to terminate the obligation upon proof, by clear and convincing evidence, that the person has not committed a sex offense within ten years following conviction, adjudication or release from all custody or supervision, whichever is later, and is not likely to pose a danger to the safety of others. For so long as such sex offender is under a duty to register in the commonwealth or in any other state where the offender resides or would be under such a duty if residing in the commonwealth, such sex offender shall not be entitled to relief under the provisions of section 100A or 100B of chapter 276.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, § 16, eff. Sept. 30, 2003.

M.G.L.A. 6 § 178G, MA ST 6 § 178G

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Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council,
and State Library (Refs & Annos)

M.G.L.A. 6 § 178H

§ 178H. Failure to register, verify information or provide notice
of change of address; providing false information; penalties

Effective: November 5, 2010

Currentness

(a) A sex offender required to register pursuant to this chapter who knowingly: (i) fails to register; (ii) fails to verify registration information; (iii) fails to provide notice of a change of address; or (iv) who knowingly provides false information shall be punished in accordance with this section.

(1) A first conviction under this subsection shall be punished by imprisonment for not less than six months and not more than two and one-half years in a house of correction nor more than five years in a state prison or by a fine of not more than \$1,000 or by both such fine and imprisonment.

A person convicted under this paragraph, who has been adjudicated or convicted of any of the offenses set forth in sections 13B, 13B ½, 13B ¾, 13F, 22A, 22B, 22C, 23, 23A, 23B, 24B and 26 of chapter 265 or for conspiracy to commit any of these offenses, or as an accessory thereto, or a like violation of the laws of another state, the United States or a military, territorial or Indian tribal authority shall, in addition to the term of imprisonment authorized by this section, be punished by a term of community parole supervision for life, to be served under the jurisdiction of the parole board, as set forth in section 133D of said chapter 127. The sentence of community parole supervision for life shall commence immediately upon the expiration of the term of imprisonment imposed upon such person by the court or upon such person's release from probation or parole supervision or upon the expiration of a continuance without a finding or upon discharge from commitment to the treatment center pursuant to section 9 of chapter 123A, whichever first occurs.

(2) A second and subsequent conviction under this subsection shall be punished by imprisonment in the state prison for not less than five years.

Any person convicted under this paragraph who is a level 2 or level 3 offender shall, in addition to the term of imprisonment authorized by this paragraph, be punished by a term of community parole supervision for life, to be served under the jurisdiction of the parole board, as set forth in said section 133D of said chapter 127. The sentence of community parole supervision for life shall commence immediately upon the expiration of the term of imprisonment imposed upon such person by the court or upon such person's release from probation or parole supervision or upon the expiration of a continuance without a finding or upon discharge from commitment to the treatment center pursuant to section 9 of chapter 123A, whichever first occurs.

(3) Any person convicted under this subsection who is a level 2 or level 3 sex offender shall, in addition to the term of imprisonment authorized by this subsection, be subject to community parole supervision for life, to be served under the jurisdiction of the parole board, as set forth in section 133D of chapter 127. The sentence of community parole supervision for

life shall commence immediately upon the expiration of the term of imprisonment imposed upon such person by the court or upon such person's release from any post-release supervision or upon the expiration of a continuance without a finding or upon discharge from commitment to the treatment center under section 9 of chapter 123, whichever first occurs.

(b) Violations of this section may be prosecuted and punished in any county where the offender knowingly: (i) fails to register; (ii) fails to verify registration information; (iii) fails to provide notice of a change of address; or (iv) knowingly provides false information.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2006, c. 139, §§ 26, 27, eff. July 1, 2006; St.2006, c. 303, §§ 4, 5, eff. Dec. 20, 2006; St.2010, c. 267, §§ 4 to 6, eff. Nov. 5, 2010.

M.G.L.A. 6 § 178H, MA ST 6 § 178H

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M.G.L.A. 6 § 178I

§ 178I. Report identifying sex offender; request for information; confidentiality

Currentness

Any person who is 18 years of age or older and who states that he is requesting sex offender registry information for his own protection or for the protection of a child under the age of 18 or another person for whom the requesting person has responsibility, care or custody shall receive at no cost from the board a report to the extent available pursuant to sections 178C to 178P, inclusive, which indicates whether an individual identified by name, date of birth or sufficient personal identifying characteristics is a sex offender with an obligation to register pursuant to this chapter, the offenses for which he was convicted or adjudicated and the dates of such convictions or adjudications. Any records of inquiry shall be kept confidential, except that the records may be disseminated to assist or defend in a criminal prosecution.

Information about an offender shall be made available pursuant to this section only if the offender is a sex offender who has been finally classified by the board as a level 2 or level 3 sex offender.

All reports to persons making inquiries shall include a warning regarding the criminal penalties for use of sex offender registry information to commit a crime or to engage in illegal discrimination or harassment of an offender and the punishment for threatening to commit a crime under section 4 of chapter 275.

The board shall not release information identifying the victim by name, address or relation to the offender.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2.

M.G.L.A. 6 § 178I, MA ST 6 § 178I

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Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council, and State Library (Refs & Annos)

M.G.L.A. 6 § 178J

§ 178J. Request for sex offender information; notice of penalty for misuse; data required to receive report

Effective: July 31, 2008

Currentness

(a) A person who requests sex offender registry information shall:

(1) be 18 years of age or older;

(2) appear in person at a city or town police station and present proper identification;

(3) require sex offender registry information for his own protection or for the protection of a child under the age of 18 or another person for whom such inquirer has responsibility, care or custody, and so state; and

(4) complete and sign a record of inquiry, designed by the board, which shall include the following information: the name and address of the person making the inquiry, the person or geographic area or street which is the subject of the inquiry, the reason for the inquiry and the date and time of the inquiry.

Such records of inquiries shall include a warning regarding the criminal penalties for use of sex offender registry information to commit a crime or to engage in illegal discrimination or harassment of an offender and the punishment for threatening to commit a crime under the provisions of section 4 of chapter 275. Such records of inquiries shall state, before the signature of the inquirer, as follows: "I understand that the sex offender registry information disclosed to me is intended for my own protection or for the protection of a child under the age of 18 or another person for whom I have responsibility, care or custody." Such records of inquiries shall be kept confidential, except that such records may be disseminated to assist in a criminal prosecution.

(b) The person making the inquiry may either:

(1) identify a specific individual by name or provide personal identifying information sufficient to allow the police to identify the subject of the inquiry; or

(2) inquire whether any sex offenders live, work or attend an institution of higher learning within the same city or town at a specific address including, but not limited to, a residential address, a business address, school, after-school program, child care center, playground, recreational area or other identified address and inquire in another city or town whether any sex offenders live, work or attend an institution of higher learning within that city or town, upon a reasonable showing that the sex offender

registry information is requested for his own protection or for the protection of a child under the age of 18 or another person for whom the inquirer has responsibility, care or custody; or

(3) inquire whether any sex offenders live, work or attend an institution of higher learning on a specific street within the city or town in which such inquiry is made.

(c) If the search of the sex offender registry results in the identification of a sex offender required to register pursuant to this chapter who has been finally classified by the board as a level 2 or level 3 offender under section 178K, the police shall disseminate to the person making the inquiry:

(1) the name of the sex offender;

(2) the home address and any secondary address if located in the areas described in clause (2) or (3) of subsection (b);

(3) the work address if located in the areas described in said clause (2) or (3) of said subsection (b);

(4) the offense for which he was convicted or adjudicated and the dates of such conviction or adjudication;

(5) the sex offender's age, sex, race, height, weight, eye and hair color; and

(6) a photograph of the sex offender, if available.

(7) the name and address of the institution of higher learning where the sex offender works or is enrolled as a student, if located in the areas described in clause (2) or (3) of subsection (b).

The police shall not release information identifying the victim by name, address or the victim's relation to the offender.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 77, §§ 17, 18, eff. Sept. 30, 2003; St.2006, c. 139, § 28, eff. July 1, 2006; St.2008, c. 215, § 2, eff. July 31, 2008.

M.G.L.A. 6 § 178J, MA ST 6 § 178J

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Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council, and State Library (Refs & Annos)

M.G.L.A. 6 § 178K

§ 178K. Sex offender registry board; member qualifications; guidelines to assess risk of reoffense; notification; information sharing system relevant for determination or reevaluation of sex offender's level designation

Effective: December 11, 2020

Currentness

(1) There shall be, in the executive office of public safety and security, a sex offender registry board which shall consist of seven members who shall be appointed by the governor for terms of six years, with the exception of the chairman, and who shall devote their full time during business hours to their official duties. The board shall include one person with experience and knowledge in the field of criminal justice who shall act as chairman; at least two licensed psychologists or psychiatrists with special expertise in the assessment and evaluation of sex offenders and who have knowledge of the forensic mental health system; at least one licensed psychologist or psychiatrist with special expertise in the assessment and evaluation of sex offenders, including juvenile sex offenders and who has knowledge of the forensic mental health system; at least two persons who have at least five years of training and experience in probation, parole or corrections; and at least one person who has expertise or experience with victims of sexual abuse. Members shall be compensated at a reasonable rate subject to approval of the secretary of administration and finance.

The chairman shall be appointed by and serve at the pleasure of the governor and shall be the executive and administrative head of the sex offender registry board, shall have the authority and responsibility for directing assignments of members of said board and shall be the appointing and removing authority for members of said board's staff. In the case of the absence or disability of the chairman, the governor may designate one of the members to act as chairman during such absence or disability. The chairman shall, subject to appropriation, establish such staff positions and employ such administrative, research, technical, legal, clerical and other personnel and consultants as may be necessary to perform the duties of said board. Such staff positions shall not be subject to section 9A of chapter 30 or chapter 31.

The governor shall fill any vacancy for the unexpired term. As long as there are four sitting members, a vacancy shall not impair the right of the remaining members to exercise the powers of the board.

The sex offender registry board shall promulgate guidelines for determining the level of risk of reoffense and the degree of dangerousness posed to the public or for relief from the obligation to register and shall provide for three levels of notification depending on such risk of reoffense and the degree of dangerousness posed to the public; apply the guidelines to assess the risk level of particular offenders; develop guidelines for use by city and town police departments in disseminating sex offender registry information; devise a plan, in cooperation with state and local law enforcement authorities and other appropriate agencies, to locate and verify the current addresses of sex offenders including, subject to appropriation, entering into contracts or interagency agreements for such purposes; and conduct hearings as provided in section 178L. The attorney general and the chief counsel of the committee for public counsel services, or their designees, shall assist in the development of such guidelines. Factors relevant to the risk of reoffense shall include, but not be limited to, the following:

- (a) criminal history factors indicative of a high risk of reoffense and degree of dangerousness posed to the public, including:
 - (i) whether the sex offender has a mental abnormality;
 - (ii) whether the sex offender's conduct is characterized by repetitive and compulsive behavior;
 - (iii) whether the sex offender was an adult who committed a sex offense on a child;
 - (iv) the age of the sex offender at the time of the commission of the first sex offense;
 - (v) whether the sex offender has been adjudicated to be a sexually dangerous person pursuant to section 14 of chapter 123A or is a person released from civil commitment pursuant to section 9 of said chapter 123A; and
 - (vi) whether the sex offender served the maximum term of incarceration;
- (b) other criminal history factors to be considered in determining risk and degree of dangerousness, including:
 - (i) the relationship between the sex offender and the victim;
 - (ii) whether the offense involved the use of a weapon, violence or infliction of bodily injury;
 - (iii) the number, date and nature of prior offenses;
- (c) conditions of release that minimize risk of reoffense and degree of dangerousness posed to the public, including whether the sex offender is under probation or parole supervision, whether such sex offender is receiving counseling, therapy or treatment and whether such sex offender is residing in a home situation that provides guidance and supervision, including sex offender-specific treatment in a community-based residential program;
- (d) physical conditions that minimize risk of reoffense including, but not limited to, debilitating illness;
- (e) whether the sex offender was a juvenile when he committed the offense, his response to treatment and subsequent criminal history;
- (f) whether psychological or psychiatric profiles indicate a risk of recidivism;
- (g) the sex offender's history of alcohol or substance abuse;

(h) the sex offender's participation in sex offender treatment and counseling while incarcerated or while on probation or parole and his response to such treatment or counseling;

(i) recent behavior, including behavior while incarcerated or while supervised on probation or parole;

(j) recent threats against persons or expressions of intent to commit additional offenses;

(k) review of any victim impact statement; and

(l) review of any materials submitted by the sex offender, his attorney or others on behalf of such offender.

(2) The guidelines shall provide for three levels of notification depending on the degree of risk of reoffense and the degree of dangerousness posed to the public by the sex offender or for relief from the obligation to register:

(a) Where the board determines that the risk of reoffense is low and the degree of dangerousness posed to the public is not such that a public safety interest is served by public availability, it shall give a level 1 designation to the sex offender. In such case, the board shall transmit the registration data and designation to the police departments in the municipalities where such sex offender lives and works and attends an institution of higher learning or, if in custody, intends to live and work and attend an institution of higher learning upon release and where the offense was committed and to the Federal Bureau of Investigation. The police shall not disseminate information to the general public identifying the sex offender where the board has classified the individual as a level 1 sex offender. The police and the board may, however, release such information identifying such sex offender to the department of correction, any county correctional facility, the department of youth services, the department of children and families, the parole board, the department of probation, the department of early education and care, the department of mental health, the department of developmental services, all city and town police departments and the Federal Bureau of Investigation.

(b) Where the board determines that the risk of reoffense is moderate and the degree of dangerousness posed to the public is such that a public safety interest is served by public availability of registration information, it shall give a level 2 designation to the sex offender. In such case, the board shall transmit the registration data and designation to the police departments in the municipalities where the sex offender lives, has a secondary address and works and attends an institution of higher learning or, if in custody, intends to live and work and attend an institution of higher learning upon release and where the offense was committed and to the Federal Bureau of Investigation. The public shall have access to the information regarding a level 2 offender in accordance with the provisions of sections 178D, 178I and 178J. The sex offender shall be required to register and to verify registration information pursuant to section 178F ½.

(c) Where the board determines that the risk of reoffense is high and the degree of dangerousness posed to the public is such that a substantial public safety interest is served by active dissemination, it shall give a level 3 designation to the sex offender. In such case, the board shall transmit the registration data and designation to the police departments in the municipalities where the sex offender lives, has a secondary address and works and attends an institution of higher learning or, if in custody, intends to live and work and attend an institution of higher learning upon release and where the offense was committed and to the Federal Bureau of Investigation. A level 3 community notification plan shall require the police department to notify organizations in the community which are likely to encounter such sex offender and individual members of the public who are likely to encounter such sex offender. The sex offender shall be required to register and to verify registration information pursuant to sections 178F ½. Neighboring police districts shall share sex offender registration information of level 3 offenders and may inform the

residents of their municipality of a sex offender they are likely to encounter who resides in an adjacent city or town. The police or the board shall actively disseminate in such time and manner as such police department or board deems reasonably necessary the following information:

- (i) the name of the sex offender;
- (ii) the offender's home address and any secondary address;
- (iii) the offender's work address;
- (iv) the offense for which the offender was convicted or adjudicated and the date of the conviction or adjudication;
- (v) the sex offender's age, sex, race, height, weight, eye and hair color; and
- (vi) a photograph of the sex offender, if available; provided, that such active dissemination may include publication of such information on the internet by the police department at such time and in such manner as the police or the board deem reasonably necessary; and provided further, that the police or the board shall not release information identifying the victim by name, address or relation to the sex offender. All notices to the community shall include a warning regarding the criminal penalties for use of sex offender registry information to commit a crime or to engage in illegal discrimination or harassment of an offender and the punishment for threatening to commit a crime under section 4 of chapter 275.
- (vii) the name and address of the institution of higher learning that the sex offender is attending.

The public shall have access to the information regarding a level 3 offender in accordance with sections 178D, 178I and 178J.

If the board, in finally giving an offender a level 3 classification, also concludes that such sex offender should be designated a sexually violent predator, the board shall transmit a report to the sentencing court explaining the board's reasons for so recommending, including specific identification of the sexually violent offense committed by such sex offender and the mental abnormality from which he suffers. The report shall not be subject to judicial review under section 178M. Upon receipt from the board of a report recommending that a sex offender be designated a sexually violent predator, the sentencing court, after giving such sex offender an opportunity to be heard and informing the sex offender of his right to have counsel appointed, if he is deemed to be indigent in accordance with section 2 of chapter 211D, shall determine, by a preponderance of the evidence, whether such sex offender is a sexually violent predator. An attorney employed or retained by the board may make an appearance, subject to section 3 of chapter 12, to defend the board's recommendation. The board shall be notified of the determination. A determination that a sex offender should not be designated a sexually violent predator shall not invalidate such sex offender's classification. Where the sentencing court determines that such sex offender is a sexually violent predator, dissemination of the sexually violent predator's registration data shall be in accordance with a level 3 community notification plan; provided, however, that such dissemination shall include such sex offender's designation as a sexually violent predator.

(d) The board may, upon making specific written findings that the circumstances of the offense in conjunction with the offender's criminal history do not indicate a risk of reoffense or a danger to the public and the reasons therefor, relieve such sex offender of any further obligation to register, shall remove such sex offender's registration information from the registry and shall so notify the police departments where said sex offender lives and works or if in custody intends to live and work upon release,

and where the offense was committed and the Federal Bureau of Investigation. In making such determination the board shall consider factors, including but not limited to, the presence or absence of any physical harm caused by the offense and whether the offense involved consensual conduct between adults. The burden of proof shall be on the offender to prove he comes within the provisions of this subsection. The provisions of this subsection shall not apply if a sex offender has been determined to be a sexually violent predator; has been convicted of two or more sex offenses defined as sex offenses pursuant to the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, 42 U.S.C. section 14071, committed on different occasions; or has been convicted of a sexually violent offense. The provisions of this subsection shall also not apply if a sex offender has been convicted of a sex offense involving a child or a sexually violent offense, and such offender has not already registered pursuant to this chapter for at least ten years, or if the sex offender is otherwise subject to lifetime or minimum registration requirements as determined by the board pursuant to section 178D.

(e) No sex offender classified as a level 3 offender shall knowingly and willingly establish living conditions within, move to, or transfer to any convalescent or nursing home, infirmary maintained in a town, rest home, charitable home for the aged or intermediate care facility for the mentally retarded which meets the requirements of the department of public health under section 71 of chapter 111. Any sex offender who violates this paragraph shall, for a first conviction, be punished by imprisonment for not more than 30 days in a jail or house of correction; for a second conviction, be punished by imprisonment for not more than 2 ½ years in a jail or house of correction nor more than 5 years in a state prison or by a fine of not more than \$1,000, or by both such fine and imprisonment; and for a third and subsequent conviction, be punished by imprisonment in a state prison for not less than 5 years; provided, however, that the sentence imposed for such third or subsequent conviction shall not be reduced to less than 5 years, nor suspended, nor shall any person sentenced herein be eligible for probation, parole, work release or furlough, or receive any deduction from his sentence for good conduct until he shall have served 5 years. Prosecutions commenced hereunder shall neither be continued without a finding nor placed on file.

(3) The sex offender registry board shall make a determination regarding the level of risk of reoffense and the degree of dangerousness posed to the public of each sex offender listed in said sex offender registry and shall give immediate priority to those offenders who have been convicted of a sex offense involving a child or convicted or adjudicated as a delinquent juvenile or as a youthful offender by reason of a sexually violent offense or of a sex offense of indecent assault and battery upon a mentally retarded person pursuant to section 13F of chapter 265, and who have not been sentenced to incarceration for at least 90 days, followed, in order of priority, by those sex offenders who (1) have been released from incarceration within the past 12 months, (2) are currently on parole or probation supervision, and (3) are scheduled to be released from incarceration within six months. All agencies shall cooperate in providing files to the sex offender registry board and any information the sex offender registry board deems useful in providing notice under sections 178C to 178P, inclusive, and in assessing the risk of reoffense and the degree of dangerousness posed to the public by the sex offender. All agencies from which registration data, including data within the control of providers under contract to such agencies, is requested by the sex offender registry board shall make such data available to said board immediately upon request. Failure to comply in good faith with such a request within 30 days shall be punishable by a fine of not more than \$1,000 per day.

(4) The sex offender registry board, in cooperation with the executive office of public safety and security, and with the consultation of the offices of the district attorneys, the department of probation, the department of children and families and the Massachusetts Chiefs of Police Association Incorporated, shall establish and maintain a system of procedures for the ongoing sharing of information that may be relevant to the board's determination or reevaluation of a sex offender's level designation among the board, the offices of the district attorneys and any department, agency or office of the commonwealth that reports, investigates or otherwise has access to potentially relevant information, including, but not limited to, the department of youth services, the department of children and families, the department of mental health, the department of developmental services, the department of correction, the department of probation, the department of early education and care, the department of public health and the office of the child advocate. .¹

The board shall promulgate any rules or regulations necessary to establish, update and maintain this system including, but not limited to, the frequency of updates, measures to ensure the comprehensiveness, clarity and effectiveness of information, and metrics to determine what information may be relevant. When sharing information through this system, all members shall have discretion to delay sharing information where it is reasonably believed that disclosure would compromise or impede an investigation or prosecution or would cause harm to a victim.

(5) The sex offender registry board shall have access to any information that is determined to be relevant to the board's determination or reevaluation of a sex offender's level designation, as defined in subsection (4), through the system of procedures established in said subsection (4).

Credits

Added by St.1996, c. 239, § 1. Amended by St.1998, c. 463, § 6; St.1999, c. 74, § 2; St.2003, c. 77, §§ 19 to 22, eff. Sept. 30, 2003; St.2003, c. 140, § 13, eff. Nov. 26, 2003; St.2004, c. 149, § 13 (b), eff. July 1, 2004; St.2006, c. 139, §§ 29 to 31, eff. July 1, 2006; St.2006, c. 303, § 6, eff. Dec. 20, 2006; St.2008, c. 176, § 9, eff. July 8, 2008; St.2010, c. 256, § 43, eff. Nov. 4, 2010; St.2013, c. 38, §§ 9, 10, eff. July 1, 2013; St.2018, c. 202, § 6; St.2020, c. 227, § 6, eff. Dec. 11, 2020.

Footnotes

1 So in enrolled bill.

M.G.L.A. 6 § 178K, MA ST 6 § 178K

Current through Chapter 11 of the 2026 2nd Annual Session. Some sections may be more current; see credits for details.

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Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council, and State Library (Refs & Annos)

M.G.L.A. 6 § 178L

§ 178L. Classification of sex offenders by board; hearings; right to counsel; reclassification

Effective: July 1, 2013

Currentness

(1) Upon review of any information useful in assessing the risk of reoffense and the degree of dangerousness posed to the public by the sex offender, including materials described in the board guidelines and any materials submitted by the sex offender, the board shall prepare a recommended classification of each offender. Such recommendation may be made by board staff members upon written approval by one board member; provided, however, that if the sex offender was a juvenile at the time of the offense, written approval must be given by a board member who is a licensed psychologist or psychiatrist with special expertise in the assessment and evaluation of juvenile sex offenders.

(a) Not less than 60 days prior to the release or parole of a sex offender from custody or incarceration, the board shall notify the sex offender of his right to submit to the board documentary evidence relative to his risk of reoffense and the degree of dangerousness posed to the public and his duty to register according to the provisions of section 178E. If the sex offender is a juvenile at the time of such notification, notification shall also be mailed to the sex offender's legal guardian or agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record. Such sex offender may submit such evidence to the board within 30 days of receiving such notice from the board. Upon a reasonable showing, the board may extend the time in which such sex offender may submit such documentary evidence. Upon reviewing such evidence, the board shall promptly notify the sex offender of the board's recommended sex offender classification, his duty to register, if any, his right to petition the board to request an evidentiary hearing to challenge such classification and duty, his right to retain counsel to represent him at such hearing and his right to have counsel appointed for him if he is found to be indigent as determined by the board using the standards under chapter 211D; provided, however, that such indigent offender may also apply for and the board may grant payment of fees for an expert witness in any case where the board in its classification proceeding intends to rely on the testimony or report of an expert witness prepared specifically for the purposes of the classification proceeding. Such sex offender shall petition the board for such hearing within 20 days of receiving such notice. The board shall conduct such hearing in a reasonable time according to the provisions of subsection (2). The failure timely to petition the board for such hearing shall result in a waiver of such right and the registration requirements, if any, and the board's recommended classification shall become final.

(b) The district attorney for the county where such sex offender was prosecuted may, within ten days of a conviction or adjudication of a sexually violent offense, file a motion with the board to make an expedited recommended classification upon a showing that such sex offender poses a grave risk of imminent reoffense. If the petition is granted, the board shall make such recommendation within ten days of the expiration of the time to submit documentary evidence. If the petition is not granted, the board shall make such recommended classification as otherwise provided in this section.

(c) In the case of any sex offender not in custody, upon receiving registration data from the agency, the police department at which the sex offender registered, the sentencing court or by any other means, the board shall promptly notify the sex offender of his right to submit to the board documentary evidence relative to his risk of reoffense and the degree of dangerousness posed to the public and his duty to register, if any, according to section 178E. If such sex offender is a juvenile at the time of such notification, notification shall also be mailed to such sex offender's legal guardian or agency having custody of the juvenile in the absence of a legal guardian and his most recent attorney of record. Such sex offender may submit such evidence to the board within 30 days of receiving such notice from the board. Upon a reasonable showing, the board may extend the time in which a sex offender may submit such documentary evidence. Upon reviewing such evidence, the board shall promptly notify such sex offender of the board's recommended sex offender classification, his duty to register, if any, and his right to petition the board to request an evidentiary hearing to challenge such classification and duty, his right to retain counsel to represent him at such hearing and his right to have counsel appointed for him if he is found to be indigent as determined by the board using the standards under chapter 211D; provided, however, that such indigent offender may also apply for and the board may grant payment of fees for an expert witness in any case where the board in its classification proceeding intends to rely on the testimony or report of an expert witness prepared specifically for the purposes of the classification proceeding. Such sex offender shall petition the board for such hearing within 20 days of receiving such notice. The board shall conduct such hearing in a reasonable time according to the provisions of subsection (2). The failure timely to petition the board for such hearing shall result in a waiver of such right and the registration requirements, if any, and the board's recommended classification shall become final.

(2) If an offender requests a hearing in accordance with subsection (1), the chair may appoint a member, a panel of three board members or a hearing officer to conduct the hearing, according to the standard rules of adjudicatory procedure or other rules which the board may promulgate, and to determine by a preponderance of evidence such sex offender's duty to register and final classification. The board shall inform offenders requesting a hearing under the provisions of subsection (1) of their right to have counsel appointed if a sex offender is deemed to be indigent as determined by the board using the standards under chapter 211D. If the sex offender does not so request a hearing, the recommended classification and determination of duty to register shall become the board's final classification and determination and shall not be subject to judicial review. All offenders who are juveniles at the time of notification shall be represented by counsel at the hearing.

(3) The board may, on its own initiative or upon written request by a police department or district attorney, seek to reclassify any registered and finally classified sex offender in the event that new information, which is relevant to a determination of a risk of re-offense or degree of dangerousness, is received. The board shall promulgate regulations defining such new information and establishing the procedures relative to a reclassification hearing held for this purpose; provided that (i) the hearing is conducted according to the standard rules of adjudicatory procedure or other rules which the board may promulgate, (ii) the hearing is conducted in a reasonable time, and (iii) the sex offender is provided prompt notice of the hearing, which includes: the new information that led the board to seek reclassification of the offender, the offender's right to challenge the reclassification, the offender's right to submit to the board documentary evidence relative to his risk of reoffense and the degree of dangerousness posed to the public, the offender's right to retain counsel for the hearing, and the offender's right to have counsel appointed if the offender is indigent, as determined by the board using the standards in chapter 211D. An indigent offender may also apply for and the board may grant payment of fees for an expert witness in any case in which the board intends to rely on the testimony or report of an expert witness prepared specifically for the purposes of the reclassification proceeding. The failure of the offender to attend the hearing may result in a waiver of the offender's rights and the board's recommended reclassification becoming final.

All offenders who are juveniles at the time of notification shall be represented by counsel at the hearing and notification shall also be mailed to the sex offender's legal guardian or agency having custody of the juvenile in the absence of a legal guardian and the offender's most recent attorney of record.

Credits

Added by St.1999, c. 74, § 2. Amended by St.2013, c. 38, § 11, eff. July 1, 2013.

M.G.L.A. 6 § 178L, MA ST 6 § 178L

Current through Chapter 11 of the 2026 2nd Annual Session. Some sections may be more current; see credits for details.

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Chapter 6. The Governor, Lieutenant Governor and Council, Certain Officers Under the Governor and Council,
and State Library (Refs & Annos)

M.G.L.A. 6 § 178M

§ 178M. Judicial review of final classification

Effective: July 1, 2013

Currentness

An offender may seek judicial review, in accordance with section 14 of chapter 30A, of the board's final classification, reclassification and registration requirements. The court shall, if requested, appoint counsel to represent the sex offender in the proceedings if such sex offender is deemed indigent in accordance with section 2 of chapter 211D. An attorney employed or retained by the board may make an appearance, subject to section 3 of chapter 12, to defend the board's decision. The court shall reach its final decision within 60 days of such sex offender's petition for review. The court shall keep proceedings conducted pursuant to this paragraph and records from such proceedings confidential and such proceedings and records shall be impounded, but the filing of an action under this section shall not stay the effect of the board's final classification.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2013, c. 38, § 12, eff. July 1, 2013.

M.G.L.A. 6 § 178M, MA ST 6 § 178M

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M.G.L.A. 6 § 178N

§ 178N. Misuse of information; penalties

Currentness

Information contained in the sex offender registry shall not be used to commit a crime against a sex offender or to engage in illegal discrimination or harassment of an offender. Any person who uses information disclosed pursuant to the provisions of sections 178C to 178P, inclusive, for such purpose shall be punished by not more than two and one-half years in a house of correction or by a fine of not more than \$1,000 or by both such fine and imprisonment.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2.

M.G.L.A. 6 § 178N, MA ST 6 § 178N

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M.G.L.A. 6 § 178O

§ 178O. Liability of public officials and employees for sex offender registry information

Effective: November 26, 2003

Currentness

Police officials and other public employees acting in good faith shall not be liable in a civil or criminal proceeding for any publication on the internet under section 178D or other dissemination of sex offender registry information or for any act or omission pursuant to the provisions of sections 178C to 178P, inclusive.

Credits

Added by St.1996, c. 239, § 1. Amended by St.1999, c. 74, § 2; St.2003, c. 140, § 14, eff. Nov. 26, 2003.

M.G.L.A. 6 § 178O, MA ST 6 § 178O

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M.G.L.A. 6 § 178P

§ 178P. Failure to comply with registration requirements; right to arrest; risk of reoffense information disclosure

Effective: August 7, 2013

Currentness

Whenever a police officer has probable cause to believe that a sex offender has failed to comply with the registration requirements of sections 178C to 178P, inclusive, such officer shall have the right to arrest such sex offender without a warrant and to keep such sex offender in custody.

Whenever a police officer, district attorney or agent, employee or representative of the executive office of health and human services has information indicating that a sex offender is at risk to reoffend, the police department, district attorney or, to the extent permitted by federal law, the executive office of health and human services agent, employee or representative shall forward that information to the board; but a police department or district attorney shall not forward information to the board that the police department or district attorney believes will compromise an ongoing investigation. The board, after consulting the executive office of health and human services, shall adopt regulations to provide specific guidance concerning the type and location of information that might indicate that a sex offender is at risk to reoffend and the circumstances that require disclosure.

Credits

Added by St.1997, c. 106, § 3. Amended by St.1999, c. 74, § 2; St.2013, c. 63, § 2, eff. Aug. 7, 2013.

M.G.L.A. 6 § 178P, MA ST 6 § 178P

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M.G.L.A. 6 § 178Q

§ 178Q. Sex offender registry fee

Effective: May 22, 2010

Currentness

The sex offender registry board shall assess upon every sex offender a sex offender registration fee of \$75, hereinafter referred to as a sex offender registry fee. Said offender shall pay said sex offender registry fee upon his initial registration as a sex offender and annually thereafter on the anniversary of said registration; provided, however, that no such fee shall be assessed or collected until the offender has either (1) waived his right to petition for an evidentiary hearing to challenge his duty to register as a sex offender as set forth in section 178L or (2) has completely exhausted the legal remedies made available to him to so challenge said duty to register pursuant to sections 178L and 178M and has not prevailed in his attempt to eliminate said duty. A sex offender's duty to pay the fee established by this section shall only terminate upon the termination of said offender's duty to register as a sex offender as set forth in section 178G.

The sex offender registry board may waive payment of said sex offender registry fee if it determines that such payment would constitute an undue hardship on said person or his family due to limited income, employment status, or any other relevant factor. Any such waiver so granted shall be in effect only during the period of time that said person is determined to be unable to pay the sex offender registry fee. The sex offender registry board shall establish procedures relative to the collection and waiver of such fee by regulation. Said sex offender registry fee shall be collected and retained by the sex offender registry board. The sex offender registry board shall account for all such fees received and report said fees annually to the secretary of administration and finance and the house and senate committees on ways and means.

Credits

Added by St.2003, c. 26, § 12, eff. July 1, 2003. Amended by St.2010, c. 112, § 3, eff. May 22, 2010.

M.G.L.A. 6 § 178Q, MA ST 6 § 178Q

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act

M.C.L.A. Ch. 28, Refs & Annos
Currentness

M. C. L. A. Ch. 28, Refs & Annos, MI ST Ch. 28, Refs & Annos

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act
II Sex Offender Registration

M.C.L.A. Ch. 28, Refs & Annos
Currentness

M. C. L. A. Ch. 28, Refs & Annos, MI ST Ch. 28, Refs & Annos
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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act (Refs & Annos)
II Sex Offender Registration (Refs & Annos)

M.C.L.A. 28.723

28.723. Registration requirements

Effective: July 1, 2011

Currentness

Sec. 3. (1) Subject to subsection (2), the following individuals who are domiciled or temporarily reside in this state or who work with or without compensation or are students in this state are required to be registered under this act:

- (a) An individual who is convicted of a listed offense after October 1, 1995.
 - (b) An individual convicted of a listed offense on or before October 1, 1995 if on October 1, 1995 he or she is on probation or parole, committed to jail, committed to the jurisdiction of the department of corrections, or under the jurisdiction of the juvenile division of the probate court or the department of human services for that offense or is placed on probation or parole, committed to jail, committed to the jurisdiction of the department of corrections, placed under the jurisdiction of the juvenile division of the probate court or family division of circuit court, or committed to the department of human services after October 1, 1995 for that offense.
 - (c) An individual convicted on or before October 1, 1995 of an offense described in section 2(d)(vi)¹ as added by 1994 PA 295 if on October 1, 1995 he or she is on probation or parole that has been transferred to this state for that offense or his or her probation or parole is transferred to this state after October 1, 1995 for that offense.
 - (d) An individual from another state who is required to register or otherwise be identified as a sex or child offender or predator under a comparable statute of that state.
 - (e) An individual who was previously convicted of a listed offense for which he or she was not required to register under this act, but who is convicted of any other felony on or after July 1, 2011.
- (2) An individual convicted of an offense added on September 1, 1999 to the definition of listed offense is not required to be registered solely because of that listed offense unless 1 of the following applies:
- (a) The individual is convicted of that listed offense on or after September 1, 1999.
 - (b) On September 1, 1999, the individual is on probation or parole, committed to jail, committed to the jurisdiction of the department of corrections, under the jurisdiction of the family division of circuit court, or committed to the department of human

services for that offense or the individual is placed on probation or parole, committed to jail, committed to the jurisdiction of the department of corrections, placed under the jurisdiction of the family division of circuit court, or committed to the department of human services on or after September 1, 1999 for that offense.

(c) On September 1, 1999, the individual is on probation or parole for that offense which has been transferred to this state or the individual's probation or parole for that offense is transferred to this state after September 1, 1999.

(d) On September 1, 1999, in another state or country the individual is on probation or parole, committed to jail, committed to the jurisdiction of the department of corrections or a similar type of state agency, under the jurisdiction of a court that handles matters similar to those handled by the family division of circuit court in this state, or committed to an agency with the same authority as the department of human services for that offense.

(3) A nonresident who is convicted in this state on or after July 1, 2011 of committing a listed offense who is not otherwise described in subsection (1) shall nevertheless register under this act. However, the continued reporting requirements of this act do not apply to the individual while he or she remains a nonresident and is not otherwise required to report under this act. The individual shall have his or her photograph taken under section 5a.²

Credits

P.A.1994, No. 295, § 3, Eff. Oct. 1, 1995. Amended by P.A.1995, No. 10, § 1, Eff. Oct. 1, 1995; P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2011, No. 17, Eff. July 1, 2011.

Footnotes

1 M.C.L.A. § 28.722.

2 M.C.L.A. § 28.725a.

M. C. L. A. 28.723, MI ST 28.723

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act (Refs & Annos)
II Sex Offender Registration (Refs & Annos)

M.C.L.A. 28.723a

28.723a. Exceptions to registration; hearing procedure

Effective: March 24, 2021

Currentness

Sec. 3a. (1) If an individual pleads guilty to or is found guilty of a listed offense or is adjudicated as a juvenile as being responsible for a listed offense but alleges that he or she is not required to register under this act because section 2(t)(v) or (vi) ¹ applies or section 2(v)(iv) applies, and the prosecuting attorney disputes that allegation, the court shall conduct a hearing on the matter before sentencing or disposition to determine whether the individual is required to register under this act.

(2) The individual has the burden of proving by a preponderance of the evidence in a hearing under this section that his or her conduct falls within the exceptions described in subsection (1) and that he or she is therefore not required to register under this act.

(3) The rules of evidence, except for those pertaining to privileges and protections set forth in section 520j of the Michigan penal code, 1931 PA 328, MCL 750.520j, do not apply to a hearing under this section.

(4) The prosecuting attorney shall give the victim notice of the date, time, and place of the hearing.

(5) The victim of the offense has the following rights in a hearing under this section:

(a) To submit a written statement to the court.

(b) To attend the hearing and to make a written or oral statement to the court.

(c) To refuse to attend the hearing.

(d) To attend the hearing but refuse to testify or make a statement at the hearing.

(6) The court's decision excusing or requiring the individual to register is a final order of the court and may be appealed by the prosecuting attorney or the individual as a matter of right.

(7) This section applies to criminal and juvenile cases pending on July 1, 2011 and to criminal and juvenile cases brought on and after that date.

Credits

P.A.1994, No. 295, § 3a, added by P.A.2011, No. 17, Eff. July 1, 2011. Amended by P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.722.

M. C. L. A. 28.723a, MI ST 28.723a

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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II Sex Offender Registration (Refs & Annos)

M.C.L.A. 28.724

28.724. Registration procedure

Effective: March 24, 2021

Currentness

Sec. 4. (1) Registration of an individual under this act must proceed as provided in this section.

(2) For an individual convicted of a listed offense on or before October 1, 1995 who on or before October 1, 1995 is sentenced for that offense, has a disposition entered for that offense, or is assigned to youthful trainee status for that offense, the following shall register the individual by December 31, 1995:

- (a) If the individual is on probation for the listed offense, the individual's probation agent.
 - (b) If the individual is committed to jail for the listed offense, the sheriff or his or her designee.
 - (c) If the individual is under the jurisdiction of the department of corrections for the listed offense, the department of corrections.
 - (d) If the individual is on parole for the listed offense, the individual's parole agent.
 - (e) If the individual is within the jurisdiction of the juvenile division of the probate court or the department of social services under an order of disposition for the listed offense, the juvenile division of the probate court or the department of social services.
- (3) Except as provided in subsection (4), for an individual convicted of a listed offense on or before October 1, 1995:
- (a) If the individual is sentenced for that offense after October 1, 1995 or assigned to youthful trainee status after October 1, 1995, the probation agent shall register the individual before sentencing or assignment.
 - (b) If the individual's probation or parole is transferred to this state after October 1, 1995, the probation or parole agent shall register the individual not more than 7 days after the transfer.
 - (c) If the individual is placed within the jurisdiction of the juvenile division of the probate court or family division of circuit court or committed to the department of health and human services under an order of disposition entered after October 1, 1995,

the juvenile division of the probate court or family division of circuit court shall register the individual before the order of disposition is entered.

(4) For an individual convicted on or before September 1, 1999 of an offense that was added on September 1, 1999 to the definition of listed offense, the following shall register the individual:

(a) If the individual is on probation or parole on September 1, 1999 for the listed offense, the individual's probation or parole agent not later than September 12, 1999.

(b) If the individual is committed to jail on September 1, 1999 for the listed offense, the sheriff or his or her designee not later than September 12, 1999.

(c) If the individual is under the jurisdiction of the department of corrections on September 1, 1999 for the listed offense, the department of corrections not later than November 30, 1999.

(d) If the individual is within the jurisdiction of the family division of circuit court or committed to the department of health and human services or county juvenile agency on September 1, 1999 under an order of disposition for the listed offense, the family division of circuit court, the department of health and human services, or the county juvenile agency not later than November 30, 1999.

(e) If the individual is sentenced or assigned to youthful trainee status for that offense after September 1, 1999, the probation agent shall register the individual before sentencing or assignment.

(f) If the individual's probation or parole for the listed offense is transferred to this state after September 1, 1999, the probation or parole agent shall register the individual within 14 days after the transfer.

(g) If the individual is placed within the jurisdiction of the family division of circuit court or committed to the department of health and human services for the listed offense after September 1, 1999, the family division of circuit court shall register the individual before the order of disposition is entered.

(5) Subject to section 3,¹ an individual convicted of a listed offense in this state after October 1, 1995 and an individual who was previously convicted of a listed offense for which he or she was not required to register under this act, but who is convicted of any other felony on or after July 1, 2011, shall register before sentencing, entry of the order of disposition, or assignment to youthful trainee status for that listed offense or that other felony. The probation agent or the family division of circuit court shall give the individual the registration form after the individual is convicted, explain the duty to register and accept the completed registration for processing under section 6.² The court shall not impose sentence, enter the order of disposition, or assign the individual to youthful trainee status, until it determines that the individual's registration was forwarded to the department as required under section 6.

(6) All of the following shall register with the local law enforcement agency, sheriff's department, or the department not more than 3 business days after becoming domiciled or temporarily residing, working, or being a student in this state:

(a) Subject to section 3(1), an individual convicted in another state or country on or after October 1, 1995 of a listed offense as defined before September 1, 1999.

(b) Subject to section 3(2), an individual convicted in another state or country of an offense added on September 1, 1999 to the definition of listed offenses.

(c) Subject to section 3(1), an individual convicted in another state or country of a listed offense before October 1, 1995 and, subject to section 3(2), an individual convicted in another state or country of an offense added on September 1, 1999 to the definition of listed offenses, who is convicted of any other felony on or after July 1, 2011.

(d) An individual required to be registered as a sex offender in another state or country regardless of when the conviction was entered.

(7) If a prosecution or juvenile proceeding is pending on July 1, 2011, whether the defendant in a criminal case or the minor in a juvenile proceeding is required to register under this act must be determined on the basis of the law in effect on July 1, 2011.

Credits

P.A.1994, No. 295, § 4, Eff. Oct. 1, 1995. Amended by P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2004, No. 237, Eff. Oct. 16, 2004; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2011, No. 17, Eff. July 1, 2011; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.723.

2 M.C.L.A. § 28.726.

M. C. L. A. 28.724, MI ST 28.724

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Sex Offenders Registration Act (Refs & Annos)
II Sex Offender Registration (Refs & Annos)

M.C.L.A. 28.724a

28.724a. Enrollment at institution of higher education; registration status reports; requirements

Effective: March 24, 2021

Currentness

Sec. 4a. (1) An individual required to be registered under this act who is not a resident of this state shall report his or her status in person to the registering authority having jurisdiction over a campus of an institution of higher education if either of the following occurs:

(a) The individual is or enrolls as a student with that institution of higher education or the individual discontinues that enrollment.

(b) As part of his or her course of studies at an institution of higher education in this state, the individual is present at any other location in this state, another state, a territory or possession of the United States, or the individual discontinues his or her studies at that location.

(2) An individual required to be registered under this act who is a resident of this state shall report his or her status in person to the registering authority having jurisdiction where his or her new residence or domicile is located if any of the events described under subsection (1) occur.

(3) The report required under subsections (1) and (2) must be made as follows:

(a) For an individual registered under this act before October 1, 2002 who is required to make his or her first report under subsections (1) and (2), not later than January 15, 2003.

(b) Not more than 3 business days after he or she enrolls or discontinues his or her enrollment as a student on that campus including study in this state or another state, a territory or possession of the United States, or another country.

(4) The additional registration reports required under this section must be made in the time periods described in section 5a(2)

(a) to (c) ¹ for reports under that section.

(5) The local law enforcement agency, sheriff's department, or department post to which an individual reports under this section shall require the individual to pay the registration fee required under section 5a or 7(1) ² and to present written documentation of employment status, contractual relationship, volunteer status, or student status. Written documentation under this subsection may include, but need not be limited to, any of the following:

(a) A W-2 form, pay stub, or written statement by an employer.

(b) A contract.

(c) A student identification card or student transcript.

(6) This section does not apply to an individual whose enrollment and participation at an institution of higher education is solely through the mail or the internet from a remote location.

Credits

P.A.1994, No. 295, § 4a, added by P.A.2002, No. 542, Eff. Oct. 1, 2002. Amended by P.A.2004, No. 237, Eff. Oct. 16, 2004; P.A.2011, No. 17, Eff. July 1, 2011; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.725a.

2 M.C.L.A. § 28.725a or 28.727.

M. C. L. A. 28.724a, MI ST 28.724a

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.725

28.725. Reporting requirements for registered individuals; changes in residence or domicile, employment, enrollment as student, name, vehicle information, electronic mail addresses, internet identifiers, or telephone numbers; registration periods; expunged conviction or adjudication

Effective: March 24, 2021
Currentness

Sec. 5. (1) An individual required to be registered under this act who is a resident of this state shall report in person, or in another manner as prescribed by the department, and notify the registering authority having jurisdiction where his or her residence or domicile is located not more than 3 business days after any of the following occur:

- (a) The individual changes or vacates his or her residence or domicile.
- (b) The individual changes his or her place of employment, or employment is discontinued.
- (c) The individual enrolls as a student with an institution of higher education, or enrollment is discontinued.
- (d) The individual changes his or her name.
- (e) Any change required to be reported under section 4a. ¹

(2) An individual required to be registered under this act who is a resident of this state shall report in the manner prescribed by the department to the registering authority having jurisdiction where his or her residence or domicile is located not more than 3 business days after any of the following occur:

(a) Except as otherwise provided in this subdivision, any change in vehicle information, electronic mail addresses, internet identifiers, or telephone numbers registered to or used by the individual. The requirement to report any change in electronic mail addresses and internet identifiers applies only to an individual required to be registered under this act after July 1, 2011.

(b) The individual intends to temporarily reside at any place other than his or her residence for more than 7 days.

(3) An individual required to be registered under this act, who is not a resident of this state but has his or her place of employment in this state shall report in person and notify the registering authority having jurisdiction where his or her place of employment

is located or the department post of the individual's place of employment not more than 3 business days after the individual changes his or her place of employment or employment is discontinued.

(4) If an individual who is incarcerated in a state correctional facility and is required to be registered under this act is granted parole or is due to be released upon completion of his or her maximum sentence, the department of corrections, before releasing the individual, shall provide notice of the location of the individual's proposed place of residence or domicile to the department of state police.

(5) If an individual who is incarcerated in a county jail and is required to be registered under this act is due to be released from custody, the sheriff's department, before releasing the individual, shall provide notice of the location of the individual's proposed place of residence or domicile to the department of state police.

(6) Not more than 7 days after either of the following occurs, the department of corrections shall notify the local law enforcement agency or sheriff's department having jurisdiction over the area to which the individual is transferred or the department post of the transferred residence or domicile of an individual required to be registered under this act:

(a) The individual is transferred to a community residential program.

(b) The individual is transferred into a level 1 correctional facility of any kind, including a correctional camp or work camp.

(7) An individual required to be registered under this act who is a resident of this state shall report in person and notify the registering authority having jurisdiction where his or her residence or domicile is located not more than 3 business days before he or she changes his or her domicile or residence to another state. The individual shall indicate the new state and, if known, the new address. The department shall update the registration and compilation databases and promptly notify the appropriate law enforcement agency and any applicable sex or child offender registration authority in the new state.

(8) An individual required to be registered under this act, who is a resident of this state, shall report in person and notify the registering authority having jurisdiction where his or her residence or domicile is located not later than 21 days before he or she changes his or her domicile or residence to another country or travels to another country for more than 7 days. The individual shall state the new country of residence or country of travel and the address of his or her new domicile or residence or place of stay, if known. The department shall update the registration and compilation databases and promptly notify the appropriate law enforcement agency and any applicable sex or child offender registration authority.

(9) If the probation or parole of an individual required to be registered under this act is transferred to another state or an individual required to be registered under this act is transferred from a state correctional facility to any correctional facility or probation or parole in another state, the department of corrections shall promptly notify the department and the appropriate law enforcement agency and any applicable sex or child offender registration authority in the new state. The department shall update the registration and compilation databases.

(10) An individual registered under this act shall comply with the verification procedures and proof of residence procedures prescribed in sections 4a and 5a.²

(11) Except as otherwise provided in this section and section 8c,³ a tier I offender shall comply with this section for 15 years.

(12) Except as otherwise provided in this section and section 8c, a tier II offender shall comply with this section for 25 years.

(13) Except as otherwise provided in this section and section 8c, a tier III offender shall comply with this section for life.

(14) The registration periods under this section exclude any period of incarceration for committing a crime and any period of civil commitment.

(15) For an individual who was previously convicted of a listed offense for which he or she was not required to register under this act but who is convicted of any felony on or after July 1, 2011, any period of time that he or she was not incarcerated for that listed offense or that other felony and was not civilly committed counts toward satisfying the registration period for that listed offense as described in this section. If those periods equal or exceed the registration period described in this section, the individual has satisfied his or her registration period for the listed offense and is not required to register under this act. If those periods are less than the registration period described in this section for that listed offense, the individual shall comply with this section for the period of time remaining.

(16) If an individual required to be registered under this act presents an order to the department or the appropriate registering authority that the conviction or adjudication for which the individual is required to be registered under this act has been set aside under 1965 PA 213, MCL 780.621 to 780.624, or has been otherwise expunged, his or her registration under this act must be discontinued. If this subsection applies, the department shall remove the individual from both the law enforcement database and the public internet website maintained under section 8.⁴

Credits

P.A.1994, No. 295, § 5, Eff. Oct. 1, 1995. Amended by P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2005, No. 123, Eff. Jan. 1, 2006; P.A.2005, No. 132, Eff. Jan. 1, 2006; P.A.2006, No. 402, Eff. Dec. 1, 2006; P.A.2011, No. 17, Eff. July 1, 2011; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.724a.

2 M.C.L.A. §§ 28.724a and 28.725a.

3 M.C.L.A. § 28.728c.

4 M.C.L.A. § 28.728.

M. C. L. A. 28.725, MI ST 28.725

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.725a

28.725a. Registration, notification, and verification procedure; reporting schedule;
 registration fee; maintenance of license or identification card; photographs; failure to report

Effective: December 22, 2022

Currentness

Sec. 5a. (1) The department shall mail a notice to each individual registered under this act who is not in a state correctional facility explaining the individual's duties under this act as amended.

(2) Upon the release of an individual registered under this act who is in a state correctional facility, the department of corrections shall provide written notice to that individual explaining his or her duties under this section and this act and the procedure for registration, notification, and verification and payment of the registration fee prescribed under subsection (6) or section 7(1).¹ The individual shall sign and date the notice. The department of corrections shall maintain a copy of the signed and dated notice in the individual's file. The department of corrections shall forward the original notice to the department within 7 days, regardless of whether the individual signs it.

(3) Subject to subsection (4), an individual required to be registered under this act who is not incarcerated shall report in person to the registering authority where he or she is domiciled or resides for verification of domicile or residence as follows:

(a) If the individual is a tier I offender, the individual shall report once each year during the individual's month of birth.

(b) If the individual is a tier II offender, the individual shall report twice each year according to the following schedule:

<u>Birth Month</u>	<u>Reporting Months</u>
January	January and July
February	February and August
March	March and September
April	April and October
May	May and November
June	June and December
July	January and July

August	February and August
September	March and September
October	April and October
November	May and November
December	June and December

(c) If the individual is a tier III offender, the individual shall report 4 times each year according to the following schedule:

<u>Birth Month</u>	<u>Reporting Months</u>
January	January, April, July, and October
February	February, May, August, and November
March	March, June, September, and December
April	April, July, October, and January
May	May, August, November, and February
June	June, September, December, and March
July	July, October, January, and April
August	August, November, February, and May
September	September, December, March, and June
October	October, January, April, and July
November	November, February, May, and August
December	December, March, June, and September

(4) A report under subsection (3) must be made no earlier than the first day or later than the last day of the month in which the individual is required to report. However, if the registration period for that individual expires during the month in which he or she is required to report under this section, the individual shall report during that month on or before the date his or her registration period expires. When an individual reports under subsection (3), the individual shall review all registration information for accuracy.

(5) When an individual reports under subsection (3) an officer or authorized employee of the registering authority shall verify the individual's residence or domicile and any information required to be reported under section 4a.² The officer or authorized employee shall also determine whether the individual's photograph required under this act matches the appearance of the individual sufficiently to properly identify him or her from that photograph. If not, the officer or authorized employee shall require the individual to obtain a current photograph within 7 days under this section. When all of the verification information has been provided, the officer or authorized employee shall review that information with the individual and make any corrections, additions, or deletions the officer or authorized employee determines are necessary based on the review. The officer or authorized

employee shall sign and date a verification receipt. The officer or authorized employee shall give a copy of the signed receipt showing the date of verification to the individual. The officer or authorized employee shall forward verification information to the department in the manner the department prescribes. The department shall revise the law enforcement database and public internet website maintained under section 8³ as necessary and shall indicate verification in the public internet website maintained under section 8(2).

(6) Except as otherwise provided in section 5b,⁴ an individual who reports as prescribed under subsection (3) shall pay a \$50.00 registration fee as follows:

(a) Upon initial registration.

(b) Annually following the year of initial registration. The payment of the registration fee under this subdivision must be made at the time the individual reports in the first reporting month for that individual as set forth in subsection (3) of each year in which the fee applies, unless an individual elects to prepay an annual registration fee for any future year for which an annual registration fee is required. Prepaying any annual registration fee must not change or alter the requirement of an individual to report as set forth in subsection (3). The payment of the registration fee under this subdivision is not required to be made for any registration year that has expired before January 1, 2014 or to be made by any individual initially required to register under this act after January 1, 2027. The registration fee required to be paid under this subdivision must not be prorated on grounds that the individual will complete his or her registration period after the month in which the fee is due.

(c) The sum of the amounts required to be paid under subdivisions (a) and (b) must not exceed \$550.00.

(7) Except as otherwise provided in this subsection, an individual required to be registered under this act shall maintain either a valid operator's or chauffeur's license issued under the Michigan vehicle code, 1949 PA 300, MCL 257.1 to 257.923, or an official state personal identification card issued under 1972 PA 222, MCL 28.291 to 28.300, with the individual's current address. The license or card may be used as proof of domicile or residence under this section. In addition, the officer or authorized employee may require the individual to produce another document bearing his or her name and address, including, but not limited to, voter registration or a utility or other bill. The department may specify other satisfactory proof of domicile or residence. The requirement to maintain a valid operator's or chauffeur's license issued under the Michigan vehicle code, 1949 PA 300, MCL 257.1 to 257.923, or an official state personal identification card issued under 1972 PA 222, MCL 28.291 to 28.300, does not apply to an individual required to be registered under this act who is homeless. As used in this subsection, "homeless" means someone who lacks a fixed or temporary residence.

(8) An individual registered under this act who is incarcerated shall report to the secretary of state under this subsection not more than 7 days after he or she is released to have his or her digitalized photograph taken. The individual is not required to report under this subsection if he or she had a digitized photograph taken for an operator's or chauffeur's license or official state personal identification card before January 1, 2000, or within 2 years before he or she is released unless his or her appearance has changed from the date of that photograph. Unless the person is a nonresident, the photograph must be used on the individual's operator's or chauffeur's license or official state personal identification card. The individual shall have a new photograph taken when he or she renews the license or identification card as provided by law, or as otherwise provided in this act. The secretary of state shall make the digitized photograph available to the department for a registration under this act.

(9) If an individual does not report under this section or under section 4a, the department shall notify all registering authorities as provided in section 8a⁵ and initiate enforcement action as set forth in that section.

(10) The department shall prescribe the form for the notices and verification procedures required under this section.

Credits

P.A.1994, No. 295, § 5a, added by P.A.1999, No. 85, Eff. Sept. 1, 1999. Amended by P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 237, Eff. Oct. 16, 2004; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2005, No. 322, Eff. Jan. 1, 2006; P.A.2011, No. 17, Imd. Eff. April 12, 2011; P.A.2013, No. 149, Eff. April 1, 2014; P.A.2019, No. 82, Imd. Eff. Sept. 30, 2019; P.A.2020, No. 295, Eff. March 24, 2021; P.A.2022, No. 272, Imd. Eff. Dec. 22, 2022.

Footnotes

1 M.C.L.A. § 28.727.

2 M.C.L.A. § 28.724a.

3 M.C.L.A. § 28.728.

4 M.C.L.A. § 28.725b.

5 M.C.L.A. § 28.728a.

M. C. L. A. 28.725a, MI ST 28.725a

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.725b

28.725b. Disposition of registration fee; sex offenders registration fund; waiver or payment of fee

Effective: October 15, 2020

Currentness

Sec. 5b. (1) Of the money collected by a court, local law enforcement agency, sheriff's department, or department post from each registration fee prescribed under this act, \$30.00 must be forwarded to the department, which shall deposit the money in the sex offenders registration fund created under subsection (2), and \$20.00 must be retained by the court, local law enforcement agency, sheriff's department, or department post.

(2) The sex offenders registration fund is created as a separate fund in the department of treasury. The state treasurer shall credit the money received from the payment of the registration fee prescribed under this act to the sex offenders registration fund. Money credited to the fund must only be used by the department for training concerning, and the maintenance and automation of, the law enforcement database, public internet website, information required under section 8,¹ or notification and offender registration duties under section 4a.² Except as otherwise provided in this section, money in the sex offenders registration fund at the close of the fiscal year must remain in the fund and must not lapse to the general fund.

(3) If an individual required to pay a registration fee under this act is indigent, the registration fee is waived for a period of 90 days. The burden is on the individual claiming indigence to prove the fact of indigence to the satisfaction of the local law enforcement agency, sheriff's department, or department post where the individual is reporting.

(4) Payment of the registration fee prescribed under this act must be made in the form and by means prescribed by the department. Upon payment of the registration fee prescribed under this act, the officer or employee shall forward verification of the payment to the department in the manner the department prescribes. The department shall revise the law enforcement database and public internet website maintained under section 8 as necessary and indicate verification of payment in the law enforcement database under section 8(1).

(5) For the fiscal year ending September 30, 2020 only, \$3,400,000.00 of the money in the sex offenders registration fund is transferred to and must be deposited into the general fund.

Credits

P.A.1994, No. 295, § 5b, added by P.A.2004, No. 237, Eff. Oct. 16, 2004. Amended by P.A.2011, No. 17, Eff. July 1, 2011; P.A.2020, No. 202, Imd. Eff. Oct. 15, 2020.

Footnotes

1 M.C.L.A. § 28.728.

2 M.C.L.A. § 28.724a.

M. C. L. A. 28.725b, MI ST 28.725b

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.725c

28.725c. Collection of fees by department of corrections

Currentness

Sec. 5c. The department of corrections shall not collect any fee prescribed under this act.

Credits

P.A.1994, No. 295, § 5c, added by P.A.2004, No. 237, Eff. Oct. 16, 2004.

M. C. L. A. 28.725c, MI ST 28.725c

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.726

28.726. Copy and notice of registration or notification; duties of officer, court, or agency

Effective: July 1, 2011

Currentness

Sec. 6. (1) The officer, court, or agency registering an individual or receiving or accepting a registration under section 4¹ or receiving notice under section 5(1)² shall provide the individual with a copy of the registration or notification at the time of registration or notice.

(2) The officer, court, or agency registering an individual or receiving or accepting a registration under section 4 or notified of an address change under section 5(1) shall forward the registration or notification to the department in a manner prescribed by the department immediately after registration or notification.

Credits

P.A.1994, No. 295, § 6, Eff. Oct. 1, 1995. Amended by P.A.1996, No. 494, § 1, Eff. April 1, 1997; P.A.2011, No. 18, Eff. July 1, 2011.

Footnotes

1 M.C.L.A. § 28.724.

2 M.C.L.A. § 28.725.

M. C. L. A. 28.726, MI ST 28.726

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.727

28.727. Registration; information and content requirements; registration fee; notification of duties; execution of registration and notice; false or misleading information; forms; duties of department

Effective: March 24, 2021

Currentness

Sec. 7. (1) Registration information obtained under this act must be forwarded to the department in the format the department prescribes. Except as provided in section 5b(3),¹ a \$50.00 registration fee must accompany each original registration. All of the following information must be obtained or otherwise provided for registration purposes:

(a) The individual's legal name and any aliases, nicknames, ethnic or tribal names, or other names by which the individual is or has been known. An individual who is in a witness protection and relocation program is only required to use the name and identifying information reflecting his or her new identity in a registration under this act. The registration and compilation databases must not contain any information identifying the individual's prior identity or locale.

(b) The individual's Social Security number and any Social Security numbers or alleged Social Security numbers previously used by the individual.

(c) The individual's date of birth and any alleged dates of birth previously used by the individual.

(d) The address where the individual resides or will reside. If the individual does not have a residential address, information under this subsection must identify the location or area used or to be used by the individual in lieu of a residence or, if the individual is homeless, the village, city, or township where the person spends or will spend the majority of his or her time.

(e) The name and address of any place of temporary lodging used or to be used by the individual during any period in which the individual is away, or is expected to be away, from his or her residence for more than 7 days. Information under this subdivision must include the dates the lodging is used or to be used.

(f) The name and address of each of the individual's employers. For purposes of this subdivision, "employer" includes a contractor and any individual who has agreed to hire or contract with the individual for his or her services. Information under this subsection must include the address or location of employment if different from the address of the employer. If the individual lacks a fixed employment location, the information obtained under this subdivision must include the general areas where the individual works and the normal travel routes taken by the individual in the course of his or her employment.

(g) The name and address of any school being attended by the individual and any school that has accepted the individual as a student that he or she plans to attend. For purposes of this subdivision, "school" means a public or private postsecondary school or school of higher education, including a trade school.

(h) All telephone numbers registered to the individual or used by the individual, including, but not limited to, residential, work, and mobile telephone numbers.

(i) Except as otherwise provided in this subdivision, all electronic mail addresses and internet identifiers registered to or used by the individual. This subdivision applies only to an individual required to be registered under this act after July 1, 2011.

(j) The license plate number and description of any vehicle owned or operated by the individual.

(k) The individual's driver license number or state personal identification card number.

(l) A digital copy of the individual's passport and other immigration documents.

(m) The individual's occupational and professional licensing information, including any license that authorizes the individual to engage in any occupation, profession, trade, or business.

(n) A brief summary of the individual's convictions for listed offenses regardless of when the conviction occurred, including where the offense occurred and the original charge if the conviction was for a lesser offense.

(o) A complete physical description of the individual.

(p) The photograph required under section 5a.²

(q) The individual's fingerprints if not already on file with the department and the individual's palm prints. An individual required to be registered under this act shall have his or her fingerprints or palm prints or both taken not later than September 12, 2011 if his or her fingerprints or palm prints are not already on file with the department. The department shall forward a copy of the individual's fingerprints and palm prints to the Federal Bureau of Investigation if not already on file with that bureau.

(r) Information that is required to be reported under section 4a.³

(2) A registration must contain all of the following:

(a) An electronic copy of the offender's Michigan driver license or Michigan personal identification card, including the photograph required under this act.

- (b) The text of the provision of law that defines the criminal offense for which the sex offender is registered.
 - (c) Any outstanding arrest warrant information.
 - (d) The individual's tier classification.
 - (e) An identifier that indicates whether a DNA sample has been collected and any resulting DNA profile has been entered into the federal combined DNA index system (CODIS).
 - (f) The individual's complete criminal history record, including the dates of all arrests and convictions.
 - (g) The individual's Michigan department of corrections number and status of parole, probation, or supervised release.
 - (h) The individual's Federal Bureau of Investigation number.
- (3) The form used for notification of duties under this act must contain a written statement that explains the duty of the individual being registered to provide notice of changes in his or her registration information, the procedures for providing that notice, and the verification procedures under section 5a.
- (4) The individual shall sign a registration and notice. However, the registration and notice must be forwarded to the department regardless of whether the individual signs it or pays the registration fee required under subsection (1).
- (5) The officer, court, or an employee of the agency registering the individual or receiving or accepting a registration under section 4⁴ shall sign the registration form.
- (6) An individual shall not knowingly provide false or misleading information concerning a registration, notice, or verification.
- (7) The department shall prescribe the form for a notification required under section 5⁵ and the format for forwarding the notification to the department.
- (8) The department shall promptly provide registration, notice, and verification information to the Federal Bureau of Investigation and to local law enforcement agencies, sheriff's departments, department posts, and other registering jurisdictions, as provided by law.

Credits

P.A.1994, No. 295, § 7, Eff. Oct. 1, 1995. Amended by P.A.1996, No. 494, § 1, Eff. April 1, 1997; P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 237, Eff. Oct. 16, 2004; P.A.2011, No. 18, Eff. July 1, 2011; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.725b.

2 M.C.L.A. § 28.725a.

3 M.C.L.A. § 28.724a.

4 M.C.L.A. § 28.724.

5 M.C.L.A. § 28.725.

M. C. L. A. 28.727, MI ST 28.727

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Sex Offenders Registration Act (Refs & Annos)
II Sex Offender Registration (Refs & Annos)

M.C.L.A. 28.728

28.728. Law enforcement database of registrations and notices; contents; public internet website; availability; removal

Effective: March 24, 2021

Currentness

Sec. 8. (1) The department shall maintain a computerized law enforcement database of registrations and notices required under this act. The law enforcement database must contain all of the following information for each individual registered under this act:

- (a) The individual's legal name and any aliases, nicknames, ethnic or tribal names, or other names by which the individual is or has been known.
- (b) The individual's Social Security number and any Social Security numbers or alleged Social Security numbers previously used by the individual.
- (c) The individual's date of birth and any alleged dates of birth previously used by the individual.
- (d) The address where the individual resides or will reside. If the individual does not have a residential address, information under this subsection must identify the location or area used or to be used by the individual in lieu of a residence or, if the individual is homeless, the village, city, or township where the individual spends or will spend the majority of his or her time.
- (e) The name and address of any place of temporary lodging used or to be used by the individual during any period in which the individual is away, or is expected to be away, from his or her residence for more than 7 days. Information under this subdivision must include the dates the lodging is used or to be used.
- (f) The name and address of each of the individual's employers. For purposes of this subdivision, "employer" includes a contractor and any individual who has agreed to hire or contract with the individual for his or her services. Information under this subsection must include the address or location of employment if different from the address of the employer.
- (g) The name and address of any school being attended by the individual and any school that has accepted the individual as a student that he or she plans to attend. For purposes of this subdivision, "school" means a public or private postsecondary school or school of higher education, including a trade school.
- (h) All telephone numbers registered to the individual or used by the individual, including, but not limited to, residential, work, and mobile telephone numbers.

- (i) Except as otherwise provided in this subdivision, all electronic mail addresses and internet identifiers registered to or used by the individual. This subdivision applies only to an individual required to be registered under this act after July 1, 2011.
- (j) The license plate number and description of any vehicle owned or operated by the individual.
- (k) The individual's driver license number or state personal identification card number.
- (l) A digital copy of the individual's passport and other immigration documents.
- (m) The individual's occupational and professional licensing information, including any license that authorizes the individual to engage in any occupation, profession, trade, or business.
- (n) A brief summary of the individual's convictions for listed offenses regardless of when the conviction occurred, including where the offense occurred and the original charge if the conviction was for a lesser offense.
- (o) A complete physical description of the individual.
- (p) The photograph required under section 5a.¹
- (q) The individual's fingerprints and palm prints.
- (r) An electronic copy of the offender's Michigan driver license or Michigan personal identification card, including the photograph required under this act.
- (s) The text of the provision of law that defines the criminal offense for which the sex offender is registered.
- (t) Any outstanding arrest warrant information.
- (u) The individual's tier classification and registration status.
- (v) An identifier that indicates whether a DNA sample has been collected and any resulting DNA profile has been entered into the federal combined DNA index system (CODIS).
- (w) The individual's complete criminal history record, including the dates of all arrests and convictions.
- (x) The individual's Michigan department of corrections number and the status of his or her parole, probation, or release.

(y) The individual's Federal Bureau of Investigation number.

(2) The department shall maintain a public internet website separate from the law enforcement database described in subsection (1) to implement section 10(2) and (3).² Except as provided in subsection (4), the public internet website must contain all of the following information for each individual registered under this act:

(a) The individual's legal name and any aliases, nicknames, ethnic or tribal names, or other names by which the individual is or has been known.

(b) The individual's date of birth.

(c) The address where the individual resides. If the individual does not have a residential address, information under this subsection must identify the village, city, or township used by the individual in lieu of a residence.

(d) The address of each of the individual's employers. For purposes of this subdivision, "employer" includes a contractor and any individual who has agreed to hire or contract with the individual for his or her services. Information under this subsection must include the address or location of employment if different from the address of the employer.

(e) The address of any school being attended by the individual and any school that has accepted the individual as a student that he or she plans to attend. For purposes of this subdivision, "school" means a public or private postsecondary school or school of higher education, including a trade school.

(f) The license plate number and description of any vehicle owned or operated by the individual.

(g) A brief summary of the individual's convictions for listed offenses regardless of when the conviction occurred.

(h) A complete physical description of the individual.

(i) The photograph required under this act. If no photograph is available, the department shall use an arrest photograph or Michigan department of corrections photograph until a photograph as prescribed in section 5a becomes available.

(j) The text of the provision of law that defines the criminal offense for which the sex offender is registered.

(k) The individual's registration status.

(3) The following information must not be made available on the public internet website described in subsection (2):

(a) The identity of any victim of the offense.

(b) The individual's Social Security number.

(c) Any arrests not resulting in a conviction.

(d) Any travel or immigration document numbers.

(e) The individual's tier classification.

(f) The individual's driver license number or state personal identification card number.

(4) The public internet website described in subsection (2) must not include the following individuals:

(a) An individual registered solely because he or she had 1 or more dispositions for a listed offense entered under section 18 of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.18, in a case that was not designated as a case in which the individual was to be tried in the same manner as an adult under section 2d of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.2d.

(b) An individual registered solely because he or she was the subject of an order of disposition or other adjudication in a juvenile matter in another state or country.

(c) An individual registered solely because he or she was convicted of a single tier I offense, other than an individual who was convicted of a violation of any of the following:

(i) Section 145c(4) of the Michigan penal code, 1931 PA 328, MCL 750.145c.

(ii) A violation of section 335a(2)(b) of the Michigan penal code, 1931 PA 328, MCL 750.335a, if a victim is a minor.

(iii) Section 349b of the Michigan penal code, 1931 PA 328, MCL 750.349b, if the victim is a minor.

(iv) Section 539j of the Michigan penal code, 1931 PA 328, MCL 750.539j, if a victim is a minor.

(v) An offense substantially similar to an offense described in subparagraphs (i) to (iv) under a law of the United States that is specifically enumerated in 42 USC 16911, under a law of any state or any country, or under tribal or military law.

(5) The compilation of individuals must be indexed alphabetically by village, city, township, and county, numerically by zip code area, and geographically as determined appropriate by the department.

(6) The department shall update the public internet website with new registrations, deletions from registrations, and address changes at the same time those changes are made to the law enforcement database described in subsection (1). The department shall make the law enforcement database available to each department post, local law enforcement agency, and sheriff's department by the law enforcement information network. Upon request by a department post, local law enforcement agency, or sheriff's department, the department shall provide to that post, agency, or sheriff's department the information from the law enforcement database in printed form for the designated areas located in whole or in part within the post's, agency's, or sheriff's department's jurisdiction. The department shall provide the ability to conduct a computerized search of the law enforcement database and the public internet website based upon the name and campus location of an institution of higher education.

(7) The department shall make the law enforcement database available to a department post, local law enforcement agency, or sheriff's department by electronic, computerized, or other similar means accessible to the post, agency, or sheriff's department. The department shall make the public internet website available to the public by electronic, computerized, or other similar means accessible to the public. The electronic, computerized, or other similar means shall provide for a search by name, village, city, township, and county designation, zip code, and geographical area.

(8) If a court determines that the public availability under section 10 of any information concerning individuals registered under this act violates the constitution of the United States or this state, the department shall revise the public internet website described in subsection (2) so that it does not contain that information.

(9) If the department determines that an individual has completed his or her registration period, including a registration period reduced by law under 2011 PA 18, or that he or she otherwise is no longer required to register under this act, the department shall remove the individual's registration information from both the law enforcement database and the public internet website within 7 days after making that determination.

Credits

P.A.1994, No. 295, § 8, Eff. Oct. 1, 1995. Amended by P.A.1996, No. 494, § 1, Eff. April 1, 1997; P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 238, Eff. May 1, 2005; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2011, No. 18, Eff. July 1, 2011; P.A.2013, No. 2, Eff. June 1, 2013; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.725a.

2 M.C.L.A. § 28.730.

M. C. L. A. 28.728, MI ST 28.728

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.728a

28.728a. Failure to register or update registration information; duties of registering authority and department

Effective: July 1, 2011

Currentness

Sec. 8a. (1) If an individual fails to register or to update his or her registration information as required under this act, the local law enforcement agency, sheriff's office, or department post responsible for registering the individual or for verifying and updating his or her registration information shall do all of the following immediately after the date the individual was required to register or to update his or her registration information:

- (a) Determine whether the individual has absconded or is otherwise unlocatable.
 - (b) If the registering authority was notified by a registration jurisdiction that the individual was to appear in order to register or update his or her registration information in the jurisdiction of the registering authority, notify the department in a manner prescribed by the department that the individual failed to appear as required.
 - (c) Revise the information in the registry to reflect that the individual has absconded or is otherwise unlocatable.
 - (d) Seek a warrant for the individual's arrest if the legal requirements for obtaining a warrant are satisfied.
 - (e) Enter the individual into the national crime information center wanted person file if the requirements for entering information into that file are met.
- (2) If an individual fails to register or to update his or her registration information as required under this act, the department shall do all of the following immediately after being notified by the registering authority that the individual failed to appear as required:
- (a) Notify that other registration jurisdiction that the individual failed to appear as required.
 - (b) Notify the United States marshal's service in the manner required by the United States marshal's service of the individual's failure to appear as required.
 - (c) Update the national sex offender registry to reflect the individual's status as an absconder or as unlocatable.

Credits

P.A.1994, No. 295, § 8a, added by P.A.2011, No. 18, Eff. July 1, 2011.

M. C. L. A. 28.728a, MI ST 28.728a

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.728c

28.728c. Petition to discontinue registration; eligibility; procedure; powers and duties of court

Effective: July 1, 2011

Currentness

Sec. 8c. (1) An individual classified as a tier I offender who meets the requirements of subsection (12) may petition the court under that subsection for an order allowing him or her to discontinue registration under this act.

(2) An individual classified as a tier III offender who meets the requirements of subsection (13) may petition the court under that subsection for an order allowing him or her to discontinue registration under this act.

(3) An individual classified as a tier I, tier II, or tier III offender who meets the requirements of subsection (14) or (15) may petition the court under that subsection for an order allowing him or her to discontinue registration under this act.

(4) This section is the sole means by which an individual may obtain judicial review of his or her registration requirements under this act. This subsection does not prohibit an appeal of the conviction or sentence as otherwise provided by law or court rule. A petition filed under this section shall be filed in the court in which the individual was convicted of committing the listed offense. However, if the conviction occurred in another state or country and the individual is a resident of this state, the individual may file a petition in the circuit court in the county of his or her residence for an order allowing him or her to discontinue registration under this act only. A petition shall not be filed under this section if a previous petition was filed under this section and was denied by the court after a hearing.

(5) A petition filed under this section shall be made under oath and shall contain all of the following:

(a) The name and address of the petitioner.

(b) A statement identifying the offense for which discontinuation from registration is being requested.

(c) A statement of whether the individual was previously convicted of a listed offense for which registration is required under this act.

(6) An individual who knowingly makes a false statement in a petition filed under this section is guilty of perjury as proscribed under section 423 of the Michigan penal code, 1931 PA 328, MCL 750.423.

(7) A copy of the petition shall be filed with the office of the prosecuting attorney that prosecuted the case against the individual or, for a conviction that occurred in another state or country, the prosecuting attorney for the county of his or her residence, at least 30 days before a hearing is held on the petition. The prosecuting attorney may appear and participate in all proceedings regarding the petition and may seek appellate review of any decision on the petition.

(8) If the name of the victim of the offense is known by the prosecuting attorney, the prosecuting attorney shall provide the victim with written notice that a petition has been filed and shall provide the victim with a copy of the petition. The notice shall be sent by first-class mail to the victim's last known address. The petition shall include a statement of the victim's rights under subsection (10).

(9) If an individual properly files a petition with the court under this section, the court shall conduct a hearing on the petition as provided in this section.

(10) The victim has the right to attend all proceedings under this section and to make a written or oral statement to the court before any decision regarding the petition is made. A victim shall not be required to appear at any proceeding under this section against his or her will.

(11) The court shall consider all of the following in determining whether to allow the individual to discontinue registration under subsection (12) or (13) but shall not grant the petition if the court determines that the individual is a continuing threat to the public:

(a) The individual's age and level of maturity at the time of the offense.

(b) The victim's age and level of maturity at the time of the offense.

(c) The nature of the offense.

(d) The severity of the offense.

(e) The individual's prior juvenile or criminal history.

(f) The individual's likelihood to commit further listed offenses.

(g) Any impact statement submitted by the victim under the William Van Regenmorter crime victim's rights act, 1985 PA 87, MCL 780.751 to 780.834, or under this section.

(h) Any other information considered relevant by the court.

(12) The court may grant a petition properly filed by an individual under subsection (1) if all of the following apply:

(a) Ten or more years have elapsed since the date of his or her conviction for the listed offense or from his or her release from any period of confinement for that offense, whichever occurred last.

(b) The petitioner has not been convicted of any felony since the date described in subdivision (a).

(c) The petitioner has not been convicted of any listed offense since the date described in subdivision (a).

(d) The petitioner successfully completed his or her assigned periods of supervised release, probation, or parole without revocation at any time of that supervised release, probation, or parole.

(e) The petitioner successfully completed a sex offender treatment program certified by the United States attorney general under 42 USC 16915(b)(1), or another appropriate sex offender treatment program. The court may waive the requirements of this subdivision if successfully completing a sex offender treatment program was not a condition of the petitioner's confinement, release, probation, or parole.

(13) The court may grant a petition properly filed by an individual under subsection (2) if all of the following apply:

(a) The petitioner is required to register based on an order of disposition entered under section 18 of chapter XIA of the probate code of 1939, 1939 PA 288, MCL 712A.18, that is open to the general public under section 28 of chapter XIA of the probate code of 1939, 1939 PA 288, MCL 712A.28.

(b) Twenty-five or more years have elapsed since the date of his or her adjudication for the listed offense or from his or her release from any period of confinement for that offense, whichever occurred last.

(c) The petitioner has not been convicted of any felony since the date described in subdivision (b).

(d) The petitioner has not been convicted of any listed offense since the date described in subdivision (b).

(e) The petitioner successfully completed his or her assigned periods of supervised release, probation, or parole without revocation at any time of that supervised release, probation, or parole.

(f) The court determines that the petitioner successfully completed a sex offender treatment program certified by the United States attorney general under 42 USC 16915(b)(1), or another appropriate sex offender treatment program. The court may waive the requirements of this subdivision if successfully completing a sex offender treatment program was not a condition of the petitioner's confinement, release, probation, or parole.

(14) The court shall grant a petition properly filed by an individual under subsection (3) if the court determines that the conviction for the listed offense was the result of a consensual sexual act between the petitioner and the victim and any of the following apply:

(a) All of the following:

(i) The victim was 13 years of age or older but less than 16 years of age at the time of the offense.

(ii) The petitioner is not more than 4 years older than the victim.

(b) All of the following:

(i) The individual was convicted of a violation of section 158, 338, 338a, or 338b of the Michigan penal code, 1931 PA 328, MCL 750.158, 750.338, 750.338a, and 750.338b.

(ii) The victim was 13 years of age or older but less than 16 years of age at the time of the violation.

(iii) The individual is not more than 4 years older than the victim.

(c) All of the following:

(i) The individual was convicted of a violation of section 158, 338, 338a, 338b, or 520c(1)(i) of the Michigan penal code, 1931 PA 328, MCL 750.158, 750.338, 750.338a, 750.338b, and 750.520c.

(ii) The victim was 16 years of age or older at the time of the violation.

(iii) The victim was not under the custodial authority of the individual at the time of the violation.

(15) The court shall grant a petition properly filed by an individual under subsection (3) if either of the following applies:

(a) Both of the following:

(i) The petitioner was adjudicated as a juvenile.

(ii) The petitioner was less than 14 years of age at the time of the offense.

(b) The individual was registered under this act before July 1, 2011 for an offense that required registration but for which registration is not required on or after July 1, 2011.

Credits

P.A.1994, No. 295, § 8c, added by P.A.2004, No. 240, Eff. Oct. 1, 2004. Amended by P.A.2011, No. 18, Eff. July 1, 2011.

M. C. L. A. 28.728c, MI ST 28.728c

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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M.C.L.A. 28.728d

28.728d. Removal of registration from law enforcement database

Effective: July 1, 2011

Currentness

Sec. 8d. If the court grants a petition filed under section 8c,¹ the court shall promptly provide a copy of that order to the department and to the individual. The department shall promptly remove an individual's registration from the database maintained under section 8(1).²

Credits

P.A.1994, No. 295, § 8d, added by P.A.2004, No. 240, Eff. Oct. 1, 2004. Amended by P.A.2011, No. 18, Eff. July 1, 2011.

Footnotes

1 M.C.L.A. § 28.728c.

2 M.C.L.A. § 28.728.

M. C. L. A. 28.728d, MI ST 28.728d

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M.C.L.A. 28.729

28.729. Violations; penalties

Effective: March 24, 2021

Currentness

Sec. 9. (1) Except as provided in subsections (2), (3), and (4), an individual required to be registered under this act who willfully violates this act is guilty of a felony punishable as follows:

(a) If the individual has no prior convictions for a violation of this act, by imprisonment for not more than 4 years or a fine of not more than \$2,000.00, or both.

(b) If the individual has 1 prior conviction for a violation of this act, by imprisonment for not more than 7 years or a fine of not more than \$5,000.00, or both.

(c) If the individual has 2 or more prior convictions for violations of this act, by imprisonment for not more than 10 years or a fine of not more than \$10,000.00, or both.

(2) An individual who willfully fails to comply with section 5a,¹ other than payment of the fee required under section 5a(6), is guilty of a misdemeanor punishable by imprisonment for not more than 2 years or a fine of not more than \$2,000.00, or both.

(3) An individual who willfully fails to sign a registration and notice as provided in section 7(4)² is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than \$1,000.00, or both.

(4) An individual who willfully refuses or fails to pay the registration fee prescribed in section 5a(6) or 7(1) within 90 days of the date the individual reports under section 4a or 5a³ is guilty of a misdemeanor punishable by imprisonment for not more than 90 days.

(5) The court shall revoke the probation of an individual placed on probation who willfully violates this act.

(6) The court shall revoke the youthful trainee status of an individual assigned to youthful trainee status who willfully violates this act.

(7) The parole board shall rescind the parole of an individual released on parole who willfully violates this act.

(8) An individual's failure to register as required by this act or a violation of section 5⁴ may be prosecuted in the judicial district of any of the following:

(a) The individual's last registered address or residence.

(b) The individual's actual address or residence.

(c) Where the individual was arrested for the violation.

Credits

P.A.1994, No. 295, § 9, Eff. Oct. 1, 1995. Amended by P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 237, Eff. Oct. 16, 2004; P.A.2005, No. 132, Eff. Jan. 1, 2006; P.A.2011, No. 18, Eff. July 1, 2011; P.A.2020, No. 295, Eff. March 24, 2021.

Footnotes

1 M.C.L.A. § 28.725a.

2 M.C.L.A. § 28.727.

3 M.C.L.A. § 28.724a or 28.725a.

4 M.C.L.A. § 28.725.

M. C. L. A. 28.729, MI ST 28.729

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Michigan Compiled Laws Annotated
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M.C.L.A. 28.730

28.730. Confidentiality of registration or report; inspection and disclosure of
information; notification of public by subscription; penalties and remedies

Effective: July 1, 2011

Currentness

Sec. 10. (1) Except as provided in this act, a registration or report is confidential and information from that registration or report shall not be open to inspection except for law enforcement purposes. The registration or report and all included materials and information are exempt from disclosure under section 13 of the freedom of information act, 1976 PA 442, MCL 15.243.

(2) A department post, local law enforcement agency, or sheriff's department shall make information from the public internet website described in section 8(2)¹ for the designated areas located in whole or in part within the post's, agency's, or sheriff's department's jurisdiction available for public inspection during regular business hours. A department post, local law enforcement agency, or sheriff's department is not required to make a copy of the information for a member of the public.

(3) The department may make information from the public internet website described in section 8(2) available to the public through electronic, computerized, or other accessible means. The department shall provide for notification by electronic or computerized means to any member of the public who has subscribed in a manner required by the department when an individual who is the subject of the public internet website described in section 8(2) initially registers under this act, or changes his or her registration under this act, to a location that is in a designated area or geographic radius designated by the subscribing member of the public.

(4) Except as provided in this act, an individual other than the registrant who knows of a registration or report under this act and who divulges, uses, or publishes nonpublic information concerning the registration or report in violation of this act is guilty of a misdemeanor punishable by imprisonment for not more than 93 days or a fine of not more than \$1,000.00, or both.

(5) An individual whose registration or report is revealed in violation of this act has a civil cause of action against the responsible party for treble damages.

(6) Subsections (4) and (5) do not apply to the public internet website described in section 8(2) or information from that public internet website that is provided or made available under section 8(2) or under subsection (2) or (3).

Credits

P.A.1994, No. 295, § 10, Eff. Oct. 1, 1995. Amended by P.A.1996, No. 494, § 1, Eff. April 1, 1997; P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2006, No. 46, Eff. Jan. 1, 2007; P.A.2011, No. 18, Eff. July 1, 2011.

Footnotes

1 M.C.L.A. § 28.728.

M. C. L. A. 28.730, MI ST 28.730

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act
I General

M.C.L.A. Ch. 28, Refs & Annos
Currentness

M. C. L. A. Ch. 28, Refs & Annos, MI ST Ch. 28, Refs & Annos
The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act (Refs & Annos)
I General (Refs & Annos)

M.C.L.A. 28.721

28.721. Short title

Currentness

Sec. 1. This act shall be known and may be cited as the “sex offenders registration act”.

Credits

P.A.1994, No. 295, § 1, Eff. Oct. 1, 1995.

M. C. L. A. 28.721, MI ST 28.721

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act (Refs & Annos)
I General (Refs & Annos)

M.C.L.A. 28.721a

28.721a. Legislative declarations; purpose of registration requirements

Currentness

Sec. 1a. The legislature declares that the sex offenders registration act was enacted pursuant to the legislature's exercise of the police power of the state with the intent to better assist law enforcement officers and the people of this state in preventing and protecting against the commission of future criminal sexual acts by convicted sex offenders. The legislature has determined that a person who has been convicted of committing an offense covered by this act poses a potential serious menace and danger to the health, safety, morals, and welfare of the people, and particularly the children, of this state. The registration requirements of this act are intended to provide law enforcement and the people of this state with an appropriate, comprehensive, and effective means to monitor those persons who pose such a potential danger.

Credits

P.A.1994, No. 295, § 1a, added by P.A.2002, No. 542, Eff. Oct. 1, 2002.

M. C. L. A. 28.721a, MI ST 28.721a

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Michigan Compiled Laws Annotated
Chapter 28. Michigan State Police
Sex Offenders Registration Act (Refs & Annos)
I General (Refs & Annos)

M.C.L.A. 28.722

28.722. Definitions

Effective: October 6, 2024

Currentness

Sec. 2. As used in this act:

(a) “Convicted” means 1 of the following:

(i) Having a judgment of conviction or a probation order entered in any court having jurisdiction over criminal offenses, including, but not limited to, a tribal court or a military court. Convicted does not include a conviction that was subsequently set aside under 1965 PA 213, MCL 780.621 to 780.624, or otherwise expunged.

(ii) Except as otherwise provided in this subparagraph, being assigned to youthful trainee status under sections 11 to 15 of chapter II of the code of criminal procedure, 1927 PA 175, MCL 762.11 to 762.15, before October 1, 2004. An individual who is assigned to and successfully completes a term of supervision under sections 11 to 15 of chapter II of the code of criminal procedure, 1927 PA 175, MCL 762.11 to 762.15, is not convicted for purposes of this act. This subparagraph does not apply if a petition was granted under section 8c¹ at any time allowing the individual to discontinue registration under this act, including a reduced registration period that extends to or past July 1, 2011, regardless of the tier designation that would apply on and after that date.

(iii) Having an order of disposition entered under section 18 of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.18, that is open to the general public under section 28 of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.28, if both of the following apply:

(A) The individual was 14 years of age or older at the time of the offense.

(B) The order of disposition is for the commission of an offense that would classify the individual as a tier III offender.

(iv) Having an order of disposition or other adjudication in a juvenile matter in another state or country if both of the following apply:

(A) The individual is 14 years of age or older at the time of the offense.

(B) The order of disposition or other adjudication is for the commission of an offense that would classify the individual as a tier III offender.

(b) “Custodial authority” means 1 or more of the following apply:

(i) The actor was a member of the same household as the victim.

(ii) The actor was related to the victim by blood or affinity to the fourth degree.

(iii) The actor was in a position of authority over the victim and used this authority to coerce the victim to submit.

(iv) The actor was a teacher, substitute teacher, or administrator of the public school, nonpublic school, school district, or intermediate school district in which that other person was enrolled.

(v) The actor was an employee or a contractual service provider of the public school, nonpublic school, school district, or intermediate school district in which that other person was enrolled, or was a volunteer who was not a student in any public school or nonpublic school, or was an employee of this state or of a local unit of government of this state or of the United States assigned to provide any service to that public school, nonpublic school, school district, or intermediate school district, and the actor used the actor's employee, contractual, or volunteer status to gain access to, or to establish a relationship with, that other person.

(vi) That other person was under the jurisdiction of the department of corrections and the actor was an employee or a contractual employee of, or a volunteer with, the department of corrections who knew that the other person was under the jurisdiction of the department of corrections and used the actor's position of authority over the victim to gain access to or to coerce or otherwise encourage the victim to engage in sexual contact.

(vii) That other person was under the jurisdiction of the department of corrections and the actor was an employee or a contractual employee of, or a volunteer with, a private vendor that operated a youth correctional facility under section 20g of the corrections code of 1953, 1953 PA 232, MCL 791.220g, who knew that the other person was under the jurisdiction of the department of corrections.

(viii) That other person was a prisoner or probationer under the jurisdiction of a county for purposes of imprisonment or a work program or other probationary program and the actor was an employee or a contractual employee of, or a volunteer with, the county or the department of corrections who knew that the other person was under the county's jurisdiction and used the actor's position of authority over the victim to gain access to or to coerce or otherwise encourage the victim to engage in sexual contact.

(ix) The actor knew or had reason to know that a court had detained the victim in a facility while the victim was awaiting a trial or hearing, or committed the victim to a facility as a result of the victim having been found responsible for committing an act that would be a crime if committed by an adult, and the actor was an employee or contractual employee of, or a volunteer with, the facility in which the victim was detained or to which the victim was committed.

- (c) “Department” means the department of state police.
- (d) “Employee” means an individual who is self-employed or works for any other entity as a full-time or part-time employee, contractual provider, or volunteer, regardless of whether the individual is financially compensated.
- (e) “Felony” means that term as defined in section 1 of chapter I of the code of criminal procedure, 1927 PA 174, MCL 761.1.
- (f) “Indigent” means an individual to whom 1 or more of the following apply:
 - (i) The individual has been found by a court to be indigent within the last 6 months.
 - (ii) The individual qualifies for and receives assistance from the department of health and human services food assistance program.
 - (iii) The individual demonstrates an annual income below the current federal poverty guidelines.
- (g) “Internet identifier” means all designations used for self-identification or routing in internet communications or posting.
- (h) “Institution of higher education” means 1 or more of the following:
 - (i) A public or private community college, college, or university.
 - (ii) A public or private trade, vocational, or occupational school.
- (i) “Listed offense” means a tier I, tier II, or tier III offense.
- (j) “Local law enforcement agency” means the police department of a municipality.
- (k) “Minor” means a victim of a listed offense who was less than 18 years of age at the time the offense was committed.
- (l) “Municipality” means a city, village, or township of this state.
- (m) “Registering authority” means the local law enforcement agency or sheriff’s office having jurisdiction over the individual’s residence, place of employment, or institution of higher learning, or the nearest department post designated to receive or enter sex offender registration information within a registration jurisdiction.

(n) “Registration jurisdiction” means each of the 50 states, the District of Columbia, the Commonwealth of Puerto Rico, Guam, the Northern Mariana Islands, the United States Virgin Islands, American Samoa, and the Indian tribes within the United States that elect to function as a registration jurisdiction.

(o) “Residence”, as used in this act, for registration and voting purposes means that place at which a person habitually sleeps, keeps the person's personal effects, and has a regular place of lodging. If a person has more than 1 residence, or if a person has a residence separate from that of the person's spouse, that place at which the person resides the greater part of the time must be the person's official residence for the purposes of this act. If a person is homeless or otherwise lacks a fixed or temporary residence, residence means the village, city, or township where the person spends a majority of his or her time. This section does not affect existing judicial interpretation of the term residence for purposes other than the purposes of this act.

(p) “Student” means an individual enrolled on a full- or part-time basis in a public or private educational institution, including, but not limited to, a secondary school, trade school, professional institution, or institution of higher education.

(q) “Tier I offender” means an individual convicted of a tier I offense who is not a tier II or tier III offender.

(r) “Tier I offense” means 1 or more of the following:

(i) A violation of section 145c(4) of the Michigan penal code, 1931 PA 328, MCL 750.145c.

(ii) A violation of section 335a(2)(b) of the Michigan penal code, 1931 PA 328, MCL 750.335a, if a victim is a minor.

(iii) A violation of section 349b of the Michigan penal code, 1931 PA 328, MCL 750.349b, if the victim is a minor.

(iv) A violation of section 449a(2) of the Michigan penal code, 1931 PA 328, MCL 750.449a.

(v) A violation of section 520e or 520g(2) of the Michigan penal code, 1931 PA 328, MCL 750.520e and 750.520g, if the victim is 18 years or older.

(vi) A violation of section 539j of the Michigan penal code, 1931 PA 328, MCL 750.539j, if a victim is a minor.

(vii) A violation of section 160d(1) of the Michigan penal code, 1931 PA 328, MCL 750.160d.

(viii) Any other violation of a law of this state or a local ordinance of a municipality, other than a tier II or tier III offense, that by its nature constitutes a sexual offense against an individual who is a minor.

(ix) An offense committed by a person who was, at the time of the offense, a sexually delinquent person as defined in section 10a of the Michigan penal code, 1931 PA 328, MCL 750.10a.

(x) An attempt or conspiracy to commit an offense described in subparagraphs (i) to (ix).

(xi) An offense substantially similar to an offense described in subparagraphs (i) to (x) under a law of the United States that is specifically enumerated in 34 USC 20911, under a law of any state or any country, or under tribal or military law.

(s) “Tier II offender” means either of the following:

(i) A tier I offender who is subsequently convicted of another offense that is a tier I offense.

(ii) An individual convicted of a tier II offense who is not a tier III offender.

(t) “Tier II offense” means 1 or more of the following:

(i) A violation of section 145a of the Michigan penal code, 1931 PA 328, MCL 750.145a.

(ii) A violation of section 145b of the Michigan penal code, 1931 PA 328, MCL 750.145b.

(iii) A violation of section 145c(2) or (3) of the Michigan penal code, 1931 PA 328, MCL 750.145c.

(iv) A violation of section 145d(1)(a) of the Michigan penal code, 1931 PA 328, MCL 750.145d, except for a violation arising out of a violation of section 157c of the Michigan penal code, 1931 PA 328, MCL 750.157c.

(v) A violation of section 158 of the Michigan penal code, 1931 PA 328, MCL 750.158, committed against a minor unless either of the following applies:

(A) All of the following:

(I) The victim consented to the conduct constituting the violation.

(II) The victim was at least 13 years of age but less than 16 years of age at the time of the violation.

(III) The individual is not more than 4 years older than the victim.

(B) All of the following:

(I) The victim consented to the conduct constituting the violation.

(II) The victim was 16 or 17 years of age at the time of the violation.

(III) The victim was not under the custodial authority of the individual at the time of the violation.

(vi) A violation of section 338, 338a, or 338b of the Michigan penal code, 1931 PA 328, MCL 750.338, 750.338a, and 750.338b, committed against an individual 13 years of age or older but less than 18 years of age. This subparagraph does not apply if the court determines that either of the following applies:

(A) All of the following:

(I) The victim consented to the conduct constituting the violation.

(II) The victim was at least 13 years of age but less than 16 years of age at the time of the violation.

(III) The individual is not more than 4 years older than the victim.

(B) All of the following:

(I) The victim consented to the conduct constituting the violation.

(II) The victim was 16 or 17 years of age at the time of the violation.

(III) The victim was not under the custodial authority of the individual at the time of the violation.

(vii) A violation of section 462e(a) of the Michigan penal code, 1931 PA 328, MCL 750.462e.

(viii) A violation of section 448 of the Michigan penal code, 1931 PA 328, MCL 750.448, if the victim is a minor.

(ix) A violation of section 455 of the Michigan penal code, 1931 PA 328, MCL 750.455.

(x) A violation of section 520c, 520e, or 520g(2) of the Michigan penal code, 1931 PA 328, MCL 750.520c, 750.520e, and 750.520g, committed against an individual 13 years of age or older but less than 18 years of age.

(xi) A violation of section 520c of the Michigan penal code, 1931 PA 328, MCL 750.520c, committed against an individual 18 years of age or older.

(xii) An attempt or conspiracy to commit an offense described in subparagraphs (i) to (xi).

(xiii) An offense substantially similar to an offense described in subparagraphs (i) to (xii) under a law of the United States that is specifically enumerated in 34 USC 20911, under a law of any state or any country, or under tribal or military law.

(u) “Tier III offender” means either of the following:

(i) A tier II offender subsequently convicted of a tier I or II offense.

(ii) An individual convicted of a tier III offense.

(v) “Tier III offense” means 1 or more of the following:

(i) A violation of section 338, 338a, or 338b of the Michigan penal code, 1931 PA 328, MCL 750.338, 750.338a, and 750.338b, committed against an individual less than 13 years of age.

(ii) A violation of section 349 of the Michigan penal code, 1931 PA 328, MCL 750.349, committed against a minor.

(iii) A violation of section 350 of the Michigan penal code, 1931 PA 328, MCL 750.350.

(iv) A violation of section 520b, 520d, or 520g(1) of the Michigan penal code, 1931 PA 328, MCL 750.520b, 750.520d, and 750.520g. This subparagraph does not apply if the court determines that the victim consented to the conduct constituting the violation, that the victim was at least 13 years of age but less than 16 years of age at the time of the offense, and that the individual is not more than 4 years older than the victim.

(v) A violation of section 520c or 520g(2) of the Michigan penal code, 1931 PA 328, MCL 750.520c and 750.520g, committed against an individual less than 13 years of age.

(vi) A violation of section 520e of the Michigan penal code, 1931 PA 328, MCL 750.520e, committed by an individual 17 years of age or older against an individual less than 13 years of age.

(vii) A violation of section 160d(2) of the Michigan penal code, 1931 PA 328, MCL 750.160d.

(viii) An attempt or conspiracy to commit an offense described in subparagraphs (i) to (vii).

(ix) An offense substantially similar to an offense described in subparagraphs (i) to (viii) under a law of the United States that is specifically enumerated in 34 USC 20911, under a law of any state or any country, or under tribal or military law.

(w) “Vehicle” means that term as defined in section 79 of the Michigan vehicle code, 1949 PA 300, MCL 257.79.

Credits

P.A.1994, No. 295, § 2, Eff. Oct. 1, 1995. Amended by P.A.1999, No. 85, Eff. Sept. 1, 1999; P.A.2002, No. 542, Eff. Oct. 1, 2002; P.A.2004, No. 240, Eff. Oct. 1, 2004; P.A.2005, No. 301, Eff. Feb. 1, 2006; P.A.2011, No. 17, Eff. July 1, 2011; P.A.2014, No. 328, Eff. Jan. 14, 2015; P.A.2020, No. 295, Eff. March 24, 2021; P.A.2024, No. 66, Eff. Oct. 6, 2024.

Footnotes

1 M.C.L.A. § 28.728c.

M. C. L. A. 28.722, MI ST 28.722

The statutes are current through P.A.2026, No. 2, of the 2026 Regular Session, 103rd Legislature.

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Minnesota Statutes Annotated
Corrections (Ch. 241-244 App.)
Chapter 243. Corrections; Adults
Predatory Offender Registration

M.S.A. § 243.166

243.166. Registration of predatory offenders

Effective: July 1, 2024

Currentness

Subdivision 1. Repealed by Laws 2005, c. 136, art. 3, § 31, eff. June 3, 2005.

Subd. 1a. Definitions. (a) As used in this section, unless the context clearly indicates otherwise, the following terms have the meanings given them.

(b) “Bureau” means the Bureau of Criminal Apprehension.

(c) “Conservator” has the meaning given in chapter 524.

(d) “Corrections agent” means a county or state probation agent or other corrections employee. The term also includes United States Probation and Pretrial Services System employees who work with a person subject to this section.

(e) “Dwelling” means the building where the person lives under a formal or informal agreement to do so. However, dwelling does not include a supervised publicly or privately operated shelter or facility designed to provide temporary living accommodations for homeless individuals as defined in section 116L.361, subdivision 5.

(f) “Guardian” has the meaning given in chapter 524.

(g) “Incarceration” and “confinement” do not include electronic home monitoring.

(h) “Law enforcement authority” or “authority” means the chief of police of a home rule charter or statutory city and the county sheriff of an unincorporated area in that county. An authority must be located in Minnesota.

(i) “Motor vehicle” has the meaning given in section 169.011, subdivision 92.

(j) “Power of attorney” has the meaning given in chapter 523.

(k) “Primary address” means the mailing address of the person's dwelling. If the mailing address is different from the actual location of the dwelling, primary address also includes the physical location of the dwelling described with as much specificity as possible.

(l) “School” includes any public or private educational institution, including any secondary school, trade, or professional institution, or institution of higher education, that the person is enrolled in on a full-time or part-time basis.

(m) “Secondary address” means the mailing address of any place where the person regularly or occasionally stays overnight when not staying at the person's primary address. If the mailing address is different from the actual location of the place, secondary address also includes the physical location of the place described with as much specificity as possible. However, the location of a supervised publicly or privately operated shelter or facility designated to provide temporary living accommodations for homeless individuals as defined in section 116L.361, subdivision 5, does not constitute a secondary address.

(n) “Treatment facility” means a residential facility, as defined in section 244.052, subdivision 1, and residential substance use disorder treatment programs and halfway houses licensed under chapter 245A, including, but not limited to, those facilities directly or indirectly assisted by any department or agency of the United States.

(o) “Work” includes employment that is full time or part time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit.

Subd. 1b. Registration required. (a) A person shall register under this section if:

(1) the person was charged with or petitioned for a felony violation of or attempt to violate, or aiding, abetting, or conspiracy to commit, any of the following, and convicted of or adjudicated delinquent for that offense or another offense arising out of the same set of circumstances:

(i) murder under section 609.185, paragraph (a), clause (2);

(ii) kidnapping under section 609.25;

(iii) criminal sexual conduct under section 609.342; 609.343; 609.344; 609.345; 609.3451, subdivision 3, paragraph (b); or 609.3453;

(iv) indecent exposure under section 617.23, subdivision 3; or

(v) surreptitious intrusion under the circumstances described in section 609.746, subdivision 1, paragraph (h);

(2) the person was charged with or petitioned for a violation of, or attempt to violate, or aiding, abetting, or conspiring to commit any of the following and convicted of or adjudicated delinquent for that offense or another offense arising out of the same set of circumstances:

(i) criminal abuse in violation of Minnesota Statutes 2020, section 609.2325, subdivision 1, paragraph (b);

(ii) solicitation, inducement, or promotion of the prostitution of a minor or engaging in the sex trafficking of a minor in violation of section 609.322;

(iii) a prostitution offense in violation of section 609.324, subdivision 1, paragraph (a);

(iv) soliciting a minor to engage in sexual conduct in violation of section 609.352, subdivision 2 or 2a, clause (1);

(v) using a minor in a sexual performance in violation of section 617.246; or

(vi) possessing or disseminating a pornographic work involving a minor in violation of section 617.247;

(3) the person was sentenced as a patterned sex offender under section 609.3455, subdivision 3a; or

(4) the person was charged with or petitioned for, including pursuant to a court martial, violating a law of the United States, including the Uniform Code of Military Justice, similar to an offense or involving similar circumstances to an offense described in clause (1), (2), or (3), and convicted of or adjudicated delinquent for that offense or another offense arising out of the same set of circumstances.

(b) A person also shall register under this section if:

(1) the person was charged with or petitioned for an offense in another state similar to an offense or involving similar circumstances to an offense described in paragraph (a), clause (1), (2), or (3), and convicted of or adjudicated delinquent for that offense or another offense arising out of the same set of circumstances;

(2) the person enters this state to reside, work, or attend school, or enters this state and remains for 14 days or longer or for an aggregate period of time exceeding 30 days during any calendar year; and

(3) ten years have not elapsed since the person was released from confinement or, if the person was not confined, since the person was convicted of or adjudicated delinquent for the offense that triggers registration, unless the person is subject to a longer registration period under the laws of another state in which the person has been convicted or adjudicated, or is subject to lifetime registration.

If a person described in this paragraph is subject to a longer registration period in another state or is subject to lifetime registration, the person shall register for that time period regardless of when the person was released from confinement, convicted, or adjudicated delinquent.

(c) A person also shall register under this section if the person was committed pursuant to a court commitment order under Minnesota Statutes 2012, section 253B.185, chapter 253D, Minnesota Statutes 1992, section 526.10, or a similar law of another state or the United States, regardless of whether the person was convicted of any offense.

(d) A person also shall register under this section if:

(1) the person was charged with or petitioned for a felony violation or attempt to violate any of the offenses listed in paragraph (a), clause (1), or a similar law of another state or the United States, or the person was charged with or petitioned for a violation of any of the offenses listed in paragraph (a), clause (2), or a similar law of another state or the United States;

(2) the person was found not guilty by reason of mental illness or mental deficiency after a trial for that offense, or found guilty but mentally ill after a trial for that offense, in states with a guilty but mentally ill verdict; and

(3) the person was committed pursuant to a court commitment order under section 253B.18 or a similar law of another state or the United States.

Subd. 2. Notice. When a person who is required to register under subdivision 1b, paragraph (a), is sentenced or becomes subject to a juvenile court disposition order, the court shall tell the person of the duty to register under this section and that, if the person fails to comply with the registration requirements, information about the offender may be made available to the public through electronic, computerized, or other accessible means. The court may not modify the person's duty to register in the pronounced sentence or disposition order. The court shall require the person to read and sign a form stating that the duty of the person to register under this section has been explained. The court shall make available the signed court notification form, the complaint, and sentencing documents to the bureau. If a person required to register under subdivision 1b, paragraph (a), was not notified by the court of the registration requirement at the time of sentencing or disposition, the assigned corrections agent shall notify the person of the requirements of this section. If a person required to register under subdivision 1b, paragraph (a), was not notified by the court of the registration requirement at the time of sentencing or disposition and does not have a corrections agent, the law enforcement authority with jurisdiction over the person's primary address shall notify the person of the requirements. When a person who is required to register under subdivision 1b, paragraph (c) or (d), is released from commitment, the treatment facility shall notify the person of the requirements of this section. The treatment facility shall also obtain the registration information required under this section and forward it to the bureau.

Subd. 3. Registration procedure. (a) Except as provided in subdivision 3a, a person required to register under this section shall register with the corrections agent as soon as the agent is assigned to the person. If the person does not have an assigned corrections agent or is unable to locate the assigned corrections agent, the person shall register with the law enforcement authority that has jurisdiction in the area of the person's primary address.

(b) Except as provided in subdivision 3a, at least five days before the person starts living at a new primary address, including living in another state, the person shall give written notice of the new primary address to the assigned corrections agent or to the law enforcement authority with which the person currently is registered. If the person will be living in a new state and that state

has a registration requirement, the person shall also give written notice of the new address to the designated registration agency in the new state. A person required to register under this section shall also give written notice to the assigned corrections agent or to the law enforcement authority that has jurisdiction in the area of the person's primary address that the person is no longer living or staying at an address, immediately after the person is no longer living or staying at that address. The written notice required by this paragraph must be provided in person. The corrections agent or law enforcement authority shall, within two business days after receipt of this information, forward it to the bureau. The bureau shall, if it has not already been done, notify the law enforcement authority having primary jurisdiction in the community where the person will live of the new address. If the person is leaving the state, the bureau shall notify the registration authority in the new state of the new address. The person's registration requirements under this section are suspended after the person begins living in the new state and the bureau has confirmed the address in the other state through the annual verification process on at least one occasion. The bureau may also attempt to confirm the person's address in the other state by the following methods:

- (1) receipt of a verification letter from the law enforcement authority having primary jurisdiction in the community where the person is now living, acknowledging the person's address;
- (2) receipt of a written communication or verification letter from a criminal justice agency confirming the person's location;
- (3) confirmation of the individual's compliance with registration requirements or incarceration status in the new state via an online registry or website, if applicable; or
- (4) confirmation of the individual's motor vehicle records under United States Code, title 18, section 2721, in the new state via the new state's documentation.

The bureau is the sole determinant as to whether the information provided by any of the methods in clauses (1) to (3) is sufficient for verification purposes and may use more than one of these methods to satisfy the verification requirement. For purposes of this subdivision, "criminal justice agency" means an agency of a state, a political subdivision, a federally recognized Tribe, a United States territory, or the federal government charged with detection, enforcement, prosecution, adjudication, or incarceration with respect to federal or state criminal laws. The person's registration requirements under this section are reactivated if the person resumes living in Minnesota and the registration time period described in subdivision 6 has not expired.

(c) A person required to register under subdivision 1b, paragraph (b), because the person is working or attending school in Minnesota shall register with the law enforcement authority that has jurisdiction in the area where the person works or attends school. In addition to other information required by this section, the person shall provide the address of the school or of the location where the person is employed. A person shall comply with this paragraph within five days of beginning employment or school. A person's obligation to register under this paragraph terminates when the person is no longer working or attending school in Minnesota.

(d) A person required to register under this section who works or attends school outside of Minnesota shall register as a predatory offender in the state where the person works or attends school. The person's corrections agent, or if the person does not have an assigned corrections agent, the law enforcement authority that has jurisdiction in the area of the person's primary address shall notify the person of this requirement.

Subd. 3a. Registration procedure when person lacks primary address. (a) If a person leaves a primary address and does not have a new primary address, the person shall register with the law enforcement authority that has jurisdiction in the area where the person is staying within 24 hours of the time the person no longer has a primary address.

(b) Notwithstanding the time period for registration in paragraphs (a) and (c), a person with a primary address of a correctional facility who is scheduled to be released from the facility and who does not have a new primary address shall register with the law enforcement authority that has jurisdiction in the area where the person will be staying at least three days before the person is released from the correctional facility.

(c) A person who lacks a primary address shall register with the law enforcement authority that has jurisdiction in the area where the person is staying within 24 hours after entering the jurisdiction. Each time a person who lacks a primary address moves to a new jurisdiction without acquiring a new primary address, the person shall register with the law enforcement authority that has jurisdiction in the area where the person is staying within 24 hours after entering the jurisdiction.

(d) Upon registering under this subdivision, the person shall provide the law enforcement authority with all of the information the individual is required to provide under subdivision 4a. However, instead of reporting the person's primary address, the person shall describe the location of where the person is staying with as much specificity as possible.

(e) Except as otherwise provided in paragraph (f), if a person continues to lack a primary address, the person shall report in person on a weekly basis to the law enforcement authority with jurisdiction in the area where the person is staying. This weekly report shall occur between the hours of 9:00 a.m. and 5:00 p.m. The person is not required to provide the registration information required under subdivision 4a each time the offender reports to an authority, but the person shall inform the authority of changes to any information provided under this subdivision or subdivision 4a and shall otherwise comply with this subdivision.

(f) If the law enforcement authority determines that it is impractical, due to the person's unique circumstances, to require a person lacking a primary address to report weekly and in person as required under paragraph (e), the authority may authorize the person to follow an alternative reporting procedure. The authority shall consult with the person's corrections agent, if the person has one, in establishing the specific criteria of this alternative procedure, subject to the following requirements:

(1) the authority shall document, in the person's registration record, the specific reasons why the weekly in-person reporting process is impractical for the person to follow;

(2) the authority shall explain how the alternative reporting procedure furthers the public safety objectives of this section;

(3) the authority shall require the person lacking a primary address to report in person at least monthly to the authority or the person's corrections agent and shall specify the location where the person shall report. If the authority determines it would be more practical and would further public safety for the person to report to another law enforcement authority with jurisdiction where the person is staying, it may, after consulting with the other law enforcement authority, include this requirement in the person's alternative reporting process;

(4) the authority shall require the person to comply with the weekly, in-person reporting process required under paragraph (e), if the person moves to a new area where this process would be practical;

(5) the authority shall require the person to report any changes to the registration information provided under subdivision 4a and to comply with the periodic registration requirements specified under paragraph (g); and

(6) the authority shall require the person to comply with the requirements of subdivision 3, paragraphs (b) and (c), if the person moves to a primary address.

(g) If a person continues to lack a primary address and continues to report to the same law enforcement authority, the person shall provide the authority with all of the information the individual is required to provide under this subdivision and subdivision 4a at least annually, unless the person is required to register under subdivision 1b, paragraph (c), following commitment pursuant to a court commitment under Minnesota Statutes 2012, section 253B.185, chapter 253D, Minnesota Statutes 1992, section 526.10, or a similar law of another state or the United States. If the person is required to register under subdivision 1b, paragraph (c), the person shall provide the law enforcement authority with all of the information the individual is required to report under this subdivision and subdivision 4a at least once every three months.

(h) A law enforcement authority receiving information under this subdivision shall forward registration information and changes to that information to the bureau within two business days of receipt of the information.

(i) For purposes of this subdivision, a person who fails to report a primary address will be deemed to be a person who lacks a primary address, and the person shall comply with the requirements for a person who lacks a primary address.

Subd. 4. Contents of registration. (a) The registration provided to the corrections agent or law enforcement authority, must consist of a statement in writing signed by the person, giving information required by the bureau, fingerprints, biological specimen for DNA analysis as defined under section 299C.155, subdivision 1, and photograph of the person taken at the time of the person's release from incarceration or, if the person was not incarcerated, at the time the person initially registered under this section. The registration information also must include a written consent form signed by the person allowing a treatment facility or residential housing unit or shelter to release information to a law enforcement officer about the person's admission to, or residence in, a treatment facility or residential housing unit or shelter. Registration information on adults and juveniles may be maintained together notwithstanding section 260B.171, subdivision 3.

(b) For persons required to register under subdivision 1b, paragraph (c), following commitment pursuant to a court commitment under Minnesota Statutes 2012, section 253B.185, chapter 253D, Minnesota Statutes 1992, section 526.10, or a similar law of another state or the United States, in addition to other information required by this section, the registration provided to the corrections agent or law enforcement authority must include the person's offense history and documentation of treatment received during the person's commitment. This documentation is limited to a statement of how far the person progressed in treatment during commitment.

(c) Within three days of receipt, the corrections agent or law enforcement authority shall forward the registration information to the bureau. The bureau shall ascertain whether the person has registered with the law enforcement authority in the area of the person's primary address, if any, or if the person lacks a primary address, where the person is staying, as required by subdivision 3a. If the person has not registered with the law enforcement authority, the bureau shall notify that authority.

(d) The corrections agent or law enforcement authority may require that a person required to register under this section appear before the agent or authority to be photographed. The agent or authority shall submit the photograph to the bureau.

(1) Except as provided in clause (2), the agent or authority may photograph any offender at a time and frequency chosen by the agent or authority.

(2) The requirements of this paragraph shall not apply during any period where the person to be photographed is: (i) committed to the commissioner of corrections and incarcerated, (ii) incarcerated in a regional jail or county jail, or (iii) committed to the Direct Care and Treatment executive board and receiving treatment in a secure treatment facility.

(e) During the period a person is required to register under this section, the following provisions apply:

(1) Except for persons registering under subdivision 3a, the bureau shall mail a verification form to the person's last reported primary address. This verification form must provide notice to the offender that, if the offender does not return the verification form as required, information about the offender may be made available to the public through electronic, computerized, or other accessible means. For persons who are registered under subdivision 3a, the bureau shall mail an annual verification form to the law enforcement authority where the offender most recently reported. The authority shall provide the verification form to the person at the next weekly meeting and ensure that the person completes and signs the form and returns it to the bureau. Notice is sufficient under this paragraph if the verification form is sent by first class mail to the person's last reported primary address, or for persons registered under subdivision 3a, to the law enforcement authority where the offender most recently reported.

(2) The person shall mail the signed verification form back to the bureau within ten days after receipt of the form, stating on the form the current and last address of the person's residence and the other information required under subdivision 4a.

(3) In addition to the requirements listed in this section, an offender who is no longer under correctional supervision for a registration offense, or a failure to register offense, but who resides, works, or attends school in Minnesota, shall have an in-person contact with a law enforcement authority as provided in this section. If the person resides in Minnesota, the in-person contact shall be with the law enforcement authority that has jurisdiction over the person's primary address or, if the person has no address, the location where the person is staying. If the person does not reside in Minnesota but works or attends school in this state, the person shall have an in-person contact with the law enforcement authority or authorities with jurisdiction over the person's school or workplace. During the month of the person's birth date, the person shall report to the authority to verify the accuracy of the registration information and to be photographed. Within three days of this contact, the authority shall enter information as required by the bureau into the predatory offender registration database and submit an updated photograph of the person to the bureau's predatory offender registration unit.

(4) If the person fails to mail the completed and signed verification form to the bureau within ten days after receipt of the form, or if the person fails to report to the law enforcement authority during the month of the person's birth date, the person is in violation of this section.

(5) For any person who fails to mail the completed and signed verification form to the bureau within ten days after receipt of the form and who has been determined to be subject to community notification pursuant to section 253D.32 or is a risk level III offender under section 244.052, the bureau shall immediately investigate and notify local law enforcement authorities to investigate the person's location and to ensure compliance with this section. The bureau also shall immediately give notice

of the person's violation of this section to the law enforcement authority having jurisdiction over the person's last registered primary address.

For persons required to register under subdivision 1b, paragraph (c), following commitment pursuant to a court commitment under Minnesota Statutes 2012, section 253B.185, chapter 253D, Minnesota Statutes 1992, section 526.10, or a similar law of another state or the United States, the bureau shall comply with clause (1) at least two times each year. For persons who, under section 244.052, are assigned to risk level III and who are no longer under correctional supervision for a registration offense or a failure to register offense, the bureau shall comply with clause (1) at least two times each year. For all other persons required to register under this section, the bureau shall comply with clause (1) each year within 30 days of the anniversary date of the person's initial registration.

(f) For persons registered under this section on July 1, 2019, each person, on or before one year from that date, must provide a biological specimen for the purpose of DNA analysis to the probation agency or law enforcement authority where that person is registered. A person who provides or has provided a biological specimen for the purpose of DNA analysis under chapter 299C or section 609.117 meets the requirements of this paragraph.

(g) For persons registered under this section on July 1, 2019, each person, on or before one year from that date, must provide fingerprints to the probation agency or law enforcement authority where that person is registered.

Subd. 4a. Information required to be provided. (a) A person required to register under this section shall provide to the corrections agent or law enforcement authority the following information:

- (1) the person's primary address;
- (2) all of the person's secondary addresses in Minnesota, including all addresses used for residential or recreational purposes;
- (3) the addresses of all Minnesota property owned, leased, or rented by the person;
- (4) the addresses of all locations where the person is employed;
- (5) the addresses of all schools where the person is enrolled;
- (6) the year, model, make, license plate number, and color of all motor vehicles owned or regularly driven by the person;
- (7) the expiration year for the motor vehicle license plate tabs of all motor vehicles owned by the person; and
- (8) all telephone numbers including work, school, and home and any cellular telephone service.

(b) The person shall report to the agent or authority the information required to be provided under paragraph (a), clauses (2) to (8), within five days of the date the clause becomes applicable. If because of a change in circumstances any information reported under paragraph (a), clauses (1) to (8), no longer applies, the person shall immediately inform the agent or authority

that the information is no longer valid. If the person leaves a primary address and does not have a new primary address, the person shall register as provided in subdivision 3a.

Subd. 4b. Health care facility; notice of status. (a) For the purposes of this subdivision:

(1) “health care facility” means a facility:

(i) licensed by the commissioner of health as a hospital, boarding care home or supervised living facility under sections 144.50 to 144.58, or a nursing home under chapter 144A;

(ii) licensed by the commissioner of health as an assisted living facility as defined in section 144G.01; or

(iii) licensed by the commissioner of human services as a residential facility under chapter 245A to provide adult foster care, adult mental health treatment, substance use disorder treatment to adults, or residential services to persons with disabilities;

(2) “home care provider” has the meaning given in section 144A.43; and

(3) “hospice provider” has the meaning given in section 144A.75.

(b) Prior to admission to a health care facility or home care services from a home care provider or hospice services from a hospice provider, a person required to register under this section shall disclose to:

(1) the health care facility employee or the home care provider or hospice provider processing the admission the person's status as a registered predatory offender under this section; and

(2) the person's corrections agent, or if the person does not have an assigned corrections agent, the law enforcement authority with whom the person is currently required to register, that admission will occur.

(c) A law enforcement authority or corrections agent who receives notice under paragraph (b) or who knows that a person required to register under this section is planning to be admitted and receive, or has been admitted and is receiving health care at a health care facility or home care services from a home care provider or hospice services from a hospice provider, shall notify the administrator of the facility or the home care provider or the hospice provider and deliver a fact sheet to the administrator or provider containing the following information: (1) name and physical description of the offender; (2) the offender's conviction history, including the dates of conviction; (3) the risk level classification assigned to the offender under section 244.052, if any; and (4) the profile of likely victims.

(d) Except for a hospital licensed under sections 144.50 to 144.58, if a health care facility receives a fact sheet under paragraph (c) that includes a risk level classification for the offender, and if the facility admits the offender, the facility shall distribute the fact sheet to all residents at the facility. If the facility determines that distribution to a resident is not appropriate given the resident's medical, emotional, or mental status, the facility shall distribute the fact sheet to the patient's next of kin or emergency contact.

(e) If a home care provider or hospice provider receives a fact sheet under paragraph (c) that includes a risk level classification for the offender, the provider shall distribute the fact sheet to any individual who will provide direct services to the offender before the individual begins to provide the service.

Subd. 4c. Notices in writing; signed. All notices required by this section must be in writing and signed by the person required to register. For purposes of this section, a signature is as defined in section 645.44, subdivision 14, by an electronic method established by the bureau, or by use of a biometric for the person. If a biometric is used, the person must provide a sample that is forwarded to the bureau so that it can be maintained for comparison purposes to verify the person's identity. The bureau shall determine the signature methods available for use and post this determination on the bureau's website.

Subd. 4d. Guardians, conservators, and power of attorney. Guardians and conservators of persons required to register shall have the authority to complete all verification and registration paperwork under this section and section 243.167 on the person's behalf. A validly executed power of attorney under chapter 523 grants the attorney in fact the authority to complete all verification and registration paperwork under this section and section 243.167 on behalf of a person required to register.

Subd. 5. Criminal penalty. (a) A person required to register under this section who was given notice, knows, or reasonably should know of the duty to register and who:

(1) knowingly commits an act or fails to fulfill a requirement that violates any provision of this section; or

(2) intentionally provides false information to a corrections agent, law enforcement authority, or the bureau is guilty of a felony and may be sentenced to imprisonment for not more than five years or to payment of a fine of not more than \$10,000, or both.

(b) Except as provided in paragraph (c), a person convicted of violating paragraph (a) shall be committed to the custody of the commissioner of corrections for not less than a year and a day, nor more than five years.

(c) A person convicted of violating paragraph (a), who has previously been convicted of or adjudicated delinquent for violating this section or a similar statute of another state or the United States, shall be committed to the custody of the commissioner of corrections for not less than two years, nor more than five years.

(d) Prior to the time of sentencing, the prosecutor may file a motion to have the person sentenced without regard to the mandatory minimum sentence established by this subdivision. The motion must be accompanied by a statement on the record of the reasons for it. When presented with the motion, or on its own motion, the court may sentence the person without regard to the mandatory minimum sentence if the court finds substantial and compelling reasons to do so. Sentencing a person in the manner described in this paragraph is a departure from the Sentencing Guidelines.

(e) A person convicted and sentenced as required by this subdivision is not eligible for probation, parole, discharge, work release, conditional release, or supervised release, until that person has served the full term of imprisonment as provided by law, notwithstanding the provisions of sections 241.26, 242.19, 243.05, 244.04, 609.12, and 609.135.

Subd. 5a. Ten-year conditional release for violations committed by level III offenders. Notwithstanding the statutory maximum sentence otherwise applicable to the offense or any provision of the sentencing guidelines, when a court commits a person to the custody of the commissioner of corrections for violating subdivision 5 and, at the time of the violation, the person was assigned to risk level III under section 244.052, the court shall provide that after the person has been released from prison, the commissioner shall place the person on conditional release for ten years. The terms of conditional release are governed by section 609.3455, subdivision 8.

Subd. 6. Registration period. (a) Notwithstanding the provisions of section 609.165, subdivision 1, and except as provided in paragraphs (b), (c), and (d), a person required to register under this section shall continue to comply with this section until ten years have elapsed since the person initially registered in connection with the offense, or until the probation, supervised release, or conditional release period expires, whichever occurs later. For a person required to register under this section who is committed under section 253B.18, Minnesota Statutes 2012, section 253B.185, or chapter 253D, the ten-year registration period does not include the period of commitment.

(b) If a person required to register under this section fails to provide the person's primary address as required by subdivision 3, paragraph (b), fails to comply with the requirements of subdivision 3a, fails to provide information as required by subdivision 4a, or fails to return the verification form referenced in subdivision 4 within ten days, the commissioner of public safety shall require the person to continue to register for an additional period of five years. This five-year period is added to the end of the offender's registration period.

(c) If a person required to register under this section is incarcerated due to a conviction for a new offense that requires registration under this section or section 243.167 or following a revocation of probation, supervised release, or conditional release for an offense that requires registration under this section or section 243.167, the person shall continue to register until ten years have elapsed since the person was last released from incarceration or until the person's probation, supervised release, or conditional release period expires, whichever occurs later.

(d) A person shall continue to comply with this section for the life of that person:

(1) if the person is convicted of or adjudicated delinquent for any offense for which registration is required under subdivision 1b, or any offense from another state or any federal offense similar to the offenses described in subdivision 1b, and the person has a prior conviction or adjudication for an offense for which registration was or would have been required under subdivision 1b, or an offense from another state or a federal offense similar to an offense described in subdivision 1b;

(2) if the person is required to register based upon a conviction or delinquency adjudication for an offense under section 609.185, paragraph (a), clause (2), or a similar statute from another state or the United States;

(3) if the person is required to register based upon a conviction for an offense under section 609.342, subdivision 1, clause (a) to (c) or (e), or subdivision 1a, clause (a) to (e) or (h); 609.343, subdivision 1, clause (a) to (c) or (e), or subdivision 1a, clause (a) to (e) or (h); 609.344, subdivision 1, clause (a) or (c), or subdivision 1a, clause (a), (c), (g), or (h); or 609.345, subdivision 1, clause (a) or (c), or subdivision 1a, clause (a), (c), (g), or (h); or a statute from another state or the United States similar to the offenses described in this clause; or

(4) if the person is required to register under subdivision 1b, paragraph (c), following commitment pursuant to a court commitment under Minnesota Statutes 2012, section 253B.185, chapter 253D, Minnesota Statutes 1992, section 526.10, or a similar law of another state or the United States.

(e) A person described in subdivision 1b, paragraph (b), who is required to register under the laws of a state in which the person has been previously convicted or adjudicated delinquent, shall register under this section for the time period required by the state of conviction or adjudication unless a longer time period is required elsewhere in this section.

Subd. 7. Use of data. (a) Except as otherwise provided in subdivision 4b or 7a or sections 244.052 and 299C.093, the data provided under this section is private data on individuals under section 13.02, subdivision 12.

(b) The data may be used only by law enforcement and corrections agencies for law enforcement and corrections purposes. Law enforcement or a corrections agent may disclose the status of an individual as a predatory offender to a child protection worker with a local welfare agency for purposes of doing an investigation or family assessment under chapter 260E. A corrections agent may also disclose the status of an individual as a predatory offender to comply with section 244.057.

(c) The commissioner of human services is authorized to have access to the data for purposes of completing background studies under chapter 245C.

(d) The Direct Care and Treatment executive board is authorized to have access to data for any service, program, or facility owned or operated by the state of Minnesota and under the programmatic direction and fiscal control of the executive board for purposes described in section 246.13, subdivision 2, paragraph (b).

Subd. 7a. Availability of information on offenders who are out of compliance with registration law. (a) The bureau may make information available to the public about offenders who are 16 years of age or older and who are out of compliance with this section for 30 days or longer for failure to provide the offenders' primary or secondary addresses. This information may be made available to the public through electronic, computerized, or other accessible means. The amount and type of information made available is limited to the information necessary for the public to assist law enforcement in locating the offender.

(b) An offender who comes into compliance with this section after the bureau discloses information about the offender to the public may send a written request to the bureau requesting the bureau to treat information about the offender as private data, consistent with subdivision 7. The bureau shall review the request and promptly take reasonable action to treat the data as private, if the offender has complied with the requirement that the offender provide the offender's primary and secondary addresses, or promptly notify the offender that the information will continue to be treated as public information and the reasons for the bureau's decision.

(c) If an offender believes the information made public about the offender is inaccurate or incomplete, the offender may challenge the data under section 13.04, subdivision 4.

(d) The bureau is immune from any civil or criminal liability that might otherwise arise, based on the accuracy or completeness of any information made public under this subdivision, if the bureau acts in good faith.

Subd. 8. Repealed by Laws 2005, c. 136, art. 3, § 31, eff. June 3, 2005.

Subd. 9. Offenders from other states. (a) When the state accepts an offender from another state under a reciprocal agreement under the interstate compact authorized by section 243.1605, or under any authorized interstate agreement, the acceptance is conditional on the offender agreeing to register under this section when the offender is living in Minnesota.

(b) The Bureau of Criminal Apprehension shall notify the commissioner of corrections:

(1) when the bureau receives notice from a local law enforcement authority that a person from another state who is subject to this section has registered with the authority, unless the bureau previously received information about the offender from the commissioner of corrections;

(2) when a registration authority, corrections agent, or law enforcement agency in another state notifies the bureau that a person from another state who is subject to this section is moving to Minnesota; and

(3) when the bureau learns that a person from another state is in Minnesota and allegedly in violation of subdivision 5 for failure to register.

(c) When a local law enforcement agency notifies the bureau of an out-of-state offender's registration, the agency shall provide the bureau with information on whether the person is subject to community notification in another state and the risk level the person was assigned, if any.

(d) The bureau must forward all information it receives regarding offenders covered under this subdivision from sources other than the commissioner of corrections to the commissioner.

(e) When the bureau receives information directly from a registration authority, corrections agent, or law enforcement agency in another state that a person who may be subject to this section is moving to Minnesota, the bureau must ask whether the person entering the state is subject to community notification in another state and the risk level the person has been assigned, if any.

(f) When the bureau learns that a person subject to this section intends to move into Minnesota from another state or has moved into Minnesota from another state, the bureau shall notify the law enforcement authority with jurisdiction in the area of the person's primary address and provide all information concerning the person that is available to the bureau.

(g) The commissioner of corrections must determine the parole, supervised release, or conditional release status of persons who are referred to the commissioner under this subdivision. If the commissioner determines that a person is subject to parole, supervised release, or conditional release in another state and is not registered in Minnesota under the applicable interstate compact, the commissioner shall inform the local law enforcement agency that the person is in violation of section 243.161. If the person is not subject to supervised release, the commissioner shall notify the bureau and the local law enforcement agency of the person's status.

Subd. 10. Venue; aggregation. (a) A violation of this section may be prosecuted in any jurisdiction where an offense takes place. However, the prosecutorial agency in the jurisdiction where the person last registered a primary address is initially responsible to review the case for prosecution.

(b) When a person commits two or more offenses in two or more counties, the accused may be prosecuted for all of the offenses in any county in which one of the offenses was committed.

Subd. 11. Certified copies as evidence. Certified copies of predatory offender registration records are admissible as substantive evidence when necessary to prove the commission of a violation of this section.

Credits

Laws 1991, c. 285, § 3. Amended by Laws 1993, c. 326, art. 10, §§ 1 to 7; Laws 1994, c. 636, art. 4, §§ 5 to 8; Laws 1994, 1st Sp., c. 1, art. 3, § 1; Laws 1994, 1st Sp., c. 1, art. 3, § 2, eff. Sept. 1, 1994; Laws 1995, c. 226, art. 4, § 3; Laws 1996, c. 408, art. 5, §§ 2, 3; Laws 1997, c. 239, art. 5, §§ 1 to 3; Laws 1998, c. 367, art. 3, §§ 1 to 3; Laws 1998, c. 367, art. 6, § 15, eff. Aug. 1, 1998; Laws 1999, c. 127, § 1; Laws 1999, c. 139, art. 4, § 2; Laws 1999, c. 233, §§ 1 to 3; Laws 2000, c. 260, § 28; Laws 2000, c. 311, art. 2, §§ 1 to 9; Laws 2000, c. 311, art. 2, § 10, eff. April 4, 2000; Laws 2001, 1st Sp., c. 8, art. 9, §§ 1 to 4, eff. July 1, 2001; Laws 2002, c. 222, § 1; Laws 2003, c. 116, § 2; Laws 2003, 1st Sp., c. 2, art. 8, §§ 4, 5; Laws 2005, c. 136, art. 3, § 8; Laws 2005, c. 136, art. 5, § 1, eff. July 1, 2005; Laws 2005, 1st Sp., c. 4, art. 1, §§ 2, 3, eff. July 15, 2005; Laws 2006, c. 260, art. 1, § 47, eff. Aug. 1, 2006; Laws 2006, c. 260, art. 3, § 7; Laws 2006, c. 260, art. 3, §§ 8, 9, eff. July 1, 2006; Laws 2006, c. 260, art. 3, § 10; Laws 2008, c. 299, §§ 6, 7, eff. Aug. 1, 2008; Laws 2009, c. 59, art. 1, § 1, eff. Aug. 1, 2010; Laws 2009, c. 86, art. 1, §§ 35 to 37, eff. Aug. 1, 2009; Laws 2010, c. 251, § 1, eff. July 1, 2010; Laws 2010, c. 251, § 2, eff. April 16, 2010; Laws 2011, c. 28, § 2, eff. Aug. 1, 2011; Laws 2013, c. 49, § 22, eff. Aug. 1, 2013; Laws 2013, c. 96, § 1, eff. Aug. 1, 2013; Laws 2013, c. 108, art. 5, § 2, eff. July 1, 2013; Laws 2013, c. 108, art. 8, § 3, eff. July 1, 2013; Laws 2014, c. 259, §§ 1 to 4, eff. Aug. 1, 2014; Laws 2016, c. 136, §§ 1, 2, eff. Aug. 1, 2016; Laws 2016, c. 189, art. 4, § 11, eff. Aug. 1, 2016; Laws 2019, 1st Sp., c. 5, art. 5, §§ 2, 4 to 8, 10, eff. July 1, 2019; Laws 2019, 1st Sp., c. 5, art. 5, §§ 3, 9, eff. Aug. 1, 2019; Laws 2020, 1st Sp., c. 2, art. 8, § 39, eff. Aug. 1, 2020; Laws 2020, 7th Sp., c. 1, art. 6, § 25; Laws 2021, 1st Sp., c. 11, art. 2, § 11, eff. July 1, 2021; Laws 2021, 1st Sp., c. 11, art. 4, § 31, eff. July 1, 2021; Laws 2021, c. 20, § 1, eff. Aug. 1, 2021; Laws 2021, 1st Sp., c. 11, art. 4, § 2, eff. Sept. 15, 2021; Laws 2022, c. 98, art. 4, § 51, eff. Aug. 1, 2022; Laws 2023, c. 52, art. 4, § 1, eff. Aug. 1, 2023; Laws 2024, c. 79, art. 9, § 5, eff. July 1, 2024; Laws 2024, c. 115, art. 18, § 10, eff. July 1, 2024; Laws 2024, c. 123, art. 7, §§ 1 to 5, eff. July 1, 2024; Laws 2024, c. 79, art. 10, § 3, eff. July 1, 2024.

M. S. A. § 243.166, MN ST § 243.166

Current with legislation from the 2025 Regular and First Special Sessions. The statutes are subject to change as determined by the Minnesota Revisor of Statutes. (These changes will be incorporated later this year.)

Minnesota Statutes Annotated
Corrections (Ch. 241-244 App.)
Chapter 243. Corrections; Adults
Predatory Offender Registration

M.S.A. § 243.167

243.167. Registration under predatory offender registration law for other offenses

Effective: July 1, 2024

Currentness

Subdivision 1. Definition. As used in this section, “crime against the person” means a violation of any of the following or a similar law of another state or of the United States: section 609.165; 609.185; 609.19; 609.195; 609.20; 609.205; 609.221; 609.222; 609.223; 609.2231; 609.224, subdivision 2 or 4; 609.2242, subdivision 2 or 4; 609.2247; 609.235; 609.245, subdivision 1; 609.25; 609.255; 609.3451, subdivision 2; 609.498, subdivision 1 or 1b; 609.582, subdivision 1; or 617.23, subdivision 2; or any felony-level violation of section 609.229; 609.377; 609.749; or 624.713.

Subd. 2. When required. (a) In addition to the requirements of section 243.166, a person also shall register under section 243.166 if:

(1) the person is convicted of a crime against the person; and

(2) the person was previously convicted of or adjudicated delinquent for an offense listed in section 243.166, or a comparable offense in another state, but was not required to register for the offense because the registration requirements of that section did not apply to the person at the time the offense was committed or at the time the person was released from imprisonment.

(b) A person who was previously required to register in any state and who has completed the registration requirements of that state shall again register under section 243.166 if the person commits a crime against the person.

Credits

Laws 2000, c. 311, art. 2, § 11. Amended by Laws 2001, 1st Sp., c. 8, art. 9, § 5, eff. July 1, 2001; Laws 2005, c. 136, art. 3, § 9; Laws 2007, c. 54, art. 7, § 2, eff. May 8, 2007; Laws 2008, c. 299, § 8, eff. Aug. 1, 2008; Laws 2024, c. 123, art. 6, § 3, eff. July 1, 2024.

M. S. A. § 243.167, MN ST § 243.167

Current with legislation from the 2025 Regular and First Special Sessions. The statutes are subject to change as determined by the Minnesota Revisor of Statutes. (These changes will be incorporated later this year.)

West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-21

§ 45-33-21. Legislative findings and declaration of purpose

Currentness

The Legislature finds that the danger of recidivism posed by criminal sex offenders and the protection of the public from these offenders is of paramount concern and interest to government. The Legislature further finds that law enforcement agencies' efforts to protect their communities, conduct investigations, and quickly apprehend criminal sex offenders are impaired by the lack of information shared with the public, which lack of information may result in the failure of the criminal justice system to identify, investigate, apprehend, and prosecute criminal sex offenders.

The Legislature further finds that the system of registering criminal sex offenders is a proper exercise of the state's police power regulating present and ongoing conduct. Comprehensive registration and periodic address verification will provide law enforcement with additional information critical to preventing sexual victimization and to resolving promptly incidents involving sexual abuse and exploitation. It will allow law enforcement agencies to alert the public when necessary for the continued protection of the community.

Persons found to have committed a sex offense have a reduced expectation of privacy because of the public's interest in safety and in the effective operation of government. In balancing offenders' due process and other rights, and the interests of public security, the Legislature finds that releasing such information about criminal sex offenders to the general public will further the primary governmental interest of protecting vulnerable populations and, in some instances the public, from potential harm.

Therefore, the state's policy is to assist local law enforcement agencies' efforts to protect their communities by requiring criminal sex offenders to register, to record their addresses of residence, to be photographed and fingerprinted, and to authorize the release of necessary and relevant information about criminal sex offenders to the public as provided in this chapter, which may be referred to as the Mississippi Sex Offenders Registration Law.

Credits

Added by Laws 2000, Ch. 499, § 1, eff. July 1, 2000.

Miss. Code Ann. § 45-33-21, MS ST § 45-33-21

The Statutes and Constitution are current with laws from the 2026 Regular Session effective through February 23, 2026. Some statute sections may be more current, see credits for details. The statutes are subject to changes provided by the Joint Legislative Committee on Compilation, Revision and Publication of Legislation.

West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-23

§ 45-33-23. Definitions

Effective: July 1, 2024

Currentness

For the purposes of this chapter, the following words shall have the meanings ascribed herein unless the context clearly requires otherwise:

(a) “Conviction” means that, regarding the person's offense, there has been a determination or judgment of guilt as a result of a trial or the entry of a plea of guilty or nolo contendere regardless of whether adjudication is withheld. “Conviction of similar offenses” includes, but is not limited to, a conviction by a federal or military tribunal, including a court-martial conducted by the Armed Forces of the United States, a conviction for an offense committed on an Indian Reservation or other federal property, a conviction in any state of the United States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana¹ Islands or the United States Virgin Islands, and a conviction in a foreign country if the foreign country's judicial system is such that it satisfies minimum due process set forth in the guidelines under Section 111(5)(B) Public Law 109-248.

(b) “Department” means the Mississippi Department of Public Safety unless otherwise specified.

(c) “Jurisdiction” means any court or locality including any state court, federal court, military court, Indian tribunal or foreign court, the fifty (50) states, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana¹ Islands or the United States Virgin Islands, and Indian tribes that elect to function as registration jurisdictions under Title 1, SORNA Section 127 of the Adam Walsh Child Safety Act.

(d) “Permanent residence” means a place where the person abides, lodges, or resides for a period of fourteen (14) or more aggregate days in a six (6) month period.

(e) “Registration” means providing information to the appropriate agency within the timeframe specified as required by this chapter.

(f) “Registration duties” means obtaining the registration information required on the form specified by the department as well as the photograph, fingerprints and biological sample of the registrant. Biological samples are to be forwarded to the Mississippi Forensics Laboratory pursuant to Section 45-33-37; the photograph, fingerprints and other registration information are to be forwarded to the Department of Public Safety immediately.

(g) “Responsible agency” is defined as the person or government entity whose duty it is to obtain information from a criminal sex offender upon conviction and to transmit that information to the Mississippi Department of Public Safety.

(i) For a criminal sex offender being released from the custody of the Department of Corrections, the responsible agency is the Department of Corrections.

(ii) For a criminal sex offender being released from a county jail, the responsible agency is the sheriff of that county.

(iii) For a criminal sex offender being released from a municipal jail, the responsible agency is the police department of that municipality.

(iv) For a sex offender in the custody of the youth court, the responsible agency is the youth court.

(v) For a criminal sex offender who is being placed on probation, including conditional discharge or unconditional discharge, without any sentence of incarceration, the responsible agency is the sentencing court.

(vi) For an offender who has been committed to a mental institution following an acquittal by reason of insanity, the responsible agency is the facility from which the offender is released. Specifically, the director of the facility shall notify the Department of Public Safety before the offender's release.

(vii) For a criminal sex offender who is being released from a jurisdiction outside this state or who has a prior conviction in another jurisdiction and who is to reside, work or attend school in this state, the responsible agency is both the sheriff of the proposed county of residence and the department.

(h) “Sex offense” or “registrable offense” means any of the following offenses:

(i) Section 97-3-53 relating to kidnapping, if the victim was below the age of eighteen (18);

(ii) Section 97-3-65 relating to rape; however, conviction or adjudication under Section 97-3-65(1)(a) when the offender was eighteen (18) years of age or younger at the time of the alleged offense, shall not be a registrable sex offense;

(iii) Section 97-3-71 relating to rape and assault with intent to ravish;

(iv) Section 97-3-95 relating to sexual battery; however, conviction or adjudication under Section 97-3-95(1)(c) when the offender was eighteen (18) years of age or younger at the time of the alleged offense, shall not be a registrable sex offense;

(v) Section 97-5-5 relating to enticing a child for concealment, prostitution or marriage;

- (vi) Section 97-5-23 relating to the touching of a child, mentally defective or incapacitated person or physically helpless person for lustful purposes;
- (vii) Section 97-5-27 relating to the dissemination of sexually oriented material to children;
- (viii) Section 97-5-33 relating to the exploitation of children;
- (ix) Section 97-5-41 relating to the carnal knowledge of a stepchild, adopted child or child of a cohabiting partner;
- (x) Section 97-29-3 relating to sexual intercourse between teacher and student;
- (xi) Section 97-29-59 relating to unnatural intercourse;
- (xii) Section 43-47-18 relating to sexual abuse of a vulnerable person;
- (xiii) Section 97-3-54.1(1)(c) relating to procuring sexual servitude of a minor and Section 97-3-54.3 relating to aiding, abetting or conspiring to violate Section 97-3-54.1(1)(c);
- (xiv) Section 97-29-61(2) relating to voyeurism when the victim is a child under sixteen (16) years of age;
- (xv) Section 97-29-63 relating to filming another without permission where there is an expectation of privacy;
- (xvi) Section 97-29-45(1)(a) relating to obscene electronic communication;
- (xvii) Section 97-3-104 relating to the crime of sexual activity between law enforcement, correctional or custodial personnel and prisoners;
- (xviii) Section 97-5-39(1)(e) relating to contributing to the neglect or delinquency of a child, felonious abuse or battery of a child, if the victim was sexually abused;
- (xix) Section 97-29-51 relating to procuring or promoting prostitution when the victim is a child under eighteen (18) years of age;
- (xx) Section 97-1-7 relating to attempt to commit any of the offenses referenced in this paragraph (h);
- (xxi) Any other offense resulting in a conviction in another jurisdiction which, if committed in this state, would be deemed to be such a crime without regard to its designation elsewhere;

(xxii) Any offense resulting in a conviction in another jurisdiction for which registration is required in the jurisdiction where the conviction was had;

(xxiii) Any conviction of conspiracy to commit, accessory to commission, or attempt to commit any offense listed in this section;

(xxiv) Capital murder when one (1) of the above-described offenses is the underlying crime.

(i) “Temporary residence” is defined as any place where the person abides, lodges, or resides for a period of seven (7) or more aggregate days in a six (6) month period which is not the person's permanent residence.

(j) “Address” means the actual physical street address of a person's permanent or temporary residence. For a person who is homeless but is subject to registration under this chapter, the address information must provide a specific description of where the person habitually lives; the term “homeless” or similar description does not constitute an address within the contemplation of this chapter.

Credits

Added by Laws 2000, Ch. 499, § 2, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 1, eff. July 1, 2001; Laws 2006, Ch. 328, § 3, eff. July 1, 2006; Laws 2006, Ch. 563, § 1, eff. July 1, 2006; Laws 2006, Ch. 583, § 7, eff. July 1, 2006; Laws 2007, Ch. 392, § 1, eff. July 1, 2007; Laws 2009, Ch. 411, § 1, eff. from and after passage (approved March 20, 2009); Laws 2011, Ch. 359, § 1, eff. July 1, 2011; Laws 2012, Ch. 557, § 3, eff. July 1, 2012; Laws 2013, Ch. 521 (S.B. No. 2732), § 1, eff. January 1, 2014; Laws 2015, Ch. 452 (S.B. No. 2159), § 9, eff. July 1, 2015; Laws 2016, Ch. 362 (H.B. No. 1413), § 2, eff. from and after passage (approved April 6, 2016); Laws 2019, Ch. 405 (S.B. No. 2532), § 3, eff. July 1, 2019; Laws 2024, Ch. 515 (H.B. No. 1004), § 1, eff. July 1, 2024.

Footnotes

1 So in official; probably should be “Mariana”.

Miss. Code Ann. § 45-33-23, MS ST § 45-33-23

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-25

§ 45-33-25. Registration of sex offenders on probation; information required; residence restrictions; exceptions

Effective: July 1, 2024

Currentness

(1)(a) Any person having a permanent or temporary residence in this state or who is employed or attending school in this state who has been convicted of a registrable offense in this state or another jurisdiction or who has been acquitted by reason of insanity of a registrable offense in this state or another jurisdiction shall register with the responsible agency and the Mississippi Department of Public Safety. Registration shall not be required for an offense that is not a registrable sex offense or for an offender who is under fourteen (14) years of age. The department shall provide the initial registration information as well as every change of name, change of address, change of status at a school, or other change of information as required by the department to the sheriff of the county of the residence address of the registrant, the sheriff of the county of the employment address, and the sheriff of the county of the school address, if applicable, and any other jurisdiction of the registrant through either written notice, electronic or telephone transmissions, or online access to registration information. Further, the department shall provide this information to the Federal Bureau of Investigation. Additionally, upon notification by the registrant that he intends to reside outside the State of Mississippi, the department shall notify the appropriate state law enforcement agency of any state to which a registrant is moving or has moved.

(b) Any person having a permanent or temporary residence or who is employed or attending school in this state who has been adjudicated delinquent for a registrable sex offense listed in this paragraph that involved use of force against the victim shall register as a sex offender with the responsible agency and shall personally appear at a facility designated by the Mississippi Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) business days of registering with the responsible agency:

(i) Section 97-3-71 relating to rape and assault with intent to ravish;

(ii) Section 97-3-95 relating to sexual battery;

(iii) Section 97-3-65 relating to statutory rape; or

(iv) Conspiracy to commit, accessory to the commission of, or attempt to commit any offense listed in this paragraph.

(2) Any person required to register under this chapter shall submit the following information at the time of registration:

(a) Name, including a former name which has been legally changed;

- (b) Street address of all current permanent and temporary residences within state or out of state at which the sex offender resides or habitually lives, including dates of temporary lodgings. There is a presumption that a registrant owes a duty of updating registration information if the registrant remains away from a registered address for seven (7) or more aggregate days in a six (6) month period;
- (c) Date, place and address of employment, including as a volunteer or unpaid intern or as a transient or day laborer;
- (d) Crime for which charged, arrested or convicted;
- (e) Date and place of conviction, adjudication or acquittal by reason of insanity;
- (f) Aliases used or nicknames, ethnic or tribal names by which commonly known;
- (g) Social security number and any purported social security number or numbers;
- (h) Date and place of birth and any purported date and place of birth;
- (i) Age, race, sex, height, weight, hair and eye colors, and any other physical description or identifying factors;
- (j) A brief description of the offense or offenses for which the registration is required;
- (k) Driver's license or state or other jurisdiction identification card number, which license or card may be electronically accessed by the Department of Public Safety;
- (l) Anticipated future residence;
- (m) If the registrant's residence is a motor vehicle, trailer, mobile home or manufactured home, the registrant shall also provide vehicle identification number, license tag number, registration number and a description, including color scheme, of the motor vehicle, trailer, mobile home or manufactured home; if the registrant's place of residence is a vessel or houseboat, the registrant shall also provide the hull identification number, manufacturer's serial number, name of the vessel or houseboat, registration number and a description, including color scheme, of the vessel or houseboat, including permanent or frequent locations where the motor vehicle, trailer, mobile home, manufactured home, vessel or houseboat is kept;
- (n) Vehicle make, model, color and license tag number for all vehicles owned or operated by the sex offender, whether for work or personal use, and the permanent or frequent locations where a vehicle is kept;
- (o) Offense history;

- (p) Photograph;
 - (q) Fingerprints and palm prints;
 - (r) Documentation of any treatment received for any mental abnormality or personality disorder of the person;
 - (s) Biological sample;
 - (t) Name of any public or private educational institution, including any secondary school, trade or professional institution or institution of higher education at which the offender is employed, carries on a vocation (with or without compensation) or is enrolled as a student, or will be enrolled as a student, and the registrant's status;
 - (u) Copy of conviction or sentencing order for the sex offense for which registration is required;
 - (v) The offender's parole, probation or supervised release status and the existence of any outstanding arrest warrants;
 - (w) Every online identity, screen name or username used, registered or created by a registrant;
 - (x) Professional licensing information which authorizes the registrant to engage in an occupation or carry out a trade or occupation;
 - (y) Information from passport and immigration documents;
 - (z) All telephone numbers, including, but not limited to, permanent residence, temporary residence, cell phone and employment phone numbers, whether landlines or cell phones; and
 - (aa) Any other information deemed necessary.
- (3) For purposes of this chapter, a person is considered to be residing in this state if he maintains a permanent or temporary residence as defined in Section 45-33-23, including students, temporary employees and military personnel on assignment.
- (4)(a) A person required to register under this chapter shall not reside within three thousand (3,000) feet of the real property comprising a public or nonpublic elementary or secondary school, a child care facility, a residential child-caring agency, a children's group care home or any playground, ballpark or other recreational facility utilized by persons under the age of eighteen (18) years.
- (b) A person residing within three thousand (3,000) feet of the real property comprising a public or nonpublic elementary or secondary school or a child care facility does not commit a violation of this subsection if any of the following apply:

(i) The person is serving a sentence at a jail, prison, juvenile facility or other correctional institution or facility.

(ii) The person is subject to an order of commitment under Title 41, Mississippi Code of 1972.

(iii) The person established the subject residence before July 1, 2006.

(iv) The school or child care facility is established within three thousand (3,000) feet of the person's residence subsequent to the date the person established residency.

(v) The person established the subject residence between July 1, 2006, and January 1, 2014, in a location at least one thousand five hundred (1,500) feet from the school or child care facility.

(vi) The person is a minor or a ward under a guardianship.

(c) A person residing within three thousand (3,000) feet of the real property comprising a residential child-caring agency, a children's group care home or any playground, ballpark or other recreational facility utilized by persons under the age of eighteen (18) years does not commit a violation of this subsection if any of the following apply:

(i) The person established the subject residence before July 1, 2008.

(ii) The residential child-caring agency, children's group care home, playground, ballpark or other recreational facility utilized by persons under the age of eighteen (18) years is established within three thousand (3,000) feet of the person's residence subsequent to the date the person established residency.

(iii) The person established the subject residence between July 1, 2008, and January 1, 2014, in a location at least one thousand five hundred (1,500) feet from the residential child-caring agency, children's group care home, playground, ballpark or other recreational facility utilized by persons under the age of eighteen (18) years.

(iv) Any of the conditions described in subsection (4)(b)(i), (ii) or (vi) exist.

(5) The Department of Public Safety is required to obtain the text of the law defining the offense or offenses for which the registration is required.

Credits

Added by Laws 2000, Ch. 499, § 3, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 2, eff. July 1, 2001; Laws 2006, Ch. 566, § 2, eff. July 1, 2006; Laws 2007, Ch. 392, § 2, eff. July 1, 2007; Laws 2008, Ch. 424, § 1, eff. July 1, 2008; Laws 2011, Ch. 359, § 2, eff. July 1, 2011; Laws 2013, Ch. 521 (S.B. No. 2732), § 2, eff. January 1, 2014; Laws 2020, Ch. 477 (H.B. No. 1371), § 10, eff. from and after passage (approved July 8, 2020); Laws 2024, Ch. 515 (H.B. No. 1004), § 2, eff. July 1, 2024.

Miss. Code Ann. § 45-33-25, MS ST § 45-33-25

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-26

§ 45-33-26. Presence within school zone; exceptions

Currentness

(1)(a) Unless exempted under subsection (2), it is unlawful for a person required to register as a sex offender under Section 45-33-25:

(i) To be present in any school building, on real property comprising any school, or in any conveyance owned, leased or contracted by a school to transport students to or from school or a school-related activity when persons under the age of eighteen (18) are present in the building, on the grounds or in the conveyance; or

(ii) To loiter within five hundred (500) feet of a school building or real property comprising any school while persons under the age of eighteen (18) are present in the building or on the grounds.

(b) It is unlawful for a person required to register as a sex offender under Section 45-33-25 to visit or be in or about any public beach or public campground where minor children congregate without advance approval from the Director of the Department of Public Safety Sex Offender Registry, and the registrant is required to immediately report any incidental contact with minor children to the director.

(2)(a) A person required to register as a sex offender who is a parent or guardian of a student attending the school and who complies with subsection (3) may be present on school property if the parent or guardian is:

(i) Attending a conference at the school with school personnel to discuss the progress of the sex offender's child academically or socially;

(ii) Participating in child review conferences in which evaluation and placement decisions may be made with respect to the sex offender's child regarding special education services;

(iii) Attending conferences to discuss other student issues concerning the sex offender's child such as retention and promotion;

(iv) Transporting the sex offender's child to and from school; or

(v) Present at the school because the presence of the sex offender has been requested by the principal for any other reason relating to the welfare of the child.

(b) Subsection (1) of this section shall not apply to a sex offender who is legally enrolled in a particular school or is participating in a school-sponsored educational program located at a particular school when the sex offender is present at that school.

(3)(a) In order to exercise the exemption under subsection (2), a parent or guardian who is required to register as a sex offender must notify the principal of the school of the sex offender's presence at the school unless the offender: (i) has permission to be present from the superintendent or the school board, or (ii) the principal has granted ongoing permission for regular visits of a routine nature.

(b) If permission is granted by the superintendent or the school board, the superintendent or school board president must inform the principal of the school where the sex offender will be present. Notification includes the nature of the sex offender's visit and the hours when the sex offender will be present in the school, and the sex offender is responsible for notifying the principal's office upon arrival and upon departure. If the sex offender is to be present in the vicinity of children, the sex offender has the duty to remain under the direct supervision of a school official.

(4) For the purposes of this section, the following terms shall have the meanings ascribed unless the context clearly requires otherwise:

(a) "School" means a public or private preschool, elementary school or secondary school.

(b) "Loiter" means standing or sitting idly, whether in or out of a vehicle, or remaining in or around school property without a legitimate reason.

(c) "School official" means the principal, a teacher, any other certified employee of the school, the superintendent of schools, or a member of the school board.

(5) A sex offender who violates this section is guilty of a misdemeanor and subject to a fine not to exceed One Thousand Dollars (\$1,000.00), incarceration not to exceed six (6) months in jail, or both.

(6) It is a defense to prosecution under this section that the sex offender did not know and could not reasonably know that the property or conveyance fell within the proscription of this section.

(7) Nothing in this section shall be construed to infringe upon the constitutional right of a sex offender to be present in a school building that is used as a polling place for the purpose of voting.

Credits

Added by Laws 2007, Ch. 595, § 1, eff. July 1, 2007. Amended by Laws 2012, Ch. 410, § 3, eff. July 1, 2012.

Miss. Code Ann. § 45-33-26, MS ST § 45-33-26

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-27

§ 45-33-27. Time for registration

Effective: July 8, 2020

Currentness

(1) A person required to register on the basis of a conviction, adjudication of delinquency or acquittal by reason of insanity entered shall register with the responsible agency within three (3) business days of the date of judgment unless the person is immediately confined or committed, in which case the person shall register before release in accordance with the procedures established by the department. The responsible agency shall immediately forward the registration information to the Department of Public Safety. The person is also required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) days of registration with the responsible agency and to obtain a sex offender registration card.

(2) If a person who is required to register under this section is released from prison or placed on parole or supervised release or in a restitution center or community work center, the Department of Corrections shall perform the registration duties before placement in a center or before release and immediately forward the registration information to the Department of Public Safety. The person is also required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) days of release or placement in a restitution center or community work center.

(3) If a person required to register under this section is placed on probation, the court, at the time of entering the order, shall register the person and immediately forward the registration information to the Department of Public Safety. The person is also required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) days of the entry of the order.

(4) Any person required to register who is neither incarcerated, detained nor committed at the time the requirement to register attaches shall present himself to the county sheriff to register within three (3) business days, and shall personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) days of the time the requirement to register attaches.

(5) An offender moving to or returning to this state from another jurisdiction shall notify the Department of Public Safety ten (10) days before the person first resides in or returns to this state and shall present himself to the sheriff of the county of his residence within three (3) business days after first residing in or returning to a county of this state to provide the required registration information. The person is also required to register by personally appearing at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) days after first residing in or moving to a county of this state. If the offender fails to appear for registration as required in this state, the department shall notify the other jurisdiction of the failure to register.

(6) A person, other than a person confined in a correctional or juvenile detention facility or involuntarily committed on the basis of mental illness, who is required to register on the basis of a sex offense for which a conviction, adjudication of delinquency or acquittal by reason of insanity was entered shall register with the sheriff of the county in which he resides no later than August 15, 2000, or within three (3) business days of first residing in or returning to a county of this state.

(7) Every person required to register shall show proof of domicile. The commissioner shall promulgate any rules and regulations necessary to enforce this requirement and shall prescribe the means by which such person may show domicile.

(8) Any driver's license photograph, I.D. photograph, sex offender photograph, fingerprint, driver's license application and/or anything submitted to the Department of Public Safety by a known convicted sex offender, registered or not registered, can be used by the Department of Public Safety or any other authorized law enforcement agency for any means necessary in registration, identification, investigation regarding their tracking or identification.

(9) The department will assist local law enforcement agencies in the effort to conduct address and other verifications of registered sex offenders and will assist in the location and apprehension of noncompliant sex offenders.

Credits

Added by Laws 2000, Ch. 499, § 4, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 3, eff. July 1, 2001; Laws 2005, Ch. 353, § 1, eff. July 1, 2005; Laws 2006, Ch. 563, § 2, eff. July 1, 2006; Laws 2007, Ch. 392, § 3, eff. July 1, 2007; Laws 2011, Ch. 359, § 3, eff. July 1, 2011; Laws 2020, Ch. 477 (H.B. No. 1371), § 11, eff. from and after passage (approved July 8, 2020).

Miss. Code Ann. § 45-33-27, MS ST § 45-33-27

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-28

§ 45-33-28. Registration of offender housed at a shelter during natural disaster or other emergency

Currentness

(1) Notwithstanding any other provision of the law to the contrary, during a declaration of emergency, any person who has been required to register as a sex offender as provided in this chapter who enters an emergency shelter, within the first twenty-four (24) hours of admittance, shall notify the management of the facility, the sheriff of the county in which the shelter is located and the chief of police of the municipality, if the shelter is located in a municipality, of the person's sex offender status. The sex offender shall provide his full name, date of birth, social security number, and last address of registration prior to the declaration of emergency. Within seventy-two (72) hours of receiving the notification required by the provisions of this subsection, the sheriff and chief of police shall forward that information to the department.

(2) The manager or director of the emergency shelter shall make a reasonable effort to notify the chief law enforcement officer of the county or municipality in which the shelter is located of the presence of the sex offender in the emergency shelter. No person associated with a nonprofit organization that operates an emergency shelter shall be liable for any injury or claim arising out of the failure of the manager or operator to communicate the presence of a sex offender in the shelter to the appropriate law enforcement official.

Credits

Added by Laws 2011, Ch. 359, § 4, eff. July 1, 2011.

Miss. Code Ann. § 45-33-28, MS ST § 45-33-28

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-29

§ 45-33-29. Address, status, employment, name change, vehicle, internet or other information

Effective: July 8, 2020

Currentness

- (1) Upon any change of address, including temporary lodging, an offender required to register under this chapter is required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, not less than ten (10) days before he intends to first reside at the new address.
- (2) Upon any change in the status of a registrant's enrollment, employment or vocation at any public or private educational institution, including any secondary school, trade or professional institution or institution of higher education, the offender is required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) business days of the change.
- (3) Upon any change of employment or change of name, a registrant is required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) business days of the change.
- (4) Upon any change of vehicle information, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.
- (5) Upon any change of e-mail address or addresses, instant message address or addresses, or any other designation used in Internet communications, postings or telephone communications, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.
- (6) Upon any change of information deemed by the department to be necessary to the state's policy to assist local law enforcement agencies' efforts to protect their communities, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.

Credits

Added by Laws 2000, Ch. 499, § 5, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 4, eff. July 1, 2001; Laws 2005, Ch. 353, § 2, eff. July 1, 2005; Laws 2006, Ch. 563, § 3, eff. July 1, 2006; Laws 2007, Ch. 392, § 4, eff. July 1, 2007; Laws 2011, Ch. 359, § 5, eff. July 1, 2011; Laws 2020, Ch. 477 (H.B. No. 1371), § 12, eff. from and after passage (approved July 8, 2020).

Miss. Code Ann. § 45-33-29, MS ST § 45-33-29

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-31

§ 45-33-31. Reregistration

Effective: July 8, 2020

Currentness

(1)(a) Registrants who are in compliance with a program of electronic monitoring under this chapter are required to reregister annually.

(b) All other registrants are required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, to register every ninety (90) days.

(2) Reregistration includes the submission of current information and photograph to the department and the verification of registration information, including the street address and telephone number of the registrant; name, street address and telephone number of the registrant's employment or status at a school, along with any other registration information that may need to be verified and the payment of any required fees.

(3) A person who fails to reregister and obtain a renewal sex offender registration card as required by this section commits a violation of this chapter. The Department of Public Safety will immediately notify any sheriff or other jurisdiction of any changes in information including residence address, employment and status at a school if that jurisdiction, county or municipality is affected by the change.

Credits

Added by Laws 2000, Ch. 499, § 6, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 5, eff. July 1, 2001; Laws 2005, Ch. 353, § 3, eff. July 1, 2005; Laws 2006, Ch. 563, § 4, eff. July 1, 2006; Laws 2007, Ch. 392, § 5, eff. July 1, 2007; Laws 2011, Ch. 359, § 6, eff. July 1, 2011; Laws 2013, Ch. 521 (S.B. No. 2732), § 5, eff. January 1, 2014; Laws 2020, Ch. 477 (H.B. No. 1371), § 13, eff. from and after passage (approved July 8, 2020).

Miss. Code Ann. § 45-33-31, MS ST § 45-33-31

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-32

§ 45-33-32. Volunteering for organization involving contact with minors; notification requirements

Effective: July 1, 2019

Currentness

(1) A person convicted of a sex offense who volunteers for an organization in which volunteers have direct, private and unsupervised contact with minors under the age of eighteen (18) shall notify the organization of the person's conviction at the time of volunteering. Such notification must be in writing to the organization. Any organization which accepts volunteers must notify volunteers of this disclosure requirement upon application of the volunteer to serve or prior to acceptance of any of the volunteer's service, whichever occurs first.

(2) If the organization, after notification by the offender as provided in subsection (1), accepts the offender as a volunteer, the organization shall make reasonable attempts to notify the parents or guardians of any minors under the age of eighteen (18) involved in the organization of the offender's criminal record.

(3) This section applies to all registered sex offenders regardless of the date of conviction.

(4) Any person previously registered as a sex offender and who has a continuing obligation to be registered as a sex offender shall be notified of the person's duty under this section with the first reregistration form to be sent to the person after July 1, 2004.

(5) If the registered sex offender is currently volunteering for such an organization, the sex offender must resign or notify the organization immediately upon receipt of notice or be subject to the penalties of this chapter.

(6) An organization acting in good faith in making the notification to parents or guardians under this section, or who fails in good faith to make such notification, shall not be liable in any civil or criminal action as a result of the notification or failure to notify.

Credits

Added by Laws 2004, Ch. 493, § 1, eff. July 1, 2004. Amended by Laws 2019, Ch. 405 (S.B. No. 2532), § 2, eff. July 1, 2019.

Miss. Code Ann. § 45-33-32, MS ST § 45-33-32

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-33

§ 45-33-33. Failure of offender to register and keep information current;
harboring or assisting sex offender eluding law enforcement agency; penalties

Effective: July 8, 2020

Currentness

(1)(a) The failure of an offender to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, or to provide any registration or other information, including, but not limited to, initial registration, reregistration, change of address information, change of employment, change of name, required notification to a volunteer organization or any other registration duty or submission of information required by this chapter is a violation of this chapter. Additionally, forgery of information or submission of information under false pretenses, whether by the registrant or another person, is also a violation of this chapter.

(b) A person commits a violation of this chapter who:

(i) Knowingly harbors, or knowingly attempts to harbor, or knowingly assists another person in harboring or attempting to harbor a sex offender who is in violation of this chapter;

(ii) Knowingly assists a sex offender in eluding a law enforcement agency that is seeking to find the sex offender to question the sex offender about, or to arrest the sex offender for, noncompliance with the requirements of this chapter; or

(iii) Provides information to a law enforcement agency regarding a sex offender which the person knows to be false.

(c) A registrant who is required to submit to electronic monitoring who does not comply with all the terms and conditions of the electronic monitoring commits a violation of this chapter.

(2)(a) Unless otherwise specified, a violation of this chapter shall be considered a felony and shall be punishable by a fine of not more than Five Thousand Dollars (\$5,000.00), imprisonment in the custody of the Department of Corrections for not more than five (5) years, or both fine and imprisonment.

(b) A person who is required to register under this chapter who is subsequently convicted for a registration violation under this section, upon release from incarceration, shall submit to mandatory electronic monitoring under the program established under Section 45-33-45 for a period computed by subtracting the time the person spent in actual incarceration from the five-year maximum imprisonment for the offense and the period of post-release monitoring shall not be suspended or reduced by the court or the Department of Corrections.

(3) Whenever it appears that an offender has failed to comply with the duty to register, reregister or submit to electronic monitoring, the department shall promptly notify the sheriff of the county of the last-known address of the offender as well as the sheriff of the county of the last-known location of the offender, if different. Upon notification, the sheriff shall attempt to locate the offender at his last-known address or last-known location.

(a) If the sheriff locates the offender, he shall enforce the provisions of this chapter, including initiation of prosecution if appropriate. The sheriff shall then notify the department with the current information regarding the offender.

(b) If the sheriff is unable to locate the offender, the sheriff shall promptly notify the department and initiate a criminal prosecution against the offender for the failure to register, reregister or comply with electronic monitoring. The sheriff shall make the appropriate transactions into the Federal Bureau of Investigation's wanted-person database and issue a warrant for the offender's arrest. The department shall notify the United States Marshals Service of the offender's noncompliant status and shall update the registry database and website to show the defendant's noncompliant status as an absconder.

(4) A violation of this chapter shall result in the arrest of the offender.

(5) Any prosecution for a violation of this section shall be brought by a prosecutor in the county of the violation.

(6) A person required to register under this chapter who commits any act or omission in violation of this chapter may be prosecuted for the act or omission in the county in which the act or omission was committed, the county of the last registered address of the sex offender, the county in which the conviction occurred for the offense or offenses that meet the criteria requiring the person to register, the county in which he was designated a sex offender, or the county in which the sex offender was found.

(7) The Commissioner of Public Safety or his authorized agent shall suspend the driver's license or driving privilege of any offender failing to comply with the duty to report, register or reregister, submit to monitoring, or who has provided false information.

(8) When a person required to register under this chapter is accused of any registration offense under this section, pretrial release on bond shall be conditioned on the offender's submission to electronic monitoring under the program established under Section 45-33-45.

Credits

Added by Laws 2000, Ch. 499, § 7, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 6, eff. July 1, 2001; Laws 2004, Ch. 493, § 2, eff. July 1, 2004; Laws 2005, Ch. 353, § 4, eff. July 1, 2005; Laws 2006, Ch. 566, § 3, eff. July 1, 2006; Laws 2007, Ch. 392, § 6, eff. July 1, 2007; Laws 2011, Ch. 359, § 7, eff. July 1, 2011; Laws 2013, Ch. 521 (S.B. No. 2732), § 6, eff. January 1, 2014; Laws 2020, Ch. 477 (H.B. No. 1371), § 14, eff. from and after passage (approved July 8, 2020).

Miss. Code Ann. § 45-33-33, MS ST § 45-33-33

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-34

§ 45-33-34. Notification of arrest, reincarceration or commitment

Currentness

(1) The Department of Corrections and all law enforcement agencies shall notify the department when a registered sex offender is arrested or incarcerated for another offense or as the result of having violated probation, parole, conditional discharge or other sentence or court order.

(2) The offender, offender's guardian, offender's conservator or the administrator of the institution shall notify the department when a registered sex offender is committed to a mental institution for a reason other than the initial confinement following an acquittal by reason of insanity for a sex offense.

Credits

Added by Laws 2006, Ch. 563, § 5, eff. July 1, 2006. Amended by Laws 2007, Ch. 392, § 7, eff. July 1, 2007.

Miss. Code Ann. § 45-33-34, MS ST § 45-33-34

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-35

§ 45-33-35. Central registry of offenders; duties of agencies to provide information

Effective: July 8, 2020

Currentness

(1) The Mississippi Department of Public Safety shall maintain a central registry of sex offender information as defined in Section 45-33-25 and shall adopt rules and regulations necessary to carry out this section. The responsible agencies shall provide the information required in Section 45-33-25 on a form developed by the department to ensure accurate information is maintained.

(2) Upon conviction, adjudication or acquittal by reason of insanity of any sex offender, if the sex offender is not immediately confined or not sentenced to a term of imprisonment, the clerk of the court which convicted and sentenced the sex offender shall inform the person of the duty to register, including the duty to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, and shall perform the registration duties as described in Section 45-33-23 and forward the information to the department.

(3) Before release from prison or placement on parole, supervised release or in a work center or restitution center, the Department of Corrections shall inform the person of the duty to register, including the duty to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, and shall perform the registration duties as described in Section 45-33-23 and forward the information to the Department of Public Safety.

(4) Before release from a community regional mental health center or from confinement in a mental institution following an acquittal by reason of insanity, the director of the facility shall inform the offender of the duty to register, including the duty to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, and shall perform the registration duties as described in Section 45-33-23 and forward the information to the Department of Public Safety.

(5) Before release from a youthful offender facility, the director of the facility shall inform the person of the duty to register, including the duty to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, and shall perform the registration duties as described in Section 45-33-23 and forward the information to the Department of Public Safety.

(6) In addition to performing the registration duties, the responsible agency shall:

(a) Inform the person having a duty to register that:

- (i) The person is required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, at least ten (10) days before changing address.
- (ii) Any change of address to another jurisdiction shall be reported to the department by personally appearing at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, not less than ten (10) days before the change of address. The offender shall comply with any registration requirement in the new jurisdiction.
- (iii) The person must register in any jurisdiction where the person is employed, carries on a vocation, is stationed in the military or is a student.
- (iv) Address verifications shall be made by personally appearing at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within the required time period.
- (v) Notification or verification of a change in status of a registrant's enrollment, employment or vocation at any public or private educational institution, including any secondary school, trade or professional institution, or institution of higher education shall be reported to the department by personally appearing at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) business days of the change.
- (vi) If the person has been convicted of a sex offense, the person shall notify any organization for which the person volunteers in which volunteers have direct, private or unsupervised contact with minors that the person has been convicted of a sex offense as provided in Section 45-33-32(1).
- (vii) Upon any change of name or employment, a registrant is required to personally appear at a facility designated by the Department of Public Safety, or in a manner of the Department of Public Safety's choosing, including by electronic means, within three (3) business days of the change.
- (viii) Upon any change of vehicle information, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.
- (ix) Upon any change of e-mail address or addresses, instant message address or addresses or any other designation used in Internet communications, postings or telephone communications, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.
- (x) Upon any change of information deemed to be necessary to the state's policy to assist local law enforcement agencies' efforts to protect their communities, a registrant is required to report the change on an appropriate form supplied by the department within three (3) business days of the change.

- (b) Require the person to read and sign a form stating that the duty of the person to register under this chapter has been explained.
- (c) Obtain or facilitate the obtaining of a biological sample from every registrant as required by this chapter if such biological sample has not already been provided to the Mississippi Forensics Laboratory.
- (d) Provide a copy of the order of conviction or sentencing order to the department at the time of registration.

Credits

Added by Laws 2000, Ch. 499, § 8, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 7, eff. July 1, 2001; Laws 2004, Ch. 493, § 3, eff. July 1, 2004; Laws 2005, Ch. 353, § 5, eff. July 1, 2005; Laws 2006, Ch. 563, § 6, eff. July 1, 2006; Laws 2007, Ch. 392, § 8, eff. July 1, 2007; Laws 2011, Ch. 359, § 8, eff. July 1, 2011; Laws 2015, Ch. 452 (S.B. No. 2159), § 10, eff. July 1, 2015; Laws 2020, Ch. 477 (H.B. No. 1371), § 15, eff. from and after passage (approved July 8, 2020).

Miss. Code Ann. § 45-33-35, MS ST § 45-33-35

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-36

§ 45-33-36. Sex offender registration; sharing of information

Effective: July 1, 2023

Currentness

(1) Upon receipt of sex offender registration or change of registration information, the Department of Public Safety shall immediately provide the information to:

- (a) The National Sex Offender Registry or other appropriate databases;
- (b) The sheriff of the county and the chief law enforcement officer of any other jurisdiction where the offender resides, lodges, is an employee or is a student or intends to reside, work, attend school or volunteer;
- (c) The sheriff of the county and the chief law enforcement officer of any other jurisdiction from which or to which a change of residence, employment or student status occurs;
- (d) The Department of Human Services, the Department of Child Protection Services, and any other social service entities responsible for protecting minors in the child welfare system;
- (e) The probation agency that is currently supervising the sex offender;
- (f) Any agency responsible for conducting employment-related background checks under Section 3 of the National Child Protection Act of 1993 (42 USC 5119(a));
- (g) Each school and public housing agency in each jurisdiction in which the sex offender resides, is an employee or is a student;
- (h) All prosecutor offices in each jurisdiction in which the sex offender resides, is an employee, or is a student; and
- (i) Any other agencies with criminal investigation, prosecution or sex offender supervision functions in each jurisdiction in which the sex offender resides, is an employee, or is a student.

(2) The Department of Public Safety shall post changes to the public registry website within three (3) business days. Electronic notification will be available via the Internet to all law enforcement agencies, to any volunteer organizations in which contact with minors or vulnerable adults might occur and any organization, company or individual who requests notification pursuant

to procedures established by the Department of Public Safety. This provision shall take effect upon the state's receipt and implementation of the Department of Justice software in compliance with the provisions of the Adam Walsh Act.

(3) From and after July 1, 2015, local jurisdictions receiving notification and that have the ability may notify residents when a sex offender begins residing, lodges, becomes employed, volunteers or attends school or intends to reside, lodge, work, attend school or volunteer in the area by using a website, social media, print media, email or may provide a link to the Department of Public Safety website.

Credits

Added by Laws 2007, Ch. 392, § 17, eff. July 1, 2007. Amended by Laws 2011, Ch. 359, § 9, eff. July 1, 2011; Laws 2013, Ch. 521 (S.B. No. 2732), § 7, eff. January 1, 2014; Laws 2023, Ch. 516 (H.B. No. 1149), § 77, eff. July 1, 2023.

Miss. Code Ann. § 45-33-36, MS ST § 45-33-36

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-37

§ 45-33-37. DNA identification system; convicted sex offender to provide blood sample for DNA
identification analysis; administrative authority; good faith presumption; use of information

Currentness

- (1) The Mississippi Forensics Laboratory shall develop a plan for and establish a deoxyribonucleic acid (DNA) identification system. In implementing the plan, the Mississippi Forensics Laboratory shall purchase the appropriate equipment. The DNA identification system as established herein shall be compatible with that utilized by the Federal Bureau of Investigation.
- (2) From and after January 1, 1996, every individual convicted of a sex offense or in the custody of the Mississippi Department of Corrections for a sex offense as defined in Section 45-33-23 shall submit a biological sample for purposes of DNA identification analysis before release from or transfer to a state correctional facility or county jail or other detention facility.
- (3) From and after January 1, 1996, any person having a duty to register under Section 45-33-25 for whom a DNA analysis is not already on file shall submit a biological sample for purposes of DNA identification analysis within five (5) working days after registration.
- (4) The Mississippi Forensics Laboratory shall be responsible for the policy management and administration of the state DNA identification record system to support law enforcement and other criminal justice agencies and shall:
 - (a) Promulgate rules and regulations to implement the provisions of this section; and
 - (b) Provide for cooperation with the Federal Bureau of Investigation and other criminal justice agencies relating to the state's participation in the Combined DNA Index System (CODIS) program and the national DNA identification index or in any DNA database designated by the Forensics Laboratory.
- (5) A DNA sample obtained in good faith shall be deemed to have been obtained in accordance with the requirements of this section. Any entry into the database which is found to be erroneous shall not prohibit law enforcement officials from the legitimate use of information in the furtherance of a criminal investigation.

Credits

Added by Laws 2000, Ch. 499, § 9, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 8, eff. July 1, 2001; Laws 2006, Ch. 563, § 7, eff. July 1, 2006; Laws 2015, Ch. 452 (S.B. No. 2159), § 11, eff. July 1, 2015.

Miss. Code Ann. § 45-33-37, MS ST § 45-33-37

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-39

§ 45-33-39. Notification to defendant charged with sex offense; notice included on any
guilty plea form and judgment and sentence forms; forwarding record of conviction

Currentness

(1) The court shall provide written notification to any defendant charged with a sex offense as defined by this chapter of the registration requirements of Sections 45-33-25 and 45-33-31. Such notice shall be included on any guilty plea forms and judgment and sentence forms provided to the defendant. The court shall obtain a written acknowledgment of receipt on each occasion.

(2) A court imposing a sentence, disposition or order of commitment following acquittal by reason of insanity shall notify the offender of the registration requirements of Sections 45-33-25 and 45-33-31. The court shall obtain a written acknowledgment of receipt on each occasion.

(3) A court having jurisdiction of any of the offenses enumerated in Section 45-33-23(h) shall cause to be forwarded to the Department of Public Safety a certified record of conviction in such court of any person of any of the offenses listed.

Credits

Added by Laws 2000, Ch. 499, § 10, eff. July 1, 2000. Amended by Laws 2011, Ch. 359, § 10, eff. July 1, 2011.

Miss. Code Ann. § 45-33-39, MS ST § 45-33-39

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-41

§ 45-33-41. Notification to inmates and offenders by Department of Corrections,
county or municipal jails, and juvenile detention facilities; victim notification

Currentness

(1) The Department of Corrections or any person having charge of a county or municipal jail or any juvenile detention facility shall provide written notification to an inmate or offender in the custody of the jail or other facility due to a conviction of or adjudication for a sex offense of the registration and notification requirements of Sections 45-33-25, 45-33-31, 45-33-32 and 45-33-59 at the time of the inmate's or offender's confinement and release from confinement, and shall receive a signed acknowledgment of receipt on both occasions.

(2) At least fifteen (15) days prior to the inmate's release from confinement, the Department of Corrections shall notify the victim of the offense or a designee of the immediate family of the victim regarding the date when the offender's release shall occur, provided a current address of the victim or designated family member has been furnished in writing to the Director of Records for such purpose.

Credits

Added by Laws 2000, Ch. 499, § 11, eff. July 1, 2000. Amended by Laws 2004, Ch. 493, § 4, eff. July 1, 2004; Laws 2007, Ch. 392, § 9, eff. July 1, 2007; Laws 2014, Ch. 457 (H.B. No. 585), § 77, eff. July 1, 2014.

Miss. Code Ann. § 45-33-41, MS ST § 45-33-41

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
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Miss. Code Ann. § 45-33-43

§ 45-33-43. Written notification to certain applicants for a driver's license, permit, or identification card

Effective: April 16, 2021

Currentness

At the time a person surrenders a driver's license from another jurisdiction or makes an application for a driver's license, temporary driving permit, commercial driver's license or identification card issued under Section 45-35-3, the department shall provide the applicant with written information on the registration requirements of this chapter and shall require written acknowledgment by the applicant of receipt of the notification.

Credits

Added by Laws 2000, Ch. 499, § 12, eff. July 1, 2000. Amended by Laws 2007, Ch. 392, § 10, eff. July 1, 2007; Laws 2021, Ch. 414 (H.B. No. 550), § 1, eff. from and after passage (approved April 5, 2021); Laws 2021, Ch. 464 (S.B. No. 2598), § 7, eff. from and after passage (approved April 16, 2021).

Miss. Code Ann. § 45-33-43, MS ST § 45-33-43

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West's Annotated Mississippi Code
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Miss. Code Ann. § 45-33-45

§ 45-33-45. Contract for data monitoring and alert system for monitored persons

Currentness

(1) The Department of Corrections may enter into a contract with a qualified vendor experienced in and capable of fulfilling the requirements of this section on a daily basis to provide a data monitoring and alert system for persons who are required to be monitored under this chapter. The initial program shall provide for monitoring upon release of the offenders listed in Section 45-33-33 or 45-33-47 as being obligated to be monitored while on bond or upon release from confinement.

(2) The system shall monitor the movement of a monitored subject through public records or other record information systems, and, at a minimum, shall provide:

(a) Time-correlated or continuous tracking of the geographic location of the monitored subject using a Global Positioning System that is based on satellite and other location technology;

(b) An automated monitoring system that can be used to permit law enforcement agencies to compare the geographic positions of monitored subjects with reported crime incidents and the proximity of the monitored subject to a reported crime incident; and

(c) From and after January 1, 2015, and subject to regulations promulgated by the Commissioner of Corrections, notification to:

(i) A victim or family of a victim who have registered for notification when the offender is within a specified range of the victim's or family's residence; and

(ii) Law enforcement when an offender is within the prohibited range of a school or other place where the offender is prohibited from being.

(3) The vendor shall notify the Department of Public Safety or a local law enforcement agency if a registered sex offender does any of the following:

(a) Moves from a residence or address in this state to a residence or address in another state.

(b) Moves from a residence or address in this state to another residence or address in this state.

(4) The Department of Corrections shall develop procedures to determine, investigate and report on a twenty-four-hour-per-day basis a monitored subject's noncompliance with the terms and conditions of the program, and all reports of noncompliance shall be investigated immediately by the law enforcement agency having jurisdiction that receives a report of noncompliance.

(5)(a) The system shall be installed and operational not later than January 1, 2014, following an appropriate testing period. The initial program shall consist of monitoring of the required offenders; in the second phase, the program will provide for notification to victims who have registered for notification.

(b) The Commissioner of Corrections shall study and develop recommendations for the Legislature as to the advisability of monitoring of additional registrants not later than January 1, 2015.

(6) The Commissioner of Corrections may adopt regulations to establish fees and otherwise administer monitoring of sex offenders as required under this chapter.

(7) Notwithstanding any provision of law, rule or regulation to the contrary, the Department of Corrections, Attorney General, Department of Public Safety, Mississippi Bureau of Investigation, and federal, county and municipal law enforcement agencies may share criminal incident information with each other and the vendor selected to provide the monitoring equipment for the program for the purposes of detection and prevention of crime.

Credits

Added by Laws 2013, Ch. 521 (S.B. No. 2732), § 4, eff. January 1, 2014.

Miss. Code Ann. § 45-33-45, MS ST § 45-33-45

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-47

§ 45-33-47. Petition for relief from duty to register; grounds; lifetime registration

Currentness

(1) A sex offender with a duty to register under Section 45-33-25 shall only be relieved of the duty under subsection (2) of this section.

(2) A person required to register for a registrable sex offense under Section 45-33-25 may petition the circuit court of the sentencing jurisdiction, or for a person whose duty to register arose in another jurisdiction, the county in which the registrant resides, to be relieved of that duty under the following conditions:

(a) The offender has maintained his registration in Mississippi for the required minimum registration from the most recent date of occurrence of at least one (1) of the following: release from prison, placement on parole, supervised release or probation or as determined by the offender's tier classification. Incarceration for any offense will restart the minimum registration requirement. Registration in any other jurisdiction does not reduce the minimum time requirement for maintaining registration in Mississippi.

(b) **Tier One.** (i) Tier One requires registration for a minimum of fifteen (15) years in this state and includes any of the following listed registrable sex offenses:

1. Section 97-5-27(1) relating to dissemination of sexually oriented material to children;
2. Section 97-29-61(2) relating to voyeurism when the victim is a child under sixteen (16) years of age;
3. Section 97-29-3 relating to misdemeanor sexual intercourse between teacher and student;
4. Section 97-29-45(1)(a) relating to obscene electronic communication;
5. Any conviction of conspiracy to commit, accessory to commission, or attempt to commit any offense listed in this tier;
6. Any conviction for violation of a similar law of another jurisdiction of any offense listed in this tier;
7. Any offense resulting in a conviction in another jurisdiction for which registration is required in the jurisdiction where the conviction was had, although registration would not be otherwise required in this state.

(ii) Notwithstanding any other provision of this chapter, an offender may petition the appropriate circuit court to be relieved of the duty to register upon fifteen (15) years' satisfaction of the requirements of this section for the convictions classified as Tier One offenses.

(c) **Tier Two.** (i) Tier Two requires registration for a minimum of twenty-five (25) years in this state and includes any of the following listed registrable sex offenses:

1. Section 97-5-33(3) through (9) relating to the exploitation of children;
2. Section 97-29-59 relating to unnatural intercourse;
3. Section 97-29-63, relating to filming another without permission where there is an expectation of privacy;
4. Section 97-3-104 relating to crime of sexual activity between law enforcement or correctional personnel and prisoners;
5. Section 43-47-18(2)(a) and (b) relating to gratification of lust or fondling by health care employees or persons in position of trust or authority;
6. Any conviction of conspiracy to commit, accessory to commission, or attempt to commit any offense listed in this tier;
7. Any conviction for violation of a similar law of another jurisdiction of any offense listed in this tier; or
8. Any conviction of a Tier One offense if it is the offender's second or subsequent conviction of a registrable sex offense;

(ii) Notwithstanding any other provision of this chapter, an offender may petition the appropriate circuit court to be relieved of the duty to register upon twenty-five (25) years' satisfaction of the requirements of this section for the convictions classified as Tier Two offenses.

(d) **Tier Three.** Tier Three requires lifetime registration, the registrant not being eligible to be relieved of the duty to register except as otherwise provided in this section, and includes any of the following listed registrable sex offenses:

- (i) Section 97-3-65 relating to rape;
- (ii) Section 97-3-71 relating to rape and assault with intent to ravish;
- (iii) Section 97-3-95 relating to sexual battery;

- (iv) Subsection (1) or (2) of Section 97-5-33 relating to the exploitation of children;
 - (v) Section 97-5-5 relating to enticing a child for concealment, prostitution or marriage;
 - (vi) Section 97-5-41 relating to the carnal knowledge of a stepchild, adopted child or child of a cohabiting partner;
 - (vii) Section 97-3-53 relating to kidnapping if the victim is under the age of eighteen (18);
 - (viii) Section 97-3-54.1(1)(c) relating to procuring sexual servitude of a minor;
 - (ix) Section 97-3-54.3 relating to aiding, abetting or conspiring to violate antihuman trafficking provisions;
 - (x) Section 97-5-23 relating to the touching of a child, mentally defective or incapacitated person or physically helpless person for lustful purposes;
 - (xi) Section 43-47-18 relating to sexual abuse of a vulnerable person by health care employees or persons in a position of trust or authority;
 - (xii) Section 97-5-39(1)(c) relating to contributing to the neglect or delinquency of a child, felonious abuse and/or battery of a child, if the victim was sexually abused;
 - (xiii) Capital murder when one (1) of the above described offenses is the underlying crime;
 - (xiv) Any conviction for violation of a similar law of another jurisdiction or designation as a sexual predator in another jurisdiction;
 - (xv) Any conviction of conspiracy to commit, accessory to commission, or attempt to commit any offense listed in this tier; or
 - (xvi) Any conviction of a Tier Two offense if it is the offender's second or subsequent conviction of a registrable sex offense.
- (e) An offender who has two (2) separate convictions for any of the registrable offenses described in Section 45-33-23 is subject to lifetime registration and shall not be eligible to petition to be relieved of the duty to register if at least one (1) of the convictions was entered on or after July 1, 1995.
- (f) An offender, twenty-one (21) years of age or older, who is convicted of any sex offense where the victim was fourteen (14) years of age or younger shall be subject to lifetime registration and shall not be relieved of the duty to register.

(g) A first-time offender fourteen (14) years of age or older adjudicated delinquent in a youth court for a registrable offense of rape pursuant to Section 96-3-65 or a registrable offense of sexual battery pursuant to Section 97-3-95 is subject to lifetime registration, but shall be eligible to petition to be relieved of the duty to register after twenty-five (25) years of registration.

(h) Registration following arrest or arraignment for failure to register is not a defense and does not relieve the sex offender of criminal liability for failure to register.

(i) The department shall continue to list in the registry the name and registration information of all registrants who no longer work, reside or attend school in this state even after the registrant moves to another jurisdiction and registers in the new jurisdiction as required by law. The registry shall note that the registrant moved out of state.

(3) In determining whether to release an offender from the obligation to register, the court shall consider the nature of the registrable offense committed and the criminal and relevant noncriminal behavior of the petitioner both before and after conviction. The court may relieve the offender of the duty to register only if the petitioner shows, by clear and convincing evidence, that the registrant properly maintained his registration as required by law and that future registration of the petitioner will not serve the purposes of this chapter and the court is otherwise satisfied that the petitioner is not a current or potential threat to public safety. The district attorney in the circuit in which the petition is filed must be given notice of the petition at least three (3) weeks before the hearing on the matter. The district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied. If the court denies the petition, the petitioner may not again petition the court for relief until one (1) year has elapsed unless the court orders otherwise in its order of denial of relief.

(4) The offender will be required to continue registration for any sex offense conviction unless the conviction is set aside in any post-conviction proceeding, the offender receives a pardon, the charge is dismissed or the offender has received a court order pursuant to this section relieving him of the duty to register. Upon submission of the appropriate documentation to the department of one (1) of these occurrences, registration duties will be discontinued.

(5) A person required to register as a sex offender who is convicted under Section 45-33-33 of providing false registration information or of failure to register, reregister, update registration, or comply with electronic monitoring shall be subject to electronic monitoring at the expense of the offender under the program provided in Section 45-33-45. Termination of the duty to register also terminates the duty to be monitored.

Credits

Added by Laws 2000, Ch. 499, § 14, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 10, eff. July 1, 2001; Laws 2006, Ch. 566, § 4, eff. July 1, 2006; Laws 2007, Ch. 392, § 11, eff. July 1, 2007; Laws 2011, Ch. 359, § 11, eff. July 1, 2011; Laws 2013, Ch. 521 (S.B. No. 2732), § 3, eff. January 1, 2014.

Miss. Code Ann. § 45-33-47, MS ST § 45-33-47

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-49

§ 45-33-49. Disclosure to public; websites; notification to schools and day
care centers; guidelines for sheriffs as to notification; maintenance of records

Currentness

- (1) Records maintained pursuant to this chapter shall be open to law enforcement agencies which shall be authorized to release relevant and necessary information regarding sex offenders to the public.
- (2) The identity of a victim of an offense that requires registration under this chapter shall not be released.
- (3) A sheriff shall maintain records for registrants of the county and shall make available to any person upon request the name, address, place of employment, crime for which convicted, date and place of conviction of any registrant, and any other information deemed necessary for the protection of the public. The sheriffs shall be responsible for verifying their respective registries annually against the department's records to ensure current information is available at both levels.
- (4)(a) Upon written request, the department shall provide to any person the name, address, photograph, if available, date of photograph, place of employment, crime for which convicted, date and place of conviction of any registrant, hair, eye color, height, race, sex and date of birth of any registrant, and any other information deemed necessary for the protection of the public.
 - (b)(i) The Department of Public Safety shall maintain an Internet website in a manner that will permit the public to obtain relevant information for each sex offender in the registry as required in this subsection (4). The website shall permit the public to obtain relevant information for each offender by a single query for any given name, zip code, municipality, county or geographic radius set by the user.
 - (ii) The Department of Public Safety shall participate in the Dru Sjodin National Sex Offender Public website. The information required to be displayed on the public registry website includes the offender's name and all known aliases; a current photograph; a physical description; the offender's residential addresses including the offender's permanent address and any address at which the offender habitually lives; employer address; school address; the current sex offense for which the offender is registered; criminal history of any other sex offenses for which the offender has been convicted; a description of the offender's vehicle including license tag number; and the offender's status if designated as noncompliant or an absconder because of failure to comply with the requirements of this chapter.
 - (iii) The public website shall not display the identity of a victim of an offense that requires registration under this chapter or the registered sex offender's social security number, travel or immigration document numbers, Internet identifiers, telephone numbers, or any arrests not resulting in conviction.

(5) The Department of Education, the Mississippi Private School Association and the Department of Health shall notify all schools and licensed day care centers annually regarding the availability upon request of this information.

(6) Nothing in this section shall be construed to prevent law enforcement officers from notifying members of the public exposed to danger of any circumstances or individuals that pose a danger under circumstances that are not enumerated in this section.

(7) Nothing in this chapter shall be construed to prevent law enforcement officers from providing community notification of any circumstances or individuals that pose or could pose a danger under circumstances that are not enumerated in this chapter.

Credits

Added by Laws 2000, Ch. 499, § 15, eff. July 1, 2000. Amended by Laws 2001, Ch. 500, § 11, eff. July 1, 2001; Laws 2011, Ch. 359, § 12, eff. July 1, 2011.

Miss. Code Ann. § 45-33-49, MS ST § 45-33-49

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-51

§ 45-33-51. Misuse of information; penalties

Currentness

(1) Any person who willfully misuses or alters public record information relating to a sex offender or sexual predator, or a person residing or working at an address reported by a sex offender, including information displayed by law enforcement agencies on web sites, shall be guilty of a misdemeanor and shall be punished by a fine of not more than One Thousand Dollars (\$1,000.00) or imprisonment in the county jail not more than six (6) months, or both.

(2) The sale or exchange of sex offender information for profit is prohibited. Any violation of this subsection (2) is a misdemeanor and shall be punished by a fine of not more than One Thousand Dollars (\$1,000.00) or imprisonment in the county jail not more than six (6) months, or both.

Credits

Added by Laws 2000, Ch. 499, § 16, eff. July 1, 2000. Amended by Laws 2007, Ch. 392, § 12, eff. July 1, 2007.

Miss. Code Ann. § 45-33-51, MS ST § 45-33-51

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-53

§ 45-33-53. Immunity from civil liability; immunity for exercise of discretion under chapter

Currentness

(1) An elected public official, public employee, or public agency is immune from civil liability for damages for any discretionary decision to release relevant and necessary information unless it is shown that the official, employee, or agency acted with gross negligence or in bad faith. The immunity provided under this section applies to the release of relevant information to other employees or officials or to the general public.

(2) Nothing in this chapter shall be deemed to impose any liability upon or to give rise to a cause of action against any public official, public employee, or public agency for failing to release information as authorized in this section.

(3) Notwithstanding any other provision of law to the contrary, any person who provides or fails to provide information relevant to the procedures set forth in this chapter shall not be liable therefor in any civil or criminal action. Nothing herein shall be deemed to grant any such immunity to any person for his willful or wanton act of commission or omission.

Credits

Added by Laws 2000, Ch. 499, § 17, eff. July 1, 2000.

Miss. Code Ann. § 45-33-53, MS ST § 45-33-53

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
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Miss. Code Ann. § 45-33-55

§ 45-33-55. Exemptions for expunction

Currentness

Except for juvenile criminal history information that has been sealed by order of the court, this chapter exempts sex offenses from laws of this state or court orders authorizing the destroying, expunging, purging or sealing of criminal history records to the extent such information is authorized for dissemination under this chapter.

Credits

Added by Laws 2000, Ch. 499, § 18, eff. July 1, 2000.

Miss. Code Ann. § 45-33-55, MS ST § 45-33-55

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-57

§ 45-33-57. Fees

Currentness

(1) The Department of Public Safety may adopt regulations to establish fees to be charged for information requests under this chapter.

(2) The Department of Public Safety may adopt regulations to establish fees to be charged to registrants for registration, reregistration, and verification or change of address.

(3) Regulations promulgated under this section shall be duly filed with the Secretary of State under the Administrative Procedures Act.

Credits

Added by Laws 2000, Ch. 499, § 19, eff. July 1, 2000. Amended by Laws 2005, Ch. 353, § 6, eff. July 1, 2005; Laws 2014, Ch. 424 (S.B. No. 2794), § 2, eff. October 1, 2014.

Miss. Code Ann. § 45-33-57, MS ST § 45-33-57

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-59

§ 45-33-59. Notification to employer of conviction of sex offense

Effective: July 1, 2019

Currentness

(1)(a) Any person convicted of a sex offense who is employed in any position, or who contracts with a person to provide personal services, where the employee or contractor will have direct, private and unsupervised contact with minors under the age of eighteen (18) shall notify in writing the employer or the person with whom the person has contracted or is employed of his sex offender status.

(b) The employer shall make a reasonable attempt to notify the parents or guardians of any minors under the age of eighteen (18) with whom the employee or contractor will have direct, private and unsupervised contact of the offender's criminal record.

(2) This section applies to all registered sex offenders regardless of the date of conviction.

(3) An employer acting in good faith in making notification to parents or guardians under this section, or who fails in good faith to make notification, shall not be liable in any civil or criminal action as a result of the notification or failure to notify.

(4) This section does not authorize the employment of a person for a position for which employment of a sex offender is prohibited by any law.

(5) This section does not apply to an employer whose employees have only incidental contact with children because children may be present in the workplace without any formal agreement; casual or incidental contact does not trigger the duty to inform.

Credits

Added by Laws 2006, Ch. 566, § 7, eff. July 1, 2006. Amended by Laws 2007, Ch. 392, § 13, eff. July 1, 2007; Laws 2019, Ch. 405 (S.B. No. 2532), § 1, eff. July 1, 2019.

Miss. Code Ann. § 45-33-59, MS ST § 45-33-59

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-61

§ 45-33-61. Administrative Office of Courts' youth court data management system; access by sex offenders

Effective: May 8, 2024

Currentness

<This section is repealed pursuant to its own terms on July 1, 2026. >

(1) A person convicted of a sex offense shall not access the Administrative Office of Courts' youth court data management system known as the Mississippi Youth Court Information Delivery System or "MYCIDS."

(2) This section applies to all registered sex offenders without regard to the date of conviction for a registrable offense.

(3) The provisions of this section shall stand repealed on July 1, 2026.

Credits

Added by Laws 2012, Ch. 410, § 2, eff. from and after passage (approved April 18, 2012). Amended by Laws 2024, Ch. 480 (H.B. No. 1315), § 7, eff. from and after passage (approved May 8, 2024).

Miss. Code Ann. § 45-33-61, MS ST § 45-33-61

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West's Annotated Mississippi Code
Title 45. Public Safety and Good Order
Chapter 33. Registration of Sex Offenders

Miss. Code Ann. § 45-33-63

§ 45-33-63. Carly's Law; prohibitions, contact orders, and violations

Effective: July 1, 2020

Currentness

(1) Except as otherwise provided in this section, it is unlawful for a person required to register as a sex offender under Section 45-33-25 to do or commit any of the following actions with respect to the victim of the offense triggering the duty to register under this chapter:

- (a) Threaten, visit, assault, molest, abuse, injure, or otherwise interfere with the victim;
 - (b) Follow the victim, including at the victim's workplace;
 - (c) Harass the victim;
 - (d) Contact the victim by telephone, written communication, or electronic means;
 - (e) Enter or remain present at the victim's residence, school, or place of employment when the victim is present.
- (2) This section does not apply if the court in which the conviction was had, at the request of the victim or the parent, guardian or conservator of the victim, enters an order allowing contact with the victim. The court may enter such an order if the court determines that reasonable grounds for the victim to fear any future contact with the defendant no longer exist.
- (3) A violation of this section is a felony punishable by a fine of not more than Five Thousand Dollars (\$5,000.00) and imprisonment in the custody of the Department of Corrections for not less than five (5) nor more than ten (10) years.
- (4) A law enforcement officer shall arrest and take into custody a person, with or without a warrant or other process, if the officer has probable cause to believe that the person knowingly has violated this section.
- (5) Nothing in this section shall be construed to affect the issuance or enforcement of a criminal sexual assault protection against a defendant who has been convicted under Section 97-3-65 or 97-3-95.
- (6) This section shall be known as Carly's Law.

Credits

Added by Laws 2020, Ch. 446 (S.B. No. 2009), § 1, eff. July 1, 2020.

Miss. Code Ann. § 45-33-63, MS ST § 45-33-63

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Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.400

589.400. Registration of certain offenders with chief law officers of county of residence--time limitation--registration requirements--fees--automatic removal from registry--petitions for exemption--procedure, notice, denial of petition--nonresident workers, higher education students and workers

Effective: August 28, 2018

Currentness

1. Sections 589.400 to 589.425 shall apply to:

(1) Any person who, since July 1, 1979, has been or is hereafter adjudicated for an offense referenced in section 589.414, unless such person is exempt from registering under subsection 9 or 10 of this section or section 589.401;

(2) Any person who, since July 1, 1979, has been or is hereafter convicted of, been found guilty of, or pled guilty or nolo contendere to committing, attempting to commit, or conspiring to commit one or more of the following offenses: kidnapping or kidnapping in the first degree when the victim was a child and the defendant was not a parent or guardian of the child; abuse of a child under section 568.060 when such abuse is sexual in nature; felonious restraint or kidnapping in the second degree when the victim was a child and the defendant is not a parent or guardian of the child; sexual contact or sexual intercourse with a resident of a nursing home or sexual conduct with a nursing facility resident or vulnerable person in the first or second degree; endangering the welfare of a child under section 568.045 when the endangerment is sexual in nature; genital mutilation of a female child, under section 568.065; promoting prostitution in the first degree; promoting prostitution in the second degree; promoting prostitution in the third degree; sexual exploitation of a minor; promoting child pornography in the first degree; promoting child pornography in the second degree; possession of child pornography; furnishing pornographic material to minors; public display of explicit sexual material; coercing acceptance of obscene material; promoting obscenity in the first degree; promoting pornography for minors or obscenity in the second degree; incest; use of a child in a sexual performance; or promoting sexual performance by a child; patronizing prostitution if the individual the person patronizes is less than eighteen years of age;

(3) Any person who, since July 1, 1979, has been committed to the department of mental health as a criminal sexual psychopath;

(4) Any person who, since July 1, 1979, has been found not guilty as a result of mental disease or defect of any offense referenced in section 589.414;

(5) Any juvenile certified as an adult and transferred to a court of general jurisdiction who has been adjudicated for an offense listed under section 589.414;

(6) Any juvenile fourteen years of age or older at the time of the offense who has been adjudicated for an offense which is equal to or more severe than aggravated sexual abuse under 18 U.S.C. Section 2241, which shall include any attempt or conspiracy to commit such offense;

(7) Any person who is a resident of this state who has, since July 1, 1979, been or is hereafter adjudicated in any other state, territory, the District of Columbia, or foreign country, or under federal, tribal, or military jurisdiction for an offense which, if committed in this state, would constitute an offense listed under section 589.414, or has been or is required to register in another state, territory, the District of Columbia, or foreign country, or has been or is required to register under tribal, federal, or military law; or

(8) Any person who has been or is required to register in another state, territory, the District of Columbia, or foreign country, or has been or is required to register under tribal, federal, or military law and who works or attends an educational institution, whether public or private in nature, including any secondary school, trade school, professional school, or institution of higher education on a full-time or on a part-time basis or has a temporary residence in Missouri. **“Part-time”** in this subdivision means for more than seven days in any twelve-month period.

2. Any person to whom sections 589.400 to 589.425 apply shall, within three business days of adjudication, release from incarceration, or placement upon probation, register with the chief law enforcement official of the county or city not within a county in which such person resides unless such person has already registered in that county for the same offense. For any juvenile under subdivision (6) of subsection 1 of this section, within three business days of adjudication or release from commitment to the division of youth services, the department of mental health, or other placement, such juvenile shall register with the chief law enforcement official of the county or city not within a county in which he or she resides unless he or she has already registered in such county or city not within a county for the same offense. Any person to whom sections 589.400 to 589.425 apply if not currently registered in their county of residence shall register with the chief law enforcement official of such county or city not within a county within three business days. The chief law enforcement official shall forward a copy of the registration form required by section 589.407 to a city, town, village, or campus law enforcement agency located within the county of the chief law enforcement official.

3. The registration requirements of sections 589.400 through 589.425 shall be as provided under subsection 4 of this section unless:

(1) All offenses requiring registration are reversed, vacated, or set aside;

(2) The registrant is no longer required to register and his or her name shall be removed from the registry under the provisions of section 589.414; or

(3) The court orders the removal or exemption of such person from the registry under section 589.401.

4. The registration requirements shall be as follows:

(1) Fifteen years if the offender is a tier I sex offender as provided under section 589.414;

(2) Twenty-five years if the offender is a tier II sex offender as provided under section 589.414; or

(3) The life of the offender if the offender is a tier III sex offender.

5. (1) The registration period shall be reduced as described in subdivision (3) of this subsection for a sex offender who maintains a clean record for the periods described under subdivision (2) of this subsection by:

(a) Not being adjudicated of any offense for which imprisonment for more than one year may be imposed;

(b) Not being adjudicated of any sex offense;

(c) Successfully completing any periods of supervised release, probation, or parole; and

(d) Successfully completing an appropriate sex offender treatment program certified by the attorney general.

(2) In the case of a:

(a) Tier I sex offender, the period during which the clean record shall be maintained is ten years;

(b) Tier III sex offender adjudicated delinquent for the offense which required registration in a sex offender registry under sections 589.400 to 589.425, the period during which the clean record shall be maintained is twenty-five years.

(3) In the case of a:

(a) Tier I sex offender, the reduction is five years;

(b) Tier III sex offender adjudicated delinquent, the reduction is from life to that period for which the clean record under paragraph (b) of subdivision (2) of this subsection is maintained.

6. For processing an initial sex offender registration the chief law enforcement officer of the county or city not within a county may charge the offender registering a fee of up to ten dollars.

7. For processing any change in registration required pursuant to section 589.414 the chief law enforcement official of the county or city not within a county may charge the person changing their registration a fee of five dollars for each change made after the initial registration.

8. Any person currently on the sexual offender registry or who otherwise would be required to register for being adjudicated for the offense of felonious restraint of a nonsexual nature when the victim was a child and he or she was the parent or guardian

of the child, nonsexual child abuse that was committed under section 568.060, or kidnapping of a nonsexual nature when the victim was a child and he or she was the parent or guardian of the child shall be removed from the registry. However, such person shall remain on the sexual offender registry for any other offense for which he or she is required to register under sections 589.400 to 589.425.

9. The following persons shall be exempt from registering as a sexual offender upon petition to the court of jurisdiction under section 589.401; except that, such person shall remain on the sexual offender registry for any other offense for which he or she is required to register under sections 589.400 to 589.425:

(1) Any person currently on the sexual offender registry or who otherwise would be required to register for a sexual offense involving:

(a) Sexual conduct where no force or threat of force was directed toward the victim or any other individual involved, if the victim was an adult, unless the adult was under the custodial authority of the offender at the time of the offense; or

(b) Sexual conduct where no force or threat of force was directed toward the victim, the victim was at least fourteen years of age, and the offender was not more than four years older than the victim at the time of the offense; or

(2) Any person currently required to register for the following sexual offenses:

(a) Promoting obscenity in the first degree under section 573.020;

(b) Promoting obscenity in the second degree under section 573.030;

(c) Furnishing pornographic materials to minors under section 573.040;

(d) Public display of explicit sexual material under section 573.060;

(e) Coercing acceptance of obscene material under section 573.065;

(f) Trafficking for the purpose of slavery, involuntary servitude, peonage, or forced labor under section 566.206;

(g) Abusing an individual through forced labor under section 566.203;

(h) Contributing to human trafficking through the misuse of documentation under section 566.215; or

(i) Acting as an international marriage broker and failing to provide the information and notice as required under section 578.475.

10. Any person currently on the sexual offender registry for having been adjudicated for a tier I or II offense or adjudicated delinquent for a tier III offense or other comparable offenses listed under section 589.414 may file a petition under section 589.401.

11. Any nonresident worker, including work as a volunteer or intern, or nonresident student shall register for the duration of such person's employment, including participation as a volunteer or intern, or attendance at any school of higher education whether public or private, including any secondary school, trade school, professional school, or institution of higher education on a full-time or part-time basis in this state unless granted relief under section 589.401. Any registered offender shall provide information regarding any place in which the offender is staying when away from his or her residence for seven or more days, including the period of time the offender is staying in such place. Any registered offender from another state who has a temporary residence in this state and resides more than seven days in a twelve-month period shall register for the duration of such person's temporary residency unless granted relief under section 589.401.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999; L.2000, S.B. Nos. 757 & 602, § A; L.2002, S.B. No. 758, § A; L.2002, S.B. Nos. 969, 673 & 855, § A; L.2003, S.B. No. 5, § A, eff. June 27, 2003; L.2003, S.B. No. 184, § A; L.2004, H.B. No. 1055, § A; L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2009, H.B. No. 62, § A; L.2014, S.B. No. 491, § A, eff. Jan. 1, 2017; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018; L.2018, S.B. No. 793, § A, eff. Aug. 28, 2018.)

V. A. M. S. 589.400, MO ST 589.400

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.401

589.401. Removal from registry, petition, procedure

Effective: August 28, 2018

Currentness

1. A person on the sexual offender registry may file a petition in the division of the circuit court in the county or city not within a county in which the offense requiring registration was committed to have his or her name removed from the sexual offender registry.

2. A person who is required to register in this state because of an offense that was adjudicated in another jurisdiction shall file his or her petition for removal according to the laws of the state, territory, tribal, or military jurisdiction, the District of Columbia, or foreign country in which his or her offense was adjudicated. Upon the grant of the petition for removal in the jurisdiction where the offense was adjudicated, such judgment may be registered in this state by sending the information required under subsection 5 of this section as well as one authenticated copy of the order granting removal from the sexual offender registry in the jurisdiction where the offense was adjudicated to the court in the county or city not within a county in which the offender is required to register. On receipt of a request for registration removal, the registering court shall cause the order to be filed as a foreign judgment, together with one copy of the documents and information, regardless of their form. The petitioner shall be responsible for costs associated with filing the petition.

3. A person required to register as a tier III offender shall not file a petition under this section unless the requirement to register results from a juvenile adjudication.

4. The petition shall be dismissed without prejudice if the following time periods have not elapsed since the date the person was required to register for his or her most recent offense under sections 589.400 to 589.425:

(1) For a tier I offense, ten years;

(2) For a tier II offense, twenty-five years; or

(3) For a tier III offense adjudicated delinquent, twenty-five years.

5. The petition shall be dismissed without prejudice if it fails to include any of the following:

(1) The petitioner's:

- (a) Full name, including any alias used by the individual;
 - (b) Sex;
 - (c) Race;
 - (d) Date of birth;
 - (e) Last four digits of the Social Security number;
 - (f) Address; and
 - (g) Place of employment, school, or volunteer status;
- (2) The offense and tier of the offense that required the petitioner to register;
 - (3) The date the petitioner was adjudicated for the offense;
 - (4) The date the petitioner was required to register;
 - (5) The case number and court, including the county or city not within a county, that entered the original order for the adjudicated sex offense;
 - (6) Petitioner's fingerprints on an applicant fingerprint card;
 - (7) If the petitioner was pardoned or an offense requiring registration was reversed, vacated, or set aside, an authenticated copy of the order; and
 - (8) If the petitioner is currently registered under applicable law and has not been adjudicated for failure to register in any jurisdiction and does not have any charges pending for failure to register.
6. The petition shall name as respondents the Missouri state highway patrol and the chief law enforcement official in the county or city not within a county in which the petition is filed.
7. All proceedings under this section shall be governed under the Missouri supreme court rules of civil procedure.

8. The person seeking removal or exemption from the registry shall provide the prosecuting attorney in the circuit court in which the petition is filed with notice of the petition. The prosecuting attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied. Failure of the person seeking removal or exemption from the registry to notify the prosecuting attorney of the petition shall result in an automatic denial of such person's petition.

9. The prosecuting attorney in the circuit court in which the petition is filed shall have access to all applicable records concerning the petitioner including, but not limited to, criminal history records, mental health records, juvenile records, and records of the department of corrections or probation and parole.

10. The prosecuting attorney shall make reasonable efforts to notify the victim of the crime for which the person was required to register of the petition and the dates and times of any hearings or other proceedings in connection with such petition.

11. The court shall not enter an order directing the removal of the petitioner's name from the sexual offender registry unless it finds the petitioner:

(1) Has not been adjudicated or does not have charges pending for any additional nonsexual offense for which imprisonment for more than one year may be imposed since the date the offender was required to register for his or her current tier level;

(2) Has not been adjudicated or does not have charges pending for any additional sex offense that would require registration under sections 589.400 to 589.425 since the date the offender was required to register for his or her current tier level, even if the offense was punishable by less than one year imprisonment;

(3) Has successfully completed any required periods of supervised release, probation, or parole without revocation since the date the offender was required to register for his or her current tier level;

(4) Has successfully completed an appropriate sex offender treatment program as approved by a court of competent jurisdiction or the Missouri department of corrections; and

(5) Is not a current or potential threat to public safety.

12. In order to meet the criteria required by subdivisions (1) and (2) of subsection 11 of this section, the fingerprints filed in the case shall be examined by the Missouri state highway patrol. The petitioner shall be responsible for all costs associated with the fingerprint-based criminal history check of both state and federal files under section 43.530.

13. If the petition is denied due to an adjudication in violation of subdivision (1) or (2) of subsection 11 of this section, the petitioner shall not file a new petition under this section until:

(1) Fifteen years have passed from the date of the adjudication resulting in the denial of relief if the petitioner is classified as a tier I offender;

(2) Twenty-five years have passed from the date of adjudication resulting in the denial of relief if the petitioner is classified as a tier II offender; or

(3) Twenty-five years have passed from the date of the adjudication resulting in the denial of relief if the petitioner is classified as a tier III offender on the basis of a juvenile adjudication.

14. If the petition is denied due to the petitioner having charges pending in violation of subdivision (1) or (2) of subsection 11 of this section, the petitioner shall not file a new petition under this section until:

(1) The pending charges resulting in the denial of relief have been finally disposed of in a manner other than adjudication; or

(2) If the pending charges result in an adjudication, the necessary time period has elapsed under subsection 13 of this section.

15. If the petition is denied for reasons other than those outlined in subsection 11 of this section, no successive petition requesting such relief shall be filed for at least five years from the date the judgment denying relief is entered.

16. If the court finds the petitioner is entitled to have his or her name removed from the sexual offender registry, the court shall enter judgment directing the removal of the name. A copy of the judgment shall be provided to the respondents named in the petition.

17. Any person subject to the judgment requiring his or her name to be removed from the sexual offender registry is not required to register under sections 589.400 to 589.425 unless such person is required to register for an offense that was different from that listed on the judgment of removal.

18. The court shall not deny the petition unless the petition failed to comply with the provisions of sections 589.400 to 589.425 or the prosecuting attorney provided evidence demonstrating the petition should be denied.

Credits

(L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

V. A. M. S. 589.401, MO ST 589.401

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.402

589.402. Internet search capability of registered sex offenders to be maintained--information
to be made available--newspaper publication--juveniles exempt from public notification

Effective: August 28, 2018

Currentness

1. The chief law enforcement officer of the county or city not within a county may maintain a web page on the internet, which shall be open to the public and shall include a registered sexual offender search capability.
2. Except as provided in subsections 4 and 5 of this section, the registered sexual offender search shall make it possible for any person using the internet to search for and find the information specified in subsection 3 of this section, if known, on offenders registered in this state pursuant to sections 589.400 to 589.425.
3. Only the information listed in this subsection shall be provided to the public in the registered sexual offender search:
 - (1) The name and any known aliases of the offender;
 - (2) The date of birth and any known alias dates of birth of the offender;
 - (3) A physical description of the offender;
 - (4) The residence, temporary, work, and school addresses of the offender, including the street address, city, county, state, and zip code;
 - (5) Any photographs of the offender;
 - (6) A physical description of the offender's vehicles, including the year, make, model, color, and license plate number;
 - (7) The nature and dates of all offenses qualifying the offender to register, including the tier level assigned to the offender under sections 589.400 to 589.425;
 - (8) The date on which the offender was released from the department of mental health, prison, or jail, or placed on parole, supervised release, or probation for the offenses qualifying the offender to register;

(9) Compliance status of the offender with the provisions of sections 589.400 to 589.425; and

(10) Any online identifiers, as defined in section 43.651, used by the person. Such online identifiers shall not be included in the general profile of an offender on the web page and shall only be available to a member of the public by a search using the specific online identifier to determine if a match exists with a registered offender.

4. The chief law enforcement officer of any county or city not within a county may publish in any newspaper distributed in the county or city not within a county the sexual offender information provided under subsection 3 of this section for any offender residing in the county or city not within a county.

5. Juveniles required to register under subdivision (6) of subsection 1 of section 589.400 shall be exempt from public notification to include any adjudications from another state, territory, the District of Columbia, or foreign country or any federal, tribal, or military jurisdiction.

Credits

(L.2005, S.B. No. 73, § A. Amended by L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

V. A. M. S. 589.402, MO ST 589.402

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.403

589.403. Correctional facility or mental health institution releasing on parole or discharge, official in charge, duties

Effective: August 28, 2018

Currentness

1. Any person who is required to register under sections 589.400 to 589.425 and who is paroled, discharged, or otherwise released from any correctional facility of the department of corrections, any mental health institution, private jail under section 221.095, or other private facility recognized by or contracted with the department of corrections or department of mental health where such person was confined shall:

(1) If the person plans to reside in this state, be informed by the official in charge of such correctional facility, private jail, or mental health institution of the person's possible duty to register pursuant to sections 589.400 to 589.425. If such person is required to register pursuant to sections 589.400 to 589.425, the official in charge of the correctional facility, private jail, or the mental health institution shall complete the initial registration notification at least seven days prior to release and forward the offender's registration, within three business days of release, to the Missouri state highway patrol and the chief law enforcement official of the county or city not within a county where the person expects to reside upon discharge, parole, or release; or

(2) If the person does not reside or plan to reside in Missouri, be informed by the official in charge of such correctional facility, private jail, or mental health institution of the person's possible duty to register under sections 589.400 to 589.425. If such person is required to register under sections 589.400 to 589.425, the official in charge of the correctional facility, private jail, or the mental health institution shall complete the initial registration notification at least seven days prior to release and forward the offender's registration, within three business days of release, to the Missouri state highway patrol and the chief law enforcement official within the county or city not within a county where the correctional facility, private jail, or mental health institution is located.

2. If the offender refuses to complete and sign the registration information as outlined in this section or fails to register with the chief law enforcement official within three business days as directed, the offender commits the offense of failure to register under section 589.425 within the jurisdiction where the correctional facility, private jail, or mental health institution is located.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

V. A. M. S. 589.403, MO ST 589.403

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.404

589.404. Definitions

Effective: August 28, 2022

Currentness

As used in sections 589.400 to 589.425, the following terms mean:

- (1) “**Adjudicated**” or “**adjudication**”, adjudication of delinquency, a finding of guilt, plea of guilt, finding of not guilty due to mental disease or defect, or plea of nolo contendere to committing, attempting to commit, or conspiring to commit;
- (2) “**Adjudicated delinquent**”, a person found to have committed an offense that, if committed by an adult, would be a criminal offense;
- (3) “**Chief law enforcement official**”, the sheriff’s office of each county or the police department of a city not within a county;
- (4) “**Offender registration**”, the required minimum informational content of sex offender registries, which shall consist of, but not be limited to, a full set of fingerprints on a standard sex offender registration card upon initial registration in Missouri, as well as all other forms required by the Missouri state highway patrol upon each initial and subsequent registration;
- (5) “**Residence**”, any place where an offender sleeps for seven or more consecutive or nonconsecutive days or nights within a twelve-month period;
- (6) “**Sex offender**”, any person who meets the criteria to register under sections 589.400 to 589.425 or the Sex Offender Registration and Notification Act, Title I of the Adam Walsh Child Protection and Safety Act of 2006, P.L. 109-248;
- (7) “**Sex offense**”, any offense which is listed under section 589.414 or comparable to those listed under section 589.414 or otherwise comparable to offenses covered under the Sex Offender Registration and Notification Act, Title I of the Adam Walsh Child Protection and Safety Act of 2006, P.L. 109-248;
- (8) “**Sexual act**”, any type or degree of genital, oral, or anal penetration;
- (9) “**Sexual conduct**”, sexual intercourse, deviate sexual intercourse, or sexual contact;

(10) **“Sexual contact”**, any touching of another person with the genitals or any touching of the genitals or anus of another person, or the breast of a female person, or such touching through the clothing, or causing semen, seminal fluid, or other ejaculate to come into contact with another person, for the purpose of arousing or gratifying the sexual desire of any person or for the purpose of terrorizing the victim;

(11) **“Sexual element”**, used for the purposes of distinguishing if sexual contact or a sexual act was committed. Authorities shall refer to information filed by the prosecutor, amended information filed by the prosecutor, indictment information filed by the prosecutor, or amended indictment information filed by the prosecutor, the plea agreement, or court documentation to determine if a sexual element exists;

(12) **“Signature”**, the name of the offender signed in writing or electronic form approved by the Missouri state highway patrol;

(13) **“Student”**, an individual who enrolls in or attends the physical location of an educational institution, including a public or private secondary school, trade or professional school, or an institution of higher education;

(14) **“Vehicle”**, any land vehicle, watercraft, or aircraft.

Credits

(L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018. Amended by L.2022, S.B. Nos. 775, 751 & 640, § A, eff. Aug. 28, 2022.)

V. A. M. S. 589.404, MO ST 589.404

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.405

589.405. Court's duties upon release of sexual offender

Effective: August 28, 2018

Currentness

1. Any person who is required to register under sections 589.400 to 589.425 and who is released on probation, discharged upon payment of a fine, or released after confinement in a county jail shall, prior to such release or discharge and at the time of adjudication, be informed of the possible duty to register pursuant to sections 589.400 to 589.425 by the court having jurisdiction over the case. If such person is required to register pursuant to sections 589.400 to 589.425 and is placed on probation, the court shall make it a condition of probation that the offender report within three business days to the chief law enforcement official of the county of adjudication or city not within a county of adjudication to complete initial registration. If such offender is not placed on probation, the court shall:

(1) If the offender resides in Missouri, complete the initial notification of duty to register form approved by the state judicial records committee and the Missouri state highway patrol and forward the form within three business days to the Missouri state highway patrol and the chief law enforcement official in the county or city not within a county in which the offender resides; or

(2) If the offender does not reside in Missouri:

(a) Order the offender to report directly to the chief law enforcement official in the county or city not within a county where the adjudication was heard to register as provided in sections 589.400 to 589.425; and

(b) Complete the initial notification of duty to register form approved by the state judicial records committee and the Missouri state highway patrol and forward the form within three business days to the Missouri state highway patrol and the chief law enforcement official in the county or city not within a county where the offender was adjudicated.

2. If the offender resides in Missouri and refuses to complete and sign the registration information as provided in subdivision (1) of subsection 1 of this section, or if the offender resides outside of Missouri and refuses to directly report to the chief law enforcement official as provided in subdivision (2) of subsection 1 of this section, the offender commits the offense of failure to register under section 589.425.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

V. A. M. S. 589.405, MO ST 589.405

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.407

589.407. Registration, required information--substantiating accuracy of
information--changes to information, notification to other jurisdictions

Effective: August 28, 2018

Currentness

1. Any registration pursuant to sections 589.400 to 589.425 shall consist of completion of an offender registration form developed by the Missouri state highway patrol or other format approved by the Missouri state highway patrol. Such form shall consist of a statement, including the signature of the offender, and shall include, but is not limited to, the following:

(1) A statement in writing signed by the person, giving the name, address, date of birth, Social Security number, and phone number of the person, the license plate number and vehicle description, including the year, make, model, and color of each vehicle owned or operated by the offender, any online identifiers, as defined in section 43.651, used by the person, the place of employment of such person, enrollment within any institutions of higher education, the crime which requires registration, whether the person was sentenced as a persistent or predatory offender pursuant to section 566.125,¹ the date, place, and a brief description of such crime, the date and place of the conviction or plea regarding such crime, the age and gender of the victim at the time of the offense and whether the person successfully completed the Missouri sexual offender program pursuant to section 589.040, if applicable;

(2) The fingerprints and palm prints of the person;

(3) Unless the offender's appearance has not changed significantly, a photograph of such offender as follows:

(a) Quarterly if a tier III sex offender under section 589.414. Such photograph shall be taken every ninety days beginning in the month of the person's birth;

(b) Semiannually if a tier II sex offender. Such photograph shall be taken in the month of the person's birth and six months thereafter; and

(c) Yearly if a tier I sex offender. Such photograph shall be taken in the month of the person's birth; and

(4) A DNA sample from the individual, if a sample has not already been obtained.

2. The offender shall provide positive identification and documentation to substantiate the accuracy of the information completed on the offender registration form, including but not limited to the following:

(1) A photocopy of a valid driver's license or nondriver's identification card;

(2) A document verifying proof of the offender's residency; and

(3) A photocopy of the vehicle registration for each of the offender's vehicles.

3. The Missouri state highway patrol shall maintain all required registration information in digitized form.

4. Upon receipt of any changes to an offender's registration information contained in this section, the Missouri state highway patrol shall immediately notify all other jurisdictions in which the offender is either registered or required to register.

5. The offender shall be responsible for reviewing his or her existing registration information for accuracy at every regular in-person appearance and, if any inaccuracies are found, provide proof of the information in question.

6. The signed offender registration form shall serve as proof that the individual understands his or her duty to register as a sexual offender under sections 589.400 to 589.425 and a statement to this effect shall be included on the form that the individual is required to sign at each registration.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999; L.2003, S.B. No. 5, § A, eff. June 27, 2003; L.2003, S.B. No. 184, § A; L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

Footnotes

1 **Revisor's note:** Section 558.018 was transferred to section 566.125 by S.B. 491, 2014, effective 1-01-17.

V. A. M. S. 589.407, MO ST 589.407

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.410

589.410. Highway patrol to be notified, information to be made a part of MULES

Currentness

The chief law enforcement official shall forward the completed offender registration form to the Missouri state highway patrol within three days. The patrol shall enter the information into the Missouri uniform law enforcement system (MULES) where it is available to members of the criminal justice system, and other entities as provided by law, upon inquiry.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999; L.2000, S.B. Nos. 757 & 602, § A; L.2002, S.B. No. 758, § A; L.2002, S.B. Nos. 969, 673 & 855, § A.)

V. A. M. S. 589.410, MO ST 589.410

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.414

589.414. Registrant's duties on change of information--change in online identifiers, duty to report

Effective: August 28, 2018

Currentness

1. Any person required by sections 589.400 to 589.425 to register shall, within three business days, appear in person to the chief law enforcement officer of the county or city not within a county if there is a change to any of the following information:

(1) Name;

(2) Residence;

(3) Employment, including status as a volunteer or intern;

(4) Student status; or

(5) A termination to any of the items listed in this subsection.

2. Any person required to register under sections 589.400 to 589.425 shall, within three business days, notify the chief law enforcement official of the county or city not within a county of any changes to the following information:

(1) Vehicle information;

(2) Temporary lodging information;

(3) Temporary residence information;

(4) Email addresses, instant messaging addresses, and any other designations used in internet communications, postings, or telephone communications; or

(5) Telephone or other cellular number, including any new forms of electronic communication.

3. The chief law enforcement official in the county or city not within a county shall immediately forward the registration changes described under subsections 1 and 2 of this section to the Missouri state highway patrol within three business days.

4. If any person required by sections 589.400 to 589.425 to register changes such person's residence or address to a different county or city not within a county, the person shall appear in person and shall inform both the chief law enforcement official with whom the person last registered and the chief law enforcement official of the county or city not within a county having jurisdiction over the new residence or address in writing within three business days of such new address and phone number, if the phone number is also changed. If any person required by sections 589.400 to 589.425 to register changes his or her state, territory, the District of Columbia, or foreign country, or federal, tribal, or military jurisdiction of residence, the person shall appear in person and shall inform both the chief law enforcement official with whom the person was last registered and the chief law enforcement official of the area in the new state, territory, the District of Columbia, or foreign country, or federal, tribal, or military jurisdiction having jurisdiction over the new residence or address within three business days of such new address. Whenever a registrant changes residence, the chief law enforcement official of the county or city not within a county where the person was previously registered shall inform the Missouri state highway patrol of the change within three business days. When the registrant is changing the residence to a new state, territory, the District of Columbia, or foreign country, or federal, tribal, or military jurisdiction, the Missouri state highway patrol shall inform the responsible official in the new state, territory, the District of Columbia, or foreign country, or federal, tribal, or military jurisdiction of residence within three business days.

5. Tier I sexual offenders, in addition to the requirements of subsections 1 to 4 of this section, shall report in person to the chief law enforcement official annually in the month of their birth to verify the information contained in their statement made pursuant to section 589.407. Tier I sexual offenders include:

(1) Any offender who has been adjudicated for the offense of:

(a) Sexual abuse in the first degree under section 566.100 if the victim is eighteen years of age or older;

(b) Sexual misconduct involving a child under section 566.083 if it is a first offense and the punishment is less than one year;

(c) Sexual abuse in the second degree under section 566.101 if the punishment is less than a year;

(d) Kidnapping in the second degree under section 565.120 with sexual motivation;

(e) Kidnapping in the third degree under section 565.130;

(f) Sexual conduct with a nursing facility resident or vulnerable person in the first degree under section 566.115 if the punishment is less than one year;

(g) Sexual conduct under section 566.116 with a nursing facility resident or vulnerable person;

(h) Sexual contact with a prisoner or offender¹ under section 566.145 if the victim is eighteen years of age or older;

- (i) Sex with an animal under section 566.111;
 - (j) Trafficking for the purpose of sexual exploitation under section 566.209 if the victim is eighteen years of age or older;
 - (k) Possession of child pornography under section 573.037;
 - (l) Sexual misconduct in the first degree under section 566.093;
 - (m) Sexual misconduct in the second degree under section 566.095;
 - (n) Child molestation in the second degree under section 566.068 as it existed prior to January 1, 2017, if the punishment is less than one year; or
 - (o) Invasion of privacy under section 565.252 if the victim is less than eighteen years of age;
- (2) Any offender who is or has been adjudicated in any other state, territory, the District of Columbia, or foreign country, or under federal, tribal, or military jurisdiction of an offense of a sexual nature or with a sexual element that is comparable to the tier I sexual offenses listed in this subsection or, if not comparable to those in this subsection, comparable to those described as tier I offenses under the Sex Offender Registration and Notification Act, Title I of the Adam Walsh Child Protection and Safety Act of 2006, Pub. L. 109-248.
6. Tier II sexual offenders, in addition to the requirements of subsections 1 to 4 of this section, shall report semiannually in person in the month of their birth and six months thereafter to the chief law enforcement official to verify the information contained in their statement made pursuant to section 589.407. Tier II sexual offenders include:
- (1) Any offender who has been adjudicated for the offense of:
 - (a) Statutory sodomy in the second degree under section 566.064 if the victim is sixteen to seventeen years of age;
 - (b) Child molestation in the third degree under section 566.069 if the victim is between thirteen and fourteen years of age;
 - (c) Sexual contact with a student under section 566.086 if the victim is thirteen to seventeen years of age;
 - (d) Enticement of a child under section 566.151;
 - (e) Abuse of a child under section 568.060 if the offense is of a sexual nature and the victim is thirteen to seventeen years of age;

- (f) Sexual exploitation of a minor under section 573.023;
 - (g) Promoting child pornography in the first degree under section 573.025;
 - (h) Promoting child pornography in the second degree under section 573.035;
 - (i) Patronizing prostitution under section 567.030;
 - (j) Sexual contact with a prisoner or offender ¹ under section 566.145 if the victim is thirteen to seventeen years of age;
 - (k) Child molestation in the fourth degree under section 566.071 if the victim is thirteen to seventeen years of age;
 - (l) Sexual misconduct involving a child under section 566.083 if it is a first offense and the penalty is a term of imprisonment of more than a year; or
 - (m) Age misrepresentation with intent to solicit a minor under section 566.153;
- (2) Any person who is adjudicated of an offense comparable to a tier I offense listed in this section or failure to register offense under section 589.425 or comparable out-of-state failure to register offense and who is already required to register as a tier I offender due to having been adjudicated of a tier I offense on a previous occasion; or
- (3) Any person who is or has been adjudicated in any other state, territory, the District of Columbia, or foreign country, or under federal, tribal, or military jurisdiction for an offense of a sexual nature or with a sexual element that is comparable to the tier II sexual offenses listed in this subsection or, if not comparable to those in this subsection, comparable to those described as tier II offenses under the Sex Offender Registration and Notification Act, Title I of the Adam Walsh Child Protection and Safety Act of 2006, Pub. L. 109-248.
7. Tier III sexual offenders, in addition to the requirements of subsections 1 to 4 of this section, shall report in person to the chief law enforcement official every ninety days to verify the information contained in their statement made under section 589.407. Tier III sexual offenders include:
- (1) Any offender registered as a predatory sexual offender as defined in section 566.123 ² or a persistent sexual offender as defined in section 566.124 ²;
 - (2) Any offender who has been adjudicated for the crime of:
 - (a) Rape in the first degree under section 566.030;

- (b) Statutory rape in the first degree under section 566.032;
- (c) Rape in the second degree under section 566.031;
- (d) Endangering the welfare of a child in the first degree under section 568.045 if the offense is sexual in nature;
- (e) Sodomy in the first degree under section 566.060;
- (f) Statutory sodomy under section 566.062;
- (g) Statutory sodomy under section 566.064 if the victim is under sixteen years of age;
- (h) Sodomy in the second degree under section 566.061;
- (i) Sexual misconduct involving a child under section 566.083 if the offense is a second or subsequent offense;
- (j) Sexual abuse in the first degree under section 566.100 if the victim is under thirteen years of age;
- (k) Kidnapping in the first degree under section 565.110 if the victim is under eighteen years of age, excluding kidnapping by a parent or guardian;
- (l) Child kidnapping under section 565.115;
- (m) Sexual conduct with a nursing facility resident or vulnerable person in the first degree under section 566.115 if the punishment is greater than a year;
- (n) Incest under section 568.020;
- (o) Endangering the welfare of a child in the first degree under section 568.045 with sexual intercourse or deviate sexual intercourse with a victim under eighteen years of age;
- (p) Child molestation in the first degree under section 566.067;
- (q) Child molestation in the second degree under section 566.068;
- (r) Child molestation in the third degree under section 566.069 if the victim is under thirteen years of age;

- (s) Promoting prostitution in the first degree under section 567.050 if the victim is under eighteen years of age;
- (t) Promoting prostitution in the second degree under section 567.060 if the victim is under eighteen years of age;
- (u) Promoting prostitution in the third degree under section 567.070 if the victim is under eighteen years of age;
- (v) Promoting travel for prostitution under section 567.085 if the victim is under eighteen years of age;
- (w) Trafficking for the purpose of sexual exploitation under section 566.209 if the victim is under eighteen years of age;
- (x) Sexual trafficking of a child in the first degree under section 566.210;
- (y) Sexual trafficking of a child in the second degree under section 566.211;
- (z) Genital mutilation of a female child under section 568.065;
- (aa) Statutory rape in the second degree under section 566.034;
- (bb) Child molestation in the fourth degree under section 566.071 if the victim is under thirteen years of age;
- (cc) Sexual abuse in the second degree under section 566.101 if the penalty is a term of imprisonment of more than a year;
- (dd) Patronizing prostitution under section 567.030 if the offender is a persistent offender;
- (ee) Abuse of a child under section 568.060 if the offense is of a sexual nature and the victim is under thirteen years of age;
- (ff) Sexual contact with a prisoner or offender ¹ under section 566.145 if the victim is under thirteen years of age;
- (gg) Sexual intercourse with a prisoner or offender ¹ under section 566.145;
- (hh) Sexual contact with a student under section 566.086 if the victim is under thirteen years of age;
- (ii) Use of a child in a sexual performance under section 573.200; or
- (jj) Promoting a sexual performance by a child under section 573.205;

(3) Any offender who is adjudicated for a crime comparable to a tier I or tier II offense listed in this section or failure to register offense under section 589.425, or other comparable out-of-state failure to register offense, who has been or is already required to register as a tier II offender because of having been adjudicated for a tier II offense, two tier I offenses, or combination of a tier I offense and failure to register offense, on a previous occasion;

(4) Any offender who is adjudicated in any other state, territory, the District of Columbia, or foreign country, or under federal, tribal, or military jurisdiction for an offense of a sexual nature or with a sexual element that is comparable to a tier III offense listed in this section or a tier III offense under the Sex Offender Registration and Notification Act, Title I of the Adam Walsh Child Protection and Safety Act of 2006, Pub. L. 109-248; or

(5) Any offender who is adjudicated in Missouri for any offense of a sexual nature requiring registration under sections 589.400 to 589.425 that is not classified as a tier I or tier II offense in this section.

8. In addition to the requirements of subsections 1 to 7 of this section, all Missouri registrants who work, including as a volunteer or unpaid intern, or attend any school whether public or private, including any secondary school, trade school, professional school, or institution of higher education, on a full-time or part-time basis or have a temporary residence in this state shall be required to report in person to the chief law enforcement officer in the area of the state where they work, including as a volunteer or unpaid intern, or attend any school or training and register in that state. "Part-time" in this subsection means for more than seven days in any twelve-month period.

9. If a person who is required to register as a sexual offender under sections 589.400 to 589.425 changes or obtains a new online identifier as defined in section 43.651, the person shall report such information in the same manner as a change of residence before using such online identifier.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999; L.2000, S.B. Nos. 757 & 602, § A; L.2003, S.B. No. 5, § A, eff. June 27, 2003; L.2003, S.B. No. 184, § A; L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2018, S.B. No. 655, § A, eff. Aug. 28, 2018.)

Footnotes

1 **Revisor's note:** Offense of "sexual contact with a prisoner or offender" changed to "sexual contact in the course of public duty" by S.B. 26 and S.B. 53 & 60, 2021.

2 **Revisor's note:** Sections 566.123 and 566.124 do not exist, the terms referenced are defined in section 566.125.

V. A. M. S. 589.414, MO ST 589.414

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.415

589.415. Probation and parole officers to notify law enforcement of
sex offender change of residence, when--probation officer defined

Currentness

1. Any probation officer or parole officer assigned to a sexual offender who is required to register pursuant to sections 589.400 to 589.425 shall notify the appropriate law enforcement officials whenever the officer has reason to believe that the offender will be changing his or her residence. Upon obtaining the new address where the offender expects to reside, the officer shall report such address to the chief law enforcement official with whom the offender last registered and the chief law enforcement official of the county having jurisdiction over the new residence, if different. The officer shall also inform the offender of the offender's duty to register. However, nothing in this section shall affect the offender's duty to register, pursuant to sections 589.400 to 589.425.

2. As used in this section, the term “**probation officer**” includes any agent of a private entity assigned to provide probation supervision services to an offender due to the offender's status as a sexual offender who is required to register pursuant to sections 589.400 to 589.425.

Credits

(L.2004, H.B. No. 1055, § A.)

V. A. M. S. 589.415, MO ST 589.415

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.417

589.417. Statements, photographs and fingerprints required not to be public records--disclosure authorized for law enforcement officials and agencies--complete list of offenders maintained--released upon request

Currentness

1. Except for the specific information listed in subsection 2 of this section, the complete statements, photographs and fingerprints required by sections 589.400 to 589.425 shall not be subject to the provisions of chapter 610 and are not public records as defined in section 610.010, and shall be available only to courts, prosecutors and law enforcement agencies.

2. Notwithstanding any provision of law to the contrary, the chief law enforcement official of the county shall maintain, for all offenders registered in such county, a complete list of the names, addresses and crimes for which such offenders are registered. Any person may request such list from the chief law enforcement official of the county.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999.)

V. A. M. S. 589.417, MO ST 589.417

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.420

589.420. Temporary assignment outside correctional facility or mental
health institution--official in charge to notify before release--exception

Currentness

In any case where any person who would be required by sections 589.400 to 589.425 to register is temporarily sent outside a correctional facility or a mental health institution where the person is confined, on any assignment of whatever nature, the chief law enforcement official of the county having jurisdiction over the place where the assignment occurs shall be notified by the official in charge of the correctional facility or mental health institution within a reasonable time prior to removal from the correctional facility or mental health institution. This section shall not apply to any person temporarily released under guard from the correctional facility or mental health institution in which such person is confined.

Credits

(L.1997, H.B. No. 883, § A.)

V. A. M. S. 589.420, MO ST 589.420

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Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.425

589.425. Failure to register, penalty--subsequent violations, penalty

Effective: January 1, 2017

Currentness

1. A person commits the crime of failing to register as a sex offender when the person is required to register under sections 589.400 to 589.425 and fails to comply with any requirement of sections 589.400 to 589.425. Failing to register as a sex offender is a class E felony unless the person is required to register based on having committed an offense in chapter 566 which was an unclassified felony, a class A or B felony, or a felony involving a child under the age of fourteen, in which case it is a class D felony.

2. A person commits the crime of failing to register as a sex offender as a second offense by failing to comply with any requirement of sections 589.400 to 589.425 and he or she has previously pled guilty to or has previously been found guilty of failing to register as a sex offender. Failing to register as a sex offender as a second offense is a class E felony unless the person is required to register based on having committed an offense in chapter 566, or an offense in any other state or foreign country, or under federal, tribal, or military jurisdiction, which if committed in this state would be an offense under chapter 566 which was an unclassified felony, a class A or B felony, or a felony involving a child under the age of fourteen, in which case it is a class D felony.

3. (1) A person commits the crime of failing to register as a sex offender as a third offense by failing to meet the requirements of sections 589.400 to 589.425 and he or she has, on two or more occasions, previously pled guilty to or has previously been found guilty of failing to register as a sex offender. Failing to register as a sex offender as a third offense is a felony which shall be punished by a term of imprisonment of not less than ten years and not more than thirty years.

(2) No court may suspend the imposition or execution of sentence of a person who pleads guilty to or is found guilty of failing to register as a sex offender as a third offense. No court may sentence such person to pay a fine in lieu of a term of imprisonment.

(3) A person sentenced under this subsection shall not be eligible for conditional release or parole until he or she has served at least two years of imprisonment.

(4) Upon release, an offender who has committed failing to register as a sex offender as a third offense shall be electronically monitored as a mandatory condition of supervision. Electronic monitoring may be based on a global positioning system or any other technology which identifies and records the offender's location at all times.

Credits

(L.1997, H.B. No. 883, § A. Amended by L.1998, H.B. No. 1405, § A, eff. Jan. 1, 1999; L.2000, S.B. Nos. 757 & 602, § A; L.2004, H.B. No. 1055, § A; L.2006, H.B. Nos. 1698, 1236, 995, 1362 & 1290, § A, eff. June 5, 2006; L.2008, S.B. Nos. 714, 933, 899 & 758, § A; L.2009, H.B. No. 62, § A; L.2014, S.B. No. 491, § A, eff. Jan. 1, 2017.)

V. A. M. S. 589.425, MO ST 589.425

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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Vernon's Annotated Missouri Statutes

Title XXXVIII. Crimes and Punishment; Peace Officers and Public Defenders [Chs. 556-600]

Chapter 589. Crime Prevention and Control Programs and Services (Refs & Annos)

Registration of Offenders (Megan's Law)

V.A.M.S. 589.426

589.426. Halloween, restrictions on conduct--violations, penalty

Effective: August 28, 2008

Currentness

1. Any person required to register as a sexual offender under sections 589.400 to 589.425 shall be required on October thirty-first of each year to:

(1) Avoid all Halloween-related contact with children;

(2) Remain inside his or her residence between the hours of 5 p.m. and 10:30 p.m. unless required to be elsewhere for just cause, including but not limited to employment or medical emergencies;

(3) Post a sign at his or her residence stating, "No candy or treats at this residence"; and

(4) Leave all outside residential lighting off during the evening hours after 5 p.m.

2. Any person required to register as a sexual offender under sections 589.400 to 589.425 who violates the provisions of subsection 1 of this section shall be guilty of a class A misdemeanor.

Credits

(L.2008, S.B. Nos. 714, 933, 899 & 758, § A.)

V. A. M. S. 589.426, MO ST 589.426

Statutes are current through the end of the 2025 First Regular and First and Second Extraordinary Sessions of the 103rd General Assembly. Constitution is current through the November 5, 2024 General Election.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-501

46-23-501. Short title

Currentness

Section 46-18-255 and this part may be cited as the “Sexual or Violent Offender Registration Act”.

Credits

Enacted by Laws 1989, ch. 293, § 1. Amended by Laws 1995, ch. 407, § 4; amended by Laws 1997, ch. 375, § 4.

MCA 46-23-501, MT ST 46-23-501

Current through the end of the 2025 Regular Session of the Montana Legislature, with the exception of Senate Bill 437.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-502

46-23-502. Definitions

Effective: October 1, 2025

Currentness

As used in Title 45, chapter 5, part 3 and parts 5 through 7, 46-18-255, and this part, the following definitions apply:

- (1) "Department" means the department of corrections provided for in 2-15-2301.
- (2) "Foreign offenses" means a conviction for a sexual offense involving any of the conduct listed in this section that was obtained under the laws of Canada, the United Kingdom, Australia, or New Zealand, or under the laws of any foreign country when the United States department of state, in its country reports on human rights practices, has concluded that an independent judiciary generally or vigorously enforced the right to a fair trial in that country during the year in which the conviction was obtained.
- (3) "Mental abnormality" means a congenital or acquired condition that affects the mental, emotional, or volitional capacity of a person in a manner that predisposes the person to the commission of one or more sexual offenses to a degree that makes the person a menace to the health and safety of other persons.
- (4) "Municipality" means an entity that has incorporated as a city or town.
- (5) "Personality disorder" means a personality disorder as defined in the fourth edition of the Diagnostic and Statistical Manual of Mental Disorders adopted by the American psychiatric association.
- (6) "Predatory sexual offense" means a sexual offense committed against a stranger or against a person with whom a relationship has been established or furthered for the primary purpose of victimization.
- (7) "Registration agency" means:
 - (a) if the offender resides in a municipality, the police department of that municipality; or
 - (b) if the offender resides in a place other than a municipality, the sheriff's office of the county in which the offender resides.

(8)(a) “Residence” means the location at which a person regularly resides, regardless of the number of days or nights spent at that location, that can be located by a street address, including a house, apartment building, motel, hotel, or recreational or other vehicle.

(b) The term does not mean a homeless shelter.

(9) “Sexual offender evaluator” means a person qualified under rules established by the department to conduct psychosexual evaluations of sexual offenders and sexually violent predators.

(10)(a) “Sexual offense” means any violation, attempt, solicitation, or conspiracy to commit a violation, or flight after the attempt or commission of the following:

(i) 45-5-301, unlawful restraint, if the victim is less than 18 years of age and the offender is not a parent of the victim;

(ii) 45-5-302, kidnapping, if the victim is less than 18 years of age and the offender is not a parent of the victim;

(iii) 45-5-303, aggravated kidnapping, if the victim is less than 18 years of age and the offender is not a parent of the victim;

(iv) 45-5-502(2)(b) and (2)(c), (3), and (4), sexual assault;

(v) 45-5-503, sexual intercourse without consent;

(vi) 45-5-504(2)(c), (3), and (4), indecent exposure;

(vii) 45-5-507, incest, if the victim is less than 18 years of age and the offender is 3 or more years older than the victim, or if the victim is 12 years of age or younger and the offender is 18 years of age or older at the time of the offense;

(viii) 45-5-508, aggravated sexual intercourse without consent;

(ix) 45-5-601(2)(b) and (3), prostitution;

(x) 45-5-622(2)(b)(ii), endangering the welfare of children;

(xi) 45-5-625, sexual abuse of children;

(xii) 45-5-627(1)(a), ritual abuse of a minor;

(xiii) 45-5-705, patronizing a victim of sex trafficking;

(xiv) 45-5-706, aggravated sex trafficking;

(xv) 45-5-711, child sex trafficking;

(xvi) 45-5-802(1), sexual abuse of a vulnerable adult;

(xvii) 45-8-218, deviate sexual conduct;

(xviii) 45-5-629, grooming of a child for a sexual offense; or

(xix) any violation of a law of another state, a tribal government, the federal government, or the military or a foreign entity that is reasonably equivalent to a violation listed in subsections (10)(a)(i) through (10)(a)(xviii) or for which the offender was required to register as a sexual offender after an adjudication or conviction.

(b) The term does not include the exceptions provided for in 45-5-501, 45-5-502, and 45-5-503.

(11) “Sexual or violent offender” means a person who has been convicted of or, in youth court, found to have committed or been adjudicated for a sexual or violent offense.

(12) “Sexually violent predator” means a person who:

(a) has been convicted of or, in youth court, found to have committed or been adjudicated for a sexual offense and who suffers from a mental abnormality or a personality disorder that makes the person likely to engage in predatory sexual offenses; or

(b) has been convicted of a sexual offense against a victim 12 years of age or younger and the offender is 18 years of age or older.

(13) “Transient” means an offender who has no residence.

(14) “Violent offense” means:

(a) any violation of or attempt, solicitation, or conspiracy to commit a violation of:

(i) 45-5-102, deliberate homicide;

- (ii) 45-5-103, mitigated deliberate homicide;
 - (iii) 45-5-202, aggravated assault;
 - (iv) 45-5-206 (third or subsequent offense), partner or family member assault;
 - (v) 45-5-210(1)(b), (1)(c), or (1)(d), assault on a peace officer or judicial officer;
 - (vi) 45-5-212, assault on a minor;
 - (vii) 45-5-213, assault with a weapon;
 - (viii) 45-5-215, strangulation of a partner or family member;
 - (ix) 45-5-302 (if the victim is not a minor), kidnapping;
 - (x) 45-5-303 (if the victim is not a minor), aggravated kidnapping;
 - (xi) 45-5-802(1), abuse or sexual abuse of a vulnerable adult;
 - (xii) 45-5-401, robbery;
 - (xiii) 45-6-103, arson; or
 - (xiv) 45-9-132, operation of unlawful clandestine laboratory; or
- (b) any violation of a law of another state, a tribal government, the federal government, or the military or a foreign entity reasonably equivalent to a violation listed in subsection (14)(a).

Credits

Enacted by Laws 1989, ch. 293, § 2. Amended by Laws 1991, ch. 262, § 1; amended by Laws 1995, ch. 407, § 5; amended by Laws 1995, ch. 546, § 231; amended by Laws 1995, ch. 550, §§ 7, 12; amended by Laws 1997, ch. 375, § 5; amended by Laws 1999, ch. 227, § 1; amended by Laws 1999, ch. 432, § 19; amended by Sp. Sess. Laws August 2002 (Laws 2002, 1st Sp. Sess.), ch. 22, § 4; amended by Laws 2003, ch. 146, § 2; amended by Laws 2005, ch. 313, § 1; amended by Laws 2007, ch. 483, § 19; amended by Laws 2013, ch. 374, § 15, eff. July 1, 2013; amended by Laws 2015, ch. 110, § 3, eff. Oct. 1, 2015; amended by Laws 2015, ch. 144, § 2, eff. Oct. 1, 2015; amended by Laws 2015, ch. 182, § 1, eff. April 2, 2015; amended by Laws 2015, ch. 285, § 25, eff. July 1, 2015; amended by Laws 2017, ch. 277, § 3, eff. Oct. 1, 2017; amended by Laws 2017, ch. 279, § 6, eff. Oct. 1, 2017; amended by Laws 2017, ch. 394, § 14, eff. May 19, 2017; amended by Laws 2019, ch. 308, § 14, eff. May

7, 2019; amended by Laws 2023, ch. 167, § 33, eff. April 19, 2023; amended by Laws 2023, ch. 643, 7, 8(1), 9(1), eff. Oct. 1, 2023; amended by Laws 2025, ch. 102, § 7, eff. July 1, 2025; amended by Laws 2025, ch. 484, § 10, eff. Oct. 1, 2025; amended by Laws 2025, ch. 602, § 2, eff. Oct. 1, 2025; amended by Laws 2025, ch. 657, § 2, eff. July 1, 2025.

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West's Montana Code Annotated

Title 46. Criminal Procedure

Chapter 23. Probation, Parole, and Clemency

Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-503

46-23-503. Release of sexual or violent offender from place of confinement--duties of official in charge

Currentness

(1) A sexual or violent offender who is released from the custody of the department of corrections must be informed in writing not less than 10 days prior to release of the duty to register under this part by the official in charge of the place of confinement.

(2) Prior to the offender's release from custody, the official shall obtain and give to the department of justice and to the sheriff of the county in which the offender intends to reside or, if the offender intends to reside in a municipality, to the chief of police of the municipality:

(a) the address at which the offender intends to reside upon release from the department's custody;

(b) the offender's fingerprints and photo, unless they are already in the possession of the department of justice, sheriff, or chief of police; and

(c) a form signed by and read to or by the offender stating that the offender's duty to register under this part has been explained to the offender.

Credits

Enacted by Laws 1989, ch. 293, § 4. Amended by Laws 1991, ch. 262, § 1; amended by Laws 1995, ch. 407, § 6; amended by Laws 1995, ch. 546, § 232; amended by Laws 1997, ch. 375, § 6.

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Title 46. Criminal Procedure

Chapter 23. Probation, Parole, and Clemency

Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-504

46-23-504. Persons required to register--procedure

Effective: October 1, 2023

Currentness

(1) Except as provided in 41-5-1513 and 45-5-503(5), a sexual or violent offender:

(a) shall register immediately upon conclusion of the sentencing hearing if the offender is not sentenced to confinement or is not sentenced to the department and placed in confinement by the department;

(b) must be registered as provided in 46-23-503 at least 10 days prior to release from confinement if sentenced to confinement or sentenced to the department and placed in confinement by the department;

(c) shall register within 3 business days of entering a county of this state for the purpose of residing or setting up a temporary residence for 10 days or more or for an aggregate period exceeding 30 days in a calendar year; and

(d) who is a transient shall register within 3 business days of entering a county of this state.

(2) Registration under subsection (1) must be with the appropriate registration agency. If an offender registers with a police department, the department shall notify the sheriff's office of the county in which the municipality is located of the registration. The probation officer having supervision over an offender required to register under subsection (1)(a) shall verify the offender's registration status with the appropriate registration agency.

(3) At the time of registering, the offender shall sign a statement in writing giving the information required by subsections (3)(a) through (3)(k) and any other information required by the department of justice. The registration agency shall fingerprint the offender, unless the offender's fingerprints are on file with the department of justice, photograph the offender, and obtain a DNA sample from the offender. Within 3 days, the registration agency shall send copies of the statement, fingerprints, and photographs to the department of justice. The registration agency shall send the DNA sample to the department of justice for analysis and entry of the DNA record into the DNA identification index. The registration agency shall require an offender given a level 2 or level 3 designation to appear before the registration agency for a new photograph every year. The information collected from the offender at the time of registration must include:

(a) the name of the offender and any aliases used by the offender;

- (b) the offender's social security number;
- (c) the residence information required by subsection (4);
- (d) the name and address of any business or other place where the offender is or will be an employee;
- (e) the name and address of any school where the offender will be a student;
- (f) the offender's driver's license number;
- (g) the description, registration number or identifier, and license number of all motor vehicles owned or operated by the offender;
- (h) the following information related to the offender's internet activity:
 - (i) all e-mail addresses used by the offender;
 - (ii) all instant message addresses and identifiers;
 - (iii) all other designations or monikers used for self-identification in internet communications or postings; and
 - (iv) all designations used by the offender for the purpose of routing or self-identification in internet communications, postings, or social media accounts;
- (i) any passports held or used by the offender. The department or its designee shall make a photocopy of the passports.
- (j) all telephone numbers and any other designations used by the offender for the purposes of routing or self-identification in telephonic communications, including but not limited to:
 - (i) all cellular telephone numbers;
 - (ii) all landline telephone numbers; and
 - (iii) all voice over internet protocol telephone numbers; and

(k) all professional licenses, including the licensing number, licensing agency, and any other identifying information about a professional license issued to the offender that authorizes the offender to engage in an occupation or carry out a trade or business.

(4)(a) If, at the time of registration, the offender regularly resides in more than one county or municipality, the offender shall register with the registration agency of each county or municipality in which the offender resides. If an offender resides in more than one location within the same county or municipality, the registration agency shall require the offender to provide all of the locations where the offender regularly resides and to designate one of them as the offender's primary residence.

(b) Registration of more than one residence pursuant to this section is an exception from the single residence rule provided in 1-1-215.

(5) A transient shall report monthly, in person, to the registration agency with which the transient registered pursuant to subsection (1)(d). The transient shall report on a day specified by the registration agency and during the normal business hours of that agency. On that day, the transient shall provide the registration agency with the information listed in subsections (3)(a) through (3)(k). The registration agency to which the transient reports may also require the transient to provide the locations where the transient stayed during the previous 30 days and may stay during the next 30 days.

(6)(a) The department of justice shall mail a registration verification form:

(i) each 90 days to an offender designated as a level 3 offender under 46-23-509;

(ii) each 180 days to an offender designated as a level 2 offender under 46-23-509; and

(iii) each year to a violent offender or an offender designated as a level 1 offender under 46-23-509.

(b) If the offender is a transient, the department of justice shall mail the offender's registration verification form to the registration agency with which the offender last registered.

(c) The form must require the offender's notarized signature. Within 10 days after receipt of the form, the offender shall complete the form and return it to the registration agency where the offender last registered or, if the offender was initially registered pursuant to subsection (1)(b), to the registration agency in the county or municipality in which the offender is located. A sexual offender shall return the form to the appropriate registration agency in person, and at the time that the sexual offender returns the registration verification form, the registration agency shall take a photograph of the offender and collect a DNA sample if one has not already been collected. The registration agency shall send the DNA sample to the department of justice for analysis and entry into the DNA identification index.

(7) Within 3 days after receipt of a registration verification form, the registration agency shall provide a copy of the form and most recent photograph to the department of justice.

(8) The offender is responsible, if able to pay, for costs associated with registration. The fees charged for registration may not exceed the actual costs of registration. The department of justice may adopt a rule establishing fees to cover registration costs incurred by the department of justice in maintaining registration and address verification records. The fees must be deposited in the general fund.

(9) The clerk of the district court in the county in which a person is convicted of a sexual or violent offense shall notify the sheriff in that county of the conviction within 10 days after entry of the judgment.

Credits

Enacted by Laws 1989, ch. 293, § 5. Amended by Laws 1995, ch. 407, § 7; amended by Laws 1997, ch. 375, § 7; amended by Sp. Sess. Laws August 2002 (Laws 2002, 1st Sp. Sess.), ch. 22, § 5; amended by Laws 2005, ch. 313, § 2; amended by Laws 2007, ch. 254, § 4; amended by Laws 2007, ch. 483, § 20; amended by Laws 2013, ch. 101, § 2, eff. Oct. 1, 2013; amended by Laws 2015, ch. 110, § 4, eff. Oct. 1, 2015; amended by Laws 2023, ch. 643, § 2, eff. Oct. 1, 2023.

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West's Montana Code Annotated

Title 46. Criminal Procedure

Chapter 23. Probation, Parole, and Clemency

Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-505

46-23-505. Notice of change of name or residence or student, employment,
or transient status--duty to inform--forwarding of information

Effective: October 1, 2023

Currentness

(1) If an offender required to register under this part has a change of name or residence or a change in student, employment, or transient status, the offender shall within 3 business days of the change appear in person and give notification of the change to the registration agency with whom the offender last registered or, if the offender was initially registered under 46-23-504(1)(b), to the registration agency for the county or municipality from which the offender is moving. The registration agency shall require the offender to appear before the registration agency for a new photograph every year.

(2) If an offender required to register under this part is a transient, the offender shall provide written notification to the registration agency with which the offender last registered or, if the offender initially registered pursuant to 46-23-504(1)(b), shall provide notice within 3 business days to the registration agency in the county or municipality in which the offender resides.

(3) Within 3 business days after receipt of the information concerning the new name or residence or a change in the student, employment, or transient status, the registration agency shall forward the information to the department of justice, which shall forward a copy of the information and photograph to:

(a) in the event of a change in residence, the registration agency for the county to which the offender moves and, if the offender lives in a municipality, the registration agency for that municipality to which the offender moves;

(b) in the event of a change of name or of student, employment, or transient status, the registration agency of the appropriate county or municipality.

(4) If an offender who is required to register under this part is physically absent from the offender's county of residence for more than 10 consecutive days, the offender shall register in the county where the offender is physically located on the 11th day even if the offender claims to maintain a residence, as defined in 46-23-502, in that county. The offender shall register again in the offender's county of residence when the offender returns to that county.

(5) If an offender is required to register under subsection (4), the offender shall register in any subsequent county where the offender is present for more than 24 hours until the offender registers again in the offender's county of residence.

(6) In the event an offender will be absent from this state for more than 7 days, the offender shall provide notice with the information required under this section in person to the registering agency no later than 3 days before their scheduled travel. The registering agency shall forward the information to the department of justice, which shall then notify the provided jurisdiction.

Credits

Enacted by Laws 1989, ch. 293, § 6. Amended by Laws 1995, ch. 407, § 8; amended by Laws 1997, ch. 375, § 8; amended by Laws 2005, ch. 313, § 3; amended by Laws 2007, ch. 254, § 5; amended by Laws 2007, ch. 483, § 21; amended by Laws 2013, ch. 283, § 1, eff. April 24, 2013; amended by Laws 2023, ch. 643, § 3, eff. Oct. 1, 2023.

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West's Montana Code Annotated

Title 46. Criminal Procedure

Chapter 23. Probation, Parole, and Clemency

Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-506

46-23-506. Duty of registration--duration, frequency, reduction, and relief

Effective: October 1, 2025

Currentness

(1) A sexual offender required to register under this part shall register for the remainder of the sexual offender's life, except as provided in subsection (3) or during a period of time during which the sexual offender is in prison.

(2)(a) A violent offender required to register under this part shall register for the 10 years following release from confinement or, if not confined following sentencing, for the 10 years following the conclusion of the sentencing hearing and after registering for 10 years, is automatically relieved of the duty to register unless convicted as provided in subsection (2)(b).

(b) If convicted during the 10-year period provided in subsection (2)(a) of failing to register or keep registration current or of a felony, the violent offender shall register for the remainder of the violent offender's life unless relieved of the duty to register as provided in subsection (2)(e).

(c) When a violent offender is relieved of the duty to register under subsection (2)(a), the department of justice shall remove the violent offender from the registry.

(d) Petitions for relief from registration under this part must be filed in the appropriate Montana district court. Orders or other documents granting relief from registration requirements that originated in other jurisdictions are not valid in Montana.

(e) Except as provided in subsection (5), at any time after 10 years of registration for a violent offender registered as provided in subsection (2)(b), a violent offender may petition the sentencing court or the district court for the judicial district in which the violent offender resides for an order relieving the violent offender of the duty to register. The petition must be served on the county attorney in the county where the petition is filed. Prior to a hearing on the petition, the county attorney shall mail a copy of the petition to the victim of the last offense for which the violent offender was convicted if the victim's address is reasonably available. The court shall consider any written or oral statements of the victim. The court may grant the petition on finding that:

(i) the violent offender has remained a law-abiding citizen; and

(ii) continued registration is not necessary for public protection and that relief from registration is in the best interests of society.

(3) Except as provided in subsection (7), at any time after 10 years of registration for a level 1 sexual offender and at any time after 25 years of registration for a level 2 sexual offender, an offender may petition the sentencing court or the district court for the judicial district in which the offender resides for an order relieving the offender of the duty to register. The petition must be served on the county attorney in the county where the petition is filed. Prior to a hearing on the petition, the county attorney shall mail a copy of the petition to the attorney general's office and to the victim of the last offense for which the offender was convicted if the victim's address is reasonably available. The court shall consider any written or oral statements of the victim. The court may grant the petition on finding that:

(a) the offender has maintained a clean record during their period of registration; and

(b) continued registration is not necessary for public protection and that relief from registration is in the best interests of society.

(4) A level 3 sexual offender may have their period of registration reduced to 25 years if the sexual offender was adjudicated delinquent of an offense as a juvenile that required level 3 sexual offender registration and the sexual offender has maintained a clean record for 25 consecutive years.

(5) For the purposes of this section, the sexual offender has a clean record if, during the period of time in which the sexual offender was required to register as a sexual offender:

(a) the sexual offender was not convicted of any felony offense;

(b) the sexual offender was not convicted of any sexual offense;

(c) the sexual offender successfully completed, without revocation, any period of supervised release, probation, or parole; and

(d) the sexual offender has successfully completed an appropriate sexual offender treatment program.

(6) The offender may move that all or part of the proceedings in a hearing under subsections (2)(e) and (3) be closed to the public, or the judge may close them on the judge's own motion. If a proceeding under subsections (2)(e) and (3) is closed to the public, the judge shall permit a victim of the offense to be present unless the judge determines that exclusion of the victim is necessary to protect the offender's right of privacy or the safety of the victim. If the victim is present, the judge, at the victim's request, shall permit the presence of an individual to provide support to the victim unless the judge determines that exclusion of the individual is necessary to protect the offender's right of privacy.

(7) Subsection (3) does not apply to an offender who was convicted of:

(a) a violation of 45-5-503 if:

- (i) the victim was compelled to submit by force, as defined in 45-5-501, against the victim or another; or
- (ii) at the time the offense occurred, the victim was under 12 years of age;
- (b) a violation of 45-5-507 if at the time the offense occurred the victim was under 12 years of age and the offender was 3 or more years older than the victim;
- (c) a second or subsequent sexual or violent offense that requires registration; or
- (d) a sexual offense and was designated as a sexually violent predator under 46-23-509.

Credits

Enacted by Laws 1989, ch. 293, § 7. Amended by Laws 1995, ch. 407, § 9; amended by Laws 1995, ch. 550, § 8; amended by Laws 1997, ch. 375, § 9; amended by Laws 1999, ch. 227, § 2; amended by Sp. Sess. Laws August 2002 (Laws 2002, 1st Sp. Sess.), ch. 22, § 6; amended by Laws 2005, ch. 313, § 4; amended by Laws 2007, ch. 483, § 22; amended by Laws 2021, ch. 227, § 1, eff. Oct. 1, 2021; amended by Laws 2023, ch. 643, § 4, eff. Oct. 1, 2023; amended by Laws 2025, ch. 117, § 1, eff. Oct. 1, 2025.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-507

46-23-507. Penalty

Effective: October 1, 2021

Currentness

(1) A sexual or violent offender who knowingly fails to register, verify registration, or keep registration current under this part may be sentenced to a term of imprisonment of not more than 5 years or may be fined not more than \$10,000, or both.

(2)(a) Violent offenders who were convicted of failing to register, verify registration, or keep registration current under this part after having successfully registered for 10 years and whose conviction occurred before October 1, 2021, must have their conviction vacated.

(b) Within 1 year from October 1, 2021, the department of justice shall provide notice to the appropriate district court for each conviction described in subsection (2)(a).

(c) Upon receiving notification from the department of justice, the district court shall, on its own motion, vacate the offender's conviction for failing to register, verify registration, or keep registration current.

(3) When the court vacates a conviction under this section, the court shall:

(a) send a copy of the order vacating the conviction to the prosecutor and the department of justice; and

(b) order the expungement of all records of arrest, investigation, and detention, and any court proceedings that may have been held by the court, the investigating law enforcement agency, or the department of justice related to the conviction.

(4) The prosecutor and the department of justice shall inform the person whose conviction has been vacated under this section that the conviction is vacated.

Credits

Enacted by Laws 1989, ch. 293, § 8. Amended by Laws 1995, ch. 407, § 10; amended by Laws 1995, ch. 550, § 9; amended by Laws 1997, ch. 375, § 10; amended by Laws 2021, ch. 227, § 2, eff. Oct. 1, 2021.

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MCA 46-23-508

46-23-508. Dissemination of information

Effective: October 1, 2023

Currentness

(1) Information maintained under this part is confidential criminal justice information, as defined in 44-5-103, except that:

(a) the name and address of a registered sexual or violent offender are public criminal justice information, as defined in 44-5-103; and

(b) the department of justice or the registration agency shall release any offender registration information that it possesses relevant to the public if the department of justice or the registration agency determines that a registered offender is a risk to the safety of the community and that disclosure of the registration information that it possesses may protect the public and, at a minimum:

(i) if the offender is also a violent offender, the department of justice shall and the registration agency may disseminate to the victim and the public:

(A) the offender's name; and

(B) the offenses for which the offender is required to register under this part;

(ii) if a sexual offender was given a level 1 designation under 46-23-509, the department of justice shall and the registration agency may disseminate to the victim and the public:

(A) the offender's address;

(B) the name, photograph, and physical description of the offender;

(C) the offender's date of birth;

(D) the offenses for which the offender is required to register under this part;

(E) the offender's employer address; and

(F) the offender's postsecondary school address.

(iii) if a sexual offender was given a level 1 designation and committed an offense against a minor or was given a level 2 designation under 46-23-509, the department of justice shall and the registration agency may disseminate to the victim and the public:

(A) the offender's address;

(B) the type of victim targeted by the offense;

(C) the name, photograph, and physical description of the offender;

(D) the offender's date of birth;

(E) the license plate number and a description of any motor vehicle owned or operated by the offender;

(F) the offenses for which the offender is required to register under this part;

(G) the offender's employer address;

(H) the offender's postsecondary school address; and

(I) any conditions imposed by the court upon the offender for the safety of the public; and

(iv) if a sexual offender was given a level 3 designation under 46-23-509, the department of justice and the registration agency shall give the victim and the public notification that includes the information contained in subsection (1)(b)(iii). The notification must also include the date of the offender's release from confinement or, if not confined, the date the offender was sentenced, with a notation that the offender was not confined, and must include the community in which the offense occurred.

(c) prior to release of information under subsection (1)(b), a registration agency may, in its sole discretion, request an in camera review by a district court of the determination by the registration agency under subsection (1)(b). The court shall review a request under this subsection (1)(c) and shall, as soon as possible, render its opinion so that release of the information is not delayed beyond release of the offender from confinement.

(2) The identity of a victim of an offense for which registration is required under this part may not be released by a registration agency without the permission of the victim.

(3) Dissemination to the public of information allowed or required by this section may be done by newspaper, paper flyers, the internet, or any other media determined by the disseminating entity. In determining the method of dissemination, the disseminating entity should consider the level of risk posed by the offender to the public.

(4) The department of justice shall develop a model community notification policy to assist registration agencies in implementing the dissemination provisions of this section.

Credits

Enacted by Laws 1995, ch. 407, § 11; Enacted by Laws 1995, ch. 550, § 10. Amended by Laws 1997, ch. 375, § 11; amended by Laws 1999, ch. 219, § 1; amended by Laws 2001, ch. 222, § 2; amended by Laws 2007, ch. 483, § 23; amended by Laws 2009, ch. 2, § 82, eff. Oct. 1, 2009; amended by Laws 2023, ch. 643, § 5, eff. Oct. 1, 2023.

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West's Montana Code Annotated

Title 46. Criminal Procedure

Chapter 23. Probation, Parole, and Clemency

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MCA 46-23-509

46-23-509. Psychosexual evaluations and sexual offender designations

Effective: October 1, 2025

Currentness

(1) Prior to sentencing of a person convicted of a sexual offense, a sexual offender evaluator who has a license endorsement as provided for in 37-1-139 shall provide the court with a psychosexual evaluation report recommending one of the following levels of designation for the offender:

(a) level 1, the risk of a repeat sexual offense is low;

(b) level 2, the risk of a repeat sexual offense is moderate;

(c) level 3, the risk of a repeat sexual offense is high, there is a threat to public safety, and the sexual offender evaluator believes that the offender is a sexually violent predator.

(2) Upon sentencing the offender, the court shall:

(a) review the psychosexual evaluation report, any statement by a victim, and any statement by the offender;

(b) designate the offender as level 1, 2, or 3; and

(c) designate a level 3 offender as a sexually violent predator.

(3) An offender designated as a level 2 offender or given a level designation by another state, the federal government, or the department under subsection (5) that is determined by the court to be similar to level 2 may petition the sentencing court or the district court for the judicial district in which the offender resides to change the offender's designation if the offender has enrolled in and successfully completed the treatment phase of either the prison's sexual offender treatment program or of an equivalent program approved by the department. After considering the petition, the court may change the offender's risk level designation if the court finds by clear and convincing evidence that the offender's risk of committing a repeat sexual offense has changed since the time sentence was imposed. The court shall impose one of the three risk levels specified in this section.

(4) If, at the time of sentencing, the sentencing judge did not apply a level designation to a sexual offender who is required to register under this part and who was sentenced prior to October 1, 1997, the department shall designate the offender as level 1, 2, or 3 when the offender is released from confinement.

(5) If an offense is covered by 46-23-502(10)(a)(xix), the offender registers under 46-23-504(1)(c), and the offender was given a risk level designation after conviction by another state or the federal government, the department of justice may give the offender the risk level designation assigned by the other state or the federal government. All offenders convicted in another state or by the federal government who are not currently under the supervision of the department or the youth court and were not given a risk level designation after conviction shall provide to the department of justice all prior risk assessments and psychosexual evaluations done to evaluate the offender's risk to reoffend. Any offender without a risk assessment or psychosexual evaluation shall, at the offender's expense, undergo a psychosexual evaluation with a sexual offender evaluator who has a license endorsement as provided for in 37-1-139. The results of the psychosexual evaluation may be requested by the attorney general or a county attorney for purposes of petitioning a district court to assign a risk level designation.

(6) The lack of a fixed residence is a factor that may be considered by the sentencing court or by the department in determining the risk level to be assigned to an offender pursuant to this section.

(7) Upon obtaining information that indicates that a sexual offender who is required to register under this part does not have a level 1, 2, or 3 designation, the offender, the attorney general, the county attorney that prosecuted the offender and obtained a conviction for a sexual offense, or the county attorney for the county in which the offender resides may, at any time, petition the district court that sentenced the offender for a sexual offense or the district court for the judicial district in which the offender resides to designate the offender as level 1, 2, or 3. Upon the filing of the petition, the court may order a psychosexual evaluation report at the petitioner's expense, or order that the results of all prior psychosexual evaluations be provided to all parties. The court shall provide the offender with an opportunity for a hearing prior to designating the offender. The petitioner shall provide the offender, the attorney general, and the county attorney that prosecuted the offender with notice of the petition and notice of the hearing. As provided in 46-23-506(2)(d), petitions for relief from registration under this part must be filed in the appropriate Montana district court. Orders or other documents granting relief from registration requirements that originated in other jurisdictions are not valid in Montana.

Credits

Enacted by Laws 1997, ch. 375, § 12. Amended by Laws 1999, ch. 358, § 2; amended by Sp. Sess. Laws August 2002 (Laws 2002, 1st Sp. Sess.), ch. 22, § 7; amended by Laws 2005, ch. 313, § 5; amended by Laws 2007, ch. 483, § 24; amended by Laws 2013, ch. 182, § 1, eff. Oct. 1, 2013; amended by Laws 2015, ch. 110, § 5, eff. Oct. 1, 2015; amended by Laws 2017, ch. 275, § 16, eff. Oct. 1, 2017; amended by Laws 2021, ch. 481, § 3, eff. Jan. 1, 2022; amended by Laws 2023, ch. 643, § 6, eff. Oct. 1, 2023; amended by Laws 2025, ch. 102, § 8, eff. July 1, 2025; amended by Laws 2025, ch. 484, § 11, eff. Oct. 1, 2025.

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MCA 46-23-510

46-23-510. Expungement of records on reversal of conviction

Currentness

Upon final reversal of a conviction of a sexual or violent offense, the sentencing court shall order the expungement of any records kept by a court, law enforcement agency, or other state or local government agency under this part.

Credits

Enacted by Laws 1997, ch. 375, § 13.

MCA 46-23-510, MT ST 46-23-510

Current through the end of the 2025 Regular Session of the Montana Legislature, with the exception of Senate Bill 437.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-511

46-23-511. Immunity from suit

Currentness

A state or local governmental entity, a private entity, or an officer or employee of an entity is not liable in negligence, except gross negligence or willful or wanton misconduct, for damages arising from a good faith discretionary release or dissemination of or good faith failure to release or disseminate information under this part.

Credits

Enacted by Laws 1997, ch. 375, § 14.

MCA 46-23-511, MT ST 46-23-511

Current through the end of the 2025 Regular Session of the Montana Legislature, with the exception of Senate Bill 437.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-512

46-23-512. Plea agreement agreeing to compliance with this part

Currentness

A defendant convicted of an offense that would otherwise not be subject to registration under this part may agree to comply with the registration requirements of this part as part of a plea agreement, and a court accepting the plea agreement may order the defendant to comply with this part.

Credits

Enacted by Laws 1999, ch. 358, § 1.

MCA 46-23-512, MT ST 46-23-512

Current through the end of the 2025 Regular Session of the Montana Legislature, with the exception of Senate Bill 437.

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West's Montana Code Annotated
Title 46. Criminal Procedure
Chapter 23. Probation, Parole, and Clemency
Part 5. Registration of Sexual and Violent Offenders

MCA 46-23-520

46-23-520. Sexual or violent offender community education curriculum

Currentness

(1) The department of justice shall develop a statewide community education curriculum regarding release of sexual or violent offenders into a community.

(2) The curriculum developed under subsection (1) must contain information:

(a) for communities and neighborhoods regarding the provisions of this part as it relates to sexual or violent offenders, including the rights of residents of a community into which a sexual or violent offender is released and the duties and roles under this part of the department, law enforcement agencies, and the offender;

(b) for families and children regarding personal safety, including potential warning signs that may help to avoid victimization; and

(c) for communities, neighborhoods, families, and children regarding the restrictions imposed by 45-5-513.

(3) The curriculum developed under this section must be made available to law enforcement agencies, school districts, local governments, and other entities determined by the department of justice to be in a position to educate the public on the subject of the release of a sexual or violent offender into a community. The curriculum may be disseminated by any appropriate means, written or electronic, including by the internet.

Credits

Enacted by Laws 2001, ch. 222, § 1. Amended by Laws 2015, ch. 412, § 3, eff. May 5, 2015.

MCA 46-23-520, MT ST 46-23-520

Current through the end of the 2025 Regular Session of the Montana Legislature, with the exception of Senate Bill 437.

West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4001

29-4001. Act, how cited

Currentness

Sections 29-4001 to 29-4014 shall be known and may be cited as the Sex Offender Registration Act.

Credits

Laws 1996, LB 645, § 1; Laws 2006, LB 1199, § 17; Laws 2009, LB 97, § 23, eff. May 21, 2009.

Neb. Rev. St. § 29-4001, NE ST § 29-4001

Current through legislation effective February 26, 2026, of the 2nd Regular Session of the 109th Legislature (2026)

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4001.01

29-4001.01. Terms, defined

Currentness

For purposes of the Sex Offender Registration Act:

- (1) Aggravated offense means any registrable offense under section 29-4003 which involves the penetration of, direct genital touching of, oral to anal contact with, or oral to genital contact with (a) a victim age thirteen years or older without the consent of the victim, (b) a victim under the age of thirteen years, or (c) a victim who the sex offender knew or should have known was mentally or physically incapable of resisting or appraising the nature of his or her conduct;
- (2) DNA sample has the same meaning as in section 29-4103;
- (3) Habitual living location means any place that an offender may stay for a period of more than three days even though the sex offender maintains a separate permanent address or temporary domicile;
- (4) Minor means a person under eighteen years of age;
- (5) State DNA Database means the database established pursuant to section 29-4104; and
- (6) Temporary domicile means any place at which the person actually lives or stays for a period of at least three working days.

Credits

Laws 2009, LB 97, § 24, eff. May 21, 2009; Laws 2009, LB 285, § 3, eff. Jan. 1, 2010; Laws 2015, LB 292, § 5, eff. Aug. 30, 2015.

Neb. Rev. St. § 29-4001.01, NE ST § 29-4001.01

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4002

29-4002. Legislative findings

Currentness

The Legislature finds that sex offenders present a high risk to commit repeat offenses. The Legislature further finds that efforts of law enforcement agencies to protect their communities, conduct investigations, and quickly apprehend sex offenders are impaired by the lack of available information about individuals who have pleaded guilty to or have been found guilty of sex offenses and who live, work, or attend school in their jurisdiction. The Legislature further finds that state policy should assist efforts of local law enforcement agencies to protect their communities by requiring sex offenders to register with local law enforcement agencies as provided by the Sex Offender Registration Act.

Credits

Laws 1996, LB 645, § 2; Laws 2002, LB 564, § 2.

Neb. Rev. St. § 29-4002, NE ST § 29-4002

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4003

29-4003. Applicability of act

Effective: September 3, 2025
Currentness

(1)(a) The Sex Offender Registration Act applies to any person who on or after January 1, 1997:

(i) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any of the following:

(A) Kidnapping of a minor pursuant to section 28-313, except when the person is the parent of the minor and was not convicted of any other offense in this section;

(B) False imprisonment of a minor pursuant to section 28-314 or 28-315;

(C) Sexual assault pursuant to section 28-319 or 28-320;

(D) Sexual abuse by a school worker pursuant to section 28-316.01;

(E) Sexual assault of a child in the second or third degree pursuant to section 28-320.01;

(F) Sexual assault of a child in the first degree pursuant to section 28-319.01;

(G) Sexual abuse of a vulnerable adult or senior adult pursuant to subdivision (1)(c) of section 28-386;

(H) Incest of a minor pursuant to section 28-703;

(I) Pandering of a minor pursuant to section 28-802;

(J) Conduct relating to child sexual abuse material under section 28-1805 or subdivision (2)(b) or (c) of section 28-1804;

(K) Knowingly possessing or receiving any child sexual abuse material pursuant to subsection (1) or (5) of section 28-1803;

(L) Criminal child enticement pursuant to section 28-311;

(M) Child enticement by means of an electronic communication device pursuant to section 28-320.02;

(N) Debauching a minor pursuant to section 28-805; or

(O) Attempt, solicitation, aiding or abetting, being an accessory, or conspiracy to commit an offense listed in subdivisions (1)(a)(i)(A) through (1)(a)(i)(N) of this section;

(ii) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any offense that is substantially equivalent to a registrable offense under subdivision (1)(a)(i) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding a procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon;

(iii) Is incarcerated in a jail, a penal or correctional facility, or any other public or private institution or is under probation or parole as a result of pleading guilty to or being found guilty of a registrable offense under subdivision (1)(a)(i) or (ii) of this section prior to January 1, 1997; or

(iv) Enters the state and is required to register as a sex offender under the laws of another village, town, city, state, territory, commonwealth, or other jurisdiction of the United States.

(b) In addition to the registrable offenses under subdivision (1)(a) of this section, the Sex Offender Registration Act applies to any person who on or after January 1, 2010:

(i)(A) Except as provided in subdivision (1)(b)(i)(B) of this section, has ever pled guilty to, pled nolo contendere to, or been found guilty of any of the following:

(I) Murder in the first degree pursuant to section 28-303;

(II) Murder in the second degree pursuant to section 28-304;

(III) Manslaughter pursuant to section 28-305;

(IV) Assault in the first degree pursuant to section 28-308;

(V) Assault in the second degree pursuant to section 28-309;

(VI) Assault in the third degree pursuant to section 28-310;

(VII) Stalking pursuant to section 28-311.03;

(VIII) Violation of section 28-311.08 requiring registration under the act pursuant to subsection (6) of section 28-311.08;

(IX) Kidnapping pursuant to section 28-313;

(X) False imprisonment pursuant to section 28-314 or 28-315;

(XI) Sexual abuse of an inmate or parolee in the first degree pursuant to section 28-322.02;

(XII) Sexual abuse of an inmate or parolee in the second degree pursuant to section 28-322.03;

(XIII) Sexual abuse of a protected individual pursuant to section 28-322.04;

(XIV) Incest pursuant to section 28-703;

(XV) Child abuse pursuant to subdivision (1)(d) or (e) of section 28-707;

(XVI) Enticement by electronic communication device pursuant to section 28-833; or

(XVII) Attempt, solicitation, aiding or abetting, being an accessory, or conspiracy to commit an offense listed in subdivisions (1)(b)(i)(A)(I) through (1)(b)(i)(A)(XVI) of this section.

(B) In order for the Sex Offender Registration Act to apply to the offenses listed in subdivisions (1)(b)(i)(A)(I), (II), (III), (IV), (V), (VI), (VII), (IX), and (X) of this section, a court shall have found that evidence of sexual penetration or sexual contact, as those terms are defined in section 28-318, was present in the record, which shall include consideration of the factual basis for a plea-based conviction and information contained in the presentence report;

(ii) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any offense that is substantially equivalent to a registrable offense under subdivision (1)(b)(i) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding a procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon; or

(iii) Enters the state and is required to register as a sex offender under the laws of another village, town, city, state, territory, commonwealth, or other jurisdiction of the United States.

(c) In addition to the registrable offenses under subdivisions (1)(a) and (b) of this section, the Sex Offender Registration Act applies to any person who on or after January 1, 2020:

(i) Has ever pled guilty to, pled nolo contendere to, or been found guilty of sexual abuse of a detainee under section 28-322.05; or

(ii) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any offense that is substantially equivalent to a registrable offense under subdivision (1)(c)(i) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding a procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon.

(d) In addition to the registrable offenses under subdivisions (1)(a), (b), and (c) of this section, the Sex Offender Registration Act applies to any person who on or after January 1, 2023:

(i) Has ever pled guilty to, pled nolo contendere to, or been found guilty of human trafficking under subsection (1) or (2) of section 28-831, and the court determines either by notification of sex offender registration responsibilities or notation in the sentencing order that the human trafficking was sex trafficking or sex trafficking of a minor and not solely labor trafficking or labor trafficking of a minor; or

(ii) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any offense that is substantially equivalent to a registrable offense under subdivision (1)(d)(i) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding a procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon.

(2) A person appealing a conviction of a registrable offense under this section shall be required to comply with the act during the appeals process.

Credits

Laws 1996, LB 645, § 3; Laws 2002, LB 564, § 3; Laws 2004, LB 943, § 9; Laws 2005, LB 713, § 4; Laws 2006, LB 1199, § 18; Laws 2009, LB 97, § 25, eff. May 21, 2009; Laws 2009, LB 285, § 4, eff. May 30, 2009; Laws 2011, LB 61, § 2, eff. Aug. 27, 2011; Laws 2014, LB 998, § 6, eff. April 10, 2014; Laws 2016, LB 934, § 11, eff. April 19, 2016; Laws 2019, LB 519, § 14, eff. Sept. 1, 2019; Laws 2019, LB 630, § 7, eff. Sept. 1, 2019; Laws 2020, LB 881, § 26, eff. Nov. 14, 2020; Laws 2022, LB 1246, § 2, eff. July 21, 2022; Laws 2025, LB 150, § 38, eff. Sept. 3, 2025; Laws 2025, LB 383, § 20, eff. Sept. 3, 2025.

Neb. Rev. St. § 29-4003, NE ST § 29-4003

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4004

29-4004. Registration; location; sheriff; duties; Nebraska State Patrol; duties; name-change order; treatment

Currentness

(1) Any person subject to the Sex Offender Registration Act shall register within three working days after becoming subject to the act at a location designated by the Nebraska State Patrol for purposes of accepting such registration.

(2) Any person required to register under the act shall inform the sheriff of the county in which he or she resides, in person, and complete a form as prescribed by the Nebraska State Patrol for such purpose, if he or she has a new address, temporary domicile, or habitual living location, within three working days before the change. The sheriff shall submit such information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.

(3) Any person required to register under the act shall inform the sheriff of the county in which he or she resides, in person, and complete a form as prescribed by the Nebraska State Patrol for such purpose, if he or she has a new address, temporary domicile, or habitual living location in a different county in this state, within three working days before the address change. The sheriff shall submit such information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner as prescribed by the Nebraska State Patrol for such purpose. If the change in address, temporary domicile, or habitual living location is to a location within the State of Nebraska, the division shall notify the sheriff of each affected county of the new address, temporary domicile, or habitual living location, within three working days. The person shall report to the county sheriff of his or her new county of residence and register with such county sheriff within three working days after the address change.

(4) Any person required to register under the act shall inform the sheriff of the county in which he or she resides, in person, and complete a form as prescribed by the Nebraska State Patrol for such purpose, if he or she moves to a new out-of-state address, within three working days before the address change. The sheriff shall submit such information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner as prescribed by the Nebraska State Patrol for such purpose. If the change in address, temporary domicile, or habitual living location is to a location outside of the State of Nebraska, the division shall notify the sheriff of each affected county in Nebraska and the other state's, country's, or territory's central repository for sex offender registration of the new out-of-state address, temporary domicile, or habitual living location, within three working days.

(5) Any person required to register under the act who is employed, carries on a vocation, or attends school shall inform, in person, the sheriff of the county in which he or she is employed, carries on a vocation, or attends school and complete a form as prescribed by the Nebraska State Patrol for such purpose, within three working days after becoming employed, carrying on a vocation, or attending school. The person shall also notify the sheriff, in person, of any changes in employment, vocation, or school of attendance, and complete a form as prescribed by the Nebraska State Patrol for such purpose, within three working

days after the change. The sheriff shall submit such information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner as prescribed by the Nebraska State Patrol for such purpose.

(6) Any person required to register under the act who is residing, has a temporary domicile, or is habitually living in another state, and is employed, carries on a vocation, or attends school in this state, shall report and register, in person, with the sheriff of the county in which he or she is employed, carries on a vocation, or attends school in this state and complete a form as prescribed by the Nebraska State Patrol for such purpose, within three working days after becoming employed, carrying on a vocation, or attending school. The person shall also notify the sheriff of any changes in employment, vocation, or school of attendance, in person, and complete a form as prescribed by the Nebraska State Patrol for such purpose, within three working days after the change. The sheriff shall submit such information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner as prescribed by the Nebraska State Patrol for such purpose. For purposes of this subsection:

(a) Attends school means enrollment in any educational institution in this state on a full-time or part-time basis; and

(b) Is employed or carries on a vocation means any full-time or part-time employment, with or without compensation, which lasts for a duration of more than fourteen days or for an aggregate period exceeding thirty days in a calendar year.

(7) Any person incarcerated for a registrable offense under section 29-4003 in a jail, penal or correctional facility, or other public or private institution shall be registered by the jail, penal or correctional facility, or public or private institution prior to his or her discharge, parole, furlough, work release, or release. The person shall be informed and information shall be obtained as required in section 29-4006.

(8) Any person required to register or who is registered under the act, but is incarcerated for more than three working days, shall inform the sheriff of the county in which he or she is incarcerated, in writing, within three working days after incarceration, of his or her incarceration and his or her expected release date, if any such date is available. The sheriff shall forward the information regarding incarceration to the sex offender registration and community notification division of the Nebraska State Patrol immediately on the day on which it was received and in a manner prescribed by the Nebraska State Patrol for such purpose.

(9) Any person required to register or who is registered under the act who no longer has a residence, temporary domicile, or habitual living location shall report such change in person to the sheriff of the county in which he or she is located, within three working days after such change in residence, temporary domicile, or habitual living location. Such person shall update his or her registration, in person, to the sheriff of the county in which he or she is located, on a form approved by the sex offender registration and community notification division of the Nebraska State Patrol at least once every thirty calendar days during the time he or she remains without residence, temporary domicile, or habitual living location.

(10) Each registering entity shall forward all written information, photographs, and fingerprints obtained pursuant to the act to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose. The information shall be forwarded on forms furnished by the division. The division shall maintain a central registry of sex offenders required to register under the act. Any collected DNA samples shall be forwarded to the State DNA Database.

(11) The sex offender registration and community notification division of the Nebraska State Patrol shall determine whether a name-change order received from the clerk of a district court pursuant to section 25-21,271 is for a person in the central registry of sex offenders and, if so, shall include the changed name with the former name in the registry, file or cross-reference the information under both names, and notify the sheriff of the county in which such person then resides.

Credits

Laws 1996, LB 645, § 4; Laws 2002, LB 564, § 4; Laws 2005, LB 713, § 5; Laws 2006, LB 1199, § 19; Laws 2009, LB 285, § 5, eff. Jan. 1, 2010; Laws 2010, LB 147, § 4, eff. Jan. 1, 2012.

Neb. Rev. St. § 29-4004, NE ST § 29-4004

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4005

29-4005. Registration duration; reduction in time; request; proof

Currentness

(1)(a) Except as provided in subsection (2) of this section, any person to whom the Sex Offender Registration Act applies shall be required to register during any period of supervised release, probation, or parole and shall continue to comply with the act for the period of time after the date of discharge from probation, parole, or supervised release or release from incarceration, whichever date is most recent, as set forth in subdivision (b) of this subsection. A sex offender shall keep the registration current for the full registration period but shall not be subject to verification procedures during any time the sex offender is in custody or under an inpatient civil commitment, unless the sex offender is allowed a reduction in his or her registration period under subsection (2) of this section.

(b) The full registration period is as follows:

(i) Fifteen years, if the sex offender was convicted of a registrable offense under section 29-4003 not punishable by imprisonment for more than one year;

(ii) Twenty-five years, if the sex offender was convicted of a registrable offense under section 29-4003 punishable by imprisonment for more than one year; or

(iii) Life, if the sex offender was convicted of a registrable offense under section 29-4003 punishable by imprisonment for more than one year and was convicted of an aggravated offense or had a prior sex offense conviction or has been determined to be a lifetime registrant in another state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction.

(2) A sex offender who is required to register for fifteen years may request a reduction in the registration period to ten years upon completion of ten years of the registration period after the date of discharge from probation, parole, supervised release, or incarceration, whichever date is most recent. The sex offender shall make the request to the Nebraska State Patrol. The sex offender shall provide proof that, during such registration period, he or she:

(a) Was not convicted of any offense for which imprisonment for more than one year could have been imposed;

(b) Was not convicted of any sex offense;

(c) Successfully completed any period of probation, parole, supervised release, or incarceration; and

(d) Successfully completed an appropriate sex offender treatment program.

(3) Any time period when any person who is required to register under the act knowingly or willfully fails to comply with such registration requirement shall not be counted as completed registration time and shall be used to recalculate the registration period. The recalculation shall be completed by the sex offender registration and community notification division of the Nebraska State Patrol.

Credits

Laws 1996, LB 645, § 5; Laws 2002, LB 564, § 5; Laws 2006, LB 1199, § 20; Laws 2009, LB 285, § 6, eff. Jan. 1, 2010.

Neb. Rev. St. § 29-4005, NE ST § 29-4005

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4006

29-4006. Registration format; contents; verification; name
change; duties; information provided to sheriff; violation; warrant

Currentness

(1) Registration information required by the Sex Offender Registration Act shall be entered into a database in a format approved by the sex offender registration and community notification division of the Nebraska State Patrol and shall include, but not be limited to, the following information:

- (a) The legal name and all aliases which the person has used or under which the person has been known;
- (b) The person's date of birth and any alias dates of birth;
- (c) The person's social security number;
- (d) The address of each residence at which the person resides, has a temporary domicile, has a habitual living location, or will reside;
- (e) The name and address of any place where the person is an employee or will be an employee, including work locations without a single worksite;
- (f) The name and address of any place where the person is a student or will be a student;
- (g) The license plate number and a description of any vehicle owned or operated by the person and its regular storage location;
- (h) The person's motor vehicle operator's license number, including the person's valid motor vehicle operator's license or state identification card submitted for photocopying;
- (i) The person's original travel and immigration documents submitted for photocopying;
- (j) The person's original professional licenses or certificates submitted for photocopying;

- (k) The person's telephone numbers;
 - (l) A physical description of the person;
 - (m) A digital link to the text of the provision of law defining the criminal offense or offenses for which the person is registered under the act;
 - (n) Access to the criminal history of the person, including the date of all arrests and convictions, the status of parole, probation, or supervised release, registration status, and the existence of any outstanding arrest warrants for the person;
 - (o) A current photograph of the person;
 - (p) A set of fingerprints and palm prints of the person; and
 - (q) A DNA sample of the person.
- (2) Except as provided in section 29-4005, the registration information shall be verified as provided in subsections (3), (4), and (5) of this section for the duration of the registration period. The person shall appear in person for such verification at the office of the sheriff of the county in which he or she resides, has a temporary domicile, or is habitually living for purposes of accepting verifications and shall have his or her photograph and fingerprints taken upon request of verification personnel.
- (3) A person required to register under the act for fifteen years shall report every twelve months in the month of his or her birth, in person, to the office of the sheriff of the county in which he or she resides for purposes of accepting verifications, regardless of the original registration month. The sheriff shall submit such verification information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.
- (4) A person required to register under the act for twenty-five years shall report, in person, every six months to the office of the sheriff of the county in which he or she resides for purposes of accepting verification. The person shall report, in person, in the month of his or her birth and in the sixth month following the month of his or her birth, regardless of the original registration month. The sheriff shall submit such verification information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.
- (5) A person required to register under the act for life shall report, in person, every three months to the office of the sheriff of the county in which he or she resides for purposes of accepting verification. The person shall report, in person, in the month of his or her birth and every three months following the month of his or her birth, regardless of the original registration month. The sheriff shall submit such verification information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.

(6) The verification form shall be signed by the person required to register under the act and state whether the address last reported to the division is still correct.

(7) Upon receipt of registration and confirmation of the registry requirement, the sex offender registration and community notification division of the Nebraska State Patrol shall notify the person by certified mail of his or her registry duration and verification schedule.

(8) If the person required to register under the act fails to report in person as required in subsection (3), (4), or (5) of this section, the person shall be in violation of this section.

(9) If the person required to register under the act falsifies the registration or verification information or form or fails to provide or timely update law enforcement of any of the information required to be provided by the Sex Offender Registration Act, the person shall be in violation of this section.

(10) The verification requirements of a person required to register under the act shall not apply during periods of such person's incarceration or inpatient civil commitment. Verification shall be resumed as soon as such person is placed on any type of supervised release, parole, or probation or outpatient civil commitment or is released from incarceration or civil commitment. Prior to any type of release from incarceration or inpatient civil commitment, the person shall report a change of address, in writing, to the sheriff of the county in which he or she is incarcerated and the sheriff of the county in which he or she resides, has a temporary domicile, or has a habitual living location. The sheriff shall submit the change of address to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.

(11) Any person required to register under the act shall, in person, inform the sheriff of any legal change in name within three working days after such change and provide a copy of the legal documentation supporting the change in name. The sheriff shall submit the information to the sex offender registration and community notification division of the Nebraska State Patrol, in writing, immediately after receipt of the information and in a manner prescribed by the Nebraska State Patrol for such purpose.

(12) At any time that a person required to register under the act violates the registry requirements and cannot be located, the registry information shall reflect that the person has absconded, a warrant shall be sought for the person's arrest, and the United States Marshals Service shall be notified.

Credits

Laws 1996, LB 645, § 6; Laws 2002, LB 564, § 6; Laws 2006, LB 1199, § 21; Laws 2009, LB 97, § 26, eff. May 21, 2009; Laws 2009, LB 285, § 7, eff. Jan. 1, 2010; Laws 2015, LB 292, § 6, eff. Aug. 30, 2015.

Neb. Rev. St. § 29-4006, NE ST § 29-4006

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4007

29-4007. Sentencing court; duties; Department of Correctional Services or local facility;
Department of Motor Vehicles; notification requirements; Attorney General; approve form

Effective: July 19, 2018

Currentness

(1) When sentencing a person convicted of a registrable offense under section 29-4003, the court shall:

(a) Provide written notification of the duty to register under the Sex Offender Registration Act at the time of sentencing to any defendant who has pled guilty or has been found guilty of a registrable offense under section 29-4003. The written notification shall:

(i) Inform the defendant of whether or not he or she is subject to the act, the duration of time he or she will be subject to the act, and that he or she shall report to a location designated by the Nebraska State Patrol for purposes of accepting such registration within three working days after the date of the written notification to register;

(ii) Inform the defendant that if he or she moves to another address within the same county, he or she must report to the county sheriff of the county in which he or she is residing within three working days before his or her move;

(iii) Inform the defendant that if he or she no longer has a residence, temporary domicile, or habitual living location, he or she shall report such change in person to the sheriff of the county in which he or she is located within three working days after such change in residence, temporary domicile, or habitual living location;

(iv) Inform the defendant that if he or she moves to another county in the State of Nebraska, he or she must notify, in person, the county sheriff of the county in which he or she had been last residing, had a temporary domicile, or had a habitual living location and the county sheriff of the county in which he or she is residing, has a temporary domicile, or is habitually living of his or her current address. The notice must be given within three working days before his or her move;

(v) Inform the defendant that if he or she moves to another state, he or she must report, in person, the change of address to the county sheriff of the county in which he or she has been residing, has had a temporary domicile, or has had a habitual living location and must comply with the registration requirements of the state to which he or she is moving. The notice must be given within three working days before his or her move;

(vi) Inform the defendant that he or she shall (A) inform the sheriff of the county in which he or she resides, has a temporary domicile, or is habitually living, in person, of each educational institution at which he or she is employed, carries on a

vocation, or attends school, within three working days after such employment or attendance, and (B) notify the sheriff of any change in such employment or attendance status of such person at such educational institution, within three working days;

(vii) Inform the defendant that he or she shall (A) inform the sheriff of the county in which the employment site is located, in person, of the name and address of any place where he or she is or will be an employee, within three working days after such employment, and (B) inform the sheriff of the county in which the employment site is located, in person, of any change in his or her employment;

(viii) Inform the defendant that if he or she goes to another state to work or goes to another state as a student and still resides, has a temporary domicile, or has a habitual living location in this state, he or she must comply with the registration requirements of both states;

(ix) Inform the defendant that fingerprints, palm prints, a DNA sample if not previously collected, and a photograph will be obtained by any registering entity in order to comply with the registration requirements;

(x) Inform the defendant of registry and verification locations; and

(xi) Inform the defendant of the reduction request requirements, if eligible, under section 29-4005;

(b) Require the defendant to read and sign the registration form stating that the duty of the defendant to register under the Sex Offender Registration Act has been explained;

(c) Retain the original notification signed by the defendant; and

(d) Provide a copy of the filed notification, the information or amended information, and the sentencing order of the court to the county attorney, the defendant, the sex offender registration and community notification division of the Nebraska State Patrol, and the county sheriff of the county in which the defendant resides, has a temporary domicile, or has a habitual living location.

(2) When a person is convicted of a registrable offense under section 29-4003 and is not subject to immediate incarceration upon sentencing, prior to being released by the court, the sentencing court shall ensure that the defendant is registered by a Nebraska State Patrol office or other location designated by the patrol for purposes of accepting registrations.

(3)(a) The Department of Correctional Services or a city or county correctional or jail facility shall provide written notification of the duty to register pursuant to the Sex Offender Registration Act to any person committed to its custody for a registrable offense under section 29-4003 prior to the person's release from incarceration. The written notification shall:

(i) Inform the person of whether or not he or she is subject to the act, the duration of time he or she will be subject to the act, and that he or she shall report to a location designated by the Nebraska State Patrol for purposes of accepting such registration within three working days after the date of the written notification to register;

- (ii) Inform the person that if he or she moves to another address within the same county, he or she must report all address changes, in person, to the county sheriff of the county in which he or she has been residing within three working days before his or her move;
- (iii) Inform the defendant that if he or she no longer has a residence, temporary domicile, or habitual living location, he or she shall report such change in person to the sheriff of the county in which he or she is located within three working days after such change in residence, temporary domicile, or habitual living location;
- (iv) Inform the person that if he or she moves to another county in the State of Nebraska, he or she must notify, in person, the county sheriff of the county in which he or she had been last residing, had a temporary domicile, or had a habitual living location and the county sheriff of the county in which he or she is residing, has a temporary domicile, or is habitually living of his or her current address. The notice must be given within three working days before his or her move;
- (v) Inform the person that if he or she moves to another state, he or she must report, in person, the change of address to the county sheriff of the county in which he or she has been residing, has had a temporary domicile, or has been habitually living and must comply with the registration requirements of the state to which he or she is moving. The report must be given within three working days before his or her move;
- (vi) Inform the person that he or she shall (A) inform the sheriff of the county in which he or she resides, has a temporary domicile, or is habitually living, in person, of each educational institution at which he or she is employed, carries on a vocation, or attends school, within three working days after such employment or attendance, and (B) notify the sheriff of any change in such employment or attendance status of such person at such educational institution, within three working days after such change;
- (vii) Inform the person that he or she shall (A) inform the sheriff of the county in which the employment site is located, in person, of the name and address of any place where he or she is or will be an employee, within three working days after such employment, and (B) inform the sheriff of the county in which the employment site is located, in person, of any change in his or her employment;
- (viii) Inform the person that if he or she goes to another state to work or goes to another state as a student and still resides, has a temporary domicile, or has a habitual living location in this state, he or she must comply with the registration requirements of both states;
- (ix) Inform the defendant that fingerprints, palm prints, a DNA sample if not previously collected, and a photograph will be obtained by any registering entity in order to comply with the registration requirements;
- (x) Inform the defendant of registry and verification locations; and
- (xi) Inform the defendant of the reduction request requirements, if eligible, under section 29-4005.

(b) The Department of Correctional Services or a city or county correctional or jail facility shall:

(i) Require the person to read and sign the notification form stating that the duty to register under the Sex Offender Registration Act has been explained;

(ii) Retain a signed copy of the written notification to register; and

(iii) Provide a copy of the signed, written notification to register to the person and to the sex offender registration and community notification division of the Nebraska State Patrol.

(4) If a person is convicted of a registrable offense under section 29-4003 and is immediately incarcerated, he or she shall be registered as required under the act prior to discharge, parole, or work release.

(5) The Department of Motor Vehicles shall cause written notification of the duty to register to be provided on the applications for a motor vehicle operator's license and for a commercial driver's license.

(6) All written notification as provided in this section shall be on a form approved by the Attorney General.

Credits

Laws 1996, LB 645, § 7; Laws 1998, LB 204, § 1; Laws 2002, LB 564, § 7; Laws 2006, LB 1199, § 22; Laws 2009, LB 97, § 27, eff. May 21, 2009; Laws 2009, LB 285, § 8, eff. Jan. 1, 2010; Laws 2015, LB 292, § 7, eff. Aug. 30, 2015; Laws 2018, LB 193, § 63, eff. July 19, 2018.

Neb. Rev. St. § 29-4007, NE ST § 29-4007

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West's Revised Statutes of Nebraska Annotated
Chapter 29. Criminal Procedure
Article 40. Sex Offenders
(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4008

29-4008. False or misleading information prohibited; updates required

Currentness

No person subject to the Sex Offender Registration Act shall knowingly and willfully furnish any false or misleading information in the registration or fail to provide or timely update law enforcement of any of the information required to be provided by the act.

Credits

Laws 1996, LB 645, § 8; Laws 2009, LB 97, § 28, eff. May 21, 2009.

Neb. Rev. St. § 29-4008, NE ST § 29-4008

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(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4009

29-4009. Information not confidential; limit on disclosure

Currentness

(1) Information obtained under the Sex Offender Registration Act shall not be confidential, except that the following information shall only be disclosed to law enforcement agencies, including federal or state probation or parole agencies, if appropriate:

- (a) A sex offender's social security number;
 - (b) Any references to arrests of a sex offender that did not result in conviction;
 - (c) A sex offender's travel or immigration document information;
 - (d) A sex offender's remote communication device identifiers and addresses;
 - (e) A sex offender's email addresses, instant messaging identifiers, chat room identifiers, global unique identifiers, and other Internet communication identifiers;
 - (f) A sex offender's telephone numbers;
 - (g) A sex offender's motor vehicle operator's license information or state identification card number; and
 - (h) The name of any employer of a sex offender.
- (2) The identity of any victim of a sex offense shall not be released.
- (3) The release of information authorized by this section shall conform with the rules and regulations adopted and promulgated by the Nebraska State Patrol pursuant to section 29-4013.

Credits

Laws 1996, LB 645, § 9; Laws 1998, LB 204, § 2; Laws 2002, LB 564, § 8; Laws 2005, LB 713, § 6; Laws 2006, LB 1199, § 23; Laws 2009, LB 285, § 9, eff. Jan. 1, 2010.

Neb. Rev. St. § 29-4009, NE ST § 29-4009

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(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4011

29-4011. Violations; penalties; investigation and enforcement

Currentness

(1) Any person required to register under the Sex Offender Registration Act who violates the act is guilty of a Class IIIA felony.

(2) Any person required to register under the act who violates the act and who has previously been convicted of a violation of the act is guilty of a Class IIA felony and shall be sentenced to a mandatory minimum term of at least one year in prison unless the violation which caused the person to be placed on the registry was a misdemeanor, in which case the violation of the act shall be a Class IIIA felony.

(3) Any law enforcement agency with jurisdiction in the area in which a person required to register under the act resides, has a temporary domicile, maintains a habitual living location, is employed, carries on a vocation, or attends school shall investigate and enforce violations of the act.

Credits

Laws 1996, LB 645, § 11; Laws 2006, LB 1199, § 24; Laws 2009, LB 285, § 10, eff. Jan. 1, 2010; Laws 2015, LB 605, § 74, eff. Aug. 30, 2015.

Neb. Rev. St. § 29-4011, NE ST § 29-4011

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(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4012

29-4012. Immunity from liability

Currentness

Law enforcement officials, their employees, and state officials shall be immune from liability for good faith conduct under the Sex Offender Registration Act.

Credits

Laws 1996, LB 645, § 12.

Neb. Rev. St. § 29-4012, NE ST § 29-4012

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(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4013

29-4013. Rules and regulations; release of information; duties;
access to public notification information; access to documents

Currentness

(1) The Nebraska State Patrol shall adopt and promulgate rules and regulations to carry out the registration provisions of the Sex Offender Registration Act.

(2)(a) The Nebraska State Patrol shall adopt and promulgate rules and regulations for the release of information pursuant to section 29-4009.

(b) The procedures for release of information established by the Nebraska State Patrol shall provide for law enforcement and public notification using electronic systems.

(3) Information concerning the address or whereabouts of a sex offender may be disclosed to his or her victim or victims.

(4) The following shall have access to public notification information: Any agency responsible for conducting employment-related background checks under section 3 of the National Child Protection Act of 1993, 42 U.S.C. 5119a; any social service entity responsible for protecting minors in the child welfare system; any volunteer organization in which contact with minors or other vulnerable individuals might occur; any public housing agency in each area in which a registered sex offender resides or is an employee or a student; any governmental agency conducting confidential background checks for employment, volunteer, licensure, or certification purposes; and any health care provider who serves children or vulnerable adults for the purpose of conducting confidential background checks for employment. If any means of notification proposes a fee for usage, then nonprofit organizations holding a certificate of exemption under section 501(c) of the Internal Revenue Code shall not be charged.

(5) Personnel for the sex offender registration and community notification division of the Nebraska State Patrol shall have access to all documents that are generated by any governmental agency that may have bearing on sex offender registration and community notification. This may include, but is not limited to, law enforcement reports, presentence reports, criminal histories, birth certificates, or death certificates. The division shall not be charged for access to documents under this subsection. Access to such documents will ensure that a fair determination of what is an appropriate registration period is completed using the totality of all information available.

(6) Nothing in subsection (2) of this section shall be construed to prevent law enforcement officers from providing community notification concerning any person who poses a danger under circumstances that are not provided for in the Sex Offender Registration Act.

Credits

Laws 1996, LB 645, § 13; Laws 1998, LB 204, § 3; Laws 2002, LB 564, § 10; Laws 2005, LB 713, § 7; Laws 2006, LB 1199, § 25; Laws 2007, LB 463, § 1130; Laws 2009, LB 285, § 11, eff. Jan. 1, 2010.

Neb. Rev. St. § 29-4013, NE ST § 29-4013

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(a) Sex Offender Registration Act

Neb.Rev.St. § 29-4014

29-4014. Person committed to Department of Correctional Services;
attend sex offender treatment and counseling programming

Currentness

Any person convicted of a crime requiring registration as a sex offender pursuant to section 29-4003 and committed to the Department of Correctional Services shall attend appropriate sex offender treatment and counseling programming offered by the department. Refusal to participate in such programming shall not result in disciplinary action or a loss of good time credit on the part of the offender but shall require a civil commitment evaluation pursuant to section 83-174.02 prior to the completion of his or her criminal sentence.

Credits

Laws 2006, LB 1199, § 26.

Neb. Rev. St. § 29-4014, NE ST § 29-4014

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Title 14. Procedure in Criminal Cases (Chapters 169-189)

Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child

N.R.S. T. 14, Ch. 179B, Refs & Annos

Currentness

N. R. S. T. 14, Ch. 179B, Refs & Annos, NV ST T. 14, Ch. 179B, Refs & Annos

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Title 14. Procedure in Criminal Cases (Chapters 169-189)

Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.010

179B.010. Definitions

Currentness

As used in this chapter, unless the context otherwise requires, the words and terms defined in NRS 179B.020 to 179B.140, inclusive, have the meanings ascribed to them in those sections.

Credits

Added by Laws 1997, c. 451, § 2, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 7, eff. May 26, 1999; Laws 2003, c. 461, § 6; Laws 2005, c. 507, § 18, eff. July 1, 2006.

N. R. S. 179B.010, NV ST 179B.010

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General Provisions

N.R.S. 179B.020

179B.020. “Central Repository” defined

Currentness

“Central Repository” means the Central Repository for Nevada Records of Criminal History.

Credits

Added by Laws 1997, c. 451, § 4, eff. July 1, 1997.

N. R. S. 179B.020, NV ST 179B.020

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General Provisions

N.R.S. 179B.023

179B.023. "Community notification website" defined

Currentness

"Community notification website" means the website on the Internet established and maintained by the Department pursuant to NRS 179B.250.

Credits

Added by Laws 2005, c. 507, § 14, eff. July 1, 2006.

N. R. S. 179B.023, NV ST 179B.023

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General Provisions

N.R.S. 179B.025

179B.025. “Convicted” defined

Currentness

“Convicted” has the meaning ascribed to it in NRS 179D.035.

Credits

Added by Laws 1999, c. 310, § 6.3, eff. May 26, 1999.

N. R. S. 179B.025, NV ST 179B.025

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Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.030

179B.030. “Crime against a child” defined

Currentness

“Crime against a child” has the meaning ascribed to it in NRS 179D.0357.

Credits

Added by Laws 1997, c. 451, § 5, eff. July 1, 1997. Amended by Laws 2007, c. 485, § 11, eff. July 1, 2008.

N. R. S. 179B.030, NV ST 179B.030

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General Provisions

N.R.S. 179B.040

179B.040. “Department” defined

Currentness

“Department” means the Department of Public Safety.

Credits

Added by Laws 1997, c. 451, § 6, eff. July 1, 1997. Amended by Laws 2001, c. 520, § 94, eff. July 1, 2001.

N. R. S. 179B.040, NV ST 179B.040

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General Provisions

N.R.S. 179B.050

179B.050. "Director" defined

Currentness

"Director" means the Director of the Department.

Credits

Added by Laws 1997, c. 451, § 7, eff. July 1, 1997.

N. R. S. 179B.050, NV ST 179B.050

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General Provisions

N.R.S. 179B.060

179B.060. “Division” defined

Currentness

“Division” means the Division of Parole and Probation of the Department.

Credits

Added by Laws 1997, c. 451, § 8, eff. July 1, 1997.

N. R. S. 179B.060, NV ST 179B.060

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General Provisions

N.R.S. 179B.070

179B.070. “Law enforcement officer” defined

Currentness

“Law enforcement officer” includes, but is not limited to:

1. A prosecuting attorney or an attorney from the Office of the Attorney General;
2. A sheriff of a county or a sheriff’s deputy;
3. An officer of a metropolitan police department or a police department of an incorporated city;
4. An officer of the Division;
5. An officer of the Department of Corrections;
6. An officer of a law enforcement agency from another jurisdiction; or
7. Any other person upon whom some or all of the powers of a peace officer are conferred pursuant to NRS 289.150 to 289.360, inclusive, if the person is seeking information as part of a criminal investigation.

Credits

Added by Laws 1997, c. 451, § 9, eff. July 1, 1997. Amended by Laws 2001 (17th ss), c. 14, § 75, eff. July 1, 2001.

N. R. S. 179B.070, NV ST 179B.070

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Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.073

179B.073. “Offender” defined

Currentness

“Offender” means a sex offender or an offender convicted of a crime against a child.

Credits

Added by Laws 2003, c. 461, § 5.

N. R. S. 179B.073, NV ST 179B.073

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Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.075

179B.075. “Offender convicted of a crime against a child” defined

Currentness

“Offender convicted of a crime against a child” has the meaning ascribed to it in NRS 179D.0559.

Credits

Added by Laws 1999, c. 310, § 6.6, eff. May 26, 1999. Amended by Laws 2007, c. 485, § 12, eff. July 1, 2008.

N. R. S. 179B.075, NV ST 179B.075

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Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.080

179B.080. Repealed

Currentness

Credits

Repealed by Laws 2005, c. 507, § 44, eff. July 1, 2006.

N. R. S. 179B.080, NV ST 179B.080

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Chapter 179B. Statewide Registry of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

General Provisions

N.R.S. 179B.090

179B.090. "Record of registration" defined

Currentness

"Record of registration" has the meaning ascribed to it in NRS 179D.070.

Credits

Added by Laws 1997, c. 451, § 11, eff. July 1, 1997. Amended by Laws 2011, c. 51, § 2, eff. May 18, 2011.

N. R. S. 179B.090, NV ST 179B.090

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General Provisions

N.R.S. 179B.100

179B.100. “Requester” defined

Currentness

“Requester” means a person who requests information from the community notification website.

Credits

Added by Laws 1997, c. 451, § 11.5, eff. July 1, 1997. Amended by Laws 2005, c. 507, § 19, eff. July 1, 2006.

N. R. S. 179B.100, NV ST 179B.100

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General Provisions

N.R.S. 179B.110

179B.110. “Sex offender” defined

Currentness

“Sex offender” has the meaning ascribed to it in NRS 179D.095.

Credits

Added by Laws 1997, c. 451, § 12, eff. July 1, 1997.

N. R. S. 179B.110, NV ST 179B.110

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General Provisions

N.R.S. 179B.120

179B.120. Repealed

Currentness

Credits

Repealed by Laws 2003, c. 463, § 63, eff. June 10, 2003.

N. R. S. 179B.120, NV ST 179B.120

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General Provisions

N.R.S. 179B.130

179B.130. “Statewide registry” defined

Currentness

“Statewide registry” means the statewide registry of sex offenders and offenders convicted of a crime against a child established within the central repository pursuant to NRS 179B.200.

Credits

Added by Laws 1997, c. 451, § 14, eff. July 1, 1997.

N. R. S. 179B.130, NV ST 179B.130

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General Provisions

N.R.S. 179B.140

179B.140. “Subject of the search” defined

Currentness

“Subject of the search” means the person about whom a requester seeks information.

Credits

Added by Laws 1997, c. 451, § 15, eff. July 1, 1997.

N. R. S. 179B.140, NV ST 179B.140

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Establishment and Contents

N.R.S. 179B.200

179B.200. Establishment of registry; contents; search of registry by law enforcement officer;
access by other persons; contents deemed record of criminal history for limited purposes

Currentness

1. The Director shall establish within the Central Repository a statewide registry of sex offenders and offenders convicted of a crime against a child that consists of the record of registration for each such offender and all other information concerning each such offender that is obtained pursuant to law.

2. The statewide registry must be organized so that a law enforcement officer may search the records of registration in the registry by entering certain search information, including, but not limited to:

(a) A name, alias, physical description or address of an offender.

(b) A geographic location where an offense was committed.

(c) The age, gender, race or general physical description of a victim.

(d) The method of operation used by an offender, including, but not limited to:

(1) The specific sexual acts committed against a victim;

(2) The method of obtaining access to a victim, such as the use of enticements, threats, forced entry or violence against a victim;

(3) The type of injuries inflicted on a victim;

(4) The types of instruments, weapons or objects used;

(5) The type of property taken; and

(6) Any other distinctive characteristic of the behavior or personality of an offender.

3. Except as otherwise provided in this subsection or by specific statute, information in the statewide registry may be accessed only by a law enforcement officer in the regular course of the law enforcement officer's duties and officers and employees of the Central Repository. The Director may permit the following persons to have access to information in the statewide registry:

(a) Except as otherwise provided in chapter 179A of NRS or by specific statute, an officer or employee of a governmental agency that is investigating the background of a person for the purposes of employment.

(b) Any other person for the limited purposes of research or statistical analysis.

4. Information contained in the statewide registry, including, but not limited to, the record of registration of an offender, shall be deemed a record of criminal history only for the purposes of those provisions of chapter 179A of NRS that are consistent with the provisions of this chapter.

Credits

Added by Laws 1997, c. 451, § 17, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 8, eff. May 26, 1999.

N. R. S. 179B.200, NV ST 179B.200

Current through legislation of the 83rd Regular Session (2025) effective through June 10, 2025. Some statute sections may be more current; see credits for details. Text subject to revision and classification by the Legislative Counsel Bureau.

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Community Notification Website

N.R.S. 179B.250

179B.250. Establishment, maintenance and content of website; information to be included with each inquiry; duties, authorizations and prohibitions of Central Repository

Currentness

1. The Department shall establish and maintain within the Central Repository a community notification website to provide the public with access to certain information contained in the statewide registry in accordance with the procedures set forth in this section.

2. The community notification website is the source of record for information available to the public concerning offenders listed in the statewide registry, and must:

(a) Be maintained in a manner that will allow the public to obtain relevant information for each offender by a single query for any given zip code or geographical radius set by the user;

(b) Include in its design all the search field capabilities needed for full participation in the Dru Sjodin National Sex Offender Public Website maintained by the Attorney General of the United States pursuant to 42 U.S.C. § 16920;

(c) Include, to the extent practicable, links to sex offender safety and education resources;

(d) Include instructions on how to seek correction of information that a person contends is erroneous; and

(e) Include a warning that the information on the website should not be used to unlawfully injure, harass or commit a crime against any person named in the registry or residing or working at any reported address and a notice that any such action could result in civil or criminal penalties.

3. For each inquiry to the community notification website, the requester may provide:

(a) The name of the subject of the search;

(b) Any alias of the subject of the search;

(c) The zip code of the residence, place of work or school of the subject of the search; or

(d) Any other information concerning the identity or location of the subject of the search that is deemed sufficient in the discretion of the Department.

4. For each inquiry to the community notification website made by the requester, the Central Repository shall:

(a) Explain the levels of registration and community notification that are assigned to sex offenders pursuant to NRS 179D.010 to 179D.550, inclusive; and

(b) Explain that the Central Repository is prohibited by law from disclosing certain information concerning certain offenders, even if those offenders are listed in the statewide registry.

5. If an offender listed in the statewide registry matches the information provided by the requester concerning the identity or location of the subject of the search, the Central Repository shall disclose to the requester information in the statewide registry concerning the offender as provided pursuant to subsection 6.

6. After each inquiry to the community notification website made by the requester, the Central Repository shall inform the requester that:

(a) No offender listed in the statewide registry matches the information provided by the requester concerning the identity or location of the subject of the search;

(b) The search of the statewide registry has not produced information that is available to the public through the statewide registry; or

(c) An offender listed in the statewide registry matches the information provided by the requester concerning the identity or location of the subject of the search. Except as otherwise provided in subsection 7, if a search of the statewide registry results in a match pursuant to this paragraph, the Central Repository shall provide the requester with the following information:

(1) The name of the offender and all aliases that the offender has used or under which the offender has been known.

(2) A complete physical description of the offender.

(3) A current photograph of the offender.

(4) The year of birth of the offender.

(5) The complete address of any residence at which the offender resides or will reside.

(6) The address of any location where the offender is or will be:

(I) A student, as defined in NRS 179D.110; or

(II) A worker, as defined in NRS 179D.120.

(7) The license plate number and a description of any motor vehicle owned or operated by the offender.

(8) The following information for each offense for which the offender has been convicted:

(I) The offense that was committed, including a citation to and the text of the specific statute that the offender violated.

(II) The court in which the offender was convicted.

(III) The name under which the offender was convicted.

(IV) The name and location of each penal institution, school, hospital, mental facility or other institution to which the offender was committed for the offense.

(V) The city, township or county where the offense was committed.

(9) The tier level of registration and community notification assigned to the offender pursuant to NRS 179D.010 to 179D.550, inclusive.

(10) Any other information required by federal law.

7. If a search of the statewide registry results in a match pursuant to paragraph (c) of subsection 6, the Central Repository shall not provide the requester with:

(a) The identity of any victim of a sexual offense or crime against a child;

(b) Any information relating to a Tier I offender unless the offender has been convicted of a sexual offense against a child or a crime against a child;

(c) The social security number of the offender;

(d) The name of any location where the offender is or will be:

(1) A student, as defined in NRS 179D.110; or

(2) A worker, as defined in NRS 179D.120;

(e) Any reference to arrests of the offender that did not result in conviction;

(f) Any other information that is included in the record of registration for the offender other than the information required pursuant to paragraph (c) of subsection 6; or

(g) Any other information exempted from disclosure by the Attorney General of the United States pursuant to federal law.

8. The provisions of this section do not prevent law enforcement officers, the Central Repository and its officers and employees, or any other person from:

(a) Accessing information in the statewide registry pursuant to NRS 179B.200;

(b) Carrying out any duty pursuant to chapter 179D of NRS; or

(c) Carrying out any duty pursuant to another provision of law.

9. As used in this section, “Tier I offender” has the meaning ascribed to it in NRS 179D.113.

Credits

Added by Laws 1997, c. 451, § 18, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 9, eff. May 26, 1999; Laws 2003, c. 461, § 7; Laws 2003, c. 463, § 16, eff. June 10, 2003; Laws 2005, c. 507, § 20, eff. July 1, 2006; Laws 2007, c. 485, § 13, eff. July 1, 2008; Laws 2013, c. 107, § 1, eff. May 24, 2013; Laws 2017, c. 401, § 15, eff. Jan. 1, 2018.

N. R. S. 179B.250, NV ST 179B.250

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Community Notification Website

N.R.S. 179B.260

179B.260. Repealed

Currentness

Credits

Repealed by Laws 2003, c. 461, § 8.

N. R. S. 179B.260, NV ST 179B.260

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Community Notification Website

N.R.S. 179B.270

179B.270. Restrictions on use of information

Currentness

Except as otherwise authorized pursuant to specific statute, a person shall not use information obtained from the community notification website for any purpose related to any of the following:

1. Insurance, including health insurance.
2. Loans.
3. Credit.
4. Employment.
5. Education, scholarships or fellowships.
6. Housing or accommodations.
7. Benefits, privileges or services provided by any business establishment.

Credits

Added by Laws 2005, c. 507, § 15, eff. July 1, 2006.

N. R. S. 179B.270, NV ST 179B.270

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Community Notification Website

N.R.S. 179B.280

179B.280. Misuse of information: Civil liabilities

Currentness

Any person who uses information obtained from the community notification website in violation of the provisions of NRS 179B.250 or 179B.270 is liable:

1. In a civil action brought by or on behalf of a person injured by the violation, for damages, attorney's fees and costs incurred as the result of the violation; and
2. In a civil action brought in the name of the State of Nevada by the Attorney General, for a civil penalty not to exceed \$25,000 and for the costs of the action, including investigative costs and attorney's fees.

Credits

Added by Laws 2005, c. 507, § 16, eff. July 1, 2006.

N. R. S. 179B.280, NV ST 179B.280

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Community Notification Website

N.R.S. 179B.285

179B.285. Criminal penalties for using information to commit crime

Currentness

In addition to any civil liability provided pursuant to NRS 179B.280, if any person uses information obtained from the community notification website to commit a crime punishable as:

1. A misdemeanor, the person is guilty of a gross misdemeanor.
2. A gross misdemeanor, the person is guilty of a category E felony and shall be punished as provided in NRS 193.130.

Credits

Added by Laws 2007, c. 485, § 10.5, eff. July 1, 2008.

N. R. S. 179B.285, NV ST 179B.285

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Community Notification Website

N.R.S. 179B.290

179B.290. Misuse of information: Attorney General may file action for injunctive relief

Currentness

1. If there is reasonable cause to believe that a person or group of persons has engaged in or is about to engage in any act or practice, or any pattern of acts or practices, which involves the use of information obtained from the community notification website and which violates any provision of this section, NRS 179B.250, 179B.270 or 179B.280, the Attorney General may file an action for injunctive relief in the appropriate district court to prevent the occurrence or continuance of that act or practice or pattern of acts or practices.

2. An injunction pursuant to this section:

(a) May be issued without proof of actual damage sustained by any person; and

(b) Does not preclude or affect the availability of any other remedy including, without limitation, the criminal prosecution of a violator or the filing or maintenance of a civil action for damages or a civil penalty pursuant to NRS 179B.280.

Credits

Added by Laws 2005, c. 507, § 17, eff. July 1, 2006.

N. R. S. 179B.290, NV ST 179B.290

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Limitations on Liability and the Disclosure of Information

N.R.S. 179B.300

179B.300. Prohibition on disclosing name of victim; immunity for Central Repository and law enforcement agencies

Currentness

1. Information in the statewide registry, including information in the community notification website, that is accessed or disclosed pursuant to the provisions of this chapter must not reveal the name of an individual victim of an offense.

2. The Central Repository and its officers and employees are immune from criminal or civil liability for an act or omission relating to information obtained, maintained or disclosed pursuant to the provisions of this chapter, including, but not limited to, an act or omission relating to:

(a) The accuracy of information in the statewide registry; or

(b) The disclosure of or the failure to disclose information in the statewide registry.

3. A law enforcement agency and its officers and employees are immune from criminal or civil liability for an act or omission relating to information obtained pursuant to the provisions of this chapter, including, but not limited to, an act or omission relating to:

(a) The accuracy of information obtained from the statewide registry; or

(b) The disclosure of or the failure to disclose information obtained from the statewide registry.

Credits

Added by Laws 1997, c. 451, § 20, eff. July 1, 1997. Amended by Laws 2005, c. 507, § 21, eff. July 1, 2006.

N. R. S. 179B.300, NV ST 179B.300

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N.R.S. T. 14, Ch. 179D, Refs & Annos

Currentness

N. R. S. T. 14, Ch. 179D, Refs & Annos, NV ST T. 14, Ch. 179D, Refs & Annos

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General Provisions

N.R.S. 179D.010

179D.010. Definitions

Currentness

As used in this chapter, unless the context otherwise requires, the words and terms defined in NRS 179D.015 to 179D.120, inclusive, have the meanings ascribed to them in those sections.

Credits

Added by Laws 1997, c. 451, § 22, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 20, eff. May 26, 1999; Laws 2003, c. 99, § 7, eff. May 15, 2003; Laws 2007, c. 485, § 31, eff. July 1, 2008.

N. R. S. 179D.010, NV ST 179D.010

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General Provisions

N.R.S. 179D.015

179D.015. “Campus police department” defined

Currentness

“Campus police department” means any campus police department or campus security department at an institution of higher education.

Credits

Added by Laws 2003, c. 99, § 5, eff. May 15, 2003.

N. R. S. 179D.015, NV ST 179D.015

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General Provisions

N.R.S. 179D.020

179D.020. “Central Repository” defined

Currentness

“Central Repository” means the Central Repository for Nevada Records of Criminal History.

Credits

Added by Laws 1997, c. 451, § 23, eff. July 1, 1997.

N. R. S. 179D.020, NV ST 179D.020

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General Provisions

N.R.S. 179D.030

179D.030. "Community notification" defined

Currentness

"Community notification" means notification of a community pursuant to the provisions of NRS 179D.475.

Credits

Added by Laws 1997, c. 451, § 24, eff. July 1, 1997. Amended by Laws 2007, c. 485, § 32, eff. July 1, 2008.

N. R. S. 179D.030, NV ST 179D.030

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General Provisions

N.R.S. 179D.035

179D.035. "Convicted" defined

Currentness

1. "Convicted" includes, but is not limited to, an adjudication of delinquency by a court having jurisdiction over juveniles if:

(a) The adjudication of delinquency is for the commission of a sexual offense that is listed in NRS 62F.225; and

(b) The offender was 14 years of age or older at the time of the offense.

2. The term does not include an adjudication of delinquency by a court having jurisdiction over juveniles if, pursuant to NRS 62F.340, the court has relieved the juvenile from being subject to registration and community notification pursuant to NRS 179D.010 to 179D.550, inclusive.

Credits

Added by Laws 1999, c. 310, § 10.5, eff. May 26, 1999. Amended by Laws 2001, c. 285, § 6, eff. July 1, 2001; Laws 2001, c. 560, § 19, eff. June 13, 2001; Laws 2003, c. 2, § 32, eff. March 5, 2003; Laws 2003, c. 206, § 305, eff. Jan. 1, 2004; Laws 2003, c. 261, § 16, eff. May 28, 2003; Laws 2007, c. 485, § 33, eff. July 1, 2008; Laws 2017, c. 477, § 18, eff. July 1, 2017.

N. R. S. 179D.035, NV ST 179D.035

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General Provisions

N.R.S. 179D.0357

179D.0357. "Crime against a child" defined

Currentness

"Crime against a child" means any of the following offenses if the victim of the offense was less than 18 years of age when the offense was committed:

1. Kidnapping pursuant to NRS 200.310 to 200.340, inclusive, unless the offender is the parent or guardian of the victim.
2. False imprisonment pursuant to NRS 200.460, unless the offender is the parent or guardian of the victim.
3. Involuntary servitude of a child pursuant to NRS 200.4631, unless the offender is the parent or guardian of the victim.
4. An offense involving sex trafficking pursuant to subsection 2 of NRS 201.300 or prostitution pursuant to NRS 201.320 or 201.395.
5. An attempt to commit an offense listed in this section.
6. An offense committed in another jurisdiction that, if committed in this State, would be an offense listed in this section. This subsection includes, without limitation, an offense prosecuted in:
 - (a) A tribal court.
 - (b) A court of the United States or the Armed Forces of the United States.
7. An offense against a child committed in another jurisdiction, whether or not the offense would be an offense listed in this section, if the person who committed the offense resides or has resided or is or has been a student or worker in any jurisdiction in which the person is or has been required by the laws of that jurisdiction to register as an offender who has committed a crime against a child because of the offense. This subsection includes, without limitation, an offense prosecuted in:
 - (a) A tribal court.

(b) A court of the United States or the Armed Forces of the United States.

(c) A court having jurisdiction over juveniles.

Credits

Added by Laws 2007, c. 485, § 16, eff. July 1, 2008. Amended by Laws 2013, c. 354, § 13; Laws 2013, c. 426, § 26, eff. July 1, 2013; Laws 2019, c. 423, § 14, eff. June 5, 2019.

N. R. S. 179D.0357, NV ST 179D.0357

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General Provisions

N.R.S. 179D.040

179D.040. "Division" defined

Currentness

"Division" means the Division of Parole and Probation of the Department of Public Safety.

Credits

Added by Laws 1997, c. 451, § 25, eff. July 1, 1997. Amended by Laws 2001, c. 520, § 96, eff. July 1, 2001.

N. R. S. 179D.040, NV ST 179D.040

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N.R.S. 179D.045

179D.045. "Institution of higher education" defined

Currentness

"Institution of higher education" means:

1. A university, college or community college which is privately owned or which is part of the Nevada System of Higher Education; and
2. A postsecondary educational institution, as defined in NRS 394.099, or any other institution of higher education.

Credits

Added by Laws 2003, c. 99, § 6, eff. May 15, 2003.

N. R. S. 179D.045, NV ST 179D.045

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N.R.S. 179D.050

179D.050. "Local law enforcement agency" defined

Currentness

"Local law enforcement agency" means:

1. The sheriff's office of a county;
2. A metropolitan police department; or
3. A police department of an incorporated city.

Credits

Added by Laws 1997, c. 451, § 26, eff. July 1, 1997.

N. R. S. 179D.050, NV ST 179D.050

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N.R.S. 179D.055

179D.055. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.055, NV ST 179D.055

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N.R.S. 179D.0557

179D.0557. “Nonresident offender or sex offender who is a student or worker within this State” and “nonresident offender or sex offender” defined

Currentness

“Nonresident offender or sex offender who is a student or worker within this State” or “nonresident offender or sex offender” means an offender or sex offender who is a student or worker within this State but who is not otherwise deemed a resident offender or sex offender pursuant to subsection 2 or 3 of NRS 179D.460.

Credits

Added by Laws 2007, c. 485, § 17, eff. July 1, 2008.

N. R. S. 179D.0557, NV ST 179D.0557

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General Provisions

N.R.S. 179D.0559

179D.0559. “Offender convicted of a crime against a child” and “offender” defined

Currentness

1. “Offender convicted of a crime against a child” or “offender” means a person who, after July 1, 1956, is or has been convicted of a crime against a child that is listed in NRS 179D.0357.

2. The term includes, without limitation, an offender who is a student or worker within this State but who is not otherwise deemed a resident offender pursuant to subsection 2 or 3 of NRS 179D.460.

Credits

Added by Laws 2007, c. 485, § 18, eff. July 1, 2008. Amended by Laws 2017, c. 477, § 19, eff. July 1, 2017.

N. R. S. 179D.0559, NV ST 179D.0559

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General Provisions

N.R.S. 179D.060

179D.060. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.060, NV ST 179D.060

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N.R.S. 179D.065

179D.065. "Primary address" defined

Currentness

"Primary address" means the address at which:

1. A student primarily attends any course of academic or vocational instruction within this state.
2. A worker primarily engages in any type of occupation, employment, work or volunteer service within this state.

Credits

Added by Laws 1999, c. 310, § 12, eff. May 26, 1999.

N. R. S. 179D.065, NV ST 179D.065

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General Provisions

N.R.S. 179D.070

179D.070. "Record of registration" defined

Currentness

"Record of registration" means a record of registration that contains the information required by NRS 179D.151.

Credits

Added by Laws 1997, c. 451, § 29, eff. July 1, 1997. Amended by Laws 2011, c. 51, § 4, eff. May 18, 2011.

N. R. S. 179D.070, NV ST 179D.070

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General Provisions

N.R.S. 179D.075

179D.075. "Registration" defined

Currentness

"Registration" means registration as an offender or sex offender pursuant to NRS 179D.010 to 179D.550, inclusive.

Credits

Added by Laws 2007, c. 485, § 19, eff. July 1, 2008.

N. R. S. 179D.075, NV ST 179D.075

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N.R.S. 179D.080

179D.080. "Release" defined

Currentness

"Release" means release from incarceration or confinement. The term includes, but is not limited to:

1. Release on probation, parole or any other type of supervised release.
2. Release after a term of incarceration expires.
3. Release from confinement in a school, hospital, mental facility or other institution.

Credits

Added by Laws 1997, c. 451, § 29, eff. July 1, 1997.

N. R. S. 179D.080, NV ST 179D.080

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N.R.S. 179D.090

179D.090. “Resides” defined

Currentness

“Resides” means the place where an offender resides or, if the offender is incarcerated or confined, the place where the offender will reside upon release.

Credits

Added by Laws 1997, c. 451, § 30, eff. July 1, 1997.

N. R. S. 179D.090, NV ST 179D.090

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N.R.S. 179D.095

179D.095. "Sex offender" defined

Currentness

1. "Sex offender" means a person who, after July 1, 1956, is or has been convicted of a sexual offense listed in NRS 179D.097.
2. The term includes, without limitation, a sex offender who is a student or worker within this State but who is not otherwise deemed a resident offender pursuant to subsection 2 or 3 of NRS 179D.460.

Credits

Added by Laws 2007, c. 485, § 20, eff. July 1, 2008. Amended by Laws 2017, c. 477, § 20, eff. July 1, 2017.

N. R. S. 179D.095, NV ST 179D.095

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N.R.S. 179D.097

179D.097. "Sexual offense" defined

Currentness

1. "Sexual offense" means any of the following offenses:

(a) Murder of the first degree committed in the perpetration or attempted perpetration of sexual assault or of sexual abuse or sexual molestation of a child less than 14 years of age pursuant to paragraph (b) of subsection 1 of NRS 200.030.

(b) Sexual assault pursuant to NRS 200.366.

(c) Statutory sexual seduction pursuant to NRS 200.368.

(d) Battery with intent to commit sexual assault pursuant to subsection 4 of NRS 200.400.

(e) An offense involving the administration of a drug to another person with the intent to enable or assist the commission of a felony pursuant to NRS 200.405, if the felony is an offense listed in this subsection.

(f) An offense involving the administration of a controlled substance to another person with the intent to enable or assist the commission of a crime of violence, if the crime of violence is an offense listed in this section.

(g) Abuse of a child pursuant to NRS 200.508, if the abuse involved sexual abuse or sexual exploitation.

(h) An offense involving child sexual abuse material pursuant to NRS 200.710 to 200.730, inclusive.

(i) Fertility fraud pursuant to paragraph (a) of subsection 1 of NRS 200.975.

(j) Incest pursuant to NRS 201.180.

(k) Open or gross lewdness pursuant to NRS 201.210.

(l) Indecent or obscene exposure pursuant to NRS 201.220.

- (m) Lewdness with a child pursuant to NRS 201.230.
- (n) Sexual penetration of a dead human body pursuant to NRS 201.450.
- (o) Sexual conduct between certain employees of a school or volunteers at a school and a pupil pursuant to NRS 201.540.
- (p) Sexual conduct between certain employees of a college or university and a student pursuant to NRS 201.550.
- (q) Luring a child or a person with mental illness pursuant to NRS 201.560, if punished as a felony.
- (r) Sex trafficking pursuant to NRS 201.300.
- (s) Any other offense that has an element involving a sexual act or sexual conduct with another.
- (t) An attempt or conspiracy to commit an offense listed in paragraphs (a) to (s), inclusive.
- (u) An offense that is determined to be sexually motivated pursuant to NRS 175.547 or 207.193.
 - (v) An offense committed in another jurisdiction that, if committed in this State, would be an offense listed in this subsection. This paragraph includes, without limitation, an offense prosecuted in:
 - (1) A tribal court.
 - (2) A court of the United States or the Armed Forces of the United States.
- (w) An offense of a sexual nature committed in another jurisdiction, whether or not the offense would be an offense listed in this section, if the person who committed the offense resides or has resided or is or has been a student or worker in any jurisdiction in which the person is or has been required by the laws of that jurisdiction to register as a sex offender because of the offense. This paragraph includes, without limitation, an offense prosecuted in:
 - (1) A tribal court.
 - (2) A court of the United States or the Armed Forces of the United States.
 - (3) A court having jurisdiction over juveniles.

2. Except for the offenses described in paragraphs (o) and (p) of subsection 1, the term does not include an offense involving consensual sexual conduct if the victim was:

- (a) An adult, unless the adult was under the custodial authority of the offender at the time of the offense; or
- (b) At least 13 years of age and the offender was not more than 4 years older than the victim at the time of the commission of the offense.

Credits

Added by Laws 2007, c. 485, § 21, eff. July 1, 2008. Amended by Laws 2013, c. 261, § 12; Laws 2013, c. 426, § 27, eff. July 1, 2013; Laws 2015, c. 287, § 6, eff. Oct. 1, 2015; Laws 2021, c. 520, § 14, eff. Oct. 1, 2021; Laws 2023, c. 227, § 15, eff. July 1, 2023; Laws 2025, c. 141, § 24, eff. May 30, 2025.

N. R. S. 179D.097, NV ST 179D.097

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N.R.S. 179D.100

179D.100. "Sexual penetration" defined

Currentness

"Sexual penetration" means cunnilingus, fellatio or any intrusion, however slight, of any part of the victim's body or any object manipulated or inserted by a person into the genital or anal openings of the body of the victim. The term includes, but is not limited to, anal intercourse and sexual intercourse in what would be its ordinary meaning.

Credits

Added by Laws 1999, c. 310, § 13, eff. May 26, 1999.

N. R. S. 179D.100, NV ST 179D.100

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N.R.S. 179D.110

179D.110. "Student" defined

Currentness

"Student" means a person who is enrolled in and attends, on a full-time or part-time basis within this State, any course of academic or vocational instruction conducted by a public or private educational institution or school, including, but not limited to, any of the following institutions or schools:

1. An institution of higher education.
2. A trade school or vocational school.
3. A secondary school.

Credits

Added by Laws 1999, c. 310, § 14, eff. May 26, 1999. Amended by Laws 2003, c. 99, § 8, eff. May 15, 2003; Laws 2007, c. 485, § 34, eff. July 1, 2008.

N. R. S. 179D.110, NV ST 179D.110

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N.R.S. 179D.113

179D.113. “Tier I offender” defined

Currentness

“Tier I offender” means an offender convicted of a crime against a child or a sex offender other than a Tier II offender or Tier III offender.

Credits

Added by Laws 2007, c. 485, § 22, eff. July 1, 2008.

N. R. S. 179D.113, NV ST 179D.113

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N.R.S. 179D.115

179D.115. "Tier II offender" defined

Currentness

"Tier II offender" means an offender convicted of a crime against a child or a sex offender, other than a Tier III offender, whose crime against a child is punishable by imprisonment for more than 1 year or whose sexual offense:

1. If committed against a child, constitutes:

(a) Luring a child pursuant to NRS 201.560, if punishable as a felony;

(b) Abuse of a child pursuant to NRS 200.508, if the abuse involved sexual abuse or sexual exploitation;

(c) An offense involving sex trafficking pursuant to NRS 201.300 or prostitution pursuant to NRS 201.320 or 201.395;

(d) An offense involving child sexual abuse material pursuant to NRS 200.710 to 200.730, inclusive; or

(e) Any other offense that is comparable to or more severe than the offenses described in 34 U.S.C. § 20911(3);

2. Involves an attempt or conspiracy to commit any offense described in subsection 1;

3. If committed in another jurisdiction, is an offense that, if committed in this State, would be an offense listed in this section. This subsection includes, without limitation, an offense prosecuted in:

(a) A tribal court; or

(b) A court of the United States or the Armed Forces of the United States; or

4. Is committed after the person becomes a Tier I offender if any of the person's sexual offenses constitute an offense punishable by imprisonment for more than 1 year.

Credits

Added by Laws 2007, c. 485, § 23, eff. July 1, 2008. Amended by Laws 2013, c. 426, § 28, eff. July 1, 2013; Laws 2019, c. 423, § 15, eff. June 5, 2019; Laws 2025, c. 141, § 25, eff. May 30, 2025.

N. R. S. 179D.115, NV ST 179D.115

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General Provisions

N.R.S. 179D.117

179D.117. "Tier III offender" defined

Currentness

"Tier III offender" means an offender convicted of a crime against a child or a sex offender who has been convicted of:

1. Murder of the first degree committed in the perpetration or attempted perpetration of sexual assault or of sexual abuse or sexual molestation of a child less than 14 years of age pursuant to paragraph (b) of subsection 1 of NRS 200.030;
2. Sexual assault pursuant to NRS 200.366;
3. Battery with intent to commit sexual assault pursuant to subsection 4 of NRS 200.400;
4. Abuse of a child pursuant to NRS 200.508, if the abuse involved sexual abuse or sexual exploitation and if the victim of the offense was less than 13 years of age when the offense was committed;
5. Kidnapping pursuant to NRS 200.310 to 200.340, inclusive, if the victim of the offense was less than 18 years of age when the offense was committed, unless the offender is the parent or guardian of the victim;
6. Any sexual offense or crime against a child after the person becomes a Tier II offender;
7. Any other offense that is comparable to or more severe than the offenses described in 42 U.S.C. § 16911(4);
8. An attempt or conspiracy to commit an offense described in subsections 1 to 7, inclusive; or
9. An offense committed in another jurisdiction that, if committed in this State, would be an offense listed in this section. This subsection includes, without limitation, an offense prosecuted in:
 - (a) A tribal court; or
 - (b) A court of the United States or the Armed Forces of the United States.

Credits

Added by Laws 2007, c. 485, § 24, eff. July 1, 2008.

N. R. S. 179D.117, NV ST 179D.117

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General Provisions

N.R.S. 179D.120

179D.120. “Worker” defined

Currentness

“Worker” means a person who is self-employed or who engages in or who knows or reasonably should know that he or she will engage in any type of occupation, employment, work or volunteer service, whether or not the person engages in or will engage in the occupation, employment, work or volunteer service for compensation.

Credits

Added by Laws 1999, c. 310, § 15, eff. May 26, 1999. Amended by Laws 2007, c. 485, § 35, eff. July 1, 2008.

N. R. S. 179D.120, NV ST 179D.120

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N.R.S. 179D.130

179D.130 to 179D.138. Repealed

Currentness

Credits

Repealed by Laws 2021, c. 59, § 4, eff. July 1, 2021.

N. R. S. 179D.130, NV ST 179D.130

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N.R.S. 179D.132

179D.130 to 179D.138. Repealed

Currentness

Credits

Repealed by Laws 2021, c. 59, § 4, eff. July 1, 2021.

N. R. S. 179D.132, NV ST 179D.132

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N.R.S. 179D.134

179D.130 to 179D.138. Repealed

Currentness

Credits

Repealed by Laws 2021, c. 59, § 4, eff. July 1, 2021.

N. R. S. 179D.134, NV ST 179D.134

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N.R.S. 179D.136

179D.130 to 179D.138. Repealed

Currentness

Credits

Repealed by Laws 2021, c. 59, § 4, eff. July 1, 2021.

N. R. S. 179D.136, NV ST 179D.136

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N.R.S. 179D.138

179D.130 to 179D.138. Repealed

Currentness

Credits

Repealed by Laws 2021, c. 59, § 4, eff. July 1, 2021.

N. R. S. 179D.138, NV ST 179D.138

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Record of Registration

N.R.S. 179D.150

179D.150. Repealed

Currentness

Credits

Repealed by Laws 2011, c. 51, § 7, eff. May 18, 2011.

N. R. S. 179D.150, NV ST 179D.150

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N.R.S. 179D.151

179D.151. Contents

Currentness

1. A record of registration must include, if the information is available:

(a) Information identifying the offender or sex offender, including, but not limited to:

(1) The name of the offender or sex offender and all aliases that the offender or sex offender has used or under which he or she has been known;

(2) A complete physical description of the offender or sex offender, a current photograph of the offender or sex offender and the fingerprints and palm prints of the offender or sex offender;

(3) The date of birth and the social security number of the offender or sex offender;

(4) The identification number from a driver's license or an identification card issued to the offender or sex offender by this State or any other jurisdiction and a photocopy of such driver's license or identification card;

(5) Information indicating whether the DNA profile and DNA record of the offender or sex offender has been entered in CODIS; and

(6) Any other information that identifies the offender or sex offender.

(b) Except as otherwise provided in paragraph (c), information concerning the residence of the offender or sex offender, including, but not limited to:

(1) The address at which the offender or sex offender resides;

(2) The length of time the offender or sex offender has resided at that address and the length of time the offender or sex offender expects to reside at that address;

- (3) The address or location of any other place where the offender or sex offender expects to reside in the future and the length of time the offender or sex offender expects to reside there; and
- (4) The length of time the offender or sex offender expects to remain in the county where the offender or sex offender resides and in this State.
- (c) If the offender or sex offender has no fixed residence, the address of any dwelling that is providing the offender or sex offender temporary shelter, or any other location where the offender or sex offender habitually sleeps, including, but not limited to, the cross streets, intersection, direction and identifiable landmarks of the city, county, state and zip code of that location.
- (d) Information concerning the offender's or sex offender's occupations, employment or work or expected occupations, employment or work, including, but not limited to, the name, address and type of business of all current and expected future employers of the offender or sex offender.
- (e) Information concerning the offender's or sex offender's volunteer service or expected volunteer service in connection with any activity or organization within this State, including, but not limited to, the name, address and type of each such activity or organization.
- (f) Information concerning the offender's or sex offender's enrollment or expected enrollment as a student in any public or private educational institution or school within this State, including, but not limited to, the name, address and type of each such educational institution or school.
- (g) Information concerning whether:
 - (1) The offender or sex offender is, expects to be or becomes enrolled as a student at an institution of higher education or changes the date of commencement or termination of the offender's or sex offender's enrollment at an institution of higher education; or
 - (2) The offender or sex offender is, expects to be or becomes a worker at an institution of higher education or changes the date of commencement or termination of the offender's or sex offender's work at an institution of higher education,including, but not limited to, the name, address and type of each such institution of higher education.
- (h) The license plate number and a description of all motor vehicles registered to or frequently driven by the offender or sex offender.
- (i) The level of registration and community notification of the offender or sex offender.
- (j) The criminal history of the offender or sex offender, including, without limitation:

- (1) The dates of all arrests and convictions of the offender or sex offender;
 - (2) The status of parole, probation or supervised release of the offender or sex offender;
 - (3) The status of the registration of the offender or sex offender; and
 - (4) The existence of any outstanding arrest warrants for the offender or sex offender.
- (k) The following information for each offense for which the offender or sex offender has been convicted:
- (1) The court in which the offender or sex offender was convicted;
 - (2) The text of the provision of law defining each offense;
 - (3) The name under which the offender or sex offender was convicted;
 - (4) The name and location of each penal institution, school, hospital, mental facility or other institution to which the offender or sex offender was committed;
 - (5) The specific location where the offense was committed;
 - (6) The age, the gender, the race and a general physical description of the victim; and
 - (7) The method of operation that was used to commit the offense, including, but not limited to:
 - (I) Specific sexual acts committed against the victim;
 - (II) The method of obtaining access to the victim, such as the use of enticements, threats, forced entry or violence against the victim;
 - (III) The type of injuries inflicted on the victim;
 - (IV) The types of instruments, weapons or objects used;
 - (V) The type of property taken; and

(VI) Any other distinctive characteristic of the behavior or personality of the offender or sex offender.

(l) Any other information required by federal law.

2. As used in this section:

(a) “CODIS” has the meaning ascribed to it in NRS 176.09113.

(b) “DNA profile” has the meaning ascribed to it in NRS 176.09115.

(c) “DNA record” has the meaning ascribed to it in NRS 176.09116.

Credits

Added by Laws 2011, c. 51, § 3, eff. May 18, 2011. Amended by Laws 2013, c. 252, § 27, eff. July 1, 2013.

N. R. S. 179D.151, NV ST 179D.151

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Record of Registration

N.R.S. 179D.160

179D.160. Inspection

Currentness

1. Except as otherwise provided by specific statute, the contents of a record of registration:

(a) Are confidential and not subject to inspection by the general public.

(b) May be inspected only by a law enforcement officer in the regular course of the law enforcement officer's duties or by the offender named in the record of registration.

2. As used in this section, "law enforcement officer" includes, but is not limited to:

(a) A prosecuting attorney or an attorney from the Office of the Attorney General;

(b) A sheriff of a county or a sheriff's deputy;

(c) An officer of a metropolitan police department or a police department of an incorporated city;

(d) An officer of the Division;

(e) An officer of the Department of Corrections;

(f) An officer of a law enforcement agency from another jurisdiction; or

(g) Any other person upon whom some or all of the powers of a peace officer are conferred pursuant to NRS 289.150 to 289.360, inclusive, if the person is seeking information as part of a criminal investigation.

Credits

Added by Laws 1997, c. 451, § 32, eff. July 1, 1997. Amended by Laws 2001 (17th ss), c. 14, § 76, eff. July 1, 2001; Laws 2013, c. 107, § 2, eff. May 24, 2013.

N. R. S. 179D.160, NV ST 179D.160

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Record of Registration

N.R.S. 179D.170

179D.170. Record and information concerning offender or sex offender provided to Federal Bureau of Investigation

Currentness

Upon receiving from a local law enforcement agency, pursuant to NRS 179D.010 to 179D.550, inclusive:

1. A record of registration;
2. Fingerprints, palm prints or a photograph of an offender or sex offender;
3. A new address of an offender or sex offender; or
4. Any other updated information,

the Central Repository shall immediately provide the record of registration, fingerprints, palm prints, photograph, new address or updated information to the Federal Bureau of Investigation.

Credits

Added by Laws 1997, c. 451, § 32.5, eff. July 1, 1997. Amended by Laws 2003, c. 99, § 10, eff. May 15, 2003; Laws 2007, c. 485, § 37, eff. July 1, 2008.

N. R. S. 179D.170, NV ST 179D.170

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General Provisions

N.R.S. 179D.200

179D.200 to 179D.220. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.200, NV ST 179D.200

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General Provisions

N.R.S. 179D.210

179D.200 to 179D.220. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.210, NV ST 179D.210

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General Provisions

N.R.S. 179D.214

179D.200 to 179D.220. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.214, NV ST 179D.214

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General Provisions

N.R.S. 179D.216

179D.200 to 179D.220. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.216, NV ST 179D.216

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General Provisions

N.R.S. 179D.220

179D.200 to 179D.220. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.220, NV ST 179D.220

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Requirements and Procedure

N.R.S. 179D.230

179D.230 to 179D.270. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.230, NV ST 179D.230

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Requirements and Procedure

N.R.S. 179D.240

179D.230 to 179D.270. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.240, NV ST 179D.240

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Requirements and Procedure

N.R.S. 179D.250

179D.230 to 179D.270. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.250, NV ST 179D.250

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Requirements and Procedure

N.R.S. 179D.260

179D.230 to 179D.270. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.260, NV ST 179D.260

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Requirements and Procedure

N.R.S. 179D.270

179D.230 to 179D.270. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.270, NV ST 179D.270

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Prohibited Acts and Penalties

N.R.S. 179D.290

179D.290. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.290, NV ST 179D.290

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Registration

N.R.S. 179D.350

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.350, NV ST 179D.350

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N.R.S. 179D.360

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.360, NV ST 179D.360

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Registration

N.R.S. 179D.365

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.365, NV ST 179D.365

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Registration

N.R.S. 179D.370

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.370, NV ST 179D.370

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Registration

N.R.S. 179D.380

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.380, NV ST 179D.380

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N.R.S. 179D.390

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.390, NV ST 179D.390

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Registration

N.R.S. 179D.400

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.400, NV ST 179D.400

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Registration

N.R.S. 179D.410

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.410, NV ST 179D.410

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N.R.S. 179D.420

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.420, NV ST 179D.420

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N.R.S. 179D.430

179D.350 to 179D.430. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.430, NV ST 179D.430

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Registration

N.R.S. 179D.441

179D.441. Duty to register and to keep registration current

Currentness

Each offender convicted of a crime against a child and each sex offender shall:

1. Register initially with the local law enforcement agency of the jurisdiction in which the offender or sex offender was convicted as required pursuant to NRS 179D.445;
2. Register with the appropriate law enforcement agency as required pursuant to NRS 179D.460 and 179D.480; and
3. Keep the registration current as required pursuant to NRS 179D.447.

Credits

Added by Laws 2007, c. 485, § 25, eff. July 1, 2008.

N. R. S. 179D.441, NV ST 179D.441

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Registration

N.R.S. 179D.443

179D.443. Information required for registration; provision of biological specimen; duties of local law enforcement agency

Currentness

1. When an offender convicted of a crime against a child or a sex offender registers with a local law enforcement agency as required pursuant to NRS 179D.445, 179D.460 or 179D.480, or updates the registration as required pursuant to NRS 179D.447:

(a) The offender or sex offender shall provide the local law enforcement agency with the following:

(1) The name of the offender or sex offender and all aliases that the offender or sex offender has used or under which the offender or sex offender has been known;

(2) The social security number of the offender or sex offender;

(3) The address of any residence or location at which the offender or sex offender resides or will reside;

(4) The name and address of any place where the offender or sex offender is a worker or will be a worker;

(5) The name and address of any place where the offender or sex offender is a student or will be a student;

(6) The license plate number and a description of all motor vehicles registered to or frequently driven by the offender or sex offender; and

(7) Any other information required by federal law.

(b) If the offender or sex offender has not previously provided a biological specimen pursuant to NRS 176.09123, 176.0913 or 176.0916, the offender or sex offender shall provide a biological specimen to the local law enforcement agency. The local law enforcement agency shall provide the specimen to the forensic laboratory that has been designated by the county in which the offender or sex offender resides, is present or is a worker or student to conduct or oversee genetic marker analysis for the county pursuant to NRS 176.0917.

(c) The local law enforcement agency shall ensure that the record of registration of the offender or sex offender includes, without limitation:

- (1) A complete physical description of the offender or sex offender, a current photograph of the offender or sex offender and the fingerprints and palm prints of the offender or sex offender;
 - (2) The text of the provision of law defining each offense for which the offender or sex offender is required to register;
 - (3) The criminal history of the offender or sex offender, including, without limitation:
 - (I) The dates of all arrests and convictions of the offender or sex offender;
 - (II) The status of parole, probation or supervised release of the offender or sex offender;
 - (III) The status of the registration of the offender or sex offender; and
 - (IV) The existence of any outstanding arrest warrants for the offender or sex offender;
 - (4) Information indicating whether the DNA profile and DNA record of the offender or sex offender has been entered in CODIS;
 - (5) The identification number from a driver's license or an identification card issued to the offender or sex offender by this State or any other jurisdiction and a photocopy of such driver's license or identification card; and
 - (6) Any other information required by federal law.
2. As used in this section:
- (a) "CODIS" has the meaning ascribed to it in NRS 176.09113.
 - (b) "DNA profile" has the meaning ascribed to it in NRS 176.09115.
 - (c) "DNA record" has the meaning ascribed to it in NRS 176.09116.

Credits

Added by Laws 2007, c. 528, § 11, eff. July 1, 2008. Amended by Laws 2013, c. 252, § 28, eff. July 1, 2013.

N. R. S. 179D.443, NV ST 179D.443

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Registration

N.R.S. 179D.445

179D.445. Initial registration with local law enforcement agency of jurisdiction in which convicted

Currentness

1. In addition to any other registration that is required pursuant to NRS 179D.010 to 179D.550, inclusive, each offender or sex offender who, on or after October 1, 2007, is or has been convicted of a crime against a child or a sexual offense shall register initially with the appropriate local law enforcement agency of the jurisdiction in which the offender or sex offender was convicted pursuant to the provisions of this section.

2. An offender or sex offender shall initially register with a local law enforcement agency as required pursuant to subsection 1:

(a) If the offender or sex offender is sentenced to a term of imprisonment for the crime, before being released from incarceration or confinement for the crime; and

(b) If the offender or sex offender is not sentenced to a term of imprisonment for the crime, not later than 3 business days after the date on which the offender or sex offender was sentenced for the crime.

Credits

Added by Laws 2007, c. 485, § 27, eff. July 1, 2008. Amended by Laws 2007, c. 528, § 12, eff. July 1, 2008.

N. R. S. 179D.445, NV ST 179D.445

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Registration

N.R.S. 179D.447

179D.447. Duty to update information after change of name, residence,
employment or student status; duty of local law enforcement agency

Currentness

1. An offender convicted of a crime against a child or a sex offender convicted of a sexual offense who changes his or her name, residence, employment or student status shall, not later than 3 business days after such change of name, residence, employment or student status:

(a) Appear in person in at least one of the jurisdictions in which the offender or sex offender resides, is a student or worker; and

(b) Provide all information concerning such change to the appropriate local law enforcement agency.

2. The local law enforcement agency shall immediately provide the updated information provided by an offender or sex offender pursuant to subsection 1 to the Central Repository and to all other jurisdictions in which the offender or sex offender is required to register.

Credits

Added by Laws 2007, c. 485, § 28, eff. July 1, 2008.

N. R. S. 179D.447, NV ST 179D.447

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Registration

N.R.S. 179D.450

179D.450. Registration after conviction; duties and procedure; offender or sex offender informed of duty to register; effect of failure to inform; duties and procedure upon receipt of notification from another jurisdiction or Federal Bureau of Investigation

Currentness

1. If the Central Repository receives notice from a court pursuant to NRS 176.0926 that an offender has been convicted of a crime against a child, pursuant to NRS 176.0927 that a sex offender has been convicted of a sexual offense or pursuant to NRS 62F.310 that a juvenile has been adjudicated delinquent for an offense for which the juvenile is subject to registration and community notification pursuant to NRS 62F.205 to 62F.360, inclusive, and 179D.010 to 179D.550, inclusive, the Central Repository shall:

(a) If a record of registration has not previously been established for the offender or sex offender, notify the local law enforcement agency so that a record of registration may be established; or

(b) If a record of registration has previously been established for the offender or sex offender, update the record of registration for the offender or sex offender and notify the appropriate local law enforcement agencies.

2. If the offender or sex offender named in the notice is granted probation or otherwise will not be incarcerated or confined, the Central Repository shall:

(a) Immediately provide notification concerning the offender or sex offender to the appropriate local law enforcement agencies and, if the offender or sex offender resides in a jurisdiction which is outside of this State, to the appropriate law enforcement agency in that jurisdiction; and

(b) Except as otherwise provided in NRS 62F.320, immediately provide community notification concerning the offender or sex offender pursuant to the provisions of NRS 179D.475.

3. If an offender or sex offender is incarcerated or confined and has previously been convicted of a crime against a child as described in NRS 179D.0357 or a sexual offense as described in NRS 179D.097, before the offender or sex offender is released:

(a) The Department of Corrections or a local law enforcement agency in whose facility the offender or sex offender is incarcerated or confined shall:

(1) Inform the offender or sex offender of the requirements for registration, including, but not limited to:

(I) The duty to register initially with the appropriate law enforcement agency in the jurisdiction in which the offender or sex offender was convicted if the offender or sex offender is not a resident of that jurisdiction pursuant to NRS 179D.445;

(II) The duty to register in this State during any period in which the offender or sex offender is a resident of this State or a nonresident who is a student or worker within this State and the time within which the offender or sex offender is required to register pursuant to NRS 179D.460;

(III) The duty to register in any other jurisdiction during any period in which the offender or sex offender is a resident of the other jurisdiction or a nonresident who is a student or worker within the other jurisdiction;

(IV) If the offender or sex offender moves from this State to another jurisdiction, the duty to register with the appropriate law enforcement agency in the other jurisdiction;

(V) The duty to notify the local law enforcement agency for the jurisdiction in which the offender or sex offender now resides, in person, and the jurisdiction in which the offender or sex offender formerly resided, in person or in writing, if the offender or sex offender changes the address at which the offender or sex offender resides, including if the offender or sex offender moves from this State to another jurisdiction, or changes the primary address at which the offender or sex offender is a student or worker; and

(VI) The duty to notify immediately the appropriate local law enforcement agency if the offender or sex offender is, expects to be or becomes enrolled as a student at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's enrollment at an institution of higher education or if the offender or sex offender is, expects to be or becomes a worker at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's work at an institution of higher education; and

(2) Require the offender or sex offender to read and sign a form stating that the requirements for registration have been explained and that the offender or sex offender understands the requirements for registration, and to forward the form to the Central Repository.

(b) The Central Repository shall:

(1) Update the record of registration for the offender or sex offender;

(2) Except as otherwise provided in NRS 62F.320, provide community notification concerning the offender or sex offender pursuant to the provisions of NRS 179D.475; and

(3) Provide notification concerning the offender or sex offender to the appropriate local law enforcement agencies and, if the offender or sex offender will reside upon release in a jurisdiction which is outside of this State, to the appropriate law enforcement agency in that jurisdiction.

4. The failure to provide an offender or sex offender with the information or confirmation form required by paragraph (a) of subsection 3 does not affect the duty of the offender or sex offender to register and to comply with all other provisions for registration.

5. If the Central Repository receives notice from another jurisdiction or the Federal Bureau of Investigation that an offender or sex offender is now residing or is a student or worker within this State, the Central Repository shall:

(a) Immediately provide notification concerning the offender or sex offender to the appropriate local law enforcement agencies;

(b) Establish a record of registration for the offender or sex offender; and

(c) Immediately provide community notification concerning the offender or sex offender pursuant to the provisions of NRS 179D.475.

Credits

Added by Laws 1997, c. 451, § 51, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 34, eff. May 26, 1999; Laws 2001, c. 415, § 10, eff. July 1, 2001; Laws 2001 (17th ss), c. 14, § 78, eff. July 1, 2001; Laws 2003, c. 2, § 109, eff. March 5, 2003; Laws 2003, c. 99, § 14, eff. May 15, 2003; Laws 2003, c. 206, § 306, eff. Jan. 1, 2004; Laws 2007, c. 485, § 38, eff. July 1, 2008; Laws 2007, c. 528, § 5; Laws 2017, c. 477, § 21, eff. July 1, 2017.

N. R. S. 179D.450, NV ST 179D.450

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Registration

N.R.S. 179D.460

179D.460. Registration with local law enforcement agency within 48 hours; duties of offender or sex offender and procedure; local law enforcement agency to inform offender or sex offender of duties after registration; duties of local law enforcement agency when notified of certain information about offender or sex offender who enrolls in or works at institution of higher education

Currentness

1. In addition to any other registration that is required pursuant to NRS 179D.450, each offender or sex offender who, after July 1, 1956, is or has been convicted of a crime against a child or a sexual offense shall register with a local law enforcement agency pursuant to the provisions of this section.

2. Except as otherwise provided in subsection 3, if the offender or sex offender resides or is present for 48 hours or more within:

(a) A county; or

(b) An incorporated city that does not have a city police department,

the offender or sex offender shall be deemed a resident offender or sex offender and shall register with the sheriff's office of the county or, if the county or the city is within the jurisdiction of a metropolitan police department, the metropolitan police department, not later than 48 hours after arriving or establishing a residence within the county or the city.

3. If the offender or sex offender resides or is present for 48 hours or more within an incorporated city that has a city police department, the offender or sex offender shall be deemed a resident offender or sex offender and shall register with the city police department not later than 48 hours after arriving or establishing a residence within the city.

4. If the offender or sex offender is a nonresident offender or sex offender who is a student or worker within this State, the offender or sex offender shall register with the appropriate sheriff's office, metropolitan police department or city police department in whose jurisdiction the offender or sex offender is a student or worker not later than 48 hours after becoming a student or worker within this State.

5. A resident or nonresident offender or sex offender shall immediately notify the appropriate local law enforcement agency if:

(a) The offender or sex offender is, expects to be or becomes enrolled as a student at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's enrollment at an institution of higher education; or

(b) The offender or sex offender is, expects to be or becomes a worker at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's work at an institution of higher education.

The offender or sex offender shall provide the name, address and type of each such institution of higher education.

6. To register with a local law enforcement agency pursuant to this section, the offender or sex offender shall:

(a) Appear personally at the office of the appropriate local law enforcement agency;

(b) Provide all information that is requested by the local law enforcement agency, including, but not limited to, fingerprints and a photograph; and

(c) Sign and date the record of registration or some other proof of registration of the local law enforcement agency in the presence of an officer of the local law enforcement agency.

7. When an offender or sex offender registers, the local law enforcement agency shall:

(a) Inform the offender or sex offender of the duty to notify the local law enforcement agency if the offender or sex offender changes the address at which the offender or sex offender resides, including if the offender or sex offender moves from this State to another jurisdiction, or changes the primary address at which the offender or sex offender is a student or worker; and

(b) Inform the offender or sex offender of the duty to register with the local law enforcement agency in whose jurisdiction the sex offender relocates.

8. After the offender or sex offender registers with the local law enforcement agency, the local law enforcement agency shall forward to the Central Repository the information collected, including the fingerprints and a photograph of the offender or sex offender.

9. If the Central Repository has not previously established a record of registration for an offender or sex offender described in subsection 8, the Central Repository shall:

(a) Establish a record of registration for the offender or sex offender;

(b) Provide notification concerning the offender or sex offender to the appropriate local law enforcement agencies; and

(c) Provide community notification concerning the offender or sex offender pursuant to the provisions of NRS 179D.475.

10. When an offender or sex offender notifies a local law enforcement agency that:

(a) The offender or sex offender is, expects to be or becomes enrolled as a student at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's enrollment at an institution of higher education; or

(b) The offender or sex offender is, expects to be or becomes a worker at an institution of higher education or changes the date of commencement or termination of the offender or sex offender's work at an institution of higher education,

and provides the name, address and type of each such institution of higher education, the local law enforcement agency shall immediately provide that information to the Central Repository and to the appropriate campus police department.

Credits

Added by Laws 1997, c. 451, § 52, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 35, eff. May 26, 1999; Laws 2001, c. 415, § 11, eff. July 1, 2001; Laws 2003, c. 99, § 15, eff. May 15, 2003; Laws 2007, c. 485, § 39, eff. July 1, 2008; Laws 2007, c. 528, § 6.

N. R. S. 179D.460, NV ST 179D.460

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Registration

N.R.S. 179D.470

179D.470. Sex offender to notify appropriate agencies of change
of address and provide updated information; duties and procedure

Currentness

1. If a sex offender changes the address at which he or she resides, including moving from this State to another jurisdiction, changes the primary address at which he or she is a student or worker or remains in a jurisdiction longer than 30 days after initially reporting a stay of less than 30 days, the sex offender shall, not later than 48 hours after such a change in status, provide notice of the change in status, including, without limitation, the new address, in person, to the local law enforcement agency in whose jurisdiction the sex offender now resides and, in person or in writing, to the local law enforcement agency in whose jurisdiction the sex offender formerly resided and shall provide all other information that is relevant to updating the record of registration, including, but not limited to, any change in the sex offender's name, occupation, employment, work, volunteer service or driver's license and any change in the license number or description of a motor vehicle registered to or frequently driven by the sex offender.

2. Upon receiving a change of address from a sex offender, the local law enforcement agency shall immediately forward the new address and any updated information to the Central Repository and:

(a) If the sex offender has changed an address within this State, the Central Repository shall immediately provide notification concerning the sex offender to the local law enforcement agency in whose jurisdiction the sex offender is now residing or is a student or worker and shall notify the local law enforcement agency in whose jurisdiction the sex offender last resided or was a student or worker; or

(b) If the sex offender has changed an address from this State to another jurisdiction, the Central Repository shall immediately provide notification concerning the sex offender to the appropriate law enforcement agency in the other jurisdiction and shall notify the local law enforcement agency in whose jurisdiction the sex offender last resided or was a student or worker.

3. In addition to any other requirement pursuant to this section and upon notification of the requirements of this subsection, any sex offender who has no fixed residence shall at least every 30 days notify the local law enforcement agency in whose jurisdiction the sex offender resides if there are any changes in the address of any dwelling that is providing the sex offender temporary shelter or any changes in location where the sex offender habitually sleeps. The court may dismiss any criminal charges filed for failure to comply with this subsection if the sex offender immediately updates his or her record of registration.

Credits

Added by Laws 1997, c. 451, § 53, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 36, eff. May 26, 1999; Laws 2001, c. 415, § 12, eff. July 1, 2001; Laws 2011, c. 51, § 5, eff. May 18, 2011.

N. R. S. 179D.470, NV ST 179D.470

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Registration

N.R.S. 179D.475

179D.475. Community notification

Currentness

1. Except as otherwise provided in subsection 3, the Central Repository shall immediately provide all updated information obtained pursuant to NRS 179D.445, 179D.447, 179D.460 or 179D.480 to:

- (a) The Attorney General of the United States;
- (b) The appropriate local law enforcement agencies for each jurisdiction in which the offender or sex offender resides or is a student or worker;
- (c) Each jurisdiction in which the offender or sex offender now resides or is a student or worker and the jurisdiction in which the offender or sex offender most recently resided or was a student or worker, if the offender or sex offender changes the address at which he or she resides or is a student or worker;
- (d) Any agency responsible for conducting employment-related background checks pursuant to 42 U.S.C. § 5119a; and
- (e) Any organization, company or person who requests such notification.

2. Except as otherwise provided in subsection 3, a local law enforcement agency:

- (a) Shall immediately provide all updated information obtained from the Central Repository pursuant to subsection 1 to:
 - (1) Each school, religious organization, youth organization and public housing authority in which the offender or sex offender resides or is a student or worker;
 - (2) Each agency which provides child welfare services as defined in NRS 432B.030;
 - (3) Volunteer organizations in which contact with children or other vulnerable persons might occur; and

(4) If the offender or sex offender is a Tier III offender, members of the public who are likely to encounter the offender or sex offender; and

(b) May provide any updated information obtained from the Central Repository pursuant to subsection 1 to any other person or entity whom the law enforcement agency determines warrants such notification.

3. An entity or person described in paragraph (e) of subsection 1 or subparagraph (1) of paragraph (a) of subsection 2 may request to receive the updated information obtained pursuant to subsection 1 not less frequently than once every 5 business days.

Credits

Added by Laws 2007, c. 485, § 29, eff. July 1, 2008.

N. R. S. 179D.475, NV ST 179D.475

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Registration

N.R.S. 179D.480

179D.480. When offender or sex offender is required to appear in person and provide certain information to local law enforcement agency; duties of Central Repository if offender or sex offender fails to comply

Currentness

1. Except as otherwise provided in subsection 3, an offender convicted of a crime against a child or a sex offender shall appear in person in at least one jurisdiction in which the offender or sex offender resides or is a student or worker:

(a) Not less frequently than annually, if the offender or sex offender is a Tier I offender;

(b) Not less frequently than every 180 days, if the offender or sex offender is a Tier II offender; or

(c) Not less frequently than every 90 days, if the offender or sex offender is a Tier III offender,

and shall allow the appropriate local law enforcement agency to collect a current set of fingerprints and palm prints, a current photograph and all other information that is relevant to updating the offender or sex offender's record of registration, including, but not limited to, any change in the offender or sex offender's name, occupation, employment, work, volunteer service or driver's license and any change in the license number or description of a motor vehicle registered to or frequently driven by the offender or sex offender.

2. If an offender or sex offender does not comply with the provisions of subsection 1, the Central Repository shall:

(a) Immediately notify the appropriate local law enforcement agencies and the Attorney General of the United States; and

(b) Update the record of registration for the sex offender to reflect the failure to comply with the provisions of subsection 1.

3. An offender or sex offender is not required to comply with the provisions of subsection 1 during any period in which the offender or sex offender is incarcerated or confined.

Credits

Added by Laws 1997, c. 451, § 54, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 37, eff. May 26, 1999; Laws 2001, c. 415, § 13, eff. July 1, 2001; Laws 2007, c. 485, § 40, eff. July 1, 2008.

N. R. S. 179D.480, NV ST 179D.480

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Registration

N.R.S. 179D.490

179D.490. Duration of duty to register; termination of duty; procedure; exceptions

Currentness

1. An offender convicted of a crime against a child or a sex offender shall comply with the provisions for registration for as long as the offender or sex offender resides or is present within this State or is a nonresident offender or sex offender who is a student or worker within this State, unless the period of time during which the offender or sex offender has the duty to register is reduced pursuant to the provisions of this section.

2. Except as otherwise provided in subsection 3 and NRS 62F.340, the full period of registration is:

(a) Fifteen years, if the offender or sex offender is a Tier I offender;

(b) Twenty-five years, if the offender or sex offender is a Tier II offender; and

(c) The life of the offender or sex offender, if the offender or sex offender is a Tier III offender,

exclusive of any time during which the offender or sex offender is incarcerated or confined.

3. If an offender or sex offender complies with the provisions for registration:

(a) For an interval of at least 10 consecutive years, if the offender or sex offender is a Tier I offender; or

(b) For an interval of at least 25 consecutive years, if the offender or sex offender is a Tier III offender adjudicated delinquent for the offense which required registration as an offender or sex offender,

during which the offender or sex offender is not convicted of an offense for which imprisonment for more than 1 year may be imposed, is not convicted of a sexual offense, successfully completes any periods of supervised release, probation or parole, and successfully completes a sex offender treatment program certified by the State or by the Attorney General of the United States, the offender or sex offender may file a petition to reduce the period of time during which the offender or sex offender has a duty to register with the district court in whose jurisdiction the offender or sex offender resides or, if he or she is a nonresident offender or sex offender, in whose jurisdiction the offender or sex offender is a student or worker. For the purposes of this subsection, registration begins on the date that the Central Repository or appropriate agency of another jurisdiction establishes a record of registration for the offender or sex offender or the date that the offender or sex offender is released, whichever occurs later.

4. If the offender or sex offender satisfies the requirements of subsection 3, the court shall hold a hearing on the petition at which the offender or sex offender and any other interested person may present witnesses and other evidence. If the court determines from the evidence presented at the hearing that the offender or sex offender satisfies the requirements of subsection 3, the court shall:

(a) If the offender or sex offender is a Tier I offender, reduce the period of time during which the offender or sex offender is required to register by 5 years; and

(b) If the offender or sex offender is a Tier III offender adjudicated delinquent for the offense which required registration as an offender or sex offender, reduce the period of time during which the offender or sex offender is required to register from the life of the offender or sex offender to that period of time for which the offender or sex offender meets the requirements of subsection 3.

Credits

Added by Laws 1997, c. 451, § 55, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 38, eff. May 26, 1999; Laws 2001, c. 415, § 14, eff. July 1, 2001; Laws 2007, c. 485, § 41, eff. July 1, 2008; Laws 2017, c. 477, § 22, eff. July 1, 2017.

N. R. S. 179D.490, NV ST 179D.490

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Registration

N.R.S. 179D.495

179D.495. Duty of Central Repository to determine whether
person is required to register as a Tier I, Tier II or Tier III offender

Currentness

If a person who is required to register pursuant to NRS 179D.010 to 179D.550, inclusive, has been convicted of an offense described in paragraph (s) of subsection 1 of NRS 179D.097, paragraph (e) of subsection 1 or subsection 3 of NRS 179D.115 or subsection 7 or 9 of NRS 179D.117, the Central Repository shall determine whether the person is required to register as a Tier I offender, Tier II offender or Tier III offender.

Credits

Added by Laws 2007, c. 485, § 30, eff. July 1, 2008. Amended by Laws 2013, c. 261, § 13; Laws 2013, c. 426, § 29, eff. July 1, 2013; Laws 2015, c. 287, § 8, eff. Oct. 1, 2015; Laws 2023, c. 227, § 16, eff. July 1, 2023.

N. R. S. 179D.495, NV ST 179D.495

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Registration

N.R.S. 179D.510

179D.510. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.510, NV ST 179D.510

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Registration

N.R.S. 179D.520

179D.520. Repealed

Currentness

Credits

Repealed by Laws 1999, c. 310, § 50, eff. May 26, 1999.

N. R. S. 179D.520, NV ST 179D.520

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Registration

N.R.S. 179D.530

179D.530. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.530, NV ST 179D.530

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Registration

N.R.S. 179D.550

179D.550. Prohibited acts; penalties; duties of local law enforcement agency

Currentness

1. Except as otherwise provided in subsection 2, an offender or sex offender who:

(a) Fails to register with a local law enforcement agency;

(b) Fails to notify the local law enforcement agency of a change of name, residence, employment or student status as required pursuant to NRS 179D.447;

(c) Provides false or misleading information to the Central Repository or a local law enforcement agency; or

(d) Otherwise violates the provisions of NRS 179D.010 to 179D.550, inclusive,

is guilty of a category D felony and shall be punished as provided in NRS 193.130.

2. An offender or sex offender who commits a second or subsequent violation of subsection 1 within 7 years after the first violation is guilty of a category C felony and shall be punished as provided in NRS 193.130. A court shall not grant probation to or suspend the sentence of a person convicted pursuant to this subsection.

3. If a local law enforcement agency is aware that an offender or sex offender in its jurisdiction has failed to comply with a provision of NRS 179D.010 to 179D.550, inclusive, the local law enforcement agency must take any appropriate action to ensure compliance.

Credits

Added by Laws 1997, c. 451, § 60, eff. July 1, 1997. Amended by Laws 1999, c. 310, § 39, eff. May 26, 1999; Laws 2001, c. 415, § 15, eff. July 1, 2001; Laws 2005, c. 507, § 24, eff. July 1, 2006; Laws 2007, c. 47, § 7, eff. May 15, 2007; Laws 2007, c. 485, § 42, eff. July 1, 2008.

N. R. S. 179D.550, NV ST 179D.550

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Chapter 179D. Registration of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

Central Repository

N.R.S. 179D.570

179D.570. Duty to share information with certain agencies; requirements of information; regulations

Currentness

1. The Central Repository shall, in accordance with the requirements of this section, share information concerning sex offenders and offenders convicted of a crime against a child with:

(a) The Nevada Gaming Control Board to carry out the provisions of NRS 463.335 pertaining to the registration of a gaming employee who is a sex offender or an offender convicted of a crime against a child. The Central Repository shall, at least once each calendar month, provide the Nevada Gaming Control Board with the name and other identifying information of each offender who is not in compliance with the provisions of this chapter, in the manner and form agreed upon by the Central Repository and the Nevada Gaming Control Board.

(b) The Department of Motor Vehicles to carry out the provisions of NRS 483.283, 483.861 and 483.929.

2. The information shared by the Central Repository pursuant to this section must indicate whether a sex offender or an offender convicted of a crime against a child is in compliance with the provisions of this chapter.

3. The Central Repository shall share information pursuant to this section as expeditiously as possible under the circumstances.

4. The Central Repository may adopt regulations to carry out the provisions of this section.

Credits

Added by Laws 2005, c. 507, § 22, eff. July 1, 2006. Amended by Laws 2007, c. 485, § 43, eff. July 1, 2008.

N. R. S. 179D.570, NV ST 179D.570

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West's Nevada Revised Statutes Annotated

Title 14. Procedure in Criminal Cases (Chapters 169-189)

Chapter 179D. Registration of Sex Offenders and Offenders Convicted of a Crime Against a Child

Community Notification of Sex Offenders

General Provisions

N.R.S. T. 14, Ch. 179D, Refs & Annos

Currentness

N. R. S. T. 14, Ch. 179D, Refs & Annos, NV ST T. 14, Ch. 179D, Refs & Annos

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Community Notification of Sex Offenders

General Provisions (Refs & Annos)

N.R.S. 179D.600

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.600, NV ST 179D.600

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Community Notification of Sex Offenders

General Provisions (Refs & Annos)

N.R.S. 179D.605

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.605, NV ST 179D.605

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General Provisions (Refs & Annos)

N.R.S. 179D.610

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.610, NV ST 179D.610

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General Provisions (Refs & Annos)

N.R.S. 179D.620

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.620, NV ST 179D.620

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General Provisions (Refs & Annos)

N.R.S. 179D.630

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.630, NV ST 179D.630

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General Provisions (Refs & Annos)

N.R.S. 179D.640

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.640, NV ST 179D.640

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General Provisions (Refs & Annos)

N.R.S. 179D.650

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.650, NV ST 179D.650

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General Provisions (Refs & Annos)

N.R.S. 179D.660

179D.600 to 179D.660. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.660, NV ST 179D.660

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Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.700

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.700, NV ST 179D.700

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Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.710

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.710, NV ST 179D.710

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Guidelines and Procedure

N.R.S. 179D.720

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.720, NV ST 179D.720

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Guidelines and Procedure

N.R.S. 179D.730

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.730, NV ST 179D.730

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Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.740

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.740, NV ST 179D.740

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Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.750

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.750, NV ST 179D.750

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Chapter 179D. Registration of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.760

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.760, NV ST 179D.760

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Community Notification of Sex Offenders

Guidelines and Procedure

N.R.S. 179D.770

179D.700 to 179D.770. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.770, NV ST 179D.770

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Chapter 179D. Registration of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)

Community Notification of Sex Offenders

Juvenile Sex Offenders

N.R.S. 179D.800

179D.800. Repealed

Currentness

Credits

Repealed by Laws 2007, c. 485, § 56, eff. July 1, 2008.

N. R. S. 179D.800, NV ST 179D.800

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Title 14. Procedure in Criminal Cases (Chapters 169-189)

Chapter 179D. Registration of Sex Offenders and Offenders Convicted of a Crime Against a Child (Refs & Annos)
Limitations on Liability and the Disclosure of Information

N.R.S. 179D.850

179D.850. Name of victim not to be disclosed; immunity from liability for certain entities and their officers and employees for act or omission relating to information obtained, maintained or disclosed

Currentness

1. Information that is disclosed pursuant to the provisions of this chapter must not reveal the name of an individual victim of an offense.

2. A law enforcement agency and its officers and employees, the Central Repository and its officers and employees, and a campus police department and its officers and employees are immune from criminal or civil liability for an act or omission relating to information obtained, maintained or disclosed pursuant to the provisions of this chapter, including, but not limited to, an act or omission relating to:

(a) The accuracy of information in a record of registration; or

(b) The disclosure of or the failure to disclose information pursuant to the provisions of this chapter.

Credits

Added by Laws 1997, c. 451, § 77, eff. July 1, 1997. Amended by Laws 2003, c. 99, § 18, eff. May 15, 2003.

N. R. S. 179D.850, NV ST 179D.850

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Revised Statutes Annotated of the State of New Hampshire
Title LXII. Criminal Code (Ch. 625 to 651-F)
Chapter 651-B. Registration of Criminal Offenders

N.H. Rev. Stat. T. LXII, Ch. 651-B, Refs & Annos
Currentness

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N.H. Rev. Stat. T. LXII, Ch. 651-B, Refs & Annos, NH ST T. LXII, Ch. 651-B, Refs & Annos
Current through Chapter 105 of the 2025 Reg. Sess. Some statute sections may be more current, see credit for details.

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Revised Statutes Annotated of the State of New Hampshire
Title LXII. Criminal Code (Ch. 625 to 651-F) (Refs & Annos)
Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:1

651-B:1 Definitions.

Currentness

In this chapter:

I. “Department” means the department of safety.

II. “Division” means the division of state police, department of safety.

III. “Local law enforcement agency” means the chief of police in the city or town where the person resides or is temporarily domiciled, or, if the municipality has no police chief or if the person resides in an unincorporated place, the division.

IV. “Sexual offender” means a person who is required to register for any sexual offense.

V. “Sexual offense” means the following offenses, including an accomplice to, or an attempt, conspiracy, or solicitation to commit, any of the following offenses, where the victim was 18 years of age or older at the time of the offense:

(a) Capital murder, RSA 630:1, I(e); first degree murder, RSA 630:1-a, I(b)(1); aggravated felonious sexual assault, RSA 632-A:2; felonious sexual assault, 632-A:3; sexual assault, 632-A:4, I(a) or RSA 632-A:4, III; violation of privacy, RSA 644:9, I(a) or RSA 644:9, III-a; or a second or subsequent offense within a 5-year period for indecent exposure and lewdness, RSA 645:1, I.

(b) A law of another state, country, territory, tribal territory, or the federal government reasonably equivalent to a violation listed in subparagraph (a). For purposes of this section, the term “country” refers to Canada, Great Britain, Australia, and New Zealand, as well as any other country that the United States State Department has determined has an independent judiciary that generally enforces the right to a fair trial.

(c) Any offense for which the offender is required to register pursuant to the law in the jurisdiction where the conviction occurred.

(d) Any other criminal offense which is not specifically listed in subparagraph (a) if the court finds by clear and convincing evidence at the time of conviction or sentencing that the person committed the offense as a result of sexual compulsion or for purposes of sexual gratification and protection of the public would be furthered by requiring the person to register. In determining whether the offender should be required to register, the court may consider the offender's prior criminal history

and any other relevant information. If the court determines that the offender should be required to register, the court shall determine whether the offender should be required to register pursuant to the requirements of a tier I, tier II, or tier III offender. In determining in which tier the offender should register, the court shall consider the nature of other offenses that are currently listed in each tier; the extent to which public safety would be furthered; whether the victim was a minor when the offense occurred; and any other relevant factors. The hearing at which such a determination is made shall comply with due process requirements, including a right to appeal the finding. The court shall provide the defendant an opportunity to be heard on the issue prior to the imposition of the registration requirement and shall state on the record the reasons for its findings and the reasons for requiring registration.

VI. “Offender against children” means a person who is required to register for an offense against a child.

VII. “Offense against a child” means the following offenses, including an accomplice to, or an attempt, conspiracy, or solicitation to commit, any of the following offenses:

(a) Any of the following offenses, where the victim was under the age of 18 at the time of the offense: capital murder, RSA 630:1, I(e); first degree murder, RSA 630:1-a, 1(b)(1); aggravated felonious sexual assault, RSA 632-A:2; felonious sexual assault, RSA 632-A:3; sexual assault, RSA 632-A:4, I(a) or RSA 632-A:4, III; kidnapping, RSA 633:1; criminal restraint, RSA 633:2; false imprisonment, RSA 633:3; incest, RSA 639:2; violation of privacy, RSA 644:9, I(a) or RSA 644:9, III-a; a second or subsequent offense within a 5-year period for indecent exposure and lewdness, RSA 645:1, I; indecent exposure and lewdness, RSA 645:1, II and RSA 645:1, III; or prostitution, RSA 645:2.

(b) Intentional contribution to the delinquency of a minor, RSA 169-B:41, II; sexual assault, RSA 632-A:4, I(b) if the actor was 18 years of age or older at the time of the offense; endangering the welfare of a child, RSA 639:3, III; possession of child sexual abuse images, RSA 649-A:3; distribution of child sexual abuse images, RSA 649-A:3-a; manufacture of child sexual abuse images, RSA 649-A:3-b; computer pornography, RSA 649-B:3; certain uses of computer services prohibited, RSA 649-B:4; or obscene matters, RSA 650:2, II.

(c) A law of another state, country, territory, tribal territory, or the federal government reasonably equivalent to a violation listed in subparagraph (a) or (b). For purposes of this section, the term “country” refers to Canada, Great Britain, Australia, and New Zealand, as well as any other country that the United States State Department has determined has an independent judiciary that generally enforces the right to a fair trial.

(d) Any offense involving a victim under the age of 18 for which the offender is required to register pursuant to the law in the jurisdiction where the conviction occurred.

(e) Any other criminal offense which is not specifically listed in subparagraph (a) if the court finds by clear and convincing evidence at the time of conviction or sentencing that the person committed the offense as a result of sexual compulsion or for purposes of sexual gratification and protection of the public would be furthered by requiring the person to register. In determining whether the offender is required to register, the court may consider the offender's prior criminal history and any other relevant information. If the court determines that the offender is required to register, the court shall determine if the offender shall register as a tier I, tier II, or tier III offender. In determining the tier in which the offender is to be registered, the court shall consider the nature of other offenses that are currently listed in each tier, the extent to which public safety would be furthered, whether the victim was a minor when the offense occurred, and any other relevant factors. The hearing at which such a determination is made shall comply with due process requirements, including a right to appeal the findings.

The defendant shall have the opportunity to be heard prior to the imposition of the registration requirement, and the court shall state on the record the reasons for its findings and the reasons for requiring registration.

VIII. “Tier I offender” means a sexual offender or offender against children who is required to register pursuant to RSA 651-B:1, V(d) or RSA 651-B:1, VII(e), or is required to register as a result of any of the following offenses:

(a) RSA 632-A:4, I(a); RSA 632-A:4, I(b); RSA 632-A:4, III; RSA 644:9, I(a); RSA 644:9, III-a; or a second or subsequent offense within a 5-year period for indecent exposure and lewdness, RSA 645:1, I.

(b) A law of another state, territory, tribal territory, or the federal government reasonably equivalent to a violation listed in subparagraph (a).

(c) Any out-of-state offense for which the offender is required to register in the state where the conviction occurred and the division determines the offender is a tier I offender.

(d) Any offense not listed in subparagraph (a) where the court determined the offender is a tier I offender and required the offender to register.

IX. “Tier II offender” means a sexual offender or offender against children who is required to register pursuant to RSA 651-B:1, V(d) or RSA 651-B:1, VII(e), or is required to register as a result of any of the following offenses:

(a) RSA 169-B:41, II; RSA 632-A:3, I; RSA 632-A:3, II; RSA 632-A:3, IV if the victim was 13 years of age or older but less than 18 years of age; RSA 633:2; RSA 633:3; RSA 633:7; RSA 639:3, III; RSA 645:1, II; RSA 645:1, III; RSA 645:2; RSA 649-A:3; RSA 649-A:3-a; RSA 649-A:3-b; RSA 649-B:3; RSA 649-B:4; RSA 650:2, II; or RSA 644:8-g.

(b) A law of another state, territory, tribal territory, or the federal government reasonably equivalent to a violation listed in subparagraph (a).

(c) Any out-of-state offense for which the offender is required to register in the state where the conviction occurred and the division determines the offender is a tier II offender.

(d) The offender is required to register as a result of more than one sexual offense or offense against a child.

(e) Any offense not listed in subparagraph (a) where the court determined the offender is a tier II offender and required the offender to register.

X. “Tier III offender” means a sexual offender or offender against children who is required to register pursuant to RSA 651-B:1, V(d) or RSA 651-B:1, VII(e), or is required to register as a result of any of the following:

(a) RSA 630:1, I(e), RSA 630:1-a, I(b)(1), RSA 632-A:2, RSA 632-A:3, III, RSA 632-A:3, IV if the victim was under the age of 13, RSA 633:1; or RSA 639:2.

(b) Any sexual offense or offense against a child if the offender was sentenced to an extended term of imprisonment pursuant to RSA 651:6.

(c) Any person civilly committed as a sexually violent predator pursuant to RSA 135-E.

(d) A law of another state, territory, tribal territory, or the federal government reasonably equivalent to a violation listed in subparagraph (a).

(e) Any out-of-state offense for which the offender is required to register in the state where the conviction occurred, and the division determines the offender is a tier III offender.

(f) The offender is required to register as a result of more than 2 sexual offenses or offenses against a child.

(g) Any offense not listed in subparagraph (a) where the court determined the offender is a tier III offender and required the offender to register.

XI. (a) “Required to register” means that a sexual offender or offender against children was charged with an offense or an attempt, conspiracy, solicitation, or as an accomplice to commit a sexual offense or offense against a child that resulted in one of the following outcomes:

(1) Conviction.

(2) A finding of not guilty by reason of insanity.

(3) An adjudication as a juvenile delinquent and the court at the time of the dispositional hearing finds, pursuant to RSA 169-B:19, that the juvenile is required to register.

(4) An adjudication of juvenile delinquency or its equivalent in another state or territory of the United States if the juvenile is required to register under the laws of that jurisdiction.

(5) An order committing the person as a sexually violent predator pursuant to RSA 135-E.

(b) A juvenile certified to stand trial as an adult, who is convicted, found not guilty by reason of insanity, or committed as a sexually violent predator, shall be treated as an adult for all purposes under this chapter.

XII. “SOR system” means the division of state police sex offender registry system.

XIII. Notwithstanding RSA 21:6-a, “residence” means a place where a person is living or temporarily staying for more than a total of 5 days during a one-month period, such as a shelter or structure that can be located by a street address, including, but not limited to, houses, apartment buildings, motels, hotels, homeless shelters, and recreational and other vehicles.

Credits

Source. 1996, 293:1. 1999, 177:3; 321:2. 2003, 316:8. 2004, 69:1. 2005, 214:1-3; 290:2. 2006, 162:4; 327:1-4. 2008, 323:9; 334:1. 2009, 306:1-4. 2010, 78:1-6, eff. Jan. 1, 2011. 2016, 215:2, eff. Jan. 1, 2017; 321:2, eff. Jan. 1, 2017 at 12:01 a.m.

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N.H. Rev. Stat. § 651-B:1, NH ST § 651-B:1

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Revised Statutes Annotated of the State of New Hampshire
Title LXII. Criminal Code (Ch. 625 to 651-F) (Refs & Annos)
Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:2

651-B:2 Registration.

Currentness

I. Every sexual offender or offender against children shall be registered with the department of safety, division of state police, as provided in this chapter.

II. Upon receipt of information pursuant to RSA 106-B:14 concerning the disposition of any charges against any sex offender or offender against children, the division shall register such person and shall include the relevant information in the SOR system.

III. Upon receipt from any out-of-state law enforcement agency of information that a sex offender or offender against children has moved to New Hampshire, the division shall register such person and shall include the relevant information in the SOR system.

IV. The information that a person is required to register on the public list as a sexual offender or offender against children, including his or her qualifying offense or offenses, shall be available to law enforcement through the offender's criminal record and motor vehicle record. If an offender's obligation to register terminates for any reason, the department shall notify the division of motor vehicles of the change and the offender's motor vehicle record shall no longer reflect that the person is required to register as a sexual offender or offender against children.

Credits

Source. 1996, 293:1. 2006, 327:5. 2008, 334:2, eff. Jan. 1, 2009.

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N.H. Rev. Stat. § 651-B:2, NH ST § 651-B:2

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N.H. Rev. Stat. § 651-B:3

651-B:3 Release of Certain Sexual Offenders Into the Community; Duties.

Currentness

I. (a) When a person is convicted of a sexual offense or offense against a child that results in the person being required to register, the court shall notify the offender in writing and advise the offender of his or her duty to report under this chapter. The offender shall acknowledge in writing that he or she has received such notice. The court shall forward a copy of the notice to the division along with a copy of each offense for which he or she was convicted, including a copy of any indictment, complaint, juvenile petition, mittimus, or other court orders. The division shall enter such information into the SOR system.

(b) Upon release of any sexual offender or offender against children required to register, whether on probation, parole, conditional or unconditional release, completion of sentence, release from secure psychiatric care, release into the community after involuntary commitment, release from a juvenile detention facility, or for any other reason, the official in charge of such release shall notify the offender of the offender's duty to report under this chapter. The offender shall acknowledge in writing that he has received such notice. The official shall obtain the address at which the offender expects to reside upon release and shall report such address to the department. The department shall inform the local law enforcement agency in the city or town where the offender expects to reside. The local law enforcement agency in the city or town where the offender expects to reside may notify the superintendent of the school administrative unit and the principal of any school within its jurisdiction of the address at which the offender expects to reside. If such notification occurs, the local law enforcement agency shall also notify the superintendent of the school administrative unit and the principal of any school within its jurisdiction of any changes to the offender's information made pursuant to RSA 651-B:5. The division shall enter the information concerning the offender's release and notification in the SOR system.

II. Upon receipt from any out-of-state law enforcement agency of information that a sex offender or offender against children has moved to New Hampshire, the department shall obtain the address at which the offender expects to reside and shall inform the local law enforcement agency. The local law enforcement agency in the city or town where the offender expects to reside may notify the superintendent of the school administrative unit and the principal of any school within its jurisdiction of the address at which the offender expects to reside. The department shall locate and shall serve notice upon such offender of the offender's duty to report under this chapter. Service by the department is not required if the offender has already registered with the local law enforcement agency in which the offender resides or is located as required by this chapter. At the time of the initial registration, the offender shall acknowledge in writing that the offender has received notice of the duty to report. The division shall enter the information concerning the offender's location in New Hampshire and notification in the SOR system. This paragraph shall not apply to a sexual offender or offender against children who has moved to New Hampshire and has registered with a local law enforcement agency.

III. Semi-annually, the department shall verify, in person, the address at which the offender resides or by sending a letter by certified non-forwarding mail to the offender. The address verification shall occur prior to the offender's birthday and again prior to the offender's 6-month semi-annual registration. The address verification shall remind the offender of the obligation

to register in person. The offender shall sign the address verification and return it to the officer, if the address verification was made in person, or to the department within 10 business days of receipt.

IV. In the discretion of the local law enforcement agency or the department, such agency or the department may affirmatively verify the address of any offender within that agency's jurisdiction through in-person contact at the home or residence of the offender.

Credits

Source. 1996, 293:1. 2005, 214:4. 2006, 162:2; 327:6. 2007, 319:2. 2008, 323:11, eff. Jan. 1, 2009 at 12:01 a.m.; 334:3, eff. Jan. 1, 2009.

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N.H. Rev. Stat. § 651-B:3, NH ST § 651-B:3
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Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:4

651-B:4 Duty to Report.

Currentness

I. Any sexual offender or offender against children residing in this state shall report in person to the local law enforcement agency. The offender shall report in person as set forth in this section within 5 business days after the person's release, or within 5 business days after the person's date of establishment of residence, employment, or schooling in New Hampshire. If an offender has more than one residence, the offender shall report in person to the local law enforcement agency having jurisdiction over his or her primary residence and report the addresses of all his or her residences, including those outside of New Hampshire. The division shall notify the local law enforcement agencies having jurisdiction over the offender's other residences of the offender's address in their jurisdiction. Thereafter, the offender shall report as follows:

(a) Every tier III offender shall report in person quarterly, within 5 business days after each anniversary of the offender's date of birth and every 3 months thereafter.

(b) Every tier I and tier II offender shall report in person semi-annually, within 5 business days after each anniversary of the offender's date of birth and every 6 months thereafter.

II. Any nonresident offender shall report in person to the local law enforcement agency having jurisdiction over the place of employment or school. In the event a nonresident offender required to register under this paragraph does not have a principal place of employment in this state, the offender shall register in person with the department in Concord.

III. Each time a sexual offender or offender against children is required to report, the offender shall provide the following information:

(a) Name and any aliases.

(b) Address of any permanent residence and address of any current temporary residence, within the state or out-of-state, and mailing address. A post office box shall not be provided in lieu of a physical residential address. If the offender cannot provide a definite address, he or she shall provide information about all places where he or she habitually lives.

(c) Name, address, and date of any employment or schooling. For purposes of this section, the term "employment" includes volunteer work or work without remuneration. If the offender does not have a fixed place of work, he or she shall provide information about all places he or she generally works, and any regular routes of travel.

(d) Any professional licenses or certifications that authorize the offender to engage in an occupation or carry out a trade or business.

(e) Make, model, color, and license plate or registration number and state of registration of any vehicle, watercraft, or aircraft owned or regularly operated by the offender, and the place or places where such vehicles, watercraft, or aircraft are regularly kept.

(f) Date of birth, including any alias date of birth used by the offender.

(g) Social security number.

(h) Physical description to include identifying marks such as scars and tattoos.

(i) Telephone numbers for both fixed location and cell phones.

(j) Passport, travel, and immigration documents.

(k) The name, address, and phone number of any landlord, if the offender resides in rental property.

IV. In addition to the information required pursuant to paragraph III, the department, at the time of the offender's registration, may require the offender to submit the following:

(a) A photograph taken by the law enforcement agency each time the person is required to report to the law enforcement agency under this section.

(b) A DNA sample, if such sample has not already been provided.

(c) A set of major case prints, including fingerprints and palm prints of the offender.

(d) A photocopy of a valid driver's license or identification card issued to the offender. The consent of the registrant shall not be necessary to obtain this information. Such information may be used in the performance of any valid law enforcement function.

V. At periodic intervals, not less frequently than once each month, the commissioner of the department of corrections, the superintendent of each county department of corrections, and the commissioner of the department of health and human services shall forward to the division a statement identifying every sexual offender and offender against children who is confined in a facility under its control and who is eligible for any unsupervised work detail, release into the community following secure psychiatric care, or other assignment which may bring the offender into contact with members of the public. These statements

shall include the information required in paragraph III and may include the information set forth in paragraph IV. In no event shall the statements include the identity of any victim.

VI. In addition to the requirements imposed under this section, the following provisions shall apply to any sexual offender or offender against children who is sentenced to an extended term of imprisonment pursuant to RSA 651:6, I(b):

- (a) Every 90 days after the date of the offender's initial release or commencement of parole, the department shall mail a nonforwardable verification form to the offender's last reported address.
- (b) The offender shall mail the verification form to the department within 10 days after receipt of the form.
- (c) The verification form shall be signed by the offender, and state that the offender still resides at the address last reported to the local law enforcement agency.

Credits

Source. 1996, 293:1. 2000, 177:1. 2001, 233:1. 2002, 241:32. 2003, 316:1. 2005, 214:5. 2006, 327:7. 2008, 334:4. 2009, 306:5. 2010, 78:7, eff. Jan. 1, 2011.

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N.H. Rev. Stat. § 651-B:4-a

651-B:4-a Registration of Online Identifiers.

Currentness

In addition to any other information a person who is required to register is required to provide pursuant to RSA 651-B:4, such person shall report, within 5 business days after the first use, any online identifier he or she uses or has used. For purposes of this section, “online identifier” shall mean and include all of the following: electronic mail addresses, instant message screen names, user profile names on social media websites, and user profile names for Internet websites, gaming or mobile applications that have a primary purpose of engaging in two-way, person-to-person communication over the Internet with persons other than the issuer of the user name. Such person shall report any changes to an existing online identifier or the creation of a new online identifier, to their law enforcement agency within 5 business days after using the online identifier.

Credits

Source. 2008, 323:6, eff. Jan. 1, 2009 at 12:01 a.m. 2017, 36:1, eff. July 8, 2017.

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N.H. Rev. Stat. § 651-B:4-a, NH ST § 651-B:4-a
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N.H. Rev. Stat. § 651-B:5

651-B:5 Change of Registration Information; Duty to Inform.

Currentness

I. When there is a change to any of the information that a sexual offender or offender against children is required to report pursuant to this chapter, the offender shall give written notification of the new information to the local law enforcement agency to which he or she last reported under RSA 651-B:4 within 5 business days of such change of information. In addition, any time a sex offender or offender against children changes residence, employment, or schooling, the offender shall report in person to the local law enforcement agency having jurisdiction over the offender's previous place of residence, place of employment, or school within 5 business days. The local law enforcement agency receiving notice of the change of registration information shall forward a copy to the division within 5 days after receipt. The division shall notify the local law enforcement agency at the new place of residence, place of employment, or school, or the appropriate out-of-state law enforcement agency if the new place of residence, place of employment, or school is outside New Hampshire. The division shall include any new information in the SOR system.

II. Upon receipt of notice that an offender has changed residence, employment, or schooling to a place outside New Hampshire, the division shall notify the appropriate out-of-state law enforcement agency of that information. Within 10 business days after reporting the change of residence, employment, or schooling to the New Hampshire law enforcement agency, the offender shall report to the appropriate out-of-state law enforcement agency having jurisdiction over the new place of residence, place of employment, or school. If the offender fails to report to the appropriate out-of-state law enforcement agency the division shall maintain the offender's information in the SOR system.

III. The local law enforcement agency in the city or town where the offender resides may notify the superintendent of the school administrative unit and the principal of any school within its jurisdiction of a new place of residence, a change of name, or a change of an alias, of a person required to be registered under this chapter.

Credits

Source. 1996, 293:1. 1999, 160:2. 2001, 233:2. 2002, 241:4. 2006, 327:8. 2007, 319:3. 2008, 334:4, eff. Jan. 1, 2009.

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N.H. Rev. Stat. § 651-B:5, NH ST § 651-B:5

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Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:6

651-B:6 Duration of Registration.

Currentness

I. All tier II or tier III offenders shall be registered for life.

II. All tier I offenders shall be registered for a 10-year period from the date of release, provided that any such registration period shall not run concurrently with any registration period resulting from a subsequent violation or attempted violation of an offense for which the person is required to register.

III. (a)(1) Except as provided in paragraph V, all tier III offenders shall remain on the public list contained in RSA 651-B:7 for life.

(2) A tier II offender may petition the superior court to have his or her name and information removed from the public list. The petition shall not be filed prior to the completion of all the terms and conditions of the sentence and in no case earlier than 15 years after the date of release. The petition shall be accompanied by a risk assessment prepared by a qualified psychiatrist or psychologist at the offender's expense. The court may grant the petition if the offender has not been convicted of any felony, class A misdemeanor, sex offense, or offense against a child, has successfully completed any periods of supervised release, probation, or parole, and has successfully completed an appropriate sex offender treatment program as determined by the court. If the court denies the petition, the offender shall not file another petition for 5 years from the date of denial.

(3) A tier I offender may petition the superior court to have his or her name and other information removed from the public list. The petition shall not be filed prior to the completion of all the terms and conditions of the sentence and in no case earlier than 5 years after the date of release. The petition shall be accompanied by a risk assessment prepared by a qualified psychiatrist or psychologist at the offender's expense. The court may grant the petition if the offender has not been convicted of any felony, class A misdemeanor, sexual offense, or offense against a child, has successfully completed any periods of supervised release, probation, or parole, and has successfully completed an appropriate sex offender treatment program as determined by the court.

(b) Prior to granting any petition to remove an offender from the public list, the court shall provide notice to the county attorney who prosecuted the case, the victim advocate, and the victim or victim's family, and permit those parties to be heard on the petition. Prior to any decision granting the application, the court shall provide the victim with the opportunity to address the court. The victim may appear personally, or by counsel, or may provide a written statement to reasonably express his or her views concerning the offense, the person responsible, and the need for maintaining the registration requirement. The judge shall consider the statements of the victim pursuant to this section when making a decision regarding the application. The judge shall grant the application, after a hearing, only where, in the opinion of the court, removal from the registration requirements will assist the individual in the individual's rehabilitation and will be consistent with the public welfare.

IV. Registration of any juvenile required to register pursuant to RSA 651-B:1, XI(a)(3) or (4) shall end when the juvenile turns 18 years of age unless the court which adjudicated the juvenile as a delinquent retains jurisdiction over the juvenile pursuant to RSA 169-B:4, V, in which case registration of the juvenile shall end when the court terminates jurisdiction over the juvenile's case. When the registration of a juvenile terminates, the department shall remove information relating to the juvenile from the SOR system and records of the juvenile's registration shall be handled in accordance with RSA 169-B:35 and RSA 169-B:36.

V. (a) Any tier II or tier III offender who was convicted prior to the establishment of the sex offender registry may petition the court to be relieved from the registration requirements under this chapter. The petition shall include the petitioner's current address and information about each conviction for which he or she is required to register, including the nature of the offense, the sentence imposed, and the court and the jurisdiction in which the petitioner was convicted. The petition shall be accompanied by a certified copy of the petitioner's criminal history record from each jurisdiction in which he or she is required to register. The petition shall not be filed prior to the completion of all the terms and conditions of the sentence, including any period of supervised release. The petition shall also be accompanied by a risk assessment prepared by a qualified psychiatrist or psychologist at the offender's expense, which indicates that the petitioner is not a danger to the public and no longer poses a risk sufficient to justify continued registration. The petition shall be filed in the county where the most recent predicate conviction occurred, except if the most recent predicate conviction occurred in another state or jurisdiction, the petition shall be filed in the county where the petitioner resides. Such petition shall not be filed as or addressed as part of a criminal case.

(b) Prior to granting any petition to relieve an offender from the registration requirements under this chapter, the court shall hold a hearing on the petition. The court shall provide notice of the hearing at least 60 days prior to the hearing to the county attorney, the department of safety sex offender unit, and the department of corrections. The county attorney shall use reasonable efforts to notify the victim or victim's family. The court shall permit those parties to be heard on the petition. The victim may appear personally, or through a representative, or may provide a written statement expressing his or her views concerning the offense, the person responsible, and the need for maintaining the registration requirement. The judge shall consider the statements of the victim when making a decision regarding the petition.

(c) The court may grant the petition if the offender has not been convicted of any subsequent offense requiring registration, has successfully completed any period of supervised release, probation, or parole, has successfully completed an appropriate sex offender treatment program as determined by the court, and has demonstrated that he or she is no longer a danger to the public and no longer poses a risk sufficient to justify continued registration. If the court denies the petition, the offender shall not file another petition for 5 years from the date of denial.

Credits

Source. 1996, 293:1. 1999, 177:4, 5; 321:3. 2002, 241:2. 2003, 316:9. 2005, 214:6. 2006, 162:3; 327:9, 10. 2008, 334:4, eff. Jan. 1, 2009. 2016, 197:1, 2, eff. June 6, 2016. 2024, 42:5, eff. July 30, 2024.

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N.H. Rev. Stat. § 651-B:6, NH ST § 651-B:6

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N.H. Rev. Stat. § 651-B:7

651-B:7 Availability of Information to the Public and Law Enforcement.

Currentness

I. Except as provided in this section, the records established and information collected pursuant to the provisions of this chapter shall not be considered “public records” subject to inspection under RSA 91-A:4. However, nothing in this chapter shall be construed to limit any law enforcement agency from making any use or disclosure of any such information as may be necessary for the performance of a valid law enforcement function. Nothing in this chapter shall be construed to limit an individual's ability to obtain access to the individual's own records, or to limit access to a person's criminal record under the provisions of RSA 106-B:14, including address information obtained under the provisions of this chapter.

II. The division shall maintain a list of all tier I, tier II, and tier III offenders required to register pursuant to this chapter. The list shall also include all offenders about whom the division receives notice pursuant to RSA 651-B:4, V. In addition to the information contained on the public list pursuant to paragraph III, the law enforcement list shall include all information reported to the local law enforcement agency or the department pursuant to RSA 651-B:4. In addition, the information shall include the text of the statute under which the offender was convicted and the criminal history of the offender. The list maintained pursuant to this paragraph shall not be available to the public but shall be available to law enforcement officials for valid law enforcement purposes.

III. (a) The division shall maintain a separate public list of all tier I, tier II, and tier III offenders who are required to register as a result of an offense against a child, any offenders about whom the division receives notice pursuant to RSA 651-B:4, V that will be required to register as a result of an offense against children, and any offender who is required to register for more than one sexual offense or offense against a child. The public list shall include all of the following information:

- (1) Offender's name, alias, age, race, sex, date of birth, height, weight, hair and eye color, and any other relevant physical description.
- (2) Address of any permanent residence and address of any temporary residence, within the state or out-of-state.
- (3) The offense for which the individual is required to register and the text of the provision of law defining the offense, and any other sex offense for which the individual has been convicted.
- (4) The date and court of the adjudication on the offense for which the individual is registered.
- (5) Outstanding arrest warrants, and the information listed in subparagraphs (a)(1)-(3), for any sexual offender or offender against children who has not complied with the obligation to register under this chapter.

(6) Criminal history of the offender, including the date of all convictions and the status of parole, probation, or supervised release, and registration status.

(7) A photograph of the individual.

(8) The address of any place where the individual is or will be a student.

(9) [Repealed.]

(b) Where such information is available, the public list may also include:

(1) Information on the profile of the victim of the individual's offense.

(2) The method of approach utilized by the individual.

(c) The public list shall not include:

(1) The identity of any victim either directly or indirectly. Sexual offenders convicted under RSA 632-A:2 shall be listed on the public list in a manner which does not disclose, directly or indirectly, that the victim and the defendant were related or members of the same household. For sexual offenders convicted under RSA 632-A:2, I, no specific reference to any statutory subparagraph shall appear on the public list.

(2) The social security number of the offender.

(3) Arrests of the offender which did not result in a conviction.

(4) The name of the employer or school which the offender attends.

(5) Information about a juvenile delinquent required to register pursuant to RSA 651-B:1, XI(a)(3) or (4).

IV. (a) The public list shall be made available to interested members of the public upon request to a local law enforcement agency. The department of safety shall also make the list available to the public through the use of the department's official public Internet website. The Internet website shall be available to the public in a manner that will permit the public to obtain relevant information for each sex offender by a single query for any given zip code or geographic radius set by the user. The website may include additional search parameters as determined by the department.

(b) Local law enforcement agencies may photograph, at the time of the registration, any individual who is required to be registered pursuant to this chapter. The consent of the registrant shall not be necessary. Such photographs may be used in the performance of any valid law enforcement function.

(c) In the discretion of the local law enforcement agency, such agency may affirmatively notify the public that an offender who is included on the public list received by the agency pursuant to subparagraph IV(a) is residing in the community.

V. Local law enforcement agencies, employees of local law enforcement agencies, county and state officials, municipal and school officials, and municipalities and school districts shall be immune from civil and criminal liability for good faith conduct under this chapter, including any decision to provide or not provide affirmative notification to the public pursuant to subparagraph IV(c). Nothing in this paragraph shall be deemed to grant any such immunity to any person for that person's reckless or wanton conduct.

VI. [Repealed.]

Credits

Source. 1996, 293:1. 1998, 239:2. 1999, 321:4. 2000, 177:2, 3. 2002, 241:1. 2003, 316:2-4. 2005, 214:7, 8. 2006, 162:5; 327:11. 2008, 334:4. 2009, 306:6, 15, III. 2010, 78:8, eff. Jan. 1, 2011.

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N.H. Rev. Stat. § 651-B:8

651-B:8 Rules.

Currentness

The department shall adopt rules, pursuant to RSA 541-A, relative to forms and procedures for the administration of this chapter.

Credits

Source. 1996, 293:1, eff. Aug. 9, 1996.

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N.H. Rev. Stat. § 651-B:9

651-B:9 Penalty.

Currentness

I. A sexual offender or offender against children who is required to register under this chapter and who negligently fails to comply with the requirements of this chapter shall be guilty of a misdemeanor.

II. A sexual offender or offender against children who is required to register under this chapter and who knowingly fails to comply with the requirements of this chapter shall be guilty of a class B felony. An offender who is required to register for a period of 10 years following his or her release, pursuant to RSA 651-B:6, II, shall be required to register for an additional 10 years from the date of conviction for violating this paragraph. The obligation to register for an additional 10 years from the date of conviction for violating this paragraph shall be consecutive to the registration period imposed pursuant to RSA 651-B:6 and shall be imposed even if the original registration period has elapsed.

III. A sexual offender or offender against children previously convicted pursuant to paragraph II who is required to register under this chapter and who knowingly fails to comply with the requirements of this chapter shall be guilty of a class A felony. An offender who is required to register for a period of 10 years following his or her release, pursuant to RSA 651-B:6, II, who is convicted for violating this paragraph shall be required to register for life.

IV. The penalties imposed under paragraphs I-III shall not apply to juveniles required to register pursuant to RSA 651-B:1, XI(a) (3) or (4). The court with jurisdiction over such juveniles may impose an appropriate disposition for a violation of this section.

V. Any person who violates the provisions of RSA 651-B:7 shall be guilty of a violation.

VI. A sexual offender or offender against children who knowingly provides false information in response to any of the requirements of this chapter shall be guilty of a class B felony.

VII. A person is guilty of a class B felony if the person has reason to believe that a sexual offender or offender against children is not complying, or has not complied, with the requirements of this chapter and who purposely assists the offender in eluding any law enforcement agency that is seeking to find the offender to question the offender about, or to arrest the offender for, his or her noncompliance with the requirements of this chapter, and engages in any of the following acts or omissions:

(a) Withholds information from, or does not notify, the law enforcement agency about the offender's noncompliance with the requirements of this chapter, and, if known, the whereabouts of the offender;

- (b) Harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the offender;
- (c) Conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the offender;
- (d) Provides information to the law enforcement agency regarding the offender which the person knows to be false information; or
- (e) Warns the offender that the law enforcement agency is attempting to locate the offender.

VIII. (a) Except as provided in subparagraph (b), any sexual offender or offender against children who is required to register under this chapter who is convicted of aggravated felonious sexual assault pursuant to RSA 632-A:2, or felonious sexual assault pursuant to RSA 632-A:3, or sexual assault pursuant to RSA 632-A:4, and who initiates contact with the victim of the offense at any time shall be guilty of a class A misdemeanor. In this paragraph, “contact” means any action to communicate with the victim either directly or indirectly, including, but not limited to, using any form of electronic communication, leaving items, or causing another to communicate in such fashion.

(b) Subparagraph (a) shall not apply to contact between a sexual offender or an offender against children and a victim where there is an ongoing relationship between the victim and the offender that existed prior to the commission of the offense and that necessitates contact between them, such as the shared custody of a child or an emergency involving a shared sibling or parent, provided that any contact by the offender shall be strictly limited to the immediate issue that needs to be communicated.

Credits

Source. 1996, 293:1. 2000, 177:4. 2005, 214:96. 2006, 327:12. 2008, 334:5. 2010, 75:1, eff. Jan. 1, 2011.

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N.H. Rev. Stat. § 651-B:9, NH ST § 651-B:9
Current through Chapter 105 of the 2025 Reg. Sess. Some statute sections may be more current, see credit for details.

Revised Statutes Annotated of the State of New Hampshire
Title LXII. Criminal Code (Ch. 625 to 651-F) (Refs & Annos)
Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:10

651-B:10 Hearing.

Currentness

I. Any offender required to register for an offense committed in another state, country, territory, or tribal territory, or under federal law that is determined to be a reasonably equivalent offense to an offense listed in RSA 651-B:1, V(a) or RSA 651-B:1, VII(a) or (b) may appeal that determination to the commissioner. The offender shall, within 10 days of notification, request a hearing on the matter before the commissioner. If such a request is made, the commissioner shall promptly schedule and conduct a hearing pursuant to rules adopted under RSA 541-A. Either party shall have the right to appeal the commissioner's decision in superior court.

II. Any offender required to register for an offense in the state of conviction pursuant to RSA 651-B:1, V(c), RSA 651-B:1, VII(d), or RSA 651-B:1, XI(a)(4) may petition the superior court for a hearing to review the registration requirement. In determining whether the offender should be required to register, the court may consider the facts of underlying the out-of-state conviction, the offender's prior criminal history, the extent to which public safety would be furthered by requiring the offender to register, and any other relevant information. If the court determines that the offender is required to register, the court shall determine whether the offender is required to register as a tier I, tier II, or tier III offender. In determining the appropriate tier, the court shall consider the nature of other offenses that are currently listed in each tier, the seriousness of the offender's offense, the extent to which public safety would be furthered, whether the victim was a minor when the offense occurred, and any other relevant factors. The hearing at which such a determination is made shall comply with due process requirements, including a right to appeal the findings. The court shall provide the defendant an opportunity to be heard on the issue and shall state on the record the reasons for its findings and the reasons for requiring registration.

III. Any individual required to be registered as a result of any violation or attempted violation of RSA 632-A:3, II in effect prior to January 1, 2009, or RSA 632-A:2, III if the acts constituting the pattern were in violation of RSA 632-A:3, II in effect prior to January 1, 2009, provided that the age difference between the individual required to register and the victim was less than 4 years at the time of the offense and the person has no other adjudications requiring registration under RSA 651-B:2, may file with the clerk of the superior court for the county in which the judgment was rendered an application for review of the registration requirement. No application shall be granted without a hearing, during which the prosecuting attorney and the victim or victim's family shall have an opportunity to be heard. Notice of the hearing shall be provided no less than 30 days prior to the hearing. The victim may appear personally or through a representative, and may reasonably express his or her views concerning the offense, the offender, and the need for continuing the registration requirement. If the court denies the application, the offender shall not file another application for 5 years from the date of the denial.

Credits

Source. 2003, 316:5. 2008, 334:6. 2009, 306:7, eff. July 31, 2009. 2016, 197:3, eff. June 6, 2016.

N.H. Rev. Stat. § 651-B:10, NH ST § 651-B:10

Current through Chapter 105 of the 2025 Reg. Sess. Some statute sections may be more current, see credit for details.

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Revised Statutes Annotated of the State of New Hampshire
Title LXII. Criminal Code (Ch. 625 to 651-F) (Refs & Annos)
Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:11

651-B:11 Registration Fee.

Currentness

I. An offender shall pay a fee of \$50 to the department within 10 days of the registration that occurs within the month of the anniversary of his or her birth. Such payment shall be made in person or shall be mailed to the department. The department shall retain \$40 of this amount to be used to defray the costs of maintaining the sex offender registry. Such funds shall be nonlapsing and shall be continually appropriated to the department for such use. The department shall forward the remaining \$10 to the law enforcement agency which registered the offender within the month of the anniversary of the offender's birth to defray any costs associated with implementing the provisions of this chapter. The department shall forward these fees to the registering law enforcement agencies in a manner determined by the department but no less frequently than once a year.

II. An offender who cannot afford to pay the fee shall, within 10 days of registration, request a waiver of the fee and a hearing on the matter before the commissioner. In order to be considered for a waiver, the offender shall submit a financial affidavit on a form provided by the department. The division may at its discretion request such a waiver on behalf of an offender. If such a request is made, the commissioner shall promptly schedule and conduct a hearing pursuant to rules adopted under RSA 541-A, unless the commissioner or commissioner's designee determines a hearing is not necessary and waives the fee based on the offender's financial affidavit, or at the written request of the division. At the hearing, the burden shall be on the offender to prove that he or she is indigent. The offender may appeal the commissioner's decision to the superior court. Under no circumstances shall the offender's request for a hearing or indigency relieve the offender of the obligation to register as required pursuant to this chapter.

III. Notwithstanding RSA 651-B:9, an offender who violates the provisions of this section shall be guilty of a violation for a first offense and a misdemeanor for a second or subsequent offense.

Credits

Source. 2006, 327:13. 2007, 337:13. 2008, 334:6, eff. Jan. 1, 2009.

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N.H. Rev. Stat. § 651-B:11, NH ST § 651-B:11
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Chapter 651-B. Registration of Criminal Offenders (Refs & Annos)

N.H. Rev. Stat. § 651-B:12

651-B:12 Application.

Currentness

Whenever possible, the provisions of this chapter shall be interpreted and applied consistent with the provisions of the federal Jacob Wetterling Act, as amended.

Credits

Source. 2006, 327:13, eff. Jan. 1, 2007.

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New Jersey Statutes Annotated

Title 2c. The New Jersey Code of Criminal Justice

Subtitle 1. General Provisions

Chapter 7. Registration and Notification of Release of Certain Offenders

N.J.S.A. T. 2C, Subt. 1, Ch. 7, Refs & Annos

Currentness

N. J. S. A. T. 2C, Subt. 1, Ch. 7, Refs & Annos, NJ ST T. 2C, Subt. 1, Ch. 7, Refs & Annos

Current with laws through L.2025, c. 80 and J.R. No. 10.

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New Jersey Statutes Annotated

Title 2c. The New Jersey Code of Criminal Justice (Refs & Annos)

Subtitle 1. General Provisions

Chapter 7. Registration and Notification of Release of Certain Offenders (Refs & Annos)

N.J.S.A. 2C:7-1

2C:7-1. Legislative findings and declarations

Currentness

The Legislature finds and declares:

- a. The danger of recidivism posed by sex offenders and offenders who commit other predatory acts against children, and the dangers posed by persons who prey on others as a result of mental illness, require a system of registration that will permit law enforcement officials to identify and alert the public when necessary for the public safety.
- b. A system of registration of sex offenders and offenders who commit other predatory acts against children will provide law enforcement with additional information critical to preventing and promptly resolving incidents involving sexual abuse and missing persons.

Credits

L.1994, c. 133, § 1, eff. Oct. 31, 1994.

N. J. S. A. 2C:7-1, NJ ST 2C:7-1

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Chapter 7. Registration and Notification of Release of Certain Offenders (Refs & Annos)

N.J.S.A. 2C:7-2

2C:7-2 Registration of sex offenders; definitions

Currentness

a. (1) A person who has been convicted, adjudicated delinquent or found not guilty by reason of insanity for commission of a sex offense as defined in subsection b. of this section shall register as provided in subsections c. and d. of this section.

(2) A person who in another jurisdiction is required to register as a sex offender and (a) is enrolled on a full-time or part-time basis in any public or private educational institution in this State, including any secondary school, trade or professional institution, institution of higher education or other post-secondary school, or (b) is employed or carries on a vocation in this State, on either a full-time or a part-time basis, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year, shall register in this State as provided in subsections c. and d. of this section.

(3) A person who fails to register as required under this act¹ shall be guilty of a crime of the third degree.

b. For the purposes of this act a sex offense shall include the following:

(1) Aggravated sexual assault, sexual assault, aggravated criminal sexual contact, kidnapping pursuant to paragraph (2) of subsection c. of N.J.S.2C:13-1 or an attempt to commit any of these crimes if the court found that the offender's conduct was characterized by a pattern of repetitive, compulsive behavior, regardless of the date of the commission of the offense or the date of conviction;

(2) A conviction, adjudication of delinquency, or acquittal by reason of insanity for aggravated sexual assault; sexual assault; aggravated criminal sexual contact; kidnapping pursuant to paragraph (2) of subsection c. of N.J.S.2C:13-1; endangering the welfare of a child by engaging in sexual conduct which would impair or debauch the morals of the child pursuant to subsection a. of N.J.S.2C:24-4; endangering the welfare of a child pursuant to paragraph (3) or (4), subparagraph (a), or sub-subparagraph (i) or (ii) of subparagraph (b) of paragraph (5) of subsection b. of N.J.S.2C:24-4; luring or enticing pursuant to section 1 of P.L.1993, c. 291 (C.2C:13-6); criminal sexual contact pursuant to N.J.S.2C:14-3b. if the victim is a minor; kidnapping pursuant to N.J.S.2C:13-1, criminal restraint pursuant to N.J.S.2C:13-2, or false imprisonment pursuant to N.J.S.2C:13-3 if the victim is a minor and the offender is not the parent of the victim; knowingly promoting prostitution of a child pursuant to paragraph (3) or paragraph (4) of subsection b. of N.J.S.2C:34-1; leader of a network to share child sexual abuse or exploitation material pursuant to section 8 of P.L.2017, c. 141 (C.2C:24-4.1); or an attempt to commit any of these enumerated offenses if the conviction, adjudication of delinquency or acquittal by reason of insanity is entered on or after the effective date of this act² or the offender is serving a sentence of incarceration, probation, parole or other form of community supervision as a result of the offense or is confined following acquittal by reason of insanity or as a result of civil commitment on the effective date of this act;

(3) A conviction, adjudication of delinquency, or acquittal by reason of insanity for an offense similar to any offense enumerated in paragraph (2) or a sentence on the basis of criteria similar to the criteria set forth in paragraph (1) of this subsection entered or imposed under the laws of the United States, this State, or another state.

(4) Notwithstanding the provisions of paragraph (1), (2), or (3) of this subsection, a sex offense shall not include an adjudication of delinquency for endangering the welfare of a child pursuant to paragraph (4) or (5) of subsection b. of N.J.S.2C:24-4, provided that the actor demonstrates that:

(a) the facts of the case are limited to the creation, exhibition or distribution of a photograph depicting nudity or portraying a child in a sexually suggestive manner, as defined in N.J.S.2C:24-4, through the use of an electronic communications device, an interactive wireless communications device, or a computer;

(b) the creator and subject of the photograph are juveniles or were juveniles at the time of its making; and

(c) the subject of the photograph whose nudity is depicted or who is portrayed in a sexually suggestive manner, as the case may be, knowingly consented to the making of the photograph.

c. A person required to register under the provisions of this act shall do so on forms to be provided by the designated registering agency as follows:

(1) A person who is required to register and who is under supervision in the community on probation, parole, furlough, work release, or a similar program, shall register at the time the person is placed under supervision or no later than 120 days after the effective date of this act, whichever is later, in accordance with procedures established by the Department of Corrections, the Department of Human Services, the Youth Justice Commission established pursuant to section 2 of P.L.1995, c. 284 (C.52:17B-170) or the Administrative Office of the Courts, whichever is responsible for supervision;

(2) A person confined in a correctional or juvenile facility or involuntarily committed who is required to register shall register prior to release in accordance with procedures established by the Department of Corrections, the Department of Human Services or the Youth Justice Commission and, within 48 hours of release, shall also register with the chief law enforcement officer of the municipality in which the person resides or, if the municipality does not have a local police force, the Superintendent of State Police;

(3) A person moving to or returning to this State from another jurisdiction shall register with the chief law enforcement officer of the municipality in which the person will reside or, if the municipality does not have a local police force, the Superintendent of State Police within 120 days of the effective date of this act or 10 days of first residing in or returning to a municipality in this State, whichever is later;

(4) A person required to register on the basis of a conviction prior to the effective date who is not confined or under supervision on the effective date of this act shall register within 120 days of the effective date of this act with the chief law enforcement officer of the municipality in which the person will reside or, if the municipality does not have a local police force, the Superintendent of State Police;

(5) A person who in another jurisdiction is required to register as a sex offender and who is enrolled on a full-time or part-time basis in any public or private educational institution in this State, including any secondary school, trade or professional institution, institution of higher education or other post-secondary school shall, within ten days of commencing attendance at such educational institution, register with the chief law enforcement officer of the municipality in which the educational institution is located or, if the municipality does not have a local police force, the Superintendent of State Police;

(6) A person who in another jurisdiction is required to register as a sex offender and who is employed or carries on a vocation in this State, on either a full-time or a part-time basis, with or without compensation, for more than 14 consecutive days or for an aggregate period exceeding 30 days in a calendar year, shall, within ten days after commencing such employment or vocation, register with the chief law enforcement officer of the municipality in which the employer is located or where the vocation is carried on, as the case may be, or, if the municipality does not have a local police force, the Superintendent of State Police;

(7) In addition to any other registration requirements set forth in this section, a person required to register under this act who is enrolled at, employed by or carries on a vocation at an institution of higher education or other post-secondary school in this State shall, within 10 days after commencing such attendance, employment or vocation, register with the law enforcement unit of the educational institution, if the institution has such a unit.

d. (1) Upon a change of address, a person shall notify the law enforcement agency with which the person is registered and shall re-register with the appropriate law enforcement agency no less than 10 days before the person intends to first reside at his new address. Upon a change of employment or school enrollment status, a person shall notify the appropriate law enforcement agency no later than five days after any such change. A person who fails to notify the appropriate law enforcement agency of a change of address or status in accordance with this subsection is guilty of a crime of the third degree.

(2) A person required to register under this act³ shall provide the appropriate law enforcement agency with information as to whether the person has routine access to or use of a computer or any other device with Internet capability. A person who fails to notify the appropriate law enforcement agency of such information or of a change in the person's access to or use of a computer or other device with Internet capability or who provides false information concerning the person's access to or use of a computer or any other device with Internet capability is guilty of a crime of the third degree.

e. A person required to register under paragraph (1) of subsection b. of this section or under paragraph (3) of subsection b. due to a sentence imposed on the basis of criteria similar to the criteria set forth in paragraph (1) of subsection b. shall verify the person's address with the appropriate law enforcement agency every 90 days in a manner prescribed by the Attorney General. A person required to register under paragraph (2) of subsection b. of this section or under paragraph (3) of subsection b. on the basis of a conviction for an offense similar to an offense enumerated in paragraph (2) of subsection b. shall verify the person's address annually in a manner prescribed by the Attorney General. In addition to address information, the person shall provide as part of the verification process any additional information the Attorney General may require. One year after the effective date of this act, the Attorney General shall review, evaluate and, if warranted, modify pursuant to the "Administrative Procedure Act," P.L.1968, c. 410 (C.52:14B-1 et seq.) the verification requirement. Any person who knowingly provides false information concerning the person's place of residence or who fails to verify the person's address with the appropriate law enforcement agency or other entity, as prescribed by the Attorney General in accordance with this subsection, is guilty of a crime of the third degree.

f. Except as provided in subsection g. of this section, a person required to register under this act may make application to the Superior Court of this State to terminate the obligation upon proof that the person has not committed an offense within 15 years

following conviction or release from a correctional facility for any term of imprisonment imposed, whichever is later, and is not likely to pose a threat to the safety of others.

g. A person required to register under this section who has been convicted of, adjudicated delinquent, or acquitted by reason of insanity for more than one sex offense as defined in subsection b. of this section or who has been convicted of, adjudicated delinquent, or acquitted by reason of insanity for aggravated sexual assault pursuant to subsection a. of N.J.S.2C:14-2 or sexual assault pursuant to paragraph (1) of subsection c. of N.J.S.2C:14-2 is not eligible under subsection f. of this section to make application to the Superior Court of this State to terminate the registration obligation.

Credits

L.1994, c. 133, § 2, eff. Oct. 31, 1994. Amended by L.1995, c. 280, § 18, eff. Dec. 15, 1995; L.2001, c. 392, § 1, eff. Jan. 8, 2002; L.2003, c. 34, § 1, eff. July 1, 2003; L.2003, c. 219, § 1, eff. April 8, 2004; L.2003, c. 220, § 1, eff. April 8, 2004; L.2007, c. 19, § 1, eff. March 1, 2007; L.2007, c. 219, § 2, eff. Feb. 25, 2008; L.2013, c. 214, § 1, eff. July 1, 2014; L.2017, c. 141, § 3, eff. Feb. 1, 2018; L.2024, c. 92, § 2, eff. Nov. 18, 2024; L.2025, c. 35, § 15, eff. March 17, 2025.

Footnotes

1 N.J.S.A. § 2C:7-1 et seq.

2 L.1994, c. 133, eff. Oct. 31, 1994.

3 L.2007, c. 219.

N. J. S. A. 2C:7-2, NJ ST 2C:7-2

Current with laws through L.2025, c. 80 and J.R. No. 10.

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Subtitle 1. General Provisions

Chapter 7. Registration and Notification of Release of Certain Offenders (Refs & Annos)

N.J.S.A. 2C:7-2.1

2C:7-2.1 Address verification prior to release

Currentness

a. No person confined in a correctional or juvenile facility or involuntarily committed who is required to register under the provisions of P.L.1994, c. 133 (C.2C:7-1 et seq.) shall be released from that confinement prior to expiration of sentence or termination from supervision or of custody, as the case may be, until the address set forth on his form of registration as his proposed place of residence has been verified as valid in accordance with procedures established by the Attorney General, which shall include provisions governing written notification of appropriate State and local officials. The address verification shall take place prior to the scheduled date of release and shall be provided to the department to which the individual is confined or committed or the commission, as appropriate. Nothing in this section shall be construed to require a person to be held in confinement or involuntary commitment beyond the date of expiration of that person's sentence, termination from supervision, or judicially ordered termination of custody, as the case may be.

b. No person under supervision in the community on probation, parole, furlough, work release or any similar program who is required to register under the provisions of P.L.1994, c. 133 (C.2C:7-1 et seq.) shall be released from that supervision until the address set forth on his form of registration as his proposed place of residence has been verified as valid. The address verification shall take place prior to the scheduled date of release.

Credits

L.2007, c. 19, § 2, eff. March 1, 2007.

N. J. S. A. 2C:7-2.1, NJ ST 2C:7-2.1

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N.J.S.A. 2C:7-3

2C:7-3. Notice of obligation to register as sex offender

Currentness

Notice of the obligation to register shall be provided as follows:

(1) A court imposing a sentence, disposition or order of commitment following acquittal by reason of insanity shall notify the defendant of the obligation to register pursuant to section 2 of this act¹.

(2) The Department of Corrections, the Administrative Office of the Courts, the Youth Justice Commission established pursuant to section 2 of P.L.1995, c. 284 (C.52:17B-170) and the Department of Human Services shall (a) establish procedures for notifying persons under their supervision of the obligation to register pursuant to this act and (b) establish procedures for registration by persons with the appropriate law enforcement agency who are under supervision in the community on probation, parole, furlough, work release or similar program outside the facility, and registration with the appropriate law enforcement agency of persons who are released from the facility in which they are confined without supervision.

(3) The Division of Motor Vehicles in the Department of Law and Public Safety shall provide notice of the obligation to register pursuant to this section in connection with each application for a license to operate a motor vehicle and each application for an identification card issued pursuant to section 2 of P.L.1980, c. 47 (C.39:3-29.3).

(4) The Attorney General shall cause notice of the obligation to register to be published in a manner reasonably calculated to reach the general public within 30 days of the effective date of this act.

Credits

L.1994, c. 133, § 3, eff. Oct. 31, 1994. Amended by L.1995, c. 280, § 19, eff. Dec. 15, 1995; L.2025, c. 35, § 16, eff. March 17, 2025.

Footnotes

¹ N.J.S.A. § 2C:7-2.

N. J. S. A. 2C:7-3, NJ ST 2C:7-3

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N.J.S.A. 2C:7-4

2C:7-4. Registration forms; contents; transmission of form

Currentness

a. Within 60 days of the effective date of this act, the Superintendent of State Police, with the approval of the Attorney General, shall prepare the form of registration statement as required in subsection b. of this section and shall provide such forms to each organized full-time municipal police department, the Department of Corrections, the Administrative Office of the Courts and the Department of Human Services. In addition, the Superintendent of State Police shall make such forms available to the Youth Justice Commission established pursuant to section 2 of P.L.1995, c. 284 (C.52:17B-170).

b. The form of registration required by this act shall include:

(1) A statement in writing signed by the person required to register acknowledging that the person has been advised of the duty to register and reregister imposed by this act and including the person's name, social security number, age, race, sex, date of birth, height, weight, hair and eye color, address of legal residence, address of any current temporary residence, date and place of employment; and any anticipated or current school enrollment, including but not limited to enrollment at or employment by any institution of higher education;

(2) Date and place of each conviction, adjudication or acquittal by reason of insanity, indictment number, fingerprints, and a brief description of the crime or crimes for which registration is required; and

(3) Any other information that the Attorney General deems necessary to assess risk of future commission of a crime, including criminal and corrections records, nonprivileged personnel, treatment, and abuse registry records, and evidentiary genetic markers when available.

c. Within three days of receipt of a registration pursuant to subsection c. of section 2 of this act,¹ the registering agency shall forward the statement and any other required information to the prosecutor who shall, as soon as practicable, transmit the form of registration to the Superintendent of State Police, and, if the registrant will reside in a different county, to the prosecutor of the county in which the person will reside. The prosecutor of the county in which the person will reside shall transmit the form of registration to the law enforcement agency responsible for the municipality in which the person will reside and other appropriate law enforcement agencies. The superintendent shall promptly transmit the conviction data and fingerprints to the Federal Bureau of Investigation.

d. The Superintendent of State Police shall maintain a central registry of registrations provided pursuant to this act.

Credits

L.1994, c. 133, § 4, eff. Oct. 31, 1994. Amended by L.1995, c. 280, § 20, eff. Dec. 15, 1995; L.2003, c. 34, § 2, eff. July 1, 2003; L.2025, c. 35, § 17, eff. March 17, 2025.

Footnotes

1 N.J.S.A. § 2C:7-2.

N. J. S. A. 2C:7-4, NJ ST 2C:7-4

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N.J.S.A. 2C:7-5

2C:7-5. Records; access; immunity

Currentness

a. Records maintained pursuant to P.L.1994, c. 133 (C.2C:7-1 et seq.) shall be open to any law enforcement agency in this State, the United States, or any other state and may be released to:

(1) the Division of Child Protection and Permanency in the Department of Children and Families for use in carrying out its responsibilities under law; and

(2) the Department of Human Services and county and municipal welfare agencies for exclusive use in placing homeless families and persons in emergency shelters, which include but are not limited to, hotels and motels.

Law enforcement agencies in this State shall be authorized to release relevant and necessary information regarding sex offenders to the public when the release of the information is necessary for public protection in accordance with the provisions of P.L.1994, c. 128 (C.2C:7-6 et seq.).

b. An elected public official, public employee, or public agency is immune from civil liability for damages for any discretionary decision to release relevant and necessary information, unless it is shown that the official, employee, or agency acted with gross negligence or in bad faith. The immunity provided under this section applies to the release of relevant information to other employees or officials or to the general public.

c. Nothing in P.L.1994, c. 133 shall be deemed to impose any liability upon or to give rise to a cause of action against any public official, public employee, or public agency for failing to release information as authorized in subsection d. of this section.

d. Nothing in this section shall be construed to prevent law enforcement officers from notifying members of the public exposed to danger of any persons that pose a danger under circumstances that are not enumerated in P.L.1994, c. 133.

Credits

L.1994, c. 133, § 5, eff. Oct. 31, 1994. Amended by L.2006, c. 6, § 1, eff. April 11, 2006; L.2006, c. 47, § 23, eff. July 1, 2006; L.2012, c. 16, § 5, eff. June 29, 2012; L.2013, c. 38, § 1, eff. April 1, 2013.

N. J. S. A. 2C:7-5, NJ ST 2C:7-5

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N.J.S.A. 2C:7-6

2C:7-6. Notification of community of intent of sex offender released from
correctional facility or adjudicated delinquent to reside in municipality

Currentness

Within 45 days after receiving notification pursuant to section 1 of P.L.1994, c. 135 (C.30:4-123.53a et seq.) that an inmate convicted of or adjudicated delinquent for a sex offense as defined in section 2 of P.L.1994, c. 133 (C.2C:7-1 et al.) is to be released from incarceration and after receipt of registration as required therein, the chief law enforcement officer of the municipality where the inmate intends to reside shall provide notification in accordance with the provisions of section 3 of this act¹ of that inmate's release to the community. If the municipality does not have a police force, the Superintendent of State Police shall provide notification.

Credits

L.1994, c. 128, § 1, eff. Oct. 31, 1994.

Footnotes

1 N.J.S.A. § 2C:7-8.

N. J. S. A. 2C:7-6, NJ ST 2C:7-6

Current with laws through L.2025, c. 80 and J.R. No. 10.

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N.J.S.A. 2C:7-7

2C:7-7. Chief law enforcement officer to provide notification to community

Currentness

After receipt of notification and registration pursuant to P.L.1994, c. 133 (C.2C:7-1 et al.) that a person required to register pursuant to that act intends to change his address, the chief law enforcement officer of the municipality to which the person is relocating shall provide notification of that relocation to the community pursuant to section 3 of this act.¹ If the municipality does not have a police force, the Superintendent of State Police shall provide notification.

Credits

L.1994, c. 128, § 2, eff. Oct. 31, 1994.

Footnotes

¹ N.J.S.A. § 2C:7-8.

N. J. S. A. 2C:7-7, NJ ST 2C:7-7

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N.J.S.A. 2C:7-8

2C:7-8. Notification guidelines; identification of factors relevant to risk of re-offense

Currentness

a. After consultation with members of the advisory council established pursuant to section 6 of this act¹ and within 60 days of the effective date, the Attorney General shall promulgate guidelines and procedures for the notification required pursuant to the provisions of this act. The guidelines shall identify factors relevant to risk of re-offense and shall provide for three levels of notification depending upon the degree of the risk of re-offense.

b. Factors relevant to risk of re-offense shall include, but not be limited to, the following:

(1) Conditions of release that minimize risk of re-offense, including but not limited to whether the offender is under supervision of probation or parole; receiving counseling, therapy or treatment; or residing in a home situation that provides guidance and supervision;

(2) Physical conditions that minimize risk of re-offense, including but not limited to advanced age or debilitating illness;

(3) Criminal history factors indicative of high risk of re-offense, including:

(a) Whether the offender's conduct was found to be characterized by repetitive and compulsive behavior;

(b) Whether the offender served the maximum term;

(c) Whether the offender committed the sex offense against a child;

(4) Other criminal history factors to be considered in determining risk, including:

(a) The relationship between the offender and the victim;

(b) Whether the offense involved the use of a weapon, violence, or infliction of serious bodily injury;

(c) The number, date and nature of prior offenses;

- (5) Whether psychological or psychiatric profiles indicate a risk of recidivism;
- (6) The offender's response to treatment;
- (7) Recent behavior, including behavior while confined or while under supervision in the community as well as behavior in the community following service of sentence; and
- (8) Recent threats against persons or expressions of intent to commit additional crimes.

c. The regulations shall provide for three levels of notification depending upon the risk of re-offense by the offender as follows:

- (1) If risk of re-offense is low, law enforcement agencies likely to encounter the person registered shall be notified;
- (2) If risk of re-offense is moderate, organizations in the community including schools, religious and youth organizations shall be notified in accordance with the Attorney General's guidelines, in addition to the notice required by paragraph (1) of this subsection;
- (3) If risk of re-offense is high, the public shall be notified through means in accordance with the Attorney General's guidelines designed to reach members of the public likely to encounter the person registered, in addition to the notice required by paragraphs (1) and (2) of this subsection.

d. In order to promote uniform application of the notification guidelines required by this section, the Attorney General shall develop procedures for evaluation of the risk of re-offense and implementation of community notification. These procedures shall require, but not be limited to, the following:

- (1) The county prosecutor of the county where the person was convicted and the county prosecutor of the county where the registered person will reside, together with any law enforcement officials that either deems appropriate, shall assess the risk of re-offense by the registered person;
- (2) The county prosecutor of the county in which the registered person will reside, after consultation with local law enforcement officials, shall determine the means of providing notification.

e. The Attorney General's guidelines shall provide for the manner in which records of notification provided pursuant to this act shall be maintained and disclosed.

Credits

L.1994, c. 128, § 3, eff. Oct. 31, 1994.

Footnotes

1 N.J.S.A. § 2C:7-11.

N. J. S. A. 2C:7-8, NJ ST 2C:7-8

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N.J.S.A. 2C:7-9

2C:7-9. Immunity from civil and criminal liability for providing or failing to provide relevant information

Currentness

Notwithstanding any other provision of law to the contrary, any person who provides or fails to provide information relevant to the procedures set forth in this act shall not be liable in any civil or criminal action. Nothing herein shall be deemed to grant any such immunity to any person for his willful or wanton act of commission or omission.

Credits

L.1994, c. 128, § 4, eff. Oct. 31, 1994.

N. J. S. A. 2C:7-9, NJ ST 2C:7-9

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N.J.S.A. 2C:7-10

2C:7-10. Notification concerning other dangerous circumstances unaffected

Currentness

Nothing in this act shall be construed to prevent law enforcement officers from providing community notification concerning any person who poses a danger under circumstances that are not provided for in this act.

Credits

L.1994, c. 128, § 5, eff. Oct. 31, 1994.

N. J. S. A. 2C:7-10, NJ ST 2C:7-10

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N.J.S.A. 2C:7-11

2C:7-11. Repealed by L.2013, c. 253, § 58, eff. Jan. 17, 2014

Currentness

N. J. S. A. 2C:7-11, NJ ST 2C:7-11

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N.J.S.A. 2C:7-12

2C:7-12. Legislative findings and declarations

Currentness

The Legislature finds and declares that the public safety will be enhanced by making information about certain sex offenders contained in the sex offender central registry established pursuant to section 4 of P.L.1994, c. 133 (C.2C:7-4) available to the public through the Internet. Knowledge of whether a person is a convicted sex offender at risk of re-offense could be a significant factor in protecting oneself and one's family members, or those in care of a group or community organization, from recidivist acts by the offender. The technology afforded by the Internet would make this information readily accessible to parents and private entities, enabling them to undertake appropriate remedial precautions to prevent or avoid placing potential victims at risk. Public access to registry information is intended solely for the protection of the public, and is not intended to impose additional criminal punishment upon any convicted sex offender.

The Legislature further finds and declares that, in some instances, countervailing interests support a legislative determination to exclude from the Internet registry the registration information of certain sex offenders. For example, the interest in facilitating rehabilitation of juveniles who have been adjudicated delinquent for the commission of one sex offense, but who do not present a relatively high risk of re-offense, justifies the decision to limit public access to information about such juveniles through the Internet. Other instances where the Legislature has determined that making sex offender registry information available to the general public through the Internet would not necessarily serve the public safety purposes of the law include moderate risk offenders whose sole sex offense involved incest or consensual sex. However, in such cases, the legislature deems it appropriate and consistent with the public safety purposes of the law to provide a process that permits inclusion of information about these individuals in the Internet registry where public access would be warranted, based on the relative risk posed by the particular offender.

Credits

L.2001, c. 167, § 1, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-12, NJ ST 2C:7-12

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N.J.S.A. 2C:7-13

2C:7-13. Information in central registry to be made available on the Internet

Currentness

a. Pursuant to the provisions of this section, the Superintendent of State Police shall develop and maintain a system for making certain information in the central registry established pursuant to subsection d. of section 4 of P.L.1994, c. 133 (C.2C:7-4) publicly available by means of electronic Internet technology.

b. The public may, without limitation, obtain access to the Internet registry to view an individual registration record, any part of, or the entire Internet registry concerning all offenders:

(1) whose risk of re-offense is high;

(2) whose risk of re-offense is moderate or low and whose conduct was found to be characterized by a pattern of repetitive, compulsive behavior pursuant to the provisions of N.J.S.2C:47-3; or

(3) for whom the court has ordered notification in accordance with paragraph (3) of subsection c. of section 3 of P.L.1994, c. 128 (C.2C:7-8), regardless of the age of the offender.

c. Except as provided in subsection d. of this section, the public may, without limitation, obtain access to the Internet registry to view an individual registration record, any part of, or the entire Internet registry concerning offenders whose risk of re-offense is moderate and for whom the court has ordered notification in accordance with paragraph (2) of subsection c. of section 3 of P.L.1994, c. 128 (C.2C:7-8).

d. The individual registration record of an offender whose risk of re-offense has been determined to be moderate and for whom the court has ordered notification in accordance with paragraph (2) of subsection c. of section 3 of P.L.1994, c. 128 (C.2C:7-8) shall not be made available to the public on the Internet registry if the sole sex offense committed by the offender which renders him subject to the requirements of P.L.1994, c. 133 (C.2C:7-1 et seq.) is one of the following:

(1) An adjudication of delinquency for any sex offense as defined in subsection b. of section 2 of P.L.1994, c. 133 (C.2C:7-2);

(2) A conviction or acquittal by reason of insanity for a violation of N.J.S.2C:14-2 or N.J.S.2C:14-3 under circumstances in which the offender was related to the victim by blood or affinity to the third degree or was a resource family parent, a guardian, or stood in loco parentis within the household; or

(3) A conviction or acquittal by reason of insanity for a violation of N.J.S.2C:14-2 or N.J.S.2C:14-3 in any case in which the victim assented to the commission of the offense but by reason of age was not capable of giving lawful consent.

For purposes of this subsection, “sole sex offense” means a single conviction, adjudication of guilty or acquittal by reason of insanity, as the case may be, for a sex offense which involved no more than one victim, no more than one occurrence or, in the case of an offense which meets the criteria of paragraph (2) of this subsection, members of no more than a single household.

e. Notwithstanding the provisions of paragraph d. of this subsection, the individual registration record of an offender to whom an exception enumerated in paragraph (1), (2) or (3) of subsection d. of this section applies shall be made available to the public on the Internet registry if the offender's conduct was characterized by a pattern of repetitive, compulsive behavior, or the State establishes by clear and convincing evidence that, given the particular facts and circumstances of the offense and the characteristics and propensities of the offender, the risk to the general public posed by the offender is substantially similar to that posed by offenders whose risk of re-offense is moderate and who do not qualify under the enumerated exceptions.

f. Unless the offender's conduct was characterized by a pattern of repetitive, compulsive behavior, the individual registration records of offenders whose risk of re-offense is low or of offenders whose risk of re-offense is moderate but for whom the court has not ordered notification in accordance with paragraph (2) of subsection c. of section 3 of P.L.1994, c. 128 (C.2C:7-8) shall not be available to the public on the Internet registry.

g. The information concerning a registered offender to be made publicly available on the Internet shall include: the offender's name and any aliases the offender has used or under which the offender may be or may have been known; any sex offense as defined in subsection b. of section 2 of P.L.1994, c. 133 (C.2C:7-2) for which the offender was convicted, adjudicated delinquent or acquitted by reason of insanity, as the case may be; the date and location of disposition; a brief description of any such offense, including the victim's gender and indication of whether the victim was less than 18 years old or less than 13 years old; a general description of the offender's modus operandi, if any; the determination of whether the risk of re-offense by the offender is moderate or high; the offender's age, race, sex, date of birth, height, weight, hair, eye color and any distinguishing scars or tattoos; a photograph of the offender and the date on which the photograph was entered into the registry; the make, model, color, year and license plate number of any vehicle operated by the offender; and the street address, zip code, municipality and county in which the offender resides.

Credits

L.2001, c. 167, § 2, eff. July 23, 2001, operative Jan. 1, 2002. Amended by L.2004, c. 130, § 12, eff. Aug. 27, 2004; L.2004, c. 151, § 1, eff. Sept. 14, 2004; L.2013, c. 214, § 2, eff. July 1, 2014.

N. J. S. A. 2C:7-13, NJ ST 2C:7-13

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N.J.S.A. 2C:7-14

2C:7-14. Duties of the Attorney General

Currentness

The Attorney General shall:

- a. Ensure that the Internet registry contains warnings that any person who uses the information contained therein to threaten, intimidate or harass another, or who otherwise misuses that information may be criminally prosecuted;
- b. Ensure that the Internet registry contains an explanation of its limitations, including statements advising that a positive identification of an offender whose registration record has been made available may be confirmed only by fingerprints; that some information contained in the registry may be outdated or inaccurate; and that the Internet registry is not a comprehensive listing of every person who has ever committed a sex offense in New Jersey;
- c. Strive to ensure the information contained in the Internet registry is accurate, and that the data therein is revised and updated as appropriate in a timely and efficient manner; and
- d. Provide in the Internet registry information designed to inform and educate the public about sex offenders and the operation of Megan's Law, as well as pertinent and appropriate information concerning crime prevention and personal safety, with appropriate links to relevant web sites operated by the State of New Jersey.

Credits

L.2001, c. 167, § 3, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-14, NJ ST 2C:7-14

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N.J.S.A. 2C:7-15

2C:7-15. Failure to investigate or disclose any information from the registry

Currentness

No action shall be brought against any person for failure to investigate or disclose any information from the registry that is compiled or made available to the citizens of this State pursuant to P.L.2001, c. 167 (C.2C:7-12 et seq.).

Credits

L.2001, c. 167, § 4, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-15, NJ ST 2C:7-15

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N.J.S.A. 2C:7-16

2C:7-16. Use of disclosed information

Currentness

a. Any information disclosed pursuant to this act may be used in any manner by any person or by any public, governmental or private entity, organization or official, or any agent thereof, for any lawful purpose consistent with the enhancement of public safety.

b. Any person who uses information disclosed pursuant to this act to commit a crime shall be guilty of a crime of the third degree. Any person who uses information disclosed pursuant to this act to commit a disorderly persons or petty disorderly persons offense shall be guilty of a disorderly persons offense and shall be fined not less than \$500 or more than \$1,000, in addition to any other penalty or fine imposed.

c. Except as authorized under any other provision of law, use of any of the information disclosed pursuant to this act for the purpose of applying for, obtaining, or denying any of the following, is prohibited:

(1) Health insurance;

(2) Insurance;

(3) Loans;

(4) Credit;

(5) Education, scholarships, or fellowships;

(6) Benefits, privileges, or services provided by any business establishment, unless for a purpose consistent with the enhancement of public safety; or

(7) Housing or accommodations.

d. Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the information disclosed pursuant to this act, the Attorney General, or any county or municipal prosecutor having

jurisdiction, or any person aggrieved by the misuse of that information is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for the pattern or practice of misuse. The foregoing remedies shall be independent of and in addition to any other remedies or procedures that may be available under other provisions of law.

e. Evidence that a person obtained information about an offender from the Internet registry within one year prior to committing a criminal offense against that offender shall give rise to an inference that the person used information in violation of subsection b. of this section.

Credits

L.2001, c. 167, § 5, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-16, NJ ST 2C:7-16

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N.J.S.A. 2C:7-17

2C:7-17. Provisions are severable

Currentness

The provisions of this act shall be deemed to be severable, and if any phrase, clause, sentence, word or provision of this act is declared to be unconstitutional, invalid or inoperative in whole or in part, or the applicability thereof to any person is held invalid, by a court of competent jurisdiction, the remainder of this act shall not thereby be deemed to be unconstitutional, invalid or inoperative and, to the extent it is not declared unconstitutional, invalid or inoperative, shall be effectuated and enforced.

Credits

L.2001, c. 167, § 6, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-17, NJ ST 2C:7-17

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N.J.S.A. 2C:7-18

2C:7-18. Internet Registry Advisory Council

Currentness

An Internet Registry Advisory Council is established to consult with and provide recommendations to the Attorney General concerning the making of sex offender registration records available to the public on the Internet. The council shall consist of nine persons who, by experience or training, have a personal interest or professional expertise in law enforcement, crime prevention, victim advocacy, criminology, psychology, parole, public education or community relations. The members of the council shall be appointed in the following manner: three shall be appointed by the Governor, of whom no more than two shall be of the same political party; three shall be appointed by the President of the Senate, of whom no more than two shall be of the same political party; and three shall be appointed by the Speaker of the General Assembly, of whom no more than two shall be of the same political party. Any vacancies occurring in the membership shall be filled in the same manner as the original appointments. The council shall hold at least two meetings per year to review the implementation and operations of the Internet registry.

Credits

L.2001, c. 167, § 7, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-18, NJ ST 2C:7-18

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N.J.S.A. 2C:7-19

2C:7-19. Short title; Megan's Law

Currentness

This act and the system of registration and community notification provided pursuant to P.L.1994, c. 133 and P.L.1994, c. 128 (C.2C:7-1 through 11) shall be known and may be cited as “Megan's Law.”

Credits

L.2001, c. 167, § 8, eff. July 23, 2001, operative Jan. 1, 2002.

N. J. S. A. 2C:7-19, NJ ST 2C:7-19

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N.J.S.A. 2C:7-20

2C:7-20. Legislative findings and declarations; implementation and consistent application of Megan's Law across the State

Currentness

The Legislature finds and declares that New Jersey enacted the groundbreaking legislation known as Megan's Law in 1994 to warn citizens that a dangerous sex offender had moved into their neighborhood. At that time more than a decade ago, the law created the most comprehensive system of sex offender registration and community notification in the nation. Subsequently, the Legislature enacted the law establishing the sex offender Internet registry, utilizing modern technology to afford even greater access to information concerning dangerous sex offenders and make that information readily accessible to the public.

Recently, however, questions have been raised concerning the implementation of Megan's Law, and whether the law is not consistently applied in the 21 counties. Published reports indicate that there are great variations among the counties in the number of sex offenders whose registration information is published on the Internet. In addition, many municipalities have limited where sex offenders may reside, or banned residency by them altogether. It also has been observed that sex offenders seem to be relocating at a higher rate to certain areas of the State, suggesting that the law is being implemented differently in some areas. Since the evidence indicates that Megan's Law is being applied inconsistently across the State, the Legislature finds that a study should be undertaken to identify the causes of these inconsistencies and to recommend procedures to make the law's application more uniform and equitable.

Credits

L.2007, c. 227, § 1, eff. April 1, 2008.

N. J. S. A. 2C:7-20, NJ ST 2C:7-20

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N.J.S.A. 2C:7-21

2C:7-21. Comprehensive study

Currentness

a. The Violence Institute of the University of Medicine and Dentistry of New Jersey shall undertake a comprehensive study of the implementation and application of Megan's Law. Specifically, the institute shall examine the implementation and application of P.L.1994, c. 133 (C.2C:7-1 et al.), which requires registration by sex offenders and P.L.1994, c. 128 (C.2C:7-6 et seq.), which requires community notification for certain sex offenders.

b. The study shall evaluate the current procedures utilized by the county prosecutors and the courts in determining a sex offender's tier designation and implementing community notification. In evaluating these procedures, the study shall examine the disposition of all sex offenders who have registered and have been assigned a tier rating since the enactment of Megan's Law. The study shall make recommendations regarding the standardization of procedures for evaluating the risk of re-offense, assigning tier designations, implementing community notification, and ensuring uniform application of the Attorney General's guidelines by law enforcement in providing community notification. In addition, the study shall examine the use of the Internet registry in providing information to the public about sex offenders. Specifically, the study shall review the implementation of P.L.2001, c. 167 (C.2C:7-12 et seq.) and determine whether the Internet registry has accomplished its mission to inform the public of dangerous sex offenders, or if geographic inconsistencies have mitigated its effectiveness. Finally, the study shall examine whether a central agency should be charged with the administration of Megan's Law and the determination as to which offenders appear on the Internet registry.

Credits

L.2007, c. 227, § 2, eff. April 1, 2008.

N. J. S. A. 2C:7-21, NJ ST 2C:7-21

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N.J.S.A. 2C:7-22

2C:7-22. “Excluded sex offender” defined; “youth serving organization” defined

Currentness

As used in this act:

“Excluded sex offender” means a person who has been convicted, adjudicated delinquent or found not guilty by reason of insanity for the commission of a sex offense, as defined in subsection b. of section 2 of P.L.1994, c. 133 (C.2C:7-2), which involves a victim under 18 years of age.

“Youth serving organization” means a sports team, league, athletic association or any other corporation, association or organization, excluding public and nonpublic schools, which provides recreational, educational, cultural, social, charitable or other activities or services to persons under 18 years of age.

Credits

L.2009, c. 139, § 1, eff. Oct. 19, 2009.

N. J. S. A. 2C:7-22, NJ ST 2C:7-22

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N.J.S.A. 2C:7-23

2C:7-23. Prohibitions upon sex offender participation in any youth serving organization; exceptions

Currentness

- a. Except as otherwise provided in subsection e. of this section, it shall be unlawful for an excluded sex offender to hold a position or otherwise participate, in a paid or unpaid capacity, in a youth serving organization.
- b. A person who violates subsection a. of this section is guilty of a crime of the third degree.
- c. A person who knowingly hires, engages or appoints an excluded sex offender to serve in a youth serving organization in violation of subsection a. of this section is guilty of a crime of the fourth degree.
- d. The provisions of this act shall not apply to participation by an excluded sex offender under 18 years of age in a youth serving organization which provides rehabilitative or other services to juvenile sex offenders.
- e. It shall not be a violation of subsection a. of this section for an excluded sex offender to serve in a youth serving organization if the excluded sex offender is under Parole Board supervision and the Parole Board has given express written permission for the excluded sex offender to hold a position or otherwise participate in that particular youth serving organization.
- f. Nothing herein shall be construed to authorize an excluded sex offender, as defined in section 1 of P.L.2009, c. 139 (C.2C:7-22), to hold a position or otherwise participate, in a paid or unpaid capacity, in a youth serving organization or any other entity from which the excluded sex offender is otherwise statutorily disqualified.

Credits

L.2009, c. 139, § 2, eff. Oct. 19, 2009.

N. J. S. A. 2C:7-23, NJ ST 2C:7-23

Current with laws through L.2025, c. 80 and J.R. No. 10.

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Chapter 29. Law Enforcement
Article 11a. Sex Offender Registration and Notification

N. M. S. A. 1978, Ch. 29, Art. 11A, Refs & Annos
Currentness

NMSA 1978, Ch. 29, Art. 11A, Refs & Annos, NM ST Ch. 29, Art. 11A, Refs & Annos
Current through chapters effective July 1, 2025 of the 2025 First Regular Session of the 57th Legislature (2025). The 2025 First Regular Session convened on January 21, 2025, and adjourned on March 22, 2025.

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Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-1

§ 29-11A-1. Short title

Currentness

Chapter 29, Article 11A NMSA 1978 may be cited as the “Sex Offender Registration and Notification Act”.

Credits

L. 1995, Ch. 106, § 1, eff. July 1, 1995; L. 1999, Ch. 19, § 1, eff. July 1, 1999.

NMSA 1978, § 29-11A-1, NM ST § 29-11A-1

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Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-2

§ 29-11A-2. Findings; purpose

Currentness

A. The legislature finds that:

- (1) sex offenders pose a significant risk of recidivism; and
- (2) the efforts of law enforcement agencies to protect their communities from sex offenders are impaired by the lack of information available concerning convicted sex offenders who live within the agencies' jurisdictions.

B. The purpose of the Sex Offender Registration and Notification Act is to assist law enforcement agencies' efforts to protect their communities by:

- (1) requiring sex offenders who are residents of New Mexico to register with the county sheriff of the county in which the sex offender resides;
- (2) requiring sex offenders who are residents in other states, but who are employed in New Mexico or who attend school in New Mexico, to register with the county sheriff of the county in which the sex offender works or attends school;
- (3) requiring the establishment of a central registry for sex offenders; and
- (4) providing public access to information regarding certain registered sex offenders.

Credits

L. 1995, Ch. 106, § 2, eff. July 1, 1995; L. 1999, Ch. 19, § 2, eff. July 1, 1999.

NMSA 1978, § 29-11A-2, NM ST § 29-11A-2

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Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-3

§ 29-11A-3. Definitions

Currentness

As used in the Sex Offender Registration and Notification Act:

- A. “business day” means a day that is not a Saturday, a Sunday or a state holiday;
- B. “conviction” means a conviction in any court of competent jurisdiction and includes a deferred sentence, but does not include a conditional discharge;
- C. “department” means the department of public safety;
- D. “institution of higher education” means a:
 - (1) private or public post-secondary educational institution;
 - (2) trade school; or
 - (3) professional school;
- E. “habitually lives” means any place where a sex offender lives for at least thirty days in any three-hundred-sixty-five-day period;
- F. “out-of-state registrant” means any person who establishes a residence in New Mexico while the person is required to register as a sex offender in another state or territory;
- G. “registration requirement” means any requirement set forth in Section 29-11A-4 NMSA 1978 that requires a sex offender to register; provide information, including a DNA sample; renew, revise or change registration information; or provide written notice or disclosure regarding the sex offender's status as a sex offender;
- H. “sex offender” means a person who:

- (1) is a resident of New Mexico who is convicted of a sex offense pursuant to state, federal, tribal or military law;
- (2) changes residence to New Mexico, when that person has been convicted of a sex offense pursuant to state, federal, tribal or military law;
- (3) does not have an established residence in New Mexico, but lives in a shelter, halfway house or transitional living facility or stays in multiple locations in New Mexico and who has been convicted of a sex offense pursuant to state, federal, tribal or military law; or
- (4) is a resident of another state and who has been convicted of a sex offense pursuant to state, federal, tribal or military law, but who is:
 - (a) employed full time or part time in New Mexico for a period of time exceeding fourteen days or for an aggregate period of time exceeding thirty days during any calendar year, including any employment or vocation, whether financially compensated, volunteered or for the purpose of government or educational benefit; or
 - (b) enrolled on a full-time or part-time basis in a private or public school or an institution of higher education in New Mexico;

I. “sex offense” means any of the following offenses or their equivalents in any other jurisdiction:

- (1) aggravated criminal sexual penetration or criminal sexual penetration in the first, second, third or fourth degree, as provided in Section 30-9-11 NMSA 1978;
- (2) criminal sexual contact in the fourth degree, as provided in Section 30-9-12 NMSA 1978;
- (3) criminal sexual contact of a minor in the second, third or fourth degree, as provided in Section 30-9-13 NMSA 1978;
- (4) sexual exploitation of children, as provided in Section 30-6A-3 NMSA 1978;
- (5) sexual exploitation of children by prostitution, as provided in Section 30-6A-4 NMSA 1978;
- (6) kidnapping, as provided in Section 30-4-1 NMSA 1978, when committed with the intent to inflict a sexual offense;
- (7) false imprisonment, as provided in Section 30-4-3 NMSA 1978, when committed with the intent to inflict a sexual offense;
- (8) aggravated indecent exposure, as provided in Section 30-9-14.3 NMSA 1978;

(9) enticement of child, as provided in Section 30-9-1 NMSA 1978;

(10) incest, as provided in Section 30-10-3 NMSA 1978, when the victim is younger than eighteen years of age;

(11) child solicitation by electronic communication device, as provided in Section 30-37-3.2 NMSA 1978, for convictions occurring on or after July 1, 2013;

(12) solicitation to commit criminal sexual contact of a minor in the second, third or fourth degree, as provided in Sections 30-9-13 and 30-28-3 NMSA 1978; or

(13) attempt to commit any of the sex offenses set forth in Paragraphs (1) through (11) of this subsection, as provided in Section 30-28-1 NMSA 1978; and

J. “social networking site” means an internet web site that facilitates online social interaction by offering a mechanism for communication with other users, where such users are likely to include a substantial number of minors under the age of sixteen, and allowing users, through the creation of web pages, profiles or other means, to provide information about themselves that is available to the public or to other users.

Credits

L. 1995, Ch. 106, § 3, eff. July 1, 1995. Amended by L. 1999, Ch. 19, § 3, eff. July 1, 1999; L. 2000, Ch. 8, § 1, eff. July 1, 2000; L. 2003, Sp.Sess., Ch. 1, § 10; L. 2005, Ch. 279, § 1, eff. July 1, 2005; L. 2007, Ch. 68, § 1, eff. July 1, 2007; L. 2007, Ch. 69, § 5, eff. July 1, 2007; L. 2013, Ch. 152, § 1, eff. July 1, 2013.

NMSA 1978, § 29-11A-3, NM ST § 29-11A-3

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Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-4

§ 29-11A-4. Registration of sex offenders; information required; verification; criminal penalty for noncompliance

Currentness

A. A sex offender residing in this state shall register with the county sheriff for the county in which the sex offender resides.

B. A sex offender who is a resident of New Mexico shall initially register with the county sheriff no later than five business days after being released from the custody of the corrections department, a municipal or county jail or a federal, military or tribal correctional facility or detention center or being placed on probation or parole. A sex offender who changes residence to New Mexico shall register with the county sheriff no later than five business days after arrival in this state. When a sex offender initially registers with the county sheriff, the sex offender shall provide the following registration information:

- (1) the sex offender's legal name and any other names or aliases that the sex offender is using or has used;
- (2) the sex offender's date of birth;
- (3) the sex offender's social security number;
- (4) the sex offender's current physical and mailing address and the address of every place where the sex offender habitually lives;
- (5) the sex offender's place of employment;
- (6) the sex offense for which the sex offender was convicted;
- (7) the date and place of the sex offense conviction;
- (8) the sex offender's names, email addresses and monikers and other self-identifiers used on social networking sites, to be used only for law enforcement purposes;
- (9) the sex offender's landline and cellular telephone numbers and any other telephone numbers primarily used by the sex offender;

(10) the sex offender's professional licenses;

(11) the license plate or other identifier and the description of any vehicle owned or primarily operated by the sex offender, including aircraft and watercraft;

(12) the name and address of any school or institution of higher education that the sex offender is attending; and

(13) copies of the sex offender's passport and immigration documents.

C. A sex offender who is a resident of another state but who is employed in New Mexico or attending public or private school or an institution of higher education in New Mexico shall register with the county sheriff for the county in which the sex offender is working or attending school or an institution of higher education.

D. A sex offender who is a resident of another state but who is employed in New Mexico or attending public or private school or an institution of higher education in New Mexico shall register with the county sheriff no later than five business days after beginning work or school. When the sex offender registers with the county sheriff, the sex offender shall provide the following registration information:

(1) the sex offender's legal name and any other names or aliases that the sex offender is using or has used;

(2) the sex offender's date of birth;

(3) the sex offender's social security number;

(4) the sex offender's current physical and mailing address in the sex offender's state of residence and, if applicable, the address of the sex offender's place of lodging in New Mexico while working or attending school or an institution of higher education;

(5) the sex offender's place of employment or the name of the school the sex offender is attending;

(6) the sex offense for which the sex offender was convicted; and

(7) the date and place of the sex offense conviction.

E. When a sex offender registers with a county sheriff, the sheriff shall obtain:

(1) a photograph of the sex offender and a complete set of the sex offender's fingerprints and a palm print;

(2) a physical description, including a description of any tattoos, scars or other distinguishing features on the sex offender's body that would assist in identifying the sex offender; and

(3) a DNA sample for inclusion in the sex offender DNA identification system pursuant to the provisions of the DNA Identification Act [Chapter 29, Article 16 NMSA 1978].

F. When a sex offender who is registered changes any information required under this section, the sex offender shall send written notice of the change on a form approved by the department to the county sheriff no later than five business days after the change occurs.

G. When a sex offender who is registered changes residence to a new county in New Mexico, the sex offender shall register with the county sheriff of the new county no later than five business days after establishing the new residence. The sex offender shall also send written notice of the change in residence to the county sheriff with whom the sex offender last registered no later than five business days after establishing the new residence.

H. When a sex offender who is registered or required to register is homeless or does not have an established residence, but lives in a shelter, halfway house or transitional living facility or stays in multiple locations in New Mexico, the sex offender shall register each address or temporary location with the county sheriff for each county in which the sex offender is living or temporarily located. The sex offender shall register no later than five business days after a change in living arrangements or temporary location.

I. When a sex offender who is registered or required to register is employed, begins a vocation or is enrolled as a student at an institution of higher education in New Mexico, the sex offender shall disclose the sex offender's status as a sex offender in writing to the county sheriff for the county in which the institution of higher education is located, the law enforcement entity responsible for the institution of higher education and the registrar for the institution of higher education no later than five business days after beginning employment, beginning a vocation or enrolling at the institution of higher education. The sex offender shall also send written notice of any change regarding employment, vocation or enrollment status at an institution of higher education to the county sheriff, the law enforcement entity and the registrar no later than five business days after the change in employment, vocation or enrollment status.

J. When a sex offender who is registered or required to register is employed or is enrolled as a student at a public or private school in New Mexico, the sex offender shall disclose the sex offender's status as a sex offender in writing to the county sheriff for the county in which the school is located and to the principal of the school no later than five business days after beginning employment or enrolling at the school. The sex offender shall also send written notice of any change regarding employment or enrollment status at a school to the county sheriff and the principal no later than five business days after the change in employment or enrollment status.

K. When a sex offender who is registered or required to register is employed, begins a vocation or volunteers services, regardless of whether the sex offender receives payment or other compensation, the sex offender shall disclose the sex offender's status as a sex offender in writing to the sex offender's employer, supervisor or person similarly situated. The written disclosure shall be made immediately upon beginning employment, vocation or volunteer service.

L. Following initial registration pursuant to the provisions of this section:

(1) a sex offender required to register pursuant to the provisions of Subsection D of Section 29-11A-5 NMSA 1978 shall verify registration information with the county sheriff as provided in Subsection N of this section not less than once in each ninety-day period following the date of the sex offender's initial registration for the remainder of the sex offender's natural life;

(2) a sex offender required to register pursuant to the provisions of Subsection E of Section 29-11A-5 NMSA 1978 shall verify registration information with the county sheriff as provided in Subsection N of this section once every six months for a period of ten years; and

(3) an out-of-state registrant shall verify registration information with the county sheriff for whichever is the longer of:

(a) the duration of time remaining in the registrant's convicting jurisdiction and at the same frequency as required in that state or territory, but no less than once every six months; or

(b) the duration of time remaining that would be required for the equivalent offense in New Mexico.

M. Notwithstanding the provisions of Paragraph (2) of Subsection L of this section, if a sex offender is convicted a second or subsequent time for a sex offense set forth in Subsection E of Section 29-11A-5 NMSA 1978, the sex offender shall verify registration information with the county sheriff as provided in Subsection N of this section not less than once in each ninety-day period following the date of the sex offender's initial registration for the remainder of the sex offender's natural life.

N. At least fifteen days prior to the time a sex offender is required to verify registration information, the department shall send a verification form to the sex offender, by first class mail, containing the sex offender's current registration information and a notice of the date that the sex offender's next verification is due. The sex offender shall appear in person at a location designated by the department to verify the information contained on the form, to change the information as necessary and to sign a statement under oath that the information is true and correct. The department may photograph the sex offender at that time if the sex offender's appearance is significantly different from the photograph already contained in the sex offender's file. If a sex offender does not receive a verification form before the time that the sex offender is required to verify registration pursuant to Subsection L of this section, the sex offender shall appear at a location designated by the department to verify registration information as required by this section.

O. The department shall establish a secure system that will permit a sex offender to notify the department electronically of any change in registration information.

P. A sex offender who willfully or knowingly fails to comply with the registration or verification requirements set forth in this section is guilty of a fourth degree felony and shall be sentenced pursuant to the provisions of Section 31-18-15 NMSA 1978. A sex offender who willfully or knowingly fails to comply with the registration or verification requirements set forth in this section after a first or subsequent conviction for a violation pursuant to this section is guilty of a third degree felony and shall be sentenced pursuant to the provisions of Section 31-18-15 NMSA 1978. The willful failure to comply with any registration or verification requirement set forth in this section shall be deemed part of a continuing transaction or occurrence. A conviction pursuant to this subsection shall not be considered a felony for purposes of the imposition of sentencing enhancements pursuant to the provisions of Section 31-18-17 NMSA 1978.

Q. A sex offender who willfully or knowingly provides false information when complying with the registration or verification requirements set forth in this section is guilty of a fourth degree felony and shall be sentenced pursuant to the provisions of Section 31-18-15 NMSA 1978. A sex offender who willfully or knowingly provides false information when complying with the registration or verification requirements set forth in this section after a first or subsequent conviction for a violation pursuant to this section is guilty of a third degree felony and shall be sentenced pursuant to the provisions of Section 31-18-15 NMSA 1978. The willful providing by a sex offender of false information with respect to the registration or verification requirements set forth in this section shall be deemed part of a continuing transaction or occurrence. A conviction pursuant to this subsection shall not be considered a felony for purposes of the imposition of sentencing enhancements pursuant to the provisions of Section 31-18-17 NMSA 1978.

Credits

L. 1995, Ch. 106, § 4, eff. July 1, 1995; L. 1999, Ch. 19, § 4, eff. July 1, 1999; L. 2000, Ch. 8, § 2, eff. July 1, 2000; L. 2005, Ch. 279, § 2, eff. July 1, 2005; L. 2013, Ch. 152, § 2, eff. July 1, 2013.

NMSA 1978, § 29-11A-4, NM ST § 29-11A-4

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N. M. S. A. 1978, § 29-11A-4.1

§ 29-11A-4.1. Procedures when a sex offender moves from New Mexico to another state

Currentness

A. If a sex offender intends to move from New Mexico to another state, no later than thirty days prior to moving to the other state, he shall:

- (1) notify the county sheriff of the county he resides in that he is moving to the other state; and
- (2) provide the county sheriff with a written notice that identifies the state to which the sex offender is moving.

B. Within five days of receiving a sex offender's written notice of intent to move to another state, the county sheriff shall transmit that information to the department of public safety. Within five days of receiving that information from a county sheriff, the department shall contact the state agency responsible for registering sex offenders in the state to which the sex offender is moving. The department shall provide that state agency with registration information regarding the sex offender. The department shall also obtain information regarding registration requirements for sex offenders in the state to which the sex offender is moving. The department shall provide the sex offender with written notification of the registration requirements in the state to which the sex offender is moving.

C. A sex offender who willfully fails to comply with the requirements set forth in this section is guilty of a fourth degree felony and shall be sentenced pursuant to the provisions of Section 31-18-15 NMSA 1978.

Credits

L. 2000, Ch. 8, § 6, eff. July 1, 2000; L. 2005, Ch. 279, § 3, eff. July 1, 2005.

NMSA 1978, § 29-11A-4.1, NM ST § 29-11A-4.1

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N. M. S. A. 1978, § 29-11A-5

§ 29-11A-5. Local registry; central registry; administration by department
of public safety; participation in the national sex offender registry; rules

Currentness

A. A county sheriff shall maintain a local registry of sex offenders in the sheriff's jurisdiction required to register pursuant to the provisions of the Sex Offender Registration and Notification Act.

B. The county sheriff shall forward:

(1) registration information obtained from sex offenders to the department of public safety. The initial registration information and any new registration information subsequently obtained from a sex offender shall be forwarded by the county sheriff no later than ten working days after the information is obtained from a sex offender. If the department of public safety receives information regarding a sex offender from a governmental entity other than a county sheriff, the department shall send that information to the sheriff for the county in which the sex offender resides; and

(2) samples of DNA obtained from sex offenders to the administrative center for the sex offender DNA identification system pursuant to the provisions of the DNA Identification Act [Chapter 29, Article 16 NMSA 1978].

C. The department of public safety shall maintain a central registry of sex offenders required to register pursuant to the provisions of the Sex Offender Registration and Notification Act. The department shall participate in the national sex offender registry administered by the United States department of justice. The department shall send conviction information and fingerprints for all sex offenders registered in New Mexico to the national sex offender registry administered by the United States department of justice and to the federal bureau of investigation.

D. The department of public safety shall retain registration information regarding a sex offender convicted for any of the following sex offenses for the entirety of the sex offender's natural life:

(1) aggravated criminal sexual penetration or criminal sexual penetration in the first, second or third degree, as provided in Section 30-9-11 NMSA 1978;

(2) criminal sexual contact of a minor in the second, third or fourth degree, as provided in Section 30-9-13 NMSA 1978;

(3) sexual exploitation of children, as provided in Section 30-6A-3 NMSA 1978;

(4) kidnapping, as provided in Section 30-4-1 NMSA 1978, when the victim is less than eighteen years of age and the offender is not a parent of the victim;

(5) criminal sexual contact in the fourth degree, as provided in Section 30-9-12 NMSA 1978; or

(6) attempt to commit any of the sex offenses set forth in Paragraphs (1) through (5) of this subsection, as provided in Section 30-28-1 NMSA 1978.

E. The department of public safety shall retain registration information regarding a sex offender convicted for the following offenses for a period of ten years following the sex offender's conviction, release from prison or release from probation or parole, whichever occurs later:

(1) criminal sexual penetration in the fourth degree, as provided in Section 30-9-11 NMSA 1978;

(2) sexual exploitation of children by prostitution, as provided in Section 30-6A-4 NMSA 1978;

(3) false imprisonment, as provided in Section 30-4-3 NMSA 1978, when the victim is less than eighteen years of age and the offender is not a parent of the victim;

(4) aggravated indecent exposure, as provided in Section 30-9-14.3 NMSA 1978;

(5) enticement of child, as provided in Section 30-9-1 NMSA 1978;

(6) incest, as provided in Section 30-10-3 NMSA 1978, when the victim is less than eighteen years of age;

(7) solicitation to commit criminal sexual contact of a minor in the second, third or fourth degree, as provided in Sections 30-9-13 and 30-28-3 NMSA 1978;

(8) child solicitation by electronic communication device, as provided in Section 30-37-3.2 NMSA 1978; or

(9) attempt to commit any of the sex offenses set forth in Paragraphs (1) through (6) of this subsection, as provided in Section 30-28-1 NMSA 1978.

F. Notwithstanding the provisions of Subsection E of this section, if a sex offender is convicted a second or subsequent time for a sex offense set forth in that subsection, the department of public safety shall retain information regarding the sex offender for the entirety of the sex offender's natural life.

G. The department of public safety shall adopt rules necessary to carry out the provisions of the Sex Offender Registration and Notification Act. Rules necessary for the collection of DNA samples and the administration and operation of the sex offender DNA identification system shall be adopted by the DNA identification system oversight committee pursuant to the provisions of the DNA Identification Act.

Credits

L. 1995, Ch. 106, § 5, eff. July 1, 1995. Amended by L. 1999, Ch. 19, § 5, eff. July 1, 1999; L. 2000, Ch. 8, § 3, eff. July 1, 2000; L. 2003, Sp.Sess., Ch. 1, § 11; L. 2005, Ch. 279, § 4, eff. July 1, 2005; L. 2007, Ch. 68, § 2, eff. July 1, 2007; L. 2007, Ch. 69, § 6, eff. July 1, 2007.

NMSA 1978, § 29-11A-5, NM ST § 29-11A-5

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N. M. S. A. 1978, § 29-11A-5.1

§ 29-11A-5.1. Public access to information regarding certain registered
sex offenders; active community notification; internet web site

Currentness

A. If a sex offender is convicted of one of the following sex offenses, the county sheriff shall forward registration information obtained from the sex offender to the district attorney for the judicial district in which the sex offender resides and, if the sex offender is a resident of a municipality, the chief law enforcement officer for the municipality in which the sex offender resides:

- (1) aggravated criminal sexual penetration or criminal sexual penetration in the first, second or third degree, as provided in Section 30-9-11 NMSA 1978;
- (2) criminal sexual contact of a minor in the second, third or fourth degree, as provided in Section 30-9-13 NMSA 1978;
- (3) sexual exploitation of children, as provided in Section 30-6A-3 NMSA 1978;
- (4) sexual exploitation of children by prostitution, as provided in Section 30-6A-4 NMSA 1978; or
- (5) attempt to commit any of the sex offenses set forth in Paragraphs (1) through (4) of this subsection, as provided in Section 30-28-1 NMSA 1978.

B. A person who wants to obtain registration information regarding sex offenders described in Subsection A of this section may request that information from the:

- (1) sheriff for the county in which the sex offenders reside;
- (2) chief law enforcement officer for the municipality in which the sex offenders reside;
- (3) district attorney for the judicial district in which the sex offenders reside; or
- (4) secretary of public safety.

C. Upon receiving a request for registration information regarding sex offenders described in Subsection A of this section, the county sheriff, chief municipal law enforcement officer, district attorney or secretary of public safety shall provide that registration information, with the exception of a sex offender's social security number and DNA information, within a reasonable period of time, and no later than seven days after receiving the request.

D. Within seven days of receiving registration information from a sex offender described in Subsection A of this section, the county sheriff shall contact every licensed daycare center, elementary school, middle school and high school within a one-mile radius of the sex offender's residence and provide them with the sex offender's registration information, with the exception of the sex offender's social security number and DNA information.

E. The department shall establish and manage an internet web site that provides the public with registration information regarding sex offenders described in Subsection A of this section, except that the department shall not provide registration information on the internet web site regarding a sex offender who was less than eighteen years of age when the sex offender committed the sex offense for which the sex offender was convicted as a youthful offender, as provided in Section 32A-2-3 NMSA 1978, unless at the time of sentencing, the court made a finding that the sex offender is not amenable to treatment and is a danger to the community. The registration information provided to the public pursuant to this subsection shall not include a sex offender's social security number or DNA information or the identity of a sex offender's place of employment, unless the sex offender's employment requires the sex offender to have direct contact with children. The internet web site shall provide only the following registration information:

- (1) the sex offender's legal name and any other names or aliases that the sex offender is using or has used;
- (2) the sex offender's current address and the address of every place where the sex offender habitually lives;
- (3) if the sex offender's employment involves direct contact with children, the sex offender's place of employment;
- (4) the sex offenses for which the sex offender has been convicted;
- (5) a photograph of the sex offender;
- (6) the sex offender's date of birth;
- (7) a physical description, including a description of any tattoos, scars or other distinguishing features on the sex offender's body that would assist in identifying the sex offender; and
- (8) a link that will pinpoint the location of the sex offender's place of employment if the sex offender has direct contact with children.

Credits

L. 1999, Ch. 19, § 8, eff. July 1, 1999. Amended by L. 2000, Ch. 8, § 4, eff. July 1, 2000; L. 2003, Sp.Sess., Ch. 1, § 12; L. 2005, Ch. 279, § 5, eff. July 1, 2005; L. 2007, Ch. 69, § 7, eff. July 1, 2007; L. 2013, Ch. 152, § 3, eff. July 1, 2013.

NMSA 1978, § 29-11A-5.1, NM ST § 29-11A-5.1

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West's New Mexico Statutes Annotated

Chapter 29. Law Enforcement

Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-6

§ 29-11A-6. Repealed by L. 1999, Ch. 19, § 9, eff. July 1, 1999

Currentness

NMSA 1978, § 29-11A-6, NM ST § 29-11A-6

Current through chapters effective July 1, 2025 of the 2025 First Regular Session of the 57th Legislature (2025). The 2025 First Regular Session convened on January 21, 2025, and adjourned on March 22, 2025.

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West's New Mexico Statutes Annotated

Chapter 29. Law Enforcement

Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-7

§ 29-11A-7. Notice to sex offenders of duty to register

Currentness

A. A court shall provide a sex offender convicted in that court with written notice of his duty to register pursuant to the provisions of the Sex Offender Registration and Notification Act. The written notice shall be included in judgment and sentence forms provided to the sex offender. The written notice shall inform the sex offender that he is required to:

- (1) register with the county sheriff for the county in which the sex offender will reside or, if the sex offender will not have an established residence, with the county sheriff for each county in which the sex offender will live or be temporarily located pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (2) report subsequent changes of address pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (3) notify the county sheriff of the county he resides in if the sex offender intends to move to another state and that the sex offender is required to register in the other state pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (4) disclose his status as a sex offender in writing when he begins employment, begins a vocation or enrolls as a student at an institution of higher education in New Mexico to the county sheriff for the county in which the institution of higher education is located and to the law enforcement entity and registrar for the institution of higher education pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (5) provide written notice of any change regarding his employment, vocation or enrollment status at an institution of higher education to the county sheriff, the law enforcement entity and the registrar pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (6) disclose his status as a sex offender in writing when he enrolls as a student at a private or public school in New Mexico, to the county sheriff for the county in which the school is located and to the principal of the school pursuant to the provisions of the Sex Offender Registration and Notification Act;
- (7) provide written notice of any change regarding his enrollment status at a public or private school in New Mexico to the county sheriff and the principal of the school pursuant to the provisions of the Sex Offender Registration and Notification Act;

(8) disclose his status as a sex offender in writing to his employer, supervisor or other person similarly situated, when he begins employment, begins a vocation or volunteers his services, regardless of whether the sex offender receives payment or other compensation, pursuant to the provisions of the Sex Offender Registration and Notification Act; and

(9) read and sign a form that indicates that the sex offender has received the written notice and that a responsible court official, designated by the chief judge for that judicial district, has explained the written notice to the sex offender.

B. The corrections department, a municipal or county jail or a detention center at the time of release of a sex offender in its custody, shall provide a written notice to the sex offender of his duty to register, pursuant to the provisions of the Sex Offender Registration and Notification Act. The written notice shall inform the sex offender that he is required to:

(1) register with the county sheriff for the county in which the sex offender will reside or, if the sex offender will not have an established residence, with the county sheriff for each county in which the sex offender will live or be temporarily located pursuant to the provisions of the Sex Offender Registration and Notification Act;

(2) report subsequent changes of address pursuant to the provisions of the Sex Offender Registration and Notification Act;

(3) notify the county sheriff of the county he resides in if the sex offender intends to move to another state and that the sex offender is required to register in the other state pursuant to the provisions of the Sex Offender Registration and Notification Act;

(4) disclose his status as a sex offender in writing when he begins employment, begins a vocation or enrolls as a student at an institution of higher education in New Mexico to the county sheriff for the county in which the institution of higher education is located and to the law enforcement entity and registrar for the institution of higher education pursuant to the provisions of the Sex Offender Registration and Notification Act;

(5) provide written notice of any change regarding his employment, vocation or enrollment status at an institution of higher education to the county sheriff, the law enforcement entity and the registrar pursuant to the provisions of the Sex Offender Registration and Notification Act;

(6) disclose his status as a sex offender in writing when he enrolls as a student at a private or public school in New Mexico, to the county sheriff for the county in which the school is located and to the principal of the school pursuant to the provisions of the Sex Offender Registration and Notification Act;

(7) provide written notice of any change regarding his enrollment status at a public or private school in New Mexico to the county sheriff and the principal of the school pursuant to the provisions of the Sex Offender Registration and Notification Act;

(8) disclose his status as a sex offender in writing to his employer, supervisor or other person similarly situated, when he begins employment, begins a vocation or volunteers his services, regardless of whether the sex offender receives payment or other compensation, pursuant to the provisions of the Sex Offender Registration and Notification Act; and

(9) read and sign a form that indicates that the sex offender has received the written notice and that a responsible corrections department official, designated by the secretary of corrections, or a responsible municipal or county jail official or detention center official has explained the written notice to the sex offender.

C. A court, the corrections department, a municipal or county jail or a detention center shall also provide written notification regarding a sex offender's release to the sheriff of the county in which the sex offender is released and to the department of public safety.

D. The department of public safety, at the time it is notified by officials from another state that a sex offender will be establishing residence in New Mexico, shall provide written notice to the sex offender of his duty to register pursuant to the provisions of the Sex Offender Registration and Notification Act.

Credits

L. 1995, Ch. 106, § 7, eff. July 1, 1995; L. 1999, Ch. 19, § 6, eff. July 1, 1999; L. 2000, Ch. 8, § 5, eff. July 1, 2000; L. 2005, Ch. 279, § 6, eff. July 1, 2005.

NMSA 1978, § 29-11A-7, NM ST § 29-11A-7

Current through chapters effective July 1, 2025 of the 2025 First Regular Session of the 57th Legislature (2025). The 2025 First Regular Session convened on January 21, 2025, and adjourned on March 22, 2025.

West's New Mexico Statutes Annotated

Chapter 29. Law Enforcement

Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-8

§ 29-11A-8. Immunity

Currentness

Nothing in the Sex Offender Registration and Notification Act creates a cause of action on behalf of a person against a public employer, public employee or public agency responsible for enforcement of the provisions of that act, so long as the public employer, public employee or public agency complies with the provisions of that act.

Credits

L. 1995, Ch. 106, § 8, eff. July 1, 1995; L. 1999, Ch. 19, § 7, eff. July 1, 1999.

NMSA 1978, § 29-11A-8, NM ST § 29-11A-8

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West's New Mexico Statutes Annotated

Chapter 29. Law Enforcement

Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-9

§ 29-11A-9. State preemption; saving clause

Currentness

A. The state preempts the field of sex offender registration and notification. Cities, counties, home rule municipalities and other political subdivisions of the state are prohibited from adopting or continuing in effect any ordinance, rule, regulation, resolution or statute on sex offender registration and notification and from imposing any other restrictions on sex offenders that are not included in the Sex Offender Registration and Notification Act. The department, cities, counties, home rule municipalities and other political subdivisions of the state shall not require a sex offender to report or to register more frequently or to provide information not required by the Sex Offender Registration and Notification Act.

B. After January 18, 2005, cities, counties, home rule municipalities and other political subdivisions of the state are prohibited from adopting or amending an ordinance, rule, regulation or resolution on sex offender registration and notification. An ordinance in effect on January 18, 2005 shall continue in force and effect until repealed; provided that the ordinance shall only continue in force and effect with regard to sex offenders who are required to register pursuant to the provisions of the ordinance but who are not required to register pursuant to the provisions of the Sex Offender Registration and Notification Act. All other sex offenders shall register pursuant to the provisions of the Sex Offender Registration and Notification Act.

Credits

Added by L. 2005, Ch. 279, § 7, eff. July 1, 2005. Amended by L. 2013, Ch. 152, § 4, eff. July 1, 2013.

NMSA 1978, § 29-11A-9, NM ST § 29-11A-9

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West's New Mexico Statutes Annotated

Chapter 29. Law Enforcement

Article 11a. Sex Offender Registration and Notification (Refs & Annos)

N. M. S. A. 1978, § 29-11A-10

§ 29-11A-10. Severability

Currentness

If any part or application of the Sex Offender Registration and Notification Act is held invalid, the remainder of that act and its application to other situations or persons shall not be affected.

Credits

Added by L. 2005, Ch. 279, § 8, eff. July 1, 2005.

NMSA 1978, § 29-11A-10, NM ST § 29-11A-10

Current through chapters effective July 1, 2025 of the 2025 First Regular Session of the 57th Legislature (2025). The 2025 First Regular Session convened on January 21, 2025, and adjourned on March 22, 2025.

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McKinney's Consolidated Laws of New York Annotated
Correction Law
Chapter 43. Of the Consolidated Laws
Article 6-C. Sex Offender Registration Act

McKinney's Correction Law Ch. 43, Art. 6-C, Refs & Annos
Currentness

McKinney's Correction Law Ch. 43, Art. 6-C, Refs & Annos, NY CORRECT Ch. 43, Art. 6-C, Refs & Annos
Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168

§ 168. Short title

Currentness

This article shall be known and may be cited as the “Sex Offender Registration Act”.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996.)

McKinney's Correction Law § 168, NY CORRECT § 168

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-a

§ 168-a. Definitions

Currentness

As used in this article, the following definitions apply:

1. "Sex offender" includes any person who is convicted of any of the offenses set forth in subdivision two or three of this section. Convictions that result from or are connected with the same act, or result from offenses committed at the same time, shall be counted for the purpose of this article as one conviction. Any conviction set aside pursuant to law is not a conviction for purposes of this article.

2. "Sex offense" means: (a) (i) a conviction of or a conviction for an attempt to commit any of the provisions of sections 120.70, 130.20, 130.25, 130.30, former section 130.40, former section 130.45, sections 130.60, 230.34, 230.34-a, 250.50, 255.25, 255.26 and 255.27 or article two hundred sixty-three of the penal law, or section 135.05, 135.10, 135.20 or 135.25 of such law relating to kidnapping offenses, provided the victim of such kidnapping or related offense is less than seventeen years old and the offender is not the parent of the victim, or section 230.04, where the person patronized is in fact less than seventeen years of age, 230.05, 230.06, 230.11, 230.12, 230.13, subdivision two of section 230.30, section 230.32, 230.33, or 230.34 of the penal law, or section 230.25 of the penal law where the person prostituted is in fact less than seventeen years old, or (ii) a conviction of or a conviction for an attempt to commit any of the provisions of section 235.22 of the penal law, or (iii) a conviction of or a conviction for an attempt to commit any provisions of the foregoing sections committed or attempted as a hate crime defined in section 485.05 of the penal law or as a crime of terrorism defined in section 490.25 of such law or as a sexually motivated felony defined in section 130.91 of such law; or

(b) a conviction of or a conviction for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law, provided the victim of such offense is less than eighteen years of age; or

(c) a conviction of or a conviction for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law regardless of the age of the victim and the offender has previously been convicted of: (i) a sex offense defined in this article, (ii) a sexually violent offense defined in this article, or (iii) any of the provisions of section 130.52 or 130.55 of the penal law, or an attempt thereof; or

(d) a conviction of (i) an offense in any other jurisdiction which includes all of the essential elements of any such crime provided for in paragraph (a), (b) or (c) of this subdivision or (ii) a felony in any other jurisdiction for which the offender is required to register as a sex offender in the jurisdiction in which the conviction occurred or, (iii) any of the provisions of 18 U.S.C. 2251, 18 U.S.C. 2251A, 18 U.S.C. 2252, 18 U.S.C. 2252A, 18 U.S.C. 2260, 18 U.S.C. 2422(b), 18 U.S.C. 2423, or 18 U.S.C. 2425, provided that the elements of such crime of conviction are substantially the same as those which are a part of such offense as of the date on which this subparagraph takes effect.

(e) a conviction of or a conviction for an attempt to commit any of the provisions of subdivision two, three or four of section 250.45 of the penal law, unless upon motion by the defendant, the trial court, having regard to the nature and circumstances of the crime and to the history and character of the defendant, is of the opinion that registration would be unduly harsh and inappropriate.

3. “Sexually violent offense” means: (a) (i) a conviction of or a conviction for an attempt to commit any of the provisions of sections section 130.35, former section 130.50, sections 130.65, 130.66, 130.67, 130.70, 130.75, 130.80, 130.95 and 130.96 of the penal law, or (ii) a conviction of or a conviction for an attempt to commit any of the provisions of sections 130.53, 130.65-a and 130.90 of the penal law, or (iii) a conviction of or a conviction for an attempt to commit any provisions of the foregoing sections committed or attempted as a hate crime defined in section 485.05 of the penal law or as a crime of terrorism defined in section 490.25 of such law; or

(b) a conviction of an offense in any other jurisdiction which includes all of the essential elements of any such felony provided for in paragraph (a) of this subdivision or conviction of a felony in any other jurisdiction for which the offender is required to register as a sex offender in the jurisdiction in which the conviction occurred.

4. “Law enforcement agency having jurisdiction” means: (a)(i) the chief law enforcement officer in the village, town or city in which the offender expects to reside upon his or her discharge, probation, parole, release to post-release supervision or upon any form of state or local conditional release; or (ii) if there be no chief law enforcement officer in such village, town or city, the chief law enforcement officer of the county in which the offender expects to reside; or (iii) if there be no chief enforcement officer in such village, town, city or county, the division of state police and (b) in the case of a sex offender who is or expects to be employed by, enrolled in, attending or employed, whether for compensation or not, at an institution of higher education, (i) the chief law enforcement officer in the village, town or city in which such institution is located; or (ii) if there be no chief law enforcement officer in such village, town or city, the chief law enforcement officer of the county in which such institution is located; or (iii) if there be no chief law enforcement officer in such village, town, city or county, the division of state police; and (iv) if such institution operates or employs a campus law enforcement or security agency, the chief of such agency and (c) in the case of a sex offender who expects to reside within a state park or on other land under the jurisdiction of the office of parks, recreation and historic preservation, the state regional park police.

5. “Division” means the division of criminal justice services as defined by section eight hundred thirty-seven of the executive law.

6. “Hospital” means: (a) a hospital as defined in subdivision two of section four hundred of this chapter and applies to persons committed to such hospital by order of commitment made pursuant to article sixteen of this chapter; or (b) a secure treatment facility as defined in section 10.03 of the mental hygiene law and applies to persons committed to such facility by an order made pursuant to article ten of the mental hygiene law.

7. (a) “Sexual predator” means a sex offender who has been convicted of a sexually violent offense defined in subdivision three of this section and who suffers from a mental abnormality or personality disorder that makes him or her likely to engage in predatory sexually violent offenses.

(b) “Sexually violent offender” means a sex offender who has been convicted of a sexually violent offense defined in subdivision three of this section.

(c) “Predicate sex offender” means a sex offender who has been convicted of an offense set forth in subdivision two or three of this section when the offender has been previously convicted of an offense set forth in subdivision two or three of this section.

8. “Mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

9. “Predatory” means an act directed at a stranger, or a person with whom a relationship has been established or promoted for the primary purpose of victimization.

10. “Board” means the “board of examiners of sex offenders” established pursuant to section one hundred sixty-eight-*l* of this article.

11. “Local correctional facility” means a local correctional facility as that term is defined in subdivision sixteen of section two of this chapter.

12. Probation means a sentence of probation imposed pursuant to article sixty-five of the penal law and shall include a sentence of imprisonment imposed in conjunction with a sentence of probation.

13. “Institution of higher education” means an institution in the state providing higher education as such term is defined in subdivision eight of section two of the education law.

14. “Nonresident worker” means any person required to register as a sex offender in another jurisdiction who is employed or carries on a vocation in this state, on either a full-time or a part-time basis, with or without compensation, for more than fourteen consecutive days, or for an aggregate period exceeding thirty days in a calendar year.

15. “Nonresident student” means a person required to register as a sex offender in another jurisdiction who is enrolled on a full-time or part-time basis in any public or private educational institution in this state including any secondary school, trade or professional institution or institution of higher education.

16. “Authorized internet entity” means any business, organization or other entity providing or offering a service over the internet which permits persons under eighteen years of age to access, meet, congregate or communicate with other users for the purpose of social networking. This definition shall not include general e-mail services.

17. “Internet access provider” means any business, organization or other entity engaged in the business of providing a computer and communications facility through which a customer may obtain access to the internet, but does not include a business, organization or other entity to the extent that it provides only telecommunications services.

18. “Internet identifiers” means electronic mail addresses and designations used for the purposes of chat, instant messaging, social networking or other similar internet communication.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, §§ 1 to 5, eff. Jan. 1, 2000; L.2002, c. 11, §§ 1 to 5, eff. March 11, 2002; L.2003, c. 69, § 4, eff. Aug. 11, 2003; L.2004, c. 146, § 1, eff. July 13, 2004; L.2006, c. 91, § 1, eff. June 7, 2006; L.2006, c. 107, § 9, eff. June 23, 2006; L.2006, c. 320, § 8, eff. Nov. 1, 2006; L.2007, c. 7, §§ 10, 22, eff. April 13, 2007; L.2007, c. 74, § 9, eff. Nov. 1, 2007; L.2008, c. 67, § 3, eff. April 28, 2008; L.2008, c. 232, § 1, eff. July 7, 2008; L.2008, c. 303, § 1, eff. July 21, 2008; L.2008, c. 405, § 2, eff. Oct. 4, 2008; L.2011, c. 513, § 1, eff. Sept. 23, 2011; L.2015, c. 368, § 35, eff. Jan. 19, 2016; L.2018, c. 189, § 7, eff. Nov. 13, 2018; L.2023, c. 777, § 35, eff. Sept. 1, 2024; L.2024, c. 23, § 32, eff. Sept. 1, 2024.)

McKinney's Correction Law § 168-a, NY CORRECT § 168-a

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-b

§ 168-b. Duties of the division; registration information

Currentness

1. The division shall establish and maintain a file of individuals required to register pursuant to the provisions of this article which shall include the following information of each registrant:

(a) The sex offender's name, all aliases used, date of birth, sex, race, height, weight, eye color, driver's license number, home address and/or expected place of domicile, any internet accounts with internet access providers belonging to such offender and internet identifiers that such offender uses.

(b) A photograph and set of fingerprints. For a sex offender given a level three designation, the division shall, during the period of registration, update such photograph once each year. For a sex offender given a level one or level two designation, the division shall, during the period of registration, update such photograph once every three years. The division shall notify the sex offender by mail of the duty to appear and be photographed at the specified law enforcement agency having jurisdiction. Such notification shall be mailed at least thirty days and not more than sixty days before the photograph is required to be taken pursuant to subdivision two of section one hundred sixty-eight-f of this article.

(c) A description of the offense for which the sex offender was convicted, the date of conviction and the sentence imposed including the type of assigned supervision and the length of time of such supervision.

(d) The name and address of any institution of higher education at which the sex offender is or expects to be enrolled, attending or employed, whether for compensation or not, and whether such offender resides in or will reside in a facility owned or operated by such institution.

(e) If the sex offender has been given a level two or three designation, such offender's employment address and/or expected place of employment.

(f) Any other information deemed pertinent by the division.

2. a. The division is authorized to make the registry available to any regional or national registry of sex offenders for the purpose of sharing information. The division shall accept files from any regional or national registry of sex offenders and shall make such files available when requested pursuant to the provisions of this article.

b. The division shall also make registry information available to: (i) the department of health, to enable such department to identify persons ineligible to receive reimbursement or coverage for drugs, procedures or supplies pursuant to subdivision seven of section twenty-five hundred ten of the public health law, paragraph (e) of subdivision four of section three hundred sixty-five-a of the social services law, paragraph (e-1) of subdivision one of section three hundred sixty-nine-ee of the social services law, and subdivision one of section two hundred forty-one of the elder law; (ii) the department of financial services to enable such department to identify persons ineligible to receive reimbursement or coverage for drugs, procedures or supplies pursuant to subsection (b-1) of section four thousand three hundred twenty-two and subsection (d-1) of section four thousand three hundred twenty-six of the insurance law; and (iii) a court, to enable the court to promptly comply with the provisions of paragraph (a-1) of subdivision one of section two hundred forty of the domestic relations law, subdivision (e) of section six hundred fifty-one of the family court act, and subdivision (g) of section 81.19 of the mental hygiene law.

c. The department of health and the department of financial services may disclose to plans providing coverage for drugs, procedures or supplies for the treatment of erectile dysfunction pursuant to section three hundred sixty-nine-ee of the social services law or sections four thousand three hundred twenty-one, four thousand three hundred twenty-two or four thousand three hundred twenty-six of the insurance law registry information that is limited to the names, dates of birth, and social security numbers of persons who are ineligible by law to receive payment or reimbursement for specified drugs, procedures and supplies pursuant to such provisions of law. Every such plan shall identify to the department of health or the department of financial services, in advance of disclosure, each person in its employ who is authorized to receive such information provided, however, that such information may be disclosed by such authorized employee or employees to other personnel who are directly involved in approving or disapproving reimbursement or coverage for such drugs, procedures and supplies for such plan members, and provided further that no person receiving registry information shall redisclose such information except to other personnel who are directly involved in approving or disapproving reimbursement or coverage for such drugs, procedures and supplies.

d. No official, agency, authorized person or entity, whether public or private, shall be subject to any civil or criminal liability for damages for any decision or action made in the ordinary course of business of that official, agency, authorized person or entity pursuant to paragraphs b and c of this subdivision, provided that such official, agency, authorized person or entity acted reasonably and in good faith with respect to such registry information.

e. The division shall require that no information included in the registry shall be made available except in the furtherance of the provisions of this article.

3. The division shall develop a standardized registration form to be made available to the appropriate authorities and promulgate rules and regulations to implement the provisions of this section. Such form shall be written in clear and concise language and shall advise the sex offender of his or her duties and obligations under this article.

4. The division shall mail a nonforwardable verification form to the last reported address of the person for annual verification requirements.

5. The division shall also establish and operate a telephone number as provided for in section one hundred sixty-eight-p of this article.

6. The division shall also establish a subdirectory pursuant to section one hundred sixty-eight-q of this article.

7. The division shall also establish a public awareness campaign to advise the public of the provisions of this article.

8. The division shall charge a fee of ten dollars each time a sex offender registers any change of address or any change of his or her status of enrollment, attendance, employment or residence at any institution of higher education as required by subdivision four of section one hundred sixty-eight-f of this article. The fee shall be paid to the division by the sex offender. The state comptroller is hereby authorized to deposit such fees into the general fund.

9. The division shall, upon the request of any children's camp operator, release to such person any information in the registry relating to a prospective employee of any such person or entity in accordance with the provisions of this article. The division shall promulgate rules and regulations relating to procedures for the release of information in the registry to such persons.

10. The division shall, upon the request of any authorized internet entity, release to such entity internet identifiers that would enable such entity to prescreen or remove sex offenders from its services or, in conformity with state and federal law, advise law enforcement and/or other governmental entities of potential violations of law and/or threats to public safety. Before releasing any information the division shall require an authorized internet entity that requests information from the registry to submit to the division the name, address and telephone number of such entity and the specific legal nature and corporate status of such entity. Except for the purposes specified in this subdivision, an authorized internet entity shall not publish or in any way disclose or redisclose any information provided to it by the division pursuant to this subdivision. The division may charge an authorized internet entity a fee for access to registered internet identifiers requested by such entity pursuant to this subdivision. The division shall promulgate rules and regulations relating to procedures for the release of information in the registry, including but not limited to, the disclosure and redisclosure of such information, and the imposition of any fees.

11. The division shall promptly notify each sex offender whose term of registration and verification would otherwise have expired prior to March thirty-first, two thousand seven of the continuing duty to register and verify under this article.

12. The division shall make registry information regarding level two and three sex offenders available to municipal housing authorities, as established pursuant to article three of the public housing law, to enable such authorities to identify persons ineligible to reside in public housing. The division shall, at least monthly, release to each municipal housing authority information about level two and three sex offenders with a home address and/or expected place of domicile within the corresponding municipality. The division may promulgate rules and regulations relating to procedures for the release of information in the registry to such authorities.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.2000, c. 1, § 15, eff. Feb. 1, 2001; L.2002, c. 11, § 6, eff. March 11, 2002; L.2002, c. 694, § 1, eff. May 30, 2003; L.2003, c. 10, §§ 1, 2, eff. May 30, 2003; L.2003, c. 62, pt. F, § 4, eff. May 15, 2003; L.2004, c. 361, § 2, eff. Sept. 9, 2004; L.2005, c. 56, pt. O, § 1, eff. April 12, 2006; L.2005, c. 260, § 5, eff. Aug. 18, 2005; L.2005, c. 645, § 6, eff. Aug. 30, 2005; L.2006, c. 1, § 2, eff. Jan. 18, 2006; L.2006, c. 106, § 4, eff. June 23, 2006; L.2008, c. 67, §§ 4, 5, eff. April 28, 2008; L.2008, c. 595, § 4, eff. Jan. 23, 2009; L.2010, c. 278, § 1, eff. Sept. 28, 2010; L.2011, c. 62, pt. A, § 104, eff. Oct. 3, 2011; L.2011, c. 507, § 1, eff. Sept. 23, 2011; L.2011, c. 532, § 1, eff. Sept. 23, 2011; L.2012, c. 475, § 1, eff. April 1, 2013.)

McKinney's Correction Law § 168-b, NY CORRECT § 168-b

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McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-c

§ 168-c. Sex offender; relocation; notification

Currentness

1. In the case of any sex offender, it shall be the duty of the department, hospital or local correctional facility at least ten calendar days prior to the release or discharge of any sex offender from a correctional facility, hospital or local correctional facility to notify the division of the contemplated release or discharge of such sex offender, informing the division in writing on a form provided by the division indicating the address at which he or she proposes to reside and the name and address of any institution of higher education at which he or she expects to be enrolled, attending or employed, whether for compensation or not, and whether he or she resides in or will reside in a facility owned or operated by such institution. If such sex offender changes his or her place of residence while on parole, such notification of the change of residence shall be sent by the sex offender's parole officer within forty-eight hours to the division on a form provided by the division. If such sex offender changes the status of his or her enrollment, attendance, employment or residence at any institution of higher education while on parole, such notification of the change of status shall be sent by the sex offender's parole officer within forty-eight hours to the division on a form provided by the division.

2. In the case of any sex offender on probation, it shall be the duty of the sex offender's probation officer to notify the division within forty-eight hours of the new place of residence on a form provided by the division. If such sex offender changes the status of his or her enrollment, attendance, employment or residence at any institution of higher education while on probation, such notification of the change of status shall be sent by the sex offender's probation officer within forty-eight hours to the division on a form provided by the division.

3. In the case in which any sex offender escapes from a state or local correctional facility or hospital, the designated official of the facility or hospital where the person was confined shall notify within twenty-four hours the law enforcement agency having had jurisdiction at the time of his or her conviction, informing such law enforcement agency of the name and aliases of the person, and the address at which he or she resided at the time of his or her conviction, the amount of time remaining to be served, if any, on the full term for which he or she was sentenced, and the nature of the crime for which he or she was sentenced, transmitting at the same time a copy of such sex offender's fingerprints and photograph and a summary of his or her criminal record.

4. The division shall provide general information, in registration materials and annual correspondence, to registrants concerning notification and registration procedures that may apply if the registrant is authorized to relocate and relocates to another state or United States possession, or commences employment or attendance at an education institution in another state or United States possession. Such information shall include addresses and telephone numbers for relevant agencies from which additional information may be obtained.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.2002, c. 11, § 7, eff. July 1, 2002; L.2004, c. 410, § 1, eff. Nov. 15, 2004.)

McKinney's Correction Law § 168-c, NY CORRECT § 168-c

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-d

§ 168-d. Duties of the court

Currentness

1. (a) Except as provided in paragraphs (b) and (c) of this subdivision, upon conviction of any of the offenses set forth in subdivision two or three of section one hundred sixty-eight-a of this article the court shall certify that the person is a sex offender and shall include the certification in the order of commitment, if any, and judgment of conviction, except as provided in paragraph (e) of subdivision two of section one hundred sixty-eight-a of this article. The court shall also advise the sex offender of his or her duties under this article. Failure to include the certification in the order of commitment or the judgment of conviction shall not relieve a sex offender of the obligations imposed by this article.

(b) Where a defendant stands convicted of an offense defined in paragraph (b) of subdivision two of section one hundred sixty-eight-a of this article or where the defendant was convicted of patronizing a person for prostitution in the third degree under section 230.04 of the penal law and the defendant controverts an allegation that the victim of such offense was less than eighteen years of age or, in the case of a conviction under section 230.04 of the penal law, less than seventeen years of age, the court, without a jury, shall, prior to sentencing, conduct a hearing, and the people may prove by clear and convincing evidence that the victim was less than eighteen years old or less than seventeen years old, as applicable, by any evidence admissible under the rules applicable to a trial of the issue of guilt. The court in addition to such admissible evidence may also consider reliable hearsay evidence submitted by either party provided that it is relevant to the determination of the age of the victim. Facts concerning the age of the victim proven at trial or ascertained at the time of entry of a plea of guilty shall be deemed established by clear and convincing evidence and shall not be relitigated. At the conclusion of the hearing, or if the defendant does not controvert an allegation that the victim of the offense was less than eighteen years old or less than seventeen years old, as applicable, the court must make a finding and enter an order setting forth the age of the victim. If the court finds that the victim of such offense was under eighteen years old or under seventeen years old, as applicable, the court shall certify the defendant as a sex offender, the provisions of paragraph (a) of this subdivision shall apply and the defendant shall register with the division in accordance with the provisions of this article.

(c) Where a defendant stands convicted of an offense defined in paragraph (c) of subdivision two of section one hundred sixty-eight-a of this article and the defendant controverts an allegation that the defendant was previously convicted of a sex offense or a sexually violent offense defined in this article or has previously been convicted of or convicted for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law, the court, without a jury, shall, prior to sentencing, conduct a hearing, and the people may prove by clear and convincing evidence that the defendant was previously convicted of a sex offense or a sexually violent offense defined in this article or has previously been convicted of or convicted for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law, by any evidence admissible under the rules applicable to a trial of the issue of guilt. The court in addition to such admissible evidence may also consider reliable hearsay evidence submitted by either party provided that it is relevant to the determination of whether the defendant was previously convicted of a sex offense or a sexually violent offense defined in this article or has previously been convicted of or convicted for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law. At the conclusion of the hearing, or if the defendant does not controvert an allegation that the defendant was previously convicted of a sex offense or a sexually violent offense

defined in this article or has previously been convicted of or convicted for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law, the court must make a finding and enter an order determining whether the defendant was previously convicted of a sex offense or a sexually violent offense defined in this article or has previously been convicted of or convicted for an attempt to commit any of the provisions of section 130.52 or 130.55 of the penal law. If the court finds that the defendant has such a previous conviction, the court shall certify the defendant as a sex offender, the provisions of paragraph (a) of this subdivision shall apply and the defendant shall register with the division in accordance with the provisions of this article.

2. Any sex offender, who is released on probation or discharged upon payment of a fine, conditional discharge or unconditional discharge shall, prior to such release or discharge, be informed of his or her duty to register under this article by the court in which he or she was convicted. At the time sentence is imposed, such sex offender shall register with the division on a form prepared by the division. The court shall require the sex offender to read and sign such form and to complete the registration portion of such form. The court shall on such form obtain the address where the sex offender expects to reside upon his or her release, and the name and address of any institution of higher education he or she expects to be employed by, enrolled in, attending or employed, whether for compensation or not, and whether he or she expects to reside in a facility owned or operated by such an institution, and shall report such information to the division. The court shall give one copy of the form to the sex offender and shall send two copies to the division which shall forward the information to the law enforcement agencies having jurisdiction. The court shall also notify the district attorney and the sex offender of the date of the determination proceeding to be held pursuant to subdivision three of this section, which shall be held at least forty-five days after such notice is given. This notice shall include the following statement or a substantially similar statement: "This proceeding is being held to determine whether you will be classified as a level 3 offender (risk of repeat offense is high), a level 2 offender (risk of repeat offense is moderate), or a level 1 offender (risk of repeat offense is low), or whether you will be designated as a sexual predator, a sexually violent offender or a predicate sex offender, which will determine how long you must register as a sex offender and how much information can be provided to the public concerning your registration. If you fail to appear at this proceeding, without sufficient excuse, it shall be held in your absence. Failure to appear may result in a longer period of registration or a higher level of community notification because you are not present to offer evidence or contest evidence offered by the district attorney." The court shall also advise the sex offender that he or she has a right to a hearing prior to the court's determination, that he or she has the right to be represented by counsel at the hearing and that counsel will be appointed if he or she is financially unable to retain counsel. If the sex offender applies for assignment of counsel to represent him or her at the hearing and counsel was not previously assigned to represent the sex offender in the underlying criminal action, the court shall determine whether the offender is financially unable to retain counsel. If such a finding is made, the court shall assign counsel to represent the sex offender pursuant to article eighteen-B of the county law. Where the court orders a sex offender released on probation, such order must include a provision requiring that he or she comply with the requirements of this article. Where such sex offender violates such provision, probation may be immediately revoked in the manner provided by article four hundred ten of the criminal procedure law.

3. For sex offenders released on probation or discharged upon payment of a fine, conditional discharge or unconditional discharge, it shall be the duty of the court applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article to determine the level of notification pursuant to subdivision six of section one hundred sixty-eight-l of this article and whether such sex offender shall be designated a sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article. At least fifteen days prior to the determination proceeding, the district attorney shall provide to the court and the sex offender a written statement setting forth the determinations sought by the district attorney together with the reasons for seeking such determinations. The court shall allow the sex offender to appear and be heard. The state shall appear by the district attorney, or his or her designee, who shall bear the burden of proving the facts supporting the determinations sought by clear and convincing evidence. Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party. In making the determinations, the court shall review any victim's statement and any relevant materials and evidence submitted by the sex offender and the district attorney and the court may consider reliable hearsay evidence submitted by either party

provided that it is relevant to the determinations. Facts previously proven at trial or elicited at the time of entry of a plea of guilty shall be deemed established by clear and convincing evidence and shall not be relitigated. The court shall render an order setting forth its determinations and the findings of fact and conclusions of law on which the determinations are based. A copy of the order shall be submitted by the court to the division. Upon application of either party, the court shall seal any portion of the court file or record which contains material that is confidential under any state or federal statute. Either party may appeal as of right from the order pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the sex offender upon the ground that the sex offender is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may appeal as a poor person pursuant to article eighteen-B of the county law.

4. If a sex offender, having been given notice, including the time and place of the determination proceeding in accordance with this section, fails to appear at this proceeding, without sufficient excuse, the court shall conduct the hearing and make the determinations in the manner set forth in subdivision three of this section.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 6, eff. Jan. 1, 2000; L.2002, c. 11, § 8; L.2003, c. 69, § 5, eff. Aug. 11, 2003; L.2005, c. 684, §§ 1, 2, eff. Oct. 4, 2005; L.2007, c. 74, § 10, eff. Nov. 1, 2007; L.2015, c. 368, § 36, eff. Jan. 19, 2016.)

McKinney's Correction Law § 168-d, NY CORRECT § 168-d

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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McKinney's Correction Law § 168-e

§ 168-e. Discharge of sex offender from correctional facility; duties of official in charge

Currentness

1. Any sex offender, to be discharged, paroled, released to post-release supervision or released from any state or local correctional facility, hospital or institution where he or she was confined or committed, shall at least fifteen calendar days prior to discharge, parole or release, be informed of his or her duty to register under this article, by the facility in which he or she was confined or committed. The facility shall require the sex offender to read and sign such form as may be required by the division stating the duty to register and the procedure for registration has been explained to him or her and to complete the registration portion of such form. The facility shall obtain on such form the address where the sex offender expects to reside upon his or her discharge, parole or release and the name and address of any institution of higher education he or she expects to be employed by, enrolled in, attending or employed, whether for compensation or not, and whether he or she expects to reside in a facility owned or operated by such an institution, and shall report such information to the division. The facility shall give one copy of the form to the sex offender, retain one copy and shall send one copy to the division which shall provide the information to the law enforcement agencies having jurisdiction. The facility shall give the sex offender a form prepared by the division, to register with the division at least fifteen calendar days prior to release and such form shall be completed, signed by the sex offender and sent to the division by the facility at least ten days prior to the sex offender's release or discharge.

2. The division shall also immediately transmit the conviction data and fingerprints to the Federal Bureau of Investigation if not already obtained.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 7, eff. Jan. 1, 2000; L.2002, c. 11, § 9, eff. July 1, 2002.)

McKinney's Correction Law § 168-e, NY CORRECT § 168-e

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McKinney's Correction Law § 168-f

§ 168-f. Duty to register and to verify

Currentness

1. Any sex offender shall, (a) at least ten calendar days prior to discharge, parole, release to post-release supervision or release from any state or local correctional facility, hospital or institution where he or she was confined or committed, or, (b) at the time sentence is imposed for any sex offender released on probation or discharged upon payment of a fine, conditional discharge or unconditional discharge, register with the division on a form prepared by the division.

2. For a sex offender required to register under this article on each anniversary of the sex offender's initial registration date during the period in which he is required to register under this section the following applies:

(a) The sex offender shall mail the verification form to the division within ten calendar days after receipt of the form.

(b) The verification form shall be signed by the sex offender, and state that he still resides at the address last reported to the division.

(b-1) If the sex offender has been given a level two or three designation, such offender shall sign the verification form, and state that he or she still is employed at the address last reported to the division.

(b-2) If the sex offender has been given a level three designation, he or she shall personally appear at the law enforcement agency having jurisdiction within twenty days of the first anniversary of the sex offender's initial registration and every year thereafter during the period of registration for the purpose of providing a current photograph of such offender. The law enforcement agency having jurisdiction shall photograph the sex offender and shall promptly forward a copy of such photograph to the division. For purposes of this paragraph, if such sex offender is confined in a state or local correctional facility, the local law enforcement agency having jurisdiction shall be the warden, superintendent, sheriff or other person in charge of the state or local correctional facility.

(b-3) If the sex offender has been given a level one or level two designation, he or she shall personally appear at the law enforcement agency having jurisdiction within twenty days of the third anniversary of the sex offender's initial registration and every three years thereafter during the period of registration for the purpose of providing a current photograph of such offender. The law enforcement agency having jurisdiction shall photograph the sex offender and shall promptly forward a copy of such photograph to the division. For purposes of this paragraph, if such sex offender is confined in a state or local correctional facility, the local law enforcement agency having jurisdiction shall be the warden, superintendent, sheriff or other person in charge of the state or local correctional facility.

(c) If the sex offender fails to mail the signed verification form to the division within ten calendar days after receipt of the form, he or she shall be in violation of this section unless he proves that he or she has not changed his or her residence address.

(c-1) If the sex offender, to whom a notice has been mailed at the last reported address pursuant to paragraph b of subdivision one of section one hundred sixty-eight-b of this article, fails to personally appear at the law enforcement agency having jurisdiction, as provided in paragraph (b-2) or (b-3) of this subdivision, within twenty days of the anniversary of the sex offender's initial registration, or an alternate later date scheduled by the law enforcement agency having jurisdiction, he or she shall be in violation of this section. The duty to personally appear for such updated photograph shall be temporarily suspended during any period in which the sex offender is confined in any hospital or institution, and such sex offender shall personally appear for such updated photograph no later than ninety days after release from such hospital or institution, or an alternate later date scheduled by the law enforcement agency having jurisdiction.

3. The provisions of subdivision two of this section shall be applied to a sex offender required to register under this article except that such sex offender designated as a sexual predator or having been given a level three designation must personally verify his or her address with the local law enforcement agency every ninety calendar days after the date of release or commencement of parole or post-release supervision, or probation, or release on payment of a fine, conditional discharge or unconditional discharge. At such time the law enforcement agency having jurisdiction may take a new photograph of such sex offender if it appears that the offender has had a change in appearance since the most recent photograph taken pursuant to paragraph (b-2) of subdivision two of this section. If such photograph is taken, the law enforcement agency shall promptly forward a copy of such photograph to the division. The duty to personally verify shall be temporarily suspended during any period in which the sex offender is confined to any state or local correctional facility, hospital or institution and shall immediately recommence on the date of the sex offender's release.

4. Any sex offender shall register with the division no later than ten calendar days after any change of address, internet accounts with internet access providers belonging to such offender, internet identifiers that such offender uses, or his or her status of enrollment, attendance, employment or residence at any institution of higher education. A fee of ten dollars, as authorized by subdivision eight of section one hundred sixty-eight-b of this article, shall be submitted by the sex offender each time such offender registers any change of address or any change of his or her status of enrollment, attendance, employment or residence at any institution of higher education. Any failure or omission to submit the required fee shall not affect the acceptance by the division of the change of address or change of status.

5. The duty to register under the provisions of this article shall not be applicable to any sex offender whose conviction was reversed upon appeal or who was pardoned by the governor.

6. Any nonresident worker or nonresident student, as defined in subdivisions fourteen and fifteen of section one hundred sixty-eight-a of this article, shall register his or her current address and the address of his or her place of employment or educational institution attended with the division within ten calendar days after such nonresident worker or nonresident student commences employment or attendance at an educational institution in the state. Any nonresident worker or nonresident student shall notify the division of any change of residence, employment or educational institution address no later than ten days after such change. The division shall notify the law enforcement agency where the nonresident worker is employed or the educational institution is located that a nonresident worker or nonresident student is present in that agency's jurisdiction.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, §§ 8 to 10, eff. Jan. 1, 2000; L.2002, c. 11, § 10, eff. March 11, 2002; L.2002, c. 11, §§ 11, 12, eff. July 1, 2002; L.2002, c. 694, § 2, eff. May 30, 2003; L.2003, c. 10, § 3, eff. May 30, 2003; L.2003, c. 62, pt. F, § 5, eff. May 15, 2003; L.2005, c. 56, pt. O, § 2, eff. April 12, 2006; L.2008, c. 67, § 6, eff. April 28, 2008; L.2011, c. 532, § 2, eff. Sept. 23, 2011; L.2012, c. 364, § 1, eff. Aug. 31, 2012.)

McKinney's Correction Law § 168-f, NY CORRECT § 168-f

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McKinney's Correction Law § 168-g

§ 168-g. Prior convictions; duty to inform and register

Currentness

1. The department or office of probation and correctional alternatives in accordance with risk factors pursuant to section one hundred sixty-eight-l of this article shall determine the duration of registration and notification for every sex offender who on the effective date of this article is then on community supervision or probation for an offense provided for in subdivision two or three of section one hundred sixty-eight-a of this article.
2. Every sex offender who on the effective date of this article is then on community supervision or probation for an offense provided for in subdivision two or three of section one hundred sixty-eight-a of this article shall within ten calendar days of such determination register with his parole or probation officer. On each anniversary of the sex offender's initial registration date thereafter, the provisions of section one hundred sixty-eight-f of this article shall apply. Any sex offender who fails or refuses to so comply shall be subject to the same penalties as otherwise provided for in this article which would be imposed upon a sex offender who fails or refuses to so comply with the provisions of this article on or after such effective date.
3. It shall be the duty of the parole or probation officer to inform and register such sex offender according to the requirements imposed by this article. A parole or probation officer shall give one copy of the form to the sex offender and shall, within three calendar days, send two copies electronically or otherwise to the department which shall forward one copy electronically or otherwise to the law enforcement agency having jurisdiction where the sex offender resides upon his or her community supervision, probation, or local conditional release.
4. A petition for relief from this section is permitted to any sex offender required to register while released to community supervision or probation pursuant to section one hundred sixty-eight-o of this article.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.2011, c. 62, pt. C, subpt. B, § 18, eff. March 31, 2011.)

McKinney's Correction Law § 168-g, NY CORRECT § 168-g

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McKinney's Correction Law § 168-h

§ 168-h. Duration of registration and verification

Currentness

1. The duration of registration and verification for a sex offender who has not been designated a sexual predator, or a sexually violent offender, or a predicate sex offender, and who is classified as a level one risk, or who has not yet received a risk level classification, shall be annually for a period of twenty years from the initial date of registration.
2. The duration of registration and verification for a sex offender who, on or after March eleventh, two thousand two, is designated a sexual predator, or a sexually violent offender, or a predicate sex offender, or who is classified as a level two or level three risk, shall be annually for life. Notwithstanding the foregoing, a sex offender who is classified as a level two risk and who is not designated a sexual predator, a sexually violent offender or a predicate sex offender, may be relieved of the duty to register and verify as provided by subdivision one of section one hundred sixty-eight-o of this article.
3. Any sex offender having been designated a level three risk or a sexual predator shall also personally verify his or her address every ninety calendar days with the local law enforcement agency having jurisdiction where the offender resides.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 11, eff. Jan. 1, 2000; L.2002, c. 11, § 13, eff. March 11, 2002; L.2006, c. 1, § 3, eff. Jan. 18, 2006.)

McKinney's Correction Law § 168-h, NY CORRECT § 168-h

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McKinney's Correction Law § 168-i

§ 168-i. Registration and verification requirements

Currentness

Registration and verification as required by this article shall consist of a statement in writing signed by the sex offender giving the information that is required by the division and the division shall enter the information into an appropriate electronic data base or file.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 11, eff. Jan. 1, 2000.)

McKinney's Correction Law § 168-i, NY CORRECT § 168-i

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McKinney's Correction Law § 168-j

§ 168-j. Notification of local law enforcement agencies of change of address

Currentness

1. Upon receipt of a change of address by a sex offender required to register under this article, but in any event no more than two business days after such receipt, the division shall notify the local law enforcement agency having jurisdiction of the new place of residence and the local law enforcement agency where the sex offender last resided of the new place of residence.
2. Upon receipt of change of address information, the local law enforcement agency having jurisdiction of the new place of residence shall adhere to the notification provisions set forth in subdivision six of section one hundred sixty-eight-l of this article.
3. The division shall, if the sex offender changes residence to another state, notify the appropriate agency within that state of the new place of residence.
4. Upon receipt of a change in the status of the enrollment, attendance, employment or residence at an institution of higher education by a sex offender required to register under this article, but in any event no more than two business days after such receipt, the division shall notify each law enforcement agency having jurisdiction which is affected by such change.
5. Upon receipt of change in the status of the enrollment, attendance, employment or residence at an institution of higher education by a sex offender required to register under this article, each law enforcement agency having jurisdiction shall adhere to the notification provisions set forth in subdivision six of section one hundred sixty-eight-l of this article.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 11, eff. Jan. 1, 2000; L.2002, c. 11, § 14; L.2016, c. 456, § 1, eff. Jan. 27, 2017; L.2017, c. 17, § 1, eff. Jan. 27, 2017.)

McKinney's Correction Law § 168-j, NY CORRECT § 168-j

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McKinney's Correction Law § 168-k

§ 168-k. Registration for change of address from another state

Currentness

1. A sex offender who has been convicted of an offense which requires registration under paragraph (d) of subdivision two or paragraph (b) of subdivision three of section one hundred sixty-eight-a of this article shall notify the division of the new address no later than ten calendar days after such sex offender establishes residence in this state.

2. The division shall advise the board that the sex offender has established residence in this state. The board shall determine whether the sex offender is required to register with the division. If it is determined that the sex offender is required to register, the division shall notify the sex offender of his or her duty to register under this article and shall require the sex offender to sign a form as may be required by the division acknowledging that the duty to register and the procedure for registration has been explained to the sex offender. The division shall obtain on such form the address where the sex offender expects to reside within the state and the sex offender shall retain one copy of the form and send two copies to the division which shall provide the information to the law enforcement agency having jurisdiction where the sex offender expects to reside within this state. No later than thirty days prior to the board making a recommendation, the sex offender shall be notified that his or her case is under review and that he or she is permitted to submit to the board any information relevant to the review. After reviewing any information obtained, and applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article, the board shall within sixty calendar days make a recommendation regarding the level of notification pursuant to subdivision six of section one hundred sixty-eight-l of this article and whether such sex offender shall be designated a sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article. This recommendation shall be confidential and shall not be available for public inspection. It shall be submitted by the board to the county court or supreme court and to the district attorney in the county of residence of the sex offender and to the sex offender. It shall be the duty of the county court or supreme court in the county of residence of the sex offender, applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article, to determine the level of notification pursuant to subdivision six of section one hundred sixty-eight-l of this article and whether such sex offender shall be designated a sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article. At least thirty days prior to the determination proceeding, such court shall notify the district attorney and the sex offender, in writing, of the date of the determination proceeding and the court shall also provide the district attorney and sex offender with a copy of the recommendation received from the board and any statement of the reasons for the recommendation received from the board. This notice shall include the following statement or a substantially similar statement: "This proceeding is being held to determine whether you will be classified as a level 3 offender (risk of repeat offense is high), a level 2 offender (risk of repeat offense is moderate), or a level 1 offender (risk of repeat offense is low), or whether you will be designated as a sexual predator, a sexually violent offender or a predicate sex offender, which will determine how long you must register as a sex offender and how much information can be provided to the public concerning your registration. If you fail to appear at this proceeding, without sufficient excuse, it shall be held in your absence. Failure to appear may result in a longer period of registration or a higher level of community notification because you are not present to offer evidence or contest evidence offered by the district attorney." The court shall also advise the sex offender that he or she has a right to a hearing prior to the court's determination, that he or she has the right to be represented by counsel at the hearing and that counsel will be appointed if he or she is financially unable to retain counsel. A returnable form shall be enclosed in the court's notice to

the sex offender on which the sex offender may apply for assignment of counsel. If the sex offender applies for assignment of counsel and the court finds that the offender is financially unable to retain counsel, the court shall assign counsel to represent the sex offender pursuant to article eighteen-B of the county law. If the district attorney seeks a determination that differs from the recommendation submitted by the board, at least ten days prior to the determination proceeding the district attorney shall provide to the court and the sex offender a statement setting forth the determinations sought by the district attorney together with the reasons for seeking such determinations. The court shall allow the sex offender to appear and be heard. The state shall appear by the district attorney, or his or her designee, who shall bear the burden of proving the facts supporting the determinations sought by clear and convincing evidence. It shall be the duty of the court applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article to determine the level of notification pursuant to subdivision six of section one hundred sixty-eight-l of this article and whether such sex offender shall be designated a sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article. Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party. In making the determinations the court shall review any victim's statement and any relevant materials and evidence submitted by the sex offender and the district attorney and the recommendation and any material submitted by the board, and may consider reliable hearsay evidence submitted by either party, provided that it is relevant to the determinations. If available, facts proven at trial or elicited at the time of a plea of guilty shall be deemed established by clear and convincing evidence and shall not be relitigated. The court shall render an order setting forth its determinations and the findings of fact and conclusions of law on which the determinations are based. A copy of the order shall be submitted by the court to the division. Upon application of either party, the court shall seal any portion of the court file or record which contains material that is confidential under any state or federal statute. Either party may appeal as of right from the order pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the sex offender upon the ground that the sex offender is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may appeal as a poor person pursuant to article eighteen-B of the county law.

3. The division shall undertake an information campaign designed to provide information to officials and appropriate individuals in other states and United States possessions concerning the notification procedures required by this article. Such information campaign shall be ongoing, and shall include, but not be limited to, letters, notice forms and similar materials providing relevant information about this article and the specific procedures required to effect notification. Such materials shall include an address and telephone number which such officials and individuals in other states and United States possessions may use to obtain additional information.

4. If a sex offender, having been given notice, including the time and place of the determination proceeding in accordance with this section, fails to appear at this proceeding, without sufficient excuse, the court shall conduct the hearing and make the determinations in the manner set forth in subdivision two of this section.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 11, eff. Jan. 1, 2000; L.2002, c. 11, § 15, eff. March 11, 2002; L.2004, c. 146, § 2, eff. July 13, 2004; L.2004, c. 410, § 2, eff. Nov. 15, 2004; L.2005, c. 684, §§ 3, 4, eff. Oct. 4, 2005.)

McKinney's Correction Law § 168-k, NY CORRECT § 168-k

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-l

§ 168-l. Board of examiners of sex offenders

Currentness

1. There shall be a board of examiners of sex offenders which shall possess the powers and duties hereinafter specified. Such board shall consist of five members appointed by the governor. All members shall be employees of the department and shall be experts in the field of the behavior and treatment of sex offenders. The term of office of each member of such board shall be for six years; provided, however, that any member chosen to fill a vacancy occurring otherwise than by expiration of term shall be appointed for the remainder of the unexpired term of the member whom he or she is to succeed. In the event of the inability to act of any member, the governor may appoint some competent informed person to act in his or her stead during the continuance of such disability.
2. The governor shall designate one of the members of the board as chairman to serve in such capacity at the pleasure of the governor or until the member's term of office expires and a successor is designated in accordance with law, whichever first occurs.
3. Any member of the board may be removed by the governor for cause after an opportunity to be heard.
4. Except as otherwise provided by law, a majority of the board shall constitute a quorum for the transaction of all business of the board.
5. The board shall develop guidelines and procedures to assess the risk of a repeat offense by such sex offender and the threat posed to the public safety. Such guidelines shall be based upon, but not limited to, the following:
 - (a) criminal history factors indicative of high risk of repeat offense, including:
 - (i) whether the sex offender has a mental abnormality or personality disorder that makes him or her likely to engage in predatory sexually violent offenses;
 - (ii) whether the sex offender's conduct was found to be characterized by repetitive and compulsive behavior, associated with drugs or alcohol;
 - (iii) whether the sex offender served the maximum term;

- (iv) whether the sex offender committed the felony sex offense against a child;
- (v) the age of the sex offender at the time of the commission of the first sex offense;
- (b) other criminal history factors to be considered in determining risk, including:
 - (i) the relationship between such sex offender and the victim;
 - (ii) whether the offense involved the use of a weapon, violence or infliction of serious bodily injury;
 - (iii) the number, date and nature of prior offenses;
- (c) conditions of release that minimize risk or ¹ re-offense, including but not limited to whether the sex offender is under supervision; receiving counseling, therapy or treatment; or residing in a home situation that provides guidance and supervision;
- (d) physical conditions that minimize risk of re-offense, including but not limited to advanced age or debilitating illness;
- (e) whether psychological or psychiatric profiles indicate a risk of recidivism;
- (f) the sex offender's response to treatment;
- (g) recent behavior, including behavior while confined;
- (h) recent threats or gestures against persons or expressions of intent to commit additional offenses; and
- (i) review of any victim impact statement.

6. Applying these guidelines, the board shall within sixty calendar days prior to the discharge, parole, release to post-release supervision or release of a sex offender make a recommendation which shall be confidential and shall not be available for public inspection, to the sentencing court as to whether such sex offender warrants the designation of sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article. In addition, the guidelines shall be applied by the board to make a recommendation to the sentencing court which shall be confidential and shall not be available for public inspection, providing for one of the following three levels of notification depending upon the degree of the risk of re-offense by the sex offender.

- (a) If the risk of repeat offense is low, a level one designation shall be given to such sex offender. In such case the law enforcement agency or agencies having jurisdiction and the law enforcement agency or agencies having had jurisdiction at the time of his or her conviction shall be notified and may disseminate relevant information which may include a photograph and description

of the offender and which may include the name of the sex offender, approximate address based on sex offender's zip code, background information including the offender's crime of conviction, modus of operation, type of victim targeted, the name and address of any institution of higher education at which the sex offender is enrolled, attends, is employed or resides and the description of special conditions imposed on the offender to any entity with vulnerable populations related to the nature of the offense committed by such sex offender. Any entity receiving information on a sex offender may disclose or further disseminate such information at its discretion.

(b) If the risk of repeat offense is moderate, a level two designation shall be given to such sex offender. In such case the law enforcement agency or agencies having jurisdiction and the law enforcement agency or agencies having had jurisdiction at the time of his or her conviction shall be notified and may disseminate relevant information which shall include a photograph and description of the offender and which may include the exact name and any aliases used by the sex offender, exact address, background information including the offender's crime of conviction, mode of operation, type of victim targeted, the name and address of any institution of higher education at which the sex offender is enrolled, attends, is employed or resides and the description of special conditions imposed on the offender to any entity with vulnerable populations related to the nature of the offense committed by such sex offender. Any entity receiving information on a sex offender may disclose or further disseminate such information at its discretion. In addition, in such case, the information described herein shall also be provided in the subdirectory established in this article and notwithstanding any other provision of law, such information shall, upon request, be made available to the public.

Such law enforcement agencies shall compile, maintain and update a listing of vulnerable organizational entities within its jurisdiction. Such listing shall be utilized for notification of such organizations in disseminating such information on level two sex offenders pursuant to this paragraph. Such listing shall include and not be limited to: superintendents of schools or chief school administrators, superintendents of parks, public and private libraries, public and private school bus transportation companies, day care centers, nursery schools, pre-schools, neighborhood watch groups, community centers, civic associations, nursing homes, victim's advocacy groups and places of worship.

(c) If the risk of repeat offense is high and there exists a threat to the public safety a level three designation shall be given to such sex offender. In such case, the law enforcement agency or agencies having jurisdiction and the law enforcement agency or agencies having had jurisdiction at the time of his or her conviction shall be notified and may disseminate relevant information which shall include a photograph and description of the offender and which may include the sex offender's exact name and any aliases used by the offender, exact address, address of the offender's place of employment, background information including the offender's crime of conviction, mode of operation, type of victim targeted, the name and address of any institution of higher education at which the sex offender is enrolled, attends, is employed or resides and the description of special conditions imposed on the offender to any entity with vulnerable populations related to the nature of the offense committed by such sex offender. Any entity receiving information on a sex offender may disclose or further disseminate such information at its discretion. In addition, in such case, the information described herein shall also be provided in the subdirectory established in this article and notwithstanding any other provision of law, such information shall, upon request, be made available to the public.

Such law enforcement agencies shall compile, maintain and update a listing of vulnerable organizational entities within its jurisdiction. Such listing shall be utilized for notification of such organizations in disseminating such information on level three sex offenders pursuant to this paragraph. Such listing shall include and not be limited to: superintendents of schools or chief school administrators, superintendents of parks, public and private libraries, public and private school bus transportation companies, day care centers, nursery schools, pre-schools, neighborhood watch groups, community centers, civic associations, nursing homes, victim's advocacy groups and places of worship.

7. Upon request by the court, pursuant to section one hundred sixty-eight-o of this article, the board shall provide an updated report pertaining to the sex offender petitioning for relief of the duty to register or for a modification of his or her level of notification.

8. A failure by a state or local agency or the board to act or by a court to render a determination within the time period specified in this article shall not affect the obligation of the sex offender to register or verify under this article nor shall such failure prevent a court from making a determination regarding the sex offender's level of notification and whether such offender is required by law to be registered for a period of twenty years or for life. Where a court is unable to make a determination prior to the date scheduled for a sex offender's discharge, parole, release to post-release supervision or release, it shall adjourn the hearing until after the offender is discharged, paroled, released to post-release supervision or released, and shall then expeditiously complete the hearing and issue its determination.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, §§ 12 to 14, eff. Jan. 1, 2000; L.2002, c. 11, §§ 16 to 19, eff. March 11, 2002; L.2002, c. 694, § 3, eff. May 30, 2003; L.2003, c. 10, §§ 4, 6, eff. May 30, 2003; L.2003, c. 316, § 1, eff. Nov. 1, 2003; L.2005, c. 318, § 1, eff. Oct. 24, 2005; L.2005, c. 680, § 1, eff. Nov. 1, 2005; L.2006, c. 1, § 4, eff. Jan. 18, 2006; L.2006, c. 106, § 1, eff. June 23, 2006; L.2011, c. 62, pt. C, subpt. B, § 19, eff. March 31, 2011; L.2011, c. 513, § 2, eff. Sept. 23, 2011.)

Footnotes

1 So in original. Probably should be “of”.

McKinney's Correction Law § 168-I, NY CORRECT § 168-I

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-m

§ 168-m. Review

Currentness

Notwithstanding any other provision of law to the contrary, any state or local correctional facility, hospital or institution, district attorney, law enforcement agency, probation department, state board of parole, court or child protective agency shall forward relevant information pertaining to a sex offender to be discharged, paroled, released to post-release supervision or released to the board for review no later than one hundred twenty days prior to the release or discharge and the board shall make recommendations as provided in subdivision six of section one hundred sixty-eight-l of this article within sixty days of receipt of the information. Information may include, but may not be limited to all or a portion of the arrest file, prosecutor's file, probation or parole file, child protective file, court file, commitment file, medical file and treatment file pertaining to such person. Such person shall be permitted to submit to the board any information relevant to the review. Upon application of the sex offender or the district attorney, the court shall seal any portion of the board's file pertaining to the sex offender that contains material that is confidential under any state or federal law; provided, however, that in any subsequent proceedings in which the sex offender who is the subject of the sealed record is a party and which requires the board to provide a recommendation to the court pursuant to this article, such sealed record shall be available to the sex offender, the district attorney, the court and the attorney general where the attorney general is a party, or represents a party, in the proceeding.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 15, eff. Jan. 1, 2000; L.2011, c. 62, pt. C, subpt. B, § 20, eff. March 31, 2011.)

McKinney's Correction Law § 168-m, NY CORRECT § 168-m

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-n

§ 168-n. Judicial determination

Currentness

1. A determination that an offender is a sexual predator, sexually violent offender, or predicate sex offender as defined in subdivision seven of section one hundred sixty-eight-a of this article shall be made prior to the discharge, parole, release to post-release supervision or release of such offender by the sentencing court applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article after receiving a recommendation from the board pursuant to section one hundred sixty-eight-l of this article.

2. In addition, applying the guidelines established in subdivision five of section one hundred sixty-eight-l of this article, the sentencing court shall also make a determination with respect to the level of notification, after receiving a recommendation from the board pursuant to section one hundred sixty-eight-l of this article. Both determinations of the sentencing court shall be made thirty calendar days prior to discharge, parole or release.

3. No later than thirty days prior to the board's recommendation, the sex offender shall be notified that his or her case is under review and that he or she is permitted to submit to the board any information relevant to the review. Upon receipt of the board's recommendation, the sentencing court shall determine whether the sex offender was previously found to be eligible for assigned counsel in the underlying case. Where such a finding was previously made, the court shall assign counsel to represent the offender, pursuant to article eighteen-B of the county law. At least twenty days prior to the determination proceeding, the sentencing court shall notify the district attorney, the sex offender and the sex offender's counsel, in writing, of the date of the determination proceeding and shall also provide the district attorney, the sex offender and the sex offender's counsel with a copy of the recommendation received from the board and any statement of the reasons for the recommendation received from the board. This notice shall include the following statement or a substantially similar statement: "This proceeding is being held to determine whether you will be classified as a level 3 offender (risk of repeat offense is high), a level 2 offender (risk of repeat offense is moderate), or a level 1 offender (risk of repeat offense is low), or whether you will be designated as a sexual predator, a sexually violent offender or a predicate sex offender, which will determine how long you must register as a sex offender and how much information can be provided to the public concerning your registration. If you fail to appear at this proceeding, without sufficient excuse, it shall be held in your absence. Failure to appear may result in a longer period of registration or a higher level of community notification because you are not present to offer evidence or contest evidence offered by the district attorney." The written notice to the sex offender shall also advise the offender that he or she has a right to a hearing prior to the court's determination, and that he or she has the right to be represented by counsel at the hearing. If counsel has been assigned to represent the offender at the determination proceeding, the notice shall also provide the name, address and telephone number of the assigned counsel. Where counsel has not been assigned, the notice shall advise the sex offender that counsel will be appointed if he or she is financially unable to retain counsel, and a returnable form shall be enclosed in the court's notice to the sex offender on which the sex offender may apply for assignment of counsel. If the sex offender applies for assignment of counsel and the court finds that the offender is financially unable to retain counsel, the court shall assign counsel to represent the sex offender pursuant to article eighteen-B of the county law. If the district attorney seeks a determination that differs from the recommendation submitted by the board, at least ten days prior to the determination proceeding the district attorney shall

provide to the court and the sex offender a statement setting forth the determinations sought by the district attorney together with the reasons for seeking such determinations. The court shall allow the sex offender to appear and be heard. The state shall appear by the district attorney, or his or her designee, who shall bear the burden of proving the facts supporting the determinations sought by clear and convincing evidence. Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party. In making the determinations the court shall review any victim's statement and any relevant materials and evidence submitted by the sex offender and the district attorney and the recommendation and any materials submitted by the board, and may consider reliable hearsay evidence submitted by either party, provided that it is relevant to the determinations. Facts previously proven at trial or elicited at the time of entry of a plea of guilty shall be deemed established by clear and convincing evidence and shall not be relitigated. The court shall render an order setting forth its determinations and the findings of fact and conclusions of law on which the determinations are based. A copy of the order shall be submitted by the court to the division. Upon application of either party, the court shall seal any portion of the court file or record which contains material that is confidential under any state or federal statute. Either party may appeal as of right from the order pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the sex offender upon the ground that the sex offender is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may appeal as a poor person pursuant to article eighteen-B of the county law.

4. Upon determination that the risk of repeat offense and threat to public safety is high, the sentencing court shall also notify the division of such fact for the purposes of section one hundred sixty-eight-q of this article.

5. Upon the reversal of a conviction of a sexual offense defined in paragraphs (a) and (b) of subdivision two or three of section one hundred sixty-eight-a of this article, the appellate court shall remand the case to the lower court for entry of an order directing the expungement of any records required to be kept herein.

6. If a sex offender, having been given notice, including the time and place of the determination proceeding in accordance with this section, fails to appear at this proceeding, without sufficient excuse, the court shall conduct the hearing and make the determinations in the manner set forth in subdivision three of this section.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, §§ 16 to 17, eff. Jan. 1, 2000; L.2002, c. 11, §§ 20, 21, eff. March 11, 2002; L.2005, c. 684, §§ 5, 6, eff. Oct. 4, 2005.)

McKinney's Correction Law § 168-n, NY CORRECT § 168-n

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-o

§ 168-o. Petition for relief or modification

Currentness

1. Any sex offender who is classified as a level two risk, and who has not been designated a sexual predator, or a sexually violent offender, or a predicate sex offender, who is required to register or verify pursuant to this article and who has been registered for a minimum period of thirty years may be relieved of any further duty to register upon the granting of a petition for relief by the sentencing court or by the court which made the determination regarding duration of registration and level of notification. The sex offender shall bear the burden of proving by clear and convincing evidence that his or her risk of repeat offense and threat to public safety is such that registration or verification is no longer necessary. Such petition, if granted, shall not relieve the petitioner of the duty to register pursuant to this article upon conviction of any offense requiring registration in the future. Such a petition shall not be considered more than once every two years. In the event that the sex offender's petition for relief is granted, the district attorney may appeal as of right from the order pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the sex offender upon the ground that the sex offender is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may appeal as a poor person pursuant to article eighteen-B of the county law.

2. Any sex offender required to register or verify pursuant to this article may petition the sentencing court or the court which made the determination regarding the level of notification for an order modifying the level of notification. The petition shall set forth the level of notification sought, together with the reasons for seeking such determination. The sex offender shall bear the burden of proving the facts supporting the requested modification by clear and convincing evidence. Such a petition shall not be considered more than annually. In the event that the sex offender's petition to modify the level of notification is granted, the district attorney may appeal as of right from the order pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the sex offender upon the ground that the sex offender is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may appeal as a poor person pursuant to article eighteen-B of the county law.

3. The district attorney may file a petition to modify the level of notification for a sex offender with the sentencing court or with the court which made the determination regarding the level of notification, where the sex offender (a) has been convicted of a new crime, or there has been a determination after a proceeding pursuant to section 410.70 of the criminal procedure law or section two hundred fifty-nine-i of the executive law that the sex offender has violated one or more conditions imposed as part of a sentence of a conditional discharge, probation, parole or post-release supervision for a designated crime, and (b) the conduct underlying the new crime or the violation is of a nature that indicates an increased risk of a repeat sex offense. The petition shall set forth the level of notification sought, together with the reasons for seeking such determination. The district attorney shall bear the burden of proving the facts supporting the requested modification, by clear and convincing evidence. In the event that the district attorney's petition is granted, the sex offender may appeal as of right from the order, pursuant to the provisions of articles fifty-five, fifty-six and fifty-seven of the civil practice law and rules. Where counsel has been assigned to represent the offender upon the ground that he or she is financially unable to retain counsel, that assignment shall be continued throughout the pendency of the appeal, and the person may proceed as a poor person, pursuant to article eighteen-B of the county law.

4. Upon receipt of a petition submitted pursuant to subdivision one, two or three of this section, the court shall forward a copy of the petition to the board and request an updated recommendation pertaining to the sex offender and shall provide a copy of the petition to the other party. The court shall also advise the sex offender that he or she has the right to be represented by counsel at the hearing and counsel will be appointed if he or she is financially unable to retain counsel. A returnable form shall be enclosed in the court's notice to the sex offender on which the sex offender may apply for assignment of counsel. If the sex offender applies for assignment of counsel and the court finds that the offender is financially unable to retain counsel, the court shall assign counsel to represent the offender, pursuant to article eighteen-B of the county law. Where the petition was filed by a district attorney, at least thirty days prior to making an updated recommendation the board shall notify the sex offender and his or her counsel that the offender's case is under review and he or she is permitted to submit to the board any information relevant to the review. The board's updated recommendation on the sex offender shall be confidential and shall not be available for public inspection. After receiving an updated recommendation from the board concerning a sex offender, the court shall, at least thirty days prior to ruling upon the petition, provide a copy of the updated recommendation to the sex offender, the sex offender's counsel and the district attorney and notify them, in writing, of the date set by the court for a hearing on the petition. After reviewing the recommendation received from the board and any relevant materials and evidence submitted by the sex offender and the district attorney, the court may grant or deny the petition. The court may also consult with the victim prior to making a determination on the petition. The court shall render an order setting forth its determination, and the findings of fact and conclusions of law on which the determination is based. If the petition is granted, it shall be the obligation of the court to submit a copy of its order to the division. Upon application of either party, the court shall seal any portion of the court file or record which contains material that is confidential under any state or federal statute.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 18, eff. Jan. 1, 2000; L.2002, c. 11, § 22, eff. March 11, 2002; L.2006, c. 1, § 5, eff. Jan. 18, 2006.)

McKinney's Correction Law § 168-o, NY CORRECT § 168-o

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-p

§ 168-p. Special telephone number

Currentness

1. Pursuant to section one hundred sixty-eight-b of this article, the division shall also operate a telephone number that members of the public may call free of charge and inquire whether a named individual required to register pursuant to this article is listed. The division shall ascertain whether a named person reasonably appears to be a person so listed and provide the caller with the relevant information according to risk as described in subdivision six of section one hundred sixty-eight-l of this article. The division shall decide whether the named person reasonably appears to be a person listed, based upon information from the caller providing information that shall include (a) an exact street address, including apartment number, driver's license number or birth date, along with additional information that may include social security number, hair color, eye color, height, weight, distinctive markings, ethnicity; or (b) any combination of the above listed characteristics if an exact birth date or address is not available. If three of the characteristics provided include ethnicity, hair color, and eye color, other identifying characteristics shall be provided. Any information identifying the victim by name, birth date, address or relation to the person listed by the division shall be excluded by the division.

2. When the telephone number is called, a preamble shall be played which shall provide the following information:

- (a) notice that the caller's telephone number will be recorded;
- (b) that there is no charge for use of the telephone number;
- (c) notice that the caller is required to identify himself or herself to the operator and provide current address and shall be maintained in a written record;
- (d) notice that the caller is required to be eighteen years of age or older;
- (e) a warning that it is illegal to use information obtained through the telephone number to commit a crime against any person listed or to engage in illegal discrimination or harassment against such person;
- (f) notice that the caller is required to have the birth date, driver's license or identification number, or address or other identifying information regarding the person about whom information is sought in order to achieve a positive identification of that person;

(g) a statement that the number is not a crime hotline and that any suspected criminal activity should be reported to local authorities;

(h) a statement that an information package which will include a description of the law and sex abuse and abduction prevention materials is available upon request from the division. Such information package shall include questions and answers regarding the most commonly asked questions about the sex offender registration act, and current sex abuse and abduction prevention material.

2-a. (a) The division shall establish a program allowing non-profit and not-for-profit youth services organizations to pre-register with the division for use of the telephone number. Pre-registration shall include the identification of up to two officials of the organization who may call the telephone number and obtain information on behalf of the organization. A pre-registered certificate issued under this subdivision shall be valid for two years, unless earlier revoked by the division for good cause shown. No fee shall be charged to an applicant for the issuance of a pre-registered certificate pursuant to this subdivision.

(b) An organization granted a pre-registered certificate pursuant to this subdivision may, upon calling the telephone number, inquire whether multiple named individuals are listed on the sex offender registry. Notwithstanding any per call limitation the division may place on calls by private individuals, the division shall allow such pre-registered organizations to inquire about up to twenty prospective coaches, leaders or volunteers in each call to the telephone number.

(c) For purposes of this subdivision, “youth services organization” shall mean a formalized program operated by a corporation pursuant to subparagraph five of paragraph (a) of section one hundred two of the not-for-profit corporation law that functions primarily to: (a) provide children the opportunity to participate in adult-supervised sporting activities; or (b) match children or groups of children with adult volunteers for the purpose of providing children with positive role models to enhance their development.

2-b. The division shall maintain a program allowing a transportation network company (TNC), as defined in section one thousand six hundred ninety-one of the vehicle and traffic law, to electronically submit multiple names, and other necessary identifying information as required by the division and in accordance with subdivision one of this section, of applicants applying to be TNC drivers for the purpose of determining whether such applicants are listed on the sex offender registry pursuant to this article. The division shall respond to such inquiry electronically, within four business days, and notify such TNC of any such applicant who is listed on the registry pursuant to this article. A TNC shall pre-register with the division before the electronic submission of names and shall agree in writing that information obtained by a TNC pursuant to this subdivision be used only for the purposes of determining eligibility of an applicant for a TNC permit, pursuant to sections one thousand six hundred ninety-six and one thousand six hundred ninety-nine of the vehicle and traffic law, by designated employees of such TNC and that such information shall not be distributed or disclosed except as specifically authorized by law.

3. Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the telephone number, the attorney general, any district attorney or any person aggrieved by the misuse of the number is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order or other order against the person or group of persons responsible for the pattern or practice of misuse. The foregoing remedies shall be independent of any other remedies or procedures that may be available to an aggrieved party under other provisions of law. Such person or group of persons shall be subject to a fine of not less than five hundred dollars and not more than one thousand dollars.

4. The division shall submit to the legislature an annual report on the operation of the telephone number. The annual report shall include, but not be limited to, all of the following:

- (a) number of calls received;
- (b) a detailed outline of the amount of money expended and the manner in which it was expended for purposes of this section;
- (c) number of calls that resulted in an affirmative response and the number of calls that resulted in a negative response with regard to whether a named individual was listed;
- (d) number of persons listed; and
- (e) a summary of the success of the telephone number program based upon selected factors.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.2000, c. 1, §§ 16, 17, eff. Feb. 1, 2001; L.2000, c. 608, § 1, eff. April 28, 2001; L.2001, c. 95, § 19, eff. July 13, 2001; L.2004, c. 361, § 1, eff. Sept. 9, 2004; L.2017, c. 60, § 3, eff. June 29, 2017.)

McKinney's Correction Law § 168-p, NY CORRECT § 168-p

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-q

§ 168-q. Subdirectory; internet posting

Currentness

1. The division shall maintain a subdirectory of level two and three sex offenders. The subdirectory shall include the exact address, address of the offender's place of employment and photograph of the sex offender along with the following information, if available: name, physical description, age and distinctive markings. Background information including all of the sex offender's crimes of conviction that require him or her to register pursuant to this article, modus of operation, type of victim targeted, the name and address of any institution of higher education at which the sex offender is enrolled, attends, is employed or resides and a description of special conditions imposed on the sex offender shall also be included. The subdirectory shall have sex offender listings categorized by county and zip code. Such subdirectory shall be made available at all times on the internet via the division homepage. Any person may apply to the division to receive automated e-mail notifications whenever a new or updated subdirectory registration occurs in a geographic area specified by such person. The division shall furnish such service at no charge to such person, who shall request e-mail notification by county and/or zip code on forms developed and provided by the division. E-mail notification is limited to three geographic areas per e-mail account.

2. Any person who uses information disclosed pursuant to this section in violation of the law shall in addition to any other penalty or fine imposed, be subject to a fine of not less than five hundred dollars and not more than one thousand dollars. Unauthorized removal or duplication of the subdirectory from the offices of local, village or city police department shall be punishable by a fine not to exceed one thousand dollars. In addition, the attorney general, any district attorney, or any person aggrieved is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for such action. The foregoing remedies shall be independent of any other remedies or procedures that may be available to an aggrieved party under other provisions of law.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 113, § 1, eff. Sept. 20, 1999; L.1999, c. 453, § 19, eff. Jan. 1, 2000; L.2000, c. 490, § 1, eff. Jan. 21, 2001; L.2002, c. 11, § 23, eff. July 1, 2002; L.2002, c. 694, § 4, eff. May 30, 2003; L.2003, c. 10, §§ 5, 6, eff. May 30, 2003; L.2006, c. 106, § 2, eff. June 23, 2006; L.2009, c. 478, § 1, eff. March 15, 2010; L.2011, c. 532, § 3, eff. Sept. 23, 2011; L.2014, c. 462, § 1, eff. March 21, 2015.)

McKinney's Correction Law § 168-q, NY CORRECT § 168-q

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

McKinney's Consolidated Laws of New York Annotated
Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-r

§ 168-r. Immunity from liability

Currentness

1. No official, employee or agency, whether public or private, shall be subject to any civil or criminal liability for damages for any discretionary decision to release relevant and necessary information pursuant to this section, unless it is shown that such official, employee or agency acted with gross negligence or in bad faith. The immunity provided under this section applies to the release of relevant information to other employees or officials or to the general public.

2. Nothing in this section shall be deemed to impose any civil or criminal liability upon or to give rise to a cause of action against any official, employee or agency, whether public or private, for failing to release information as authorized in this section unless it is shown that such official, employee or agency acted with gross negligence or in bad faith.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996.)

McKinney's Correction Law § 168-r, NY CORRECT § 168-r

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-s

§ 168-s. Annual report

Currentness

The division shall on or before February first in each year file a report with the governor, and the legislature detailing the program, compliance with provisions of this article and effectiveness of the provisions of this article, together with any recommendations to further enhance the intent of this article.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996.)

McKinney's Correction Law § 168-s, NY CORRECT § 168-s

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-t

§ 168-t. Penalty

Currentness

Any sex offender required to register or to verify pursuant to the provisions of this article who fails to register or verify in the manner and within the time periods provided for in this article shall be guilty of a class E felony upon conviction for the first offense, and upon conviction for a second or subsequent offense shall be guilty of a class D felony. Any sex offender who violates the provisions of section one hundred sixty-eight-v of this article shall be guilty of a class A misdemeanor upon conviction for the first offense, and upon conviction for a second or subsequent offense shall be guilty of a class D felony. Any such failure to register or verify may also be the basis for revocation of parole pursuant to section two hundred fifty-nine-i of the executive law or the basis for revocation of probation pursuant to article four hundred ten of the criminal procedure law.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Amended L.1999, c. 453, § 20, eff. Jan. 1, 2000; L.2005, c. 604, § 2, eff. Aug. 30, 2005; L.2007, c. 373, § 1, eff. Aug. 17, 2007.)

McKinney's Correction Law § 168-t, NY CORRECT § 168-t

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-u

§ 168-u. Unauthorized release of information

Currentness

The unauthorized release of any information required by this article shall be a class B misdemeanor.

Credits

(Added L.1995, c. 192, § 2, eff. Jan. 21, 1996.)

McKinney's Correction Law § 168-u, NY CORRECT § 168-u

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-v

§ 168-v. Prohibition of employment on motor vehicles engaged in retail sales of frozen desserts

Currentness

No person required to maintain registration under this article (sex offender registration act) shall operate, be employed on or dispense goods for sale at retail on a motor vehicle engaged in retail sales of frozen desserts as defined in subdivision thirty-seven of section three hundred seventy-five of the vehicle and traffic law.

Credits

(Added L.2005, c. 604, § 1, eff. Aug. 30, 2005.)

McKinney's Correction Law § 168-v, NY CORRECT § 168-v

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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Correction Law (Refs & Annos)
Chapter 43. Of the Consolidated Laws (Refs & Annos)
Article 6-C. Sex Offender Registration Act (Refs & Annos)

McKinney's Correction Law § 168-w

§ 168-w. Separability

Currentness

If any section of this article, or part thereof shall be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder or any other section or part thereof.

Credits

(Formerly § 168-v, added L.1995, c. 192, § 2, eff. Jan. 21, 1996. Renumbered § 168-w L.2003, c. 200, § 1, eff. Nov. 1, 2003. Renumbered § 168-v L.2004, c. 106, § 1, eff. Aug. 7, 2004. Renumbered § 168-w, L.2005, c. 604, § 1, eff. Aug. 30, 2005.)

McKinney's Correction Law § 168-w, NY CORRECT § 168-w

Current through L.2025 chapters 1 to 207. Some statute sections may be more current, see credits for details.

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West's North Carolina General Statutes Annotated

Chapter 14. Criminal Law

Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs

N.C.G.S.A. Ch. 14, Subch. VII, Art. 27A, Refs & Annos

Currentness

N.C.G.S.A. Ch. 14, Subch. VII, Art. 27A, Refs & Annos, NC ST Ch. 14, Subch. VII, Art. 27A, Refs & Annos

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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West's North Carolina General Statutes Annotated

Chapter 14. Criminal Law

Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 1. Registration Programs, Purpose and Definitions Generally

N.C.G.S.A. § 14-208.5

§ 14-208.5. Purpose

Currentness

The General Assembly recognizes that sex offenders often pose a high risk of engaging in sex offenses even after being released from incarceration or commitment and that protection of the public from sex offenders is of paramount governmental interest.

The General Assembly also recognizes that persons who commit certain other types of offenses against minors, such as kidnapping, pose significant and unacceptable threats to the public safety and welfare of the children in this State and that the protection of those children is of great governmental interest. Further, the General Assembly recognizes that law enforcement officers' efforts to protect communities, conduct investigations, and quickly apprehend offenders who commit sex offenses or certain offenses against minors are impaired by the lack of information available to law enforcement agencies about convicted offenders who live within the agency's jurisdiction. Release of information about these offenders will further the governmental interests of public safety so long as the information released is rationally related to the furtherance of those goals.

Therefore, it is the purpose of this Article to assist law enforcement agencies' efforts to protect communities by requiring persons who are convicted of sex offenses or of certain other offenses committed against minors to register with law enforcement agencies, to require the exchange of relevant information about those offenders among law enforcement agencies, and to authorize the access to necessary and relevant information about those offenders to others as provided in this Article.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998.

N.C.G.S.A. § 14-208.5, NC ST § 14-208.5

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

West's North Carolina General Statutes Annotated

Chapter 14. Criminal Law

Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 1. Registration Programs, Purpose and Definitions Generally

N.C.G.S.A. § 14-208.6

§ 14-208.6. Definitions

Currentness

The following definitions apply in this Article:

(1a) Aggravated offense.--Any criminal offense that includes either of the following: (i) engaging in a sexual act involving vaginal, anal, or oral penetration with a victim of any age through the use of force or the threat of serious violence; or (ii) engaging in a sexual act involving vaginal, anal, or oral penetration with a victim who is less than 12 years old.

(1b) County registry.--The information compiled by the sheriff of a county in compliance with this Article.

(1c) Department.--The Department of Public Safety.

(1d) Electronic mail.--The transmission of information or communication by the use of the Internet, a computer, a facsimile machine, a pager, a cellular telephone, a video recorder, or other electronic means sent to a person identified by a unique address or address number and received by that person.

(1e) Employed.--Includes employment that is full-time or part-time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit.

(1f) Entity.--A business or organization that provides Internet service, electronic communications service, remote computing service, online service, electronic mail service, or electronic instant message or chat services whether the business or organization is inside or outside the State.

(1g) Instant message.--A form of real-time text communication between two or more people. The communication is conveyed via computers connected over a network such as the Internet.

(1h) Institution of higher education.--Any postsecondary public or private educational institution, including any trade or professional institution, college, or university.

- (1i) Internet.--The global information system that is logically linked together by a globally unique address space based on the Internet Protocol or its subsequent extensions; that is able to support communications using the Transmission Control Protocol/Internet Protocol suite, its subsequent extensions, or other Internet Protocol compatible protocols; and that provides, uses, or makes accessible, either publicly or privately, high-level services layered on the communications and related infrastructure described in this subdivision.
- (1j) Mental abnormality.--A congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of others.
- (1k) Nonresident student.--A person who is not a resident of North Carolina but who is enrolled in any type of school in the State on a part-time or full-time basis.
- (1l) Nonresident worker.--A person who is not a resident of North Carolina but who has employment or carries on a vocation in the State, on a part-time or full-time basis, with or without compensation or government or educational benefit, for more than 14 days, or for an aggregate period exceeding 30 days in a calendar year.
- (1m) Offense against a minor.--Any of the following offenses if the offense is committed against a minor, and the person committing the offense is not the minor's parent: G.S. 14-39 (kidnapping), G.S. 14-41 (abduction of children), and G.S. 14-43.3 (felonious restraint). The term also includes the following if the person convicted of the following is not the minor's parent: a solicitation or conspiracy to commit any of these offenses; aiding and abetting any of these offenses.
- (1n) Online identifier.--Electronic mail address, instant message screen name, user ID, chat or other Internet communication name, but it does not mean social security number, date of birth, or pin number.
- (2) Penal institution.--Any of the following:
- a. A detention facility operated under the jurisdiction of the Division of Prisons of the Department of Adult Correction.
 - b. A detention facility operated under the jurisdiction of another state or the federal government.
 - c. A detention facility operated by a local government in this State or another state.
- (2a) Personality disorder.--An enduring pattern of inner experience and behavior that deviates markedly from the expectations of the individual's culture, is pervasive and inflexible, has an onset in adolescence or early adulthood, is stable over time, and leads to distress or impairment.
- (2b) Recidivist.--A person who has a prior conviction for an offense that is described in G.S. 14-208.6(4).
- (3) Release.--Discharged or paroled.

(3e) Reoffender.--A person who has two or more convictions for a felony that is described in G.S. 14-208.6(4). For purposes of this definition, if an offender is convicted of more than one offense in a single session of court, only one conviction is counted.

(4) Reportable conviction.--Any of the following:

- a. A final conviction for an offense against a minor, a sexually violent offense, or an attempt to commit any of those offenses unless the conviction is for aiding and abetting. A final conviction for aiding and abetting is a reportable conviction only if the court sentencing the individual finds that the registration of that individual under this Article furthers the purposes of this Article as stated in G.S. 14-208.5.
- b. A final conviction in another state of an offense, which if committed in this State, is substantially similar to an offense against a minor or a sexually violent offense as defined by this section, or a final conviction in another state of an offense that requires registration under the sex offender registration statutes of that state.
- c. A final conviction in a federal jurisdiction (including a court martial) of an offense, which is substantially similar to an offense against a minor or a sexually violent offense as defined by this section.
- d. A final conviction for a violation of G.S. 14-202(d), (e), (f), (g), or (h), or a second or subsequent conviction for a violation of G.S. 14-202(a), (a1), or (c), only if the court sentencing the individual issues an order pursuant to G.S. 14-202(l) requiring the individual to register.
- e. A final conviction for a violation of G.S. 14-43.14, only if the court sentencing the individual issues an order pursuant to G.S. 14-43.14(e) requiring the individual to register.
- f. A final conviction in a State court-martial proceeding imposing confinement under G.S. 127A-48 or G.S. 127A-49 for an offense which is substantially similar to an offense against a minor or a sexually violent offense as defined in this section.

(5) Sexually violent offense.--A violation of former G.S. 14-27.6 (attempted rape or sexual offense), G.S. 14-27.21 (first-degree forcible rape), G.S. 14-27.22 (second-degree forcible rape), G.S. 14-27.23 (statutory rape of a child by an adult), G.S. 14-27.24 (first-degree statutory rape), G.S. 14-27.25(a) (statutory rape of a person who is 15 years of age or younger and where the defendant is at least six years older), G.S. 14-27.26 (first-degree forcible sexual offense), G.S. 14-27.27 (second-degree forcible sexual offense), G.S. 14-27.28 (statutory sexual offense with a child by an adult), G.S. 14-27.29 (first-degree statutory sexual offense), G.S. 14-27.30(a) (statutory sexual offense with a person who is 15 years of age or younger and where the defendant is at least six years older), G.S. 14-27.31 (sexual activity by a substitute parent or custodian), G.S. 14-27.32 (sexual activity with a student), G.S. 14-27.33 (sexual battery), G.S. 14-43.11 (human trafficking) if (i) the offense is committed against a minor who is less than 18 years of age or (ii) the offense is committed against any person with the intent that they be held in sexual servitude, G.S. 14-43.13 (subjecting or maintaining a person for sexual servitude), G.S. 14-178 (incest between near relatives), G.S. 14-190.6 (employing or permitting minor to assist in offenses against public morality and decency), G.S. 14-190.9(a1) (felonious indecent exposure), G.S. 14-190.16 (first degree sexual exploitation of a minor), G.S. 14-190.17 (second degree sexual exploitation of a minor), G.S. 14-190.17A

(third degree sexual exploitation of a minor), G.S. 14-190.17C (obscene visual representation of sexual exploitation of a minor), G.S. 14-202.1 (taking indecent liberties with children), G.S. 14-202.3 (Solicitation of child by computer or certain other electronic devices to commit an unlawful sex act), G.S. 14-202.4(a) (taking indecent liberties with a student), G.S. 14-205.2(c) or (d) (patronizing a prostitute who is a minor or has a mental disability), G.S. 14-205.3(b) (promoting prostitution of a minor or a person who has a mental disability), G.S. 14-318.4(a1) (parent or caretaker commit or permit act of prostitution with or by a juvenile), or G.S. 14-318.4(a2) (commission or allowing of sexual act upon a juvenile by parent or guardian). The term also includes the following: a solicitation or conspiracy to commit any of these offenses; aiding and abetting any of these offenses.

(6) Sexually violent predator.--A person who has been convicted of a sexually violent offense and who suffers from a mental abnormality or personality disorder that makes the person likely to engage in sexually violent offenses directed at strangers or at a person with whom a relationship has been established or promoted for the primary purpose of victimization.

(7) Sheriff.--The sheriff of a county in this State.

(8) Statewide registry.--The central registry compiled by the Department in accordance with G.S. 14-208.14.

(9) Student.--A person who is enrolled on a full-time or part-time basis, in any postsecondary public or private educational institution, including any trade or professional institution, or other institution of higher education.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-15, §§ 1, 2; S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 1999-363, § 1, eff. Dec. 1, 1999; S.L. 2001-373, § 1, eff. Oct. 1, 2001; S.L. 2002-147, § 16, eff. Oct. 9, 2002; S.L. 2003-303, § 2, eff. Dec. 1, 2003; S.L. 2004-109, § 8, eff. Dec. 1, 2004; S.L. 2005-121, § 2, eff. Dec. 1, 2005; S.L. 2005-130, § 1, eff. Dec. 1, 2005; S.L. 2005-226, § 2, eff. Dec. 1, 2005; S.L. 2006-247, §§ 1(b), 19(a), 20(d), eff. Dec. 1, 2006; S.L. 2008-117, § 6.1, eff. Dec. 1, 2008; S.L. 2008-220, § 1; S.L. 2009-498, § 1, eff. Dec. 1, 2009; S.L. 2011-145, §§ 19.1(h), (j), eff. Jan. 1, 2012; S.L. 2012-194, § 4(a), eff. July 17, 2012; S.L. 2012-153, § 3, eff. Dec. 1, 2012; S.L. 2013-368, § 19, eff. Oct. 1, 2013; S.L. 2013-33, § 1, eff. Dec. 1, 2013; S.L. 2014-100, § 17.1(x), eff. July 1, 2014; S.L. 2015-62, § 1(b), eff. Dec. 1, 2015; S.L. 2015-181, § 32, eff. Dec. 1, 2015; S.L. 2017-102, § 5, eff. Dec. 1, 2015; S.L. 2017-186, § 2(q), eff. Dec. 1, 2017; S.L. 2018-47, § 4(h), eff. Dec. 1, 2018; S.L. 2021-138, § 18(b), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(ii), eff. Jan. 1, 2023; S.L. 2023-86, § 7(a), eff. Oct. 1, 2023; S.L. 2024-37, § 3(a), eff. Dec. 1, 2024.

N.C.G.S.A. § 14-208.6, NC ST § 14-208.6

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

West's North Carolina General Statutes Annotated

Chapter 14. Criminal Law

Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 1. Registration Programs, Purpose and Definitions Generally

N.C.G.S.A. § 14-208.6A

§ 14-208.6A. Lifetime registration requirements for criminal offenders

Currentness

It is the objective of the General Assembly to establish a 30-year registration requirement for persons convicted of certain offenses against minors or sexually violent offenses with an opportunity for those persons to petition in superior court to shorten their registration time period after 10 years of registration. It is the further objective of the General Assembly to establish a more stringent set of registration requirements for recidivists, persons who commit aggravated offenses, and for a subclass of highly dangerous sex offenders who are determined by a sentencing court with the assistance of a board of experts to be sexually violent predators.

To accomplish this objective, there are established two registration programs: the Sex Offender and Public Protection Registration Program and the Sexually Violent Predator Registration Program. Any person convicted of an offense against a minor or of a sexually violent offense as defined by this Article shall register in person as an offender in accordance with Part 2 of this Article. Any person who is a recidivist, who commits an aggravated offense, or who is determined to be a sexually violent predator shall register in person as such in accordance with Part 3 of this Article.

The information obtained under these programs shall be immediately shared with the appropriate local, State, federal, and out-of-state law enforcement officials and penal institutions. In addition, the information designated under G.S. 14-208.10(a) as public record shall be readily available to and accessible by the public. However, the identity of the victim is not public record and shall not be released as a public record.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 2, eff. Oct. 1, 2001; S.L. 2006-247, § 2(a), eff. Dec. 1, 2006; S.L. 2008-117, § 8, eff. Dec. 1, 2008.

N.C.G.S.A. § 14-208.6A, NC ST § 14-208.6A

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Part 1. Registration Programs, Purpose and Definitions Generally

N.C.G.S.A. § 14-208.6B

§ 14-208.6B. Registration requirements for juveniles transferred to and convicted in superior court

Currentness

A juvenile transferred to superior court pursuant to G.S. 7B-2200 or G.S. 7B-2200.5 who is convicted of a sexually violent offense or an offense against a minor as defined in G.S. 14-208.6 shall register in person in accordance with this Article just as an adult convicted of the same offense must register.

Credits

Added S.L. 1997-516, § 1 eff. April 1, 1998. Amended S.L. 1998-202, § 13(e), eff. July 1, 1999; S.L. 2006-247, § 3(a), eff. Dec. 1, 2006; S.L. 2017-57, § 16D.4(o), eff. Dec. 1, 2019.

N.C.G.S.A. § 14-208.6B, NC ST § 14-208.6B

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N.C.G.S.A. § 14-208.6C

§ 14-208.6C. Discontinuation of registration requirement

Currentness

The period of registration required by any of the provisions of this Article shall be discontinued only if the conviction requiring registration is reversed, vacated, or set aside, or if the registrant has been granted an unconditional pardon of innocence for the offense requiring registration.

Credits

Added by S.L. 2001-373, § 3, eff. Oct. 1, 2001.

N.C.G.S.A. § 14-208.6C, NC ST § 14-208.6C

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N.C.G.S.A. § 14-208.7

§ 14-208.7. Registration

Currentness

(a) A person who is a State resident and who has a reportable conviction shall be required to maintain registration with the sheriff of the county where the person resides. If the person moves to North Carolina from outside this State, the person shall register within three business days of establishing residence in this State, or whenever the person has been present in the State for 15 days, whichever comes first. If the person is a current resident of North Carolina, the person shall register:

- (1) Within three business days of release from a penal institution or arrival in a county to live outside a penal institution; or
- (2) Immediately upon conviction for a reportable offense where an active term of imprisonment was not imposed.

Registration shall be maintained for a period of at least 30 years following the date of initial county registration unless the person, after 10 years of registration, successfully petitions the superior court to shorten his or her registration time period under G.S. 14-208.12A.

(a1) A person who is a nonresident student or a nonresident worker and who has a reportable conviction, or is required to register in the person's state of residency, is required to maintain registration with the sheriff of the county where the person works or attends school. In addition to the information required under subsection (b) of this section, the person shall also provide information regarding the person's school or place of employment as appropriate and the person's address in his or her state of residence.

(b) The Department of Public Safety shall provide each sheriff with forms for registering persons as required by this Article. The registration form shall require all of the following:

- (1) The person's full name, each alias, date of birth, sex, race, height, weight, eye color, hair color, drivers license number, and home address.
- (1a) A statement indicating what the person's name was at the time of the conviction for the offense that requires registration; what alias, if any, the person was using at the time of the conviction of that offense; and the name of the person as it appears on the judgment imposing the sentence on the person for the conviction of the offense.
- (2) The type of offense for which the person was convicted, the date of conviction, and the sentence imposed.

- (3) A current photograph taken by the sheriff, without charge, at the time of registration.
- (4) The person's fingerprints taken by the sheriff, without charge, at the time of registration.
- (5) A statement indicating whether the person is a student or expects to enroll as a student within a year of registering. If the person is a student or expects to enroll as a student within a year of registration, then the registration form shall also require the name and address of the educational institution at which the person is a student or expects to enroll as a student.
- (6) A statement indicating whether the person is employed or expects to be employed at an institution of higher education within a year of registering. If the person is employed or expects to be employed at an institution of higher education within a year of registration, then the registration form shall also require the name and address of the educational institution at which the person is or expects to be employed.
- (7) Any online identifier that the person uses or intends to use.

(c) When a person registers, the sheriff with whom the person registered shall immediately send the registration information to the Department of Public Safety in a manner determined by the Department of Public Safety. The sheriff shall retain the original registration form and other information collected and shall compile the information that is a public record under this Part into a county registry.

(d) Any person required to register under this section shall report in person at the appropriate sheriff's office to comply with the registration requirements set out in this section. The sheriff shall provide the registrant with written proof of registration at the time of registration.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 2001-373, § 4, eff. Oct. 1, 2001; S.L. 2002-147, § 17, eff. Oct. 9, 2002; S.L. 2006-247, § 5(a), eff. Dec. 1, 2006; S.L. 2008-117, § 8, eff. Dec. 1, 2008; S.L. 2008-220, § 2, eff. May 1, 2009; S.L. 2011-61, § 1, eff. Dec. 1, 2011; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.7, NC ST § 14-208.7

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N.C.G.S.A. § 14-208.8

§ 14-208.8. Prerelease notification

Currentness

(a) At least 10 days, but not earlier than 30 days, before a person who will be subject to registration under this Article is due to be released from a penal institution, an official of the penal institution shall do all of the following:

- (1) Inform the person of the person's duty to register under this Article and require the person to sign a written statement that the person was so informed or, if the person refuses to sign the statement, certify that the person was so informed.
- (2) Obtain the registration information required under G.S. 14-208.7(b)(1), (2), (5), (6), and (7), as well as the address where the person expects to reside upon the person's release.
- (3) Send the Department of Public Safety and the sheriff of the county in which the person expects to reside the information collected in accordance with subdivision (2) of this subsection.

(b) If a person who is subject to registration under this Article does not receive an active term of imprisonment, the court pronouncing sentence shall conduct, at the time of sentencing, the notification procedures specified in subsection (a) of this section.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 2002-147, § 18, eff. Oct. 9, 2002; S.L. 2008-220, § 3, eff. May 1, 2009; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.8, NC ST § 14-208.8

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N.C.G.S.A. § 14-208.8A

§ 14-208.8A. Notification requirement for out-of-county employment if temporary residence established

Currentness

(a) Notice Required.--A person required to register under G.S. 14-208.7 shall notify the sheriff of the county with whom the person is registered of the person's place of employment and temporary residence, which includes a hotel, motel, or other transient lodging place, if the person meets both of the following conditions:

- (1) Is employed or carries on a vocation in a county in the State other than the county in which the person is registered for more than 10 business days within a 30-day period, or for an aggregate period exceeding 30 days in a calendar year, on a part-time or full-time basis, with or without compensation or government or educational benefit.
- (2) Maintains a temporary residence in that county for more than 10 business days within a 30-day period, or for an aggregate period exceeding 30 days in a calendar year.

(b) Time Period.--The notice required by subsection (a) of this section shall be provided within 72 hours after the person knows or should know that he or she will be working and maintaining a temporary residence in a county other than the county in which the person resides for more than 10 business days within a 30-day period, or within 10 days after the person knows or should know that he or she will be working and maintaining a temporary residence in a county other than the county in which the person resides for an aggregate period exceeding 30 days in a calendar year.

(c) Notice to Department of Public Safety.--Upon receiving the notice required under subsection (a) of this section, the sheriff shall immediately forward the information to the Department of Public Safety. The Department of Public Safety shall notify the sheriff of the county where the person is working and maintaining a temporary residence of the person's place of employment and temporary address in that county.

Credits

Added by S.L. 2006-247, § 4(a), eff. June 1, 2007. Amended by S.L. 2007-484, § 2, eff. Aug. 30, 2007; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.8A, NC ST § 14-208.8A

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N.C.G.S.A. § 14-208.9

§ 14-208.9. Change of address; change of academic status or educational
employment status; change of online identifier; change of name

Currentness

(a) If a person required to register changes address, the person shall report in person and provide written notice of the new address not later than the third business day after the change to the sheriff of the county with whom the person had last registered. If the person moves to another county, the person shall also report in person to the sheriff of the new county and provide written notice of the person's address not later than the tenth day after the change of address. Upon receipt of the notice, the sheriff shall immediately forward this information to the Department of Public Safety. When the Department of Public Safety receives notice from a sheriff that a person required to register is moving to another county in the State, the Department of Public Safety shall inform the sheriff of the new county of the person's new residence.

(b) If a person required to register intends to move to another state, the person shall report in person to the sheriff of the county of current residence at least three business days before the date the person intends to leave this State to establish residence in another state or jurisdiction. The person shall provide to the sheriff a written notification that includes all of the following information: the address, municipality, county, and state of intended residence.

(1) If it appears to the sheriff that the record photograph of the sex offender no longer provides a true and accurate likeness of the sex offender, then the sheriff shall take a photograph of the offender to update the registration.

(2) The sheriff shall inform the person that the person must comply with the registration requirements in the new state of residence. The sheriff shall also immediately forward the information included in the notification to the Department of Public Safety, and the Department of Public Safety shall inform the appropriate state official in the state to which the registrant moves of the person's notification and new address.

(b1) A person who indicates his or her intent to reside in another state or jurisdiction and later decides to remain in this State shall, within three business days after the date upon which the person indicated he or she would leave this State, report in person to the sheriff's office to which the person reported the intended change of residence, of his or her intent to remain in this State. If the sheriff is notified by the sexual offender that he or she intends to remain in this State, the sheriff shall promptly report this information to the Department of Public Safety.

(c) If a person required to register changes his or her academic status either by enrolling as a student or by terminating enrollment as a student, then the person shall, within three business days, report in person to the sheriff of the county with whom the person registered and provide written notice of the person's new status. The written notice shall include the name and address of the

institution of higher education at which the student is or was enrolled. The sheriff shall immediately forward this information to the Department of Public Safety.

(d) If a person required to register changes his or her employment status either by obtaining employment at an institution of higher education or by terminating employment at an institution of higher education, then the person shall, within three business days, report in person to the sheriff of the county with whom the person registered and provide written notice of the person's new status not later than the tenth day after the change to the sheriff of the county with whom the person registered. The written notice shall include the name and address of the institution of higher education at which the person is or was employed. The sheriff shall immediately forward this information to the Department of Public Safety.

(e) If a person required to register changes an online identifier, or obtains a new online identifier, then the person shall, within 10 days, report in person to the sheriff of the county with whom the person registered to provide the new or changed online identifier information to the sheriff. The sheriff shall immediately forward this information to the Department of Public Safety.

(f) If a person required to register changes his or her name pursuant to Chapter 101 of the General Statutes or by any other method, then the person shall, within three business days, report in person to the sheriff of the county with whom the person registered to provide the name change to the sheriff. The sheriff shall immediately forward this information to the Department of Public Safety.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 2001-373, § 5, eff. Oct. 1, 2001; S.L. 2002-147, § 19, eff. Oct. 9, 2002; S.L. 2006-247, § 6(a), eff. Dec. 1, 2006; S.L. 2007-213, § 9A, eff. July 11, 2007; S.L. 2008-117, § 9, eff. Dec. 1, 2008; S.L. 2008-220, §§ 4, 5, eff. May 1, 2009; S.L. 2011-61, §§ 2, 3, eff. Dec. 1, 2011; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.9, NC ST § 14-208.9

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N.C.G.S.A. § 14-208.9A

§ 14-208.9A. Verification of registration information

Currentness

(a) The information in the county registry shall be verified semiannually for each registrant as follows:

(1) Every year on the anniversary of a person's initial registration date, and again six months after that date, the Department of Public Safety shall mail a nonforwardable verification form to the last reported address of the person.

(2) The person shall return the verification form in person to the sheriff within three business days after the receipt of the form.

(3) The verification form shall be signed by the person and shall indicate the following:

a. Whether the person still resides at the address last reported to the sheriff. If the person has a different address, then the person shall indicate that fact and the new address.

b. Whether the person still uses or intends to use any online identifiers last reported to the sheriff. If the person has any new or different online identifiers, then the person shall provide those online identifiers to the sheriff.

c. Whether the person still uses or intends to use the name under which the person registered and last reported to the sheriff. If the person has any new or different name, then the person shall provide that name to the sheriff.

(3a) If it appears to the sheriff that the record photograph of the sex offender no longer provides a true and accurate likeness of the sex offender, then the sheriff shall take a photograph of the offender to include with the verification form.

(4) If the person fails to return the verification form in person to the sheriff within three business days after receipt of the form, the person is subject to the penalties provided in G.S. 14-208.11. If the person fails to report in person and provide the written verification as provided by this section, the sheriff shall make a reasonable attempt to verify that the person is residing at the registered address. If the person cannot be found at the registered address and has failed to report a change of address, the person is subject to the penalties provided in G.S. 14-208.11, unless the person reports in person to the sheriff and proves that the person has not changed his or her residential address.

(b) Additional Verification May Be Required.--During the period that an offender is required to be registered under this Article, the sheriff is authorized to attempt to verify that the offender continues to reside at the address last registered by the offender.

(c) Additional Photograph May Be Required.--If it appears to the sheriff that the current photograph of the sex offender no longer provides a true and accurate likeness of the sex offender, upon in-person notice from the sheriff, the sex offender shall allow the sheriff to take another photograph of the sex offender at the time of the sheriff's request. If requested by the sheriff, the sex offender shall appear in person at the sheriff's office during normal business hours within three business days of being requested to do so and shall allow the sheriff to take another photograph of the sex offender. A person who willfully fails to comply with this subsection is guilty of a Class 1 misdemeanor.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2006-247, § 7(a), eff. Dec. 1, 2006; S.L. 2008-117, § 10, eff. Dec. 1, 2008; S.L. 2008-220, § 6, eff. May 1, 2009; S.L. 2011-61, § 4, eff. Dec. 1, 2011; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.9A, NC ST § 14-208.9A

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N.C.G.S.A. § 14-208.10

§ 14-208.10. Registration information is public record; access to registration information

Currentness

(a) The following information regarding a person required to register under this Article is public record and shall be available for public inspection: name, sex, address, physical description, picture, conviction date, offense for which registration was required, the sentence imposed as a result of the conviction, and registration status. The information obtained under G.S. 14-208.22 regarding a person's medical records or documentation of treatment for the person's mental abnormality or personality disorder shall not be a part of the public record.

The sheriff shall release any other relevant information that is necessary to protect the public concerning a specific person, but shall not release the identity of the victim of the offense that required registration under this Article.

(b) Any person may obtain a copy of an individual's registration form, a part of the county registry, or all of the county registry, by submitting a written request for the information to the sheriff. However, the identity of the victim of an offense that requires registration under this Article shall not be released. The sheriff may charge a reasonable fee for duplicating costs and for mailing costs when appropriate.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998.

N.C.G.S.A. § 14-208.10, NC ST § 14-208.10

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N.C.G.S.A. § 14-208.11

§ 14-208.11. Failure to register; falsification of verification notice; failure to return verification form; order for arrest

Currentness

(a) A person required by this Article to register who willfully does any of the following is guilty of a Class F felony:

- (1) Fails to register as required by this Article, including failure to register with the sheriff in the county designated by the person, pursuant to G.S. 14-208.8, as their expected county of residence.
- (2) Fails to notify the last registering sheriff of a change of address as required by this Article.
- (3) Fails to return a verification notice as required under G.S. 14-208.9A.
- (4) Forges or submits under false pretenses the information or verification notices required under this Article.
- (5) Fails to inform the registering sheriff of enrollment or termination of enrollment as a student.
- (6) Fails to inform the registering sheriff of employment at an institution of higher education or termination of employment at an institution of higher education.
- (7) Fails to report in person to the sheriff's office as required by G.S. 14-208.7, 14-208.9, and 14-208.9A.
- (8) Reports his or her intent to reside in another state or jurisdiction but remains in this State without reporting to the sheriff in the manner required by G.S. 14-208.9.
- (9) Fails to notify the registering sheriff of out-of-county employment if temporary residence is established as required under G.S. 14-208.8A.
- (10) Fails to inform the registering sheriff of any new or changes to existing online identifiers that the person uses or intends to use.

(a1) If a person commits a violation of subsection (a) of this section, the probation officer, parole officer, or any other law enforcement officer who is aware of the violation shall immediately arrest the person in accordance with G.S. 15A-401, or seek an order for the person's arrest in accordance with G.S. 15A-305.

(a2) A person arrested pursuant to subsection (a1) of this section shall be subject to the jurisdiction of the prosecutorial and judicial district that includes the sheriff's office in the county where the person failed to register, pursuant to this Article. If the arrest is made outside of the applicable prosecutorial district, the person shall be transferred to the custody of the sheriff of the county where the person failed to register and all further criminal and judicial proceedings shall be held in that county.

(b) Before a person convicted of a violation of this Article is due to be released from a penal institution, an official of the penal institution shall conduct the prerelease notification procedures specified under G.S. 14-208.8(a)(2) and (3). If upon a conviction for a violation of this Article, no active term of imprisonment is imposed, the court pronouncing sentence shall, at the time of sentencing, conduct the notification procedures specified under G.S. 14-208.8(a)(2) and (3).

(c) A person who is unable to meet the registration or verification requirements of this Article shall be deemed to have complied with its requirements if:

- (1) The person is incarcerated in, or is in the custody of, a local, State, private, or federal correctional facility,
- (2) The person notifies the official in charge of the facility of their status as a person with a legal obligation or requirement under this Article and
- (3) The person meets the registration or verification requirements of this Article no later than 10 days after release from confinement or custody.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 2002-147, § 20, eff. Oct. 9, 2002; S.L. 2006-247, § 8(a), eff. Dec. 1, 2006; S.L. 2006-247, § 8(b), eff. June 1, 2007; S.L. 2008-220, § 7, eff. May 1, 2009; S.L. 2013-205, § 1, eff. June 26, 2013.

N.C.G.S.A. § 14-208.11, NC ST § 14-208.11

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N.C.G.S.A. § 14-208.11A

§ 14-208.11A. Duty to report noncompliance of a sex offender; penalty for failure to report in certain circumstances

Currentness

(a) It shall be unlawful and a Class H felony for any person who has reason to believe that an offender is in violation of the requirements of this Article, and who has the intent to assist the offender in eluding arrest, to do any of the following:

- (1) Withhold information from, or fail to notify, a law enforcement agency about the offender's noncompliance with the requirements of this Article, and, if known, the whereabouts of the offender.
- (2) Harbor, attempt to harbor, or assist another person in harboring or attempting to harbor, the offender.
- (3) Conceal, or attempt to conceal, or assist another person in concealing or attempting to conceal, the offender.
- (4) Provide information to a law enforcement agency regarding the offender that the person knows to be false information.

(b) This section does not apply if the offender is incarcerated in or is in the custody of a local, State, private, or federal correctional facility.

Credits

Added by S.L. 2006-247, § 9.1(a), eff. Dec. 1, 2006.

N.C.G.S.A. § 14-208.11A, NC ST § 14-208.11A

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N.C.G.S.A. § 14-208.12

§ 14-208.12. Repealed by S.L. 1997-516, § 1, eff. April 1, 1998

Currentness

N.C.G.S.A. § 14-208.12, NC ST § 14-208.12

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 2. Sex Offender and Public Protection Registration Program

N.C.G.S.A. § 14-208.12A

§ 14-208.12A. Request for termination of registration requirement

Currentness

(a) Ten years from the date of initial county registration, a person required to register under this Part may petition the superior court to terminate the 30-year registration requirement if the person has not been convicted of a subsequent offense requiring registration under this Article.

If the reportable conviction is for an offense that occurred in North Carolina, the petition shall be filed in the district where the person was convicted of the offense.

If the reportable conviction is for an offense that occurred in another state, the petition shall be filed in the district where the person resides. A person who petitions to terminate the registration requirement for a reportable conviction that is an out-of-state offense shall also do the following: (i) provide written notice to the sheriff of the county where the person was convicted that the person is petitioning the court to terminate the registration requirement and (ii) include with the petition at the time of its filing, an affidavit, signed by the petitioner, that verifies that the petitioner has notified the sheriff of the county where the person was convicted of the petition and that provides the mailing address and contact information for that sheriff.

Regardless of where the offense occurred, if the defendant was convicted of a reportable offense in any federal court, the conviction will be treated as an out-of-state offense for the purposes of this section.

(a1) The court may grant the relief if:

- (1) The petitioner demonstrates to the court that he or she has not been arrested for any crime that would require registration under this Article since completing the sentence,
- (2) The requested relief complies with the provisions of the federal Jacob Wetterling Act, as amended, and any other federal standards applicable to the termination of a registration requirement or required to be met as a condition for the receipt of federal funds by the State, and
- (3) The court is otherwise satisfied that the petitioner is not a current or potential threat to public safety.

(a2) The district attorney in the district in which the petition is filed shall be given notice of the petition at least three weeks before the hearing on the matter. The petitioner may present evidence in support of the petition and the district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied.

(a3) If the court denies the petition, the person may again petition the court for relief in accordance with this section one year from the date of the denial of the original petition to terminate the registration requirement. If the court grants the petition to terminate the registration requirement, the clerk of court shall forward a certified copy of the order to the Department of Public Safety to have the person's name removed from the registry.

(b) If there is a subsequent offense, the county registration records shall be retained until the registration requirement for the subsequent offense is terminated by the court under subsection (a1) of this section.

(c) The victim of the underlying offense may appear and be heard by the court in a proceeding regarding a request for termination of the sex offender registration requirement. If the victim has elected to receive notices of such proceedings, the district attorney's office shall notify the victim of the date, time, and place of the hearing. The district attorney's office may provide the required notification electronically or by telephone, unless the victim requests otherwise. The victim shall be responsible for notifying the district attorney's office of any changes in the victim's address and telephone number or other contact information. The judge in any court proceeding subject to this section shall inquire as to whether the victim is present and wishes to be heard. If the victim is present and wishes to be heard, the court shall grant the victim an opportunity to be reasonably heard. The right to be reasonably heard may be exercised, at the victim's discretion, through an oral statement, submission of a written statement, or submission of an audio or video statement.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2006-247, § 10(a), eff. Dec. 1, 2006; S.L. 2008-117, § 11, eff. Dec. 1, 2008; S.L. 2011-61, § 5, eff. Dec. 1, 2011; S.L. 2014-100, § 17.1(r), eff. July 1, 2014; S.L. 2017-158, § 22, eff. July 21, 2017; S.L. 2019-245, § 7(a), eff. Dec. 1, 2019.

N.C.G.S.A. § 14-208.12A, NC ST § 14-208.12A

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N.C.G.S.A. § 14-208.12B

§ 14-208.12B. Registration requirement review

Currentness

(a) When a person is notified by a sheriff that the person may be required to register based on an out-of-state conviction as provided in G.S. 14-208.6(4)(b), or a federal conviction as provided in G.S. 14-208.6(4)(c), that is substantially similar to a North Carolina sexually violent offense, or an offense against a minor, the sheriff shall notify the person of the right to petition the court for a judicial determination of the requirement to register. Notification shall be served on the person and the district attorney, as provided in G.S. 1A-1, Rule 4(j), or delivery by any other means that the person consented to in writing. The person may petition the court to contest the requirement to register by filing a petition to obtain a judicial determination as to whether the person is required to register under this Article. The judicial review shall be by a superior court judge presiding in the district where the petition is filed. The review under this section is limited to determine whether or not the person's out-of-state or federal conviction is substantially similar to a reportable conviction, as defined in G.S. 14-208.6(4)(a).

(b) The petition shall be filed in the county in which the person resides using a form created by the Administrative Office of the Courts. The petition must be filed with the clerk of court within 30 days of the person's receipt of the notification of the requirement to register from the sheriff. The person filing the petition must serve a copy of the petition on the office of the district attorney and the sheriff in the county where the person resides within three days of filing the petition with the clerk of court. The petition shall be calendared at the next regularly scheduled term of superior court. At the first setting, the petitioner must be advised of the right to have counsel present at the hearing and to the appointment of counsel if the petitioner cannot afford to retain counsel. Appointment of counsel shall be in accordance with rules adopted by the Office of Indigent Defense Services.

(c) At the hearing, the district attorney has the burden to prove by a preponderance of the evidence, that the person's out-of-state or federal conviction is for an offense, which if committed in North Carolina, was substantially similar to a sexually violent offense, or an offense against a minor. The person may present evidence in support of the lack of substantial similarity between the out-of-state or federal conviction, but may not contest the validity of the conviction. The court may review copies of the relevant out-of-state or federal criminal law and compare the elements of the out-of-state or federal offense to those purportedly similar to a North Carolina offense.

(d) After reviewing the petition, receiving any and all evidence presented by the parties at the hearing, considering any arguments of the parties, the presiding superior court judge shall determine whether the out-of-state or federal conviction is substantially similar to a reportable conviction. If the presiding superior court judge determines the out-of-state or federal conviction is substantially similar to a reportable conviction, the judge shall order the person to register as a sex offender pursuant to this Article. If the presiding superior court judge determines the out-of-state or federal conviction is not substantially similar to a reportable conviction, the judge shall indicate in an order that the person is not required to register as a sex offender pursuant to this Article, based on the out-of-state or federal conviction presented in the hearing. The judge shall prepare a written order and shall direct such order be filed with the clerk of court and copied to the district attorney and the sheriff.

(e) A person who properly files a petition in accordance with this provision shall not be required to register with the sheriff until such petition is decided by the court. No person who properly files a petition in accordance with this provision may be charged with failing to register or any other violation applicable to registrants under this Article, while such petition is pending judicial review as provided in this section.

(f) Any person who is notified by the sheriff of the person's requirement to register as a result of an out-of-state or federal conviction and fails to file a petition under this provision within 30 days of receipt of the notification shall be deemed to have waived judicial review of the person's requirement to register.

(g) A person notified of a requirement to register as a result of a conviction for an offense under G.S. 14-208.6(4)(b) or G.S. 14-208.6(4)(c), who willfully (i) does not file a petition under this section and (ii) does not register in accordance with this Article, shall be in violation of G.S. 14-208.11(a)(1) and shall be guilty of a Class F Felony as provided in that section.

(h) This section shall not be used in lieu of the process to terminate the period of registration pursuant to G.S. 14-208.12A.

(i) No sheriff, or employee of a sheriffs' office, district attorney's office, or the North Carolina State Bureau of Investigation shall incur any civil or criminal liability under North Carolina law as the result of the performance of official duties under this Article.

Credits

Added by S.L. 2020-83, § 11.5(a), eff. Aug. 1, 2020.

N.C.G.S.A. § 14-208.12B, NC ST § 14-208.12B

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N.C.G.S.A. § 14-208.13

§ 14-208.13. File with Criminal Information Network

Currentness

(a) The Department of Public Safety shall include the registration information in the Criminal Information Network as set forth in G.S. 143B-905.

(b) The Department of Public Safety shall maintain the registration information permanently even after the registrant's reporting requirement expires.

Credits

Added by Laws 1995, c. 545, § 1, eff. Jan. 1, 1996. Amended by S.L. 1997-516, § 1, eff. April 1, 1998; S.L. 2014-100, § 17.1(y), eff. July 1, 2014.

N.C.G.S.A. § 14-208.13, NC ST § 14-208.13

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N.C.G.S.A. § 14-208.14

§ 14-208.14. Statewide registry; Department of Public Safety designated custodian of statewide registry

Currentness

(a) The Department of Public Safety shall compile and keep current a central statewide sex offender registry. The Department is the State agency designated as the custodian of the statewide registry. As custodian the Department has the following responsibilities:

- (1) To receive from the sheriff or any other law enforcement agency or penal institution all sex offender registrations, changes of address, changes of academic or educational employment status, and prerelease notifications required under this Article or under federal law. The Department shall also receive notices of any violation of this Article, including a failure to register or a failure to report a change of address.
- (2) To provide all need-to-know law enforcement agencies (local, State, campus, federal, and those located in other states) immediately upon receipt by the Department of any of the following: registration information, a prerelease notification, a change of address, a change of academic or educational employment status, or notice of a violation of this Article.
- (2a) To notify the appropriate law enforcement unit at an institution of higher education as soon as possible upon receipt by the Department of relevant information based on registration information or notice of a change of academic or educational employment status. If an institution of higher education does not have a law enforcement unit, then the Department shall provide the information to the local law enforcement agency that has jurisdiction for the campus.
- (3) To coordinate efforts among law enforcement agencies and penal institutions to ensure that the registration information, changes of address, change of name, prerelease notifications, and notices of failure to register or to report a change of address are conveyed in an appropriate and timely manner.
- (4) To provide public access to the statewide registry in accordance with this Article.
- (4a) To maintain the system for public access so that a registrant's full name, any aliases, and any legal name changes are cross-referenced and a member of the public may conduct a search of the system for a registrant under any of those names.
- (5) To maintain a system allowing an entity to access a list of online identifiers of persons in the central sex offender registry.

(b) The statewide registry shall include the following:

- (1) Registration information obtained by a sheriff or penal institution under this Article or from any other local or State law enforcement agency.
- (2) Registration information received from a state or local law enforcement agency or penal institution in another state.
- (3) Registration information received from a federal law enforcement agency or penal institution.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2002-147, § 21, eff. Oct. 9, 2002; S.L. 2008-220, § 8, eff. May 1, 2009; S.L. 2011-61, §§ 6, 7, eff. Dec. 1, 2011; S.L. 2014-100, § 17.1(z), eff. July 1, 2014.

N.C.G.S.A. § 14-208.14, NC ST § 14-208.14

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N.C.G.S.A. § 14-208.15

§ 14-208.15. Certain statewide registry information is public record: access to statewide registry

Currentness

(a) The information in the statewide registry that is public record is the same as in G.S. 14-208.10. The Department of Public Safety shall release any other relevant information that is necessary to protect the public concerning a specific person, but shall not release the identity of the victim of the offense that required registration under this Article.

(b) The Department of Public Safety shall provide free public access to automated data from the statewide registry, including photographs provided by the registering sheriffs, via the Internet. The public will be able to access the statewide registry to view an individual registration record, a part of the statewide registry, or all of the statewide registry. The Department of Public Safety may also provide copies of registry information to the public upon written request and may charge a reasonable fee for duplicating costs and mailings costs.

(c) Upon request of an institution of higher education, the Sheriff of the county in which the educational institution is located shall provide a report containing the registry information for any registrant who has stated that the registrant is a student or employee, or expects to become a student or employee, of that institution of higher education. The Department of Public Safety shall provide each sheriff with the ability to generate the report from the statewide registry. The report shall be provided electronically without charge. The institution of higher education may receive a written report upon payment of reasonable duplicating costs and mailing costs.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2014-100, § 17.1(r), eff. July 1, 2014; S.L. 2015-44, § 4, eff. Dec. 1, 2015.

N.C.G.S.A. § 14-208.15, NC ST § 14-208.15

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N.C.G.S.A. § 14-208.15A

§ 14-208.15A. Release of online identifiers to entity; fee

Currentness

(a) The Department of Public Safety may release registry information regarding a registered offender's online identifier to an entity for the purpose of allowing the entity to prescreen users or to compare the online identifier information with information held by the entity as provided by this section.

(b) An entity desiring to prescreen its users or compare its database of registered users to the list of online identifiers of persons in the statewide registry may apply to the Department of Public Safety to access the information. An entity that complies with the criteria developed by the Department of Public Safety regarding the release and use of the online identifier information and pays the fee may screen new users or compare its database of registered users to the list of online identifiers of persons in the statewide registry as frequently as the Department of Public Safety may allow for the purpose of identifying a registered user associated with an online identifier contained in the statewide registry.

(c) The Department of Public Safety may charge an entity that submits a request for the online identifiers of persons in the statewide registry an annual fee of one hundred dollars (\$100.00). Fees collected under this section shall be credited to the Department of Public Safety and applied to the cost of providing this service.

(d) The Department of Public Safety shall develop standards regarding the release and use of online identifier information. The standards shall include a requirement that the information obtained from the statewide registry shall not be disclosed for any purpose other than for prescreening its users or comparing the database of registered users of the entity against the list of online identifiers of persons in the statewide registry.

(e) An entity that receives:

(1) A complaint from a user of the entity's services that a person uses its service to solicit a minor by computer to commit an unlawful sex act as defined in G.S. 14-202.3, or

(2) A report that a user may be violating G.S. 14-190.17, G.S. 14-190.17A, or G.S. 14-190.17C by posting or transmitting material that contains a visual representation of a minor engaged in sexual activity,

shall report that information and the online identifier information of the person allegedly committing the offense, including whether that online identifier is included in the statewide registry, to the Cyber Tip Line at the National Center for Missing and Exploited Children, which shall forward that report to an appropriate law enforcement official in this State. The offense is

committed in the State for purposes of determining jurisdiction, if the transmission that constitutes the offense either originates in the State or is received in the State.

(f) An entity that complies with this section in good faith is immune from civil or criminal liability resulting from either of the following:

(1) The entity's refusal to provide system service to a person on the basis that the entity reasonably believed that the person was subject to registration under State sex offender registry laws.

(2) A person's criminal or tortious acts against a minor with whom the person had communicated on the entity's system.

Credits

Added by S.L. 2008-220, § 9, eff. May 1, 2009. Amended by S.L. 2009-272, § 2, eff. May 1, 2009; S.L. 2014-100, §§ 17.1(o), (r), eff. July 1, 2014; S.L. 2024-37, § 3(b), eff. Dec. 1, 2024.

N.C.G.S.A. § 14-208.15A, NC ST § 14-208.15A

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N.C.G.S.A. § 14-208.16

§ 14-208.16. Residential restrictions

Currentness

(a) A registrant under this Article shall not knowingly reside at one of the following:

- (1) Any location which is within 1,000 feet of any property line of a property on which any public or nonpublic school or child care center is located.
- (2) Within any structure, any portion of which is within 1,000 feet of any property line of a property on which any public or nonpublic school or child care center is located.

This subsection applies to any registrant who did not establish his or her residence, in accordance with subsection (d) of this section, prior to August 16, 2006.

(b) As used in this section, “school” does not include home schools as defined in G.S. 115C-563 or institutions of higher education; however, for the purposes of this section, the term “school” shall include any construction project designated for use as a public school if the governing body has notified the sheriff or sheriffs with jurisdiction within 1,000 feet of the construction project of the construction of the public school. The term “child care center” is defined by G.S. 110-86(3); however, for purposes of this section, the term “child care center” does include the permanent locations of organized clubs of Boys and Girls Clubs of America. The term “registrant” means a person who is registered, or is required to register, under this Article.

(c) This section does not apply to child care centers that are located on or within 1,000 feet of the property of an institution of higher education where the registrant is a student or is employed.

(d) Changes in the ownership of or use of property within 1,000 feet of a registrant's registered address that occur after a registrant establishes residency at the registered address shall not form the basis for finding that an offender is in violation of this section. For purposes of this subsection, a residence is established when the registrant does any of the following:

- (1) Purchases the residence or enters into a specifically enforceable contract to purchase the residence.
- (2) Enters into a written lease contract for the residence and for as long as the person is lawfully entitled to remain on the premises.

(3) Resides with an immediate family member who established residence in accordance with this subsection. For purposes of this subsection, “immediate family member” means a child or sibling who is 18 years of age or older, or a parent, grandparent, legal guardian, or spouse of the registrant.

(e) Nothing in this section shall be construed as creating a private cause of action against a real estate agent or landlord for any act or omission arising out of the residential restriction in this section.

(f) A violation of this section is a Class G felony.

Credits

Added by S.L. 2006-247, § 11(a), eff. Dec. 1, 2006. Amended by S.L. 2007-213, § 10, eff. July 11, 2007; S.L. 2013-28, § 1, eff. April 16, 2013; S.L. 2014-21, § 1, eff. June 24, 2014; S.L. 2019-245, § 8(a), eff. Dec. 1, 2019; S.L. 2021-115, § 3, eff. Dec. 1, 2021.

N.C.G.S.A. § 14-208.16, NC ST § 14-208.16

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N.C.G.S.A. § 14-208.17

§ 14-208.17. Sexual predator prohibited from working or
volunteering for child-involved activities; limitation on residential use

Currentness

(a) It shall be unlawful for any person required to register under this Article to work for any person or as a sole proprietor, with or without compensation, at any place where a minor is present and the person's responsibilities or activities would include instruction, supervision, or care of a minor or minors.

(b) It shall be unlawful for any person to conduct any activity at his or her residence where the person:

(1) Accepts a minor or minors into his or her care or custody from another, and

(2) Knows that a person who resides at that same location is required to register under this Article.

(c) A violation of this section is a Class F felony.

Credits

Added by S.L. 2006-247, § 11(b), eff. Dec. 1, 2006.

N.C.G.S.A. § 14-208.17, NC ST § 14-208.17

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N.C.G.S.A. § 14-208.18

§ 14-208.18. Sex offender unlawfully on premises

Currentness

(a) It shall be unlawful for any person required to register under this Article, if the offense requiring registration is described in subsection (c) of this section, to knowingly be at any of the following locations:

- (1) On the premises of any place intended primarily for the use, care, or supervision of minors, including, but not limited to, schools, children's museums, child care centers, nurseries, and playgrounds.
- (2) Within 300 feet of any location intended primarily for the use, care, or supervision of minors when the place is located on premises that are not intended primarily for the use, care, or supervision of minors, including, but not limited to, places described in subdivision (1) of this subsection that are located in malls, shopping centers, or other property open to the general public.
- (3) At any place where minors frequently congregate, including, but not limited to, libraries, arcades, amusement parks, recreation parks, and swimming pools, when minors are present.
- (4) On the State Fairgrounds during the period of time each year that the State Fair is conducted, on the Western North Carolina Agricultural Center grounds during the period of time each year that the North Carolina Mountain State Fair is conducted, and on any other fairgrounds during the period of time that an agricultural fair is being conducted.

(b) Notwithstanding any provision of this section, a person subject to subsection (a) of this section who is the parent or guardian of a minor may take the minor to any location that can provide emergency medical care treatment if the minor is in need of emergency medical care.

(c) The subdivisions of subsection (a) of this section are applicable as follows:

- (1) Subdivisions (1), (3), and (4) of subsection (a) of this section apply to persons required to register under this Article who have committed any of the following offenses:
 - a. Any offense in Article 7B of this Chapter or any federal offense or offense committed in another state, which if committed in this State, is substantially similar to an offense in Article 7B of this Chapter.

b. Any offense where the victim of the offense was under the age of 18 years at the time of the offense.

c. Any offense in violation of G.S. 14-190.16, 14-190.17, 14-190.17A, or 14-190.17C or any federal offense or offense committed in another state, which if committed in this State is substantially similar to an offense in violation of G.S. 14-190.16, 14-190.17, 14-190.17A, or 14-190.17C.

(2) Subdivision (2) of subsection (a) of this section applies to persons required to register under this Article if any of the following apply:

a. The person has committed any offense in Article 7B of this Chapter or any federal offense or offense committed in another state, which if committed in this State is substantially similar to an offense in Article 7B of this Chapter, and a finding has been made in any criminal or civil proceeding that the person presents, or may present, a danger to minors under the age of 18.

b. The person has committed any offense where the victim of the offense was under the age of 18 years at the time of the offense.

c. The person has committed an offense in violation of G.S. 14-190.16, 14-190.17, 14-190.17A, or 14-190.17C or any federal offense or offense committed in another state, which if committed in this State is substantially similar to an offense in violation of G.S. 14-190.16, 14-190.17, 14-190.17A, or 14-190.17C.

(d) A person subject to subsection (a) of this section who is a parent or guardian of a student enrolled in a school may be present on school property if all of the following conditions are met:

(1) The parent or guardian is on school property for the purpose for one of the following:

a. To attend a conference at the school with school personnel to discuss the academic or social progress of the parents' or guardians' child; or

b. The presence of the parent or guardian has been requested by the principal or his or her designee for any other reason relating to the welfare or transportation of the child.

(2) The parent or guardian complies with all of the following:

a. Notice: The parent or guardian shall notify the principal of the school of the parents' or guardians' registration under this Article and of his or her presence at the school unless the parent or guardian has permission to be present from the superintendent or the local board of education, or the principal has granted ongoing permission for regular visits of a routine nature. If permission is granted by the superintendent or the local board of education, the superintendent or chairman of the local board of education shall inform the principal of the school where the parents' or guardians' will be present. Notification includes the nature of the parents' or guardians' visit and the hours when the parent or

guardian will be present at the school. The parent or guardian is responsible for notifying the principal's office upon arrival and upon departure. Any permission granted under this sub-subdivision shall be in writing.

b. Supervision: At all times that a parent or guardian is on school property, the parent or guardian shall remain under the direct supervision of school personnel. A parent or guardian shall not be on school property even if the parent or guardian has ongoing permission for regular visits of a routine nature if no school personnel are reasonably available to supervise the parent or guardian on that occasion.

(e) A person subject to subsection (a) of this section who is eligible to vote may be present at a location described in subsection (a) used as a voting place as defined by G.S. 163-165 only for the purposes of voting and shall not be outside the voting enclosure other than for the purpose of entering and exiting the voting place. If the voting place is a school, then the person subject to subsection (a) shall notify the principal of the school that he or she is registered under this Article.

(f) A person subject to subsection (a) of this section who is eligible under G.S. 115C-378 to attend public school may be present on school property if permitted by the governing body of the public school unit pursuant to G.S. 115C-390.11(a)(2).

(g) A juvenile subject to subsection (a) of this section may be present at a location described in that subsection if the juvenile is at the location to receive medical treatment or mental health services and remains under the direct supervision of an employee of the treating institution at all times.

(g1) Notwithstanding any provision of this section, a person subject to subsection (a) of this section who is required to wear an electronic monitoring device shall wear an electronic monitoring device that provides exclusion zones around the premises of all elementary and secondary schools in North Carolina.

(h) A violation of this section is a Class H felony.

Credits

Added by S.L. 2008-117, § 12, eff. Dec. 1, 2008. Amended by S.L. 2009-570, § 5, eff. Aug. 28, 2009; S.L. 2011-282, § 14, eff. June 23, 2011; S.L. 2011-245, § 2(b), eff. Oct. 1, 2011; S.L. 2015-62, § 5(a), eff. Dec. 1, 2015; S.L. 2016-102, § 1, eff. Sept. 1, 2016; S.L. 2021-115, § 1, eff. Dec. 1, 2021; S.L. 2022-74, § 7.7(l), eff. July 11, 2022; S.L. 2024-37, § 3(c), eff. Dec. 1, 2024.

N.C.G.S.A. § 14-208.18, NC ST § 14-208.18

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Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 2. Sex Offender and Public Protection Registration Program

N.C.G.S.A. § 14-208.19

§ 14-208.19. Community and public notification

Currentness

The licensee for each licensed day care center and the principal of each elementary school, middle school, and high school shall register with the North Carolina Sex Offender and Public Protection Registry to receive e-mail notification when a registered sex offender moves within a one-mile radius of the licensed day care center or school.

Credits

Added by S.L. 2008-117, § 13, eff. Dec. 1, 2008.

N.C.G.S.A. § 14-208.19, NC ST § 14-208.19

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N.C.G.S.A. § 14-208.19A

§ 14-208.19A. Commercial drivers license restrictions

Currentness

(a) The Division of Motor Vehicles, in compliance with G.S. 20-37.14A, shall not issue or renew a commercial drivers license with a P or S endorsement to any person required to register under this Article.

(b) The Division of Motor Vehicles, in compliance with G.S. 20-37.13(f) shall not issue a commercial driver learner's permit with a P or S endorsement to any person required to register under this Article.

(c) A person who is convicted of a violation that requires registration under Article 27A of Chapter 14 of the General Statutes is disqualified under G.S. 20-17.4 from driving a commercial motor vehicle that requires a commercial drivers license with a P or S endorsement for the period of time during which the person is required to maintain registration under Article 27A of Chapter 14 of the General Statutes.

(d) A person who drives a commercial passenger vehicle or a school bus and who does not have a commercial drivers license with a P or S endorsement because the person was convicted of a violation that requires registration under Article 27A of Chapter 14 of the General Statutes shall be punished as provided by G.S. 20-27.1.

Credits

Added by S.L. 2009-491, § 1, eff. Dec. 1, 2009.

N.C.G.S.A. § 14-208.19A, NC ST § 14-208.19A

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Part 3. Sexually Violent Predator Registration Program

N.C.G.S.A. § 14-208.20

§ 14-208.20. Sexually violent predator determination; notice of intent; presentence investigation

Currentness

(a) When a person is charged by indictment or information with the commission of a sexually violent offense, the district attorney shall decide whether to seek classification of the offender as a sexually violent predator if the person is convicted. If the district attorney intends to seek the classification of a sexually violent predator, the district attorney shall within the time provided for the filing of pretrial motions under G.S. 15A-952 file a notice of the district attorney's intent. The court may for good cause shown allow late filing of the notice, grant additional time to the parties to prepare for trial, or make other appropriate orders.

(b) Prior to sentencing a person as a sexually violent predator, the court shall order a presentence investigation in accordance with G.S. 15A-1332(c). However, the study of the defendant and whether the defendant is a sexually violent predator shall be conducted by a board of experts selected by the Division of Prisons of the Department of Adult Correction. The board of experts shall be composed of at least four people. Two of the board members shall be experts in the field of the behavior and treatment of sexual offenders, one of whom shall be selected from a panel of experts in those fields provided by the North Carolina Medical Society and not employed with the Division of Prisons of the Department of Adult Correction or employed on a full-time basis with any other State agency. One of the board members shall be a victims' rights advocate, and one of the board members shall be a representative of law enforcement agencies.

(c) When the defendant is returned from the presentence commitment, the court shall hold a sentencing hearing in accordance with G.S. 15A-1334. At the sentencing hearing, the court shall, after taking the presentencing report under advisement, make written findings as to whether the defendant is classified as a sexually violent predator and the basis for the court's findings.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 6, eff. Oct. 1, 2001; S.L. 2011-145, § 19.1(h), eff. Jan. 1, 2012; S.L. 2017-186, § 2(r), eff. Dec. 1, 2017; S.L. 2021-180, § 19C.9(p), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.20, NC ST § 14-208.20

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N.C.G.S.A. § 14-208.21

§ 14-208.21. Lifetime registration procedure; application of Part 2 of this Article

Currentness

Unless provided otherwise by this Part, the provisions of Part 2 of this Article apply to a person classified as a sexually violent predator, a person who is a recidivist, or a person who is convicted of an aggravated offense. The procedure for registering as a sexually violent predator, a recidivist, or a person convicted of an aggravated offense is the same as under Part 2 of this Article.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 7, eff. Oct. 1, 2001.

N.C.G.S.A. § 14-208.21, NC ST § 14-208.21

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N.C.G.S.A. § 14-208.22

§ 14-208.22. Additional registration information required

Currentness

(a) In addition to the information required by G.S. 14-208.7, the following information shall also be obtained in the same manner as set out in Part 2 of this Article from a person who is a recidivist, who is convicted of an aggravated offense, or who is classified as a sexually violent predator:

(1) Identifying factors.

(2) Offense history.

(3) Documentation of any treatment received by the person for the person's mental abnormality or personality disorder.

(b) The Department of Public Safety shall provide each sheriff with forms for registering persons as required by this Article.

(c) The Division of Prisons of the Department of Adult Correction shall also obtain the additional information set out in subsection (a) of this section and shall include this information in the prerelease notice forwarded to the sheriff or other appropriate law enforcement agency.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 8, eff. Oct. 1, 2001; S.L. 2011-145, § 19.1(h), eff. Jan. 1, 2012; S.L. 2014-100, § 17.1(r), eff. July 1, 2014; S.L. 2017-186, § 2(s), eff. Dec. 1, 2017; S.L. 2021-180, § 19C.9(p), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.22, NC ST § 14-208.22

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N.C.G.S.A. § 14-208.23

§ 14-208.23. Length of registration

Currentness

A person who is a recidivist, who is convicted of an aggravated offense, or who is classified as a sexually violent predator shall maintain registration for the person's life. Except as provided under G.S. 14-208.6C, the requirement of registration shall not be terminated.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 9, eff. Oct. 1, 2001.

N.C.G.S.A. § 14-208.23, NC ST § 14-208.23

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N.C.G.S.A. § 14-208.24

§ 14-208.24. Verification of registration information

Currentness

(a) The information in the county registry shall be verified by the sheriff for each registrant who is a recidivist, who is convicted of an aggravated offense, or who is classified as a sexually violent predator every 90 days after the person's initial registration date.

(b) The procedure for verifying the information in the criminal offender registry is the same as under G.S. 14-208.9A, except that verification shall be every 90 days as provided by subsection (a) of this section.

Credits

Added by S.L. 1997-516, § 1, eff. April 1, 1998. Amended by S.L. 2001-373, § 10, eff. Oct. 1, 2001.

N.C.G.S.A. § 14-208.24, NC ST § 14-208.24

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N.C.G.S.A. § 14-208.25

§ 14-208.25. Repealed by S.L. 2001-373, § 11, eff. Oct. 1, 2001

Currentness

N.C.G.S.A. § 14-208.25, NC ST § 14-208.25

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Part 4. Registration of Certain Juveniles Adjudicated for Committing Certain Offenses

N.C.G.S.A. § 14-208.26

§ 14-208.26. Registration of certain juveniles adjudicated delinquent for committing certain offenses

Currentness

(a) When a juvenile is adjudicated delinquent for a violation of former G.S. 14-27.6 (attempted rape or sexual offense), G.S. 14-27.21 (first-degree forcible rape), G.S. 14-27.22 (second-degree forcible rape), G.S. 14-27.24 (first-degree statutory rape), G.S. 14-27.26 (first-degree forcible sexual offense), G.S. 14-27.27 (second-degree forcible sexual offense), or G.S. 14-27.29 (first-degree statutory sexual offense), and the juvenile was at least eleven years of age at the time of the commission of the offense, the court shall consider whether the juvenile is a danger to the community. If the court finds that the juvenile is a danger to the community, then the court shall consider whether the juvenile should be required to register with the county sheriff in accordance with this Part. The determination as to whether the juvenile is a danger to the community and whether the juvenile shall be ordered to register shall be made by the presiding judge at the dispositional hearing. If the judge rules that the juvenile is a danger to the community and that the juvenile shall register, then an order shall be entered requiring the juvenile to register. The court's findings regarding whether the juvenile is a danger to the community and whether the juvenile shall register shall be entered into the court record. No juvenile may be required to register under this Part unless the court first finds that the juvenile is a danger to the community.

A juvenile ordered to register under this Part shall register and maintain that registration as provided by this Part.

(a1) For purposes of this section, a violation of any of the offenses listed in subsection (a) of this section includes all of the following: (i) the commission of any of those offenses, (ii) the attempt, conspiracy, or solicitation of another to commit any of those offenses, (iii) aiding and abetting any of those offenses.

(b) If the court finds that the juvenile is a danger to the community and must register, the presiding judge shall conduct the notification procedures specified in G.S. 14-208.8. The chief court counselor of that district shall file the registration information for the juvenile with the appropriate sheriff.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999. Amended by S.L. 1999-363, § 2, eff. Dec. 1, 1999; S.L. 2012-194, § 4(b), eff. July 17, 2012; S.L. 2015-181, § 33, eff. Dec. 1, 2015.

N.C.G.S.A. § 14-208.26, NC ST § 14-208.26

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N.C.G.S.A. § 14-208.27

§ 14-208.27. Change of address

Currentness

If a juvenile who is adjudicated delinquent and required to register changes address, the juvenile court counselor for the juvenile shall provide written notice of the new address not later than the third business day after the change to the sheriff of the county with whom the juvenile had last registered. Upon receipt of the notice, the sheriff shall immediately forward this information to the Department of Public Safety. If the juvenile moves to another county in this State, the Department of Public Safety shall inform the sheriff of the new county of the juvenile's new residence.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999. Amended by S.L. 2001-490, § 2.36, eff. June 30, 2001; S.L. 2008-117, § 14, eff. Dec. 1, 2008; S.L. 2014-100, § 17.1(r), eff. July 1, 2014.

N.C.G.S.A. § 14-208.27, NC ST § 14-208.27

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N.C.G.S.A. § 14-208.28

§ 14-208.28. Verification of registration information

Currentness

The information provided to the sheriff shall be verified semiannually for each juvenile registrant as follows:

- (1) Every year on the anniversary of a juvenile's initial registration date and six months after that date, the sheriff shall mail a verification form to the juvenile court counselor assigned to the juvenile.
- (2) The juvenile court counselor for the juvenile shall return the verification form to the sheriff within three business days after the receipt of the form.
- (3) The verification form shall be signed by the juvenile court counselor and the juvenile and shall indicate whether the juvenile still resides at the address last reported to the sheriff. If the juvenile has a different address, then that fact and the new address shall be indicated on the form.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999. Amended by S.L. 2001-490, § 2.37, eff. June 30, 2001; S.L. 2006-247, § 13, eff. Dec. 1, 2006; S.L. 2008-117, § 15, eff. Dec. 1, 2008.

N.C.G.S.A. § 14-208.28, NC ST § 14-208.28

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N.C.G.S.A. § 14-208.29

§ 14-208.29. Registration information is not public record; access to registration information available only to law enforcement agencies and local boards of education

Currentness

(a) Notwithstanding any other provision of law, the information regarding a juvenile required to register under this Part is not public record and is not available for public inspection.

(b) The registration information of a juvenile adjudicated delinquent and required to register under this Part shall be maintained separately by the sheriff and released only to law enforcement agencies and local boards of education. Registry information for any juvenile enrolled in the local school administrative unit shall be forwarded to the local board of education. Under no circumstances shall the registration of a juvenile adjudicated delinquent be included in the county or statewide registries, or be made available to the public via internet.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999. Amended by S.L. 2008-117, § 12.2, eff. Dec. 1, 2008.

N.C.G.S.A. § 14-208.29, NC ST § 14-208.29

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N.C.G.S.A. § 14-208.30

§ 14-208.30. Termination of registration requirement

Currentness

The requirement that a juvenile adjudicated delinquent register under this Part automatically terminates on the juvenile's eighteenth birthday or when the jurisdiction of the juvenile court with regard to the juvenile ends, whichever occurs first.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999.

N.C.G.S.A. § 14-208.30, NC ST § 14-208.30

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N.C.G.S.A. § 14-208.31

§ 14-208.31. File with Criminal Information Network

Currentness

(a) The Department of Public Safety shall include the registration information in the Criminal Information Network as set forth in G.S. 143B-905.

(b) The Department of Public Safety shall maintain the registration information permanently even after the registrant's reporting requirement expires; however, the records shall remain confidential in accordance with Article 32 of Chapter 7B of the General Statutes.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999. Amended by S.L. 1998-202, § 14, eff. Oct. 1, 1999; S.L. 2014-100, § 17.1(aa), eff. July 1, 2014.

N.C.G.S.A. § 14-208.31, NC ST § 14-208.31

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N.C.G.S.A. § 14-208.32

§ 14-208.32. Application of Part

Currentness

This Part does not apply to a juvenile who is tried and convicted as an adult for committing or attempting to commit a sexually violent offense or an offense against a minor. A juvenile who is convicted of one of those offenses as an adult is subject to the registration requirements of Part 2 and Part 3 of this Article.

Credits

Added by S.L. 1997-516, § 1, eff. Oct. 1, 1999.

N.C.G.S.A. § 14-208.32, NC ST § 14-208.32

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N.C.G.S.A. § 14-208.33

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.33, NC ST § 14-208.33

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N.C.G.S.A. § 14-208.34

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.34, NC ST § 14-208.34

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N.C.G.S.A. § 14-208.35

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.35, NC ST § 14-208.35

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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Part 4. Registration of Certain Juveniles Adjudicated for Committing Certain Offenses

N.C.G.S.A. § 14-208.36

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.36, NC ST § 14-208.36

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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N.C.G.S.A. § 14-208.37

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.37, NC ST § 14-208.37

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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N.C.G.S.A. § 14-208.38

§§ 14-208.33 to 14-208.38. Reserved

Currentness

N.C.G.S.A. § 14-208.38, NC ST § 14-208.38

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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N.C.G.S.A. § 14-208.39

§ 14-208.39. Legislative finding of efficacy

Currentness

The General Assembly finds that empirical and statistical reports such as the 2015 California Study, “Does GPS Improve Recidivism among High Risk Sex Offenders? Outcomes for California's GPS Pilot for High Risk Sex Offender Parolees,” show that sex offenders monitored with the global positioning system (GPS) are less likely than other sex offenders to receive a violation for committing a new crime, and that offenders monitored by GPS demonstrated significantly better outcomes for both increasing compliance and reducing recidivism. It is the intent of the General Assembly to protect the public from victimization. Therefore, the General Assembly recognizes that the GPS monitoring program is an effective tool to deter criminal behavior among sex offenders.

Credits

Added by S.L. 2021-138, § 18(a), eff. Dec. 1, 2021.

N.C.G.S.A. § 14-208.39, NC ST § 14-208.39

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N.C.G.S.A. § 14-208.40

§ 14-208.40. Establishment of program; creation of guidelines; duties

Currentness

(a) The Division of Community Supervision and Reentry of the Department of Adult Correction shall establish a sex offender monitoring program that uses a continuous satellite-based monitoring system and shall create guidelines to govern the program. The program shall be designed to monitor three categories of offenders as follows:

- (1) Any offender who is convicted of a reportable conviction as defined by G.S. 14-208.6(4) and who is required to register under Part 3 of Article 27A of Chapter 14 of the General Statutes because the defendant is classified as a sexually violent predator, is a reoffender, or was convicted of an aggravated offense as those terms are defined in G.S. 14-208.6 and requires the highest possible level of supervision and monitoring, as determined by a court.
- (2) Any offender who satisfies all of the following criteria: (i) is convicted of a reportable conviction as defined by G.S. 14-208.6(4), (ii) is required to register under Part 2 of Article 27A of Chapter 14 of the General Statutes, (iii) has committed an offense involving the physical, mental, or sexual abuse of a minor, and (iv) requires the highest possible level of supervision and monitoring, as determined by a court.
- (3) Any offender who is convicted of G.S. 14-27.23 or G.S. 14-27.28 and requires the highest possible level of supervision and monitoring, as determined by a court.

(b) In developing the guidelines for the program, the Division of Community Supervision and Reentry shall require that any offender who is enrolled in the satellite-based program submit to an active continuous satellite-based monitoring program, unless an active program will not work as provided by this section. If the Division of Community Supervision and Reentry determines that an active program will not work as provided by this section, then the Division of Community Supervision and Reentry shall require that the defendant submit to a passive continuous satellite-based program that works within the technological or geographical limitations.

(c) The satellite-based monitoring program shall use a system that provides all of the following:

- (1) Time-correlated and continuous tracking of the geographic location of the subject using a global positioning system based on satellite and other location tracking technology.

(2) Reporting of subject's violations of prescriptive and proscriptive schedule or location requirements. Frequency of reporting may range from once a day (passive) to near real-time (active).

(d) The Division of Community Supervision and Reentry may contract with a single vendor for the hardware services needed to monitor subject offenders and correlate their movements to reported crime incidents. The contract may provide for services necessary to implement or facilitate any of the provisions of this Part.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 1, eff. Dec. 1, 2007; S.L. 2008-117, § 16, eff. Dec. 1, 2008; S.L. 2011-145, § 19.1(h), eff. Jan. 1, 2012; S.L. 2015-181, § 40, eff. Dec. 1, 2015; S.L. 2017-186, § 2(t), eff. Dec. 1, 2017; S.L. 2021-138, § 18(c), eff. Dec. 1, 2021; S.L. 2021-182, § 2(a), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(u), eff. Jan. 1, 2023; S.L. 2022-74, § 19A.1(a), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.40, NC ST § 14-208.40

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N.C.G.S.A. § 14-208.40A

§ 14-208.40A. Determination of satellite-based monitoring requirement by court

Currentness

(a) When an offender is convicted of a reportable conviction as defined by G.S. 14-208.6(4), during the sentencing phase, the district attorney shall present to the court any evidence of the following:

- (1) That the offender has been classified as a sexually violent predator pursuant to G.S. 14-208.20.
- (2) That the offender is a reoffender.
- (3) That the conviction offense was an aggravated offense.
- (4) That the conviction offense was a violation of G.S. 14-27.23 or G.S. 14-27.28.
- (5) That the offense involved the physical, mental, or sexual abuse of a minor.

The district attorney shall have no discretion to withhold any evidence required to be submitted to the court pursuant to this subsection. The offender shall be allowed to present to the court any evidence that the district attorney's evidence is not correct.

(b) After receipt of the evidence from the parties, the court shall determine whether the offender's conviction places the offender in one of the categories described in G.S. 14-208.40(a), and if so, shall make a finding of fact of that determination, specifying each of the following:

- (1) Whether the offender has been classified as a sexually violent predator pursuant to G.S. 14-208.20.
- (2) Whether the offender is a reoffender.
- (3) Whether the conviction offense was an aggravated offense.
- (4) Whether the conviction offense was a violation of G.S. 14-27.23 or G.S. 14-27.28.

(5) Whether the offense involved the physical, mental, or sexual abuse of a minor.

(c) The court shall order that the Department of Adult Correction do a risk assessment of the offender if the court finds any of the following:

(1) The offender has been classified as a sexually violent predator.

(2) The offender has committed an aggravated offense.

(3) The offender was convicted of G.S. 14-27.23 or G.S. 14-27.28.

(4) The offender is a reoffender of a crime under G.S. 14-27.21, 14-27.22, 14-27.23, 14-27.24, 14-27.25(a), 14-27.26, 14-27.27, 14-27.28, 14-27.29, 14-27.30(a), 14-43.11, 14-43.13, 14-178(b)(1) and (b)(2), 14-190.16, 14-205.2(d), 14-205.3(b), 14-318.4(a1), or 14-318.4(a2).

The Department shall have up to 60 days to complete the risk assessment of the offender and report the results to the court. The Department may use a risk assessment of the offender done within six months of the date of the hearing.

(c1) Upon receipt of a risk assessment from the Department of Adult Correction pursuant to subsection (c) of this section, the court shall determine whether, based on the Department's risk assessment and all relevant evidence, the offender requires the highest possible level of supervision and monitoring. If the court determines that the offender does require the highest possible level of supervision and monitoring, the court shall order the offender to enroll in a satellite-based monitoring program for the life of the offender.

(d) The court shall order that the Department of Adult Correction do a risk assessment of the offender if the court finds each of the following:

(1) The offender committed an offense that involved the physical, mental, or sexual abuse of a minor.

(2) The offense under subdivision (1) of this subsection is not an aggravated offense or a violation of G.S. 14-27.23 or G.S. 14-27.28.

(3) The offender is not a reoffender, or is a reoffender of a crime under G.S. 14-27.31, 14-27.32, 14-27.33, 14-178(b)(3), 14-190.6, 14-190.9(a1), 14-190.17, 14-190.17A, 14-190.17C, 14-202.1, 14-202.3, 14-202.4(a), or 14-205.2(c).

The Department shall have up to 60 days to complete the risk assessment of the offender and report the results to the court. The Department may use a risk assessment of the offender done within six months of the date of the hearing.

(e) Upon receipt of a risk assessment from the Department of Adult Correction pursuant to subsection (d) of this section, the court shall determine whether, based on the Department's risk assessment and all relevant evidence, the offender requires the highest possible level of supervision and monitoring. If the court determines that the offender does require the highest possible

level of supervision and monitoring, the court shall order the offender to enroll in a satellite-based monitoring program for a period of time to be specified by the court, not to exceed 50 years.

Credits

Added by S.L. 2007-213, § 2, eff. Dec. 1, 2007. Amended by S.L. 2008-117, § 16.1, eff. Dec. 1, 2008; S.L. 2015-181, § 41, eff. Dec. 1, 2015; S.L. 2017-186, § 2(u), eff. Dec. 1, 2017; S.L. 2021-138, § 18(d), eff. Dec. 1, 2021; S.L. 2021-182, § 2(b), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(jj), eff. Jan. 1, 2023; S.L. 2023-14, § 8.1(a), eff. Oct. 1, 2023; S.L. 2024-37, § 3(d), eff. Dec. 1, 2024.

N.C.G.S.A. § 14-208.40A, NC ST § 14-208.40A

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N.C.G.S.A. § 14-208.40B

§ 14-208.40B. Determination of satellite-based monitoring requirement in certain circumstances

Currentness

(a) When an offender is convicted of a reportable conviction as defined by G.S. 14-208.6(4), and there has been no determination by a court on whether the offender shall be required to enroll in satellite-based monitoring, the Division of Prisons shall make an initial determination on whether the offender falls into one of the categories described in G.S. 14-208.40(a).

(b) If the Division of Prisons determines that the offender falls into one of the categories described in G.S. 14-208.40(a), the district attorney, representing the Division of Prisons, shall schedule a hearing in superior court for the county in which the offender resides. The Division of Prisons shall notify the offender of the Division of Prisons' determination and the date of the scheduled hearing by certified mail sent to the address provided by the offender pursuant to G.S. 14-208.7. The hearing shall be scheduled no sooner than 15 days from the date the notification is mailed. Receipt of notification shall be presumed to be the date indicated by the certified mail receipt. Upon the court's determination that the offender is indigent and entitled to counsel, the court shall assign counsel to represent the offender at the hearing pursuant to rules adopted by the Office of Indigent Defense Services.

(c) At the hearing, the court shall determine if the offender falls into one of the categories described in G.S. 14-208.40(a). The court shall hold the hearing and make findings of fact pursuant to G.S. 14-208.40A.

(c1) Repealed by S.L. 2021-182, § 2(c), eff. Dec. 1, 2021.

Credits

Added by S.L. 2007-213, § 3, eff. Dec. 1, 2007. Amended by S.L. 2008-117, § 16.2, eff. Dec. 1, 2008; S.L. 2009-387, § 4, eff. July 31, 2009; S.L. 2015-181, § 42, eff. Dec. 1, 2015; S.L. 2017-186, § 2(v), eff. Dec. 1, 2017; S.L. 2021-138, § 18(e), eff. Dec. 1, 2021; S.L. 2021-182, § 2(c), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(q), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.40B, NC ST § 14-208.40B

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N.C.G.S.A. § 14-208.40C

§ 14-208.40C. Requirements of enrollment

Currentness

(a) Any offender required to enroll in satellite-based monitoring pursuant to G.S. 14-208.40A or G.S. 14-208.40B who receives an active sentence shall be enrolled and receive the appropriate equipment immediately upon the offender's release from the Division of Prisons.

(b) Any offender required to enroll in satellite-based monitoring pursuant to G.S. 14-208.40A or G.S. 14-208.40B who receives an intermediate punishment shall, immediately upon sentencing, report to the Division of Community Supervision and Reentry for enrollment in the satellite-based monitoring program, and, if necessary, shall return at any time designated by that Division to receive the appropriate equipment. If the intermediate sentence includes a required period of imprisonment, the offender shall not be required to be enrolled in the satellite-based monitoring program during the period of imprisonment.

(c) Any offender required to enroll in satellite-based monitoring pursuant to G.S. 14-208.40A or G.S. 14-208.40B who receives a community punishment shall, immediately upon sentencing, report to the Division of Community Supervision and Reentry for enrollment in the satellite-based monitoring program, and, if necessary, shall return at any time designated by that Section to receive the appropriate equipment.

Credits

Added by S.L. 2007-213, § 4, eff. Dec. 1, 2007. Amended by S.L. 2011-145, § 19.1(j), (k), eff. Jan. 1, 2012; S.L. 2017-186, § 2(w), eff. Dec. 1, 2017; S.L. 2021-180, §§ 19C.9(r), (v), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.40C, NC ST § 14-208.40C

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N.C.G.S.A. § 14-208.41

§ 14-208.41. Enrollment in satellite-based monitoring programs mandatory; length of enrollment; tolling

Currentness

(a) Any person described by G.S. 14-208.40(a)(1) shall enroll in a satellite-based monitoring program with the Division of Community Supervision and Reentry office in the county where the person resides. The person shall remain enrolled in the satellite-based monitoring program for the registration period imposed for a period required by G.S. 14-208.40A or G.S. 14-208.40B unless the requirement to enroll in the satellite-based monitoring program is terminated or modified pursuant to G.S. 14-208.43.

(b) Any person described by G.S. 14-208.40(a)(2) who is ordered by the court pursuant to G.S. 14-208.40A or G.S. 14-208.40B to enroll in a satellite-based monitoring program shall do so with the Division of Community Supervision and Reentry office in the county where the person resides. The person shall remain enrolled in the satellite-based monitoring program for the period of time ordered by the court.

(c) Any person described by G.S. 14-208.40(a)(3), upon completion of active punishment, shall enroll in a satellite-based monitoring program with the Division of Community Supervision and Reentry office in the county where the person resides. The person shall enroll in the satellite-based monitoring program for the entire period of post-release supervision and shall remain enrolled in the satellite-based monitoring program for the period required by G.S. 14-208.40A or G.S. 14-208.40B unless the requirement to enroll in the satellite-based monitoring program is terminated or modified pursuant to G.S. 14-208.43. Any term of imprisonment based on revocation of probation or post-release supervision for the conviction which resulted in satellite-based monitoring tolls the period of enrollment.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 13, eff. Dec. 1, 2007; S.L. 2008-117, § 17, eff. Dec. 1, 2008; S.L. 2008-187, § 5, eff. Aug. 7, 2008; S.L. 2011-145, § 19.1(k), eff. Jan. 1, 2012; S.L. 2017-186, § 2(x), eff. Dec. 1, 2017; S.L. 2021-138, § 18(f), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(v), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.41, NC ST § 14-208.41

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N.C.G.S.A. § 14-208.42

§ 14-208.42. Offenders required to submit to satellite-based monitoring
required to cooperate with Division of Prisons upon completion of sentence

Currentness

Notwithstanding any other provision of law, when an offender is required to enroll in satellite-based monitoring pursuant to G.S. 14-208.40A or G.S. 14-208.40B, upon completion of the offender's sentence and any term of parole, post-release supervision, intermediate punishment, or supervised probation that follows the sentence, the offender shall continue to be enrolled in the satellite-based monitoring program for the period required by G.S. 14-208.40A or G.S. 14-208.40B unless the requirement that the person enroll in a satellite-based monitoring program is terminated or modified pursuant to G.S. 14-208.43.

The Division of Prisons shall have the authority to have contact with the offender at the offender's residence or to require the offender to appear at a specific location as needed for the purpose of enrollment, to receive monitoring equipment, to have equipment examined or maintained, and for any other purpose necessary to complete the requirements of the satellite-based monitoring program. The offender shall cooperate with the Division of Prisons and the requirements of the satellite-based monitoring program until the offender's requirement to enroll is terminated and the offender has returned all monitoring equipment to the Division of Prisons.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 5, eff. Dec. 1, 2007; S.L. 2017-186, § 2(y), eff. Dec. 1, 2017; S.L. 2021-138, § 18(g), eff. Dec. 1, 2021; S.L. 2021-180, § 19C.9(q), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.42, NC ST § 14-208.42

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N.C.G.S.A. § 14-208.43

§ 14-208.43. Petition for termination or modification of the satellite-based monitoring requirement

Currentness

(a) An offender who is ordered on or after December 1, 2021, to enroll in satellite-based monitoring may file a petition for termination or modification of the monitoring requirement with the superior court in the county where the conviction occurred five years after the date of initial enrollment.

(b) The district attorney in the district in which the petition is filed shall be given notice of the petition at least three weeks before the hearing on the matter. The petitioner may present evidence in support of the petition, and the district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied.

(c) The victim of the underlying offense may appear and be heard by the court in a proceeding regarding a petition for termination or modification of satellite-based monitoring requirement. If the victim has elected to receive notices of such proceedings, the district attorney's office shall notify the victim of the date, time, and place of the hearing. The district attorney's office may provide the required notification electronically or by telephone, unless the victim requests otherwise. The victim shall be responsible for notifying the district attorney's office of any changes in the victim's address and telephone number or other contact information. The judge in any court proceeding subject to this section shall inquire as to whether the victim is present and wishes to be heard. If the victim is present and wishes to be heard, the court shall grant the victim an opportunity to be reasonably heard. The right to be reasonably heard may be exercised, at the victim's discretion, through an oral statement, submission of a written statement, or submission of an audio or video statement.

(d) The petition may be granted only if the court makes all of the following findings:

(1) The petitioner has been enrolled in the satellite-based monitoring program for at least five years.

(2) The petitioner no longer requires the highest possible level of supervision and monitoring for the period initially ordered.

(e) The court may order any of the following:

(1) The petitioner to remain enrolled in the satellite-based monitoring program for a period less than the period initially ordered, to be specified by the court.

(2) The petitioner's requirement to enroll in the satellite-based monitoring program be terminated.

(f) If the court denies the petition, the person may again petition the court for relief in accordance with this section two years from the date of the denial of the original petition to terminate the satellite-based monitoring requirement. If the court grants the petition, the clerk of court shall forward a certified copy of the order to the Post Release Supervision and Parole Commission.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 11, eff. Dec. 1, 2007; S.L. 2008-117, § 18, eff. Dec. 1, 2008; S.L. 2011-145, § 19.1(h), eff. Jan. 1, 2012; S.L. 2017-186, § 2(z), eff. Dec. 1, 2017; S.L. 2021-138, § 18(h), eff. Dec. 1, 2021; S.L. 2021-182, § 2(d), eff. Dec. 1, 2021.

N.C.G.S.A. § 14-208.43, NC ST § 14-208.43

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N.C.G.S.A. § 14-208.44

§ 14-208.44. Failure to enroll; tampering with device

Currentness

- (a) Any person required to enroll in a satellite-based monitoring program who fails to enroll shall be guilty of a Class F felony.
- (b) Any person who intentionally tampers with, removes, vandalizes, or otherwise interferes with the proper functioning of a device issued pursuant to a satellite-based monitoring program to a person duly enrolled in the program shall be guilty of a Class E felony.
- (c) Any person required to enroll in a satellite-based monitoring program who fails to provide necessary information to the Division of Prisons or fails to cooperate with the Division of Prisons' guidelines and regulations for the program shall be guilty of a Class 1 misdemeanor.
- (d) For purposes of this section, "enroll" shall include appearing, as directed by the Division of Prisons to receive the necessary equipment.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 6, eff. Dec. 1, 2007; S.L. 2017-186, § 2(aa), eff. Dec. 1, 2017; S.L. 2021-180, § 19C.9(q), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.44, NC ST § 14-208.44

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Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 5. Sex Offender Monitoring

N.C.G.S.A. § 14-208.45

§ 14-208.45. Fees

Currentness

(a) Except as provided in subsections (b) and (b1) of this section, each person required to enroll pursuant to this Part shall pay a one-time fee of ninety dollars (\$90.00). The fee shall be payable to the clerk of superior court, and the fees shall be remitted quarterly to the Division of Community Supervision and Reentry of the Department of Adult Correction. This fee is intended to offset only the costs associated with the time-correlated tracking of the geographic location of subjects using the location tracking crime correlation system.

(b) When a court determines a person is required to enroll pursuant to G.S. 14-208.40A or G.S. 14-208.40B, the court may exempt a person from paying the fee required by subsection (a) of this section only for good cause and upon motion of the person required to enroll in satellite-based monitoring. The court may require that the fee be paid in advance or in a lump sum or sums, and a probation officer may require payment by those methods.

(c) When a person is required to enroll based on a determination by the Division of Community Supervision and Reentry of the Department of Adult Correction pursuant to G.S. 14-208.40B, the Division of Community Supervision and Reentry of the Department of Adult Correction shall have the authority to exempt the person from paying the fee only for good cause and upon request of the person required to enroll in satellite-based monitoring. The Division of Community Supervision and Reentry of the Department of Adult Correction may require that the fee be paid in advance or in a lump sum or sums, and a probation officer may require payment by those methods.

Credits

Added by S.L. 2006-247, § 15(a), eff. Aug. 16, 2006. Amended by S.L. 2007-213, § 12, eff. Dec. 1, 2007; S.L. 2007-484, § 42(a), eff. Aug. 30, 2007; S.L. 2011-145, § 19.1(h), eff. Jan. 1, 2012; S.L. 2017-186, § 2(bb), eff. Dec. 1, 2017; S.L. 2021-180, § 19C.9(t), eff. Jan. 1, 2023.

N.C.G.S.A. § 14-208.45, NC ST § 14-208.45

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

West's North Carolina General Statutes Annotated

Chapter 14. Criminal Law

Subchapter VII. Offenses Against Public Morality and Decency

Article 27a. Sex Offender and Public Protection Registration Programs (Refs & Annos)

Part 5. Sex Offender Monitoring

N.C.G.S.A. § 14-208.46

§ 14-208.46. Petition for post enrollment determination for satellite-based monitoring enrollees

Currentness

(a) An offender who was ordered prior to December 1, 2021, to enroll in satellite-based monitoring for a period longer than 10 years may file a petition for termination or modification of the monitoring requirement with the superior court in the county where the conviction occurred.

(b) The district attorney in the district in which the petition is filed shall be given notice of the petition at least three weeks before the hearing on the matter. The petitioner may present evidence in support of the petition, and the district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate the reasons why the petition should be denied.

(c) The victim of the underlying offense may appear and be heard by the court in a proceeding regarding a petition for termination or modification of satellite-based monitoring requirement. If the victim has elected to receive notices of such proceedings, the district attorney's office shall notify the victim of the date, time, and place of the hearing. The district attorney's office may provide the required notification electronically or by telephone, unless the victim requests otherwise. The victim shall be responsible for notifying the district attorney's office of any changes in the victim's address and telephone number or other contact information. The judge in any court proceeding subject to this section shall inquire as to whether the victim is present and wishes to be heard. If the victim is present and wishes to be heard, the court shall grant the victim an opportunity to be reasonably heard. The right to be reasonably heard may be exercised, at the victim's discretion, through an oral statement, submission of a written statement, or submission of an audio or video statement.

(d) If the petitioner has not been enrolled in the satellite-based monitoring program for at least 10 years, the court shall order the petitioner to remain enrolled in the satellite-based monitoring program for a total of 10 years.

(e) If the petitioner has been enrolled in the satellite-based monitoring program for more than 10 years, the court shall order the petitioner's requirement to enroll in the satellite-based monitoring program be terminated.

(f) The court has no authority to terminate the satellite-based monitoring requirement for an offender filing a petition pursuant to this section prior to 10 years of enrollment.

Credits

Added by S.L. 2021-138, § 18(i), eff. Dec. 1, 2021. Amended by S.L. 2021-182, § 2(e), eff. Dec. 1, 2021.

N.C.G.S.A. § 14-208.46, NC ST § 14-208.46

The statutes and Constitution are current through S.L. 2025-10, 12 to 14, 17, 18, 20 to 23, 26, 32, 35, 38, and 40, of the 2025 Regular Session of the General Assembly, subject to changes made pursuant to direction of the Revisor of Statutes. Some statute sections may be more current; see credits for details.

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West's North Dakota Century Code Annotated
Title 12.1. Criminal Code
Chapter 12.1-32. Penalties and Sentencing

NDCC, 12.1-32-15

§ 12.1-32-15. Offenders against children and sexual offenders--
Sexually violent predators--Registration requirement--Penalty

Currentness

1. As used in this section:

a. "A crime against a child" means a violation of chapter 12.1-16, section 12.1-17-01.1 if the victim is under the age of twelve, 12.1-17-02, 12.1-17-04, subdivision a of subsection 6 of section 12.1-17-07.1, section 12.1-18-01, 12.1-18-02, 12.1-18-05, chapter 12.1-29, or section 14-09-22, subsection 3 of section 12.1-41-02, subsection 3 of section 12.1-41-03, or an equivalent offense from another court in the United States, a tribal court, or court of another country, in which the victim is a minor or is otherwise of the age required for the act to be a crime or an attempt or conspiracy to commit these offenses.

b. "Department" means the department of corrections and rehabilitation.

c. "Homeless" means an individual who is physically present in this state, but is living in a park, under a bridge, on the streets, in a vehicle or camper, or is otherwise without a traditional dwelling, and also one who resides in this state but does not maintain a permanent address. The term does not include individuals who are temporarily domiciled or individuals residing in public or private shelters that provide temporary living accommodations.

d. "Mental abnormality" means a congenital or acquired condition of an individual that affects the emotional or volitional capacity of the individual in a manner that predisposes that individual to the commission of criminal sexual acts to a degree that makes the individual a menace to the health and safety of other individuals.

e. "Predatory" means an act directed at a stranger or at an individual with whom a relationship has been established or promoted for the primary purpose of victimization.

f. "Reside" means to live permanently or be situated for a considerable time in a home or a particular place.

g. "Sexual offender" means a person who has pled guilty to or been found guilty, including juvenile delinquent adjudications, of a violation of section 12.1-20-03, 12.1-20-03.1, 12.1-20-04, 12.1-20-05, 12.1-20-05.1, 12.1-20-06, 12.1-20-06.1, 12.1-20-07 except for subdivision a of subsection 1, 12.1-20-11, 12.1-20-12.1, 12.1-20-12.2, 12.1-20-12.3 except for subdivision a of subsection 1 and subdivision b of subsection 1 if the offense involves only a demand for money, chapter 12.1-27.2, subdivision b of subsection 1 of section 12.1-41-02, section 12.1-41-04, 12.1-41-05, or 12.1-41-06, or an equivalent offense from another court in the United States, a tribal court, or court of another country, or an attempt or conspiracy to commit these offenses.

h. "Sexually dangerous individual" means an individual who meets the definition specified in section 25-03.3-01.

i. "Temporarily domiciled" means staying or being physically present in this state for more than thirty days in a calendar year or at a location for longer than ten consecutive days, attending school for longer than ten days, or maintaining employment in the jurisdiction for longer than ten days, regardless of the state of the residence.

2. The court shall impose, in addition to any penalty provided by law, a requirement that the individual register, within three days of coming into a county in which the individual resides, is homeless, or within the period identified in this section that the individual becomes temporarily domiciled. The individual must register with the chief of police of the city of the individual's place of residence, or the sheriff of the county if the individual resides in an area other than a city. A homeless individual shall register every three days with the sheriff or chief of police of the jurisdiction in which the individual is physically present. The court shall require an individual to register by stating this requirement on the court records, if that individual:

a. Has pled guilty or nolo contendere to, or been found guilty as a felonious sexual offender or an attempted felonious sexual offender.

b. Has pled guilty or nolo contendere to, or been found guilty as a sexual offender for, a misdemeanor or attempted misdemeanor. The court may deviate from requiring an individual to register if the court first finds the individual is no more than three years older than the victim if the victim is a minor, the individual has not previously been convicted as a sexual offender or of a crime against a child, and the individual did not exhibit mental abnormality or predatory conduct in the commission of the offense.

c. Has pled guilty or nolo contendere to, or been found guilty of, a crime against a child or an attempted crime against a child. Except if the offense is described in section 12.1-29-02, or section 12.1-18-01 or 12.1-18-02 and the person is not the parent of the victim, the court may deviate from requiring an individual to register if the court first finds the individual has not previously been convicted as a sexual offender or for a crime against a child, and the individual did not exhibit mental abnormality or predatory conduct in the commission of the offense.

d. Has pled guilty or nolo contendere or been found guilty of any crime against another individual which is not otherwise specified in this section if the court determines that registration is warranted by the nature of the crime and therefore orders registration for the individual. If the court orders an individual to register as an offender under this section, the individual shall comply with all of the registration requirements in this chapter.

e. Is a child who has been adjudicated delinquent of an offense which would classify the child as a sexual offender, the prosecutor requested the court to consider sexual offender registration, and the court determines the child:

(1) Exhibited a mental abnormality or predatory conduct in the commission of the offense; or

(2) Previously has been adjudicated as a sexual offender.

3. If a court has not ordered an individual to register in this state, an individual who resides, is homeless, or is temporarily domiciled in this state shall register if the individual:

a. Is incarcerated or is on probation or parole after July 31, 1995, for a crime against a child described in section 12.1-29-02, or section 12.1-18-01 or 12.1-18-02 if the individual was not the parent of the victim, or as a sexual offender;

b. Has pled guilty or nolo contendere to, or has been found guilty of, an offense in a court of this state for which registration is mandatory under this section or an offense from another court in the United States, a tribal court, or court of another country equivalent to those offenses set forth in this section; or

c. Has pled guilty or nolo contendere to, or has been found guilty of, a crime against a child or as a sexual offender for which registration is mandatory under this section if the conviction occurred after July 31, 1985.

4. In its consideration of mental abnormality or predatory conduct, the court shall consider the age of the offender, the age of the victim, the difference in ages of the victim and offender, the circumstances and motive of the crime, the relationship of the victim and offender, and the mental state of the offender. The court may order an offender to be evaluated by a qualified counselor, psychologist, or physician before sentencing. Except as provided under subdivision d of subsection 2, the court may state on the record in open court its affirmative finding for not requiring an offender to register.

5. When an individual is required to register under this section, the official in charge of a facility or institution where the individual required to register is confined, or the department, shall, before the discharge, parole, or release of that individual, inform the individual of the duty to register pursuant to this section. The official or the department shall require the individual to read and sign a form as required by the attorney general, stating that the duty of the individual to register has been explained to that individual. The official in charge of the place of confinement, or the department, shall obtain the address where the individual expects to reside, attend school, or work upon discharge, parole, or release and shall report the address to the attorney general. The official in charge of the place of confinement, or the department, shall give three copies of the form to the individual and shall send three copies to the attorney general no later than forty-five days before the scheduled release of that individual. The attorney general shall forward one copy to the law enforcement agency having jurisdiction where the individual expects to reside, attend school, or work upon discharge, parole, or release, one copy to the prosecutor who prosecuted the individual, and one copy to the court in which the individual was prosecuted. All forms must be transmitted and received by the law enforcement agency, prosecutor, and court thirty days before the discharge, parole, or release of the individual.

6. An individual who is required to register pursuant to this section who is released on probation or discharged upon payment of a fine must, before the release or discharge, be informed of the duty to register under this section by the court in which that individual is convicted. The court shall require the individual to read and sign a form as required by the attorney general, stating that the duty of the individual to register under this section has been explained to that individual. The court shall obtain the address where the individual expects to reside, attend school, or work upon release or discharge and shall report the address to the attorney general within three days. The court shall give one copy of the form to the individual and shall send two copies to the attorney general. The attorney general shall forward one copy to the appropriate law enforcement agency having jurisdiction where the individual expects to reside, attend school, or work upon discharge, parole, or release.

7. Registration consists of a written or electronic statement signed by the individual, giving the information required by the attorney general, and the biometric data and photograph of the individual. An individual who is not required to provide a sample of blood and other body fluids under section 31-13-03 or by the individual's state or court of conviction or adjudication shall submit a sample of blood and other body fluids for inclusion in a centralized database of DNA identification records under section 31-13-05. The collection, submission, testing and analysis of, and records produced from, samples of blood and other body fluids, are subject to chapter 31-13. Evidence of the DNA profile comparison is admissible in accordance with section 31-13-02. A report of the DNA analysis certified by the state crime laboratory is admissible in accordance with section 31-13-05. A district court shall order an individual who refuses to submit a sample of blood or other body fluids for registration purposes to show cause at a specified time and place why the individual should not be required to submit the sample required under this subsection. Within three days after registration, the registering law enforcement agency shall forward the statement, biometric data, and photograph to the attorney general and shall submit the sample of the individual's blood and body fluids to the state crime laboratory. If an individual required to register under this section has a change in vehicle or computer online identity, the individual shall register, within three days after the change, with the law enforcement agency having local jurisdiction of the individual's place of residence of the individual's new vehicle or computer online identity. If an individual required to register pursuant to this section has a change in name, school, or residence or employment address, that individual shall register, at least ten days before the change, with the law enforcement agency having local jurisdiction of the individual's place of residence of the individual's new name, school, residence address, or employment address. A change in school or employment address includes the termination of school or employment for which an individual required to register under this section, the individual shall register within three days of the termination with the law enforcement agency having local jurisdiction of the individual's place of residence. The law enforcement agency, within three days after receipt of the information, shall forward it to the attorney general. The attorney general shall forward the appropriate registration data to the law enforcement agency having local jurisdiction of the new place of residence, school, or employment. Upon a change of address, the individual required to register also shall register within three days at the law enforcement agency having local jurisdiction of the new place of residence. If an individual required to register in North Dakota, including in a tribal registry, resides in another state or on tribal lands, that individual shall register employment and school addresses and any changes in required registration information with the law enforcement agency having local jurisdiction over the school or employment address. The individual registering under this section shall periodically confirm the information required under this subsection in a manner and at an interval determined by the attorney general. A law enforcement agency that has previously registered an offender may omit the biometric data portion of the registration if that agency has a set of biometric data on file for that individual and is personally familiar with and can visually identify the offender. These provisions also apply in any other state that requires registration.

8. An individual required to register under this section shall comply with the registration requirement for the longer of the following periods:

- a. A period of fifteen years after the date of sentence or order deferring or suspending sentence upon a plea or finding of guilt or after release from incarceration, whichever is later;
- b. A period of twenty-five years after the date of sentence or order deferring or suspending sentence upon a plea or finding of guilt or after release from incarceration, whichever is later, if the offender is assigned a moderate risk by the attorney general as provided in subsection 12; or
- c. For the life of the individual, if that individual:

(1) On two or more occasions has pled guilty or nolo contendere to, or been found guilty of a crime against a child or as a sexual offender. If all qualifying offenses are misdemeanors, this lifetime provision does not apply unless a qualifying offense was committed after August 1, 1999;

(2) Pleads guilty or nolo contendere to, or is found guilty of, an offense committed after August 1, 1999, which is described in subdivision a of subsection 1 of section 12.1-20-03, section 12.1-20-03.1, or subdivision d of subsection 1 of section 12.1-20-03 if the person is an adult and the victim is under age twelve, or section 12.1-18-01 if that individual is an adult other than a parent of the victim, or an equivalent offense from another court in the United States, a tribal court, or court of another country; or

(3) Is assigned a high risk by the attorney general as provided in subsection 12.

9. An individual required to register under this section who violates this section is guilty of a class C felony. The failure of a homeless individual to register as required in subsections 2 and 3 is prima facie evidence of a violation of this section. The clerk of court shall forward all warrants issued for a violation of this section to the county sheriff, who shall enter all such warrants into the national crime information center wanted person file. A court may not relieve an individual, other than a juvenile, who violates this section from serving a term of at least ninety days in jail and completing probation of one year.

10. When an individual is released on parole or probation and is required to register pursuant to this section, but fails to do so within the time prescribed, the court shall order the probation, or the parole board shall order the parole, of the individual revoked.

11. If an individual required to register pursuant to this section is temporarily sent outside the facility or institution where that individual is confined under conviction or sentence, the local law enforcement agency having jurisdiction over the place where that individual is being sent must be notified within a reasonable time period before that individual is released from the facility or institution. This subsection does not apply to any individual temporarily released under guard from the facility or institution in which that individual is confined.

12. The attorney general, with the assistance of the department and the juvenile courts, shall develop guidelines for the risk assessment of sexual offenders who are required to register, with a low-risk, moderate-risk, or high-risk level being assigned to each offender as follows:

a. The department shall conduct a risk assessment of sexual offenders who are incarcerated in institutions under the control of the department and sexual offenders who are on supervised probation. The department, in a timely manner, shall provide the attorney general any information, including the offender's level of risk and supporting documentation, concerning individuals required to be registered under this section who are about to be released or placed into the community.

b. The attorney general shall conduct a risk assessment of sexual offenders who are not under the custody or supervision of the department. The attorney general may adopt a law enforcement agency's previous assignment of risk level for an individual if the assessment was conducted in a manner substantially similar to the guidelines developed under this subsection.

c. The juvenile courts or the agency having legal custody of a juvenile shall conduct a risk assessment of juvenile sexual offenders who are required to register under this section. The juvenile courts or the agency having legal custody of a juvenile shall provide the attorney general any information, including the offender's level of risk and supporting documentation, concerning juveniles required to register and who are about to be released or placed into the community.

d. The attorney general shall notify the offender of the risk level assigned to that offender. An offender may request a review of that determination with the attorney general's sexual offender risk assessment committee and may present any information that the offender believes may lower the assigned risk level.

13. An individual assessed as a high-risk sexual offender in accordance with subsection 12, may not reside within five hundred feet [152.4 meters] of a public or nonpublic preschool or elementary, middle, or high school.

14. Relevant and necessary conviction and registration information must be disclosed to the public by a law enforcement agency if the individual is a moderate or high risk and the agency determines that disclosure of the conviction and registration information is necessary for public protection. The attorney general shall develop guidelines for public disclosure of offender registration information. Public disclosure may include internet access if the offender:

- a. Is required to register for a lifetime under subsection 8;
- b. Has been determined to be a high risk to the public by the department, the attorney general, or the courts, according to guidelines developed by those agencies; or
- c. Has been determined to be a high risk to the public by an agency of another state or the federal government.

If the offender has been determined to be a moderate risk, public disclosure must include, at a minimum, notification of the offense to the victim registered under chapter 12.1-34 and to any agency, civic organization, or group of persons who have characteristics similar to those of a victim of the offender. Upon request, law enforcement agencies may release conviction and registration information regarding low-risk, moderate-risk, or high-risk offenders.

15. A state officer, law enforcement agency, or public school district or governing body of a nonpublic school or any appointee, officer, or employee of those entities is not subject to civil or criminal liability for making risk determinations, allowing a sexual offender to attend a school function under section 12.1-20-25, or for disclosing or for failing to disclose information as permitted by this section.

16. If a juvenile is adjudicated delinquent and required or ordered to register as a sexual offender or as an offender against a child under this section, the juvenile shall comply with the registration requirements in this section. Notwithstanding any other provision of law, a law enforcement agency shall register a juvenile offender in the same manner as adult offenders and may release any relevant and necessary information on file to other law enforcement agencies, the department of health and human services, or the public if disclosure is necessary to protect public health or safety. The law enforcement agency shall release any relevant and necessary information on file to the superintendent or principal of the school the juvenile attends. The school administration shall notify others in similar positions if the juvenile transfers to another learning institution in or outside the state.

17. If an individual has been required to register as a sexual offender or an offender against a child under section 12.1-32-15 or former section 27-20-52.1 before August 1, 1999, the individual may petition the court to be removed from the offender list if registration is no longer mandatory for that individual. In considering the petition, the court shall comply with the requirements of this section.

18. A sexual offender who is currently assigned a moderate or high-risk level by the attorney general may not use a state park of this state as a residence or residential address to comply with the registration requirements of this section. Before arriving at a state park for overnight lodging or camping, a sexual offender who is assigned a moderate or high-risk level by the attorney general shall notify a parks and recreation department law enforcement officer at the state park where the sexual offender will be staying.

19. When an individual who is required to register pursuant to this section plans to travel outside of the United States, at least twenty-one days before the intended travel, the individual shall inform the agency with which the individual last registered the individual's residence address the details of the intended travel. Upon receipt of the information from the registering law enforcement agency, the attorney general shall report the travel to the United States marshal service.

Credits

S.L. 1991, ch. 136, § 1; S.L. 1993, ch. 129, § 3; S.L. 1995, ch. 139, § 1; S.L. 1997, ch. 124, § 5; S.L. 1997, ch. 128, § 2; S.L. 1997, ch. 136, § 1; S.L. 1997, ch. 137, § 1; S.L. 1999, ch. 50, § 33; S.L. 1999, ch. 123, § 3; S.L. 1999, ch. 131, § 1; S.L. 2001, ch. 134, § 8; S.L. 2001, ch. 140, § 1; S.L. 2001, Sp. Sess., ch. 690, § 1; S.L. 2003, ch. 113, § 1; S.L. 2005, ch. 121, § 1; S.L. 2007, ch. 124, § 4, eff. Aug. 1, 2007; S.L. 2007, ch. 136, § 1, eff. Aug. 1, 2007; S.L. 2009, ch. 121, § 2, eff. Aug. 1, 2009; S.L. 2009, ch. 136, § 1, eff. Aug. 1, 2009; S.L. 2009, ch. 137, § 1; S.L. 2009, ch. 139, § 3, eff. Aug. 1, 2009; S.L. 2011, ch. 102, §§ 1, 2, eff. Aug. 1, 2011; S.L. 2011, ch. 103, § 1, eff. April 25, 2011; S.L. 2013, ch. 113, § 1, eff. Aug. 1, 2013; S.L. 2015, ch. 96, § 7, eff. Aug. 1, 2015; S.L. 2015, ch. 115, § 1, eff. April 8, 2015; S.L. 2015, ch. 117, § 1, eff. Aug. 1, 2015; S.L. 2015, ch. 127, § 1, eff. Aug. 1, 2015; S.L. 2017, ch. 110 (H.B. 1058), § 1, eff. Aug. 1, 2017; S.L. 2017, ch. 111 (H.B. 1344), § 1, eff. Aug. 1, 2017; S.L. 2017, ch. 112 (S.B. 2303), § 1, (contingent effective date); S.L. 2019, ch. 108 (S.B. 2273), § 2, eff. Aug. 1, 2019; S.L. 2019, ch. 120 (S.B. 2253), § 1, eff. Aug. 1, 2019; S.L. 2021, ch. 245 (H.B. 1035), § 2, eff. July 1, 2021; S.L. 2021, ch. 352 (H.B. 1247), § 22, eff. Sept. 1, 2022; S.L. 2025, (S.B. 2037), § 8, eff. July 1, 2025; S.L. 2025, (H.B. 1031), § 2 eff. Aug. 1, 2025.

NDCC 12.1-32-15, ND ST 12.1-32-15

Current with legislation effective from the 2025 Regular Session. Some statute sections may be more current, see credits for details. The statutes are subject to change as determined by the North Dakota Code Revisor. (These changes will be incorporated later this year.)

Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure
Chapter 2950. Sex Offenders

R.C. T. XXIX, Ch. 2950, Refs & Annos
Currentness

R.C. T. XXIX, Ch. 2950, Refs & Annos, OH ST T. XXIX, Ch. 2950, Refs & Annos
: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.01

2950.01 Definitions

Currentness

As used in this chapter, unless the context clearly requires otherwise:

(A) “Sexually oriented offense” means any of the following violations or offenses committed by a person, regardless of the person's age:

(1) A violation of section 2907.02, 2907.03, 2907.05, 2907.06, 2907.07, 2907.08, 2907.21, 2907.22, 2907.32, 2907.321, 2907.322, or 2907.323 of the Revised Code;

(2) A violation of section 2907.04 of the Revised Code when the offender is less than four years older than the other person with whom the offender engaged in sexual conduct, the other person did not consent to the sexual conduct, and the offender previously has not been convicted of or pleaded guilty to a violation of section 2907.02, 2907.03, or 2907.04 of the Revised Code or a violation of former section 2907.12 of the Revised Code;

(3) A violation of section 2907.04 of the Revised Code when the offender is at least four years older than the other person with whom the offender engaged in sexual conduct or when the offender is less than four years older than the other person with whom the offender engaged in sexual conduct and the offender previously has been convicted of or pleaded guilty to a violation of section 2907.02, 2907.03, or 2907.04 of the Revised Code or a violation of former section 2907.12 of the Revised Code;

(4) A violation of section 2903.01, 2903.02, or 2903.11 of the Revised Code when the violation was committed with a sexual motivation;

(5) A violation of division (A) of section 2903.04 of the Revised Code when the offender committed or attempted to commit the felony that is the basis of the violation with a sexual motivation;

(6) A violation of division (A)(3) of section 2903.211 of the Revised Code;

(7) A violation of division (A)(1), (2), (3), or (5) of section 2905.01 of the Revised Code when the offense is committed with a sexual motivation;

(8) A violation of division (A)(4) of section 2905.01 of the Revised Code;

(9) A violation of division (B) of section 2905.01 of the Revised Code when the victim of the offense is under eighteen years of age and the offender is not a parent of the victim of the offense;

(10) A violation of division (B) of section 2903.03, of division (B) of section 2905.02, of division (B) of section 2905.03, of division (B) of section 2905.05, or of division (B)(5) of section 2919.22 of the Revised Code;

(11) A violation of section 2905.32 of the Revised Code when either of the following applies:

(a) The violation is a violation of division (A)(1) of that section and the offender knowingly recruited, lured, enticed, isolated, harbored, transported, provided, obtained, or maintained, or knowingly attempted to recruit, lure, entice, isolate, harbor, transport, provide, obtain, or maintain, another person knowing that the person would be compelled to engage in sexual activity for hire, engage in a performance that was obscene, sexually oriented, or nudity oriented, or be a model or participant in the production of material that was obscene, sexually oriented, or nudity oriented.

(b) The violation is a violation of division (A)(2) of that section and the offender knowingly recruited, lured, enticed, isolated, harbored, transported, provided, obtained, or maintained, or knowingly attempted to recruit, lure, entice, isolate, harbor, transport, provide, obtain, or maintain a person who is less than eighteen years of age or is a person with a developmental disability whom the offender knows or has reasonable cause to believe is a person with a developmental disability for any purpose listed in divisions (A)(2)(a) to (c) of that section.

(12) A violation of division (B)(4) of section 2907.09 of the Revised Code if the sentencing court classifies the offender as a tier I sex offender/child-victim offender relative to that offense pursuant to division (D) of that section;

(13) A violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian tribal court, or any existing or former law of any nation other than the United States that is or was substantially equivalent to any offense listed in division (A)(1), (2), (3), (4), (5), (6), (7), (8), (9), (10), (11), or (12) of this section;

(14) Any attempt to commit, conspiracy to commit, or complicity in committing any offense listed in division (A)(1), (2), (3), (4), (5), (6), (7), (8), (9), (10), (11), (12), or (13) of this section.

(B)(1) “Sex offender” means, subject to division (B)(2) of this section, a person who is convicted of, pleads guilty to, has been convicted of, has pleaded guilty to, is adjudicated a delinquent child for committing, or has been adjudicated a delinquent child for committing any sexually oriented offense.

(2) “Sex offender” does not include a person who is convicted of, pleads guilty to, has been convicted of, has pleaded guilty to, is adjudicated a delinquent child for committing, or has been adjudicated a delinquent child for committing a sexually oriented offense if the offense involves consensual sexual conduct or consensual sexual contact and either of the following applies:

(a) The victim of the sexually oriented offense was eighteen years of age or older and at the time of the sexually oriented offense was not under the custodial authority of the person who is convicted of, pleads guilty to, has been convicted of, has

pleaded guilty to, is adjudicated a delinquent child for committing, or has been adjudicated a delinquent child for committing the sexually oriented offense.

(b) The victim of the offense was thirteen years of age or older, and the person who is convicted of, pleads guilty to, has been convicted of, has pleaded guilty to, is adjudicated a delinquent child for committing, or has been adjudicated a delinquent child for committing the sexually oriented offense is not more than four years older than the victim.

(C) “Child-victim oriented offense” means any of the following violations or offenses committed by a person, regardless of the person's age, when the victim is under eighteen years of age and is not a child of the person who commits the violation:

(1) A violation of division (A)(1), (2), (3), or (5) of section 2905.01 of the Revised Code when the violation is not included in division (A)(7) of this section;

(2) A violation of division (A) of section 2905.02, division (A) of section 2905.03, or division (A) of section 2905.05 of the Revised Code;

(3) A violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian tribal court, or any existing or former law of any nation other than the United States that is or was substantially equivalent to any offense listed in division (C)(1) or (2) of this section;

(4) Any attempt to commit, conspiracy to commit, or complicity in committing any offense listed in division (C)(1), (2), or (3) of this section.

(D) “Child-victim offender” means a person who is convicted of, pleads guilty to, has been convicted of, has pleaded guilty to, is adjudicated a delinquent child for committing, or has been adjudicated a delinquent child for committing any child-victim oriented offense.

(E) “Tier I sex offender/child-victim offender” means any of the following:

(1) A sex offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to any of the following sexually oriented offenses:

(a) A violation of section 2907.06, 2907.07, 2907.08, 2907.22, or 2907.32 of the Revised Code;

(b) A violation of section 2907.04 of the Revised Code when the offender is less than four years older than the other person with whom the offender engaged in sexual conduct, the other person did not consent to the sexual conduct, and the offender previously has not been convicted of or pleaded guilty to a violation of section 2907.02, 2907.03, or 2907.04 of the Revised Code or a violation of former section 2907.12 of the Revised Code;

(c) A violation of division (A)(1), (2), (3), or (5) of section 2907.05 of the Revised Code;

(d) A violation of division (A)(3) of section 2907.323 of the Revised Code;

(e) A violation of division (A)(3) of section 2903.211, of division (B) of section 2905.03, or of division (B) of section 2905.05 of the Revised Code;

(f) A violation of division (B)(4) of section 2907.09 of the Revised Code if the sentencing court classifies the offender as a tier I sex offender/child-victim offender relative to that offense pursuant to division (D) of that section;

(g) A violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian tribal court, or any existing or former law of any nation other than the United States, that is or was substantially equivalent to any offense listed in division (E)(1)(a), (b), (c), (d), (e), or (f) of this section;

(h) Any attempt to commit, conspiracy to commit, or complicity in committing any offense listed in division (E)(1)(a), (b), (c), (d), (e), (f), or (g) of this section.

(2) A child-victim offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a child-victim oriented offense and who is not within either category of child-victim offender described in division (F)(2) or (G)(2) of this section.

(3) A sex offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any sexually oriented offense and who a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier I sex offender/child-victim offender relative to the offense.

(4) A child-victim offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any child-victim oriented offense and who a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier I sex offender/child-victim offender relative to the offense.

(F) “Tier II sex offender/child-victim offender” means any of the following:

(1) A sex offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to any of the following sexually oriented offenses:

(a) A violation of section 2907.21, 2907.321, or 2907.322 of the Revised Code;

(b) A violation of section 2907.04 of the Revised Code when the offender is at least four years older than the other person with whom the offender engaged in sexual conduct, or when the offender is less than four years older than the other person with whom the offender engaged in sexual conduct and the offender previously has been convicted of or pleaded guilty to a violation of section 2907.02, 2907.03, or 2907.04 of the Revised Code or former section 2907.12 of the Revised Code;

- (c) A violation of section 2907.03 of the Revised Code if the sexual activity involved is sexual contact;
 - (d) A violation of division (A)(4) of section 2907.05 or of division (A)(1) or (2) of section 2907.323 of the Revised Code;
 - (e) A violation of division (A)(1), (2), (3), or (5) of section 2905.01 of the Revised Code when the offense is committed with a sexual motivation;
 - (f) A violation of division (A)(4) of section 2905.01 of the Revised Code when the victim of the offense is eighteen years of age or older;
 - (g) A violation of division (B) of section 2905.02 or of division (B)(5) of section 2919.22 of the Revised Code;
 - (h) A violation of section 2905.32 of the Revised Code that is described in division (A)(11)(a) or (b) of this section;
 - (i) A violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian tribal court, or any existing or former law of any nation other than the United States that is or was substantially equivalent to any offense listed in division (F)(1)(a), (b), (c), (d), (e), (f), (g), or (h) of this section;
 - (j) Any attempt to commit, conspiracy to commit, or complicity in committing any offense listed in division (F)(1)(a), (b), (c), (d), (e), (f), (g), (h), or (i) of this section;
 - (k) Any sexually oriented offense that is committed after the sex offender previously has been convicted of, pleaded guilty to, or has been adjudicated a delinquent child for committing any sexually oriented offense or child-victim oriented offense for which the offender was classified a tier I sex offender/child-victim offender.
- (2) A child-victim offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to any child-victim oriented offense when the child-victim oriented offense is committed after the child-victim offender previously has been convicted of, pleaded guilty to, or been adjudicated a delinquent child for committing any sexually oriented offense or child-victim oriented offense for which the offender was classified a tier I sex offender/child-victim offender.
- (3) A sex offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any sexually oriented offense and who a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier II sex offender/child-victim offender relative to the offense.
- (4) A child-victim offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any child-victim oriented offense and whom a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier II sex offender/child-victim offender relative to the current offense.

(5) A sex offender or child-victim offender who is not in any category of tier II sex offender/child-victim offender set forth in division (F)(1), (2), (3), or (4) of this section, who prior to January 1, 2008, was adjudicated a delinquent child for committing a sexually oriented offense or child-victim oriented offense, and who prior to that date was determined to be a habitual sex offender or determined to be a habitual child-victim offender, unless either of the following applies:

(a) The sex offender or child-victim offender is reclassified pursuant to section 2950.031 or 2950.032 of the Revised Code as a tier I sex offender/child-victim offender or a tier III sex offender/child-victim offender relative to the offense.

(b) A juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies the child a tier I sex offender/child-victim offender or a tier III sex offender/child-victim offender relative to the offense.

(G) “Tier III sex offender/child-victim offender” means any of the following:

(1) A sex offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to any of the following sexually oriented offenses:

(a) A violation of section 2907.02 of the Revised Code or a violation of section 2907.03 of the Revised Code if the sexual activity involved is sexual conduct;

(b) A violation of division (B) of section 2907.05 of the Revised Code;

(c) A violation of section 2903.01, 2903.02, or 2903.11 of the Revised Code when the violation was committed with a sexual motivation;

(d) A violation of division (A) of section 2903.04 of the Revised Code when the offender committed or attempted to commit the felony that is the basis of the violation with a sexual motivation;

(e) A violation of division (A)(4) of section 2905.01 of the Revised Code when the victim of the offense is under eighteen years of age;

(f) A violation of division (B) of section 2905.01 of the Revised Code when the victim of the offense is under eighteen years of age and the offender is not a parent of the victim of the offense;

(g) A violation of division (B) of section 2903.03 of the Revised Code;

(h) A violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian tribal court, or any existing or former law of any nation other than the United States that is or was substantially equivalent to any offense listed in division (G)(1)(a), (b), (c), (d), (e), (f), or (g) of this section;

(i) Any attempt to commit, conspiracy to commit, or complicity in committing any offense listed in division (G)(1)(a), (b), (c), (d), (e), (f), (g), or (h) of this section;

(j) Any sexually oriented offense that is committed after the sex offender previously has been convicted of, pleaded guilty to, or been adjudicated a delinquent child for committing any sexually oriented offense or child-victim oriented offense for which the offender was classified a tier II sex offender/child-victim offender or a tier III sex offender/child-victim offender.

(2) A child-victim offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to any child-victim oriented offense when the child-victim oriented offense is committed after the child-victim offender previously has been convicted of, pleaded guilty to, or been adjudicated a delinquent child for committing any sexually oriented offense or child-victim oriented offense for which the offender was classified a tier II sex offender/child-victim offender or a tier III sex offender/child-victim offender.

(3) A sex offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any sexually oriented offense and who a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier III sex offender/child-victim offender relative to the offense.

(4) A child-victim offender who is adjudicated a delinquent child for committing or has been adjudicated a delinquent child for committing any child-victim oriented offense and whom a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies a tier III sex offender/child-victim offender relative to the current offense.

(5) A sex offender or child-victim offender who is not in any category of tier III sex offender/child-victim offender set forth in division (G)(1), (2), (3), or (4) of this section, who prior to January 1, 2008, was convicted of or pleaded guilty to a sexually oriented offense or child-victim oriented offense or was adjudicated a delinquent child for committing a sexually oriented offense or child-victim oriented offense and classified a juvenile offender registrant, and who prior to that date was adjudicated a sexual predator or adjudicated a child-victim predator, unless either of the following applies:

(a) The sex offender or child-victim offender is reclassified pursuant to section 2950.031 or 2950.032 of the Revised Code as a tier I sex offender/child-victim offender or a tier II sex offender/child-victim offender relative to the offense.

(b) The sex offender or child-victim offender is a delinquent child, and a juvenile court, pursuant to section 2152.82, 2152.83, 2152.84, or 2152.85 of the Revised Code, classifies the child a tier I sex offender/child-victim offender or a tier II sex offender/child-victim offender relative to the offense.

(6) A sex offender who is convicted of, pleads guilty to, was convicted of, or pleaded guilty to a sexually oriented offense, if the sexually oriented offense and the circumstances in which it was committed are such that division (F) of section 2971.03 of the Revised Code automatically classifies the offender as a tier III sex offender/child-victim offender;

(7) A sex offender or child-victim offender who is convicted of, pleads guilty to, was convicted of, pleaded guilty to, is adjudicated a delinquent child for committing, or was adjudicated a delinquent child for committing a sexually oriented offense or child-victim offense in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States if both of the following apply:

(a) Under the law of the jurisdiction in which the offender was convicted or pleaded guilty or the delinquent child was adjudicated, the offender or delinquent child is in a category substantially equivalent to a category of tier III sex offender/child-victim offender described in division (G)(1), (2), (3), (4), (5), or (6) of this section.

(b) Subsequent to the conviction, plea of guilty, or adjudication in the other jurisdiction, the offender or delinquent child resides, has temporary domicile, attends school or an institution of higher education, is employed, or intends to reside in this state in any manner and for any period of time that subjects the offender or delinquent child to a duty to register or provide notice of intent to reside under section 2950.04 or 2950.041 of the Revised Code.

(H) “Confinement” includes, but is not limited to, a community residential sanction imposed pursuant to section 2929.16 or 2929.26 of the Revised Code.

(I) “Prosecutor” has the same meaning as in section 2935.01 of the Revised Code.

(J) “Supervised release” means a release of an offender from a prison term, a term of imprisonment, or another type of confinement that satisfies either of the following conditions:

(1) The release is on parole, a conditional pardon, under a community control sanction, under transitional control, or under a post-release control sanction, and it requires the person to report to or be supervised by a parole officer, probation officer, field officer, or another type of supervising officer.

(2) The release is any type of release that is not described in division (J)(1) of this section and that requires the person to report to or be supervised by a probation officer, a parole officer, a field officer, or another type of supervising officer.

(K) “Sexually violent predator specification,” “sexually violent predator,” “sexually violent offense,” “sexual motivation specification,” “designated homicide, assault, or kidnapping offense,” and “violent sex offense” have the same meanings as in section 2971.01 of the Revised Code.

(L) “Post-release control sanction” and “transitional control” have the same meanings as in section 2967.01 of the Revised Code.

(M) “Juvenile offender registrant” means a person who is adjudicated a delinquent child for committing on or after January 1, 2002, a sexually oriented offense or a child-victim oriented offense, who is fourteen years of age or older at the time of committing the offense, and who a juvenile court judge, pursuant to an order issued under section 2152.82, 2152.83, 2152.84, 2152.85, or 2152.86 of the Revised Code, classifies a juvenile offender registrant and specifies has a duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code. “Juvenile offender registrant” includes a person who prior to January 1, 2008, was a “juvenile offender registrant” under the definition of the term in existence prior to January 1, 2008, and a person who prior to July 31, 2003, was a “juvenile sex offender registrant” under the former definition of that former term.

(N) “Public registry-qualified juvenile offender registrant” means a person who is adjudicated a delinquent child and on whom a juvenile court has imposed a serious youthful offender dispositional sentence under section 2152.13 of the Revised Code before, on, or after January 1, 2008, and to whom all of the following apply:

(1) The person is adjudicated a delinquent child for committing, attempting to commit, conspiring to commit, or complicity in committing one of the following acts:

(a) A violation of section 2907.02 of the Revised Code, division (B) of section 2907.05 of the Revised Code, or section 2907.03 of the Revised Code if the victim of the violation was less than twelve years of age;

(b) A violation of section 2903.01, 2903.02, or 2905.01 of the Revised Code that was committed with a purpose to gratify the sexual needs or desires of the child;

(c) A violation of division (B) of section 2903.03 of the Revised Code.

(2) The person was fourteen, fifteen, sixteen, or seventeen years of age at the time of committing the act.

(3) A juvenile court judge, pursuant to an order issued under section 2152.86 of the Revised Code, classifies the person a juvenile offender registrant, specifies the person has a duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code, and classifies the person a public registry-qualified juvenile offender registrant, and the classification of the person as a public registry-qualified juvenile offender registrant has not been terminated pursuant to division (D) of section 2152.86 of the Revised Code.

(O) “Secure facility” means any facility that is designed and operated to ensure that all of its entrances and exits are locked and under the exclusive control of its staff and to ensure that, because of that exclusive control, no person who is institutionalized or confined in the facility may leave the facility without permission or supervision.

(P) “Out-of-state juvenile offender registrant” means a person who is adjudicated a delinquent child in a court in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States for committing a sexually oriented offense or a child-victim oriented offense, who on or after January 1, 2002, moves to and resides in this state or temporarily is domiciled in this state for more than five days, and who has a duty under section 2950.04 or 2950.041 of the Revised Code to register in this state and the duty to otherwise comply with that applicable section and sections 2950.05 and 2950.06 of the Revised Code. “Out-of-state juvenile offender registrant” includes a person who prior to January 1, 2008, was an “out-of-state juvenile offender registrant” under the definition of the term in existence prior to January 1, 2008, and a person who prior to July 31, 2003, was an “out-of-state juvenile sex offender registrant” under the former definition of that former term.

(Q) “Juvenile court judge” includes a magistrate to whom the juvenile court judge confers duties pursuant to division (A)(15) of section 2151.23 of the Revised Code.

(R) “Adjudicated a delinquent child for committing a sexually oriented offense” includes a child who receives a serious youthful offender dispositional sentence under section 2152.13 of the Revised Code for committing a sexually oriented offense.

(S) “School” and “school premises” have the same meanings as in section 2925.01 of the Revised Code.

(T) “Residential premises” means the building in which a residential unit is located and the grounds upon which that building stands, extending to the perimeter of the property. “Residential premises” includes any type of structure in which a residential unit is located, including, but not limited to, multi-unit buildings and mobile and manufactured homes.

(U) “Residential unit” means a dwelling unit for residential use and occupancy, and includes the structure or part of a structure that is used as a home, residence, or sleeping place by one person who maintains a household or two or more persons who maintain a common household. “Residential unit” does not include a halfway house or a community-based correctional facility.

(V) “Multi-unit building” means a building in which is located more than twelve residential units that have entry doors that open directly into the unit from a hallway that is shared with one or more other units. A residential unit is not considered located in a multi-unit building if the unit does not have an entry door that opens directly into the unit from a hallway that is shared with one or more other units or if the unit is in a building that is not a multi-unit building as described in this division.

(W) “Community control sanction” has the same meaning as in section 2929.01 of the Revised Code.

(X) “Halfway house” and “community-based correctional facility” have the same meanings as in section 2929.01 of the Revised Code.

(Y) A person is in a “restricted offender category” if both of the following apply with respect to the person:

(1) The person has been convicted of, is convicted of, has pleaded guilty to, or pleads guilty to a sexually oriented offense where the victim was under the age of eighteen or a child-victim oriented offense.

(2) With respect to the offense described in division (Y)(1) of this section, one of the following applies:

(a) With respect to that offense, the person is a tier II sex offender/child-victim offender or is a tier III sex offender/child-victim offender who is subject to the duties imposed by sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(b) With respect to that offense if it was committed prior to January 1, 2008, under the version of Chapter 2950. of the Revised Code in effect prior to January 1, 2008, the person was adjudicated a sexual predator, was adjudicated a child-victim predator, was classified a habitual sex offender, or was classified a habitual child-victim sex offender.

(Z) “Adjudicated a sexual predator,” “adjudicated a child-victim predator,” “habitual sex offender,” and “habitual child-victim offender” have the meanings of those terms that applied to them under Chapter 2950. of the Revised Code prior to January 1, 2008.

(AA) “Fixed residence address” means a permanent residential address. “Fixed residence address” does not include a temporary address, including a place or places that a homeless person stays or intends to stay, unless that place is a shelter that intends to allow the homeless person to stay for thirty or more consecutive days.

(BB) “Homeless” has the same meaning as in 42 U.S.C. 11302.

CREDIT(S)

(2024 S 109, eff. 3-21-25; 2024 H 289, eff. 3-20-25; 2022 S 16, eff. 4-4-23; 2020 H 431, eff. 4-12-21; 2018 H 92, eff. 3-20-19; 2016 H 158, eff. 10-12-16; 2014 H 130, eff. 6-20-14; 2012 S 160, eff. 3-22-13; 2012 H 262, eff. 6-27-12; 2007 S 10, eff. 1-1-08; 2006 S 260, eff. 1-2-07; 2004 H 473, eff. 4-29-05; 2003 S 57, eff. 1-1-04; 2003 S 5, § 3, eff. 1-1-04; 2003 S 5, § 1, eff. 7-31-03; 2002 H 490, eff. 1-1-04; 2002 H 485, eff. 6-13-02; 2002 S 175, eff. 5-7-02; 2002 H 393, eff. 7-5-02; 2001 S 3, eff. 1-1-02; 2000 H 502, eff. 3-15-01; 1998 H 565, eff. 3-30-99; 1997 S 111, eff. 3-17-98; 1996 H 180, eff. 1-1-97)

R.C. § 2950.01, OH ST § 2950.01

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.011

2950.011 Applicability of certain definitions prior to January 1, 2008

Currentness

Except as specifically provided to the contrary in sections 2950.02 to 2950.99 of the Revised Code, all references in any of those sections to “sexually oriented offense” include, in addition to the violations specified in division (A) of section 2950.01 of the Revised Code on and after January 1, 2008, any sexually oriented offense, as that term was defined in section 2950.01 of the Revised Code prior to January 1, 2008, that was committed prior to that date and that was not a registration exempt sexually oriented offense, as that term was defined in that section prior to January 1, 2008.

Except as specifically provided to the contrary in sections 2950.02 to 2950.99 of the Revised Code, all references in any of those sections to “child-victim oriented offense” include, in addition to the violations specified in division (C) of section 2950.01 of the Revised Code on and after January 1, 2008, any child-victim oriented offense, as that term was defined in section 2950.01 of the Revised Code prior to January 1, 2008, that was committed prior to that date.

CREDIT(S)

(2007 S 10, eff. 1-1-08)

R.C. § 2950.011, OH ST § 2950.011

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.012

2950.012 Payment of registration fee as condition of community control sanction

Currentness

If a court sentences a person who commits a sexually oriented offense or a child-victim oriented offense to a community control sanction, the court may make payment of the registration fee required by section 311.172 of the Revised Code a condition of the community control sanction.

CREDIT(S)

(2013 H 59, eff. 9-29-13)

R.C. § 2950.012, OH ST § 2950.012

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.02

2950.02 Legislative findings; public policy declaration

Currentness

(A) The general assembly hereby determines and declares that it recognizes and finds all of the following:

(1) If the public is provided adequate notice and information about offenders and delinquent children who commit sexually oriented offenses or who commit child-victim oriented offenses, members of the public and communities can develop constructive plans to prepare themselves and their children for the offender's or delinquent child's release from imprisonment, a prison term, or other confinement or detention. This allows members of the public and communities to meet with members of law enforcement agencies to prepare and obtain information about the rights and responsibilities of the public and the communities and to provide education and counseling to their children.

(2) Sex offenders and child-victim offenders pose a risk of engaging in further sexually abusive behavior even after being released from imprisonment, a prison term, or other confinement or detention, and protection of members of the public from sex offenders and child-victim offenders is a paramount governmental interest.

(3) The penal, juvenile, and mental health components of the justice system of this state are largely hidden from public view, and a lack of information from any component may result in the failure of the system to satisfy this paramount governmental interest of public safety described in division (A)(2) of this section.

(4) Overly restrictive confidentiality and liability laws governing the release of information about sex offenders and child-victim offenders have reduced the willingness to release information that could be appropriately released under the public disclosure laws and have increased risks of public safety.

(5) A person who is found to be a sex offender or a child-victim offender has a reduced expectation of privacy because of the public's interest in public safety and in the effective operation of government.

(6) The release of information about sex offenders and child-victim offenders to public agencies and the general public will further the governmental interests of public safety and public scrutiny of the criminal, juvenile, and mental health systems as long as the information released is rationally related to the furtherance of those goals.

(B) The general assembly hereby declares that, in providing in this chapter for registration regarding offenders and certain delinquent children who have committed sexually oriented offenses or who have committed child-victim oriented offenses and for community notification regarding tier III sex offenders/child-victim offenders who are criminal offenders, public registry-qualified juvenile offender registrants, and certain other juvenile offender registrants who are about to be or have been released

from imprisonment, a prison term, or other confinement or detention and who will live in or near a particular neighborhood or who otherwise will live in or near a particular neighborhood, it is the general assembly's intent to protect the safety and general welfare of the people of this state. The general assembly further declares that it is the policy of this state to require the exchange in accordance with this chapter of relevant information about sex offenders and child-victim offenders among public agencies and officials and to authorize the release in accordance with this chapter of necessary and relevant information about sex offenders and child-victim offenders to members of the general public as a means of assuring public protection and that the exchange or release of that information is not punitive.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 2001 S 3, eff. 1-1-02; 1996 H 180, eff. 7-1-97)

R.C. § 2950.02, OH ST § 2950.02

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.021

2950.021 Reclassification of wrongly classified tier offender

Currentness

(A) As used in this section:

(1) "Wrongly classified Tier offender" means a sex offender or child-victim offender who has been classified by a court as a Tier I sex offender/child-victim offender, a Tier II sex offender/child-victim offender, or a Tier III sex offender/child-victim offender based on a sexually oriented offense or a child-victim oriented offense committed prior to January 1, 2008, and whose Tier classification based on that offense is invalid under the decision of the Ohio supreme court in *State v. Williams*, 129 Ohio St.3d 344, 2011-Ohio-3374.

(2) "Pre-2008 classification" means one of the categories in which sex offenders and child-victim offenders were included under Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008, and that determined the manner in which, and duration for which, the duties under that chapter applied to such offenders, including habitual sex offenders, sexual predators, habitual child-victim offenders, child-victim predators, sex offenders who were convicted of or pleaded guilty to an aggravated sexually oriented offense, and any other sex offenders or child-victim offenders not included in any of the preceding categories who were subject to duties, responsibilities, and restrictions under that chapter.

(B)(1) At any time before a wrongly classified Tier offender completes any registration and verification duties under this chapter that are associated with the sexually oriented offense or child-victim oriented offense that is the basis of the offender being a wrongly classified Tier offender, the court, upon the request of either the state or the offender or on the court's own initiative, shall hold a hearing to determine the pre-2008 classification that should apply to the offender under the provisions of Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008. This division applies with respect to a wrongly classified Tier offender who is completing registration and verification duties for the first time or one who has completed those duties one or more times previously and subsequently is completing them again in accordance with the provisions of Chapter 2950. of the Revised Code.

(2) The court shall give to both the state and the wrongly classified offender who is the subject of the hearing at least thirty days' notice of the date, time, and location of any hearing held under division (B)(1) of this section. The offender has the right to be represented by counsel and, if indigent, the right to have counsel appointed to represent the offender.

(3) A hearing held under division (B)(1) of this section shall be governed by, and held in accordance with, Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008, including one of the following as appropriate:

(a) As applicable to sexually oriented offenders, section 2950.09 of the Revised Code as it existed immediately prior to that date;

(b) As applicable to child-victim offenders, section 2950.091 of the Revised Code as it existed immediately prior to that date.

(4) If, at the conclusion of the hearing held under division (B)(1) of this section, the court determines that the wrongly classified Tier offender should be classified under the provisions of Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008, the court shall determine the appropriate pre-2008 classification for the offender, shall make any other necessary findings under those provisions, and shall file an entry that does all of the following:

(a) Sets forth the pre-2008 classification that the court determined for the offender and other relevant information;

(b) Specifies that the pre-2008 classification that the court determined for the offender is subject to enforcement under Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008;

(c) Vacates the prior classification of the offender as a Tier I sex offender/child-victim offender, Tier II sex offender/child-victim offender, or Tier III sex offender/child-victim offender.

(5) Any wrongly classified Tier offender who is reclassified under division (B) of this section shall receive credit toward the registration and verification duties under the new pre-2008 classification for all time that the offender has been in compliance with the registration and verification duties as a Tier I sex offender/child-victim offender, Tier II sex offender/child-victim offender, or Tier III sex offender/child-victim offender.

(6) Nothing in division (B) of this section limits either the state or a wrongly classified Tier offender from challenging on direct appeal a classification of the offender as a Tier I sex offender/child-victim offender, Tier II sex offender/child-victim offender, or Tier III sex offender/child-victim offender.

(7) Proceedings under division (B) of this section shall be initiated by the filing of a motion by a wrongly classified Tier offender or the state, or by the court's own initiative, within one year after the effective date of this section. If proceedings are not initiated within one year after the effective date of this section with respect to a wrongly classified Tier offender, the offender's Tier classification thereafter shall be deemed to be a valid classification subject to enforcement under Chapter 2950. of the Revised Code as it exists on and after January 1, 2008.

(8) No hearing may be held under division (B)(1) of this section with respect to a wrongly classified Tier offender if the offender, in writing in a motion or in another document filed with the court in the case, affirmatively accepts the Tier classification assigned to the offender. Upon such acceptance, the court shall issue an order recognizing that the wrongly classified Tier offender affirmatively accepts the Tier classification and is subject to Chapter 2950. of the Revised Code as it exists on and after January 1, 2008.

(C) If, on or after the effective date of this section, a person is convicted of or pleads guilty to a sexually oriented offense or child-victim oriented offense committed prior to January 1, 2008, the court imposing sentence for the offense shall hold a hearing to determine the pre-2008 classification that should apply to the offender under the provisions of Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008. Division (B)(3) of this section applies with respect to a hearing held under this division.

If, at the conclusion of the hearing held under this division, the court determines that the offender should be classified under the provisions of Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008, the court shall determine the appropriate pre-2008 classification for the offender and shall file an entry that does both of the following:

- (1) Sets forth the pre-2008 classification that the court determined for the offender;
- (2) Specifies that the pre-2008 classification that the court determined for the offender is subject to enforcement under Chapter 2950. of the Revised Code as it existed immediately prior to January 1, 2008.

CREDIT(S)

(2023 H 35, eff. 1-11-24)

R.C. § 2950.021, OH ST § 2950.021

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.03

2950.03 Notice of duty to register and related requirements

Currentness

(A) Each person who has been convicted of, is convicted of, has pleaded guilty to, or pleads guilty to a sexually oriented offense or a child-victim oriented offense and who has a duty to register pursuant to section 2950.04 or 2950.041 of the Revised Code and each person who is adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and who is classified a juvenile offender registrant based on that adjudication shall be provided notice in accordance with this section of the offender's or delinquent child's duties imposed under sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code and of the offender's duties to similarly register, provide notice of a change, and verify addresses in another state if the offender resides, is temporarily domiciled, attends a school or institution of higher education, or is employed in a state other than this state. The following official shall provide the notice required under this division to the specified person at the following time:

(1) Regardless of when the person committed the sexually oriented offense or child-victim oriented offense, if the person is an offender who is sentenced to a prison term, a term of imprisonment, or any other type of confinement for any offense, and if on or after January 1, 2008, the offender is serving that term or is under that confinement, subject to division (A)(5) of this section, the official in charge of the jail, workhouse, state correctional institution, or other institution in which the offender serves the prison term, term of imprisonment, or confinement, or a designee of that official, shall provide the notice to the offender before the offender is released pursuant to any type of supervised release or before the offender otherwise is released from the prison term, term of imprisonment, or confinement.

(2) Regardless of when the person committed the sexually oriented offense or child-victim oriented offense, if the person is an offender who is sentenced on or after January 1, 2008 for any offense, and if division (A)(1) of this section does not apply, the judge shall provide the notice to the offender at the time of sentencing.

(3) If the person is a delinquent child who is classified a juvenile offender registrant on or after January 1, 2008, the judge shall provide the notice to the delinquent child at the time specified in division (B) of section 2152.82, division (C) of section 2152.83, division (C) of section 2152.84, or division (E) of section 2152.85 of the Revised Code, whichever is applicable.

(4) If the person is a delinquent child who is classified as both a juvenile offender registrant and a public registry-qualified juvenile offender registrant on or after January 1, 2008, the judge shall provide the notice to the delinquent child at the time specified in division (B) of section 2152.86 of the Revised Code.

(5) If the person is an offender or delinquent child in any of the following categories, the attorney general, department of rehabilitation and correction, or department of youth services shall provide the notice to the offender or delinquent child at the time and in the manner specified in section 2950.031 or division (A) or (B) of section 2950.032 of the Revised Code, whichever is applicable:

(a) An offender or delinquent child who prior to December 1, 2007, has registered a residence, school, institution of higher education, or place of employment address pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code;

(b) An offender or delinquent child who registers with a sheriff pursuant to section 2950.04 or 2950.041 of the Revised Code on or after December 1, 2007, previously had not registered under either section with that sheriff or any other sheriff, and was convicted of, pleaded guilty to, or was classified a juvenile offender registrant relative to the sexually oriented offense or child-victim oriented offense upon which the registration was based prior to December 1, 2007;

(c) An offender who on December 1, 2007, is serving a prison term in a state correctional institution for a sexually oriented offense or child-victim oriented offense or each delinquent child who has been classified a juvenile offender registrant relative to a sexually oriented offense or child-victim oriented offense and who on that date is confined in an institution of the department of youth services for the sexually oriented offense or child-victim oriented offense;

(d) An offender or delinquent child who on or after December 2, 2007, commences a prison term in a state correctional institution or confinement in an institution of the department of youth services for a sexually oriented offense or child-victim oriented offense and who was convicted of, pleaded guilty to, or was classified a juvenile offender registrant relative to the sexually oriented offense or child-victim oriented offense prior to that date.

(6) If the person is an offender or delinquent child who on or after July 1, 2007, and prior to January 1, 2008, is convicted of or pleads guilty to a sexually oriented offense or a child-victim oriented offense and is not sentenced to a prison term for that offense or is classified a juvenile offender registrant relative to a sexually oriented offense or child-victim oriented offense and is not committed to the custody of the department of youth services for that offense, the sentencing court or juvenile court shall provide the notice to the offender or delinquent child at the time and in the manner specified in division (C) of section 2950.032 of the Revised Code.

(7) If the person is an offender or delinquent child who has a duty to register in this state pursuant to division (A)(4) of section 2950.04 or 2950.041 of the Revised Code, the offender or delinquent child is presumed to have knowledge of the law and of the offender's or delinquent child's duties imposed under sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(B)(1) The notice provided under division (A) of this section shall inform the offender or delinquent child of the offender's or delinquent child's duty to register, to provide notice of a change in the offender's or delinquent child's residence address or in the offender's school, institution of higher education, or place of employment address, as applicable, and register the new address, to periodically verify the offender's or delinquent child's residence address or the offender's school, institution of higher education, or place of employment address, as applicable, and, if applicable, to provide notice of the offender's or delinquent child's intent to reside, pursuant to sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code. The notice shall specify that, for an offender, it applies regarding residence addresses or school, institution of higher education, and place of employment addresses and that, for a delinquent child, it applies regarding residence addresses. Additionally, it shall inform the offender of the offender's duties to similarly register, provide notice of a change in, and verify those addresses in states other than this state as described in division (A) of this section. A notice provided under division (A)(1), (2), (3), or (4) of this section shall comport with the following:

(a) If the notice is provided to an offender under division (A)(1) or (2) of this section, the official, official's designee, or judge shall require the offender to read and sign a form stating that the offender's duties to register, to file a notice of intent to reside, if applicable, to register a new residence address or new school, institution of higher education, or place of employment address, and to periodically verify those addresses, and the offender's duties in other states as described in division (A) of this section have been explained to the offender. If the offender is unable to read, the official, official's designee, or judge shall certify on the form that the official, designee, or judge specifically informed the offender of those duties and that the offender indicated an understanding of those duties.

(b) If the notice is provided to a delinquent child under division (A)(3) or (4) of this section, the judge shall require the delinquent child and the delinquent child's parent, guardian, or custodian to read and sign a form stating that the delinquent child's duties to register, to file a notice of intent to reside, if applicable, to register a new residence address, and to periodically verify that address have been explained to the delinquent child and to the delinquent child's parent, guardian, or custodian. If the delinquent child or the delinquent child's parent, guardian, or custodian is unable to read, the judge shall certify on the form that the judge specifically informed the delinquent child or the delinquent child's parent, guardian, or custodian of those duties and that the delinquent child or the delinquent child's parent, guardian, or custodian indicated an understanding of those duties.

(2) The notice provided under divisions (A)(1) to (4) of this section shall be on a form prescribed by the bureau of criminal identification and investigation and shall contain all of the information specified in division (A) of this section and all of the information required by the bureau. The notice provided under divisions (A)(1) to (4) of this section shall include, but is not limited to, all of the following:

(a) For any notice provided under divisions (A)(1) to (4) of this section, an explanation of the offender's periodic residence address or periodic school, institution of higher education, or place of employment address verification process or of the delinquent child's periodic residence address verification process, an explanation of the frequency with which the offender or delinquent child will be required to verify those addresses under that process, a statement that the offender or delinquent child must verify those addresses at the times specified under that process or face criminal prosecution or a delinquent child proceeding, and an explanation of the offender's duty to similarly register, verify, and reregister those addresses in another state if the offender resides in another state, attends a school or institution of higher education in another state, or is employed in another state.

(b) If the notice is provided under division (A)(3) or (4) of this section, a statement that the delinquent child has been classified by the adjudicating juvenile court judge or the judge's successor in office a juvenile offender registrant and, if applicable, a public-registry qualified juvenile offender registrant and has a duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code;

(c) If the notice is provided under division (A)(3) or (4) of this section, a statement that, if the delinquent child fails to comply with the requirements of sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code, both of the following apply:

(i) If the delinquent child's failure occurs while the child is under eighteen years of age, the child is subject to proceedings under Chapter 2152. of the Revised Code based on the failure, but if the failure occurs while the child is eighteen years of age or older, the child is subject to criminal prosecution based on the failure.

(ii) If the delinquent child's failure occurs while the child is under eighteen years of age, unless the child is emancipated, as defined in section 2919.121 of the Revised Code, the failure of the parent, guardian, or custodian to ensure that the child complies with those requirements is a violation of section 2919.24 of the Revised Code and may result in the prosecution of the parent, guardian, or custodian for that violation.

(3)(a) After an offender described in division (A)(1) or (2) of this section has signed the form described in divisions (B)(1) and (2) of this section or the official, official's designee, or judge has certified on the form that the form has been explained to the offender and that the offender indicated an understanding of the duties indicated on it, the official, official's designee, or judge shall give one copy of the form to the offender, within three days shall send one copy of the form to the bureau of criminal identification and investigation in accordance with the procedures adopted pursuant to section 2950.13 of the Revised Code, shall send one copy of the form to the sheriff of the county in which the offender expects to reside, and shall send one copy of the form to the sheriff of the county in which the offender was convicted or pleaded guilty if the offender has a duty to register pursuant to division (A)(1) of section 2950.04 or 2950.041 of the Revised Code.

(b) After a delinquent child described in division (A)(3) or (4) of this section and the delinquent child's parent, guardian, or custodian have signed the form described in divisions (B)(1) and (2) of this section or the judge has certified on the form that the form has been explained to the delinquent child or the delinquent child's parent, guardian, or custodian and that the delinquent child or the delinquent child's parent, guardian, or custodian indicated an understanding of the duties and information indicated on the form, the judge shall give a copy of the form to both the delinquent child and to the delinquent child's parent, guardian, or custodian, within three days shall send one copy of the form to the bureau of criminal identification and investigation in accordance with the procedures adopted pursuant to section 2950.13 of the Revised Code, shall send one copy of the form to the sheriff of the county in which the delinquent child expects to reside, and shall send one copy of the form to the sheriff of the county in which the child was adjudicated a delinquent child if the delinquent child has a duty to register pursuant to division (A)(1) of section 2950.04 or 2950.041 of the Revised Code.

(C) The official, official's designee, judge, chief of police, or sheriff who is required to provide notice to an offender or delinquent child under divisions (A)(1) to (4) of this section shall determine the offender's or delinquent child's name, identifying factors, and expected future residence address in this state or any other state, shall obtain the offender's or delinquent child's criminal and delinquency history, and shall obtain a photograph and the fingerprints of the offender or delinquent child. Regarding an offender, the official, designee, or judge also shall obtain from the offender the offender's current or expected future school, institution of higher education, or place of employment address in this state, if any. If the notice is provided by a judge under division (A)(2), (3), or (4) of this section, the sheriff shall provide the offender's or delinquent child's criminal and delinquency history to the judge. The official, official's designee, or judge shall obtain this information and these items prior to giving the notice, except that a judge may give the notice prior to obtaining the offender's or delinquent child's criminal and delinquency history. Within three days after receiving this information and these items, the official, official's designee, or judge shall forward the information and items to the bureau of criminal identification and investigation in accordance with the forwarding procedures adopted pursuant to section 2950.13 of the Revised Code, to the sheriff of the county in which the offender or delinquent child expects to reside and to the sheriff of the county in which the offender or delinquent child was convicted, pleaded guilty, or adjudicated a delinquent child if the offender or delinquent child has a duty to register pursuant to division (A)(1) of section 2950.04 or 2950.041 of the Revised Code, and, regarding an offender, to the sheriff of the county, if any, in which the offender attends or will attend a school or institution of higher education or is or will be employed. If the notice is provided under division (A)(3) or (4) of this section and if the delinquent child has been committed to the department of youth services or to a secure facility, the judge, in addition to the other information and items described in this division, also shall forward to the bureau and to the sheriff notification that the child has been so committed. If it has not already done so, the bureau of criminal identification and investigation shall forward a copy of the fingerprints and conviction data received under this division to the federal bureau of investigation.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2001 S 3, eff. 1-1-02; 2000 H 502, eff. 3-15-01; 1997 H 93, eff. 12-31-97; 1996 H 180, eff. 1-1-97)

R.C. § 2950.03, OH ST § 2950.03

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.031

2950.031 Determination of sex offender tier classification for those having
registered a residence, school, or place of employment address; notice; hearing

Currentness

(A)(1) At any time on or after July 1, 2007, and not later than December 1, 2007, the attorney general shall determine for each offender or delinquent child who prior to December 1, 2007, has registered a residence, school, institution of higher education, or place of employment address pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code the offender's or delinquent child's new classification as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as so changed, and, regarding a delinquent child, whether the child is a public registry-qualified juvenile offender registrant.

(2) At any time on or after July 1, 2007, and not later than December 1, 2007, the attorney general shall send to each offender or delinquent child who prior to December 1, 2007, has registered a residence, school, institution of higher education, or place of employment address pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code a registered letter that contains the information described in this division. The registered letter shall be sent return receipt requested to the last reported address of the person and, if the person is a delinquent child, the last reported address of the parents of the delinquent child. The letter sent to an offender or to a delinquent child and the delinquent child's parents pursuant to this division shall notify the offender or the delinquent child and the delinquent child's parents of all of the following:

(a) The changes in Chapter 2950. of the Revised Code that will be implemented on January 1, 2008;

(b) Subject to division (A)(2)(c) of this section, the offender's or delinquent child's new classification as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as so changed and the duration of those duties, whether the delinquent child is classified a public registry-qualified juvenile offender registrant, and the information specified in division (B) of section 2950.03 of the Revised Code to the extent it is relevant to the offender or delinquent child;

(c) The fact that the offender or delinquent child has a right to a hearing as described in division (E) of this section, the procedures for requesting the hearing, and the period of time within which the request for the hearing must be made.

(d) If the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate on or after July 1, 2007, and prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to January 1, 2008, a summary of the provisions of section 2950.033 of the Revised Code and the application of those provisions to the offender or delinquent child, provided that this division applies to a delinquent child only if the child is in a category specified in division (C) of section 2950.033 of the Revised Code.

(3) The attorney general shall make the determinations described in division (A)(1) of this section for each offender or delinquent child who has registered an address as described in that division, even if the offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date or the delinquent child is in a category specified in division (C) of section 2950.033 of the Revised Code and the child's duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date. The attorney general shall send the registered letter described in division (A)(2) of this section to each offender or delinquent child who has registered an address as described in that division even if the offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date, or the delinquent child is in a category specified in division (C) of section 2950.033 of the Revised Code, and the child's duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date. Section 2950.033 of the Revised Code applies to any offender who has registered an address as described in division (A)(1) or (2) of this section and whose duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date, or the delinquent child is in a category specified in division (C) of section 2950.033 of the Revised Code, and the child's duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date.

(B) If a sheriff informs the attorney general pursuant to section 2950.043 of the Revised Code that an offender or delinquent child registered with the sheriff pursuant to section 2950.04 or 2950.041 of the Revised Code on or after December 1, 2007, that the offender or delinquent child previously had not registered under either section with that sheriff or any other sheriff, and that the offender or delinquent child was convicted of, pleaded guilty to, or was classified a juvenile offender registrant relative to the sexually oriented offense or child-victim oriented offense upon which the registration was based prior to December 1, 2007, within fourteen days after being so informed of the registration and receiving the information and material specified in division (D) of that section, the attorney general shall determine for the offender or delinquent child all of the matters specified in division (A)(1) of this section. Upon making the determinations, the attorney general immediately shall send to the offender or to the delinquent child and the delinquent child's parents a registered letter pursuant to division (A)(2) of this section that contains the information specified in that division.

(C) The attorney general shall maintain the return receipts for all offenders, delinquent children, and parents of delinquent children who are sent a registered letter under division (A) or (B) of this section. For each offender, delinquent child, and parents of a delinquent child, the attorney general shall send a copy of the return receipt for the offender, delinquent child, or parents to the sheriff with whom the offender or delinquent child most recently registered a residence address and, if applicable, a school, institution of higher education, or place of employment address and to the prosecutor who handled the case in which the offender or delinquent child was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing the sexually oriented offense or child-victim oriented offense that resulted in the offender's or child's registration duty under section 2950.04 or 2950.041 of the Revised Code. If a return receipt indicates that the offender, delinquent child, or parents of a delinquent child to whom the registered letter was sent does not reside or have temporary domicile at the listed address, the attorney general immediately shall provide notice of that fact to the sheriff with whom the offender or delinquent child registered that residence address.

(D) The attorney general shall mail to each sheriff a list of all offenders and delinquent children who have registered a residence address or a school, institution of higher education, or place of employment address with that sheriff and to whom a registered letter is sent under division (A) or (B) of this section. The list shall specify the offender's or delinquent child's new classification

as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as so changed, and, regarding a delinquent child, whether the child is a public registry-qualified juvenile offender registrant.

(E) An offender or delinquent child who is in a category described in division (A)(2) or (B) of this section may request as a matter of right a court hearing to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008. The offender or delinquent child may contest the manner in which the letter sent to the offender or delinquent child pursuant to division (A) or (B) of this section specifies that the new registration requirements apply to the offender or delinquent child or may contest whether those new registration requirements apply at all to the offender or delinquent child. To request the hearing, the offender or delinquent child not later than the date that is sixty days after the offender or delinquent child received the registered letter sent by the attorney general pursuant to division (A)(2) of this section shall file a petition with the court specified in this division. If the offender or delinquent child resides in or is temporarily domiciled in this state and requests a hearing, the offender or delinquent child shall file the petition with, and the hearing shall be held in, the court of common pleas or, for a delinquent child, the juvenile court of the county in which the offender or delinquent child resides or temporarily is domiciled. If the offender does not reside in and is not temporarily domiciled in this state, the offender or delinquent child shall file the petition with, and the hearing shall be held in, the court of common pleas of the county in which the offender registered a school, institution of higher education, or place of employment address, but if the offender has registered addresses of that nature in more than one county, the offender may file such a petition in the court of only one of those counties.

If the offender or delinquent child requests a hearing by timely filing a petition with the appropriate court, the offender or delinquent child shall serve a copy of the petition on the prosecutor of the county in which the petition is filed. The prosecutor shall represent the interests of the state in the hearing. In any hearing under this division, the Rules of Civil Procedure or, if the hearing is in a juvenile court, the Rules of Juvenile Procedure apply, except to the extent that those Rules would by their nature be clearly inapplicable. The court shall schedule a hearing, and shall provide notice to the offender or delinquent child and prosecutor of the date, time, and place of the hearing.

If an offender or delinquent child requests a hearing in accordance with this division, until the court issues its decision at or subsequent to the hearing, the offender or delinquent child shall comply prior to January 1, 2008, with Chapter 2950. of the Revised Code as it exists prior to that date and shall comply on and after January 1, 2008, with Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on that date. If an offender or delinquent child requests a hearing in accordance with this division, at the hearing, all parties are entitled to be heard, and the court shall consider all relevant information and testimony presented relative to the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008. If, at the conclusion of the hearing, the court finds that the offender or delinquent child has proven by clear and convincing evidence that the new registration requirements do not apply to the offender or delinquent child in the manner specified in the letter sent to the offender or delinquent child pursuant to division (A) or (B) of this section, the court shall issue an order that specifies the manner in which the court has determined that the new registration requirements do apply to the offender or delinquent child. If at the conclusion of the hearing the court finds that the offender or delinquent child has proven by clear and convincing evidence that the new registration requirements do not apply to the offender or delinquent child, the court shall issue an order that specifies that the new registration requirements do not apply to the offender or delinquent child. The court promptly shall serve a copy of an order issued under this division upon the sheriff with whom the offender or delinquent child most recently registered under section 2950.04, 2950.041, or 2950.05 of the Revised Code and upon the bureau of criminal identification and investigation. The offender or delinquent child and the prosecutor have the right to appeal the decision of the court issued under this division.

If an offender or delinquent child fails to request a hearing in accordance with this division within the applicable sixty-day period specified in this division, the failure constitutes a waiver by the offender or delinquent child of the offender's or delinquent

child's right to a hearing under this division, and the offender or delinquent child is bound by the determinations of the attorney general contained in the registered letter sent to the offender or child.

If a juvenile court issues an order under division (A)(2) or (3) of section 2152.86 of the Revised Code that classifies a delinquent child a public-registry qualified juvenile offender registrant and if the child's delinquent act was committed prior to January 1, 2008, a challenge to the classification contained in the order shall be made pursuant to division (D) of section 2152.86 of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 7-1-07)

R.C. § 2950.031, OH ST § 2950.031

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.032

2950.032 Determination of sex offender classification tier for those serving prison term; juvenile offender; hearing; notice

Currentness

(A)(1) At any time on or after July 1, 2007, and not later than December 1, 2007, the attorney general shall do all of the following:

(a) For each offender who on December 1, 2007, will be serving a prison term in a state correctional institution for a sexually oriented offense or child-victim oriented offense, determine the offender's classification relative to that offense as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes in that chapter that will be implemented on January 1, 2008, and the offender's duties under Chapter 2950. of the Revised Code as so changed and provide to the department of rehabilitation and correction a document that describes that classification and those duties;

(b) For each delinquent child who has been classified a juvenile offender registrant relative to a sexually oriented offense or child-victim oriented offense and who on December 1, 2007, will be confined in an institution of the department of youth services for the sexually oriented offense or child-victim oriented offense, determine the delinquent child's classification relative to that offense as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes in that chapter that will be implemented on January 1, 2008, the delinquent child's duties under Chapter 2950. of the Revised Code as so changed, and whether the delinquent child is a public registry-qualified juvenile offender registrant and provide to the department a document that describes that classification, those duties, and whether the delinquent child is a public registry-qualified juvenile offender registrant.

(c) For each offender and delinquent child described in division (A)(1)(a) or (b) of this section, determine whether the attorney general is required to send a registered letter to that offender or that delinquent child and delinquent child's parents pursuant to section 2950.031 of the Revised Code relative to the sexually oriented offense or child-victim oriented offense for which the offender or delinquent child is serving the prison term or is confined and, if the attorney general is required to send such a letter to that offender or that delinquent child and delinquent child's parents relative to that offense, include in the document provided to the department of rehabilitation and correction or the department of youth services under division (A)(1)(a) or (b) of this section a conspicuous notice that the attorney general will be sending the offender or delinquent child and delinquent child's parent the registered letter and that the department is not required to provide to the offender or delinquent child the written notice described in division (A)(2) of this section.

(2) At any time on or after July 1, 2007, and not later than December 1, 2007, except as otherwise described in this division, the department of rehabilitation and correction shall provide to each offender described in division (A)(1)(a) of this section and the department of youth services shall provide to each delinquent child described in division (A)(1)(b) of this section and to the delinquent child's parents a written notice that contains the information described in this division. The department of rehabilitation and correction and the department of youth services are not required to provide the written notice to an offender or

a delinquent child and the delinquent child's parents if the attorney general included in the document provided to the particular department under division (A)(1)(a) or (b) of this section notice that the attorney general will be sending that offender or that delinquent child and the delinquent child's parents a registered letter and that the department is not required to provide to that offender or that delinquent child and parents the written notice. The written notice provided to an offender or a delinquent child and the delinquent child's parents pursuant to this division shall notify the offender or delinquent child of all of the following:

- (a) The changes in Chapter 2950. of the Revised Code that will be implemented on January 1, 2008;
 - (b) Subject to division (A)(2)(c) of this section, the offender's or delinquent child's classification as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as so changed and the duration of those duties, whether the delinquent child is classified a public registry-qualified juvenile offender registrant, and the information specified in division (B) of section 2950.03 of the Revised Code to the extent it is relevant to the offender or delinquent child;
 - (c) The fact that the offender or delinquent child has a right to a hearing as described in division (E) of this section, the procedures for requesting the hearing, and the period of time within which the request for the hearing must be made;
 - (d) If the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate on or after July 1, 2007, and prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to January 1, 2008, a summary of the provisions of section 2950.033 of the Revised Code and the application of those provisions to the offender or delinquent child, provided that this division applies regarding a delinquent child only if the child is in a category specified in division (A) of section 2950.033 of the Revised Code.
- (3) The attorney general shall make the determinations described in divisions (A)(1)(a) and (b) of this section for each offender or delinquent child who is described in either of those divisions even if the offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date, or the delinquent child is in a category specified in division (C) of section 2950.033 of the Revised Code, and the child's duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date. The department of rehabilitation and correction shall provide to each offender described in division (A)(1)(a) of this section and the department of youth services shall provide to each delinquent child described in division (A)(1)(b) of this section the notice described in division (A)(2) of this section, even if the offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date, or the delinquent child is in a category specified in division (C) of section 2950.033 of the Revised Code, and the child's duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date. Section 2950.033 of the Revised Code applies regarding any offender described in division (A)(1)(a) or (b) of this section whose duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date and any delinquent child who is in a category specified in division (A) of section 2950.033 of the Revised Code and whose duty to comply with those sections is scheduled to terminate prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to that date.
- (B) If on or after December 2, 2007, an offender commences a prison term in a state correctional institution or a delinquent child commences confinement in an institution of the department of youth services for a sexually oriented offense or a child-

victim oriented offense and if the offender or delinquent child was convicted of, pleaded guilty to, or was classified a juvenile offender registrant relative to the sexually oriented offense or child-victim oriented offense on or before that date, as soon as practicable, the department of rehabilitation and correction or the department of youth services, as applicable, shall contact the attorney general, inform the attorney general of the commencement of the prison term or institutionalization, and forward to the attorney general information and material that identifies the offender or delinquent child and that describes the sexually oriented offense resulting in the prison term or institutionalization, the facts and circumstances of it, and the offender's or delinquent child's criminal or delinquency history. Within fourteen days after being so informed of the commencement of the prison term or institutionalization and receiving the information and material specified in this division, the attorney general shall determine for the offender or delinquent child all of the matters specified in division (A)(1)(a), (b), or (c) of this section and immediately provide to the appropriate department a document that describes the offender's or delinquent child's classification and duties as so determined.

Upon receipt from the attorney general of a document described in this division that pertains to an offender or delinquent child, the department of rehabilitation and correction shall provide to the offender or the department of youth services shall provide to the delinquent child, as applicable, a written notice that contains the information specified in division (A)(2) of this section.

(C) If, on or after July 1, 2007, and prior to January 1, 2008, an offender is convicted of or pleads guilty to a sexually oriented offense or a child-victim oriented offense and the court does not sentence the offender to a prison term for that offense or if, on or after July 1, 2007, and prior to January 1, 2008, a delinquent child is classified a juvenile offender registrant relative to a sexually oriented offense or a child-victim oriented offense and the juvenile court does not commit the child to the custody of the department of youth services for that offense, the court at the time of sentencing or the juvenile court at the time specified in division (B) of section 2152.82, division (C) of section 2152.83, division (C) of section 2152.84, division (E) of section 2152.85, or division (A) of section 2152.86 of the Revised Code, whichever is applicable, shall do all of the following:

(1) Provide the offender or the delinquent child and the delinquent child's parents with the notices required under section 2950.03 of the Revised Code, as it exists prior to January 1, 2008, regarding the offender's or delinquent child's duties under this chapter as it exists prior to that date;

(2) Provide the offender or the delinquent child and the delinquent child's parents with a written notice that contains the information specified in divisions (A)(2)(a) and (b) of this section;

(3) Provide the offender or the delinquent child and the delinquent child's parents a written notice that clearly indicates that the offender or delinquent child is required to comply with the duties described in the notice provided under division (C)(1) of this section until January 1, 2008, and will be required to comply with the duties described in the notice provided under division (C)(2) of this section on and after that date.

(D)(1) Except as otherwise provided in this division, the officer or employee of the department of rehabilitation and correction or the department of youth services who provides an offender or a delinquent child and the delinquent child's parents with the notices described in division (A)(2) or (B) of this section shall require the offender or delinquent child to read and sign a form stating that the changes in Chapter 2950. of the Revised Code that will be implemented on January 1, 2008, the offender's or delinquent child's classification as a tier I sex offender, a tier II sex offender, or a tier III sex offender, the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as so changed and the duration of those duties, the delinquent child's classification as a public registry-qualified juvenile offender registrant if applicable, the information specified in division (B) of section 2950.03 of the Revised Code to the extent it is relevant to the offender or delinquent child, and the right to a hearing, procedures for requesting the hearing, and period of time within which the request for the hearing must be made have been explained to the offender or delinquent child.

Except as otherwise provided in this division, the judge who provides an offender or delinquent child with the notices described in division (C) of this section shall require the offender or delinquent child to read and sign a form stating that all of the information described in divisions (C)(1) to (3) of this section has been explained to the offender or delinquent child.

If the offender or delinquent child is unable to read, the official, employee, or judge shall certify on the form that the official, employee, or judge specifically informed the offender or delinquent child of all of that information and that the offender or delinquent child indicated an understanding of it.

(2) After an offender or delinquent child has signed the form described in division (D)(1) of this section or the official, employee, or judge has certified on the form that the form has been explained to the offender or delinquent child and that the offender or delinquent child indicated an understanding of the specified information, the official, employee, or judge shall give one copy of the form to the offender or delinquent child, within three days shall send one copy of the form to the bureau of criminal identification and investigation in accordance with the procedures adopted pursuant to section 2950.13 of the Revised Code, and shall send one copy of the form to the sheriff of the county in which the offender or delinquent child expects to reside and one copy to the prosecutor who handled the case in which the offender or delinquent child was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing the sexually oriented offense or child-victim oriented offense that resulted in the offender's or child's registration duty under section 2950.04 or 2950.041 of the Revised Code.

(E) An offender or delinquent child who is provided a notice under division (A)(2) or (B) of this section may request as a matter of right a court hearing to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008. The offender or delinquent child may contest the matters that are identified in division (E) of section 2950.031 of the Revised Code. To request the hearing, an offender or delinquent child who is provided a notice under division (A)(2) of this section shall file a petition with the appropriate court not later than the date that is sixty days after the offender or delinquent child is provided the notice under that division, and an offender or delinquent child who is provided a notice under division (B) of this section shall file a petition with the appropriate court not later than the date that is sixty days after the offender or delinquent child is provided the notice under that division. The request for the hearing shall be made in the manner and with the court specified in division (E) of section 2950.031 of the Revised Code, and, except as otherwise provided in this division, the provisions of that division regarding the service of process and notice regarding the hearing, the conduct of the hearing, the determinations to be made at the hearing, and appeals of those determinations also apply to a hearing requested under this division. If a hearing is requested as described in this division, the offender or delinquent child shall appear at the hearing by video conferencing equipment if available and compatible, except that, upon the court's own motion or the motion of the offender or delinquent child or the prosecutor representing the interests of the state and a determination by the court that the interests of justice require that the offender or delinquent child be present, the court may permit the offender or delinquent child to be physically present at the hearing. An appearance by video conferencing equipment pursuant to this division has the same force and effect as if the offender or delinquent child were physically present at the hearing. The provisions of division (E) of section 2950.031 of the Revised Code regarding the effect of a failure to timely request a hearing also apply to a failure to timely request a hearing under this division.

If a juvenile court issues an order under division (A)(2) or (3) of section 2152.86 of the Revised Code that classifies a delinquent child a public-registry qualified juvenile offender registrant and if the child's delinquent act was committed prior to January 1, 2008, a challenge to the classification contained in the order shall be made pursuant to division (D) of section 2152.86 of the Revised Code.

CREDIT(S)

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R.C. § 2950.032, OH ST § 2950.032

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.033

2950.033 Non-termination of registration requirement for certain offenders

Currentness

(A) If, on or before July 1, 2007, an offender who has been convicted of or pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a delinquent child in a category specified in division (C) of this section has a duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code based on that offense and if the offender's or delinquent child's duty to comply with those sections based on that offense is scheduled to terminate on or after July 1, 2007, and prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to January 1, 2008, notwithstanding that scheduled termination of those duties, the offender's or delinquent child's duties under those sections shall not terminate as scheduled and shall remain in effect for the following period of time:

(1) If the offender or delinquent child is in a category described in division (A)(1) of section 2950.031 of the Revised Code, receives a registered letter from the attorney general pursuant to division (A)(2) of that section, and timely requests a hearing in accordance with division (E) of that section to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, or the tier classification of the offender or delinquent child specified by the attorney general, the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code shall continue at least until the court issues its decision at or subsequent to the hearing. The offender's or delinquent child's duty to comply with those sections shall continue in accordance with, and for the duration specified in, the determinations of the attorney general that are specified in the registered letter the offender or delinquent child received from the attorney general, unless the court's decision terminates the offender's or delinquent child's duty to comply with those sections or provides a different duration for which the offender or delinquent child has a duty to comply with them.

(2) If the offender or delinquent child is in a category described in division (A)(1) of section 2950.031 of the Revised Code, receives a registered letter from the attorney general pursuant to division (A)(2) of that section, and does not timely request a hearing in accordance with division (E) of that section to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, or the tier classification of the offender or delinquent child specified by the attorney general, the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code shall continue in accordance with, and for the duration specified in, the determinations of the attorney general that are specified in the registered letter the offender or delinquent child received from the attorney general.

(3) If the offender or delinquent child is in a category described in division (A)(1)(a) or (b) of section 2950.032 of the Revised Code, receives a notice from the department of rehabilitation and correction or department of youth services pursuant to division (A)(2) of that section, and timely requests a hearing in accordance with division (E) of that section to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, or the tier classification of the delinquent child specified by the attorney general the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of

the Revised Code shall continue in the same manner and for the same duration as is described in division (A)(1) of this section regarding offenders and delinquent children in a category described in division (A)(1) of section 2950.031 of the Revised Code, who receive a registered letter from the attorney general pursuant to division (A)(2) of that section, and who timely request a hearing in accordance with division (E) of that section.

(4) If the offender or delinquent child is in a category described in division (A)(1)(a) or (b) of section 2950.032 of the Revised Code, receives a notice from the department of rehabilitation and correction or department of youth services pursuant to division (A)(2) of that section, and does not timely request a hearing in accordance with division (E) of that section to contest the application to the offender or delinquent child of the new registration requirements under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008, or the tier classification of the delinquent child specified by the attorney general the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code shall continue in the same manner and for the same duration as is described in division (A)(2) of this section regarding offenders and delinquent children in a category described in division (A)(1) of section 2950.031 of the Revised Code, who receive a registered letter from the attorney general pursuant to division (A)(2) of that section, and who do not timely request a hearing in accordance with division (E) of that section.

(5) If the offender or delinquent child is in a category described in division (A)(1) of section 2950.031 of the Revised Code but does not receive a registered letter from the attorney general pursuant to division (A)(2) of that section, or if the offender or delinquent child is in a category described in division (A)(1)(a) or (b) of section 2950.032 of the Revised Code but does not receive a notice from the department of rehabilitation and correction or department of youth services pursuant to division (A)(2) of that section, notwithstanding the failure of the offender or delinquent child to receive the registered letter or the notice, the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code shall continue in accordance with, and for the duration specified in, the provisions of Chapter 2950. of the Revised Code as they will exist under the changes to the provisions that will be implemented on January 1, 2008.

(B) An offender or a delinquent child in a category specified in division (C) of this section who, on or before July 1, 2007, has a duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code based on a conviction of, plea of guilty to, or adjudication as a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and whose duty to comply with those sections is scheduled to terminate on or after July 1, 2007, and prior to January 1, 2008, under the version of section 2950.07 of the Revised Code that is in effect prior to January 1, 2008, is presumed to have knowledge of the law, the content of division (A) of this section and its application to the offender or delinquent child, and the offender's or delinquent child's duties under Chapter 2950. of the Revised Code as it will exist under the changes that will be implemented on January 1, 2008. Any failure of any such offender or delinquent child to receive a registered letter from the attorney general pursuant to division (A)(2) of section 2950.031 of the Revised Code or to receive a written notice from the department of rehabilitation and correction or department of youth services pursuant to division (A)(2) of section 2950.032 of the Revised Code does not negate, limit, or modify the presumption specified in this division.

(C) Divisions (A) and (B) of this section apply to a person who is adjudicated a delinquent child for committing a sexually oriented offense or child-victim oriented offense only if the person is so adjudicated prior to January 1, 2008, and, under the version of section 2950.01 of the Revised Code that is to take effect on January 1, 2008, will be a public registry-qualified juvenile offender registrant relative to that offense.

CREDIT(S)

(2007 S 10, eff. 7-1-07)

R.C. § 2950.033, OH ST § 2950.033

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.034

2950.034 Prohibition against residing near school, preschool or child care center, children's crisis care facility, or residential infant care center premises

Currentness

(A) No person who has been convicted of, is convicted of, has pleaded guilty to, or pleads guilty to a sexually oriented offense or a child-victim oriented offense shall establish a residence or occupy residential premises within one thousand feet of any school premises, preschool or child care center premises, children's crisis care facility premises, or residential infant care center premises.

(B) If a person to whom division (A) of this section applies violates division (A) of this section by establishing a residence or occupying residential premises within one thousand feet of any school premises, preschool or child care center premises, children's crisis care facility premises, or residential infant care center premises, an owner or lessee of real property that is located within one thousand feet of those school premises, preschool or child care center premises, children's crisis care facility premises, or residential infant care center premises, or the prosecuting attorney, village solicitor, city or township director of law, similar chief legal officer of a municipal corporation or township, or official designated as a prosecutor in a municipal corporation that has jurisdiction over the place at which the person establishes the residence or occupies the residential premises in question, has a cause of action for injunctive relief against the person. The plaintiff shall not be required to prove irreparable harm in order to obtain the relief.

(C) As used in this section:

(1) "Child care center" has the same meaning as in section 5104.01 of the Revised Code.

(2) "Children's crisis care facility" has the same meaning as in section 5103.13 of the Revised Code.

(3) "Children's crisis care facility premises" means both of the following:

(a) The parcel of real property on which any children's crisis care facility is situated;

(b) Any grounds, play areas, and other facilities of a children's crisis care facility that are regularly used by the children served by the facility.

(4) "Preschool" means any public or private institution or center that provides early childhood instructional or educational services to children who are at least three years of age but less than six years of age and who are not enrolled in or are not

eligible to be enrolled in kindergarten, whether or not those services are provided in a child care setting. "Preschool" does not include any place that is the permanent residence of the person who is providing the early childhood instructional or educational services to the children described in this division.

(5) "Preschool or child care center premises" means all of the following:

(a) Any building in which any preschool or child care center activities are conducted if the building has signage that indicates that the building houses a preschool or child care center, is clearly visible and discernable without obstruction, and meets any local zoning ordinances which may apply;

(b) The parcel of real property on which a preschool or child care center is situated if the parcel of real property has signage that indicates that a preschool or child care center is situated on the parcel, is clearly visible and discernable without obstruction, and meets any local zoning ordinances which may apply;

(c) Any grounds, play areas, and other facilities of a preschool or child care center that are regularly used by the children served by the preschool or child care center if the grounds, play areas, or other facilities have signage that indicates that they are regularly used by children served by the preschool or child care center, is clearly visible and discernable without obstruction, and meets any local zoning ordinances which may apply.

(6) "Residential infant care center" has the same meaning as in section 5103.60 of the Revised Code.

(7) "Residential infant care center premises" means both of the following:

(a) The parcel of real property on which any residential infant care center is situated;

(b) Any grounds, play areas, and other facilities of a residential infant care center that are regularly used by the children served by the center.

CREDIT(S)

(2023 H 33, § 130.20, eff. 10-3-23; 2022 H 265, eff. 6-13-22; 2007 S 10, eff. 7-1-07)

R.C. § 2950.034, OH ST § 2950.034

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.035

2950.035 Prohibition on serving in position as volunteer in capacity affording extensive contact with minor children

Currentness

(A)(1) Regardless of whether the person committed the person's sexually oriented offense or child-victim oriented offense prior to, on, or after the effective date of this section, no person who is in a restricted offender category shall do either of the following:

(a) On or after the effective date of this section, commence service in a position as a volunteer with any person, group, or organization, in a capacity affording extensive contact with minor children;

(b) If the person was in the position prior to the effective date of this section, at any time after the expiration of ninety days after the effective date of this section, serve in a position as a volunteer with any person, group, or organization, in a capacity affording extensive contact with minor children.

(2) No person shall violate division (A)(1) of this section at any time after an injunction has been obtained against the person under division (B)(2) of this section with respect to a violation of division (A)(1) of this section.

(3) A violation of division (A)(1) of this section that is not also a violation of division (A)(2) of this section is subject to injunctive relief as described in division (B)(2) of this section. A violation of division (A)(2) of this section is a criminal offense and is subject to the penalties specified in section 2950.99 of the Revised Code.

(4) The application of division (A)(1) of this section to a person who committed the person's sexually oriented offense or child-victim oriented offense prior to the effective date of this section is procedural and remedial, pertains to conduct of the person occurring on or after that date, and does not impose punishment on the person for the sexually oriented offense or child-victim oriented offense.

(B)(1) If a law enforcement agency, based on a report made to the agency by any person or based on its own investigation, finds that a person to whom division (A) of this section applies is violating that division, the agency shall report that finding to the prosecuting authority.

(2) A prosecuting authority, upon receipt of a report under division (B)(1) of this section, has a cause of action for injunctive relief against the person for the violation if the violation is of division (A)(1) of this section and may bring an action to obtain the injunctive relief. The plaintiff shall not be required to prove irreparable harm in order to obtain the relief. A prosecuting authority, upon receipt of a report under division (B)(1) of this section, may proceed with a criminal prosecution for the violation if the violation is of division (A)(2) of this section.

(C) As used in this section:

(1) “Capacity affording extensive contact with minor children” means any capacity in which a person would be working directly and in an unaccompanied setting with minor children on more than an incidental and occasional basis or would have supervision or disciplinary power over minor children.

(2) “Prosecuting authority” means the prosecuting attorney, village solicitor, city or township director of law, similar chief legal officer of a municipal corporation or township, or official designated as a prosecutor in a municipal corporation that has jurisdiction over the place at which a person serves in a position in violation of division (A)(1) or (2) of this section.

(3) “Working directly and in an unaccompanied setting” includes, but is not limited to, providing goods or services to minors.

CREDIT(S)

(2022 S 16, eff. 4-4-23)

R.C. § 2950.035, OH ST § 2950.035

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.04

2950.04 Manner of registering

Currentness

(A)(1)(a) Immediately after a sentencing hearing is held on or after January 1, 2008, for an offender who is convicted of or pleads guilty to a sexually oriented offense and is sentenced to a prison term, a term of imprisonment, or any other type of confinement and before the offender is transferred to the custody of the department of rehabilitation and correction or to the official in charge of the jail, workhouse, state correctional institution, or other institution where the offender will be confined, the offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender was convicted of or pleaded guilty to the sexually oriented offense.

(b) Immediately after a dispositional hearing is held on or after January 1, 2008, for a child who is adjudicated a delinquent child for committing a sexually oriented offense, is classified a juvenile offender registrant based on that adjudication, and is committed to the custody of the department of youth services or to a secure facility that is not operated by the department and before the child is transferred to the custody of the department of youth services or the secure facility to which the delinquent child is committed, the delinquent child shall register personally with the sheriff, or the sheriff's designee, of the county in which the delinquent child was classified a juvenile offender registrant based on that sexually oriented offense.

(c) A law enforcement officer shall be present at the sentencing hearing or dispositional hearing described in division (A)(1)(a) or (b) of this section to immediately transport the offender or delinquent child who is the subject of the hearing to the sheriff, or the sheriff's designee, of the county in which the offender or delinquent child is convicted, pleads guilty, or is adjudicated a delinquent child.

(d) After an offender who has registered pursuant to division (A)(1)(a) of this section is released from a prison term, a term of imprisonment, or any other type of confinement, the offender shall register as provided in division (A)(2) of this section. After a delinquent child who has registered pursuant to division (A)(1)(b) of this section is released from the custody of the department of youth services or from a secure facility that is not operated by the department, the delinquent child shall register as provided in division (A)(3) of this section.

(2) Regardless of when the sexually oriented offense was committed, each offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense shall comply with the following registration requirements described in divisions (A)(2)(a), (b), (c), (d), and (e) of this section:

(a) The offender shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the offender's coming into a county in which the offender resides or temporarily is domiciled for more than three days.

(b) The offender shall register personally with the sheriff, or the sheriff's designee, of the county immediately upon coming into a county in which the offender attends a school or institution of higher education on a full-time or part-time basis regardless of whether the offender resides or has a temporary domicile in this state or another state.

(c) The offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender is employed if the offender resides or has a temporary domicile in this state and has been employed in that county for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(d) The offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender then is employed if the offender does not reside or have a temporary domicile in this state and has been employed at any location or locations in this state more than three days or for an aggregate period of fourteen or more days in that calendar year.

(e) The offender shall register with the sheriff, or the sheriff's designee, or other appropriate person of the other state immediately upon entering into any state other than this state in which the offender attends a school or institution of higher education on a full-time or part-time basis or upon being employed in any state other than this state for more than three days or for an aggregate period of fourteen or more days in that calendar year regardless of whether the offender resides or has a temporary domicile in this state, the other state, or a different state.

(3)(a) Each child who is adjudicated a delinquent child for committing a sexually oriented offense and who is classified a juvenile offender registrant based on that adjudication shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the delinquent child's coming into a county in which the delinquent child resides or temporarily is domiciled for more than three days.

(b) In addition to the registration duty imposed under division (A)(3)(a) of this section, each public registry-qualified juvenile offender registrant shall comply with the following additional registration requirements:

(i) The public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county immediately upon coming into a county in which the registrant attends a school or institution of higher education on a full-time or part-time basis regardless of whether the registrant resides or has a temporary domicile in this state or another state.

(ii) The public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county in which the registrant is employed if the registrant resides or has a temporary domicile in this state and has been employed in that county for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(iii) The public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county in which the registrant then is employed if the registrant does not reside or have a temporary domicile in this state and has been employed at any location or locations in this state more than three days or for an aggregate period of fourteen or more days in that calendar year.

(iv) The public registry-qualified juvenile offender registrant shall register with the sheriff, or the sheriff's designee, or other appropriate person of the other state immediately upon entering into any state other than this state in which the registrant attends a school or institution of higher education on a full-time or part-time basis or upon being employed in any state other than this

state for more than three days or for an aggregate period of fourteen or more days in that calendar year regardless of whether the registrant resides or has a temporary domicile in this state, the other state, or a different state.

(c) If the delinquent child is committed for the sexually oriented offense to the department of youth services or to a secure facility that is not operated by the department, this duty begins when the delinquent child is discharged or released in any manner from custody in a department of youth services secure facility or from the secure facility that is not operated by the department if pursuant to the discharge or release the delinquent child is not committed to any other secure facility of the department or any other secure facility.

(4) Regardless of when the sexually oriented offense was committed, each person who is convicted, pleads guilty, or is adjudicated a delinquent child in a court in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States for committing a sexually oriented offense shall comply with the following registration requirements if, at the time the offender or delinquent child moves to and resides in this state or temporarily is domiciled in this state for more than three days, the offender or public registry-qualified juvenile offender registrant enters this state to attend a school or institution of higher education, or the offender or public registry-qualified juvenile offender registrant is employed in this state for more than the specified period of time, the offender or delinquent child has a duty to register as a sex offender or child-victim offender under the law of that other jurisdiction as a result of the conviction, guilty plea, or adjudication:

(a) Each offender and delinquent child shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the offender's or delinquent child's coming into the county in which the offender or delinquent child resides or temporarily is domiciled for more than three days.

(b) Each offender or public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county immediately upon coming into a county in which the offender or public registry-qualified juvenile offender registrant attends a school or institution of higher education on a full-time or part-time basis regardless of whether the offender or public registry-qualified juvenile offender registrant resides or has a temporary domicile in this state or another state.

(c) Each offender or public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender or public registry-qualified juvenile offender registrant is employed if the offender resides or has a temporary domicile in this state and has been employed in that county for more than three days or for an aggregate period of fourteen days or more in that calendar year.

(d) Each offender or public registry-qualified juvenile offender registrant shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender or public registry-qualified juvenile offender registrant then is employed if the offender or public registry-qualified juvenile offender registrant does not reside or have a temporary domicile in this state and has been employed at any location or locations in this state for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(5) An offender or a delinquent child who is a public registry-qualified juvenile offender registrant is not required to register under division (A)(2), (3), or (4) of this section if a court issues an order terminating the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code pursuant to section 2950.15 of the Revised Code. A delinquent child who is a juvenile offender registrant but is not a public registry-qualified juvenile offender registrant is not required to register under any of those divisions if a juvenile court issues an order declassifying the delinquent child as a juvenile offender registrant pursuant to section 2152.84 or 2152.85 of the Revised Code.

(B) An offender or delinquent child who is required by division (A) of this section to register in this state personally shall obtain from the sheriff or from a designee of the sheriff a registration form that conforms to division (C) of this section, shall complete and sign the form, and shall return the completed form together with the offender's or delinquent child's photograph, copies of travel and immigration documents, and any other required material to the sheriff or the designee. The sheriff or designee shall sign the form and indicate on the form the date on which it is so returned. The registration required under this division is complete when the offender or delinquent child returns the form, containing the requisite information, photograph, other required material, signatures, and date, to the sheriff or designee.

(C) The registration form to be used under divisions (A) and (B) of this section shall include or contain all of the following for the offender or delinquent child who is registering:

- (1) The offender's or delinquent child's name and any aliases used by the offender or delinquent child;
- (2) The offender's or delinquent child's social security number and date of birth, including any alternate social security numbers or dates of birth that the offender or delinquent child has used or uses;
- (3) Regarding an offender or delinquent child who is registering under a duty imposed under division (A)(1) of this section, a statement that the offender is serving a prison term, term of imprisonment, or any other type of confinement or a statement that the delinquent child is in the custody of the department of youth services or is confined in a secure facility that is not operated by the department;
- (4) Regarding an offender or delinquent child who is registering under a duty imposed under division (A)(2), (3), or (4) of this section as a result of the offender or delinquent child residing in this state or temporarily being domiciled in this state for more than three days, the following:
 - (a) The current fixed residence address of the offender or delinquent child who is registering. If a residence address is not to a fixed residence address, the offender or delinquent child shall include in the registration a detailed description of the place or places at which the offender or delinquent child intends to stay for the following thirty days. Until the offender or delinquent child has a fixed residence address, the offender or delinquent child is subject to the change of address requirements in section 2950.05 of the Revised Code;
 - (b) The name and address of the offender's or delinquent child's employer if the offender or delinquent child is employed at the time of registration or if the offender or delinquent child knows at the time of registration that the offender or delinquent child will be commencing employment with that employer subsequent to registration;
 - (c) Any other employment information, such as the general area where the offender or delinquent child is employed, if the offender or delinquent child is employed in many locations;
 - (d) The name and address of the offender's or public registry-qualified juvenile offender registrant's school or institution of higher education if the offender or public registry-qualified juvenile offender registrant attends one at the time of registration or if the offender or public registry-qualified juvenile offender registrant knows at the time of registration that the offender or

public registry-qualified juvenile offender registrant will be commencing attendance at that school or institution subsequent to registration;

(5) Regarding an offender or public registry-qualified juvenile offender registrant who is registering under a duty imposed under division (A)(2), (3), or (4) of this section as a result of the offender or public registry-qualified juvenile offender registrant attending a school or institution of higher education in this state on a full-time or part-time basis or being employed in this state or in a particular county in this state, whichever is applicable, for more than three days or for an aggregate of fourteen or more days in any calendar year, the name and current address of the school, institution of higher education, or place of employment of the offender or public registry-qualified juvenile offender registrant who is registering, including any other employment information, such as the general area where the offender or public registry-qualified juvenile offender registrant is employed, if the offender or public registry-qualified juvenile offender registrant is employed in many locations;

(6) The identification license plate number of each vehicle the offender or delinquent child owns, of each vehicle registered in the offender's or delinquent child's name, of each vehicle the offender or delinquent child operates as a part of employment, and of each other vehicle that is regularly available to be operated by the offender or delinquent child; a description of where each vehicle is habitually parked, stored, docked, or otherwise kept; and, if required by the bureau of criminal identification and investigation, a photograph of each of those vehicles;

(7) If the offender or delinquent child has a driver's or commercial driver's license or permit issued by this state or any other state or a state identification card issued under section 4507.50 or 4507.51 of the Revised Code or a comparable identification card issued by another state, the driver's license number, commercial driver's license number, or state identification card number;

(8) If the offender or delinquent child was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing the sexually oriented offense resulting in the registration duty in a court in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States, a DNA specimen, as defined in section 109.573 of the Revised Code, from the offender or delinquent child, a citation for, and the name of, the sexually oriented offense resulting in the registration duty, and a certified copy of a document that describes the text of that sexually oriented offense;

(9) A description of each professional and occupational license, permit, or registration, including those licenses, permits, and registrations issued under Title XLVII of the Revised Code, held by the offender or delinquent child;

(10) Any email addresses, internet identifiers, or telephone numbers registered to or used by the offender or delinquent child;

(11) Any other information required by the bureau of criminal identification and investigation.

(D) After an offender or delinquent child registers with a sheriff, or the sheriff's designee, pursuant to this section, the sheriff, or the sheriff's designee, shall forward the signed, written registration form, photograph, and other material to the bureau of criminal identification and investigation in accordance with the forwarding procedures adopted pursuant to section 2950.13 of the Revised Code. If an offender registers a school, institution of higher education, or place of employment address, or provides a school or institution of higher education address under division (C)(4) of this section, the sheriff also shall provide notice to the law enforcement agency with jurisdiction over the premises of the school, institution of higher education, or place of employment of the offender's name and that the offender has registered that address as a place at which the offender attends school or an institution of higher education or at which the offender is employed. The bureau shall include the information and

materials forwarded to it under this division in the state registry of sex offenders and child-victim offenders established and maintained under section 2950.13 of the Revised Code.

(E) No person who is required to register pursuant to divisions (A) and (B) of this section, and no person who is required to send a notice of intent to reside pursuant to division (G) of this section, shall fail to register or send the notice of intent as required in accordance with those divisions or that division.

(F) An offender or delinquent child who is required to register pursuant to divisions (A) and (B) of this section shall register pursuant to this section for the period of time specified in section 2950.07 of the Revised Code, with the duty commencing on the date specified in division (A) of that section.

(G) If an offender or delinquent child who is required by division (A) of this section to register is a tier III sex offender/child-victim offender, the offender or delinquent child also shall send the sheriff, or the sheriff's designee, of the county in which the offender or delinquent child intends to reside written notice of the offender's or delinquent child's intent to reside in the county. The offender or delinquent child shall send the notice of intent to reside at least twenty days prior to the date the offender or delinquent child begins to reside in the county. The notice of intent to reside shall contain the following information:

(1) The offender's or delinquent child's name;

(2) The fixed residence address or fixed residence addresses at which the offender or delinquent child intends to reside. If a residence address change is not to a fixed residence address, the offender or delinquent child shall include in the notice a detailed description of the place or places at which the offender or delinquent child intends to stay for the following thirty days. Until the offender or delinquent child has a fixed residence address, the offender or delinquent child is subject to the change of address requirements in in section 2950.05 of the Revised Code;

(3) The sexually oriented offense of which the offender was convicted, to which the offender pleaded guilty, or for which the child was adjudicated a delinquent child.

(H) If, immediately prior to January 1, 2008, an offender or delinquent child who was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense as those terms were defined in section 2950.01 of the Revised Code prior to January 1, 2008, was required by division (A) of this section or section 2950.041 of the Revised Code to register and if, on or after January 1, 2008, that offense is a sexually oriented offense as that term is defined in section 2950.01 of the Revised Code on and after January 1, 2008, the duty to register that is imposed pursuant to this section on and after January 1, 2008, shall be considered, for purposes of section 2950.07 of the Revised Code and for all other purposes, to be a continuation of the duty imposed upon the offender or delinquent child prior to January 1, 2008, under this section or section 2950.041 of the Revised Code.

CREDIT(S)

(2024 H 289, eff. 3-20-25; 2007 S 10, eff. 1-1-08; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2002 S 175, eff. 5-7-02; 2002 H 393, eff. 7-5-02; 2001 S 3, eff. 1-1-02; 2000 H 502, eff. 3-15-01; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 7-1-97)

R.C. § 2950.04, OH ST § 2950.04

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.041

2950.041 Child-victim oriented offenses; duty of registration of offender or delinquent child

Currentness

(A)(1)(a) Immediately after a sentencing hearing is held on or after January 1, 2008, for an offender who is convicted of or pleads guilty to a child-victim oriented offense and is sentenced to a prison term, a term of imprisonment, or any other type of confinement and before the offender is transferred to the custody of the department of rehabilitation and correction or to the official in charge of the jail, workhouse, state correctional institution, or other institution where the offender will be confined, the offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender was convicted of or pleaded guilty to the child-victim offense.

(b) Immediately after a dispositional hearing is held on or after January 1, 2008, for a child who is adjudicated a delinquent child for committing a child-victim oriented offense, is classified a juvenile offender registrant based on that adjudication, and is committed to the custody of the department of youth services or to a secure facility that is not operated by the department and before the child is transferred to the custody of the department of youth services or the secure facility to which the delinquent child is committed, the delinquent child shall register personally with the sheriff, or the sheriff's designee, of the county in which the delinquent child was classified a juvenile offender registrant based on that child-victim oriented offense.

(c) A law enforcement officer shall be present at the sentencing hearing or dispositional hearing described in division (A)(1)(a) or (b) of this section to immediately transport the offender or delinquent child who is the subject of the hearing to the sheriff, or the sheriff's designee, of the county in which the offender or delinquent child is convicted, pleads guilty, or is adjudicated a delinquent child.

(d) After an offender who has registered pursuant to division (A)(1)(a) of this section is released from a prison term, a term of imprisonment, or any other type of confinement, the offender shall register as provided in division (A)(2) of this section. After a delinquent child who has registered pursuant to division (A)(1)(b) of this section is released from the custody of the department of youth services or from a secure facility that is not operated by the department, the delinquent child shall register as provided in division (A)(3) of this section.

(2) Regardless of when the child-victim oriented offense was committed, each offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a child-victim oriented offense shall comply with all of the following registration requirements:

(a) The offender shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the offender's coming into a county in which the offender resides or temporarily is domiciled for more than three days.

(b) The offender shall register personally with the sheriff, or the sheriff's designee, of the county immediately upon coming into a county in which the offender attends a school or institution of higher education on a full-time or part-time basis regardless of whether the offender resides or has a temporary domicile in this state or another state.

(c) The offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender is employed if the offender resides or has a temporary domicile in this state and has been employed in that county for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(d) The offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender then is employed if the offender does not reside or have a temporary domicile in this state and has been employed at any location or locations in this state for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(e) The offender shall register personally with the sheriff, or the sheriff's designee, or other appropriate person of the other state immediately upon entering into any state other than this state in which the offender attends a school or institution of higher education on a full-time or part-time basis or upon being employed in any state other than this state for more than three days or for an aggregate period of fourteen or more days in that calendar year regardless of whether the offender resides or has a temporary domicile in this state, the other state, or a different state.

(3) Regardless of when the child-victim oriented offense was committed, each child who on or after July 31, 2003, is adjudicated a delinquent child for committing a child-victim oriented offense and who is classified a juvenile offender registrant based on that adjudication shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the delinquent child's coming into a county in which the delinquent child resides or temporarily is domiciled for more than three days. If the delinquent child is committed for the child-victim oriented offense to the department of youth services or to a secure facility that is not operated by the department, this duty begins when the delinquent child is discharged or released in any manner from custody in a department of youth services secure facility or from the secure facility that is not operated by the department if pursuant to the discharge or release the delinquent child is not committed to any other secure facility of the department or any other secure facility.

(4) Regardless of when the child-victim oriented offense was committed, each person who is convicted, pleads guilty, or is adjudicated a delinquent child in a court in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States for committing a child-victim oriented offense shall comply with all of the following registration requirements if, at the time the offender or delinquent child moves to and resides in this state or temporarily is domiciled in this state for more than three days, the offender enters this state to attend the school or institution of higher education, or the offender is employed in this state for more than the specified period of time, the offender or delinquent child has a duty to register as a child-victim offender or sex offender under the law of that other jurisdiction as a result of the conviction, guilty plea, or adjudication:

(a) Each offender and delinquent child shall register personally with the sheriff, or the sheriff's designee, of the county within three days of the offender's or delinquent child's coming into the county in which the offender or delinquent child resides or temporarily is domiciled for more than three days.

(b) Each offender shall register personally with the sheriff, or the sheriff's designee, of the county immediately upon coming into a county in which the offender attends a school or institution of higher education on a full-time or part-time basis regardless of whether the offender resides or has a temporary domicile in this state or another state.

(c) Each offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender is employed if the offender resides or has a temporary domicile in this state and has been employed in that county for more than three days or for an aggregate period of fourteen days or more in that calendar year.

(d) Each offender shall register personally with the sheriff, or the sheriff's designee, of the county in which the offender then is employed if the offender does not reside or have a temporary domicile in this state and has not been employed at any location or locations in this state for more than three days or for an aggregate period of fourteen or more days in that calendar year.

(5) An offender is not required to register under division (A)(2), (3), or (4) of this section if a court issues an order terminating the offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code pursuant to section 2950.15 of the Revised Code. A delinquent child who is a juvenile offender registrant but is not a public registry-qualified juvenile offender registrant is not required to register under any of those divisions if a juvenile court issues an order declassifying the delinquent child as a juvenile offender registrant pursuant to section 2152.84 or 2152.85 of the Revised Code.

(B) An offender or delinquent child who is required by division (A) of this section to register in this state personally shall do so in the manner described in division (B) of section 2950.04 of the Revised Code, and the registration is complete as described in that division.

(C) The registration form to be used under divisions (A) and (B) of this section shall include or contain all of the following for the offender or delinquent child who is registering:

(1) The offender's or delinquent child's name, any aliases used by the offender or delinquent child, and a photograph of the offender or delinquent child;

(2) The offender's or delinquent child's social security number and date of birth, including any alternate social security numbers or dates of birth that the offender or delinquent child has used or uses;

(3) Regarding an offender or delinquent child who is registering under a duty imposed under division (A)(1) of this section, a statement that the offender is serving a prison term, term of imprisonment, or any other type of confinement or a statement that the delinquent child is in the custody of the department of youth services or is confined in a secure facility that is not operated by the department;

(4) Regarding an offender or delinquent child who is registering under a duty imposed under division (A)(2), (3), or (4) of this section as a result of the offender or delinquent child residing in this state or temporarily being domiciled in this state for more than three days, all of the information described in division (C)(4) of section 2950.04 of the Revised Code;

(5) Regarding an offender who is registering under a duty imposed under division (A)(2) or (4) of this section as a result of the offender attending a school or institution of higher education on a full-time or part-time basis or being employed in this state or in a particular county in this state, whichever is applicable, for more than three days or for an aggregate of fourteen or more days in any calendar year, all of the information described in division (C)(5) of section 2950.04 of the Revised Code;

(6) The identification license plate number issued by this state or any other state of each vehicle the offender or delinquent child owns, of each vehicle registered in the offender's or delinquent child's name, of each vehicle the offender or delinquent child operates as a part of employment, and of each other vehicle that is regularly available to be operated by the offender or delinquent child; a description of where each vehicle is habitually parked, stored, docked, or otherwise kept; and, if required by the bureau of criminal identification and investigation, a photograph of each of those vehicles;

(7) If the offender or delinquent child has a driver's or commercial driver's license or permit issued by this state or any other state or a state identification card issued under section 4507.50 or 4507.51 of the Revised Code or a comparable identification card issued by another state, the driver's license number, commercial driver's license number, or state identification card number;

(8) If the offender or delinquent child was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing the child-victim oriented offense resulting in the registration duty in a court in another state, in a federal court, military court, or Indian tribal court, or in a court in any nation other than the United States, a DNA specimen, as defined in section 109.573 of the Revised Code, from the offender or delinquent child, a citation for, and the name of, the child-victim oriented offense resulting in the registration duty, and a certified copy of a document that describes the text of that child-victim oriented offense;

(9) Copies of travel and immigration documents;

(10) A description of each professional and occupational license, permit, or registration, including those licenses, permits, and registrations issued under Title XLVII of the Revised Code, held by the offender or delinquent child;

(11) Any email addresses, internet identifiers, or telephone numbers registered to or used by the offender or delinquent child;

(12) Any other information required by the bureau of criminal identification and investigation.

(D) Division (D) of section 2950.04 of the Revised Code applies when an offender or delinquent child registers with a sheriff pursuant to this section.

(E) No person who is required to register pursuant to divisions (A) and (B) of this section, and no person who is required to send a notice of intent to reside pursuant to division (G) of this section, shall fail to register or send the notice as required in accordance with those divisions or that division.

(F) An offender or delinquent child who is required to register pursuant to divisions (A) and (B) of this section shall register pursuant to this section for the period of time specified in section 2950.07 of the Revised Code, with the duty commencing on the date specified in division (A) of that section.

(G) If an offender or delinquent child who is required by division (A) of this section to register is a tier III sex offender/child-victim offender, the offender or delinquent child also shall send the sheriff, or the sheriff's designee, of the county in which the offender or delinquent child intends to reside written notice of the offender's or delinquent child's intent to reside in the county. The offender or delinquent child shall send the notice of intent to reside at least twenty days prior to the date the offender or delinquent child begins to reside in the county. The notice of intent to reside shall contain all of the following information:

- (1) The information specified in divisions (G)(1) and (2) of section 2950.04 of the Revised Code;
- (2) The child-victim oriented offense of which the offender was convicted, to which the offender pleaded guilty, or for which the child was adjudicated a delinquent child.

(H) If, immediately prior to January 1, 2008, an offender or delinquent child who was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing a child-victim oriented offense or a sexually oriented offense as those terms were defined in section 2950.01 of the Revised Code prior to January 1, 2008, was required by division (A) of this section or section 2950.04 of the Revised Code to register and if, on or after January 1, 2008, that offense is a child-victim oriented offense as that term is defined in section 2950.01 of the Revised Code on and after January 1, 2008, the duty to register that is imposed pursuant to this section on and after January 1, 2008, shall be considered, for purposes of section 2950.07 of the Revised Code and for all other purposes, to be a continuation of the duty imposed upon the offender or delinquent child prior to January 1, 2008, under this section or section 2950.04 of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03)

R.C. § 2950.041, OH ST § 2950.041

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.042

2950.042 Verification of offender or delinquent child registration; notice of impending release; rules

Currentness

(A) By January 1, 2008, the department of rehabilitation and correction, the adult parole authority, and the department of youth services shall adopt rules to require parole officers to verify within three days of an offender's or delinquent child's release that the offender or delinquent child has registered as provided in divisions (A)(2) and (3) of section 2950.04 of the Revised Code or in divisions (A)(2) and (3) of section 2950.041 of the Revised Code, whichever is applicable.

(B) The department of rehabilitation and correction shall provide notice of an offender's impending release as soon as practicable to the sheriff of the county in which the offender is to be released if all of the following apply:

- (1) The offender is under the supervision of the adult parole authority.
- (2) The offender has a duty to register imposed pursuant to section 2950.04 or 2950.041 of the Revised Code.
- (3) The offender had been placed into a halfway house in a county that was not the county in which the offender was originally confined or the county of the offender's residence.
- (4) The offender will be returned to the county in which the offender had been originally confined or the county of the offender's residence upon release.
- (5) The offender does not have a fixed residence address.
- (6) The sheriff of the county in which the offender is to be released has opted in to notification for qualifying releases.

(C) The department of rehabilitation and correction shall adopt rules pursuant to Chapter 119. of the Revised Code that specify how a sheriff may opt in to notification under division (B) of this section for qualifying releases and how the department will provide each sheriff with information about requesting such a notice.

CREDIT(S)

(2024 H 289, eff. 3-20-25; 2007 S 10, eff. 7-1-07)

R.C. § 2950.042, OH ST § 2950.042

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.043

2950.043 Notice to attorney general of registration

Currentness

If an offender or delinquent child registers with a sheriff pursuant to section 2950.04 or 2950.041 of the Revised Code on or after December 1, 2007, if the offender or delinquent child previously has not registered under either section with that sheriff or any other sheriff, and if the offender or delinquent child was convicted of, pleaded guilty to, or was classified a juvenile offender registrant relative to the sexually oriented offense or child-victim oriented offense upon which the registration was based prior to December 1, 2007, as soon as practicable after the registration, the sheriff shall contact the attorney general, inform the attorney general of the registration, and forward to the attorney general in the manner specified in division (D) of section 2950.04 of the Revised Code all of the information and material specified in that division. Upon being informed of the registration and receiving the information and material, the attorney general shall comply with division (B) of section 2950.031 of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 7-1-07)

R.C. § 2950.043, OH ST § 2950.043

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.05

2950.05 Notice of change of address of residence, school, or place of employment; affirmative defense

Currentness

(A) If an offender or delinquent child is required to register pursuant to division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code, the delinquent child if not a public registry-qualified juvenile offender registrant shall provide written notice of any change of residence address, and the offender and public registry-qualified juvenile offender registrant shall provide notice of any change of residence, school, institution of higher education, or place of employment address, to the sheriff with whom the offender or delinquent child most recently registered the address under division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code or under division (B) of this section. A written notice of a change of school, institution of higher education, or place of employment address also shall include the name of the new school, institution of higher education, or place of employment. Except as otherwise specified in this division, the delinquent child if not a public registry-qualified juvenile offender registrant shall provide the written notice at least twenty days prior to changing the residence address, and the offender and public registry-qualified juvenile offender registrant shall provide the written notice at least twenty days prior to changing the address of the residence, school, or institution of higher education and not later than three days after changing the address of the place of employment. They shall provide the written notices during the period they are required to register. If a residence address change is not to a fixed residence address, the offender or delinquent child shall include in that notice a detailed description of the place or places at which the offender or delinquent child intends to stay for the next thirty days. Until the offender or delinquent child has a fixed residence address, every thirty days the offender or delinquent child shall include in that notice a detailed description of the place or places at which the offender or delinquent child intends to stay for the following thirty days. Not later than the end of the first business day immediately following the day on which the person obtains a fixed residence address, the offender or delinquent child shall provide that sheriff written notice of that fixed residence address. If a person whose residence address change is not to a fixed residence address describes in a notice under this division the place or places at which the person intends to stay, for purposes of divisions (C) to (I) of this section, sections 2950.06 to 2950.13 of the Revised Code, and sections 311.171 and 2919.24 of the Revised Code, the place or places so described in the notice shall be considered the person's residence address and registered residence address until the person provides the written notice of a fixed residence address as described in this division.

(B) Except as otherwise provided in this division, if an offender or public registry-qualified juvenile offender registrant is required to provide notice of a residence, school, institution of higher education, or place of employment address change under division (A) of this section, or a delinquent child who is not a public registry-qualified juvenile offender registrant is required to provide notice of a residence address change under that division, the offender or delinquent child, at least twenty days prior to changing the residence, school, or institution of higher education address and not later than three days after changing the place of employment address, as applicable, also shall register the new address in the manner, and using the form, described in divisions (B) and (C) of section 2950.04 or 2950.041 of the Revised Code, whichever is applicable, with the sheriff of the county in which the offender's or delinquent child's new address is located, subject to division (C) of this section. If a residence address change is not to a fixed residence address, the offender or delinquent child shall include in the registration a detailed description of the place or places at which the offender or delinquent child intends to stay for the next thirty days. Until the offender or delinquent child has a fixed residence address, every thirty days the offender or delinquent child shall include in that written notice a detailed description of the place or places at which the offender or delinquent child intends to stay for the following thirty days. Not later than the end of the first business day immediately following the day on which the person obtains

a fixed residence address, the offender or delinquent child shall register with that sheriff that fixed residence address. If a person whose residence address change is not to a fixed residence address describes in a registration under this division the place or places at which the person intends to stay, for purposes of divisions (C) to (I) of this section, sections 2950.06 to 2950.13 of the Revised Code, and sections 311.171 and 2919.24 of the Revised Code, the place or places so described in the registration shall be considered the person's residence address and registered residence address, until the person registers a fixed residence address as described in this division.

(C) Divisions (A) and (B) of this section apply to a person who is required to register pursuant to division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code regardless of whether the new residence, school, institution of higher education, or place of employment address is in this state or in another state. If the new address is in another state, the person shall register with the appropriate law enforcement officials in that state in the manner required under the law of that state and within the earlier of the period of time required under the law of that state or at least seven days prior to changing the address.

(D) If an offender or delinquent child who is a public registry-qualified juvenile offender registrant is required to register pursuant to division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code, the offender or public registry-qualified juvenile offender registrant shall provide written notice, within three days of the change, of any change in vehicle information, email addresses, internet identifiers, or telephone numbers registered to or used by the offender or registrant to the sheriff with whom the offender or registrant has most recently registered under division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code.

(E)(1) Upon receiving from an offender or delinquent child pursuant to division (A) of this section notice of a change of the offender's or public registry-qualified juvenile offender registrant's residence, school, institution of higher education, or place of employment address or the residence address of a delinquent child who is not a public registry-qualified juvenile offender registrant, a sheriff promptly shall forward the new address to the bureau of criminal identification and investigation in accordance with the forwarding procedures adopted pursuant to section 2950.13 of the Revised Code if the new address is in another state or, if the new address is located in another county in this state, to the sheriff of that county. Upon receiving from an offender or public registry-qualified juvenile offender registrant notice of vehicle and identifier changes pursuant to division (D) of this section, a sheriff promptly shall forward the new information to the bureau of criminal identification and investigation in accordance with the forwarding procedures adopted pursuant to section 2950.13 of the Revised Code. The bureau shall include all information forwarded to it under this division in the state registry of sex offenders and child-victim offenders established and maintained under section 2950.13 of the Revised Code and shall forward notice of the offender's or delinquent child's new residence, school, institution of higher education, or place of employment address, as applicable, to the appropriate officials in the other state.

(2) When an offender or public registry-qualified juvenile offender registrant registers a new residence, school, institution of higher education, or place of employment address or a delinquent child who is not a public registry-qualified juvenile offender registrant registers a new residence address pursuant to division (B) of this section, the sheriff with whom the offender or delinquent child registers and the bureau of criminal identification and investigation shall comply with division (D) of section 2950.04 or 2950.041 of the Revised Code, whichever is applicable.

(F)(1) No person who is required to notify a sheriff of a change of address pursuant to division (A) of this section or a change in vehicle information or identifiers pursuant to division (D) of this section shall fail to notify the appropriate sheriff in accordance with that division.

(2) No person who is required to register a new residence, school, institution of higher education, or place of employment address with a sheriff or with an official of another state pursuant to divisions (B) and (C) of this section shall fail to register with the appropriate sheriff or official of the other state in accordance with those divisions.

(G)(1) It is an affirmative defense to a charge of a violation of division (F)(1) of this section that it was impossible for the person to provide the written notice to the sheriff as required under division (A) of this section because of a lack of knowledge, on the date specified for the provision of the written notice, of a residence, school, institution of higher education, or place of employment address change, and that the person provided notice of the residence, school, institution of higher education, or place of employment address change to the sheriff specified in division (A) of this section as soon as possible, but not later than the end of the first business day, after learning of the address change by doing either of the following:

(a) The person provided notice of the address change to the sheriff specified in division (A) of this section by telephone immediately upon learning of the address change or, if the person did not have reasonable access to a telephone at that time, as soon as possible, but not later than the end of the first business day, after learning of the address change and having reasonable access to a telephone, and the person, as soon as possible, but not later than the end of the first business day, after providing notice of the address change to the sheriff by telephone, provided written notice of the address change to that sheriff.

(b) The person, as soon as possible, but not later than the end of the first business day, after learning of the address change, provided written notice of the address change to the sheriff specified in division (A) of this section.

(2) It is an affirmative defense to a charge of a violation of division (F)(2) of this section that it was impossible for the person to register the new address with the sheriff or the official of the other state as required under division (B) or (C) of this section because of a lack of knowledge, on the date specified for the registration of the new address, of a residence, school, institution of higher education, or place of employment address change, and that the person registered the new residence, school, institution of higher education, or place of employment address with the sheriff or the official of the other state specified in division (B) or (C) of this section as soon as possible, but not later than the end of the first business day, after learning of the address change by doing either of the following:

(a) The person provided notice of the new address to the sheriff or official specified in division (B) or (C) of this section by telephone immediately upon learning of the new address or, if the person did not have reasonable access to a telephone at that time, as soon as possible, but not later than the end of the first business day, after learning of the new address and having reasonable access to a telephone, and the person, as soon as possible, but not later than the end of the first business day, after providing notice of the new address to the sheriff or official by telephone, registered the new address with that sheriff or official in accordance with division (B) or (C) of this section.

(b) The person, as soon as possible, but not later than the end of the first business day, after learning of the new address, registered the new address with the sheriff or official specified in division (B) or (C) of this section, in accordance with that division.

(H) An offender or delinquent child who is required to comply with divisions (A), (B), and (C) of this section shall do so for the period of time specified in section 2950.07 of the Revised Code.

(I) As used in this section, and in all other sections of the Revised Code that refer to the duties imposed on an offender or delinquent child under this section relative to a change in the offender's or delinquent child's residence, school, institution of

higher education, or place of employment address, “change in address” includes any circumstance in which the old address for the person in question no longer is accurate, regardless of whether the person in question has a new address.

CREDIT(S)

(2024 H 289, eff. 3-20-25; 2007 S 10, eff. 1-1-08; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03; 2002 S 175, eff. 5-7-02; 2001 S 3, eff. 1-1-02; 1996 H 180, eff. 7-1-97)

R.C. § 2950.05, OH ST § 2950.05

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.06

2950.06 Verification of current address of residence, school, or place of employment

Currentness

(A) An offender or delinquent child who is required to register a residence address pursuant to division (A)(2), (3), or (4) of section 2950.04 or 2950.041 of the Revised Code shall periodically verify the offender's or delinquent child's current residence address, and an offender or public registry-qualified juvenile offender registrant who is required to register a school, institution of higher education, or place of employment address pursuant to any of those divisions shall periodically verify the address of the offender's or public registry-qualified juvenile offender registrant's current school, institution of higher education, or place of employment, in accordance with this section. The frequency of verification shall be determined in accordance with division (B) of this section, and the manner of verification shall be determined in accordance with division (C) of this section.

(B) The frequency with which an offender or delinquent child must verify the offender's or delinquent child's current residence, school, institution of higher education, or place of employment address pursuant to division (A) of this section shall be determined as follows:

(1) Regardless of when the sexually oriented offense or child-victim oriented offense for which the offender or delinquent child is required to register was committed, if the offender or delinquent child is a tier I sex offender/child-victim offender, the offender shall verify the offender's current residence address or current school, institution of higher education, or place of employment address, and the delinquent child shall verify the delinquent child's current residence address, in accordance with division (C) of this section on each anniversary of the offender's or delinquent child's initial registration date during the period the offender or delinquent child is required to register.

(2) Regardless of when the sexually oriented offense or child-victim oriented offense for which the offender or delinquent child is required to register was committed, if the offender or delinquent child is a tier II sex offender/child-victim offender, the offender shall verify the offender's current residence address or current school, institution of higher education, or place of employment address, and the delinquent child shall verify the delinquent child's current residence address, in accordance with division (C) of this section every one hundred eighty days after the offender's or delinquent child's initial registration date during the period the offender or delinquent child is required to register.

(3) Regardless of when the sexually oriented offense or child-victim oriented offense for which the offender or delinquent child is required to register was committed, if the offender or delinquent child is a tier III sex offender/child-victim offender, the offender shall verify the offender's current residence address or current school, institution of higher education, or place of employment address, and the delinquent child shall verify the delinquent child's current residence address and, if the delinquent child is a public registry-qualified juvenile offender registrant, the current school, institution of higher education, or place of employment address, in accordance with division (C) of this section every ninety days after the offender's or delinquent child's initial registration date during the period the offender or delinquent child is required to register.

(4) If, prior to January 1, 2008, an offender or delinquent child registered with a sheriff under a duty imposed under section 2950.04 or 2950.041 of the Revised Code as a result of a conviction of, plea of guilty to, or adjudication as a delinquent child for committing a sexually oriented offense or a child-victim oriented offense as those terms were defined in section 2950.01 of the Revised Code prior to January 1, 2008, the duty to register that is imposed on the offender or delinquent child pursuant to section 2950.04 or 2950.041 of the Revised Code on and after January 1, 2008, is a continuation of the duty imposed upon the offender prior to January 1, 2008, under section 2950.04 or 2950.041 of the Revised Code and, for purposes of divisions (B) (1), (2), and (3) of this section, the offender's initial registration date related to that offense is the date on which the offender initially registered under section 2950.04 or 2950.041 of the Revised Code.

(C)(1) An offender or delinquent child who is required to verify the offender's or delinquent child's current residence, school, institution of higher education, or place of employment address pursuant to division (A) of this section shall verify the address with the sheriff with whom the offender or delinquent child most recently registered the address by personally appearing before the sheriff or a designee of the sheriff, no earlier than ten days before the date on which the verification is required pursuant to division (B) of this section and no later than the date so required for verification, and completing and signing a copy of the verification form prescribed by the bureau of criminal identification and investigation. The sheriff or designee shall sign the completed form and indicate on the form the date on which it is so completed. The verification required under this division is complete when the offender or delinquent child personally appears before the sheriff or designee and completes and signs the form as described in this division.

(2) To facilitate the verification of an offender's or delinquent child's current residence, school, institution of higher education, or place of employment address, as applicable, under division (C)(1) of this section, the sheriff with whom the offender or delinquent child most recently registered the address may mail a nonforwardable verification form prescribed by the bureau of criminal identification and investigation to the offender's or delinquent child's last reported address and to the last reported address of the parents of the delinquent child, with a notice that conspicuously states that the offender or delinquent child must personally appear before the sheriff or a designee of the sheriff to complete the form and the date by which the form must be so completed. Regardless of whether a sheriff mails a form to an offender or delinquent child and that child's parents, each offender or delinquent child who is required to verify the offender's or delinquent child's current residence, school, institution of higher education, or place of employment address, as applicable, pursuant to division (A) of this section shall personally appear before the sheriff or a designee of the sheriff to verify the address in accordance with division (C)(1) of this section.

(D) The verification form to be used under division (C) of this section shall contain all of the following:

(1) Except as provided in division (D)(2) of this section, the current residence address of the offender or delinquent child, the name and address of the offender's or delinquent child's employer if the offender or delinquent child is employed at the time of verification or if the offender or delinquent child knows at the time of verification that the offender or delinquent child will be commencing employment with that employer subsequent to verification, the name and address of the offender's or public registry-qualified juvenile offender registrant's school or institution of higher education if the offender or public registry-qualified juvenile offender registrant attends one at the time of verification or if the offender or public registry-qualified juvenile offender registrant knows at the time of verification that the offender will be commencing attendance at that school or institution subsequent to verification, and any other information required by the bureau of criminal identification and investigation.

(2) Regarding an offender or public registry-qualified juvenile offender registrant who is verifying a current school, institution of higher education, or place of employment address, the name and current address of the school, institution of higher education, or place of employment of the offender or public registry-qualified juvenile offender registrant and any other information required by the bureau of criminal identification and investigation.

(E) Upon an offender's or delinquent child's personal appearance and completion of a verification form under division (C) of this section, a sheriff promptly shall forward a copy of the verification form to the bureau of criminal identification and investigation in accordance with the forwarding procedures adopted by the attorney general pursuant to section 2950.13 of the Revised Code. If an offender or public registry-qualified juvenile offender registrant verifies a school, institution of higher education, or place of employment address, or provides a school or institution of higher education address under division (D)(1) of this section, the sheriff also shall provide notice to the law enforcement agency with jurisdiction over the premises of the school, institution of higher education, or place of employment of the offender's or public registry-qualified juvenile offender registrant's name and that the offender or public registry-qualified juvenile offender registrant has verified or provided that address as a place at which the offender or public registry-qualified juvenile offender registrant attends school or an institution of higher education or at which the offender or public registry-qualified juvenile offender registrant is employed. The bureau shall include all information forwarded to it under this division in the state registry of sex offenders and child-victim offenders established and maintained under section 2950.13 of the Revised Code.

(F) No person who is required to verify a current residence, school, institution of higher education, or place of employment address, as applicable, pursuant to divisions (A) to (C) of this section shall fail to verify a current residence, school, institution of higher education, or place of employment address, as applicable, in accordance with those divisions by the date required for the verification as set forth in division (B) of this section, provided that no person shall be prosecuted or subjected to a delinquent child proceeding for a violation of this division, and that no parent, guardian, or custodian of a delinquent child shall be prosecuted for a violation of section 2919.24 of the Revised Code based on the delinquent child's violation of this division, prior to the expiration of the period of time specified in division (G) of this section.

(G)(1) If an offender or delinquent child fails to verify a current residence, school, institution of higher education, or place of employment address, as applicable, as required by divisions (A) to (C) of this section by the date required for the verification as set forth in division (B) of this section, the sheriff with whom the offender or delinquent child is required to verify the current address, on the day following that date required for the verification, shall send a written warning to the offender or to the delinquent child and that child's parents, at the offender's or delinquent child's and that child's parents' last known residence, school, institution of higher education, or place of employment address, as applicable, regarding the offender's or delinquent child's duty to verify the offender's or delinquent child's current residence, school, institution of higher education, or place of employment address, as applicable.

The written warning shall do all of the following:

- (a) Identify the sheriff who sends it and the date on which it is sent;
- (b) State conspicuously that the offender or delinquent child has failed to verify the offender's or public registry-qualified juvenile offender registrant's current residence, school, institution of higher education, or place of employment address or the current residence address of a delinquent child who is not a public registry-qualified juvenile offender registrant by the date required for the verification;
- (c) Conspicuously state that the offender or delinquent child has seven days from the date on which the warning is sent to verify the current residence, school, institution of higher education, or place of employment address, as applicable, with the sheriff who sent the warning;

(d) Conspicuously state that a failure to timely verify the specified current address or addresses is a felony offense;

(e) Conspicuously state that, if the offender or public registry-qualified juvenile offender registrant verifies the current residence, school, institution of higher education, or place of employment address or the delinquent child who is not a public registry-qualified juvenile offender registrant verifies the current residence address with that sheriff within that seven-day period, the offender or delinquent child will not be prosecuted or subjected to a delinquent child proceeding for a failure to timely verify a current address and the delinquent child's parent, guardian, or custodian will not be prosecuted based on a failure of the delinquent child to timely verify an address;

(f) Conspicuously state that, if the offender or public registry-qualified juvenile offender registrant does not verify the current residence, school, institution of higher education, or place of employment address or the delinquent child who is not a public registry-qualified juvenile offender registrant does not verify the current residence address with that sheriff within that seven-day period, the offender or delinquent child will be arrested or taken into custody, as appropriate, and prosecuted or subjected to a delinquent child proceeding for a failure to timely verify a current address and the delinquent child's parent, guardian, or custodian may be prosecuted for a violation of section 2919.24 of the Revised Code based on the delinquent child's failure to timely verify a current residence address.

(2) If an offender or delinquent child fails to verify a current residence, school, institution of higher education, or place of employment address, as applicable, as required by divisions (A) to (C) of this section by the date required for the verification as set forth in division (B) of this section, the offender or delinquent child shall not be prosecuted or subjected to a delinquent child proceeding for a violation of division (F) of this section, and the delinquent child's parent, guardian, or custodian shall not be prosecuted for a violation of section 2919.24 of the Revised Code based on the delinquent child's failure to timely verify a current residence address and, if the delinquent child is a public registry-qualified juvenile offender registrant, the current school, institution of higher education, or place of employment address, as applicable, unless the seven-day period subsequent to that date that the offender or delinquent child is provided under division (G)(1) of this section to verify the current address has expired and the offender or delinquent child, prior to the expiration of that seven-day period, has not verified the current address. Upon the expiration of the seven-day period that the offender or delinquent child is provided under division (G)(1) of this section to verify the current address, if the offender or delinquent child has not verified the current address, all of the following apply:

(a) The sheriff with whom the offender or delinquent child is required to verify the current residence, school, institution of higher education, or place of employment address, as applicable, promptly shall notify the bureau of criminal identification and investigation of the failure.

(b) The sheriff with whom the offender or delinquent child is required to verify the current residence, school, institution of higher education, or place of employment address, as applicable, the sheriff of the county in which the offender or delinquent child resides, the sheriff of the county in which is located the offender's or public registry-qualified juvenile offender registrant's school, institution of higher education, or place of employment address that was to be verified, or a deputy of the appropriate sheriff, shall locate the offender or delinquent child, promptly shall seek a warrant for the arrest or taking into custody, as appropriate, of the offender or delinquent child for the violation of division (F) of this section and shall arrest the offender or take the child into custody, as appropriate.

(c) The offender or delinquent child is subject to prosecution or a delinquent child proceeding for the violation of division (F) of this section, and the delinquent child's parent, guardian, or custodian may be subject to prosecution for a violation of section 2919.24 of the Revised Code based on the delinquent child's violation of that division.

(H) An offender or public registry-qualified juvenile offender registrant who is required to verify the offender's or public registry-qualified juvenile offender registrant's current residence, school, institution of higher education, or place of employment address pursuant to divisions (A) to (C) of this section and a delinquent child who is not a public registry-qualified juvenile offender registrant who is required to verify the delinquent child's current residence address pursuant to those divisions shall do so for the period of time specified in section 2950.07 of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2001 S 3, eff. 1-1-02; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 7-1-97)

R.C. § 2950.06, OH ST § 2950.06

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.07

2950.07 Duration of registration requirements

Currentness

(A) The duty of an offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense and the duty of a delinquent child who is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or who is an out-of-state juvenile offender registrant to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code commences on whichever of the following dates is applicable:

(1) If the offender's duty to register is imposed pursuant to division (A)(1)(a) of section 2950.04 or division (A)(1)(a) of section 2950.041 of the Revised Code, the offender's duty to comply with those sections commences immediately after the entry of the judgment of conviction.

(2) If the delinquent child's duty to register is imposed pursuant to division (A)(1)(b) of section 2950.04 or division (A)(1)(b) of section 2950.041 of the Revised Code, the delinquent child's duty to comply with those sections commences immediately after the order of disposition.

(3) If the offender's duty to register is imposed pursuant to division (A)(2) of section 2950.04 or division (A)(2) of section 2950.041 of the Revised Code, subject to division (A)(7) of this section, the offender's duty to comply with those sections commences on the date of the offender's release from a prison term, a term of imprisonment, or any other type of confinement, or if the offender is not sentenced to a prison term, a term of imprisonment, or any other type of confinement, on the date of the entry of the judgment of conviction of the sexually oriented offense or child-victim oriented offense.

(4) If the offender's or delinquent child's duty to register is imposed pursuant to division (A)(4) of section 2950.04 or division (A)(4) of section 2950.041 of the Revised Code, the offender's duty to comply with those sections commences regarding residence addresses on the date that the offender begins to reside or becomes temporarily domiciled in this state, the offender's duty regarding addresses of schools, institutions of higher education, and places of employment commences on the date the offender begins attending any school or institution of higher education in this state on a full-time or part-time basis or becomes employed in this state, and the delinquent child's duty commences on the date the delinquent child begins to reside or becomes temporarily domiciled in this state.

(5) If the delinquent child's duty to register is imposed pursuant to division (A)(3) of section 2950.04 or division (A)(3) of section 2950.041 of the Revised Code, if the delinquent child's classification as a juvenile offender registrant is made at the time of the child's disposition for that sexually oriented offense or child-victim oriented offense, whichever is applicable, and if the delinquent child is committed for the sexually oriented offense or child-victim oriented offense to the department of youth services or to a secure facility that is not operated by the department, the delinquent child's duty to comply with those sections

commences on the date of the delinquent child's discharge or release from custody in the department of youth services secure facility or from the secure facility not operated by the department as described in that division.

(6) If the delinquent child's duty to register is imposed pursuant to division (A)(3) of section 2950.04 or division (A)(3) of section 2950.041 of the Revised Code and if either the delinquent child's classification as a juvenile offender registrant is made at the time of the child's disposition for that sexually oriented offense or child-victim oriented offense, whichever is applicable, and the delinquent child is not committed for the sexually oriented offense or child-victim oriented offense to the department of youth services or to a secure facility that is not operated by the department or the child's classification as a juvenile offender registrant is made pursuant to section 2152.83 or division (A)(2) of section 2152.86 of the Revised Code, subject to divisions (A)(7) of this section, the delinquent child's duty to comply with those sections commences on the date of entry of the court's order that classifies the delinquent child a juvenile offender registrant.

(7) If the offender's or delinquent child's duty to register is imposed pursuant to division (A)(2), (3), or (4) of section 2950.04 or section 2950.041 of the Revised Code and if the offender or delinquent child prior to January 1, 2008, has registered a residence, school, institution of higher education, or place of employment address pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code as they existed prior to that date, the offender or delinquent child initially shall register in accordance with section 2950.04 or 2950.041 of the Revised Code, whichever is applicable, as it exists on and after January 1, 2008, not later than the earlier of the dates specified in divisions (A)(7)(a) and (b) of this section. The offender's or delinquent child's duty to comply thereafter with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code as they exist on and after January 1, 2008, commences on the date of that initial registration. The offender or delinquent child initially shall register under section 2950.04 or 2950.041 of the Revised Code as it exists on and after January 1, 2008, not later than the earlier of the following:

(a) The date that is six months after the date on which the offender or delinquent child received a registered letter from the attorney general under division (A)(2) or (B) of section 2950.031 of the Revised Code;

(b) The earlier of the date on which the offender or delinquent child would be required to verify a previously registered address under section 2950.06 of the Revised Code as it exists on and after January 1, 2008, or, if the offender or delinquent child has changed a previously registered address, the date on which the offender or delinquent child would be required to register a new residence, school, institution of higher education, or place of employment address under section 2950.05 of the Revised Code as it exists on and after January 1, 2008.

(8) If the offender's or delinquent child's duty to register was imposed pursuant to section 2950.04 or 2950.041 of the Revised Code as they existed prior to January 1, 2008, the offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code as they exist on and after January 1, 2008, is a continuation of the offender's or delinquent child's former duty to register imposed prior to January 1, 2008, under section 2950.04 or 2950.041 of the Revised Code and shall be considered for all purposes as having commenced on the date that the offender's duty under that section commenced.

(B) The duty of an offender who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense and the duty of a delinquent child who is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or who is an out-of-state juvenile offender registrant to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code continues, after the date of commencement, for whichever of the following periods is applicable:

(1) Except as otherwise provided in this division, if the person is an offender who is a tier III sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, if the person is a delinquent child who is a tier III sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, or if the person is a delinquent child who is a public registry-qualified juvenile offender registrant relative to the sexually oriented offense, the offender's or delinquent child's duty to comply with those sections continues until the offender's or delinquent child's death. Regarding a delinquent child who is a tier III sex offender/child-victim offender relative to the offense but is not a public registry-qualified juvenile offender registrant relative to the offense, if the judge who made the disposition for the delinquent child or that judge's successor in office subsequently enters a determination pursuant to section 2152.84 or 2152.85 of the Revised Code that the delinquent child no longer is a tier III sex offender/child-victim offender, the delinquent child's duty to comply with those sections continues for the period of time that is applicable to the delinquent child under division (B)(2) or (3) of this section, based on the reclassification of the child pursuant to section 2152.84 or 2152.85 of the Revised Code as a tier I sex offender/child-victim offender or a tier II sex offender/child-victim offender. In no case shall the lifetime duty to comply that is imposed under this division on an offender who is a tier III sex offender/child-victim offender be removed or terminated. A delinquent child who is a public registry-qualified juvenile offender registrant may have the lifetime duty to register terminated only pursuant to section 2950.15 of the Revised Code.

(2)(a) Except as otherwise provided in division (B)(2)(b) of this section, if the person is an offender who is a tier II sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, the offender's duty to comply with those sections continues for twenty-five years. Except as otherwise provided in this division, if the person is a delinquent child who is a tier II sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, the delinquent child's duty to comply with those sections continues for twenty years. Regarding a delinquent child who is a tier II sex offender/child-victim offender relative to the offense but is not a public registry-qualified juvenile offender registrant relative to the offense, if the judge who made the disposition for the delinquent child or that judge's successor in office subsequently enters a determination pursuant to section 2152.84 or 2152.85 of the Revised Code that the delinquent child no longer is a tier II sex offender/child-victim offender but remains a juvenile offender registrant, the delinquent child's duty to comply with those sections continues for the period of time that is applicable to the delinquent child under division (B)(3) of this section, based on the reclassification of the child pursuant to section 2152.84 or 2152.85 of the Revised Code as a tier I sex offender/child-victim offender.

(b) If the person is an offender who is a tier II sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense or the person is a delinquent child who is a tier II sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense and if the offender or delinquent child violates section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, the period of time that the offender or delinquent child has a duty to comply with those sections as described in division (B)(2)(a) of this section is tolled for the amount of time the offender or delinquent child is in violation of any of those sections. The period of time that the offender or delinquent child has a duty to comply with those sections as described in division (B)(2)(a) of this section resumes once the offender or delinquent child is no longer in violation of any of those sections.

(3)(a) Except as otherwise provided in this division and division (B)(3)(b) of this section, if the person is an offender who is a tier I sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, the offender's duty to comply with those sections continues for fifteen years. Except as otherwise provided in this division, if the person is a delinquent child who is a tier I sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense, the delinquent child's duty to comply with those sections continues for ten years. Regarding a delinquent child who is a juvenile offender registrant and a tier I sex offender/child-victim offender but is not a public registry-qualified juvenile offender registrant, if the judge who made the disposition for the delinquent child or that judge's successor in office subsequently enters a determination pursuant to section 2152.84 or 2152.85 of the Revised Code that the delinquent child no longer is to be

classified a juvenile offender registrant, the delinquent child's duty to comply with those sections terminates upon the court's entry of the determination. A person who is an offender who is a tier I sex offender/child-victim offender may have the fifteen-year duty to register terminated only pursuant to section 2950.15 of the Revised Code.

(b) If the person is an offender who is a tier I sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense or the person is a delinquent child who is a tier I sex offender/child-victim offender relative to the sexually oriented offense or child-victim oriented offense and if the offender or delinquent child violates section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, the period of time that the offender or delinquent child has a duty to comply with those sections as described in division (B)(3)(a) of this section is tolled for the amount of time the offender or delinquent child is in violation of any of those sections. The period of time that the offender or delinquent child has a duty to comply with those sections as described in division (B)(3)(a) of this section resumes once the offender or delinquent child is no longer in violation of any of those sections.

(C)(1) If an offender has been convicted of or pleaded guilty to a sexually oriented offense and the offender subsequently is convicted of or pleads guilty to another sexually oriented offense or a child-victim oriented offense, if an offender has been convicted of or pleaded guilty to a child-victim oriented offense and the offender subsequently is convicted of or pleads guilty to another child-victim oriented offense or a sexually oriented offense, if a delinquent child has been adjudicated a delinquent child for committing a sexually oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant and the child subsequently is adjudicated a delinquent child for committing another sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant relative to that offense or subsequently is convicted of or pleads guilty to another sexually oriented offense or a child-victim oriented offense, or if a delinquent child has been adjudicated a delinquent child for committing a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant and the child subsequently is adjudicated a delinquent child for committing another child-victim oriented offense or a sexually oriented offense and is classified a juvenile offender registrant relative to that offense or subsequently is convicted of or pleads guilty to another child-victim oriented offense or a sexually oriented offense, the period of time for which the offender or delinquent child must comply with the sections specified in division (A) of this section shall be separately calculated pursuant to divisions (A)(1) to (8) and (B)(1) to (3) of this section for each of the sexually oriented offenses and child-victim oriented offenses, and the offender or delinquent child shall comply with each separately calculated period of time independently.

If a delinquent child has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense, is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant relative to that offense, and, after attaining eighteen years of age, subsequently is convicted of or pleads guilty to another sexually oriented offense or child-victim oriented offense, the subsequent conviction or guilty plea does not limit, affect, or supersede the duties imposed upon the delinquent child under this chapter relative to the delinquent child's classification as a juvenile offender registrant or as an out-of-state juvenile offender registrant, and the delinquent child shall comply with both those duties and the duties imposed under this chapter relative to the subsequent conviction or guilty plea.

(2) If a delinquent child has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant relative to the offense and if the juvenile judge or the judge's successor in office subsequently reclassifies the offense tier in which the child is classified pursuant to section 2152.84 or 2152.85 of the Revised Code, the judge's subsequent determination to reclassify the child does not affect the date of commencement of the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code as determined under division (A) of this section. The child's duty to comply with those sections after the reclassification is a continuation of the child's duty to comply with the sections that was in effect prior to the reclassification, and the duty shall continue for the period of time specified in division (B)(1), (2), or (3) of this section, whichever is applicable.

If, prior to January 1, 2008, an offender had a duty to comply with the sections specified in division (A) of this section as a result of a conviction of or plea of guilty to a sexually oriented offense or child-victim oriented offense as those terms were defined in section 2950.01 of the Revised Code prior to January 1, 2008, or a delinquent child had a duty to comply with those sections as a result of an adjudication as a delinquent child for committing one of those offenses as they were defined prior to January 1, 2008, the period of time specified in division (B)(1), (2), or (3) of this section on and after January 1, 2008, for which a person must comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code applies to the person, automatically replaces the period of time for which the person had to comply with those sections prior to January 1, 2008, and is a continuation of the person's duty to comply with the sections that was in effect prior to the reclassification. If, prior to January 1, 2008, an offender or a delinquent child had a duty to comply with the sections specified in division (A) of this section, the offender's or delinquent child's classification as a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender for purposes of that period of time shall be determined as specified in section 2950.031 or 2950.032 of the Revised Code, as applicable.

(D) The duty of an offender or delinquent child to register under this chapter is tolled for any period during which the offender or delinquent child is returned to confinement in a secure facility for any reason or imprisoned for an offense when the confinement in a secure facility or imprisonment occurs subsequent to the date determined pursuant to division (A) of this section. The offender's or delinquent child's duty to register under this chapter resumes upon the offender's or delinquent child's release from confinement in a secure facility or imprisonment.

(E) An offender or delinquent child who has been or is convicted, has pleaded or pleads guilty, or has been or is adjudicated a delinquent child, in a court in another state, in a federal court, military court, or Indian tribal court, or in a court of any nation other than the United States for committing a sexually oriented offense or a child-victim oriented offense may apply to the sheriff of the county in which the offender or delinquent child resides or temporarily is domiciled, or in which the offender attends a school or institution of higher education or is employed, for credit against the duty to register for the time that the offender or delinquent child has complied with the sex offender or child-victim offender registration requirements of another jurisdiction. The sheriff shall grant the offender or delinquent child credit against the duty to register for time for which the offender or delinquent child provides adequate proof that the offender or delinquent child has complied with the sex offender or child-victim offender registration requirements of another jurisdiction. If the offender or delinquent child disagrees with the determination of the sheriff, the offender or delinquent child may appeal the determination to the court of common pleas of the county in which the offender or delinquent child resides or is temporarily domiciled, or in which the offender attends a school or institution of higher education or is employed.

CREDIT(S)

(2024 H 289, eff. 3-20-25; 2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2001 S 3, eff. 1-1-02; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 7-1-97)

R.C. § 2950.07, OH ST § 2950.07

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.08

2950.08 Public inspection of registration data prohibited; exception

Currentness

(A) Subject to division (B) of this section, the statements, information, photographs, fingerprints, and material required by sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code and provided by a person who registers, who provides notice of a change of residence, school, institution of higher education, or place of employment address and registers the new residence, school, institution of higher education, or place of employment address, or who provides verification of a current residence, school, institution of higher education, or place of employment address pursuant to those sections and that are in the possession of the bureau of criminal identification and investigation and the information in the possession of the bureau that was received by the bureau pursuant to section 2950.14 of the Revised Code shall not be open to inspection by the public or by any person other than the following persons:

- (1) A regularly employed peace officer or other law enforcement officer;
- (2) An authorized employee of the bureau of criminal identification and investigation for the purpose of providing information to a board, administrator, or person pursuant to division (F) or (G) of section 109.57 of the Revised Code;
- (3) The registrar of motor vehicles, or an employee of the registrar of motor vehicles, for the purpose of verifying and updating any of the information so provided, upon the request of the bureau of criminal identification and investigation;
- (4) The director of children and youth, or an employee of the director, for the purpose of complying with division (D) of section 5104.013 of the Revised Code.

(B) Division (A) of this section does not apply to any information that is contained in the internet sex offender and child-victim offender database established by the attorney general under division (A)(11) of section 2950.13 of the Revised Code regarding offenders and that is disseminated as described in that division.

CREDIT(S)

(2023 H 33, § 130.12, eff. 1-1-25; 2019 H 166, eff. 10-17-19; 2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 1996 H 180, eff. 7-1-97; 1996 S 160, eff. 1-27-97; 1989 S 140, eff. 10-2-89; 130 v S 160)

R.C. § 2950.08, OH ST § 2950.08

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.081

2950.081 Public records; exceptions

Currentness

(A) Any statements, information, photographs, fingerprints, or materials that are required to be provided, and that are provided, by an offender or delinquent child pursuant to section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code and that are in the possession of a county sheriff are public records open to public inspection under section 149.43 of the Revised Code and shall be included in the internet sex offender and child-victim offender database established and maintained under section 2950.13 of the Revised Code to the extent provided in that section.

(B) Except when the child is classified a public registry-qualified juvenile offender registrant, the sheriff shall not cause to be publicly disseminated by means of the internet any statements, information, photographs, fingerprints, or materials that are provided by a delinquent child who sends a notice of intent to reside, registers, provides notice of a change of residence address and registers the new residence address, or provides verification of a current residence address pursuant to this chapter and that are in the possession of a county sheriff.

(C) If a sheriff establishes on the internet a sex offender and child-victim offender database for the public dissemination of some or all of the materials that are described in division (A) of this section, that are not prohibited from inclusion by division (B) of this section, and that pertain to offenders or delinquent children who register in the sheriff's county, in addition to all of the other information and materials included, the sheriff shall include in the database a chart describing which sexually oriented offenses and child-victim oriented offenses are included in the definitions of tier I sex offender/child-victim offender, tier II sex offender/child-victim offender, and tier III sex offender/child-victim offender and for each offender or delinquent child in relation to whom information and materials are provided a statement as to whether the offender or delinquent child is a tier I sex offender/child-victim offenders, a tier II sex offender/child-victim offenders, or a tier III sex offender/child-victim offenders.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 2001 S 3, eff. 1-1-02)

R.C. § 2950.081, OH ST § 2950.081

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.09

2950.09 Adjudication of offender as sexual predator or as habitual sex
offender; exclusion of registration-exempt sexually oriented offense--Repealed

Currentness

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2006 S 260, eff. 1-2-07; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2002 S 175, eff. 5-7-02; 2002 H 393, eff. 7-5-02; 2001 S 3, eff. 1-1-02; 2000 H 502, eff. 3-15-01; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 1-1-97)

R.C. § 2950.09, OH ST § 2950.09

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.091

2950.091 Determination of offender as child-victim predator; hearing--Repealed

Currentness

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03)

R.C. § 2950.091, OH ST § 2950.091

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.10

2950.10 Notices to victim regarding offender

Currentness

(A)(1) Regardless of when the sexually oriented offense or child-victim oriented offense was committed, if a person is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, if the offender or delinquent child is in any category specified in division (B)(1)(a), (b), or (c) of this section, if the offender or delinquent child registers with a sheriff pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code, and if the victim of the sexually oriented offense or child-victim oriented offense has made a request in accordance with rules adopted by the attorney general that specifies that the victim would like to be provided the notices described in this section, the sheriff shall notify the victim of the sexually oriented offense or child-victim oriented offense, in writing, that the offender or delinquent child has registered and shall include in the notice the offender's name and photograph, and the address or addresses of the offender's residence, school, institution of higher education, or place of employment, as applicable, or the delinquent child's name, photograph, and residence address or addresses. The sheriff shall provide the notice required by this division to the victim at the most recent residence address available for that victim and not later than five days after the offender or delinquent child registers with the sheriff.

(2) Regardless of when the sexually oriented offense or child-victim oriented offense was committed, if a person is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, if the offender or delinquent child is in any category specified in division (B)(1)(a), (b), or (c) of this section, if the offender or delinquent child registers with a sheriff pursuant to section 2950.04, 2950.041, or 2950.05 of the Revised Code, if the victim of the sexually oriented offense or child-victim oriented offense has made a request in accordance with rules adopted by the attorney general that specifies that the victim would like to be provided the notices described in this section, and if the offender notifies the sheriff of a change of residence, school, institution of higher education, or place of employment address or the delinquent child notifies the sheriff of a change of residence address pursuant to section 2950.05 of the Revised Code, the sheriff shall notify the victim of the sexually oriented offense or child-victim oriented offense, in writing, that the offender's or delinquent child's address has changed and shall include in the notice the offender's name and photograph, and the new address or addresses of the offender's residence, school, institution of higher education, or place of employment, as applicable, or the delinquent child's name, photograph, and new residence address or addresses. The sheriff shall provide the notice required by this division to the victim at the most recent residence address available for that victim and no later than five days after the offender or delinquent child notifies the sheriff of the change in the offender's or delinquent child's residence, school, institution of higher education, or place of employment address.

(3) Regardless of when the sexually oriented offense or child-victim oriented offense was committed, if a person is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented

offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, and if the offender or delinquent child is in any category specified in division (B)(1)(a), (b), or (c) of this section, the victim of the offense may make a request in accordance with rules adopted by the attorney general pursuant to section 2950.13 of the Revised Code that specifies that the victim would like to be provided the notices described in divisions (A)(1) and (2) of this section. If the victim makes a request in accordance with those rules, the sheriff described in divisions (A)(1) and (2) of this section shall provide the victim with the notices described in those divisions.

(4) If a victim makes a request as described in division (A)(3) of this section that specifies that the victim would like to be provided the notices described in divisions (A)(1) and (2) of this section, all information a sheriff obtains regarding the victim from or as a result of the request is confidential, and the information is not a public record open for inspection under section 149.43 of the Revised Code.

(5) The notices described in divisions (A)(1) and (2) of this section are in addition to any notices regarding the offender or delinquent child that the victim is entitled to receive under Chapter 2930. of the Revised Code.

(B)(1) The duties to provide the notices described in divisions (A)(1) and (2) of this section apply regarding any offender or delinquent child who is in any of the following categories:

(a) The offender is a tier III sex offender/child-victim offender relative to the offense described in division (A) of this section for which a victim requested to be provided notice under that division, or the delinquent child is a public registry-qualified juvenile offender registrant, and a juvenile court has not removed pursuant to section 2950.15 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(b) The delinquent child is a tier III sex offender/child-victim offender who is not a public-registry qualified juvenile offender registrant, the delinquent child was subjected to this section prior to the effective date of this amendment as a sexual predator, habitual sex offender, child-victim predator, or habitual child-victim offender, as those terms were defined in section 2950.01 of the Revised Code as it existed prior to the effective date of this amendment, and a juvenile court has not removed pursuant to section 2152.84 or 2152.85 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(c) The delinquent child is a tier III sex offender/child-victim offender who is not a public registry-qualified juvenile offender registrant, the delinquent child was classified a juvenile offender registrant on or after the effective date of this amendment, the court has imposed a requirement under section 2152.82, 2152.83, or 2152.84 of the Revised Code subjecting the delinquent child to this section, and a juvenile court has not removed pursuant to section 2152.84 or 2152.85 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(2) A victim of a sexually oriented offense or of a child-victim oriented offense is not entitled to be provided any notice described in division (A)(1) or (2) of this section unless the offender or delinquent child is in a category specified in division (B)(1)(a), (b), or (c) of this section. A victim of a sexually oriented offense or of a child-victim oriented offense is not entitled to any notice described in division (A)(1) or (2) of this section unless the victim makes a request in accordance with rules adopted by the attorney general pursuant to section 2950.13 of the Revised Code that specifies that the victim would like to be provided the notices described in divisions (A)(1) and (2) of this section. This division does not affect any rights of a victim of a sexually oriented offense or child-victim oriented offense to be provided notice regarding an offender or delinquent child that are described in Chapter 2930. of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2005 H 15, eff. 11-23-05; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2001 S 3, eff. 1-1-02; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 7-1-97)

R.C. § 2950.10, OH ST § 2950.10

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.11

2950.11 Community notification of sex offender registration

Currentness

(A) Regardless of when the sexually oriented offense or child-victim oriented offense was committed, if a person is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, and if the offender or delinquent child is in any category specified in division (F)(1)(a), (b), or (c) of this section, the sheriff with whom the offender or delinquent child has most recently registered under section 2950.04, 2950.041, or 2950.05 of the Revised Code and the sheriff to whom the offender or delinquent child most recently sent a notice of intent to reside under section 2950.04 or 2950.041 of the Revised Code, within the period of time specified in division (C) of this section, shall provide a written notice containing the information set forth in division (B) of this section to all of the persons described in divisions (A) (1) to (10) of this section. If the sheriff has sent a notice to the persons described in those divisions as a result of receiving a notice of intent to reside and if the offender or delinquent child registers a residence address that is the same residence address described in the notice of intent to reside, the sheriff is not required to send an additional notice when the offender or delinquent child registers. The sheriff shall provide the notice to all of the following persons:

(1)(a) Any occupant of each residential unit that is located within one thousand feet of the offender's or delinquent child's residential premises, that is located within the county served by the sheriff, and that is not located in a multi-unit building. Division (D)(3) of this section applies regarding notices required under this division.

(b) If the offender or delinquent child resides in a multi-unit building, any occupant of each residential unit that is located in that multi-unit building and that shares a common hallway with the offender or delinquent child. For purposes of this division, an occupant's unit shares a common hallway with the offender or delinquent child if the entrance door into the occupant's unit is located on the same floor and opens into the same hallway as the entrance door to the unit the offender or delinquent child occupies. Division (D)(3) of this section applies regarding notices required under this division.

(c) The building manager, or the person the building owner or condominium unit owners association authorizes to exercise management and control, of each multi-unit building that is located within one thousand feet of the offender's or delinquent child's residential premises, including a multi-unit building in which the offender or delinquent child resides, and that is located within the county served by the sheriff. In addition to notifying the building manager or the person authorized to exercise management and control in the multi-unit building under this division, the sheriff shall post a copy of the notice prominently in each common entryway in the building and any other location in the building the sheriff determines appropriate. The manager or person exercising management and control of the building shall permit the sheriff to post copies of the notice under this division as the sheriff determines appropriate. In lieu of posting copies of the notice as described in this division, a sheriff may provide notice to all occupants of the multi-unit building by mail or personal contact; if the sheriff so notifies all the occupants, the sheriff is not required to post copies of the notice in the common entryways to the building. Division (D)(3) of this section applies regarding notices required under this division.

(d) All additional persons who are within any category of neighbors of the offender or delinquent child that the attorney general by rule adopted under section 2950.13 of the Revised Code requires to be provided the notice and who reside within the county served by the sheriff;

(2) The executive director of the public children services agency that has jurisdiction within the specified geographical notification area and that is located within the county served by the sheriff;

(3)(a) The superintendent of each board of education of a school district that has schools within the specified geographical notification area and that is located within the county served by the sheriff;

(b) The principal of the school within the specified geographical notification area and within the county served by the sheriff that the delinquent child attends;

(c) If the delinquent child attends a school outside of the specified geographical notification area or outside of the school district where the delinquent child resides, the superintendent of the board of education of a school district that governs the school that the delinquent child attends and the principal of the school that the delinquent child attends.

(4)(a) The appointing or hiring officer of each chartered nonpublic school located within the specified geographical notification area and within the county served by the sheriff or of each other school located within the specified geographical notification area and within the county served by the sheriff and that is not operated by a board of education described in division (A)(3) of this section;

(b) Regardless of the location of the school, the appointing or hiring officer of a chartered nonpublic school that the delinquent child attends.

(5) The director, head teacher, elementary principal, or site administrator of each preschool program governed by Chapter 3301. of the Revised Code that is located within the specified geographical notification area and within the county served by the sheriff;

(6) The administrator of each child care center or type A family child care home that is located within the specified geographical notification area and within the county served by the sheriff, and each holder of a license to operate a type B family child care home that is located within the specified geographical notification area and within the county served by the sheriff. As used in this division, "child care center," "type A family child care home," and "type B family child care home" have the same meanings as in section 5104.01 of the Revised Code.

(7) The president or other chief administrative officer of each institution of higher education, as defined in section 2907.03 of the Revised Code, that is located within the specified geographical notification area and within the county served by the sheriff, and the chief law enforcement officer of the state university law enforcement agency or campus police department established under section 3345.04 or 1713.50 of the Revised Code, if any, that serves that institution;

(8) The sheriff of each county that includes any portion of the specified geographical notification area;

(9) If the offender or delinquent child resides within the county served by the sheriff, the chief of police, marshal, or other chief law enforcement officer of the municipal corporation in which the offender or delinquent child resides or, if the offender or delinquent child resides in an unincorporated area, the constable or chief of the police department or police district police force of the township in which the offender or delinquent child resides;

(10) Volunteer organizations in which contact with minors or other vulnerable individuals might occur or any organization, company, or individual who requests notification as provided in division (J) of this section.

(B) The notice required under division (A) of this section shall include all of the following information regarding the subject offender or delinquent child:

(1) The offender's or delinquent child's name;

(2) The address or addresses of the offender's or public registry-qualified juvenile offender registrant's residence, school, institution of higher education, or place of employment, as applicable, or the residence address or addresses of a delinquent child who is not a public registry-qualified juvenile offender registrant;

(3) The sexually oriented offense or child-victim oriented offense of which the offender was convicted, to which the offender pleaded guilty, or for which the child was adjudicated a delinquent child;

(4) A statement that identifies the category specified in division (F)(1)(a), (b), or (c) of this section that includes the offender or delinquent child and that subjects the offender or delinquent child to this section;

(5) The offender's or delinquent child's photograph.

(C) If a sheriff with whom an offender or delinquent child registers under section 2950.04, 2950.041, or 2950.05 of the Revised Code or to whom the offender or delinquent child most recently sent a notice of intent to reside under section 2950.04 or 2950.041 of the Revised Code is required by division (A) of this section to provide notices regarding an offender or delinquent child and if, pursuant to that requirement, the sheriff provides a notice to a sheriff of one or more other counties in accordance with division (A)(8) of this section, the sheriff of each of the other counties who is provided notice under division (A)(8) of this section shall provide the notices described in divisions (A)(1) to (7) and (A)(9) and (10) of this section to each person or entity identified within those divisions that is located within the specified geographical notification area and within the county served by the sheriff in question.

(D)(1) A sheriff required by division (A) or (C) of this section to provide notices regarding an offender or delinquent child shall provide the notice to the neighbors that are described in division (A)(1) of this section and the notices to law enforcement personnel that are described in divisions (A)(8) and (9) of this section as soon as practicable, but no later than five days after the offender sends the notice of intent to reside to the sheriff and again no later than five days after the offender or delinquent child registers with the sheriff or, if the sheriff is required by division (C) of this section to provide the notices, no later than five days after the sheriff is provided the notice described in division (A)(8) of this section.

A sheriff required by division (A) or (C) of this section to provide notices regarding an offender or delinquent child shall provide the notices to all other specified persons that are described in divisions (A)(2) to (7) and (A)(10) of this section as soon as practicable, but not later than seven days after the offender or delinquent child registers with the sheriff or, if the sheriff is required by division (C) of this section to provide the notices, no later than five days after the sheriff is provided the notice described in division (A)(8) of this section.

(2) If an offender or delinquent child in relation to whom division (A) of this section applies verifies the offender's or delinquent child's current residence, school, institution of higher education, or place of employment address, as applicable, with a sheriff pursuant to section 2950.06 of the Revised Code, the sheriff may provide a written notice containing the information set forth in division (B) of this section to the persons identified in divisions (A)(1) to (10) of this section. If a sheriff provides a notice pursuant to this division to the sheriff of one or more other counties in accordance with division (A)(8) of this section, the sheriff of each of the other counties who is provided the notice under division (A)(8) of this section may provide, but is not required to provide, a written notice containing the information set forth in division (B) of this section to the persons identified in divisions (A)(1) to (7) and (A)(9) and (10) of this section.

(3) A sheriff may provide notice under division (A)(1)(a) or (b) of this section, and may provide notice under division (A)(1)(c) of this section to a building manager or person authorized to exercise management and control of a building, by mail, by personal contact, or by leaving the notice at or under the entry door to a residential unit. For purposes of divisions (A)(1)(a) and (b) of this section, and the portion of division (A)(1)(c) of this section relating to the provision of notice to occupants of a multi-unit building by mail or personal contact, the provision of one written notice per unit is deemed as providing notice to all occupants of that unit.

(E) All information that a sheriff possesses regarding an offender or delinquent child who is in a category specified in division (F)(1)(a), (b), or (c) of this section that is described in division (B) of this section and that must be provided in a notice required under division (A) or (C) of this section or that may be provided in a notice authorized under division (D)(2) of this section is a public record that is open to inspection under section 149.43 of the Revised Code.

The sheriff shall not cause to be publicly disseminated by means of the internet any of the information described in this division that is provided by a delinquent child unless that child is in a category specified in division (F)(1)(a), (b), or (c) of this section.

(F)(1) Except as provided in division (F)(2) of this section, the duties to provide the notices described in divisions (A) and (C) of this section apply regarding any offender or delinquent child who is in any of the following categories:

(a) The offender is a tier III sex offender/child-victim offender, or the delinquent child is a public registry-qualified juvenile offender registrant, and a juvenile court has not removed pursuant to section 2950.15 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(b) The delinquent child is a tier III sex offender/child-victim offender who is not a public registry-qualified juvenile offender registrant, the delinquent child was subjected to this section prior to January 1, 2008, as a sexual predator, habitual sex offender, child-victim predator, or habitual child-victim offender, as those terms were defined in section 2950.01 of the Revised Code as it existed prior to January 1, 2008, and a juvenile court has not removed pursuant to section 2152.84 or 2152.85 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(c) The delinquent child is a tier III sex offender/child-victim offender who is not a public registry-qualified juvenile offender registrant, the delinquent child was classified a juvenile offender registrant on or after January 1, 2008, the court has imposed a requirement under section 2152.82, 2152.83, or 2152.84 of the Revised Code subjecting the delinquent child to this section, and a juvenile court has not removed pursuant to section 2152.84 or 2152.85 of the Revised Code the delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(2) The notification provisions of this section do not apply to a person described in division (F)(1)(a), (b), or (c) of this section if a court finds at a hearing after considering the factors described in this division that the person would not be subject to the notification provisions of this section that were in the version of this section that existed immediately prior to January 1, 2008. In making the determination of whether a person would have been subject to the notification provisions under prior law as described in this division, the court shall consider the following factors:

- (a) The offender's or delinquent child's age;
- (b) The offender's or delinquent child's prior criminal or delinquency record regarding all offenses, including, but not limited to, all sexual offenses;
- (c) The age of the victim of the sexually oriented offense for which sentence is to be imposed or the order of disposition is to be made;
- (d) Whether the sexually oriented offense for which sentence is to be imposed or the order of disposition is to be made involved multiple victims;
- (e) Whether the offender or delinquent child used drugs or alcohol to impair the victim of the sexually oriented offense or to prevent the victim from resisting;
- (f) If the offender or delinquent child previously has been convicted of or pleaded guilty to, or been adjudicated a delinquent child for committing an act that if committed by an adult would be, a criminal offense, whether the offender or delinquent child completed any sentence or dispositional order imposed for the prior offense or act and, if the prior offense or act was a sex offense or a sexually oriented offense, whether the offender or delinquent child participated in available programs for sexual offenders;
- (g) Any mental illness or mental disability of the offender or delinquent child;
- (h) The nature of the offender's or delinquent child's sexual conduct, sexual contact, or interaction in a sexual context with the victim of the sexually oriented offense and whether the sexual conduct, sexual contact, or interaction in a sexual context was part of a demonstrated pattern of abuse;
- (i) Whether the offender or delinquent child, during the commission of the sexually oriented offense for which sentence is to be imposed or the order of disposition is to be made, displayed cruelty or made one or more threats of cruelty;

(j) Whether the offender or delinquent child would have been a habitual sex offender or a habitual child victim offender under the definitions of those terms set forth in section 2950.01 of the Revised Code as that section existed prior to January 1, 2008;

(k) Any additional behavioral characteristics that contribute to the offender's or delinquent child's conduct.

(G)(1) The department of children and youth shall compile, maintain, and update in January and July of each year, a list of all agencies, centers, or homes of a type described in division (A)(2) or (6) of this section that contains the name of each agency, center, or home of that type, the county in which it is located, its address and telephone number, and the name of an administrative officer or employee of the agency, center, or home.

(2) The department of education and workforce shall compile, maintain, and update in January and July of each year, a list of all boards of education, schools, or programs of a type described in division (A)(3), (4), or (5) of this section that contains the name of each board of education, school, or program of that type, the county in which it is located, its address and telephone number, the name of the superintendent of the board or of an administrative officer or employee of the school or program, and, in relation to a board of education, the county or counties in which each of its schools is located and the address of each such school.

(3) The chancellor of higher education shall compile, maintain, and update in January and July of each year, a list of all institutions of a type described in division (A)(7) of this section that contains the name of each such institution, the county in which it is located, its address and telephone number, and the name of its president or other chief administrative officer.

(4) A sheriff required by division (A) or (C) of this section, or authorized by division (D)(2) of this section, to provide notices regarding an offender or delinquent child, or a designee of a sheriff of that type, may request the department of children and youth, department of education and workforce, or chancellor of higher education, by telephone, in person, or by mail, to provide the sheriff or designee with the names, addresses, and telephone numbers of the appropriate persons and entities to whom the notices described in divisions (A)(2) to (7) of this section are to be provided. Upon receipt of a request, the department shall provide the requesting sheriff or designee with the names, addresses, and telephone numbers of the appropriate persons and entities to whom those notices are to be provided.

(H)(1) Upon the motion of the offender or the prosecuting attorney of the county in which the offender was convicted of or pleaded guilty to the sexually oriented offense or child-victim oriented offense for which the offender is subject to community notification under this section, or upon the motion of the sentencing judge or that judge's successor in office, the judge may schedule a hearing to determine whether the interests of justice would be served by suspending the community notification requirement under this section in relation to the offender. The judge may dismiss the motion without a hearing but may not issue an order suspending the community notification requirement without a hearing. At the hearing, all parties are entitled to be heard, and the judge shall consider all of the factors set forth in division (K) of this section. If, at the conclusion of the hearing, the judge finds that the offender has proven by clear and convincing evidence that the offender is unlikely to commit in the future a sexually oriented offense or a child-victim oriented offense and if the judge finds that suspending the community notification requirement is in the interests of justice, the judge may suspend the application of this section in relation to the offender. The order shall contain both of these findings.

The judge promptly shall serve a copy of the order upon the sheriff with whom the offender most recently registered under section 2950.04, 2950.041, or 2950.05 of the Revised Code and upon the bureau of criminal identification and investigation.

An order suspending the community notification requirement does not suspend or otherwise alter an offender's duties to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code and does not suspend the victim notification requirement under section 2950.10 of the Revised Code.

(2) A prosecuting attorney, a sentencing judge or that judge's successor in office, and an offender who is subject to the community notification requirement under this section may initially make a motion under division (H)(1) of this section upon the expiration of twenty years after the offender's duty to comply with division (A)(2), (3), or (4) of section 2950.04, division (A)(2), (3), or (4) of section 2950.041 and sections 2950.05 and 2950.06 of the Revised Code begins in relation to the offense for which the offender is subject to community notification. After the initial making of a motion under division (H)(1) of this section, thereafter, the prosecutor, judge, and offender may make a subsequent motion under that division upon the expiration of five years after the judge has entered an order denying the initial motion or the most recent motion made under that division.

(3) The offender and the prosecuting attorney have the right to appeal an order approving or denying a motion made under division (H)(1) of this section.

(4) Divisions (H)(1) to (3) of this section do not apply to any of the following types of offender:

(a) A person who is convicted of or pleads guilty to a violent sex offense or designated homicide, assault, or kidnapping offense and who, in relation to that offense, is adjudicated a sexually violent predator;

(b) A person who is convicted of or pleads guilty to a sexually oriented offense that is a violation of division (A)(1)(b) of section 2907.02 of the Revised Code committed on or after January 2, 2007, and either who is sentenced under section 2971.03 of the Revised Code or upon whom a sentence of life without parole is imposed under division (B) of section 2907.02 of the Revised Code;

(c) A person who is convicted of or pleads guilty to a sexually oriented offense that is attempted rape committed on or after January 2, 2007, and who also is convicted of or pleads guilty to a specification of the type described in section 2941.1418, 2941.1419, or 2941.1420 of the Revised Code;

(d) A person who is convicted of or pleads guilty to an offense described in division (B)(3)(a), (b), (c), or (d) of section 2971.03 of the Revised Code and who is sentenced for that offense pursuant to that division;

(e) An offender who is in a category specified in division (F)(1)(a), (b), or (c) of this section and who, subsequent to being subjected to community notification, has pleaded guilty to or been convicted of a sexually oriented offense or child-victim oriented offense.

(I) If a person is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, and if the offender or delinquent child is not in any category specified in division (F)(1)(a), (b), or (c) of this section, the sheriff with whom the offender or delinquent child has most recently registered under section 2950.04, 2950.041, or 2950.05 of the Revised Code and the sheriff to whom the offender or delinquent child most recently sent a notice of intent to reside under section 2950.04 or 2950.041 of the Revised Code, within the period of time specified in

division (D) of this section, shall provide a written notice containing the information set forth in division (B) of this section to the executive director of the public children services agency that has jurisdiction within the specified geographical notification area and that is located within the county served by the sheriff.

(J) Each sheriff shall allow a volunteer organization or other organization, company, or individual who wishes to receive the notice described in division (A)(10) of this section regarding a specific offender or delinquent child or notice regarding all offenders and delinquent children who are located in the specified geographical notification area to notify the sheriff by electronic mail or through the sheriff's web site of this election. The sheriff shall promptly inform the bureau of criminal identification and investigation of these requests in accordance with the forwarding procedures adopted by the attorney general pursuant to section 2950.13 of the Revised Code.

(K) In making a determination under division (H)(1) of this section as to whether to suspend the community notification requirement under this section for an offender, the judge shall consider all relevant factors, including, but not limited to, all of the following:

- (1) The offender's age;
- (2) The offender's prior criminal or delinquency record regarding all offenses, including, but not limited to, all sexually oriented offenses or child-victim oriented offenses;
- (3) The age of the victim of the sexually oriented offense or child-victim oriented offense the offender committed;
- (4) Whether the sexually oriented offense or child-victim oriented offense the offender committed involved multiple victims;
- (5) Whether the offender used drugs or alcohol to impair the victim of the sexually oriented offense or child-victim oriented offense the offender committed or to prevent the victim from resisting;
- (6) If the offender previously has been convicted of, pleaded guilty to, or been adjudicated a delinquent child for committing an act that if committed by an adult would be a criminal offense, whether the offender completed any sentence or dispositional order imposed for the prior offense or act and, if the prior offense or act was a sexually oriented offense or a child-victim oriented offense, whether the offender or delinquent child participated in available programs for sex offenders or child-victim offenders;
- (7) Any mental illness or mental disability of the offender;
- (8) The nature of the offender's sexual conduct, sexual contact, or interaction in a sexual context with the victim of the sexually oriented offense the offender committed or the nature of the offender's interaction in a sexual context with the victim of the child-victim oriented offense the offender committed, whichever is applicable, and whether the sexual conduct, sexual contact, or interaction in a sexual context was part of a demonstrated pattern of abuse;
- (9) Whether the offender, during the commission of the sexually oriented offense or child-victim oriented offense the offender committed, displayed cruelty or made one or more threats of cruelty;

(10) Any additional behavioral characteristics that contribute to the offender's conduct.

(L) As used in this section, “specified geographical notification area” means the geographic area or areas within which the attorney general, by rule adopted under section 2950.13 of the Revised Code, requires the notice described in division (B) of this section to be given to the persons identified in divisions (A)(2) to (8) of this section.

CREDIT(S)

(2024 H 101, § 110.10, eff. 1-1-25; 2023 H 33, § 130.12, eff. 1-1-25; 2024 H 101, § 101.01, eff. 4-30-24; 2023 H 33, § 130.100, eff. 10-3-23; 2023 H 33, § 130.20, eff. 10-3-23; 2012 S 316, § 120.01, eff. 1-1-14; 2007 S 10, eff. 1-1-08; 2006 S 260, eff. 1-2-07; 2006 S 17, eff. 8-3-06; 2005 H 15, eff. 11-23-05; 2004 H 473, eff. 4-29-05; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2002 S 175, eff. 5-7-02; 2001 S 3, eff. 1-1-02; 1999 H 471, eff. 7-1-00; 1998 H 565, eff. 3-30-99; 1997 H 396, eff. 1-30-98; 1996 H 180, eff. 7-1-97)

R.C. § 2950.11, OH ST § 2950.11

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.111

2950.111 Confirmation by sheriff of reported residence address

Currentness

(A) If an offender or delinquent child registers a residence address, provides notice of a change of any residence address, or verifies a current residence address pursuant to section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, all of the following apply:

(1) At any time after the registration, provision of the notice, or verification, the sheriff with whom the offender or delinquent child so registered or to whom the offender or delinquent child so provided the notice or verified the current address, or a designee of that sheriff, may contact a person who owns, leases, or otherwise has custody, control, or supervision of the premises at the address provided by the offender or delinquent child in the registration, the notice, or the verification and request that the person confirm or deny that the offender or delinquent child currently resides at that address.

(2) Upon receipt of a request under division (A)(1) of this section, notwithstanding any other provision of law, the person who owns, leases, or otherwise has custody, control, or supervision of the premises, or an agent of that person, shall comply with the request and inform the sheriff or designee who made the request whether or not the offender or delinquent child currently resides at that address.

(3) Section 2950.12 of the Revised Code applies to a person who, in accordance with division (A)(2) of this section, provides information of the type described in that division.

(B) Division (A) of this section applies regarding any public or private residential premises, including, but not limited to, a private residence, a multi-unit residential facility, a halfway house, a homeless shelter, or any other type of residential premises. Division (A) of this section does not apply regarding an offender's registration, provision of notice of a change in, or verification of a school, institution of higher education, or place of employment address pursuant to section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code.

(C) A sheriff or designee of a sheriff may attempt to confirm that an offender or delinquent child who registers a residence address, provides notice of a change of any residence address, or verifies a current residence address as described in division (A) of this section currently resides at the address in question in manners other than the manner provided in this section. A sheriff or designee of a sheriff is not limited in the number of requests that may be made under this section regarding any registration, provision of notice, or verification, or in the number of times that the sheriff or designee may attempt to confirm, in manners other than the manner provided in this section, that an offender or delinquent child currently resides at the address in question.

CREDIT(S)

(2003 S 5, eff. 7-31-03)

R.C. § 2950.111, OH ST § 2950.111

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.12

2950.12 Immunity from civil liability

Currentness

(A) Except as provided in division (B) of this section, any of the following persons shall be immune from liability in a civil action to recover damages for injury, death, or loss to person or property allegedly caused by an act or omission in connection with a power, duty, responsibility, or authorization under this chapter or under rules adopted under authority of this chapter:

- (1) An officer or employee of the bureau of criminal identification and investigation;
- (2) The attorney general, a chief of police, marshal, or other chief law enforcement officer of a municipal corporation, a sheriff, a constable or chief of police of a township police department or police district police force, and a deputy, officer, or employee of the office of the attorney general, the law enforcement agency served by the marshal or the municipal or township chief, the office of the sheriff, or the constable;
- (3) A prosecutor and an officer or employee of the office of a prosecutor;
- (4) A supervising officer and an officer or employee of the adult parole authority of the department of rehabilitation and correction;
- (5) A supervising officer and an officer or employee of the department of youth services;
- (6) A supervisor and a caseworker or employee of a public children services agency acting pursuant to section 5153.16 of the Revised Code;
- (7) A managing officer of a state correctional institution and an officer or employee of the department of rehabilitation and correction;
- (8) A person identified in division (A)(2), (3), (4), (5), (6), or (7) of section 2950.11 of the Revised Code, an organization or person identified in division (A)(10) of that section, or the agent of that person or organization;
- (9) A person identified in division (A)(2) of section 2950.111 of the Revised Code, regarding the person's provision of information pursuant to that division to a sheriff or a designee of a sheriff.

(B) The immunity described in division (A) of this section does not apply to a person described in divisions (A)(1) to (8) of this section if, in relation to the act or omission in question, any of the following applies:

- (1) The act or omission was manifestly outside the scope of the person's employment or official responsibilities.
- (2) The act or omission was with malicious purpose, in bad faith, or in a wanton or reckless manner.
- (3) Liability for the act or omission is expressly imposed by a section of the Revised Code.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2003 S 5, eff. 7-31-03; 2002 S 175, eff. 5-7-02; 2001 S 3, eff. 1-1-02; 1996 H 180, eff. 7-1-97)

R.C. § 2950.12, OH ST § 2950.12

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.13

2950.13 Duties of attorney general

Currentness

(A) The attorney general shall do all of the following:

(1) No later than July 1, 1997, establish and maintain a state registry of sex offenders and child-victim offenders that is housed at the bureau of criminal identification and investigation and that contains all of the registration, change of residence, school, institution of higher education, or place of employment address, and verification information the bureau receives pursuant to sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code regarding each person who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense and each person who is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense and is classified a juvenile offender registrant or is an out-of-state juvenile offender registrant based on that adjudication, all of the information the bureau receives pursuant to section 2950.14 of the Revised Code, and any notice of an order terminating or modifying an offender's or delinquent child's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code the bureau receives pursuant to section 2152.84, 2152.85, or 2950.15 of the Revised Code. For a person who was convicted of or pleaded guilty to the sexually oriented offense or child-victim related offense, the registry also shall indicate whether the person was convicted of or pleaded guilty to the offense in a criminal prosecution or in a serious youthful offender case. The registry shall not be open to inspection by the public or by any person other than a person identified in division (A) of section 2950.08 of the Revised Code. In addition to the information and material previously identified in this division, the registry shall include all of the following regarding each person who is listed in the registry:

(a) A citation for, and the name of, all sexually oriented offenses or child-victim oriented offenses of which the person was convicted, to which the person pleaded guilty, or for which the person was adjudicated a delinquent child and that resulted in a registration duty, and the date on which those offenses were committed;

(b) The text of the sexually oriented offenses or child-victim oriented offenses identified in division (A)(1)(a) of this section as those offenses existed at the time the person was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing those offenses, or a link to a database that sets forth the text of those offenses;

(c) A statement as to whether the person is a tier I sex offender/child-victim offender, a tier II sex offender/child-victim offender, or a tier III sex offender/child-victim offender for the sexually oriented offenses or child-victim oriented offenses identified in division (A)(1)(a) of this section;

(d) The community supervision status of the person, including, but not limited to, whether the person is serving a community control sanction and the nature of any such sanction, whether the person is under supervised release and the nature of the release, or regarding a juvenile, whether the juvenile is under any type of release authorized under Chapter 2152. or 5139. of the Revised Code and the nature of any such release;

(e) The offense and delinquency history of the person, as determined from information gathered or provided under sections 109.57 and 2950.14 of the Revised Code;

(f) The bureau of criminal identification and investigation tracking number assigned to the person if one has been so assigned, the federal bureau of investigation number assigned to the person if one has been assigned and the bureau of criminal identification and investigation is aware of the number, and any other state identification number assigned to the person of which the bureau is aware;

(g) Fingerprints and palmprints of the person;

(h) A DNA specimen, as defined in section 109.573 of the Revised Code, from the person;

(i) Whether the person has any outstanding arrest warrants;

(j) Whether the person is in compliance with the person's duties under this chapter.

(2) In consultation with local law enforcement representatives and no later than July 1, 1997, adopt rules that contain guidelines necessary for the implementation of this chapter;

(3) In consultation with local law enforcement representatives, adopt rules for the implementation and administration of the provisions contained in section 2950.11 of the Revised Code that pertain to the notification of neighbors of an offender or a delinquent child who has committed a sexually oriented offense or a child-victim oriented offense and is in a category specified in division (F)(1) of that section and rules that prescribe a manner in which victims of a sexually oriented offense or a child-victim oriented offense committed by an offender or a delinquent child who is in a category specified in division (B)(1) of section 2950.10 of the Revised Code may make a request that specifies that the victim would like to be provided the notices described in divisions (A)(1) and (2) of section 2950.10 of the Revised Code;

(4) In consultation with local law enforcement representatives and through the bureau of criminal identification and investigation, prescribe the forms to be used by judges and officials pursuant to section 2950.03 or 2950.032 of the Revised Code to advise offenders and delinquent children of their duties of filing a notice of intent to reside, registration, notification of a change of residence, school, institution of higher education, or place of employment address and registration of the new school, institution of higher education, or place of employment address, as applicable, and address verification under sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code, and prescribe the forms to be used by sheriffs relative to those duties of filing a notice of intent to reside, registration, change of residence, school, institution of higher education, or place of employment address notification, and address verification;

(5) Make copies of the forms prescribed under division (A)(4) of this section available to judges, officials, and sheriffs;

(6) Through the bureau of criminal identification and investigation, provide the notifications, the information and materials, and the documents that the bureau is required to provide to appropriate law enforcement officials and to the federal bureau of investigation pursuant to sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code;

(7) Through the bureau of criminal identification and investigation, maintain the verification forms returned under the address verification mechanism set forth in section 2950.06 of the Revised Code;

(8) In consultation with representatives of the officials, judges, and sheriffs, adopt procedures for officials, judges, and sheriffs to use to forward information, photographs, and fingerprints to the bureau of criminal identification and investigation pursuant to the requirements of sections 2950.03, 2950.04, 2950.041, 2950.05, 2950.06, and 2950.11 of the Revised Code;

(9) In consultation with the director of education, the director of children and youth, and the director of rehabilitation and correction, adopt rules that contain guidelines to be followed by boards of education of a school district, chartered nonpublic schools or other schools not operated by a board of education, preschool programs, child care centers, type A family child care homes, licensed type B family child care homes, and institutions of higher education regarding the proper use and administration of information received pursuant to section 2950.11 of the Revised Code relative to an offender or delinquent child who has committed a sexually oriented offense or a child-victim oriented offense and is in a category specified in division (F)(1) of that section;

(10) In consultation with local law enforcement representatives and no later than July 1, 1997, adopt rules that designate a geographic area or areas within which the notice described in division (B) of section 2950.11 of the Revised Code must be given to the persons identified in divisions (A)(2) to (8) and (A)(10) of that section;

(11) Through the bureau of criminal identification and investigation, not later than January 1, 2004, establish and operate on the internet a sex offender and child-victim offender database that contains information for every offender who has committed a sexually oriented offense or a child-victim oriented offense and registers in any county in this state pursuant to section 2950.04 or 2950.041 of the Revised Code and for every delinquent child who has committed a sexually oriented offense, is a public registry-qualified juvenile offender registrant, and registers in any county in this state pursuant to either such section. The bureau shall not include on the database the identity of any offender's or public registry-qualified juvenile offender registrant's victim, any offender's or public registry-qualified juvenile offender registrant's social security number, the name of any school or institution of higher education attended by any offender or public registry-qualified juvenile offender registrant, the name of the place of employment of any offender or public registry-qualified juvenile offender registrant, any tracking or identification number described in division (A)(1)(f) of this section, or any information described in division (C)(7) of section 2950.04 or 2950.041 of the Revised Code. The bureau shall provide on the database, for each offender and each public registry-qualified juvenile offender registrant, at least the information specified in divisions (A)(11)(a) to (h) of this section. Otherwise, the bureau shall determine the information to be provided on the database for each offender and public registry-qualified juvenile offender registrant and shall obtain that information from the information contained in the state registry of sex offenders and child-victim offenders described in division (A)(1) of this section, which information, while in the possession of the sheriff who provided it, is a public record open for inspection as described in section 2950.081 of the Revised Code. The database is a public record open for inspection under section 149.43 of the Revised Code, and it shall be searchable by offender or public registry-qualified juvenile offender registrant name, by county, by zip code, and by school district. The database shall provide a link to the web site of each sheriff who has established and operates on the internet a sex offender and child-victim offender database that contains information for offenders and public registry-qualified juvenile offender registrants who register in that county pursuant to section 2950.04 or 2950.041 of the Revised Code, with the link being a direct link to the sex offender and

child-victim offender database for the sheriff. The bureau shall provide on the database, for each offender and public registry-qualified juvenile offender registrant, at least the following information:

- (a) The information described in divisions (A)(1)(a), (b), (c), and (d) of this section relative to the offender or public registry-qualified juvenile offender registrant;
- (b) The address of the offender's or public registry-qualified juvenile offender registrant's school, institution of higher education, or place of employment provided in a registration form;
- (c) The information described in division (C)(6) of section 2950.04 or 2950.041 of the Revised Code;
- (d) A chart describing which sexually oriented offenses and child-victim oriented offenses are included in the definitions of tier I sex offender/child-victim offender, tier II sex offender/child-victim offender, and tier III sex offender/child-victim offender;
- (e) Fingerprints and palprints of the offender or public registry-qualified juvenile offender registrant and a DNA specimen from the offender or public registry-qualified juvenile offender registrant;
- (f) The information set forth in division (B) of section 2950.11 of the Revised Code;
- (g) Any outstanding arrest warrants for the offender or public registry-qualified juvenile offender registrant;
- (h) The offender's or public registry-qualified juvenile offender registrant's compliance status with duties under this chapter.

(12) Develop software to be used by sheriffs in establishing on the internet a sex offender and child-victim offender database for the public dissemination of some or all of the information and materials described in division (A) of section 2950.081 of the Revised Code that are public records under that division, that are not prohibited from inclusion by division (B) of that section, and that pertain to offenders and public registry-qualified juvenile offender registrants who register in the sheriff's county pursuant to section 2950.04 or 2950.041 of the Revised Code and for the public dissemination of information the sheriff receives pursuant to section 2950.14 of the Revised Code and, upon the request of any sheriff, provide technical guidance to the requesting sheriff in establishing on the internet such a database;

(13) Through the bureau of criminal identification and investigation, not later than January 1, 2004, establish and operate on the internet a database that enables local law enforcement representatives to remotely search by electronic means the state registry of sex offenders and child-victim offenders described in division (A)(1) of this section and any information and materials the bureau receives pursuant to sections 2950.04, 2950.041, 2950.05, 2950.06, and 2950.14 of the Revised Code. The database shall enable local law enforcement representatives to obtain detailed information regarding each offender and delinquent child who is included in the registry, including, but not limited to the offender's or delinquent child's name, aliases, residence address, name and address of any place of employment, school, institution of higher education, if applicable, license plate number of each vehicle identified in division (C)(5) of section 2950.04 or 2950.041 of the Revised Code to the extent applicable, victim preference if available, date of most recent release from confinement if applicable, fingerprints, and palprints, all of the information and material described in divisions (A)(1)(a) to (h) of this section regarding the offender or delinquent child, and other identification parameters the bureau considers appropriate. The database is not a public record open for inspection under

section 149.43 of the Revised Code and shall be available only to law enforcement representatives as described in this division. Information obtained by local law enforcement representatives through use of this database is not open to inspection by the public or by any person other than a person identified in division (A) of section 2950.08 of the Revised Code.

(14) Through the bureau of criminal identification and investigation, maintain a list of requests for notice about a specified offender or delinquent child or specified geographical notification area made pursuant to division (J) of section 2950.11 of the Revised Code and, when an offender or delinquent child changes residence to another county, forward any requests for information about that specific offender or delinquent child to the appropriate sheriff;

(15) Through the bureau of criminal identification and investigation, establish and operate a system for the immediate notification by electronic means of the appropriate officials in other states specified in this division each time an offender or delinquent child registers a residence, school, institution of higher education, or place of employment address under section 2950.04 or 2950.041 of the Revised Code or provides a notice of a change of address or registers a new address under division (A) or (B) of section 2950.05 of the Revised Code. The immediate notification by electronic means shall be provided to the appropriate officials in each state in which the offender or delinquent child is required to register a residence, school, institution of higher education, or place of employment address. The notification shall contain the offender's or delinquent child's name and all of the information the bureau receives from the sheriff with whom the offender or delinquent child registered the address or provided the notice of change of address or registered the new address.

(B) The attorney general in consultation with local law enforcement representatives, may adopt rules that establish one or more categories of neighbors of an offender or delinquent child who, in addition to the occupants of residential premises and other persons specified in division (A)(1) of section 2950.11 of the Revised Code, must be given the notice described in division (B) of that section.

(C) No person, other than a local law enforcement representative, shall knowingly do any of the following:

(1) Gain or attempt to gain access to the database established and operated by the attorney general, through the bureau of criminal identification and investigation, pursuant to division (A)(13) of this section.

(2) Permit any person to inspect any information obtained through use of the database described in division (C)(1) of this section, other than as permitted under that division.

(D) As used in this section, "local law enforcement representatives" means representatives of the sheriffs of this state, representatives of the municipal chiefs of police and marshals of this state, and representatives of the township constables and chiefs of police of the township police departments or police district police forces of this state.

CREDIT(S)

(2023 H 33, § 130.12, eff. 1-1-25; 2023 H 33, § 130.20, eff. 10-3-23; 2012 S 316, § 120.01, eff. 1-1-14; 2007 S 10, eff. 1-1-08; 2006 S 260, eff. 1-2-07; 2003 S 5, eff. 7-31-03; 2002 H 485, eff. 6-13-02; 2001 S 3, eff. 1-1-02; 1999 H 471, eff. 7-1-00; 1996 H 72, eff. 7-1-97; 1996 H 180, eff. 7-1-97)

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.131

2950.131 Powers and duties of bureau of criminal identification and investigation
and sheriffs regarding internet sex offender and child-victim offender database

Currentness

(A) By January 1, 2008, the bureau of criminal identification and investigation, with the assistance of the office of criminal justice services, shall include on the internet sex offender and child-victim offender database established and operated pursuant to division (A)(11) of section 2950.13 of the Revised Code a link to educational information for the public on current research about sex offenders and child-victim offenders. Each sheriff who has established on the internet a sex offender and child-victim offender database may include a link to this information on the sheriff's internet database.

(B) By January 1, 2008, the internet sex offender and child-victim offender database established and operated pursuant to division (A)(11) of section 2950.13 of the Revised Code and each sheriff's internet sex offender and child-victim offender database is required to inform offenders and public registry-qualified juvenile offender registrants that they may contact the sheriff of the county in which the offender or delinquent child registered an address if the offender or delinquent child believes that information contained on the internet sex offender and child-victim offender database or sheriff's internet sex offender and child-victim offender database pertaining to the offender or delinquent child is incorrect.

CREDIT(S)

(2007 S 97, eff. 1-1-08)

R.C. § 2950.131, OH ST § 2950.131

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.132

2950.132 Additional duties of attorney general

Currentness

If, on or after the effective date of this section, the United States attorney general or an office established under the authority of the United States attorney general adopts any regulation, guideline, or standard that interprets or applies the federal Sex Offender Registration and Notification Act, Pub. L. No. 109-249, to require additional sex offender registration and notification than otherwise required by Chapter 2950. of the Revised Code, as amended by this act, or notifies the attorney general of this state that the amendments made by this act are not in substantial compliance with the federal Sex Offender Registration and Notification Act or regulations, guidelines or standards interpreting or applying the federal Sex Offender Registration and Notification Act, the attorney general of this state within one hundred eighty days after notification or the adoption of any regulation, guideline or standard that interprets or applies the federal Sex Offender Registration and Notification Act, shall adopt rules in accordance with Chapter 119. of the Revised Code to require additional sex offender registration or notification so that Ohio's sex offender registration and notification requirements are consistent with, and not less stringent than, the federal Sex Offender Registration and Notification Act and any regulation, guideline or standard that interprets or applies the federal Sex Offender Registration and Notification Act.

CREDIT(S)

(2007 S 10, eff. 7-1-07)

R.C. § 2950.132, OH ST § 2950.132

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.14

2950.14 Release of offender; information to be entered in state registry of sexual offenders

Currentness

(A) Prior to releasing an offender who is under the custody and control of the department of rehabilitation and correction and who has been convicted of or pleaded guilty to committing, either prior to, on, or after January 1, 1997, any sexually oriented offense or any child-victim oriented offense, the department of rehabilitation and correction shall provide all of the information described in division (B) of this section to the bureau of criminal identification and investigation regarding the offender and to the sheriff of the county in which the offender's anticipated future residence is located. Prior to releasing a delinquent child who is in the custody of the department of youth services who has been adjudicated a delinquent child for committing any sexually oriented offense or any child-victim oriented offense, regardless of when the offense was committed, and who has been classified a juvenile offender registrant based on that adjudication, the department of youth services shall provide all of the information described in division (B) of this section to the bureau of criminal identification and investigation regarding the delinquent child.

(B) The department of rehabilitation and correction and the department of youth services shall provide all of the following information to the bureau of criminal identification and investigation regarding an offender or delinquent child described in division (A) of this section:

- (1) The offender's or delinquent child's name and any aliases used by the offender or delinquent child;
- (2) All identifying factors concerning, and a physical description of, the offender or delinquent child;
- (3) The offender's or delinquent child's anticipated future residence;
- (4) The offense and delinquency history and the terms and conditions of release of the offender or delinquent child;
- (5) Whether the offender or delinquent child was treated for a mental abnormality or personality disorder while under the custody and control of the department;
- (6) Any other information that the bureau indicates is relevant and that the department possesses.

(C) Upon receipt of the information described in division (B) of this section regarding an offender or delinquent child, the bureau immediately shall enter the information into the state registry of sex offenders and child-victim offenders that the bureau maintains pursuant to section 2950.13 of the Revised Code and into the records that the bureau maintains pursuant to division (A) of section 109.57 of the Revised Code. Upon receipt of that information regarding an offender, the bureau immediately

shall enter the information on the sex offender and child-victim offender database it establishes and operates on the internet pursuant to division (A)(11) of section 2950.13 of the Revised Code.

(D) Upon receipt of the information described in division (B) of this section regarding an offender, a sheriff who has established on the internet a sex offender and child-victim offender database for the public dissemination of information regarding such offenders shall enter that information on the database.

CREDIT(S)

(2007 S 10, eff. 1-1-08; 2006 S 260, eff. 1-2-07; 2003 S 5, eff. 7-31-03; 2002 H 393, eff. 7-5-02; 2001 S 3, eff. 1-1-02; 1998 H 565, eff. 3-30-99; 1996 H 180, eff. 1-1-97)

R.C. § 2950.14, OH ST § 2950.14

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.15

2950.15 Motion to terminate registration requirement; contents; notice to victim; evidence

Currentness

(A) As used in this section and section 2950.16 of the Revised Code, “eligible offender” means a person who is convicted of, pleads guilty to, was convicted of, or pleaded guilty to a sexually oriented offense or child-victim oriented offense, regardless of when the offense was committed, and is a tier I sex offender/child-victim offender or a child who is or was adjudicated a delinquent child for committing a sexually oriented offense or child-victim oriented offense, regardless of when the offense was committed, and is a public registry-qualified juvenile offender registrant.

(B) Pursuant to this section, an eligible offender may make a motion to the court of common pleas or, for a delinquent child, the juvenile court of the county in which the eligible offender resides requesting that the court terminate the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code. If the eligible offender is not a resident of this state, the eligible offender may make a motion to the court of common pleas of the county in which the eligible offender has registered pursuant to section 2950.04 or 2950.041 of the Revised Code, but if the eligible offender has registered addresses of that nature in more than one county, the eligible offender may make such a motion in the court of only one of those counties. Notwithstanding any state or local rule assigning costs and fees for filing and processing civil and criminal cases, the fee for filing the motion shall be one hundred fifty dollars. This fee shall be applied to any further processing of the motion, including, but not limited to, the costs associated with investigating the motion, notifying relevant parties, scheduling hearings, and recording and reporting the court's determination.

(C)(1) Except as provided in division (C)(2) of this section, an eligible offender who is classified a tier I sex offender/child-victim offender may make a motion under division (B) of this section upon the expiration of ten years after the eligible offender's duty to comply with division (A)(2) or (4) of section 2950.04 or division (A)(2) or (4) of section 2950.041 and sections 2950.05 and 2950.06 of the Revised Code begins in relation to the offense for which the eligible offender is subject to those provisions.

(2) An eligible offender who is a delinquent child and is classified a public registry-qualified juvenile offender registrant may make a motion under division (B) of this section upon the expiration of twenty-five years after the eligible offender's duty to comply with division (A)(3) or (4) of section 2950.04 and sections 2950.05 and 2950.06 of the Revised Code begins in relation to the offense for which the eligible offender is subject to those provisions.

(D) An eligible offender who makes a motion under division (B) of this section shall include all of the following with the motion:

(1) A certified copy of the judgment entry and any other documentation of the sentence or disposition given for the offense or offenses for which the eligible offender was convicted, pleaded guilty, or was adjudicated a delinquent child;

(2) Documentation of the date of discharge from supervision or release, whichever is applicable;

(3) Evidence that the eligible offender has completed a sex offender or child-victim offender treatment program certified by the department of rehabilitation and correction or the department of youth services pursuant to section 2950.16 of the Revised Code;

(4) Evidence that the eligible offender has not been convicted of, pleaded guilty to, or been adjudicated a delinquent child for committing any subsequent sexually oriented offense, child-victim oriented offense, or other criminal offense, except for a minor misdemeanor traffic offense;

(5) Evidence that the eligible offender has paid any financial sanctions imposed upon the offender pursuant to section 2929.18 or 2929.28 of the Revised Code.

(E) Upon the filing of a motion pursuant to division (B) of this section, the offender or delinquent child shall serve a copy of the motion on the prosecutor who handled the case in which the eligible offender was convicted of, pleaded guilty to, or was adjudicated a delinquent child for committing the sexually oriented offense or child-victim oriented offense. Upon the filing of the motion, the court shall set a tentative date for a hearing on the motion that is not later than one hundred eighty days from the date the motion is filed unless good cause exists to hold the hearing at a later date and shall notify the eligible offender and the prosecutor of the date, time, and place of the hearing. The court shall then forward a copy of the motion and its supporting documentation to the court's probation department or another appropriate agency to investigate the merits of the motion. The probation department or agency shall submit a written report detailing its investigation to the court within sixty days of receiving the motion and supporting documentation.

Upon receipt of the written report from the probation department or other appropriate agency, the court shall forward a copy of the motion, supporting documentation, and the written report to the prosecutor.

(F)(1) After the prosecutor is served with a copy of the motion as described in division (E) of this section, the prosecutor shall notify the victim of any offense for which the eligible offender is requesting a termination of duties under sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code. The victim may submit a written statement to the prosecutor regarding any knowledge the victim has of the eligible offender's conduct while subject to the duties imposed by sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code.

(2) At least seven days before the hearing date, the prosecutor may file an objection to the motion with the court and serve a copy of the objection to the motion to the eligible offender or the eligible offender's attorney.

(G) In addition to the evidence that accompanies the motion described in division (D) of this section and the written report submitted pursuant to division (E) of this section, in determining whether to grant a motion made under division (B) of this section, the court may consider any other evidence the court considers relevant, including, but not limited to, evidence of the following while the eligible offender has been subject to the duties imposed under sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code:

(1) Whether the eligible offender's driver's license, commercial driver's license, temporary instruction permit, probationary license, or nonresident operating privilege has ever been suspended;

(2) Whether the eligible offender has maintained financial responsibility for a motor vehicle as required by section 4509.101 of the Revised Code;

(3) Whether the eligible offender has satisfied any child or spousal support obligations, if applicable;

(4) Whether the eligible offender has paid all local, state, and federal income taxes, and has timely filed all associated income tax returns, as required by local, state, or federal law;

(5) Whether there is evidence that the eligible offender has adequately addressed sex offending or child-victim offending behaviors;

(6) Whether the eligible offender has maintained a residence for a substantial period of time;

(7) Whether the eligible offender has maintained employment or, if the eligible offender has not been employed while under a duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code, whether the eligible offender has satisfied the offender's financial obligations through other manners of support such as disability payments, a pension, spousal or child support, or scholarships or grants;

(8) Whether the eligible offender has adequately addressed any drug or alcohol abuse or addiction;

(9) Letters of reference;

(10) Documentation of the eligible offender's service to the community or to specific individuals in need.

(H)(1) The court, without a hearing, may issue an order denying the eligible offender's motion to terminate the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code if the court, based on the evidence submitted with the motion pursuant to division (D) of this section and the written report submitted pursuant to division (E) of this section and after considering the factors described in division (G) of this section, finds that those duties should not be terminated.

(2) If the prosecutor does not file an objection to the eligible offender's application as provided in division (F)(2) of this section, the court, without a hearing, may issue an order that terminates the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code if the court, based on the evidence submitted with the motion pursuant to division (D) of this section and the written report submitted pursuant to division (E) of this section and after considering the factors described in division (G) of this section, finds that those duties should be terminated.

(3) If the court does not issue an order under division (H)(1) or (2) of this section, the court shall hold a hearing to determine whether to grant or deny the motion. At the hearing, the Rules of Civil Procedure or, if the hearing is in a juvenile court, the Rules of Juvenile Procedure apply, except to the extent that those Rules would by their nature be clearly inapplicable. At the hearing, the eligible offender has the burden of going forward with the evidence and the burden of proof by a preponderance of the evidence. If, after considering the evidence submitted with the motion pursuant to division (D) of this section, the written report submitted pursuant to division (E) of this section, and the factors described in division (G) of this section, the court finds

that the eligible offender has satisfied the burden of proof, the court shall issue an order that terminates the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code. If the court finds that the eligible offender has not satisfied the burden of proof, the court shall issue an order denying the motion.

(4)(a) The court shall provide prompt notice of its order issued pursuant to division (H)(1), (2), or (3) of this section to the eligible offender or the eligible offender's attorney.

(b) If the court issues an order terminating the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code, the court shall promptly forward a copy of the order to the bureau of criminal identification and investigation. Upon receipt of the order, the bureau shall update all records pertaining to the eligible offender to reflect the termination order. The bureau also shall notify every sheriff with whom the eligible offender has most recently registered under section 2950.04, 2950.041, or 2950.05 of the Revised Code of the termination order.

(c) If the court issues an order terminating the eligible offender's duty to comply with sections 2950.04, 2950.041, 2950.05, and 2950.06 of the Revised Code, the court shall promptly forward a copy of the order to any court that sentenced the offender or adjudicated the child a delinquent child for a sexually oriented offense or child-victim oriented offense that is the basis of the termination order. The court that receives this notice shall retain a copy of the order in the eligible offender's original case file.

CREDIT(S)

(2007 S 10, eff. 1-1-08)

R.C. § 2950.15, OH ST § 2950.15

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.151

2950.151 Review of effectiveness of offender participation in community control sanctions for unlawful sexual conduct with minor and determination whether to terminate offender's duty to comply with RC 2950.04, 2950.05, and 2950.06, reclassify offender as tier I sex offender/child-victim offender, or continue offender's current classification

Currentness

(A) As used in this section, "eligible offender" means either of the following:

(1) An offender who was convicted of or pleaded guilty to a violation of section 2907.04 of the Revised Code to whom all of the following apply:

(a) The sentencing court found the offender to be at low risk of reoffending based on a presentence investigation report that included a risk assessment, assessed by the single validated risk assessment tool selected by the department of rehabilitation and correction under section 5120.114 of the Revised Code;

(b) The sentencing court imposed a community control sanction or combination of community control sanctions instead of a prison term and the offender has fulfilled every condition of every community control sanction imposed by the sentencing court;

(c) The offender was under twenty-one years of age at the time of committing the offense;

(d) The offender has not otherwise been convicted of or pleaded guilty to another violation of section 2907.04 of the Revised Code or any sexually oriented offense or child-victim oriented offense other than the violation of section 2907.04 of the Revised Code;

(e) The minor with whom the offender engaged in sexual conduct was at least fourteen years of age at the time of the offense and consented to the sexual conduct, with no evidence of coercion, force, or threat of force;

(f) The offender was not in a position of authority, including a position of a type described in divisions (A)(5) to (14) of section 2907.03 of the Revised Code, over the minor with whom the offender engaged in sexual conduct.

(2) An offender who was convicted of or pleaded guilty to a violation of any former law of this state, any existing or former municipal ordinance or law of another state or the United States, any existing or former law applicable in a military court or in an Indian trial court, or any existing or former law of any nation other than the United States that is or was substantially equivalent to a violation of section 2907.04 of the Revised Code and to whom all of the factors described in divisions (A)(1) (a) to (f) of this section apply. For purposes of this division:

(a) The reference in division (A)(1)(b) of this section to a community control sanction shall be construed as including nonprison sanctions under the law of the jurisdiction in which the offender was convicted of or pleaded guilty to the violation that is or was substantially equivalent to a violation of section 2907.04 of the Revised Code;

(b) The reference in division (A)(1)(d) of this section to the violations specified in that division shall be construed as including substantially equivalent violations under the law of the jurisdiction in which the offender was convicted of or pleaded guilty to the violation that is or was substantially equivalent to a violation of section 2907.04 of the Revised Code.

(B) Upon completion of all community control sanctions imposed by the sentencing court for the violation of section 2907.04 of the Revised Code or the violation of the substantially equivalent law or ordinance, whichever is applicable, an eligible offender may petition the appropriate court specified in division (C) of this section to review the effectiveness of the offender's participation in community control sanctions and to determine whether to terminate the offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code, reclassify the offender as a tier I sex offender/child-victim offender, or continue the offender's current classification.

(C) Except as otherwise provided in this division, the eligible offender shall file the petition described in division (B) of this section in the court in which the eligible offender was convicted of or pleaded guilty to the offense. If the eligible offender was convicted of or pleaded guilty to the offense in a jurisdiction other than this state, the eligible offender shall file the petition in whichever of the following courts is applicable:

(1) If the eligible offender is a resident of this state, in the court of common pleas of the county in which the offender resides;

(2) If the eligible offender is not a resident of this state, in the court of common pleas of the county in which the offender has registered pursuant to section 2950.04 of the Revised Code. If the offender has registered addresses of that nature in more than one county, the offender may file a petition in the court of only one of those counties.

(D) An eligible offender who files a petition under division (B) of this section shall include all of the following with the petition:

(1) A certified copy of the judgment entry and any other documentation of the sentence given for the offense for which the eligible offender was convicted or pleaded guilty;

(2) Documentation of the date of discharge from probation supervision or other supervision, if applicable;

(3) Evidence that the eligible offender has completed a sex offender treatment program certified by the department of rehabilitation and correction pursuant to section 2950.16 of the Revised Code in the county where the offender was sentenced if the completion of such a program is ordered by the court, or, if completion of such a program is ordered by the court and such a program is not available in the county of sentencing, in another county;

(4) Any other evidence necessary to show that the offender meets the qualifications listed in division (A) of this section;

(5) Evidence that the eligible offender has been rehabilitated to a satisfactory degree by successful completion of community control sanctions.

(E) An eligible offender may obtain, at the offender's expense, a risk assessment or professional opinion, recommending relief under this section, from a licensed clinical psychologist, social worker, or other professional certified in sex offender treatment. The professional opinion or risk assessment may be submitted with the petition as additional evidence of rehabilitation.

(F) Upon the filing of a petition under division (B) of this section, the court shall schedule a hearing to review the eligible offender's petition and all evidence of rehabilitation accompanying the petition. The court shall notify the offender and the prosecutor of the county in which the petition is filed of the date, time, and place of the hearing. Upon receipt of the notice, the prosecutor shall notify the victim of the date, time, and place of the hearing. The victim may submit a written statement to the prosecutor regarding any knowledge the victim has of the eligible offender's conduct while subject to the duties imposed by sections 2950.04, 2950.05, and 2950.06 of the Revised Code. At least seven days before the hearing date, the prosecutor may file an objection to the petition with the court and serve a copy of the objection to the petition on the eligible offender or the eligible offender's attorney. In addition to considering the evidence and information included with the petition as described in division (D) of this section and any risk assessment or professional opinion submitted as described in division (E) of this section, in determining the type of order to enter in response to the petition, the court shall consider any objections submitted by the prosecutor and any written statement submitted by the victim. After the hearing, the court shall enter one of the following orders:

(1) An order to terminate the offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code;

(2) If the offender is classified a tier II sex offender/child-victim offender, an order to reclassify the offender from a tier II sex offender/child-victim offender classification to a tier I sex offender/child-victim offender classification;

(3) If the offender is classified a tier I sex offender/child-victim offender or a tier II sex offender/child-victim offender, an order to continue the offender's classification as a tier I sex offender/child-victim offender or tier II sex offender/child-victim offender, whichever is applicable, required to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code.

(G) After issuing an order pursuant to division (F) of this section, the court shall provide a copy of the order to the eligible offender and the bureau of criminal identification and investigation. The bureau, upon receipt of the copy, shall promptly notify the sheriff with whom the offender most recently registered under section 2950.04 or 2950.05 of the Revised Code of the court's order.

(H)(1) An order issued under division (F)(2) or (3) of this section shall remain in effect for the duration of the eligible offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code under the reclassification or continuation, whichever is applicable, as specified in section 2950.07 of the Revised Code, except that an eligible offender may refile a petition under this section at the time prescribed under division (H)(2) of this section. An order issued under division (F)(2) or (3) of this section shall not increase the duration of the offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code.

(2) After the eligible offender's initial petition filed under this section, if the court entered an order continuing the offender's classification or reclassifying the offender, the offender may file a second petition not earlier than three years after the court entered the first order. After the second petition, the offender may file one subsequent petition not earlier than five years after

the most recent order continuing the offender's classification or reclassifying the offender. A petition filed under this division shall comply with the requirements described in divisions (C), (D), and (E) of this section.

(3) Upon the filing of a second or subsequent petition by an eligible offender pursuant to division (H)(2) of this section, the court shall schedule a hearing to review any previous order entered under this section, consider all of the documents previously submitted, and evaluate any new evidence of rehabilitation presented with the petition. The court shall notify the offender and the prosecutor of the county in which the petition is filed of the date, time, and place of the hearing. Upon receipt of the notice, the prosecutor shall notify the victim of the date, time, and place of the hearing. The victim may submit a written statement to the prosecutor regarding any knowledge the victim has of the eligible offender's conduct while subject to the duties imposed by sections 2950.04, 2950.05, and 2950.06 of the Revised Code. At least seven days before the hearing date, the prosecutor may file an objection to the petition with the court and serve a copy of the objection to the petition on the eligible offender or the eligible offender's attorney. In addition to reviewing any previous order, considering the documents previously submitted, and evaluating any new evidence of rehabilitation presented with the petition as described in this division, in determining whether to deny the petition or the type of order to enter in response to the petition, the court shall consider any objections submitted by the prosecutor and any written statement submitted by the victim. After the hearing on the petition, the court may deny the petition or enter either of the following orders:

(a) If the previous order continued the offender's classification as a tier II sex offender/child-victim offender, an order to reclassify the offender as a tier I sex offender/child-victim offender or terminate the offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code;

(b) If the previous order reclassified the offender as a tier I sex offender/child-victim offender or continued the offender's classification as a tier I sex offender/child-victim offender, an order to terminate the offender's duty to comply with sections 2950.04, 2950.05, and 2950.06 of the Revised Code.

CREDIT(S)

(2024 S 109, eff. 3-21-25; 2022 S 288, eff. 4-4-23; 2020 H 431, eff. 4-12-21)

R.C. § 2950.151, OH ST § 2950.151

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Baldwin's Ohio Revised Code Annotated
Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.16

2950.16 Certification of sex offender and child-victim offender treatment program

Currentness

By July 1, 2008, the department of rehabilitation and correction and the department of youth services shall adopt rules pertaining to the certification of sex offender and child-victim offender treatment programs. The rules shall include a requirement that the departments periodically inspect and certify sex offender and child-victim offender treatment programs. The rules shall also include a requirement that the departments maintain a list of certified sex offender and child-victim offender treatment programs that is open to public inspection.

CREDIT(S)

(2007 S 10, eff. 1-1-08)

R.C. § 2950.16, OH ST § 2950.16

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Title XXIX. Crimes--Procedure (Refs & Annos)
Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.17

2950.17 Illegal possession of a prohibited photograph

Currentness

(A) Regardless of when the sexually oriented offense or child-victim oriented offense was committed, a person who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a sexually oriented offense or a child-victim oriented offense or a person who is or has been adjudicated a delinquent child for committing a sexually oriented offense or a child-victim oriented offense shall not possess a photograph of the victim of the sexually oriented offense or child-victim oriented offense while the person is serving any prison term, jail term, community residential sanction, or other term of confinement imposed on the offender for the offense.

(B) Regardless of when the child-victim oriented offense was committed, a person who is convicted of, pleads guilty to, has been convicted of, or has pleaded guilty to a child-victim oriented offense or a person who is or has been adjudicated a delinquent child for committing a child-victim oriented offense shall not possess a photograph of any minor child while the person is serving any prison term, jail term, community residential sanction, or other term of confinement imposed on the offender for the offense.

(C) Whoever violates this section is guilty of illegal possession of a prohibited photograph, a misdemeanor of the first degree.

CREDIT(S)

(2011 H 86, eff. 9-30-11)

R.C. § 2950.17, OH ST § 2950.17

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Chapter 2950. Sex Offenders (Refs & Annos)

R.C. § 2950.99

2950.99 Penalties

Currentness

(A)(1)(a) Except as otherwise provided in division (A)(1)(b) of this section, whoever violates a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code shall be punished as follows:

(i) If the most serious sexually oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is aggravated murder or murder if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the first degree.

(ii) If the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is a felony of the first, second, third, or fourth degree if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the same degree as the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address, or address verification requirement that was violated under the prohibition, or, if the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address, or address verification requirement that was violated under the prohibition is a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the same degree as that offense committed in the other jurisdiction would constitute if committed in this state.

(iii) If the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is a felony of the fifth degree or a misdemeanor if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the fourth degree.

(b) If the offender previously has been convicted of or pleaded guilty to, or previously has been adjudicated a delinquent child for committing, a violation of a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, whoever violates a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code shall be punished as follows:

(i) If the most serious sexually oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is aggravated murder or murder if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the first degree.

(ii) If the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is a felony of the first, second, or third degree if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the same degree as the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address, or address verification requirement that was violated under the prohibition, or, if the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address, or address verification requirement that was violated under the prohibition is a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the same degree as that offense committed in the other jurisdiction would constitute if committed in this state.

(iii) If the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is a felony of the fourth or fifth degree if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the third degree.

(iv) If the most serious sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated under the prohibition is a misdemeanor if committed by an adult or a comparable category of offense committed in another jurisdiction, the offender is guilty of a felony of the fourth degree.

(2)(a) In addition to any penalty or sanction imposed under division (A)(1) of this section or any other provision of law for a violation of a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, if the offender or delinquent child is subject to a community control sanction, is on parole, is subject to one or more post-release control sanctions, or is subject to any other type of supervised release at the time of the violation, the violation shall constitute a violation of the terms and conditions of the community control sanction, parole, post-release control sanction, or other type of supervised release.

(b) In addition to any penalty or sanction imposed under division (A)(1)(b)(i), (ii), or (iii) of this section or any other provision of law for a violation of a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code, if the offender previously has been convicted of or pleaded guilty to, or previously has been adjudicated a delinquent child for committing, a violation of a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code when the most serious sexually oriented offense or child-victim oriented offense that was the basis of the requirement that was violated under the prohibition is a felony if committed by an adult or a comparable category of offense committed in another jurisdiction, the court imposing a sentence upon the offender shall impose a definite prison term of no less than three years. The definite prison term imposed under this section shall not be reduced to less than three years pursuant to any provision of Chapter 2967. or any other provision of the Revised Code.

(3) As used in division (A)(1) of this section, “comparable category of offense committed in another jurisdiction” means a sexually oriented offense or child-victim oriented offense that was the basis of the registration, notice of intent to reside, change of address notification, or address verification requirement that was violated, that is a violation of an existing or former law of another state or the United States, an existing or former law applicable in a military court or in an Indian tribal court, or an existing or former law of any nation other than the United States, and that, if it had been committed in this state, would constitute or would have constituted aggravated murder or murder for purposes of division (A)(1)(a)(i) of this section, a felony of the first, second, third, or fourth degree for purposes of division (A)(1)(a)(ii) of this section, a felony of the fifth degree or a misdemeanor for purposes of division (A)(1)(a)(iii) of this section, aggravated murder or murder for purposes of division (A)(1)(b)(i) of this section, a felony of the first, second, or third degree for purposes of division (A)(1)(b)(ii) of this section,

a felony of the fourth or fifth degree for purposes of division (A)(1)(b)(iii) of this section, or a misdemeanor for purposes of division (A)(1)(b)(iv) of this section.

(B) If a person violates a prohibition in section 2950.04, 2950.041, 2950.05, or 2950.06 of the Revised Code that applies to the person as a result of the person being adjudicated a delinquent child and being classified a juvenile offender registrant or an out-of-state juvenile offender registrant, both of the following apply:

(1) If the violation occurs while the person is under eighteen years of age, the person is subject to proceedings under Chapter 2152. of the Revised Code based on the violation.

(2) If the violation occurs while the person is eighteen years of age or older, the person is subject to criminal prosecution based on the violation.

(C) Whoever violates division (C) of section 2950.13 of the Revised Code is guilty of a misdemeanor of the first degree.

(D) Whoever violates division (A)(2) of section 2950.035 of the Revised Code shall be punished as follows:

(1) Except as otherwise provided in division (D)(2) or (3) of this section, the offender is guilty of a misdemeanor of the first degree.

(2) If the offender once previously has been convicted of or pleaded guilty to a violation of division (A)(2) of section 2950.035 of the Revised Code, the offender is guilty of a felony of the third degree.

(3) If the offender two or more times previously has been convicted of or pleaded guilty to a violation of division (A)(2) of section 2950.035 of the Revised Code, the offender is guilty of a felony of the first degree.

CREDIT(S)

(2022 S 288, eff. 4-4-23; 2022 S 16, eff. 4-4-23; 2011 H 86, eff. 9-30-11; 2007 S 97, eff. 1-1-08; 2004 H 473, eff. 4-29-05; 2003 S 5, § 3, eff. 1-1-04; 2003 S 5, § 1, eff. 7-31-03; 2002 H 490, eff. 1-1-04; 2001 S 3, eff. 1-1-02; 1996 H 180, eff. 7-1-97; 1995 S 2, eff. 7-1-96; 1972 H 511, eff. 1-1-74; 130 v S 160)

R.C. § 2950.99, OH ST § 2950.99

: Current through Files 11 and 15 through 25 of the 136th General Assembly (2025-2026), the immediately effective sections of 2025 H 96 (budget bill), and 2025 Statewide Issue 2 (May election)(2024 H.J.R. No. 8).

Oklahoma Statutes Annotated
Title 57. Prisons and Reformatories
Chapter 8B. Sex Offenders Registration Act

57 Okl.St.Ann. Ch. 8B, Refs & Annos
Currentness

57 Okl. St. Ann. Ch. 8B, Refs & Annos, OK ST T. 57, Ch. 8B, Refs & Annos
Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 581

§ 581. Short title--Sex Offenders Registration Act--Legislative findings

Currentness

A. Sections 581 et seq. of this title shall be known and may be cited as the “Sex Offenders Registration Act”.

B. The Legislature finds that sex offenders who commit other predatory acts against children and persons who prey on others as a result of mental illness pose a high risk of re-offending after release from custody. The Legislature further finds that the privacy interest of persons adjudicated guilty of these crimes is less important than the state's interest in public safety. The Legislature additionally finds that a system of registration will permit law enforcement officials to identify and alert the public when necessary for protecting the public safety.

Credits

Laws 1989, c. 212, § 1, eff. Nov. 1, 1989; Laws 1995, c. 142, § 1, eff. July 1, 1995; Laws 1997, c. 260, § 2, eff. Nov. 1, 1997.

57 Okl. St. Ann. § 581, OK ST T. 57 § 581

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 582

§ 582. Persons and crimes to which act applies

Currentness

<Text of section as amended by Laws 2024, c. 59, § 41. See also, text of section as amended by Laws 2024, c. 151, § 14.>

A. The provisions of the Sex Offenders Registration Act shall apply to any person residing, working or attending school within the State of Oklahoma who, after November 1, 1989, has been convicted, whether upon a verdict or plea of guilty or upon a plea of nolo contendere, or received a suspended sentence or any probationary term, or is currently serving a sentence or any form of probation or parole for a crime or an attempt to commit a crime provided for in Section 843.5 of Title 21 of the Oklahoma Statutes if the offense involved sexual abuse or sexual exploitation as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 681, if the offense involved sexual assault, 741, if the offense involved sexual abuse or sexual exploitation, Section 748, if the offense involved human trafficking for commercial sex, Section 843.1, if the offense involved sexual abuse or sexual exploitation, Section 852.1, if the offense involved sexual abuse of a child, 856, if the offense involved child prostitution or human trafficking for commercial sex, 865 et seq., 885, 886, 888, 891, if the offense involved sexual abuse or sexual exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense involved child prostitution, 1040.8, if the offense involved child sexual abuse material, 1040.12a, 1040.13, 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the Oklahoma Statutes.

B. The provisions of the Sex Offenders Registration Act shall apply to any person who after November 1, 1989, resides, works or attends school within the State of Oklahoma and who has been convicted or received a suspended sentence at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, attempted crime or a conspiracy to commit a crime which, if committed or attempted in this state, would be a crime, an attempt to commit a crime or a conspiracy to commit a crime provided for in any of the laws listed in subsection A of this section.

C. The provisions of the Sex Offenders Registration Act shall apply to any person who resides, works or attends school within the State of Oklahoma and who has received a deferred judgment at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, attempted crime or a conspiracy to commit a crime which, if committed or attempted or conspired to be committed in this state, would be a crime, an attempt to commit a crime or a conspiracy to commit a crime provided for in Section 843.5 of Title 21 of the Oklahoma Statutes if the offense involved sexual abuse or sexual exploitation as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 681, if the offense involved sexual assault, 741, if the offense involved sexual abuse or sexual exploitation, Section 748, if the offense involved human trafficking for commercial sex, Section 843.1, if the offense involved sexual abuse or sexual exploitation, Section 852.1, if the offense involved sexual abuse of a child, 856, if the offense involved child prostitution or human trafficking for commercial sex, 865 et seq., 885, 886, 888, 891, if the offense involved sexual abuse or sexual exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense involved child prostitution, 1040.8, if the offense involved child sexual abuse material, 1040.12a, 1040.13, 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the Oklahoma Statutes. The provisions of the

Sex Offenders Registration Act shall not apply to any such person while the person is incarcerated in a maximum or medium correctional institution of the Department of Corrections.

D. On November 1, 2002, any person registered as a sex offender pursuant to Section 741 of Title 21 of the Oklahoma Statutes shall be summarily removed from the Sex Offender Registry by the Department of Corrections and all law enforcement agencies of any political subdivision of this state, unless the offense involved sexual abuse or sexual exploitation.

E. The provisions of the Sex Offenders Registration Act shall not apply to any such person who has received a criminal history records expungement for a conviction in another state for a crime or attempted crime which, if committed or attempted in this state, would be a crime or an attempt to commit a crime provided for in any laws listed in subsection A of this section.

F. The provisions of the Sex Offenders Registration Act shall apply to any person residing, working or attending school within this state who, after the effective date of this act,¹ has been convicted, whether upon a verdict or plea of guilty or upon a plea of nolo contendere, or received a suspended sentence or any probationary term, or is currently serving a sentence or any form of probation or parole for a crime or an attempt to commit a crime as provided for in subsection G of Section 1040.13b of Title 21 of the Oklahoma Statutes.

G. The provisions of the Sex Offenders Registration Act shall apply to any person who resides, works or attends school within this state and who has received a deferred judgment at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, if committed in this state, would be a crime, as provided for in subsection F of Section 1040.13b of Title 21 of the Oklahoma Statutes. The provisions of the Sex Offenders Registration Act shall not apply to any such person while the person is incarcerated in a maximum or medium correctional institution of the Department of Corrections.

Credits

Laws 1989, c. 212, § 2, eff. Nov. 1, 1989; Laws 1993, c. 166, § 4, eff. Sept. 1, 1993; Laws 1995, c. 142, § 2, eff. July 1, 1995; Laws 1997, c. 260, § 3, eff. Nov. 1, 1997; Laws 1998, c. 347, § 1, eff. Nov. 1, 1998; Laws 1999, c. 336, § 1, eff. Nov. 1, 1999; Laws 2002, c. 20, § 2, emerg. eff. Feb. 28, 2002; Laws 2002, c. 460, § 34, eff. Nov. 1, 2002; Laws 2005, c. 123, § 1, eff. Nov. 1, 2005; Laws 2007, c. 261, § 22, eff. Nov. 1, 2007; Laws 2009, c. 404, § 2, eff. Nov. 1, 2009; Laws 2010, c. 2, § 25, emerg. eff. March 3, 2010; Laws 2014, c. 230, § 1, eff. Nov. 1, 2014; Laws 2016, c. 184, § 3, eff. Nov. 1, 2016; Laws 2019, c. 220, § 2, eff. Nov. 1, 2019; Laws 2020, c. 35, § 3, eff. Nov. 1, 2020; Laws 2024, c. 59, § 41, eff. Nov. 1, 2024.

Footnotes

¹ O.S.L. 2020, c. 35, eff. Nov. 1, 2020.

57 Okl. St. Ann. § 582, OK ST T. 57 § 582

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 582

§ 582. Persons and crimes to which act applies

Currentness

<Text as amended by Laws 2024, c. 151, § 14. See also, text as amended by Laws 2024, c. 59, § 41.>

A. The provisions of the Sex Offenders Registration Act shall apply to any person residing, working or attending school within the State of Oklahoma who, after November 1, 1989, has been convicted, whether upon a verdict or plea of guilty or upon a plea of nolo contendere, or received a suspended sentence or any probationary term, or is currently serving a sentence or any form of probation or parole for a crime or an attempt to commit a crime provided for in Section 843.5 of Title 21 of the Oklahoma Statutes if the offense involved sexual abuse or sexual exploitation as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 681, if the offense involved sexual assault, 741, if the offense involved sexual abuse or sexual exploitation, Section 748, if the offense involved human trafficking for commercial sex, Section 843.1, if the offense involved sexual abuse or sexual exploitation, Section 852.1, if the offense involved sexual abuse of a child, 856, if the offense involved child sex trafficking or human trafficking for commercial sex, 865 et seq., 885, 886, 888, 891, if the offense involved sexual abuse or sexual exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense involved child sex trafficking, 1040.8, if the offense involved child pornography, 1040.12a, 1040.13, 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the Oklahoma Statutes.

B. The provisions of the Sex Offenders Registration Act shall apply to any person who after November 1, 1989, resides, works or attends school within the State of Oklahoma and who has been convicted or received a suspended sentence at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, attempted crime or a conspiracy to commit a crime which, if committed or attempted in this state, would be a crime, an attempt to commit a crime or a conspiracy to commit a crime provided for in any of the laws listed in subsection A of this section.

C. The provisions of the Sex Offenders Registration Act shall apply to any person who resides, works or attends school within the State of Oklahoma and who has received a deferred judgment at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, attempted crime or a conspiracy to commit a crime which, if committed or attempted or conspired to be committed in this state, would be a crime, an attempt to commit a crime or a conspiracy to commit a crime provided for in Section 843.5 of Title 21 of the Oklahoma Statutes if the offense involved sexual abuse or sexual exploitation as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 681, if the offense involved sexual assault, 741, if the offense involved sexual abuse or sexual exploitation, Section 748, if the offense involved human trafficking for commercial sex, Section 843.1, if the offense involved sexual abuse or sexual exploitation, Section 852.1, if the offense involved sexual abuse of a child, 856, if the offense involved child sex trafficking or human trafficking for commercial sex, 865 et seq., 885, 886, 888, 891, if the offense involved sexual abuse or sexual exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense involved child sex trafficking, 1040.8, if the offense involved child pornography, 1040.12a, 1040.13, 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the Oklahoma

Statutes. The provisions of the Sex Offenders Registration Act shall not apply to any such person while the person is incarcerated in a maximum or medium correctional institution of the Department of Corrections.

D. On November 1, 2002, any person registered as a sex offender pursuant to Section 741 of Title 21 of the Oklahoma Statutes shall be summarily removed from the Sex Offender Registry by the Department of Corrections and all law enforcement agencies of any political subdivision of this state, unless the offense involved sexual abuse or sexual exploitation.

E. The provisions of the Sex Offenders Registration Act shall not apply to any such person who has received a criminal history records expungement for a conviction in another state for a crime or attempted crime which, if committed or attempted in this state, would be a crime or an attempt to commit a crime provided for in any laws listed in subsection A of this section.

F. The provisions of the Sex Offenders Registration Act shall apply to any person residing, working or attending school within this state who, after the effective date of this act,¹ has been convicted, whether upon a verdict or plea of guilty or upon a plea of nolo contendere, or received a suspended sentence or any probationary term, or is currently serving a sentence or any form of probation or parole for a crime or an attempt to commit a crime as provided for in subsection G of Section 1040.13b of Title 21 of the Oklahoma Statutes.

G. The provisions of the Sex Offenders Registration Act shall apply to any person who resides, works or attends school within this state and who has received a deferred judgment at any time in any court of another state, the District of Columbia, Puerto Rico, Guam, American Samoa, the Northern Mariana Islands and the United States Virgin Islands, a federal court, an Indian tribal court, a military court, or a court of a foreign country for a crime, if committed in this state, would be a crime, as provided for in subsection F of Section 1040.13b of Title 21 of the Oklahoma Statutes. The provisions of the Sex Offenders Registration Act shall not apply to any such person while the person is incarcerated in a maximum or medium correctional institution of the Department of Corrections.

Credits

Laws 1989, c. 212, § 2, eff. Nov. 1, 1989; Laws 1993, c. 166, § 4, eff. Sept. 1, 1993; Laws 1995, c. 142, § 2, eff. July 1, 1995; Laws 1997, c. 260, § 3, eff. Nov. 1, 1997; Laws 1998, c. 347, § 1, eff. Nov. 1, 1998; Laws 1999, c. 336, § 1, eff. Nov. 1, 1999; Laws 2002, c. 20, § 2, emerg. eff. Feb. 28, 2002; Laws 2002, c. 460, § 34, eff. Nov. 1, 2002; Laws 2005, c. 123, § 1, eff. Nov. 1, 2005; Laws 2007, c. 261, § 22, eff. Nov. 1, 2007; Laws 2009, c. 404, § 2, eff. Nov. 1, 2009; Laws 2010, c. 2, § 25, emerg. eff. March 3, 2010; Laws 2014, c. 230, § 1, eff. Nov. 1, 2014; Laws 2016, c. 184, § 3, eff. Nov. 1, 2016; Laws 2019, c. 220, § 2, eff. Nov. 1, 2019; Laws 2020, c. 35, § 3, eff. Nov. 1, 2020; Laws 2024, c. 151, § 14, eff. Nov. 1, 2024.

Footnotes

¹ O.S.L. 2020, c. 35, eff. Nov. 1, 2020.

57 Okl. St. Ann. § 582, OK ST T. 57 § 582

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St.Ann. § 582.1

§ 582.1. Determination of offender's numeric risk level prior to release

Currentness

Before a person, who will be subject to the provisions of the Sex Offenders Registration Act, is due to be released from a correctional institution, the Department of Corrections shall determine the level of risk of the person to the community using the sex offender screening tool developed or selected pursuant to Section 26 of this act,¹ and assign to the person a numeric risk level of one, two, or three.

Credits

Laws 2007, c. 261, § 23, eff. Nov. 1, 2007.

Footnotes

¹ Title 57, § 582.5.

57 Okl. St. Ann. § 582.1, OK ST T. 57 § 582.1

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St.Ann. § 582.2

§ 582.2. Forwarding of registration information and level assignment--Suspended sentences or probation--Duties of court

Currentness

A. No less than seven (7) days prior to the date on which a person, who will be subject to the provisions of the Sex Offenders Registration Act, is to be released from a correctional institution, the person in charge of the correctional institution shall forward the registration information, as provided in subsection A of Section 585 of this title, and level assignment to the Department of Corrections and to:

1. The local law enforcement authority in the municipality or county in which the person expects to reside, if the person expects to reside within this state; or
2. The local law enforcement authority that is identified by the correctional institution as the agency designated by another state to receive registration information, if the person expects to reside in that other state and that other state has a registration requirement for sex offenders.

B. If a person, who will be subject to the provisions of the Sex Offenders Registration Act, received a suspended sentence or any probationary term, including a deferred sentence imposed in violation of subsection G of Section 991c of Title 22 of the Oklahoma Statutes, the court shall, on the day of pronouncing the judgment and sentence:

1. Utilize the sex offender level assignments established by the sex offender level assignment committee provided for in Section 582.5 of this title;
2. Assign to the person a level of one, two, or three;
3. Notify the person of the obligation to register as a sex offender as provided for in Section 585 of this title; and
4. Order the offender to report to the local law enforcement authority in the municipality or county in which the offender resides and to report to the Oklahoma Department of Corrections probation and parole office in the district in which the offender resides.

C. Within three (3) business days after the court orders the judgment and sentence, the court clerk shall transmit to the Sex and Violent Offenders Registration Unit of the Department of Corrections by facsimile, electronic mail or actual delivery of a certified copy of:

1. The judgment and sentence; or

2. Plea paperwork, Summary of Facts and Sentence on Plea or Sentencing After Jury Trial Summary of Facts.

Credits

Laws 2007, c. 261, § 24, eff. Nov. 1, 2007; Laws 2009, c. 404, § 3, eff. Nov. 1, 2009; Laws 2017, c. 224, § 1, eff. Nov. 1, 2017.

57 Okl. St. Ann. § 582.2, OK ST T. 57 § 582.2

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St.Ann. § 582.4

§ 582.4. Verification of numeric risk level by Department

Currentness

Upon receipt of notice pursuant to the provisions of Section 24 of this act,¹ that a person subject to registration is to be released from a correctional institution, has been placed on any form of probation or parole, or intends to move to a new residence in this state, the Department of Corrections shall verify the numeric risk level assigned to the person.

Credits

Laws 2007, c. 261, § 25, eff. Nov. 1, 2007.

Footnotes

¹ Title 57, § 582.2.

57 Okl. St. Ann. § 582.4, OK ST T. 57 § 582.4

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 582.5

§ 582.5. Sex offender level assignment committee--Requirements
to override or increase level assignment--Release of records

Currentness

A. The Department of Corrections shall establish a sex offender level assignment committee composed of at least five members, each of whom is a state employee whose service on the committee is in addition to the regular duties of the employee. The committee, to the extent feasible, should include the following:

1. One member having experience in law enforcement;
2. One member having experience as a sex offender treatment provider;
3. One member having experience working with victims of sex offenses; and
4. One member who is a social worker with a graduate degree in social work.

B. The sex offender level assignment committee functions in an oversight capacity. The committee shall determine, based on federal law, the level a person subject to registration pursuant to the provisions of the Sex Offenders Registration Act shall be placed on.

C. The offense for which the person is convicted shall serve as the basis for the level assigned to the person. In selecting the level assignment, the sex offender level assignment committee shall use the following general guidelines:

1. Level one (low): a designation that the person poses a low danger to the community and will not likely engage in criminal sexual conduct;
2. Level two (moderate): a designation that the person poses a moderate danger to the community and may continue to engage in criminal sexual conduct; and
3. Level three (high): a designation that the person poses a serious danger to the community and will continue to engage in criminal sexual conduct.

D. The sex offender level assignment committee, the Department of Corrections, or a court may override and increase the level assignment only if the entity:

1. Believes that the level assignment assessed is not an accurate prediction of the risk the offender poses to the community; and
2. Documents the reason for the override in the case file of the offender.

Provided, in no event shall the sex offender level assignment committee, the Department of Corrections, or a court override and reduce a level assigned to an offender as provided in subsection C of this section.

E. All records and files relating to a person for whom a court, or the Department of Corrections is required under this act¹ to determine a level assignment, shall be released to the court or the Department of Corrections as appropriate, for the purpose of determining the level assignment of the person.

F. Upon receiving registration information from a local law enforcement agency of a person who has entered this state and who has registered as a sex offender, as required in Section 583 of this title, the sex offender level assignment committee shall review the registration information and make a determination of the level assignment of the person. The Department of Corrections Sex Offender Registry Unit shall provide written notification to the person and the local law enforcement agency of the level assignment that has been assigned to the person.

G. The provisions of the Oklahoma Open Meeting Act² do not apply to a meeting of the sex offender level assignment committee.

Credits

Laws 2007, c. 261, § 26, eff. Nov. 1, 2007; Laws 2008, c. 94, § 1, emerg. eff. April 29, 2008; Laws 2009, c. 404, § 4, eff. Nov. 1, 2009.

Footnotes

1 Title 57, § 581 et seq.

2 Title 25, § 301 et seq.

57 Okl. St. Ann. § 582.5, OK ST T. 57 § 582.5

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 583

§ 583. Registration--Time limits--Duration--Petition for release from
registration requirement--Information to be provided to offender

Currentness

A. Any person who becomes subject to the provisions of the Sex Offenders Registration Act on or after November 1, 1989, shall register, in person, as follows:

1. With the Department of Corrections within three (3) business days of being convicted or receiving a suspended sentence or any probationary term, including a deferred sentence imposed in violation of subsection G of Section 991c of Title 22 of the Oklahoma Statutes, if the person is not incarcerated, or not less than three (3) business days prior to the release of the person from a correctional institution, except as provided in subsection B of this section;

2. With the local law enforcement authority having jurisdiction in the area where the person resides or intends to reside for seven (7) consecutive days or fourteen (14) days in a sixty-day period, or longer, calculated beginning with the first day. The registration is required within three (3) days after entering the jurisdiction of the law enforcement authority; and

3. With the Department of Corrections and the local law enforcement authority no less than three (3) business days prior to abandoning or moving from the address of the previous registration, or within three (3) business days of changing or terminating employment, or changing enrollment status as a student.

For purposes of this section, "local law enforcement authority" means:

- a. the municipal police department, if the person resides or intends to reside or stay within the jurisdiction of any municipality of this state, or
- b. the county sheriff, if the person resides or intends to reside or stay at any place outside the jurisdiction of any municipality within this state, and
- c. the police or security department of any institution of higher learning within this state if the person:
 - (1) enrolls as a full-time or part-time student,
 - (2) is a full-time or part-time employee at an institution of higher learning, or

(3) resides or intends to reside or stay on any property owned or controlled by the institution of higher learning.

B. Any person who has been convicted of an offense or received a deferred judgment for an offense in another jurisdiction, which offense if committed or attempted in this state, would have been punishable as one or more of the offenses listed in Section 582 of this title and who enters this state on or after November 1, 1989, shall register, in person, as follows:

1. With the Department of Corrections when the person enters and intends to be in the state for any purpose for five (5) consecutive days or longer, calculated beginning with the first day, has any type of full-time or part-time employment, with or without compensation for more than five (5) cumulative days in any sixty-day period, or is enrolled as a full-time or part-time student within this state. Such registration is required within two (2) days after entering the state;

2. With the local law enforcement authority having jurisdiction in the area where the person intends to reside or to stay for five (5) consecutive days or longer, calculated beginning with the first day, has any type of full-time or part-time employment, with or without compensation for more than five (5) cumulative days in any sixty-day period, or is enrolled as a full-time or part-time student within this state. The registration is required with local law enforcement within two (2) days after entering the jurisdiction of the law enforcement authority; and

3. With the Department of Corrections and the local law enforcement authority no less than three (3) business days prior to abandoning or moving from the address of the previous registration, or within three (3) business days of changing or terminating employment, or changing enrollment status as a student.

Upon registering a person who has been convicted of an offense or received a deferred judgment for an offense in another jurisdiction, which offense, if committed or attempted in this state, would have been punishable as one or more of the offenses listed in Section 582 of this title, the local law enforcement authority shall forward the registration information to the sex offender level assignment committee of the Department of Corrections.

C. When a person has been convicted or received probation within the State of Oklahoma, the person shall be required to register with the Department of Corrections as follows:

1. For a total period of fifteen (15) years, if the level assignment of the person is one;

2. For a total period of twenty-five (25) years, if the level assignment of the person is two; and

3. For life, if the level assignment of the person is three or the person is classified as a habitual or aggravated sex offender.

The registration period shall begin from the date of the completion of the sentence, and shall not conclude until the offender has been in compliance for the total amount of time required by this act. For level one and level two offenders, if the offender ceases to properly register during the fifteen-year or twenty-five-year periods, the Department of Corrections shall retain the name of the offender on the registry until the offender has fully complied with the requirements of this act for the total period of time required. The Department of Corrections shall maintain records necessary to determine whether the offender has registered for the total period of time required. The information received pursuant to the registration with the Department of Corrections required by this section shall be maintained by the Department of Corrections for at least ten (10) years from the date that the offender completed the obligations under this act.

D. When a person has been convicted or received probation within the State of Oklahoma, the person shall be required to register with the local law enforcement authority as follows:

1. For a total period of fifteen (15) years, if the level of the person is one;
2. For a total period of twenty-five (25) years, if the level of the person is two; and
3. For life, if the level of the person is three or the person has been classified as a habitual or aggravated sex offender.

The registration period shall begin from the date of completion of the sentence and shall not conclude until the offender has been in compliance for the total amount of time required by this act. The information received pursuant to the registration with the local law enforcement authority required by this section shall be maintained by such authority for at least ten (10) years from the date that the offender completed the obligations under this act.

E. Any person assigned a level of one who has been registered for a period of ten (10) years and who has not been arrested or convicted for any felony or misdemeanor offense since being released from confinement, may petition the district court in the jurisdiction where the person resides for the purpose of removing the level designation and allowing the person to no longer be subject to the registration requirements of the Sex Offenders Registration Act.

F. When registering an offender as provided in this section the Department of Corrections or the local law enforcement agency having jurisdiction shall:

1. Inform the offender of the duty to register and obtain the information required for registration as described in this section;
2. Inform the offender that if the offender changes address, the offender shall appear in person and give notice of the move and the new address to the Department of Corrections and to the local law enforcement authority in the location in which the offender previously resided no later than three (3) days before the offender establishes residence or is temporarily domiciled at the new address;
3. Inform the offender that if the offender changes address to another state, the offender shall appear in person and give notice of the move and shall register the new address with the Department of Corrections and with a designated law enforcement agency in the new state not later than ten (10) days before the offender establishes residency or is temporarily domiciled in the new state, if the new state has a registration requirement;
4. Inform the offender that if the offender participates in any full-time employment, with or without compensation, and changes or terminates such employment, the offender shall appear in person and give notice of the change or termination of employment to the Department of Corrections and to the local law enforcement authority in the location where the offender was employed within three (3) days of such change or termination of employment;

5. Inform the offender that if the offender participates in any full-time or part-time employment, in another state, with or without compensation for more than fourteen (14) cumulative days in any sixty-day period or an aggregate period exceeding thirty (30) days in a calendar year, then the offender has a duty to register as a sex offender in that state;

6. Inform the offender that if the offender enrolls in any type of school in another state as a full-time or part-time student then the offender has a duty to register as a sex offender in that state;

7. Inform the offender that if the offender enrolls in any school within this state as a full-time or part-time student, then the offender has a duty to register as a sex offender with the Department of Corrections and the local law enforcement authority;

8. Inform the offender that if the offender participates in any full-time or part-time employment at any school, with or without compensation, or participates in any vocational course or occupation at any school in this state, then the offender has a duty to appear in person and notify the Department of Corrections and the local law enforcement authority of such employment or participation at least three (3) days before commencing or upon terminating such employment or participation;

9. Inform the offender that if the offender graduates, transfers, drops, terminates or otherwise changes enrollment or employment at any school in this state, then the offender shall appear in person and notify the Department of Corrections and the local law enforcement authority of such change in enrollment or employment within three (3) days of the change; and

10. Require the offender to read and sign a form stating that the duty of the person to register under the Sex Offenders Registration Act has been explained.

G. For the purpose of this section, the “date of the completion of the sentence” means the day an offender completes all incarceration, probation and parole pertaining to the sentence.

H. Any person who resides in another state and who has been convicted of an offense or received a deferred judgment for an offense in this state, or in another jurisdiction, which offense if committed or attempted in this state would have been punishable as one or more of the offenses listed in Section 582 of this title, and who is the spouse of a person living in this state shall be registered as follows:

1. With the Department of Corrections when the person enters and intends to be in the state for any purpose for five (5) consecutive days or longer, calculated beginning with the first day or an aggregate period of five (5) days or longer in a calendar year. Such registration is required within two (2) days after entering the state; and

2. With the local law enforcement authority having jurisdiction in the area where the person intends to reside or to stay within this state for two (2) consecutive days or longer, calculated beginning with the first day. The registration is required with local law enforcement within two (2) days after entering the jurisdiction of the law enforcement authority.

I. The duty to register as a sex offender in this state shall not be prevented if, at the time of registration, it is determined that the person owns or leases a residence that is located within a restricted area provided for in Section 590 of this title.

Credits

Laws 1989, c. 212, § 3, eff. Nov. 1, 1989; Laws 1995, c. 142, § 3, eff. July 1, 1995; Laws 1997, c. 260, § 4, eff. Nov. 1, 1997; Laws 1999, c. 336, § 2, eff. Nov. 1, 1999; Laws 2000, c. 349, § 3, eff. Nov. 1, 2000; Laws 2001, c. 51, § 1, eff. July 1, 2001; Laws 2002, c. 153, § 1, emerg. eff. April 29, 2002; Laws 2004, c. 162, § 1, emerg. eff. April 26, 2004; Laws 2005, c. 1, § 83, emerg. eff. March 15, 2005; Laws 2005, c. 123, § 2, eff. Nov. 1, 2005; Laws 2006, c. 284, § 8, emerg. eff. June 7, 2006; Laws 2007, c. 1, § 41, emerg. eff. Feb. 22, 2007; Laws 2007, c. 261, § 27, eff. Nov. 1, 2007; Laws 2008, c. 94, § 2, emerg. eff. April 29, 2008; Laws 2009, c. 404, § 5, eff. Nov. 1, 2009; Laws 2013, c. 190, § 1, eff. Nov. 1, 2013; Laws 2014, c. 17, § 1, eff. Nov. 1, 2014.

57 Okl. St. Ann. § 583, OK ST T. 57 § 583

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 584

§ 584. Registration--Notice of change in address, employment, or student enrollment status--
Notice of and access to registries--Habitual or aggravated sex offender designation--Immunity

Currentness

A. Any registration with the Department of Corrections required by the Sex Offenders Registration Act shall be in a form approved by the Department and shall include the following information about the person registering:

1. The name of the person and all aliases used or under which the person has been known;
2. A complete description of the person, including a photograph and fingerprints, and when requested by the Department of Corrections, such registrant shall submit to a blood or saliva test for purposes of a deoxyribonucleic acid (DNA) profile. Submission to testing for individuals registering shall be within thirty (30) days of registration. Registrants who already have valid samples on file in the Oklahoma State Bureau of Investigation (OSBI) DNA Offender Database shall not be required to submit duplicate samples for testing;
3. The offenses listed in Section 582 of this title for which the person has been convicted or the person received a suspended sentence or any form of probation, where the offense was committed, where the person was convicted or received the suspended sentence or any form of probation, and the name under which the person was convicted or received the suspended sentence or probation;
4. The name and location of each hospital or penal institution to which the person was committed for each offense listed in Section 582 of this title;
5. Where the person previously resided, where the person currently resides including a mappable address and a zip code, how long the person has resided there, how long the person expects to reside there, and how long the person expects to remain in the county and in this state. The address of the residence shall be a physical address, not a post office box. The Department of Corrections shall conduct address verification of each registered sex offender as follows:
 - a. on an annual basis, if the numeric risk level of the person is one,
 - b. on a semiannual basis, if the numeric risk level of the person is two, or
 - c. every ninety (90) days, if the offender has been determined to be a habitual or aggravated sex offender by the Department of Corrections or has been assigned a level assignment of three.

The Department of Corrections shall mail a nonforwardable verification form to the last-reported address of the person. The person shall return the verification form in person to the local law enforcement authority of that jurisdiction within ten (10) days after receipt of the form and may be photographed by the local law enforcement authority at that time; provided that the person shall be photographed by the local law enforcement authority at that time if the photograph in the Department of Corrections sex offender registry is more than one year old, or if it cannot be determined when the photograph in the registry was taken. The local law enforcement authority shall require the person to produce proof of the identity of the person and a current mappable address with a zip code. Upon confirming the information contained within the verification form, the local law enforcement authority shall forward a copy of the form to the Department of Corrections, in a manner approved by the Department of Corrections, within three (3) days after receipt of the form. The verification form shall be signed by the person and state the current address of the person. In the absence of receipt of the mailed verification form by the offender, the offender must continue to comply with the reporting requirements as provided in this paragraph. The offender should report as required to the local law enforcement agency for current address verification. The Department of Corrections will provide an alternative address verification form to local law enforcement for conformity. Failure to return the verification form or report as required shall be a violation of the Sex Offenders Registration Act. The Department of Corrections shall notify the office of the district attorney and local law enforcement authority of the appropriate county, within forty-five (45) days if unable to verify the address of a sex offender. A local law enforcement authority may notify the office of the district attorney whenever it comes to the attention of the local law enforcement authority that a sex offender is not in compliance with any provisions of Section 581 et seq. of this title. A local law enforcement authority designated as the primary registration authority of the person may, at any time, mail a nonforwardable verification form to the last-reported address of the person. The person shall return the verification form in person to the local law enforcement authority that mailed the form within ten (10) days after receipt of the form. The local law enforcement authority shall require the person to produce proof of the identity of the person and a current mappable address with a zip code;

6. The name and address of any school where the person expects to become or is enrolled or employed for any length of time;

7. A description of all occupants residing with the person registering, including, but not limited to, name, date of birth, gender, relation to the person registering, and how long the occupant has resided there;

8. The level assignment of the person; and

9. Any electronic mail address information, instant message, chat or other Internet communication name or identity information that the person uses or intends to use while accessing the Internet or used for other purposes of social networking or other similar Internet communication.

B. Conviction data and fingerprints shall be promptly transmitted at the time of registration to the Oklahoma State Bureau of Investigation (OSBI) and the Federal Bureau of Investigation (FBI) if the state has not previously sent the information at the time of conviction.

C. Any person subject to the provisions of the Sex Offenders Registration Act or the Mary Rippey Violent Crime Offenders Registration Act,¹ who has an out-of-state conviction that requires registration, shall provide the local law enforcement authority where the offender intends to reside with a certified copy of the offender's judgment and sentencing report within sixty (60) days of the offender's initial registration with this state. If an offender moves to a different location in this state outside of the jurisdiction of the law enforcement authority that has a certified copy of the judgment and sentencing report, the offender

shall provide the local law enforcement authority of the new location where the offender intends to reside with a certified copy of the judgment and sentencing report within sixty (60) days of establishing residency in the new location.

On or after November 1, 2011, the Department of Corrections shall notify by regular first-class mail to the registered addresses in the sex offender registry all offenders required to register in this state that have an out-of-state conviction to obtain a certified copy of the offender's judgment and sentencing report and file it with the local law enforcement authority in which the offender resides within one hundred twenty (120) days of receipt of the mailed notice.

D. The registration with the local law enforcement authority required by the Sex Offenders Registration Act shall be in a form approved by the local law enforcement authority and shall include the following information about the person registering:

1. The full name of the person, alias, date of birth, sex, race, height, weight, eye color, social security number, driver license number, and a mappable home address with a zip code. The home address shall be a physical address, not a post office box;
2. A description of the offense for which the offender was convicted, the date of the conviction, and the sentence imposed, if applicable;
3. A photocopy of the driver license of the person;
4. The level assignment of the person.

For purposes of this section, "local law enforcement authority" means:

- a. the municipal police department, if the person resides or intends to reside or stay within the jurisdiction of any municipality of this state, or
- b. the county sheriff, if the person resides or intends to reside or stay at any place outside the jurisdiction of any municipality within this state, and
- c. the police or security department of any institution of higher learning within this state if the person:
 - (1) enrolls as a full-time or part-time student,
 - (2) is a full-time or part-time employee at an institution of higher learning, or
 - (3) resides or intends to reside or stay on any property owned or controlled by the institution of higher learning; and
5. Any electronic mail address information, instant message, chat or other Internet communication name or identity information that the person uses or intends to use while accessing the Internet or used for other purposes of social networking or other similar Internet communication.

E. Any person subject to the provisions of the Sex Offenders Registration Act who changes address, employment or student enrollment status shall appear in person and give notification to the local law enforcement authority of the change of address and the new mappable address with zip code, the change of employment or the change of student enrollment status no later than three (3) business days prior to the abandonment of or move from the current address or, in the case of change of employment or student enrollment, within three (3) business days of such change. The address given to the local law enforcement authority shall be a physical address, not a post office box. If the new address, employment or student enrollment is under the jurisdiction of a different local law enforcement authority:

1. The local law enforcement authority shall notify the Department of Corrections and the new local law enforcement authority by teletype or electronic transmission of the change of address, employment or student enrollment status;

2. The offender shall notify the new local law enforcement authority of any previous registration; and

3. The new local law enforcement authority shall notify the most recent registering agency by teletype or electronic transmission of the change in address, employment or student enrollment status of the offender. If the new address is in another state the Department of Corrections shall promptly notify the agency responsible for registration in that state of the new address of the offender.

F. Any person registered as a sex offender, pursuant to the Sex Offenders Registration Act, who has provided a post office box as an address shall be contacted by local law enforcement and required to provide a physical address.

G. Any person subject to the provisions of the Sex Offenders Registration Act who is unable to provide a mappable address with a zip code to the Department of Corrections or local law enforcement authority as required in subsections A, C and D of this section and registers as a transient shall report in person to the nearest local law enforcement authority every seven (7) days and provide to the local law enforcement authority the approximate location of where the person is staying and where the person plans to stay.

H. Any person subject to the provisions of the Sex Offenders Registration Act who resides with a minor child must report to the statewide centralized hotline of the Department of Human Services the name and date of birth of any and all minor children residing in the same household and the offenses for which the person is required to register pursuant to the Sex Offenders Registration Act within three (3) days of intent to reside with a minor child.

I. The Department of Corrections shall maintain a file of all sex offender registrations. A copy of the information contained in the registration shall promptly be available to state, county and municipal law enforcement agencies, the State Superintendent of Public Instruction, the State Commissioner of Health, and the National Sex Offender Registry maintained by the Federal Bureau of Investigation, unless otherwise prohibited by law. The file shall promptly be made available for public inspection or copying pursuant to rules prescribed by the Department of Corrections and may be made available through Internet access, unless otherwise prohibited by law. The Department of Corrections shall promptly provide all municipal police departments, all county sheriff departments and all campus police departments a list of those sex offenders registered and living in their county.

J. The Department of Corrections shall, upon the request of any Internet entity, release to such entity any information required pursuant to paragraph 9 of subsection A of this section or paragraph 5 of subsection D of this section that would enable the Internet entity to prescreen or remove sex offenders from its services or, in conformity with state and federal law, advise law

enforcement or other governmental entities of potential violations of law or threats to public safety. Before releasing information to an Internet entity the Department shall require an Internet entity that requests information to submit to the Department the name, address and telephone number of such entity and the specific legal nature and corporate status of such entity. Except for the purposes specified in this subsection, an Internet entity shall not publish or in any way disclose or redisclose any information provided to it by the Department pursuant to this subsection. The Department shall update any information released pursuant to this subsection on a monthly basis to ensure that the information of every individual that has been removed from the sex offender registry in this state is no longer released pursuant to this subsection. The Department may charge the Internet entity a fee for access to information pursuant to this subsection. The Department shall promulgate any rules necessary to implement the provisions of this subsection. As used in this subsection "Internet entity" means any business, organization or other entity providing or offering a service over the Internet which permits persons under eighteen (18) years of age to access, meet, congregate or communicate with other users for the purpose of social networking. This definition shall not include general e-mail services.

K. The Superintendent of Public Instruction is authorized to copy and shall distribute information from the sex offender registry to school districts and individual public and private schools within the state with a notice using the following or similar language: "A person whose name appears on this registry has been convicted of a sex offense. Continuing to employ a person whose name appears on this registry may result in civil liability for the employer or criminal prosecution pursuant to Section 589 of Title 57 of the Oklahoma Statutes."

L. The State Commissioner of Health is authorized to distribute information from the sex offender registry to any nursing home or long-term care facility. Nothing in this subsection shall be deemed to impose any liability upon or give rise to a cause of action against any person, agency, organization, or company for failing to release information in accordance with the Sex Offenders Registration Act.

M. Each local law enforcement authority shall make its sex offender registry available upon request, without restriction, at a cost that is no more than what is charged for other records provided by the local law enforcement authority pursuant to the Oklahoma Open Records Act.²

When a local law enforcement authority sends a copy of or otherwise makes the sex offender registry available to any public or private school offering any combination of prekindergarten through twelfth grade classes or child care facility licensed by the state, the agency shall provide a notice using the following or similar language: "A person whose name appears on this registry has been convicted of a sex offense. Continuing to employ a person whose name appears on this registry may result in civil liability for the employer or criminal prosecution pursuant to Section 589 of Title 57 of the Oklahoma Statutes."

N. Samples of blood or saliva for DNA testing required by subsection A of this section shall be taken by employees or contractors of the Department of Corrections. The individuals shall be properly trained to collect blood or saliva samples. Persons collecting samples for DNA testing pursuant to this section shall be immune from civil liabilities arising from this activity. The Department of Corrections shall ensure the collection of samples is mailed to the Oklahoma State Bureau of Investigation (OSBI) within ten (10) days of the time the subject appears for testing. The Department shall use sample kits provided by the OSBI and procedures promulgated by the OSBI. Persons subject to DNA testing pursuant to this section shall be required to pay to the Department of Corrections a fee of Fifteen Dollars (\$15.00). Any fees collected pursuant to this subsection shall be deposited in the Department of Corrections revolving account.

O. 1. Any person who has been convicted of or received a suspended sentence or any probationary term, including a deferred sentence imposed in violation of subsection G of Section 991c of Title 22 of the Oklahoma Statutes, for any crime listed in Section 582 of this title and:

- a. who is subsequently convicted of a crime or an attempt to commit a crime listed in subsection A of Section 582 of this title, or
- b. who enters this state after November 1, 1997, and who has been convicted of an additional crime or attempted crime which, if committed or attempted in this state, would be a crime or an attempt to commit a crime provided for in subsection A of Section 582 of this title,

shall be subject to all of the registration requirements of the Sex Offenders Registration Act and shall be designated by the Department of Corrections as a habitual sex offender. A habitual sex offender shall be required to register for the lifetime of the habitual sex offender.

2. On or after November 1, 1999, any person who has been convicted of a crime or an attempt to commit a crime, received a suspended sentence or any probationary term, including a deferred sentence imposed in violation of subsection G of Section 991c of Title 22 of the Oklahoma Statutes, for a crime provided for in Section 843.5 of Title 21 of the Oklahoma Statutes, if the offense involved sexual abuse or sexual exploitation as these terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 885, 888, 1111.1, 1114 or 1123 of Title 21 of the Oklahoma Statutes shall be subject to all the registration requirements of the Sex Offenders Registration Act and shall be designated by the Department of Corrections as an aggravated sex offender. An aggravated sex offender shall be required to register for the lifetime of the aggravated sex offender.

3. Upon registration of any person designated as a habitual or aggravated sex offender, pursuant to this subsection, a local law enforcement authority shall notify, by any method of communication it deems appropriate, anyone that the local law enforcement authority determines appropriate, including, but not limited to:

- a. the family of the habitual or aggravated sex offender,
- b. any prior victim of the habitual or aggravated sex offender,
- c. residential neighbors and churches, community parks, schools, convenience stores, businesses and other places that children or other potential victims may frequent, and
- d. a nursing facility, a specialized facility, a residential care home, a continuum-of-care facility, an assisted living center, and an adult day care facility.

4. The notification may include, but is not limited to, the following information:

- a. the name and physical address of the habitual or aggravated sex offender,

- b. a physical description of the habitual or aggravated sex offender, including, but not limited to, age, height, weight and eye and hair color,
- c. a description of the vehicle that the habitual or aggravated sex offender is known to drive,
- d. any conditions or restrictions upon the probation, parole or conditional release of the habitual or aggravated sex offender,
- e. a description of the primary and secondary targets of the habitual or aggravated sex offender,
- f. a description of the method of offense of the habitual or aggravated sex offender,
- g. a current photograph of the habitual or aggravated sex offender,
- h. the name and telephone number of the probation or parole officer of the habitual or aggravated sex offender, and
- i. the level assignment of the person.

5. The local law enforcement authority shall make the notification provided for in this subsection regarding a habitual or aggravated sex offender available to any person upon request.

P. If the probation and parole officer supervising a person subject to registration receives information to the effect that the status of the person has changed in any manner that affects proper supervision of the person including, but not limited to, a change in the physical health of the person, address, employment, or educational status, higher educational status, incarceration, or terms of release, the supervising officer or administrator shall notify the appropriate local law enforcement authority or authorities of that change.

Q. Public officials, public employees, and public agencies are immune from civil liability for good faith conduct under any provision of the Sex Offenders Registration Act.

1. Nothing in the Sex Offenders Registration Act shall be deemed to impose any liability upon or to give rise to a cause of action against any public official, public employee, or public agency for releasing information to the public or for failing to release information in accordance with the Sex Offenders Registration Act.

2. Nothing in this section shall be construed to prevent law enforcement officers from notifying members of the public of any persons that pose a danger under circumstances that are not enumerated in the Sex Offenders Registration Act.

Credits

Laws 1989, c. 212, § 4, eff. Nov. 1, 1989; Laws 1991, c. 227, § 5, emerg. eff. May 23, 1991; Laws 1995, c. 142, § 4, eff. July 1, 1995; Laws 1997, c. 260, § 5, eff. Nov. 1, 1997; Laws 1998, c. 347, § 2, eff. Nov. 1, 1998; Laws 1999, c. 336, § 3, eff. Nov. 1, 1999; Laws 2000, c. 349, § 4, eff. Nov. 1, 2000; Laws 2001, c. 51, § 2, eff. July 1, 2001; Laws 2002, c. 235, § 2, emerg. eff. May 9, 2002; Laws 2003, c. 3, § 49, emerg. eff. March 19, 2003; Laws 2005, c. 175, § 1, emerg. eff. May 16, 2005; Laws 2005, c. 465, § 9, emerg. eff. June 9, 2005; Laws 2006, c. 133, § 1, eff. July 1, 2006; Laws 2006, c. 284, § 9, emerg. eff. June 7, 2006; Laws 2007, c. 261, § 28, eff. Nov. 1, 2007; Laws 2009, c. 404, § 6, eff. Nov. 1, 2009; Laws 2010, c. 2, § 27, emerg. eff. March 3, 2010; Laws 2010, c. 136, § 1, eff. Nov. 1, 2010; Laws 2010, c. 237, § 2, eff. Nov. 1, 2010; Laws 2010, c. 407, § 1, eff. Nov. 1, 2010; Laws 2011, c. 24, § 1, eff. Nov. 1, 2011; Laws 2014, c. 24, § 1, eff. Nov. 1, 2014; Laws 2017, c. 224, § 2, eff. Nov. 1, 2017; Laws 2019, c. 205, § 1, eff. Nov. 1, 2019.

Footnotes

1 Title 57, §§ 591 to 599.1.

2 Title 51, § 24A.1 et seq.

57 Okl. St. Ann. § 584, OK ST T. 57 § 584

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 585

§ 585. Notifying offenders of obligation to register

Currentness

A. Each person in charge of a correctional institution from which a person subject to the provisions of the Sex Offenders Registration Act, Section 581 et seq. of this title, is released and each judge who suspends the sentence of a person subject to the provisions of the Sex Offenders Registration Act or orders any probationary term, including a deferred sentence imposed in violation of subsection G of Section 991c of Title 22 of the Oklahoma Statutes, for a person subject to the provisions of the Sex Offenders Registration Act shall prior to discharge or release of the person:

1. Explain to the person the duty to register pursuant to the Sex Offenders Registration Act;
2. Require the person to sign a written statement that the duty to register has been explained and the person understands the duty to register;
3. Obtain the address at which the person is to reside upon discharge or release. The address shall be a physical address, not a post office box; and
4. Forward the information to the Department of Corrections.

B. The Department of Public Safety shall issue written notification of the registration requirements of the Sex Offenders Registration Act to any person who enters this state from another jurisdiction and makes an initial application for an operator's or chauffeur's license to operate a motor vehicle in this state.

C. The Department of Corrections shall coordinate with the Administrative Office of the Courts in promulgating rules to establish other necessary procedures for notifying offenders of the obligation to register pursuant to the Sex Offenders Registration Act and procedures for registration of those offenders.

D. The Department of Corrections shall coordinate with surrounding states to establish necessary procedures for notifying offenders that reside in other states but work or attend school within the State of Oklahoma of the obligation to register pursuant to the Sex Offenders Registration Act and the procedure for registration of those offenders.

Credits

Laws 1989, c. 212, § 5, eff. Nov. 1, 1989; Laws 1995, c. 142, § 5, eff. July 1, 1995; Laws 1997, c. 260, § 6, eff. Nov. 1, 1997; Laws 1999, c. 336, § 4, eff. Nov. 1, 1999; Laws 2000, c. 349, § 5, eff. Nov. 1, 2000; Laws 2010, c. 407, § 2, eff. Nov. 1, 2010.

57 Okl. St. Ann. § 585, OK ST T. 57 § 585

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 586

§ 586. False or misleading registration information

Currentness

No person subject to the provisions of the Sex Offenders Registration Act, Sections 581 et seq. of this title, shall furnish any false or misleading information in the registration required by said act.

Credits

Laws 1989, c. 212, § 6, eff. Nov. 1, 1989; Laws 1995, c. 142, § 6, eff. July 1, 1995.

57 Okl. St. Ann. § 586, OK ST T. 57 § 586

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 587

§ 587. Penalty

Currentness

A. Any person required to register pursuant to the provisions of the Sex Offenders Registration Act who violates any provision of said act shall, upon conviction, be guilty of a felony. Any person convicted of a violation of this section shall be punished by imprisonment in the custody of the Department of Corrections for not more than five (5) years, a fine not to exceed Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

B. Any person required to register pursuant to the Sex Offenders Registration Act who fails to comply with the established guidelines for global position system (GPS) monitoring shall, upon conviction, be guilty of a felony punishable by a fine not to exceed One Thousand Dollars (\$1,000.00), or by imprisonment in the custody of the county jail for not more than one (1) year, or by both such fine and imprisonment.

Credits

Laws 1989, c. 212, § 7, eff. Nov. 1, 1989; Laws 1995, c. 142, § 7, eff. July 1, 1995; Laws 1997, c. 260, § 7, eff. Nov. 1, 1997; Laws 1998, c. 347, § 3, eff. Nov. 1, 1998; Laws 2001, c. 51, § 3, eff. July 1, 2001; Laws 2006, c. 284, § 10, emerg. eff. June 7, 2006.

57 Okl. St. Ann. § 587, OK ST T. 57 § 587

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St.Ann. § 588

§ 588. Repealed by Laws 1999, 1st Ex.Sess., c. 5, § 452, eff. July 1, 1999

Currentness

57 Okl. St. Ann. § 588, OK ST T. 57 § 588

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 589

§ 589. Registered offenders prohibited from certain employment--Penalties--Civil damages

Currentness

A. It is unlawful for any person registered pursuant to the Oklahoma Sex Offenders Registration Act or the Mary Rippy Violent Crime Offenders Registration Act¹ to work with or provide services to children or to work on school premises, or for any person or business which contracts for work to be performed on school premises to knowingly and willfully allow any employee to work with children or to work on school premises who is registered pursuant to the Oklahoma Sex Offenders Registration Act or the Mary Rippy Violent Crime Offenders Registration Act. Upon conviction for any violation of the provisions of this subsection, the violator shall be guilty of a misdemeanor punishable by a fine not to exceed One Thousand Dollars (\$1,000.00). In addition, the violator may be liable for civil damages.

B. 1. A person or business who offers or provides services to children shall ensure compliance with subsection A of this section by conducting a name search of employees at least annually against the registries maintained pursuant to the Oklahoma Sex Offenders Registration Act and the Mary Rippy Violent Crime Offenders Registration Act while such person is working with or serving children. All persons working with or providing services to children shall be required to sign a statement declaring that he or she is not currently required to register under the provisions of the Oklahoma Sex Offenders Registration Act or the Mary Rippy Violent Crime Offenders Registration Act. Compliance with the signed statement shall be mandatory for all persons working with or providing services to children, and there shall be no liability or obligation placed upon any person or business to ascertain the truthfulness of the affidavit. Any person or business having a contract with a school shall ensure compliance as provided by Section 6-101.48 of Title 70 of the Oklahoma Statutes.

2. Failure of any person or business who works with or provides services to children to conduct the annual name search of each person employed shall be a misdemeanor. Upon conviction for failure to conduct a name search, the violator shall be guilty of a misdemeanor punishable by a fine not to exceed One Thousand Dollars (\$1,000.00). Refusal of any person who is employed to work with or provide services to children to sign a statement declaring they have no requirement to register as provided in this section shall be a misdemeanor, upon conviction, punishable by a fine not to exceed One Thousand Dollars (\$1,000.00), and the person shall be immediately terminated from employment. Any person discovering an employment or registration violation as required by any provision of law for any person currently employed to work with or provide services to children has a duty to and shall immediately report such findings to the district attorney.

C. It is unlawful for any law enforcement agency to employ any person as a peace officer or criminal investigator who has received a verdict of guilty or pled guilty or nolo contendere to any offense required to register pursuant to the Sex Offenders Registration Act or the Mary Rippy Violent Crime Offenders Registration Act, including those receiving a verdict of guilt, pleading guilty or nolo contendere as part of a deferred judgment or other provision of law authorizing a delayed or suspended judgment or sentence. Every person receiving a verdict of guilty or pleading guilty or nolo contendere to any offense required to register pursuant to the Sex Offenders Registration Act or the Mary Rippy Violent Crime Offenders Registration Act shall be prohibited from being certified by the Council on Law Enforcement Education and Training (CLEET) as a peace officer, private investigator, or security guard, and if at the time of the verdict or plea such person has been previously CLEET certified

such certification shall be revoked. Any violator shall be guilty of a misdemeanor upon conviction of noncompliance with the provisions of this subsection.

Credits

Laws 1998, c. 411, § 5, eff. July 1, 1998; Laws 1999, c. 200, § 1, emerg. eff. May 24, 1999; Laws 2002, c. 460, § 35, eff. Nov. 1, 2002; Laws 2004, c. 358, § 10, eff. Nov. 1, 2004; Laws 2008, c. 162, § 2, eff. July 1, 2008.

Footnotes

1 Title 57, § 591 et seq.

57 Okl. St. Ann. § 589, OK ST T. 57 § 589

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 590

§ 590. Residency restriction--Penalty

Currentness

A. It is unlawful for any person registered pursuant to the Sex Offenders Registration Act to reside, either temporarily or permanently, within a two-thousand-foot radius of any public or private school site, educational institution, property or campsite used by an organization whose primary purpose is working with children, a playground or park that is established, operated or supported in whole or in part by a homeowners' association or a city, town, county, state, federal or tribal government, a licensed child care center or family child care home as defined in the Oklahoma Child Care Facilities Licensing Act¹ or the residence of his or her victim. Establishment of a licensed child care center, family child care home or park in the vicinity of the residence of a registered sex offender will not require the relocation of the sex offender or the sale of the property. On June 7, 2006, the distance indicated in this section shall be measured from the nearest property line of the residence of the person to the nearest property line of the public or private school site, educational institution, property or campsite used by an organization whose primary purpose is working with children, playground, park, licensed child care center, family child care home or residence of his or her victim; provided, any nonprofit organization established and housing sex offenders prior to the effective date of this provision shall be allowed to continue its operation.

Nothing in this provision shall require any person to sell or otherwise dispose of any real estate or home acquired or owned prior to the conviction of the person as a sex offender.

B. It shall be unlawful for any person who is required to register pursuant to the Sex Offenders Registration Act for any offense in which a minor child was the victim to reside with a minor child or establish any other living accommodation where a minor child resides. Provided, however, the person may reside with a minor child if the person is the parent, stepparent or grandparent of the minor child and the minor child was not the victim of the offense for which the person is required to register. Any person subject to the provisions of the Sex Offenders Registration Act who resides with a minor child must report to the statewide centralized hotline of the Department of Human Services the name and date of birth of any and all minor children residing in the same household and the offenses for which the person is required to register pursuant to the Sex Offenders Registration Act within three (3) days of intent to reside with a minor child.

Nothing in the provisions of this subsection shall prevent the Department of Human Services from conducting and completing a safety evaluation when a registered sex offender resides in the home of a minor child.

C. The provisions of this section shall not apply to any registered sex offender residing in a hospital or other facility certified or licensed by the State of Oklahoma to provide medical services.

D. Any person willfully violating the provisions of this section by:

1. Intentionally moving into any neighborhood or to any real estate or home within the prohibited distance; or

2. Intentionally moving into a residence with a minor child or establishing any other living accommodation where a minor child resides as specified in subsection B of this section,

shall, upon conviction, be guilty of a felony punishable by a fine not to exceed Three Thousand Dollars (\$3,000.00), or by imprisonment in the custody of the Department of Corrections for a term of not less than one (1) year nor more than three (3) years, or by both such fine and imprisonment. Any person convicted of a second or subsequent violation of this section shall be punished by a fine not to exceed Three Thousand Dollars (\$3,000.00), or by imprisonment in the custody of the Department of Corrections for a term of not less than three (3) years, or by both such fine and imprisonment.

Credits

Laws 2003, c. 223, § 1, eff. Nov. 1, 2003; Laws 2006, c. 284, § 11, emerg. eff. June 7, 2006; Laws 2007, c. 261, § 29, eff. Nov. 1, 2007; Laws 2008, c. 347, § 2, eff. Nov. 1, 2008; Laws 2010, c. 136, § 2, eff. Nov. 1, 2010; Laws 2012, c. 281, § 1, eff. Nov. 1, 2012; Laws 2015, c. 270, § 2, eff. Nov. 1, 2015; Laws 2017, c. 224, § 3, eff. Nov. 1, 2017; Laws 2018, c. 38, § 3, eff. Nov. 1, 2018; Laws 2018, c. 145, § 1, eff. Nov. 1, 2018; Laws 2019, c. 205, § 2, eff. Nov. 1, 2019.

Footnotes

1 Title 10, § 401 et seq.

57 Okl. St. Ann. § 590, OK ST T. 57 § 590

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St. Ann. § 590.1

§ 590.1. Individual dwelling residency restrictions--Two or more sex offenders--Housing of registered sex offenders

Currentness

A. 1. It is unlawful for two or more persons required to register as sex offenders to reside together in any individual dwelling during the term of registration as a sex offender. Every person violating this provision shall be guilty, upon conviction, of a misdemeanor punishable by imprisonment in the county jail for a term not more than one (1) year and a fine in an amount not to exceed One Thousand Dollars (\$1,000.00). Every person convicted of a second or subsequent violation of this section shall be guilty of a felony punishable by imprisonment in the custody of the Department of Corrections for a term not more than five (5) years and a fine in an amount not to exceed Two Thousand Dollars (\$2,000.00).

2. The provisions of paragraph 1 of this subsection shall not be construed to prohibit a registered sex offender from residing in any properly zoned and established boarding house, apartment building or other multi-unit structure; provided the individual dwellings are separate for each registered person. Nothing in this subsection shall prohibit the sharing of living quarters, jail or prison space, or any multi-person or dormitory-style housing of sex offenders in the custody of any jail or correctional facility or any properly zoned facility under contract with a jail or correctional agency for the purpose of housing prisoners, or any properly established treatment or nonprofit facility located in a properly zoned area determined by the local governing authority and housing persons for purposes of sex offender services and treatment. Nothing in this subsection shall prohibit married persons, both of whom are required to register as sex offenders, or two or more blood relatives who are required to register as sex offenders, from residing in any individual dwelling during the term of registration as a sex offender.

3. For purposes of this subsection, "individual dwelling" means:

- a. a private residential property, whether owned, leased or rented, including all real property zoned as single-family residential property or zoned as multi-family residential property due to any adjacent, detached or separate living quarters of any kind on such property,
- b. any room available within any boarding house or group home as such term is defined by subsection D of this section,
- c. any single apartment for rent or lease within an apartment building, or
- d. any separate residential unit made available for sale, rent or lease within a multi-unit structure, including a condominium, duplex, triplex, quadriplex or any unit that is constructed together with other separate units into one structure.

4. For purposes of this section, “multi-unit structure” means a structure with multiple residential units that provide independent living facilities for living, sleeping, cooking, eating, and sanitation within each individual unit. Manufactured homes, mobile homes, trailers, and recreational vehicles that do not meet the descriptions of this paragraph are not multi-unit structures.

B. The Department of Corrections is prohibited from contracting for the housing of any person required to register as a sex offender in any individual dwelling, as defined by paragraph 3 of subsection A of this section, where another person required to register as a sex offender also resides.

C. No halfway house, nonprofit organization, or private entity shall contract with the Department of Corrections or any jail to house any person required to register as a sex offender or offer housing independently to any person required to register as a sex offender if such housing facility is located within a single-family zoned residential neighborhood or is not properly zoned as a multi-unit housing structure, jail or correctional facility.

D. No person or entity shall knowingly establish or operate a boarding house or group home, or otherwise knowingly rent or lease rooms, for the residency of persons required to register pursuant to the Sex Offenders Registration Act unless treatment services are provided. Said facility must also be in a properly zoned area determined by the local governing authority. For purposes of this subsection, “boarding house or group home” means a dwelling that is used for the residency of two or more unrelated persons.

E. No person or entity shall knowingly establish, lease, operate, or own any structure or portion of a structure where persons required to register pursuant to the Sex Offenders Registration Act are allowed to reside together in violation of this section or knowingly allow any other violation of this section.

F. Every person convicted of a first violation of subsection E of this section shall be guilty of a misdemeanor and shall be punished by a fine of not more than Five Hundred Dollars (\$500.00), or by imprisonment in the county jail for not more than one (1) year, or by both such fine and imprisonment. Any person convicted of a second violation shall be guilty of a misdemeanor and shall be punished by a fine of not more than Two Thousand Five Hundred Dollars (\$2,500.00), or by imprisonment in the county jail for not more than one (1) year, or by both such fine and imprisonment. Any person convicted of a third or subsequent violation shall be guilty of a felony and shall be punished by a fine of not less than Two Thousand Five Hundred Dollars (\$2,500.00) and not more than Five Thousand Dollars (\$5,000.00), or by imprisonment in the custody of the Department of Corrections for not more than five (5) years, or by both such fine and imprisonment.

Credits

Laws 2006, c. 284, § 12, emerg. eff. June 7, 2006; Laws 2007, c. 261, § 30, eff. Nov. 1, 2007; Laws 2009, c. 404, § 7, eff. Nov. 1, 2009; Laws 2011, c. 381, § 1, eff. July 1, 2012.

57 Okl. St. Ann. § 590.1, OK ST T. 57 § 590.1

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

Oklahoma Statutes Annotated

Title 57. Prisons and Reformatories (Refs & Annos)

Chapter 8B. Sex Offenders Registration Act (Refs & Annos)

57 Okl.St.Ann. § 590.2

§ 590.2. Individual petition to remove requirement to register as sex offender

Currentness

A. For purposes of this section, a person shall be considered for removal of the requirement to register as a sex offender if the person:

1. Was convicted of a violation of Section 1111.1 or 1114 of Title 21 of the Oklahoma Statutes and the person does not have any other conviction for a violation of Section 1111.1 or 1114 of Title 21 of the Oklahoma Statutes;
2. Is required to register as a sex offender solely on the basis of a violation of Section 1111.1 or 1114 of Title 21 of the Oklahoma Statutes; and
3. Was not more than four (4) years older than the victim of the violation who was fourteen (14) years of age or older but not more than seventeen (17) years of age at the time the person committed the violation.

B. If a person meets the criteria provided for in subsection A of this section, the person may petition the court in which the sentence for the conviction occurred for removal of the requirement to register as a sex offender. The person shall allege in the petition that the person meets the criteria provided for in subsection A of this section and that removal of the registration requirement will not conflict with federal law. The district attorney shall be given notice of the petition at least twenty-one (21) days before the hearing on the petition. The district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate why the petition should be denied. The court shall rule on the petition and, if the court determines that the person meets the criteria provided for in subsection A of this section and removal of the registration requirement will not conflict with federal law, may grant the petition and order the removal of the registration requirement. If the court denies the petition, the person shall not be authorized to file any further petition for removal of the registration requirement pursuant to this section.

C. If a person, who has yet to be sentenced for a conviction for a violation of Section 1111.1 or 1114 of Title 21 of the Oklahoma Statutes, meets the criteria provided for in subsection A of this section, the person may move the sentencing court for removal of the requirement to register as a sex offender. The person shall allege in the motion that the person meets the criteria provided for in subsection A of this section and that removal of the requirement to register as a sex offender will not conflict with federal law. The district attorney shall be given notice of the motion at least twenty-one (21) days prior to the hearing on the motion. The district attorney may present evidence in opposition to the requested relief or may otherwise demonstrate why the motion should be denied. The court shall rule on the motion and, if the court determines that the person meets the criteria provided for in subsection A of this section and that removal of the requirement to register will not conflict with federal law, may grant the motion and order the removal of the registration requirement. If the court denies the motion, the person shall not be authorized to file any further motions or petitions for removal of the registration requirement pursuant to this section.

D. If a person provides to the Department of Corrections a certified copy of the order of the court removing the requirement that the person register as a sex offender, the registration requirement shall not apply to the person and the Department shall remove all information about the person from the public registry of sex offenders maintained by the Department. However, the removal of information about the person from the public registry shall not mean that the public is denied access to information about the criminal history or record of the person that is otherwise available as a public record.

Credits

Laws 2009, c. 404, § 8, eff. Nov. 1, 2009.

57 Okl. St. Ann. § 590.2, OK ST T. 57 § 590.2

Current with legislation of the First Regular Session of the 60th Legislature (2025) effective as of October 1, 2025. Some sections may be more current, see credits for details.

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West's Oregon Revised Statutes Annotated
Title 16. Crimes and Punishments
Chapter 163A. Sex Offender Reporting and Classification
Reporting

O.R.S. § 163A.005

Formerly cited as OR ST § 181.517; OR ST § 181.594; OR ST § 181.805

163A.005. Definitions

Currentness

<Text subject to final change by the Oregon Office of the Legislative Counsel.>

As used in ORS 163A.005 to 163A.235:

(1) “Another United States court” means a federal court, a military court, the tribal court of a federally recognized Indian tribe or a court of:

- (a) A state other than Oregon;
- (b) The District of Columbia;
- (c) The Commonwealth of Puerto Rico;
- (d) Guam;
- (e) American Samoa;
- (f) The Commonwealth of the Northern Mariana Islands; or
- (g) The United States Virgin Islands.

(2) “Attends” means is enrolled on a full-time or part-time basis.

(3)(a) “Correctional facility” means any place used for the confinement of persons:

- (A) Charged with or convicted of a crime or otherwise confined under a court order.

(B) Found to be within the jurisdiction of the juvenile court for having committed an act that if committed by an adult would constitute a crime.

(b) “Correctional facility” applies to a state hospital or a secure intensive community inpatient facility only as to persons detained therein charged with or convicted of a crime, or detained therein after being found guilty except for insanity under ORS 161.290 to 161.373 or responsible except for insanity under ORS 419C.411.

(4) “Institution of higher education” means a public or private educational institution that provides a program of post-secondary education.

(5) “Sex crime” means:

(a) Rape in any degree;

(b) Sodomy in any degree;

(c) Unlawful sexual penetration in any degree;

(d) Sexual abuse in any degree;

(e) Incest with a child victim;

(f) Using a child in a display of sexually explicit conduct;

(g) Encouraging child sexual abuse in any degree;

(h) Transporting child pornography into the state;

(i) Paying for viewing a child's sexually explicit conduct;

(j) Compelling prostitution;

(k) Promoting prostitution;

(L) Kidnapping in the first degree if the victim was under 18 years of age;

(m) Contributing to the sexual delinquency of a minor;

- (n) Sexual misconduct if the offender is at least 18 years of age;
- (o) Possession of materials depicting sexually explicit conduct of a child in the first degree;
- (p) Kidnapping in the second degree if the victim was under 18 years of age, except by a parent or by a person found to be within the jurisdiction of the juvenile court;
- (q) Online sexual corruption of a child in any degree if the offender reasonably believed the child to be more than five years younger than the offender;
- (r) Luring a minor, if:
 - (A) The offender reasonably believed the minor or, in the case of a police officer or agent of a police officer posing as a minor, the purported minor to be more than five years younger than the offender or under 16 years of age; and
 - (B) The court designates in the judgment that the offense is a sex crime;
- (s) Sexual assault of an animal;
- (t) Public indecency or private indecency, if the person has a prior conviction for a crime listed in this subsection;
- (u) Trafficking in persons as described in ORS 163.266 (1)(b) or (c);
- (v) Purchasing sex with a minor if the court designates the offense as a sex crime pursuant to ORS 163.413 (3)(d), or the offense is the defendant's second or subsequent conviction under ORS 163.413 (3)(b)(B);
- (w) Invasion of personal privacy in the first degree, if the court designates the offense as a sex crime pursuant to ORS 163.701 (3);
- (x) Sexual abuse by fraudulent representation;
- (y) Abuse of a corpse in the first degree as described in ORS 166.087 (1)(a);
- (z) Any attempt to commit any of the crimes listed in paragraphs (a) to (y) of this subsection;
- (aa) Burglary, when committed with intent to commit any of the offenses listed in paragraphs (a) to (y) of this subsection; or

(bb) Criminal conspiracy if the offender agrees with one or more persons to engage in or cause the performance of an offense listed in paragraphs (a) to (y) of this subsection.

(6) “Sex offender” means a person who:

(a) Has been convicted of a sex crime;

(b) Has been found guilty except for insanity of a sex crime;

(c) Has been convicted in another United States court of a crime:

(A) That would constitute a sex crime if committed in this state; or

(B) For which the person would have to register as a sex offender in that court's jurisdiction, or as required under federal law, regardless of whether the crime would constitute a sex crime in this state; or

(d) Is described in ORS 163A.025 (1).

(7) “Works” or “carries on a vocation” means full-time or part-time employment for more than 14 days within one calendar year whether financially compensated, volunteered or for the purpose of governmental or educational benefit.

Credits

Renumbered from 181.805 in 2015 by the Legislative Counsel. Amended by Laws 2023, c. 200, § 4, eff. June 7, 2023; Laws 2024, c. 63, § 1, eff. March 27, 2024, operative Jan. 1, 2025.

O. R. S. § 163A.005, OR ST § 163A.005

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

West's Oregon Revised Statutes Annotated
Title 16. Crimes and Punishments
Chapter 163A. Sex Offender Reporting and Classification
Reporting

O.R.S. § 163A.010

Formerly cited as OR ST § 181.518; OR ST § 181.595; OR ST § 181.806

163A.010. Reporting requirements for sex offender discharged, paroled
or released on supervised release; procedure for change of residence

Currentness

(1) The agency to which a person reports under subsection (3) of this section shall complete a sex offender registration form concerning the person when the person reports under subsection (3) of this section.

(2) Subsection (3) of this section applies to a person who:

(a) Is discharged, paroled or released on any form of supervised or conditional release from a jail, prison or other correctional facility or detention facility in this state at which the person was confined as a result of:

(A) Conviction of a sex crime or a crime for which the person would have to register as a sex offender under federal law; or

(B) Having been found guilty except for insanity of a sex crime;

(b) Is paroled to this state under ORS 144.610 after being convicted in another United States court of a crime:

(A) That would constitute a sex crime if committed in this state; or

(B) For which the person would have to register as a sex offender in that court's jurisdiction, or as required under federal law, regardless of whether the crime would constitute a sex crime in this state; or

(c) Is discharged by the court under ORS 161.329 after having been found guilty except for insanity of a sex crime.

(3)(a) A person described in subsection (2) of this section shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county to which the person was discharged, paroled or released or in which the person was otherwise placed:

(A) Within 10 days following discharge, release on parole, post-prison supervision or other supervised or conditional release;

(B) Within 10 days of a change of residence;

(C) Within 10 days of a legal change of name;

(D) Once each year within 10 days of the person's birth date, regardless of whether the person changed residence;

(E) Within 10 days of the first day the person works at, carries on a vocation at or attends an institution of higher education;

(F) Within 10 days of a change in work, vocation or attendance status at an institution of higher education; and

(G) At least 21 days prior to any intended travel outside of the United States.

(b) If a person required to report under this subsection has complied with the initial reporting requirement under paragraph (a)(A) of this subsection, the person shall subsequently report, in person, in the circumstances specified in paragraph (a) of this subsection, as applicable, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's last reported residence.

(c) Notwithstanding paragraphs (a) and (b) of this subsection, during the period of supervision or custody authorized by law, the Oregon Youth Authority may authorize an adjudicated youth committed to its supervision and custody by order of the juvenile court or a person placed in its physical custody under ORS 137.124 or any other provision of law to report to the authority regardless of the adjudicated youth's or the person's last reported residence.

(d) In the event that a person reports to the authority under this subsection, the authority shall register the person.

(e) The obligation to report under this subsection terminates if the conviction or adjudication that gave rise to the obligation is reversed or vacated or if the registrant is pardoned.

(4) As part of the registration and reporting requirements of this section:

(a) The person required to report shall:

(A) Provide the information necessary to complete the sex offender registration form and sign the form as required; and

(B) Submit to the requirements described in paragraph (b) of this subsection.

(b) The Department of State Police, Oregon Youth Authority, city police department or county sheriff's office:

(A) Shall photograph the person when the person initially reports under this section and each time the person reports annually under this section;

(B) May photograph the person or any identifying scars, marks or tattoos located on the person when the person reports under any of the circumstances described in this section; and

(C) Shall fingerprint the person if the person's fingerprints are not included in the record file of the Department of State Police.

Credits

Renumbered from 181.806 in 2015 by the Legislative Counsel. Amended by Laws 2016, c. 95, § 4, eff. April 4, 2016; Laws 2019, c. 430, § 11, eff. June 20, 2019, operative Jan. 1, 2021; Laws 2021, c. 489, § 13, eff. Jan. 1, 2022.

O. R. S. § 163A.010, OR ST § 163A.010

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Chapter 163A. Sex Offender Reporting and Classification
Reporting

O.R.S. § 163A.015

Formerly cited as OR ST § 181.519; OR ST § 181.596; OR ST § 181.807

163A.015. Report by sex offender released or discharged; procedure for change of residence

Currentness

(1) The agency to which a person reports under subsection (4) of this section shall complete a sex offender registration form concerning the person when the person reports under subsection (4) of this section.

(2) Subsection (4) of this section applies to a person who is discharged, released or placed on probation:

(a) By the court after being convicted in this state of a sex crime;

(b) By a federal court after being convicted of a crime for which the person would have to register as a sex offender under federal law, regardless of whether the crime would constitute a sex crime in this state; or

(c) To or in this state under ORS 144.610 after being convicted in another United States court of a crime:

(A) That would constitute a sex crime if committed in this state; or

(B) For which the person would have to register as a sex offender in that court's jurisdiction, regardless of whether the crime would constitute a sex crime in this state.

(3) The court shall ensure that the person completes a form that documents the person's obligation to report under ORS 163A.010 or this section. No later than three working days after the person completes the form required by this subsection, the court shall ensure that the form is sent to the Department of State Police.

(4)(a) A person described in subsection (2) of this section shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county to which the person was discharged or released or in which the person was placed on probation:

(A) Within 10 days following discharge, release or placement on probation;

(B) Within 10 days of a change of residence;

(C) Within 10 days of a legal change of name;

(D) Once each year within 10 days of the person's birth date, regardless of whether the person changed residence;

(E) Within 10 days of the first day the person works at, carries on a vocation at or attends an institution of higher education;

(F) Within 10 days of a change in work, vocation or attendance status at an institution of higher education; and

(G) At least 21 days prior to any intended travel outside of the United States.

(b) If a person required to report under this subsection has complied with the initial reporting requirement under paragraph (a)(A) of this subsection, the person shall subsequently report, in person, in the circumstances specified in paragraph (a) of this subsection, as applicable, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's last reported residence.

(c) The obligation to report under this subsection terminates if the conviction or adjudication that gave rise to the obligation is reversed or vacated or if the registrant is pardoned.

(5) As part of the registration and reporting requirements of this section:

(a) The person required to report shall:

(A) Provide the information necessary to complete the sex offender registration form and sign the form as required; and

(B) Submit to the requirements described in paragraph (b) of this subsection.

(b) The Department of State Police, the city police department or the county sheriff's office:

(A) Shall photograph the person when the person initially reports under this section and each time the person reports annually under this section;

(B) May photograph the person or any identifying scars, marks or tattoos located on the person when the person reports under any of the circumstances described in this section; and

(C) Shall fingerprint the person if the person's fingerprints are not included in the record file of the Department of State Police.

Credits

Renumbered from 181.807 in 2015 by the Legislative Counsel. Amended by Laws 2019, c. 430, § 12, eff. June 20, 2019, operative Jan. 1, 2021.

O. R. S. § 163A.015, OR ST § 163A.015

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.020

Formerly cited as OR ST § 181.597; OR ST § 181.808

163A.020. Reporting requirement for certain persons moving into state; certain nonresidents required to report

Currentness

(1)(a) When a person described in subsection (6) of this section moves into this state and is not otherwise required by ORS 163A.010, 163A.015 or 163A.025 to report, the person shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence:

- (A) No later than 10 days after moving into this state;
- (B) Within 10 days of a change of residence;
- (C) Within 10 days of a legal change of name;
- (D) Once each year within 10 days of the person's birth date, regardless of whether the person changed residence;
- (E) Within 10 days of the first day the person works at, carries on a vocation at or attends an institution of higher education;
- (F) Within 10 days of a change in work, vocation or attendance status at an institution of higher education; and
- (G) At least 21 days prior to any intended travel outside of the United States.

(b) If a person required to report under this subsection has complied with the initial reporting requirement under paragraph (a)(A) of this subsection, the person shall subsequently report, in person, in the circumstances specified in paragraph (a) of this subsection, as applicable, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's last reported residence.

(2)(a) When a person described in ORS 163A.010 (2) or 163A.015 (2) or subsection (6) of this section attends school or works in this state, resides in another state and is not otherwise required by ORS 163A.010, 163A.015 or 163A.025 to report, the person shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county in which the school or place of work is located, no later than 10 days after:

(A) The first day of school attendance or the 14th day of employment in this state;

(B) A change in school enrollment or employment; and

(C) A legal change of name.

(b) As used in this subsection, “attends school” means enrollment in any type of school on a full-time or part-time basis.

(3)(a) When a person described in subsection (6) of this section resides in this state at the time of the conviction or adjudication giving rise to the obligation to report, continues to reside in this state following the conviction or adjudication and is not otherwise required by ORS 163A.010, 163A.015 or 163A.025 to report, the person shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence:

(A) Within 10 days following:

(i) Discharge, release on parole or release on any form of supervised or conditional release, from a jail, prison or other correctional facility or detention facility; or

(ii) Discharge, release or placement on probation, by another United States court;

(B) Within 10 days of a change of residence;

(C) Within 10 days of a legal change of name;

(D) Once each year within 10 days of the person's birth date, regardless of whether the person has changed residence;

(E) Within 10 days of the first day the person works at, carries on a vocation at or attends an institution of higher education;

(F) Within 10 days of a change in work, vocation or attendance status at an institution of higher education; and

(G) At least 21 days prior to any intended travel outside of the United States.

(b) If a person required to report under this subsection has complied with the applicable initial reporting requirement under paragraph (a)(A) of this subsection, the person shall subsequently report, in person, in the circumstances specified in paragraph (a) of this subsection, as applicable, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's last reported residence.

(4) When a person reports under this section, the agency to which the person reports shall complete a sex offender registration form concerning the person.

(5) The obligation to report under this section terminates if the conviction or adjudication that gave rise to the obligation is reversed or vacated or if the registrant is pardoned.

(6) Subsections (1) to (5) of this section apply to a person convicted in another United States court of a crime:

(a) That would constitute a sex crime if committed in this state; or

(b) For which the person would have to register as a sex offender in that court's jurisdiction, or as required under federal law, regardless of whether the crime would constitute a sex crime in this state.

(7) As part of the registration and reporting requirements of this section:

(a) The person required to report shall:

(A) Provide the information necessary to complete the sex offender registration form and sign the form as required; and

(B) Submit to the requirements described in paragraph (b) of this subsection.

(b) The Department of State Police, the city police department or the county sheriff's office:

(A) Shall photograph the person when the person initially reports under this section, each time the person reports annually under subsection (1)(a)(D) or (3)(a)(D) of this section and each time the person reports under subsection (2)(a)(B) of this section;

(B) May photograph the person or any identifying scars, marks or tattoos located on the person when the person reports under any of the circumstances described in this section; and

(C) Shall fingerprint the person if the person's fingerprints are not included in the record file of the Department of State Police.

Credits

Renumbered from 181.808 in 2015 by the Legislative Counsel. Amended by Laws 2019, c. 430, § 13, eff. June 20, 2019, operative Jan. 1, 2021.

O. R. S. § 163A.020, OR ST § 163A.020

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O.R.S. § 163A.025

Formerly cited as OR ST § 181.609; OR ST § 181.809

163A.025. Sex offender reporting; juvenile adjudication of felony sex crimes

Currentness

(1) A person found to be within the jurisdiction of the juvenile court under ORS 419C.005, or found by the juvenile court to be responsible except for insanity under ORS 419C.411, for having committed an act that, if committed by an adult, would constitute a felony sex crime shall report as a sex offender as described in subsections (2) to (4) of this section, unless the juvenile court enters an order under ORS 163A.130 or 163A.135 relieving the person of the obligation to report, if:

- (a) The person has been ordered under ORS 163A.030 to report as a sex offender;
- (b) The person was adjudicated, and the jurisdiction of the juvenile court or the Psychiatric Security Review Board over the person ended, prior to August 12, 2015;
- (c) The person was adjudicated prior to August 12, 2015, and the jurisdiction of the juvenile court or the Psychiatric Security Review Board over the person ended after August 12, 2015, and before April 4, 2016; or
- (d) The person has been found in a juvenile adjudication in another United States court to have committed an act while the person was under 18 years of age that would constitute a felony sex crime if committed in this state by an adult.

(2) A person described in subsection (1)(a) or (d) of this section, or a person described in subsection (1)(c) of this section who did not make an initial report prior to April 4, 2016, who resides in this state shall make an initial report, in person, to the Department of State Police, a city police department or a county sheriff's office as follows:

- (a) The person shall report no later than 10 days after the date of the court order requiring the person to report under ORS 163A.030;
- (b) If the person is adjudicated for the act giving rise to the obligation to report in another United States court and the person is found to have committed an act that if committed by an adult in this state would constitute:
 - (A) A Class A or Class B felony sex crime:

(i) If the person is not a resident of this state at the time of the adjudication, the person shall make the initial report to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence, no later than 10 days after the date the person moves into this state; or

(ii) If the person is a resident of this state at the time of the adjudication, the person shall make the initial report to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence, no later than 10 days after the date the person is discharged, released or placed on probation or any other form of supervised or conditional release by the other United States court or, if the person is confined in a correctional facility by the other United States court, no later than 10 days after the date the person is discharged or otherwise released from the facility.

(B) A Class C felony sex crime:

(i) If the person is not a resident of this state at the time of the adjudication, the person shall make the initial report to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence, no later than six months after the date the person moves into this state; or

(ii) If the person is a resident of this state at the time of the adjudication, the person shall make the initial report to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence, no later than 10 days after the date the person is discharged, released or placed on probation or any other form of supervised or conditional release by the other United States court or, if the person is confined in a correctional facility by the other United States court, no later than 10 days after the date the person is discharged or otherwise released from the facility; or

(c) For persons described in subsection (1)(c) of this section who did not make an initial report prior to April 4, 2016, the person shall report no later than 120 days after April 4, 2016.

(3) After making the initial report described in subsection (2) of this section or, for a person described in subsection (1)(c) of this section who made an initial report prior to April 4, 2016, or a person described in subsection (1)(b) of this section, beginning after April 4, 2016, the person shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's last reported residence:

(a) Within 10 days of a change of residence;

(b) Within 10 days of a legal change of name;

(c) Once each year within 10 days of the person's birth date, regardless of whether the person changed residence;

(d) Within 10 days of the first day the person works at, carries on a vocation at or attends an institution of higher education;

(e) Within 10 days of a change in work, vocation or attendance status at an institution of higher education; and

(f) At least 21 days prior to any intended travel outside of the United States.

(4) When a person described in subsection (1) of this section attends school or works in this state, resides in another state and is not otherwise required to report as a sex offender under this section or ORS 163A.010, 163A.015 or 163A.020, the person shall report, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county in which the person attends school or works, no later than 10 days after:

(a) The first day of school attendance or the 14th day of employment in this state;

(b) A change in school enrollment or employment; and

(c) A legal change of name.

(5) The agency to which a person reports under this section shall complete a sex offender registration form concerning the person when the person reports under this section.

(6) As part of the registration and reporting requirements of this section:

(a) The person required to report shall:

(A) Provide the information necessary to complete the sex offender registration form and sign the form as required; and

(B) Submit to the requirements described in paragraph (b) of this subsection.

(b) The Department of State Police, Oregon Youth Authority, county juvenile department, city police department or county sheriff's office:

(A) Shall photograph the person when the person initially reports under this section and each time the person reports annually under this section;

(B) May photograph the person or any identifying scars, marks or tattoos located on the person when the person reports under any of the circumstances described in this section; and

(C) Shall fingerprint the person if the person's fingerprints are not included in the record file of the Department of State Police.

(7) The obligation to report under this section is terminated if the adjudication that gave rise to the obligation is reversed or vacated.

(8) Notwithstanding subsections (2) and (3) of this section:

(a) The Oregon Youth Authority may authorize an adjudicated youth committed to its custody and supervision by order of the juvenile court, or a person placed in its physical custody under ORS 137.124 or any other provision of law, to report to the authority regardless of the adjudicated youth's or the person's last reported residence.

(b) A county juvenile department may authorize an adjudicated youth or young person, as those terms are defined in ORS 419A.004, to report to the department, regardless of the county of the adjudicated youth's or the young person's last reported residence.

(c) In the event that a person reports to the authority or the department under this subsection, the authority or the department shall register the person.

Credits

Renumbered from 181.809 in 2015 by the Legislative Counsel. Amended by Laws 2016, c. 95, § 1, eff. April 4, 2016; Laws 2019, c. 430, § 14, eff. June 20, 2019, operative Jan. 1, 2021; Laws 2021, c. 489, § 14, eff. Jan. 1, 2022.

O. R. S. § 163A.025, OR ST § 163A.025

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O.R.S. § 163A.030

163A.030. Juvenile sex offenders; hearing on issue of reporting as sex offender

Currentness

(1)(a) Except as provided in subsection (6) of this section, the juvenile court shall hold a hearing on the issue of reporting as a sex offender by a person who has been found to be within the jurisdiction of the juvenile court under ORS 419C.005, or found by the juvenile court to be responsible except for insanity under ORS 419C.411, for having committed an act that if committed by an adult would constitute a felony sex crime if:

(A) The person was adjudicated on or after August 12, 2015; or

(B) The person was adjudicated before August 12, 2015, and was still under the jurisdiction of the juvenile court or the Psychiatric Security Review Board on April 4, 2016.

(b) Unless the court continues the hearing described in this section for good cause, the hearing must be held:

(A) During the six-month period before the termination of juvenile court jurisdiction over the person; or

(B) During the six-month period after the court receives the notice described in subsection (2) of this section from the Psychiatric Security Review Board, if the person was placed under the jurisdiction of the board.

(c) The court shall notify the person of the person's right to a hearing under this section upon finding the person within the jurisdiction of the juvenile court under ORS 419C.005.

(2)(a) The county or state agency responsible for supervising the person shall notify the person and the juvenile court when the agency determines that termination of jurisdiction is likely to occur within six months.

(b) If the Psychiatric Security Review Board discharges a person prior to the end of the board's jurisdiction over the person, the board shall notify the juvenile court within three business days after the discharge date.

(3) Upon receipt of the notice described in subsection (2) of this section, the court shall:

(a) Appoint an attorney for the person as described in subsection (4) of this section;

- (b) Set an initial hearing date; and
 - (c) Notify the parties and the juvenile department or the Psychiatric Security Review Board, if the department or board is supervising or has jurisdiction over the person, of the hearing at least 60 days before the hearing date.
- (4)(a) A person who is the subject of a hearing under this section has the right to be represented by a suitable attorney possessing skills and experience commensurate with the nature and complexity of the case, to consult with the attorney prior to the hearing and to have a suitable attorney appointed at state expense.
- (b) In order to comply with the right to counsel under paragraph (a) of this subsection, the court may:
 - (A) Continue the appointment of the attorney appointed under ORS 419C.200 at the time of disposition;
 - (B) Set a date prior to the hearing under this section in order to reappoint the attorney appointed under ORS 419C.200; or
 - (C) Appoint or reappoint an attorney at any time in response to a request by the person who is the subject of a hearing under this section.
- (5)(a) The district attorney shall notify the victim prior to the hearing of the right to appear and the right to be heard under ORS 419C.273.
- (b) If the person is under the jurisdiction of the Psychiatric Security Review Board, the board shall notify the following of the hearing:
 - (A) The mental health agency providing services to the person, if any;
 - (B) The person's board defense attorney; and
 - (C) The assistant attorney general representing the state at board hearings.
- (6)(a) A person may waive the right to the hearing described in this section only after receiving the notice described in subsection (2)(a) of this section and after consultation with the person's attorney. If the court finds that the person has knowingly waived the right to a hearing, the court shall enter an order requiring the person to report as a sex offender under ORS 163A.025.
- (b) If a person fails to appear at a hearing described in this section, the court may enter an order requiring the person to report as a sex offender under ORS 163A.025.

(7) At the hearing described in subsection (1) of this section:

(a) The district attorney, the victim, the person and the juvenile department or a representative of the Oregon Youth Authority shall have an opportunity to be heard.

(b) The person who is the subject of the hearing has the burden of proving by clear and convincing evidence that the person is rehabilitated and does not pose a threat to the safety of the public. If the court finds that the person has not met the burden of proof, the court shall enter an order requiring the person to report as a sex offender under ORS 163A.025.

(8) In determining whether the person has met the burden of proof, the juvenile court may consider but need not be limited to considering:

(a) The extent and impact of any physical or emotional injury to the victim;

(b) The nature of the act that subjected the person to the duty of reporting as a sex offender;

(c) Whether the person used or threatened to use force in committing the act;

(d) Whether the act was premeditated;

(e) Whether the person took advantage of a position of authority or trust in committing the act;

(f) The age of any victim at the time of the act, the age difference between any victim and the person and the number of victims;

(g) The vulnerability of the victim;

(h) Other acts committed by the person that would be crimes if committed by an adult and criminal activities engaged in by the person before and after the adjudication;

(i) Statements, documents and recommendations by or on behalf of the victim or the parents of the victim;

(j) The person's willingness to accept personal responsibility for the act and personal accountability for the consequences of the act;

(k) The person's ability and efforts to pay the victim's expenses for counseling and other trauma-related expenses or other efforts to mitigate the effects of the act;

(L) Whether the person has participated in and satisfactorily completed a sex offender treatment program or any other intervention, and if so the juvenile court may also consider:

- (A) The availability, duration and extent of the treatment activities;
- (B) Reports and recommendations from the providers of the treatment;
- (C) The person's compliance with court, board or supervision requirements regarding treatment; and
- (D) The quality and thoroughness of the treatment program;
- (m) The person's academic and employment history;
- (n) The person's use of drugs or alcohol before and after the adjudication;
- (o) The person's history of public or private indecency;
- (p) The person's compliance with and success in completing the terms of supervision;
- (q) The results of psychological examinations of the person;
- (r) The protection afforded the public by records of sex offender registration; and
- (s) Any other relevant factors.

(9) In a hearing under this section, the juvenile court may receive testimony, reports and other evidence, without regard to whether the evidence is admissible under ORS 40.010 to 40.210 and 40.310 to 40.585, if the evidence is relevant evidence related to the determination and findings required under this section. As used in this subsection, "relevant evidence" has the meaning given that term in ORS 40.150.

(10)(a) In a hearing under this section, the Oregon Youth Authority or the juvenile department, if either agency is supervising the person, or the Psychiatric Security Review Board, if the board has jurisdiction over the person, shall file with the juvenile court the following records and materials in the possession of the agency or board at least 45 days prior to the hearing unless good cause is shown:

- (A) Evaluations and treatment records concerning the person conducted by a clinician or program operating under the standards of practice for the evaluation and treatment of juvenile sex offenders adopted by the Sexual Offense Treatment

Board under ORS 675.400, and recommendations contained therein regarding the need for the person to register in order to protect the public from future sex crimes;

(B) All examination preparation material and examination records from polygraph examinations conducted by or for the treatment provider, juvenile department or Oregon Youth Authority; and

(C) The Psychiatric Security Review Board exhibit file.

(b) Any records and materials filed with the court under this subsection shall be made available to the parties in accordance with ORS 419A.255.

(11)(a) When the juvenile court enters an order described in subsection (6)(a) or (7)(b) of this section, the court shall ensure that the person completes a form that documents the person's obligation to report under ORS 163A.025. No later than three business days after the person completes the form required by this subsection, the court shall ensure that the form is sent to the Department of State Police.

(b) If the court enters an order under this section, no later than three business days after entry of the order, the court shall ensure that the order is sent to the Department of State Police.

(12) Notwithstanding ORS 419C.005 (4)(c), (d) and (e), the juvenile court retains jurisdiction over a person for purposes of this section.

(13) As used in this section, “parties” means the person, the state as represented by the district attorney or the juvenile department, and the Oregon Youth Authority or other child care agency, if the person is temporarily committed to the authority or agency.

Credits

Added by Laws 2015, c. 820, § 31, eff. Aug. 12, 2015. Amended by Laws 2016, c. 95, § 2, eff. April 4, 2016; Laws 2019, c. 430, § 17, eff. June 20, 2019; Laws 2019, c. 68, § 13, eff. Sept. 29, 2019, operative Jan. 1, 2020; Laws 2021, c. 597, § 33, eff. Sept. 25, 2021, operative Jan. 1, 2022.

O. R. S. § 163A.030, OR ST § 163A.030

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O.R.S. § 163A.035

Formerly cited as OR ST § 181.598; OR ST § 181.810

163A.035. Registration forms and procedures

Currentness

- (1) Agencies registering offenders under ORS 163A.010, 163A.015, 163A.020 and 163A.025 shall use forms and procedures adopted by the Department of State Police by administrative rule. The department shall include places on the form to list all the names used by the offender and the address of the offender. No later than three working days after registration, the agency or official completing the form shall forward the registration information to the department in the manner prescribed by the department.
- (2) The department shall enter into the Law Enforcement Data System the sex offender information obtained from the sex offender registration forms. If a conviction or adjudication that gave rise to the registration obligation is reversed or vacated or if the registrant is pardoned, the department shall remove from the Law Enforcement Data System the sex offender information obtained from the form.
- (3) The Law Enforcement Data System may send sex offender information to the National Crime Information Center as part of the national sex offender registry in accordance with appropriate state and federal procedures.
- (4) If the person is no longer under supervision, the department shall verify the residence address of a person determined to be a sexually violent dangerous offender as defined in ORS 137.765 every 90 days by mailing a verification form to the person at the person's last reported residence address. No later than 10 days after receiving the form, the person shall sign and return the form to the department.
- (5) The department shall assess a person who is required to report under ORS 163A.010, 163A.015 or 163A.020 and who is not under supervision a fee of \$70 each year. Moneys received by the department under this subsection are continuously appropriated to the department for the purpose of carrying out the department's duties under ORS 163A.005 to 163A.235.

Credits

Renumbered from 181.810 in 2015 by the Legislative Counsel. Amended by Laws 2021, c. 597, § 34, eff. Sept. 25, 2021, operative Jan. 1, 2022.

O. R. S. § 163A.035, OR ST § 163A.035

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O.R.S. § 163A.040

Formerly cited as OR ST § 181.599; OR ST § 181.812

163A.040. Crime of failure to report as sex offender

Currentness

(1) A person who is required to report as a sex offender in accordance with the applicable provisions of ORS 163A.010, 163A.015, 163A.020 or 163A.025 and who has knowledge of the reporting requirement commits the crime of failure to report as a sex offender if the person:

- (a) Fails to make the initial report to an agency;
- (b) Fails to report when the person works at, carries on a vocation at or attends an institution of higher education;
- (c) Fails to report following a change of school enrollment or employment status, including enrollment, employment or vocation status at an institution of higher education;
- (d) Moves to a new residence and fails to report the move and the person's new address;
- (e) Fails to report a legal change of name;
- (f) Fails to make an annual report;
- (g) Fails to provide complete and accurate information;
- (h) Fails to sign the sex offender registration form as required;
- (i) Fails or refuses to participate in a sex offender risk assessment as directed by the State Board of Parole and Post-Prison Supervision, Psychiatric Security Review Board, Oregon Health Authority or supervisory authority;
- (j) Fails to submit to fingerprinting or to having a photograph taken of the person's face, identifying scars, marks or tattoos; or
- (k) Fails to report prior to any intended travel outside of the United States.

(2)(a) It is an affirmative defense to a charge of failure to report under subsection (1)(d) of this section by a person required to report under ORS 163A.010 (3)(a)(B), 163A.015 (4)(a)(B) or 163A.025 (3)(a) that the person reported, in person, within 10 days of a change of residence to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's new residence, if the person otherwise complied with all reporting requirements.

(b) It is an affirmative defense to a charge of failure to report under subsection (1)(a) of this section by a person required to report under ORS 163A.025 (2)(b)(A)(i) that the person reported, in person, to the Department of State Police in Marion County, Oregon, within 10 days of moving into this state.

(c) It is an affirmative defense to a charge of failure to report under subsection (1)(a) of this section by a person required to report under ORS 163A.025 (2)(b)(B)(i) that the person reported, in person, to the Department of State Police in Marion County, Oregon, within six months of moving into this state.

(d) It is an affirmative defense to a charge of failure to report under subsection (1) of this section by a person required to report under ORS 163A.025 (2)(b)(A)(ii) or (B)(ii) that the person reported, in person, to the Department of State Police in Marion County, Oregon, if the person otherwise complied with all reporting requirements.

(e) It is an affirmative defense to a charge of failure to report under subsection (1) of this section by a person required to report under ORS 163A.025 (3) that the person reported, in person, to the Department of State Police, a city police department or a county sheriff's office, in the county of the person's residence, if the person otherwise complied with all reporting requirements.

(f) It is an affirmative defense to a charge of failure to report under subsection (1) of this section by a person required to report under ORS 163A.010 (3) that the person reported to the Oregon Youth Authority if the person establishes that the authority registered the person under ORS 163A.010 (3)(c).

(g) It is an affirmative defense to a charge of failure to report under subsection (1) of this section by a person required to report under ORS 163A.025 (2) or (3) that the person reported to the Oregon Youth Authority or a county juvenile department if the person establishes that the authority or department registered the person under ORS 163A.025 (8).

(3)(a) Except as otherwise provided in paragraph (b) of this subsection, failure to report as a sex offender is a Class A misdemeanor.

(b) Failure to report as a sex offender is a Class C felony if the person violates:

(A) Subsection (1)(a) of this section; or

(B) Subsection (1)(b), (c), (d), (e) or (h) of this section and the crime for which the person is required to report is a felony.

(4) A person who fails to sign and return an address verification form as required by ORS 163A.035 (4) commits a violation.

Credits

Renumbered from 181.812 in 2015 by the Legislative Counsel. Amended by Laws 2016, c. 95, § 4a, eff. April 4, 2016; Laws 2017, c. 418, § 1, eff. June 22, 2017; Laws 2017, c. 418, § 2, eff. June 22, 2017, operative Jan. 1, 2022; Laws 2019, c. 430, § 16, eff. June 20, 2019, operative Jan. 1, 2022.

O. R. S. § 163A.040, OR ST § 163A.040

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Reporting

O.R.S. § 163A.045

Formerly cited as OR ST § 181.602; OR ST § 181.814

163A.045. Sex offender reporting requirement purpose

Currentness

(1) The purpose of ORS 163A.005 to 163A.235 is to assist law enforcement agencies in preventing future sex offenses.

(2) The Department of State Police may adopt rules to carry out the responsibilities of the department under ORS 163A.005 to 163A.235.

Credits

Renumbered from 181.814 in 2015 by the Legislative Counsel.

O. R. S. § 163A.045, OR ST § 163A.045

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.050

Formerly cited as OR ST § 181.603; OR ST § 181.815

163A.050. Notice of reporting obligation

Currentness

(1) When the court imposes sentence upon a person convicted of a sex crime or finds a person guilty except for insanity of a sex crime, the court shall notify the person of the obligation to report as a sex offender under ORS 163A.010 and 163A.015.

(2) At the initial intake for incarceration or release on any type of supervised release, the sex offender shall complete a form that documents the offender's obligation to report under ORS 163A.010 or 163A.015 and the effect described in ORS 163A.115 of failing to submit to a sex offender risk assessment. The Department of State Police shall develop and provide the form. No later than three working days after the sex offender completes the form, the person responsible for the intake process shall send the form to the Department of State Police.

Credits

Renumbered from 181.815 in 2015 by the Legislative Counsel. Amended by Laws 2017, c. 233, § 1, eff. Jan. 1, 2018.

O. R. S. § 163A.050, OR ST § 163A.050

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.055

Formerly cited as OR ST § 181.604; OR ST § 181.816

163A.055. Notice requirement upon moving to another state

Currentness

When the Department of State Police learns that a person required to report under ORS 163A.010, 163A.015, 163A.020 or 163A.025 is moving to another state, the department shall notify the appropriate criminal justice agency of that state of that fact. The department is not responsible for registering and tracking a person once the person has moved from this state.

Credits

Renumbered from 181.816 in 2015 by the Legislative Counsel.

O. R. S. § 163A.055, OR ST § 163A.055

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.060

Formerly cited as OR ST § 181.605; OR ST § 181.817

163A.060. Profile of offender

Currentness

(1) For those sex offenders classified as a level three sex offender under ORS 163A.100 (3), or designated as a predatory sex offender prior to January 1, 2014, the supervising agency or the agency making the classification or designation shall provide the Department of State Police, by electronic or other means, at the termination of supervision, with the following information for the purpose of offender profiling:

- (a) Presentence investigations;
 - (b) Violation reports;
 - (c) Parole and probation orders;
 - (d) Conditions of parole and probation and other corrections records;
 - (e) Sex offender risk assessments; and
 - (f) Any other information that the supervising agency or the agency making the classification or designation determines is appropriate disclosure of which is not otherwise prohibited by law.
- (2) The Oregon Youth Authority and county juvenile departments shall provide access to information in their files to the Oregon State Police for the purpose of offender profiling.
- (3)(a) Except as otherwise provided by law, the Oregon State Police may not disclose information received under subsection (1) or (2) of this section.
- (b) The Department of State Police may release information on the methodology of offenses and behavior profiles derived from information received under subsection (1) or (2) of this section to local law enforcement agencies.

Credits

Renumbered from 181.817 in 2015 by the Legislative Counsel.

O. R. S. § 163A.060, OR ST § 163A.060

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.065

Formerly cited as OR ST § 181.606; OR ST § 181.818

163A.065. Agency immunity

Currentness

A public agency and its employees are immune from liability, both civil and criminal, for the good faith performance of the agency's or employee's duties under ORS 163A.005 to 163A.235.

Credits

Renumbered from 181.818 in 2015 by the Legislative Counsel.

O. R. S. § 163A.065, OR ST § 163A.065

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Classification

O.R.S. § 163A.100
Formerly cited as OR ST § 181.800

163A.100. Sex offender classification; adoption of risk assessment methodology

Currentness

<Text subject to final change by the Oregon Office of the Legislative Counsel.>

The State Board of Parole and Post-Prison Supervision shall, in consultation with community corrections agencies, adopt by rule a sex offender risk assessment methodology for use in classifying sex offenders. The methodology may consider exclusively the risk the sex offender presented at the time the sex offender was released from custody, sentenced or otherwise discharged from the jurisdiction of a court of this state, or another United States court, for the crime or act for which the sex offender is required to report. Application of the risk assessment methodology to a sex offender must result in placing the sex offender in one of the following levels:

- (1) A level one sex offender who presents, or presented at the time of release, sentencing or discharge, the lowest risk of reoffending and requires a limited range of notification.
- (2) A level two sex offender who presents, or presented at the time of release, sentencing or discharge, a moderate risk of reoffending and requires a moderate range of notification.
- (3) A level three sex offender who presents, or presented at the time of release, sentencing or discharge, the highest risk of reoffending and requires the widest range of notification.

Credits

Renumbered from 181.800 in 2015 by the Legislative Counsel; Laws 2025, c. 187, § 1, eff. May 27, 2025.

O. R. S. § 163A.100, OR ST § 163A.100

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.105
Formerly cited as OR ST § 181.801

163A.105. Time for conducting risk assessment; notice of results and entry into
Law Enforcement Data System; reassessment or reclassification; petition for review

Currentness

<Text subject to final change by the Oregon Office of the Legislative Counsel.>

(1) When a person convicted of a crime described in ORS 163.355 to 163.427 is sentenced to a term of imprisonment in a Department of Corrections institution for that crime, the State Board of Parole and Post-Prison Supervision shall assess the person utilizing the risk assessment methodology described in ORS 163A.100. The board shall apply the results of the assessment to place the person in one of the levels described in ORS 163A.100 before the person is released from custody.

(2) When a person convicted of a sex crime is sentenced to a term of incarceration in a jail, or is discharged, released or placed on probation by the court, the supervisory authority as defined in ORS 144.087 shall assess the person utilizing the risk assessment methodology described in ORS 163A.100 and apply the results of the assessment to place the person in one of the levels described in ORS 163A.100 no later than 90 days after the person is released from jail or discharged, released or placed on probation by the court.

(3)(a) When a person is found guilty except for insanity of a sex crime, the Psychiatric Security Review Board shall assess the person utilizing the risk assessment methodology described in ORS 163A.100 and apply the results of the assessment to place the person in one of the levels described in ORS 163A.100 no later than 90 days after the person is:

(A) Placed on conditional release by the Psychiatric Security Review Board;

(B) Discharged from the jurisdiction of the Psychiatric Security Review Board;

(C) Placed on conditional release by the court pursuant to ORS 161.327; or

(D) Discharged by the court pursuant to ORS 161.329.

(b) If the State Board of Parole and Post-Prison Supervision previously completed a risk assessment and assigned a classification level described in ORS 163A.100 for a person described in paragraph (a) of this subsection, the Psychiatric Security Review Board need not complete a reassessment for an initial classification.

(c) The court shall notify the Psychiatric Security Review Board when the court conditionally releases or discharges a person described in paragraph (a) of this subsection.

(d) The Psychiatric Security Review Board shall notify the State Board of Parole and Post-Prison Supervision no later than seven days after the Psychiatric Security Review Board conditionally releases or discharges a person who has a prior sex crime conviction that obligates the person to report as a sex offender, unless the person has also been found guilty except for insanity of a sex crime that obligates the person to report as a sex offender.

(4)(a) Within 90 days after receiving notice of a person's obligation to report in this state from the Department of State Police, the State Board of Parole and Post-Prison Supervision shall assess the person utilizing the risk assessment methodology described in ORS 163A.100 and apply the results of the assessment to place the person in one of the levels described in ORS 163A.100 if the person has been convicted in another United States court of a crime:

(A) That would constitute a sex crime if committed in this state; or

(B) For which the person would have to register as a sex offender in that court's jurisdiction, or as required under federal law, regardless of whether the crime would constitute a sex crime in this state.

(b) If a person has been convicted of a sex crime and was sentenced to a term of imprisonment in a Department of Corrections institution for that sex crime, but was not subjected to a risk assessment utilizing the risk assessment methodology described in ORS 163A.100 before release under subsection (1) of this section, within 90 days after the person's release the State Board of Parole and Post-Prison Supervision shall assess the person utilizing the risk assessment methodology described in ORS 163A.100 and apply the results of the assessment to place the person in one of the levels described in ORS 163A.100.

(5) When the State Board of Parole and Post-Prison Supervision, the Psychiatric Security Review Board or a supervisory authority applies the results of a risk assessment to place a person in one of the levels described in ORS 163A.100, the agency shall notify the Department of State Police of the results of the risk assessment within three business days after the agency's classification. Upon receipt, the Department of State Police shall enter the results of the risk assessment into the Law Enforcement Data System.

(6) The State Board of Parole and Post-Prison Supervision, the Psychiatric Security Review Board or a supervisory authority may reassess or reclassify a person placed in one of the levels described in ORS 163A.100 under this section if:

(a) The classifying board or authority determines that a factual mistake caused an erroneous assessment or classification; or

(b) The person has committed a sexually motivated rule violation while in custody, has committed a sexually motivated violation of a condition of probation, parole or post-prison supervision or has been arrested for or charged with a sex crime.

(7)(a) A person classified under this section as a level two or level three sex offender as described in ORS 163A.100 may petition the classifying board or authority for review. Except for good cause shown, the petition may be filed no later than 60 days after the notice of the classification is provided to the person or, if the notice is mailed, no later than 60 days after the notice is sent.

(b) When good cause is shown, the time for filing a petition under this subsection may not be extended more than 60 days beyond the date of the person's next annual report under ORS 163A.010, 163A.015 or 163A.020.

(c) Upon receipt of a petition described in this subsection, the classifying board or authority shall afford the person an opportunity to be heard as to all factual questions related to the classification.

(d) After providing the person with notice and an opportunity to be heard in accordance with this subsection, the board or authority shall classify the person in accordance with the classifications described in ORS 163A.100, based on all of the information available to the classifying board or authority.

(e) As used in this subsection, "good cause" means that, due to a person's transience, lack of housing, ongoing mental health concerns or other similar circumstances, a notice mailed to the person under paragraph (a) of this subsection was not received by the person.

(8)(a) If the State Board of Parole and Post-Prison Supervision, the Psychiatric Security Review Board or a supervisory authority does not classify a person under ORS 163A.100 because the person has failed or refused to participate in a sex offender risk assessment as directed by the board or authority, the classifying board or authority shall classify the person as a level three sex offender under ORS 163A.100 (3).

(b) If a person classified as a level three sex offender under this subsection notifies the classifying board or authority of the willingness to participate in a sex offender risk assessment, the classifying board or authority shall perform the assessment and classify the person in one of the levels described in ORS 163A.100.

(9) The State Board of Parole and Post-Prison Supervision and the Psychiatric Security Review Board may adopt rules to carry out the provisions of this section.

Credits

Renumbered from 181.801 in 2015 by the Legislative Counsel. Amended by Laws 2017, c. 488, § 2, eff. Jan. 1, 2018; Laws 2017, c. 442, § 30, eff. June 22, 2017, operative July 1, 2018; Laws 2019, c. 430, § 19, eff. June 20, 2019; Laws 2025, c. 187, § 2, eff. May 27, 2025.

O. R. S. § 163A.105, OR ST § 163A.105

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Classification

O.R.S. § 163A.110
Formerly cited as OR ST § 181.802

163A.110. Application of risk assessment provisions; “event triggering the obligation to make an initial report” defined

Currentness

(1) ORS 163A.105 applies to persons for whom the event triggering the obligation to make an initial report under ORS 163A.010 (3)(a)(A), 163A.015 (4)(a)(A) or 163A.020 (1)(a)(A), (2)(a)(A) or (3)(a)(A) occurs on or after January 1, 2014.

(2) As used in this section, “event triggering the obligation to make an initial report” means:

(a) If the initial report is described in ORS 163A.010 (3)(a)(A):

(A) Discharge, parole or release on any form of supervised or conditional release from a jail, prison or other correctional facility in this state;

(B) Parole to this state under ORS 144.610 after being convicted in another United States court of a crime that would constitute a sex crime if committed in this state; or

(C) Discharge by the court under ORS 161.329.

(b) If the initial report is described in ORS 163A.015 (4)(a)(A), discharge, release or placement on probation:

(A) By the court; or

(B) To or in this state under ORS 144.610 after being convicted in another United States court of a crime that would constitute a sex crime if committed in this state.

(c) If the initial report is described in ORS 163A.020 (1)(a)(A), moving into this state.

(d) If the initial report is described in ORS 163A.020 (2)(a)(A), the first day of school attendance or the 14th day of employment in this state.

(e) If the initial report is described in ORS 163A.020 (3)(a)(A):

(A) Discharge, release on parole or release on any form of supervised or conditional release, from a jail, prison or other correctional facility or detention facility; or

(B) Discharge, release or placement on probation, by another United States court.

Credits

Renumbered from 181.802 in 2015 by the Legislative Counsel. Amended by Laws 2017, c. 488, § 5, eff. Jan. 1, 2018.

O. R. S. § 163A.110, OR ST § 163A.110

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. T. 16, Ch. 163A, Refs & Annos
Currentness

O. R. S. T. 16, Ch. 163A, Refs & Annos, OR ST T. 16, Ch. 163A, Refs & Annos

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.115

Formerly cited as OR ST § 181.803

163A.115. Persons not eligible for relief from reporting requirements

Currentness

<Text subject to final change by the Oregon Office of the Legislative Counsel.>

Notwithstanding any other provision of law:

(1) A person who is a sexually violent dangerous offender under ORS 137.765:

(a) Must be classified as a level three sex offender under ORS 163A.100 (3); and

(b) Is not eligible for relief from the obligation to report as a sex offender or reclassification as a level two sex offender under ORS 163A.100 (2), pursuant to a petition filed under ORS 163A.125.

(2) A person who has been convicted or found guilty except for insanity of one of the following offenses is not eligible for relief from the obligation to report as a sex offender pursuant to a petition filed under ORS 163A.125 (1):

(a) Rape in the first degree;

(b) Sodomy in the first degree;

(c) Unlawful sexual penetration in the first degree;

(d) Kidnapping in the first degree as described in ORS 163.235 (1)(e) or when the victim is under 18 years of age; or

(e) Burglary in the first degree when committed with the intent to commit any of the offenses listed in ORS 163A.005 (5) (a) to (y).

(3) A person classified as a level three sex offender under section 7 (2)(b), chapter 708, Oregon Laws 2013, is not eligible for relief from the obligation to report as a sex offender pursuant to a petition filed under ORS 163A.125 (1).

Credits

Renumbered from 181.803 in 2015 by the Legislative Counsel. Amended by Laws 2023, c. 200, § 5, eff. June 7, 2023; Laws 2024, c. 63, § 2, eff. March 27, 2024, operative Jan. 1, 2025.

O. R. S. § 163A.115, OR ST § 163A.115

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.120

163A.120. Repealed by Laws 2017, c. 488, § 3, eff. Jan. 1, 2023

Currentness

O. R. S. § 163A.120, OR ST § 163A.120

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Reclassification and Relief from Reporting

O.R.S. § 163A.125
Formerly cited as OR ST § 181.821

163A.125. Reclassification and relief hearings

Currentness

(1)(a) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to a conviction for a sex crime and is classified as a level one sex offender under ORS 163A.100 (1) may petition the State Board of Parole and Post-Prison Supervision to relieve the person from the obligation to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020.

(b) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to being found guilty except for insanity under ORS 161.295 for a sex crime, and is classified as a level one sex offender under ORS 163A.100 (1), may petition the Psychiatric Security Review Board to relieve the person from the obligation to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020.

(c)(A) Except as otherwise provided in subparagraph (B) of this paragraph, a person described in paragraph (a) or (b) of this subsection may file the petition no sooner than five years after the date supervision for the sex crime is terminated or, if the person was not subject to supervision for the sex crime, five years after the date the person was discharged from the jurisdiction of the court, Psychiatric Security Review Board or Oregon Health Authority.

(B) A person who was reclassified under subsection (2) of this section from a level two sex offender under ORS 163A.100 (2) to a level one sex offender under ORS 163A.100 (1) may file the petition no sooner than five years after the date of reclassification.

(d) Notwithstanding paragraph (c) of this subsection, if a person is required to report because of a conviction or finding of guilty except for insanity from another United States court as that term is defined in ORS 163A.005, the person may not petition for relief from reporting as a sex offender in Oregon unless the laws of the jurisdiction where the person was convicted or found guilty except for insanity would permit a petition for relief from reporting as a sex offender.

(2)(a) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to a conviction for a sex crime and is classified as a level three sex offender under ORS 163A.100 (3) may petition the State Board of Parole and Post-Prison Supervision to reclassify the person as a level two sex offender under ORS 163A.100 (2).

(b) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to being found guilty except for insanity under ORS 161.295 for a sex crime, and is classified as a level three sex offender under ORS

163A.100 (3), may petition the Psychiatric Security Review Board to reclassify the person as a level two sex offender under ORS 163A.100 (2).

(c) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to a conviction for a sex crime and is classified as a level two sex offender under ORS 163A.100 (2) may petition the State Board of Parole and Post-Prison Supervision to reclassify the person as a level one sex offender under ORS 163A.100 (1).

(d) A person who is required to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 due to being found guilty except for insanity under ORS 161.295 for a sex crime, and is classified as a level two sex offender under ORS 163A.100 (2), may petition the Psychiatric Security Review Board to reclassify the person as a level one sex offender under ORS 163A.100 (1).

(e) The petition described in this subsection may be filed no sooner than 10 years after the date supervision for the sex crime is terminated or, if the person was not subject to supervision for the sex crime, 10 years after the date the person was discharged from the jurisdiction of the court, Psychiatric Security Review Board or Oregon Health Authority.

(3)(a) The State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board shall deny a petition filed under this section if, at any time after the person is convicted or found guilty except for insanity of a sex crime, the person is convicted of or found guilty except for insanity of a person felony or a person Class A misdemeanor, as those terms are defined in the rules of the Oregon Criminal Justice Commission.

(b) The appropriate board shall deny a petition filed under subsection (2)(c) or (d) of this section if the board has previously reclassified the person as a level two sex offender under ORS 163A.100 (2) as the result of a petition filed under subsection (2)(a) or (b) of this section.

(4)(a) Except as otherwise provided in subsection (3) of this section, if a person files a petition under subsection (1) of this section, the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board shall hold a hearing. At the hearing, the board shall enter an order relieving the person of the obligation to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 if the board determines, by clear and convincing evidence, that the person:

(A) Is statistically unlikely to reoffend; and

(B) Does not pose a threat to the safety of the public.

(b)(A) Except as otherwise provided in subsection (3) of this section, if a person files a petition under subsection (2)(a) or (b) of this section, the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board shall hold a hearing. At the hearing, the board shall enter an order reclassifying the person as a level two sex offender under ORS 163A.100 (2) if, after completion of a new risk assessment utilizing the risk assessment methodology described in ORS 163A.100, the person is classified as presenting a low or moderate risk of reoffending and the board determines that a lower level of notification is sufficient to protect public safety.

(B) Except as otherwise provided in subsection (3) of this section, if a person files a petition under subsection (2)(c) or (d) of this section, the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board shall hold a hearing. At the hearing, the board shall enter an order reclassifying the person as a level one sex offender under ORS 163A.100 (1) if, after completion of a new risk assessment utilizing the risk assessment methodology described in ORS 163A.100, the person is classified as presenting a low risk of reoffending and the board determines that a lower level of notification is sufficient to protect public safety.

(5) In making the determinations described in subsection (4) of this section, the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board shall consider:

- (a) The nature of and degree of violence involved in the offense that requires reporting;
 - (b) The age and number of victims of the offense that requires reporting;
 - (c) The age of the person at the time of the offense that requires reporting;
 - (d) The length of time since the offense that requires reporting and the time period during which the person has not reoffended;
 - (e) The person's performance on supervision for the offense that requires reporting;
 - (f) Whether the person has participated in or successfully completed a court-approved sex offender treatment program or any other rehabilitative programs;
 - (g) The person's stability in employment and housing;
 - (h) The person's community and personal support system;
 - (i) Other criminal and relevant noncriminal behavior of the person both before and after the offense that requires reporting; and
 - (j) Any other relevant factors.
- (6)(a) The Attorney General may represent the state at a hearing conducted under this section unless the district attorney of the county in which the person was convicted or, if the conviction for which the person is required to report as a sex offender was entered in another United States court, the district attorney of the county in which the person resides, elects to represent the state.
- (b) If a district attorney elects to represent the state, the district attorney shall give timely written notice of the election to the Attorney General, the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board and the person who is the subject of the hearing.

(c) If the district attorney declines to represent the state, the district attorney shall cooperate with the Attorney General in securing the material necessary to represent the state.

(7)(a) When the State Board of Parole and Post-Prison Supervision or the Psychiatric Security Review Board enters an order under this section relieving a person of the obligation to report as a sex offender under ORS 163A.010, 163A.015 or 163A.020 or enters an order reclassifying a person as a level two sex offender under ORS 163A.100 (2) or as a level one sex offender under ORS 163A.100 (1), the board shall forward a copy of the order to the Department of State Police.

(b) Upon receipt of an order relieving a person of the obligation to report, the department shall remove from the Law Enforcement Data System the sex offender information obtained from the sex offender registration form submitted under ORS 163A.010, 163A.015 or 163A.020.

(c) Upon receipt of an order reclassifying a person as a level two sex offender under ORS 163A.100 (2) or as a level one sex offender under ORS 163A.100 (1), the department shall update the Law Enforcement Data System to reflect the reclassification.

(8) The State Board of Parole and Post-Prison Supervision and the Psychiatric Security Review Board shall adopt rules to carry out the provisions of this section. The rules may include a filing fee in an amount determined by the appropriate board. All fees paid under this subsection shall be deposited into the General Fund and credited to the account of the appropriate board.

(9) As used in this section, “supervision” means probation, parole, post-prison supervision or any other form of supervised or conditional release.

Credits

Renumbered from 181.821 in 2015 by the Legislative Counsel.

O. R. S. § 163A.125, OR ST § 163A.125

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.130

Formerly cited as OR ST § 181.607; OR ST § 181.823

163A.130. Juvenile offender relief from reporting requirement

Currentness

(1) A person required to report as a sex offender under ORS 163A.025 (1)(a), (b) or (c), or required to report as a sex offender under the laws of another state as a result of an adjudication in an Oregon juvenile court, may file a petition for an order relieving the person of the obligation to report. If the person resides:

(a) In this state and is required to report under ORS 163A.025 (2) or (3), the petition must be filed in the juvenile court in which the person was adjudicated for the act that requires reporting.

(b) In another state and is required to report under ORS 163A.025 (4), the petition must be filed in the juvenile court in the county in which the person attends school or works.

(c) In another state and is required to report under the laws of the other state, the petition must be filed in the juvenile court in which the person was adjudicated for the act that requires reporting.

(2) If the act giving rise to the obligation to report would constitute:

(a) A Class A or Class B felony sex crime if committed by an adult, the petition may be filed no sooner than two years after the termination of juvenile court jurisdiction over the person or, if the person is placed under the jurisdiction of the Psychiatric Security Review Board, no sooner than two years after the person is discharged from the jurisdiction of the board.

(b) A Class C felony sex crime if committed by an adult, the petition may be filed no sooner than 30 days before the termination of juvenile court jurisdiction over the person or, if the person is placed under the jurisdiction of the Psychiatric Security Review Board, no sooner than 30 days before the person is discharged from the jurisdiction of the board.

(3)(a) The juvenile court in which a petition under this section is filed may transfer the matter to the juvenile court of the county that last supervised the person if the court determines that the convenience of the parties, the victim and witnesses require the transfer.

(b) The juvenile court has exclusive original jurisdiction in any proceeding under this section.

(c) The person, the district attorney and the juvenile department are parties to a hearing on a petition filed under this section.

(4) The person filing the petition has the burden of proving by clear and convincing evidence that the person is rehabilitated and does not pose a threat to the safety of the public. In determining whether the person has met the burden of proof, the juvenile court may consider but need not be limited to considering:

(a) The extent and impact of any physical or emotional injury to the victim;

(b) The nature of the act that subjected the person to the obligation of reporting as a sex offender;

(c) Whether the person used or threatened to use force in committing the act;

(d) Whether the act was premeditated;

(e) Whether the person took advantage of a position of authority or trust in committing the act;

(f) The age of any victim at the time of the act, the age difference between any victim and the person and the number of victims;

(g) The vulnerability of the victim;

(h) Other acts committed by the person that would be crimes if committed by an adult and criminal activities engaged in by the person before and after the adjudication;

(i) Statements, documents and recommendations by or on behalf of the victim or the parents of the victim;

(j) The person's willingness to accept personal responsibility for the act and personal accountability for the consequences of the act;

(k) The person's ability and efforts to pay the victim's expenses for counseling and other trauma-related expenses or other efforts to mitigate the effects of the act;

(L) Whether the person has participated in and satisfactorily completed a sex offender treatment program or any other intervention, and if so the juvenile court may also consider:

(A) The availability, duration and extent of the treatment activities;

(B) Reports and recommendations from the providers of the treatment;

(C) The person's compliance with court, board or supervision requirements regarding treatment; and

(D) The quality and thoroughness of the treatment program;

(m) The person's academic and employment history;

(n) The person's use of drugs or alcohol before and after the adjudication;

(o) The person's history of public or private indecency;

(p) The person's compliance with and success in completing the terms of supervision;

(q) The results of psychological examinations of the person;

(r) The protection afforded the public by the continued existence of the records; and

(s) Any other relevant factors.

(5) In a hearing under this section, the juvenile court may receive testimony, reports and other evidence without regard to whether the evidence is admissible under ORS 40.010 to 40.210 and 40.310 to 40.585 if the evidence is relevant to the determination and findings required under this section. As used in this subsection, "relevant evidence" has the meaning given that term in ORS 40.150.

(6) When a petition is filed under this section, the state has the right to have a psychosexual evaluation of the person conducted. The state shall file notice with the juvenile court of its intention to have the person evaluated. If the person objects to the evaluator chosen by the state, the juvenile court for good cause shown may direct the state to select a different evaluator.

(7) As soon as practicable after a petition has been filed under this section, the district attorney or juvenile department shall make a reasonable effort to notify the victim of the crime that the person has filed a petition seeking relief under this section and, if the victim has requested, to inform the victim of the date, time and place of a hearing on the petition in advance of the hearing.

(8)(a) When a petition filed under this section is filed:

(A) While the person is under the jurisdiction of the juvenile court or the Psychiatric Security Review Board or less than three years after the date the jurisdiction is terminated, the court shall hold a hearing no sooner than 60 days and no later than 120 days after the date of filing.

(B) Three years or more after the date the juvenile court or board jurisdiction is terminated, the court shall hold a hearing no sooner than 90 days and no later than 150 days after the date of filing.

(b) Notwithstanding paragraph (a) of this subsection, upon a showing of good cause, the court may extend the period of time in which a hearing on the petition must be held.

(9)(a) When the person proves by clear and convincing evidence that the person is rehabilitated and does not pose a threat to the safety of the public, the court shall grant the petition.

(b) Notwithstanding paragraph (a) of this subsection, the court may not grant a petition filed under this section before the date the juvenile court or board jurisdiction over the person is terminated.

(10) When a juvenile court enters an order relieving a person of the requirement to report under ORS 163A.025, the person shall send a certified copy of the juvenile court order to the Department of State Police.

(11) If a person commits an act for which the person could be waived under ORS 419C.349 (1)(a) and the person is 15, 16 or 17 years of age at the time the act is committed, the state and the person may stipulate that the person may not petition for relief under this section as part of an agreement that the state not file a motion requesting waiver under ORS 419C.349 (1)(a).

(12) When a petition is filed under subsection (2)(b) of this section before the termination of juvenile court or board jurisdiction, the court shall appoint suitable counsel to represent the person for purposes of the petition described in this section if the appointment of counsel is requested by the person or, if the person is under 18 years of age, by the parent or guardian of the person. Appointment of counsel under this subsection is subject to ORS 419C.200, 419C.206 and 419C.209.

Credits

Renumbered from 181.823 in 2015 by the Legislative Counsel. Amended by Laws 2016, c. 95, § 5, eff. April 4, 2016; Laws 2019, c. 634, § 9, eff. Sept. 29, 2019, operative Jan. 1, 2020; Laws 2021, c. 597, § 35, eff. Sept. 25, 2021, operative Jan. 1, 2022.

O. R. S. § 163A.130, OR ST § 163A.130

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.135

Formerly cited as OR ST § 181.608; OR ST § 181.826

163A.135. Juvenile offender relief from reporting requirement; foreign adjudications

Currentness

(1) Except as provided in subsection (7) of this section, a person required to report under ORS 163A.025 (1)(d) may file a petition in the juvenile court for an order relieving the person of the duty to report. If the person resides:

(a) In this state and is required to report under ORS 163A.025 (2) or (3), the petition must be filed in the juvenile court of the county in which the person resides.

(b) In another state and is required to report under ORS 163A.025 (4), the petition must be filed in the juvenile court of the county in which the person attends school or works.

(2) If the act giving rise to the obligation to report would constitute:

(a) A Class A or Class B felony sex crime if committed in this state by an adult, the petition may be filed no sooner than two years after the termination of the other United States court's jurisdiction over the person.

(b) A Class C felony sex crime if committed in this state by an adult, the petition may be filed no sooner than 30 days before the termination of the other United States court's jurisdiction over the person.

(3) The person filing the petition must submit with the petition all releases and waivers necessary to allow the district attorney for the county in which the petition is filed to obtain the following documents from the jurisdiction in which the person was adjudicated for the act for which reporting is required:

(a) The juvenile court petition;

(b) The dispositional report to the court;

(c) The order of adjudication or jurisdiction;

(d) Any other relevant court documents;

- (e) The police report relating to the act for which reporting is required;
 - (f) The order terminating jurisdiction for the act for which reporting is required; and
 - (g) The evaluation and treatment records or reports of the person that are related to the act for which reporting is required.
- (4) A person filing a petition under this section has the burden of proving by clear and convincing evidence that the person is rehabilitated and does not pose a threat to the safety of the public.
- (5) Unless the court finds good cause for a continuance, the court shall hold a hearing on the petition no sooner than 90 days and no later than 150 days after the date the petition is filed.
- (6) If a person who files a petition under this section is required to report as a sex offender for having committed an act that if committed in this state could have subjected the person to waiver under ORS 419C.349 (1)(a), the court may not grant the petition notwithstanding the fact that the person has met the burden of proof established in subsection (4) of this section unless the court determines that to do so is in the interest of public safety.
- (7) This section does not apply to a person who is required to register as a sex offender for life in the jurisdiction in which the offense occurred.
- (8) In a hearing under this section, the court may receive testimony, reports and other evidence without regard to whether the evidence is admissible under ORS 40.010 to 40.210 and 40.310 to 40.585 if the evidence is relevant to the determination and findings required under this section. As used in this subsection, “relevant evidence” has the meaning given that term in ORS 40.150.
- (9) If the court is satisfied by clear and convincing evidence that the person is rehabilitated and that the person does not pose a threat to the safety of the public, the court shall enter an order relieving the person of the duty to report. When the court enters an order under this subsection, the person shall send a certified copy of the court order to the Department of State Police.

Credits

Renumbered from 181.826 in 2015 by the Legislative Counsel. Amended by Laws 2016, c. 95, § 6, eff. April 4, 2016; Laws 2019, c. 634, § 10, eff. Sept. 29, 2019, operative Jan. 1, 2020; Laws 2021, c. 597, § 36, eff. Sept. 25, 2021, operative Jan. 1, 2022.

O. R. S. § 163A.135, OR ST § 163A.135

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.140
Formerly cited as OR ST § 181.830

163A.140. Sex offender reporting; when not required

Currentness

A person otherwise required to report under ORS 163A.010, 163A.015, 163A.020 or 163A.025 is not required to report, and if currently reporting is no longer required to report, if:

(1)(a) The person has been convicted of:

(A) Rape in the third degree as defined in ORS 163.355;

(B) Sodomy in the third degree as defined in ORS 163.385;

(C) Sexual abuse in the third degree as defined in ORS 163.415;

(D) Sexual abuse in the second degree as defined in ORS 163.425;

(E) Contributing to the sexual delinquency of a minor as defined in ORS 163.435;

(F) Sexual misconduct as defined in ORS 163.445; or

(G) An attempt to commit an offense listed in subparagraphs (A) to (F) of this paragraph;

(b) The person has been found guilty except for insanity of an offense listed in paragraph (a) of this subsection;

(c) The person has been found to be within the jurisdiction of the juvenile court for having committed an act that if committed by an adult would constitute an offense listed in paragraph (a)(A), (B) or (D) of this subsection; or

(d) The person is paroled to this state under ORS 144.610 after being convicted in another United States court of a crime that would constitute an offense listed in paragraph (a) of this subsection;

- (2)(a) The person is less than five years older than the victim;
- (b) The victim's lack of consent was due solely to incapacity to consent by reason of being less than a specified age;
- (c) The victim was at least 14 years of age at the time of the offense or act;
- (d) Except for the convictions or findings described in subsection (1) of this section, the person has not been convicted of, found guilty except for insanity of, or found to be within the jurisdiction of the juvenile court based on, a sex crime or an offense, in another United States court, for conduct that if committed in this state would constitute a sex crime; and
- (e) Each conviction or finding described in subsection (1) of this section involved the same victim; and
- (3) The court enters an order relieving the person of the requirement to report under ORS 163A.145 or 163A.150.

Credits

Renumbered from 181.830 in 2015 by the Legislative Counsel. Amended by Laws 2021, c. 410, § 2, eff. Jan. 1, 2022.

O. R. S. § 163A.140, OR ST § 163A.140

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O.R.S. § 163A.145
Formerly cited as OR ST § 181.832

163A.145. Determination of reporting requirement eligibility

Currentness

- (1) When a person is convicted of an offense or adjudicated for an act described in ORS 163A.140 (1), the court shall determine whether the person is required to report under ORS 163A.010 or 163A.015.
- (2) The court shall enter an order relieving the person of the requirement to report, unless:
- (a) The court finds by a preponderance of the evidence that the person does not meet the eligibility requirements described in ORS 163A.140; or
- (b) The district attorney and the person stipulate that the person is required to report.
- (3) The state has the burden of proving that the person does not meet the eligibility requirements described in ORS 163A.140.
- (4) If the court relieves the person from the requirement to report, the person shall send a certified copy of the court order to the Department of State Police.

Credits

Renumbered from 181.832 in 2015 by the Legislative Counsel.

O. R. S. § 163A.145, OR ST § 163A.145

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.150
Formerly cited as OR ST § 181.833

163A.150. Relief from reporting requirement; hearing; order

Currentness

(1) A person who meets the criteria described in ORS 163A.140 and seeks relief from the requirement to report under ORS 163A.010, 163A.015 or 163A.020 shall:

(a) If the person was convicted in this state of the offense or adjudicated in this state for the act giving rise to the obligation to report, file a petition for relief from the requirement to report with the circuit court of the county in which the person was convicted or adjudicated and serve a copy of the petition on the district attorney for that county.

(b) If the person was convicted in another United States court of the offense or adjudicated in another United States court for the act giving rise to the obligation to report, file a petition for relief from the requirement to report and declaration of eligibility under penalty of perjury in the form required by ORCP 1 E with the circuit court of the county in which the person resides and serve a copy of the petition and declaration on the district attorney for that county.

(2) A person filing a petition under subsection (1) of this section must pay the filing fee established under ORS 21.135. The court shall schedule a hearing more than 90 days from the date of the filing. The court shall notify the person and the district attorney of the date of the hearing.

(3)(a) Upon receipt of the petition described in subsection (1)(a) of this section, or the receipt of petition and declaration described in subsection (1)(b) of this section, the district attorney shall determine whether the district attorney contests the request for relief.

(b) If the district attorney does not contest the request for relief, the district attorney shall submit an order to the court relieving the person of the reporting requirements described in ORS 163A.010, 163A.015 or 163A.020. The court shall grant the petition.

(c) If the district attorney contests the request for relief, the district attorney shall notify the person of that determination within 90 days after receipt of the petition and, if required under subsection (1)(b) of this section, the declaration.

(4) At the hearing, the person has the burden of proving that the person meets the eligibility requirements described in ORS 163A.140.

(5)(a) At the hearing, the victim of the offense or act giving rise to the obligation to report:

(A) May testify voluntarily upon request.

(B) May be compelled by the person to testify only if the court issues an order allowing a subpoena upon the motion of the person.

(b) A copy of the motion for a subpoena under this subsection must be served on the district attorney.

(c) The court may not issue an order allowing a subpoena under this subsection unless the person can demonstrate good cause by showing that the victim's testimony is material and favorable to the person's request for relief.

(d) If the court grants an order allowing a subpoena under this subsection, the court may allow the victim to appear by telephone or other communication device approved by the court.

(6)(a) If the court finds, by a preponderance of the evidence, that the person meets the eligibility requirements described in ORS 163A.140, the court shall enter an order granting the request for relief from the requirement to report.

(b) If the court does not make the finding described in paragraph (a) of this subsection, the court shall enter an order denying the request for relief.

(7)(a) If the court relieves the person from the requirement to report, the person shall send a certified copy of the court order to the Department of State Police.

(b) Upon receipt of the order, the Department of State Police shall remove from the Law Enforcement Data System the sex offender information obtained from the sex offender registration form submitted under ORS 163A.010, 163A.015 or 163A.020.

(8) The order entered under subsection (6) of this section is not subject to appeal.

(9) The Oregon Evidence Code and the Oregon Rules of Civil Procedure do not apply to the hearing described in subsection (2) of this section.

Credits

Renumbered from 181.833 in 2015 by the Legislative Counsel; Laws 2021, c. 274, § 2, eff. Sept. 25, 2021.

O. R. S. § 163A.150, OR ST § 163A.150

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.200

163A.200. Sex offenders; records to be provided to State Board of Parole and Post-Prison Supervision

Currentness

(1) Notwithstanding ORS 179.505, the Psychiatric Security Review Board and the Oregon Health Authority shall provide to the State Board of Parole and Post-Prison Supervision any records that would assist the State Board of Parole and Post-Prison Supervision in:

(a) Performing an initial classification of a person into one of the three levels described in ORS 163A.100, as required by ORS 163A.105;

(b) Deciding whether to reclassify a person as a level one or a level two sex offender or relieve the person from the obligation to report as a sex offender, as described in ORS 163A.125; or

(c) Conducting a risk assessment of a person who is an existing registrant to classify the person into one of the three levels described in ORS 163A.100, as required by section 7, chapter 708, Oregon Laws 2013.

(2) The State Board of Parole and Post-Prison Supervision may not release any records obtained pursuant to this section to any other agency or person unless authorized by law to do so.

Credits

Added by Laws 2015, c. 820, § 19, eff. Aug. 12, 2015.

O. R. S. § 163A.200, OR ST § 163A.200

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.205

163A.205. Sex offenders; records to be provided to Psychiatric Security Review Board

Currentness

(1) Notwithstanding ORS 179.505, the Oregon Health Authority shall provide to the Psychiatric Security Review Board any records that would assist the board in:

(a) Performing an initial classification of a person into one of the three levels described in ORS 163A.100, as required by ORS 163A.105;

(b) Deciding whether to reclassify a person as a level one or a level two sex offender or relieve the person from the obligation to report as a sex offender, as described in ORS 163A.125; or

(c) Conducting a risk assessment of a person who is an existing registrant to classify the person into one of the three levels described in ORS 163A.100, as required by section 7, chapter 708, Oregon Laws 2013.

(2) The board may not release any records obtained pursuant to this section to any other agency or person unless authorized by law to do so.

Credits

Added by Laws 2015, c. 820, § 20, eff. Aug. 12, 2015.

O. R. S. § 163A.205, OR ST § 163A.205

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Chapter 163A. Sex Offender Reporting and Classification
Provision of Records by Agencies

O.R.S. § 163A.210

163A.210. Juvenile sex offenders; disclosure of reports and other materials

Currentness

Notwithstanding ORS 419A.257 or any other provision of law, the Oregon Youth Authority and the juvenile department may disclose and provide copies of reports and other materials relating to a child, ward, youth or adjudicated youth's history and prognosis to the Psychiatric Security Review Board or the State Board of Parole and Post-Prison Supervision in order for the boards to determine whether to reclassify the person as a level one or a level two sex offender or relieve the person from the obligation to report as a sex offender, as described in ORS 163A.125, or whether to classify a person who is an existing registrant into one of the three levels described in ORS 163A.100, as required by section 7, chapter 708, Oregon Laws 2013.

Credits

Added by Laws 2015, c. 820, § 21, eff. Aug. 12, 2015. Amended by Laws 2017, c. 488, § 6, eff. Jan. 1, 2018; Laws 2017, c. 442, § 32, eff. June 22, 2017, operative July 1, 2018; Laws 2021, c. 489, § 15, eff. Jan. 1, 2022.

O. R. S. § 163A.210, OR ST § 163A.210

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Release of Information

O.R.S. § 163A.215

Formerly cited as OR ST § 181.835

163A.215. Release of sex offender information

Currentness

(1)(a) A notifying agency or a supervising agency shall release, upon request, any information that may be necessary to protect the public concerning sex offenders who reside in a specific area or concerning a specific sex offender.

(b) A notifying agency or a supervising agency may release sex offender information to a law enforcement agency if the notifying agency or supervising agency determines that the release of information is in the public interest.

(c) In addition to the release of information described in this subsection and ORS 137.540, 144.260 and 441.373, a notifying agency or a supervising agency may release sex offender information to the public in accordance with subsections (2) to (4) of this section.

(2) If the sex offender is classified as a level three sex offender under ORS 163A.100 (3):

(a) The Department of State Police shall release sex offender information on a website maintained by the department; and

(b) The supervising agency or a notifying agency may release sex offender information to:

(A) A person that resides with the sex offender;

(B) A person with whom the sex offender has a significant relationship;

(C) Residential neighbors and churches, community parks, schools and child care centers, convenience stores, businesses and other places that children or other potential victims may frequent;

(D) A long term care facility, as defined in ORS 442.015, or a residential care facility, as defined in ORS 443.400, if the agency knows that the sex offender is seeking admission to the facility; and

(E) Local or regional media sources.

(3) Notwithstanding subsection (2)(a) of this section, the Department of State Police may not use the Internet to make available to the public information concerning a sex offender classified as a level three sex offender under ORS 163A.100 (3) while the person is under the supervision of the Psychiatric Security Review Board, unless the department is authorized to do so by a request of the supervising agency.

(4) If the sex offender is classified as a level two sex offender under ORS 163A.100 (2), the supervising agency or a notifying agency may release sex offender information to the persons or entities described in subsection (2)(b)(A) to (D) of this section.

(5) If the sex offender is classified as a level one sex offender under ORS 163A.100 (1), the supervising agency or a notifying agency may release sex offender information to a person described in subsection (2)(b)(A) of this section.

(6) As used in this section:

(a) “Notifying agency” means the Department of State Police, a city police department, a county sheriff’s office or a police department established by a university under ORS 352.121.

(b) “Sex offender information” means information that the Department of State Police determines by rule is appropriate for release to the public.

(c) “Supervising agency” means a governmental entity responsible for supervising a person required to report as a sex offender under ORS 163A.010 or 163A.015.

Credits

Renumbered from 181.835 in 2015 by the Legislative Counsel. Amended by Laws 2017, c. 442, § 33, eff. June 22, 2017, operative July 1, 2018.

O. R. S. § 163A.215, OR ST § 163A.215

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.220

Formerly cited as OR ST § 181.593; OR ST § 181.836

163A.220. Sex offender website; contracting with private vendor; links to other websites

Currentness

The Department of State Police shall consider:

- (1) Contracting with a private vendor to build and maintain the website required by ORS 163A.215 (2)(a).
- (2) Adding links on the website required by ORS 163A.215 (2)(a) that connect to other sex offender websites run by Oregon counties and by the federal government.

Credits

Renumbered from 181.836 in 2015 by the Legislative Counsel.

O. R. S. § 163A.220, OR ST § 163A.220

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.225

Formerly cited as OR ST § 181.592; OR ST § 181.837

163A.225. Sex offender information; public access

Currentness

(1)(a) Except as otherwise provided in this section, when a sex offender is under the supervision of the Oregon Youth Authority or a county juvenile department for the first time as a result of committing an act that if committed by an adult would constitute a sex crime, the Department of State Police, city police department or county sheriff's office shall release, upon request, only:

(A) The sex offender's name and year of birth;

(B) The name and zip code of the city where the sex offender resides;

(C) The name and telephone number of a contact person at the agency that is supervising the sex offender; and

(D) The name of institutions of higher education that the sex offender attends or at which the sex offender works or carries on a vocation.

(b) Notwithstanding paragraph (a) of this section, the Oregon Youth Authority or a county juvenile department shall release, upon request, any information that may be necessary to protect the public concerning a sex offender under the supervision of the authority or department.

(2) Except as otherwise limited by subsection (1)(a) of this section regarding persons who are under supervision for the first time as sex offenders, the Department of State Police, a city police department or a county sheriff's office shall release, upon request, any information that may be necessary to protect the public concerning sex offenders required to report under ORS 163A.025 who reside in a specific area or concerning a specific sex offender required to report under ORS 163A.025. However, the entity releasing the information may not release the identity of a victim of a sex crime.

(3)(a) The Department of State Police may make the information described in subsections (1) and (2) of this section available to the public, without the need for a request, by electronic or other means. The Department of State Police shall make information about a person who is under supervision for the first time as a result of committing an act that if committed by an adult would constitute a sex crime accessible only by the use of the sex offender's name. For all other sex offenders required to report under ORS 163A.025, the Department of State Police may make the information accessible in any manner the department chooses.

(b) Notwithstanding paragraph (a) of this subsection, the Department of State Police may not use the Internet to make information available to the public.

Credits

Renumbered from 181.837 in 2015 by the Legislative Counsel.

O. R. S. § 163A.225, OR ST § 163A.225

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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Release of Information

O.R.S. § 163A.230

Formerly cited as OR ST § 181.601; OR ST § 181.843

163A.230. Access to sex offender information for victims

Currentness

(1)(a) When information about a person is first entered into the Law Enforcement Data System under ORS 163A.035, the person will be assigned a registry identification number.

(b) A victim shall be issued a victim identification number and shall be given the registry identification number of the person who committed the crime against the victim:

(A) At any time, upon request by the victim; and

(B) Upon verification of the identification of the victim.

(2) The Department of State Police shall establish a toll-free telephone number to provide victims with updates on the prison status, release information, parole status and any other information authorized for release under ORS 163A.005 to 163A.235 regarding the person who committed the crime against the victim. The telephone line shall be operational within the state during normal working hours.

(3) Access of the victim to the telephone line shall be revoked if the victim makes public, or otherwise misuses, information received.

(4) When a victim receives notification under ORS 144.750 of upcoming parole release hearings, or at any other time that the victim is notified concerning the offender, the victim shall be provided a notice of rights under this section and information about the toll-free telephone number.

Credits

Renumbered from 181.843 in 2015 by the Legislative Counsel.

O. R. S. § 163A.230, OR ST § 163A.230

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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O.R.S. § 163A.235

Formerly cited as OR ST § 181.590; OR ST § 181.845

163A.235. Agreements for resolution of concerns about community notification

Currentness

Upon the request of the Department of State Police, a city police department, a county sheriff's office or a supervising agency, a supervising agency or an agency having responsibility for community notification shall enter into agreements to resolve concerns regarding community notification. As used in this section:

(1) "Community notification" means the disclosure of information to the public as provided in ORS 163A.005 to 163A.235.

(2) "Supervising agency" means a governmental entity responsible for supervising a person required to report under ORS 163A.010, 163A.015 or 163A.025.

Credits

Renumbered from 181.845 in 2015 by the Legislative Counsel.

O. R. S. § 163A.235, OR ST § 163A.235

Current through laws of the 2025 Regular Session of the 83rd Legislative Assembly, which convened January 21, 2025, and adjourned sine die June 27, 2025, in effect through May 27, 2025, pending classification of undesignated material and text revision by the Oregon Reviser. See ORS 173.160. Some statute sections may be more current, see credits for details.

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T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. H, Refs & Annos
Currentness

T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. H, Refs & Annos, PA ST T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. H, Refs & Annos
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42 Pa.C.S.A. § 9791

§§ 9791, 9792. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9791, PA ST 42 Pa.C.S.A. § 9791

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42 Pa.C.S.A. § 9792

§§ 9791, 9792. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9792, PA ST 42 Pa.C.S.A. § 9792

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42 Pa.C.S.A. § 9793

§§ 9793 to 9795. Deleted by 2000, May 10, P.L. 74, No. 18, § 3, effective in 60 days

Currentness

42 Pa.C.S.A. § 9793, PA ST 42 Pa.C.S.A. § 9793

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9794

§§ 9793 to 9795. Deleted by 2000, May 10, P.L. 74, No. 18, § 3, effective in 60 days

Currentness

42 Pa.C.S.A. § 9794, PA ST 42 Pa.C.S.A. § 9794

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42 Pa.C.S.A. § 9795

§§ 9793 to 9795. Deleted by 2000, May 10, P.L. 74, No. 18, § 3, effective in 60 days

Currentness

42 Pa.C.S.A. § 9795, PA ST 42 Pa.C.S.A. § 9795

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42 Pa.C.S.A. § 9795.1

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9795.1, PA ST 42 Pa.C.S.A. § 9795.1

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42 Pa.C.S.A. § 9795.2

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9795.2, PA ST 42 Pa.C.S.A. § 9795.2

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42 Pa.C.S.A. § 9795.3

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9795.3, PA ST 42 Pa.C.S.A. § 9795.3

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42 Pa.C.S.A. § 9795.4

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9795.4, PA ST 42 Pa.C.S.A. § 9795.4

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42 Pa.C.S.A. § 9795.5

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9795.5, PA ST 42 Pa.C.S.A. § 9795.5

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42 Pa.C.S.A. § 9796

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9796, PA ST 42 Pa.C.S.A. § 9796

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42 Pa.C.S.A. § 9797

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9797, PA ST 42 Pa.C.S.A. § 9797

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42 Pa.C.S.A. § 9798

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9798, PA ST 42 Pa.C.S.A. § 9798

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42 Pa.C.S.A. § 9798.1

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9798.1, PA ST 42 Pa.C.S.A. § 9798.1

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42 Pa.C.S.A. § 9798.2

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9798.2, PA ST 42 Pa.C.S.A. § 9798.2

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42 Pa.C.S.A. § 9798.3

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9798.3, PA ST 42 Pa.C.S.A. § 9798.3

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42 Pa.C.S.A. § 9799

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799, PA ST 42 Pa.C.S.A. § 9799

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42 Pa.C.S.A. § 9799.1

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.1, PA ST 42 Pa.C.S.A. § 9799.1

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42 Pa.C.S.A. § 9799.2

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.2, PA ST 42 Pa.C.S.A. § 9799.2

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42 Pa.C.S.A. § 9799.3

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.3, PA ST 42 Pa.C.S.A. § 9799.3

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42 Pa.C.S.A. § 9799.4

§§ 9795.1 to 9799.4. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.4, PA ST 42 Pa.C.S.A. § 9799.4

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Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.5

§§ 9799.5, 9799.6. Deleted by 2000, May 10, P.L. 74, No. 18, § 3, effective in 60 days

Currentness

42 Pa.C.S.A. § 9799.5, PA ST 42 Pa.C.S.A. § 9799.5

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.6

§§ 9799.5, 9799.6. Deleted by 2000, May 10, P.L. 74, No. 18, § 3, effective in 60 days

Currentness

42 Pa.C.S.A. § 9799.6, PA ST 42 Pa.C.S.A. § 9799.6

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42 Pa.C.S.A. § 9799.7

§§ 9799.7 to 9799.9. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.7, PA ST 42 Pa.C.S.A. § 9799.7

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.8

§§ 9799.7 to 9799.9. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.8, PA ST 42 Pa.C.S.A. § 9799.8

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42 Pa.C.S.A. § 9799.9

§§ 9799.7 to 9799.9. Expired Dec. 20, 2012, pursuant to 42 Pa.C.S.A. § 9799.41

Currentness

42 Pa.C.S.A. § 9799.9, PA ST 42 Pa.C.S.A. § 9799.9

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42 Pa.C.S.A. § 9799.10

§ 9799.10. Purposes of subchapter

Currentness

This subchapter shall be interpreted and construed to effectuate the following purposes:

- (1) To bring the Commonwealth into substantial compliance with the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 120 Stat. 587).¹
- (2) To require individuals convicted or adjudicated delinquent of certain sexual offenses to register with the Pennsylvania State Police and to otherwise comply with this subchapter if those individuals reside within this Commonwealth, intend to reside within this Commonwealth, attend an educational institution within this Commonwealth or are employed or conduct volunteer work within this Commonwealth.
- (3) To require individuals convicted or adjudicated delinquent of certain sexual offenses who fail to maintain a residence and are therefore homeless but can still be found within the borders of this Commonwealth to register with the Pennsylvania State Police.
- (4) To require individuals who are subject to the criminal justice system of this Commonwealth as inmates, supervised with respect to probation or parole or registrants due to committing a sexually violent offense on or after December 20, 2012, for which the individual was convicted, to register with the Pennsylvania State Police and to otherwise comply with this subchapter. To the extent practicable and consistent with the requirements of the Adam Walsh Child Protection and Safety Act of 2006, this subchapter shall be construed to maintain existing procedures regarding registration of sexual offenders who are subject to the criminal justice system of this Commonwealth.
- (5) To provide a mechanism for members of the general public to obtain information about certain sexual offenders from a public Internet website and to include on that Internet website a feature which will allow a member of the public to enter a zip code or a geographic radius and determine whether a sexual offender resides within that zip code or radius.
- (6) To provide a mechanism for law enforcement entities within this Commonwealth to obtain information about certain sexual offenders and to allow law enforcement entities outside this Commonwealth, including those within the Federal Government, to obtain current information about certain sexual offenders.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 3, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 5.2, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 4, imd. effective.

Footnotes

1 See 34 U.S.C.A. § 20901 et seq.

42 Pa.C.S.A. § 9799.10, PA ST 42 Pa.C.S.A. § 9799.10

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.11

Formerly cited as PA ST 42 Pa.C.S.A. § 9791

§ 9799.11. Legislative findings, declaration of policy and scope

Currentness

(a) Legislative findings.--The General Assembly finds as follows:

(1) In 1995 the General Assembly enacted the act of October 24, 1995 (1st Sp.Sess. P.L. 1079, No. 24),¹ commonly referred to as Megan's Law. Through this enactment, the General Assembly intended to comply with legislation enacted by Congress requiring that states provide for the registration of sexual offenders. The Federal statute, the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act (Public Law 103-322, 42 U.S.C. 14071 et seq.), has been superseded by the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 120 Stat. 587).²

(2) This Commonwealth's laws regarding registration of sexual offenders need to be strengthened. The Adam Walsh Child Protection and Safety Act of 2006 provides a mechanism for the Commonwealth to increase its regulation of sexual offenders in a manner which is nonpunitive but offers an increased measure of protection to the citizens of this Commonwealth.

(3) If the public is provided adequate notice and information about sexual offenders, the community can develop constructive plans to prepare for the presence of sexual offenders in the community. This allows communities to meet with law enforcement to prepare and obtain information about the rights and responsibilities of the community and to provide education and counseling to residents, particularly children.

(4) Sexual offenders pose a high risk of committing additional sexual offenses and protection of the public from this type of offender is a paramount governmental interest.

(5) Sexual offenders have a reduced expectation of privacy because of the public's interest in public safety and in the effective operation of government.

(6) Release of information about sexual offenders to public agencies and the general public will further the governmental interests of public safety and public scrutiny of the criminal and mental health systems so long as the information released is rationally related to the furtherance of those goals.

(7) Knowledge of whether a person is a sexual offender could be a significant factor in protecting oneself and one's family members, or those in care of a group or community organization, from recidivist acts by such offenders.

(8) The technology afforded by the Internet and other modern electronic communication methods makes this information readily accessible to parents, minors and private entities, enabling them to undertake appropriate remedial precautions to prevent or avoid placing potential victims at risk.

(b) Declaration of policy.--The General Assembly declares as follows:

(1) It is the intention of the General Assembly to substantially comply with the Adam Walsh Child Protection and Safety Act of 2006 and to further protect the safety and general welfare of the citizens of this Commonwealth by providing for increased regulation of sexual offenders, specifically as that regulation relates to registration of sexual offenders and community notification about sexual offenders.

(2) It is the policy of the Commonwealth to require the exchange of relevant information about sexual offenders among public agencies and officials and to authorize the release of necessary and relevant information about sexual offenders to members of the general public as a means of assuring public protection and shall not be construed as punitive.

(3) It is the intention of the General Assembly to address the Pennsylvania Supreme Court's decision in *Commonwealth v. Neiman*, No. 74 MAP 2011 (Pa. 2013), by amending this subchapter in the act of March 14, 2014 (P.L. 41, No. 19).

(4) It is the intention of the General Assembly to address the Pennsylvania Supreme Court's decision in *Commonwealth v. Muniz*, 164 A.3d 1189 (Pa. 2017) and the Pennsylvania Superior Court's decision in *Commonwealth v. Butler* (2017 WL 4914155).

(c) Scope.--This subchapter shall apply to individuals who committed a sexually violent offense on or after December 20, 2012, for which the individual was convicted.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2014, March 14, P.L. 41, No. 19, § 1, imd. effective; 2018, Feb. 21, P.L. 27, No. 10, § 6, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 4, imd. effective.

Footnotes

1 42 Pa.C.S.A. § 9791 et seq. (expired).

2 See 34 U.S.C.A. § 20901 et seq.

42 Pa.C.S.A. § 9799.11, PA ST 42 Pa.C.S.A. § 9799.11

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.12

Formerly cited as PA ST 42 Pa.C.S.A. § 9792

§ 9799.12. Definitions

Currentness

The following words and phrases when used in this subchapter shall have the meanings given to them in this section unless the context clearly indicates otherwise:

“Approved registration site.” A site in this Commonwealth approved by the Pennsylvania State Police at which individuals subject to this subchapter may comply with this subchapter.

“Board.” The State Sexual Offenders Assessment Board.

“Common interest community.” Includes a cooperative, a condominium and a planned community where an individual by virtue of an ownership interest in any portion of real estate is or may become obligated by covenant, easement or agreement imposed upon the owner's interest to pay any amount for real property taxes, insurance, maintenance, repair, improvement, management, administration or regulation of any part of the real estate other than the portion or interest owned solely by the individual.

“Convicted.” Includes conviction by entry of plea of guilty or nolo contendere, conviction after trial or court martial and a finding of not guilty due to insanity or of guilty but mentally ill.

“Employed.” Includes a vocation or employment that is full time or part time for a period of time exceeding four days during a seven-day period or for an aggregate period of time exceeding 14 days during any calendar year, whether self-employed, volunteered, financially compensated, pursuant to a contract or for the purpose of governmental or educational benefit.

“Foreign country.” Includes Canada, the United Kingdom, Australia, New Zealand and a foreign country where the United States Department of State in the Country Reports on Human Rights Practices has concluded that an independent judiciary enforced the right to a fair trial in that country during the calendar year in which the individual's conviction occurred.

“IAFIS.” The Integrated Automated Fingerprint Identification System.

“Integrated Automated Fingerprint Identification System.” The national fingerprint and criminal history system maintained by the Federal Bureau of Investigation providing automated fingerprint search capabilities, latent searching capability, electronic image storage and electronic exchange of fingerprints and responses.

“Jurisdiction.” A state, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana Islands, the United States Virgin Islands and a federally recognized Indian tribe as provided in section 127 of the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 42 U.S.C. § 16927).

“Juvenile offender.” One of the following:

(1) An individual who was 14 years of age or older at the time the individual committed an offense which, if committed by an adult, would be classified as an offense under 18 Pa.C.S. § 3121 (relating to rape), 3123 (relating to involuntary deviate sexual intercourse) or 3125 (relating to aggravated indecent assault) or an attempt, solicitation or conspiracy to commit an offense under 18 Pa.C.S. § 3121, 3123 or 3125 and either:

(i) is adjudicated delinquent for such offense on or after the effective date of this section; or

(ii) has been adjudicated delinquent for such offense and on the effective date of this section is subject to the jurisdiction of the court on the basis of that adjudication of delinquency, including commitment to an institution or facility set forth in section 6352(a)(3) (relating to disposition of delinquent child).

(2) An individual who, on or after the effective date of this paragraph, ¹ was 14 years of age or older at the time the individual committed an offense similar to an offense under 18 Pa.C.S. § 3121, 3123 or 3125 or an attempt, solicitation or conspiracy to commit an offense similar to an offense under 18 Pa.C.S. § 3121, 3123 or 3125 under the laws of the United States, another jurisdiction or a foreign country and was adjudicated delinquent for such an offense; or who was previously adjudicated delinquent for such an offense and, on the effective date of this paragraph, is subject to the jurisdiction of the court on the basis of that adjudication of delinquency.

(3) An individual who, on or after the effective date of this paragraph, was required to register in a sexual offender registry in another jurisdiction or foreign country based upon an adjudication of delinquency.

The term does not include a sexually violent delinquent child.

“Mental abnormality.” A congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

“Military offense.” An offense specified by the United States Secretary of Defense under 10 U.S.C. § 951 (relating to establishment; organization; administration).

“Minor.” Any individual under 18 years of age.

“Municipality.” A city, borough, incorporated town or township.

“NCIC.” The National Crime Information Center.

“Penetration.” Includes any penetration, however slight, of the genitals or anus or mouth of another person with a part of the person's body or a foreign object for any purpose other than good faith medical, hygienic or law enforcement procedures.

“Predatory.” An act directed at a stranger or at a person with whom a relationship has been initiated, established, maintained or promoted, in whole or in part, in order to facilitate or support victimization.

“Registry.” The Statewide Registry of Sexual Offenders established in section 9799.16(a) (relating to registry).

“Residence.” A location where an individual resides or is domiciled or intends to be domiciled for 30 consecutive days or more during a calendar year. The term includes a residence which is mobile, including a houseboat, mobile home, trailer or recreational vehicle.

“Sexual offender.” An individual who has committed a sexually violent offense. The term includes a sexually violent predator.

“Sexually violent delinquent child.” As defined in section 6402 (relating to definitions) if the determination as a sexually violent delinquent child is based on an act of sexual violence, as defined in section 6402, committed on or after December 20, 2012, for which the child was adjudicated delinquent and determined to be in need of commitment for involuntary treatment as specified in Chapter 64 (relating to court-ordered involuntary treatment of certain sexually violent persons).

“Sexually violent offense.” An offense specified in section 9799.14 (relating to sexual offenses and tier system) as a Tier I, Tier II or Tier III sexual offense committed on or after December 20, 2012, for which the individual was convicted.

“Sexually violent predator.” An individual who committed a sexually violent offense under the laws of this Commonwealth or an attempt, conspiracy or solicitation to commit a sexually violent offense under the laws of this Commonwealth on or after December 20, 2012, who is determined to be a sexually violent predator under section 9799.24 (relating to assessments) due to a mental abnormality or personality disorder that makes the individual likely to engage in predatory sexually violent offenses. The term includes an individual determined to be a sexually violent predator or similar designation where the determination occurred in another jurisdiction, a foreign country or by court martial following a judicial or administrative determination pursuant to a process similar to that under section 9799.24 where the determination or designation is based on the commitment of a sexually violent offense on or after December 20, 2012, for which the individual was convicted.

“Student.” An individual who is enrolled in or attends a public or private educational institution within this Commonwealth on a full-time or part-time basis, including a secondary school, trade or professional institution or institution of higher education. The term does not include an individual enrolled in an educational institution exclusively through the Internet or via correspondence courses.

“Temporary lodging.” The specific location, including street address, where a sexual offender is staying when away from the sexual offender's residence for seven or more days.

“Tier I sexual offense.” An offense specified in section 9799.14(b) (relating to sexual offenses and tier system).

“Tier II sexual offense.” An offense specified in section 9799.14(c) (relating to sexual offenses and tier system).

“Tier III sexual offense.” An offense specified in section 9799.14(d) (relating to sexual offenses and tier system).

“Transient.” A sexual offender who does not have a residence but nevertheless resides in this Commonwealth in a temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 4, effective Dec. 20, 2012; 2014, March 14, P.L. 41, No. 19, § 2, retroactive effective Dec. 20, 2012; 2014, Sept. 27, P.L. 2482, No. 138, § 3; 2018, Feb. 21, P.L. 27, No. 10, § 7, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 5, imd. effective. Amended 2024, May 8, P.L. 360, No. 16, § 1, imd. effective.

Footnotes

- 1 Definition of “juvenile offender”, par. (2), was amended by 2014, Sept. 27, P.L. 2482, No. 138, § 3, effective in 60 days [Nov. 26, 2014].

42 Pa.C.S.A. § 9799.12, PA ST 42 Pa.C.S.A. § 9799.12

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42 Pa.C.S.A. § 9799.13

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.2

§ 9799.13. Applicability

Currentness

The following individuals shall register with the Pennsylvania State Police as provided in sections 9799.15 (relating to period of registration), 9799.19 (relating to initial registration) and 9799.25 (relating to verification by sexual offenders and Pennsylvania State Police) and otherwise comply with the provisions of this subchapter:

(1) A sexual offender who has a residence within this Commonwealth or is a transient.

(1.1) A sexual offender who is convicted in this Commonwealth and who does not have a residence in this Commonwealth and:

(i) is employed in this Commonwealth; or

(ii) is a student in this Commonwealth.

(1.2) A sexual offender who does not have a residence within this Commonwealth or is not a transient in this Commonwealth and:

(i) is employed in this Commonwealth; or

(ii) is a student in this Commonwealth.

(2) A sexual offender who is an inmate in a State or county correctional institution of this Commonwealth, including a community corrections center or a community contract facility, is being supervised by the Department of Corrections or county probation or parole, is subject to a sentence of intermediate punishment or restrictive conditions of probation or has supervision transferred pursuant to the Interstate Compact for Adult Supervision in accordance with section 9799.19(g).

(2.1) A sexual offender who is an inmate in a Federal correctional institution or is supervised by Federal probation authorities and who:

(i) has a residence within this Commonwealth or is a transient;

(ii) is employed within this Commonwealth; or

(iii) is a student within this Commonwealth.

(3) to (3.2) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 8, imd. effective.

(4) to (6) Deleted by 2012, July 5, P.L. 880, No. 91, § 5, effective Dec. 20, 2012.

(7) A sexual offender required to register in a sexual offender registry in another jurisdiction or in a foreign country based upon a conviction for a sexually violent offense or under a sexual offender statute in the jurisdiction where the individual is convicted and:

(i) has a residence in this Commonwealth or is a transient;

(ii) is employed within this Commonwealth; or

(iii) is a student within this Commonwealth.

(7.1) An individual who, as a result of committing an offense set forth in section 9799.14(b)(23) (relating to sexual offenses and tier system) on or after December 20, 2012, for which the individual was convicted, is required to register in a sexual offender registry in another jurisdiction or foreign country and:

(i) has a residence in this Commonwealth or is a transient;

(ii) is employed within this Commonwealth; or

(iii) is a student within this Commonwealth.

(7.2) A sexual offender who is convicted in another jurisdiction or foreign country, or is incarcerated or under supervision as a result of a conviction in another jurisdiction or foreign country and:

(i) has a residence in this Commonwealth or is a transient;

(ii) is employed within this Commonwealth; or

(iii) is a student within this Commonwealth.

(8) An individual who, on or after December 20, 2012, is a juvenile offender who was adjudicated delinquent within this Commonwealth or was adjudicated delinquent in another jurisdiction or a foreign country and:

(i) has a residence within this Commonwealth;

(ii) is employed within this Commonwealth; or

(iii) is a student within this Commonwealth.

(8.1) An individual who is a juvenile offender who is adjudicated delinquent in this Commonwealth on or after December 20, 2012, but who does not have a residence within this Commonwealth, is not a transient, is not employed in this Commonwealth or is not a student within this Commonwealth must register with the Pennsylvania State Police in accordance with section 9799.19 prior to leaving this Commonwealth.

(8.2) An individual who between January 23, 2005, and December 19, 2012, established a residence or was a transient in this Commonwealth, was employed within this Commonwealth, or was a student in this Commonwealth, and who was required to register in a sexual offender registry as a result of an adjudication of delinquency for an offense which occurred in a foreign country or another jurisdiction and that required the individual to register in that foreign country or other jurisdiction.

(9) An individual who is a sexually violent delinquent child.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 5, effective Dec. 20, 2012; 2014, March 14, P.L. 41, No. 19, § 3, retroactive effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 8, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 6, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.13, PA ST 42 Pa.C.S.A. § 9799.13

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42 Pa.C.S.A. § 9799.14

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.1

§ 9799.14. Sexual offenses and tier system

Currentness

(a) Tier system established.--Sexual offenses shall be classified in a three-tiered system composed of Tier I sexual offenses, Tier II sexual offenses and Tier III sexual offenses.

(b) Tier I sexual offenses.--The following offenses, or an attempt, conspiracy or solicitation to commit any of the following offenses, shall be classified as Tier I sexual offenses:

(1) 18 Pa.C.S. § 2902(b) (relating to unlawful restraint).

(2) 18 Pa.C.S. § 2903(b) (relating to false imprisonment).

(3) 18 Pa.C.S. § 2904 (relating to interference with custody of children), except in cases where the defendant is the child's parent, guardian or other lawful custodian.

(4) 18 Pa.C.S. § 2910 (relating to luring a child into a motor vehicle or structure).

(4.1) 18 Pa.C.S. § 3011(a)(1) and (2) (relating to trafficking in individuals).

(4.2) 18 Pa.C.S. § 3013 (relating to patronizing a victim of sexual servitude).

(5) 18 Pa.C.S. § 3124.2(a) and (a.4)(1) (relating to institutional sexual assault).

(6) 18 Pa.C.S. § 3126(a)(1) (relating to indecent assault).

(7) (Reserved).

(8) 18 Pa.C.S. § 6301(a)(1)(ii) (relating to corruption of minors).

- (9) 18 Pa.C.S. § 6312(d) (relating to sexual abuse of children).
 - (10) 18 Pa.C.S. § 7507.1. (relating to invasion of privacy).
 - (11) 18 U.S.C. § 1801 (relating to video voyeurism).
 - (12) 18 U.S.C. § 2252(a)(4) (relating to certain activities relating to material involving the sexual exploitation of minors).
 - (13) 18 U.S.C. § 2252A (relating to certain activities relating to material constituting or containing child pornography).
 - (14) 18 U.S.C. § 2252B (relating to misleading domain names on the Internet).
 - (15) 18 U.S.C. § 2252C (relating to misleading words or digital images on the Internet).
 - (16) 18 U.S.C. § 2422(a) (relating to coercion and enticement).
 - (17) 18 U.S.C. § 2423(b) (relating to transportation of minors).
 - (18) 18 U.S.C. § 2423(c).
 - (19) 18 U.S.C. § 2424 (relating to filing factual statement about alien individual).
 - (20) 18 U.S.C. § 2425 (relating to use of interstate facilities to transmit information about a minor).
 - (21) A comparable military offense or similar offense under the laws of another jurisdiction or foreign country or under a former law of this Commonwealth.
 - (22) Deleted by 2024, May 8, P.L. 360, No. 16, § 2, imd. effective.
 - (23) A conviction for a sexual offense in another jurisdiction or foreign country that is not set forth in this section, but nevertheless requires registration under a sexual offender statute in the jurisdiction or foreign country.
- (c) Tier II sexual offenses.**—The following offenses, or an attempt, conspiracy or solicitation to commit any of the following offenses, shall be classified as Tier II sexual offenses:

- (1) 18 Pa.C.S. § 3011(b).

- (1.1) 18 Pa.C.S. § 3122.1(a)(2) (relating to statutory sexual assault).
- (1.2) 18 Pa.C.S. § 3124.2(a.2) and (a.3).
- (1.3) 18 Pa.C.S. § 3126(a)(2), (3), (4), (5), (6) or (8).
- (1.4) 18 Pa.C.S. § 3012 (relating to involuntary servitude) as it relates to sexual servitude.
- (1.5) 18 Pa.C.S. § 3124.3 (relating to sexual assault by sports official, volunteer or employee of nonprofit association).
- (2) 18 Pa.C.S. § 5902(b.1) (relating to prostitution and related offenses).
- (3) 18 Pa.C.S. § 5903(a)(3)(ii), (4)(ii), (5)(ii) or (6) (relating to obscene and other sexual materials and performances).
- (4) 18 Pa.C.S. § 6312(b) and (c).
- (5) 18 Pa.C.S. § 6318 (relating to unlawful contact with minor).
- (6) 18 Pa.C.S. § 6320 (relating to sexual exploitation of children).
- (7) 18 U.S.C. § 1591 (relating to sex trafficking of children by force, fraud, or coercion).
- (8) 18 U.S.C. § 2243 (relating to sexual abuse of a minor or ward).
- (9) 18 U.S.C. § 2244 (relating to abusive sexual contact) where the victim is 13 years of age or older but under 18 years of age.
- (10) 18 U.S.C. § 2251 (relating to sexual exploitation of children).
- (11) 18 U.S.C. § 2251A (relating to selling or buying of children).
- (12) 18 U.S.C. § 2252(a)(1), (2) or (3).
- (13) 18 U.S.C. § 2260 (relating to production of sexually explicit depictions of a minor for importation into the United States).
- (14) 18 U.S.C. § 2421 (relating to transportation generally).

(15) 18 U.S.C. § 2422(b).

(16) 18 U.S.C. § 2423(a).

(17) A comparable military offense or similar offense under the laws of another jurisdiction or foreign country or under a former law of this Commonwealth.

(18) Deleted by 2024, May 8, P.L. 360, No. 16, § 2, imd. effective.

(d) Tier III sexual offenses.--The following offenses, or an attempt, conspiracy or solicitation to commit any of the following offenses, shall be classified as Tier III sexual offenses:

(1) 18 Pa.C.S. § 2901(a.1) (relating to kidnapping).

(2) 18 Pa.C.S. § 3121 (relating to rape).

(3) 18 Pa.C.S. § 3122.1(b) (relating to statutory sexual assault).

(4) 18 Pa.C.S. § 3123 (relating to involuntary deviate sexual intercourse).

(5) 18 Pa.C.S. § 3124.1 (relating to sexual assault).

(6) 18 Pa.C.S. § 3124.2(a.1) and (a.4)(2).

(7) 18 Pa.C.S. § 3125 (relating to aggravated indecent assault).

(8) 18 Pa.C.S. § 3126(a)(7).

(9) 18 Pa.C.S. § 4302(b) (relating to incest).

(10) 18 U.S.C. § 2241 (relating to aggravated sexual abuse).

(11) 18 U.S.C. § 2242 (relating to sexual abuse).

(12) 18 U.S.C. § 2244 where the victim is under 13 years of age.

(13) A comparable military offense or similar offense under the laws of another jurisdiction or country or under a former law of this Commonwealth.

(14) Deleted by 2024, May 8, P.L. 360, No. 16, § 2, imd. effective.

(15) (Reserved).

(16) Two or more convictions of offenses listed as Tier I or Tier II sexual offenses.

(17) One conviction of a sexually violent offense and one conviction of a sexually violent offense as defined in section 9799.55 (relating to registration).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 6, effective Dec. 20, 2012; 2014, March 14, P.L. 41, No. 19, § 4, retroactive effective Dec. 20, 2012; 2014, July 2, P.L. 945, No. 105, § 8, effective in 60 days [Sept. 2, 2014]; 2018, Feb. 21, P.L. 27, No. 10, § 9, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 7, imd. effective. Amended 2020, July 23, P.L. 641, No. 63, § 3, effective in 60 days [Sept. 21, 2020]; 2022, Nov. 3, P.L. 2066, No. 144, § 1, effective in 60 days [Jan. 3, 2023]; 2024, May 8, P.L. 360, No. 16, § 2, imd. effective; 2025, June 30, P.L. ___, No. 22, § 1, imd. effective.

42 Pa.C.S.A. § 9799.14, PA ST 42 Pa.C.S.A. § 9799.14

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

Purdon's Pennsylvania Statutes and Consolidated Statutes
Title 42 Pa.C.S.A. Judiciary and Judicial Procedure (Refs & Annos)
Part VIII. Criminal Proceedings
Chapter 97. Sentencing (Refs & Annos)
Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.15

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.1

§ 9799.15. Period of registration

Currentness

(a) Period of registration.--Subject to subsection (c), an individual specified in section 9799.13 (relating to applicability) shall register with the Pennsylvania State Police as follows:

- (1) An individual convicted of a Tier I sexual offense, except an offense set forth in section 9799.14(b)(23) (relating to sexual offenses and tier system), shall register for a period of 15 years.
- (2) An individual convicted of a Tier II sexual offense shall register for a period of 25 years.
- (3) An individual convicted of a Tier III sexual offense shall register for the life of the individual.
- (4) A juvenile offender who was adjudicated delinquent in this Commonwealth, or who was adjudicated delinquent in another jurisdiction or foreign country as a consequence of having committed an offense similar to an offense which would require the individual to register if the offense was committed in this Commonwealth, shall register for the life of the individual.
- (4.1) A juvenile offender who is required to register in a sexual offender registry in another jurisdiction or foreign country as a consequence of having been adjudicated delinquent for an offense similar to an offense which, if committed in this Commonwealth, would not require the individual to register shall register for a period of time equal to that required of the individual in the other jurisdiction or foreign country.
- (5) A sexually violent delinquent child shall register for the life of the individual.
- (6) A sexually violent predator shall register for the life of the individual.
- (7) An individual subject to registration under section 9799.13(7.1) shall register for the period of time equal to the time for which the individual was required to register in another jurisdiction or foreign country.

(a.1) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 10, imd. effective.

(a.2) Assessment by court after 25 years.--An individual required to register under subsection (a)(3), (5), (6) and (7) may be exempt from the requirement to register, the requirement to verify residence, employment and enrollment in an educational institution, the requirement to appear on the publicly accessible Internet website maintained by the Pennsylvania State Police and all other requirements of this subchapter if:

(1) Subject to subsection (c), at least 25 years have elapsed prior to filing a petition with the sentencing court to be exempt from the requirements of this subchapter, during which time the petitioner has not been convicted in this Commonwealth or any other jurisdiction or foreign country of an offense punishable by imprisonment of more than one year, or the petitioner's release from custody following the petitioner's most recent conviction for an offense, whichever is later.

(2) Upon receipt of a petition filed under paragraph (1), the sentencing court shall enter an order directing that the petitioner be assessed by the board. Upon receipt from the court of an order for an assessment under this subsection, a member of the board designated by the administrative officer of the board shall conduct an assessment of the petitioner to determine if the relief sought, if granted, is likely to pose a threat to the safety of any other person. The board shall establish standards for evaluations and for evaluators conducting assessments.

(3) The order for an assessment under this subsection shall be sent to the administrative officer of the board within 10 days of the entry. No later than 90 days following receipt of the order, the board shall submit a written report containing the board's assessment to the sentencing court, the district attorney and the attorney for the petitioner.

(4) Within 120 days of filing the petition under paragraph (1), the sentencing court shall hold a hearing to determine whether to exempt the petitioner from the application of any or all of the requirements of this subchapter. The petitioner and the district attorney shall be given notice of the hearing and an opportunity to be heard, the right to call witnesses and the right to cross-examine witnesses. The petitioner shall have the right to counsel and to have a lawyer appointed to represent the petitioner if the petitioner cannot afford one.

(5) The sentencing court shall exempt the petitioner from application of any or all of the requirements of this subchapter, at the discretion of the court, only upon a finding of clear and convincing evidence that exempting the sexual offender from a particular requirement or all of the requirements of this subchapter is not likely to pose a threat to the safety of any other person.

(6) A court granting relief under this subsection shall notify the Pennsylvania State Police in writing within 10 days from the date the relief is granted. If a memorandum of understanding has been entered into under section 9799.26 (relating to victim notification) with respect to relief granted to the petitioner, the Pennsylvania State Police shall transmit the information about the relief to the Office of Victim Advocate as soon as is practicable. The Office of Victim Advocate shall notify the victim of the relief, in accordance with the memorandum of understanding, as described in section 9799.26.

(7) The petitioner and the Commonwealth shall have the right to appellate review of the actions of the sentencing court under this subsection. An appeal by the Commonwealth shall stay the order of the sentencing court.

(8) The petitioner may file an additional petition with the sentencing court no sooner than five years from the date of the final determination of a court regarding the petition and no sooner than every five years thereafter.

(9) If the petitioner is exempt from any provisions of this subchapter and the petitioner is subsequently convicted under 18 Pa.C.S. § 4915.1 (relating to failure to comply with registration requirements), relief granted under this subsection shall be void and the petitioner shall automatically and immediately again be subject to the provisions of this subchapter, as previously determined by this subchapter.

(a.3) Agency cooperation.--All State, county and local agencies, offices and entities in this Commonwealth, including juvenile probation officers, shall cooperate by providing access to records and information as requested by the board in connection with the court-ordered assessment under subsection (a.2).

(b) Commencement of registration.--The following apply:

(1) The period of registration set forth in subsection (a) shall commence as follows:

(i) For an individual who committed a sexually violent offense in this Commonwealth, the period of registration shall commence upon:

(A) release from incarceration in a State or county correctional facility, including release to a community correction center or community contract facility;

(B) parole or a sentence of probation; or

(C) a sentence of State or county intermediate punishment in which the person is not sentenced to a period of incarceration.

(ii) For an individual who is a juvenile offender, the period of registration shall commence upon:

(A) release from an institution or facility set forth in section 6352(a)(3) (relating to disposition of delinquent child), if the juvenile offender is, on or after December 20, 2012, subject to the jurisdiction of a court pursuant to a disposition entered under section 6352 and is under court-ordered placement in an institution or facility set forth in section 6352(a)(3); or

(B) disposition, if the juvenile offender is, on or after December 20, 2012, subject to the jurisdiction of a court pursuant to a disposition entered under section 6352 and is placed on probation or is otherwise subject to jurisdiction of a court pursuant to a disposition under section 6352 that did not involve out-of-home placement.

(iii) For a sexually violent delinquent child, the period of registration shall commence upon transfer to involuntary outpatient treatment pursuant to section 6404.1 (relating to transfer to involuntary outpatient treatment).

(iv) For an individual who committed a sexually violent offense in another jurisdiction or foreign country or a comparable military offense, the period of registration shall commence upon establishment of a residence or commencement of employment or enrollment as a student within this Commonwealth. This subparagraph shall apply to an individual

convicted of a sexually violent offense in another jurisdiction or foreign country or comparable military offense and who is a transient.

(2) Notwithstanding the provisions of paragraph (1), an individual specified in section 9799.13 shall initially register with the Pennsylvania State Police as set forth in section 9799.19 (relating to initial registration).

(c) Period of registration tolled.--The following shall apply:

(1) The period of registration set forth in subsection (a) shall be tolled for the period of time in which the individual specified in section 9799.13 is:

(i) incarcerated in a Federal, State or county correctional institution, excluding a community contract facility or community corrections center;

(ii) subject to a sentence of intermediate punishment which is restrictive and where the individual is sentenced to a period of incarceration;

(iii) committed to an institution or facility set forth in section 6352(a)(3) that provides the individual with 24-hour-per-day supervision and care;

(iv) committed to and receiving involuntary inpatient treatment in the State-owned facility or unit set forth in Chapter 64 (relating to court-ordered involuntary treatment of certain sexually violent persons); or

(v) incarcerated in a Federal correctional institution, excluding a community contract facility or community corrections center.

(2) This subsection shall apply to an individual specified in section 9799.13 who is recommitted to a Federal, State or county correctional institution for a parole violation or who has been sentenced to an additional term of imprisonment. In addition, this subsection shall apply to an individual committed to or recommitted to a Federal correctional institution. In the case of recommitment to a State or county correctional institution, the Department of Corrections or the county correctional facility shall notify the Pennsylvania State Police of the admission of the individual.

(d) Sexually violent predators.--An individual convicted of a Tier I sexual offense, a Tier II sexual offense or a Tier III sexual offense who is determined to be a sexually violent predator under section 9799.24 (relating to assessments) shall register for the life of the individual.

(e) Periodic in-person appearance required.--Except as provided in subsection (f) and subject to subsections (g) and (h), an individual specified in section 9799.13 shall appear in person at an approved registration site to provide or verify the information set forth in section 9799.16(b) (relating to registry) and to be photographed as follows:

(1) An individual convicted of a Tier I sexual offense shall appear annually.

(2) An individual convicted of a Tier II sexual offense shall appear semiannually.

(3) An individual convicted of a Tier III sexual offense shall appear quarterly.

(4) An individual required to register pursuant to section 9799.13(7.1) shall appear annually.

(f) Sexually violent predators.--A sexually violent predator shall appear in person at an approved registration site to:

(1) provide or verify the information set forth in section 9799.16(b);

(2) be photographed quarterly; and

(3) state whether he is in compliance with section 9799.36 (relating to counseling of sexually violent predators).

(g) In-person appearance to update information.--In addition to the periodic in-person appearance required in subsections (e), (f) and (h), an individual specified in section 9799.13 shall appear in person at an approved registration site within three business days to provide current information relating to:

(1) A change in name, including an alias.

(2) A commencement of residence, change in residence, termination of residence or failure to maintain a residence, thus making the individual a transient.

(3) Commencement of employment, a change in the location or entity in which the individual is employed or a termination of employment.

(4) Initial enrollment as a student, a change in enrollment as a student or termination as a student.

(5) An addition and a change in telephone number, including a cell phone number, or a termination of telephone number, including a cell phone number.

(6) An addition, a change in and termination of a motor vehicle owned or operated, including watercraft or aircraft. In order to fulfill the requirements of this paragraph, the individual must provide any license plate numbers and registration numbers and other identifiers and an addition to or change in the address of the place the vehicle is stored.

(7) A commencement of temporary lodging, a change in temporary lodging or a termination of temporary lodging. In order to fulfill the requirements of this paragraph, the individual must provide the specific length of time and the dates during which the individual will be temporarily lodged.

(8) An addition, change in or termination of e-mail address, instant message address or any other designations used in Internet communications or postings.

(9) An addition, change in or termination of information related to occupational and professional licensing, including type of license held and license number.

(h) Transients, juvenile offenders and sexually violent delinquent children.--If the individual specified in section 9799.13 is a transient, a juvenile offender or a sexually violent delinquent child, the following apply:

(1) If the individual is a transient, the individual shall appear in person at an approved registration site to provide or to verify the information set forth in section 9799.16(b) and to be photographed monthly. The duty to appear in person monthly and to be photographed shall apply until a transient establishes a residence. In the event a transient establishes a residence, the requirement of periodic in-person appearances set forth in subsection (e) shall apply.

(2) If the individual is a juvenile offender who is not a transient, the individual shall appear at an approved registration site to provide or verify the information set forth in section 9799.16(b) and to be photographed quarterly.

(3) If the individual is a sexually violent delinquent child who is not a transient, the individual shall appear at an approved registration site to provide or verify the information set forth in section 9799.16(b) and to be photographed quarterly.

(i) International travel.--In addition to the periodic in-person appearance required in subsection (e), an individual specified in section 9799.13 shall appear in person at an approved registration site no less than 21 days in advance of traveling outside of the United States. The individual shall provide the following information:

(1) Dates of travel, including date of return to the United States.

(2) Destinations.

(3) Temporary lodging.

(j) In-person reporting by incarcerated or committed individuals.--The requirements of subsections (e), (f), (g) and (h) do not apply where the individual specified in section 9799.13 is:

(1) incarcerated in a correctional institution, excluding a community contract facility or community corrections center;

(2) subject to a sentence of intermediate punishment which is restrictive and where the individual is sentenced to a period of incarceration;

(3) committed to an institution or facility set forth in section 6352(a)(3) which provides the individual with 24-hour-per-day supervision and care; or

(4) committed to and receiving involuntary inpatient treatment in the State-owned facility or unit set forth in Chapter 64.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 7, effective Dec. 20, 2012; 2014, March 14, P.L. 41, No. 19, § 5, retroactive effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 10, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 8, imd. effective.

42 Pa.C.S.A. § 9799.15, PA ST 42 Pa.C.S.A. § 9799.15

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.16

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.2

§ 9799.16. Registry

Currentness

(a) Establishment.--There is established a Statewide registry of sexual offenders in order to carry out the provisions of this subchapter. The Pennsylvania State Police shall create and maintain the registry. The registry shall maintain a complete and systematic index of all records required regarding sexual offenders in order to comply with the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 120 Stat. 587).¹ The registry shall:

- (1) Be composed of an electronic database and digitized records.
- (2) Be able to communicate with the Sex Offender Registration and Notification Act Exchange Portal developed by the United States Department of Justice, the National Sex Offender Registry or any successor database which is maintained by the Department of Justice and the Dru Sjodin National Sex Offender Public Internet Website maintained by the Department of Justice.
- (3) Be able to communicate with sexual offender registries established in other jurisdictions.
- (4) Contain information about individuals required to register with the Pennsylvania State Police under Subchapter I (relating to continued registration of sexual offenders).²

(b) Information provided by sexual offender.--An individual specified in section 9799.13 (relating to applicability) shall provide the following information which shall be included in the registry:

- (1) Primary or given name, including an alias used by the individual, nickname, pseudonym, ethnic or tribal name, regardless of the context used and any designations or monikers used for self-identification in Internet communications or postings.
- (2) Designation used by the individual for purposes of routing or self-identification in Internet communications or postings.
- (3) Telephone number, including cell phone number, and any other designation used by the individual for purposes of routing or self-identification in telephonic communications.

- (4) Valid Social Security number issued to the individual by the Federal Government and purported Social Security number.
- (5) Address of each residence or intended residence, whether or not the residence or intended residence is located within this Commonwealth and the location at which the individual receives mail, including a post office box. If the individual fails to maintain a residence and is therefore a transient, the individual shall provide information for the registry as set forth in paragraph (6).
- (6) If the individual is a transient, the individual shall provide information about the transient's temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park. In addition, the transient shall provide a list of places the transient eats, frequents and engages in leisure activities and any planned destinations, including those outside this Commonwealth. If the transient changes or adds to the places listed under this paragraph during a monthly period, the transient shall list these when registering as a transient during the next monthly period. In addition, the transient shall provide the place the transient receives mail, including a post office box. If the transient has been designated as a sexually violent predator, the transient shall state whether he is in compliance with section 9799.36 (relating to counseling of sexually violent predators). The duty to provide the information set forth in this paragraph shall apply until the transient establishes a residence. In the event a transient establishes a residence, the requirements of section 9799.15(e) (relating to period of registration) shall apply.
- (7) Temporary lodging. In order to fulfill the requirements of this paragraph, the individual must provide the specific length of time and the dates during which the individual will be temporarily lodged.
- (8) A passport and documents establishing immigration status, which shall be copied in a digitized format for inclusion in the registry.
- (9) Name and address where the individual is employed or will be employed. In order to fulfill the requirements of this paragraph, if the individual is not employed in a fixed workplace, the individual shall provide information regarding general travel routes and general areas where the individual works.
- (10) Information relating to occupational and professional licensing, including type of license held and the license number.
- (11) Name and address where the individual is a student or will be a student.
- (12) Information relating to motor vehicles owned or operated by the individual, including watercraft and aircraft. In order to fulfill the requirements of this paragraph, the individual shall provide a description of each motor vehicle, watercraft or aircraft. The individual shall provide a license plate number, registration number or other identification number and the address of the place where a vehicle is stored. In addition, the individual shall provide the individual's license to operate a motor vehicle or other identification card issued by the Commonwealth, another jurisdiction or a foreign country so that the Pennsylvania State Police can fulfill its responsibilities under subsection (c)(7).
- (13) Actual date of birth and purported date of birth.

(14) Form signed by the individual acknowledging the individual's obligations under this subchapter provided in accordance with section 9799.23 (relating to court notification and classification requirements).

(c) Criminal justice information.--The Pennsylvania State Police shall ensure that the following information is included in or electronically accessible by the registry:

(1) Physical description of the individual, including a general physical description and tattoos, scars and other identifying marks.

(2) Text of the statute defining the criminal offense for which the individual is registered.

(3) Criminal history record information of the individual, including:

(i) Dates of arrests and convictions.

(ii) Status of probation, parole or supervised release.

(iii) Whether the individual is in compliance with requirements regarding this subchapter or has absconded.

(iv) Existence of any outstanding warrants.

(4) Current photograph of the individual. In order to fulfill the requirements of this paragraph, in addition to the taking of photographs pursuant to section 9799.15(e), the Pennsylvania State Police shall ensure that additional photographs are taken as needed when there is a significant change in appearance of the individual, including the taking of a current photograph before the individual is released from a State or county correctional institution or an institution or facility set forth in section 6352(a)(3) (relating to disposition of delinquent child) or discharged from the State-owned facility or unit set forth in Chapter 64 (relating to court-ordered involuntary treatment of certain sexually violent persons) due to:

(i) the expiration of sentence, period of commitment or involuntary treatment;

(ii) parole or other supervised release, including release to a community corrections center or a community contract facility;

(iii) commencement of a sentence of intermediate punishment; or

(iv) any other form of supervised release.

(5) Set of fingerprints and palm prints of the individual. In order to fulfill the requirements of this paragraph, the palm prints shall be taken for the purpose of submission to the Federal Bureau of Investigation Central Database. The palm prints shall be submitted for entry into the database.

(6) DNA sample of the individual. In order to fulfill the requirements of this paragraph, the sample shall be taken for the purpose of analysis and entry into the Combined DNA Index System (CODIS). In addition, the sample shall be analyzed and submitted for entry into CODIS.

(7) Photocopy of valid driver's license or identification card issued to the individual by the Commonwealth, another jurisdiction or a foreign country.

(d) Cooperation.—There shall be cooperation between the Pennsylvania State Police, State and county correctional institutions, the Pennsylvania Parole Board, the county office of probation and parole, any court with jurisdiction over a sexual offender, the chief juvenile probation officer of the court, juvenile probation and parole and the Department of Human Services to ensure that the information set forth in subsections (b) and (c) is provided and placed in the registry.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 8, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 11, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 9, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

Footnotes

1 See 34 U.S.C.A. § 20901 et seq.

2 42 Pa.C.S.A. § 9799.51 et seq.

42 Pa.C.S.A. § 9799.16, PA ST 42 Pa.C.S.A. § 9799.16

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Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.17

§ 9799.17. Termination of period of registration for juvenile offenders

Currentness

(a) Juvenile offender.--An individual who is a juvenile offender, with the exception of a juvenile offender whose period of registration is determined by section 9799.15(a)(4.1) (relating to period of registration), shall have the requirement to register terminated if all of the following apply:

(1) At least 25 years have elapsed since the individual was:

(i) adjudicated delinquent for an offense which, if committed by an adult, would be classified as an offense under 18 Pa.C.S. § 3121 (relating to rape), 3123 (relating to involuntary deviate sexual intercourse) or 3125 (relating to aggravated indecent assault) or an attempt, solicitation or conspiracy to commit an offense under 18 Pa.C.S. § 3121, 3123 or 3125, excluding time spent under the supervision of the court, including commitment to an institution or facility set forth in section 6352(a) (3) (relating to deposition of delinquent child); or

(ii) adjudicated delinquent for an offense in another jurisdiction or foreign country which is similar to that which if committed by an adult in this Commonwealth would be classified as an offense under 18 Pa.C.S. § 3121, 3123 or 3125 or an attempt, solicitation or conspiracy to commit an offense under 18 Pa.C.S. § 3121, 3123 or 3125.

(2) For a period of 25 years prior to the filing of the petition, the individual has not been convicted of a subsequent sexually violent offense or a subsequent offense:

(i) graded as a misdemeanor of the second degree or higher; or

(ii) which is punishable by a term of imprisonment greater than one year.

(3) The individual successfully completed court-ordered supervision without revocation.

(4) The individual successfully completed a treatment program for sexual offenders recognized by the juvenile court in this Commonwealth or another jurisdiction or the United States Attorney General under section 115(b)(1) of the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 42 U.S.C. § 16915(b)(1)).

(b) Procedure.--An individual who was adjudicated delinquent in this Commonwealth and who seeks to terminate the obligation to register pursuant to subsection (a) may petition the court of common pleas of the county in which the individual was adjudicated delinquent for termination. An individual who was adjudicated delinquent in another jurisdiction or foreign country may petition the court of common pleas in the county in which the individual has established a residence in this Commonwealth. The court shall:

(1) Within 120 days of the filing of the petition under this subsection, hold a hearing to determine whether to terminate the obligation to register. The petitioner and the district attorney shall be given notice of the hearing and an opportunity to be heard, the right to call witnesses, the right to call expert witnesses and the right to cross-examine witnesses. The petitioner shall have the right to counsel and to have a lawyer appointed if the petitioner cannot afford one.

(2) Terminate the obligation to register only upon a finding of clear and convincing evidence that the petitioner has satisfied the criteria in subsection (a) and that allowing the petitioner to terminate the obligation to register is not likely to pose a threat to the safety of any other person. The burden of proof shall be on the petitioner.

(c) Notice.--A court granting relief under this section shall notify the Megan's Law Unit of the Pennsylvania State Police in writing within ten days from the date relief is granted.

(d) Right to appeal.--The petitioner and the Commonwealth shall have the right to appellate review of the actions of the court taken under this section. An appeal by the Commonwealth shall stay the order of the court.

(e) Prohibition.--This section shall not apply to an individual who:

(1) Has been designated as a sexually violent predator.

(2) Has been convicted of a sexually violent offense who is required to register for a period of 15 years or a period of 25 years.

(3) Has been convicted of a sexually violent offense who is required to register for a period of life.

(4) Is a sexually violent delinquent child.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 8, effective Dec. 20, 2012.

42 Pa.C.S.A. § 9799.17, PA ST 42 Pa.C.S.A. § 9799.17

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42 Pa.C.S.A. § 9799.18

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.2

§ 9799.18. Information sharing

Currentness

(a) General rule.--The Pennsylvania State Police shall, within three business days, make available information provided by an individual set forth in section 9799.13 (relating to applicability) under sections 9799.15(g) and (i) (relating to period of registration), 9799.16(b) (relating to registry) and 9799.19 (relating to initial registration) to:

- (1) A jurisdiction in which the individual is required to register the individual's residence, employment or enrollment as a student.
- (2) A jurisdiction in which the individual has terminated the individual's residence, employment or enrollment as a student.
- (3) The United States Attorney General, the Department of Justice and the United States Marshals Service for inclusion in the National Sex Offender Registry, NCIC and any other database established by such Federal agencies.
- (4) The district attorney of the county in which the individual:
 - (i) establishes a residence or terminates a residence, or is transient;
 - (ii) commences employment or terminates employment; or
 - (iii) enrolls as a student or terminates enrollment as a student.
- (5) The chief law enforcement officer of the police department of the municipality in which the individual:
 - (i) establishes a residence or terminates a residence, or is transient;
 - (ii) commences employment or terminates employment; or

(iii) enrolls as a student or terminates enrollment as a student.

(6) The county office of probation and parole for the county in which the individual:

(i) establishes a residence or terminates a residence, or is transient;

(ii) commences employment or terminates employment; or

(iii) enrolls as a student or terminates enrollment as a student.

(b) When sexual offender fails to appear.--When another jurisdiction notifies this Commonwealth that a sexual offender has terminated his residence, employment or enrollment as a student in that jurisdiction and intends to establish a residence in this Commonwealth, commence employment in this Commonwealth or commence enrollment as a student in this Commonwealth and that sexual offender fails to appear in this Commonwealth to register, the Pennsylvania State Police shall notify the other jurisdiction that the sexual offender failed to appear.

(c) International residence.--The Pennsylvania State Police shall, within three business days, transfer information that a sexual offender intends to establish residence in another country to:

(1) A jurisdiction in which the sexual offender is required to register residence, employment or enrollment as a student.

(2) The United States Marshals Service.

(3) The Department of Justice for inclusion in the National Sex Offender Registry and NCIC.

(d) International travel.--The Pennsylvania State Police shall, within three business days, transfer information about international travel provided by the sexual offender under section 9799.15(i) to:

(1) A jurisdiction in which the sexual offender is required to register the sexual offender's residence, as a transient, employment or enrollment as a student.

(2) The United States Marshals Service.

(3) The Department of Justice for inclusion in the National Sex Offender Registry and NCIC.

(e) National Child Protection Act agencies.--The Pennsylvania State Police shall, within three business days, transfer such criminal history record information about a sexual offender in the registry necessary to enable an agency responsible for

conducting employment-related background checks under section 3 of the National Child Protection Act of 1993 (Public Law 103-209, 42 U.S.C. 5119a) to conduct the background checks.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 8, effective Dec. 20, 2012.

42 Pa.C.S.A. § 9799.18, PA ST 42 Pa.C.S.A. § 9799.18

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Title 42 Pa.C.S.A. Judiciary and Judicial Procedure (Refs & Annos)
Part VIII. Criminal Proceedings
Chapter 97. Sentencing (Refs & Annos)
Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.19

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.2

§ 9799.19. Initial registration

Currentness

(a) General rule.—An individual set forth in section 9799.13 (relating to applicability) shall initially register with the Pennsylvania State Police as set forth in this section.

(b) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective.

(b.1) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective.

(c) to (e.2) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective.

(f) Initial registration if being supervised by Commonwealth under Interstate Compact for Adult Offender Supervision.—If an individual is in this Commonwealth and is being supervised by the Department of Corrections or the county office of probation and parole pursuant to the Interstate Compact for Adult Offender Supervision, the following apply:

(1) If the individual is being supervised under the compact for committing a sexually violent offense which requires registration in another jurisdiction or foreign country whether or not the sexual offense is designated as a sexually violent offense, the individual shall provide the information set forth in section 9799.16(b) (relating to registry) to the appropriate official of the Department of Corrections or the county office of probation and parole for inclusion in the registry. The appropriate official shall collect the information set forth in section 9799.16(b) and forward the information to the Pennsylvania State Police. The appropriate official shall, in addition, ensure that the information set forth in section 9799.16(c) is collected and forwarded to the Pennsylvania State Police. If the individual fails to provide the information in section 9799.16(b), the appropriate official of the Department of Corrections or county office of probation and parole shall notify the Pennsylvania State Police.

(2) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective.

(g) Supervision of individual convicted in Commonwealth who does not intend to reside in Commonwealth.—An individual who committed a sexually violent offense within this Commonwealth who seeks transfer of supervision to another jurisdiction pursuant to the Interstate Compact for Adult Offender Supervision shall not have supervision transferred to another jurisdiction prior to the individual's registration with the Pennsylvania State Police as set forth in this section.

(h) Initial registration of juvenile offender or sexually violent delinquent child.--

(1) If the individual is a juvenile offender who is adjudicated delinquent by a court on or after December 20, 2012, the following apply:

(i) The court shall require the individual to provide the information set forth in section 9799.16(b) to the chief juvenile probation officer of the court as follows:

(A) Except as set forth in clause (B), at the time of disposition under section 6352 (relating to disposition of delinquent child).

(B) At the time the individual is adjudicated delinquent under section 6341 (relating to adjudication) if:

(I) the adjudication of delinquency occurs in any county other than the individual's county of residence; and

(II) the court intends to transfer the individual's case for disposition to the individual's county of residence under section 6321(c) (relating to commencement of proceedings).

(ii) The chief juvenile probation officer shall collect the information in section 9799.16(b) and (c) and forward it to the Pennsylvania State Police for inclusion in the registry as directed by the Pennsylvania State Police. If the juvenile offender is, under section 6352(a)(3), subject to court-ordered placement in an institution or facility which provides the juvenile with 24-hour-per-day supervision and care, the institution or facility shall ensure the information provided by the juvenile offender pursuant to section 9799.16(b) is updated to reflect accurate information prior to release. The institution or facility may not release the juvenile offender until it receives verification from the Pennsylvania State Police that the information required under section 9799.16(b) and (c) has been entered in the registry.

(2) If, on December 20, 2012, the individual is a juvenile offender and is subject to the jurisdiction of the court pursuant to a disposition entered under section 6352 and is on probation or the individual is otherwise being supervised in the community, including placement in a foster family home or other residential setting which provides the individual with less than 24-hour-per-day supervision and care, the individual shall provide the information set forth in section 9799.16(b) to the chief juvenile probation officer of the court within 30 days of December 20, 2012. The chief juvenile probation officer shall collect the information set forth in section 9799.16(b) and (c) and forward it to the Pennsylvania State Police for inclusion in the registry, as directed by the Pennsylvania State Police.

(3) If the individual is, on December 20, 2012, already a juvenile offender and is subject to the jurisdiction of a court pursuant to a disposition entered under section 6352 and is, under section 6352, subject to court-ordered placement in an institution or facility which provides the juvenile with 24-hour-per-day supervision and care, the director of the institution or facility or a designee shall make the juvenile offender available for and facilitate the collection of the information set forth in section 9799.16(b) and (c) as directed by the Pennsylvania State Police for inclusion in the registry. The Pennsylvania State Police may require the institution or facility to transport the juvenile offender to and from an approved registration site in order to fulfill the requirement of this paragraph. In order to fulfill the requirements of this paragraph, the chief juvenile probation

officer of the court shall, within ten days of December 20, 2012, notify the director of the institution or facility and the Pennsylvania State Police that the juvenile offender is required to register under this subchapter. In addition, the institution or facility shall ensure that the information provided by the juvenile offender pursuant to section 9799.16(b) is updated to reflect accurate information prior to release. The juvenile offender may not be released until the institution or facility receives verification from the Pennsylvania State Police that the information required under section 9799.16(b) and (c) has been entered into the registry.

(4) If the individual is, on December 20, 2012, already a sexually violent delinquent child and receiving involuntary treatment in the State-owned facility or unit under Chapter 64 (relating to court-ordered involuntary treatment of certain sexually violent persons), the director of the facility or unit or a designee shall make the sexually violent delinquent child available for and facilitate the collection of the information set forth in section 9799.16(b) and (c) as directed by the Pennsylvania State Police for inclusion in the registry. The Pennsylvania State Police may require the facility or unit to transport the sexually violent delinquent child to and from an approved registration site in order to fulfill the requirement of this paragraph. In addition, the facility or unit shall ensure that the information provided by the sexually violent delinquent child pursuant to section 9799.16(b) is updated to reflect accurate information prior to release. The facility or unit may not transfer the sexually violent child to outpatient treatment until it has received verification from the Pennsylvania State Police that it has received the information set forth in section 9799.16(b) and (c).

(5) If the individual is, on or after December 20, 2012, determined by the court to be a sexually violent delinquent child and committed for involuntary treatment to the State-owned facility or unit under Chapter 64, the following apply:

(i) The court shall require the individual to provide the information set forth in section 9799.16(b) to the chief juvenile probation officer of the court at the time of commitment. The chief juvenile probation officer shall collect and forward the information to the Pennsylvania State Police for inclusion in the registry. The chief juvenile probation officer shall, at the time of commitment, also ensure that the information set forth in section 9799.16(c) is collected and forwarded to the Pennsylvania State Police for inclusion in the registry. The Pennsylvania State Police may require the facility or unit to transport the sexually violent delinquent child to and from an approved registration site in order to fulfill the requirement of initial registration at the time of commitment.

(ii) The facility or unit shall ensure that the information provided by the sexually violent delinquent child pursuant to section 9799.16(b) is updated to reflect accurate information prior to transfer to involuntary outpatient treatment pursuant to section 6404.1 (relating to transfer to involuntary outpatient treatment) or discharge. The court may not transfer the sexually violent delinquent child to outpatient treatment or discharge the child from the facility or unit until it has received verification from the Pennsylvania State Police that the information required under section 9799.16(b) and (c) has been entered in the registry.

(i) Initial registration if convicted or adjudicated delinquent outside Commonwealth.--

(1) An individual subject to registration under section 9799.13(7), (7.1) or (7.2) shall appear in person at an approved registration site to provide the information set forth in section 9799.16(b) to the Pennsylvania State Police within three business days of establishing residence, commencing employment or commencing enrollment as a student within this Commonwealth. In addition, the individual shall comply with the other provisions of this subchapter, including section 9799.15 (relating to period of registration). If the individual fails to establish a residence but nevertheless resides in this Commonwealth, the individual shall register as a transient. The Pennsylvania State Police shall ensure that the information set forth in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(2) If the individual is, on or after December 20, 2012, a juvenile offender as defined in paragraph (2) or (3) of the definition of “juvenile offender” in section 9799.12 (relating to definitions), the individual shall appear in person at an approved registration site to provide the information set forth in section 9799.16(b) to the Pennsylvania State Police within three business days of establishing residence, commencing employment or commencing enrollment as a student within this Commonwealth. In addition, the individual shall comply with the other provisions of this subchapter, including section 9799.15. If the individual fails to establish a residence but nevertheless resides in this Commonwealth, the individual shall register as a transient. The Pennsylvania State Police shall ensure that the information set forth in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(3) If the individual is convicted of a sexually violent offense and incarcerated in a Federal correctional institution or being supervised by Federal probation authorities, the individual shall appear in person at an approved registration site to provide the information set forth in section 9799.16(b) to the Pennsylvania State Police within three business days of establishing residence, commencing employment or commencing enrollment as a student in this Commonwealth. In addition, the individual shall comply with other provisions of this subchapter, including section 9799.15. If the individual fails to establish a residence but nevertheless resides in this Commonwealth, the individual shall register as a transient. The Pennsylvania State Police shall ensure that the information set forth in section 9799.16(c) with respect to the individual is collected and entered into the registry.

(j) Deleted by 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective.

(k) Registration if incarcerated within Commonwealth or by Federal court.--The following apply to an individual who committed a sexually violent offense:

(1) If the individual is incarcerated in a Federal, State or county correctional facility, the individual shall provide the information specified in section 9799.16(b) to the appropriate official of the Federal, State or county correctional facility or the Department of Corrections for inclusion in the registry before being released due to:

(i) the expiration of sentence, in which case the information shall be collected no later than 10 days prior to the maximum expiration date;

(ii) parole;

(iii) State or county intermediate punishment where the sentence is restrictive and the individual is sentenced to a period of incarceration in a State or county correctional facility or a work release facility; or

(iv) special probation supervised by the Department of Corrections.

(2) For individuals described in paragraph (1), the appropriate official of the Federal, State or county correctional facility or the Department of Corrections shall collect and forward the information specified in section 9799.16(b) to the Pennsylvania State Police. The appropriate official shall, in addition, ensure that the information specified in section 9799.16(c) is collected and forwarded to the Pennsylvania State Police. The information specified in section 9799.16(b) and (c) shall be included in

the registry. With respect to individuals released under paragraph (1)(ii), (iii) or (iv), the State or county correctional facility shall not release the individual until the State or county correctional facility receives verification from the Pennsylvania State Police that the Pennsylvania State Police has received the information specified in section 9799.16(b) and (c). Verification may take place by electronic means. With respect to individuals released under paragraph (1)(i), if the individual refuses to provide the information specified in section 9799.16(b), the State or county correctional facility shall notify the Pennsylvania State Police or the municipal police department with jurisdiction over the facility of the failure to provide the information and of the expected date, time and location of the release of the individual.

(f) Registration if sentenced to a State or county correctional facility.--If the individual committed a sexually violent offense and is sentenced to a period of incarceration in a State or county correctional facility, the individual shall provide the information specified in section 9799.16(b) as follows:

(1) At the time of sentencing, the court shall require the individual to immediately report to the office of probation and parole serving that county to register under this subchapter. The appropriate office of probation and parole shall collect the information specified in section 9799.16(b) from the individual and forward the information to the Pennsylvania State Police. The appropriate office of probation and parole shall, in addition, ensure the information specified in section 9799.16(c) is collected and forwarded to the Pennsylvania State Police. The information specified in section 9799.16(b) and (c) shall be included in the registry.

(2) If the individual is incarcerated in a State or county correctional facility, the correctional facility shall notify the Pennsylvania State Police, not more than 30 days in advance of, but not later than 10 days prior to, the individual's release from the correctional facility. The following apply:

(i) The correctional facility shall ensure that the information specified in section 9799.16(b) and (c) for the individual has been submitted to the Pennsylvania State Police.

(ii) If the information has not been submitted to the Pennsylvania State Police, the correctional facility shall collect the information specified in section 9799.16(b) from the individual and forward the information to the Pennsylvania State Police.

(iii) The correctional facility shall also report any changes to the information specified in section 9799.16(b) and (c) on file with the Pennsylvania State Police.

(iv) In the case of parole, State intermediate punishment, State drug treatment programs or restrictive conditions of probation where the sentence is restrictive and the individual is sentenced to a period of incarceration in a State or county correctional facility or work release facility or special probation supervised by the Department of Corrections, the correctional facility may not release the individual until the correctional facility receives verification from the Pennsylvania State Police that the Pennsylvania State Police has received the information specified in section 9799.16(b) and (c). Verification by the Pennsylvania State Police may occur by electronic means.

(v) If the individual is scheduled to be released from a State or county correctional facility due to the expiration of sentence and the individual refuses to provide the information specified in section 9799.16(b), the State or county correctional

facility shall notify the Pennsylvania State Police or the municipal police department with jurisdiction over the facility of the failure to provide the information and of the expected date, time and location of the release of the individual.

(m) Registration if sentenced to county intermediate punishment.--If the individual committed a sexually violent offense and is sentenced to county intermediate punishment which is restorative where the individual is not sentenced to incarceration or to a work release facility, the individual shall provide the information specified in section 9799.16(b) by appearing at an approved registration site within 48 hours of being sentenced. The appropriate official of the county office of probation and parole shall ensure that the individual has appeared at an approved registration site as described in this subsection. If the individual fails to appear, the appropriate official of the county office of probation and parole shall notify the Pennsylvania State Police. The Pennsylvania State Police shall ensure the information specified in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(n) Registration if sentenced to county intermediate punishment.--If the individual committed a sexually violent offense and is sentenced to county intermediate punishment, the following apply:

(1) If the individual is sentenced to county intermediate punishment which is restorative, the individual shall provide the information specified in section 9799.16(b) by appearing at an approved registration site within 48 hours of being sentenced. The appropriate official of the county office of probation and parole shall ensure that the individual has appeared at an approved registration site as specified in this paragraph. If the individual fails to appear, the appropriate official of the county office of probation and parole shall notify the Pennsylvania State Police. The Pennsylvania State Police shall ensure the information specified in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(2) If the individual is sentenced to county intermediate punishment which is restrictive where the individual is not sentenced to incarceration or to a work release facility, the individual shall provide the information specified in section 9799.16(b) by appearing at an approved registration site within 48 hours of being sentenced. The appropriate official of the county office of probation and parole shall ensure that the individual has appeared at an approved registration site as described in this paragraph. If the individual fails to appear, the appropriate official of the county office of probation and parole shall notify the Pennsylvania State Police. The Pennsylvania State Police shall ensure the information specified in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(o) Registration if sentenced to county probation.--If the individual committed a sexually violent offense and is sentenced to county probation, the individual shall provide the information specified in section 9799.16(b) by appearing at an approved registration site within 48 hours of being sentenced. The appropriate official of the county office of probation and parole shall ensure that the individual has appeared at an approved registration site as described in this subsection. If the individual fails to appear, the appropriate official of the county office of probation and parole shall notify the Pennsylvania State Police. The Pennsylvania State Police shall ensure the information specified in section 9799.16(c) with respect to the individual is collected and entered in the registry.

(p) Registration for county or Federal probationers.--If the individual committed a sexually violent offense, the following apply:

(1) If the individual is serving a sentence of county probation, the appropriate office of probation and parole serving the county shall register the individual within 48 hours. The appropriate official of that office shall collect the information specified in section 9799.16(b) and forward that information to the Pennsylvania State Police. The Pennsylvania State Police shall

ensure that the information specified in section 9799.16(c) is collected. The information specified in section 9799.16(b) and (c) shall be included in the registry. If the individual fails to comply, the appropriate official of that office shall notify the Pennsylvania State Police.

(2) If the individual is under the supervision of Federal probation authorities for a sexually violent offense, the individual shall provide the information specified in section 9799.16(b) by appearing at an approved registration site within 48 hours of sentencing.

(q) Registration for State or county parolees.--

(1) If the individual committed a sexually violent offense and is serving a sentence of county parole, the appropriate office of probation and parole serving the county shall register the individual within 48 hours. The appropriate official of that office shall collect the information specified in section 9799.16(b) and forward that information to the Pennsylvania State Police. The Pennsylvania State Police shall ensure that the information specified in section 9799.16(c) is collected. The information specified in section 9799.16(b) and (c) shall be included in the registry. If the individual fails to comply, the appropriate official of that office shall notify the Pennsylvania State Police.

(2) If the individual committed a sexually violent offense and is serving a sentence of State parole, the Department of Corrections shall register the individual within 48 hours. The appropriate official of the Department of Corrections shall collect the information specified in section 9799.16(b) from the individual and forward the information to the Pennsylvania State Police. The Pennsylvania State Police shall ensure that the information specified in section 9799.16(c) is collected. The information specified in section 9799.16(b) and (c) shall be included in the registry. If the individual fails to comply, the appropriate official of the Department of Corrections shall notify the Pennsylvania State Police.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 9, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 12, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 10, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.19, PA ST 42 Pa.C.S.A. § 9799.19

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.20

§ 9799.20. Duty to inform

Currentness

In order to implement the provisions of section 9799.19 (relating to initial registration), as appropriate, the Pennsylvania State Police, the court having jurisdiction over the sexual offender, the chief juvenile probation officer of the court and the appropriate official of the Department of Corrections, county office of probation and parole, the Department of Human Services or a State or county correctional institution shall:

- (1) Inform the individual required to register of the individual's duties under this subchapter.
- (2) Require the individual to read and sign a form stating that the duty to register has been explained and that the individual understands the registration requirement.
- (3) Collect the information required under section 9799.16 (b) and (c) (relating to registry) and forward the information to the Pennsylvania State Police for inclusion in the registry as set forth in this subchapter.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012; 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.20, PA ST 42 Pa.C.S.A. § 9799.20

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.21

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.2

§ 9799.21. Penalty

Currentness

(a) Registration.--An individual set forth in section 9799.13 (relating to applicability) may be subject to prosecution under 18 Pa.C.S. § 4915.1 (relating to failure to comply with registration requirements) if the individual fails to:

- (1) register with the Pennsylvania State Police as set forth in section 9799.15 (relating to period of registration), 9799.19 (relating to initial registration) or 9799.25 (relating to verification by sexual offenders and Pennsylvania State Police);
- (2) verify the information provided by the individual or be photographed as provided in sections 9799.15, 9799.19 and 9799.25; or
- (3) provide accurate information when registering under sections 9799.15, 9799.19 and 9799.25.

(b) Counseling.--A sexually violent predator or sexually violent delinquent child may be subject to prosecution under 18 Pa.C.S. § 4915.1 if he fails to comply with section 9799.36 (relating to counseling of sexually violent predators).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012.

42 Pa.C.S.A. § 9799.21, PA ST 42 Pa.C.S.A. § 9799.21

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.22

§ 9799.22. Enforcement

Currentness

(a) Failure to comply.--When an individual set forth in section 9799.13 (relating to applicability) fails to comply with section 9799.19 (relating to initial registration), 9799.21 (relating to penalty) or 9799.36 (relating to counseling of sexually violent predators), the Pennsylvania State Police shall either:

(1) In cooperation with the district attorney, seek issuance of a warrant for the arrest of the individual and locate and arrest the individual for violating this section.

(2) Notify the municipal police department where the individual has a residence, is transient, is employed or is enrolled as a student. The municipal police shall, in cooperation with the district attorney, seek issuance of a warrant for the arrest of the individual and locate and arrest the individual for violating this section. In municipalities where no municipal police department exists, the Pennsylvania State Police shall proceed under paragraph (1).

(b) When individual cannot be found.--In the event the individual cannot be located, the following apply:

(1) The Pennsylvania State Police shall enter information on the Internet website of sexual offenders and in the registry indicating that the individual cannot be located.

(2) The Pennsylvania State Police shall provide information to the National Sex Offender Registry and NCIC to reflect that the individual cannot be located.

(3) The Pennsylvania State Police shall notify the United States Marshals Service.

(4) If a warrant is issued pursuant to this subsection, the police department executing the warrant shall provide information to the National Crime Information Center Wanted Person File to reflect that a warrant has been issued for the individual's arrest.

(c) Notice from another jurisdiction.--When another jurisdiction notifies the Pennsylvania State Police that a sexual offender has terminated residence, employment or enrollment as a student in that jurisdiction and intends to establish a residence in this Commonwealth, commence employment in this Commonwealth or commence enrollment as a student in this Commonwealth and that sexual offender fails to appear in this Commonwealth to register as provided in section 9799.15 (relating to period

of registration), the Pennsylvania State Police shall notify the other jurisdiction that the sexual offender failed to appear. This subsection also applies to a transient who fails to appear.

(d) Duty to inform Pennsylvania State Police.--In order to implement this subchapter, the court with jurisdiction over the sexual offender, the chief juvenile probation officer of the court and the appropriate official of the Department of Corrections responsible for State parole supervision, the county office of probation and parole, the Department of Human Services or a State or county correctional institution shall inform the Pennsylvania State Police if the individual refuses to provide the information required by this subchapter so that the Pennsylvania State Police may comply with this section.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012; 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.22, PA ST 42 Pa.C.S.A. § 9799.22

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.23

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.3

§ 9799.23. Court notification and classification requirements

Currentness

(a) Notice to sexual offenders.--At the time of sentencing, of disposition under section 6352 (relating to disposition of delinquent child) in the case of a juvenile offender, of adjudication of delinquency under section 6341 (relating to adjudication) in the case of a juvenile offender if the individual was adjudicated delinquent in any county other than the individual's county of residence and section 9799.19(h)(1)(i)(B) (relating to initial registration) applies, or of commitment under section 6403 (relating to court-ordered involuntary treatment) in the case of a sexually violent delinquent child, the court shall inform the sexual offender of the provisions of this subchapter. The court shall:

(1) Specifically inform the sexual offender of the duty to register under this subchapter.

(2) Specifically inform the sexual offender of:

(i) the duty to register in accordance with sections 9799.15 (relating to period of registration), 9799.16(b) (relating to registry), 9799.19 and 9799.25 (relating to verification by sexual offenders and Pennsylvania State Police); and

(ii) the duty to attend counseling in accordance with:

(A) section 9799.36 (relating to counseling of sexually violent predators) if applicable; or

(B) section 6404.2(g) (relating to duration of outpatient commitment and review) if applicable.

(3) Specifically inform the sexual offender of the duty to register with authorities in another jurisdiction within three business days of:

(i) Commencement of residence, change of residence, termination of residence or failure to maintain a residence, thus making the sexual offender a transient.

(ii) Commencement of employment, a change in the location or entity in which the sexual offender is employed or termination of employment.

(iii) Commencement of enrollment as a student, a change in enrollment as a student or termination of enrollment as a student.

(4) In accordance with section 9799.16(c), order that the fingerprints, palm prints, DNA sample and photograph of the sexual offender be provided to the Pennsylvania State Police upon sentencing.

(5) Require the sexual offender to read and sign a form stating that the duty to register under this subchapter has been explained. If the sexual offender is incapable of speaking, reading or writing the English language, the court shall certify the duty to register was explained to the sexual offender, and the sexual offender indicated an understanding of the duty.

(6) Specifically classify the individual as one of the following:

(i) An individual convicted of a Tier I offense.

(ii) An individual convicted of a Tier II offense.

(iii) An individual convicted of a Tier III offense.

(iv) A sexually violent predator.

(v) A juvenile offender.

(vi) A sexually violent delinquent child.

(b) Mandatory registration.--All sexual offenders must register in accordance with this subchapter. The following apply:

(1) Failure by the court to provide the information required in this section, to correctly inform a sexual offender of the sexual offender's obligations or to require a sexual offender to register shall not relieve the sexual offender from the requirements of this subchapter.

(2) Except as provided in sections 9799.15(a.2) and 9799.17 (relating to termination of period of registration for juvenile offenders), the court shall have no authority to relieve a sexual offender from the duty to register under this subchapter or to modify the requirements of this subchapter as they relate to the sexual offender.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012; 2014, Sept. 27, P.L. 2482, No. 138, § 4, effective in 60 days [Nov. 26, 2014]; 2018, Feb. 21, P.L. 27, No. 10, § 13, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective.

42 Pa.C.S.A. § 9799.23, PA ST 42 Pa.C.S.A. § 9799.23

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42 Pa.C.S.A. § 9799.24

Formerly cited as PA ST 42 Pa.C.S.A. § 9795.4

§ 9799.24. Assessments

Currentness

(a) Order for assessment.--After conviction but before sentencing, a court shall order an individual convicted of a sexually violent offense to be assessed by the board. The order for an assessment shall be sent to the executive director of the board within ten days of the date of conviction for the sexually violent offense.

(b) Assessment.--Upon receipt from the court of an order for an assessment, a member of the board as designated by the executive director of the board shall conduct an assessment of the individual to determine if the individual should be classified as a sexually violent predator. The board shall establish standards for evaluations and for evaluators conducting the assessments. An assessment shall include, but not be limited to, an examination of the following:

(1) Facts of the current offense, including:

(i) Whether the offense involved multiple victims.

(ii) Whether the individual exceeded the means necessary to achieve the offense.

(iii) The nature of the sexual contact with the victim.

(iv) Relationship of the individual to the victim.

(v) Age of the victim.

(vi) Whether the offense included a display of unusual cruelty by the individual during the commission of the crime.

(vii) The mental capacity of the victim.

(2) Prior offense history, including:

(i) The individual's prior criminal record.

(ii) Whether the individual completed any prior sentences.

(iii) Whether the individual participated in available programs for sexual offenders.

(3) Characteristics of the individual, including:

(i) Age.

(ii) Use of illegal drugs.

(iii) Any mental illness, mental disability or mental abnormality.

(iv) Behavioral characteristics that contribute to the individual's conduct.

(4) Factors that are supported in a sexual offender assessment field as criteria reasonably related to the risk of reoffense.

(c) Release of information.--All State, county and local agencies, offices and entities in this Commonwealth, including juvenile probation officers, shall cooperate by providing copies of records and information as requested by the board in connection with the court-ordered assessment and the assessment requested by the Pennsylvania Parole Board or the assessment of a delinquent child under section 6358 (relating to assessment of delinquent children by the State Sexual Offenders Assessment Board). For assessments of delinquent children conducted by the board pursuant to section 6358 from January 23, 2005, to December 19, 2012, all State, county and local agencies, offices and entities, including juvenile probation officers, are subject to the release of information requirements set forth in this subsection.

(d) Submission of report by board.--The board shall have 90 days from the date of conviction of the individual to submit a written report containing its assessment to the district attorney.

(d.1) Summary of offense.--The board shall prepare a description of the offense or offenses that trigger the application of this subchapter to include, but not be limited to:

(1) A concise narrative of the individual's conduct.

(2) Whether the victim was a minor.

(3) The manner of weapon or physical force used or threatened.

- (4) If the offense involved unauthorized entry into a room or vehicle occupied by the victim.
- (5) If the offense was part of a course or pattern of conduct involving multiple incidents or victims.
- (6) Previous instances in which the individual was determined guilty of an offense subject to this subchapter or of a crime of violence as defined in section 9714(g) (relating to sentences for second and subsequent offenses).

(e) Hearing.--

- (1) A hearing to determine whether the individual is a sexually violent predator shall be scheduled upon the praecipe filed by the district attorney. The district attorney upon filing a praecipe shall serve a copy of the praecipe upon defense counsel together with a copy of the report of the board.
- (2) The individual and district attorney shall be given notice of the hearing and an opportunity to be heard, the right to call witnesses, the right to call expert witnesses and the right to cross-examine witnesses. In addition, the individual shall have the right to counsel and to have an attorney appointed to represent the individual if the individual cannot afford one. If the individual requests another expert assessment, the individual shall provide a copy of the expert assessment to the district attorney prior to the hearing.
- (3) At the hearing prior to sentencing, the court shall determine whether the Commonwealth has proved by clear and convincing evidence that the individual is a sexually violent predator.
- (4) A copy of the order containing the determination of the court shall be immediately submitted to the individual, the district attorney, the Pennsylvania Parole Board, the Department of Corrections, the board and the Pennsylvania State Police.

(f) Presentence investigation.--In all cases where the board has performed an assessment under this section, copies of the report shall be provided to the agency preparing the presentence investigation.

(g) Parole assessment.--The Pennsylvania Parole Board may request of the board that an assessment of a sexual offender be conducted and that a report be provided to the Pennsylvania Parole Board prior to considering a sexual offender for parole.

(h) Delinquent children.--The probation officer shall notify the board 90 days prior to the 20th birthday of the child of the status of the delinquent child who is committed to an institution or other facility pursuant to section 6352 (relating to disposition of delinquent child) after having been found delinquent for an act of sexual violence that if committed by an adult would be a violation of 18 Pa.C.S. § 3121 (relating to rape), 3123 (relating to involuntary deviate sexual intercourse), 3124.1 (relating to sexual assault), 3125 (relating to aggravated indecent assault), 3126 (relating to indecent assault) or 4302 (relating to incest), together with the location of the facility where the child is committed. The board shall conduct an assessment of the child, which shall include the board's determination of whether or not the child is in need of commitment due to a mental abnormality as defined in section 6402 (relating to definitions) or a personality disorder, either of which results in serious difficulty in controlling sexually violent behavior, and provide a report to the court within the time frames set forth in section 6358(c). The

probation officer shall assist the board in obtaining access to the child and any records or information as requested by the board in connection with the assessment. The assessment shall be conducted under subsection (b).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2014, March 14, P.L. 41, No. 19, § 6, retroactive effective Dec. 20, 2012; 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.24, PA ST 42 Pa.C.S.A. § 9799.24

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42 Pa.C.S.A. § 9799.25

Formerly cited as PA ST 42 Pa.C.S.A. § 9796

§ 9799.25. Verification by sexual offenders and Pennsylvania State Police

Currentness

(a) Periodic verification.--Except for initial registration as provided in section 9799.19 (relating to initial registration) and in accordance with section 9799.15(a) (relating to period of registration), sexual offenders shall verify the information provided in section 9799.16(b) (relating to registry) and be photographed as follows:

- (1) An individual convicted of a Tier I sexual offense shall appear in person at an approved registration site annually.
- (2) An individual convicted of a Tier II sexual offense shall appear in person at an approved registration site semiannually.
- (3) An individual convicted of a Tier III sexual offense shall appear in person at an approved registration site quarterly.
- (4) An individual designated as a sexually violent predator shall appear in person at an approved registration site quarterly.
- (5) A juvenile offender shall appear in person at an approved registration site quarterly.
- (6) A sexually violent delinquent child shall appear in person at an approved registration site quarterly.
- (7) A transient shall appear in person at an approved registration site monthly.
- (8) An individual required to register under section 9799.13(7.1) (relating to applicability) shall annually appear in person at an approved registration site.

(a.1) Alternate requirements regarding verification.--The following apply to an individual required to appear in person under subsection (a)(2) or (3):

- (1) If the individual has been in compliance with the requirements of this subchapter for the first three years of the individual's period of registration and, during the same three-year period, the individual has not been convicted in this Commonwealth or any other jurisdiction or foreign country of an offense punishable by imprisonment of more than one year, the individual

shall appear at an approved registration site annually. The individual shall appear within 10 days before the date designated by the Pennsylvania State Police to verify information in section 9799.16(b) and be photographed.

(2) The other appearances required of the individual under this section may be completed by contacting the Pennsylvania State Police by telephone at a telephone number designated by the Pennsylvania State Police. The individual shall call the Pennsylvania State Police within three business days of the date designated by the Pennsylvania State Police.

(3) If the individual fails to comply with the provisions of this subsection and the individual is subsequently convicted under 18 Pa.C.S. § 4915.1 (relating to failure to comply with registration requirements), any relief granted under this subsection shall be void, and the petitioner shall automatically and immediately again be subject to the provisions of this subchapter, as previously determined by this subchapter.

(a.2) Telephonic verification system.--The Pennsylvania State Police shall develop a mechanism to permit individuals to utilize the telephonic verification system established in this section. No individual may utilize the telephonic verification system until the Pennsylvania State Police publishes notice in the Pennsylvania Bulletin that the system is operational.

(b) Deadline.--The following apply:

(1) A sexual offender shall appear as required under subsection (a) within ten days before the date designated by the Pennsylvania State Police. Failure to appear within ten days may subject the sexual offender to prosecution under 18 Pa.C.S. § 4915.1 (relating to failure to comply with registration requirements).

(2) In the case of a sexual offender who fails to appear in person or telephonically as required under this section, the Pennsylvania State Police shall notify the municipal police department where the sexual offender has a residence, is employed or is enrolled as a student. The municipal police shall locate the sexual offender and arrest the sexual offender for violating this section. A municipal police department may request assistance locating or arresting a sexual offender from the Pennsylvania State Police. In municipalities where no municipal police department exists, the Pennsylvania State Police shall locate the offender and arrest the sexual offender for violating this section.

(3) In the case of a sexual offender who fails to appear in person or telephonically as required under this section, the Pennsylvania State Police shall notify the United States Marshals Service in accordance with section 9799.22(b)(3) (relating to enforcement).

(c) Facilitation of verification.--The Pennsylvania State Police shall administer and facilitate the process of verification of information, including compliance with counseling in the case of sexually violent predators and sexually violent delinquent children, and photographing the sexual offender by:

(1) Sending a notice by first class United States mail to each sexual offender at the last reported location where the offender receives mail. The notice shall be sent not more than 30 days nor less than 15 days prior to the date a sexual offender is required to appear pursuant to subsection (a) or (a.1). The notice shall remind the sexual offender of the sexual offender's responsibilities under this subchapter, including counseling in the case of sexually violent predators and sexually violent delinquent children, and provide a list of approved registration sites and the telephone number to contact the Pennsylvania State Police under subsection (a.1).

(2) Providing verification and compliance forms as necessary at each approved registration site.

(d) Effect of notice.--Failure to send or receive notice of information under this section shall not relieve the sexual offender from the requirements of this subchapter.

(e) Natural disaster.--The occurrence of a natural disaster or other event requiring evacuation of residences shall not relieve the sexual offender of the duty to register or any other duty imposed by this subchapter.

(f) Residents in group-based homes.--

(1) A group-based home may not provide concurrent residence in the group-based home to more than five individuals in total who are required to register under this subchapter and Subchapter I (relating to continued registration of sexual offenders) ¹ as sexually violent predators.

(2) A group-based home that violates paragraph (1) shall be subject to a civil penalty in the amount of \$2,500 for a first violation and in the amount of \$5,000 for a second or subsequent violation.

(3) The Pennsylvania State Police or local law enforcement agency of jurisdiction shall investigate compliance with this subsection, and the Attorney General or district attorney may commence a civil action in the court of common pleas of the county in which a group-based home is located to impose and collect from the group-based home the penalty under paragraph (2).

(4) As used in this subsection, the term “**group-based home**” has the meaning given to it in 61 Pa.C.S. § 5007(c) (relating to certain offenders residing in group-based homes).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 14, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

Footnotes

¹ 42 Pa.C.S.A. § 9799.51 et seq.

42 Pa.C.S.A. § 9799.25, PA ST 42 Pa.C.S.A. § 9799.25

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42 Pa.C.S.A. § 9799.26

Formerly cited as PA ST 42 Pa.C.S.A. § 9797

§ 9799.26. Victim notification

Currentness

(a) Duty to inform victim.--

(1) If an individual is determined to be a sexually violent predator or a sexually violent delinquent child, the municipal police department or the Pennsylvania State Police, if no municipal police jurisdiction exists, shall give written notice to the victim when the sexually violent predator or the sexually violent delinquent child registers initially under section 9799.19 (relating to initial registration) or under section 9799.15(g)(2), (3) or (4) (relating to period of registration). The notice shall be given within 72 hours after the sexually violent predator or the sexually violent delinquent child registers or notifies the Pennsylvania State Police of current information under section 9799.15(g). The notice shall contain the following information about the sexually violent predator or sexually violent delinquent child:

(i) Name.

(ii) Residence. This subparagraph includes whether the sexually violent predator or sexually violent delinquent child is a transient, in which case the notice shall contain information about the transient's temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park. In addition, the notice shall contain a list of places the transient eats, frequents and engages in leisure activities.

(iii) The address of employment.

(iv) The address where the sexually violent predator or sexually violent delinquent child is enrolled as a student.

(2) A victim may terminate the duty to inform set forth in paragraph (1) by providing the local municipal police department or the Pennsylvania State Police, if no local municipal police department exists, with a written statement releasing that agency from the duty to comply with this section as it pertains to that victim.

(b) Individual not determined to be sexually violent predator or sexually violent delinquent child.--If an individual is not determined to be a sexually violent predator or a sexually violent delinquent child, the victim shall be notified in accordance with section 201 of the act of November 24, 1998 (P.L. 882, No. 111),¹ known as the Crime Victims Act.

(c) Electronic notification option.--In addition to subsections (a) and (b), the Pennsylvania State Police shall develop and implement a system that allows a victim to receive electronic notification instead of the notification in subsections (a) and (b) when a sexual offender provides current information to the Pennsylvania State Police under subsection (a).

(d) Alternate means of notifying victims.--

(1) The Pennsylvania State Police may enter into a memorandum of understanding with the Office of Victim Advocate to assist the Pennsylvania State Police in notifying victims and providing the information under subsection (a). In addition, the memorandum of understanding may also include the Office of Victim Advocate's notifying a victim of relief granted to a petitioner under section 9799.15(a.2). The memorandum of understanding must state the manner and method of notifying victims and the duties of the Pennsylvania State Police and the Office of Victim Advocate under this section and section 9799.15(a.2). A memorandum of understanding entered into under this subsection shall be valid for no more than 10 years. There shall be no limit to the number of memoranda of understanding which may be executed by the Pennsylvania State Police and the Office of Victim Advocate under this subsection.

(2) As used in this subsection, the term “**Office of Victim Advocate**” shall mean the office established under section 301 of the act of November 24, 1998 (P.L. 882, No. 111),² known as the Crime Victims Act.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 14, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective.

Footnotes

1 18 P.S. § 11.201.

2 18 P.S. § 11.301.

42 Pa.C.S.A. § 9799.26, PA ST 42 Pa.C.S.A. § 9799.26

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.27

Formerly cited as PA ST 42 Pa.C.S.A. § 9798

§ 9799.27. Other notification

Currentness

(a) Notice.--Notwithstanding the provisions of Chapter 63 (relating to juvenile matters) and 18 Pa.C.S. Ch. 91 (relating to criminal history record information), the chief law enforcement officer of the police department of the municipality where a sexually violent predator or sexually violent delinquent child lives or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the chief law enforcement officer of the police department of the transient's last known habitat, shall be responsible for providing written notice as required under this section. The notice shall contain:

- (1) The name of the individual.
- (2) The address of the residence of the individual. If the individual is a transient, written notice under this paragraph shall consist of information about the transient's temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park, and a list of the places the transient eats, frequents and engages in leisure activities.
- (3) The offense for which the individual was convicted, sentenced by a court, adjudicated delinquent or court martialled.
- (4) A statement that the individual has been determined to be a sexually violent predator or sexually violent delinquent child, which determination has or has not been terminated as of a date certain.
- (5) A photograph of the sexually violent predator or sexually violent delinquent child.

The notice shall not include any information that might reveal the victim's name, identity and residence.

(b) To whom written notice is provided.--The chief law enforcement officer shall provide written notice under subsection (a) to the following persons:

- (1) Neighbors of the sexually violent predator or sexually violent delinquent child. As used in this paragraph:

(i) In the case of a sexually violent predator or sexually violent delinquent child being a transient, “neighbor” includes residents in the area of the transient's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(ii) Where the sexually violent predator lives in a common interest community, the term “neighbor” includes the unit owners' association and residents of the common interest community.

(2) The director of the county children and youth agency of the county where the sexually violent predator or sexually violent delinquent child has a residence or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the director of the county children and youth agency of the county of the sexually violent predator's or sexually violent delinquent child's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(3) The superintendent of each school district and the equivalent official for each private and parochial school enrolling students up through grade 12 in the municipality where the sexually violent predator or sexually violent delinquent child has a residence or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the superintendent of each school district and the equivalent official for private and parochial schools enrolling students up through grade 12 in the municipality of the sexually violent predator's or sexually violent delinquent child's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(4) The superintendent of each school district and the equivalent official for each private and parochial school located within a one-mile radius of where the sexually violent predator or sexually violent delinquent child has a residence or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the superintendent of each school district and the equivalent official for each private and parochial school within a one-mile radius of the sexually violent predator's or sexually violent delinquent child's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(5) The licensee of each certified day-care center and licensed preschool program and owner or operator of each registered family day-care home in the municipality where the sexually violent predator or sexually violent delinquent child has a residence or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the licensee of each certified day-care center and licensed preschool program and owner or operator of each registered family day-care home in the municipality of the sexually violent predator's or sexually violent delinquent child's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(6) The president of each college, university and community college located within 1,000 feet of where the sexually violent predator or sexually violent delinquent child has a residence or, in the case of a sexually violent predator or sexually violent delinquent child failing to establish a residence and being a transient, the president of each college, university and community college located within 1,000 feet of the sexually violent predator's or sexually violent delinquent child's last known temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park.

(c) Notification time frames.--The municipal police department's chief law enforcement officer shall provide notice within the following time frames:

(1) To neighbors, notice shall be provided within five days after information of the sexually violent predator's or sexually violent delinquent child's release date and residence has been received by the chief law enforcement officer. Notwithstanding the provisions of subsections (a) and (b), verbal notification may be used if written notification would delay meeting the requirement of this paragraph.

(2) To the persons specified in subsection (b)(2), (3), (4), (5) and (6), notice shall be provided within seven days after the chief law enforcement officer receives information regarding the sexually violent predator's or sexually violent delinquent child's release date and residence.

(d) Public notice.--Information provided in accordance with subsection (a) shall be available to the general public upon request. The information may be provided by electronic means.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 10, effective Dec. 20, 2012.

42 Pa.C.S.A. § 9799.27, PA ST 42 Pa.C.S.A. § 9799.27

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42 Pa.C.S.A. § 9799.28

Formerly cited as PA ST 42 Pa.C.S.A. § 9798.1

§ 9799.28. Public Internet website

Currentness

(a) Information to be made available through Internet.--The Pennsylvania State Police shall, in the manner and form directed by the Governor:

(1) Develop and maintain a system for making information about individuals convicted of a sexually violent offense, sexually violent predators and sexually violent delinquent children publicly available by electronic means via an Internet website. In order to fulfill its duties under this section, the Pennsylvania State Police shall ensure that the Internet website:

(i) Contains a feature to permit a member of the public to obtain relevant information for an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child by a query of the Internet website based on search criteria including searches for any given zip code or geographic radius set by the user.

(ii) Contains a feature to allow a member of the public to receive electronic notification when an individual convicted of a sexually violent offense, sexually violent predator or sexually violent delinquent child provides information under section 9799.15(g)(2), (3) or (4) (relating to period of registration). This feature shall also allow a member of the public to receive electronic notification when the individual convicted of a sexually violent offense, sexually violent predator or sexually violent delinquent child moves into or out of a geographic area chosen by the user.

(iii) Includes in its design all field search capabilities needed for full participation in the Dru Sjodin National Sex Offender Public Internet Website. The Pennsylvania State Police shall ensure that the website is able to participate in the Dru Sjodin National Sex Offender Public Internet Website as the United States Attorney General may direct.

(iv) Is updated within three business days with the information required.

(2) Include on the Internet website the following:

(i) Instructions on how to seek correction of information that an individual contends is erroneous.

(ii) A warning that the information on the Internet website should not be used to unlawfully injure, harass or commit a crime against an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child and that any such action could result in criminal or civil penalties.

(3) Include on the Internet website an explanation of its limitations, including statements advising that:

(i) A positive identification of an individual convicted of a sexually violent offense, sexually violent predator or sexually violent delinquent child may be confirmed only by fingerprints.

(ii) Some information contained on the Internet website may be outdated or inaccurate.

(iii) The Internet website is not a comprehensive listing of every person who has ever committed a sexual offense in Pennsylvania.

(4) Strive to ensure that the information contained on the Internet website is accurate and that the data therein is revised and updated as provided in paragraph (1)(iv).

(5) Provide on the Internet website general information designed to inform and educate the public about sexual offenders and the operation of this subchapter as well as pertinent and appropriate information concerning crime prevention and personal safety, with appropriate links to other relevant Internet websites operated by the Commonwealth.

(b) Required information.--Notwithstanding Chapter 63 (relating to juvenile matters) and 18 Pa.C.S. Ch. 91 (relating to criminal history record information), the Internet website shall contain the following information regarding an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child:

(1) Name and aliases.

(2) Year of birth.

(3) Street address, municipality, county, State and zip code of residences and intended residences. In the case of an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child who fails to establish a residence and is therefore a transient, the Internet website shall contain information about the transient's temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park. In addition, the Internet website shall contain a list of places the transient eats, frequents and engages in leisure activities.

(4) Street address, municipality, county, State and zip code of any location at which an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is enrolled as a student.

(5) Street address, municipality, county, State and zip code of a fixed location where an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is employed. If an individual convicted of a

sexually violent offense, a sexually violent predator or a sexually violent delinquent child is not employed at a fixed address, the information shall include general areas of work.

(6) Current facial photograph of an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child. This paragraph requires, if available, the last eight facial photographs taken of the individual and the date each photograph was entered into the registry.

(7) Physical description of an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child.

(8) License plate number and a description of a vehicle owned or operated by an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child.

(9) Offense for which an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is registered under this subchapter and other sexually violent offenses for which the individual was convicted.

(10) A statement whether an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is in compliance with registration.

(11) A statement whether the victim is a minor.

(12) Date on which the individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is made active within the registry and date when the individual most recently updated registration information.

(13) Indication as to whether the individual is a sexually violent predator, sexually violent delinquent child or convicted of a Tier I, Tier II or Tier III sexual offense.

(14) If applicable, indication that an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is incarcerated or committed or is a transient.

(c) Prohibited information.--The public Internet website established under this section shall not contain:

(1) The identity of any victim.

(2) The Social Security number of an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child.

(3) Any information relating to arrests of an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child that did not result in conviction.

(4) Travel and immigration document numbers.

(d) (Reserved).

(e) Duration of posting.--The information listed in subsection (b) shall be made available on the Internet website unless an individual convicted of a sexually violent offense, a sexually violent predator or a sexually violent delinquent child is deceased or is no longer required to register under this subchapter.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 11, effective Dec. 20, 2012.

42 Pa.C.S.A. § 9799.28, PA ST 42 Pa.C.S.A. § 9799.28

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42 Pa.C.S.A. § 9799.29

Formerly cited as PA ST 42 Pa.C.S.A. § 9798.2

§ 9799.29. Administration

Currentness

The Governor shall direct the Pennsylvania State Police, the board, the Department of Corrections, the Department of Transportation and any other agency of the Commonwealth that the Governor deems necessary to collaboratively design, develop and implement an integrated and secure system of communication, storage and retrieval of information to assure the timely, accurate and efficient administration of this subchapter.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.29, PA ST 42 Pa.C.S.A. § 9799.29

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42 Pa.C.S.A. § 9799.30

Formerly cited as PA ST 42 Pa.C.S.A. § 9798.3

§ 9799.30. Global positioning system technology

Currentness

The Pennsylvania Parole Board, the Department of Corrections, the agents of the Department of Corrections and county probation authorities may impose supervision conditions that include tracking through global positioning system technology.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.30, PA ST 42 Pa.C.S.A. § 9799.30

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42 Pa.C.S.A. § 9799.31
Formerly cited as PA ST 42 Pa.C.S.A. § 9799

§ 9799.31. Immunity for good faith conduct

Currentness

The following entities shall be immune from liability for good faith conduct under this subchapter:

- (1) Agents and employees of the Pennsylvania State Police and local law enforcement agencies.
- (2) District attorneys and their agents and employees.
- (3) Superintendents, administrators, teachers, employees and volunteers engaged in the supervision of children of any public, private or parochial school.
- (4) Directors and employees of county children and youth agencies.
- (5) Presidents or similar officers of universities and colleges, including community colleges.
- (6) The Pennsylvania Parole Board and its agents and employees.
- (7) County probation and parole offices and their agents and employees.
- (8) Licensees of certified day-care centers and directors of licensed preschool programs and owners and operators of registered family day-care homes and their agents and employees.
- (9) The Department of Corrections and its agents and employees.
- (10) County correctional facilities and their agents and employees.
- (11) The board and its members, agents and employees.

(12) Juvenile probation offices and their agents and employees.

(13) The Department of Human Services and its agents and employees.

(14) Institutions or facilities set forth in section 6352(a)(3) (relating to disposition of delinquent child) and their agents and employees.

(15) The unit owners' association of a common interest community and its agents and employees as it relates to distributing information regarding section 9799.27(b)(1) (relating to other notification).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2018, Feb. 21, P.L. 27, No. 10, § 15, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 4, imd. effective.

42 Pa.C.S.A. § 9799.31, PA ST 42 Pa.C.S.A. § 9799.31

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42 Pa.C.S.A. § 9799.32

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.1

§ 9799.32. Pennsylvania State Police and Department of Corrections

Currentness

The Pennsylvania State Police have the following duties:

- (1) To create and maintain the Statewide registry of sexual offenders in conformity with the provisions of this subchapter.
- (2) In consultation with the Department of Corrections, the Office of Attorney General, the Juvenile Court Judges' Commission, the Administrative Office of Pennsylvania Courts and the chairman and minority chairman of the Judiciary Committee of the Senate and the chairman and minority chairman of the Judiciary Committee of the House of Representatives, to promulgate guidelines necessary for the general administration of this subchapter. These guidelines shall establish procedures to allow an individual subject to the requirements of this subchapter, including a transient, to fulfill these requirements at approved registration sites throughout this Commonwealth. The Pennsylvania State Police shall publish a list of approved registration sites in the Pennsylvania Bulletin and provide a list of approved registration sites in any notice sent to individuals required to register under this subchapter. An approved registration site shall be capable of submitting fingerprints, palm prints, DNA samples and any other information required electronically to the Pennsylvania State Police. The Pennsylvania State Police shall require that approved registration sites submit fingerprints utilizing the Integrated Automated Fingerprint Identification System or in another manner and in such form as the Pennsylvania State Police shall require. Approved registration sites shall not be limited to sites managed by the Pennsylvania State Police and shall include sites managed by local law enforcement agencies that meet the criteria for approved registration sites set forth in this paragraph.
- (3) To write guidelines regarding neighbor notification under section 9799.27(b)(1) (relating to other notification).
- (4) Within three business days, to transfer information as set forth in section 9799.18 (relating to information sharing).
- (5) To enforce the provisions of this subchapter as set forth in section 9799.22 (relating to enforcement).
- (6) To facilitate verification of information from individuals under section 9799.13 (relating to applicability) as provided in section 9799.25 (relating to verification by sexual offenders and Pennsylvania State Police).

(7) In consultation with the Department of Education and the Department of Corrections, to promulgate guidelines directing licensed day-care centers, licensed preschool programs, schools, universities and colleges, including community colleges, on the proper use and administration of information received under section 9799.27.

(8) In consultation with the Department of Corrections, to promulgate guidelines directing State and county correctional facilities and State and county probation and parole offices regarding the completion of information, including the taking of photographs, required by sexual offenders under this subchapter.

(9) In consultation with the Administrative Office of Pennsylvania Courts, the Department of Human Services and the Juvenile Court Judges' Commission, to promulgate guidelines regarding the completion of information required by juvenile offenders and sexually violent delinquent children under this subchapter.

(10) To develop the telephonic verification system established under section 9799.25.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 12, imd. effective; 2018, Feb. 21, P.L. 27, No. 10, § 16, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 5, imd. effective.

42 Pa.C.S.A. § 9799.32, PA ST 42 Pa.C.S.A. § 9799.32

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42 Pa.C.S.A. § 9799.33

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.2

§ 9799.33. Duties of Department of Corrections and probation and parole officials

Currentness

(a) Duties.--The Department of Corrections, the county office of probation and parole and the chief juvenile probation officer of the court shall:

(1) Perform their respective duties set forth for the Department of Corrections, the county office of probation and parole and the chief juvenile probation officer of the court in accordance with section 9799.19 (relating to initial registration).

(2) On a form prescribed by the Pennsylvania State Police, notify the Pennsylvania State Police each time a sexual offender is arrested, recommitted to a State or county correctional institution for a parole violation or incarcerated.

(b) Notification form.--The Department of Corrections shall create a notification form which will inform county prison and probation and parole personnel how to inform sexual offenders of their duties under this subchapter. In addition, the Department of Corrections shall apply for Federal funding as provided in the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 120 Stat. 587)¹ to support and enhance programming using global satellite positioning system technology.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

¹ See 34 U.S.C.A. § 20981.

42 Pa.C.S.A. § 9799.33, PA ST 42 Pa.C.S.A. § 9799.33

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Subchapter H. Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.34

§ 9799.34. Duties of facilities housing sexual offenders

Currentness

The Department of Corrections, a county correctional facility, an institution or facility set forth in section 6352(a)(3) (relating to disposition of delinquent child) and the separate, State-owned facility or unit established under Chapter 64 (relating to court-ordered involuntary treatment of certain sexually violent persons) shall have the following duties:

- (1) To perform their respective duties in accordance with section 9799.19 (relating to initial registration). This paragraph includes taking a current photograph of the individual specified in section 9799.13 (relating to applicability) before the individual is released from confinement or commitment or is discharged.
- (2) On a form prescribed by the Pennsylvania State Police, to notify the Pennsylvania State Police each time a sexual offender is incarcerated, committed or released, including supervised release. In the case of a juvenile offender or sexually violent delinquent child, the facility shall notify the Pennsylvania State Police each time the individual is committed, released or transferred to another facility or institution. This paragraph shall include a community corrections center or community contract facility.
- (3) To assist sexual offenders registering under this subchapter.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 12, effective Dec. 20, 2012; 2018, Feb. 21, P.L. 27, No. 10, § 17, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective.

42 Pa.C.S.A. § 9799.34, PA ST 42 Pa.C.S.A. § 9799.34

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42 Pa.C.S.A. § 9799.35

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.3

§ 9799.35. Board

Currentness

(a) Composition.--The board shall be composed of psychiatrists, psychologists and criminal justice experts, each of whom is an expert in the field of the behavior and treatment of sexual offenders.

(b) Appointment.--The Governor shall appoint the board members.

(c) Term of office.--Members of the board shall serve four-year terms.

(d) Compensation.--The members of the board shall be compensated at a rate of \$350 per assessment and receive reimbursement for their actual and necessary expenses while performing the business of the board. The chairman shall receive \$500 additional compensation annually.

(e) Staff.--The board shall employ an executive director and other staff as necessary to carry out the board's duties under this chapter. The executive director shall direct the operations, management and administration of the board and organize and oversee the work of the staff. Legal counsel for the board shall be provided in accordance with the act of October 15, 1980 (P.L. 950, No. 164),¹ known as the Commonwealth Attorneys Act. Upon request by the board, the Department of Corrections shall make available facilities, administrative support and other assistance to the board.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

¹ 71 P.S. § 732-101 et seq.

42 Pa.C.S.A. § 9799.35, PA ST 42 Pa.C.S.A. § 9799.35

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42 Pa.C.S.A. § 9799.36

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.4

§ 9799.36. Counseling of sexually violent predators

Currentness

(a) General rule.--A sexually violent predator who is not incarcerated shall be required to attend at least monthly counseling sessions in a program approved by the board and be financially responsible for all fees assessed from the counseling sessions. The board shall monitor the compliance of the sexually violent predator. If the sexually violent predator can prove to the satisfaction of the court that the sexually violent predator cannot afford to pay for the counseling sessions, the sexually violent predator shall nonetheless attend the counseling sessions, and the parole office shall pay the requisite fees.

(b) Designation in another jurisdiction.--If an individual specified in section 9799.13 (relating to applicability) has been designated as a sexually violent predator in another jurisdiction and was required to undergo counseling, the individual shall be subject to the provisions of this section.

(c) Penalty.--A sexually violent predator who knowingly fails to attend counseling sessions as provided in this section may be subject to prosecution under 18 Pa.C.S. § 4915.1 (relating to failure to comply with registration requirements).

(d) Notification.--A provider of counseling services under subsection (a) shall notify the district attorney of the county and the chief law enforcement officer, as defined in section 8951 (relating to definitions), of the municipality in the county and municipality where the provider is located that the provider is counseling sexually violent predators. Notifications under this subsection must be submitted in writing by January 15 of each year and shall include the address of the provider.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2012, July 5, P.L. 880, No. 91, § 12, effective Dec. 20, 2012; 2015, July 10, P.L. 122, No. 20, § 1, effective in 60 days [Sept. 8, 2015]; 2018, Feb. 21, P.L. 27, No. 10, § 17, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 11, imd. effective.

42 Pa.C.S.A. § 9799.36, PA ST 42 Pa.C.S.A. § 9799.36

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42 Pa.C.S.A. § 9799.37

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.7

§ 9799.37. Exemption from notification for certain licensees and their employees

Currentness

Nothing in this subchapter shall be construed as imposing a duty upon a person licensed under the act of February 19, 1980 (P.L. 15, No. 9),¹ known as the Real Estate Licensing and Registration Act, or an employee of the person, to disclose any information regarding an individual required to be included in the registry pursuant to this subchapter.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012].

Footnotes

¹ 63 P.S. § 455.101 et seq.

42 Pa.C.S.A. § 9799.37, PA ST 42 Pa.C.S.A. § 9799.37

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42 Pa.C.S.A. § 9799.38

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.8

§ 9799.38. Annual performance audit

Currentness

(a) Duties of the Attorney General.--The Attorney General has the following duties:

(1) To conduct a performance audit annually to determine compliance with the requirements of this subchapter and Subchapter I (relating to continued registration of sexual offenders)¹ and any guidelines promulgated under this subchapter and Subchapter I. The audit shall, at a minimum, include a review of the practices, procedures and records of the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts and any other State or local agency the Attorney General deems necessary in order to conduct a thorough and accurate performance audit.

(2) To prepare an annual report of its findings and any action that it recommends be taken by the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, other State or local agencies and the General Assembly to ensure compliance with this subchapter and Subchapter I. The first report shall be released to the general public no fewer than 18 months after December 20, 2012.

(3) To provide a copy of its report to the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, State or local agencies referenced in the report, the chairman and the minority chairman of the Judiciary Committee of the Senate and the chairman and the minority chairman of the Judiciary Committee of the House of Representatives no fewer than 30 days prior to its release to the general public.

(b) Cooperation required.--Notwithstanding any other provision of law to the contrary, the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, the Pennsylvania Commission on Sentencing and any other State or local agency requested to do so shall fully cooperate with the Attorney General and assist the Office of Attorney General in satisfying the requirements of this section. For purposes of this subsection, full cooperation shall include, at a minimum, complete access to unredacted records, files, reports and data systems.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2018, Feb. 21, P.L. 27, No. 10, § 17, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 12, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

1 42 Pa.C.S.A. § 9799.51 et seq.

42 Pa.C.S.A. § 9799.38, PA ST 42 Pa.C.S.A. § 9799.38

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42 Pa.C.S.A. § 9799.39

Formerly cited as PA ST 42 Pa.C.S.A. § 9799.9

§ 9799.39. Photographs and fingerprinting

Currentness

An individual subject to registration under section 9799.13 (relating to applicability) shall submit to fingerprinting and photographing as required by this subchapter. Fingerprinting as required by this subchapter shall, at a minimum, require submission of a full set of fingerprints and palm prints. Photographing as required by this subchapter shall, at a minimum, require submission to photographs of the face and any scars, marks, tattoos or other unique features of the individual. Fingerprints and photographs obtained under this subchapter may be maintained for use under this subchapter and for general law enforcement purposes.

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012]. Amended 2018, Feb. 21, P.L. 27, No. 10, § 17, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 13, imd. effective.

42 Pa.C.S.A. § 9799.39, PA ST 42 Pa.C.S.A. § 9799.39

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42 Pa.C.S.A. § 9799.40

§ 9799.40. Duties of Pennsylvania Commission on Sentencing

Currentness

The Pennsylvania Commission on Sentencing shall establish procedures to enable courts to classify sexual offenders as provided in section 9799.23 (relating to court notification and classification requirements).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, effective in one year [Dec. 20, 2012].

42 Pa.C.S.A. § 9799.40, PA ST 42 Pa.C.S.A. § 9799.40

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42 Pa.C.S.A. § 9799.41

§ 9799.41. Expiration

Currentness

The following provisions shall expire December 20, 2012:

Section 9718.3 (relating to sentence for failure to comply with registration of sexual offenders).

Section 9791 (relating to legislative findings and declaration of policy).

Section 9792 (relating to definitions).

Section 9795.1 (relating to registration).

Section 9795.2 (relating to registration procedures and applicability).

Section 9795.3 (relating to sentencing court information).

Section 9795.4 (relating to assessments).

Section 9795.5 (relating to exemption from certain notifications).

Section 9796 (relating to verification of residence).

Section 9797 (relating to victim notification).

Section 9798 (relating to other notification).

Section 9798.1 (relating to information made available on the Internet and electronic notification).

Section 9798.2 (relating to administration).

Section 9798.3 (relating to global positioning system technology).

Section 9799 (relating to immunity for good faith conduct).

Section 9799.1 (relating to duties of Pennsylvania State Police).

Section 9799.2 (relating to duties of Pennsylvania Board of Probation and Parole).

Section 9799.3 (relating to board).

Section 9799.4 (relating to counseling of sexually violent predators).

Section 9799.7 (relating to exemption from notification for certain licensees and their employees).

Section 9799.8 (relating to annual performance audit).

Section 9799.9 (relating to photographs and fingerprinting).

Credits

2011, Dec. 20, P.L. 446, No. 111, § 12, imd. effective. Amended 2012, July 5, P.L. 880, No. 91, § 12, imd. effective.

42 Pa.C.S.A. § 9799.41, PA ST 42 Pa.C.S.A. § 9799.41

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42 Pa.C.S.A. § 9799.42

§ 9799.42. Standing for Pennsylvania State Police

Currentness

Except for petitions filed under section 9799.15(a.2) (relating to period of registration), the Pennsylvania State Police shall have standing to appear and contest a filing in a court of this Commonwealth which seeks to challenge in any way the obligation of an individual required to register with the Pennsylvania State Police under this subchapter.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 18, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 13, imd. effective.

42 Pa.C.S.A. § 9799.42, PA ST 42 Pa.C.S.A. § 9799.42

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T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. I, Refs & Annos
Currentness

T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. I, Refs & Annos, PA ST T. 42 Pa.C.S.A., Pt. VIII, Ch. 97, Subch. I, Refs & Annos
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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.51

§ 9799.51. Legislative findings and declaration of policy

Currentness

(a) Legislative findings.--It is hereby determined and declared as a matter of legislative finding:

(1) If the public is provided adequate notice and information about sexually violent predators and offenders as well as those sexually violent predators and offenders who do not have a fixed place of habitation or abode, the community can develop constructive plans to prepare itself for the release of sexually violent predators and offenders. This allows communities to meet with law enforcement to prepare and obtain information about the rights and responsibilities of the community and to provide education and counseling to their children.

(2) These sexually violent predators and offenders pose a high risk of engaging in further offenses even after being released from incarceration or commitments, and protection of the public from this type of offender is a paramount governmental interest.

(3) The penal and mental health components of our justice system are largely hidden from public view, and lack of information from either may result in failure of both systems to meet this paramount concern of public safety.

(4) Overly restrictive confidentiality and liability laws governing the release of information about sexually violent predators and offenders have reduced the willingness to release information that could be appropriately released under the public disclosure laws and have increased risks to public safety.

(5) Persons found to have committed a sexual offense have a reduced expectation of privacy because of the public's interest in public safety and in the effective operation of government.

(6) Release of information about sexually violent predators and offenders to public agencies and the general public will further the governmental interests of public safety and public scrutiny of the criminal and mental health systems so long as the information released is rationally related to the furtherance of those goals.

(b) Declaration of policy.--It is hereby declared to be the intention of the General Assembly to:

(1) Protect the safety and general welfare of the people of this Commonwealth by providing for registration, community notification and access to information regarding sexually violent predators and offenders who are about to be released from custody and will live in or near their neighborhood.

(2) Require the exchange of relevant information about sexually violent predators and offenders among public agencies and officials and to authorize the release of necessary and relevant information about sexually violent predators and offenders to members of the general public, including information available through the publicly accessible Internet website of the Pennsylvania State Police, as a means of assuring public protection and shall not be construed as punitive.

(3) Address the Superior Court's opinion in the case of *Commonwealth v. Wilgus*, 975 A.2d 1183 (2009), by requiring sexually violent predators and offenders without a fixed place of habitation or abode to register under this subchapter.

(4) Address the Pennsylvania Supreme Court's decision in *Commonwealth v. Muniz*, No. 47 MAP 2016 (Pa. 2016),¹ and the Pennsylvania Superior Court's decision in *Commonwealth v. Butler*, 173 A.3d 1212 (Pa. Super. 2017).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 14, imd. effective.

Footnotes

¹ See *Commonwealth v. Muniz*, 164 A.3d 1189 (Pa. 2017).

42 Pa.C.S.A. § 9799.51, PA ST 42 Pa.C.S.A. § 9799.51

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

Purdon's Pennsylvania Statutes and Consolidated Statutes
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Chapter 97. Sentencing (Refs & Annos)
Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.52

§ 9799.52. Scope

Currentness

This subchapter shall apply to individuals who were:

- (1) convicted of a sexually violent offense committed on or after April 22, 1996, but before December 20, 2012, whose period of registration with the Pennsylvania State Police, as described in section 9799.55 (relating to registration), has not expired; or
- (2) required to register with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth on or after April 22, 1996, but before December 20, 2012, whose period of registration has not expired.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 14, imd. effective.

42 Pa.C.S.A. § 9799.52, PA ST 42 Pa.C.S.A. § 9799.52

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.53

§ 9799.53. Definitions

Currentness

The following words and phrases when used in this subchapter shall have the meanings given to them in this section unless the context clearly indicates otherwise:

“Active notification.” Notification in accordance with section 9799.62 (relating to other notification) or a process whereby law enforcement, pursuant to the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation, notifies persons in the community in which the individual resides, including a person identified in section 9799.62(b), of the residence, employment or school location of the individual.

“Approved registration site.” A site in this Commonwealth approved by the Pennsylvania State Police as required by section 9799.67(2) (relating to duties of Pennsylvania State Police):

- (1) at which individuals subject to this subchapter may register, verify information or be fingerprinted or photographed as required by this subchapter;
- (2) which is capable of submitting fingerprints utilizing the Integrated Automated Fingerprint Identification System or in another manner and in the form as the Pennsylvania State Police shall require; and
- (3) which is capable of submitting photographs utilizing the Commonwealth Photo Imaging Network or in another manner and in the form as the Pennsylvania State Police shall require.

“Board.” The State Sexual Offenders Assessment Board.

“Common interest community.” Includes a cooperative, a condominium and a planned community where an individual by virtue of an ownership interest in a portion of real estate is or may become obligated by covenant, easement or agreement imposed upon the owner's interest to pay an amount for real property taxes, insurance, maintenance, repair, improvement, management, administration or regulation of any part of the real estate other than the portion or interest owned solely by the individual.

“Commonwealth Photo Imaging Network.” The computer network administered by the Commonwealth and used to record and store digital photographs of an individual's face and scars, marks, tattoos or other unique features of the individual.

“Employed.” Includes a vocation or employment that is full time or part time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during a calendar year, whether financially compensated, volunteered, under a contract or for the purpose of government or educational benefit.

“Integrated Automated Fingerprint Identification System.” The national fingerprint and criminal history system maintained by the Federal Bureau of Investigation providing automated fingerprint search capabilities, latent searching capability, electronic image storage and electronic exchange of fingerprints and responses.

“Mental abnormality.” A congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

“Minor.” As used in section 9799.55 (relating to registration), an individual under 18 years of age unless the age of the victim who is considered a minor is otherwise defined in section 9799.55.

“Municipality.” A city, borough, incorporated town or township.

“Offender.” Subject to section 9799.75 (relating to construction of subchapter), an individual required to register under section 9799.55(a), (b)(1) or (2) (relating to registration).

“Passive notification.” Notification in accordance with section 9799.63 (relating to information made available on Internet and electronic notification) or a process whereby persons, under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation, are able to access information pertaining to an individual as a result of the individual having been convicted or sentenced by a court for an offense similar to an offense listed in section 9799.55 (relating to registration).

“Penetration.” Includes any penetration, however slight, of the genitals, anus or mouth of another person with a part of the person's body or a foreign object for a purpose other than good faith medical, hygienic or law enforcement procedures.

“Predatory.” An act directed at a stranger or at a person with whom a relationship has been initiated, established, maintained or promoted, in whole or in part, in order to facilitate or support victimization.

“Residence.” With respect to an individual required to register under this subchapter, any of the following:

- (1) A location where an individual resides or is domiciled or intends to be domiciled for 30 consecutive days or more during a calendar year.
- (2) In the case of an individual who fails to establish a residence as specified in paragraph (1), a temporary habitat or other temporary place of abode or dwelling, including, but not limited to, a homeless shelter or park, where the individual is lodged.

“Sexually violent offense.” The following criminal offenses:

- (1) Except as provided in paragraph (2):
 - (i) a criminal offense specified in section 9799.55 (relating to registration) committed on or after April 22, 1996, but before December 20, 2012, for which the individual was convicted; or
 - (ii) a criminal offense for which an individual was required to register with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth on or after April 22, 1996, but before December 20, 2012, whose period of registration has not expired.
- (2) The following criminal offenses committed on or after January 26, 2005, but before December 20, 2012, for which the individual was convicted:

(i) 18 Pa.C.S. § 2910 (relating to luring a child into a motor vehicle or structure).

(ii) 18 Pa.C.S. § 3124.2 (relating to institutional sexual assault).

“Sexually violent predator.” Subject to section 9799.75 (relating to construction of subchapter), a person who has been convicted of a sexually violent offense and who is determined to be a sexually violent predator under section 9799.58 (relating to assessments) due to a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses or who has ever been determined by a court to have a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses under a former sexual offender registration law of this Commonwealth. The term includes an individual determined to be a sexually violent predator where the determination occurred in the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico, a foreign nation or by court martial.

“Student.” A person who is enrolled on a full-time or part-time basis in a public or private educational institution, including a secondary school, trade or professional institution or institution of higher education.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 15, imd. effective.

42 Pa.C.S.A. § 9799.53, PA ST 42 Pa.C.S.A. § 9799.53

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.54

§ 9799.54. Applicability

Currentness

(a) Registration.—The following individuals shall register with the Pennsylvania State Police as provided in this subchapter:

(1) An individual who committed a sexually violent offense within this Commonwealth and whose period of registration with the Pennsylvania State Police, as specified in section 9799.55 (relating to registration), as of February 21, 2018, has not expired. The individual shall register for the period of time under section 9799.55 less any credit for time spent registered with the Pennsylvania State Police prior to February 21, 2018.

(2) An individual who committed a sexually violent offense within this Commonwealth and who has failed to register with the Pennsylvania State Police. In such a case, the individual shall register for the period of time under section 9799.55.

(3) An individual who committed a sexually violent offense within this Commonwealth and is an inmate in a State or county correctional facility of this Commonwealth, including a community corrections center or a community contract facility, is being supervised by the Department of Corrections or county probation or parole, is subject to a sentence of intermediate punishment or has supervision transferred under the Interstate Compact for Adult Supervision in accordance with section 9799.62(e) (relating to other notification). The individual shall register for the period of time under section 9799.55, except that the period required in section 9799.55 shall be tolled for any period of time the individual is recommitted for a parole violation or sentenced to a term of imprisonment.

(4) An individual who was convicted of an offense similar to an offense set forth in section 9799.55 under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico, a foreign nation or under a former law of this Commonwealth or who was court martialled for a similar offense and who, as of February 21, 2018, has not completed registration requirements. The period of registration shall be as set forth in section 9799.56(b)(4) (relating to registration procedures and applicability) less any credit for time spent on a sexual offender registry of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico, a foreign nation or with the Pennsylvania State Police prior to February 21, 2018.

(b) Initial registration.—Individuals required to register under this section shall have 90 days from February 21, 2018, to initially register with the Pennsylvania State Police. The individual shall appear at an approved registration site to be photographed, fingerprinted and to verify information. The Pennsylvania State Police shall send a notice by first class United States mail to the individual's last reported residence in order to inform the individual of the requirements of this subchapter. The notice shall specifically inform the individual of the duties specified in section 9799.57 (relating to sentencing court information). The notice shall be sent no later than 30 days from February 21, 2018. The notice shall also provide a list of

approved registration sites. Neither failure on the part of the Pennsylvania State Police to send nor failure of an individual to receive notice or information under this paragraph shall relieve the individual of the requirements of this subchapter.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 15, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.54, PA ST 42 Pa.C.S.A. § 9799.54

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42 Pa.C.S.A. § 9799.55

§ 9799.55. Registration

Currentness

(a) Ten-year registration.--Except as provided under subsection (a.1) or (b), the following individuals shall be required to register with the Pennsylvania State Police for a period of 10 years:

(1)(i)(A) Individuals convicted within this Commonwealth of any of the following offenses committed on or after April 22, 1996, but before December 20, 2012:

18 Pa.C.S. § 2901 (relating to kidnapping) where the victim is a minor.

18 Pa.C.S. § 3126 (relating to indecent assault) where the offense is graded as a misdemeanor of the first degree or higher.

18 Pa.C.S. § 4302 (relating to incest) where the victim is 12 years of age or older but under 18 years of age.

18 Pa.C.S. § 5902(b) or (b.1) (relating to prostitution and related offenses) where the actor promotes the prostitution of a minor.

18 Pa.C.S. § 5903(a)(3), (4), (5) or (6) (relating to obscene and other sexual materials and performances) where the victim is a minor.

18 Pa.C.S. § 6312 (relating to sexual abuse of children).

18 Pa.C.S. § 6318 (relating to unlawful contact with minor).

18 Pa.C.S. § 6320 (relating to sexual exploitation of children).

(B) Individuals convicted within this Commonwealth of an offense set forth in clause (A) who were required to register with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth on or after April 22, 1996, but before December 20, 2012, whose period of registration has not expired.

(ii) Individuals convicted within this Commonwealth of any of the following offenses committed on or after January 26, 2005, but before December 20, 2012:

18 Pa.C.S. § 2910 (relating to luring a child into a motor vehicle or structure).

18 Pa.C.S. § 3124.2 (relating to institutional sexual assault).

(2) Individuals convicted of an attempt, conspiracy or solicitation to commit any of the offenses under paragraph (1)(i) or (ii) or subsection (b)(2).

(3) Individuals who currently have a residence in this Commonwealth who have been convicted of offenses similar to the crimes cited in paragraphs (1)(i) or (ii) and (2) under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation or under a former law of this Commonwealth.

(a.1) Exception to 10-year registration.--Except as provided under subsection (b), an individual considered to be an offender under section 9799.56(b) (relating to registration procedures and applicability) shall be required to register with the Pennsylvania State Police for a period less than life, the duration of which is to be determined under sections 9799.54 (relating to applicability) and 9799.56(b).

(b) Lifetime registration.--The following individuals shall be subject to lifetime registration:

(1) An individual with two or more convictions of any of the offenses set forth in subsection (a).

(2) Individuals convicted:

(i)(A) in this Commonwealth of the following offenses, if committed on or after April 22, 1996, but before December 20, 2012:

18 Pa.C.S. § 3121 (relating to rape);

18 Pa.C.S. § 3123 (relating to involuntary deviate sexual intercourse);

18 Pa.C.S. § 3124.1 (relating to sexual assault);

18 Pa.C.S. § 3125 (relating to aggravated indecent assault); or

18 Pa.C.S. § 4302 when the victim is under 12 years of age; or

(B) in this Commonwealth of offenses set forth in clause (A) who were required to register with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth on or after April 22, 1996, but before December 20, 2012, whose period of registration has not expired; or

(ii) of offenses similar to the crimes cited in subparagraph (i) under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation or under a former law of this Commonwealth, if committed, or for which registration with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth was required, on or after April 22, 1996, but before December 20, 2012, who currently reside in this Commonwealth.

(3) Sexually violent predators.

(4) An individual who is considered to be a sexually violent predator under section 9799.56(b) or who is otherwise required to register for life under section 9799.56(b), if the sexual offense which is the basis for the consideration or requirement for which the individual was convicted was committed, or for which registration with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth was required, on or after April 22, 1996, but before December 20, 2012.

(c) Natural disaster.--The occurrence of a natural disaster or other event requiring evacuation of residences shall not relieve an individual of the duty to register or any other duty imposed by this subchapter.

(d) Residents in group-based homes.--

(1) A group-based home may not provide concurrent residence in the group-based home to more than five individuals in total who are required to register under Subchapter H (relating to registration of sexual offenders)¹ and this subchapter as sexually violent predators.

(2) A group-based home that violates paragraph (1) shall be subject to a civil penalty in the amount of \$2,500 for a first violation and in the amount of \$5,000 for a second or subsequent violation.

(3) The Pennsylvania State Police or local law enforcement agency of jurisdiction shall investigate compliance with this subsection, and the Attorney General or district attorney may commence a civil action in the court of common pleas of the county in which a group-based home is located to impose and collect from the group-based home the penalty under paragraph (2).

(4) As used in this subsection, the term “**group-based home**” has the meaning given to it in 61 Pa.C.S. § 5007(c) (relating to certain offenders residing in group-based homes).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 16, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

¹ 42 Pa.C.S.A. § 9799.10 et seq.

42 Pa.C.S.A. § 9799.55, PA ST 42 Pa.C.S.A. § 9799.55

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42 Pa.C.S.A. § 9799.56

§ 9799.56. Registration procedures and applicability

Currentness

(a) Registration.--

(1)(i) Offenders and sexually violent predators shall be required to register with the Pennsylvania State Police as specified in section 9799.54 (relating to applicability).

(ii) Offenders and sexually violent predators shall be required to register with the Pennsylvania State Police upon release from incarceration, upon parole from a State or county correctional facility or upon the commencement of a sentence of intermediate punishment or probation.

(iii) For purposes of registration, offenders and sexually violent predators shall provide the Pennsylvania State Police with all current or intended residences, all information concerning current or intended employment and all information concerning current or intended enrollment as a student.

(2) Offenders and sexually violent predators shall inform the Pennsylvania State Police within three business days of:

(i) A change of residence or establishment of an additional residence or residences. In the case of an individual who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53 (relating to definitions), the individual shall inform the Pennsylvania State Police of the following:

(A) the location of a temporary habitat or other temporary place of abode or dwelling, including a homeless shelter or park, where the individual is lodged;

(B) a list of places the individual eats, frequents and engages in leisure activities and any planned destinations, including those outside this Commonwealth; and

(C) the place the individual receives mail, including a post office box.

The duty to provide the information specified in this subparagraph shall apply until the individual establishes a residence as defined in paragraph (1) of the definition of “residence” in section 9799.53. If the individual who has a residence as

defined in paragraph (2) of the definition of “residence” in section 9799.53 changes or adds to the places listed in this subparagraph during a 30-day period, the individual shall list these when reregistering during the next 30-day period.

(ii) A change of employer or employment location for a period of time that will exceed 14 days or for an aggregate period of time that will exceed 30 days during a calendar year, or termination of employment.

(iii) A change of institution or location at which the person is enrolled as a student, or termination of enrollment.

(iv) Becoming employed or enrolled as a student if the person has not previously provided that information to the Pennsylvania State Police.

(2.1) Registration with a new law enforcement agency shall occur no later than three business days after establishing residence in another state.

(3) The registration period required in section 9799.55(a) and (a.1) (relating to registration) shall be tolled when an offender is recommitted for a parole violation or sentenced to an additional term of imprisonment. In such cases, the Department of Corrections or county correctional facility shall notify the Pennsylvania State Police of the admission of the offender.

(4) This paragraph shall apply to all offenders and sexually violent predators:

(i) Where the offender or sexually violent predator was granted parole by the Pennsylvania Parole Board or the court or is sentenced to probation or intermediate punishment, probation with restrictions or is placed in the State drug treatment program, the board or county office of probation and parole shall collect registration information from the offender or sexually violent predator and forward that registration information to the Pennsylvania State Police. The Department of Corrections or county correctional facility shall not release the offender or sexually violent predator until it receives verification from the Pennsylvania State Police that the Pennsylvania State Police have received the registration information. Verification by the Pennsylvania State Police may occur by electronic means, including e-mail or facsimile transmission. Where the offender or sexually violent predator is scheduled to be released from a State or county correctional facility because of the expiration of the maximum term of incarceration, the Department of Corrections or county correctional facility shall collect the information from the offender or sexually violent predator no later than 10 days prior to the maximum expiration date. The registration information shall be forwarded to the Pennsylvania State Police.

(ii) Where the offender or sexually violent predator scheduled to be released from a State or county correctional facility due to the maximum expiration date refuses to provide the registration information, the Department of Corrections or county correctional facility shall notify the Pennsylvania State Police or police department with jurisdiction over the facility of the failure to provide registration information and of the expected date, time and location of the release of the offender or sexually violent predator.

(b) Individuals convicted or sentenced by a court or adjudicated delinquent in jurisdictions outside this Commonwealth or sentenced by court martial.--

(1) (Reserved).

(2) (Reserved).

(3) (Reserved).

(4) An individual who has a residence, is employed or is a student in this Commonwealth and who has been convicted of or sentenced by a court or court martial for a sexually violent offense or a similar offense under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation, or who was required to register under a sexual offender statute in the jurisdiction where convicted, sentenced or court martialled, shall register at an approved registration site within three business days of the individual's arrival in this Commonwealth. The provisions of this subchapter shall apply to the individual as follows:

(i) If the individual has been classified as a sexually violent predator as defined in section 9799.53 or determined under the laws of the other jurisdiction or by reason of court martial to be subject to active notification and lifetime registration on the basis of a statutorily authorized administrative or judicial decision or on the basis of a statute or administrative rule requiring active notification and lifetime registration based solely on the offense for which the individual was convicted, sentenced or court martialled, the individual shall, notwithstanding section 9799.53, be considered a sexually violent predator and subject to lifetime registration under section 9799.55(b). The individual shall also be subject to the provisions of this section and sections 9799.60 (relating to verification of residence), 9799.62 (relating to other notification) and 9799.63(c) (1) (relating to information made available on Internet and electronic notification), except that the individual shall not be required to receive counseling unless required to do so by the other jurisdiction or by reason of court martial.

(ii) Except as provided in subparagraphs (i) and (iv), if the individual has been convicted or sentenced by a court or court martial for an offense listed in section 9799.55(b) or an equivalent offense, the individual shall, notwithstanding section 9799.53, be considered an offender and be subject to lifetime registration under section 9799.55(b). The individual shall also be subject to the provisions of this section and sections 9799.60 and 9799.63(c)(2).

(iii) Except as provided in subparagraphs (i), (ii), (iv) and (v), if the individual has been convicted or sentenced by a court or court martial for an offense listed in section 9799.55(a) or an equivalent offense, the individual shall be, notwithstanding section 9799.53, considered an offender and subject to registration under this subchapter. The individual shall also be subject to the provisions of this section and sections 9799.60 and 9799.63(c)(2). The individual shall be subject to this subchapter for a period of 10 years or for a period of time equal to the time for which the individual was required to register in the other jurisdiction or required to register by reason of court martial, whichever is greater, less any credit due to the individual as a result of prior compliance with registration requirements.

(iv) Except as provided in subparagraph (i) and notwithstanding subparagraph (v), if the individual is subject to active notification in the other jurisdiction or subject to active notification by reason of court martial, the individual shall, notwithstanding section 9799.53, be considered an offender and subject to this section and sections 9799.60, 9799.62 and 9799.63(c)(1). If the individual was convicted of or sentenced in the other jurisdiction or sentenced by court martial for an offense listed in section 9799.55(b) or an equivalent offense, the individual shall be subject to this subchapter for the individual's lifetime. If the individual was convicted of or sentenced in the other jurisdiction or sentenced by court martial for an offense listed in section 9799.55(a) or an equivalent offense, the individual shall be subject to this subchapter for a period of 10 years or for a period of time equal to the time for which the individual was required to register in the other jurisdiction or required to register by reason of court martial, whichever is greater, less any credit due to the individual as

a result of prior compliance with registration requirements. Otherwise, the individual shall be subject to this subchapter for a period of time equal to the time for which the individual was required to register in the other jurisdiction or required to register by reason of court martial, less any credit due to the individual as a result of prior compliance with registration requirements.

(v) Except as provided in subparagraphs (i), (ii), (iii) and (iv), if the individual is subject to passive notification in the other jurisdiction or subject to passive notification by reason of court martial, the individual shall, notwithstanding section 9799.53, be considered an offender and subject to this section and sections 9799.60 and 9799.63(c)(2). The individual shall be subject to this subchapter for a period of time equal to the time for which the individual was required to register in the other jurisdiction or required to register by reason of court martial, less any credit due to the individual as a result of prior compliance with registration requirements.

(5) Notwithstanding the provisions of Chapter 63 (relating to juvenile matters) and except as provided in paragraph (4), an individual who has a residence, is employed or is a student in this Commonwealth and who is required to register as a sex offender under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation as a result of a juvenile adjudication shall register at an approved registration site within three business days of the individual's arrival in this Commonwealth. The provisions of this subchapter shall apply to the individual as follows:

(i) If the individual has been classified as a sexually violent predator as defined in section 9799.53 or determined under the laws of the other jurisdiction to be subject to active notification and lifetime registration on the basis of a statutorily authorized administrative or judicial decision or on the basis of a statute or administrative rule requiring active notification and lifetime registration based solely on the offense for which the individual was adjudicated, the individual shall, notwithstanding section 9799.53, be considered a sexually violent predator and subject to lifetime registration under section 9799.55(b). The individual shall also be subject to the provisions of this section and sections 9799.60 and 9799.63(c)(1), except that the individual shall not be required to receive counseling unless required to do so by the other jurisdiction.

(ii) Except as provided in subparagraph (i), if the individual is subject to active notification in the other jurisdiction, the individual shall, notwithstanding section 9799.53, be considered an offender and subject to registration under this subchapter. The individual shall also be subject to the provisions of this section and sections 9799.60, 9799.62 and 9799.63(c)(1). The individual shall be subject to this subchapter for a period of time equal to the time for which the individual was required to register in the other jurisdiction, less any credit due to the individual as a result of prior compliance with registration requirements.

(iii) Except as provided in subparagraphs (i) and (ii), if the individual is subject to passive notification in the other jurisdiction, the individual shall, notwithstanding section 9799.53, be considered an offender and be subject to this section and sections 9799.60 and 9799.63(c)(2). The individual shall be subject to this subchapter for a period of time equal to the time for which the individual was required to register in the other jurisdiction, less any credit due to the individual as a result of prior registration compliance.

(c) Registration information to local police.--

(1) The Pennsylvania State Police shall provide the information obtained under this section and sections 9799.57 (relating to sentencing court information) and 9799.60 to the chief law enforcement officers of the police departments of the

municipalities in which the individual will establish a residence or be employed or enrolled as a student. In addition, the Pennsylvania State Police shall provide this officer with the address at which the individual will establish a residence or be employed or enrolled as a student following the individual's release from incarceration, parole or probation.

(2) The Pennsylvania State Police shall provide notice to the chief law enforcement officers of the police departments of the municipalities notified under paragraph (1) when an individual fails to comply with the registration requirements of this section or section 9799.60 and request, as appropriate, that these police departments assist in locating and apprehending the individual.

(3) The Pennsylvania State Police shall provide notice to the chief law enforcement officers of the police departments of the municipalities notified under paragraph (1) when they are in receipt of information indicating that the individual will no longer have a residence or be employed or be enrolled as a student in the municipality.

(d) Penalty.--An individual subject to registration under this subchapter who fails to register with the Pennsylvania State Police as required by this section may be subject to prosecution under 18 Pa.C.S. § 4915.2 (relating to failure to comply with 42 Pa.C.S. Ch. 97 Subch. I registration requirements).

(e) Registration sites.--An individual subject to section 9799.55 shall register and submit to fingerprinting and photographing as required by this subchapter at approved registration sites.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 16, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.56, PA ST 42 Pa.C.S.A. § 9799.56

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

Purdon's Pennsylvania Statutes and Consolidated Statutes
Title 42 Pa.C.S.A. Judiciary and Judicial Procedure (Refs & Annos)
Part VIII. Criminal Proceedings
Chapter 97. Sentencing (Refs & Annos)
Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.57

§ 9799.57. Sentencing court information

Currentness

The sentencing court shall inform offenders and sexually violent predators convicted on or after February 21, 2018, at the time of sentencing of the provisions of this subchapter. The court shall:

(1) Specifically inform the offender or sexually violent predator of the duty to register and provide the information required for each registration, including verification as required in section 9799.60(a) (relating to verification of residence).

(2) Specifically inform the offender or sexually violent predator of the duty to inform the Pennsylvania State Police within three business days if the offender or sexually violent predator changes residence or establishes an additional residence or residences, changes employer or employment location for a period of time that will exceed 14 days or for an aggregate period of time that will exceed 30 days during a calendar year or terminates employment or changes institution or location at which the person is enrolled as a student or terminates enrollment. In order to fulfill the requirements of this paragraph, the sentencing court shall specifically inform the offender or sexually violent predator of the duty to inform the Pennsylvania State Police of:

(i) the location of a temporary habitat or other temporary place of abode or dwelling, including a homeless shelter or park, where the individual is lodged;

(ii) the places the individual eats, frequents and engages in leisure activities and any planned destinations, including those outside this Commonwealth; and

(iii) the place the individual receives mail, including a post office box,

if the individual fails to establish a residence as defined in paragraph (1) of the definition of “residence” in section 9799.53 (relating to definitions).

(2.1) Specifically inform the offender or sexually violent predator of the duty to inform the Pennsylvania State Police within three business days of becoming employed or enrolled as a student if the person has not previously provided that information to the Pennsylvania State Police.

(3) Specifically inform the offender or sexually violent predator of the duty to register with a new law enforcement agency if the offender or sexually violent predator moves to another state no later than three business days after establishing residence in another state.

(4) Order the fingerprints and photograph of the offender or sexually violent predator to be provided to the Pennsylvania State Police upon sentencing.

(5) Specifically inform the offender or sexually violent predator of the duty to register with the appropriate authorities in a state in which the offender or sexually violent predator is employed, carries on a vocation or is a student if the state requires the registration.

(6) Require the offender or sexually violent predator to read and sign a form stating that the duty to register under this subchapter has been explained. Where the offender or sexually violent predator is incapable of reading, the court shall certify the duty to register was explained to the offender or sexually violent predator and the offender or sexually violent predator indicated an understanding of the duty.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 17, imd. effective.

42 Pa.C.S.A. § 9799.57, PA ST 42 Pa.C.S.A. § 9799.57

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.58

§ 9799.58. Assessments

Currentness

(a) Order for assessment.--After conviction but before sentencing, a court shall order an individual convicted of an offense specified in section 9799.55 (relating to registration) to be assessed by the board. The order for an assessment shall be sent to the administrative officer of the board within 10 days of the date of conviction.

(b) Assessment.--Upon receipt from the court of an order for an assessment, a member of the board as designated by the administrative officer of the board shall conduct an assessment of the individual to determine if the individual should be classified as a sexually violent predator. The board shall establish standards for evaluations and for evaluators conducting the assessments. An assessment shall include, but not be limited to, an examination of the following:

(1) Facts of the current offense, including:

(i) Whether the offense involved multiple victims.

(ii) Whether the individual exceeded the means necessary to achieve the offense.

(iii) The nature of the sexual contact with the victim.

(iv) Relationship of the individual to the victim.

(v) Age of the victim.

(vi) Whether the offense included a display of unusual cruelty by the individual during the commission of the crime.

(vii) The mental capacity of the victim.

(2) Prior offense history, including:

(i) The individual's prior criminal record.

(ii) Whether the individual completed any prior sentences.

(iii) Whether the individual participated in available programs for sexual offenders.

(3) Characteristics of the individual, including:

(i) Age of the individual.

(ii) Use of illegal drugs by the individual.

(iii) A mental illness, mental disability or mental abnormality.

(iv) Behavioral characteristics that contribute to the individual's conduct.

(4) Factors that are supported in a sexual offender assessment field as criteria reasonably related to the risk of reoffense.

(c) Release of information.--All State, county and local agencies, offices or entities in this Commonwealth, including juvenile probation officers, shall cooperate by providing access to records and information as requested by the board in connection with the court-ordered assessment and the assessment requested by the Pennsylvania Parole Board or the assessment of a delinquent child under section 6358 (relating to assessment of delinquent children by the State Sexual Offenders Assessment Board).

(d) Submission of report by board.--The board shall have 90 days from the date of conviction of the individual to submit a written report containing its assessment to the district attorney.

(d.1) Summary of offense.--The board shall prepare a description of the offense or offenses which trigger the application of this subchapter to include, but not be limited to:

(1) A concise narrative of the offender's conduct.

(2) Whether the victim was a minor.

(3) The manner of weapon or physical force used or threatened.

(4) If the offense involved unauthorized entry into a room or vehicle occupied by the victim.

(5) If the offense was part of a course or pattern of conduct involving multiple incidents or victims.

(6) Previous instances in which the offender was determined guilty of an offense subject to this subchapter or of a crime of violence as defined in section 9714(g) (relating to sentences for second and subsequent offenses).

(e) Hearing.--

(1) A hearing to determine whether the individual is a sexually violent predator shall be scheduled upon the praecipe filed by the district attorney. The district attorney upon filing a praecipe shall serve a copy of the same upon defense counsel together with a copy of the report of the board.

(2) The individual and district attorney shall be given notice of the hearing and an opportunity to be heard, the right to call witnesses, the right to call expert witnesses and the right to cross-examine witnesses. In addition, the individual shall have the right to counsel and to have a lawyer appointed to represent the individual if he or she cannot afford one. If the individual requests another expert assessment, the individual shall provide a copy of the expert assessment to the district attorney prior to the hearing.

(3) At the hearing prior to sentencing, the court shall determine whether the Commonwealth has proved by clear and convincing evidence that the individual is a sexually violent predator.

(4) A copy of the order containing the determination of the court shall be immediately submitted to the individual, the district attorney, the Pennsylvania Parole Board, the Department of Corrections, the board and the Pennsylvania State Police.

(f) Presentence investigation.--In all cases where the board has performed an assessment under this section, copies of the report shall be provided to the agency preparing the presentence investigation.

(g) Parole assessment.--The Pennsylvania Parole Board may request of the board an assessment of an offender or sexually violent predator be conducted and provide a report to the Pennsylvania Parole Board prior to considering an offender or sexually violent predator for parole.

(h) Delinquent children.--Except where section 6358(b.1) is applicable, the probation officer shall notify the board 90 days prior to the 20th birthday of the child of the status of the delinquent child who is committed to an institution or other facility under section 6352 (relating to disposition of delinquent child) after having been found delinquent for an act of sexual violence which if committed by an adult would be a violation of 18 Pa.C.S. § 3121 (relating to rape), 3123 (relating to involuntary deviate sexual intercourse), 3124.1 (relating to sexual assault), 3125 (relating to aggravated indecent assault), 3126 (relating to indecent assault) or 4302 (relating to incest), together with the location of the facility where the child is committed. The board shall conduct an assessment of the child, which shall include the board's determination of whether or not the child is in need of commitment due to a mental abnormality as defined in section 6402 (relating to definitions) or a personality disorder, either of which results in serious difficulty in controlling sexually violent behavior, and provide a report to the court within the time frames under section 6358(c). The probation officer shall assist the board in obtaining access to the child and records or information as requested by the board in connection with the assessment. The assessment shall be conducted under subsection (b).

(i) Other assessments.--Upon receipt from the court of an order for an assessment under section 9799.59 (relating to exemption from certain notifications), a member of the board as designated by the administrative officer of the board shall conduct an assessment of the individual to determine if the relief sought, if granted, is likely to pose a threat to the safety of any other person. The board shall establish standards for evaluations and for evaluators conducting these assessments.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.58, PA ST 42 Pa.C.S.A. § 9799.58

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.59

§ 9799.59. Exemption from certain notifications

Currentness

(a) General rule.—An individual required to register under section 9799.55(a.1) and (b) (relating to registration) may be exempt from the requirement to register, the requirement to verify residence, employment and enrollment in an educational institution, the requirement to appear on the publicly accessible Internet website maintained by the Pennsylvania State Police and all other requirements of this subchapter if:

(1) At least 25 years have elapsed prior to filing a petition with the sentencing court to be exempt from the requirements of this subchapter, during which time the petitioner has not been convicted in this Commonwealth or any other jurisdiction or foreign country of an offense punishable by imprisonment of more than one year, or the petitioner's release from custody following the petitioner's most recent conviction for an offense, whichever is later.

(2) Upon receipt of a petition filed under paragraph (1), the sentencing court shall enter an order directing that the petitioner be assessed by the board. Upon receipt from the court of an order for an assessment under this section, a member of the board designated by the administrative officer of the board shall conduct an assessment of the petitioner to determine if the relief sought, if granted, is likely to pose a threat to the safety of any other persons. The board shall establish standards for evaluations and for evaluators conducting assessments.

(3) The order for an assessment under this section shall be sent to the administrative officer of the board within 10 days of the entry. No later than 90 days following receipt of the order, the board shall submit a written report containing the board's assessment to the sentencing court, the district attorney and the attorney for the sexual offender.

(4) Within 120 days of filing the petition under paragraph (1), the sentencing court shall hold a hearing to determine whether to exempt the petitioner from the application of any or all of the requirements of this subchapter. The petitioner and the district attorney shall be given notice of the hearing and an opportunity to be heard, the right to call witnesses and the right to cross-examine witnesses. The petitioner shall have the right to counsel and to have a lawyer appointed to represent the petitioner if the petitioner cannot afford one.

(5) The sentencing court shall exempt the petitioner from application of any or all of the requirements of this subchapter, at the discretion of the court, only upon a finding of clear and convincing evidence that exempting the petitioner from a particular requirement or all of the requirements of this subchapter is not likely to pose a threat to the safety of any other person.

(6) A court granting relief under this section shall notify the Pennsylvania State Police in writing within 10 days from the date relief is granted.

(7) The petitioner and the Commonwealth shall have the right to appellate review of the actions of the sentencing court under this section. An appeal by the Commonwealth shall stay the order of the sentencing court. A court granting relief under this section shall notify the Pennsylvania State Police in writing within 10 days from the date the relief is granted. If a memorandum of understanding has been entered into under section 9799.61 (relating to victim notification) with respect to relief granted to the petitioner, the Pennsylvania State Police shall transmit the information about the relief to the Office of Victim Advocate as soon as is practicable. The Office of Victim Advocate shall notify the victim of the relief, in accordance with the memorandum of understanding, as specified in section 9799.61.

(8) The petitioner may file an additional petition with the sentencing court no sooner than five years from the date of the final determination of a court regarding the petition and every five years thereafter.

(9) If a petitioner is exempt from any provisions of this subchapter and the petitioner is subsequently convicted under 18 Pa.C.S. § 4915.2 (relating to failure to comply with 42 Pa.C.S. Ch. 97 Subch. I registration requirements), relief granted under this section shall be void, and the petitioner shall automatically and immediately again be subject to the provisions of this subchapter, as previously determined by this subchapter.

(b) Agency cooperation.--All State, county and local agencies, offices and entities in this Commonwealth, including juvenile probation officers, shall cooperate by providing access to records and information as requested by the board in connection with the court-ordered assessment under subsection (a).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective.

42 Pa.C.S.A. § 9799.59, PA ST 42 Pa.C.S.A. § 9799.59

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42 Pa.C.S.A. § 9799.60

§ 9799.60. Verification of residence

Currentness

(a) Quarterly verification by sexually violent predators.--The Pennsylvania State Police shall verify the residence and compliance with counseling as provided for in section 9799.70 (relating to counseling of sexually violent predators) of sexually violent predators every 90 days through the use of a nonforwardable verification form to the last reported residence. For the period of registration required by section 9799.55 (relating to registration), a sexually violent predator shall appear quarterly within 10 days of the dates designated by the Pennsylvania State Police each calendar year at an approved registration site to complete a verification form and to be photographed.

(a.1) Facilitation of quarterly verification.--The Pennsylvania State Police shall facilitate and administer the verification process required by subsection (a) by:

(1) sending a notice by first class United States mail to all registered sexually violent predators at their last reported residence addresses. This notice shall be sent not more than 30 days nor less than 15 days prior to each of the quarterly verification periods specified in subsection (a) and shall remind sexually violent predators of their quarterly verification requirement and provide them with a list of approved registration sites; and

(2) providing verification and compliance forms as necessary to each approved registration site not less than 10 days before each of the quarterly verification periods.

(b) Annual verification by offenders.--The Pennsylvania State Police shall verify the residence of offenders. For the period of registration required by section 9799.55, an offender shall appear within 10 days before each annual anniversary date of the offender's initial registration under section 9799.55 at an approved registration site to complete a verification form and to be photographed.

(b.1) Facilitation of annual verification.--The Pennsylvania State Police shall facilitate and administer the verification process required by subsection (b) by:

(1) sending a notice by first class United States mail to all registered offenders at their last reported residence addresses. This notice shall be sent not more than 30 days nor less than 15 days prior to each offender's annual anniversary date and shall remind the offender of the annual verification requirement and provide the offender with a list of approved registration sites; and

(2) providing verification and compliance forms as necessary to each approved registration site.

(b.2) Monthly verification by individuals with temporary habitats located within this Commonwealth.--The Pennsylvania State Police shall verify the residence of individuals required to register under this subchapter who have a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53 (relating to definitions) every 30 days through the use of a nonforwardable verification form to the last reported location where the individual receives mail. The individual shall appear every 30 days at an approved registration site to complete a verification form and to be photographed. The individual shall appear within three business days of the date designated by the Pennsylvania State Police.

(b.3) Facilitation of monthly verification.--The Pennsylvania State Police shall facilitate and administer the verification process required by subsection (b.2) by:

(1) sending a notice by first class United States mail to an individual required to register under this subchapter who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53 at the last reported location where the individual receives mail. This notice shall be sent not more than 10 days nor less than five days prior to each of the monthly verification periods and shall remind the individual of the monthly verification requirement and provide a list of approved registration sites; and

(2) providing verification and compliance forms as necessary to each approved registration site.

(c) Notification of law enforcement agencies of change of residence.--A change of residence of an offender or sexually violent predator required to register under this subchapter reported to the Pennsylvania State Police shall be immediately reported by the Pennsylvania State Police to the appropriate law enforcement agency having jurisdiction of the offender's or the sexually violent predator's new place of residence. The Pennsylvania State Police shall, if the offender or sexually violent predator changes residence to another state, notify the law enforcement agency with which the offender or sexually violent predator must register in the new state.

(d) Failure to provide verification.--Where an offender or sexually violent predator fails to provide verification of residence defined in paragraph (1) of the definition of “residence” in section 9799.53 within the 10-day period or three business days in the case of an offender or sexually violent predator who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53, as specified in this section, the Pennsylvania State Police shall immediately notify the municipal police department of the offender's or the sexually violent predator's last verified residence. The local municipal police shall locate the offender or sexually violent predator and arrest the individual for violating this section. The Pennsylvania State Police shall assume responsibility for locating and arresting the offender or sexually violent predator in jurisdictions where no municipal police jurisdiction exists. The Pennsylvania State Police shall assist a municipal police department requesting assistance with locating and arresting an offender or sexually violent predator who fails to verify the offender's or sexually violent predator's residence.

(e) Penalty.--An individual subject to registration under section 9799.55(a) or (b) who fails to verify the individual's residence or to be photographed as required by this section may be subject to prosecution under 18 Pa.C.S. § 4915.2 (relating to failure to comply with 42 Pa.C.S. Ch. 97 Subch. I registration requirements).

(f) Effect of notice.--Neither failure on the part of the Pennsylvania State Police to send nor failure of a sexually violent predator or offender to receive notice or information under subsection (a.1), (b.1) or (b.3) shall relieve that predator or offender from the requirements of this subchapter.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective.

42 Pa.C.S.A. § 9799.60, PA ST 42 Pa.C.S.A. § 9799.60

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42 Pa.C.S.A. § 9799.61

§ 9799.61. Victim notification

Currentness

(a) Duty to inform victim.--

(1) Where the individual is determined to be a sexually violent predator by a court under section 9799.58 (relating to assessments), the local municipal police department or the Pennsylvania State Police where no municipal police jurisdiction exists shall give written notice to the sexually violent predator's victim when the sexually violent predator registers initially and when the sexually violent predator notifies the Pennsylvania State Police of a change of residence. In the case of a sexually violent predator who has a residence as defined in paragraph (1) of the definition of “residence” in section 9799.53 (relating to definitions), notice shall be given within 72 hours after the sexually violent predator registers or notifies the Pennsylvania State Police of a change of address. The notice shall contain the sexually violent predator's name and the address or addresses where the individual has a residence. In the case of a sexually violent predator who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53, the notice shall contain the sexually violent predator's name and the information specified in section 9799.56(a)(2)(i)(A) and (B) (relating to registration procedures and applicability). The notice shall be given to the victim within 72 hours after the sexually violent predator registers or notifies the Pennsylvania State Police of a change of residence.

(2) A victim may terminate the duty to inform described in paragraph (1) by providing the local municipal police department or the Pennsylvania State Police where no local municipal police department exists with a written statement releasing that agency from the duty to comply with this section as it pertains to that victim.

(b) Where an individual is not determined to be a sexually violent predator.--Where an individual is not determined to be a sexually violent predator by a court under section 9799.58, the victim shall be notified in accordance with section 201 of the act of November 24, 1998 (P.L. 882, No. 111),¹ known as the Crime Victims Act. This subsection includes the circumstance of an offender having a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53.

(c) Alternate means of notifying victims.--

(1) The Pennsylvania State Police may enter into a memorandum of understanding with the Office of Victim Advocate to assist the Pennsylvania State Police in notifying victims and providing the information under subsection (a). In addition, the memorandum of understanding may also include the Office of Victim Advocate's notifying a victim of relief granted to a petitioner under section 9799.59 (relating to exemption from certain notifications). The memorandum of understanding must set forth the manner and method of notifying victims and the duties of the Pennsylvania State Police and the Office of Victim

Advocate under this section and section 9799.59(a). A memorandum of understanding entered into under this subsection shall be valid for no more than 10 years. There shall be no limit to the number of memoranda of understanding which may be executed by the Pennsylvania State Police and the Office of Victim Advocate under this subsection.

(2) As used in this subsection, the term “**Office of Victim Advocate**” shall mean the office established under section 301 of the Crime Victims Act.²

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective.

Footnotes

1 18 P.S. § 11.201.

2 18 P.S. § 11.301.

42 Pa.C.S.A. § 9799.61, PA ST 42 Pa.C.S.A. § 9799.61

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42 Pa.C.S.A. § 9799.62

§ 9799.62. Other notification

Currentness

(a) Notice by municipality's chief law enforcement officer.--Notwithstanding any of the provisions of 18 Pa.C.S. Ch. 91 (relating to criminal history record information), the chief law enforcement officer of the full-time or part-time police department of the municipality where a sexually violent predator lives shall be responsible for providing written notice as required under this section.

(1) The notice shall contain:

(i) The name of the convicted sexually violent predator.

(ii) The address or addresses at which the sexually violent predator has a residence. If, however, the sexually violent predator has a residence as defined in paragraph (2) of the definition of "residence" in section 9799.53 (relating to definitions), the notice shall be limited to that provided for under section 9799.56(a)(2)(i)(C) (relating to registration procedures and applicability).

(iii) The offense for which the sexually violent predator was convicted, sentenced by a court, adjudicated delinquent or court martialled.

(iv) A statement that the individual has been determined by court order to be a sexually violent predator, which determination has or has not been terminated as of a date certain.

(v) A photograph of the sexually violent predator, if available.

(2) The notice shall not include information that might reveal the victim's name, identity and residence.

(b) To whom written notice is provided.--The chief law enforcement officer shall provide written notice, under subsection (a), to the following persons:

(1) Neighbors of the sexually violent predator. As used in this paragraph, where the sexually violent predator lives in a common interest community, the term “**neighbor**” includes the unit owners' association and residents of the common interest community.

(2) The director of the county children and youth service agency of the county where the sexually violent predator has a residence.

(3) The superintendent of each school district and the equivalent official for private and parochial schools enrolling students up through grade 12 in the municipality where the sexually violent predator has a residence.

(3.1) The superintendent of each school district and the equivalent official for each private and parochial school located within a one-mile radius of where the sexually violent predator has a residence.

(4) The licensee of each certified day-care center and licensed preschool program and owner/operator of each registered family day-care home in the municipality where the sexually violent predator has a residence.

(5) The president of each college, university and community college located within 1,000 feet of a sexually violent predator's residence.

(c) Urgency of notification.--The municipal police department's chief law enforcement officer shall provide notice within the following time frames:

(1) To neighbors, notice shall be provided within five days after information of the sexually violent predator's release date and residence has been received by the chief law enforcement officer. Notwithstanding the provisions of subsections (a) and (b), verbal notification may be used if written notification would delay meeting this time requirement.

(2) To the persons specified in subsection (b)(2), (3), (4) and (5), notice shall be provided within seven days after the chief law enforcement officer receives information regarding the sexually violent predator's release date and residence.

(d) Public notice.--All information provided in accordance with subsection (a) shall be available, upon request, to the general public. The information may be provided by electronic means.

(e) Interstate transfers.--The duties of police departments under this section shall also apply to individuals who are transferred to this Commonwealth under the Interstate Compact for the Supervision of Adult Offenders¹ or the Interstate Compact for Juveniles.²

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective.

Footnotes

1 61 Pa.C.S.A. § 7111 et seq.

2 11 P.S. § 890.1 et seq.

42 Pa.C.S.A. § 9799.62, PA ST 42 Pa.C.S.A. § 9799.62

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42 Pa.C.S.A. § 9799.63

§ 9799.63. Information made available on Internet and electronic notification

Currentness

(a) Legislative findings.--It is hereby declared to be the finding of the General Assembly that public safety will be enhanced by making information about sexually violent predators, lifetime registrants and other sex offenders available to the public through the Internet and electronic notification. Knowledge of whether a person is a sexually violent predator, lifetime registrant or other sex offender could be a significant factor in protecting oneself and one's family members, or those in care of a group or community organization, from recidivist acts by sexually violent predators, lifetime registrants and other sex offenders. The technology afforded by the Internet and electronic notification would make this information readily accessible to parents and private entities, enabling them to undertake appropriate remedial precautions to prevent or avoid placing potential victims at risk. Public access to information about sexually violent predators, lifetime registrants and other sex offenders is intended solely as a means of public protection and shall not be construed as punitive.

(b) Internet posting of sexually violent predators, lifetime registrants, other offenders and electronic notification.--The Commissioner of the Pennsylvania State Police shall, in the manner and form directed by the Governor:

(1) Develop and maintain a system for making the information described in subsection (c) publicly available by electronic means so that the public may, without limitation, obtain access to the information via an Internet website to view an individual record or the records of all sexually violent predators, lifetime registrants and other offenders who are registered with the Pennsylvania State Police. The publicly accessible Internet website created under this subchapter and the information required to be posted under this subchapter shall be included on the publicly accessible Internet website created and maintained by the Pennsylvania State Police under Subchapter H (relating to registration of sexual offenders).¹

(2) Ensure that the Internet website contains warnings that a person who uses the information contained on the Internet website to threaten, intimidate or harass another or who otherwise misuses that information may be criminally prosecuted.

(3) Ensure that the Internet website contains:

(i) An explanation of its limitations, including statements advising that a positive identification of a sexually violent predator, lifetime registrant or other offender whose record has been made available may be confirmed only by fingerprints.

(ii) A statement that some information contained on the Internet website may be outdated or inaccurate.

(iii) A statement that the Internet website is not a comprehensive listing of every person who has ever committed a sex offense in Pennsylvania.

(4) Strive to ensure that:

(i) the information contained on the Internet website is accurate;

(ii) the data on the Internet website is revised and updated as appropriate in a timely and efficient manner; and

(iii) instructions are included on how to seek correction of information which a person contends is erroneous.

(5) Provide on the Internet website general information designed to inform and educate the public about sex offenders and sexually violent predators and the operation of this subchapter as well as pertinent and appropriate information concerning crime prevention and personal safety, with appropriate links to other relevant Internet websites operated by the Commonwealth.

(6) Identify when the victim is a minor with a special designation. The identity of a victim of a sex offense shall not be published or posted on the Internet website.

(7) Notwithstanding 18 Pa.C.S. Ch. 91 (relating to criminal history record information), develop, implement and maintain a process which allows members of the public to receive electronic notification when an individual required to register under this subchapter moves into or out of a user-designated location.

(c) Information permitted to be disclosed regarding individuals.--Notwithstanding 18 Pa.C.S. Ch. 91, the Internet website shall contain the following information on each individual:

(1) For sexually violent predators, the following information shall be posted on the Internet website:

(i) name and all known aliases;

(ii) year of birth;

(iii) in the case of an individual who has a residence as defined in paragraph (1) of the definition of “residence” in section 9799.53 (relating to definitions), the street address, municipality, county and zip code of all residences, including, where applicable, the name of the prison or other place of confinement;

(iv) the street address, municipality, county, zip code and name of an institution or location at which the person is enrolled as a student;

- (v) the municipality, county and zip code of an employment location;
- (vi) a photograph of the individual, which shall be updated not less than annually;
- (vii) a physical description of the offender, including sex, height, weight, eye color, hair color and race;
- (viii) identifying marks, including scars, birthmarks and tattoos;
- (ix) the license plate number and description of a vehicle owned or registered to the offender;
- (x) whether the offender is currently compliant with registration requirements;
- (xi) whether the victim is a minor;
- (xii) a description of the offense or offenses which triggered the application of this subchapter;
- (xiii) the date of the offense and conviction, if available; and
- (xiv) in the case of an individual who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53, the information listed in section 9799.56(a)(2)(i)(C) (relating to registration procedures and applicability), including, where applicable, the name of the prison or other place of confinement.

(2) For all other lifetime registrants and offenders subject to registration, the information specified in paragraph (1) shall be posted on the Internet website.

(d) Duration of Internet posting.--

(1) The information listed in subsection (c) about a sexually violent predator shall be made available on the Internet for the lifetime of the sexually violent predator.

(2) The information listed in subsection (c) about an offender who is subject to lifetime registration shall be made available on the Internet for the lifetime of the offender unless the offender is granted relief under section 9799.59 (relating to exemption from certain notifications).

(3) The information listed in subsection (c) about any other offender subject to registration shall be made available on the Internet for the entire period during which the offender is required to register, including an extension of this period under section 9799.56(a)(3).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective.

Footnotes

1 42 Pa.C.S.A. § 9799.10 et seq.

42 Pa.C.S.A. § 9799.63, PA ST 42 Pa.C.S.A. § 9799.63

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.64

§ 9799.64. Administration

Currentness

The Governor shall direct the Pennsylvania State Police, the Pennsylvania Parole Board, the board, the Department of Corrections, the Department of Transportation and any other agency of this Commonwealth the Governor deems necessary to collaboratively design, develop and implement an integrated and secure system of communication, storage and retrieval of information to assure the timely, accurate and efficient administration of this subchapter.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.64, PA ST 42 Pa.C.S.A. § 9799.64

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42 Pa.C.S.A. § 9799.65

§ 9799.65. Global positioning system technology

Currentness

The Pennsylvania Parole Board, the Department of Corrections and county probation authorities may impose supervision conditions that include offender tracking through global positioning system technology.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.65, PA ST 42 Pa.C.S.A. § 9799.65

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42 Pa.C.S.A. § 9799.66

§ 9799.66. Immunity for good faith conduct

Currentness

The following entities shall be immune from liability for good faith conduct under this subchapter:

- (1) The Pennsylvania State Police and local law enforcement agencies and employees of law enforcement agencies.
- (2) District attorneys and their agents and employees.
- (3) Superintendents, administrators, teachers, employees and volunteers engaged in the supervision of children of a public, private or parochial school.
- (4) Directors and employees of county children and youth agencies.
- (5) Presidents or similar officers of universities and colleges, including community colleges.
- (6) The Pennsylvania Parole Board and its agents and employees.
- (7) County probation and parole offices and their agents and employees.
- (8) Licensees of certified day-care centers and directors of licensed preschool programs and owners/operators of registered family day-care homes, and their agents and employees.
- (9) The Pennsylvania Department of Corrections and its agents and employees.
- (10) County correctional facilities and their agents and employees.
- (11) Members of the Sexual Offenders Assessment Board and its agents and employees.

(12) The unit owners' association of a common interest community and its agents and employees as it relates to distributing information regarding sexually violent predators obtained under section 9799.62(b)(1) (relating to other notification).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.66, PA ST 42 Pa.C.S.A. § 9799.66

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Subchapter I. Continued Registration of Sexual Offenders (Refs & Annos)

42 Pa.C.S.A. § 9799.67

§ 9799.67. Duties of Pennsylvania State Police

Currentness

The Pennsylvania State Police shall:

(1) Create and maintain a State registry of offenders and sexually violent predators required to register under this subchapter. The registry shall be incorporated as part of the registry established under Subchapter H (relating to registration of sexual offenders).¹

(2) In consultation with the Department of Corrections, the Office of Attorney General and the chairperson and the minority chairperson of the Judiciary Committee of the Senate and the chairperson and the minority chairperson of the Judiciary Committee of the House of Representatives, promulgate guidelines necessary for the general administration of this subchapter. These guidelines shall establish procedures to allow an individual subject to the requirements of sections 9799.55 (relating to registration) and 9799.60 (relating to verification of residence) to fulfill these requirements at approved registration sites throughout this Commonwealth. This paragraph includes the duty to establish procedures to allow an individual who has a residence as defined in paragraph (2) of the definition of “residence” in section 9799.53 (relating to definitions) to fulfill the requirements regarding registration at approved registration sites throughout this Commonwealth. The Pennsylvania State Police shall publish a list of approved registration sites in the Pennsylvania Bulletin and provide a list of approved registration sites in any notices sent to individuals required to register under section 9799.55. An approved registration site shall be capable of submitting fingerprints, photographs and other information required electronically to the Pennsylvania State Police. The Pennsylvania State Police shall require that approved registration sites submit fingerprints utilizing the Integrated Automated Fingerprint Identification System or in another manner and in the form as the Pennsylvania State Police shall require. The Pennsylvania State Police shall require that approved registration sites submit photographs utilizing the Commonwealth Photo Imaging Network or in another manner and in the form as the Pennsylvania State Police shall require. Approved registration sites shall not be limited to sites managed by the Pennsylvania State Police and shall include sites managed by local law enforcement agencies that meet the criteria for approved registration sites specified in this paragraph.

(3) Write regulations regarding neighbor notification of the current residence of sexually violent predators.

(4) Notify, within five business days of receiving the offender's or the sexually violent predator's registration, the chief law enforcement officers of the police departments having primary jurisdiction of the municipalities in which an offender or sexually violent predator has a residence, is employed or enrolled as a student of the fact that the offender or sexually violent predator has been registered with the Pennsylvania State Police under sections 9799.56 (relating to registration procedures and applicability) and 9799.60.

(5) In consultation with the Department of Education and the Department of Corrections, promulgate guidelines directing licensed day-care centers, licensed preschool programs, schools, universities and colleges, including community colleges, on the proper use and administration of information received under section 9799.62 (relating to other notification).

(6) Immediately transfer the information received from the Department of Corrections under section 9799.68(2) and (3) (relating to duties of Department of Corrections) and the fingerprints of a sexually violent predator to the Federal Bureau of Investigation.

(7) Notify individuals of the requirements under this subchapter, as specified in section 9799.54 (relating to applicability).

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

1 42 Pa.C.S.A. § 9799.10 et seq.

42 Pa.C.S.A. § 9799.67, PA ST 42 Pa.C.S.A. § 9799.67

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.68

§ 9799.68. Duties of Department of Corrections

Currentness

The Department of Corrections shall:

- (1) Create a notification form which will inform State and county prison and probation and parole personnel how to inform offenders and sexually violent predators required to register under this subchapter of their duty under the law.
- (2) In cooperation with other Commonwealth agencies, obtain the following information regarding offenders and sexually violent predators:
 - (i) Name, including aliases.
 - (ii) Identifying factors.
 - (iii) Anticipated future residence.
 - (iv) Offense history.
 - (v) Documentation of treatment received for the mental abnormality or personality disorder.
 - (vi) Photograph of the offender or sexually violent predator.
- (3) Immediately transmit the information in paragraph (2) to the Pennsylvania State Police for immediate entry into the State registry of offenders and sexually violent predators and the criminal history record of the individual as provided in 18 Pa.C.S. Ch. 91 (relating to criminal history record information).
- (4) Apply for Federal funding as provided in the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248, 120 Stat. 587)¹ to support and enhance programming using satellite global positioning system technology.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

1 34 U.S.C.A. § 20981 et seq.

42 Pa.C.S.A. § 9799.68, PA ST 42 Pa.C.S.A. § 9799.68

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42 Pa.C.S.A. § 9799.69

§ 9799.69. Board

Currentness

(a) Composition.--The State Sexual Offenders Assessment Board shall be composed of psychiatrists, psychologists and criminal justice experts, each of whom is an expert in the field of the behavior and treatment of sexual offenders.

(b) Appointment.--The Governor shall appoint the board members.

(c) Term of office.--Members of the board shall serve four-year terms.

(d) Compensation.--The members of the board shall be compensated at a rate of \$350 per assessment and receive reimbursement for their actual and necessary expenses while performing the business of the board. The chairman shall receive \$500 additional compensation per annum.

(e) Staff.-- The board shall employ an executive director and other staff as necessary to carry out the board's duties under this chapter. The executive director shall direct the operations, management and administration of the board and organize and oversee the work of the staff. Legal counsel for the board shall be provided in accordance with the act of October 15, 1980 (P.L. 950, No. 164),¹ known as the Commonwealth Attorneys Act. Upon request by the board, the Department of Corrections shall make available facilities, administrative support and other assistance to the board.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 18, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

Footnotes

¹ 71 P.S. § 732-101 et seq.

42 Pa.C.S.A. § 9799.69, PA ST 42 Pa.C.S.A. § 9799.69

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42 Pa.C.S.A. § 9799.70

§ 9799.70. Counseling of sexually violent predators

Currentness

(a) Counseling required.--For the period of registration required by section 9799.55(b) (relating to registration), a sexually violent predator shall be required to attend at least monthly counseling sessions in a program approved by the board and be financially responsible for all fees assessed from the counseling sessions. The board shall monitor the compliance of the sexually violent predator. If the sexually violent predator can prove to the satisfaction of the court that the person cannot afford to pay for the counseling sessions, that person shall still attend the counseling sessions and the parole office shall pay the requisite fees.

(b) Notice.--A provider of counseling sessions under subsection (a) shall notify the district attorney of the county and the chief law enforcement officer as defined in section 8951 (relating to definitions) of the municipality where the provider is located that the provider is counseling sexually violent predators. Notice under this subsection must be submitted in writing no later than January 15 of each year and shall include the address of the provider.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 18.1, imd. effective.

42 Pa.C.S.A. § 9799.70, PA ST 42 Pa.C.S.A. § 9799.70

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.71

§ 9799.71. Exemption from notification for certain licensees and their employees

Currentness

Nothing in this subchapter shall be construed as imposing a duty upon a person or an employee of a person licensed under the act of February 19, 1980 (P.L. 15, No. 9),¹ known as the Real Estate Licensing and Registration Act, to disclose information regarding:

- (1) a sexually violent predator; or
- (2) an individual who is transferred to this Commonwealth under the Interstate Compact for the Supervision of Adult Offenders² or the Interstate Compact for Juveniles.³

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 19, imd. effective.

Footnotes

¹ 63 P.S. § 455.101 et seq.

² 61 Pa.C.S.A. § 7111 et seq.

³ 11 P.S. § 890.1 et seq.

42 Pa.C.S.A. § 9799.71, PA ST 42 Pa.C.S.A. § 9799.71

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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42 Pa.C.S.A. § 9799.72

§ 9799.72. Annual performance audit

Currentness

(a) Duties of Attorney General.--The Attorney General shall:

(1) Conduct a performance audit annually to determine compliance with the requirements of this subchapter and guidelines promulgated under this subchapter. The audit shall, at a minimum, include a review of the practices, procedures and records of the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts and any other State or local agency the Attorney General deems necessary in order to conduct a thorough and accurate performance audit.

(2) Prepare an annual report of its findings and actions it recommends be taken by the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, other State or local agencies and the General Assembly to ensure compliance with this subchapter. The first report shall be released to the general public electronically on the Attorney General's publicly accessible Internet website not less than 18 months after February 21, 2018.

(3) Provide a copy of its report to the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, State or local agencies referenced therein, the chairperson and the minority chairperson of the Judiciary Committee of the Senate and the chairperson and the minority chairperson of the Judiciary Committee of the House of Representatives no less than 30 days prior to the report's release to the general public.

(b) Cooperation required.--Notwithstanding any other provision of law to the contrary, the Pennsylvania State Police, the Department of Corrections, the board, the Administrative Office of Pennsylvania Courts, the Pennsylvania Commission on Sentencing and any other State or local agency requested to do so shall fully cooperate with the Attorney General and assist the office in satisfying the requirements of this section. For purposes of this subsection, full cooperation shall include, at a minimum, complete access to unredacted records, files, reports and data systems.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 19.1, imd. effective. Amended 2021, June 30, P.L. 260, No. 59, § 6, imd. effective.

42 Pa.C.S.A. § 9799.72, PA ST 42 Pa.C.S.A. § 9799.72

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42 Pa.C.S.A. § 9799.73

§ 9799.73. Photographs and fingerprinting

Currentness

An individual subject to section 9799.55 (relating to registration) shall submit to fingerprinting and photographing as required by this subchapter at approved registration sites. Fingerprinting as required by this subchapter shall, at a minimum, require submission of a full set of fingerprints. Photographing as required by this subchapter shall, at a minimum, require submission to photographs of the face and scars, marks, tattoos or other unique features of the individual. Fingerprints and photographs obtained under this subchapter may be maintained for use under this subchapter and for general law enforcement purposes.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 20, imd. effective.

42 Pa.C.S.A. § 9799.73, PA ST 42 Pa.C.S.A. § 9799.73

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42 Pa.C.S.A. § 9799.74

§ 9799.74. Standing for Pennsylvania State Police

Currentness

Except for petitions filed under section 9799.59(a) (relating to exemptions from certain notifications), the Pennsylvania State Police shall have standing to appear and contest a filing in a court of this Commonwealth which seeks to challenge in any way the obligation of an individual required to register with the Pennsylvania State Police under this subchapter.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted 2018, June 12, P.L. 140, No. 29, § 20, imd. effective.

42 Pa.C.S.A. § 9799.74, PA ST 42 Pa.C.S.A. § 9799.74

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42 Pa.C.S.A. § 9799.75

§ 9799.75. Construction of subchapter

Currentness

(a) Registration.--Nothing in this subchapter shall be construed to relieve an individual from the obligation to register with the Pennsylvania State Police under this subchapter if the individual:

(1) committed a sexually violent offense within this Commonwealth or committed an offense under the laws of the United States or one of its territories or possessions, another state, the District of Columbia, the Commonwealth of Puerto Rico or a foreign nation which is similar or equivalent to a sexually violent offense, or who was court martialled for a similar or equivalent offense, whether or not the offense is designated as a sexually violent offense; and

(2) was required to register with the Pennsylvania State Police under a former sexual offender registration law of this Commonwealth that was enacted before December 20, 2012, or would have been required to register with the Pennsylvania State Police under the act of November 24, 2004 (P.L. 1243, No. 152),¹ entitled "An act amending Titles 18 (Crimes and Offenses) and 42 (Judiciary and Judicial Procedure) of the Pennsylvania Consolidated Statutes, defining the offense of failure to comply with registration of sexual offenders requirements; imposing penalties; further providing for six months limitation and for two year limitation; providing for limitation and application for asbestos claim; further providing for deficiency judgments, for definitions, for registration, for registration procedures and applicability and for assessments; providing for exemption from certain notifications; further providing for verification of residence and for other notification; providing for information made available on the Internet and for certain administration; further providing for immunity for good faith conduct, for duties of Pennsylvania State Police and for exemption from notification for certain licensees and their employees; and providing for annual performance audit and for photographs and fingerprinting," but for the decision by the Pennsylvania Supreme Court in *Commonwealth v. Neiman*, 84 A.3d 603 (Pa. 2013).

(b) Reregistration.--Nothing in this subchapter shall be construed to require an individual who had previously registered with the Pennsylvania State Police for a sexually violent offense prior to July 9, 2000, to reregister under this subchapter if the individual's registration requirements were satisfied.

Credits

2018, Feb. 21, P.L. 27, No. 10, § 19, imd. effective. Reenacted and amended 2018, June 12, P.L. 140, No. 29, § 20.1, imd. effective.

Footnotes

1 18 Pa.C.S.A. § 4915 (expired); see now, 18 Pa.C.S.A. § 4915.1.

42 Pa.C.S.A. § 9799.75, PA ST 42 Pa.C.S.A. § 9799.75

Current through Act 38 of the 2025 Regular Session. Some statute sections may be more current, see credits for details.

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West's General Laws of Rhode Island Annotated
Title 11. Criminal Offenses
Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-1

§ 11-37.1-1. Short title

Currentness

This chapter shall be known and be cited as the “Sexual Offender Registration and Community Notification Act”.

Credits

P.L. 1996, ch. 104, § 1.

Gen. Laws, 1956, § 11-37.1-1, RI ST § 11-37.1-1

Current with effective legislation through Chapter 100 of the 2025 Regular Session of the Rhode Island Legislature.

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-2

§ 11-37.1-2. Definitions

Currentness

- (a) “Abscond” means to not register as required, or to relocate to some unknown place other than the registered place of residence, or to conceal himself or herself in an attempt to avoid registration or verification of registration.
- (b) “Aggravated offense” means, and includes, offenses involving sexual penetration of victims of any age through the use of force, or the threat of use of force, or offenses involving sexual penetration of victims who are fourteen (14) years of age or under.
- (c) “Board”, “board of review”, or “sex offender board of review” means the sex offender board of review appointed by the governor pursuant to § 11-37.1-6.
- (d)(1) “Conviction” or “convicted” means, and includes, any instance where:
- (i) A judgment of conviction has been entered against any person for any offense specified in subsection (f) or (v), or a federal offense, a foreign offense, or a military offense, regardless of whether an appeal is pending; or
 - (ii) There has been a finding of guilty for any offense specified in subsection (f) or (v), or a federal offense, a foreign offense, or a military offense, regardless of whether an appeal is pending; or
 - (iii) There has been a plea of guilty or nolo contendere for any offense specified in subsection (f) or (v), or a federal offense, a foreign offense, or a military offense, regardless of whether an appeal is pending; or
 - (iv) There has been an admission of sufficient facts or a finding of delinquency for any offense specified in subsection (f) or (v), or a federal offense, a foreign offense, or a military offense, regardless of whether or not an appeal is pending.
- (2) Provided, in the event that a conviction, as defined in this subsection, has been overturned, reversed, or otherwise vacated, the person who was the subject of the conviction shall no longer be required to register as required by this chapter and any records of a registration shall be destroyed. Provided, further, that nothing in this section shall be construed to eliminate a registration requirement of a person who is again convicted of an offense for which registration is required by this chapter.
- (e) [Deleted by P.L. 2003, ch. 162, § 1 and by P.L. 2003, ch. 170, § 1].

(f) “Criminal offense against a victim who is a minor” means, and includes, any of the following offenses or any offense in another jurisdiction that is substantially the equivalent of the following or for which the person is or would be required to register under 34 U.S.C. § 20911 as amended:

(1) Kidnapping or false imprisonment of a minor, in violation of §§ 11-26-1.4, 11-26-1 or 11-26-2, where the victim of the offense is sixteen (16) years of age or older and under the age of eighteen (18) years;

(2) Enticement of a child in violation of § 11-26-1.5 with the intent to violate §§ 11-37-6, 11-37-8, 11-37-8.1, 11-37-8.3;

(3) Any violation of §§ 11-37-6, 11-37-8, 11-37-8.1, or 11-37-8.3;

(4) Any violation of § 11-1-10, where the underlying offense is a violation of chapter 34 of this title and the victim, or person solicited to commit the offense, is under the age of eighteen (18) years;

(5) Any violation of § 11-9-1(b) or (c);

(6) Any violation of § 11-9-1.3;

(7) Any violation of § 11-9-1.5;

(8) [Deleted by P.L. 2018, ch. 157, § 1 and P.L. 2018, ch. 259, § 1];

(9) Any violation of § 11-37-8.8;

(10) Any violation of § 11-64-2, where the victim is under the age of eighteen (18) years;

(11) Murder in violation of § 11-23-1, where the murder was committed in the perpetration of, or attempted perpetration of, kidnapping and where the victim of the offense is under eighteen (18) years of age;

(12) Any violation of §§ 11-67-6, 11-67.1-3(b), 11-67.1-4(b), 11-67.1-5(c), 11-67.1-6(b), or 11-67.1-7(b); or

(13) Any conviction for an attempt or conspiracy to commit an offense enumerated in this subsection.

(g) “Designated state law enforcement agency” means the attorney general, or his or her designee.

(h) “Employed, carries on a vocation” means and includes the definition of “employed, carries on a vocation” under 34 U.S.C. § 20911.

(i) “Federal offense” means, and includes, any conviction for an offense that was obtained under federal law which, if committed within the jurisdiction of this state, would require the person to register, any conviction for an offense under 34 U.S.C. § 20911 as amended, or any conviction for an attempt or conspiracy to commit an offense requiring registration under this subsection.

(j) “Foreign offense” means, and includes, any conviction for an offense which, if committed within the jurisdiction of this state, would require the person to register that was obtained under the laws of Canada, the United Kingdom, Australia, New Zealand, or under the laws of any foreign country when the United States state department in its country reports on human rights practices has concluded that an independent judiciary generally or vigorously enforced the right to a fair trial in that country during the year in which the conviction occurred, or any conviction for an attempt or conspiracy to commit an offense enumerated in this subsection.

(k) “Habitually lives or sleeps” means living in a place with some regularity, and with reference to where a person required to be registered under this chapter actually lives, which could be some place other than a mailing address or primary address but would entail a place where the person lives on an intermittent basis regardless of whether it pertains to a location otherwise identifiable by street or address.

(l) “Homeless” means a person required to be registered under this chapter who lacks a fixed, regular, and adequate nighttime residence; has a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings, including a car, park, abandoned building, bus or train station, airport, or camping ground; living in a supervised publicly or privately operated shelter designated to provide temporary living arrangements (including hotels and motels paid for by federal, state, or local government programs for low-income individuals or by charitable organizations, congregate shelters, and transitional housing); or who resided in a shelter or place not meant for human habitation and who is exiting an institution where he or she temporarily resided.

(m) “Immediate” or “Immediately” means upon receipt of information provided by or regarding a person required to register under this chapter but not later than three (3) business days.

(n) “Institutions of higher education” means any university, two- or four-year (2 or 4) college or community college.

(o) “Jurisdiction” means any of the fifty (50) states, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, the United States Virgin Islands, and any Indian tribe that has elected to function as a registration and notification jurisdiction pursuant to 34 U.S.C. § 20929.

(p) “Mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

(q) “Military offense” means, and includes, any conviction for any military offense specified by the secretary of defense under § 115(a)(8)(C)(i) of Pub. L. 105-119, codified at 10 U.S.C. § 951 note, or any conviction for an attempt or conspiracy to commit an offense enumerated in this subsection.

(r) “Parole board” means the parole board or its designee.

(s) “Predator” means a person whose act(s) is (are) or was (were) directed at a stranger, or at a person with whom a relationship has been established or promoted for the primary purpose of victimization.

(t) “Public or private educational institution” means early childhood facilities (nursery school, pre-kindergarten and kindergarten), elementary, middle, secondary, institutions of higher education, and postsecondary educational institutions authorized or licensed by the State of Rhode Island.

(u) “School” means the buildings and real property of kindergarten, elementary, middle, and secondary institutions, whether public or private.

(v) “Sexually violent offense” means, and includes, any violation of §§ 11-37-2, 11-37-4, 11-37-6, 11-37-8, 11-37-8.1, 11-37-8.3, 11-67-2 (where the victim was subject to commercial sexual activity), 11-67-3(a), 11-67-3(b) (where the victim was subject to commercial sexual activity), 11-67.1-3(c) (where the victim was subject to sexual servitude), 11-67.1-5(d), 11-67.1-6(c); or 11-5-1, where the specified felony is sexual assault; or § 11-23-1, where the murder was committed in the perpetration of, or attempted perpetration of, rape or any degree of sexual assault or child molestation; or any offense in another jurisdiction that is substantially the equivalent of any offense listed in this subsection or for which the person is or would be required to register under 34 U.S.C. § 20911 as amended, or any conviction for an attempt or conspiracy to commit an offense enumerated in this subsection.

(w) “Sexually violent predator” means a person who has been convicted of a sexually violent offense and who has a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(x) “Student” means, and includes, the definition of “student” under 34 U.S.C. § 20911.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 83, § 14; P.L. 1999, ch. 130, § 14; P.L. 1999, ch. 255, § 1; P.L. 2002, ch. 330, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2008, ch. 155, § 1, eff. July 1, 2008; P.L. 2008, ch. 202, § 1, eff. July 2, 2008; P.L. 2014, ch. 416, § 1, eff. July 3, 2014; P.L. 2014, ch. 448, § 1, eff. July 3, 2014; P.L. 2016, ch. 65, § 1, eff. June 13, 2016; P.L. 2016, ch. 68, § 1, eff. June 13, 2016; P.L. 2017, ch. 232, § 3, eff. July 18, 2017; P.L. 2017, ch. 260, § 3, eff. July 19, 2017; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-2, RI ST § 11-37.1-2

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-3

§ 11-37.1-3. Registration required--Persons covered

Currentness

(a) Any person who, in this or any other jurisdiction: (1) has been convicted of a criminal offense against a victim who is a minor, (2) has been convicted of a sexually violent offense, (3) has been determined to be a sexually violent predator, (4) has committed an aggravated offense as defined in § 11-37.1-2, (5) is a recidivist, as defined in § 11-37.1-4, (6) has been convicted of a federal offense, (7) has been convicted of a foreign offense, (8) has been convicted of a military offense, or (9) has been convicted of a violation of § 11-37.1-10 shall be required to register his or her current address with the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register resides for the time period specified in § 11-37.1-4.

(b) Any person who is: (1) a nonresident worker who has committed an offense that is subject to registration in the jurisdiction of his or her residence and who is employed or carrying on a vocation in Rhode Island as defined in § 11-37.1-2(h), or (2) a nonresident student as defined by § 11-37.1-2(x) who has committed an offense that is subject to registration in the jurisdiction of his or her residence and who is attending a public or private educational institution in Rhode Island, shall be required to register his or her current address and the address of his or her place of employment or a public or private educational institution attended with the local law enforcement agency having jurisdiction over the city or town in which the nonresident worker or student is employed or attending a public or private educational institution.

(c) Any person having a duty to register as a sex offender in subsection (a) of this section who is enrolled at, employed at, or carrying on a vocation at an institution of higher education shall have an additional duty to register the information described in subsection (a) of this section with the local law enforcement agency in the city or town where the primary campus of the institution of higher education at which the person is enrolled, employed, or carrying on a vocation is located for the period of time they are enrolled at, employed at or carrying on a vocation at the institution of higher education.

(d) If a person is registered as a sex offender in another jurisdiction for an offense which, if committed within the jurisdiction of this state, would require the person to register as a sex offender, then that person, upon moving to or returning to this state, shall register as a sex offender in the same manner as if the offense were committed within Rhode Island.

(e) **Registration information.** In addition to the requirements of subsections (a) through (d) of this section, the person required to register under this section shall provide the local law enforcement agency the following information:

(1) Relating to the person's name:

(i) The person's full primary given or legal name;

(ii) Any and all names the person has used in the past, valid or otherwise; and

(iii) Any and all nicknames, aliases, and pseudonyms regardless of the context in which they are used.

(2) Relating to the person's date of birth:

(i) The person's actual date of birth; and

(ii) Any other date of birth used by the person.

(3) Relating to the person's social security number:

(i) A valid social security number for the person; and

(ii) Any social security number the person has used in the past, valid or otherwise.

(4) A current digitized photograph of the person.

(5) An accurate description of the person as follows:

(i) A general description of the person's physical appearance or characteristics; and

(ii) Any identifying marks, such as, but not limited to, scars, moles, birthmarks, or tattoos.

(6) A photocopy of all of the person's valid driver's licenses issued by any jurisdiction.

(7) A photocopy of all of the identification cards issued to the person.

(8) A photocopy of any passports issued to the person.

(9) Relating to the person's residence:

(i) The address of each residence at which the person resides or will reside;

(ii) Any location or description that identifies where the person habitually lives or sleeps regardless of whether it pertains to a permanent residence or location otherwise identifiable by a street or address; and

(iii) Whether the person is homeless.

(10) Any and all telephone numbers of the person.

(11) Relating to the person's internet-related activity:

(i) Any and all email addresses used by the person;

(ii) Any and all instant message addresses and identifiers;

(iii) Any and all other designations or monitors used for self-identification in internet communications or postings; and

(iv) Any and all designations used by the person for the purpose of routing or self-identification and internet communications or postings.

(12) Relating to all vehicles owned or operated by the person for work or personal use including land vehicles, aircraft, and watercraft:

(i) License plate numbers;

(ii) Registration numbers or identifiers;

(iii) General description of the vehicle to include color, make, model, and year; and

(iv) Any permanent or frequent location where any covered vehicle is kept.

(13) Relating to the person's employment, any and all places where the person is employed in any means including volunteer and unpaid positions:

(i) The name of the person's employer;

(ii) The address of the person's employer; and

(iii) Similar information related to any transient or day labor employment.

(14) All licensing information that authorizes the person to engage in an occupation or carry out a trade or business.

(15) Relating to the person's public or private educational institution:

- (i) The name of each public or private educational institution at which the person is or will be a student; and
- (ii) The address of each public or private educational institution where the person is or will be a student.

(16) Relating to the person's criminal history:

- (i) The date of all arrests;
- (ii) The date of all convictions;
- (iii) The person's status of parole, probation, or supervised release;
- (iv) The person's registration status; and
- (v) Any outstanding arrest warrants.

(17) The fingerprints and palm prints of the person in a digitized format that shall be submitted to the FBI Central Database, Next Generation Identification Program.

(18) If the person's DNA is not already contained in the Combined DNA Index System (CODIS), the person shall provide a sample of his or her DNA. Any DNA sample obtained from a person shall be submitted to an appropriate lab for analysis and entry of the resulting DNA profile into CODIS.

(19) The text of each provision of law defining the criminal offense(s) for which the person is registered.

(20) When the person will be absent from his/her residence for seven (7) days or more:

- (i) Identifying information of the temporary lodging locations including addresses and names; and
- (ii) The dates the person will be staying at each temporary lodging location.

(21) If the person will be traveling outside of the United States, the person must notify the local law enforcement agency at least twenty-one (21) days in advance of the travel date and provide any necessary information regarding his or her international travel in accordance with § 11-37.1-9(g).

(22) A signed copy of the person's notice of registration and notification obligations as provided in § 11-37.1-5(b)(6).

(23) The local law enforcement agency and the designated state law enforcement agency shall maintain all information obtained under this chapter in a digitized format.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 255, § 1; P.L. 2002, ch. 330, § 1; P.L. 2005, ch. 410, § 7; P.L. 2006, ch. 370, § 1, eff. July 7, 2006; P.L. 2006, ch. 440, § 1, eff. July 7, 2006; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-3, RI ST § 11-37.1-3

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Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-4

§ 11-37.1-4. Duration of registration--Frequency of registration

Currentness

(a) **Annual registration.** Any person required to register under § 11-37.1-3(a)(1) or (2) shall annually register with the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register resides for a period of ten (10) years from the expiration of sentence for the offense and shall verify his or her address with the agency on a quarterly basis for the first two (2) years of the period unless the person has been determined to be a sexually violent predator in accordance with § 11-37.1-6 or unless the person is required to register for the life of that person in accordance with the provisions of subsection (c) of this section.

(b) **Sexually violent predators.** Any person who has been determined to be a sexually violent predator in accordance with the provisions of § 11-37.1-6 shall be required to annually register in person with the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register resides for the life of that person and to verify his or her address on a quarterly basis for the life of that person.

(c) **Recidivists and aggravated crime offenders.** Any person required to register under § 11-37.1-3 and who has one or more prior convictions for any offense described in § 11-37.1-2 or has been convicted of an aggravated offense as defined in § 11-37.1-2 shall annually register in person with the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register resides for the life of that person and to verify his or her address on a quarterly basis for the life of that person.

(d) **Nonresident workers and students.** Any nonresident person required to register pursuant to § 11-37.1-3(b)(1) or (2) shall annually register in person with the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register is employed or attends a public or private educational institution for the period of time that the person is employed in Rhode Island or is attending a public or private educational institution in Rhode Island.

(e) **Initial registration; Incarcerated individuals.** All persons required to register under this chapter who are sentenced to a period of confinement shall perform their initial registration by appearing in person at the local law enforcement agency in the city or town in which the person intends to reside within twenty-four (24) hours of their release from confinement.

(f) **Initial registration; Non-incarcerated individuals.** All persons required to register under this chapter who are convicted in Rhode Island and who are not sentenced to serve a term of incarceration or confinement shall perform their initial registration by appearing in person at the local law enforcement agency in the city or town in which the person intends to reside within twenty-four (24) hours of being sentenced.

(g) **Initial registration; Individuals relocating to Rhode Island.** All persons required to register under this chapter who are moving their residence to Rhode Island from another jurisdiction shall perform their initial registration by appearing in person at the local law enforcement agency in the city or town in which the person intends to reside within twenty-four (24) hours of their arrival in Rhode Island.

(h) **Initial registration; Nonresident workers and students.** All nonresident workers or students who are required to register under this chapter shall perform their initial registration by appearing in person at the local law enforcement agency in the city or town in which the person is employed or is attending a public or private educational institution within twenty-four (24) hours of their first day of their personal attendance at their place of employment or a public or private educational institution.

(i) **Tolling provision.** Where, during the period in which any person is required to register, a person required to register under this chapter is incarcerated or re-incarcerated for any offense or is civilly committed, the person's registration requirements shall be tolled during the subsequent incarceration, re-incarceration or commitment.

(j) **Juveniles.** Any juvenile having the duty to register under subsections (b) and (c) of this section shall be required to annually register in person with the local law enforcement agency having jurisdiction over the city or town in which the juvenile having the duty to register resides for fifteen (15) years subsequent to the date of release from confinement or placement in the community or probation for such offense or offenses and to verify his or her address on a quarterly basis for said fifteen (15) years. However, if a juvenile is adjudicated delinquent under § 11-37-8.1 or 11-37-8.3, the court shall assess the totality of the circumstances of the offense and if the court makes a finding that the conduct of the parties is criminal only because of the age of the victim, the court may have discretion to order the juvenile to register as a sex offender as long as the court deems it appropriate to protect the community and to rehabilitate the juvenile offender. Registration shall be subject to the provisions of this chapter.

(k) **Annual registration for federal, foreign, or military offenses.** Any person who is required to register under this chapter due to a conviction of a federal offense, a foreign offense, or a military offense shall register for the duration and frequency in the same manner as if the offense were committed within Rhode Island.

(l) **Homeless persons.** In addition to the other requirements of this section, a person who is required to register under this chapter and is homeless shall verify their presence in the community with the local law enforcement agency where they are required to register three (3) times a week for the duration of their being homeless.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1997, ch. 156, § 1; P.L. 1999, ch. 255, § 1; P.L. 2000, ch. 358, § 1; P.L. 2000, ch. 462, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-4, RI ST § 11-37.1-4

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-5

§ 11-37.1-5. Registration requirement upon release, parole, or probation

Currentness

(a)(1) **Duty of state officials.** If a person who is required to register under this chapter is released from prison, including those placed on parole, then the official in charge of the place of confinement or his or her designee shall comply with the provisions of subsection (b) of this section;

(2) [Deleted by P.L. 2018, ch. 157, § 1 and P.L. 2018, ch. 259, § 1];

(3) If a person who is required to register under this chapter is released on probation or placed on home confinement, then the assistant administrator or the division of probation shall comply with the provisions of subsection (b) of this section;

(4) If a person who is required to register under this chapter is released from a juvenile correctional facility, either outright or on some form of supervised release, then the person in charge of the institution shall comply with the provisions of subsection (b) of this section;

(5) If a person who is required to register under this chapter is placed on juvenile probation, then the person in charge of the program shall comply with the provisions of subsection (b) of this section; or

(6) If a person who is required to register under this chapter has moved into this state under the provisions of an interstate compact providing for supervision of the terms of his or her release by agents of this state, then the administrator of the interstate compact shall comply with the provisions of subsection (b) of this section.

(b) **Notification of registration requirements.** The person designated with the responsibility for the notification requirements of this chapter shall, prior to the release of any person required to register under this chapter:

(1) Inform the person of the duty to register and obtain the information required for registration under subsection (c) of this section;

(2) Inform the person that if the person changes his or her residence address, the person shall give the new address to the designated state law enforcement agency in writing within twenty-four (24) hours;

- (3) Inform the person that if the person changes residence to another jurisdiction, the person shall register the new address with the law enforcement agency with whom the person last registered, and the person is also required to register with a designated law enforcement agency in the new jurisdiction in accordance with the new jurisdiction's sex offender registration statute;
 - (4) Inform the person that if the person works or attends a public or private educational institution in another jurisdiction in which he or she does not reside, the person shall register his or her employment address or address of the educational institution he or she attends as required by the other jurisdiction;
 - (5) Obtain fingerprints and a photograph of the person if these have not already been obtained in connection with the offense that triggers registration; and
 - (6) Require the person to read and sign a form approved by the attorney general stating that the duty of the person to register under this section has been explained.
- (c) **Registration information.** In addition to the requirements of subsection (b) of this section, for a person required to register under § 11-37.1-3, then the person responsible for the notification required under subsection (b) of this section shall obtain the following information in a digitized format:
- (1) Relating to the person's name:
 - (i) The person's full primary given or legal name;
 - (ii) Any and all names the person has used in the past, valid or otherwise; and
 - (iii) Any and all nicknames, aliases, and pseudonyms regardless of the context in which they are used.
 - (2) Relating to the person's date of birth:
 - (i) The person's actual date of birth; and
 - (ii) Any other date of birth used by the person.
 - (3) Relating to the person's social security number:
 - (i) A valid social security number for the person; and
 - (ii) Any social security number the person has used in the past, valid or otherwise.

(4) A current digitized photograph of the person.

(5) An accurate description of the person as follows:

(i) A general description of the person's physical appearance or characteristics; and

(ii) Any identifying marks, such as, but not limited to, scars, moles, birthmarks, or tattoos.

(6) Relating to the person's residence:

(i) The address of each residence at which the person resides or will reside; and

(ii) Whether the person is homeless.

(7) Any and all telephone numbers of the person.

(8) A signed copy of the person's notice of registration and notification obligations as provided in subsection (b)(6).

(d) For purposes of subsection (c) of this section, the provisions of chapter 37.3 of title 5 pertaining to healthcare privileges, the provisions of § 9-17-24 pertaining to the privilege of witnesses, or the provisions of § 42-72-8 pertaining to confidentiality of records of the department of children, youth and families, shall not be effective so as to prevent the transfer of information or the testimony of any person possessing any information required by this subsection. Any information so obtained may be transferred to the sex offender board of review and may be used by them in making a determination of whether or not the person is a sexually violent predator or in determining the level of notification under § 11-37.1-12. The information may also be used by the sentencing court or by any court reviewing the level of notification determined by the sex offender board of review or reviewing any conviction or sentence which requires registration under this chapter. Provided, information so obtained shall not be admissible in any other judicial proceeding against the subject of the information except to determine a person's status as a sexually violent predator or to determine or review the level of notification to the community which has been made by a court or the sex offender board of review. Provided, further, that this subsection shall not be applicable to any person for whom an appeal is pending for which a final judgment of conviction has not been entered, until the time that a final conviction has been entered.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1997, ch. 326, § 35; P.L. 1999, ch. 255, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-5, RI ST § 11-37.1-5

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Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-6

§ 11-37.1-6. Community notification

Currentness

(1)(a) Sex Offender Board of Review. The governor shall appoint eight (8) persons including experts in the field of the behavior and treatment of sexual offenders by reason of training and experience, victim's rights advocates, and law enforcement representatives to the sex offender board of review. At least one member of the sex offender board of review shall be a qualified child/adolescent sex offender treatment specialist. These persons shall serve at the pleasure of the governor or until their successor has been duly qualified and appointed.

(b) Duties of the board. Upon passage of this legislation, the sex offender board of review will utilize a validated risk assessment instrument where available and other material approved by the parole board to determine the level of risk an offender poses to the community and to assist the sentencing court in determining if that person is a sexually violent predator. If the offender is a juvenile, the Department of Children, Youth and Families shall select and administer a risk instrument appropriate for juveniles and shall submit the results to the sex offender board of review. In cases where an accepted validated risk assessment instrument does not exist, the sex offender board of review shall use a structured professional judgment (SPJ) approach, in which the board shall evaluate the presence or absence of commonly employed risk variables (both static and dynamic), together with all other information available to the board, to make a determination concerning the level of risk.

(c) Duties of other state agencies. Six (6) months prior to release of any person having a duty to register under § 11-37.1-3, or upon sentencing of a person having a duty to register under § 11-37.1-3, if the offender is not incarcerated, the agency having supervisory responsibility and the Interstate Compact Unit of the Rhode Island department of corrections upon acceptance of supervision of a sexual offender from the sending jurisdiction shall refer the person to the sex offender board of review, together with any reports and documentation that may be helpful to the board, for a determination as to the level of risk an offender poses to the community and to assist the sentencing court in determining if that person is a sexually violent predator.

(2)(i) The board shall within thirty (30) days of a referral of a person shall conduct the validated risk assessment, review other material provided by the agency having supervisory responsibility and assign a risk of re-offense level to the offender. In addition, the board may find that, based on the assessment score and other material, that the person may possess a mental abnormality or personality disorder that makes the person likely to engage in sexually violent predatory offenses. In these cases, the committee shall ask the parole board psychiatrist or if the offender is a juvenile, a DCYF psychiatrist to conduct a sex offender evaluation to determine if the offender possesses a mental abnormality or personality disorder that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

(ii) Upon receipt of a sex offender evaluation that suggests there is sufficient evidence and documentation to suggest that a person may be a sexually violent predator, the sex offender board of review shall forward a report to the attorney general for consideration by the court.

(iii) Upon receipt of a report from the attorney general, the court, after notice to the offender and his or her counsel, shall upon consideration of the report and other materials, make a determination as to whether or not a person is a sexually violent predator.

(iv) Effect of determination. In the event that a determination is made by the court that a person is a sexually violent predator, that person shall be required to register and verify his or her address in accordance with §§ 11-37.1-3, 11-37.1-4 and 11-37.1-8(b).

(3) No cause of action or liability shall arise or exist against the committee or any member or agent of the board as a result of the failure of the board to make any findings required by this section within the time period specified by subsection (2) of this section.

(4) Notwithstanding any other provision of law, the board shall have access to all relevant records and information in the possession of any state official or agency having a duty under § 11-37.1-5(a)(1) through (6), relating to the juvenile and adult offenders under review by the board, including, but not limited to, police reports; prosecutor's statements of probable cause, presentence investigations and reports, complete judgments and sentences, current classification referrals, juvenile and adult criminal history records, violation and disciplinary reports, all psychological evaluations and psychiatric evaluations, psychiatric hospital records, sex offender evaluations and treatment reports, substance abuse evaluations and treatment reports to the extent allowed by federal law. Records and information obtained by the board of review under this subsection shall remain confidential, provided that the board of review may disclose the records and information to the sentencing court in accordance with the provisions of this chapter.

(5) Duties of the director of the department of corrections/director of the department of children, youth and families. Not less than sixty (60) days prior to release of any person subject to this chapter, the director of the department of corrections or, in the event the person is a juvenile, the director of the department of children, youth and families, or their respective designees, shall seek verification that the duties of the sex offender board of review and any other state agency have been fulfilled as specified in § 11-37.1-6 et seq. In the event that the director of the department of corrections or, in the event the person is a juvenile, the director of the department of children, youth and families, cannot obtain verification, he or she shall, no less than thirty (30) days prior to the release of a person subject to this chapter, file with the presiding judge of the superior court or, in the case of a juvenile, the chief judge of the family court, a petition in the nature of mandamus, seeking compliance with this chapter. The court shall promptly, but no less than ten (10) days from the filing of the petition, hold a hearing on the petition. The court may, in its discretion, enter any orders consistent with this chapter to compel compliance, however, the court may not delay the release of any person subject to this chapter for the failure of the sex offender board of review or any state agency to fulfill its obligations under this chapter.

Credits

P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2006, ch. 206, § 4, eff. June 28, 2006; P.L. 2006, ch. 207, § 4, eff. June 28, 2006; P.L. 2008, ch. 191, § 1, eff. July 2, 2008; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019; P.L. 2024, ch. 45, § 1, eff. June 4, 2024; P.L. 2024, ch. 56, § 1, eff. June 4, 2024.

Gen. Laws, 1956, § 11-37.1-6, RI ST § 11-37.1-6

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-7

§ 11-37.1-7. Transfer of information to designated state law enforcement agency

Currentness

(a) The person required to provide notice in accordance with § 11-37.1-5(b) and the local law enforcement agencies required to register persons who have a duty to register in accordance with § 11-37.1-4 and receive changes in the person's registration information under § 11-37.1-9, shall immediately forward it to the designated state law enforcement agency. The designated state law enforcement agency shall immediately enter the information into the appropriate state law enforcement record system.

(b) Whenever a person required to be registered under this chapter initially registers or updates his or her information, the designated state law enforcement agency shall immediately notify:

- (1) Any jurisdiction where the person is registered or is required to register due to the person's residency, public or private educational institution attendance, or employment;
- (2) All jurisdictions where a person was required to register prior to the updated information being given;
- (3) All jurisdictions where a person intends to reside, work, or attend a public or private educational institution;
- (4) The Federal Bureau of Investigation or other federal agencies as designated by the Attorney General of the United States in order that the information may be updated on the National Sex Offender Registry or other relevant databases;
- (5) If the person intends to commence residency, attend a public or private educational institution, or commence employment outside of the United States, the United States Marshals Service;
- (6) Any agency, department, or program within the state that is responsible for criminal investigation, prosecution, child welfare, or sex offender supervision functions; and
- (7) National Child Protection Act agencies, which includes any agency responsible for conducting employment-related background checks under section 3 of the National Child Protection Act of 1993, 42 U.S.C. § 5119a.

(c) The designated state law enforcement agency shall ensure there is an automated community notification process in place that ensures the following:

- (1) Upon a person's initial registration or update of information, the state's public sex offender registry website is immediately updated; and
- (2) The state's public sex offender registry has a function that enables the general public to request an email notice that will notify them when a person commences residence, employment, or a public or private educational institution attendance with the state, within a specified zip code, or within a certain geographic radius. This email notice shall include the person's identity so that the public can access the public registry for the new information.
- (d) The notification requirements of subsections (b)(7) and (c) do not apply to persons who were adjudicated delinquent of an offense requiring registration or a person tiered as a level 1 sex offender.
- (e) Notwithstanding the aforementioned notification requirements, the designated state law enforcement agency and local law enforcement agencies where the person resides, is employed, or attends a public or private educational institution, may utilize other forms of community notification consistent with the provisions and intent of this chapter.
- (f) In the event a person required to register under this chapter fails to register or fails to verify or update his or her registration information, the local law enforcement agency shall immediately inform the local law enforcement agency of the city or town where the person resides, is employed, or attends a public or private educational institution; the jurisdiction that provided notification that the person was to commence residency, employment, or public or private educational institution attendance; and the designated state law enforcement agency that the person failed to appear for registration or failed to verify or update their registration information.
- (1) Upon notification by the designated state law enforcement agency, the local law enforcement agency where the person resides, is employed, or attends a public or private educational institution, shall:
- (i) Make an effort to determine if the person is actually residing, employed or attending a public or private educational institution within their city or town; and
 - (ii) Seek a warrant for the person's arrest for failing to register or verify or update his or her registration in compliance with this chapter. The U.S. Marshals Service or Federal Bureau of Investigation may be contacted in an attempt to obtain a federal warrant for the person's arrest.
 - (iii) The designated state law enforcement agency shall update the registry to reflect that the person is not in compliance with his or her duty to register.
- (g) If the designated state law enforcement agency receives information that a person has absconded or local law enforcement cannot determine whether the person is actually residing, employed, or attending a public or private educational institution in the city or town using the measures outlined in subsection (f) of this section, the designated state law enforcement agency, with the assistance of local law enforcement, shall make an effort to determine if the person has actually absconded.

(1) If the information indicating the possible absconding came through notice from another jurisdiction or federal authorities, they shall be informed that the person has failed to appear and register.

(2) If an absconded person cannot be located then the designated state law enforcement agency shall take the following steps:

(i) Update the registry to reflect the person has absconded or is otherwise not capable of being located;

(ii) Notify the local law enforcement agency where the person resides, is employed, or attends a public or private educational institution, so the local law enforcement agency can seek a warrant for the person's arrest.

(iii) Notify the U.S. Marshals Service or Federal Bureau of Investigation so they may attempt, if necessary, to obtain a federal warrant for the person's arrest;

(iv) Update the National Sex Offender Registry to reflect the sex offender's status as an absconder, or is otherwise not capable of being located; and

(v) Enter the person into the National Crime Information Center Wanted Person file.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 255, § 1; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-7, RI ST § 11-37.1-7

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-8

§ 11-37.1-8. Verification of address

Currentness

(a) For a person required to register under § 11-37.1-3(a)(1), (a)(2), (a)(6), (a)(7), (a)(8), or (a)(9) on each anniversary of the person's initial registration date during the period in which the person is required to register:

(1) The designated state law enforcement agency or local law enforcement agency shall mail a non-forwardable verification form to the last reported address of the person;

(2) The person shall mail the verification form to the designated state law enforcement agency or local law enforcement agency within ten (10) days after receipt of the form;

(3) The verification form shall be signed by the person, and state that the person still resides at the address last reported to the local law enforcement agency having jurisdiction over the city or town in which the person having the duty to register resides; and

(4) If the person fails to mail the verification form to the designated state law enforcement agency or local law enforcement agency within ten (10) days after receipt of the form, the person shall be in violation of this chapter unless the person proves that the person has not changed the residence address from that which he or she last registered.

(b) The provisions of subsections (a)(1) -- (a)(4) of this section shall apply to a person required to register under § 11-37.1-3(a) (3), (4), or (5), except that the registration address verification shall take place quarterly.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 255, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-8, RI ST § 11-37.1-8

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-9

§ 11-37.1-9. Notification of local law enforcement agencies of changes in address

Currentness

(a) **Duty of local law enforcement agency; interstate and intrastate moves.** For any person required to register under this chapter, the local law enforcement agency having jurisdiction where the person is residing, shall, if the person changes residence to another jurisdiction or within the state, notify the law enforcement agency with which the person must register in the new jurisdiction, or the city or town within the state, and notify the designated jurisdiction law enforcement agency. The designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7.

(b) **Duty of person required to register; interstate moves.** A person who has been convicted of an offense that required registration under this chapter shall register the new address with a designated state law enforcement agency in another jurisdiction to which the person moves in accordance with the new jurisdiction's sex offender registration statute. Prior to the change of residence to a new jurisdiction, the person shall notify the local law enforcement agency within this state with which the person is registered of the intended move and of the new address within the new jurisdiction. The local law enforcement agency shall notify the designated state law enforcement agency and the designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7.

(c) **Duty of law enforcement agency; changes of residence within the state.** For any person required to register under this chapter, the local law enforcement agency having jurisdiction where the person is residing, shall, if the person changes residence to another city or town in Rhode Island, notify the local law enforcement agency with which the person must register in the new city or town and notify the designated state law enforcement agency. The designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7.

(d) **Duty of person required to register; changes of residence within the state.** A person who has been convicted of an offense that requires registration under this chapter and who changes his or her residence address to another city or town in Rhode Island, shall notify the local law enforcement agency in the city or town from which the person is moving before the person establishes residence in the new location, and shall register with the local law enforcement agency in the city or town in which the person is moving not later than twenty-four (24) hours after the person establishes residence in the new city or town. A person who has been convicted of an offense that requires registration under this chapter and who changes his or her residence within a city or town in Rhode Island shall notify the local law enforcement agency in the city or town not later than twenty-four (24) hours after the person changes the residence within the city or town. The local law enforcement agency shall notify the designated state law enforcement agency and the designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7.

(e) **Duty of person required to register; changes in required registration information.** A person who has been convicted of an offense that requires registration under this chapter shall immediately notify the local law enforcement agency having jurisdiction where the person is residing, is employed, or attending a public or private educational institution of any changes to

his or her required registration information as provided in § 11-37.1-3(e). The local law enforcement agency having jurisdiction shall also notify the designated state law enforcement agency. The designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7.

(f) In the event of a change in temporary lodging, the person who have been convicted of an offense that requires registration under this chapter and the local law enforcement agency shall immediately notify the jurisdiction in which the person will be temporarily staying. The local law enforcement agency having jurisdiction shall also notify the designated state law enforcement agency who shall provide immediate notice as provided under § 11-37.1-7.

(g) In the event the person who has been convicted of an offense that requires registration under this chapter will be traveling outside of the United States, the person must notify the local law enforcement agency at least twenty-one (21) days in advance of the travel date and provide any necessary information regarding his or her international travel. The local law enforcement agency having jurisdiction shall also notify the designated state law enforcement agency. The designated state law enforcement agency shall provide immediate notice as provided under § 11-37.1-7. Upon notification of a person's intention to travel internationally, the designated state law enforcement agency shall immediately notify and provide the person's travel information to the United States Marshals Service.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 255, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2008, ch. 155, § 1, eff. July 1, 2008; P.L. 2008, ch. 191, § 1, eff. July 2, 2008; P.L. 2008, ch. 202, § 1, eff. July 2, 2008; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-9, RI ST § 11-37.1-9

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-10

§ 11-37.1-10. Penalties

Currentness

(a) Any person who is required to register or verify his or her address or give notice of a change of address or residence who knowingly fails to do so shall be guilty of a felony and, upon conviction, be imprisoned not more than ten (10) years, or fined not more than ten thousand dollars (\$10,000), or both.

(b) Any person who is required to register or verify his or her address or give notice of a change of address or residence who knowingly fails to do so shall be in violation of the terms of his or her release, regardless of whether or not the term was a special condition of his or her release on probation, parole, home confinement or other form of supervised release.

(c) Except in the case of a level-three (3) sex offender, any person who is required to register or verify his or her address, who knowingly resides within three hundred feet (300') of any school as defined in § 11-37.1-2, which distance shall be measured from the nearest boundary line of the real property supporting the residence of the person to the nearest boundary line of the real property that supports or upon which there exists a school shall be guilty of a felony and, upon conviction, may be imprisoned not more than five (5) years, or fined not more than five thousand dollars (\$5,000), or both.

(d) Any level-three (3) sex offender who knowingly resides within one thousand feet (1,000') of any school as defined in § 11-37.1-2, which distance shall be measured from the nearest boundary line of the real property supporting the residence of the person to the nearest boundary line of the real property that supports or upon which there exists a school shall be guilty of a felony and, upon conviction, may be imprisoned for not more than five (5) years, or fined not more than five thousand dollars (\$5,000), or both.

Credits

P.L. 1996, ch. 104, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2008, ch. 155, § 1, eff. July 1, 2008; P.L. 2008, ch. 189, § 1, eff. July 2, 2008; P.L. 2008, ch. 202, § 1, eff. July 2, 2008; P.L. 2015, ch. 219, § 1, eff. July 10, 2015; P.L. 2015, ch. 240, § 1, eff. July 10, 2015; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-10, RI ST § 11-37.1-10

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-11

§ 11-37.1-11. Release of information

Currentness

(a) Except as otherwise provided by this chapter or as provided in subsection (b) or (c) of this section, no information obtained under this chapter shall be released or transferred without the written consent of the person or his or her authorized representative.

(b) No consent for release or transfer of information obtained under this chapter shall be required in the following instances:

(1) Information may be disclosed to law enforcement agencies for law enforcement purposes;

(2) Information may be disclosed to government agencies conducting confidential background checks;

(3) The designated state law enforcement agency and any local law enforcement agency authorized by the state agency may release relevant information that is necessary to protect individuals concerning a specific person required to register under this chapter, except that the identity of a victim of an offense that requires registration under this section shall not be released;

(4) Information may be released or disseminated in accordance with the provisions of § 11-37.1-12;

(5) Information shall be disclosed by the local police department to the general public in a city or town for those registered offenders determined to be either a level 2 or level 3 offender as determined consistent with parole board guidelines; and

(6) Information shall be disclosed by the local police department to the local school department for those registered offenders determined to be level 3 offenders by the parole board for the purposes of notifying parents of students whose school bus stop is within one thousand feet (1,000') of a level 3 sex offender's residence, which distance shall be measured from the nearest boundary line of the real property supporting the residence of the level 3 sex offender to the school bus stop.

(c) Any local law enforcement agency shall release relevant information collected pursuant to § 11-37.1-3(c) to any campus police agency appointed pursuant to § 16-52-2 or police for private institutions appointed pursuant to § 12-2.1-1 for any person having a duty to register who is enrolled in, employed by, or carrying on a vocation at an institution of higher education. That agency may release relevant information that is necessary to protect individuals concerning a specific person required to register under this chapter, except that the identity of a victim of an offense that requires registration under this section shall not be released.

Credits

P.L. 1996, ch. 104, § 1; P.L. 2002, ch. 330, § 1; P.L. 2005, ch. 80, § 1; P.L. 2017, ch. 339, § 1, eff. Sept. 28, 2017; P.L. 2017, ch. 348, § 1, eff. Sept. 28, 2017; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

Gen. Laws, 1956, § 11-37.1-11, RI ST § 11-37.1-11

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Gen.Laws 1956, § 11-37.1-12

§ 11-37.1-12. Rules and regulations for community notification

Currentness

(a) The parole board shall promulgate guidelines and procedures for notification required pursuant to the provisions of this section.

(b) The regulations shall provide for three (3) levels of notification depending upon the risk of re-offense level of the sex offender determined by the sex offender board of review as outlined in § 11-37.1-6(1)(b):

(1) If risk of re-offense is low, law enforcement agencies and any individuals identified in accordance with the parole board guidelines shall be notified;

(2) If risk of re-offense is moderate, organizations in the community likely to encounter the person registered shall be notified in accordance with the parole board's guidelines, in addition to the notice required by subsection (b)(1);

(3) If risk of re-offense is high, the members of the public likely to encounter the person registered shall be notified through means in accordance with the parole board's guidelines designed to reach members of the public likely to encounter the person registered, in addition to the notice required by subsections (b)(1) and (b)(2).

(4) The designated state law enforcement agency is authorized and directed to utilize the Rhode Island state police website and the Rhode Island unified court system website for the public release of identifying information of level two and level three sex offenders who have been convicted, provided that no identifying information of a juvenile shall be listed on the website.

(i) The website shall have the capability of conducting searches by name, county, city, and town; and zip code and/or geographic radius.

(ii) The website shall include:

(A) Links to sex offender safety and education resources;

(B) Instructions on how a person can seek correction of information that the individual contends is erroneous;

(C) A warning that the information contained on the website should not be used to unlawfully injure, harass, or commit a crime against any individual named in the registry or residing or working at any reported addresses and that any such action could result in civil or criminal penalties; and

(D) All field search capabilities needed for full participation in the Dru Sjodin National Sex Offender Public website and shall participate in that website as provided by the attorney general of the United States.

(iii) The following information regarding the person required to register under this chapter shall be made available to the public on the website:

(A) Notice that the person is in violation of his or her registration requirements or cannot be located if the person has absconded;

(B) All offenses that require registration under this chapter for which the person has been convicted;

(C) The offense(s) for which the person is currently registered;

(D) The name of the person, including all aliases;

(E) A current photograph of the person;

(F) A physical description of the person; and

(G) The person's residential addresses and, if relevant, a description of a location where the person habitually lives or sleeps, and if the person is homeless;

(H) The following information shall not be available to the public on the sex offender registry website:

(I) Any arrest that did not result in conviction;

(II) The person's social security number;

(III) Any travel documents;

(IV) The identity of the victim;

(V) Internet identifiers (as defined in 42 U.S.C. § 16911); and

(VI) Any information of a person who was adjudicated delinquent of an offense requiring registration.

(iv) For persons who are under a witness protection program, the designated state law enforcement agency may honor the request of the United States Marshals Service or other agency responsible for witness protection by not including the original identity of the person on the publicly accessible sex offender registry website.

(5) Notwithstanding any other provision of law, the sex offender review board shall have access to all relevant records and information in the possession of any state official or agency having a duty under § 11-37.1-5(a)(1) through (6) relating to juvenile and adult offenders under review by the sex offender review board, including, but not limited to: police reports; prosecutors statements of probable cause; pre-sentence investigations and reports; complete judgments and sentences; current classification referrals; juvenile and adult criminal history records; violation and disciplinary reports; all psychological evaluations and psychiatric evaluations; psychiatric hospital records; sex offender evaluations and treatment reports; and substance abuse evaluations and treatment reports to the extent allowed by federal law. Records and information obtained by the sex offender review board under this subsection shall remain confidential, provided that the parole board may disclose the records and information to the board of review, the sentencing court, and law enforcement agencies in accordance with the provisions of this chapter.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 255, § 1; P.L. 2000, ch. 360, § 1; P.L. 2001, ch. 180, § 8; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2005, ch. 80, § 1; P.L. 2008, ch. 155, § 1, eff. July 1, 2008; P.L. 2008, ch. 202, § 1, eff. July 2, 2008; P.L. 2018, ch. 157, § 1, eff. July 1, 2020; P.L. 2018, ch. 259, § 1, eff. July 1, 2020; P.L. 2019, ch. 28, §§ 1, 2, eff. June 21, 2019; P.L. 2019, ch. 31, §§ 1, 2, eff. June 21, 2019.

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-13

§ 11-37.1-13. Notification procedures for tiers two (2) and three (3)

Currentness

If after review of the evidence pertaining to a person required to register according to the criteria set forth in § 11-37.1-12, the board is satisfied that risk of re-offense by the person required to register is either moderate or high, the sex offender community notification unit of the parole board shall notify the person, in writing, by letter or other documentation:

(1) That community notification will be made not less than ten (10) business days from the date of the letter or other document evidencing an intent to promulgate a community notice in accordance with § 11-37.1-12(b), together with the level, form and nature that the notification will take;

(2) That unless an application for review of the action is filed within the time specified by the letter or other documentation, which in any case shall not be less than ten (10) business days, by the adult offender subject to community notification, with the criminal calendar judge of the superior court for the county in which the adult offender who is the subject of notification resides or intends to reside upon release, or by the juvenile offender subject to community notification over whom the family court exercises jurisdiction, with the clerk of the family court for the county in which the juvenile offender resides or intends to reside upon release, whose name shall be specified in the letter or other document, requesting a review of the determination to promulgate a community notification, that notification will take place;

(3) That the person has a right to be represented by counsel of their own choosing or by an attorney appointed by the court, if the court determines that he or she cannot afford counsel; and

(4) That the filing of an application for review may be accomplished, in the absence of counsel, by delivering a letter objecting to the notification and/or its level, form or nature, together with a copy of the letter or other documentation describing the proposed community notification, addressed to the judge described in the communication to the clerk of the superior court in the county in which the adult offender resides or intends to reside upon release, or in the case of juvenile offenders over whom the family court exercises jurisdiction, addressed to the judge described in the communication to the clerk of the family court in the county in which the juvenile offender resides or intends to reside upon release.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 40, § 1; P.L. 1999, ch. 227, § 1; P.L. 1999, ch. 255, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2005, ch. 410, § 7; P.L. 2010, ch. 103, § 1, eff. June 22, 2010; P.L. 2010, ch. 109, § 1, eff. June 22, 2010.

Gen. Laws, 1956, § 11-37.1-13, RI ST § 11-37.1-13

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Gen.Laws 1956, § 11-37.1-14

§ 11-37.1-14. Preliminary proceedings on objection to community notification--Procedures

Currentness

Upon receipt of a request from a person subject to community notification under § 11-37.1-12(b), the superior court, or the family court of the county in which the person resides or intends to reside upon release, shall:

- (1) Set a date for hearing and decision on the matter;
- (2) Provide notice of the date for the hearing to both the applicant or his or her counsel and to the attorney general;
- (3) Appoint counsel for the applicant if he or she cannot afford one; and
- (4) Direct that the attorney general promptly provide copies of all papers, documents and other materials which formed the basis for the determination of the level and manner of community notification be provided to the court and the applicant or his or her counsel.

Credits

P.L. 1996, ch. 104, § 1; P.L. 1999, ch. 40, § 1; P.L. 1999, ch. 227, § 1; P.L. 1999, ch. 255, § 1; P.L. 2005, ch. 410, § 7.

Gen. Laws, 1956, § 11-37.1-14, RI ST § 11-37.1-14

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-15

§ 11-37.1-15. Application hearing procedures

Currentness

(a) On the date set for the hearing on the review of the application the court shall:

(1) In camera, review the materials provided in accordance with § 11-37.1-14(4);

(2) Determine whether and to what extent the production of witnesses and cross examination shall be required or permitted depending on the complexities of the matter involved, the extent of doubt concerning the correctness of the level, nature and extent of the notification proposed; and

(3) Presume the need for a prompt determination.

(b) In any application hearing proceeding the rules of evidence shall not apply and the court may rely on documentary presentations, including expert opinion on all issues.

(c) Nothing in this section should be construed to allow the applicant to relitigate the adjudication of guilt.

Credits

P.L. 1996, ch. 104, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1.

Gen. Laws, 1956, § 11-37.1-15, RI ST § 11-37.1-15

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-16

§ 11-37.1-16. Application review--Burden of production and persuasion

Currentness

(a) In any proceeding under this chapter, the state shall have the burden of going forward, which burden shall be satisfied by the presentation of a prima facie case that justifies the proposed level of and manner of notification.

(b) For purposes of this section, “prima facie case” means:

(1) The sex offender board of review has engaged in a review and assessment of risk using materials approved by the parole board as provided by 11-37.1-6;

(2) Reasonable means have been used to collect the information used in the review and assessment.

(c) Upon presentation of a prima facie case, the court shall affirm the determination of the level and nature of the community notification, unless it is persuaded by a preponderance of the evidence that the determination on either the level of notification of the manner in which it is proposed to be accomplished is not in compliance with this chapter or the guidelines adopted pursuant to this chapter.

Nothing in this section shall be construed to prohibit the release of information pertaining to a person who has been convicted of any of the violations of any offense listed in § 11-37.1-2, so long as the information has been gathered or obtained through sources other than the registration process provided by this chapter. Provided further, that nothing in this section shall be deemed to authorize the release of any information pertaining to any victim of any offense listed in § 11-37.1-2.

Credits

P.L. 1996, ch. 104, § 1; P.L. 2003, ch. 162, § 1; P.L. 2003, ch. 170, § 1; P.L. 2024, ch. 45, § 1, eff. June 4, 2024; P.L. 2024, ch. 56, § 1, eff. June 4, 2024.

Gen. Laws, 1956, § 11-37.1-16, RI ST § 11-37.1-16

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-17

§ 11-37.1-17. Immunity for good faith conduct

Currentness

Any person who performs any act or fails to perform any act pursuant to this chapter shall have good faith immunity from any liability, civil or criminal, that might be incurred as a result of the performance of or the failure to perform any act pursuant to this chapter.

Credits

P.L. 1996, ch. 104, § 1.

Gen. Laws, 1956, § 11-37.1-17, RI ST § 11-37.1-17

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-18

§ 11-37.1-18. Continuation of prior duty to register

Currentness

Any person who pursuant to the provisions of former § 11-37-16 had a duty to register under that section after having been convicted of any violation of the provisions of chapter 37 of this title, or for a conviction in another state of first degree sexual assault which if committed in this state would constitute a violation of chapter 37 of this title, shall have the duty to register in accordance with the provisions of this chapter. Nothing in this section shall be construed to abrogate any duty to register which exists or existed under the provisions of former § 11-37-16.

Credits

P.L. 1996, ch. 104, § 1.

Gen. Laws, 1956, § 11-37.1-18, RI ST § 11-37.1-18

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West's General Laws of Rhode Island Annotated
Title 11. Criminal Offenses
Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-19

§ 11-37.1-19. Severability

Currentness

If any provision of this chapter or its application to any person or circumstance is held invalid or unconstitutional, the invalidity or unconstitutionality shall not affect other provisions or applications of this chapter which can be given effect without the invalid or unconstitutional provision or application, and to this end the provisions of this chapter are declared to be severable.

Credits

P.L. 1996, ch. 104, § 1.

Gen. Laws, 1956, § 11-37.1-19, RI ST § 11-37.1-19

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Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-20

§ 11-37.1-20. Remand to sex offender board of review

Currentness

Upon application by the attorney general or counsel for the sex offender, the court may remand any case pending adjudication of sexually violent predator status back to the sex offender board of review for further determination of sexually violent predator status and community notification level pursuant to § 11-37.1-6.

Credits

P.L. 2003, ch. 162, § 2; P.L. 2003, ch. 170, § 2.

Gen. Laws, 1956, § 11-37.1-20, RI ST § 11-37.1-20

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West's General Laws of Rhode Island Annotated

Title 11. Criminal Offenses

Chapter 37.1. Sexual Offender Registration and Community Notification

Gen.Laws 1956, § 11-37.1-21

§ 11-37.1-21. Duty of shelters and homeless shelters to notify law enforcement of the presence of sex offenders

Currentness

(a) If any person convicted of any offense that requires sex offender registration pursuant to this title, or otherwise has a duty to register his or her address with the law enforcement agency in the municipality in which they reside, is provided residence in any homeless shelter, that person shall be required to inform the shelter of his or her status and duty to register and to provide his or her name and date of birth to each shelter or homeless shelter where he or she resides overnight.

(b) The obligation of the sex offender to provide the information required in subsection (a) of this section, shall be on a continuing daily and nightly basis and he or she shall provide said information to each and every shelter or homeless shelter at which he or she takes up temporary residence regardless of the length of time he or she stays at such shelter.

(c) The homeless shelter that receives information from any sex offender shall be required to transmit that information to the local law enforcement agency and if there be none, to the closest Rhode Island state police barracks before midnight of that day of the offender registering or signing in for the day, night, or any portion of a day.

(d) Any homeless shelter that violates the provisions of this section shall upon a first violation, be fined a civil penalty of up to five hundred dollars (\$500); for a second violation, by a civil penalty of up to one thousand dollars (\$1,000); and for a third or subsequent violation, by a civil penalty of up to five thousand dollars (\$5,000).

(e) Jurisdiction over any violation by a homeless shelter shall be in the district court in the county in which the shelter is physically located.

(f) Any sex offender who fails to disclose information as required by this chapter shall be subject to the same penalties as set forth in § 11-37.1-10.

Credits

P.L. 2017, ch. 233, § 1, eff. July 18, 2017; P.L. 2017, ch. 325, § 1, eff. Sept. 27, 2017.

Gen. Laws, 1956, § 11-37.1-21, RI ST § 11-37.1-21

Current with effective legislation through Chapter 100 of the 2025 Regular Session of the Rhode Island Legislature.

Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry

Code 1976 T. 23, Ch. 3, Art. 7, Refs & Annos
Currentness

Code 1976 T. 23, Ch. 3, Art. 7, Refs & Annos, SC ST T. 23, Ch. 3, Art. 7, Refs & Annos
Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-400

§ 23-3-400. Purpose.

Currentness

The intent of this article is to promote the state's fundamental right to provide for the public health, welfare, and safety of its citizens. Notwithstanding this legitimate state purpose, these provisions are not intended to violate the guaranteed constitutional rights of those who have violated our nation's laws.

The sex offender registry will provide law enforcement with the tools needed in investigating criminal offenses. Statistics show that sex offenders often pose a high risk of re-offending. Additionally, law enforcement's efforts to protect communities, conduct investigations, and apprehend offenders who commit sex offenses are impaired by the lack of information about these convicted offenders who live within the law enforcement agency's jurisdiction.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1.

Code 1976 § 23-3-400, SC ST § 23-3-400

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-410

§ 23-3-410. Registry.

Currentness

(A) The registry is under the direction of the Chief of the State Law Enforcement Division (SLED) and shall contain information the chief considers necessary to assist law enforcement in the location of persons convicted of certain offenses. SLED shall develop and operate the registry to: collect, analyze, and maintain information; make information available to every enforcement agency in this State and in other states; and establish a security system to ensure that only authorized persons may gain access to information gathered under this article.

(B) SLED shall include and cross-reference alias names in the registry.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2005 Act No. 141, § 1.

Code 1976 § 23-3-410, SC ST § 23-3-410

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Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-420

§ 23-3-420. Promulgation of regulations.

Currentness

The State Law Enforcement Division shall promulgate regulations to implement the provisions of this article.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1.

Code 1976 § 23-3-420, SC ST § 23-3-420

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-430

§ 23-3-430. Sex offender registry.

Currentness

(A) Any person, regardless of age, residing in the State of South Carolina who in this State has been convicted of, pled guilty or nolo contendere to an offense described below, or who has been convicted, pled guilty or nolo contendere, or found not guilty by reason of insanity in any comparable court in the United States, or a foreign country, or who has been convicted, pled guilty or nolo contendere, or found not guilty by reason of insanity in the United States federal courts of a similar offense, or who has been convicted of, pled guilty or nolo contendere, or found not guilty by reason of insanity to an offense for which the person was required to register in the state where the conviction or plea occurred, shall be required to register pursuant to the provisions of this article. A person who has been found not guilty by reason of insanity shall not be required to register pursuant to the provisions of this article unless and until the person is declared to no longer be insane or is ordered to register by the trial judge. A person who has been convicted, pled guilty or nolo contendere, or found not guilty by reason of insanity in any court in a foreign country may raise as a defense to a prosecution for failure to register that the offense in the foreign country was not equivalent to any offense in this State for which he would be required to register and may raise as a defense that the conviction, plea, or finding in the foreign country was based on a proceeding or trial in which the person was not afforded the due process of law as guaranteed by the Constitution of the United States and this State.

(B) For purposes of this article, a person who remains in this State for a total of thirty days during a twelve-month period is a resident of this State.

(C)(1) For purposes of this article, a person who has been convicted of, or pled guilty or nolo contendere to any of the following offenses shall be referred to as a Tier I offender:

(a) criminal sexual conduct in the third degree (Section 16-3-654);

(b) kidnapping (Section 16-3-910) of a person eighteen years of age or older except when the court makes a finding on the record that the offense did not include a criminal sexual offense or an attempted criminal sexual offense;

(c) incest (Section 16-15-20);

(d) buggery (Section 16-15-120);

(e) peeping, voyeurism, or aggravated voyeurism (Section 16-17-470);

(f) a person, regardless of age, who has been convicted or pled guilty or nolo contendere in this State, or who has been convicted or pled guilty or nolo contendere in a comparable court in the United States, or who has been convicted or pled guilty or nolo contendere in the United States federal courts of indecent exposure or of a similar offense in other jurisdictions is required to register pursuant to the provisions of this article if the court makes a specific finding on the record that, based on the circumstances of the case, the convicted person should register as a sex offender;

(g) sexual intercourse with a patient or trainee (Section 44-23-1150);

(h) administering, distributing, dispensing, delivering, or aiding, abetting, attempting, or conspiring to administer, distribute, dispense, or deliver a controlled substance or gamma hydroxy butyrate to an individual with the intent to commit a crime listed in Section 44-53-370(f), except petit larceny or grand larceny;

(i) any other offense as described in Section 23-3-430(D);

(j) any other offense required by Title I of the federal Adam Walsh Child Protection and Safety Act of 2006 (Pub. L. 109-248), the Sex Offender Registration and Notification Act (SORNA);

(k) obscene visual representation of child sexual abuse (Section 16-15-390). If the person is under eighteen years of age and was adjudicated in the family court, then the adjudicated minor is not an offender and is not required to register pursuant to the provisions of this article;

(l) sexual exploitation of a minor, first degree (Section 16-15-395), provided the offense is related to a morphed image of an identifiable minor. If the offender is under eighteen years of age and the offense is related to a morphed image of an identifiable minor, then the adjudicated minor is not an offender and is not required to register pursuant to the provisions of this article;

(m) sexual exploitation of a minor, second degree (Section 16-15-405), provided the offense is related to a morphed image of an identifiable minor. If the offender is under eighteen years of age and the offense is related to a morphed image of an identifiable minor, then the adjudicated minor is not an offender and is not required to register pursuant to the provisions of this article; or

(n) sexual exploitation of a minor, third degree (Section 16-15-410); provided the offense is related to a morphed image of an identifiable minor. If the offender is under eighteen years of age and the offense is related to a morphed image of an identifiable minor, then the adjudicated minor is not an offender and is not required to register pursuant to the provisions of this article.

(2) For purposes of this article, a person who has been convicted of, or pled guilty or nolo contendere to any of the following offenses shall be referred to as a Tier II offender:

(a) criminal sexual conduct in the second degree (Section 16-3-653);

(b) engaging a child for sexual performance (Section 16-3-810);

(c) producing, directing, or promoting sexual performance by a child (Section 16-3-820);

(d) trafficking in persons (Section 16-3-2020) except when the court makes a finding on the record that the offense did not include a criminal sexual offense or an attempted criminal sexual offense;

(e) criminal sexual conduct with minors, second degree (Section 16-3-655(B)). If evidence is presented at the criminal proceeding, or in any court of competent jurisdiction, and the court makes a specific finding on the record that the conviction obtained for this offense resulted from consensual sexual conduct, as contained in Section 16-3-655(B)(2), provided the offender is eighteen years of age or less, or consensual sexual conduct between persons under sixteen years of age, the convicted person is not an offender and is not required to register pursuant to the provisions of this article;

(f) criminal sexual conduct with minors, third degree (Section 16-3-655(C)). If evidence is presented at the criminal proceeding, or in any court of competent jurisdiction, and the court makes a specific finding on the record that the conviction obtained for this offense resulted from consensual sexual conduct, as contained in Section 16-3-655(B)(2), provided the offender is eighteen years of age or less, or consensual sexual conduct between persons under sixteen years of age, the convicted person is not an offender and is not required to register pursuant to the provisions of this article;

(g) criminal solicitation of a minor if the purpose or intent of the solicitation or attempted solicitation was to:

(i) persuade, induce, entice, or coerce the person solicited to engage or participate in sexual activity as defined in Section 16-15-375(5);

(ii) perform a sexual activity in the presence of the person solicited (Section 16-15-342);

(h) violations of Article 3, Chapter 15, Title 16 involving a minor, except as otherwise provided in this article;

(i) sexual exploitation of a minor, first degree (Section 16-15-395), except as otherwise provided in this article;

(j) sexual exploitation of a minor, second degree (Section 16-15-405), except as otherwise provided in this article; or

(k) sexual exploitation of a minor, third degree (Section 16-15-410), except as otherwise provided in this article.

(3) For purposes of this article, a person who has been convicted of, or pled guilty or nolo contendere to any of the following offenses shall be referred to as a Tier III offender:

(a) criminal sexual conduct in the first degree (Section 16-3-652);

(b) criminal sexual conduct with minors, first degree (Section 16-3-655(A));

(c) criminal sexual conduct: assaults with intent to commit (Section 16-3-656);

(d) kidnapping (Section 16-3-910) of a person under eighteen years of age except when the offense is committed by a parent;

(e) criminal sexual conduct when the victim is a spouse (Section 16-3-658);

(f) sexual battery of a spouse (Section 16-3-615); or

(g) any offense listed or described in this section committed after the offender becomes a Tier I or Tier II offender.

(D) Upon conviction, guilty plea, or plea of nolo contendere of a person of an offense not listed in this article, the presiding judge may order as a condition of sentencing that the person be included in the sex offender registry if good cause is shown by the prosecution.

(E) SLED shall remove a person's name and any other information concerning that person from the sex offender registry immediately upon notification by the Attorney General that the person's adjudication, conviction, guilty plea, or plea of nolo contendere for an offense listed in subsection (C) was reversed, overturned, or vacated on appeal and a final judgment has been rendered.

(F) If an offender receives a pardon for the offense for which he was required to register, the offender must reregister as provided by Section 23-3-460 and may not be removed from the registry except:

(1) as provided by the provisions of subsection (E); or

(2) if the pardon is based on a finding of not guilty specifically stated in the pardon.

(G) If an offender files a petition for a writ of habeas corpus or a motion for a new trial pursuant to Rule 29(b), South Carolina Rules of Criminal Procedure, based on newly discovered evidence, the offender must reregister as provided by Section 23-3-460 and may not be removed from the registry except:

(1) as provided by the provisions of subsection (E); or

(2)(a) if the circuit court grants the offender's petition or motion and orders a new trial; and

(b) a verdict of acquittal is returned at the new trial or entered with the state's consent.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 1999 Act No. 74, § 1; 2000 Act No. 363, § 2; 2004 Act No. 208, § 14; 2005 Act No. 141, § 2; 2008 Act No. 335, § 16, eff June 16, 2008; 2010 Act No. 212, § 3, eff June 7, 2010; 2010 Act No. 289, § 8, eff June 11, 2010; 2012 Act No. 255, § 5, eff June 18, 2012; 2015 Act No. 7 (S.196), § 6.D, eff April 2, 2015; 2022 Act No. 221 (H.4075), § 1, eff May 23, 2022; 2025 Act No. 57 (S.28), § 2, eff May 22, 2025; 2025 Act No. 58 (S.29), §§ 6, 7, eff May 22, 2025.

Code 1976 § 23-3-430, SC ST § 23-3-430

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-436

§ 23-3-436. Registration of persons adjudicated delinquent.

Currentness

(A) A child who is fourteen years of age or older and who has been adjudicated delinquent by a family court in this State for any Tier III offense is required to register in accordance with this article.

(B) A child who is fourteen years of age or older and has been adjudicated delinquent of any other offense listed in Section 23-3-430(C) may be required, in the discretion of the family court, to register in accordance with this article. In making this determination, the court shall consider:

- (1) the likelihood the juvenile will reoffend, based on a psychosexual risk assessment and evaluation by a licensed clinical psychologist or licensed psychiatrist employed by the Department of Juvenile Justice. The Circuit Solicitor's Office, Attorney General's Office, or the juvenile also may have an independent psychosexual risk assessment evaluation by a licensed psychologist or psychiatrist;
- (2) the age of the juvenile at the time of the offense and adjudication;
- (3) mitigating factors;
- (4) aggravating factors including, but not limited to, age of victim, use of force, or use of weapons;
- (5) prior adjudications; and
- (6) other factors the court considers relevant.

(C) A child twelve years of age but less than fourteen years of age who has been adjudicated delinquent by a family court in this State for any Tier III offense may be required to register in the discretion of the Family Court.

- (1) In making the determination, the court must consider:

(a) the likelihood the person will reoffend, based on a psychosexual risk assessment and evaluation by a licensed clinical psychologist or licensed psychiatrist as ordered by the court. The Circuit Solicitor's Office, Attorney General's Office, or the juvenile also may have an independent psychosexual risk assessment evaluation by a licensed psychologist or psychiatrist;

(b) the age of the juvenile at the time of the offense and adjudication;

(c) mitigating factors;

(d) aggravating factors including, but not limited to, age of victim, use of force, or use of weapons;

(e) prior adjudications; and

(f) other factors the court considers relevant.

(D) A resident child who is adjudicated delinquent in any other state is required to register in this State subject to the requirements of the sentencing jurisdiction including duration of registration.

Credits

HISTORY: 2022 Act No. 221 (H.4075), § 2, eff May 23, 2022.

Code 1976 § 23-3-436, SC ST § 23-3-436

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-437

§ 23-3-437. Removal of certain juveniles from registry.

Currentness

A juvenile convicted of an offense in family court who is required to register pursuant to the provisions of this article who has his record expunged, sealed, or receives a pardon must be removed from the registry by SLED.

Credits

HISTORY: 2022 Act No. 221 (H.4075), § 9, eff May 23, 2022.

Code 1976 § 23-3-437, SC ST § 23-3-437

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Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-440

§ 23-3-440. Notification of sheriff of offender's release, probation or change of residence; juvenile offenders.

Currentness

(1) Before an offender's release from the Department of Corrections after completion of the term of imprisonment, from the Department of Juvenile Justice after completion of the term of confinement, or being placed on parole, SLED, based upon information provided by the Department of Corrections, the Department of Juvenile Justice, the Juvenile Parole Board, or the Department of Probation, Parole and Pardon Services, shall notify the sheriff of the county where the offender intends to reside that the offender is being released and has provided an address within the jurisdiction of the sheriff for that county. The Department of Corrections, the Department of Juvenile Justice, the Juvenile Parole Board, and the Department of Probation, Parole and Pardon Services shall provide verbal and written notification to the offender that he must register with the sheriff of the county in which he intends to reside within one business day of his release. Further, the Department of Corrections, the Department of Juvenile Justice, and the Juvenile Parole Board shall obtain descriptive information of the offender, including a current photograph prior to release. The offender's photograph must be provided to SLED before he is released.

(2) Based upon information provided by the Department of Probation, Parole and Pardon Services, SLED shall notify the sheriff of the county where an offender is residing when the offender is sentenced to probation or is a new resident of the State who must be supervised by the department. The Department of Probation, Parole and Pardon Services also shall provide verbal and written notification to the offender that he must register with the sheriff of the county in which he intends to reside. An offender who is sentenced to probation must register within one business day of sentencing. Further, the Department of Probation, Parole and Pardon Services shall obtain descriptive information of the offender, including a current photograph that is to be updated annually prior to expiration of the probation sentence.

(3) Based upon information provided by the Department of Juvenile Justice, or the Juvenile Parole Board SLED shall notify the sheriff of the county where an offender is residing when the offender is released from a Department of Juvenile Justice facility or the Juvenile Parole Board, or when the Department of Juvenile Justice or the Juvenile Parole Board is required to supervise the actions of the juvenile. The Department of Juvenile Justice or the Juvenile Parole Board must provide verbal and written notification to the juvenile and his parent, legal guardian, or custodian that the juvenile must register with the sheriff of the county in which the juvenile resides. The juvenile must register within one business day of his release. The parents or legal guardian of a person under seventeen years of age who is required to register under this chapter must ensure that the person has registered.

(4) The Department of Corrections, the Department of Probation, Parole and Pardon Services, and the Department of Juvenile Justice shall provide to SLED the initial registry information regarding the offender prior to his release from imprisonment or relief of supervision. This information shall be collected in the event the offender fails to register with his county sheriff.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2005 Act No. 141, § 3.

Code 1976 § 23-3-440, SC ST § 23-3-440

Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

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Code of Laws of South Carolina 1976 Annotated
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Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-450

§ 23-3-450. Offender registration with sheriff; sheriff's notification of local law enforcement agencies.

Currentness

The offender shall register with the sheriff of each county in which he resides, owns real property, is employed, or attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school, including, but not limited to, a secondary school, adult education school, college or university, and any vocational, technical, or occupational school. To register, the offender must provide information as prescribed by SLED. The sheriff in the county in which the offender resides, owns real property, is employed, or attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school shall forward all required registration information to SLED within three business days. A copy of this information must be kept by the sheriff's department. The county sheriff shall ensure that all information required by SLED is secured and shall establish specific times of the day during which an offender may register. An offender shall not be considered to have registered until all information prescribed by SLED has been provided to the sheriff. The sheriff in the county in which the offender resides, owns real property, is employed, or attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school shall notify all local law enforcement agencies, including college or university law enforcement agencies, within three business days of an offender who resides, owns real property, is employed, or attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school within the local law enforcement agency's jurisdiction.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2005 Act No. 141, § 4; 2010 Act No. 212, § 4, eff June 7, 2010.

Code 1976 § 23-3-450, SC ST § 23-3-450

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Code 1976 § 23-3-460

§ 23-3-460. Bi-annual registration for life; notifications.

Currentness

(A) A person required to register pursuant to this article is required to register biannually for life subject to the provisions of Section 23-3-462 and Section 23-3-463. For purposes of this article, “biannually” means each year during the month of his birthday and again during the sixth month following his birth month. The person required to register shall register and must reregister at the sheriff’s department in each county where he resides, owns real property, is employed, or attends any public or private school including, but not limited to, a secondary school, adult education school, college or university, and any vocational, technical, or occupational school. A person determined by a court to be a sexually violent predator pursuant to state law is required to verify registration and be photographed every ninety days by the sheriff’s department in the county in which he resides unless the person is committed to the custody of the State, and verification will be held in abeyance until his release.

(B) A person classified as a Tier III offender by Title I of the federal Adam Walsh Child Protection and Safety Act of 2006 (Pub. L. 109-248), the Sex Offender Registration and Notification Act (SORNA), is required to register every ninety days.

(C) If a person required to register pursuant to this article changes his address within the same county, that person must send written notice of the change of address to the sheriff within three business days of establishing the new residence. If a person required to register under this article owns or acquires real property or is employed within a county in this State, or attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school including, but not limited to, a secondary school, adult education school, college or university, and any vocational, technical, or occupational school, he must register with the sheriff in each county where the real property, employment, or the public or private school is located within three business days of acquiring the real property, beginning employment at any school, or attending the public or private school.

(D) If a person required to register pursuant to this article changes his permanent or temporary address into another county in South Carolina, the person must register with the county sheriff in the new county within three business days of establishing the new residence. The person also must provide written notice within three business days of the change of address in the previous county to the sheriff with whom the person last registered. For purposes of this subsection, “temporary address” or “residence” means the location of the individual’s home or other place where the person habitually lives or resides, or where the person lives or resides for a period of ten or more consecutive days. For purposes of this subsection, “habitually lives or resides” means locations at which the person lives with some regularity.

(E) A person required to register pursuant to this article and who is employed by, attends, is enrolled, volunteers, interns, or carries on a vocation at any public or private school, including, but not limited to, a kindergarten, elementary school, middle school or junior high, high school, secondary school, adult education school, college or university, and any vocational, technical, or occupational school, must provide written notice within three business days of each change in attendance, enrollment, volunteer status, intern status, employment, or vocation status at any public or private school in this State. For purposes of this

subsection, “employed and carries on a vocation” means employment that is full time or part time for a period of time exceeding fourteen days or for an aggregate period of time exceeding thirty days during a calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit; and “student” means a person who is enrolled on a full-time or part-time basis, in a public or private school, including, but not limited to, a kindergarten, elementary school, middle school or junior high, high school, secondary school, adult education school, college or university, and a vocational, technical, or occupational school.

(F) If a person required to register pursuant to this article moves outside of South Carolina, the person must provide written notice within three business days of the change of address to a new state to the county sheriff with whom the person last registered.

(G) A person required to register pursuant to this article who moves to South Carolina from another state establishes residence, acquires real property, is employed in, or attends, is enrolled, volunteers, interns, is employed by, or carries on a vocation at a public or private school, including, but not limited to, a kindergarten, elementary school, middle school or junior high, high school, secondary school, adult education school, college or university, and a vocational, technical, or occupational school in South Carolina, and is not under the jurisdiction of the Department of Corrections, the Department of Probation, Parole and Pardon Services, the Department of Juvenile Justice, or the Juvenile Parole Board at the time of moving to South Carolina must register within three business days of establishing residence, acquiring real property, gaining employment, attending or enrolling, volunteering or interning, being employed by, or carrying on a vocation at a public or private school in this State.

(H) The sheriff of the county in which the person resides must forward all changes to any information provided by a person required to register pursuant to this article to SLED within three business days.

(I) A sheriff who receives registration information, notification of change of permanent or temporary address, or notification of change in employment, or attendance, enrollment, employment, volunteer status, intern status, or vocation status at a public or private school, including, but not limited to, a kindergarten, elementary school, middle school or junior high, high school, secondary school, adult education school, college or university, and a vocational, technical, or occupational school, must notify all local law enforcement agencies, including college or university law enforcement agencies, within three business days of an offender whose permanent or temporary address, real property, or public or private school is within the local law enforcement agency's jurisdiction.

(J) The South Carolina Department of Motor Vehicles, shall inform, in writing, any new resident who applies for a driver's license, chauffeur's license, vehicle tag, or state identification card of the obligation of sex offenders to register. The department also shall inform, in writing, a person renewing a driver's license, chauffeur's license, vehicle tag, or state identification card of the requirement for sex offenders to register.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2001 Act No. 107, § 4; 2002 Act No. 310, § 3; 2005 Act No. 141, § 5; 2006 Act No. 342, § 4, eff July 1, 2006; 2010 Act No. 212, § 5, eff June 7, 2010; 2022 Act No. 221 (H.4075), § 3, eff May 23, 2022.

Code 1976 § 23-3-460, SC ST § 23-3-460

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Code 1976 § 23-3-462

§ 23-3-462. Termination of registration requirements.

Currentness

(A) After successful completion of the requirements of this section, an offender may apply to the South Carolina Law Enforcement Division for the termination of the requirements of registration pursuant to this article. If it is determined that the offender has met the requirements of this section, SLED shall remove the offender's name and identifying information from the sex offender registry and shall notify the offender within one hundred twenty days that the offender has been relieved of the registration requirements of this article.

(1) A Tier I offender may file a request for termination of the requirement of registration with SLED in a form and process established by the agency, if the person:

(a) has been registered for at least fifteen years; or

(b) has been discharged from incarceration without supervision for at least fifteen years for the charge requiring registration; or

(c) has had at least fifteen years pass since the termination of active supervision of probation, parole, or any other alternative to incarceration for the charge requiring registration; or

(d) is a Tier I offender who was required to register as an offender because of a conviction in another state or because of a federal conviction and who is eligible to be removed under the laws of the jurisdiction where the conviction occurred.

(2) A Tier II offender may file a request for termination of the requirement of registration with SLED in a form and process established by the agency, if the person:

(a) has been registered for at least twenty-five years;

(b) has been discharged from incarceration without supervision for at least twenty-five years for the charge requiring registration;

(c) has had at least twenty-five years pass since the termination of active supervision of probation, parole, or any other alternative to incarceration for the charge requiring registration; or

(d) is a Tier II offender who was required to register as an offender because of a conviction in another state or because of a federal conviction and who is eligible to be removed under the laws of the jurisdiction where the conviction occurred.

(3) An offender who was convicted as an adult, and who is required to register as a Tier III offender may not file a request for termination of registration with SLED nor shall any such request be granted pursuant to this subsection.

(4) The requesting offender must have successfully completed all sex offender treatment programs that have been required.

(5) The requesting offender must not have been convicted of failure to register within the previous ten years.

(6) The offender must not have been convicted of any additional sexual offense or violent sexual offense after being placed on the registry.

(7) A filing fee, as set by SLED but not to exceed two hundred fifty dollars, shall be paid to file the request for termination of registration requirements. The initial application may be filed with SLED and the administrative review may begin one hundred twenty days prior to the date specified in subsection (A)(1); however, any removal may not occur prior to the date specified.

(B) Upon receipt of the request for termination, SLED shall review documentation provided by the offender and contained in the offender's file and the sex offender registry to determine whether the offender has complied with the requirements of this section. In addition, SLED shall conduct fingerprint-based state and federal criminal history checks to determine whether the offender has been convicted of any additional sexual offenses, as defined in Section 23-3-430.

(C) If all the requirements of this section are verified, SLED shall, within one hundred twenty days of receipt of the request for termination, remove an offender's name from the registry and notify the offender that the offender is no longer required to comply with the registry requirements of this article.

(D) If it is determined that the offender has been convicted of any additional sexual offenses or violent sexual offenses during the applicable period, has not substantially complied with this section, or an objection has been filed by the original prosecuting agency, SLED shall not remove the offender's name from the sex offender registry and shall notify the offender that the offender has not been relieved of the provisions in this article.

(1) If an offender is denied a termination request, the offender may petition again for termination with SLED no sooner than five years after the previous denial.

(2) If an offender is denied a termination request based on conviction of any additional sexual offenses or violent sexual offenses, the offender may not submit a petition to SLED for termination unless the subsequent conviction is overturned or pardon granted.

(E) An offender whose request for termination of registration requirements is denied by SLED is entitled to appeal the denial to the general sessions court pursuant to the requirements of Section 23-3-463 for the county in which the conviction occurred if the conviction occurred within the State, or if not, the county in which the offender resides. Individuals placed on the registry as a juvenile should petition the family court that adjudicated them delinquent. The SLED official who denied the request for termination of registration requirements may submit an affidavit to the court detailing the reasons the request was denied.

(F) If a person is convicted of multiple offenses requiring registration, and the offenses fall within different tiers, the person only may petition for removal of the registration requirement once the required time passes for the highest tier offense they have been convicted of that requires registration. If a petition based upon this section is denied, the person may not petition again until five years after the date of the final order.

Credits

HISTORY: 2022 Act No. 221 (H.4075), § 4, eff May 23, 2022; 2025 Act No. 57 (S.28), § 3, eff May 22, 2025; 2025 Act No. 58 (S.29), § 8, eff May 22, 2025.

Code 1976 § 23-3-462, SC ST § 23-3-462

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Code 1976 § 23-3-463

§ 23-3-463. Motion to request order to be removed from requirements of the sex offender registry.

Currentness

(A) An offender may file a motion with the general sessions court to request an order to be removed from the requirements of the sex offender registry act if:

(1) He is a Tier I or Tier II offender or if the offender was required to register based on an adjudication of delinquency whose application for removal under Section 23-3-462 has been denied by SLED.

(2) He is a Tier III offender after thirty years from the date of discharge from incarceration without supervision, or the termination of active supervision of probation, parole, or any other active alternative to incarceration.

(3) If the offender is required to register due to an out-of-state or federal conviction, the equivalent tier under the federal Adam Walsh Child Protection and Safety Act of 2006 (Pub. L. 109-248), the Sex Offender Registration and Notification Act (SORNA) shall apply.

(B) All motions pursuant to this section must be made no earlier than the appropriate timeframes related to the underlying offense as specified in Section 23-3-462(A)(1) or subsection (A)(2). An offender is not eligible for a hearing pursuant to this section if he submitted an application prior to the timeframe specified in Section 23-3-462(A)(1) that was either not accepted or erroneously accepted by SLED.

(C) The motion must be filed in the county in which the underlying conviction occurred if the conviction occurred within the State, or if the conviction occurred outside of the State, the county in which the offender resides.

(D) A person requesting a hearing under this section is entitled to the assistance of counsel, and if the person is indigent, the court must appoint counsel to assist the person.

(E) The court may direct that a qualified evaluator designated by the Office of Mental Health conduct an evaluation whether the offender poses a foreseeable risk to reoffend. For any such evaluation, the court must order the offender to comply with all testing and assessments deemed necessary by the evaluator. After the evaluation by the qualified evaluator designated by the Office of Mental Health, if the offender or the prosecutor seeks an independent evaluation by an independent qualified evaluator, then that evaluation must be completed within ninety days after receipt of the request by the Office of Mental Health evaluator. The court may grant an extension upon the request of the independent qualified evaluator and a showing of extraordinary

circumstances. Any qualified evaluator who will be submitted as an expert at a hearing on the motion must submit a written report available to both parties.

(F) The court must make a determination upon a finding by clear and convincing evidence that the offender is no longer a foreseeable risk to reoffend and that it is in the best interest of justice to grant the motion for removal from the requirement of registration.

(G) The State of South Carolina must be named as the respondent to the action and shall be represented by the prosecution office that obtained the underlying conviction for which the offender is required to register, or, if the conviction occurred outside of the State, the Attorney General. All requirements of the Victim's Rights Act, including reasonable notice, must be observed. The following agencies have standing to request to be made a party to the motion:

- (1) any original prosecuting solicitor's office for an underlying qualifying conviction if not already representing the State;
- (2) the local solicitor's office where the offender resides at the time of the hearing if not already representing the State; or
- (3) the Attorney General's Office if not already representing the State.

(H) If a person is convicted of multiple offenses requiring registration, and the offenses fall within different tiers, the person only may petition for removal of the registration requirement once the required time passes for the highest tier offense they have been convicted of that requires registration.

(I) If the motion is denied, the person may not file for removal from the registry pursuant to this section again until five years after the date of the final order.

Credits

HISTORY: 2022 Act No. 221 (H.4075), § 5, eff May 23, 2022.

Code 1976 § 23-3-463, SC ST § 23-3-463

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Code 1976 § 23-3-465

§ 23-3-465. Residence in campus student housing.

Currentness

Any person required to register under this article is prohibited from living in campus student housing at a public institution of higher learning supported in whole or in part by the State.

Credits

HISTORY: 2005 Act No. 94, § 2.

Code 1976 § 23-3-465, SC ST § 23-3-465

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Code 1976 § 23-3-470

§ 23-3-470. Failure to register or provide required notifications; penalties.

Currentness

(A) It is the duty of the offender to contact the sheriff in order to register, provide notification of change of permanent or temporary address, or notification of change of employment, or in attendance, enrollment, employment, volunteer status, intern status, or vocation status at any public or private school, including, but not limited to, a kindergarten, elementary school, middle school or junior high, high school, secondary school, adult education school, college or university, and any vocational, technical, or occupational school. If an offender fails to register, provide notification of change of address, or notification of permanent or temporary change in employment, or attendance, enrollment, employment, volunteer status, intern status, or vocation status at any public or private school, as required by this article, he must be punished as provided in subsection (B).

(B)(1) A person convicted for a first offense is guilty of a misdemeanor and may be fined not more than one thousand dollars, or imprisoned for not more than three hundred sixty-six days, or both. Notwithstanding the provisions of Sections 22-3-540, 22-3-545, 22-3-550, or any other provision of law, a first offense may be tried in magistrates court.

(2) A person convicted for a second offense is guilty of a misdemeanor and must be imprisoned for a mandatory period of three hundred sixty-six days, no part of which shall be suspended nor probation granted.

(3) A person convicted for a third or subsequent offense is guilty of a felony and must be imprisoned for a mandatory period of five years, three years of which shall not be suspended nor probation granted.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2005 Act No. 141, § 6; 2008 Act No. 333, § 2, eff June 16, 2009; 2010 Act No. 212, § 6, eff June 7, 2010.

Code 1976 § 23-3-470, SC ST § 23-3-470

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Code 1976 § 23-3-475

§ 23-3-475. Registering with false information; penalties.

Currentness

(A) Anyone who knowingly and wilfully gives false information when registering as an offender pursuant to this article must be punished as provided in subsection (B).

(B)(1) A person convicted for a first offense is guilty of a misdemeanor and may be fined not more than one thousand dollars, or imprisoned for not more than three hundred sixty-six days, or both. Notwithstanding the provisions of Sections 22-3-540, 22-3-545, 22-3-550, or any other provision of law, a first offense may be tried in magistrates court.

(2) A person convicted for a second offense is guilty of a misdemeanor and must be imprisoned for a mandatory period of three hundred sixty-six days, no part of which shall be suspended nor probation granted.

(3) A person convicted for a third or subsequent offense is guilty of a felony and must be imprisoned for a mandatory period of five years, three years of which shall not be suspended nor probation granted.

Credits

HISTORY: 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 2010 Act No. 212, § 7, eff June 7, 2010.

Code 1976 § 23-3-475, SC ST § 23-3-475

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Code 1976 § 23-3-480

§ 23-3-480. Notice of duty to register; registration following charge of failure to register not a defense.

Currentness

(A) An arrest on charges of failure to register, service of an information or complaint for failure to register, or arraignment on charges of failure to register constitutes actual notice of the duty to register. A person charged with the crime of failure to register who asserts as a defense the lack of notice of the duty to register shall register immediately following actual notice through arrest, service, or arraignment. Failure to register after notice as required by this article constitutes grounds for filing another charge of failure to register. Registering following arrest, service, or arraignment on charges does not relieve the offender from the criminal penalty for failure to register before the filing of the original charge.

(B) Section 23-3-470 shall not apply to a person convicted of an offense provided in Section 23-3-430 prior to July 1, 1994, and who was released from custody prior to July 1, 1994, unless the person has been served notice of the duty to register by the sheriff of the county in which the person resides. This person shall register within ten days of the notification of the duty to register.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1.

Code 1976 § 23-3-480, SC ST § 23-3-480

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Code 1976 § 23-3-490

§ 23-3-490. Public inspection of offender registry.

Currentness

(A) Information collected for the offender registry is open to public inspection, and must be made available on the Internet or by other electronic means.

(B) A sheriff or SLED must release information regarding persons required to register under this article to a member of the public if the request is made in writing, or via electronic means on a form prescribed or utilized by SLED. The sheriff must provide the person making the request with the full names of the registered sex offenders, any aliases, any other identifying physical characteristics, each offender's date of birth, the home address on file, the offense for which the offender was required to register pursuant to Section 23-3-430, and the date, city, and state of conviction. A photocopy of a current photograph must also be provided. The sheriff may provide to a newspaper with general circulation within the county a listing of the registry for publication.

A sheriff or SLED who provides the offender registry for publication or a newspaper which publishes the registry, or any portion of it, is not liable and must not be named as a party in an action to recover damages or seek relief for errors or omissions in the publication of the offender registry; however, if the error or omission was done intentionally, with malice, or in bad faith the sheriff or newspaper is not immune from liability.

(C) A person may request on a form prescribed by SLED a list of registered sex offenders residing in a city, county, or zip code zone or a list of all registered sex offenders within the State from SLED. A person may request information regarding a specific person who is required to register under this article from SLED. SLED shall provide the person making the request with the full names of the requested registered sex offenders, any aliases, any other identifying physical characteristics, each offender's date of birth, the home address on file, the offense for which the offender was required to register pursuant to Section 23-3-430, and the date, city, and state of conviction. The State Law Enforcement Division may charge a reasonable fee to cover the cost of copying and distributing sex offender registry lists as provided for in this section. These funds must be used for the sole purpose of offsetting the cost of providing sex offender registry lists.

(D) Nothing in subsection (A) prohibits a sheriff from disseminating information contained in subsection (A) regarding persons who are required to register under this article if the sheriff or another law enforcement officer has reason to believe the release of this information will deter criminal activity or enhance public safety. The sheriff shall notify the principals of public and private schools, and the administrator of child day care centers and family day care centers of any offender whose address is within one-half mile of the school or business.

(E) For purposes of this article, information on a person adjudicated delinquent in family court for an offense listed in Section 23-3-436, and who is required to register under this article, must be made available to the public in accordance with the following provisions:

(1) If a person has been adjudicated delinquent for committing a Tier III offense, information must be made available to the public pursuant to subsections (A), (B), and (C).

(2) Information shall only be made available, upon request, to victims of or witnesses to the offense, public or private schools, child day care centers, family day care centers, businesses or organizations that primarily serve children, women, or vulnerable adults, as defined in Section 43-35-10(11), for persons adjudicated delinquent for committing any other offenses requiring registration.

(3) Nothing in this section shall prohibit the dissemination of all registry information to law enforcement.

(F) For purposes of this section, use of computerized or electronic transmission of data or other electronic or similar means is permitted.

Credits

HISTORY: 1994 Act No. 497, Part II, § 112A; 1996 Act No. 444, § 16; 1998 Act No. 384, § 1; 1999 Act No. 110, § 2; 2010 Act No. 289, § 9, eff June 11, 2010; 2012 Act No. 255, § 6, eff June 18, 2012; 2015 Act No. 7 (S.196), § 6.E, eff April 2, 2015; 2022 Act No. 221 (H.4075), § 6, eff May 23, 2022.

Code 1976 § 23-3-490, SC ST § 23-3-490

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Code 1976 § 23-3-500

§ 23-3-500. Psychiatric or psychological treatment.

Currentness

A court must order that a child under twelve years of age who is convicted of, pleads guilty or nolo contendere to, or is adjudicated for an offense listed in Section 23-3-430(C) be given appropriate psychiatric or psychological treatment to address the circumstances of the offense for which the child was convicted, pled guilty or nolo contendere, or adjudicated.

Credits

HISTORY: 1998 Act No. 384, § 1.

Code 1976 § 23-3-500, SC ST § 23-3-500

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Code 1976 § 23-3-510

§ 23-3-510. Persons committing criminal offenses using sex offender registry information; punishment.

Currentness

A person who commits a criminal offense using information from the sex offender registry disclosed to him pursuant to Section 23-3-490, upon conviction, must be punished as follows:

(1) For a misdemeanor offense, the maximum fine prescribed by law for the offense may be increased by not more than one thousand dollars, and the maximum term of imprisonment prescribed by law for the offense may be increased by not more than six months.

(2) For a felony offense, the maximum term of imprisonment prescribed by law for the offense may be increased by not more than five years.

Credits

HISTORY: 1998 Act No. 384, § 1.

Code 1976 § 23-3-510, SC ST § 23-3-510

Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

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Code of Laws of South Carolina 1976 Annotated
Title 23. Law Enforcement and Public Safety
Chapter 3. South Carolina Law Enforcement Division
Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-520

§ 23-3-520. Immunity of public officials, employees, and agencies; exceptions; duties regarding disclosure of information.

Currentness

(A) An appointed or elected public official, public employee, or public agency is immune from civil liability for damages for any act or omission under this article unless the official's, employee's, or agency's conduct constitutes gross negligence.

(B) Nothing in this chapter imposes an affirmative duty on a person to disclose to a member of the public information from the sex offender registry other than on those persons responsible for providing registry information pursuant to their official duties as provided for in this chapter.

(C) Nothing in this section may be construed to mean that information regarding persons on the sex offender registry is confidential except as otherwise provided by law.

Credits

HISTORY: 1998 Act No. 384, § 1.

Code 1976 § 23-3-520, SC ST § 23-3-520

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Code 1976 § 23-3-525

§ 23-3-525. Notice by real estate brokerage about obtaining sex offender registry information.

Currentness

A real estate brokerage and its affiliated licensees is immune from liability for any act or omission related to the disclosure of information under this chapter if the brokerage or its affiliated licensees in a timely manner provides to its clients and customers written notice that they may obtain information about the sex offender registry and persons registered with the registry by contacting the county sheriff. The notice may be included as part of a listing agreement, buyer representation agreement, or sales agreement.

Credits

HISTORY: 2005 Act No. 141, § 7.

Code 1976 § 23-3-525, SC ST § 23-3-525

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Code 1976 § 23-3-530

§ 23-3-530. Protocol manual for sex offender registry; contents.

Currentness

The State Law Enforcement Division shall develop and maintain a protocol manual to be used by contributing agencies in the administration of the sex offender registry. The protocol manual must include, but is not limited to, the following:

(1) procedures for the verification of addresses by the sheriff's department in the county where the person resides; and

(2) specific requirements for registration and reregistration including, but not limited to, the following:

(a) the name, social security number, age, race, sex, date of birth, height, weight, hair and eye color; address of permanent residence, address of current temporary residence, within the State or out of state, including rural route address and post office box, which may not be provided instead of a physical residential address; date and place of employment; vehicle make, model, color, and license tag number, including work vehicles that are used the majority of the employee's work time, and the permanent or frequent location where all vehicles are kept; fingerprints and palm prints; Internet identifiers; passport and immigration documents; and a photograph;

(b) the name, address, and county of each institution of higher learning, including the specific campus location, if the person is enrolled, employed, volunteers, interns, or carries on a vocation there;

(c) the vehicle identification number, license tag number, registration number, and a description, including the color scheme, if the person lives in a motor vehicle, trailer, mobile home, or manufactured home and the permanent or frequent location where all vehicles, trailers, mobile homes, and manufactured homes are kept;

(d) the hull identification number, the manufacturer's serial number, the name of the vessel, live-aboard vessel, or houseboat, the registration number, and a description of the color scheme, if the person lives in a vessel, live-aboard vessel, or houseboat; and

(e) the tail number, manufacturer's serial number, and model of any aircraft, and a description of the aircraft, including the color scheme, and the permanent or frequent location where all aircraft are kept, if the person owns or operates an aircraft.

Credits

HISTORY: 1999 Act No. 110, § 1; 2006 Act No. 342, § 5, eff July 1, 2006; 2010 Act No. 212, § 8, eff June 7, 2010.

Code 1976 § 23-3-530, SC ST § 23-3-530

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Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-535

§ 23-3-535. Limitation on places of residence of certain sex offenders; exceptions; violations;
local government ordinances; school districts required to provide certain information.

Currentness

(A) As contained in this section:

- (1) "Children's recreational facility" means a facility owned and operated by a city, county, or special purpose district used for the purpose of recreational activity for children under the age of eighteen.
- (2) "Daycare center" means an arrangement where, at any one time, there are three or more preschool-age children, or nine or more school-age children receiving child care.
- (3) "School" does not include a home school or an institution of higher education.
- (4) "Within one thousand feet" means a measurement made in a straight line, without regard to intervening structures or objects, from the nearest portion of the property on which the sex offender resides to the nearest property line of the premises of a school, daycare center, children's recreational facility, park, or public playground, whichever is closer.

(B) It is unlawful for a sex offender who has been convicted of any of the following offenses to reside within one thousand feet of a school, daycare center, children's recreational facility, park, or public playground:

- (1) criminal sexual conduct with a minor, first degree;
- (2) criminal sexual conduct with a minor, second degree;
- (3) assault with intent to commit criminal sexual conduct with a minor;
- (4) kidnapping a person under eighteen years of age; or
- (5) trafficking in persons of a person under eighteen years of age except when the court makes a finding on the record that the offense did not include a criminal sexual offense or an attempted criminal sexual offense.

(C) This section does not apply to a sex offender who:

- (1) resided within one thousand feet of a school, daycare center, children's recreational facility, park, or public playground before the effective date of this act;
- (2) resided within one thousand feet of a school, daycare center, children's recreational facility, park, or public playground on property the sex offender owned before the sex offender was charged with any of the offenses enumerated in subsection (B);
- (3) resides within one thousand feet of a school, daycare center, children's recreational facility, park, or public playground as a result of the establishment of a new school, daycare center, children's recreational facility, park, or public playground;
- (4) resides in a jail, prison, detention facility, group home for persons under the age of twenty-one licensed by the Department of Social Services, residential treatment facility for persons under the age of twenty-one licensed by the Department of Health and Environmental Control, or other holding facility, including a mental health facility;
- (5) resides in a homeless shelter for no more than one year, a group home for persons under the age of twenty-one licensed by the Department of Social Services, or a residential treatment facility for persons under the age of twenty-one licensed by the Department of Health and Environmental Control, and the site was purchased by the organization prior to the effective date of this act;
- (6) resides in a community residential care facility, as defined in Section 44-7-130(6); or
- (7) resides in a nursing home, as defined in Section 44-7-130(13).

(D) If upon registration of a sex offender, or at any other time, a local law enforcement agency determines that a sex offender is in violation of this section, the local law enforcement agency must, within thirty days, notify the sex offender of the violation, provide the sex offender with a list of areas in which the sex offender is not permitted to reside, and notify the sex offender that the sex offender has thirty days to vacate the residence. If the sex offender fails to vacate the residence within thirty days, the sex offender must be punished as follows:

- (1) for a first offense, the sex offender is guilty of a misdemeanor and, upon conviction, must be imprisoned not more than thirty days, or fined not more than five hundred dollars, or both;
- (2) for a second offense, the sex offender is guilty of a misdemeanor and, upon conviction, must be imprisoned not more than three years, or fined not more than one thousand dollars, or both;
- (3) for a third or subsequent offense, the sex offender is guilty of a felony and, upon conviction, must be imprisoned for not more than five years, or fined not more than five thousand dollars, or both.

(E) A local government may not enact an ordinance that:

(1) contains penalties that exceed or are less lenient than the penalties contained in this section; or

(2) expands or contracts the boundaries of areas in which a sex offender may or may not reside as contained in subsection (B).

(F)(1) At the beginning of each school year, each school district must provide:

(a) the names and addresses of every sex offender who resides within one thousand feet of a school bus stop within the school district to the parents or guardians of a student who boards or disembarks a school bus at a stop covered by this subsection; or

(b) the hyperlink to the sex offender registry web site on the school district's web site for the purpose of gathering this information.

(2) Local law enforcement agencies must check the school districts' web sites to determine if each school district has complied with this subsection. If a hyperlink does not appear on a school district web site, the local law enforcement agency must contact the school district to confirm that the school district has provided the parents or guardians with the names and addresses of every sex offender who resides within one thousand feet of a school bus stop within the school district. If the local law enforcement agency determines that this information has not been provided, the local law enforcement agency must inform the school district that it is in violation of this subsection. If the school district does not comply within thirty days after notice of its violation, the school district is subject to equitable injunctive relief and, if the plaintiff prevails, the district shall pay the plaintiff's attorney's fees and costs.

Credits

HISTORY: 2008 Act No. 333, § 1, eff June 16, 2008; 2009 Act No. 77, § 1, eff June 16, 2009; 2010 Act No. 289, § 10, eff June 11, 2010.

Code 1976 § 23-3-535, SC ST § 23-3-535

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Code 1976 § 23-3-538

§ 23-3-538. Certain sex offenders prohibited from operating or
working for child-oriented businesses; definitions; penalties.

Currentness

(A) As contained in this section:

(1) “Child-oriented business” means any business whose primary service includes the education, care, or entertainment of children including, but not limited to: a school, daycare center, children's recreational facility, arcade, trampoline park, amusement park, public playground, or mobile food delivery whose primary business is the sale or delivery of ice cream or candy to children.

(2) “Children's recreational facility” means a facility owned and operated by a city, county, or special purpose district used for the purpose of recreational activity for children under the age of eighteen.

(3) “Daycare center” means an arrangement where, at any one time, there are three or more preschool-aged children, or nine or more school-aged children receiving childcare.

(B) It is unlawful for a sex offender who has been convicted of any of the following offenses to operate, work for, be employed by, or volunteer for a child-oriented business:

(1) criminal sexual conduct with a minor, first degree;

(2) criminal sexual conduct with a minor, second degree;

(3) assault with intent to commit criminal sexual conduct with a minor;

(4) kidnapping a person under eighteen years of age; or

(5) trafficking in persons of a person under eighteen years of age except when the court makes a finding on the record that the offense did not include a criminal sexual offense or an attempted criminal sexual offense.

(C) If upon registration of a sex offender, or at any other time, a local law enforcement agency determines that a sex offender is in violation of this section, a law enforcement agency or a probation or parole agent must notify the sex offender of the violation. If a person who is required to register under this chapter continues to operate, be employed by, or volunteer for a child-oriented business after notice, the person, upon conviction, must be punished as follows:

(1) for a first offense, the sex offender is guilty of a misdemeanor and must be imprisoned not more than thirty days, or fined not more than five hundred dollars, or both;

(2) for a second offense, the sex offender is guilty of a misdemeanor and must be imprisoned not more than three years, or fined not more than one thousand dollars, or both;

(3) for a third or subsequent offense, the sex offender is guilty of a felony and must be imprisoned for not more than five years, or fined not more than five thousand dollars, or both.

(D) The owner of any business who knowingly employs a person in violation of this section after receiving notice by a member of law enforcement or other appropriate governmental agency shall be subject to a civil fine of up to one hundred dollars per day.

Credits

HISTORY: 2022 Act No. 221 (H.4075), § 7, eff May 23, 2022.

Code 1976 § 23-3-538, SC ST § 23-3-538

Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

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Code 1976 § 23-3-540

§ 23-3-540. Electronic monitoring; penalty.

Currentness

(A) Upon conviction, adjudication of delinquency, guilty plea, or plea of nolo contendere of a person for committing criminal sexual conduct with a minor in the first degree, pursuant to Section 16-3-655(A)(1), or criminal sexual conduct with a minor in the third degree, pursuant to Section 16-3-655(C), the court must order that the person, upon release from incarceration, confinement, commitment, institutionalization, or when placed under the supervision of the Department of Probation, Parole and Pardon Services shall be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(B) Upon conviction, adjudication of delinquency, guilty plea, or plea of nolo contendere of a person for any other offense listed in subsection (G), the court may order that the person upon release from incarceration, confinement, commitment, institutionalization, or when placed under the supervision of the Department of Probation, Parole and Pardon Services shall be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(C) A person who is required to register pursuant to this article for committing criminal sexual conduct with a minor in the first degree, pursuant to Section 16-3-655(A)(1), or criminal sexual conduct with a minor in the third degree, pursuant to Section 16-3-655(C), and who violates a term of probation, parole, community supervision, or a community supervision program must be ordered by the court or agency with jurisdiction to be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(D) A person who is required to register pursuant to this article for any other offense listed in subsection (G), and who violates a term of probation, parole, community supervision, or a community supervision program, may be ordered by the court or agency with jurisdiction to be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(E) A person who is required to register pursuant to this article for committing criminal sexual conduct with a minor in the first degree, pursuant to Section 16-3-655(A)(1), or criminal sexual conduct with a minor in the third degree, pursuant to Section 16-3-655(C), and who violates a provision of this article, must be ordered by the court to be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(F) A person who is required to register pursuant to this article for any other offense listed in subsection (G), and who violates a provision of this article, may be ordered by the court to be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device.

(G) This section applies to a person who has been:

(1) convicted of, pled guilty or nolo contendere to, or been adjudicated delinquent for any of the following offenses:

(a) criminal sexual conduct with a minor in the first degree (Section 16-3-655(A));

(b) criminal sexual conduct with a minor in the second degree (Section 16-3-655(B)). If evidence is presented at the criminal proceeding and the court makes a specific finding on the record that the conviction obtained for this offense resulted from illicit consensual sexual conduct, as contained in Section 16-3-655(B)(2), provided the offender is eighteen years of age or less, or consensual sexual conduct between persons under sixteen years of age, then the convicted person is not required to be electronically monitored pursuant to the provisions of this section;

(c) criminal sexual conduct with a minor in the third degree (Section 16-3-655(C));

(d) engaging a child for sexual performance (Section 16-3-810);

(e) producing, directing, or promoting sexual performance by a child (Section 16-3-820);

(f) criminal sexual conduct: assaults with intent to commit (Section 16-3-656) involving a minor;

(g) violations of Article 3, Chapter 15, Title 16 involving a minor;

(h) kidnapping (Section 16-3-910) of a person under eighteen years of age except when the offense is committed by a parent;

(i) trafficking in persons (Section 16-3-2020) of a person under eighteen years of age except when the court makes a finding on the record that the offense did not include a criminal sexual offense or an attempted criminal sexual offense; or

(2) ordered as a condition of sentencing to be included in the sex offender registry pursuant to Section 23-3-430(D) for an offense involving a minor, except that the provisions of this item may not be construed to apply to a person eighteen years of age or less who engages in illicit but consensual sexual conduct with another person who is at least fourteen years of age as provided in Section 16-3-655(B)(2).

(H) The person shall be monitored by the Department of Probation, Parole and Pardon Services with an active electronic monitoring device for the duration of the time the person is required to remain on the sex offender registry pursuant to the provisions of this article, unless the person is committed to the custody of the State. Ten years from the date the person begins to be electronically monitored, the person may petition the chief administrative judge of the general sessions court for the county in which the person was ordered to be electronically monitored for an order to be released from the electronic monitoring requirements of this section. The person shall serve a copy of the petition upon the solicitor of the circuit and the Department of Probation, Parole and Pardon Services. The court must hold a hearing before ordering the person to be released from the electronic monitoring requirements of this section, unless the court denies the petition because the person is not eligible for

release or based on other procedural grounds. The solicitor of the circuit, the Department of Probation, Parole and Pardon Services, and any victims, as defined in Article 15, Chapter 3, Title 16, must be notified of any hearing pursuant to this subsection and must be given an opportunity to testify or submit affidavits in response to the petition. If the court finds that there is clear and convincing evidence that the person has complied with the terms and conditions of the electronic monitoring and that there is no longer a need to electronically monitor the person, then the court may order the person to be released from the electronic monitoring requirements of this section. If the court denies the petition or refuses to grant the order, then the person may refile a new petition every five years from the date the court denies the petition or refuses to grant the order. A person may not petition the court if the person is required to register pursuant to this article for committing criminal sexual conduct with a minor in the first degree, pursuant to Section 16-3-655(A)(1), or criminal sexual conduct with a minor in the third degree, pursuant to Section 16-3-655(C).

(I) The person shall follow instructions provided by the Department of Probation, Parole and Pardon Services to maintain the active electronic monitoring device in working order. Incidental damage or defacement of the active electronic monitoring device must be reported to the Department of Probation, Parole and Pardon Services within two hours. A person who fails to comply with the reporting requirement of this subsection is guilty of a felony and, upon conviction, must be fined not more than five thousand dollars or imprisoned not more than five years.

(J) The person shall abide by other terms and conditions set forth by the Department of Probation, Parole and Pardon Services with regard to the active electronic monitoring device and electronic monitoring program.

(K) The person must be charged for the cost of the active electronic monitoring device and the operation of the active electronic monitoring device for the duration of the time the person is required to be electronically monitored. The Department of Probation, Parole and Pardon Services may exempt a person from the payment of a part or all of the cost during a part or all of the duration of the time the person is required to be electronically monitored, if the Department of Probation, Parole and Pardon Services determines that exceptional circumstances exist such that these payments cause a severe hardship to the person. The payment of the cost must be a condition of supervision of the person and a delinquency of two months or more in making payments may operate as a violation of a term or condition of the electronic monitoring. All fees generated by this subsection must be retained by the Department of Probation, Parole and Pardon Services, carried forward, and applied to support the active electronic monitoring of sex offenders.

(L) A person who intentionally removes, tampers with, defaces, alters, damages, or destroys an active electronic monitoring device is guilty of a felony and, upon conviction, must be fined not more than five thousand dollars or imprisoned not more than five years. This subsection does not apply to a person or agent authorized by the Department of Probation, Parole and Pardon Services to perform maintenance and repairs to the active electronic monitoring devices.

(M) A person who completes his term of incarceration and the maximum term of probation, parole, or community supervision and who wilfully violates a term or condition of electronic monitoring, as ordered by the court or determined by the Department of Probation, Parole and Pardon Services is guilty of a felony and, upon conviction, must be sentenced in accordance with the provisions of Section 23-3-545.

(N) The Department of Corrections shall notify the Department of Probation, Parole and Pardon Services of the projected release date of an inmate serving a sentence, as described in this section, at least one hundred eighty days in advance of the person's release from incarceration. For a person sentenced to one hundred eighty days or less, the Department of Corrections shall immediately notify the Department of Probation, Parole and Pardon Services.

(O) When an inmate serving a sentence as described in this section is released on electronic monitoring, a victim who has previously requested notification and the sheriff's office in the county where the person is to be released must be notified in accordance with the requirements of Article 15, Chapter 3, Title 16.

(P) As used in this section, "active electronic monitoring device" means an all body worn device that is not removed from the person's body utilized by the Department of Probation, Parole and Pardon Services in conjunction with a web-based computer system that actively monitors and records a person's location at least once every minute twenty-four hours a day and that timely records and reports the person's presence near or within a prohibited area or the person's departure from a specified geographic location. In addition, the device must be resistant or impervious to unintentional or wilful damages. The South Carolina Criminal Justice Academy may offer training to officers of the Department of Probation, Parole and Pardon Services regarding the utilization of active electronic monitoring devices. In areas of the State where cellular coverage requires the use of an alternate device, the Department of Probation, Parole and Pardon Services may use an alternate device.

(Q) Except for juveniles released from the Department of Corrections, all juveniles adjudicated delinquent in family court, who are required to be monitored pursuant to the provisions of this article by the Department of Probation, Parole and Pardon Services, or who are ordered by a court to be monitored must be supervised, while under the jurisdiction of the family court or Board of Juvenile Parole, by the Department of Juvenile Justice. The Department of Probation, Parole and Pardon Services shall report to the Department of Juvenile Justice all violations of the terms or conditions of electronic monitoring for all juveniles supervised by the department, for as long as the family court or Juvenile Parole Board has jurisdiction over the juvenile. If the Department of Juvenile Justice determines that a juvenile has violated a term or condition of electronic monitoring, the department shall immediately notify local law enforcement of the violation.

Credits

HISTORY: 2005 Act No. 141, § 8; 2006 Act No. 342, § 6, eff July 1, 2006; 2006 Act No. 346, § 3, eff July 1, 2006; 2008 Act No. 335, §§ 15, 20, eff June 16, 2008; 2010 Act No. 289, § 11, eff June 11, 2010; 2012 Act No. 255, § 7, eff June 18, 2012; 2015 Act No. 7 (S.196), § 6.F, eff April 2, 2015.

Code 1976 § 23-3-540, SC ST § 23-3-540

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Code 1976 § 23-3-545

§ 23-3-545. Effect of conviction of wilfully violating term or condition of active electronic monitoring.

Currentness

(A) If a person is convicted of wilfully violating a term or condition of active electronic monitoring pursuant to Section 23-3-540(M), the court may impose other terms and conditions considered appropriate and may continue the person on active electronic monitoring, or the court may revoke the active electronic monitoring and impose a sentence of up to ten years for the violation. A person who is incarcerated for a revocation is eligible to earn work credits, education credits, good conduct credits, and other credits which would reduce the sentence for the violation to the same extent he would have been eligible to earn credits on a sentence of incarceration for the underlying conviction. A person who is incarcerated for a revocation pursuant to the provisions of this subsection is not eligible for parole.

(B) If a person's electronic monitoring is revoked by the court and the court imposes a period of incarceration for the revocation, the person must be placed back on active electronic monitoring when the person is released from incarceration.

(C) A person may be sentenced for successive revocations, with each revocation subject to a ten-year sentence. The maximum aggregate amount of time the person may be required to serve when sentenced for successive revocations may not exceed the period of time the person is required to remain on the sex offender registry.

Credits

HISTORY: 2006 Act No. 346, § 4, eff July 1, 2006.

Code 1976 § 23-3-545, SC ST § 23-3-545

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Code 1976 § 23-3-550

§ 23-3-550. Assisting or harboring unregistered sex offender; penalty.

Currentness

(A) A person who has reason to believe that a person required to register pursuant to the provisions of this article is not complying or has not complied with the requirements of this article, with the intent to assist or harbor the person required to register in eluding a law enforcement agency, is guilty of the offense of assisting or harboring an unregistered sex offender, if the person:

- (1) withholds information from or does not notify the law enforcement agency of the noncompliance of the provisions of this article by the person required to register, and, if known, the location of this person;
- (2) harbors, attempts to harbor, or assists another person in harboring or attempting to harbor the person required to register;
- (3) conceals, attempts to conceal, or assists another in concealing or attempting to conceal the person required to register; or
- (4) provides information known to be false to a law enforcement agency regarding the person required to register.

(B) A person who knowingly and wilfully violates the provisions of subsection (A) is guilty of a felony and, upon conviction, must be fined not more than five thousand dollars or imprisoned not more than five years.

Credits

HISTORY: 2005 Act No. 141, § 9; 2006 Act No. 342, § 7, eff July 1, 2006.

Code 1976 § 23-3-550, SC ST § 23-3-550

Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

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Article 7. Sex Offender Registry (Refs & Annos)

Code 1976 § 23-3-555

§ 23-3-555. Internet reporting requirements; penalties; information provided
to interactive computer services; judicial limitations on Internet use.

Currentness

(A) As used in this section:

(1) "Interactive computer service" means an information service, system, or access software provider that offers users the capability of generating, acquiring, storing, transforming, processing, retrieving, utilizing, or making available information via an Internet access provider, including a service or system that provides or enables computer access by multiple users to a computer server, including specifically a service or system that provides access to the Internet and such systems operated or services offered by libraries or educational institutions.

(2) "Internet access provider" means a business, organization, or other entity providing directly to consumers a computer and communications facility through which a person may obtain access to the Internet. An Internet access provider does not include a business, organization, or other entity that provides only telecommunications services, cable services, or video services, or any system operated or services offered by a library or educational institution.

(3) "Internet identifier" means an electronic mail address, user name, screen name, or similar identifier used for the purpose of Internet forum discussions, Internet chat room discussions, instant messaging, social networking, or similar Internet communication.

(B)(1) A sex offender who is required to register with the sex offender registry pursuant to this article must provide, upon registration and each reregistration, information regarding the offender's Internet accounts with Internet access providers and the offender's Internet identifiers.

(2) A sex offender who is required to register with the sex offender registry pursuant to this article and who changes an Internet account with an Internet access provider or changes an Internet identifier must send written notice of the change to the appropriate sheriff within three business days of changing the Internet account or Internet identifier. A sheriff who receives notification of change of an Internet account or Internet identifier must notify the South Carolina Law Enforcement Division (SLED) within three business days.

(3) A sex offender who fails to provide Internet account or Internet identifier information, or who fails to provide notification of change of an Internet account or an Internet identifier, must be punished as provided for in Section 23-3-470. An offender who knowingly and wilfully gives false information regarding an Internet account or Internet identifier must be punished as provided for in Section 23-3-475.

(C)(1) An interactive computer service may request from SLED, on a form prescribed by SLED, a list of all registered sex offenders or information regarding specific registered sex offenders. In order to receive such information, the interactive computer service must provide identifying information as prescribed by SLED, including, but not limited to, the name, address, telephone number, legal nature, and corporate form of the interactive computer service.

(2) SLED must release information requested by an interactive computer service, including, but not limited to, the full names of the registered sex offenders, any aliases, any other identifying characteristics, each offender's date of birth, the home address on file, the offense for which the offender was required to register pursuant to Section 23-3-430, the date, city, and state of conviction, and any Internet identifiers. A photocopy of a current photograph also must be provided.

(3) SLED may charge a reasonable fee to cover the cost of copying and distributing information as provided for in this section. These funds must be used for the sole purpose of offsetting the cost of providing such information.

(4) SLED is not liable and must not be named as a party in an action to recover damages or seek relief for errors or omissions related to the distribution of information pursuant to this section; however, if the error or omission was done intentionally, with malice, or in bad faith, SLED is not immune from liability.

(5) The interactive computer service may use the information obtained from SLED to prescreen persons wanting to register for its service, identify sex offenders wanting to register for its service or using its service, prevent sex offenders from registering for its service, block sex offenders from using its service, disable sex offenders from using its service, remove sex offenders from its service, or to advise law enforcement or other governmental entities of potential violations of law or threats to public safety. An interactive computer service must not publish or in any way disclose or redisclose any information provided to the interactive computer service by SLED. A person who commits a criminal offense using information disclosed to the person pursuant to this section must be punished as provided for in Section 23-3-510.

(6) An interactive computer service is not liable and must not be named as a party in an action to recover damages or seek relief for:

(a) making or not making a request for information as permitted by this section;

(b) prescreening or not prescreening a person wanting to register for its service;

(c) identifying, blocking, or otherwise preventing a person from registering for its service based on a good faith belief that such person's Internet account information or Internet identifier appears in the information obtained from SLED, the National Sex Offender Registry, or any analogous state registry;

(d) not identifying, blocking, or otherwise preventing a person from registering for its service whose Internet account information or Internet identifier appears in the information obtained from SLED, the National Sex Offender Registry, or any analogous state registry;

(e) identifying, blocking, disabling, removing, or otherwise affecting a user based on a good faith belief that such user's Internet account information or Internet identifier appears in the information obtained from SLED, the National Sex Offender Registry, or any analogous state registry;

(f) not identifying, blocking, disabling, removing, or otherwise affecting a user, whose Internet account information or Internet identifier appears in the information obtained from SLED, the National Sex Offender Registry, or any analogous state registry; or

(g) using or not using the information obtained from SLED to advise law enforcement or other governmental entities of potential violations of law or threats to public safety.

(D) If a person commits a sexual offense in which the victim is under the age of eighteen at the time of the offense or the person reasonably believes is under the age of eighteen at the time of the offense, and the offender is required to register with the sex offender registry for the offense, then, upon conviction, adjudication of delinquency, guilty plea, or plea of nolo contendere, the judge must order as a condition of probation or parole that the person is prohibited from using the Internet to access social networking websites, communicate with other persons or groups for the purpose of promoting sexual relations with persons under the age of eighteen, and communicate with a person under the age of eighteen when the person is over the age of eighteen. The judge may permit a person to use the Internet to communicate with a person under the age of eighteen when such a person is the parent or guardian of a child under the age of eighteen, or the grandparent of a grandchild under the age of eighteen, and the person is not otherwise prohibited from communicating with the child or grandchild.

Credits

HISTORY: 2010 Act No. 212, § 2, eff June 7, 2010.

Code 1976 § 23-3-555, SC ST § 23-3-555

Current through 2025 Act No. 94, except for Act Nos. 19, 41-42, 51, 58, 62, and 68 subject to final approval by the Legislative Council, technical revisions by the Code Commissioner, and publication in the Official Code of Laws.

South Dakota Codified Laws
Title 22. Crimes
Chapter 22-24b. Sex Offender Registry

SDCL T. 22, Ch. 22-24B, Refs & Annos
Currentness

S D C L T. 22, Ch. 22-24B, Refs & Annos, SD ST T. 22, Ch. 22-24B, Refs & Annos
Current through the 2025 Regular Session and Supreme Court Rule 25-16

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-1

22-24B-1. Sex crimes determined

Currentness

For the purposes of §§ 22-24B-2 to 22-24B-14, inclusive, a sex crime is any of the following crimes regardless of the date of the commission of the offense or the date of conviction:

- (1) Rape as set forth in § 22-22-1;
- (2) Felony sexual contact with a minor under sixteen as set forth in § 22-22-7 if committed by an adult;
- (3) Sexual contact with a person incapable of consenting as set forth in § 22-22-7.2;
- (4) Incest if committed by an adult;
- (5) Possessing, distributing, or manufacturing child pornography as set forth in §§ 22-24A-35 to 22-24A-37, inclusive;
- (6) Sale of child pornography as set forth in § 22-24A-1;
- (7) Sexual exploitation of a minor as set forth in § 22-22-24.3;
- (8) Kidnapping, as set forth in § 22-19-1, if the victim of the criminal act is a minor;
- (9) Promotion of prostitution of a minor as set forth in subdivision 22-23-2(2);
- (10) Criminal pedophilia as previously set forth in § 22-22-30.1;
- (11) Felony indecent exposure as previously set forth in former § 22-24-1 or felony indecent exposure as set forth in § 22-24-1.2;
- (12) Solicitation of a minor as set forth in § 22-24A-5;

- (13) Felony indecent exposure as set forth in § 22-24-1.3;
- (14) Bestiality as set forth in § 22-22-42;
- (15) An attempt, conspiracy, or solicitation to commit any of the crimes listed in this section;
- (16) Any crime, court martial offense, or tribal offense committed in a place other than this state that constitutes a sex crime under this section if committed in this state;
- (17) Any federal crime, court martial offense, or tribal offense that constitutes a sex crime under federal law;
- (18) Any crime committed in another state if that state also requires anyone convicted of that crime register as a sex offender in that state;
- (19) If the victim is a minor:
 - (a) Any sexual acts between a jail employee and a detainee as set forth in § 22-22-7.6;
 - (b) Any sexual contact by a psychotherapist as set forth in § 22-22-28; or
 - (c) Any sexual penetration by a psychotherapist as set forth in § 22-22-29;
- (20) Intentional exposure to HIV infection as set forth in subdivision (1) of § 22-18-31;
- (21) First degree human trafficking as set forth in § 22-49-2 if the victim is a minor;
- (22) Second degree human trafficking as set forth in § 22-49-3 involving the prostitution of a minor;
- (23) Felony use or dissemination of visual recording or photographic device without consent and with intent to self-gratify, harass, or embarrass as set forth in § 22-21-4;
- (24) Manufacturing or distributing a child-like sex doll as set forth in § 22-24A-1.1; or
- (25) Felony conviction of purchasing or possessing a child-like sex doll as set forth in § 22-24A-3.1.

Credits

Source: SL 1994, ch 174, § 1; SL 1995, ch 123, § 1; SL 1997, ch 134, § 1; SL 1998, ch 136, § 4; SL 2002, ch 109, § 11; SL 2002, ch 110, § 1; SL 2003, ch 127, § 4; SL 2004, ch 153, § 1; SDCL § 22-22-30; SL 2005, ch 120, §§ 415, 416; SL 2006, ch 123, § 1; SL 2008, ch 110, § 1; SL 2010, ch 117, § 1; SL 2010, ch 119, § 9; SL 2015, ch 130, § 1; SL 2016, ch 126, § 1; SL 2020, ch 87, § 1; SL 2021, ch 98, § 5; SL 2024, ch 87, § 13.

S D C L § 22-24B-1, SD ST § 22-24B-1

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-1.1

22-24B-1.1. Business day defined

Currentness

For the purposes of this chapter, the term, business day, is defined to mean the same as subdivision 37-24-1(2).

Credits

Source: SL 2010, ch 118, § 5.

S D C L § 22-24B-1.1, SD ST § 22-24B-1.1

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-2

22-24B-2. Registration of convicted sex offenders--Time limit--Violation as felony--Discharge

Currentness

Any person who has been convicted for commission of a sex crime, as defined in § 22-24B-1, shall register in person as a sex offender. The term, convicted, includes a verdict or plea of guilty, a plea of nolo contendere, and a suspended imposition of sentence which has not been discharged pursuant to § 23A-27-14 before July 1, 1995.

Any juvenile fourteen years or older at the time of the offense shall register as a sex offender if that juvenile has been adjudicated of rape as defined in subdivision 22-24B-1(1), or of an out-of-state or federal offense that is comparable to the elements of the crime of rape or any crime committed in another state if the state also requires a juvenile adjudicated of that crime to register as a sex offender in that state. The term, adjudicated, includes a court's finding of delinquency, an admission, and a suspended adjudication of delinquency which has not been discharged pursuant to § 26-8C-4 before July 1, 2009.

The sex offender shall register within three business days of coming into any county to reside, temporarily domicile, attend school, attend postsecondary education classes, or work. Registration shall be with the chief of police of the municipality or the sheriff of the county in which the sex offender resides, temporarily domiciles, attends school, attends postsecondary education classes, or works. The sex offender shall notify the chief of police or sheriff if there is a change where the sex offender resides, attends school, or works. If the sex offender is not otherwise registered in the state, the sex offender shall register within three business days of coming into any county when the sex offender applies for or receives a South Dakota driver license, registers a motor vehicle, establishes a postal address, or registers to vote. A violation of this section is a Class 6 felony. Any person whose sentence is discharged pursuant to § 23A-27-14 after July 1, 1995, shall forward a certified copy of the formal discharge by certified mail to the Division of Criminal Investigation and to local law enforcement where the person is then registered under this section. Upon receipt of the notice, the person shall be removed from the sex offender registry open to public inspection and shall be relieved of further registration requirements under this section.

Any juvenile whose suspended adjudication is discharged pursuant to § 26-8C-4 after July 1, 2009, shall forward a certified copy of the formal discharge by certified mail to the Division of Criminal Investigation and to local law enforcement where the juvenile is then registered under this section. Upon receipt of the notice, the juvenile shall be removed from the sex offender registry open to public inspection and shall be relieved of further registration requirements under this section.

Credits

Source: SL 1994, ch 174, § 2; SL 1995, ch 123, § 2; SL 1997, ch 135, § 1; SL 2002, ch 110, § 2; SDCL § 22-22-31; SL 2005, ch 120, §§ 415, 417; SL 2006, ch 123, § 2; SL 2009, ch 117, § 1; SL 2010, ch 118, § 1; SL 2010, ch 119, § 8; SL 2015, ch 131, § 1; SL 2016, ch 126, § 2.

S D C L § 22-24B-2, SD ST § 22-24B-2

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-2.1

22-24B-2.1. Three-tiered registry

Currentness

The sex offender registry consists of three tiers as provided for in §§ 22-24B-19 to 22-24B-19.2, inclusive. Placement in Tier III requires registrants to register throughout their lifetime. Placement in Tier II requires registrants to register for a minimum of twenty-five years. Placement in Tier I requires registrants to register for a minimum of five years.

Credits

Source: SL 2010, ch 119, § 7; SL 2024, ch 88, § 2.

S D C L § 22-24B-2.1, SD ST § 22-24B-2.1

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-3

22-24B-3. Work defined

Currentness

As used in § 22-24B-2, the term, work, includes employment that is full-time or part-time for a period of time exceeding fourteen days or for an aggregate period of time exceeding thirty days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit.

Credits

Source: SL 2005, ch 120, § 424.

S D C L § 22-24B-3, SD ST § 22-24B-3

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-4

22-24B-4. Attends school and attends classes defined

Currentness

As used in § 22-24B-2, the term, attends school, and the term, attends classes, refer to any person who is enrolled on a full-time or part-time basis, in any public or private educational institution, including any secondary school, trade, or professional institution, or institution of higher education.

Credits

Source: SL 2005, ch 120, § 425.

S D C L § 22-24B-4, SD ST § 22-24B-4

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-5

22-24B-5. Annual verification form mailed to registered offender--

Return of form--Failure to return form--Violation as felony

Currentness

The Division of Criminal Investigation shall mail a nonforwardable verification form at least once annually to the last reported address of each person registered under § 22-24B-2. The person shall return the verification form to the Division of Criminal Investigation within ten days after receipt of any such form. The verification form shall be signed by the person required to register and shall state that the person still resides at the address last reported to the Division of Criminal Investigation. If the person fails to return the verification form to the Division of Criminal Investigation within ten days after receipt of the form, the person is in violation of this section. Nonreceipt of a registration verification does not constitute a defense to failure to comply with this section. A violation of this section is a Class 6 felony.

Credits

Source: SL 1995, ch 123, § 3; SL 2002, ch 110, § 3; SDCL § 22-22-31.1; SL 2005, ch 120, § 415; SL 2006, ch 123, § 3.

S D C L § 22-24B-5, SD ST § 22-24B-5

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-6

22-24B-6. Commencement or change in enrollment or employment--

Report to local law enforcement--Time limit--Violation as felony

Currentness

Any person who is registered as required by § 22-24B-2 and who is employed, carries on a vocation, or attends postsecondary classes at an institution of higher education, institution of higher learning, or technical college in this state shall, within three business days of any commencement and within three business days of termination of enrollment or employment or change in employer, report to the chief of police or county sheriff where the institution is located and complete a registration update form. A violation of this section is a Class 6 felony.

Credits

Source: SL 2003, ch 125, § 1; SDCL § 22-22-31.3; SL 2005, ch 120, § 415; SL 2006, ch 123, § 5; SL 2010, ch 118, § 2; SL 2020, ch 61, § 53.

S D C L § 22-24B-6, SD ST § 22-24B-6

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-7

22-24B-7. Registration every six months--Violation as felony

Currentness

Any person who is subject to the provisions of § 22-24B-2 shall reregister every six months in the same manner as may be provided by law for initial registration. Such person shall reregister during the calendar month during which the registrant was born and six months following the person's birth month.

A violation of this section is a Class 6 felony.

Credits

Source: SL 2003, ch 126, § 1; SDCL § 22-22-31.4; SL 2005, ch 120, § 415; SL 2006, ch 123, § 6.

S D C L § 22-24B-7, SD ST § 22-24B-7

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-8

22-24B-8. Information required for sex offender registration--DNA sample--Violation as felony

Currentness

The registration shall include the following information which, unless otherwise indicated, shall be provided by the offender:

- (1) Name, date of birth, and all aliases used;
- (2) Complete description, photographs, fingerprints and palm prints collected and provided by the registering agency;
- (3) Residence, length of time at that residence including the date the residence was established, and length of time expected to remain at that residence;
- (4) The type of sex crime convicted of;
- (5) The date of commission and the date of conviction of any sex crime committed;
- (6) Social Security number on a separate confidential form;
- (7) Driver license or identification card number, state of issuance, and a photocopy of the driver license or identification card;
- (8) Whether or not the registrant is receiving or has received any sex offender treatment;
- (9) Employer name, address, and phone number or school name, address, and phone number;
- (10) Length of employment or length of attendance at school;
- (11) Occupation or vocation;
- (12) Vehicle license plate number of any vehicle owned or regularly operated by the offender;

- (13) Information identifying any internet accounts of the offender as well as any user names, screen names, and aliases that the offender uses on the internet;
- (14) A listing of all felony convictions, in any jurisdiction, for crimes committed as an adult and sex offense convictions and adjudications subject to sex offender registry provided by the offender and confirmed by the registering agency;
- (15) A description of the offense, provided by the prosecuting attorney;
- (16) Acknowledgment whether the offender is currently an inmate, parolee, juvenile in department of corrections placement or under aftercare supervision, county or city jail inmate or detainee in a juvenile detention center, provided by the offender and confirmed by the administering body of the correctional facility;
- (17) Acknowledgment whether the offender is subject to community safety zone restrictions, provided by the registering agency;
- (18) The name, address and phone number of two local contacts, who have regular interaction with the offender and the name, address and phone number of the offender's next of kin;
- (19) Passport and any document establishing immigration status, including the document type and number along with a photocopy of the passport or immigration document; and
- (20) Any professional, occupational, business or trade license from any jurisdiction.

In addition, at the time of the offender's registration, the registering agency will collect a DNA sample and submit the sample to the South Dakota State Forensic Laboratory in accordance with procedures established by the South Dakota State Forensic Laboratory. The collection of DNA at the time of the registration is not required if the registering agency can confirm that DNA collection and submission to the South Dakota State Forensic Laboratory has already occurred.

Any failure by the offender to accurately provide the information required by this section is a Class 6 felony.

Credits

Source: SL 1994, ch 174, § 3; SL 1998, ch 134, § 2; SL 2003, ch 125, § 2; SDCL § 22-22-32; SL 2005, ch 120, § 415; SL 2006, ch 123, § 7; SL 2011, ch 117, § 3; SL 2016, ch 126, § 3.

S D C L § 22-24B-8, SD ST § 22-24B-8

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-8.1

22-24B-8.1. Annual confirmation by law enforcement of residence address

Currentness

The chief of police in the municipality in which the sex offender resides, or if no chief of police exists, the sheriff of the county, shall annually confirm that the address listed on the sex offender registry matches the residence of each registered sex offender. Such confirmation shall be submitted to the Division of Criminal Investigation.

Credits

Source: SL 2006, ch 123, § 4.

S D C L § 22-24B-8.1, SD ST § 22-24B-8.1

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-9

22-24B-9. Information from sex offender registry--Specifics included

Currentness

When a law enforcement official provides information from the sex offender registry, the information shall include the offender's name, address, the type of sex crime convicted of, and the date of the commission of the crime and the date of conviction of any sex crime committed.

Credits

Source: SL 1998, ch 134, § 1; SDCL § 22-22-32.1; SL 2005, ch 120, § 415.

S D C L § 22-24B-9, SD ST § 22-24B-9

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-10

22-24B-10. Registration forwarded to Division of Criminal Investigation--Files open to public--Exceptions

Currentness

Within three days of registering a person pursuant to §§ 22-24B-1 to 22-24B-14, inclusive, the registering law enforcement agency shall forward the information to the Division of Criminal Investigation. The Division of Criminal Investigation shall maintain a file of all the registrations and shall make them available to state, county, and municipal law enforcement agencies on a twenty-four hour basis. An offender's registration compliance status and registration information, other than the registrant's social security number, victim name, DNA sample, and the names, addresses, and phone numbers for local contacts and next of kin are public information. The provisions of §§ 23-5-11 and 23-6-14 do not apply to providing files pursuant to §§ 22-24B-1 to 22-24B-14, inclusive.

Credits

Source: SL 1994, ch 174, § 4; SL 1995, ch 123, § 4; SDCL § 22-22-33; SL 2005, ch 120, § 415; SL 2006, ch 123, § 8.

S D C L § 22-24B-10, SD ST § 22-24B-10

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-11

22-24B-11. Availability of sex offenders' files--Participation in National Sex Offender Public Registry

Currentness

The Division of Criminal Investigation may make the file available to any regional or national registry of sex offenders and shall participate in the National Sex Offender Public Registry maintained by the United States Department of Justice. The division shall accept files from any regional or national registry of sex offenders and shall make such files available when requested pursuant to §§ 22-24B-1 to 22-24B-14, inclusive.

Credits

Source: SL 1994, ch 174, § 4A; SDCL § 22-22-34; SL 2005, ch 120, § 415; SL 2006, ch 124, § 2.

S D C L § 22-24B-11, SD ST § 22-24B-11

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-12

22-24B-12. Written notice of new location or address required--Time limit--Violation as felony

Currentness

Any person who is required to register as a sex offender pursuant to the provisions of this chapter, and who moves to a different location or residence address shall inform the law enforcement agency where the person last registered of the person's new location or address, in writing, within three business days. The law enforcement agency shall, within three days of receipt of the person's information under this section, forward the information to the Division of Criminal Investigation and to the law enforcement agency having jurisdiction over the person's new location or residence. A failure to register pursuant to this section is a Class 6 felony for a first offense. Any second or subsequent violation of the provisions of this section is a Class 5 felony.

Credits

Source: SL 1994, ch 174, § 5; SL 2002, ch 110, § 4; SDCL § 22-22-36; SL 2005, ch 120, § 415; SL 2006, ch 123, § 9; SL 2008, ch 111, § 1; SL 2011, ch 117, § 1; SL 2018, ch 133, § 1.

S D C L § 22-24B-12, SD ST § 22-24B-12

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-12.1

22-24B-12.1. Second or subsequent convictions

Currentness

Any person who has been convicted of, or entered a plea of guilty to, one or more violations of § 22-24B-2, 22-24B-5, 22-24B-6, 22-24B-7, 22-24B-8 or 22-24B-12 is guilty of a Class 5 felony for any second or subsequent conviction of § 22-24B-2, 22-24B-5, 22-24B-6, 22-24B-7, 22-24B-8 or 22-24B-12.

Credits

Source: SL 2006, ch 123, § 10.

S D C L § 22-24B-12.1, SD ST § 22-24B-12.1

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-12.2

22-24B-12.2. Notice in person of new location or address outside of state--Time limit--Violation as felony

Currentness

Any person who is required to register as a sex offender pursuant to the provisions of this chapter and who intends to move to a different location or residence address outside of the state, shall inform the law enforcement agency where the person last registered of the person's new location or address, in person pursuant to the provisions of § 22-24B-2, not less than three business days prior to leaving the state. The law enforcement agency shall, within three days of the receipt of the person's information under this section, forward the information to the Division of Criminal Investigation and to the law enforcement agency having jurisdiction over the person's new location or residence. A failure to register pursuant to this section is a Class 6 felony for a first offense. Any second or subsequent violation of the provisions of this section is a Class 5 felony.

Credits

Source: SL 2018, ch 133, § 2.

S D C L § 22-24B-12.2, SD ST § 22-24B-12.2

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-13

22-24B-13. Duty of institutions to inform convicted sex offenders
of registration requirements and community safety zone restrictions

Currentness

Any person required to register pursuant to §§ 22-24B-1 to 22-24B-14, inclusive, who is discharged or paroled or temporarily released from an institution of the Department of Corrections or the Department of Human Services or the Department of Social Services or from any jail or other facility in this state where the person was confined because of a conviction of an offense as described in § 22-24B-1 shall, prior to discharge, parole, furlough, work release, or similar program outside the facility, or release, be informed of the duty to register under §§ 22-24B-1 to 22-24B-14, inclusive, and informed of community safety zone restrictions, by the institution in which the person was confined. The institution shall require the person to read and sign any forms as may be required by the Division of Criminal Investigation stating that the duty to register, community safety zone restrictions, and the procedure for registration have been explained. The institution shall obtain the address where the person plans to reside upon discharge, parole, furlough, work release, or similar program outside the facility, or release and shall report the address to the Division of Criminal Investigation. The institution shall give one copy of the form to the person and shall send one copy to the Division of Criminal Investigation and one copy to the law enforcement agency having jurisdiction where the person plans to reside upon discharge, parole, furlough, work release, or similar program outside the facility, or release, and one copy to the office of the state's attorney in the county in which the person was convicted.

Credits

Source: SL 1994, ch 174, § 7; SL 1995, ch 123, § 9; SDCL § 22-22-38; SL 2005, ch 120, § 415; SL 2006, ch 125, § 8; SL 2011, ch 1 (Ex. Ord. 11-1), § 134, eff. Apr. 12, 2011.

S D C L § 22-24B-13, SD ST § 22-24B-13

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-14

22-24B-14. Duty of court to inform sexual offenders of registration requirement and community safety zone restrictions

Currentness

Any person required to register pursuant to §§ 22-24B-1 to 22-24B-14, inclusive, who is released on probation because of the commission or attempt to commit one of the offenses as described in § 22-24B-1 shall, prior to release be informed of the duty to register under §§ 22-24B-1 to 22-24B-14, inclusive, and informed of community safety zone restrictions, by the court in which the person was convicted. The court shall require the person to read and sign any forms as may be required by the Division of Criminal Investigation stating that the duty to register, community safety zone restrictions, and the procedure for registration have been explained. The court shall obtain the address where the person plans to reside upon release and shall report the address to the Division of Criminal Investigation. The court shall give one copy of the form to the person and shall send one copy to the Division of Criminal Investigation and one copy to the law enforcement agency having jurisdiction where the person plans to reside upon release.

Credits

Source: SL 1994, ch 174, § 8; SL 1995, ch 123, § 10; SDCL § 22-22-39; SL 2005, ch 120, § 415; SL 2006, ch 125, § 9.

S D C L § 22-24B-14, SD ST § 22-24B-14

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-15

22-24B-15. Registration records and lists as public records--Confidentiality of victim identifying information

Currentness

Any registration record collected by local law enforcement agencies pursuant to this chapter, registration lists provided to local law enforcement by the Division of Criminal Investigation, and records collected by institutions pursuant to § 22-24B-13 for those persons required to register under the provisions of §§ 22-24B-1 to 22-24B-14, inclusive, is a public record as provided in chapter 1-27.

Nothing in this section permits the release of the name or any identifying information regarding the victim of the crime to any person other than law enforcement agencies, and such victim identifying information is confidential.

Credits

Source: SL 1995, ch 123, § 5; SDCL § 22-22-40; SL 2005, ch 120, §§ 415, 419.

S D C L § 22-24B-15, SD ST § 22-24B-15

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-16

22-24B-16. Penalties for crime committed as result of information from sex offender registry

Currentness

Any person who commits any crime as a result of information gained through the sex offender registry or through public information kept pursuant to § 22-24B-15 is guilty of a Class 6 felony. Such liability is in addition to any other civil or criminal penalties.

Credits

Source: SL 1995, ch 123, § 6; SDCL § 22-22-41; SL 2005, ch 120, § 415.

S D C L § 22-24B-16, SD ST § 22-24B-16

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-17

22-24B-17. Petition for removal from sex offender registry--Service--Response

Currentness

Any person required to register under this chapter who is eligible to seek removal from the registry, as provided for in § 22-24B-19, 22-24B-19.1, or 22-24B-19.4, may petition the circuit court in the county where the person resides for an order terminating the person's obligation to register. If the person seeking removal from the registry is not a resident of this state, but is required to register under other requirements of § 22-24B-2, then the person may petition the circuit court of any county of this state where the person is currently registered. The offender shall serve the petition and all supporting documentation on the state's attorney in the county where the offender is currently registered, the office of the prosecutor in the jurisdiction where the offense occurred, and the attorney general. The attorney general's office shall respond to each petition to request removal from the sex offender registry.

No person petitioning the court under this section for an order terminating the person's obligation to register is entitled to court appointed counsel, experts, or publicly funded witnesses.

Credits

Source: SL 2005, ch 120, § 420; SL 2010, ch 119, § 6; SL 2023, ch 72, § 2.

S D C L § 22-24B-17, SD ST § 22-24B-17

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-18

22-24B-18. Petition and documentation--Contents

Currentness

The petition and documentation to support the request for removal from the sex offender registry shall include:

- (1) The information required for registration of convicted sex offenders in § 22-24B-8;
- (2) A detailed description of the sex crime that was the basis for the offender to register;
- (3) A certified copy of judgment of conviction or other sentencing document; and
- (4) The offender's criminal record and a detailed description of those offenses.

Credits

Source: SL 2005, ch 120, § 421.

S D C L § 22-24B-18, SD ST § 22-24B-18

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-19

22-24B-19. Criteria for removal--Tier I offender

Currentness

To be eligible for removal from the registry as a Tier I offender, the petitioner must show, by clear and convincing evidence, that all of the following criteria have been met:

- (1) At least five years have elapsed since the date the petitioner first registered pursuant to this chapter;
- (2) The crime requiring registration was for:
 - (a) Statutory rape under subdivision 22-22-1(5), or an attempt to commit statutory rape under subdivision 22-22-1(5), but only if the petitioner was twenty-one years of age or younger at the time the offense was committed or attempted;
 - (b) A juvenile adjudication for a sex crime as defined in subdivision 22-24B-1(1);
 - (c) Sexual contact under § 22-22-7 if the victim was between the ages of thirteen and sixteen and the petitioner was at least three years older than the victim, but only if the petitioner was twenty-one years of age or younger at the time the offense was committed;
 - (d) Felony use or dissemination of any image or recording without consent under § 22-21-4; or
 - (e) An out-of-state, federal or court martial offense that is comparable to the elements of the crimes listed in subsections (2)(a), (2)(b), (2)(c), or (2)(d);
- (3) The circumstances surrounding the crime requiring registration did not involve a child under the age of thirteen;
- (4) The petitioner is not a recidivist sex offender;
- (5) The petitioner has substantially complied in good faith with the registration and re-registration requirements imposed under chapter 22-24B; and
- (6) Petitioner demonstrates to the satisfaction of the court that petitioner does not pose a risk or danger to the community.

For purposes of this section, any period of time during which the petitioner was incarcerated or during which the petitioner was confined in a mental health facility does not count toward the five-year calculation, regardless of whether the incarceration or confinement was for the sex offense requiring registration or for some other offense.

Credits

Source: SL 2005, ch 120, § 422; SL 2010, ch 119, § 1; SL 2016, ch 127, § 1; SL 2020, ch 87, § 3; SL 2024, ch 88, § 1.

S D C L § 22-24B-19, SD ST § 22-24B-19

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-19.1

22-24B-19.1. Criteria for removal from registry as Tier II offender

Currentness

To be eligible for removal from the registry as a Tier II offender, the petitioner shall show, by clear and convincing evidence, that all of the following criteria have been met:

- (1) At least twenty-five years have elapsed since the date the petitioner first registered pursuant to this chapter;
- (2) The crime requiring registration was for:
 - (a) Incest as defined in § 22-22A-2; or
 - (b) An out-of-state, federal or court martial offense that is comparable to the elements of incest as defined in § 22-22A-2; or
 - (c) Bestiality as set forth in § 22-22-42;
- (3) The circumstances surrounding the crime requiring registration did not involve a child under the age of thirteen;
- (4) The petitioner is not a recidivist sex offender;
- (5) The petitioner has substantially complied in good faith with the registration and re-registration requirements imposed under chapter 22-24B; and
- (6) Petitioner demonstrates to the satisfaction of the court that he or she does not pose a risk or danger to the community.

For purposes of this section, any period of time during which the petitioner was incarcerated or during which the petitioner was confined in a mental health facility does not count toward the twenty-five year calculation, regardless of whether such incarceration or confinement was for the sex offense requiring registration or for some other offense.

Credits

Source: SL 2010, ch 119, § 2.

S D C L § 22-24B-19.1, SD ST § 22-24B-19.1

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-19.2

22-24B-19.2. Tier III offender defined

Currentness

Any person, who is on the sex offender registry and who is not eligible for removal pursuant to §§ 22-24B-19 and 22-24B-19.1, is a Tier III offender.

Credits

Source: SL 2010, ch 119, § 3.

S D C L § 22-24B-19.2, SD ST § 22-24B-19.2

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-19.3

22-24B-19.3. Recidivist sex offender defined

Currentness

A recidivist sex offender is a person who has been convicted or adjudicated for more than one sex crime listed in § 22-24B-1, regardless of when those convictions or adjudications occurred. However, no person is a recidivist sex offender unless the person committed the second sex crime after having been convicted or adjudicated of a previous sex crime. For purposes of this section, a conviction or adjudication includes a verdict or plea of guilty; a verdict or plea of guilty but mentally ill; a plea of nolo contendere; a suspended imposition of sentence granted under § 23A-27-13, regardless of whether it has been discharged; a deferred prosecution agreement entered by a prosecutor; and a determination made in another state, federal jurisdiction, or courts martial that is comparable to any of these events.

Credits

Source: SL 2010, ch 119, § 4.

S D C L § 22-24B-19.3, SD ST § 22-24B-19.3

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-19.4

22-24B-19.4. Criteria for removal from registry--Removed from out-of-state registry

Currentness

Notwithstanding §§ 22-24B-19 and 22-24B-19.1, an offender who is required to register in this state as a sex offender because of any crime committed in another jurisdiction, if that jurisdiction also requires anyone convicted of that crime to register as a sex offender, may petition to be removed from the registry of this state if the offender is eligible to be removed under the laws of the jurisdiction where the conviction occurred. In addition to the documentation required pursuant to § 22-24B-18, to be eligible to be removed under this section, the petitioner must provide a certified copy of the final order from the convicting jurisdiction removing the offender from the registry of the convicting jurisdiction.

Credits

Source: SL 2023, ch 72, § 1.

S D C L § 22-24B-19.4, SD ST § 22-24B-19.4

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-20

22-24B-20. Order for removal of name from sex offender registry--Denial of petition

Currentness

If the court finds that all of the criteria described in § 22-24B-19, 22-24B-19.1, or 22-24B-19.4 have been met and that the petitioner is not likely to offend again, then the court may, in its discretion, enter an order terminating the petitioner's obligation to register in this state and require the removal of petitioner's name from the registry. However, if the court finds that the offender has provided false, misleading, or incomplete information in support of the petition, or failed to serve the petition and supporting documentation upon the respondent, then the petition may be denied. If the petition is denied, the petitioner may not file a subsequent petition for at least two years from the date the previous petition was denied.

Credits

Source: SL 2005, ch 120, § 423; SL 2010, ch 119, § 5; SL 2023, ch 72, § 3.

S D C L § 22-24B-20, SD ST § 22-24B-20

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-21

22-24B-21. Internet site with sex offender registration information--
Division and registering agency not liable for good faith conduct

Currentness

The Division of Criminal Investigation shall post and maintain on an internet site sex offender registration information including offender name, physical description and photograph, address, type of sex crime convicted of, previous convictions requiring registration as defined in § 22-24B-1, dates of commission and the dates of conviction of any sex crime committed, community safety zone restrictions, offense description, and the offender's status as an inmate, parolee, or person who has completed their correctional placement.

The division shall update sex offender registration information on the internet site within three business days of receipt from the registering agency. The division and the registering agency are not civilly or criminally liable for good faith conduct under this section or § 22-24B-11.

Credits

Source: SL 2006, ch 124, § 1; SL 2011, ch 117, § 2.

S D C L § 22-24B-21, SD ST § 22-24B-21

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-22

22-24B-22. Definitions

Currentness

Terms used in §§ 22-24B-22 to 22-24B-28, inclusive, mean:

- (1) “Community safety zone,” the measurement of a straight line that creates an area that lies within five hundred feet from the facilities and grounds of any school, public park, public playground, domestic abuse shelter, sexual assault shelter, or public pool, including the facilities and grounds itself;
- (2) “Loiter,” to remain for a period of time and under circumstances that a reasonable person would determine is for the primary purpose of observing or contacting minors;
- (3) “School,” any public, private, denominational, or parochial school offering preschool, kindergarten, or any grade from one through twelve accredited through the Department of Education. This term does not apply to any facility where the education of students might occur incidentally to the primary purpose of the facility;
- (4) “Residence,” the address a person lists for purposes of the sex offender registry under subdivision 22-24B-8(3) and § 22-24B-12.

Credits

Source: SL 2006, ch 125, § 1; SL 2018, ch 133, § 3; SL 2021, ch 99, § 1; SL 2024, ch 89, § 1.

S D C L § 22-24B-22, SD ST § 22-24B-22

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-23

22-24B-23. Restrictions on residence within community safety zone--Violation as felony

Currentness

No person who is required to register as a sex offender pursuant to this chapter may establish a residence or reside within a community safety zone unless:

- (1) The person is incarcerated in a jail or prison or other correctional placement which is located within a community safety zone;
- (2) The person is on parole or probation and has been assigned to a halfway house or supervised living center within a community safety zone;
- (3) The person is homeless and has been admitted to a community homeless shelter within a community safety zone by an appropriate community official;
- (4) The person is placed in a health care facility licensed pursuant to chapter 34-12, or certified under Title XVIII or XIX of the Social Security Act as amended to December 31, 2001, or receiving services from a community service provider accredited or certified by the Department of Human Services or the Department of Social Services, which is located within a community safety zone;
- (5) The person was under age eighteen at the time of the offense and the offender was not tried and convicted of the offense as an adult;
- (6) The person established and inhabited the residence as of July 1, 2024;
- (7) The school, public park, public pool, domestic abuse shelter, sexual assault shelter, or public playground was built or established subsequent to the person's establishing residence at the location; or
- (8) The circuit court has entered an order pursuant to § 22-24B-28 exempting the offender from the provisions of §§ 22-24B-22 to 22-24B-28, inclusive.

A violation of this section is a Class 6 felony. Any subsequent violation is a Class 5 felony.

Credits

Source: SL 2006, ch 125, § 2; SL 2010, ch 120, § 1; SL 2011, ch 1 (Ex. Ord. 11-1), § 134, eff. Apr. 12, 2011; SL 2012, ch 128, § 1; SL 2018, ch 134, § 2; SL 2024, ch 89, § 2.

S D C L § 22-24B-23, SD ST § 22-24B-23

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-23.1

22-24B-23.1. Secondary registered location or address--Notification of law enforcement--Violation as misdemeanor

Currentness

Any person who travels to a secondary registered location or address that is located in the community safety zone, and inhabits the location for more than twenty-four hours shall verbally notify the law enforcement of jurisdiction prior to arriving at the location or residence. A violation of this section is a Class 1 misdemeanor.

Credits

Source: SL 2018, ch 134, § 1.

S D C L § 22-24B-23.1, SD ST § 22-24B-23.1

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-24

22-24B-24. Loitering within community safety zone or public library prohibited--Exception--Violation as felony

Currentness

No person who is required to register as a sex offender as defined in this chapter may loiter within a community safety zone or a public library unless the person was under age eighteen at the time of the offense and the offender was not tried and convicted of the offense as an adult or the circuit court has entered an order pursuant to § 22-24B-28 exempting the offender from the provisions of §§ 22-24B-22 to 22-24B-28, inclusive.

A violation of this section is a Class 6 felony. Any subsequent violation is a Class 5 felony.

Credits

Source: SL 2006, ch 125, § 3; SL 2014, ch 110, § 1.

S D C L § 22-24B-24, SD ST § 22-24B-24

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-25

22-24B-25. Inconsistent local ordinances on residence and community access prohibited

Currentness

No city, county, municipality, or township may, by local ordinance, restrict or mitigate residence or community access for convicted sex offenders inconsistent with the provisions of §§ 22-24B-22 to 22-24B-28, inclusive.

Credits

Source: SL 2006, ch 125, § 4.

S D C L § 22-24B-25, SD ST § 22-24B-25

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-26

22-24B-26. Petition for order of exemption from safety zone restrictions--Contents--Service--Response

Currentness

An offender subject to community safety zone restrictions pursuant to §§ 22-24B-22 to 22-24B-28, inclusive, who is eligible to seek exemption from these restrictions as provided for in § 22-24B-27 may petition the circuit court in the county where the person resides for an order to terminate the person's obligation to comply with the community safety zone restrictions. The offender shall serve the petition and all supporting documentation on the state's attorney in the county where the offender currently resides, the office of the prosecutor in the jurisdiction where the offense occurred, and the Office of the Attorney General. The state's attorney in the county where the offender currently resides shall respond to each petition to request exemption from the community safety zone restrictions.

No person petitioning the court under this section for an order terminating the persons's obligation to comply with community safety zone restrictions is entitled to court appointed counsel, publicly funded experts, or publicly funded witnesses.

The petition and documentation to support the request for exemption from the community safety zone restrictions shall include:

- (1) All information required for registration of convicted sex offenders in § 22-24B-8;
- (2) A detailed description of the sex crime that was the basis for the offender to be subject to community safety zone restrictions;
- (3) A certified copy of judgment of conviction or other sentencing document; and
- (4) The offender's criminal record.

The court may request that the petitioner provide additional information if the information provided is incomplete or if the court desires more information relative to the request for exemption.

Credits

Source: SL 2006, ch 125, § 5.

S D C L § 22-24B-26, SD ST § 22-24B-26

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-27

22-24B-27. Community safety zone--Exemption--Eligibility

Currentness

To be eligible for exemption from the community safety zone restrictions, the petitioner shall show, by clear and convincing evidence, the following:

- (1) That at least ten years have elapsed since the date the petitioner was convicted of the offense that subjected the petitioner to community safety zone restrictions pursuant to §§ 22-24B-22 to 22-24B-28, inclusive. For purposes of this subdivision, any period of time during which the petitioner was incarcerated or during which the petitioner was confined in a mental health facility or during which the petitioner was on probation or parole supervision does not count toward the ten-year calculation, regardless of whether such incarceration, confinement or community supervision was for the sex offense requiring registration or for some other offense;
- (2) That the petitioner is not a recidivist sex offender. A recidivist sex offender is a person who has been convicted or adjudicated for more than one sex crime listed in § 22-24B-1, regardless of when those convictions or adjudications occurred. For purposes of this subdivision and subdivision (1) of this section, a conviction or adjudication includes a verdict or plea of guilty; a verdict or plea of guilty but mentally ill; a plea of nolo contendere; a suspended imposition of sentence granted under § 23A-27-13, regardless of whether it has been discharged; a deferred prosecution agreement entered by a prosecutor; and a determination made in another state, federal jurisdiction, or courts martial that is comparable to any of these events;
- (3) That the petitioner has completely and truthfully complied with the registration and reregistration requirements imposed under this chapter;
- (4) That the petitioner has actually resided in South Dakota at least ten consecutive years immediately prior to the filing of the petition. Residence as used in this subdivision does not mean the registration address of an incarcerated sex offender; and
- (5) The circumstances of the crime subjecting the offender to community safety zone restrictions did not involve a child under age thirteen.

Credits

Source: SL 2006, ch 125, § 6; SL 2020, ch 87, § 2.

S D C L § 22-24B-27, SD ST § 22-24B-27

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-28

22-24B-28. Order granting or denying petition--Restrictions on subsequent petition

Currentness

If the court finds that all of the criteria provided for in § 22-24B-27 have been met and that the petitioner is not likely to offend again, then the court may, in its discretion, enter an order terminating the petitioner's obligation to comply with the community safety zone restrictions of this state. However, if the court finds that the offender has provided false or misleading information in support of the petition, or failed to serve the petition and supporting documentation upon the parties provided for in § 22-24B-26, then the petition shall be denied. If the petition is denied, the petitioner may not file a subsequent petition for at least two years from the date the previous petition was denied. The court shall forward any order terminating the petitioner's obligation to comply with community safety zone restrictions to the Division of Criminal Investigation.

Credits

Source: SL 2006, ch 125, § 7.

S D C L § 22-24B-28, SD ST § 22-24B-28

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-29

22-24B-29. Summary description of offense forwarded to or developed by Division of Criminal Investigation

Currentness

If any person is convicted of a sex crime as defined in § 22-24B-1 that is subject to sex offender registration requirements as defined in §§ 22-24B-2 to 22-24B-14, inclusive, the prosecuting attorney shall prepare a summary description of the offense and forward this to the Division of Criminal Investigation for inclusion on the sex offender registry.

Any person who, on July 1, 2006, is subject to sex offender registration or is subject to sex offender registration as a result of a foreign criminal conviction, may have a summary description of the offense developed by the Division of Criminal Investigation and entered on the registry, if the information is available.

The term, foreign criminal conviction, as used in this section and § 22-24B-31, means any conviction issued by a court of competent jurisdiction of another state, federal court, Indian tribe, the District of Columbia, or a commonwealth, territory, or possession of the United States which is enforceable as if the order was issued by a court in this state.

Nothing in this section allows the release of the name of the victim of the crime to any person other than law enforcement agencies, and the name of the victim is confidential.

Credits

Source: SL 2006, ch 121, § 9.

S D C L § 22-24B-29, SD ST § 22-24B-29

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Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-30

22-24B-30. Inmate and juvenile offender registration--Time limit--
Submission to Division of Criminal Investigation--Notice of change of status

Currentness

Any person required to register pursuant to §§ 22-24B-1 to 22-24B-14, inclusive, who is incarcerated or is a juvenile offender committed to the Department of Corrections, shall register within three business days of admission to the correctional facility or commitment to the Department of Corrections.

The Department of Corrections or administering authority of the county or city jail or juvenile detention center shall submit required sex offender registrations to the Division of Criminal Investigation.

The administering authority of the correctional facility shall notify the Division of Criminal Investigation if a person required to register changes status from an inmate to parolee or probationer or if an inmate is transferred to a different address, informing the division of the date of transfer and address of the new location.

Credits

Source: SL 2006, ch 121, § 10; SL 2010, ch 118, § 3.

S D C L § 22-24B-30, SD ST § 22-24B-30

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-31

22-24B-31. Foreign criminal conviction registration--Time limit--Violation as felony

Currentness

Any person with a foreign criminal conviction, which requires the person to register either as a sex offender pursuant to § 22-24B-2, pursuant to the laws of the state where the conviction took place, or pursuant to any court order, shall be required to register within three business days of their arrival in South Dakota. A violation of this section is a Class 4 felony.

Credits

Source: SL 2006, ch 121, § 11; SL 2010, ch 118, § 4.

S D C L § 22-24B-31, SD ST § 22-24B-31

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-32

22-24B-32. Immunity from liability for certain good faith conduct

Currentness

No law enforcement agency, employee of any law enforcement agency, employee or official of any state and county agency and person contracting or appointed to perform services under §§ 22-24B-2, 22-24B-5 to 22-24B-8.1, inclusive, 22-24B-10, 22-24B-12, 23A-27-12.1, or 24-15A-24 is civilly or criminally liable for good faith conduct under §§ 22-24B-2, 22-24B-5 to 22-24B-8.1, inclusive, 22-24B-10, 22-24B-12, 23A-27-12.1, or 24-15A-24.

Credits

Source: SL 2006, ch 123, § 14.

S D C L § 22-24B-32, SD ST § 22-24B-32

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-33

22-24B-33. Eligibility for removal from registry of registrant who has committed out-of-state offense

Currentness

No sex offender registrant, who has committed a registerable offense in some other state is eligible to petition to request removal from the sex offender registry in South Dakota unless the sex offender registrant is also eligible to petition, under substantially equivalent provisions, to request removal from the sex offender registry in the state in which the registerable offense occurred.

Credits

Source: SL 2010, ch 121, § 1.

S D C L § 22-24B-33, SD ST § 22-24B-33

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-34

22-24B-34. Eligibility of registrant who has committed out-of-state offense to establish in-state residence

Currentness

No sex offender registrant, who has committed a registerable offense in some other state is eligible to establish a residence or reside outside a community safety zone in South Dakota unless the sex offender registrant would also be eligible to establish a residence or reside in a substantially equivalent location in the state in which the offense occurred pursuant to the community safety zone statutes in the state in which the offense occurred.

Credits

Source: SL 2010, ch 121, § 2.

S D C L § 22-24B-34, SD ST § 22-24B-34

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South Dakota Codified Laws
Title 22. Crimes (Refs & Annos)
Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-35

22-24B-35. Registered sex offender not eligible to circulate certain nominating petitions

Currentness

No registered sex offender is eligible to circulate certain nominating petitions pursuant to §§ 12-1-32 to 12-1-34, inclusive.

Credits

Source: SL 2012, ch 80, § 4.

S D C L § 22-24B-35, SD ST § 22-24B-35

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-36

22-24B-36. Sex offender to report change in vehicle registration

Currentness

A sex offender shall report, within three business days, any change in the registration status of a vehicle the offender owns, to the authority specified in § 22-24B-2. A violation of this section is a Class 1 misdemeanor.

Credits

Source: SL 2015, ch 132, § 1.

S D C L § 22-24B-36, SD ST § 22-24B-36

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South Dakota Codified Laws

Title 22. Crimes (Refs & Annos)

Chapter 22-24b. Sex Offender Registry (Refs & Annos)

SDCL § 22-24B-37

22-24B-37. Report of intention to travel outside United States--Violation as misdemeanor

Currentness

Any person who is required to register as a sex offender pursuant to the provisions of this chapter shall report that person's intention to travel outside of the United States at least twenty-one days in advance of the travel to the chief of police or county sheriff. The law enforcement officer shall complete a notification of international travel of sex offender form and forward the form to the United States Marshals Service National Sex Offender Targeting Center and to the Division of Criminal Investigation. A violation of the provisions of this section is a Class 1 misdemeanor.

Credits

Source: SL 2016, ch 126, § 4; SL 2018, ch 133, § 4.

S D C L § 22-24B-37, SD ST § 22-24B-37

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West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004

T. C. A. T. 40, Ch. 39, Pt. 2, Refs & Annos

Currentness

T. C. A. T. 40, Ch. 39, Pt. 2, Refs & Annos, TN ST T. 40, Ch. 39, Pt. 2, Refs & Annos

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-201

§ 40-39-201. Short title; general assembly declarations

Currentness

(a) This part shall be known as and may be cited as the “Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004.”

(b) The general assembly finds and declares that:

(1) Repeat sexual offenders, sexual offenders who use physical violence and sexual offenders who prey on children are violent sexual offenders who present an extreme threat to the public safety. Sexual offenders pose a high risk of engaging in further offenses after release from incarceration or commitment and protection of the public from these offenders is of paramount public interest;

(2) It is a compelling and necessary public interest that the public have information concerning persons convicted of sexual offenses collected pursuant to this part, to allow members of the public to adequately protect themselves and their children from these persons;

(3) Persons convicted of these sexual offenses have a reduced expectation of privacy because of the public's interest in public safety;

(4) In balancing the sexual offender's and violent sexual offender's due process and other rights against the interests of public security, the general assembly finds that releasing information about offenders under the circumstances specified in this part will further the primary governmental interest of protecting vulnerable populations from potential harm;

(5) The registration of offenders, utilizing complete and accurate information, along with the public release of specified information concerning offenders, will further the governmental interests of public safety and public scrutiny of the criminal and mental health systems that deal with these offenders;

(6) To protect the safety and general welfare of the people of this state, it is necessary to provide for continued registration of offenders and for the public release of specified information regarding offenders. This policy of authorizing the release of necessary and relevant information about offenders to members of the general public is a means of assuring public protection and shall not be construed as punitive;

(7) The offender is subject to specified terms and conditions that are implemented at sentencing or, at the time of release from incarceration, that require that those who are financially able must pay specified administrative costs to the appropriate registering agency, which shall retain one hundred dollars (\$100) of the costs for the administration of this part and the investigation of sexual offenses, including the purchase of specialized equipment for use in the investigation of sexual offenses, and must be reserved for such purposes at the end of each fiscal year, with the remaining fifty dollars (\$50.00) of fees to be remitted to the state treasury to be deposited into the general fund of the state; provided, that a juvenile offender required to register under this part shall not be required to pay the administrative fee until the offender reaches eighteen (18) years of age; and

(8) The general assembly also declares, however, that in making information about certain offenders available to the public, the general assembly does not intend that the information be used to inflict retribution or additional punishment on those offenders.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2008 Pub.Acts, c. 1164, § 1, eff. July 1, 2008; 2011 Pub.Acts, c. 483, § 4, eff. July 1, 2011; 2020 Pub.Acts, c. 668, § 3, eff. April 2, 2020; 2022 Pub.Acts, c. 931, § 1, eff. April 29, 2022.

T. C. A. § 40-39-201, TN ST § 40-39-201

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-202

§ 40-39-202. Definitions

Currentness

As used in this part, unless the context otherwise requires:

(1) “Conviction” means a judgment entered by a Tennessee court upon a plea of guilty, a plea of nolo contendere, a finding of guilt by a jury or the court notwithstanding any pending appeal or habeas corpus proceeding arising from the judgment. “Conviction” includes, but is not limited to, a conviction by a federal court or military tribunal, including a court-martial conducted by the armed forces of the United States, and a conviction, whether upon a plea of guilty, a plea of nolo contendere or a finding of guilt by a jury or the court in any other state of the United States, other jurisdiction or other country. A conviction, whether upon a plea of guilty, a plea of nolo contendere or a finding of guilt by a jury or the court for an offense committed in another jurisdiction that would be classified as a sexual offense or a violent sexual offense if committed in this state shall be considered a conviction for the purposes of this part. An adjudication in another state for a delinquent act committed in another jurisdiction that would be classified as a violent juvenile sexual offense under this section, if committed in this state, shall be considered a violent juvenile sexual offense for the purposes of this part. “Convictions,” for the purposes of this part, also include a plea taken in conjunction with § 40-35-313 or its equivalent in any other jurisdiction. “Conviction” also includes a juvenile delinquency adjudication for a violent juvenile sexual offense if the offense occurs on or after July 1, 2011;

(2) “Designated law enforcement agency” means any law enforcement agency that has jurisdiction over the primary or secondary residence, place of physical presence, place of employment, school or institution of higher education where the student is enrolled or, for offenders on supervised probation or parole, the department of correction or court ordered probation officer;

(3) “Employed or practices a vocation” means any full-time or part-time employment in the state, with or without compensation, or employment that involves counseling, coaching, teaching, supervising, volunteering or working with minors in any way, regardless of the period of employment, whether the employment is financially compensated, volunteered or performed for the purpose of any government or education benefit;

(4) “Institution of higher education” means a public or private:

(A) Community college;

(B) College;

- (C) University; or
 - (D) Independent postsecondary institution;
- (5) “Law enforcement agency of any institution of higher education” means any campus law enforcement arrangement authorized by § 49-7-118;
- (6) “Local law enforcement agency” means:
- (A) Within the territory of a municipality, the municipal police department;
 - (B) Within the territory of a county having a metropolitan form of government, the metropolitan police department; or
 - (C) Within the unincorporated territory of a county, the sheriff’s office;
- (7) “Minor” means any person under eighteen (18) years of age;
- (8) “Month” means a calendar month;
- (9) “Offender” means sexual offender, violent sexual offender and violent juvenile sexual offender, unless otherwise designated. An offender who qualifies both as a sexual offender and a violent sexual offender or as a violent juvenile sexual offender and as a violent sexual offender shall be considered a violent sexual offender;
- (10) “Offender against children” means any sexual offender, violent sexual offender or violent juvenile sexual offender if the victim in one (1) or more of the offender’s crimes was a child of twelve (12) years of age or less;
- (11) “Parent” means any biological parent, adoptive parent or step-parent, and includes any legal or court-appointed guardian or custodian; however, “parent” shall not include step-parent if the offender’s victim was a minor less than thirteen (13) years of age;
- (12) “Primary residence” means a place where the person abides, lodges, resides or establishes any other living accommodations in this state for five (5) consecutive days;
- (13) “Register” means the initial registration of an offender, or the re-registration of an offender after deletion or termination from the SOR;
- (14) “Registering agency” means a sheriff’s office, municipal police department, metropolitan police department, campus law enforcement agency, the Tennessee department of correction, a private contractor with the Tennessee department of correction or the board;

(15) “Relevant information deemed necessary to protect the public” means that information set forth in § 40-39-206(d)(1)-(15);

(16) “Report” means appearance before the proper designated law enforcement agency for any of the purposes set out in this part;

(17) “Resident” means any person who abides, lodges, resides or establishes any other living accommodations in this state, including establishing a physical presence in this state;

(18) “Secondary residence” means a place where the person abides, lodges, resides or establishes any other living accommodations in this state for a period of fourteen (14) or more days in the aggregate during any calendar year and that is not the person's primary residence; for a person whose primary residence is not in this state, a place where the person is employed, practices a vocation or is enrolled as a student for a period of fourteen (14) or more days in the aggregate during any calendar year; or a place where the person routinely abides, lodges or resides for a period of four (4) or more consecutive or nonconsecutive days in any month and that is not the person's primary residence, including any out-of-state address;

(19) “Sexual offender” means a person who has been convicted in this state of committing a sexual offense or has another qualifying conviction;

(20) “Sexual offense” means:

(A) The commission of any act that, on or after November 1, 1989, constitutes the criminal offense of:

(i) Sexual battery, under § 39-13-505;

(ii) Statutory rape, under § 39-13-506, if the defendant has one (1) or more prior convictions for mitigated statutory rape under § 39-13-506(a), statutory rape under § 39-13-506(b) or aggravated statutory rape under § 39-13-506(c), or if the judge orders the person to register as a sexual offender pursuant to § 39-13-506(d);

(iii) Deleted by 2024 Pub.Acts, c. 545, § 2, eff. July 1, 2024.

(iv) Sexual exploitation of a minor, under § 39-17-1003;

(v) False imprisonment where the victim is a minor, under § 39-13-302, except when committed by a parent of the minor;

(vi) Kidnapping, where the victim is a minor, under § 39-13-303, except when committed by a parent of the minor;

(vii) Indecent exposure, under § 39-13-511, upon a third or subsequent conviction;

- (viii) Solicitation of a minor, under § 39-13-528 when the offense is classified as a Class D felony, Class E felony or a misdemeanor;
- (ix) Spousal sexual battery, for those committing the offense prior to June 18, 2005, under former § 39-13-507 [repealed];
- (x) Attempt, under § 39-12-101, to commit any of the offenses enumerated in this subdivision (20)(A);
- (xi) Solicitation, under § 39-12-102, to commit any of the offenses enumerated in this subdivision (20)(A);
- (xii) Conspiracy, under § 39-12-103, to commit any of the offenses enumerated in this subdivision (20)(A);
- (xiii) Criminal responsibility, under § 39-11-402(2), to commit any of the offenses enumerated in this subdivision (20)(A);
- (xiv) Facilitating the commission, under § 39-11-403, to commit any of the offenses enumerated in this subdivision (20)(A);
- (xv) Being an accessory after the fact, under § 39-11-411, to commit any of the offenses enumerated in this subdivision (20)(A);
- (xvi) Aggravated statutory rape, under § 39-13-506(c);
- (xvii) Soliciting sexual exploitation of a minor--exploitation of a minor by electronic means, under § 39-13-529;
- (xviii) Promotion of prostitution, under § 39-13-515;
- (xix) Patronizing prostitution where the victim is a minor, under § 39-13-514;
- (xx) Observation without consent, under § 39-13-607, upon a third or subsequent conviction;
- (xxi) Observation without consent, under § 39-13-607 when the offense is classified as a Class E felony;
- (xxii) Unlawful photographing under § 39-13-605 when the offense is classified as a Class E or Class D felony;
- (xxiii) Sexual contact with inmates, under § 39-16-408;
- (xxiv) Unlawful photographing, under § 39-13-605, when convicted as a misdemeanor if the judge orders the person to register as a sexual offender pursuant to § 39-13-605;

(xxv) Aggravated unlawful photography, under § 39-13-611; or

(xxvi) Sexual abuse of a corpse, under § 39-17-312(a)(4);

(B) The commission of any act, that prior to November 1, 1989, constituted the criminal offense of:

(i) Sexual battery, under § 39-2-607 [repealed];

(ii) Statutory rape, under § 39-2-605 [repealed], only if the facts of the conviction satisfy the definition of aggravated statutory rape;

(iii) Assault with intent to commit rape or attempt to commit sexual battery, under § 39-2-608 [repealed];

(iv) Incest, under § 39-4-306 [repealed];

(v) Use of a minor for obscene purposes, under § 39-6-1137 [repealed];

(vi) Promotion of performance including sexual conduct by a minor, under § 39-6-1138 [repealed];

(vii) Criminal sexual conduct in the first degree, under § 39-3703 [repealed];

(viii) Criminal sexual conduct in the second degree, under § 39-3704 [repealed];

(ix) Criminal sexual conduct in the third degree, under § 39-3705 [repealed];

(x) Kidnapping where the victim is a minor, under § 39-2-303 [repealed], except when committed by a parent of the minor;

(xi) Solicitation, under § 39-1-401 [repealed] or § 39-118(b) [repealed], to commit any of the offenses enumerated in this subdivision (20)(B);

(xii) Attempt, under § 39-1-501 [repealed], § 39-605 [repealed], or § 39-606 [repealed], to commit any of the offenses enumerated in this subdivision (20)(B);

(xiii) Conspiracy, under § 39-1-601 [repealed] or § 39-1104 [repealed], to commit any of the offenses enumerated in this subdivision (20)(B); or

(xiv) Accessory before or after the fact, or aider and abettor, under title 39, chapter 1, part 3 [repealed], to any of the offenses enumerated in this subdivision (20)(B);

(C) The commission of an act that, on or after July 1, 2025, constitutes the criminal offense of unlawful photography, under § 39-13-605(a)(1) or (a)(3).

(21) “Social media” means websites and other online means of communication that are usually used by large groups of people to share information, to develop social and professional contacts, and that customarily require an identifying password and user identification to participate;

(22) “SOR” means the TBI's centralized record system of offender registration, verification and tracking information;

(23) “Student” means a person who is enrolled on a full-time or part-time basis in any public or private educational institution, including any secondary school, trade or professional institution or institution of higher learning;

(24) “TBI” means the Tennessee bureau of investigation;

(25) “TBI registration form” means the Tennessee sexual offender registration, verification and tracking form;

(26) “TDOC” means the Tennessee department of correction;

(27) “TIES” means the Tennessee information enforcement system;

(28)(A) “Violent juvenile sexual offender” means a person who is adjudicated delinquent in this state for any act that constitutes a violent juvenile sexual offense; provided, that the person is at least fourteen (14) years of age but less than eighteen (18) years of age at the time the act is committed;

(B) Upon an adjudication of delinquency in this state for an act that constitutes a violent juvenile sexual offense, the violent juvenile sexual offender shall also be considered a violent sexual offender under this part, unless otherwise set out in this part;

(29)(A) “Violent juvenile sexual offense” means an adjudication of delinquency, for any act committed on or after July 1, 2011, that, if committed by an adult, constitutes the criminal offense of:

(i) Aggravated rape, under § 39-13-502;

(ii) Rape, under § 39-13-503;

(iii) Rape of a child, under § 39-13-522, if:

(a) The victim is at least four (4) years younger than the offender; or

(b) For acts occurring on or after July 1, 2024, the victim is less than four (4) years younger than the offender, and the judge, taking into account the facts and circumstances surrounding the delinquent act, orders that the juvenile be required to register as a violent juvenile sexual offender;

(iv) Aggravated rape of a child, under § 39-13-531; or

(v) Criminal attempt, under § 39-12-101, to commit any of the offenses enumerated in this subdivision (29)(A);

(B) “Violent juvenile sexual offense” also means an adjudication of delinquency, for any act committed on or after July 1, 2014, that, if committed by an adult, constitutes the criminal offense of:

(i) Aggravated sexual battery, under § 39-13-504;

(ii) Criminal attempt, under § 39-12-101, to commit any of the offenses enumerated in this subdivision (29)(B);

(30) “Violent sexual offender” means a person who has been convicted in this state of committing a violent sexual offense or has another qualifying conviction;

(31) “Violent sexual offense” means the commission of any act that constitutes the criminal offense of:

(A) Aggravated rape, under § 39-2-603 [repealed] or § 39-13-502;

(B) Rape, under § 39-2-604 [repealed] or § 39-13-503;

(C) Aggravated sexual battery, under § 39-2-606 [repealed] or § 39-13-504;

(D) Rape of a child, under § 39-13-522;

(E) Attempt to commit rape, under § 39-2-608 [repealed];

(F) Aggravated sexual exploitation of a minor, under § 39-17-1004;

(G) Especially aggravated sexual exploitation of a minor under § 39-17-1005;

- (H) Aggravated kidnapping where the victim is a minor, under § 39-13-304, except when committed by a parent of the minor;
- (I) Especially aggravated kidnapping where the victim is a minor, under § 39-13-305, except when committed by a parent of the minor;
- (J) Sexual battery by an authority figure, under § 39-13-527;
- (K) Solicitation of a minor, under § 39-13-528 when the offense is classified as a Class B or Class C felony;
- (L) Spousal rape, under § 39-13-507(b)(1) [repealed];
- (M) Aggravated spousal rape, under § 39-13-507(c)(1) [repealed];
- (N) Deleted by 2023 Pub.Acts, c. 459, § 1, eff. July 1, 2023.
- (O) Statutory rape by an authority figure, under § 39-13-532;
- (P) Criminal attempt, under § 39-12-101, § 39-12-501 [repealed], § 39-605 [repealed], or § 39-606 [repealed], to commit any of the offenses enumerated in this subdivision (31);
- (Q) Solicitation, under § 39-12-102, to commit any of the offenses enumerated in this subdivision (31);
- (R) Conspiracy, under § 39-12-103, to commit any of the offenses enumerated in this subdivision (31);
- (S) Criminal responsibility, under § 39-11-402(2), to commit any of the offenses enumerated in this subdivision (31);
- (T) Facilitating the commission, under § 39-11-403, to commit any of the offenses enumerated in this subdivision (31);
- (U) Being an accessory after the fact, under § 39-11-411, to commit any of the offenses enumerated in this subdivision (31);
- (V) Incest, under § 39-15-302;
- (W) Aggravated rape of a child under § 39-13-531;
- (X) Deleted by 2024 Pub.Acts, c. 545, § 3, eff. July 1, 2024.

(Y) Trafficking for a commercial sex act, under § 39-13-309;

(Z) Promotion of prostitution, under § 39-13-515, where the person has a prior conviction for promotion of prostitution; or

(AA) Continuous sexual abuse of a child, under § 39-13-518; and

(32) “Within forty-eight (48) hours” means a continuous forty-eight-hour period, not including Saturdays, Sundays or federal or state holidays.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, §§ 6-9; 2007 Pub.Acts, c. 262, §§ 1, 2, eff. May 30, 2007; 2007 Pub.Acts, c. 465, §§ 1, 4; 2007 Pub.Acts, c. 594, § 6, eff. June 28, 2007; 2008 Pub.Acts, c. 714, § 1, eff. July 1, 2008; 2008 Pub.Acts, c. 1164, § 2, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, §§ 1 to 5, eff. July 1, 2010; 2011 Pub.Acts, c. 483, §§ 5 to 9, eff. July 1, 2011; 2012 Pub.Acts, c. 727, §§ 47, 60, eff. July 1, 2012; 2012 Pub.Acts, c. 753, §§ 1, 2, eff. July 1, 2012; 2012 Pub.Acts, c. 883, § 2, eff. July 1, 2012; 2012 Pub.Acts, c. 1075, § 4, eff. July 1, 2012; 2014 Pub.Acts, c. 722, § 1, eff. July 1, 2014; 2014 Pub.Acts, c. 729, § 1, eff. July 1, 2014; 2014 Pub.Acts, c. 744, § 1, eff. April 21, 2014; 2014 Pub.Acts, c. 770, §§ 1, 5, 6, eff. July 1, 2014; 2014 Pub.Acts, c. 977, § 3, eff. July 1, 2014; 2015 Pub.Acts, c. 284, § 1, eff. July 1, 2015; 2015 Pub.Acts, c. 316, § 1, eff. April 28, 2015; 2015 Pub.Acts, c. 516, § 6, eff. July 1, 2015; 2016 Pub.Acts, c. 941, § 2, eff. July 1, 2016; 2018 Pub.Acts, c. 719, § 1, eff. July 1, 2018; 2019 Pub.Acts, c. 437, § 2, eff. May 22, 2019; 2021 Pub.Acts, c. 402, § 3, eff. July 1, 2021; 2023 Pub.Acts, c. 459, § 1, eff. July 1, 2023; 2024 Pub.Acts, c. 545, §§ 2, 3, eff. July 1, 2024; 2024 Pub.Acts, c. 888, § 1, eff. July 1, 2024; 2025 Pub.Acts, c. 474, § 10, eff. July 1, 2025.

T. C. A. § 40-39-202, TN ST § 40-39-202

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-203

§ 40-39-203. Registration forms; time for completion; contents; photographs

Currentness

(a)(1) Within forty-eight (48) hours of establishing or changing a primary or secondary residence, establishing a physical presence at a particular location, becoming employed or practicing a vocation or becoming a student in this state, the offender shall register or report in person, as required by this part. Likewise, within forty-eight (48) hours of release on probation or any alternative to incarceration, excluding parole, the offender shall register or report in person, as required by this part.

(2) Regardless of an offender's date of conviction, adjudication or discharge from supervision, an offender whose contact with this state is sufficient to satisfy the requirements of subdivision (a)(1) is required to register in person as required by this part, if the person was required to register as any form of sexual offender, juvenile offender or otherwise, in another jurisdiction prior to the offender's presence in this state.

(3) An offender who resides and is registered in this state and who intends to move out of this state shall, within forty-eight (48) hours after moving to another state or within forty-eight (48) hours of becoming reasonably certain of the intention to move to another state, register or report to the offender's designated law enforcement agency the address at which the offender will reside in the new jurisdiction.

(4) Within forty-eight (48) hours of a change in any other information given to the registering agency by the offender that is contained on the registration form, the offender must report the change to the registering agency.

(5) Within forty-eight (48) hours of being released from probation or parole, an offender must report to the proper law enforcement agency, which shall then become the registering agency and take over registry duties from the department of correction.

(6) Within forty-eight (48) hours of a material change in employment or vocation status, the offender shall report the change to the person's registering agency. For purposes of this subdivision (a)(6), "a material change in employment or vocational status" includes being terminated involuntarily from the offender's employment or vocation, voluntarily terminating the employment or vocation, taking different employment or the same employment at a different location, changing shifts or substantially changing the offender's hours of work at the same employment or vocation, taking additional employment, reducing the offender's employment or any other change in the offender's employment or vocation that differs from that which the offender originally registered. For a change in employment or vocational status to be considered a material one, it must remain in effect for five (5) consecutive days or more.

(7) Within three (3) days, excluding holidays, of an offender changing the offender's electronic mail address information, any instant message, chat or other internet communication name or identity information that the person uses or intends to use, whether within or without this state, the offender shall report the change to the offender's designated law enforcement agency.

(b)(1) An offender who is incarcerated in this state in a local, state or federal jail or a private penal institution shall, within forty-eight (48) hours prior to the offender's release, register or report in person, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3), as follows:

(A) If incarcerated in a state, federal or private penal facility, with the warden or the warden's designee; or

(B) If incarcerated in a local jail, with the sheriff or the sheriff's designee.

(2) After registering or reporting with the incarcerating facility as provided in subdivision (b)(1), an offender who is incarcerated in this state in a local, state or federal jail or a private penal institution shall, within forty-eight (48) hours after the offender's release from the incarcerating institution, report in person to the offender's registering agency, unless the place of incarceration is also the person's registering agency.

(3) Notwithstanding subdivisions (b)(1) and (2), an offender who is incarcerated in this state in a local, state or federal jail or a private penal institution and who has not registered pursuant to § 40-39-212(a) or any other law shall, by August 1, 2011, be required to report in person, register, complete and sign a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3), as follows:

(A) If incarcerated in a state, federal or private penal facility, with the warden or the warden's designee; or

(B) If incarcerated in a local jail, with the sheriff or the sheriff's designee.

(c) An offender from another state, jurisdiction or country who has established a primary or secondary residence within this state or has established a physical presence at a particular location shall, within forty-eight (48) hours of establishing residency or a physical presence, register or report in person with the designated law enforcement agency, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3).

(d)(1) An offender from another state, jurisdiction or country who is not a resident of this state shall, within forty-eight (48) hours of employment, commencing practice of a vocation or becoming a student in this state, register or report in person, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3), with:

(A) The sheriff in the county or the chief of police in the municipality within this state where the offender is employed or practices a vocation; or

(B) The law enforcement agency or any institution of higher education, or if not applicable, the designated law enforcement agency with jurisdiction over the campus, if the offender is employed or practices a vocation or is a student.

(2) Within forty-eight (48) hours of an offender from another state, jurisdiction or country who is not a resident of this state making a material change in the offender's vocational or employment or vocational status within this state, the offender shall report the change to the person's registering agency. For purposes of this subdivision (d)(2), "a material change in employment or vocational status" includes being terminated involuntarily from the offender's employment or vocation, voluntarily terminating the employment or vocation, taking different employment or the same employment at a different location, changing shifts or substantially changing the offender's hours of work at the same employment or vocation, taking additional employment, reducing the offender's employment or any other change in the offender's employment or vocation that differs from that which the offender originally registered. For a change in employment or vocational status to be considered a material one, it must remain in effect for five (5) consecutive days or more.

(e) An offender from another state, jurisdiction or country who becomes a resident of this state, pursuant to the Interstate Compact for Supervision of Adult Offenders, compiled in title 40, chapter 28, part 4, shall, within forty-eight (48) hours of entering the state, register or report in person with the board, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3), in addition to the requirements of title 40, chapter 28, part 4 and the specialized conditions for sex offenders from the board.

(f) Offenders who do not maintain either a primary or secondary residence, as defined in this part, shall be considered homeless and are subject to the registration requirements of this part. Offenders who do not maintain either a primary or secondary residence shall be required to report to their registering agency monthly for so long as they do not maintain either a primary or secondary residence.

(g) Offenders who were previously required to register or report under former title 40, chapter 39, part 1 [repealed], shall register or report in person with the designated law enforcement agency by August 31, 2005. Offenders who reside in nursing homes and assisted living facilities and offenders committed to mental health institutions or continuously confined to home or health care facilities due to mental or physical disabilities are exempt from this requirement, as otherwise provided by this part.

(h) An offender who indicates to a designated law enforcement agency on the TBI registration form the offender's intent to reside in another state, jurisdiction or country and who then decides to remain in this state shall, within forty-eight (48) hours of the decision to remain in the state, report in person to the designated law enforcement agency and update all information pursuant to subsection (i).

(i) TBI registration forms shall require the registrant's signature and disclosure of the following information, under penalty of perjury, pursuant to § 39-16-702(b)(3):

(1) Complete name and all aliases, including, but not limited to, any names that the offender may have had or currently has by reason of marriage or otherwise, including pseudonyms and ethnic or tribal names;

(2) Date and place of birth;

(3) Social security number;

- (4) A photocopy of a valid driver license, or if no valid driver license has been issued to the offender, a photocopy of any state or federal government issued identification card;
- (5) For an offender on supervised release, the name, address and telephone number of the registrant's probation or parole officer or other person responsible for the registrant's supervision;
- (6) Sexual offenses or violent sexual offenses for which the registrant has been convicted, the date of the offenses and the county and state of each conviction; or the violent juvenile sexual offense for which the registrant has been adjudicated delinquent, the date of the act for which the adjudication was made and the county and state of each adjudication;
- (7) Name of any current employers and length of employment, including physical addresses and phone numbers;
- (8) Current physical address and length of residence at that address, which shall include any primary or secondary residences. For the purpose of this section, a post office box number shall not be considered an address;
- (9) Mailing address, if different from physical address;
- (10) Any vehicle, mobile home, trailer or manufactured home used or owned by an offender, including descriptions, vehicle information numbers and license tag numbers;
- (11) Any vessel, live-aboard vessel or houseboat used by an offender, including the name of the vessel, description and all identifying numbers;
- (12) Name and address of each institution of higher education in this state where the offender is employed or practices a vocation or is a student;
- (13) Race and gender;
- (14) Name, address and phone number of offender's closest living relative;
- (15) Whether victims of the offender's convictions are minors or adults, the number of victims and the correct age of the victim or victims and of the offender at the time of the offense or offenses, if the ages are known;
- (16) Verification by the TBI or the offender that the TBI has received the offender's DNA sample;
- (17) A complete listing of the offender's electronic mail address information, including usernames, any social media accounts the offender uses or intends to use, instant message, other internet communication platforms or devices, and the offender's username, screen name, or other method by which the offender accesses these accounts or websites;

(18) Whether any minors reside in the primary or secondary residence;

(19)(A) Any other registration, verification and tracking information, including fingerprints and a current photograph of the offender, vehicles and vessels, as referred to in subdivisions (i)(10) and (i)(11), as may be required by rules promulgated by the TBI, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5;

(B) By January 1, 2007, the TBI shall promulgate and disseminate to all applicable law enforcement agencies, correctional institutions and any other agency that may be called upon to register an offender, rules establishing standardized specifications for the photograph of the offender required by subdivision (i)(19)(A). The rules shall specify that the photograph or digital image submitted for each offender must conform to the following compositional specifications or the entry will not be accepted for use on the registry and the agency will be required to resubmit the photograph:

(i) Head Position:

(a) The person being photographed must directly face the camera;

(b) The head of the person should not be tilted up, down or to the side; and

(c) The head of the person should cover about fifty percent (50%) of the area of the photo;

(ii) Background:

(a) The person being photographed should be in front of a neutral, light-colored background; and

(b) Dark or patterned backgrounds are not acceptable;

(iii) The photograph must be in focus;

(iv) Photos in which the person being photographed is wearing sunglasses or other items that detract from the face are not permitted; and

(v) Head Coverings and Hats:

(a) Photographs of applicants wearing head coverings or hats are only acceptable due to religious beliefs, and even then, may not obscure any portion of the face of the applicant; and

(b) Photos of applicants with tribal or other headgear not specifically religious in nature are not permitted;

(20) Copies of all passports and immigration documents; and

(21) Professional licensing information that authorizes an offender to engage in an occupation or carry out a trade or business.

(j)(1) Notwithstanding the registration deadlines otherwise established by this section, any person convicted of a sexual offense or violent sexual offense in this state or who has another qualifying conviction as defined in § 40-39-202, but who is not required to register for the reasons set out in subdivision (j)(2), shall have until August 1, 2007, to register as a sexual offender or violent sexual offender in this state.

(2) Subdivision (j)(1) shall apply to offenders:

(A) Whose convictions for a sexual offense or violent sexual offense occurred prior to January 1, 1995;

(B) Who were not on probation, parole or any other alternative to incarceration for a sexual offense or prior sexual offense on or after January 1, 1995;

(C) Who were discharged from probation, parole or any other alternative to incarceration for a sexual offense or violent sexual offense prior to January 1, 1995; or

(D) Who were discharged from incarceration without supervision for a sexual offense or violent sexual offense prior to January 1, 1995.

(k) No later than the third day after an offender's initial registration, the registration agency shall send by the United States postal service or by electronic means the original signed TBI registration form containing information required by subsection (i) to TBI headquarters in Nashville.

(l) The offender's signature on the TBI registration form creates the presumption that the offender has knowledge of the registration, verification and tracking requirements of this part.

(m) Registry information regarding all registered offender's electronic mail address information, any instant message, chat or other internet communication name or identity information may be electronically transmitted by the TBI to a business or organization that offers electronic communication or remote computing services for the purpose of prescreening users or for comparison with information held by the requesting business or organization. In order to obtain the information from the TBI, the requesting business or organization that offers electronic communication or remote computing services shall agree to notify the TBI forthwith when a comparison indicates that any such registered sex offender's electronic mail address information, any instant message, chat or other internet communication name or identity information is being used on their system. The requesting business or organization shall also agree that the information will not be further disseminated.

(n) If the offender's DNA sample has not already been collected pursuant to § 40-35-321 or any other law and received by the TBI, the offender's DNA sample shall be taken by the registering agency at the time the offender registers or at the offender's next scheduled registration or reporting and sent to the TBI.

(o) An offender who registers or reports as required by this section prior to July 1, 2008, shall provide the additional information on the registration form required by this section at the offender's next scheduled registration or reporting date.

(p) An offender who is housed in a halfway house or any other facility as an alternative to incarceration where unsupervised contact is permitted outside of the facility is required to register or report with the registering agency as set out in § 40-39-204 in the city or county of the facility in which the offender is housed. The registering agency shall be responsible for the duties set out in § 40-39-205(b) during the time that the offender is housed in the facility.

(q) Any court exercising juvenile jurisdiction that adjudicates a juvenile as delinquent for conduct that qualifies such juvenile as a violent juvenile sexual offender shall transmit the information set out in subsection (i) pertaining to such violent juvenile sexual offender to the TBI for inclusion on the SOR within forty-eight (48) hours of the offender's adjudication for the qualifying offenses set out in § 40-39-202(29).

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, §§ 10 to 14; 2007 Pub.Acts, c. 126, § 1, eff. July 1, 2007; 2007 Pub.Acts, c. 465, §§ 2, 3; 2008 Pub.Acts, c. 979, §§ 1 to 3, eff. July 1, 2008; 2008 Pub.Acts, c. 1164, § 3, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, §§ 6, 7, eff. July 1, 2010; 2011 Pub.Acts, c. 222, § 1, eff. May 20, 2011; 2011 Pub.Acts, c. 267, § 1, eff. May 23, 2011; 2011 Pub.Acts, c. 483, §§ 10 to 12, eff. July 1, 2011; 2012 Pub.Acts, c. 727, § 48, eff. July 1, 2012; 2015 Pub.Acts, c. 516, §§ 3, 7, eff. July 1, 2015.

T. C. A. § 40-39-203, TN ST § 40-39-203

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T. C. A. § 40-39-204

§ 40-39-204. Data repository; reporting and exemptions; re-incarceration; travel out of the country

Currentness

(a) The TBI shall maintain and make available a connection to the SOR for all criminal justice agencies with TIES internet capabilities, by which registering agencies shall enter original, current and accurate data required by this part. The TBI shall provide viewing and limited write access directly to the SOR through the TIES internet to registering agencies for the entry of record verification data, changes of residence, employment or other pertinent data required by this part and to assist in offender identification. Registering agencies should immediately, but in no case to exceed twelve (12) hours from registration, enter all data received from the offender as required by the TBI and § 40-39-203(i), into the TIES internet for the enforcement of this part by TBI, designated law enforcement agencies, TDOC, and private contractors with TDOC.

(b)(1) Violent sexual offenders shall report in person during the months of March, June, September, and December of each calendar year, to the designated law enforcement agency, on a date established by such agency, to update the offender's fingerprints, palm prints and photograph, as determined necessary by the agency, and to verify the continued accuracy of the information in the TBI registration form. Offenders who reside in nursing homes and assisted living facilities and offenders committed to mental health institutions or continuously confined to home or health care facilities due to mental or physical disabilities are exempt from the in-person reporting and fingerprinting, as otherwise provided by this part. At the time of the violent offender's initial registration or initial reporting date for the calendar year, the violent sexual offender shall pay the specified administrative costs, not to exceed one hundred fifty dollars (\$150), one hundred dollars (\$100) of which shall be retained by the designated law enforcement agency to be used for the purchase of equipment, to defray personnel and maintenance costs and any other expenses incurred as a result of the implementation of this part. The remaining fifty dollars (\$50.00) shall be remitted by the registering agency to the state treasury to be deposited into the general fund of the state. Offenders who reside in nursing homes and assisted living facilities and offenders committed to mental health institutions or continuously confined to home or health care facilities due to mental or physical disabilities are exempt from paying the administrative cost as otherwise provided by this part.

(2) At least once during the months of March, June, September, and December of each calendar year, all violent juvenile sexual offenders shall report in person to the offender's registering agency to update the offender's fingerprints, palm prints and photograph, as determined necessary by the agency, and to verify the continued accuracy of the information transmitted to the TBI by the registering agency as defined in § 40-39-202. Offenders in custody shall register as set out in § 40-39-203(b)(1).

(c) Once a year, all sexual offenders shall report in person, no earlier than seven (7) calendar days before and no later than seven (7) calendar days after the offender's date of birth, to the designated law enforcement agency to update the offender's fingerprints, palm prints and photograph, as determined necessary by the agency, to verify the continued accuracy of the information in the TBI registration form and to pay the specified administrative costs, not to exceed one hundred fifty dollars (\$150), one hundred dollars (\$100) of which shall be retained by the designated law enforcement agency to be used for the purchase of

equipment, to defray personnel and maintenance costs and any other expenses incurred as a result of the implementation of this part. The remaining fifty dollars (\$50.00) shall be submitted by the registering agency to the state treasury to be deposited in the general fund of the state. Offenders whose initial registration occurs after the annual reporting period shall be required to pay the administrative costs at the time of the initial registration. Offenders who reside in nursing homes and assisted living facilities and offenders committed to mental health institutions or continuously confined to home or health care facilities due to mental or physical disabilities are exempt from the in-person reporting and fingerprinting and administrative cost as otherwise provided by this part. However, if an offender is released or discharged from a nursing home, assisted living facility or mental health institution or is no longer continuously confined to home or a health care facility due to mental or physical disabilities, the offender shall, within forty-eight (48) hours, register in person with the designated law enforcement agency, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3). If the offender has previously registered prior to the release or discharge, the offender shall, within forty-eight (48) hours, report in person to the designated law enforcement agency and update all information pursuant to this section.

(d) Within three (3) days after the offender's verification, the designated law enforcement agency with whom the offender verified shall send by United States postal service or by electronic means the original signed TBI registration form containing information required by § 40-39-203(i) to TBI headquarters in Nashville. The TBI shall be the state central repository for all original TBI registration forms and any other forms required by § 40-39-207 that are deemed necessary for the enforcement of this part. The designated law enforcement agency shall retain a duplicate copy of the TBI registration form as a part of the business records for that agency.

(e) If a person required to register under this part is reincarcerated for another offense or as the result of having violated the terms of probation, parole, conditional discharge or any other form of alternative sentencing, the offender shall immediately report the offender's status as a sexual offender or violent sexual offender to the facility where the offender is incarcerated or detained and notify the offender's appropriate registering agency, if different, that the offender is currently being detained or incarcerated. Registration, verification and tracking requirements for such persons are tolled during the subsequent incarceration. Within forty-eight (48) hours of the release from any subsequent reincarcerations, the offender shall register with the appropriate designated law enforcement agency. Likewise, if a person who is required to register under this part is deported from this country, the registration, verification and tracking requirements for such persons are tolled during the period of deportation. Within forty-eight (48) hours of the return to this state after deportation, the offender shall register with the appropriate designated law enforcement agency.

(f) Offenders who reside in nursing homes and assisted living facilities and offenders committed to mental health institutions or continuously confined to home or health care facilities due to mental or physical disabilities shall be exempted from the in-person reporting, fingerprinting and administrative cost requirements; however, it shall be the responsibility of the offender, the offender's guardian, the person holding the offender's power of attorney or, in the absence thereof, the administrator of the facility, to report any changes in the residential status to TBI headquarters in Nashville by United States postal service. Further, if an offender is released or discharged from a nursing home, assisted living facility, mental health institution or is no longer continuously confined to home or a health care facility due to mental or physical disabilities, the offender shall, within forty-eight (48) hours, register in person with the designated law enforcement agency, completing and signing a TBI registration form, under penalty of perjury, pursuant to § 39-16-702(b)(3). If the offender has previously registered prior to the release or discharge, the offender shall, within forty-eight (48) hours, report in person to the designated law enforcement agency and update all information pursuant to this section.

(g) Offenders who do not maintain either a primary or secondary residence, as defined in this part, shall be considered homeless, and are subject to the reporting requirements of this part. The offenders who are considered homeless shall be required to report

to their registering agency monthly. By the authority established in § 40-39-206(f), the TBI shall develop tracking procedures for the continued verification and tracking of these offenders in the interest of public safety.

(h) Each offender shall report to the designated law enforcement agency at least twenty-one (21) days before traveling out of the country; provided, that offenders who travel out of the country frequently for work or other legitimate purpose, with the written approval of the designated law enforcement agency, and offenders who travel out of the country for emergency situations shall report to the designated law enforcement agency at least twenty-four (24) hours before traveling out of the country.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, §§ 15, 16, eff. July 1, 2006; 2008 Pub.Acts, c. 1164, §§ 4, 16, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, §§ 16 to 18, eff. July 1, 2010; 2011 Pub.Acts, c. 266, § 1, eff. July 1, 2011; 2011 Pub.Acts, c. 483, § 13, eff. July 1, 2011; 2012 Pub.Acts, c. 727, § 61, eff. July 1, 2012; 2015 Pub.Acts, c. 516, § 5, eff. July 1, 2015; 2020 Pub.Acts, c. 668, §§ 4, 5, eff. April 2, 2020.

T. C. A. § 40-39-204, TN ST § 40-39-204

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T. C. A. § 40-39-205

§ 40-39-205. Printing and distribution of forms; explanation of requirements and sanctions to offenders

Currentness

(a) TBI registration forms shall be designed, printed and distributed by and at the expense of the TBI. These forms shall include instructions for compliance with this part and a statement of understanding and acknowledgment of those instructions to be signed by the offender. TBI registration forms shall be available from registering agencies, parole officers, probation officers and other public officers and employees assigned responsibility for the supervised release of convicted felons into the community.

(b) It shall be the duty of the offender's designated registering agency, its representatives and designees, including any district attorney general's criminal investigator, to verify the accuracy and completeness of all information contained in the offender's SOR.

(c) The officer or employee responsible for supervising an offender who has been released on probation, parole or any other alternative to incarceration shall:

(1) Promptly obtain the offender's signed statement acknowledging that the named officer or employee has:

(A) Fully explained, and the offender understands, the registration, verification and tracking requirements and sanctions of this part and the current sex offender directives established by the department of correction;

(B) Provided the offender with a blank TBI registration form and assisted the offender in completing the form; and

(C) Obtained fingerprints, palm prints and photographs of the offender, and vehicles and vessels, as determined necessary by the agency;

(2) Immediately, but in no case to exceed twelve (12) hours from registration, enter all data received from the offender, as required by the TBI and § 40-39-203(i), into the TIES internet. The officer or employee shall, within three (3) days, send by United States postal service or by electronic means the signed and completed TBI registration form to TBI headquarters in Nashville. The photographs of the offender, vehicles and vessels, and the fingerprints should also be sent by United States postal service within three (3) days, if not electronically submitted to TBI headquarters in Nashville. The registering agency shall retain a duplicate copy of the TBI registration form as a part of the business records for that agency.

(d) Not more than forty-eight (48) hours prior to the release of an offender from incarceration, with or without supervision, the warden of the correctional facility or the warden's designee, or sheriff of the jail or the sheriff's designee, shall obtain the offender's signed statement acknowledging that the official has fully explained, and the offender understands, the registration, verification and tracking requirements and sanctions of this part. If the offender is to be released with or without any type of supervision, the warden of the correctional facility or the warden's designee, or sheriff of the jail or the sheriff's designee, shall assist the offender in completing a TBI registration form. The warden or the warden's designee, or the sheriff or the sheriff's designee, shall also obtain fingerprints, palm prints and photographs of the offender, vehicles and vessels, as determined necessary by the agency. The official shall send by United States postal service the signed and completed TBI registration form to TBI headquarters in Nashville within three (3) days of the release of the offender. The photographs of the offender, vehicles and vessels, and the fingerprints should also be sent by United States postal service within three (3) days, if not electronically submitted to TBI headquarters in Nashville.

(e) If the offender is placed on unsupervised probation, the court shall fully explain to the offender, on the court record, the registration, verification and tracking requirements and sanctions of this part. The court shall then order the offender to report within forty-eight (48) hours, in person, to the appropriate registering agency to register as required by this part.

(f) Through press releases, public service announcements or through other appropriate public information activities, the TBI shall attempt to ensure that all offenders, including those who move into this state, are informed and periodically reminded of the registration, verification and tracking requirements and sanctions of this part.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, § 17, eff. July 1, 2006; 2012 Pub.Acts, c. 727, § 62, eff. July 1, 2012; 2015 Pub.Acts, c. 516, § 4, eff. July 1, 2015.

T. C. A. § 40-39-205, TN ST § 40-39-205

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Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-206

§ 40-39-206. Centralized record system; noncompliance; data privacy; liability; rules and regulations

Currentness

(a) Using information received or collected pursuant to this part, the TBI shall establish, maintain and update a centralized record system of offender registration, verification and tracking information. The TBI may receive information from any credible source and may forward the information to the appropriate law enforcement agency for investigation and verification. The TBI shall promptly report current sexual offender registration, verification and tracking information to the identification division of the federal bureau of investigation.

(b) Whenever there is a factual basis to believe that an offender has not complied with this part, pursuant to the powers enumerated in subsection (e), the TBI shall make the information available through the SOR to the district attorney general, designated law enforcement agencies and the probation officer, parole officer or other public officer or employee assigned responsibility for the offender's supervised release.

(c) Notwithstanding any law to the contrary, officers and employees of the TBI, local law enforcement, law enforcement agencies of institutions of higher education, courts, probation and parole, the district attorneys general and their employees and other public officers and employees assigned responsibility for offenders' supervised release into the community shall be immune from liability relative to their good faith actions, omissions and conduct pursuant to this part.

(d) For any offender convicted in this state of a sexual offense or violent sexual offense, as defined by this part, that requires the offender to register pursuant to this part, the information concerning the registered offender set out in subdivisions (d)(1)-(16) shall be considered public information. If an offender from another state establishes a residence in this state and is required to register in this state pursuant to § 40-39-203, the information concerning the registered offender set out in subdivisions (d)(1)-(16) shall be considered public information regardless of the date of conviction of the offender in the other state. In addition to making the information available in the same manner as public records, the TBI shall prepare and place the information on the state's internet home page. This information shall become a part of the Tennessee internet criminal information center when that center is created within the TBI. The TBI shall also establish and operate a toll-free telephone number, to be known as the "Tennessee Internet Criminal Information Center Hotline," to permit members of the public to call and inquire as to whether a named individual is listed among those who have registered as offenders as required by this part. The following information concerning a registered offender is public:

(1) The offender's complete name, as well as any aliases, including, but not limited to, any names that the offender may have had or currently has by reason of marriage or otherwise, including pseudonyms and ethnic or tribal names;

(2) The offender's date of birth;

- (3) The sexual offense or offenses or violent sexual offense or offenses of which the offender has been convicted;
 - (4) The primary and secondary addresses, including the house number, county, city and ZIP code in which the offender resides;
 - (5) The offender's race and gender;
 - (6) The date of last verification of information by the offender;
 - (7) The most recent photograph of the offender that has been submitted to the TBI SOR;
 - (8) The offender's driver license number and issuing state or any state or federal issued identification number;
 - (9) The offender's parole or probation officer;
 - (10) The name and address of any institution of higher education in the state at which the offender is employed, carries on a vocation or is a student;
 - (11) The text of the provision of law or laws defining the criminal offense or offenses for which the offender is registered;
 - (12) A physical description of the offender, including height, weight, color of eyes and hair, tattoos, scars and marks;
 - (13) The criminal history of the offender, including the date of all arrests and convictions, the status of parole, probation or supervised release, registration status and the existence of any outstanding arrest warrants for the sex offender;
 - (14) The address of the offender's employer or employers;
 - (15) The license plate number and a description of all of the offender's vehicles; and
 - (16) Whether the offender is an offender against children, as defined by § 40-39-202.
- (e) For any violent juvenile sexual offender who is adjudicated for a violent juvenile sexual offense, the information concerning the violent juvenile sexual offender set out in (d) shall be confidential, except as otherwise provided under § 40-39-207(j) and any other provision of law.
- (f) The TBI has the authority to promulgate any necessary rules to implement and administer this section. These rules shall be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2007 Pub.Acts, c. 531, §§ 1, 2, eff. June 27, 2007; 2008 Pub.Acts, c. 1164, §§ 5, 15, eff. July 1, 2008; 2008 Pub.Acts, c. 1164, § 6, eff. Jan. 1, 2009; 2010 Pub.Acts, c. 1138, §§ 8 to 10, eff. July 1, 2010; 2011 Pub.Acts, c. 483, § 14, eff. July 1, 2011; 2014 Pub.Acts, c. 770, § 4, eff. July 1, 2014.

T. C. A. § 40-39-206, TN ST § 40-39-206

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Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-207

§ 40-39-207. Petition or request to terminate registration requirements; effect of denial; removal upon expungement; violent juvenile sexual offenders

Currentness

(a)(1) Except as otherwise provided in subdivision (a)(3), unless a plea was taken in conjunction with § 40-35-313, no sooner than ten (10) years after termination of active supervision on probation, parole, or any other alternative to incarceration, or no sooner than ten (10) years after discharge from incarceration without supervision, an offender required to register under this part may file a request for termination of registration requirements with TBI headquarters in Nashville. If the person is required to register under this part due to a plea taken in conjunction with § 40-35-313, an offender required to register under this part may file a request for termination of registration upon successful completion of a term of judicial diversion pursuant to § 40-35-313 and upon receiving an order from a court of competent jurisdiction signifying the successful completion of the term of judicial diversion and the dismissal of charges pursuant to § 40-35-313.

(2) Notwithstanding subdivision (a)(1), if a court of competent jurisdiction orders that an offender's records be expunged pursuant to § 40-32-108, and the offense being expunged is an offense eligible for expunction under § 40-32-107, the TBI shall immediately remove the offender from the SOR and the offender's records shall be removed as provided in § 40-39-209.

(3) Notwithstanding subdivision (a)(1), no sooner than three (3) years after termination of active supervision on probation, parole, or any other alternative to incarceration, or no sooner than three (3) years after discharge from incarceration without supervision, an offender required to register under this part due to conviction under § 39-16-408 may file a request for termination of registration requirements with TBI headquarters in Nashville.

(4) Notwithstanding subdivision (a)(1), an offender who is required to register pursuant to this part because the offender was convicted of the offense of aggravated prostitution under § 39-13-516 and the offense was committed prior to July 1, 2024, may file a request for termination of registration requirements with TBI headquarters in Nashville.

(5) Notwithstanding subdivision (a)(1), an offender who is required to register pursuant to this part because the offender was convicted of the offense of criminal exposure of another to human immunodeficiency virus (HIV) under § 39-13-109(a)(1) and the offense was committed prior to July 1, 2023, may file a request for termination of registration requirements with TBI headquarters in Nashville.

(b) Upon receipt of the request for termination, the TBI shall review documentation provided by the offender and contained in the offender's file and the SOR, to determine whether the offender has complied with this part. In addition, the TBI shall conduct fingerprint-based state and federal criminal history checks, to determine whether the offender has been convicted of any additional sexual offenses, as defined in § 40-39-202, or violent sexual offenses, as defined in § 40-39-202.

(c) The TBI shall remove an offender's name from the SOR and notify the offender that the offender is no longer required to comply with this part if it is determined that:

(1) The offender has successfully completed a term of judicial diversion, pursuant to § 40-35-313, for an offense under § 39-13-505 or § 39-13-506(a) or (b), for which the person is required to register under this part;

(2) The offender previously entered a term of judicial diversion, pursuant to § 40-35-313, prior to May 24, 2019, for the offense for which the person is required to register under this part and subsequently successfully completes the term of judicial diversion; or

(3) The offender has not been convicted of any additional sexual offense or violent sexual offense during the ten-year period and the offender has substantially complied with this part and former part 1 of this chapter [repealed].

(d) If it is determined that the offender has been convicted of any additional sexual offenses or violent sexual offenses during the ten-year period or has not substantially complied with this part and former part 1 of this chapter [repealed], the TBI shall not remove the offender's name from the SOR and shall notify the offender that the offender has not been relieved of the provisions of this part.

(e) If an offender is denied a termination request based on substantial noncompliance, the offender may petition again for termination no sooner than five (5) years after the previous denial.

(f) Immediately upon the failure of a sexual offender to register or otherwise substantially comply with the requirements established by this part, the running of the offender's ten-year reporting period shall be tolled, notwithstanding the absence or presence of any warrant or indictment alleging a violation of this part.

(g)(1) An offender whose request for termination of registration requirements is denied by a TBI official may petition the chancery court of Davidson County or the chancery court of the county where the offender resides, if the county is in Tennessee, for review of the decision. The review shall be on the record used by the TBI official to deny the request. The TBI official who denied the request for termination of registration requirements may submit an affidavit to the court detailing the reasons the request was denied.

(2) An offender required to register under this part shall continue to comply with the registration, verification and tracking requirements for the life of that offender, if that offender:

(A) Has one (1) or more prior convictions for a sexual offense, as defined in § 40-39-202, regardless of when the conviction or convictions occurred;

(B) Has been convicted of a violent sexual offense, as defined in § 40-39-202; or

(C) Has been convicted of an offense in which the victim was a child of twelve (12) years of age or less.

(3) For purposes of subdivision (g)(2)(A):

(A) “Prior conviction” means that the person serves and is released or discharged from, or is serving, a separate period of incarceration or supervision for the commission of a sexual offense prior to or at the time of committing another sexual offense;

(B) “Prior conviction” includes convictions under the laws of any other state, government or country that, if committed in this state, would constitute a sexual offense. If an offense in a jurisdiction other than this state is not identified as a sexual offense in this state, it shall be considered a prior conviction if the elements of the offense are the same as the elements for a sexual offense; and

(C) “Separate period of incarceration or supervision” includes a sentence to any of the sentencing alternatives set out in § 40-35-104(c)(3)-(9). A sexual offense shall be considered as having been committed after a separate period of incarceration or supervision if the sexual offense is committed while the person was:

(i) On probation, parole or community correction supervision for a sexual offense;

(ii) Incarcerated for a sexual offense;

(iii) Assigned to a program whereby the person enjoys the privilege of supervised release into the community, including, but not limited to, work release, educational release, restitution release or medical furlough for a sexual offense; or

(iv) On escape status from any correctional institution when incarcerated for a sexual offense.

(h)(1) Any offender required to register pursuant to this chapter because the offender was convicted of the offense of statutory rape under § 39-13-506 and the offense was committed prior to July 1, 2006, may file a request for termination of registration requirements with TBI headquarters in Nashville, if the offender would not be required to register if the offense was committed on or after July 1, 2006.

(2) Upon receipt of the request for termination, the TBI shall review documentation provided by the offender and contained in the offender's file and the SOR, to determine whether the offender would not be required to register if the offender committed the same offense on or after July 1, 2006. In addition, the TBI shall conduct fingerprint-based state and federal criminal history checks, to determine whether the offender has been convicted of any additional sexual offenses, as defined in § 40-39-202, or violent sexual offenses, as defined in § 40-39-202.

(3) If it is determined that the offender would not be required to register if the offense was committed on or after July 1, 2006, that the offender has not been convicted of any additional sexual offenses or violent sexual offenses and that the offender has substantially complied with this part and any previous versions of this part, the TBI shall remove the offender's name from the SOR and notify the offender that the offender is no longer required to comply with this part.

(4) If it is determined that the offender would still be required to register even if the statutory rape had been committed on or after July 1, 2006, or that the offender has been convicted of any additional sexual offenses or violent sexual offenses during the period of registration or has not substantially complied with this part and the previous versions of this part, the TBI shall not remove the offender's name from the SOR and shall notify the offender that the offender has not been relieved of this part.

(5) An offender whose request for termination of registration requirements is denied by a TBI official may petition the chancery court of Davidson County or the chancery court of the county where the offender resides, if the county is in this state, for review of the decision. The review shall be on the record used by the TBI official to deny the request. The TBI official who denied the request for termination of registration requirements may submit an affidavit to the court detailing the reasons the request was denied.

(i)(1)(A) If a person convicted of an offense was not required to register as an offender prior to August 1, 2007, because the person was convicted, discharged from parole or probation supervision or discharged from incarceration without supervision prior to January 1, 1995, for an offense now classified as a sexual offense, the person may file a request for termination of registration requirements with TBI headquarters in Nashville, no sooner than five (5) years from August 1, 2007, or the date the person first registered with the SOR, whichever date is later.

(B) The procedure, criteria for removal and other requirements of this section shall otherwise apply to an offender subject to removal after five (5) years as specified in subdivision (i)(1)(A).

(2) If a person convicted of an offense was not required to register as an offender prior to August 1, 2007, because the person was convicted, discharged from parole or probation supervision or discharged from incarceration without supervision prior to January 1, 1995, for an offense now classified as a violent sexual offense, the person shall continue to comply with the registration, verification and tracking requirements for the life of that offender.

(3)(A) If a person convicted of an offense was not required to register as an offender prior to July 1, 2010, for an offense now classified as a sexual offense, the person may file a request for termination of registration requirements with TBI headquarters in Nashville, no sooner than five (5) years from July 1, 2010, or the date the person first registered with the SOR, whichever date is later.

(B) The procedure, criteria for removal and other requirements of this section shall otherwise apply to an offender subject to removal after five (5) years as specified in subdivision (i)(3)(A).

(C) If a person convicted of an offense was not required to register as an offender prior to July 1, 2010, for an offense now classified as a violent sexual offense, the person shall continue to comply with the registration, verification and tracking requirements for the life of that offender.

(4) Unless otherwise authorized by law, a person required to register as any form of a sexual offender in this state due to a qualifying offense from another jurisdiction which is classified as a sexual offense in this state may apply for removal from the registry pursuant to subdivision (a)(1) following the later of:

- (A) Ten (10) years from the date of termination of active supervision or probation, parole or any other alternative to incarceration, or after discharge from incarceration without supervision; or
- (B) Five (5) years after being added to the Tennessee sexual offender registry.
- (j)(1) Violent juvenile sexual offenders who are currently registered as such and who receive a subsequent adjudication in juvenile court or a court having juvenile court jurisdiction for one of the offenses listed in § 40-39-202(29) or a crime that if committed in this state would require registration shall be required to register for life. Information concerning the violent juvenile sexual offender who commits a subsequent offense listed in § 40-39-202(29), which was formerly considered confidential under § 40-39-206(e), shall be deemed public information once the offender reaches the offender's eighteenth birthday.
- (2) Violent juvenile sexual offenders who are currently registered as such and who, upon reaching the age of eighteen (18), are convicted of a sexual offense as set out in § 40-39-202(20) or a violent sexual offense as set out in § 40-39-202(31) shall be required to register for life. Information concerning the violent juvenile sexual offender who commits a subsequent offense listed in § 40-39-202(20) or § 40-39-202(31), which was formerly considered confidential under § 40-39-206(e), shall be deemed public information.
- (3) Violent juvenile sexual offenders who reach the age of twenty-five (25), and who have not been adjudicated or convicted of a subsequent qualifying offense as set out in subdivisions (j)(1) and (2) or any offense set out in subdivision (g)(2)(C), shall be eligible for termination from the SOR. Upon reaching the age of twenty-five (25), the violent juvenile sexual offender may apply for removal from the SOR by use of a form created by the TBI. The form will contain a statement, sworn to by the offender under the penalty of perjury, that the offender has not been convicted of or adjudicated delinquent of any of the offenses set out in subdivisions (j)(1) and (2) or any offense set out in subdivision (g)(2)(C).
- (4) TBI shall also conduct fingerprint-based state and federal criminal history checks to determine whether the violent juvenile sexual offender has been convicted of or adjudicated on any prohibited crimes as set out in subdivisions (j)(1) and (2) or any offense set out in subdivision (g)(2)(C), including crimes committed in other jurisdictions.
- (5) If the violent juvenile sexual offender has not been convicted or adjudicated delinquent in any of the prohibited crimes, the offender shall be removed from the sex offender registry.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, § 18, eff. July 1, 2006; 2008 Pub.Acts, c. 1164, § 7, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, § 11, eff. July 1, 2010; 2011 Pub.Acts, c. 483, § 15, eff. July 1, 2011; 2014 Pub.Acts, c. 744, § 2, eff. April 21, 2014; 2014 Pub.Acts, c. 770, §§ 2, 3, eff. July 1, 2014; 2015 Pub.Acts, c. 284, §§ 2, 3, eff. July 1, 2015; 2015 Pub.Acts, c. 469, § 2, eff. July 1, 2015; 2019 Pub.Acts, c. 502, §§ 1, 2, eff. May 24, 2019; 2023 Pub.Acts, c. 459, § 2, eff. July 1, 2023; 2024 Pub.Acts, c. 545, § 5, eff. July 1, 2024; 2025 Pub.Acts, c. 268, § 18, eff. April 24, 2025.

T. C. A. § 40-39-207, TN ST § 40-39-207

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T. C. A. § 40-39-208

§ 40-39-208. Violations; certification

Currentness

(a) It is an offense for an offender to knowingly violate any provision of this part. Violations shall include, but not be limited to:

(1) Failure of an offender to timely register or report;

(2) Falsification of a TBI registration form;

(3) Failure to timely disclose required information to the designated law enforcement agency;

(4) Failure to sign a TBI registration form;

(5) Failure to pay the annual administrative costs, if financially able;

(6) Failure to timely disclose status as a sexual offender or violent sexual offender to the designated law enforcement agency upon reincarceration;

(7) Failure to timely report to the designated law enforcement agency upon release after reincarceration;

(8) Failure to timely report to the designated law enforcement agency following reentry in this state after deportation;

(9) Failure to timely report to the offender's designated law enforcement agency when the offender moves to another state; and

(10) Conviction of a new sexual offense, violent sexual offense, or violent juvenile sexual offense.

(b) A violation of this part is a Class E felony. No person violating this part shall be eligible for suspension of sentence, diversion or probation until the minimum sentence is served in its entirety.

(c) The first violation of this part is punishable by a fine of not less than three hundred fifty dollars (\$350) and imprisonment for not less than ninety (90) days.

(d) A second violation of this part is punishable by a fine of not less than six hundred dollars (\$600) and imprisonment for not less than one hundred eighty (180) days.

(e) A third or subsequent violation of this part is punishable by a fine of not less than one thousand one hundred dollars (\$1,100) and imprisonment for not less than one (1) year.

(f) A violation of this part is a continuing offense. If an offender is required to register pursuant to this part, venue lies in any county in which the offender may be found or in any county where the violation occurred.

(g) In a prosecution for a violation of this section, upon the request of a district attorney general, law enforcement agency, the department of correction or its officers or a court of competent jurisdiction and for any lawful purpose permitted by this part, the records custodian of SOR shall provide the requesting agency with certified copies of specified records being maintained in the registry.

(h) The records custodian providing copies of records to a requesting agency, pursuant to subsection (g), shall attach the following certification:

I, _____, HAVING BEEN APPOINTED BY THE DIRECTOR OF THE TENNESSEE BUREAU OF INVESTIGATION AS CUSTODIAN OF THE BUREAU'S CENTRALIZED RECORDS SYSTEM OF SEXUAL AND VIOLENT SEXUAL OFFENDERS, REGISTRATION, VERIFICATION AND TRACKING INFORMATION (SOR), HEREBY CERTIFY THAT THIS IS A TRUE AND CORRECT COPY OF THE RECORDS MAINTAINED WITHIN SAID REGISTRY.

SIGNATURE TITLE DATE

AFFIX THE BUREAU SEAL HERE

(i) Sexual offender, violent sexual offender and violent juvenile sexual offender registry files and records maintained by the TBI may be digitized. A digitized copy of any original file or record in the TBI's possession shall be deemed to be an original for all purposes, including introduction into evidence in all courts or administrative agencies.

(j) Notwithstanding any law to the contrary, a violent juvenile sexual offender who knowingly violates this part commits a delinquent act as defined by the juvenile code.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, § 19, eff. July 1, 2006; 2008 Pub.Acts, c. 1164, § 8, eff. July 1, 2008; 2009 Pub.Acts, c. 145, § 1, eff. May 5, 2009; 2011 Pub.Acts, c. 483, §§ 16, 17, eff. July 1, 2011; 2012 Pub.Acts, c. 727, § 49, eff. July 1, 2012; 2019 Pub.Acts, c. 232, § 1, eff. July 1, 2019.

T. C. A. § 40-39-208, TN ST § 40-39-208

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T. C. A. § 40-39-209

§ 40-39-209. Removal of records; expungement order

Currentness

Except as otherwise provided in § 40-39-207(a)-(d), no record shall be removed from the SOR, unless ordered by a court of competent jurisdiction as part of an expunction order pursuant to § 40-32-108, so long as the offense is eligible for expunction under § 40-32-107.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2008 Pub.Acts, c. 1164, § 9, eff. July 1, 2008; 2025 Pub.Acts, c. 268, § 19, eff. April 24, 2025.

T. C. A. § 40-39-209, TN ST § 40-39-209

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T. C. A. § 40-39-210

§ 40-39-210. Death of registered offender

Currentness

Upon receipt of notice of the death of a registered offender, verified through the registering agency or TBI officials by obtaining a copy of the offender's certificate of death, by checking the social security death index or by obtaining a copy of an accident report, the TBI shall remove all data pertaining to the deceased offender from the SOR.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2008 Pub.Acts, c. 1164, § 10, eff. July 1, 2008.

T. C. A. § 40-39-210, TN ST § 40-39-210

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Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-211

§ 40-39-211. Establishment of residence or acceptance of employment; violations

Currentness

(a)(1) While mandated to comply with the requirements of this chapter, no sexual offender, as defined in § 40-39-202, or violent sexual offender as defined in § 40-39-202, shall knowingly establish a primary or secondary residence or any other living accommodation or knowingly accept employment within one thousand feet (1,000') of the property line of any public school, private or parochial school, licensed day care center, other child care facility, public park, playground, recreation center, or public athletic field available for use by the general public.

(2) For purposes of this subsection (a), "playground" means any indoor or outdoor facility that is intended for recreation of children and owned by the state, a local government, or a not-for-profit organization, and includes any parking lot appurtenant to the indoor or outdoor facility.

(b) No sexual offender, violent sexual offender, or violent juvenile sexual offender, as those terms are defined in § 40-39-202, shall knowingly:

(1) Reside within one thousand feet (1,000') of the property line on which the offender's former victims or the victims' immediate family members reside;

(2) Come within one hundred feet (100') of any of the offender's former victims, except as otherwise authorized by law; or

(3) Contact any of the offender's former victims or the victims' immediate family members without the consent of the victim or consent of the victim's parent or guardian if the victim is a minor being contacted by telephone, in writing, by electronic mail, internet services or any other form of electronic communication, unless otherwise authorized by law.

(c)(1) While mandated to comply with the requirements of this part, no sexual offender or violent sexual offender, whose victim was a minor, shall knowingly reside or conduct an overnight visit at a residence in which a minor resides or is present. Notwithstanding this subsection (c), the offender may reside, conduct an overnight visit, or be alone with a minor if the offender is the parent of the minor, unless:

(A) The offender's parental rights have been or are in the process of being terminated as provided by law;

(B) Any minor or adult child of the offender was a victim of a sexual offense or violent sexual offense committed by the offender; or

(C) The offender has been convicted of a sexual offense or violent sexual offense and the following conditions have been satisfied:

(i) The victim of the sexual offense or violent sexual offense was a minor twelve (12) years of age or less; and

(ii) A circuit court, exercising its jurisdiction over civil matters, has found by clear and convincing evidence that the offender presents a danger of substantial harm to the minor.

(2) For purposes of subdivision (c)(1)(C):

(A) The district attorney general for the judicial district in which the minor resides may petition the court to make a finding described in subdivision (c)(1)(C)(ii) at any time the offender is required to register pursuant to this part;

(B) The offender must be provided notice and an opportunity to be heard;

(C) When determining whether the offender poses a danger of substantial harm to a minor, the court may consider the facts and circumstance of the offense, the offender's most recent efforts to rehabilitate, compliance with community supervision as provided in § 39-13-524 if applicable, any violations of this part as specified in § 40-39-208, and other relevant evidence;

(D) All files and records of the court in the proceeding must be treated as confidential and shall not be open to the public or disclosed to the public, but are open to:

(i) The judge, officers, and professional staff of the court;

(ii) The parties to the proceeding and their counsel and representatives;

(iii) Any parent or legal guardian of the minor other than the offender;

(iv) The offender's registering agency; and

(v) With permission of the court, any other person or agency having a legitimate interest in the proceeding;

(E) The court must enter a written order stating its findings. If the court finds that the offender presents a danger of substantial harm to the minor, the district attorney general shall provide the court's finding to the offender's registering agency;

(F) No sooner than two (2) years after the date of entry of the circuit court's order, the offender may petition the court for reconsideration of a finding that the offender presents a danger of substantial harm to the minor. The offender must show, by clear and convincing evidence, that the offender no longer presents a danger of substantial harm to the minor; and

(G) An appeal from a final order or judgment under subdivision (c)(1)(C)(ii) may be made to the court of appeals. A finding that the offender presents a danger of substantial harm to the minor shall remain in effect pending the outcome of the appeal.

(d)(1) No sexual offender, as defined in § 40-39-202, or violent sexual offender, as defined in § 40-39-202, shall knowingly:

(A) Be upon or remain on the premises of any building or grounds of any public school, private or parochial school, licensed day care center, other child care facility, public park, playground, recreation center or public athletic field available for use by the general public in this state when the offender has reason to believe children under eighteen (18) years of age are present;

(B) Stand, sit idly, whether or not the offender is in a vehicle, or remain within one thousand feet (1,000') of the property line of any building owned or operated by any public school, private or parochial school, licensed day care center, other child care facility, public park, playground, recreation center or public athletic field available for use by the general public in this state when children under eighteen (18) years of age are present, while not having a reason or relationship involving custody of or responsibility for a child or any other specific or legitimate reason for being there; or

(C) Be in any conveyance owned, leased or contracted by a school, licensed day care center, other child care facility or recreation center to transport students to or from school, day care, child care, or a recreation center or any related activity thereof when children under eighteen (18) years of age are present in the conveyance.

(2) Subdivision (d)(1) shall not apply when the offender:

(A) Is a student in attendance at the school;

(B) Is attending a conference with school, day care, child care, park, playground or recreation center officials as a parent or legal guardian of a child who is enrolled in the school, day care center, other child care center or of a child who is a participant at the park, playground or recreation center and has received written permission or a request from the school's principal or the facility's administrator;

(C) Resides at a state licensed or certified facility for incarceration, health or convalescent care; or

(D) Is dropping off or picking up a child or children and the person is the child or children's parent or legal guardian who has provided written notice of the parent's offender status to the school's principal or a school administrator upon enrollment.

(3) The exemption provided in subdivision (d)(2)(B) shall not apply if the victim of the offender's sexual offense or violent sexual offense was a minor at the time of the offense and the victim is enrolled in the school, day care center, recreation center or other child care center that is participating in the conference or other scheduled event.

(e) Changes in the ownership or use of property within one thousand feet (1,000') of the property line of an offender's primary or secondary residence or place of employment that occur after an offender establishes residence or accepts employment shall not form the basis for finding that an offender is in violation of the residence restrictions of this section.

(f) A violation of this part is a Class E felony. No person violating this part shall be eligible for suspension of sentence, diversion or probation until the minimum sentence is served in its entirety.

(g)(1) The first violation of this part is punishable by a fine of not less than three hundred fifty dollars (\$350) and imprisonment for not less than ninety (90) days.

(2) A second violation of this part is punishable by a fine of not less than six hundred dollars (\$600) and imprisonment for not less than one hundred eighty (180) days.

(3) A third or subsequent violation of this part is punishable by a fine of not less than one thousand one hundred dollars (\$1,100) and imprisonment for not less than one (1) year.

(4) A violation of this part due solely to a lack of the written permission required pursuant to subdivision (d)(2) shall be punishable by fine only.

(h)(1)(A) While mandated to comply with the requirements of this part, it is an offense for three (3) or more sexual offenders, as defined in § 40-39-202, or violent sexual offenders, as defined in § 40-39-202, or a combination thereof, to establish a primary or secondary residence together or inhabit the same primary or secondary residence at the same time.

(B) Each sexual offender or violent sexual offender who establishes or inhabits a primary or secondary residence in violation of subdivision (h)(1)(A) commits a violation of this section.

(C) Subdivision (h)(1)(A) shall not apply if the residence is located on property that is, according to the relevant local, county, or municipal zoning law, zoned for a use other than residential or mixed-use.

(2)(A) No person, corporation, or other entity shall knowingly permit three (3) or more sexual offenders, as defined in § 40-39-202, violent sexual offenders, as defined in § 40-39-202, or a combination thereof, while such offenders are mandated to comply with the requirements of this part, to establish a primary or secondary residence in any house, apartment or other habitation, as defined by § 39-14-401(1)(A), owned or under the control of such person, corporation, or entity.

(B) Subdivision (h)(2)(A) shall not apply if the residence is located on property that is, according to the relevant local, county, or municipal zoning law, zoned for a use other than residential or mixed-use.

(3) This subsection (h) shall not apply to any residential treatment facility in which more than three (3) sexual offenders, as defined in § 40-39-202, violent sexual offenders, as defined in § 40-39-202, or combination thereof, reside following sentencing to such facility by a court or placement in such facility by the board of parole for the purpose of in-house sexual offender

treatment; provided, the treatment facility complies with the guidelines and standards for the treatment of sexual offenders established by the sex offender treatment board pursuant to § 39-13-704.

(i) The restrictions set out in subsections (a)-(d) and (k) shall not apply to a violent juvenile sexual offender required to register under this part unless otherwise ordered by a court of competent jurisdiction.

(j) Notwithstanding any law to the contrary, a violent juvenile sexual offender who knowingly violates this section commits a delinquent act as defined by the juvenile code.

(k)(1) As used in this subsection (k), unless the context otherwise requires:

(A)(i) “Alone with” means one (1) or more offenders covered by this subsection (k) is in the presence of a minor or minors in a private area; and

(a) There is no other adult present in the area;

(b) There is another adult present in the area but the adult is asleep, unconscious, or otherwise unable to observe the offender and the minor or minors;

(c) There is another adult present in the area but the adult present is unable or unwilling to come to the aid of the minor or minors or contact the proper authorities, if necessary; or

(d) There is another adult present in the area but the adult is also a sexual offender or violent sexual offender mandated to comply with the requirements of this part;

(ii) If the offender is in a private area where the offender has the right to be, the offender is not “alone with” a minor or minors if the offender is engaged in an otherwise lawful activity and the presence of the minor or minors is incidental, accidental, or otherwise unrelated to the offender's lawful activity; and

(B)(i) “Private area” means in or on any real or personal property, regardless of ownership, where the conduct of the offender is not readily observable by anyone but the minor or minors alone with the offender;

(ii) If the private area contains multiple rooms, such as a hotel, motel, or other place of temporary lodging, any room, rooms, or other area that the offender occupies with a minor or minors and that otherwise meets the requirements of this definition shall be considered a private area.

(2) Unless otherwise permitted by subsection (c), while mandated to comply with the requirements of this part, no sexual offender, as defined in § 40-39-202, or violent sexual offender, as defined in § 40-39-202, shall be alone with a minor or minors in a private area.

Credits

2004 Pub.Acts, c. 921, § 1; 2005 Pub.Acts, c. 316, § 1; 2006 Pub.Acts, c. 890, § 20, eff. July 1, 2006; 2008 Pub.Acts, c. 1164, § 11, eff. July 1, 2008; 2009 Pub.Acts, c. 597, § 1; 2010 Pub.Acts, c. 750, §§ 1, 2, eff. July 1, 2010; 2010 Pub.Acts, c. 1145, § 1, eff. July 1, 2010; 2011 Pub.Acts, c. 308, § 1, eff. May 27, 2011; 2011 Pub.Acts, c. 483, §§ 18 to 20, eff. July 1, 2011; 2014 Pub.Acts, c. 992, § 1, eff. July 1, 2014; 2015 Pub.Acts, c. 516, §§ 1, 2, 8, eff. July 1, 2015; 2018 Pub.Acts, c. 643, § 1, eff. July 1, 2018; 2018 Pub.Acts, c. 898, § 1, eff. July 1, 2018; 2019 Pub.Acts, c. 374, § 1, eff. July 1, 2019; 2020 Pub.Acts, c. 636, § 1, eff. April 1, 2020.

T. C. A. § 40-39-211, TN ST § 40-39-211

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 2. Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004 (Refs & Annos)

T. C. A. § 40-39-212

§ 40-39-212. Sex offender registration; out-of-state offenses

Currentness

(a) Upon the court's acceptance of a defendant's entry of a plea of guilty or a finding of guilt by a jury or judge after trial, and, notwithstanding the absence of a final sentencing and entry of a judgment of conviction, any defendant who is employed or practices a vocation, establishes a primary or secondary residence or becomes a student in this state and who enters a plea of guilty to a sexual offense as defined by § 40-39-202 or a violent sexual offense as defined by § 40-39-202, shall be required to register with a registering agency.

(b) Notwithstanding the absence of a final sentencing and entry of a judgment of conviction, any defendant who is employed or practices a vocation, establishes a primary or secondary residence or becomes a student in this state and who enters a plea of guilty to an offense in another state, county or jurisdiction that may result in a conviction of a sexual offense as defined by § 40-39-202 or a violent sexual offense as defined by § 40-39-202, shall be required to register with a registering agency.

(c) Upon the court's acceptance of a defendant's entry of a plea of guilty, and notwithstanding the absence of a final sentencing and entry of a judgment of conviction, any defendant from another state who enters a plea of guilty to an offense in this state that may result in a conviction of a sexual offense as defined by § 40-39-202 or a violent sexual offense as defined by § 40-39-202, shall be required to register with a registering agency.

(d) This part shall apply to offenders who received diversion under § 40-35-313 or its equivalent in any other jurisdiction.

Credits

2007 Pub.Acts, c. 451, § 1, eff. July 1, 2007; 2008 Pub.Acts, c. 1164, § 12, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, § 12, eff. July 1, 2010.

T. C. A. § 40-39-212, TN ST § 40-39-212

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T. C. A. § 40-39-213

§ 40-39-213. License or photo identification card; offender's possession

Currentness

(a) Every offender required to register pursuant to this part who is a resident of this state, and who is eligible, shall be responsible for obtaining a valid driver license or photo identification card that has been properly designated by the department of safety pursuant to § 55-50-353. Every offender eligible to receive the license or identification card shall always have the license or identification card in the offender's possession. If the offender is ineligible to be issued a driver license or photo identification card, the department shall provide the offender some other form of identification card or documentation that, if it is kept in the offender's possession, will satisfy the requirements of this section and § 55-50-353; such identification must be kept in the offender's possession at all times. If any offender is determined to be indigent, an identification card or other documentation in lieu of an identification card shall be issued to the offender at no cost.

(b) A violation of this section is a Class E felony punishable by fine only of not less than two hundred fifty dollars (\$250).

(c) Every offender required to register pursuant to this part shall have obtained the documentation required by this section and presented it to the offender's registering agency no later than sixty (60) days from the date in which such person is required to register pursuant to this part.

(d) Notwithstanding any provision of this section to the contrary, no violent juvenile sexual offender shall be required to obtain a photo identification card or a valid driver license that has been properly designated by the department of safety pursuant to § 55-50-353, until such violent juvenile sexual offender attains eighteen (18) years of age.

Credits

2008 Pub.Acts, c. 1143, § 1, eff. July 1, 2008; 2010 Pub.Acts, c. 1138, §§ 13 to 15, eff. July 1, 2010; 2011 Pub.Acts, c. 483, § 21, eff. July 1, 2011.

T. C. A. § 40-39-213, TN ST § 40-39-213

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T. C. A. § 40-39-214

§ 40-39-214. Registry information; disclosure requirements

Currentness

(a) Except as provided in subsection (c), immediately after an offender registers or updates a registration, TBI shall provide all information in the registry about the offender that is made public pursuant to § 40-39-206(d) to the following:

(1) The United States attorney general, who shall include that information in the national sex offender registry or other appropriate databases;

(2) Appropriate law enforcement agencies, including probation and parole offices, and each school and public housing agency, in each area in which the individual resides, is an employee, establishes a physical presence or is a student;

(3) Each jurisdiction where the sex offender resides, is an employee, establishes a physical presence or is a student and each jurisdiction from or to which a change of residence, employment or student status occurs;

(4) Any agency responsible for conducting employment-related background checks;

(5) Social service entities responsible for protecting minors in the child welfare system;

(6) Volunteer organizations in which contact with minors or other vulnerable individuals might occur; and

(7) Any organization, company or individual who requests such notifications pursuant to procedures established by TBI.

(b) In addition to the information provided pursuant to subsection (a), TBI shall provide all information in the registry about the offender, regardless of whether the information is made public pursuant to § 40-39-206(d), to the organization described in subdivision (a)(1) and appropriate law enforcement agencies.

(c) Notwithstanding subsection (a), TBI is not required to provide information to an organization or individual described in subdivision (a)(6) or (a)(7) more frequently than once every five (5) business days and an organization in subdivision (a)(6) or (a)(7) may elect to receive notification less frequently than five (5) business days.

Credits

2008 Pub.Acts, c. 1164, § 13, eff. Jan. 1, 2009; 2011 Pub.Acts, c. 483, § 22, eff. July 1, 2011.

T. C. A. § 40-39-214, TN ST § 40-39-214

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T. C. A. § 40-39-215

§ 40-39-215. Offenses; minor victim

Currentness

(a)(1) While mandated to comply with the requirements of this chapter, it is an offense for a sexual offender, violent sexual offender or a violent juvenile sexual offender, as those terms are defined in § 40-39-202, whose victim was a minor, to knowingly:

(A) Pretend to be, dress as, impersonate or otherwise assume the identity of a real or fictional person or character or a member of a profession, vocation or occupation while in the presence of a minor or with the intent to attract or entice a minor to be in the presence of the offender;

(B) Engage in employment, a profession, occupation or vocation, regardless of whether compensation is received, that the offender knows or should know will cause the offender to be in direct and unsupervised contact with a minor; or

(C) Operate, whether authorized to do so or not, any vehicle or specific type of vehicle, including, but not limited to, an ice cream truck or emergency vehicle, for the purpose of attracting or enticing a minor to be in the presence of the offender.

(2) It is a defense to a violation of this subsection (a) that the offender was the parent of the minor in the offender's presence.

(b) While mandated to comply with the requirements of this chapter, it is an offense for a sexual offender, violent sexual offender, or a violent juvenile sexual offender, if the offender's victim was a minor, to knowingly rent or offer for rent a swimming pool, hot tub, or other body of water to be used for swimming that is located on property owned or leased by the offender or is otherwise under the control of the offender.

(c) A violation of this section is a Class A misdemeanor.

Credits

2008 Pub.Acts, c. 1164, § 13, eff. Jan. 1, 2009; 2011 Pub.Acts, c. 483, § 23, eff. July 1, 2011; 2022 Pub.Acts, c. 1058, §§ 1, 2, eff. July 1, 2022.

T. C. A. § 40-39-215, TN ST § 40-39-215

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T. C. A. § 40-39-216

§ 40-39-216. Public libraries; access restrictions

Currentness

(a) Public library boards shall have the authority to reasonably restrict the access of any person listed on the sexual offender registry. Such authority may be delegated by the board to a library administrator.

(b) In determining the reasonableness of the restrictions, the board shall consider the following criteria:

(1) The likelihood of children being present in the library at the times and places to be restricted;

(2) The age of the victim of the offender; and

(3) The chilling effect of the use of the library by other patrons if the offender is not restricted.

(c) Nothing in this section shall prevent the board from imposing a total ban of the offender's access to a public library so long as the criteria in subsection (b) are considered.

(d) The restrictions of this section shall be effective upon the mailing of notice to the address of the offender as listed on the sexual offender registry. The notice shall state with specificity, the time and space restrictions. The board, or if so delegated, the library administrator, shall state in the notice that the criteria in subsection (b) have been considered.

(e) A registered sex offender who enters upon the premises of a public library in contravention of the restrictions five (5) days after mailing of the notice may, at the discretion of the library administrator, be prosecuted for criminal trespass pursuant to § 39-14-405.

Credits

2011 Pub.Acts, c. 287, § 1, eff. May 27, 2011; 2017 Pub.Acts, c. 126, § 15, eff. July 1, 2017.

T. C. A. § 40-39-216, TN ST § 40-39-216

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T. C. A. § 40-39-217

§ 40-39-217. Community notification system; fee

Currentness

(a)(1) Any county, metropolitan form of government or municipality may, by a two-thirds ($\frac{2}{3}$) vote of the legislative body, choose to establish a community notification system whereby certain residences, schools and child-care facilities within the county, metropolitan form of government or municipality are notified when a person required to register pursuant to this part as a sexual offender or violent sexual offender resides, intends to reside, or, upon registration, declares to reside within a certain distance of such residences, schools and child-care facilities.

(2) The legislative body of any county, metropolitan form of government or municipality that enacts a community notification system pursuant to this subsection (a) may, at the same time as the system is established, enact a notification fee of not more than fifty dollars (\$50.00) per year from each offender in the county, metropolitan form of government or municipality for the purpose of defraying the costs of the community notification. The notification fee shall be collected at the same time as the one-hundred-fifty-dollar administrative fee collected pursuant to § 40-39-204(b).

(b) Forms of notification a county, metropolitan form of government or municipality may elect to establish include:

(1) Notification by the sheriff's office or police department to residents, schools and child-care facilities located within a specified number of feet from the offender's residence;

(2) A community notification flyer, whether made by regular mail or hand delivered, to all legal residences within the specified area;

(3) Posting a copy of the notice in a prominent place at the office of the sheriff and at the police station closest to the declared residence of the offender;

(4) Publicizing the notice in a local newspaper, or posting electronically, including the internet;

(5) Notifying homeowners associations within the immediate area of the declared residence of the offender; or

(6) Any other method reasonably expected to provide notification.

(c) Nothing in this section shall be construed as prohibiting the Tennessee bureau of investigation, a sheriff, or a chief of police from providing community notification under this section electronically or by publication or periodically to persons whose legal residence is more than the applicable distance from the residence of an offender.

Credits

2014 Pub.Acts, c. 751, § 1, eff. April 21, 2014.

T. C. A. § 40-39-217, TN ST § 40-39-217

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T. C. A. § 40-39-218

§ 40-39-218. Repealed by 2024 Pub.Acts, c. 545, § 4, eff. July 1, 2024

Currentness

T. C. A. § 40-39-218, TN ST § 40-39-218

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T. C. A. § 40-39-219

§ 40-39-219. Classification of offenders (Unofficial classification editorially supplied by West)

Currentness

(a) The TBI shall classify a person who is required to register pursuant to this part with a qualifying conviction under § 40-39-202, or who is required to register pursuant to § 40-39-203(a)(2) as a sexual offender, violent sexual offender, or violent juvenile sexual offender, and whether an offender is an offender against children, as defined in § 40-39-202.

(b) The TBI may rely on investigative reports; files of a United States attorney, district attorney general, or other prosecutorial entity; court records; or other credible information in classifying an offender under this section.

(c) The TBI shall notify the offender of the classification.

Credits

2025 Pub.Acts, c. 66, § 1, eff. March 25, 2025.

T. C. A. § 40-39-219, TN ST § 40-39-219

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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West's Tennessee Code Annotated

Title 40. Criminal Procedure

Chapter 39. Offender Registration and Monitoring

Part 3. Tennessee Serious and Violent Sex Offender Monitoring Pilot Project Act

T. C. A. § 40-39-301

§ 40-39-301. Definitions

Currentness

As used in this part, unless the context otherwise requires:

(1) “Serious offender” means any person who is convicted in this state, on or after July 1, 2004, of any offense that may cause “serious bodily injury” as defined in § 39-11-106. “Serious offender” includes any person who is convicted in any other jurisdiction of any offense that would constitute a serious offense as defined in this part. “Serious offender” also includes any person who has been released on probation or parole following a conviction for any serious offense, as defined in this part, to the extent that the person continues to be subject to active supervision by the department of correction;

(2) “Sexual offense” means any of the crimes enumerated in § 40-39-202(20), including specifically:

(A) The commission of any act that constitutes the criminal offense of:

(i) Aggravated rape, under § 39-13-502;

(ii) Rape, under § 39-13-503;

(iii) Aggravated sexual battery, under § 39-13-504;

(iv) Sexual battery, under § 39-13-505;

(v) Statutory rape, under § 39-13-506;

(vi) Sexual exploitation of a minor, under § 39-17-1003;

(vii) Aggravated sexual exploitation of a minor, under § 39-17-1004;

(viii) Especially aggravated sexual exploitation of a minor, under § 39-17-1005;

(ix) Incest, under § 39-15-302;

(x) Rape of a child, under § 39-13-522;

(xi) Sexual battery by an authority figure, under § 39-13-527;

(xii) Solicitation of a minor, under § 39-13-528;

(B) Criminal attempt, under § 39-12-101, solicitation, under § 39-12-102, or conspiracy, under § 39-12-103, to commit any of the offenses enumerated within subdivision (2)(A); or

(C) Criminal responsibility under § 39-11-402(2) for facilitating the commission under § 39-11-403 of, or being an accessory after the fact under, § 39-11-411 to any of the offenses enumerated in subdivision (2)(A); and

(3) “Violent sexual offender” means any person who is convicted in the state, on or after July 1, 2004, of any sexual offense, as defined in subdivision (2) or § 40-39-202; or any person who is convicted in any other jurisdiction of any offense that would constitute a sexual offense in Tennessee. “Violent sexual offender” also includes any person who has been released on probation or parole following a conviction for any sexual offense, as defined in subdivision (2), to the extent that the person continues to be subject to active supervision by the department of correction as defined in law. For the purposes of this section, “violent sexual offender” may include offenders whose sexual offense was reduced by virtue of a plea agreement.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004; 2006 Pub.Acts, c. 890, § 21, eff. July 1, 2006; 2012 Pub.Acts, c. 727, § 50, eff. July 1, 2012.

T. C. A. § 40-39-301, TN ST § 40-39-301

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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T. C. A. § 40-39-302

§ 40-39-302. Serious offender and violent sexual offender monitoring program

Currentness

(a) The department of correction is authorized to establish a serious offender and violent sexual offender monitoring program and to promulgate guidelines governing it, consistent with this part.

(b) The department of correction shall carry out the following duties:

(1) By December 31, 2004, in consultation with all participating state and local law enforcement, the department of correction shall develop implementing guidelines for the continuous satellite-based monitoring of serious offenders and violent sexual offenders. The system may provide:

(A) Time-correlated and continuous tracking of the geographic location of the subject using a global positioning system based on satellite and other location tracking technology;

(B) Reporting of subject's violations of prescriptive and proscriptive schedule or location requirements. Frequency of reporting may range from once-a-day (passive) to near real-time (active); and

(C) An automated system that provides local and state law enforcement with alerts to compare the geographic positions of monitored subjects with reported crime incidents and whether the subject was at or near the reported crime incidents. These alerts will enable authorities to include or exclude monitored subjects from an ongoing investigation;

(2)(A) Prior to June 30, 2005, the department of correction shall contract with a single vendor for the hardware services needed to monitor subject offenders and correlate their movements to reported crime incidents using a system meeting the requirements described in subdivision (b)(1)(C);

(B) The department of correction's contract with this vendor may provide for services necessary to implement or facilitate any of this part including the collection and disposition of the charges and fees provided for in this part and § 40-28-201(a)(2) and to allow for the reasonable cost of collection of the proceeds.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004; 2005 Pub.Acts, c. 179, §§ 1, 2, eff. May 17, 2005; 2012 Pub.Acts, c. 727, § 51, eff. July 1, 2012.

T. C. A. § 40-39-302, TN ST § 40-39-302

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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T. C. A. § 40-39-303

§ 40-39-303. Satellite-based monitoring program

Currentness

(a) Notwithstanding any other law, the board of parole may require, as a mandatory condition of release for any person convicted of a sexual offense as defined in § 40-39-301, that any person so released be enrolled in a satellite-based monitoring program for the full extent of the person's term of parole, consistent with the requirements of § 40-39-302.

(b) The board of parole may require, as a mandatory condition of release for any person convicted of a serious offense as defined in this chapter or for other offenders as the board deems appropriate, that the person be enrolled in a satellite-based monitoring program for the full extent of the person's term of parole, consistent with the requirements of § 40-39-302.

(c) Offender participation in a location tracking and crime correlation based monitoring and supervision program under this section shall be at the discretion of the department or as mandated by the board of parole and shall conform to the participant payment requirements stated in § 40-39-305 and be based upon the person's ability to pay.

(d) Notwithstanding any other law, the court shall require any person who is, on or after July 1, 2017, placed on probation for an offense that would qualify the person as a child rapist or a child sexual predator under § 39-13-523(a) and who does not maintain either a primary or secondary residence, to enroll in a satellite-based monitoring and supervision program for the full extent of the person's term of probation.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004; 2012 Pub.Acts, c. 727, § 52, eff. July 1, 2012; 2017 Pub.Acts, c. 311, § 1, eff. July 1, 2017.

T. C. A. § 40-39-303, TN ST § 40-39-303

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T. C. A. § 40-39-304

§ 40-39-304. Tampering with, removing, and vandalizing tracking devices

Currentness

(a) Intentional tampering with, removal of, or vandalism to a device issued pursuant to a location tracking and crime correlation based monitoring and supervision program described in § 40-39-302 by a person duly enrolled in the program is a Class A misdemeanor for the first offense, punishable by confinement in the county jail for not less than one hundred eighty (180) days. The minimum one hundred eighty-day sentence provided for this Class A misdemeanor offense is mandatory, and no person committing the offense shall be eligible for suspension of sentence, diversion, or probation until the minimum sentence is served in its entirety. A second or subsequent violation under this section is a Class E felony. Additionally, if the person violating this section is on probation, parole or any other alternative to incarceration, then the violation shall also constitute sufficient grounds for immediate revocation of probation, parole or other alternative to incarceration. Any violation of this section shall result in the imposition of the mandatory release condition specified in § 40-39-303(a) and (b).

(b) Any person who knowingly aids, abets, or assists a person duly enrolled in a location tracking and crime correlation based monitoring and supervision program described in § 40-39-302 in tampering with, removing or vandalizing a device issued pursuant to the program commits a Class A misdemeanor.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004.

T. C. A. § 40-39-304, TN ST § 40-39-304

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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T. C. A. § 40-39-305

§ 40-39-305. Fees

Currentness

(a) The department of correction is authorized to assess a daily or monthly fee, as the department deems reasonable and necessary to effectuate the purposes of this program, from serious offenders and violent sexual offenders who are required by the board or the department to participate in the sexual offender monitoring program described in § 40-39-302. This fee is intended to offset only the costs associated with the time-correlated tracking of the geographic location of subjects using the location tracking crime correlation system. Fees assessed by the department pursuant to this program may be collected in accordance with § 40-39-302(b)(2)(A).

(b) The department may waive all or any portion of the fees required by this section if it determines that an offender is indigent or financially unable to pay all or any portion of the fee. The department shall waive only that portion of the surcharge which the offender is financially unable to pay.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004; 2012 Pub.Acts, c. 727, § 53, eff. July 1, 2012.

T. C. A. § 40-39-305, TN ST § 40-39-305

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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T. C. A. § 40-39-306

§ 40-39-306. Sharing of criminal incident information

Currentness

Notwithstanding any other provision of law, the department of correction, the board of parole, the Tennessee bureau of investigation and all local law enforcement agencies are specifically authorized to share criminal incident information, limited to the time, place and nature of the crime, with each other and the vendor selected by the department to carry out the purposes of this part, and the department is authorized to direct the vendor so chosen to use data collected pursuant to § 40-39-302(b) in preparing correlation reports as described in that subsection for distribution to and use by state and local law enforcement agencies.

Credits

2004 Pub.Acts, c. 899, § 5, eff. July 1, 2004.

T. C. A. § 40-39-306, TN ST § 40-39-306

Current with effective legislation through Chapter 529 of the 2025 First Regular Session of the 114th Tennessee General Assembly. Some sections may be more current; see credits for details. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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Vernon's Texas Statutes and Codes Annotated
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Miscellaneous Proceedings
Chapter 62. Sex Offender Registration Program

Vernon's Ann.Texas C.C.P. T. 1, Ch. 62, Refs & Annos
Currentness

Vernon's Ann. Texas C. C. P. T. 1, Ch. 62, Refs & Annos, TX CRIM PRO T. 1, Ch. 62, Refs & Annos
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Vernon's Ann.Texas C.C.P. Art. 62.001

Art. 62.001. Definitions

Currentness

In this chapter:

- (1) "Department" means the Department of Public Safety.
- (2) "Local law enforcement authority" means, as applicable, the office of the chief of police of a municipality, the office of the sheriff of a county in this state, or a centralized registration authority.
- (3) "Penal institution" means a confinement facility operated by or under a contract with any division of the Texas Department of Criminal Justice, a confinement facility operated by or under contract with the Texas Juvenile Justice Department, or a juvenile secure pre-adjudication or post-adjudication facility operated by or under a local juvenile probation department, or a county jail.
- (4) "Released" means discharged, paroled, placed in a nonsecure community program for juvenile offenders, or placed on juvenile probation, community supervision, or mandatory supervision.
- (5) "Reportable conviction or adjudication" means a conviction or adjudication, including an adjudication of delinquent conduct or a deferred adjudication, that, regardless of the pendency of an appeal, is a conviction for or an adjudication for or based on:
 - (A) a violation of Section 21.02 (Continuous sexual abuse of young child or disabled individual), 21.09 (Bestiality), 21.11 (Indecency with a child), 22.011 (Sexual assault), 22.021 (Aggravated sexual assault), or 25.02 (Prohibited sexual conduct), Penal Code;
 - (B) a violation of Section 43.04 (Aggravated promotion of prostitution), 43.05 (Compelling prostitution), 43.25 (Sexual performance by a child), or 43.26 (Possession or promotion of child pornography), Penal Code;
 - (B-1) a violation of Section 43.021 (Solicitation of Prostitution), Penal Code, if the offense is punishable as a felony of the second degree;

(C) a violation of Section 20.04(a)(4) (Aggravated kidnapping), Penal Code, if the actor committed the offense or engaged in the conduct with intent to violate or abuse the victim sexually;

(D) a violation of Section 30.02 (Burglary), Penal Code, if the offense or conduct is punishable under Subsection (d) of that section and the actor committed the offense or engaged in the conduct with intent to commit a felony listed in Paragraph (A) or (C);

(E) a violation of Section 20.02 (Unlawful restraint), 20.03 (Kidnapping), or 20.04 (Aggravated kidnapping), Penal Code, if, as applicable:

(i) the judgment in the case contains an affirmative finding under Article 42.015; or

(ii) the order in the hearing or the papers in the case contain an affirmative finding that the victim or intended victim was younger than 17 years of age;

(F) the second violation of Section 21.08 (Indecent exposure), Penal Code, but not if the second violation results in a deferred adjudication;

(G) an attempt, conspiracy, or solicitation, as defined by Chapter 15, Penal Code, to commit an offense or engage in conduct listed in Paragraph (A), (B), (C), (D), (E), (K), or (L);

(H) a violation of the laws of another state, federal law, the laws of a foreign country, or the Uniform Code of Military Justice for or based on the violation of an offense containing elements that are substantially similar to the elements of an offense listed under Paragraph (A), (B), (B-1), (C), (D), (E), (G), (J), (K), or (L), but not if the violation results in a deferred adjudication;

(I) the second violation of the laws of another state, federal law, the laws of a foreign country, or the Uniform Code of Military Justice for or based on the violation of an offense containing elements that are substantially similar to the elements of the offense of indecent exposure, but not if the second violation results in a deferred adjudication;

(J) a violation of Section 33.021 (Online solicitation of a minor), Penal Code;

(K) a violation of Section 20A.02(a)(3), (4), (7), or (8) (Trafficking of persons), Penal Code; or

(L) a violation of Section 20A.03 (Continuous trafficking of persons), Penal Code, if the offense is based partly or wholly on conduct that constitutes an offense under Section 20A.02(a)(3), (4), (7), or (8) of that code.

(6) "Sexually violent offense" means any of the following offenses committed by a person 17 years of age or older:

(A) an offense under Section 21.02 (Continuous sexual abuse of young child or disabled individual), 21.11(a)(1) (Indecency with a child), 22.011 (Sexual assault), or 22.021 (Aggravated sexual assault), Penal Code;

(B) an offense under Section 43.25 (Sexual performance by a child), Penal Code;

(C) an offense under Section 20.04(a)(4) (Aggravated kidnapping), Penal Code, if the defendant committed the offense with intent to violate or abuse the victim sexually;

(D) an offense under Section 30.02 (Burglary), Penal Code, if the offense is punishable under Subsection (d) of that section and the defendant committed the offense with intent to commit a felony listed in Paragraph (A) or (C) of Subdivision (5); or

(E) an offense under the laws of another state, federal law, the laws of a foreign country, or the Uniform Code of Military Justice if the offense contains elements that are substantially similar to the elements of an offense listed under Paragraph (A), (B), (C), or (D).

(7) “Residence” includes a residence established in this state by a person described by Article 62.152(e).

(8) “Public or private institution of higher education” includes a college, university, community college, or technical or trade institute.

(9) “Authority for campus security” means the authority with primary law enforcement jurisdiction over property under the control of a public or private institution of higher education, other than a local law enforcement authority.

(10) “Extrajurisdictional registrant” means a person who:

(A) is required to register as a sex offender under:

(i) the laws of another state with which the department has entered into a reciprocal registration agreement;

(ii) federal law or the Uniform Code of Military Justice; or

(iii) the laws of a foreign country; and

(B) is not otherwise required to register under this chapter because:

(i) the person does not have a reportable conviction for an offense under the laws of the other state, federal law, the laws of the foreign country, or the Uniform Code of Military Justice containing elements that are substantially similar to the elements of an offense requiring registration under this chapter; or

(ii) the person does not have a reportable adjudication of delinquent conduct based on a violation of an offense under the laws of the other state, federal law, or the laws of the foreign country containing elements that are substantially similar to the elements of an offense requiring registration under this chapter.

(11) “Centralized registration authority” means a mandatory countywide registration location designated under Article 62.0045.

(12) “Online identifier” means electronic mail address information or a name used by a person when sending or receiving an instant message, social networking communication, or similar Internet communication or when participating in an Internet chat. The term includes an assumed name, nickname, pseudonym, moniker, or user name established by a person for use in connection with an electronic mail address, chat or instant chat room platform, commercial social networking site, or online picture-sharing service.

Credits

Added by Acts 1991, 72nd Leg., ch. 572, § 1, eff. Sept. 1, 1991. Amended by Acts 1993, 73rd Leg., ch. 866, § 1, eff. Aug. 30, 1993; Acts 1995, 74th Leg., ch. 76, § 14.62, eff. Sept. 1, 1995; Acts 1995, 74th Leg., ch. 258, § 1, eff. Sept. 1, 1995. Redesignated from Vernon's Ann.Civ.St. art. 6252-13c.1, § 1 and amended by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 1193, § 4, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, §§ 7, 8, eff. Sept. 1, 1999; Acts 2003, 78th Leg., ch. 347, § 1, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1005, § 8, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1275, § 3(4), eff. Sept. 1, 2003; Acts 2005, 79th Leg., ch. 1273, § 2, eff. June 18, 2005. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.01 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2007, 80th Leg., ch. 593, §§ 3.22(a), 3.22(b), 3.23, eff. Sept. 1, 2007; Acts 2007, 80th Leg., ch. 921, § 3.002(a), eff. Sept. 1, 2007; Acts 2009, 81st Leg., ch. 566, § 1, eff. June 19, 2009; Acts 2009, 81st Leg., ch. 755, § 2, eff. Sept. 1, 2009; Acts 2011, 82nd Leg., ch. 1 (S.B. 24), § 2.10, eff. Sept. 1, 2011; Acts 2011, 82nd Leg., ch. 91 (S.B. 1303), § 27.001(4), eff. Sept. 1, 2011; Acts 2011, 82nd Leg., ch. 233 (H.B. 530), § 1, eff. June 17, 2011; Acts 2015, 84th Leg., ch. 332 (H.B. 10), § 5, eff. Sept. 1, 2015; Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 13, eff. Sept. 1, 2015; Acts 2017, 85th Leg., ch. 685 (H.B. 29), § 15, eff. Sept. 1, 2017; Acts 2017, 85th Leg., ch. 739 (S.B. 1232), § 5, eff. Sept. 1, 2017; Acts 2019, 86th Leg., ch. 273 (S.B. 1802), § 1, eff. Sept. 1, 2019; Acts 2019, 86th Leg., ch. 413 (S.B. 20), § 2.03, eff. Sept. 1, 2019; Acts 2021, 87th Leg., ch. 221 (H.B. 375), § 2.13, eff. Sept. 1, 2021; Acts 2021, 87th Leg., ch. 807 (H.B. 1540), § 36, eff. Sept. 1, 2021.

Vernon's Ann. Texas C. C. P. Art. 62.001, TX CRIM PRO Art. 62.001

Current through legislation effective July 1, 2025, of the 2025 Regular Session of the 89th Legislature. Some statute sections may be more current, but not necessarily complete through the whole Session. See credits for details.

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Vernon's Ann.Texas C.C.P. Art. 62.0015

Art. 62.0015. Redesignated as Vernon's Ann. Texas C.C.P. art.
63.0015 by Acts 2009, 81st Leg., ch. 87, § 27.001(3), eff. Sept. 1, 2009

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.0015, TX CRIM PRO Art. 62.0015

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Vernon's Ann.Texas C.C.P. Art. 62.002

Art. 62.002. Applicability of Chapter

Currentness

- (a) This chapter applies only to a reportable conviction or adjudication occurring on or after September 1, 1970.
- (b) Except as provided by Subsection (c), the duties imposed on a person required to register under this chapter on the basis of a reportable conviction or adjudication, and the corresponding duties and powers of other entities in relation to the person required to register on the basis of that conviction or adjudication, are not affected by:
- (1) an appeal of the conviction or adjudication; or
 - (2) a pardon of the conviction or adjudication.
- (c) If a conviction or adjudication that is the basis of a duty to register under this chapter is set aside on appeal by a court or if the person required to register under this chapter on the basis of a conviction or adjudication receives a pardon on the basis of subsequent proof of innocence, the duties imposed on the person by this chapter and the corresponding duties and powers of other entities in relation to the person are terminated.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.002, TX CRIM PRO Art. 62.002

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Vernon's Ann.Texas C.C.P. Art. 62.003

Art. 62.003. Determination Regarding Substantially Similar Elements of Offense

Currentness

(a) For the purposes of this chapter, the department is responsible for determining whether an offense under the laws of another state, federal law, the laws of a foreign country, or the Uniform Code of Military Justice contains elements that are substantially similar to the elements of an offense under the laws of this state.

(b) The department annually shall provide or make available to each prosecuting attorney's office in this state:

(1) the criteria used in making a determination under Subsection (a); and

(2) any existing record or compilation of offenses under the laws of another state, federal law, the laws of a foreign country, and the Uniform Code of Military Justice that the department has already determined to contain elements that are substantially similar to the elements of offenses under the laws of this state.

(c) An appeal of a determination made under this article shall be brought in a district court in Travis County.

Credits

Added by Acts 2001, 77th Leg., ch. 211, § 2, eff. Sept. 1, 2001. Amended by Acts 2003, 78th Leg., ch. 1005, § 9, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.0101 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.003, TX CRIM PRO Art. 62.003

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Vernon's Ann.Texas C.C.P. Art. 62.004

Art. 62.004. Determination Regarding Primary Registration Authority

Currentness

(a) Except as provided by Subsection (a-1), for each person subject to registration under this chapter, the department shall determine which local law enforcement authority serves as the person's primary registration authority based on the municipality or county in which the person resides or, as provided by Article 62.152, the municipality or county in which the person works or attends school.

(a-1) Notwithstanding any other provision of this chapter, if a person resides or, as described by Article 62.152, works or attends school in a county with a centralized registration authority, the centralized registration authority serves as the person's primary registration authority under this chapter, regardless of whether the person resides, works, or attends school, as applicable, in any municipality located in that county.

(b) The department shall notify each person subject to registration under this chapter of the person's primary registration authority in a timely manner.

Credits

Added by Acts 2003, 78th Leg., ch. 347, § 2, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.0102 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005; Acts 2009, 81st Leg., ch. 566, § 2, eff. June 19, 2009.

Vernon's Ann. Texas C. C. P. Art. 62.004, TX CRIM PRO Art. 62.004

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Vernon's Ann.Texas C.C.P. Art. 62.0045

Art. 62.0045. Centralized Registration Authority

Currentness

(a) The commissioners court of a county may designate the office of the sheriff of the county or may, through interlocal agreement, designate the office of a chief of police of a municipality in that county to serve as a mandatory countywide registration location for persons subject to this chapter.

(b) Notwithstanding any other provision of this chapter, a person subject to this chapter is required to perform the registration and verification requirements of Articles 62.051 and 62.058 and the change of address requirements of Article 62.055 only with respect to the centralized registration authority for the county, regardless of whether the person resides in any municipality located in that county. If the person resides in a municipality, and the local law enforcement authority in the municipality does not serve as the person's centralized registration authority, the centralized registration authority, not later than the third day after the date the person registers or verifies registration or changes address with that authority, shall provide to the local law enforcement authority in that municipality notice of the person's registration, verification of registration, or change of address, as applicable, with the centralized registration authority.

(c) This section does not affect a person's duty to register with secondary sex offender registries under this chapter, such as those described by Articles 62.059 and 62.153.

Credits

Added by Acts 2009, 81st Leg., ch. 566, § 3, eff. June 19, 2009. Amended by Acts 2013, 83rd Leg., ch. 1036 (H.B. 2825), § 1, eff. June 14, 2013.

Vernon's Ann. Texas C. C. P. Art. 62.0045, TX CRIM PRO Art. 62.0045

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Vernon's Ann.Texas C.C.P. Art. 62.005

Art. 62.005. Central Database; Public Information

Currentness

(a) The department shall maintain a computerized central database containing the information required for registration under this chapter. The department may include in the computerized central database the numeric risk level assigned to a person under this chapter.

(b) The information contained in the database, including the numeric risk level assigned to a person under this chapter, is public information, with the exception of any information:

(1) regarding the person's social security number or driver's license number, or any home, work, or cellular telephone number of the person;

(2) that is described by Article 62.051(c)(7) or required by the department under Article 62.051(c)(9), including any information regarding an employer's name, address, or telephone number; or

(3) that would identify the victim of the offense for which the person is subject to registration.

(c) Notwithstanding Chapter 730, Transportation Code, the department shall maintain in the database, and shall post on any department website related to the database, any photograph of the person that is available through the process for obtaining or renewing a personal identification certificate or driver's license under Section 521.103 or 521.272, Transportation Code. The department shall update the photograph in the database and on the website annually or as the photograph otherwise becomes available through the renewal process for the certificate or license.

(d) A local law enforcement authority shall release public information described under Subsection (b) to any person who requests the information from the authority. The authority may charge the person a fee not to exceed the amount reasonably necessary to cover the administrative costs associated with the authority's release of information to the person under this subsection.

(e) The department shall provide a licensing authority with notice of any person required to register under this chapter who holds or seeks a license that is issued by the authority. The department shall provide the notice required by this subsection as the applicable licensing information becomes available through notification by a court clerk under Article 42.0175, a parole panel under Section 508.1864, Government Code, or the person's registration or verification of registration.

(f) On the written request of a licensing authority that identifies an individual and states that the individual is an applicant for or a holder of a license issued by the authority, the department shall release any information described by Subsection (a) to the licensing authority.

(g) For the purposes of Subsections (e) and (f):

(1) "License" means a license, certificate, registration, permit, or other authorization that:

(A) is issued by a licensing authority; and

(B) a person must obtain to practice or engage in a particular business, occupation, or profession.

(2) "Licensing authority" means a department, commission, board, office, or other agency of the state or a political subdivision of the state that issues a license.

(h) Not later than the third day after the date on which the applicable information becomes available through the person's registration or verification of registration or under Article 62.058, the department shall send notice of any person required to register under this chapter who is or will be employed, carrying on a vocation, or a student at a public or private institution of higher education in this state to:

(1) for an institution in this state:

(A) the authority for campus security for that institution; or

(B) if an authority for campus security for that institution does not exist, the local law enforcement authority of:

(i) the municipality in which the institution is located; or

(ii) the county in which the institution is located, if the institution is not located in a municipality; or

(2) for an institution in another state, any existing authority for campus security at that institution.

(i) On the written request of an institution of higher education described by Subsection (h) that identifies an individual and states that the individual has applied to work or study at the institution, the department shall release any information described by Subsection (a) to the institution.

(j) The department, for law enforcement purposes or for supervision and treatment purposes, shall release all relevant information described by Subsection (a), including information that is not public information under Subsection (b), to a peace officer, an employee of a local law enforcement authority, the Texas Civil Commitment Office, or the attorney general on the request of the applicable person or entity.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2009, 81st Leg., ch. 755, § 3, eff. Sept. 1, 2009; Acts 2013, 83rd Leg., ch. 521 (S.B. 369), § 1, eff. Sept. 1, 2013; Acts 2017, 85th Leg., ch. 685 (H.B. 29), § 16, eff. Sept. 1, 2017; Acts 2019, 86th Leg., ch. 789 (H.B. 1899), § 3, eff. Sept. 1, 2019; Acts 2023, 88th Leg., ch. 351 (S.B. 1179), § 8, eff. Sept. 1, 2023.

Vernon's Ann. Texas C. C. P. Art. 62.005, TX CRIM PRO Art. 62.005

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Vernon's Ann.Texas C.C.P. Art. 62.006

Art. 62.006. Information Provided to Peace Officer on Request

Currentness

The department shall establish a procedure by which a peace officer or employee of a law enforcement agency who provides the department with a driver's license number, personal identification certificate number, or license plate number is automatically provided information as to whether the person to whom the driver's license or personal identification certificate is issued is required to register under this chapter or whether the license plate number is entered in the computerized central database under Article 62.005 as assigned to a vehicle owned or driven by a person required to register under this chapter.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.006, TX CRIM PRO Art. 62.006

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Vernon's Ann.Texas C.C.P. Art. 62.0061

Art. 62.0061. Request for Online Identifiers by Social Networking Sites

Currentness

(a) On request by a commercial social networking site, the department may provide to the commercial social networking site:

(1) all public information that is contained in the database maintained under Article 62.005; and

(2) notwithstanding Article 62.005(b)(2), any online identifier established or used by a person who uses the site, is seeking to use the site, or is precluded from using the site.

(b) The department by rule shall establish a procedure through which a commercial social networking site may request information under Subsection (a), including rules regarding the eligibility of commercial social networking sites to request information under Subsection (a). The department shall consult with the attorney general, other appropriate state agencies, and other appropriate entities in adopting rules under this subsection.

(c) A commercial social networking site or the site's agent:

(1) may use information received under Subsection (a) only to:

(A) prescreen persons seeking to use the site; or

(B) preclude persons registered under this chapter from using the site; and

(2) may not use any information received under Subsection (a) that the networking site obtained solely under Subsection (a) in any manner not described by Subdivision (1).

(d) A commercial social networking site that uses information received under Subsection (a) in any manner not described by Subsection (c)(1) or that violates a rule adopted by the department under Subsection (b) is subject to a civil penalty of \$1,000 for each misuse of information or rule violation. A commercial social networking site that is assessed a civil penalty under this article shall pay, in addition to the civil penalty, all court costs, investigative costs, and attorney's fees associated with the

assessment of the penalty. A civil penalty assessed under this subsection shall be deposited to the compensation to victims of crime fund established under Subchapter J, Chapter 56B.

(e) This article does not create a private cause of action against a commercial social networking site, including a cause of action that is based on the site:

(1) identifying, removing, disabling, blocking, or otherwise affecting the user of a commercial social networking site, based on a good faith belief that the person is required to register as a sex offender under this chapter or federal law; or

(2) failing to identify, remove, disable, block, or otherwise affect the user of a commercial social networking site who is required to register as a sex offender under this chapter or federal law.

(f) In this article, “commercial social networking site”:

(1) means an Internet website that:

(A) allows users, through the creation of Internet web pages or profiles or other similar means, to provide personal information to the public or other users of the Internet website;

(B) offers a mechanism for communication with other users of the Internet website; and

(C) has the primary purpose of facilitating online social interactions; and

(2) does not include an Internet service provider, unless the Internet service provider separately operates and directly derives revenue from an Internet website described by Subdivision (1).

Credits

Added by Acts 2009, 81st Leg., ch. 755, § 4, eff. Sept. 1, 2009. Amended by Acts 2019, 86th Leg., ch. 469 (H.B. 4173), § 2.21, eff. Jan. 1, 2021.

Vernon's Ann. Texas C. C. P. Art. 62.0061, TX CRIM PRO Art. 62.0061

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Vernon's Ann.Texas C.C.P. Art. 62.007

Art. 62.007. Risk Assessment Review Committee; Sex Offender Screening Tool

Currentness

(a) The Texas Department of Criminal Justice shall establish a risk assessment review committee composed of at least seven members, each of whom serves on the review committee in addition to the member's other employment-related duties. The review committee, to the extent feasible, must include at least:

- (1) one member having experience in law enforcement;
- (2) one member having experience working with juvenile sex offenders;
- (3) one member having experience as a sex offender treatment provider;
- (4) one member having experience working with victims of sex offenses;
- (5) the executive director of the Council on Sex Offender Treatment; and
- (6) one sex offender treatment provider registered under Chapter 110, Occupations Code, and selected by the executive director of the Council on Sex Offender Treatment to serve on the review committee.

(b) The risk assessment review committee functions in an oversight capacity. The committee shall:

- (1) develop or select, from among existing tools or from any tool recommended by the Council on Sex Offender Treatment, a sex offender screening tool to be used in determining the level of risk of a person subject to registration under this chapter;
- (2) ensure that staff is trained on the use of the screening tool;
- (3) monitor the use of the screening tool in the state; and

(4) analyze other screening tools as they become available and revise or replace the existing screening tool if warranted.

(c) The sex offender screening tool must use an objective point system under which a person is assigned a designated number of points for each of various factors. In developing or selecting the sex offender screening tool, the risk assessment review committee shall use or shall select a screening tool that may be adapted to use the following general guidelines:

(1) level one (low): a designated range of points on the sex offender screening tool indicating that the person poses a low danger to the community and will not likely engage in criminal sexual conduct;

(2) level two (moderate): a designated range of points on the sex offender screening tool indicating that the person poses a moderate danger to the community and might continue to engage in criminal sexual conduct; and

(3) level three (high): a designated range of points on the sex offender screening tool indicating that the person poses a serious danger to the community and will continue to engage in criminal sexual conduct.

(d) The risk assessment review committee, the Texas Department of Criminal Justice, the Texas Juvenile Justice Department, or a court may override a risk level only if the entity:

(1) believes that the risk level assessed is not an accurate prediction of the risk the offender poses to the community; and

(2) documents the reason for the override in the offender's case file.

(e) Records and files, including records that have been sealed under Chapter 58, Family Code, relating to a person for whom a court, the Texas Department of Criminal Justice, or the Texas Juvenile Justice Department is required under this article to determine a level of risk shall be released to the court, the Texas Department of Criminal Justice, or the Texas Juvenile Justice Department, as appropriate, for the purpose of determining the person's risk level.

(f) Chapter 551, Government Code, does not apply to a meeting of the risk assessment review committee.

(g) The numeric risk level assigned to a person using the sex offender screening tool described by this article is not confidential and is subject to disclosure under Chapter 552, Government Code.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 14, eff. Sept. 1, 2015; Acts 2017, 85th Leg., ch. 746 (S.B. 1304), § 1, eff. Sept. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.007, TX CRIM PRO Art. 62.007

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Vernon's Ann.Texas C.C.P. Art. 62.008

Art. 62.008. General Immunity

Currentness

The following persons are immune from liability for good faith conduct under this chapter:

- (1) an employee or officer of the Texas Department of Criminal Justice, the Texas Juvenile Justice Department, the Department of Public Safety, the Board of Pardons and Paroles, or a local law enforcement authority;
- (2) an employee or officer of a community supervision and corrections department or a juvenile probation department;
- (3) a member of the judiciary; and
- (4) a member of the risk assessment review committee established under Article 62.007.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 15, eff. Sept. 1, 2015.

Vernon's Ann. Texas C. C. P. Art. 62.008, TX CRIM PRO Art. 62.008

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Vernon's Ann.Texas C.C.P. Art. 62.009

Art. 62.009. Immunity for Release of Public Information

Currentness

(a) The department, a penal institution, a local law enforcement authority, or an authority for campus security may release to the public information regarding a person required to register under this chapter only if the information is public information under this chapter.

(b) An individual, agency, entity, or authority is not liable under Chapter 101, Civil Practice and Remedies Code, or any other law for damages arising from conduct authorized by Subsection (a).

(c) For purposes of determining liability, the release or withholding of information by an appointed or elected officer of an agency, entity, or authority is a discretionary act.

(d) A private primary or secondary school, public or private institution of higher education, or administrator of a private primary or secondary school or public or private institution of higher education may release to the public information regarding a person required to register under this chapter only if the information is public information under this chapter and is released to the administrator under Article 62.005, 62.053, 62.054, 62.055, or 62.153. A private primary or secondary school, public or private institution of higher education, or administrator of a private primary or secondary school or public or private institution of higher education is not liable under any law for damages arising from conduct authorized by this subsection.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.009, TX CRIM PRO Art. 62.009

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Vernon's Ann.Texas C.C.P. Art. 62.010

Art. 62.010. Rulemaking Authority

Currentness

The Texas Department of Criminal Justice, the Texas Juvenile Justice Department, and the department may adopt any rule necessary to implement this chapter.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 16, eff. Sept. 1, 2015.

Vernon's Ann. Texas C. C. P. Art. 62.010, TX CRIM PRO Art. 62.010

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Vernon's Ann. Texas C.C.P. Art. 62.01

Art. 62.01. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.001 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.01, TX CRIM PRO Art. 62.01

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Vernon's Ann.Texas C.C.P. Art. 62.0101

Arts. 62.0101, 62.0102. Redesignated as Vernon's Ann. Texas C.C.P. arts. 62.003,
62.004 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.0101, TX CRIM PRO Art. 62.0101

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Vernon's Ann.Texas C.C.P. Art. 62.0102

Arts. 62.0101, 62.0102. Redesignated as Vernon's Ann. Texas C.C.P. arts. 62.003,
62.004 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.0102, TX CRIM PRO Art. 62.0102

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Vernon's Ann.Texas C.C.P. Art. 62.0105

Arts. 62.0105, 62.011. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.0105, TX CRIM PRO Art. 62.0105

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Vernon's Ann.Texas C.C.P. Art. 62.011

Arts. 62.0105, 62.011. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.011, TX CRIM PRO Art. 62.011

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Vernon's Ann.Texas C.C.P. Art. 62.012

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.012, TX CRIM PRO Art. 62.012

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Vernon's Ann.Texas C.C.P. Art. 62.013

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

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Vernon's Ann.Texas C.C.P. Art. 62.014

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.014, TX CRIM PRO Art. 62.014

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Vernon's Ann.Texas C.C.P. Art. 62.015

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.015, TX CRIM PRO Art. 62.015

Current through legislation effective July 1, 2025, of the 2025 Regular Session of the 89th Legislature. Some statute sections may be more current, but not necessarily complete through the whole Session. See credits for details.

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Vernon's Ann.Texas C.C.P. Art. 62.016

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.016, TX CRIM PRO Art. 62.016

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Vernon's Ann.Texas C.C.P. Art. 62.017

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.017, TX CRIM PRO Art. 62.017

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Vernon's Ann.Texas C.C.P. Art. 62.018

Arts. 62.012 to 62.018. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.012
to 63.018 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(A), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.018, TX CRIM PRO Art. 62.018

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Vernon's Ann.Texas C.C.P. Art. 62.019

Arts. 62.019, 62.020. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.019,
63.020 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(B), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.019, TX CRIM PRO Art. 62.019

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Vernon's Ann.Texas C.C.P. Art. 62.020

Arts. 62.019, 62.020. Redesignated as Vernon's Ann. Texas C.C.P. arts. 63.019,
63.020 by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(B), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.020, TX CRIM PRO Art. 62.020

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Vernon's Ann. Texas C.C.P. Art. 62.02

Arts. 62.02, 62.021. Redesignated as Vernon's Ann. Texas C.C.P. arts. 62.051,
62.052 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.02, TX CRIM PRO Art. 62.02

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Vernon's Ann.Texas C.C.P. Art. 62.021

Arts. 62.02, 62.021. Redesignated as Vernon's Ann. Texas C.C.P. arts. 62.051,
62.052 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.021, TX CRIM PRO Art. 62.021

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Vernon's Ann.Texas C.C.P. Art. 62.022

Art. 62.022. Redesignated as Vernon's Ann. Texas C.C.P. art. 63.022
by Acts 1999, 76th Leg., ch. 62, § 19.01(8)(B), eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.022, TX CRIM PRO Art. 62.022

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Vernon's Ann.Texas C.C.P. Art. 62.023

Arts. 62.023, 62.024. Repealed by Acts 1999, 76th Leg., ch. 1081, § 8, eff. Sept. 1, 1999

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.023, TX CRIM PRO Art. 62.023

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Vernon's Ann. Texas C.C.P. Art. 62.03

Art. 62.03. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.053 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.03, TX CRIM PRO Art. 62.03

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Vernon's Ann.Texas C.C.P. Art. 62.031

Art. 62.031. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.031, TX CRIM PRO Art. 62.031

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Vernon's Ann.Texas C.C.P. Art. 62.032

Art. 62.032. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.054 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.032, TX CRIM PRO Art. 62.032

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Vernon's Ann.Texas C.C.P. Art. 62.035

Art. 62.035. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.035, TX CRIM PRO Art. 62.035

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Vernon's Ann. Texas C.C.P. Art. 62.04

Art. 62.04. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.055 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.04, TX CRIM PRO Art. 62.04

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Vernon's Ann.Texas C.C.P. Art. 62.041

Art. 62.041. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

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Vernon's Ann. Texas C. C. P. Art. 62.041, TX CRIM PRO Art. 62.041

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Vernon's Ann. Texas C.C.P. Art. 62.045

Art. 62.045. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.056 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.045, TX CRIM PRO Art. 62.045

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Vernon's Ann.Texas C.C.P. Art. 62.0451

Art. 62.0451. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.0451, TX CRIM PRO Art. 62.0451

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Vernon's Ann. Texas C.C.P. Art. 62.05

Art. 62.05. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.057 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

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Vernon's Ann. Texas C. C. P. Art. 62.05, TX CRIM PRO Art. 62.05

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Subchapter B. Registration and Verification Requirements; Related Notice

Vernon's Ann.Texas C.C.P. Art. 62.051

Art. 62.051. Registration: General

Currentness

(a) A person who has a reportable conviction or adjudication or who is required to register as a condition of parole, release to mandatory supervision, or community supervision shall register or, if the person is a person for whom registration is completed under this chapter, verify registration as provided by Subsection (f), with the local law enforcement authority in any municipality where the person resides or intends to reside for more than seven days. If the person does not reside or intend to reside in a municipality, the person shall register or verify registration in any county where the person resides or intends to reside for more than seven days. The person shall satisfy the requirements of this subsection not later than the later of:

(1) the seventh day after the person's arrival in the municipality or county; or

(2) the first date the local law enforcement authority of the municipality or county by policy allows the person to register or verify registration, as applicable.

(b) The department shall provide the Texas Department of Criminal Justice, the Texas Juvenile Justice Department, the Texas Civil Commitment Office, and each local law enforcement authority, authority for campus security, county jail, and court with a form for registering persons required by this chapter to register.

(c) The registration form shall require:

(1) the person's full name, date of birth, sex, race, height, weight, eye color, hair color, social security number, driver's license number, and shoe size;

(1-a) the address at which the person resides or intends to reside or, if the person does not reside or intend to reside at a physical address, a detailed description of each geographical location at which the person resides or intends to reside;

(1-b) each alias used by the person and any home, work, or cellular telephone number of the person;

(2) a recent color photograph or, if possible, an electronic digital image of the person and a complete set of the person's fingerprints;

- (3) the type of offense the person was convicted of, the age of the victim, the date of conviction, and the punishment received;
 - (4) an indication as to whether the person is discharged, paroled, or released on juvenile probation, community supervision, or mandatory supervision;
 - (5) an indication of each license, as defined by Article 62.005(g), that is held or sought by the person;
 - (6) an indication as to whether the person is or will be employed, carrying on a vocation, or a student at a particular public or private institution of higher education in this state or another state, and the name and address of that institution;
 - (7) the identification of any online identifier established or used by the person;
 - (8) the vehicle registration information, including the make, model, vehicle identification number, color, and license plate number, of any vehicle owned by the person, if the person has a reportable conviction or adjudication for an offense under:
 - (A) Section 20A.02(a)(3), (4), (7), or (8), Penal Code; or
 - (B) Section 20A.03, Penal Code, if based partly or wholly on conduct that constitutes an offense under Section 20A.02(a)(3), (4), (7), or (8) of that code; and
 - (9) any other information required by the department.
- (d) The registration form must contain a statement and description of any registration duties the person has or may have under this chapter.
- (e) Not later than the third day after the registration of a person, the local law enforcement authority with whom the person is registered shall send a copy of the registration form to the department and, if the person resides on the campus of a public or private institution of higher education, to any authority for campus security for that institution.
- (e-1) The Texas Civil Commitment Office shall register with the applicable local law enforcement authority on behalf of a person who is civilly committed as a sexually violent predator under Chapter 841, Health and Safety Code, and required to reside in a civil commitment center. A person for whom registration is completed under this subsection is not required to verify the registration until the person is authorized to reside outside of the civil commitment center.
- (f) Not later than the seventh day after the date on which the person is released or, for a person who is civilly committed as a sexually violent predator under Chapter 841, Health and Safety Code, authorized to reside outside of the civil commitment center, a person for whom registration is completed under this chapter shall report to the applicable local law enforcement authority to verify the information in the registration form received by the authority under this chapter. The authority shall require the person to produce proof of the person's identity and residence before the authority gives the registration form to the

person for verification. If the information in the registration form is complete and accurate, the person shall verify registration by signing the form. If the information is not complete or not accurate, the person shall make any necessary additions or corrections before signing the form.

(g) A person who is required to register or verify registration under this chapter shall ensure that the person's registration form is complete and accurate with respect to each item of information required by the form in accordance with Subsection (c).

(h) If a person subject to registration under this chapter does not move to an intended residence by the end of the seventh day after the date on which the person is released or the date on which the person leaves a previous residence, the person shall:

(1) report to the juvenile probation officer, community supervision and corrections department officer, or parole officer supervising the person by not later than the seventh day after the date on which the person is released or the date on which the person leaves a previous residence, as applicable, and provide the officer with the address of the person's temporary residence; and

(2) continue to report to the person's supervising officer not less than weekly during any period of time in which the person has not moved to an intended residence and provide the officer with the address of the person's temporary residence.

(i) If the other state has a registration requirement for sex offenders, a person who has a reportable conviction or adjudication, who resides in this state, and who is employed, carries on a vocation, or is a student in another state shall, not later than the 10th day after the date on which the person begins to work or attend school in the other state, register with the law enforcement authority that is identified by the department as the authority designated by that state to receive registration information. If the person is employed, carries on a vocation, or is a student at a public or private institution of higher education in the other state and if an authority for campus security exists at the institution, the person shall also register with that authority not later than the 10th day after the date on which the person begins to work or attend school.

(j) If a person subject to registration under this chapter is released from a penal institution without being released to parole or placed on any other form of supervision and the person does not move to the address indicated on the registration form as the person's intended residence or does not indicate an address on the registration form, the person shall, not later than the seventh day after the date on which the person is released:

(1) report in person to the local law enforcement authority for the municipality or county, as applicable, in which the person is residing and provide that authority with the address at which the person is residing or, if the person's residence does not have a physical address, a detailed description of the geographical location of the person's residence; and

(2) until the person indicates the person's current address as the person's intended residence on the registration form or otherwise complies with the requirements of Article 62.055, as appropriate, continue to report, in the manner required by Subdivision (1), to that authority not less than once in each succeeding 30-day period and provide that authority with the address at which the person is residing or, if applicable, a detailed description of the geographical location of the person's residence.

(k) A person required to register under this chapter may not refuse or otherwise fail to provide any information required for the accurate completion of the registration form.

Credits

Added by Acts 1991, 72nd Leg., ch. 572, § 1, eff. Sept. 1, 1991. Amended by Acts 1995, 74th Leg., ch. 258, § 2, eff. Sept. 1, 1995; Acts 1995, 74th Leg., ch. 676, § 1, eff. Sept. 1, 1995. Redesignated from Vernon's Ann.Civ.St. art. 6252-13c.1, § 2 and amended by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 1, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1193, § 5, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 10, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 932, § 1, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 347, § 4, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1276, § 5.003(b), eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.02 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005; Acts 2009, 81st Leg., ch. 661, § 2, eff. Sept. 1, 2009; Acts 2009, 81st Leg., ch. 755, § 5, eff. Sept. 1, 2009. Amended by Acts 2011, 82nd Leg., ch. 91 (S.B. 1303), § 6.005, eff. Sept. 1, 2011; Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 17, eff. Sept. 1, 2015; Acts 2017, 85th Leg., ch. 685 (H.B. 29), § 17, eff. Sept. 1, 2017; Acts 2023, 88th Leg., ch. 351 (S.B. 1179), § 9, eff. Sept. 1, 2023.

Vernon's Ann. Texas C. C. P. Art. 62.051, TX CRIM PRO Art. 62.051

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Vernon's Ann.Texas C.C.P. Art. 62.052

Art. 62.052. Registration: Extrajurisdictional Registrants

Currentness

- (a) An extrajurisdictional registrant is required to comply with the annual verification requirements of Article 62.058 in the same manner as ¹ a person who is required to verify registration on the basis of a reportable conviction or adjudication.
- (b) The duty to register for an extrajurisdictional registrant expires on the date the person's duty to register would expire under the laws of the other state or foreign country had the person remained in that state or foreign country, under federal law, or under the Uniform Code of Military Justice, as applicable.
- (c) The department may negotiate and enter into a reciprocal registration agreement with any other state to prevent residents of this state and residents of the other state from frustrating the public purpose of the registration of sex offenders by moving from one state to the other.

Credits

Added by Acts 1999, 76th Leg., ch. 444, § 2, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 11, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 211, § 3, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 1005, § 10, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.021 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Footnotes

¹ Acts 1999, 76th Leg., ch. 444, § 2 here reads “manner as is”.

Vernon's Ann. Texas C. C. P. Art. 62.052, TX CRIM PRO Art. 62.052

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Vernon's Ann.Texas C.C.P. Art. 62.053

Art. 62.053. Prerelease Notification

Currentness

(a) Before a person who will be subject to registration under this chapter is due to be released from a penal institution, the Texas Department of Criminal Justice or the Texas Juvenile Justice Department shall determine the person's level of risk to the community using the sex offender screening tool developed or selected under Article 62.007 and assign to the person a numeric risk level of one, two, or three. Before releasing the person, an official of the penal institution shall:

(1) inform the person that:

(A) not later than the later of the seventh day after the date on which the person is released or after the date on which the person moves from a previous residence to a new residence in this state or not later than the first date the applicable local law enforcement authority by policy allows the person to register or verify registration, the person must register or verify registration with the local law enforcement authority in the municipality or county in which the person intends to reside;

(B) not later than the seventh day after the date on which the person is released or the date on which the person moves from a previous residence to a new residence in this state, the person must, if the person has not moved to an intended residence, report to the applicable entity or entities as required by Article 62.051(h) or (j) or 62.055(e);

(C) not later than the seventh day before the date on which the person moves to a new residence in this state or another state, the person must report in person to the local law enforcement authority designated as the person's primary registration authority by the department and to the juvenile probation officer, community supervision and corrections department officer, or parole officer supervising the person;

(D) not later than the 10th day after the date on which the person arrives in another state in which the person intends to reside, the person must register with the law enforcement agency that is identified by the department as the agency designated by that state to receive registration information, if the other state has a registration requirement for sex offenders;

(E) not later than the 30th day after the date on which the person is released, the person must apply to the department in person for the issuance of an original or renewal driver's license or personal identification certificate and a failure to apply to the department as required by this paragraph results in the automatic revocation of any driver's license or personal identification certificate issued by the department to the person;

(F) the person must notify appropriate entities of any change in status as described by Article 62.057;

(G) certain types of employment are prohibited under Article 62.063 for a person with a reportable conviction or adjudication for a sexually violent offense involving a victim younger than 14 years of age and occurring on or after September 1, 2013;

(H) certain locations of residence are prohibited under Article 62.064 for a person with a reportable conviction or adjudication for an offense occurring on or after September 1, 2017, except as otherwise provided by that article; and

(I) if the person enters the premises of a school as described by Article 62.065 and is subject to the requirements of that article, the person must immediately notify the administrative office of the school of the person's presence and the person's registration status under this chapter;

(2) require the person to sign a written statement that the person was informed of the person's duties as described by Subdivision (1) or Subsection (g) or, if the person refuses to sign the statement, certify that the person was so informed;

(3) obtain the address or, if applicable, a detailed description of each geographical location where the person expects to reside on the person's release and other registration information, including a photograph and complete set of fingerprints; and

(4) complete the registration form for the person.

(b) On the seventh day before the date on which a person who will be subject to registration under this chapter is due to be released from a penal institution, or on receipt of notice by a penal institution that a person who will be subject to registration under this chapter is due to be released in less than seven days, an official of the penal institution shall send the person's completed registration form and numeric risk level to the department and to:

(1) the applicable local law enforcement authority in the municipality or county in which the person expects to reside, if the person expects to reside in this state; or

(2) the law enforcement agency that is identified by the department as the agency designated by another state to receive registration information, if the person expects to reside in that other state and that other state has a registration requirement for sex offenders.

(c) If a person who is subject to registration under this chapter receives an order deferring adjudication, placing the person on community supervision or juvenile probation, or imposing only a fine, the court pronouncing the order or sentence shall make a determination of the person's numeric risk level using the sex offender screening tool developed or selected under Article 62.007, assign to the person a numeric risk level of one, two, or three, and ensure that the prerelease notification and registration requirements specified in this article are conducted on the day of entering the order or sentencing. If a community supervision and corrections department representative is available in court at the time a court pronounces a sentence of deferred adjudication or community supervision, the representative shall immediately obtain the person's numeric risk level from the court and conduct the prerelease notification and registration requirements specified in this article. In any other case in which the

court pronounces a sentence under this subsection, the court shall designate another appropriate individual to obtain the person's numeric risk level from the court and conduct the prerelease notification and registration requirements specified in this article.

(d) If a person who has a reportable conviction described by Article 62.001(5)(H) or (I) is placed under the supervision of the parole division of the Texas Department of Criminal Justice or a community supervision and corrections department under Section 510.017, Government Code, the division or community supervision and corrections department shall conduct the prerelease notification and registration requirements specified in this article on the date the person is placed under the supervision of the division or community supervision and corrections department. If a person who has a reportable adjudication of delinquent conduct described by Article 62.001(5)(H) or (I) is, as permitted by Section 60.002, Family Code, placed under the supervision of the Texas Youth Commission, a public or private vendor operating under contract with the Texas Youth Commission, a local juvenile probation department, or a juvenile secure pre-adjudication or post-adjudication facility, the commission, vendor, probation department, or facility shall conduct the prerelease notification and registration requirements specified in this article on the date the person is placed under the supervision of the commission, vendor, probation department, or facility.

(e) Not later than the eighth day after receiving a registration form under Subsection (b), (c), or (d), the local law enforcement authority shall verify the age of the victim, the basis on which the person is subject to registration under this chapter, and the person's numeric risk level. The local law enforcement authority shall immediately provide notice to the superintendent of the public school district and to the administrator of any private primary or secondary school located in the public school district in which the person subject to registration intends to reside by mail to the office of the superintendent or administrator, as appropriate, in accordance with Article 62.054. On receipt of a notice under this subsection, the superintendent shall release the information contained in the notice to appropriate school district personnel, including peace officers and security personnel, principals, nurses, and counselors.

(f) The local law enforcement authority shall include in the notice to the superintendent of the public school district and to the administrator of any private primary or secondary school located in the public school district any information the authority determines is necessary to protect the public, except:

(1) the person's social security number or driver's license number, or any home, work, or cellular telephone number of the person; and

(2) any information that would identify the victim of the offense for which the person is subject to registration.

(g) Before a person who will be subject to registration under this chapter is due to be released from a penal institution in this state, an official of the penal institution shall inform the person that:

(1) if the person intends to reside in another state and to work or attend school in this state, the person must, not later than the later of the seventh day after the date on which the person begins to work or attend school or the first date the applicable local law enforcement authority by policy allows the person to register or verify registration, register or verify registration with the local law enforcement authority in the municipality or county in which the person intends to work or attend school;

(2) if the person intends to reside in this state and to work or attend school in another state and if the other state has a registration requirement for sex offenders, the person must:

(A) not later than the 10th day after the date on which the person begins to work or attend school in the other state, register with the law enforcement authority that is identified by the department as the authority designated by that state to receive registration information; and

(B) if the person intends to be employed, carry on a vocation, or be a student at a public or private institution of higher education in the other state and if an authority for campus security exists at the institution, register with that authority not later than the 10th day after the date on which the person begins to work or attend school; and

(3) regardless of the state in which the person intends to reside, if the person intends to be employed, carry on a vocation, or be a student at a public or private institution of higher education in this state, the person must:

(A) not later than the later of the seventh day after the date on which the person begins to work or attend school or the first date the applicable authority by policy allows the person to register, register with:

(i) the authority for campus security for that institution; or

(ii) except as provided by Article 62.153(e), if an authority for campus security for that institution does not exist, the local law enforcement authority of:

(a) the municipality in which the institution is located; or

(b) the county in which the institution is located, if the institution is not located in a municipality; and

(B) not later than the seventh day after the date the person stops working or attending school, notify the appropriate authority for campus security or local law enforcement authority of the termination of the person's status as a worker or student.

Credits

Added by Acts 1991, 72nd Leg., ch. 572, § 1, eff. Sept. 1, 1991. Amended by Acts 1993, 73rd Leg., ch. 866, § 2, eff. Aug. 30, 1993; Acts 1995, 74th Leg., ch. 258, § 3, eff. Sept. 1, 1995; Acts 1997, 75th Leg., ch. 667, § 5, eff. Sept. 1, 1997; Acts 1997, 75th Leg., ch. 1430, § 8, eff. Sept. 1, 1997. Redesignated from Vernon's Ann.Civ.St. art. 6252-13c.1, § 3 and amended by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 3, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1193, §§ 6, 7, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1401, § 2, eff. Sept. 1, 2000; Acts 1999, 76th Leg., ch. 1415, § 12, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1557, § 1, eff. Aug. 30, 1999; Acts 2001, 77th Leg., ch. 177, § 1, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 211, § 4, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1420, § 3.003, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 347, § 5, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.03 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2009, 81st Leg., ch. 87, § 25.048, eff. Sept. 1, 2009; Acts 2009, 81st Leg., ch. 661, § 3, eff. Sept. 1, 2009; Acts 2009, 81st Leg., ch. 755, § 6, eff. Sept. 1, 2009; Acts 2013, 83rd Leg., ch. 663 (H.B. 1302), § 4, eff. Sept. 1, 2013; Acts 2017, 85th Leg., ch. 329 (H.B. 355), § 2, eff. Sept. 1, 2017; Acts 2017, 85th Leg., ch. 924 (S.B. 1553), § 1, eff. Sept. 1, 2017; Acts 2019, 86th Leg., ch. 467 (H.B. 4170), § 4.015, eff. Sept. 1, 2019.

Vernon's Ann. Texas C. C. P. Art. 62.053, TX CRIM PRO Art. 62.053

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Vernon's Ann.Texas C.C.P. Art. 62.054

Art. 62.054. Circumstances Requiring Notice to Superintendent or School Administrator

Currentness

(a) A local law enforcement authority shall provide notice to the superintendent and each administrator under Article 62.053(e) or 62.055(f) only if:

(1) the victim was at the time of the offense a child younger than 17 years of age or a student enrolled in a public or private secondary school;

(2) the person subject to registration is a student enrolled in a public or private secondary school; or

(3) the basis on which the person is subject to registration is a conviction, a deferred adjudication, or an adjudication of delinquent conduct for an offense under Section 43.25 or 43.26, Penal Code, or an offense under the laws of another state, federal law, or the Uniform Code of Military Justice that contains elements substantially similar to the elements of an offense under either of those sections.

(b) A local law enforcement authority may not provide notice to the superintendent or any administrator under Article 62.053(e) or 62.055(f) if the basis on which the person is subject to registration is a conviction, a deferred adjudication, or an adjudication of delinquent conduct for an offense under Section 25.02, Penal Code, or an offense under the laws of another state, federal law, or the Uniform Code of Military Justice that contains elements substantially similar to the elements of an offense under that section.

Credits

Added by Acts 2003, 78th Leg., ch. 347, § 6, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.032 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.054, TX CRIM PRO Art. 62.054

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Vernon's Ann.Texas C.C.P. Art. 62.055

Art. 62.055. Change of Address; Lack of Address

Currentness

(a) If a person, other than a person described by Subsection (j), required to register under this chapter intends to change address, regardless of whether the person intends to move to another state, the person shall, not later than the seventh day before the intended change, report in person to the local law enforcement authority designated as the person's primary registration authority by the department and to the juvenile probation officer, community supervision and corrections department officer, or parole officer supervising the person and provide the authority and the officer with the person's anticipated move date and new address. If a person, other than a person described by Subsection (j), required to register changes address, the person shall, not later than the later of the seventh day after changing the address or the first date the applicable local law enforcement authority by policy allows the person to report, report in person to the local law enforcement authority in the municipality or county in which the person's new residence is located and provide the authority with proof of identity and proof of residence.

(b) Not later than the third day after receipt of notice under Subsection (a), the person's juvenile probation officer, community supervision and corrections department officer, or parole officer shall forward the information provided under Subsection (a) to the local law enforcement authority designated as the person's primary registration authority by the department and, if the person intends to move to another municipality or county in this state, to the applicable local law enforcement authority in that municipality or county.

(c) If the person moves to another state that has a registration requirement for sex offenders, the person shall, not later than the 10th day after the date on which the person arrives in the other state, register with the law enforcement agency that is identified by the department as the agency designated by that state to receive registration information.

(d) Not later than the third day after receipt of information under Subsection (a) or (b), whichever is earlier, the local law enforcement authority shall forward this information to the department and, if the person intends to move to another municipality or county in this state, to the applicable local law enforcement authority in that municipality or county.

(e) If a person who reports to a local law enforcement authority under Subsection (a) does not move on or before the anticipated move date or does not move to the new address provided to the authority, the person shall:

(1) not later than the seventh day after the anticipated move date, and not less than weekly after that seventh day, report to the local law enforcement authority designated as the person's primary registration authority by the department and provide an explanation to the authority regarding any changes in the anticipated move date and intended residence; and

(2) report to the juvenile probation officer, community supervision and corrections department officer, or parole officer supervising the person not less than weekly during any period in which the person has not moved to an intended residence.

(f) If the person moves to another municipality or county in this state, the department shall inform the applicable local law enforcement authority in the new area of the person's residence not later than the third day after the date on which the department receives information under Subsection (a). Not later than the eighth day after the date on which the local law enforcement authority is informed under Subsection (a) or under this subsection, the authority shall verify the age of the victim, the basis on which the person is subject to registration under this chapter, and the person's numeric risk level. The local law enforcement authority shall immediately provide notice to the superintendent of the public school district and to the administrator of any private primary or secondary school located in the public school district in which the person subject to registration intends to reside by mail to the office of the superintendent or administrator, as appropriate, in accordance with Article 62.054. On receipt of a notice under this subsection, the superintendent shall release the information contained in the notice to appropriate school district personnel, including peace officers and security personnel, principals, nurses, and counselors.

(g) The local law enforcement authority shall include in the notice to the superintendent of the public school district and the administrator of any private primary or secondary school located in the public school district any information the authority determines is necessary to protect the public, except:

(1) the person's social security number or driver's license number, or any home, work, or cellular telephone number of the person; and

(2) any information that would identify the victim of the offense for which the person is subject to registration.

(h) If the person moves to another state, the department shall, immediately on receiving information under Subsection (d):

(1) inform the agency that is designated by the other state to receive registration information, if that state has a registration requirement for sex offenders; and

(2) send to the Federal Bureau of Investigation a copy of the person's registration form, including the record of conviction and a complete set of fingerprints.

(i) If a person required to register under this chapter resides for more than seven days at a location or locations to which a physical address has not been assigned by a governmental entity, the person, not less than once in each 30-day period, shall confirm the person's location or locations by:

(1) reporting to the local law enforcement authority in the municipality where the person resides or, if the person does not reside in a municipality, the local law enforcement authority in the county in which the person resides; and

(2) providing a detailed description of the applicable location or locations.

(j) The Texas Civil Commitment Office shall report a change in address to each local law enforcement authority serving as the current or proposed primary registration authority for a person required to register under this chapter who is:

(1) civilly committed as a sexually violent predator under Chapter 841, Health and Safety Code; and

(2) required to reside in a location other than a civil commitment center by:

(A) a court under Chapter 574, Health and Safety Code; or

(B) the Texas Civil Commitment Office.

Credits

Added by Acts 1991, 72nd Leg., ch. 572, § 1, eff. Sept. 1, 1991. Amended by Acts 1995, 74th Leg., ch. 258, § 4, eff. Sept. 1, 1995; Acts 1997, 75th Leg., ch. 667, § 6, eff. Sept. 1, 1997; Acts 1997, 75th Leg., ch. 1430, § 9, eff. Sept. 1, 1997. Redesignated from Vernon's Ann.Civ.St. art. 6252-13c.1, § 4 and amended by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 4, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 13, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1557, § 3, eff. Aug. 30, 1999; Acts 2001, 77th Leg., ch. 177, § 3, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 211, § 5, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1420, § 3.004, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 347, § 7, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.04 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2009, 81st Leg., ch. 661, §§ 4, 5, eff. Sept. 1, 2009; Acts 2009, 81st Leg., ch. 755, § 7, eff. Sept. 1, 2009; Acts 2021, 87th Leg., ch. 431 (S.B. 906), § 1, eff. Sept. 1, 2021.

Vernon's Ann. Texas C. C. P. Art. 62.055, TX CRIM PRO Art. 62.055

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Vernon's Ann.Texas C.C.P. Art. 62.0551

Art. 62.0551. Change in Online Identifiers

Currentness

(a) If a person required to register under this chapter changes any online identifier included on the person's registration form or establishes any new online identifier not already included on the person's registration form, the person, not later than the later of the seventh day after the change or establishment or the first date the applicable authority by policy allows the person to report, shall report the change or establishment to the person's primary registration authority in the manner prescribed by the authority.

(b) A primary registration authority that receives information under this article shall forward information in the same manner as information received by the authority under Article 62.055.

Credits

Added by Acts 2009, 81st Leg., ch. 755, § 8, eff. Sept. 1, 2009.

Vernon's Ann. Texas C. C. P. Art. 62.0551, TX CRIM PRO Art. 62.0551

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Vernon's Ann.Texas C.C.P. Art. 62.056

Art. 62.056. Additional Public Notice for Certain Offenders

Currentness

(a) On receipt of notice under this chapter that a person subject to registration is due to be released from a penal institution, has been placed on community supervision or juvenile probation, or intends to move to a new residence in this state, the department shall verify the person's numeric risk level assigned under this chapter. If the person is assigned a numeric risk level of three, the department shall, not later than the seventh day after the date on which the person is released or the 10th day after the date on which the person moves, provide written notice mailed or delivered to at least each address, other than a post office box, within a one-mile radius, in an area that has not been subdivided, or a three-block area, in an area that has been subdivided, of the place where the person intends to reside. In providing written notice under this subsection, the department shall use employees of the department whose duties in providing the notice are in addition to the employees' regular duties.

(b) The department shall provide the notice in English and Spanish and shall include in the notice any information that is public information under this chapter. The department may not include any information that is not public information under this chapter.

(c) The department shall establish procedures for a person with respect to whom notice is provided under Subsection (a), other than a person subject to registration on the basis of an adjudication of delinquent conduct, to pay to the department all costs incurred by the department in providing the notice. The person shall pay those costs in accordance with the procedures established under this subsection.

(d) On receipt of notice under this chapter that a person subject to registration under this chapter is required to register or verify registration with a local law enforcement authority and has been assigned a numeric risk level of three, the local law enforcement authority may provide notice to the public in any manner determined appropriate by the local law enforcement authority, including publishing notice in a newspaper or other periodical or circular in circulation in the area where the person intends to reside, holding a neighborhood meeting, posting notices in the area where the person intends to reside, distributing printed notices to area residents, or establishing a specialized local website. The local law enforcement authority may include in the notice only information that is public information under this chapter.

(e) An owner, builder, seller, or lessor of a single-family residential real property or any improvement to residential real property or that person's broker, salesperson, or other agent or representative in a residential real estate transaction does not have a duty to make a disclosure to a prospective buyer or lessee about registrants under this chapter. To the extent of any conflict between this subsection and another law imposing a duty to disclose information about registered sex offenders, this subsection controls.

Credits

Added by Acts 1999, 76th Leg., ch. 1557, § 4, eff. Aug. 30, 1999. Amended by Acts 2001, 77th Leg., ch. 177, § 4, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 211, §§ 6, 7, eff. Sept. 1, 2001. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.045 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.056, TX CRIM PRO Art. 62.056

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Vernon's Ann.Texas C.C.P. Art. 62.057

Art. 62.057. Status Report by Supervising Officer or Local Law Enforcement Authority

Currentness

(a) If the juvenile probation officer, community supervision and corrections department officer, or parole officer supervising a person subject to registration under this chapter receives information to the effect that the person's status has changed in any manner that affects proper supervision of the person, including a change in the person's name, online identifiers, physical health, job or educational status, including higher educational status, incarceration, or terms of release, the supervising officer shall promptly notify the appropriate local law enforcement authority or authorities of that change. If the person required to register intends to change address, the supervising officer shall notify the local law enforcement authorities designated by Article 62.055(b). Not later than the seventh day after the date the supervising officer receives the relevant information, the supervising officer shall notify the local law enforcement authority of any change in the person's job or educational status in which the person:

(1) becomes employed, begins to carry on a vocation, or becomes a student at a particular public or private institution of higher education; or

(2) terminates the person's status in that capacity.

(b) Not later than the later of the seventh day after the date of the change or the first date the applicable authority by policy allows the person to report, a person subject to registration under this chapter shall report to the local law enforcement authority designated as the person's primary registration authority by the department any change in the person's name, online identifiers, physical health, or job or educational status, including higher educational status.

(c) For purposes of Subsection (b):

(1) a person's job status changes if the person leaves employment for any reason, remains employed by an employer but changes the location at which the person works, or begins employment with a new employer;

(2) a person's health status changes if the person is hospitalized as a result of an illness;

(3) a change in a person's educational status includes the person's transfer from one educational facility to another; and

(4) regarding a change of name, notice of the proposed name provided to a local law enforcement authority as described by Sections 45.004 and 45.103, Family Code, is sufficient, except that the person shall promptly notify the authority of any denial of the person's petition for a change of name.

(d) Not later than the seventh day after the date the local law enforcement authority receives the relevant information, the local law enforcement authority shall notify the department of any change in the person's job or educational status in which the person:

(1) becomes employed, begins to carry on a vocation, or becomes a student at a particular public or private institution of higher education; or

(2) terminates the person's status in that capacity.

Credits

Added by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 6, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 14, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 19, § 1, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 347, § 8, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1300, § 4, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.05 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2009, 81st Leg., ch. 755, § 9, eff. Sept. 1, 2009.

Vernon's Ann. Texas C. C. P. Art. 62.057, TX CRIM PRO Art. 62.057

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Vernon's Ann.Texas C.C.P. Art. 62.058

Art. 62.058. Law Enforcement Verification of Registration Information

Currentness

(a) A person subject to registration under this chapter who has for a sexually violent offense been convicted two or more times, received an order of deferred adjudication two or more times, or been convicted and received an order of deferred adjudication shall report to the local law enforcement authority designated as the person's primary registration authority by the department not less than once in each 90-day period following the date the person first registered under this chapter to verify the information in the registration form maintained by the authority for that person. A person subject to registration under this chapter who is not subject to the 90-day reporting requirement described by this subsection shall report to the local law enforcement authority designated as the person's primary registration authority by the department once each year not earlier than the 30th day before and not later than the 30th day after the anniversary of the person's date of birth to verify the information in the registration form maintained by the authority for that person. For purposes of this subsection, a person complies with a requirement that the person register within a 90-day period following a date if the person registers at any time on or after the 83rd day following that date but before the 98th day after that date.

(b) A local law enforcement authority designated as a person's primary registration authority by the department may direct the person to report to the authority to verify the information in the registration form maintained by the authority for that person. The authority may direct the person to report under this subsection once in each 90-day period following the date the person first registered under this chapter, if the person is required to report not less than once in each 90-day period under Subsection (a) or once in each year not earlier than the 30th day before and not later than the 30th day after the anniversary of the person's date of birth, if the person is required to report once each year under Subsection (a). A local law enforcement authority may not direct a person to report to the authority under this subsection if the person is required to report under Subsection (a) and is in compliance with the reporting requirements of that subsection.

(c) A local law enforcement authority with whom a person reports under this article shall require the person to produce proof of the person's identity and residence before the authority gives the registration form to the person for verification. If the information in the registration form is complete and accurate, the person shall verify registration by signing the form. If the information is not complete or not accurate, the person shall make any necessary additions or corrections before signing the form.

(d) A local law enforcement authority designated as a person's primary registration authority by the department may at any time mail a nonforwardable verification form to the last reported address of the person. Not later than the 21st day after receipt of a verification form under this subsection, the person shall:

(1) indicate on the form whether the person still resides at the last reported address and, if not, provide on the form the person's new address;

(2) complete any other information required by the form;

(3) sign the form; and

(4) return the form to the authority.

(e) For purposes of this article, a person receives multiple convictions or orders of deferred adjudication regardless of whether:

(1) the judgments or orders are entered on different dates; or

(2) the offenses for which the person was convicted or placed on deferred adjudication arose out of different criminal transactions.

(f) A local law enforcement authority that provides to a person subject to the prohibitions described by Article 62.063 a registration form for verification as required by this chapter shall include with the form a statement summarizing the types of employment that are prohibited for that person.

(g) A local law enforcement authority that provides to a person a registration form for verification as required by this chapter shall include with the form a statement describing the prohibition under Article 62.064.

(h) A local law enforcement authority who provides a person with a registration form for verification as required by this chapter shall include with the form a statement and, if applicable, a description of the person's duty to provide notice under Article 62.065.

Credits

Added by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 7, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 15, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 211, § 9, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 347, § 9, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.06 by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2013, 83rd Leg., ch. 663 (H.B. 1302), § 5, eff. Sept. 1, 2013; Acts 2017, 85th Leg., ch. 329 (H.B. 355), § 3, eff. Sept. 1, 2017; Acts 2017, 85th Leg., ch. 924 (S.B. 1553), § 2, eff. Sept. 1, 2017; Acts 2019, 86th Leg., ch. 467 (H.B. 4170), § 4.016, eff. Sept. 1, 2019.

Vernon's Ann. Texas C. C. P. Art. 62.058, TX CRIM PRO Art. 62.058

Current through legislation effective July 1, 2025, of the 2025 Regular Session of the 89th Legislature. Some statute sections may be more current, but not necessarily complete through the whole Session. See credits for details.

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Vernon's Ann.Texas C.C.P. Art. 62.059

Art. 62.059. Registration of Persons Regularly Visiting Location

Currentness

(a) A person subject to this chapter who on at least three occasions during any month spends more than 48 consecutive hours in a municipality or county in this state, other than the municipality or county in which the person is registered under this chapter, before the last day of that month shall report that fact to:

(1) the local law enforcement authority of the municipality in which the person is a visitor; or

(2) if the person is a visitor in a location that is not a municipality, the local law enforcement authority of the county in which the person is a visitor.

(b) A person described by Subsection (a) shall provide the local law enforcement authority with:

(1) all information the person is required to provide under Article 62.051(c);

(2) the address of any location in the municipality or county, as appropriate, at which the person was lodged during the month; and

(3) a statement as to whether the person intends to return to the municipality or county during the succeeding month.

(c) This article does not impose on a local law enforcement authority requirements of public notification or notification to schools relating to a person about whom the authority is not otherwise required by this chapter to make notifications.

Credits

Added by Acts 1999, 76th Leg., ch. 444, § 8, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 16, eff. Sept. 1, 1999. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.062 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.059, TX CRIM PRO Art. 62.059

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Vernon's Ann.Texas C.C.P. Art. 62.060

Art. 62.060. Requirements Relating to Driver's License or Personal Identification Certificate

Currentness

(a) A person subject to registration under this chapter shall apply to the department in person for the issuance of, as applicable, an original or renewal driver's license under Section 521.272, Transportation Code, an original or renewal personal identification certificate under Section 521.103, Transportation Code, or an original or renewal commercial driver's license or commercial learner's permit under Section 522.033, Transportation Code, not later than the 30th day after the date:

(1) the person is released from a penal institution or is released by a court on community supervision or juvenile probation; or

(2) the department sends written notice to the person of the requirements of this article.

(b) The person shall annually renew in person each driver's license or personal identification certificate issued by the department to the person, including each renewal, duplicate, or corrected license or certificate, until the person's duty to register under this chapter expires.

Credits

Added by Acts 1999, 76th Leg., ch. 1401, § 3, eff. Sept. 1, 2000. Amended by Acts 2001, 77th Leg., ch. 546, § 1, eff. Sept. 1, 2001. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.065 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2015, 84th Leg., ch. 752 (H.B. 1888), § 42, eff. Jan. 1, 2016.

Vernon's Ann. Texas C. C. P. Art. 62.060, TX CRIM PRO Art. 62.060

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Vernon's Ann. Texas C.C.P. Art. 62.06

Art. 62.06. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.058 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.06, TX CRIM PRO Art. 62.06

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Vernon's Ann.Texas C.C.P. Art. 62.061

Art. 62.061. DNA Specimen

Currentness

A person required to register under this chapter shall comply with a request for a DNA specimen made by a law enforcement agency under Section 411.1473, Government Code.

Credits

Amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.061, TX CRIM PRO Art. 62.061

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Vernon's Ann.Texas C.C.P. Art. 62.062

Art. 62.062. Limitation on Newspaper Publication

Currentness

(a) Except as provided by Subsection (b), a local law enforcement authority may not publish notice in a newspaper or other periodical or circular concerning a person's registration under this chapter if the only basis on which the person is subject to registration is one or more adjudications of delinquent conduct.

(b) This article does not apply to a publication of notice under Article 62.056.

Credits

Amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.062, TX CRIM PRO Art. 62.062

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Vernon's Ann.Texas C.C.P. Art. 62.063

Art. 62.063. Prohibited Employment

Currentness

(a) In this article:

(1) "Amusement ride" has the meaning assigned by Section 2151.002, Occupations Code.

(2) "Bus" has the meaning assigned by Section 541.201, Transportation Code.

(b) A person subject to registration under this chapter because of a reportable conviction or adjudication for which an affirmative finding is entered under Article 42.015(b) or 42A.105(a), as appropriate, may not, for compensation:

(1) operate or offer to operate a bus;

(2) provide or offer to provide a passenger taxicab or limousine transportation service;

(3) provide or offer to provide any type of service in the residence of another person unless the provision of service will be supervised; or

(4) operate or offer to operate any amusement ride.

Credits

Added by Acts 2013, 83rd Leg., ch. 663 (H.B. 1302), § 6, eff. Sept. 1, 2013. Amended by Acts 2015, 84th Leg., ch. 770 (H.B. 2299), § 2.26, eff. Jan. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.063, TX CRIM PRO Art. 62.063

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Vernon's Ann.Texas C.C.P. Art. 62.064

Art. 62.064. Prohibited location of residence

Currentness

A person subject to registration under this chapter may not reside on the campus of a public or private institution of higher education unless:

(1) the person is assigned a numeric risk level of one based on an assessment conducted using the sex offender screening tool developed or selected under Article 62.007; and

(2) the institution approves the person to reside on the institution's campus.

Credits

Added by Acts 2017, 85th Leg., ch. 329 (H.B. 355), § 1, eff. Sept. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.064, TX CRIM PRO Art. 62.064

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Vernon's Ann.Texas C.C.P. Art. 62.065
Formerly cited as Vernon's Ann. Texas C.C.P. art. 62.064

Art. 62.065. Entry onto school premises; notice required

Currentness

(a) In this article:

(1) "Premises" means a building or portion of a building and the grounds on which the building is located, including any public or private driveway, street, sidewalk or walkway, parking lot, or parking garage on the grounds.

(2) "School" has the meaning assigned by Section 481.134, Health and Safety Code.

(b) A person subject to registration under this chapter who enters the premises of any school in this state during the standard operating hours of the school shall immediately notify the administrative office of the school of the person's presence on the premises of the school and the person's registration status under this chapter. The office may provide a chaperon to accompany the person while the person is on the premises of the school.

(c) The requirements of this article:

(1) are in addition to any requirement associated with the imposition of a child safety zone on the person under Section 508.187, Government Code, or Article 42A.453 of this code; and

(2) do not apply to:

(A) a student enrolled at the school;

(B) a student from another school participating at an event at the school; or

(C) a person who has entered into a written agreement with the school that exempts the person from those requirements.

Credits

Added by Acts 2017, 85th Leg., ch. 924 (S.B. 1553), § 3, eff. Sept. 1, 2017. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.064 by Acts 2019, 86th Leg., ch. 467 (H.B. 4170), § 4.017, eff. Sept. 1, 2019.

Vernon's Ann. Texas C. C. P. Art. 62.065, TX CRIM PRO Art. 62.065

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Vernon's Ann.Texas C.C.P. Art. 62.07

Arts. 62.07 to 62.091. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.07, TX CRIM PRO Art. 62.07

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Vernon's Ann.Texas C.C.P. Art. 62.08

Arts. 62.07 to 62.091. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.08, TX CRIM PRO Art. 62.08

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Vernon's Ann.Texas C.C.P. Art. 62.085

Arts. 62.07 to 62.091. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.085, TX CRIM PRO Art. 62.085

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Vernon's Ann.Texas C.C.P. Art. 62.09

Arts. 62.07 to 62.091. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.09, TX CRIM PRO Art. 62.09

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Vernon's Ann.Texas C.C.P. Art. 62.091

Arts. 62.07 to 62.091. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.091, TX CRIM PRO Art. 62.091

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Vernon's Ann. Texas C.C.P. Art. 62.10

Art. 62.10. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.102 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.10, TX CRIM PRO Art. 62.10

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Vernon's Ann.Texas C.C.P. Art. 62.101

Art. 62.101. Expiration of Duty to Register

Currentness

(a) Except as provided by Subsection (b) and Subchapter I, the duty to register for a person ends when the person dies if the person has a reportable conviction or adjudication, other than an adjudication of delinquent conduct, for:

(1) a sexually violent offense;

(2) an offense under Section 20A.02(a)(3), (4), (7), or (8), 25.02, 43.05(a)(2) or (3), or 43.26, Penal Code;

(3) an offense under Section 20A.03, Penal Code, if based partly or wholly on conduct that constitutes an offense under Section 20A.02(a)(3), (4), (7), or (8) of that code;

(4) an offense under Section 21.11(a)(2), Penal Code, if before or after the person is convicted or adjudicated for the offense under Section 21.11(a)(2), Penal Code, the person receives or has received another reportable conviction or adjudication, other than an adjudication of delinquent conduct, for an offense or conduct that requires registration under this chapter;

(5) an offense under Section 20.02, 20.03, or 20.04, Penal Code, if:

(A) the judgment in the case contains an affirmative finding under Article 42.015 or, for a deferred adjudication, the papers in the case contain an affirmative finding that the victim or intended victim was younger than 17 years of age; and

(B) before or after the person is convicted or adjudicated for the offense under Section 20.02, 20.03, or 20.04, Penal Code, the person receives or has received another reportable conviction or adjudication, other than an adjudication of delinquent conduct, for an offense or conduct that requires registration under this chapter; or

(6) an offense under Section 43.23, Penal Code, that is punishable under Subsection (h) of that section.

(b) Except as provided by Subchapter I, the duty to register for a person otherwise subject to Subsection (a) ends on the 10th anniversary of the date on which the person is released from a penal institution or discharges community supervision or the court dismisses the criminal proceedings against the person and discharges the person, whichever date is later, if the person's

duty to register is based on a conviction or an order of deferred adjudication in a cause that was transferred to a district court or criminal district court under Section 54.02, Family Code.

(c) Except as provided by Subchapter I, the duty to register for a person with a reportable conviction or adjudication for an offense other than an offense described by Subsection (a) ends:

(1) if the person's duty to register is based on an adjudication of delinquent conduct, on the 10th anniversary of the date on which the disposition is made or the person completes the terms of the disposition, whichever date is later; or

(2) if the person's duty to register is based on a conviction or on an order of deferred adjudication, on the 10th anniversary of the date on which the court dismisses the criminal proceedings against the person and discharges the person, the person is released from a penal institution, or the person discharges community supervision, whichever date is later.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2011, 82nd Leg., ch. 1 (S.B. 24), § 2.11, eff. Sept. 1, 2011; Acts 2017, 85th Leg., ch. 685 (H.B. 29), § 18, eff. Sept. 1, 2017; Acts 2023, 88th Leg., ch. 93 (S.B. 1527), § 2.09, eff. Sept. 1, 2023.

Vernon's Ann. Texas C. C. P. Art. 62.101, TX CRIM PRO Art. 62.101

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Vernon's Ann.Texas C.C.P. Art. 62.102

Art. 62.102. Failure to Comply With Registration Requirements

Currentness

- (a) A person commits an offense if the person is required to register and fails to comply with any requirement of this chapter.
- (b) An offense under this article is:
- (1) a state jail felony if the actor is a person whose duty to register expires under Article 62.101(b) or (c);
- (2) a felony of the third degree if the actor is a person whose duty to register expires under Article 62.101(a) and who is required to verify registration once each year under Article 62.058; and
- (3) a felony of the second degree if the actor is a person whose duty to register expires under Article 62.101(a) and who is required to verify registration once each 90-day period under Article 62.058.
- (c) If it is shown at the trial of a person for an offense or an attempt to commit an offense under this article that the person has previously been convicted of an offense or an attempt to commit an offense under this article, the punishment for the offense or the attempt to commit the offense is increased to the punishment for the next highest degree of felony.
- (d) If it is shown at the trial of a person for an offense under this article or an attempt to commit an offense under this article that the person fraudulently used identifying information in violation of Section 32.51, Penal Code, during the commission or attempted commission of the offense, the punishment for the offense or the attempt to commit the offense is increased to the punishment for the next highest degree of felony.

Credits

Added by Acts 1991, 72nd Leg., ch. 572, § 1, eff. Sept. 1, 1991. Redesignated from Vernon's Ann.Civ.St. art. 6252-13c.1, § 7 and amended by Acts 1997, 75th Leg., ch. 668, § 1, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 444, § 9, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1415, § 18, eff. Sept. 1, 1999. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.10 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2013, 83rd Leg., ch. 362 (H.B. 2637), § 1, eff. Sept. 1, 2013.

Vernon's Ann. Texas C. C. P. Art. 62.102, TX CRIM PRO Art. 62.102

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Vernon's Ann.Texas C.C.P. Art. 62.11

Arts. 62.11 to 62.13. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.11, TX CRIM PRO Art. 62.11

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Vernon's Ann.Texas C.C.P. Art. 62.12

Arts. 62.11 to 62.13. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.12, TX CRIM PRO Art. 62.12

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Vernon's Ann.Texas C.C.P. Art. 62.13

Arts. 62.11 to 62.13. Deleted by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.13, TX CRIM PRO Art. 62.13

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Vernon's Ann. Texas C.C.P. Art. 62.14

Art. 62.14. Redesignated as Vernon's Ann. Texas C.C.P. art. 62.251 and
amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005

Currentness

Vernon's Ann. Texas C. C. P. Art. 62.14, TX CRIM PRO Art. 62.14

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Subchapter D. Provisions Applicable to Certain Workers and Students

Vernon's Ann.Texas C.C.P. Art. 62.151

Art. 62.151. Definitions

Currentness

For purposes of this subchapter, a person:

- (1) is employed or carries on a vocation if the person works or volunteers on a full-time or part-time basis for a consecutive period exceeding 14 days or for an aggregate period exceeding 30 days in a calendar year;
- (2) works regardless of whether the person works for compensation or for governmental or educational benefit; and
- (3) is a student if the person enrolls on a full-time or part-time basis in any educational facility, including:
 - (A) a public or private primary or secondary school, including a high school or alternative learning center; or
 - (B) a public or private institution of higher education.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.151, TX CRIM PRO Art. 62.151

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Vernon's Ann.Texas C.C.P. Art. 62.152

Art. 62.152. Registration of Certain Workers or Students

Currentness

(a) A person is subject to this subchapter and, except as otherwise provided by this article, to the other subchapters of this chapter if the person:

(1) has a reportable conviction or adjudication;

(2) resides in another state; and

(3) is employed, carries on a vocation, or is a student in this state.

(b) A person described by Subsection (a) is subject to the registration and verification requirements of Articles 62.051 and 62.058 and to the change of address requirements of Article 62.055, except that the registration and verification and the reporting of a change of address are based on the municipality or county in which the person works or attends school. The person is subject to the school notification requirements of Articles 62.053-62.055, except that notice provided to the superintendent and any administrator is based on the public school district in which the person works or attends school.

(c) A person described by Subsection (a) is not subject to Article 62.101.

(d) The duty to register for a person described by Subsection (a) ends when the person no longer works or studies in this state, provides notice of that fact to the local law enforcement authority in the municipality or county in which the person works or attends school, and receives notice of verification of that fact from the authority. The authority must verify that the person no longer works or studies in this state and must provide to the person notice of that verification within a reasonable time.

(e) Notwithstanding Subsection (a), this article does not apply to a person who has a reportable conviction or adjudication, who resides in another state, and who is employed, carries on a vocation, or is a student in this state if the person establishes another residence in this state to work or attend school in this state. However, that person remains subject to the other articles of this chapter based on that person's residence in this state.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.152, TX CRIM PRO Art. 62.152

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Vernon's Ann.Texas C.C.P. Art. 62.153

Art. 62.153. Registration of Workers or Students at Institutions of Higher Education

Currentness

(a) Not later than the later of the seventh day after the date on which the person begins to work or attend school or the first date the applicable authority by policy allows the person to register, a person required to register under Article 62.152 or any other provision of this chapter who is employed, carries on a vocation, or is a student at a public or private institution of higher education in this state shall report that fact to:

(1) the authority for campus security for that institution; or

(2) if an authority for campus security for that institution does not exist, the local law enforcement authority of:

(A) the municipality in which the institution is located; or

(B) the county in which the institution is located, if the institution is not located in a municipality.

(b) A person described by Subsection (a) shall provide the authority for campus security or the local law enforcement authority with all information the person is required to provide under Article 62.051(c).

(c) A person described by Subsection (a) shall notify the authority for campus security or the local law enforcement authority not later than the seventh day after the date of termination of the person's status as a worker or student at the institution.

(d) The authority for campus security or the local law enforcement authority shall promptly forward to the administrative office of the institution any information received from the person under this article and any information received from the department under Article 62.005.

(e) Subsection (a)(2) does not require a person to register with a local law enforcement authority if the person is otherwise required by this chapter to register with that authority.

(f) This article does not impose the requirements of public notification or notification to public or private primary or secondary schools on:

(1) an authority for campus security; or

(2) a local law enforcement authority, if those requirements relate to a person about whom the authority is not otherwise required by this chapter to make notifications.

(g) Notwithstanding Article 62.059, the requirements of this article supersede those of Article 62.059 for a person required to register under both this article and Article 62.059.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.153, TX CRIM PRO Art. 62.153

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Vernon's Ann.Texas C.C.P. Art. 62.201

Art. 62.201. Additional Public Notice for Individuals Subject to Civil Commitment

Currentness

(a) On receipt of notice under this chapter that a person subject to registration who is civilly committed as a sexually violent predator is due to be released from a penal institution or intends to move to a new residence in this state, the department shall, not later than the seventh day after the date on which the person is released or the seventh day after the date on which the person moves, provide written notice mailed or delivered to at least each address, other than a post office box, within a one-mile radius, in an area that has not been subdivided, or a three-block area, in an area that has been subdivided, of the place where the person intends to reside.

(b) The department shall provide the notice in English and Spanish and shall include in the notice any information that is public information under this chapter. The department may not include any information that is not public information under this chapter.

(c) The department shall establish procedures for a person with respect to whom notice is provided under this article to pay to the department all costs incurred by the department in providing the notice. The person shall pay those costs in accordance with the procedures established under this subsection.

(d) The department's duty to provide notice under this article in regard to a particular person ends on the date on which a court releases the person from all requirements of the civil commitment process.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.201, TX CRIM PRO Art. 62.201

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Vernon's Ann.Texas C.C.P. Art. 62.202

Art. 62.202. Verification of Individuals Subject to Commitment

Currentness

(a) Notwithstanding Article 62.058, if an individual subject to registration under this chapter is civilly committed as a sexually violent predator, the person shall report to the local law enforcement authority designated as the person's primary registration authority by the department to verify the information in the registration form maintained by the authority for that person as follows:

(1) if the person resides at a civil commitment center, not less than once each year; or

(2) if the person does not reside at a civil commitment center, not less than once in each 30-day period following:

(A) the date the person first registered under this chapter; or

(B) if applicable, the date the person moved from the center.

(a-1) For purposes of Subsection (a)(2), a person complies with a requirement that the person register within a 30-day period following a date if the person registers at any time on or after the 27th day following that date but before the 33rd day after that date.

(b) On the date a court releases a person described by Subsection (a) from all requirements of the civil commitment process:

(1) the person's duty to verify registration as a sex offender is no longer imposed by this article; and

(2) the person is required to verify registration as provided by Article 62.058.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2017, 85th Leg., ch. 34 (S.B. 1576), § 5, eff. Sept. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.202, TX CRIM PRO Art. 62.202

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Vernon's Ann.Texas C.C.P. Art. 62.2021

Art. 62.2021. Requirements Relating to Driver's License or Personal
Identification Certificate: Individuals Residing at Civil Commitment Center

Currentness

(a) Notwithstanding Article 62.060(b), a person subject to registration who is civilly committed as a sexually violent predator and resides at a civil commitment center shall renew the person's department-issued driver's license or personal identification certificate as prescribed by Section 521.103, 521.272, or 522.033, Transportation Code, as applicable.

(b) On the date that a person described by Subsection (a) no longer resides at a civil commitment center, the person is required to renew a driver's license or personal identification certificate only as provided by Article 62.060(b).

Credits

Added by Acts 2017, 85th Leg., ch. 34 (S.B. 1576), § 6, eff. Sept. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.2021, TX CRIM PRO Art. 62.2021

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Vernon's Ann.Texas C.C.P. Art. 62.203

Art. 62.203. Failure to Comply: Individuals Subject to Commitment

Currentness

(a) A person commits an offense if the person, after commitment as a sexually violent predator but before the person is released from all requirements of the civil commitment process, fails to comply with any requirement of this chapter.

(b) An offense under this article is a felony of the second degree.

Credits

Added by Acts 1999, 76th Leg., ch. 444, § 5(c). Redesignated from Vernon's Ann. Texas C.C.P. art. 62.101 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.203, TX CRIM PRO Art. 62.203

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Subchapter F. Removal of Registration Information

Vernon's Ann.Texas C.C.P. Art. 62.251

Art. 62.251. Removing Registration Information When Duty to Register Expires

Currentness

- (a) When a person is no longer required to register as a sex offender under this chapter, the department shall remove all information about the person from the sex offender registry.
- (b) The duty to remove information under Subsection (a) arises if:
- (1) the department has received notice from a local law enforcement authority under Subsection (c) or (d) that the person is no longer required to register or will no longer be required to renew registration and the department verifies the correctness of that information;
 - (2) the court having jurisdiction over the case for which registration is required requests removal and the department determines that the duty to register has expired; or
 - (3) the person or the person's representative requests removal and the department determines that the duty to register has expired.
- (c) When a person required to register under this chapter appears before a local law enforcement authority to renew or modify registration information, the authority shall determine whether the duty to register has expired. If the authority determines that the duty to register has expired, the authority shall remove all information about the person from the sex offender registry and notify the department that the person's duty to register has expired.
- (d) When a person required to register under this chapter appears before a local law enforcement authority to renew registration information, the authority shall determine whether the renewal is the final annual renewal of registration required by law. If the authority determines that the person's duty to register will expire before the next annual renewal is scheduled, the authority shall automatically remove all information about the person from the sex offender registry on expiration of the duty to register and notify the department that the information about the person has been removed from the registry.
- (e) When the department has removed information under Subsection (a), the department shall notify all local law enforcement authorities that have provided registration information to the department about the person of the removal. A local law enforcement authority that receives notice from the department under this subsection shall remove all registration information about the person from its registry.

(f) When the department has removed information under Subsection (a), the department shall notify all public and private agencies or organizations to which it has provided registration information about the person of the removal. On receiving notice, the public or private agency or organization shall remove all registration information about the person from any registry the agency or organization maintains that is accessible to the public with or without charge.

Credits

Added by Acts 2003, 78th Leg., ch. 283, § 37, eff. Sept. 1, 2003. Redesignated from Vernon's Ann. Texas C.C.P. art. 62.14 and amended by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.251, TX CRIM PRO Art. 62.251

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Vernon's Ann.Texas C.C.P. Art. 62.301

Art. 62.301. Exemption From Registration for Certain Young Adult Sex Offenders

Currentness

(a) If eligible under Subsection (b) or (c), a person required to register under this chapter may petition the court having jurisdiction over the case for an order exempting the person from registration under this chapter at any time on or after the date of the person's sentencing or the date the person is placed on deferred adjudication community supervision, as applicable.

(b) A person is eligible to petition the court as described by Subsection (a) if:

(1) the person is required to register only as a result of a single reportable conviction or adjudication, other than an adjudication of delinquent conduct; and

(2) the court has entered in the appropriate judgment or has filed with the appropriate papers a statement of an affirmative finding described by Article 42.017 or 42A.105(c).

(c) A defendant who before September 1, 2011, is convicted of or placed on deferred adjudication community supervision for an offense under Section 21.11 or 22.011, Penal Code, is eligible to petition the court as described by Subsection (a). The court may consider the petition only if the petition states and the court finds that the defendant would have been entitled to the entry of an affirmative finding under Article 42.017 or 42A.105(c), as appropriate, had the conviction or placement on deferred adjudication community supervision occurred after September 1, 2011.

(c-1) At a hearing on the petition described by Subsection (a), the court may consider:

(1) testimony from the victim or intended victim, or a member of the victim's or intended victim's family, concerning the requested exemption;

(2) the relationship between the victim or intended victim and the petitioner at the time of the hearing; and

(3) any other evidence that the court determines is relevant and admissible.

(d) After a hearing on the petition described by Subsection (a), the court may issue an order exempting the person from registration under this chapter if it appears by a preponderance of the evidence that:

(1) the exemption does not threaten public safety;

(2) the person's conduct did not occur without the consent of the victim or intended victim as described by Section 22.011(b), Penal Code;

(3) the exemption is in the best interest of the victim or intended victim; and

(4) the exemption is in the best interest of justice.

(e) An order exempting the person from registration under this chapter does not expire, but the court shall withdraw the order if after the order is issued the person receives a reportable conviction or adjudication under this chapter.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2011, 82nd Leg., ch. 134 (S.B. 198), § 3, eff. Sept. 1, 2011; Acts 2015, 84th Leg., ch. 770 (H.B. 2299), § 2.27, eff. Jan. 1, 2017.

Vernon's Ann. Texas C. C. P. Art. 62.301, TX CRIM PRO Art. 62.301

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Subchapter H. Exemptions from Registration for Certain Juveniles

Vernon's Ann.Texas C.C.P. Art. 62.351

Art. 62.351. Motion and Hearing Generally

Currentness

(a) During or after disposition of a case under Section 54.04, Family Code, for adjudication of an offense for which registration is required under this chapter, the juvenile court on motion of the respondent shall conduct a hearing to determine whether the interests of the public require registration under this chapter. The motion may be filed and the hearing held regardless of whether the respondent is under 18 years of age. Notice of the motion and hearing shall be provided to the prosecuting attorney.

(b) The hearing is without a jury and the burden of persuasion is on the respondent to show by a preponderance of evidence that the criteria of Article 62.352(a) have been met. The court at the hearing may make its determination based on:

(1) the receipt of exhibits;

(2) the testimony of witnesses;

(3) representations of counsel for the parties; or

(4) the contents of a social history report prepared by the juvenile probation department that may include the results of testing and examination of the respondent by a psychologist, psychiatrist, or counselor.

(c) All written matter considered by the court shall be disclosed to all parties as provided by Section 54.04(b), Family Code.

(d) If a respondent, as part of a plea agreement, promises not to file a motion seeking an order exempting the respondent from registration under this chapter, the court may not recognize a motion filed by a respondent under this article.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.351, TX CRIM PRO Art. 62.351

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Vernon's Ann.Texas C.C.P. Art. 62.352

Art. 62.352. Order Generally

Currentness

(a) The court shall enter an order exempting a respondent from registration under this chapter if the court determines:

(1) that the protection of the public would not be increased by registration of the respondent under this chapter; or

(2) that any potential increase in protection of the public resulting from registration of the respondent is clearly outweighed by the anticipated substantial harm to the respondent and the respondent's family that would result from registration under this chapter.

(b) After a hearing under Article 62.351 or under a plea agreement described by Article 62.355(b), the juvenile court may enter an order:

(1) deferring decision on requiring registration under this chapter until the respondent has completed treatment for the respondent's sexual offense as a condition of probation or while committed to the Texas Juvenile Justice Department; or

(2) requiring the respondent to register as a sex offender but providing that the registration information is not public information and is restricted to use by law enforcement and criminal justice agencies, the Council on Sex Offender Treatment, and public or private institutions of higher education.

(c) If the court enters an order described by Subsection (b)(1), the court retains discretion and jurisdiction to require, or exempt the respondent from, registration under this chapter at any time during the treatment or on the successful or unsuccessful completion of treatment, except that during the period of deferral, registration may not be required. Following successful completion of treatment, the respondent is exempted from registration under this chapter unless a hearing under this subchapter is held on motion of the prosecuting attorney, regardless of whether the respondent is 18 years of age or older, and the court determines the interests of the public require registration. Not later than the 10th day after the date of the respondent's successful completion of treatment, the treatment provider shall notify the juvenile court and prosecuting attorney of the completion.

(d) Information that is the subject of an order described by Subsection (b)(2) may not be posted on the Internet or released to the public.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2013, 83rd Leg., ch. 1299 (H.B. 2862), § 4, eff. Sept. 1, 2013.

Vernon's Ann. Texas C. C. P. Art. 62.352, TX CRIM PRO Art. 62.352

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Vernon's Ann.Texas C.C.P. Art. 62.353

Art. 62.353. Motion, Hearing, and Order Concerning Person Already Registered

Currentness

(a) A person who has registered as a sex offender for an adjudication of delinquent conduct, regardless of when the delinquent conduct or the adjudication for the conduct occurred, may file a motion in the adjudicating juvenile court for a hearing seeking:

(1) exemption from registration under this chapter as provided by Article 62.351; or

(2) an order under Article 62.352(b)(2) that the registration become nonpublic.

(b) The person may file a motion under Subsection (a) in the original juvenile case regardless of whether the person, at the time of filing the motion, is 18 years of age or older. Notice of the motion shall be provided to the prosecuting attorney. A hearing on the motion shall be provided as in other cases under this subchapter.

(c) Only one subsequent motion may be filed under Subsection (a) if a previous motion under this article has been filed concerning the case.

(d) To the extent feasible, the motion under Subsection (a) shall identify those public and private agencies and organizations, including public or private institutions of higher education, that possess sex offender registration information about the case.

(e) The juvenile court, after a hearing, may:

(1) deny a motion filed under Subsection (a);

(2) grant a motion described by Subsection (a)(1); or

(3) grant a motion described by Subsection (a)(2).

(f) If the court grants a motion filed under Subsection (a), the clerk of the court shall by certified mail, return receipt requested, send a copy of the order to the department, to each local law enforcement authority that the person has proved to the juvenile

court has registration information about the person, and to each public or private agency or organization that the person has proved to the juvenile court has information about the person that is currently available to the public with or without payment of a fee. The clerk of the court shall by certified mail, return receipt requested, send a copy of the order to any other agency or organization designated by the person. The person shall identify the agency or organization and its address and pay a fee of \$20 to the court for each agency or organization the person designates.

(g) In addition to disseminating the order under Subsection (f), at the request of the person, the clerk of the court shall by certified mail, return receipt requested, send a copy of the order to each public or private agency or organization that at any time following the initial dissemination of the order under Subsection (f) gains possession of sex offender registration information pertaining to that person, if the agency or organization did not otherwise receive a copy of the order under Subsection (f).

(h) An order under Subsection (f) must require the recipient to conform its records to the court's order either by deleting the sex offender registration information or changing its status to nonpublic, as applicable. A public or private institution of higher education may not be required to delete the sex offender registration information under this subsection.

(i) A private agency or organization that possesses sex offender registration information the agency or organization obtained from a state, county, or local governmental entity is required to conform the agency's or organization's records to the court's order on or before the 30th day after the date of the entry of the order. Unless the agency or organization is a public or private institution of higher education, failure to comply in that period automatically bars the agency or organization from obtaining sex offender registration information from any state, county, or local governmental entity in this state in the future.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.353, TX CRIM PRO Art. 62.353

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Vernon's Ann.Texas C.C.P. Art. 62.354

Art. 62.354. Motion, Hearing, and Order Concerning Person Required to Register Because of Out-of-State Adjudication

Currentness

(a) A person required to register as a sex offender in this state because of an out-of-state adjudication of delinquent conduct may file in the juvenile court of the person's county of residence a petition under Article 62.351 for an order exempting the person from registration under this chapter.

(b) If the person is already registered as a sex offender in this state because of an out-of-state adjudication of delinquent conduct, the person may file in the juvenile court of the person's county of residence a petition under Article 62.353 for an order removing the person from sex offender registries in this state.

(c) On receipt of a petition under this article, the juvenile court shall conduct a hearing and make rulings as in other cases under this subchapter.

(d) An order entered under this article requiring removal of registration information applies only to registration information derived from registration in this state.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.354, TX CRIM PRO Art. 62.354

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Vernon's Ann.Texas C.C.P. Art. 62.355

Art. 62.355. Waiver of Hearing

Currentness

(a) The prosecuting attorney may waive the state's right to a hearing under this subchapter and agree that registration under this chapter is not required. A waiver under this subsection must state whether the waiver is entered under a plea agreement.

(b) If the waiver is entered under a plea agreement, the court, without a hearing, shall:

(1) enter an order exempting the respondent from registration under this chapter; or

(2) under Section 54.03(j), Family Code, inform the respondent that the court believes a hearing under this article is required and give the respondent the opportunity to:

(A) withdraw the respondent's plea of guilty, nolo contendere, or true; or

(B) affirm the respondent's plea and participate in the hearing.

(c) If the waiver is entered other than under a plea agreement, the court, without a hearing, shall enter an order exempting the respondent from registration under this chapter.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.355, TX CRIM PRO Art. 62.355

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Vernon's Ann.Texas C.C.P. Art. 62.356

Art. 62.356. Effect of Certain Orders

Currentness

(a) A person who has an adjudication of delinquent conduct that would otherwise be reportable under Article 62.001(5) does not have a reportable adjudication of delinquent conduct for purposes of this chapter if the juvenile court enters an order under this subchapter exempting the person from the registration requirements of this chapter.

(b) If the juvenile court enters an order exempting a person from registration under this chapter, the respondent may not be required to register in this or any other state for the offense for which registration was exempted.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.356, TX CRIM PRO Art. 62.356

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Vernon's Ann.Texas C.C.P. Art. 62.357

Art. 62.357. Appeal of Certain Orders

Currentness

(a) Notwithstanding Section 56.01, Family Code, on entry by a juvenile court of an order under Article 62.352(a) exempting a respondent from registration under this chapter, the prosecuting attorney may appeal that order by giving notice of appeal within the time required under Rule 26.2(b), Texas Rules of Appellate Procedure. The appeal is civil and the standard of review in the appellate court is whether the juvenile court committed procedural error or abused its discretion in exempting the respondent from registration under this chapter. The appeal is limited to review of the order exempting the respondent from registration under this chapter and may not include any other issues in the case.

(b) A respondent may under Section 56.01, Family Code, appeal a juvenile court's order under Article 62.352(a) requiring registration in the same manner as the appeal of any other legal issue in the case. The standard of review in the appellate court is whether the juvenile court committed procedural error or abused its discretion in requiring registration.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.357, TX CRIM PRO Art. 62.357

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Vernon's Ann.Texas C.C.P. Art. 62.401

Art. 62.401. Definition

Currentness

In this subchapter, “council” means the Council on Sex Offender Treatment.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.401, TX CRIM PRO Art. 62.401

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Vernon's Ann.Texas C.C.P. Art. 62.402

Art. 62.402. Determination of Minimum Required Registration Period

Currentness

(a) The department by rule shall determine the minimum required registration period under federal law for each reportable conviction or adjudication under this chapter.

(b) After determining the minimum required registration period for each reportable conviction or adjudication under Subsection (a), the department shall compile and publish a list of reportable convictions or adjudications for which a person must register under this chapter for a period that exceeds the minimum required registration period under federal law.

(c) To the extent possible, the department shall periodically verify with the United States Department of Justice's Office of Sex Offender Sentencing, Monitoring, Apprehending, Registering, and Tracking or another appropriate federal agency or office the accuracy of the list of reportable convictions or adjudications described by Subsection (b).

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005. Amended by Acts 2011, 82nd Leg., ch. 134 (S.B. 198), § 4, eff. Sept. 1, 2011.

Vernon's Ann. Texas C. C. P. Art. 62.402, TX CRIM PRO Art. 62.402

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Vernon's Ann.Texas C.C.P. Art. 62.403

Art. 62.403. Individual Risk Assessment

Currentness

(a) The council by rule shall establish, develop, or adopt an individual risk assessment tool or a group of individual risk assessment tools that:

(1) evaluates the criminal history of a person required to register under this chapter; and

(2) seeks to predict:

(A) the likelihood that the person will engage in criminal activity that may result in the person receiving a second or subsequent reportable adjudication or conviction; and

(B) the continuing danger, if any, that the person poses to the community.

(b) On the written request of a person with a single reportable adjudication or conviction that appears on the list published under Article 62.402(b), the council shall:

(1) evaluate the person using the individual risk assessment tool or group of individual risk assessment tools established, developed, or adopted under Subsection (a); and

(2) provide to the person a written report detailing the outcome of an evaluation conducted under Subdivision (1).

(c) An individual risk assessment provided to a person under this subchapter is confidential and is not subject to disclosure under Chapter 552, Government Code.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.403, TX CRIM PRO Art. 62.403

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Vernon's Ann.Texas C.C.P. Art. 62.404

Art. 62.404. Motion for Early Termination

Currentness

(a) A person required to register under this chapter who has requested and received an individual risk assessment under Article 62.403 may file with the trial court that sentenced the person for the reportable conviction or adjudication a motion for early termination of the person's obligation to register under this chapter.

(b) A motion filed under this article must be accompanied by:

(1) a written explanation of how the reportable conviction or adjudication giving rise to the movant's registration under this chapter qualifies as a reportable conviction or adjudication that appears on the list published under Article 62.402(b); and

(2) a certified copy of a written report detailing the outcome of an individual risk assessment evaluation conducted under Article 62.403(b)(1).

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.404, TX CRIM PRO Art. 62.404

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Vernon's Ann.Texas C.C.P. Art. 62.405

Art. 62.405. Hearing on Petition

Currentness

(a) After reviewing a motion filed with the court under Article 62.404, the court may:

(1) deny without a hearing the movant's request for early termination; or

(2) hold a hearing on the motion to determine whether to grant or deny the motion.

(b) The court may not grant a motion filed under Article 62.404 if:

(1) the motion is not accompanied by the documents required under Article 62.404(b); or

(2) the court determines that the reportable conviction or adjudication for which the movant is required to register under this chapter is not a reportable conviction or adjudication for which the movant is required to register for a period that exceeds the minimum required registration period under federal law.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.405, TX CRIM PRO Art. 62.405

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Vernon's Ann.Texas C.C.P. Art. 62.406

Art. 62.406. Costs of Individual Risk Assessment and of Court

Currentness

A person required to register under this chapter who files a motion for early termination of the person's registration obligation under this chapter is responsible for and shall remit to the council and to the court, as applicable, all costs associated with and incurred by the council in providing the individual risk assessment or by the court in holding a hearing under this subchapter.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.406, TX CRIM PRO Art. 62.406

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Vernon's Ann.Texas C.C.P. Art. 62.407

Art. 62.407. Effect of Order Granting Early Termination

Currentness

(a) If, after notice to the person and to the prosecuting attorney and a hearing, the court grants a motion filed under Article 62.404 for the early termination of a person's obligation to register under this chapter, notwithstanding Article 62.101, the person's obligation to register under this chapter ends on the later of:

(1) the date the court enters the order of early termination; or

(2) the date the person has paid each cost described by Section 62.406.

(b) If the court grants a motion filed under Article 62.404 for the early termination of a person's obligation to register under this chapter, all conditions of the person's parole, release to mandatory supervision, or community supervision shall be modified in accordance with the court's order.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.407, TX CRIM PRO Art. 62.407

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Vernon's Ann.Texas C.C.P. Art. 62.408

Art. 62.408. Nonapplicability

Currentness

This subchapter does not apply to a person without a reportable conviction or adjudication who is required to register as a condition of parole, release to mandatory supervision, or community supervision.

Credits

Added by Acts 2005, 79th Leg., ch. 1008, § 1.01, eff. Sept. 1, 2005.

Vernon's Ann. Texas C. C. P. Art. 62.408, TX CRIM PRO Art. 62.408

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THIRTEEN V.S.A. Pt. 2, Ch. 167, Subch. 3, Refs & Annos
Currentness

THIRTEEN V.S.A. Pt. 2, Ch. 167, Subch. 3, Refs & Annos, VT ST T. THIRTEEN, Pt. 2, Ch. 167, Subch. 3, Refs & Annos
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Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5401

§ 5401. Definitions

Currentness

As used in this subchapter:

- (1) "Address" means the actual location of the sex offender's dwelling, including the street address, if any.
- (2) "Department" means the Department of Public Safety.
- (3) "Local law enforcement agency" means the municipal police department or statutorily established college or university police department. If the municipality, college, or university has no police department, the law enforcement agency that serves the municipality, college, or university.
- (4) "Mental abnormality" means a congenital or acquired condition that affects the emotional or volitional capacity of a person in a manner that predisposes the person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.
- (5) "Minor" means a person under the age of 18 years.
- (6) "Personality disorder" means a condition where a person exhibits personality traits that are inflexible and maladaptive and cause either significant functional impairment or subjective distress.
- (7) "Predatory" means an act directed at a stranger, or a person with whom a relationship has been established or promoted for the primary purpose of victimization.
- (8) "Release" means release from confinement or custody or placement into the community for any reason, including release on bail pending appeal, probation, parole, furlough, work release, early release, alternative sanctions, house arrest, daily interrupt, community placement, or completion of sentence. It shall also mean probation or parole supervision of an out-of-state sex offender under an interstate agreement or compact.
- (9) "Registry" means the Sex Offender Registry maintained by the Department of Public Safety.

(10) “Sex offender” means:

(A) A person who is convicted in any jurisdiction of the United States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court of any of the following offenses:

- (i) sexual assault as defined in section 3252 of this title;
- (ii) aggravated sexual assault as defined in section 3253 of this title;
- (iii) lewd and lascivious conduct as defined in section 2601 of this title;
- (iv) sexual abuse of a vulnerable adult as defined in section 1379 of this title;
- (v) second or subsequent conviction for voyeurism as defined in subsection 2605(b) or (c) of this title;
- (vi) kidnapping with intent to commit sexual assault as defined in subdivision 2405(a)(1)(D) of this title;
- (vii) aggravated sexual assault of a child in violation of section 3253a of this title;
- (viii) human trafficking in violation of subdivisions 2652(a)(1)-(4) of this title;
- (ix) aggravated human trafficking in violation of subdivision 2653(a)(4) of this title;
- (x) a federal conviction in federal court for any of the following offenses:
 - (I) sex trafficking of children as defined in 18 U.S.C. § 1591;
 - (II) aggravated sexual abuse as defined in 18 U.S.C. § 2241;
 - (III) sexual abuse as defined in 18 U.S.C. § 2242;
 - (IV) sexual abuse of a minor or ward as defined in 18 U.S.C. § 2243;
 - (V) abusive sexual contact as defined in 18 U.S.C. § 2244;
 - (VI) offenses resulting in death as defined in 18 U.S.C. § 2245;

(VII) sexual exploitation of children as defined in 18 U.S.C. § 2251;

(VIII) selling or buying of children as defined in 18 U.S.C. § 2251A;

(IX) material involving the sexual exploitation of minors as defined in 18 U.S.C. § 2252;

(X) material containing child pornography as defined in 18 U.S.C. § 2252A;

(XI) production of sexually explicit depictions of a minor for import into the United States as defined in 18 U.S.C. § 2260;

(XII) transportation of a minor for illegal sexual activity as defined in 18 U.S.C. § 2421;

(XIII) coercion and enticement of a minor for illegal sexual activity as defined in 18 U.S.C. § 2422;

(XIV) transportation of minors for illegal sexual activity, travel with the intent to engage in illicit sexual conduct with a minor, and engaging in illicit sexual conduct in foreign places as defined in 18 U.S.C. § 2423;

(XV) transmitting information about a minor to further criminal sexual conduct as defined in 18 U.S.C. § 2425;

(XVI) trafficking in persons as defined in 18 U.S.C. sections 2251-2252(a), 2260, or 2421-2423 if the violation included sexual abuse, aggravated sexual abuse, or the attempt to commit aggravated sexual abuse; and

(xi) an attempt to commit any offense listed in this subdivision (A).

(B) A person who is convicted of any of the following offenses against a victim who is a minor, except that, for purposes of this subdivision, conduct that is criminal only because of the age of the victim shall not be considered an offense for purposes of the Registry if the perpetrator is under the age of 18 and the victim is at least 12 years old:

(i) any offense listed in subdivision (A) of this subdivision (10);

(ii) kidnapping as defined in subdivision 2405(a)(1)(D) of this title;

(iii) lewd and lascivious conduct with a child as defined in section 2602 of this title;

(iv) slave traffic as defined in section 2635 of this title;

(v) sexual exploitation of children as defined in chapter 64 of this title;

(vi) procurement or solicitation as defined in subdivision 2632(a)(6) of this title;

(vii) aggravated sexual assault of a child as defined in section 3253a of this title;

(viii) sex trafficking of children or sex trafficking by force, fraud, or coercion as defined in section 2652 of this title;

(ix) sexual exploitation of a minor as defined in section 3258 of this title;

(x) an attempt to commit any offense listed in this subdivision (B).

(C) A person who takes up residence within this State, other than within a correctional facility, and who has been convicted in any jurisdiction of the United States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court, for a sex crime the elements of which would constitute a crime under subdivision (A) or (B) of this subdivision (10) if committed in this State.

(D) A person 18 years of age or older who resides in this State, other than in a correctional facility, and who is currently or, prior to taking up residence within this State, was required to register as a sex offender in any jurisdiction of the United States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court; except that, for purposes of this subdivision, conduct that is criminal only because of the age of the victim shall not be considered an offense for purposes of the registry if the perpetrator is under the age of 18 and the victim is at least 12 years old.

(E) A nonresident sex offender who crosses into Vermont and who is employed, carries on a vocation, or is a student.

(11) “Sexually violent offense” means sexual assault or aggravated sexual assault, as described in sections 3252 and 3253 of this title, or a comparable offense in another jurisdiction of the United States, or any attempt to commit sexual assault, aggravated sexual assault, or a comparable offense in another jurisdiction of the United States.

(12) “Sexually violent predator” means a person who is a sex offender, who has been convicted of a sexually violent offense, as defined in subdivision (11) of this section, and who suffers from a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(13) “Employed, carries on a vocation” includes employment that is full-time or part-time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether financially compensated, volunteered, or for the purpose of governmental or educational benefit.

(14) “Student” means a person who is enrolled on a full-time or part-time basis in any public or private educational institution in Vermont, including any secondary school, trade or professional institution, or institution of higher learning.

(15)(A) “Conviction” means a judgment of guilt following a verdict or finding of guilt, a plea of guilty, a plea of nolo contendere, an Alford Plea, or a judgment of guilt pursuant to a deferred sentence.

(B) A sex offender whose sentence is deferred shall have no duty to register unless:

(i) the offender violates the terms of the deferred sentence agreement and is sentenced on the conviction, in which case the offender's name shall remain on the Registry for the period of time required by subsection 5407(e) or (f) of this title; or

(ii) the court finds that the interests of justice warrant placing the offender's name on the Registry while the sentence is deferred, in which case the offender's name shall be removed from the Registry upon his or her successful completion of the deferred sentence agreement.

(C) A sex offender treated as a youthful offender pursuant to 33 V.S.A. chapter 52A shall have no duty to register unless the offender's youthful offender status is revoked and he or she is sentenced for the offense in the Criminal Division of Superior Court.

(16) “Risk” means the degree of dangerousness that a sex offender poses to others. “High-risk” means a high degree of dangerousness that a sex offender poses to others. Dangerousness includes the probability of a sexual reoffense.

Credits

1995, Adj. Sess., No. 124, § 1; 1997, No. 57, § 7; 2001, No. 49, § 2; 2003, Adj. Sess., No. 157, § 2; 2005, No. 79, § 5; 2005, No. 83, § 3; 2005, Adj. Sess., No. 192, § 24; 2009, No. 1, § 13b, eff. March 4, 2009; 2009, No. 58, § 6, eff. July 1, 2009; 2011, No. 31, § 1, eff. May 17, 2011; 2011, No. 55, § 9, eff. July 1, 2011; 2015, No. 31, § 1, eff. July 1, 2015; 2017, No. 15, § 1, eff. May 1, 2017; 2017, No. 72, § 1, eff. July 1, 2017.

13 V.S.A. § 5401, VT ST T. 13 § 5401

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Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5402

§ 5402. Sex Offender Registry

Currentness

(a) The Department of Public Safety shall establish and maintain a Sex Offender Registry, that shall consist of the information required to be filed under this subchapter.

(b) All information contained in the Registry may be disclosed for any purpose permitted under the law of this State, including use by:

- (1) local, state, and federal law enforcement agencies exclusively for lawful law enforcement activities;
- (2) state and federal governmental agencies for the exclusive purpose of conducting confidential background checks;
- (3) any employer, including a school district, who is authorized by law to request records and information from the Vermont Criminal Information Center, where such disclosure is necessary to protect the public concerning persons required to register under this subchapter. The identity of a victim of an offense that requires registration shall not be released;
- (4) a person identified as a sex offender in the Registry for the purpose of reviewing the accuracy of any record relating to him or her. The identity of a victim of an offense that requires registration shall not be released; and
- (5) probate courts for purposes of conducting checks on persons applying for changes of name under 15 V.S.A. § 811.

(c) The Departments of Corrections and of Public Safety shall adopt rules, forms and procedures under 3 V.S.A. chapter 25 to implement the provisions of this subchapter.

Credits

1995, Adj. Sess., No. 124, § 1; 1999, Adj. Sess., No. 152, § 78a; 2001, No. 49, § 3; 2009, No. 58, § 13, eff. July 1, 2009.

13 V.S.A. § 5402, VT ST T. 13 § 5402

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13 V.S.A. § 5403

§ 5403. Reporting to Department of Public Safety

Currentness

(a) Upon conviction and prior to sentencing, the court shall order the sex offender to provide the court with the following information, which the court shall forward to the Department forthwith:

(1) name;

(2) date of birth;

(3) current address;

(4) Social Security number;

(5) current employment; and

(6) name and address of any postsecondary educational institution at which the sex offender is enrolled as a student.

(b) Within 14 days after sentencing, the court shall forward to the Department:

(1) the sex offender's conviction record, including offense, date of conviction, sentence, and any conditions of release or probation; and

(2) an order issued pursuant to section 5405a of this title, on a form developed by the Court Administrator, that the defendant comply with Sex Offender Registry requirements.

(c) The Departments of Corrections and of Public Safety shall jointly develop a process for the Department of Corrections to notify the Department of Public Safety when an offender who is under Department of Corrections supervision is required to be placed on the Sex Offender Registry because of a conviction that occurred in another jurisdiction of the United States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court. The report shall include the offense of which the defendant was convicted that requires the placement of his or her name on the Registry.

Credits

1995, Adj. Sess., No. 124, § 1; 2003, Adj. Sess., No. 157, § 3; 2015, No. 31, § 2, eff. July 1, 2015; 2017, No. 11, § 26, eff. July 1, 2017.

13 V.S.A. § 5403, VT ST T. 13 § 5403

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Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5404

§ 5404. Reporting upon release from confinement or supervision

Currentness

(a) Upon receiving a sex offender from the court on a probationary sentence or supervised community sentence and prior to releasing a sex offender from a correctional facility to serve probation, parole, furlough, or a supervised community sentence, the Department of Corrections shall forward to the Department the following information concerning the sex offender:

- (1) an update of the information listed in subsection 5403(a) of this title;
 - (2) the address upon release and whether the offender will be living with a child under 18 years of age;
 - (3) the name, address, and telephone number of the probation and parole office in charge of monitoring the sex offender; and
 - (4) documentation of any treatment or counseling received.
- (b) As part of planning for the release of a sex offender from a correctional facility to the community upon completion of the offender's maximum sentence, the Department of Corrections shall notify the offender of his or her obligation to report to the Department to register as a sex offender in compliance with section 5407 of this chapter prior to the offender's scheduled release date. The Department of Corrections shall assist the offender with registration as a sex offender and advise the offender that failure to register with the Department prior to release is a crime subject to section 5409 of this chapter.
- (c) The Department of Corrections shall notify the Department of Public Safety within 24 hours of the time a sex offender changes his or her address or place of employment, or enrolls in or separates from any postsecondary educational institution, or begins residing with a child under 18 years of age. In addition, the Department of Corrections shall provide the Department with any updated information requested by the Department.
- (d) With respect to a sex offender residing with a child under 18 years of age under circumstances enumerated in subsection (a) or (c) of this section, the Department of Corrections shall communicate with the Department for Children and Families. If placement in a home with a child is being considered by the Department of Corrections, the Department of Corrections shall notify the Department for Children and Families, and the departments shall work together to determine whether such a placement is appropriate. If the Department of Corrections does not have a role in the placement of the offender in the community, but knows the offender will be residing with a person under 18 years of age, the Department of Corrections shall notify the Department for Children and Families at least 24 hours prior to releasing the offender from confinement.

(e) The information required to be provided by subsection (a) of this section shall also be provided by the Department of Corrections to a sex offender's parole or probation officer within three days of the time a sex offender is placed on probation or parole by the court or the Parole Board.

(f) If it has not been previously submitted, upon receipt of the information to be provided to the Department pursuant to subsection (a) of this section, the Department shall immediately transmit the conviction data and fingerprints to the Federal Bureau of Investigation.

Credits

1995, Adj. Sess., No. 124, § 1; 2001, No. 49, § 4; 2003, Adj. Sess., No. 157, § 4; 2009, No. 1, § 14, eff. July 1, 2009; 2015, No. 1, § 1, eff. Feb. 25, 2015.

13 V.S.A. § 5404, VT ST T. 13 § 5404

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Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5405

§ 5405. Court determination of sexually violent predators

Currentness

- (a) The General Assembly finds that some sexual offenders should be subject to increased sex offender registry and community notification procedures. It is the intent of the General Assembly that State's Attorneys utilize the provisions in this section to petition the court to designate those offenders who pose a greater risk to the public as sexually violent predators to ensure that those offenders will be required to register as sex offenders for life, and that they will be among those offenders who are included on the State's Internet Sex Offender Registry.
- (b) Within 15 days after the conviction of a sex offender, the State may file a petition with the court requesting that the person be designated as a sexually violent predator.
- (c) The determination of whether a person is a sexually violent predator shall be made by the court at the time of sentencing.
- (d) The court shall order a presentence investigation that shall include a psychosexual evaluation of the offender.
- (e) In making a determination of whether the person is a sexually violent predator, the court shall examine the following:
- (1) the person's criminal history;
 - (2) any testimony presented at trial, including expert testimony as to the person's mental state;
 - (3) the person's history of treatment for a personality disorder or mental abnormality connected with his or her criminal sexual behavior;
 - (4) any mitigating evidence, including treatment history, evidence of modified behavior, or expert testimony, that the convicted sex offender wishes to provide to the court prior to the determination; and
 - (5) any other relevant evidence.

(f) The standard of proof when the court makes such a determination shall be clear and convincing evidence that the convicted sex offender suffers from a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(g) The court shall determine whether the offender was eligible to be charged as a habitual offender as provided in section 11 of this title or a violent career criminal as provided in section 11a of this title and shall make findings as to such.

(h) After making its determinations, the court shall issue a written decision explaining the reasons for its determinations and provide a copy of the decision to the Department within 14 days.

(i) A person who is determined to be a sexually violent predator shall be subject to sex offender lifetime registration and community notification and inclusion on the Internet Sex Offender Registry as provided in this subchapter.

Credits

1995, Adj. Sess., No. 124, § 1; 2001, No. 49, § 5; 2005, No. 79, § 8; 2017, No. 11, § 27, eff. July 1, 2017.

13 V.S.A. § 5405, VT ST T. 13 § 5405

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13 V.S.A. § 5405a

§ 5405a. Court determination of Sex Offender Registry requirements

Currentness

(a)(1) The court shall determine at sentencing whether Sex Offender Registry requirements apply to the defendant.

(2) If the State and the defendant do not agree as to the applicability of Sex Offender Registry requirements to the defendant, the State shall file a motion setting forth the Sex Offender Registry requirements applicable to the defendant within 14 days of the entry of a guilty plea. To the extent the defendant opposes the motion, the State and the defendant shall present evidence at the sentencing as to the applicability of Sex Offender Registry requirements to the defendant.

(b) The court shall consider the following when determining under this section whether Sex Offender Registry requirements apply to the defendant:

(1) the report issued pursuant to subsection 5403(c) of this title;

(2) the presentence investigation report regarding the offense for which the defendant is being sentenced;

(3) the court's own judgment of conviction and any evidence that was presented at trial; and

(4) any other evidence admitted at sentencing and deemed relevant by the court to the defendant's Registry status.

(c) The State shall bear the burden of proving by a preponderance of the evidence the applicability of Sex Offender Registry requirements to the defendant under this section.

(d) Within 14 days after the sentencing or the presentation of evidence pursuant to subdivision (a)(2) of this section, the court shall issue an order determining whether Sex Offender Registry requirements apply to the defendant. The order shall include:

(1) the offense of which the defendant was convicted that requires the placement of his or her name on the Sex Offender Registry;

(2) any prior convictions that affect:

(A) the defendant's Sex Offender Registry Status;

(B) the length of time that the defendant is required to register as a sex offender; or

(C) whether information regarding the defendant is required to be electronically posted on the Internet under section 5411a of this title;

(3) the length of time that the defendant is required to register as a sex offender;

(4) whether the defendant is designated as a sexually violent predator under section 5405 of this title;

(5) whether the defendant was immediately released or remanded to the custody of the Department of Corrections; and

(6) whether information regarding the defendant is required to be electronically posted on the Internet under section 5411a of this title.

Credits

2015, No. 31, § 3, eff. July 1, 2015; 2017, No. 11, § 28, eff. July 1, 2017.

13 V.S.A. § 5405a, VT ST T. 13 § 5405a

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13 V.S.A. § 5406

§ 5406. Department of Corrections duty to provide notice

Currentness

Upon receiving a sex offender from the court on a probationary sentence or any alternative sentence under community supervision by the Department of Corrections, or upon the release of a sex offender from a correctional facility, the Department of Corrections shall do each of the following:

- (1) inform the sex offender of the duty to register and keep the registration current as provided in section 5407 of this title;
- (2) inform the sex offender that if the sex offender changes residence to another state, the sex offender shall notify the Department of the new address and shall also register with the designated law enforcement agency in the new state not later than three days after establishing residence in the new state, if the new state has a registration requirement;
- (3) require the sex offender to read and sign a form stating that the duty of the sex offender to register under this section has been explained and is understood. The registration form shall be sent to the Department without delay; and
- (4) inform the sex offender that if he or she crosses into another state for purposes of employment, carrying on a vocation, or being a student, the sex offender must notify the Department of the new address, and shall register with the designated law enforcement agency in the other state, if the other state has a registration requirement.

Credits

1995, Adj. Sess., No. 124, § 1; 2001, No. 49, § 6.

13 V.S.A. § 5406, VT ST T. 13 § 5406

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13 V.S.A. § 5407

§ 5407. Sex offender's responsibility to report

Currentness

(a) Except as provided in section 5411d of this title, a sex offender shall report to the Department as follows:

(1) if convicted of a registry offense in another state, within 10 days after either establishing residence in this State or crossing into this State for purposes of employment, carrying on a vocation, or being a student, the sex offender shall provide the information listed in subsection 5403(a) of this title;

(2) annually within 10 days after the registrant's birthday, or if a person is determined to be a sexually violent predator, that person shall report to the Department every 90 days;

(3) within three days after any change of address, or if a person is designated as a high-risk sex offender pursuant to section 5411b of this title, that person shall report to the Department within 36 hours, and shall report whether a child under the age of 18 resides at such address;

(4) within three days after the registrant enrolls in or separates from any postsecondary educational institution;

(5) within three days after any change in place of employment;

(6) within three days of any name change;

(7) within three days of a child under 18 years of age moving into the residence of the registrant;

(8) within 24 hours of being released from probation, parole, furlough, or a supervised community sentence; and

(9) prior to the offender's scheduled release date from a correctional facility to the community and if the offender is not subject to probation, furlough, or a community sentence upon release that requires supervision by the Department of Corrections.

(b) If a sex offender changes residence to another state, or crosses into another state for purposes of employment, carrying on a vocation, or being a student, the sex offender shall notify the Department of the new address and shall also register with the

designated law enforcement agency in the new state not later than three days after establishing residence in the new state, if the new state has a registration requirement.

(c) Upon a sex offender's change of residence to another state, the Department shall immediately notify the designated law enforcement agency in the new state, if the new state has a registration requirement.

(d) The report required by this section shall include the information required by sections 5403 and 5404 of this chapter.

(e) Except as provided for in subsection (f) of this section, a person required to register as a sex offender under this subchapter shall continue to comply with this section, except during periods of incarceration, until 10 years have elapsed since the person was released from prison or discharged from parole, supervised release, or probation, whichever is later. The 10-year period shall not be affected or reduced in any way by the actual duration of the offender's sentence as imposed by the court, nor shall it be reduced by the sex offender's release on parole or ending of probation or other early release.

(f) A person required to register as a sex offender under this subchapter shall continue to comply with this section for the life of that person, except during periods of incarceration, if that person:

(1) has at least one prior conviction for an offense described in subdivision 5401(10) of this subchapter or a comparable offense in another jurisdiction of the United States;

(2) has been convicted of a sexual assault as defined in section 3252 of this title or aggravated sexual assault as defined in section 3253 of this title, or a comparable offense in another jurisdiction of the United States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court; however, if a person convicted under section 3252 is not more than six years older than the victim of the assault and if the victim is 14 years of age or older, then the offender shall not be required to register for life if the age of the victim was the basis for the conviction;

(3) has been determined to be a sexually violent predator pursuant to section 5405 of this title; or

(4) has been designated as a noncompliant high-risk sex offender pursuant to section 5411d of this title.

(g) The Department shall adopt forms and procedures for the purpose of verifying the addresses of persons required to register under this subchapter in accordance with the requirements set forth in Section (b)(3) of the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act.¹ Every 90 days for sexually violent predators and annually for other registrants, the Department shall verify addresses of registrants by sending a nonforwardable address verification form to each registrant at the address last reported by the registrant. The registrant shall be required to sign and return the form to the Department within 10 days of receipt. If the registrant's name appears on the list of address verification forms automatically generated by the Registry, it shall be deemed that the sex offender has received that form.

(h) A registrant who has no permanent address shall report to the Department to notify it as to his or her temporary residence. Temporary residence, for purposes of this section, need not include an actual dwelling or numbered street address, but shall identify a specific location. A registrant shall not be required to check in daily if he or she makes acceptable other arrangements

with the Department to keep his or her information current. The Department may enter into an agreement with a local law enforcement agency to perform this function, but shall maintain responsibility for compliance with this subsection.

(i) If the Department is notified by an offender that he or she is living with a child under the age of 18, the Department shall notify the Department for Children and Families within three days.

Credits

1995, Adj. Sess., No. 124, § 1; 2001, No. 49, § 7; 2003, Adj. Sess., No. 157, § 5; 2005, Adj. Sess., No. 192, § 25; 2007, No. 77, § 7, eff. June 7, 2007; 2009, No. 1, § 15, eff. July 1, 2009; 2009, No. 58, § 7, eff. July 1, 2009; 2015, No. 1, § 2, eff. Feb. 25, 2015; 2015, No. 31, § 4, eff. July 1, 2015.

Footnotes

1 42 U.S.C.A. § 14071.

13 V.S.A. § 5407, VT ST T. 13 § 5407

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Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5408

§ 5408. Record of addresses; arrest warrant

Currentness

The Department shall maintain a record of the addresses of all sex offenders. The record shall be updated at least every three months. At any time, if the Department is unable to verify the whereabouts and address of a sex offender subject to this subchapter, it shall immediately notify the local law enforcement agency in writing that the sex offender's whereabouts are unknown. The Department shall also send a copy of the notification to the State's Attorney of the county in which the sex offender's most recent address is located.

Credits

1995, Adj. Sess., No. 124, § 1; 2005, Adj. Sess., No. 192, § 21.

13 V.S.A. § 5408, VT ST T. 13 § 5408

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13 V.S.A. § 5409

§ 5409. Penalties

Currentness

(a) Except as provided in subsection (b) of this section, a sex offender who knowingly fails to comply with any provision of this subchapter shall:

(1) Be imprisoned for not more than two years or fined not more than \$1,000.00, or both. A sentence imposed under this subdivision shall run consecutively to any sentence being served by the sex offender at the time of sentencing.

(2) For the second or subsequent offense, be imprisoned not more than three years or fined not more than \$5,000.00, or both. A sentence imposed under this subdivision shall run consecutively to any sentence being served by the sex offender at the time of sentencing.

(b) A sex offender who knowingly fails to comply with any provision of this subchapter for a period of more than five consecutive days shall be imprisoned not more than five years or fined not more than \$5,000.00, or both. A sentence imposed under this subsection shall run consecutively to any sentence being served by the sex offender at the time of sentencing.

(c) It shall be presumed that every sex offender knows and understands his or her obligations under this subchapter.

(d)(1) An affidavit by the administrator of the Sex Offender Registry that describes the failure to comply with the provisions of this subchapter shall be prima facie evidence of a violation of this subchapter.

(2) Certified records of the sex offender registry shall be admissible into evidence as business records.

Credits

1995, Adj. Sess., No. 124, § 1; 2001, No. 49, § 8; 2005, Adj. Sess., No. 192, § 22; 2009, No. 58, § 8, eff. July 1, 2009.

13 V.S.A. § 5409, VT ST T. 13 § 5409

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13 V.S.A. § 5410

§ 5410. Victim notification

Currentness

If requested by a victim, the Department shall promptly notify the victim of the initial registration of a sex offender and any time the sex offender changes address, where such disclosure is necessary to protect the victim or the public concerning a person required to register under this subchapter.

Credits

1995, Adj. Sess., No. 124, § 1.

13 V.S.A. § 5410, VT ST T. 13 § 5410

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Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5411

§ 5411. Notification to local law enforcement and local community

Currentness

(a) Upon receiving a sex offender's registration materials from the Department of Corrections, notification that a nonresident sex offender has crossed into Vermont for the purpose of employment, carrying on a vocation, or being a student, or a sex offender's release or change of address, including changes of address that involve taking up residence in this State, the Department shall immediately notify the local law enforcement agency of the following information, which may be used only for lawful law enforcement activities:

- (1) name;
- (2) general physical description;
- (3) nature of offense;
- (4) sentence;
- (5) the fact that the Registry has on file additional information, including the sex offender's photograph and fingerprints;
- (6) current employment;
- (7) name and address of any postsecondary educational institution at which the sex offender is enrolled as a student; and
- (8) whether the offender complied with treatment recommended by the Department of Corrections.

(b)(1) Except as provided for in subsections (c) and (e) of this section, the Department, the Department of Corrections, and any authorized local law enforcement agency shall release Registry information concerning persons required to register under State law if the requestor can articulate a concern about the behavior of a specific person regarding the requestor's personal safety or the safety of another, or the requestor has reason to believe that a specific person may be a registered sex offender and can articulate a concern regarding the requestor's personal safety or the safety of another. However, the identity of a victim of an offense shall not be released.

(2) The Department, the Department of Corrections, and any authorized local law enforcement agency shall release the following Registry information if the requestor meets the requirements in subdivision (1) of this subsection:

- (A) a general physical description of the offender;
- (B) date of birth;
- (C) the date and nature of the offense;
- (D) whether the offender complied with treatment recommended by the Department of Corrections; and
- (E) whether there is an outstanding warrant for the offender's arrest.

(c)(1) Except as provided for in subsection (e) of this section, upon request of a member of the public about a specific person, the Department, the Department of Corrections, and any authorized local law enforcement agency shall release Registry information on sex offenders whose information is required to be posted on the Internet in accordance with section 5411a of this title.

(2) The Department, the Department of Corrections, and any authorized local law enforcement agency shall release the following Registry information to a requestor in accordance with subdivision (1) of this subsection:

- (A) the offender's known aliases;
- (B) the offender's date of birth;
- (C) a general physical description of the offender;
- (D) the offender's town of residence;
- (E) the date and nature of the offender's conviction;
- (F) if the offender is under the supervision of the Department of Corrections, the name and telephone number of the local Department of Corrections office in charge of monitoring the offender;
- (G) whether the offender complied with treatment recommended by the Department of Corrections;
- (H) whether there is an outstanding warrant for the offender's arrest; and

(I) the reason for which the offender information is accessible under subdivision (1) of this subsection.

(3)(A) The Department, the Department of Corrections, and any authorized local law enforcement agency may, at the discretion of an authorized law enforcement officer, release the current address of an offender listed in subdivision (1) of this subsection if the requestor can articulate a concern regarding the requestor's personal safety or the safety of another, and the requirements of subsection (d) of this section have been satisfied.

(B) For purposes of this subdivision, "authorized law enforcement officer" means a sheriff, a chief of police, the Commissioner of Public Safety, the State's Attorney of Essex County, or a designee. The designee shall be a certified law enforcement officer whose authority is granted or given by the sheriff, chief of police, Commissioner of Public Safety, or State's Attorney of Essex County, either through explicit order or Department policy.

(d) The Department, the Department of Corrections, and any local law enforcement agency authorized to release Registry information shall keep a log of requests for registry information and follow the procedure for verification of the requestor's identity recommended by the Department. Such log shall include the requestor's name, address, telephone number, the name of the person for whom the request was made, the reason for the request, and the date of the request. Information about requestors shall be confidential and shall only be accessible to criminal justice agencies.

(e) After 10 years have elapsed from the completion of the sentence, a person required to register as a sex offender for life pursuant to section 5407 of this title who is not designated as a noncompliant high-risk sex offender pursuant to section 5411d of this title may petition the Criminal Division of the Superior Court for a termination of community notification, including the Internet. The State shall make a reasonable attempt to notify the victim of the proceeding, and consider victim testimony regarding the petition. If the registrant was convicted of a crime that requires lifetime registration, there shall be a rebuttable presumption that the person is a high-risk sex offender. Should the registrant present evidence that he or she is not a high-risk offender, the State shall have the burden of proof to establish by a preponderance of the evidence that the person remains a high risk to reoffend. The court shall consider whether the offender has successfully completed sex offender treatment. The court may require the offender to submit to a psychosexual evaluation. If the court finds that there is a high risk of reoffense, notification shall continue. The Vermont Rules of Civil Procedure shall apply to these proceedings. A lifetime registrant may petition the court to be removed from community notification requirements once every 60 months. The presumption under this section that a lifetime registrant is a high-risk offender shall not automatically subject the offender to increased public access to his or her status as a sex offender and related information under subdivision (c)(1) of this section or section 5411a of this title.

(f) Registry information shall not be released under this section unless it is released pursuant to written protocols governing the manner and circumstances of the release developed by the Department, the Department of Corrections, or an authorized law enforcement agency. The protocols shall include consultation between the department or agency releasing the information and the Department of Corrections' staff member responsible for supervising the offender.

Credits

1995, Adj. Sess., No. 124, § 1; 1999, Adj. Sess., No. 152, § 78b; 2001, No. 49, § 9; 2003, Adj. Sess., No. 157, § 6; 2005, Adj. Sess., No. 192, §§ 23, 26, 31; 2007, No. 77, § 8, eff. June 7, 2007; 2009, Adj. Sess., No. 154, § 238(b)(7), eff. July 1, 2010.

13 V.S.A. § 5411, VT ST T. 13 § 5411

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13 V.S.A. § 5411a

§ 5411a. Electronic posting of the Sex Offender Registry

Currentness

<Text of section effective until fulfillment of the conditions specified in 2015, No. 31, § 9(b). See also, text of section effective upon fulfillment of conditions.>

(a) Notwithstanding 20 V.S.A. §§ 2056a-2056e, the Department shall electronically post information on the Internet in accordance with subsection (b) of this section regarding the following sex offenders, upon the offender's release from confinement or, if the offender was not subject to confinement, upon the offender's sentencing:

(1) Sex offenders who have been convicted of:

(A) aggravated sexual assault of a child (13 V.S.A. § 3253a);

(B) aggravated sexual assault (13 V.S.A. § 3253);

(C) sexual assault (13 V.S.A. § 3252);

(D) kidnapping with intent to commit sexual assault (13 V.S.A. § 2405(a)(1)(D));

(E) lewd or lascivious conduct with child (13 V.S.A. § 2602);

(F) a second or subsequent conviction for voyeurism (13 V.S.A. § 2605(b) or (c));

(G) slave traffic if a registrable offense under subdivision 5401(10)(B)(iv) of this title (13 V.S.A. § 2635);

(H) sex trafficking of children or sex trafficking by force, fraud, or coercion (13 V.S.A. § 2635a);

(I) sexual exploitation of a minor (13 V.S.A. § 3258(c));

(J) any offense regarding the sexual exploitation of children (chapter 64 of this title);

(K) sexual abuse of a vulnerable adult (13 V.S.A. § 1379);

(L) human trafficking as defined in subdivisions 2652(a)(1)-(4) of this title;

(M) aggravated human trafficking as defined in subdivision 2653(a)(4) of this title;

(N) a federal conviction in federal court for any of the following offenses:

(i) sex trafficking of children as defined in 18 U.S.C. § 1591;

(ii) aggravated sexual abuse as defined in 18 U.S.C. § 2241;

(iii) sexual abuse as defined in 18 U.S.C. § 2242;

(iv) sexual abuse of a minor or ward as defined in 18 U.S.C. § 2243;

(v) abusive sexual contact as defined in 18 U.S.C. § 2244;

(vi) offenses resulting in death as defined in 18 U.S.C. § 2245;

(vii) sexual exploitation of children as defined in 18 U.S.C. § 2251;

(viii) selling or buying of children as defined in 18 U.S.C. § 2251A;

(ix) material involving the sexual exploitation of minors as defined in 18 U.S.C. § 2252;

(x) material containing child pornography as defined in 18 U.S.C. § 2252A;

(xi) production of sexually explicit depictions of a minor for import into the United States as defined in 18 U.S.C. § 2260;

(xii) transportation of a minor for illegal sexual activity as defined in 18 U.S.C. § 2421;

(xiii) coercion and enticement of a minor for illegal sexual activity as defined in 18 U.S.C. § 2422;

(xiv) transportation of minors for illegal sexual activity, travel with the intent to engage in illicit sexual conduct with a minor, and engaging in illicit sexual conduct in foreign places as defined in 18 U.S.C. § 2423;

(xv) transmitting information about a minor to further criminal sexual conduct as defined in 18 U.S.C. § 2425;

(xvi) trafficking in persons as defined in 18 U.S.C. sections 2251-2252(a), 2260, or 2421-2423 if the violation included sexual abuse, aggravated sexual abuse, or the attempt to commit aggravated sexual abuse;

(O) an attempt to commit any offense listed in this subdivision (a)(1).

(2) Sex offenders who have at least one prior conviction for an offense described in subdivision 5401(10) of this subchapter.

(3) Sex offenders who have failed to comply with sex offender registration requirements and for whose arrest there is an outstanding warrant for such noncompliance. Information on offenders shall remain on the Internet only while the warrant is outstanding.

(4) Sex offenders who have been designated as sexual predators pursuant to section 5405 of this title.

(5)(A) Sex offenders who have not complied with sex offender treatment recommended by the Department of Corrections or who are ineligible for sex offender treatment. The Department of Corrections shall establish rules for the administration of this subdivision and shall specify what circumstances constitute noncompliance with treatment and criteria for ineligibility to participate in treatment. Offenders subject to this provision shall have the right to appeal the Department of Corrections' determination in Superior Court in accordance with Rule 75 of the Vermont Rules of Civil Procedure. This subdivision shall apply prospectively and shall not apply to those sex offenders who did not comply with treatment or were ineligible for treatment prior to March 1, 2005.

(B) The Department of Corrections shall notify the Department if a sex offender who is compliant with sex offender treatment completes his or her sentence but has not completed sex offender treatment. As long as the offender complies with treatment, the offender shall not be considered noncompliant under this subdivision and shall not be placed on the Internet Registry in accordance with this subdivision alone. However, the offender shall submit to the Department proof of continuing treatment compliance every three months. Proof of compliance shall be a form provided by the Department that the offender's treatment provider shall sign, attesting to the offender's continuing compliance with recommended treatment. Failure to submit such proof as required under this subdivision (B) shall result in the offender's placement on the Internet Registry in accordance with subdivision (A) of this subdivision (5).

(6) Sex offenders who have been designated by the Department of Corrections, pursuant to section 5411b of this title, as high-risk.

(7) A person 18 years of age or older who resides in this State, other than in a correctional facility, and who is currently or, prior to taking up residence within this State was required to register as a sex offender in any jurisdiction of the United

States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court; except that, for purposes of this subdivision:

(A) conduct that is criminal only because of the age of the victim shall not be considered an offense for purposes of the Registry if the perpetrator is under the age of 18 and the victim is at least 12 years old; and

(B) information shall be posted electronically only if the offense for which the person was required to register in the other jurisdiction was:

(i) a felony; or

(ii) a misdemeanor punishable by more than six months of imprisonment.

(b) The Department shall electronically post the following information on sex offenders designated in subsection (a) of this section:

(1) the offender's name and any known aliases;

(2) the offender's date of birth;

(3) a general physical description of the offender;

(4) a digital photograph of the offender;

(5) the offender's town of residence;

(6) the date and nature of the offender's conviction;

(7) if the offender is under the supervision of the Department of Corrections, the name and telephone number of the local Department of Corrections office in charge of monitoring the sex offender;

(8) whether the offender complied with treatment recommended by the Department of Corrections;

(9) a statement that there is an outstanding warrant for the offender's arrest, if applicable;

(10) the reason for which the offender information is accessible under this section;

- (11) whether the offender has been designated high risk by the Department of Corrections pursuant to section 5411b of this title; and
- (12) if the offender has not been subject to a risk assessment, a statement that the offender has not been so assessed and that such a person is presumed to be high risk, provided that the Department of Corrections shall permit a person subject to this subdivision to obtain a risk assessment at the person's own expense.
- (c) The Department shall have the authority to take necessary steps to obtain digital photographs of offenders whose information is required to be posted on the Internet and to update photographs as necessary. An offender shall annually report to the Department or a local law enforcement agency for the purpose of being photographed for the Internet.
- (d) An offender's street address shall not be posted electronically. The identity of a victim of an offense that requires registration shall not be released.
- (e) Information regarding a sex offender shall not be posted electronically if the conduct that is the basis for the offense is criminal only because of the age of the victim and the perpetrator is within 38 months of age of the victim.
- (f) Information regarding a sex offender shall not be posted electronically prior to the offender reaching 18 years of age, but such information shall be otherwise available pursuant to section 5411 of this title.
- (g) Information on sex offenders shall be posted on the Internet for the duration of time for which they are subject to notification requirements under section 5401 et seq. of this title.
- (h) Posting of the information shall include the following language: "This information is made available for the purpose of complying with 13 V.S.A. § 5401 et seq., which requires the Department of Public Safety to establish and maintain a Registry of persons who are required to register as sex offenders and to post electronically information on sex offenders. The Registry is based on the Legislature's decision to facilitate access to publicly available information about persons convicted of sexual offenses. EXCEPT FOR OFFENDERS SPECIFICALLY DESIGNATED ON THIS SITE AS HIGH-RISK, THE DEPARTMENT OF PUBLIC SAFETY HAS NOT CONSIDERED OR ASSESSED THE SPECIFIC RISK OF REOFFENSE WITH REGARD TO ANY INDIVIDUAL PRIOR TO HIS OR HER INCLUSION WITHIN THIS REGISTRY AND HAS MADE NO DETERMINATION THAT ANY INDIVIDUAL INCLUDED IN THE REGISTRY IS CURRENTLY DANGEROUS. THE MAIN PURPOSE OF PROVIDING THIS DATA ON THE INTERNET IS TO MAKE INFORMATION MORE EASILY AVAILABLE AND ACCESSIBLE, NOT TO WARN ABOUT ANY SPECIFIC INDIVIDUAL. IF YOU HAVE QUESTIONS OR CONCERNS ABOUT A PERSON WHO IS NOT LISTED ON THIS SITE OR YOU HAVE QUESTIONS ABOUT SEX OFFENDER INFORMATION LISTED ON THIS SITE, PLEASE CONTACT THE DEPARTMENT OF PUBLIC SAFETY OR YOUR LOCAL LAW ENFORCEMENT AGENCY. PLEASE BE AWARE THAT MANY NONOFFENDERS SHARE A NAME WITH A REGISTERED SEX OFFENDER. Any person who uses information in this Registry to injure, harass, or commit a criminal offense against any person included in the Registry or any other person is subject to criminal prosecution."
- (i) The Department shall post electronically general information about the Sex Offender Registry and how the public may access Registry information. Electronically posted information regarding sex offenders listed in subsection (a) of this section shall be organized and available to search by the sex offender's name and the sex offender's county, city, or town of residence.

(j) The Department shall adopt rules for the administration of this section and shall expedite the process for the adoption of such rules. The Department shall not implement this section prior to the adoption of such rules.

(k) If a sex offender's information is required to be posted electronically pursuant to subdivision (a)(2) of this section, the Department shall list the offender's convictions for any crime listed in subdivision 5401(10) of this title, regardless of the date of the conviction or whether the offender was required to register as a sex offender based upon that conviction.

(l) A sex offender's street address shall not be posted electronically if the offender has a developmental disability, receives funding from the Department of Disabilities, Aging, and Independent Living (DAIL) for 24-hour supervision and treatment, and resides in a residence that is equipped with alarms. However, this information shall be otherwise available pursuant to this section. An agency designated pursuant to 18 V.S.A. § 8907 to provide mental health and developmental disability services (DA), or a specialized service agency (SSA) operating under an agreement entered into pursuant to 18 V.S.A. § 8912 that is providing supervision for the offender shall immediately notify the administrator of the Sex Offender Registry and local law enforcement if the individual's level of supervision is decreased from 24 hours or if the offender leaves his or her residence without authorization, and thereafter this subsection shall cease to apply to that offender. If after notice and hearing, the Commissioner of DAIL finds that the DA or SSA has failed to notify the administrator of the Sex Offender Registry and local law enforcement of a decrease from 24-hour supervision or absence without authorization by the offender within 24 hours of the change in status, the Commissioner may impose an administrative penalty of not more than \$1,000.00 for each day of the violation. A DA or SSA shall have the right to a de novo appeal of a decision under this subsection pursuant to Rule 75 of the Vermont Rules of Civil Procedure.

(m) Information regarding a sex offender whose sentence is deferred shall not be posted electronically unless the offender violates the terms of the deferred sentence agreement and is sentenced on the conviction.

Credits

2003, Adj. Sess., No. 157, § 7; 2005, No. 83, § 13; 2005, Adj. Sess., No. 192, § 29; 2007, No. 77, § 9, eff. June 7, 2007; 2009, No. 58, § 9, eff. July 1, 2009; 2009, Adj. Sess., No. 66, §§ 2, 3, eff. Feb. 24, 2010; 2009, Adj. Sess., No. 157, § 3, eff. July 1, 2010; 2011, No. 31, § 2, eff. May 17, 2011; 2011, No. 55, § 10, eff. July 1, 2011; 2015, Adj. Sess., No. 133, § 4, eff. May 25, 2016; 2017, No. 15, § 2, eff. May 1, 2017.

13 V.S.A. § 5411a, VT ST T. 13 § 5411a

The statutes are current through laws effective July 1, 2025, from the Regular Session of the 2025 Vermont General Assembly.

West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5411a

§ 5411a. Electronic posting of the Sex Offender Registry

Currentness

<Text of section effective contingent upon fulfillment of the conditions specified in 2015, No. 31, § 9(b). See also, text of section effective until contingency met.>

(a) Notwithstanding 20 V.S.A. §§ 2056a-2056e, the Department shall electronically post information on the Internet in accordance with subsection (b) of this section regarding the following sex offenders, upon the offender's release from confinement or, if the offender was not subject to confinement, upon the offender's sentencing:

(1) Sex offenders who have been convicted of:

(A) aggravated sexual assault of a child (13 V.S.A. § 3253a);

(B) aggravated sexual assault (13 V.S.A. § 3253);

(C) sexual assault (13 V.S.A. § 3252);

(D) kidnapping with intent to commit sexual assault (13 V.S.A. § 2405(a)(1)(D));

(E) lewd or lascivious conduct with child (13 V.S.A. § 2602);

(F) a second or subsequent conviction for voyeurism (13 V.S.A. § 2605(b) or (c));

(G) slave traffic if a registrable offense under subdivision 5401(10)(B)(iv) of this title (13 V.S.A. § 2635);

(H) sex trafficking of children or sex trafficking by force, fraud, or coercion (13 V.S.A. § 2635a);

(I) sexual exploitation of a minor (13 V.S.A. § 3258(c));

(J) any offense regarding the sexual exploitation of children (chapter 64 of this title);

(K) sexual abuse of a vulnerable adult (13 V.S.A. § 1379);

(L) human trafficking as defined in subdivisions 2652(a)(1)-(4) of this title;

(M) aggravated human trafficking as defined in subdivision 2653(a)(4) of this title;

(N) a federal conviction in federal court for any of the following offenses:

(i) sex trafficking of children as defined in 18 U.S.C. § 1591;

(ii) aggravated sexual abuse as defined in 18 U.S.C. § 2241;

(iii) sexual abuse as defined in 18 U.S.C. § 2242;

(iv) sexual abuse of a minor or ward as defined in 18 U.S.C. § 2243;

(v) abusive sexual contact as defined in 18 U.S.C. § 2244;

(vi) offenses resulting in death as defined in 18 U.S.C. § 2245;

(vii) sexual exploitation of children as defined in 18 U.S.C. § 2251;

(viii) selling or buying of children as defined in 18 U.S.C. § 2251A;

(ix) material involving the sexual exploitation of minors as defined in 18 U.S.C. § 2252;

(x) material containing child pornography as defined in 18 U.S.C. § 2252A;

(xi) production of sexually explicit depictions of a minor for import into the United States as defined in 18 U.S.C. § 2260;

(xii) transportation of a minor for illegal sexual activity as defined in 18 U.S.C. § 2421;

(xiii) coercion and enticement of a minor for illegal sexual activity as defined in 18 U.S.C. § 2422;

(xiv) transportation of minors for illegal sexual activity, travel with the intent to engage in illicit sexual conduct with a minor, and engaging in illicit sexual conduct in foreign places as defined in 18 U.S.C. § 2423;

(xv) transmitting information about a minor to further criminal sexual conduct as defined in 18 U.S.C. § 2425;

(xvi) trafficking in persons as defined in 18 U.S.C. sections 2251-2252(a), 2260, or 2421-2423 if the violation included sexual abuse, aggravated sexual abuse, or the attempt to commit aggravated sexual abuse;

(O) an attempt to commit any offense listed in this subdivision (a)(1).

(2) Sex offenders who have at least one prior conviction for an offense described in subdivision 5401(10) of this subchapter.

(3) Sex offenders who have failed to comply with sex offender registration requirements and for whose arrest there is an outstanding warrant for such noncompliance. Information on offenders shall remain on the Internet only while the warrant is outstanding.

(4) Sex offenders who have been designated as sexual predators pursuant to section 5405 of this title.

(5)(A) Sex offenders who have not complied with sex offender treatment recommended by the Department of Corrections or who are ineligible for sex offender treatment. The Department of Corrections shall establish rules for the administration of this subdivision and shall specify what circumstances constitute noncompliance with treatment and criteria for ineligibility to participate in treatment. Offenders subject to this provision shall have the right to appeal the Department of Corrections' determination in Superior Court in accordance with Rule 75 of the Vermont Rules of Civil Procedure. This subdivision shall apply prospectively and shall not apply to those sex offenders who did not comply with treatment or were ineligible for treatment prior to March 1, 2005.

(B) The Department of Corrections shall notify the Department if a sex offender who is compliant with sex offender treatment completes his or her sentence but has not completed sex offender treatment. As long as the offender complies with treatment, the offender shall not be considered noncompliant under this subdivision and shall not be placed on the Internet Registry in accordance with this subdivision alone. However, the offender shall submit to the Department proof of continuing treatment compliance every three months. Proof of compliance shall be a form provided by the Department that the offender's treatment provider shall sign, attesting to the offender's continuing compliance with recommended treatment. Failure to submit such proof as required under this subdivision (B) shall result in the offender's placement on the Internet Registry in accordance with subdivision (A) of this subdivision (5).

(6) Sex offenders who have been designated by the Department of Corrections, pursuant to section 5411b of this title, as high-risk.

(7) A person 18 years of age or older who resides in this State, other than in a correctional facility, and who is currently or, prior to taking up residence within this State was required to register as a sex offender in any jurisdiction of the United

States, including a state, territory, commonwealth, the District of Columbia, or military, federal, or tribal court; except that, for purposes of this subdivision:

(A) conduct that is criminal only because of the age of the victim shall not be considered an offense for purposes of the Registry if the perpetrator is under the age of 18 and the victim is at least 12 years old; and

(B) information shall be posted electronically only if the offense for which the person was required to register in the other jurisdiction was:

(i) a felony; or

(ii) a misdemeanor punishable by more than six months of imprisonment.

(b) The Department shall electronically post the following information on sex offenders designated in subsection (a) of this section:

(1) the offender's name and any known aliases;

(2) the offender's date of birth;

(3) a general physical description of the offender;

(4) a digital photograph of the offender;

(5) the offender's town of residence;

(6) the offender's address or, if the offender does not have a fixed address, other information about where the offender habitually lives, if:

(A) the Department determines that all the information to be electronically posted about the offender is correct; and

(B)(i) the offender has been designated as high-risk by the Department of Corrections pursuant to section 5411b of this title;

(ii) the offender has not complied with sex offender treatment;

(iii) there is an outstanding warrant for the offender's arrest;

(iv) the offender is subject to the Registry for a conviction of a sex offense against a child under 13 years of age; or

(v) the offender's name has been electronically posted for an offense committed in another jurisdiction which required the person's address to be electronically posted in that jurisdiction;

(7) the date and nature of the offender's conviction;

(8) if the offender is under the supervision of the Department of Corrections, the name and telephone number of the local Department of Corrections office in charge of monitoring the sex offender;

(9) whether the offender complied with treatment recommended by the Department of Corrections;

(10) a statement that there is an outstanding warrant for the offender's arrest, if applicable; and

(11) the reason for which the offender information is accessible under this section.

(12) whether the offender has been designated high risk by the Department of Corrections pursuant to section 5411b of this title; and

(13) if the offender has not been subject to a risk assessment, a statement that the offender has not been so assessed and that such a person is presumed to be high risk, provided that the Department of Corrections shall permit a person subject to this subdivision to obtain a risk assessment at the person's own expense.

(c) The Department shall have the authority to take necessary steps to obtain digital photographs of offenders whose information is required to be posted on the Internet and to update photographs as necessary. An offender shall annually report to the Department or a local law enforcement agency for the purpose of being photographed for the Internet.

(d) The identity of a victim of an offense that requires registration shall not be released.

(e) Information regarding a sex offender shall not be posted electronically if the conduct that is the basis for the offense is criminal only because of the age of the victim and the perpetrator is within 38 months of age of the victim.

(f) Information regarding a sex offender shall not be posted electronically prior to the offender reaching 18 years of age, but such information shall be otherwise available pursuant to section 5411 of this title.

(g) Information on sex offenders shall be posted on the Internet for the duration of time for which they are subject to notification requirements under section 5401 et seq. of this title.

(h) Posting of the information shall include the following language: "This information is made available for the purpose of complying with 13 V.S.A. § 5401 et seq., which requires the Department of Public Safety to establish and maintain a

Registry of persons who are required to register as sex offenders and to post electronically information on sex offenders. The Registry is based on the Legislature's decision to facilitate access to publicly available information about persons convicted of sexual offenses. EXCEPT FOR OFFENDERS SPECIFICALLY DESIGNATED ON THIS SITE AS HIGH-RISK, THE DEPARTMENT OF PUBLIC SAFETY HAS NOT CONSIDERED OR ASSESSED THE SPECIFIC RISK OF REOFFENSE WITH REGARD TO ANY INDIVIDUAL PRIOR TO HIS OR HER INCLUSION WITHIN THIS REGISTRY AND HAS MADE NO DETERMINATION THAT ANY INDIVIDUAL INCLUDED IN THE REGISTRY IS CURRENTLY DANGEROUS. THE MAIN PURPOSE OF PROVIDING THIS DATA ON THE INTERNET IS TO MAKE INFORMATION MORE EASILY AVAILABLE AND ACCESSIBLE, NOT TO WARN ABOUT ANY SPECIFIC INDIVIDUAL. IF YOU HAVE QUESTIONS OR CONCERNS ABOUT A PERSON WHO IS NOT LISTED ON THIS SITE OR YOU HAVE QUESTIONS ABOUT SEX OFFENDER INFORMATION LISTED ON THIS SITE, PLEASE CONTACT THE DEPARTMENT OF PUBLIC SAFETY OR YOUR LOCAL LAW ENFORCEMENT AGENCY. PLEASE BE AWARE THAT MANY NONOFFENDERS SHARE A NAME WITH A REGISTERED SEX OFFENDER. Any person who uses information in this Registry to injure, harass, or commit a criminal offense against any person included in the Registry or any other person is subject to criminal prosecution.”

(i) The Department shall post electronically general information about the Sex Offender Registry and how the public may access Registry information. Electronically posted information regarding sex offenders listed in subsection (a) of this section shall be organized and available to search by the sex offender's name and the sex offender's county, city, or town of residence.

(j) The Department shall adopt rules for the administration of this section and shall expedite the process for the adoption of such rules. The Department shall not implement this section prior to the adoption of such rules.

(k) If a sex offender's information is required to be posted electronically pursuant to subdivision (a)(2) of this section, the Department shall list the offender's convictions for any crime listed in subdivision 5401(10) of this title, regardless of the date of the conviction or whether the offender was required to register as a sex offender based upon that conviction.

(l) A sex offender's street address shall not be posted electronically if the offender has a developmental disability, receives funding from the Department of Disabilities, Aging, and Independent Living (DAIL) for 24-hour supervision and treatment, and resides in a residence that is equipped with alarms. However, this information shall be otherwise available pursuant to this section. An agency designated pursuant to 18 V.S.A. § 8907 to provide mental health and developmental disability services (DA), or a specialized service agency (SSA) operating under an agreement entered into pursuant to 18 V.S.A. § 8912 that is providing supervision for the offender shall immediately notify the administrator of the Sex Offender Registry and local law enforcement if the individual's level of supervision is decreased from 24 hours or if the offender leaves his or her residence without authorization, and thereafter this subsection shall cease to apply to that offender. If after notice and hearing, the Commissioner of DAIL finds that the DA or SSA has failed to notify the administrator of the Sex Offender Registry and local law enforcement of a decrease from 24-hour supervision or absence without authorization by the offender within 24 hours of the change in status, the Commissioner may impose an administrative penalty of not more than \$1,000.00 for each day of the violation. A DA or SSA shall have the right to a de novo appeal of a decision under this subsection pursuant to Rule 75 of the Vermont Rules of Civil Procedure.

(m) Information regarding a sex offender whose sentence is deferred shall not be posted electronically unless the offender violates the terms of the deferred sentence agreement and is sentenced on the conviction.

Credits

2003, Adj. Sess., No. 157, § 7; 2005, No. 83, § 13; 2005, Adj. Sess., No. 192, § 29; 2007, No. 77, § 9, eff. June 7, 2007; 2009, No. 58, § 9, eff. July 1, 2009; 2009, No. 58, § 14, eff. Feb. 24, 2010; 2009, Adj. Sess., No. 157, § 3, eff. July 1, 2010; 2011, No. 31, § 2, eff. May 17, 2011; 2011, No. 55, § 10, eff. July 1, 2011; 2013, Adj. Sess., No. 181, § 2, eff. June 10, 2014; 2015, No. 31, § 8; 2015, Adj. Sess., No. 133, § 4, eff. May 25, 2016; 2017, No. 15, § 2, eff. May 1, 2017.

13 V.S.A. § 5411a, VT ST T. 13 § 5411a

The statutes are current through laws effective July 1, 2025, from the Regular Session of the 2025 Vermont General Assembly.

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West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5411b

§ 5411b. Designation of high-risk sex offender

Currentness

(a) The Department of Corrections shall evaluate a sex offender for the purpose of determining whether the offender is “high-risk” as defined in section 5401 of this title. The designation of high-risk under this section is for the purpose of identifying an offender as one who should be subject to increased public access to his or her status as a sex offender and related information, including Internet access.

(b) After notice and an opportunity to be heard, a sex offender who is designated as high risk shall have the right to appeal de novo to the Superior Court in accordance with Rule 75 of the Vermont Rules of Civil Procedure.

(c) The Department of Corrections shall adopt rules for the administration of this section. The Department of Corrections shall not implement this section prior to the adoption of such rules.

(d) The Department of Corrections shall identify those sex offenders under the supervision of the Department as of the date of passage of June 28, 2005¹ who are high risk and shall designate them as such no later than September 1, 2009.

Credits

2003, Adj. Sess., No. 157, § 8; 2005, No. 83, § 16; 2009, No. 58, § 10, eff. July 1, 2009.

Footnotes

¹ So in official version.

13 V.S.A. § 5411b, VT ST T. 13 § 5411b

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Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5411c

§ 5411c. Active community notification by the Department of Public
Safety, the Department of Corrections, and local law enforcement

Currentness

(a) Notwithstanding other provisions to the contrary, the Department, the Department of Corrections, and any authorized local law enforcement agency are authorized to notify members of the public at their discretion about any sex offender whose information is required to be posted on the Internet in accordance with section 5411a of this title.

(b) The Department, the Department of Corrections, and any authorized local law enforcement agency are authorized to notify members of the public at their discretion about a sex offender whose information is not required to be posted on the Internet in accordance with section 5411a of this title only under circumstances that constitute a compelling risk to public safety and only after consultation with the Vermont Crime Information Center and the Department of Corrections.

(c) Registry information shall not be released under this section unless it is released pursuant to written protocols governing the manner and circumstances of the release developed by the Department, the Department of Corrections, or an authorized law enforcement agency. The protocols shall include consultation between the department or agency releasing the information and the department of corrections' staff member responsible for supervising the offender.

(d) Active community notification regarding registered sex offenders who may pose a danger to members of the community is an important public safety tool that the General Assembly intends for authorized agencies to use at their discretion in accordance with this subchapter.

Credits

2005, Adj. Sess., No. 192, § 27.

13 V.S.A. § 5411c, VT ST T. 13 § 5411c

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West's Vermont Statutes Annotated

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Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5411d

§ 5411d. Designation of noncompliant high-risk sex offender

Currentness

(a) Prior to releasing a person from total confinement, the Department of Corrections shall designate the person as a noncompliant high-risk sex offender if the person meets all of the following criteria:

(1) is incarcerated on or after June 7, 2007 for lewd and lascivious conduct with a child as defined in section 2602 of this title, sexual assault as defined in section 3252 of this title, aggravated sexual assault as defined in section 3253 of this title, or any attempt to commit a crime listed herein, or a comparable offense in another jurisdiction of the United States;

(2) is not subject to indeterminate life sentences under section 3271 of this title;

(3) is designated as a high risk sex offender pursuant to section 5411b of this title; and

(4) is noncompliant with sex offender treatment as defined by Department of Corrections' directives.

(b) Noncompliant high-risk sex offenders shall report to the Department as follows:

(1) In person, within 15 days from the date of release from Department of Corrections' supervision, and within every 30 days thereafter.

(2) Prior to any change of address. However, if the change of address is unanticipated, the offender shall report within one day of the change of address.

(3) Prior to enrollment in or separation from any postsecondary educational institution. However, if the change in school status is unanticipated, the offender shall report within one day of the change.

(4) Within one day of any change in a place of employment.

(c) In addition to the Registry information required in section 5403 of this title, a noncompliant high-risk sex offender shall provide the Department with the make, model, color, registration, and license plate number of any vehicle the person operates

prior to operation. An offender found in operation of a vehicle not on the list provided to the Department shall be considered to be in violation of this subsection.

(d) The Department shall arrange for the noncompliant high-risk sex offender to have his or her digital photograph updated annually for purposes of the electronic Registry as provided in section 5411a of this title. An offender who is requested by the Department to report to the Department or a local law enforcement agency for the purpose of being photographed for the Internet Registry shall comply with the request within 30 days.

(e) The Department shall conduct periodic unannounced Registry compliance checks on noncompliant high-risk sex offenders to verify the accuracy of Registry information. The Department may enter into an agreement with a local law enforcement agency to perform duties under this subsection and under subdivision (b)(1) of this section, but shall maintain responsibility for compliance with this subsection.

(f)(1) A noncompliant high-risk sex offender may petition the Criminal Division of the Superior Court to be relieved from the heightened Registry requirements in this section once every five years from the date of designation. The offender shall have the burden of proving by a preponderance of the evidence that he or she:

(A) no longer qualifies as a high-risk offender as defined in section 5401 of this title and rules adopted by the Department of Corrections in accordance with section 5411b of this title; and

(B) has complied with and completed sex offender treatment as provided by Department of Corrections' directives.

(2) The Vermont Rules of Civil Procedure shall apply to these proceedings.

(3) If the court finds that the offender is not high risk and has successfully completed treatment, the court shall order that the offender is no longer considered a noncompliant high risk offender and is subsequently relieved from the heightened registry requirements of this section; however, the offender shall still continue to comply with Sex Offender Registry and other requirements as provided elsewhere in this subchapter.

(g)(1) A noncompliant high-risk sex offender who knowingly fails to comply with any of the Registry requirements under this section shall be imprisoned for not less than five years and a maximum term of life and, in addition, may be fined not more than \$50,000.00. A sentence may be suspended in whole or in part, or the person may be eligible for parole or release on conditional reentry or furlough, provided the person is subject to intensive supervision by the Department of Corrections.

(2) In a criminal proceeding for violating any of the Registry requirements under this section, a defendant shall be prohibited from challenging his or her status as a noncompliant high-risk sex offender.

(h) A noncompliant high-risk sex offender convicted of violating this section shall be sentenced under section 3271 of this title.

Credits

2007, No. 77, § 10, eff. June 7, 2007; 2009, Adj. Sess., No. 154, § 238(b)(7), eff. July 1, 2010.

13 V.S.A. § 5411d, VT ST T. 13 § 5411d

The statutes are current through laws effective July 1, 2025, from the Regular Session of the 2025 Vermont General Assembly.

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West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5412

§ 5412. Immunity

Currentness

The Department, the Department of Corrections, any authorized local law enforcement agency, and their employees shall be immune from liability in carrying out the provisions under this subchapter except in instances of gross negligence or willful misconduct, provided that the agencies complied with the rules adopted pursuant to this subchapter.

Credits

1995, Adj. Sess., No. 124, § 1; 2003, Adj. Sess., No. 157, § 9; 2005, No. 83, § 14; 2005, Adj. Sess., No. 192, § 28.

13 V.S.A. § 5412, VT ST T. 13 § 5412

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West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5413

§ 5413. Expungement of records

Currentness

A person whose conviction of a sex offense is reversed and dismissed shall not be required to register for that conviction under the provisions of this subchapter and any information about that conviction contained in the Registry shall be removed and destroyed. If any information about that conviction was provided to any person or agency under subsection 5402(b) of this subchapter, that person or agency shall be notified that the conviction was reversed and shall be required to remove and destroy the information. If the person whose conviction is reversed and dismissed has more than one entry in the Registry, only the entry related to the dismissed case shall be removed and destroyed.

Credits

1995, Adj. Sess., No. 124, § 1.

13 V.S.A. § 5413, VT ST T. 13 § 5413

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West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5414

§ 5414. Participation in national sex offender registration

Currentness

The Department shall participate in the National Sex Offender Registry Program managed by the Federal Bureau of Investigation in accordance with guidelines issued by the U.S. Attorney General, including transmission of current address information and other information on registrants to the extent provided by the guidelines.

Credits

2001, No. 49, § 11.

13 V.S.A. § 5414, VT ST T. 13 § 5414

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Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5415

§ 5415. Enforcement; special investigation units

Currentness

(a) Special investigation units, created pursuant to 24 V.S.A. § 1940, shall be responsible for the investigation of violations of this chapter's Registry requirements and are authorized to conduct in-person Registry compliance checks in a time, place, and manner it deems appropriate in furtherance of the purposes of this chapter. This section shall not be construed to prohibit local law enforcement from enforcing the provisions of this chapter.

(b) On or before November 1, 2019, and annually thereafter, local law enforcement agencies shall report to the Vermont Crime Information Center about any in-person Registry compliance checks that the agency has conducted during the preceding 12 months. The report shall include the total number of in-person compliance checks conducted during the 12-month period, the number of offenders who were in compliance, the number of offenders who were out of compliance, and the reasons for being out of compliance.

(c) The Department of Public Safety shall report to the Senate and House Committees on Judiciary on or before December 15, 2009, and annually thereafter, regarding its efforts under this section.

Credits

2009, No. 1, § 16, eff. March 4, 2009; 2019, No. 77, § 17, eff. June 19, 2019.

13 V.S.A. § 5415, VT ST T. 13 § 5415

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West's Vermont Statutes Annotated

Title Thirteen. Crimes and Criminal Procedure (Refs & Annos)

Part 2. Criminal Procedure Generally

Chapter 167. Crime Victims (Refs & Annos)

Subchapter 3. Sex Offender Registration; Law Enforcement Notification (Refs & Annos)

13 V.S.A. § 5416

§ 5416. Persons subject to erroneous Sex Offender Registry requirements; petition to correct

Currentness

(a) A person may petition the court for an order declaring that the person has been inadvertently subject to erroneous Sex Offender Registry requirements and directing the Department of Public Safety to correct the error. The petitioner shall provide notice of the petition to the State's Attorney or the Attorney General, who shall be the respondent in the matter.

(b) A petition filed under this section shall include:

(1) the court's order issued under subdivision 5403(b)(2) of this title to comply with Sex Offender Registry requirements, if available; and

(2) the factual basis for the petitioner's allegation that he or she was subject to an erroneous Sex Offender Registry requirement.

(c) The court shall grant a petition filed under this section if it finds that the petitioner has demonstrated by a preponderance of the evidence that he or she was by court order subject to an erroneous Sex Offender Registry requirement. As used in this subsection, "erroneous Sex Offender Registry requirement" includes the person's name being erroneously placed on the Sex Offender Registry or the Internet Sex Offender Registry, or the person being erroneously subject to lifetime registration under subsection 5407(f) of this title.

(d) If a petition filed under this section is granted, the court shall enter an order declaring that the person had been inadvertently subject to erroneous Sex Offender Registry requirements. The court shall provide the order to the Department of Public Safety and direct the Department to take any action necessary to correct the error, including, if appropriate, removing the person's name from the Sex Offender Registry and the Internet Sex Offender Registry.

(e)(1) If the court denies a petition filed under this section, no further petition shall be filed by the person with respect to the alleged error.

(2) This subsection shall not apply if the petition is based on:

(A) newly discovered evidence;

(B) an expungement order issued under chapter 230 of this title;

(C) a successful petition under chapter 182 of this title (innocence protection); or

(D) a successful petition for postconviction relief.

Credits

2015, No. 31, § 5, eff. July 1, 2015.

13 V.S.A. § 5416, VT ST T. 13 § 5416

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety

Chapter 9. Sex Offender and Crimes Against Minors Registry Act

VA Code Ann. T. 9.1, Ch. 9, Refs & Annos

Currentness

VA Code Ann. T. 9.1, Ch. 9, Refs & Annos, VA ST T. 9.1, Ch. 9, Refs & Annos

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-900

§ 9.1-900. Purpose of the Sex Offender and Crimes Against Minors Registry

Currentness

The purpose of the Sex Offender and Crimes Against Minors Registry (Registry) shall be to assist the efforts of law-enforcement agencies and others to protect their communities and families from repeat offenders and to protect children from becoming victims of criminal offenders by helping to prevent such individuals from being allowed to work directly with children.

Credits

Acts 2003, c. 584. Amended by Acts 2020, c. 829.

VA Code Ann. § 9.1-900, VA ST § 9.1-900

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-901

§ 9.1-901. Persons for whom registration required

Currentness

A. Every person convicted on or after July 1, 1994, including a juvenile tried and convicted in the circuit court pursuant to § 16.1-269.1, whether sentenced as an adult or juvenile, of an offense set forth in § 9.1-902 and every juvenile found delinquent of an offense for which registration is required under subsection C of § 9.1-902 shall register, reregister, and verify his registration information as required by this chapter. Every person serving a sentence of confinement on or after July 1, 1994, for a conviction of an offense set forth in § 9.1-902 shall register, reregister, and verify his registration information as required by this chapter. Every person under community supervision as defined by § 53.1-1 or any similar form of supervision under the laws of the United States or any political subdivision thereof, on or after July 1, 1994, resulting from a conviction of an offense set forth in § 9.1-902 shall register, reregister, and verify his registration information as required by this chapter.

B. Every person found not guilty by reason of insanity on or after July 1, 2007, of an offense set forth in § 9.1-902 shall register, reregister, and verify his registration information as required by this chapter. Every person in the custody of the Commissioner of Behavioral Health and Developmental Services, or on conditional release on or after July 1, 2007, because of a finding of not guilty by reason of insanity of an offense set forth in § 9.1-902 shall register, reregister, and verify his registration information as required by this chapter.

C. Unless a specific effective date is otherwise provided, all provisions of the Sex Offender and Crimes Against Minors Registry Act shall apply retroactively. This subsection is declaratory of existing law.

Credits

Acts 2003, c. 584; Acts 2005, c. 586; Acts 2007, c. 718; Acts 2007, c. 744; Acts 2009, c. 813; Acts 2009, c. 840. Amended by Acts 2020, c. 829.

VA Code Ann. § 9.1-901, VA ST § 9.1-901

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-902

§ 9.1-902. Offenses requiring registration

Currentness

A. For purposes of this chapter:

“Murder” means a violation of, attempted violation of, or conspiracy to violate § 18.2-31 or 18.2-32 where the victim is (i) under 15 years of age or (ii) where the victim is at least 15 years of age but under 18 years of age and the murder is related to an offense listed in this section or a violation of former § 18.1-21 where the victim is (a) under 15 years of age or (b) at least 15 years of age but under 18 years of age and the murder is related to an offense listed in this section.

“Offense for which registration is required” includes:

1. Any Tier I, Tier II, or Tier III offense;
2. Murder;
3. Any offense similar to a Tier I, Tier II, or Tier III offense under the laws of any foreign country or any political subdivision thereof or the United States or any political subdivision thereof; and
4. Any offense for which registration in a sex offender and crimes against minors registry is required under the laws of the jurisdiction where the offender was convicted.

“Tier I offense” means (i) any homicide in conjunction with a violation of, attempted violation of, or conspiracy to violate clause (i) of § 18.2-371 or § 18.2-371.1, when the offenses arise out of the same incident, or (ii) any violation of, attempted violation of, or conspiracy to violate:

1. § 18.2-63 unless registration is required pursuant to subdivision 1 of the definition of Tier III offense; former § 18.2-67.2:1; § 18.2-90 with the intent to commit rape; former § 18.1-88 with the intent to commit rape; any former felony violation of § 18.2-346; any felony violation of § 18.2-346.01; any violation of subdivision (4) of § 18.2-355; any violation of subsection C of § 18.2-357.1; subsection B of § 18.2-374.1:1; former subsection D of § 18.2-374.1:1 as it was in effect from July 1, 1994, through June 30, 2007; former clause (iv) of subsection B of § 18.2-374.3 as it was in effect on June 30, 2007; subsection B of § 18.2-374.3; or a third or subsequent conviction of § 18.2-67.4, § 18.2-67.4:2, subsection C of § 18.2-67.5, § 18.2-386.1, or, if the offense was committed on or after July 1, 2020, § 18.2-386.2.

If the offense was committed on or after July 1, 2006, § 18.2-91 with the intent to commit any felony offense listed in this section; subsection A of § 18.2-374.1:1; or a felony under § 18.2-67.5:1.

2. Where the victim is a minor or is physically helpless or mentally incapacitated as defined in § 18.2-67.10, subsection A of § 18.2-47, clause (i) of § 18.2-48, § 18.2-67.4, subsection C of § 18.2-67.5, § 18.2-361, § 18.2-366, or a felony violation of former § 18.1-191.

3. § 18.2-370.6.

4. If the offense was committed on or after July 1, 2016, and where the perpetrator is 18 years of age or older and the victim is under the age of 13, any violation of § 18.2-51.2.

5. If the offense was committed on or after July 1, 2016, any violation of § 18.2-356 punishable as a Class 3 felony or any violation of § 18.2-357 punishable as a Class 3 felony.

6. If the offense was committed on or after July 1, 2019, any felony violation of § 18.2-348 or 18.2-349.

“Tier II offense” means any violation of, attempted violation of, or conspiracy to violate § 18.2-64.1, subsection C of § 18.2-374.1:1, or subsection C, D, or E of § 18.2-374.3.

“Tier III offense” means a violation of, attempted violation of, or conspiracy to violate:

1. Clause (ii) and (iii) of § 18.2-48, former § 18.1-38 with the intent to defile or, for the purpose of concubinage or prostitution, a felony violation of subdivision (2) or (3) of former § 18.1-39 that involves assisting or aiding in such an abduction, § 18.2-61, former § 18.1-44 when such act is accomplished against the complaining witness's will, by force, or through the use of the complaining witness's mental incapacity or physical helplessness, or if the victim is under 13 years of age, subsection A of § 18.2-63 where the perpetrator is more than five years older than the victim, § 18.2-67.1, § 18.2-67.2, § 18.2-67.3, former § 18.1-215 when the complaining witness is under 13 years of age, § 18.2-67.4 where the perpetrator is 18 years of age or older and the victim is under the age of six, subsections A and B of § 18.2-67.5, § 18.2-370, subdivision (1), (2), or (4) of former § 18.1-213, former § 18.1-214, § 18.2-370.1, or § 18.2-374.1;

2. § 18.2-63, § 18.2-64.1, former § 18.2-67.2:1, § 18.2-90 with the intent to commit rape or, where the victim is a minor or is physically helpless or mentally incapacitated as defined in § 18.2-67.10, subsection A of § 18.2-47, § 18.2-67.4, subsection C of § 18.2-67.5, clause (i) of § 18.2-48, § 18.2-361, § 18.2-366, or subsection C of § 18.2-374.1:1. An offense listed under this subdivision shall be deemed a Tier III offense only if the person has been convicted or adjudicated delinquent of any two or more such offenses, provided that person had been at liberty between such convictions or adjudications;

3. If the offense was committed on or after July 1, 2006, § 18.2-91 with the intent to commit any felony offense listed in this section. An offense listed under this subdivision shall be deemed a Tier III offense only if the person has been convicted or adjudicated delinquent of any two or more such offenses, provided that the person had been at liberty between such convictions or adjudications; or

4. Chapter 117 (18 U.S.C. § 2421 et seq.) of Title 18 of the United States Code or sex trafficking (as described in § 1591 of Title 18, U.S.C.).

B. “Tier I offense” as defined in this section, “Tier II offense” as defined in this section, “Tier III offense” as defined in this section, and “murder” as defined in this section includes any similar offense under the laws of any foreign country or any political subdivision thereof or the United States or any political subdivision thereof.

C. 1. Any offense under the laws of any foreign country or any political subdivision thereof or the United States or any political subdivision thereof that is similar to (i) any Tier I, II, or III offense or (ii) murder as defined in this section shall require registration and reregistration in accordance with this chapter in a manner consistent with the registration and reregistration obligations imposed by the similar offense listed or defined in this section, unless such offense requires more stringent registration and reregistration obligations under the laws of the jurisdiction where the offender was convicted. In instances where more stringent registration and reregistration obligations are required under the laws of the jurisdiction where the offender was convicted, the offender shall register and reregister as required by this chapter in a manner most similar with the registration obligations imposed under the laws of the jurisdiction where the offender was convicted.

2. Any offense for which registration in a sex offender and crimes against minors registry is required under the laws of the jurisdiction where the offender was convicted shall require registration and reregistration in accordance with this chapter in the manner most similar with the registration and reregistration obligations imposed under the laws of the jurisdiction where the offender was convicted unless such offense is similar to (i) any Tier I, II, or III offense or (ii) murder as defined in this section and the registration and reregistration obligations imposed by the similar offense listed or defined in this section are more stringent than those registration and reregistration obligations imposed under the laws of the jurisdiction where the offender was convicted. In instances where the similar offense listed or defined in this section imposes more stringent registration and reregistration obligations, the offender shall register and reregister as required by this chapter in a manner consistent with the registration and reregistration obligations imposed by the similar offense listed or defined in this section.

D. Juveniles adjudicated delinquent shall not be required to register; however, where the offender is a juvenile over the age of 13 at the time of the offense who is tried as a juvenile and is adjudicated delinquent on or after July 1, 2005, of any offense for which registration is required, the court may, in its discretion and upon motion of the attorney for the Commonwealth, find that the circumstances of the offense require offender registration. In making its determination, the court shall consider all of the following factors that are relevant to the case: (i) the degree to which the delinquent act was committed with the use of force, threat, or intimidation, (ii) the age and maturity of the complaining witness, (iii) the age and maturity of the offender, (iv) the difference in the ages of the complaining witness and the offender, (v) the nature of the relationship between the complaining witness and the offender, (vi) the offender's prior criminal history, and (vii) any other aggravating or mitigating factors relevant to the case. The attorney for the Commonwealth may file such a motion at any time during which the offender is within the jurisdiction of the court for the offense that is the basis for such motion. Prior to any hearing on such motion, the court shall appoint a qualified and competent attorney-at-law to represent the offender unless an attorney has been retained and appears on behalf of the offender or counsel has already been appointed.

E. Prior to entering judgment of conviction of an offense for which registration is required if the victim of the offense was a minor, physically helpless, or mentally incapacitated, when the indictment, warrant, or information does not allege that the victim of the offense was a minor, physically helpless, or mentally incapacitated, the court shall determine by a preponderance of the evidence whether the victim of the offense was a minor, physically helpless, or mentally incapacitated, as defined in § 18.2-67.10, and shall also determine the age of the victim at the time of the offense if it determines the victim to be a minor. When such a determination is required, the court shall advise the defendant of its determination and of the defendant's right to make a motion to withdraw a plea of guilty or nolo contendere pursuant to § 19.2-296. If the court grants the defendant's motion to withdraw his plea of guilty or of nolo contendere, his case shall be heard by another judge, unless the parties agree otherwise. Failure to make such determination or so advise the defendant does not otherwise invalidate the underlying conviction.

Credits

Acts 2003, c. 584; Acts 2003, c. 732; Acts 2004, c. 414; Acts 2004, c. 444; Acts 2005, c. 586; Acts 2005, c. 603; Acts 2005, c. 631; Acts 2006, c. 857; Acts 2006, c. 875; Acts 2006, c. 914; Acts 2006, c. 931; Acts 2007, c. 463; Acts 2007, c. 718; Acts 2007, c. 759; Acts 2007, c. 823; Acts 2008, c. 592; Acts 2008, c. 747; Acts 2008, c. 772; Acts 2008, c. 877; Acts 2010, c. 858. Amended by Acts 2012, c. 243; Acts 2013, c. 750; Acts 2013, c. 781; Acts 2014, c. 546; Acts 2014, c. 649; Acts 2014, c. 706; Acts 2015, c. 690; Acts 2015, c. 691; Acts 2016, c. 586; Acts 2019, c. 617; Acts 2020, c. 389; Acts 2020, c. 826; Acts 2020, c. 829; Acts 2021, Sp. S. I, c. 188, eff. July 1, 2021.

VA Code Ann. § 9.1-902, VA ST § 9.1-902

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-903

§ 9.1-903. Registration and reregistration procedures

Currentness

A. Every person convicted, including juveniles tried and convicted in the circuit courts pursuant to § 16.1-269.1, whether sentenced as an adult or juvenile, of an offense for which registration is required and every juvenile found delinquent of an offense for which registration is required under subsection C of § 9.1-902 shall be required upon conviction to register, reregister, and verify his registration information with the Department of State Police. The court shall order the person to provide to the local law-enforcement agency of the county or city where he physically resides all information required by the State Police for inclusion in the Registry. The court shall immediately remand the person to the custody of the local law-enforcement agency for the purpose of obtaining the person's fingerprints and photographs of a type and kind specified by the State Police for inclusion in the Registry. Upon conviction, the local law-enforcement agency shall forthwith forward to the State Police all the necessary registration information.

B. Every person required to register shall register in person within three days of his release from confinement in a state, local or juvenile correctional facility, in a state civil commitment program for sexually violent predators or, if a sentence of confinement is not imposed, within three days of suspension of the sentence or in the case of a juvenile of disposition. A person required to register shall register, and as part of the registration shall submit to be photographed, submit to have a sample of his blood, saliva, or tissue taken for DNA (deoxyribonucleic acid) analysis and submission to the DNA data bank to determine identification characteristics specific to the person, provide electronic mail address information, any instant message, chat or other Internet communication name or identity information that the person uses or intends to use, submit to have his fingerprints and palm prints taken, provide information regarding his place of employment, and provide motor vehicle, watercraft and aircraft registration information for all motor vehicles, watercraft and aircraft owned by him. The local law-enforcement agency shall obtain from the person who presents himself for registration or reregistration one set of fingerprints, electronic mail address information, any instant message, chat or other Internet communication name or identity information that the person uses or intends to use, one set of palm prints, place of employment information, motor vehicle, watercraft and aircraft registration information for all motor vehicles, watercraft and aircraft owned by the registrant, proof of residency and a photograph of a type and kind specified by the State Police for inclusion in the Registry and advise the person of his duties regarding reregistration and verification of his registration information. The local law-enforcement agency shall obtain from the person who presents himself for registration a sample of his blood, saliva or tissue taken for DNA (deoxyribonucleic acid) analysis to determine identification characteristics specific to the person. If a sample from the person is stored in the DNA data bank, as indicated by the Department of Forensic Science DNA data bank sample tracking system, no additional sample shall be taken. The local law-enforcement agency shall forthwith forward to the State Police all necessary registration information.

C. To establish proof of residence in Virginia, a person who has a permanent physical address shall present one photo-identification form issued by a governmental agency of the Commonwealth which contains the person's complete name, gender, date of birth and complete physical address. The local law-enforcement agency shall forthwith forward to the State Police a copy of the identification presented by the person required to register.

D. Any person required to register shall also reregister in person with the local law-enforcement agency following any change of name or any change of residence, whether within or without the Commonwealth. The person shall register in person with the local law-enforcement agency within three days following his change of name. If his new residence is within the Commonwealth, the person shall register in person with the local law-enforcement agency where his new residence is located within three days following his change in residence. If the new residence is located outside of the Commonwealth, the person shall register in person with the local law-enforcement agency where he previously registered within 10 days prior to his change of residence. If a probation or parole officer becomes aware of a change of name or residence for any of his probationers or parolees required to register, the probation or parole officer shall notify the State Police forthwith of learning of the change. Whenever a person subject to registration changes residence to another state, the State Police shall notify the designated law-enforcement agency of that state.

E. Any person required to register shall reregister in person with the local law-enforcement agency where his residence is located within three days following any change of the place of employment, whether within or without the Commonwealth. If a probation or parole officer becomes aware of a change of the place of employment for any of his probationers or parolees required to register, the probation or parole officer shall notify the State Police forthwith upon learning of the change of the person's place of employment. Whenever a person subject to registration changes his place of employment to another state, the State Police shall notify the designated law-enforcement agency of that state.

F. Any person required to register shall reregister in person with the local law-enforcement agency where his residence is located within three days following any change of owned motor vehicle, watercraft and aircraft registration information, whether within or without the Commonwealth. If a probation or parole officer becomes aware of a change of owned motor vehicle, watercraft and aircraft registration information for any of his probationers or parolees required to register, the probation or parole officer shall notify the State Police forthwith upon learning of the change of the person's owned motor vehicle, watercraft and aircraft registration information. Whenever a person required to register changes his owned motor vehicle, watercraft and aircraft registration information to another state, the State Police shall notify the designated law-enforcement agency of that state.

G. Any person required to register shall reregister either in person or electronically with the local law-enforcement agency where his residence is located within 30 minutes following any change of the electronic mail address information, any instant message, chat or other Internet communication name or identity information that the person uses or intends to use, whether within or without the Commonwealth. If a probation or parole officer becomes aware of a change of the electronic mail address information, any instant message, chat or other Internet communication name or identity information for any of his probationers or parolees required to register, the probation or parole officer shall notify the State Police forthwith upon learning of the change.

H. Every person required to register shall submit to be photographed by a local law-enforcement agency every two years, during such person's required verification month and time interval pursuant to subsection B of § 9.1-904, commencing with the date of initial verification. The local law-enforcement agency shall forthwith forward the photograph of a type and kind specified by the State Police to the State Police. Where practical, the local law-enforcement agency may electronically transfer a digital photograph containing the required information to the Registry.

I. Upon registration and every two years thereafter during such person's required verification month and time interval pursuant to subsection B of § 9.1-904, every person required to register shall be required to execute a consent form consistent with applicable law that authorizes a business or organization that offers electronic communications or remote computer services to provide to the Department of State Police any information pertaining to that person necessary to determine the veracity of his electronic identity information in the Registry.

J. The registration shall be maintained in the Registry and shall include the person's name, any former name if he has lawfully changed his name during the period for which he is required to register, all aliases that he has used or under which he may have been known, the date and locality of the conviction for which registration is required, his fingerprints and a photograph of a type and kind specified by the State Police, his date of birth, social security number, current physical and mailing address and a description of the offense or offenses for which he was convicted. The registration shall also include the locality of the conviction and a description of the offense or offenses for previous convictions for the offenses set forth in § 9.1-902.

K. The local law-enforcement agency shall forthwith forward to the State Police all necessary registration or reregistration information received by it. Upon receipt of registration or reregistration information the State Police shall forthwith notify the chief law-enforcement officer of the locality listed as the person's address on the registration and reregistration.

L. If a person required to register does not have a legal residence, such person shall designate a location that can be located with reasonable specificity where he resides or habitually locates himself. For the purposes of this section, "residence" shall include such a designated location. If the person wishes to change such designated location, he shall do it pursuant to the terms of this section.

Credits

Acts 2003, c. 584; Acts 2004, c. 834; Acts 2005, c. 586; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 718; Acts 2007, c. 759; Acts 2007, c. 823; Acts 2008, c. 220; Acts 2010, c. 843. Amended by Acts 2014, c. 677; Acts 2020, c. 829; Acts 2022, c. 41; Acts 2022, c. 42.

VA Code Ann. § 9.1-903, VA ST § 9.1-903

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-904

§ 9.1-904. Periodic verification

Currentness

A. For purposes of this chapter, “verify his registration information” means that the person required to register has notified the State Police; confirmed his current physical and mailing address and electronic mail address information and any instant message, chat, or other Internet communication name or identity information that he uses or intends to use; and provided such other information, including identifying information, that the State Police may require.

B. Any person required to register shall verify his registration information with the State Police, during such person's required verification month and time interval, commencing with the date of initial registration, as follows:

1. a. Any person convicted of a Tier I or Tier II offense, yearly intervals to include the person's birth month; and
- b. Any person convicted of a violation of § 18.2-472.1, in which such person was included on the Registry for a Tier I or Tier II offense, twice a year.
2. a. Any person convicted of a Tier III offense or murder, four times each year at three-month intervals, including the person's birth month; and
- b. Any person convicted of a violation of § 18.2-472.1, in which such person was included on the Registry for a conviction of a Tier III offense or murder, every month.

C. The State Police shall make available to the person an address verification form to be used for verification of his registration information. The form shall contain in bold print a statement indicating that failure to comply with the verification required is punishable as provided in § 18.2-472.1. Copies of all forms to be used for verification and guidelines for submitting such forms, including month and time verification intervals, shall be available through distribution by the State Police, from local law-enforcement agencies, and in a format capable of being downloaded and printed from a website maintained by the State Police. In addition, State Police may provide any person required to verify his registration information with the option to do so using other electronic means specified in State Police regulations promulgated pursuant to § 9.1-915.

D. Persons required to register with last names beginning with A through L shall verify their registration information with the State Police from the first to the fifteenth of such person's verification months pursuant to subsection B, and persons required to register with last names beginning with M through Z shall verify their registration information with the State Police from the sixteenth to the last day of the month during such person's verification months pursuant to subsection B. The last name shall be the last name in the person's name pursuant to § 9.1-903 as it appears in the Registry.

E. For the period of July 1, 2020, to July 1, 2021, any person required to verify his registration information shall continue to verify his resignation information with the State Police on such person's verification schedule in place prior to July 1, 2020, until such person has verified his registration information pursuant to the new verification schedule provided in subsection B, at which time such person shall continue to verify his registration information pursuant to the new verification schedule.

Credits

Acts 2003, c. 584; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 759; Acts 2007, c. 823. Amended by Acts 2019, c. 613, eff. July 1, 2020; Acts 2019, c. 614, eff. July 1, 2020; Acts 2020, c. 829; Acts 2025, c. 433.

VA Code Ann. § 9.1-904, VA ST § 9.1-904

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-905

§ 9.1-905. New residents and nonresident offenders; registration required

Currentness

A. All persons required to register shall register within three days of establishing a residence in the Commonwealth.

B. Nonresident offenders entering the Commonwealth for an extended visit, for employment, to carry on a vocation, or as a student attending school who are required to register in their state of residence or who would be required to register if a resident of the Commonwealth shall, within three days of entering the Commonwealth for an extended visit, accepting employment or enrolling in school in the Commonwealth, be required to register and reregister in person with the local law-enforcement agency.

C. To document employment or school attendance in Virginia a person shall present proof of enrollment as a student or suitable proof of temporary employment in the Commonwealth and one photo-identification form issued by a governmental agency of the person's state of residence which contains the person's complete name, gender, date of birth and complete address.

D. For purposes of this section:

“Employment” and “carry on a vocation” include employment that is full-time or part-time for a period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit.

“Extended visit” means a period of visitation for any purpose in the Commonwealth of 30 days or more.

“Student” means a person who is enrolled on a full-time or part-time basis, in any public or private educational institution, including any secondary school, trade or professional institution, or institution of higher education.

Credits

Acts 2003, c. 584; Acts 2005, c. 603; Acts 2006, c. 857; Acts 2006, c. 914.

VA Code Ann. § 9.1-905, VA ST § 9.1-905

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-906

§ 9.1-906. Enrollment or employment at institution of higher education; information required

Currentness

A. Persons required to register, reregister, or verify their registration information who are enrolled in or employed at institutions of higher education shall, in addition to other registration requirements, indicate on their registration, reregistration, and verification form the name and location of the institution attended by or employing the registrant whether such institution is within or without the Commonwealth. In addition, persons required to register, reregister, or verify their registration information shall notify the local law-enforcement agency in person within three days of any change in their enrollment or employment status with an institution of higher education. The local law-enforcement agency shall forthwith forward to the State Police all necessary registration or reregistration information received by it.

B. Upon receipt of a registration, reregistration, or verification of registration information indicating enrollment or employment with an institution of higher education or notification of a change in status, the State Police shall notify the chief law-enforcement officer of the institution's law-enforcement agency or, if there is no institutional law-enforcement agency, the local law-enforcement agency serving that institution, of the registration, reregistration, verification of registration information, or change in status. The law-enforcement agency receiving notification under this section shall make such information available upon request.

C. For purposes of this section:

“Employment” includes full- or part-time, temporary or permanent or contractual employment at an institution of higher education either with or without compensation.

“Enrollment” includes both full- and part-time.

“Institution of higher education” means any postsecondary school, trade or professional institution, or institution of higher education.

Credits

Acts 2003, c. 584; Acts 2006, c. 857; Acts 2006, c. 914. Amended by Acts 2020, c. 829.

VA Code Ann. § 9.1-906, VA ST § 9.1-906

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-906.1

§ 9.1-906.1. Emergency shelters; notification; registration

Currentness

Any person required to register or reregister who enters any place or facility that is designated by the Commonwealth or any political subdivision thereof as an emergency shelter and operated in response to a state or local emergency declared pursuant to Chapter 3.2 (§ 44-146.13 et seq.) of Title 44 shall, as soon as practicable after entry, notify a member of the emergency shelter's staff who is responsible for providing security at the emergency shelter that such person is a registered sex offender. The use of such Registry information pursuant to this section does not constitute a violation of § 9.1-918. No person shall be denied entry into an emergency shelter solely on the basis of his status as a registered sex offender unless such entry is otherwise prohibited by law.

Credits

Added by Acts 2022, c. 316.

VA Code Ann. § 9.1-906.1, VA ST § 9.1-906.1

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-907

§ 9.1-907. Procedures upon a failure to register, reregister, or verify registration information

Currentness

A. Whenever it appears from the records of the State Police that a person has failed to comply with the duty to register, reregister, or verify his registration information, the State Police shall promptly investigate and, if there is probable cause to believe a violation has occurred, obtain a warrant or assist in obtaining an indictment charging a violation of § 18.2-472.1 in the jurisdiction in which the person last registered, reregistered, or verified his registration information or, if the person failed to comply with the duty to register, in the jurisdiction in which the person was last convicted of an offense for which registration or reregistration is required or if the person was convicted of an offense requiring registration outside the Commonwealth, in the jurisdiction in which the person resides. The State Police shall forward to the jurisdiction an affidavit signed by a custodian of the records that such person failed to comply with the duty to register, reregister, or verify his registration information. If such affidavit is admitted into evidence, it shall constitute prima facie evidence of the failure to comply with the duty to register, reregister, or verify his registration information in any trial or hearing for the violation of § 18.2-472.1, provided that in a trial or hearing other than a preliminary hearing, the requirements of subsection G of § 18.2-472.1 have been satisfied and the accused has not objected to the admission of the affidavit pursuant to subsection H of § 18.2-472.1. The State Police shall also promptly notify the local law-enforcement agency of the jurisdiction of the person's last known residence as shown in the records of the State Police.

B. Nothing in this section shall prohibit a law-enforcement officer employed by a sheriff's office or police department of a locality from enforcing the provisions of this chapter, including obtaining a warrant, or assisting in obtaining an indictment for a violation of § 18.2-472.1. The local law-enforcement agency shall notify the State Police forthwith of such actions taken pursuant to this chapter or under the authority granted pursuant to this section.

C. The State Police shall physically verify or cause to be physically verified the registration information within 30 days of the initial registration and semiannually each year thereafter and within 30 days of a change of address of those persons who are not under the control of the Department of Corrections or community supervision as defined by § 53.1-1, who are required to register pursuant to this chapter. Whenever it appears that a person has provided false registration information, the State Police shall promptly investigate and, if there is probable cause to believe that a violation has occurred, obtain a warrant or assist in obtaining an indictment charging a violation of § 18.2-472.1 in the jurisdiction in which the person last registered, reregistered, or verified his registration information. The State Police shall forward to the jurisdiction an affidavit signed by a custodian of the records that such person failed to comply with the provisions of this chapter. If such affidavit is admitted into evidence, it shall constitute prima facie evidence of the failure to comply with the provisions of this chapter in any trial or hearing for the violation of § 18.2-472.1, provided that in a trial or hearing other than a preliminary hearing, the requirements of subsection G of § 18.2-472.1 have been satisfied and the accused has not objected to the admission of the affidavit pursuant to subsection H of § 18.2-472.1. The State Police shall also promptly notify the local law-enforcement agency of the jurisdiction of the person's last known residence as shown in the records of the State Police.

D. The Department of Corrections or community supervision as defined by § 53.1-1 shall physically verify or cause to be physically verified by the State Police the registration information within 30 days of the original registration and semiannually

each year thereafter and within 30 days of a change of address of all persons who are under the control of the Department of Corrections or community supervision, and those who are under supervision pursuant to § 37.2-919, who are required to register pursuant to this chapter. The Department of Corrections or community supervision, upon request, shall provide the State Police the verification information, in an electronic format approved by the State Police, regarding persons under their control who are required to register pursuant to the chapter. Whenever it appears that a person has provided false registration information, the Department of Corrections or community supervision shall promptly notify the State Police, who shall investigate and, if there is probable cause to believe that a violation has occurred, obtain a warrant or assist in obtaining an indictment charging a violation of § 18.2-472.1 in the jurisdiction in which the person last registered, reregistered, or verified his registration information. The State Police shall forward to the jurisdiction an affidavit signed by a custodian of the records that such person failed to comply with the provisions of this chapter. If such affidavit is admitted into evidence, it shall constitute prima facie evidence of the failure to comply with the provisions of this chapter in any trial or hearing for the violation of § 18.2-472.1, provided that in a trial or hearing other than a preliminary hearing, the requirements of subsection G of § 18.2-472.1 have been satisfied and the accused has not objected to the admission of the affidavit pursuant to subsection H of § 18.2-472.1. The State Police shall also promptly notify the local law-enforcement agency of the jurisdiction of the person's last known residence as shown in the records of the State Police.

Credits

Acts 2003, c. 584; Acts 2005, c. 603; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 718; Acts 2009, Sp. S. I, c. 1, eff. Aug. 21, 2009; Acts 2009, Sp. S. I, c. 4, eff. Sept. 15, 2009; Acts 2010, c. 858. Amended by Acts 2015, c. 81; Acts 2015, c. 598; Acts 2020, c. 829.

VA Code Ann. § 9.1-907, VA ST § 9.1-907

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-908

§ 9.1-908. Duration of registration requirement

Currentness

Any person required to register, reregister, or verify his registration information shall be required to register until the duty to register, reregister, or verify his registration information is terminated by a court order as set forth in § 9.1-910, except that any person who has been convicted of (i) any Tier III offense, (ii) murder or (iii) former § 18.2-67.2:1 shall have a continuing duty to reregister or verify his registration information for life.

Any period of confinement in a federal, state, or local correctional facility, hospital, or any other institution or facility during the otherwise applicable period shall toll the registration or verification period and the duty to reregister or verify his registration information shall be extended. Persons confined in a federal, state, or local correctional facility shall not be required to reregister or verify his registration information until released from custody. Persons civilly committed pursuant to Chapter 9 (§ 37.2-900 et seq.) of Title 37.2 shall not be required to reregister or verify his registration information until released from custody. Persons confined in a federal, state, or local correctional facility or civilly committed pursuant to Chapter 9 (§ 37.2-900 et seq.) of Title 37.2 shall notify the Registry within three days following any change of name.

Credits

Acts 2003, c. 584; Acts 2005, c. 631; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 718; Acts 2008, c. 877; Acts 2010, c. 858. Amended by Acts 2014, c. 677; Acts 2020, c. 829.

VA Code Ann. § 9.1-908, VA ST § 9.1-908

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-909

§ 9.1-909. Relief from registration, reregistration, or verification

Currentness

A. Upon expiration of three years from the date upon which the duty to register as a Tier III offender or murderer is imposed, the person required to register may petition the court in which he was convicted or, if the conviction occurred outside of the Commonwealth, the circuit court in the jurisdiction where he currently resides, for relief from the requirement to verify his registration information four times each year at three-month intervals. After five years from the date of his last conviction for a violation of § 18.2-472.1, a Tier III offender or murderer may petition for relief from the requirement to verify his registration information every month. A person who is required to register may similarly petition the circuit court for relief from the requirement to verify his registration twice each year after five years from the date of his last conviction for a violation of § 18.2-472.1. The court shall hold a hearing on the petition, on notice to the attorney for the Commonwealth, to determine whether the person suffers from a mental abnormality or a personality disorder that makes the person a menace to the health and safety of others or significantly impairs his ability to control his sexual behavior. Prior to the hearing the court shall order a comprehensive assessment of the applicant by a panel of three certified sex offender treatment providers as defined in § 54.1-3600. A report of the assessment shall be filed with the court prior to the hearing. The costs of the assessment shall be taxed as costs of the proceeding.

If, after consideration of the report and such other evidence as may be presented at the hearing, the court finds by clear and convincing evidence that the person does not suffer from a mental abnormality or a personality disorder that makes the person a menace to the health and safety of others or significantly impairs his ability to control his sexual behavior, the petition shall be granted and the duty to verify his registration information more frequently than once a year shall be terminated. The court shall promptly notify the State Police upon entry of an order granting the petition. The person shall, however, be under a continuing duty to register annually for life. If the petition is denied, the duty to verify his registration information with the same frequency as before shall continue. A denial of a petition shall be appealable pursuant to § 17.1-405.

A petition for relief pursuant to this subsection may not be filed within three years from the date on which any previous petition for such relief was denied.

B. The duly appointed guardian of a person convicted of an offense requiring registration, reregistration, or verification of his registration information as either a Tier I, Tier II, or Tier III offender or murderer, who due to a physical condition is incapable of (i) reoffending and (ii) reregistering or verifying his registration information, may petition the court in which the person was convicted for relief from the requirement to reregister or verify his registration information. The court shall hold a hearing on the petition, on notice to the attorney for the Commonwealth, to determine whether the person suffers from a physical condition that makes the person (i) no longer a menace to the health and safety of others and (ii) incapable of reregistering or verifying his registration information. Prior to the hearing the court shall order a comprehensive assessment of the applicant by at least two licensed physicians other than the person's primary care physician. A report of the assessment shall be filed with the court prior to the hearing. The costs of the assessment shall be taxed as costs of the proceeding.

If, after consideration of the report and such other evidence as may be presented at the hearing, the court finds by clear and convincing evidence that due to his physical condition the person (i) no longer poses a menace to the health and safety of

others and (ii) is incapable of reregistering or verifying his registration information, the petition shall be granted and the duty to reregister or verify his registration information shall be terminated. However, for a person whose duty to reregister or verify his registration information was terminated under this subsection, the Department of State Police shall, annually for Tier I or Tier II offenders and quarterly for persons convicted of Tier III offenses and murder, verify and report to the attorney for the Commonwealth in the jurisdiction in which the person resides that the person continues to suffer from the physical condition that resulted in such termination.

The court shall promptly notify the State Police upon entry of an order granting the petition to terminate the duty to reregister.

If the petition is denied, the duty to reregister shall continue. An appeal from the denial of a petition shall be to the Court of Appeals.

A petition for relief pursuant to this subsection may not be filed within three years from the date on which any previous petition for such relief was denied.

If, at any time, the person's physical condition changes so that he is capable of reoffending, reregistering, or verifying his registration information, the attorney for the Commonwealth shall file a petition with the circuit court in the jurisdiction where the person resides and the court shall hold a hearing on the petition, with notice to the person and his guardian, to determine whether the person still suffers from a physical condition that makes the person (i) no longer a menace to the health and safety of others and (ii) incapable of reregistering or verifying his registration information. If the petition is granted, the duty to reregister shall commence from the date of the court's order. An appeal from the denial or granting of a petition shall be to the Court of Appeals. Prior to the hearing the court shall order a comprehensive assessment of the applicant by at least two licensed physicians other than the person's primary care physician. A report of the assessment shall be filed with the court prior to the hearing. The costs of the assessment shall be taxed as costs of the proceeding.

Credits

Acts 2003, c. 584; Acts 2006, c. 857; Acts 2006, c. 914. Amended by Acts 2020, c. 829; Acts 2021, Sp. S. I, c. 489, eff. Jan. 1, 2022.

VA Code Ann. § 9.1-909, VA ST § 9.1-909

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-910

§ 9.1-910. Removal of name and information from Registry

Currentness

A. Any person required to register, other than a person who has been convicted of any (i) Tier III offense, (ii) two or more offenses for which registration is required, (iii) a violation of former § 18.2-67.2:1, or (iv) murder, may petition the circuit court in which he was convicted or the circuit court in the jurisdiction where he then resides for removal of his name and all identifying information from the Registry. A person who is required to register for a single Tier I offense may petition the court no earlier than 15 years from the later of the date of initial registration or the date of his last conviction for (a) a violation of § 18.2-472.1 or (b) any felony. A person who is required to register for a single Tier II offense may petition the court no earlier than 25 years from the later of the date of initial registration or the date of his last conviction for (1) a violation of § 18.2-472.1 or (2) any felony.

B. A petition may not be filed until all court ordered treatment, counseling, and restitution has been completed. The court shall obtain a copy of the petitioner's complete criminal history and registration, reregistration, and verification of registration information history from the Registry and then hold a hearing on the petition at which the applicant and any interested persons may present witnesses and other evidence. The Commonwealth shall be made a party to any action under this section. If, after such hearing, the court is satisfied that such person no longer poses a risk to public safety, the court shall grant the petition. In the event the petition is not granted, the person shall wait at least 24 months from the date of the denial to file a new petition for removal from the Registry.

C. The State Police shall remove from the Registry the name of any person and all identifying information upon receipt of an order granting a petition pursuant to subsection B.

Credits

Acts 2003, c. 584; Acts 2005, c. 631; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 718; Acts 2008, c. 877. Amended by Acts 2018, c. 68; Acts 2020, c. 829.

VA Code Ann. § 9.1-910, VA ST § 9.1-910

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Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-911

§ 9.1-911. Registry maintenance

Currentness

The Registry shall include conviction data received from the courts, including the disposition records for juveniles tried and convicted in the circuit courts pursuant to § 16.1-269.1, on convictions for offenses for which registration is required and registrations, reregistrations, and verifications of registration information received from persons required to do so. The Registry shall also include a separate indication that a person has been convicted of a Tier III offense. The State Police shall forthwith transmit the appropriate information as required by the Federal Bureau of Investigation for inclusion in the National Sex Offender Registry.

Credits

Acts 2003, c. 584. Amended by Acts 2020, c. 829.

VA Code Ann. § 9.1-911, VA ST § 9.1-911

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-912

§ 9.1-912. Registry access and dissemination; fees

Currentness

A. Except as provided in § 9.1-913 and subsection B or C of this section, Registry information shall be disseminated upon request made directly to the State Police or to the State Police through a local law-enforcement agency. Such information may be disclosed to any person requesting information on a specific individual in accordance with subsection B. The State Police shall make Registry information available, upon request, to criminal justice agencies including local law-enforcement agencies through the Virginia Criminal Information Network (VCIN). Registry information provided under this section shall be used for the purposes of the administration of criminal justice, for the screening of current or prospective employees or volunteers or otherwise for the protection of the public in general and children in particular. The Superintendent of State Police may by regulation establish a fee not to exceed \$15 for responding to requests for information from the Registry. Any fees collected shall be deposited in a special account to be used to offset the costs of administering the Registry.

B. Information regarding a specific person shall be disseminated upon receipt of an official request form that may be submitted directly to the State Police or to the State Police through a local law-enforcement agency. The official request form shall include a statement of the reason for the request; the name and address of the person requesting the information; the name, address and, if known, the social security number of the person about whom information is sought; and such other information as the State Police may require to ensure reliable identification.

C. Registry information regarding all registered offender's electronic mail address information, any instant message, chat or other Internet communication name or identity information may be electronically transmitted by the Department of State Police to a business or organization that offers electronic communication or remote computing services for the purpose of prescreening users or for comparison with information held by the requesting business or organization. In order to obtain the information from the Department of State Police, the requesting business or organization that offers electronic communication or remote computing services shall agree to notify the Department of State Police forthwith when a comparison indicates that any such registered offender's electronic mail address information, any instant message, chat or other Internet communication name or identity information is being used on their system. The requesting business or organization shall also agree that the information will not be further disseminated.

Credits

Acts 2003, c. 584; Acts 2007, c. 759; Acts 2007, c. 823. Amended by Acts 2020, c. 829.

VA Code Ann. § 9.1-912, VA ST § 9.1-912

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-913

§ 9.1-913. Public dissemination by means of the Internet

Currentness

The State Police shall develop and maintain a system for making certain Registry information on persons convicted of an offense for which registration is required publicly available by means of the Internet. The information to be made available shall include the offender's name; all aliases that he has used or under which he may have been known; the date and locality of the conviction and a brief description of the offense; his age, current address, and photograph; his current work address; the name of any institution of higher education at which he is currently enrolled; and such other information as the State Police may from time to time determine is necessary to preserve public safety, including but not limited to the fact that an individual is wanted for failing to register, reregister, or verify his registration information. The system shall be secure and not capable of being altered except by the State Police. The system shall be updated each business day with newly received registrations, reregistrations and verifications of registration information. The State Police shall remove all information that it knows to be inaccurate from the Internet system.

Credits

Acts 2003, c. 584; Acts 2005, c. 603; Acts 2006, c. 857; Acts 2006, c. 914. Amended by Acts 2016, c. 335; Acts 2020, c. 829.

VA Code Ann. § 9.1-913, VA ST § 9.1-913

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-914

§ 9.1-914. Automatic notification of registration to certain entities; electronic notification to requesting persons

Currentness

Any school or day-care service and child-minding service; state-regulated or state-licensed child day center, child day program, or family day home as those terms are defined in § 22.1-289.02; assisted living facility, children's residential facility, or foster home as those terms are defined in § 63.2-100; nursing home or certified nursing facility as those terms are defined in § 32.1-123; association of a common interest community as defined in § 54.1-2345; and institution of higher education may request from the State Police and, upon compliance with the requirements therefor established by the State Police, shall be eligible to receive from the State Police electronic notice of the registration, reregistration, or verification of registration information of any offender and if such entities do not have the capability of receiving such electronic notice, the entity may register with the State Police to receive written notification of offender registration, reregistration, or verification of registration information. Within three business days of receipt by the State Police of registration, reregistration, or verification of registration information, the State Police shall electronically or in writing notify an entity listed above that has requested such notification, has complied with the requirements established by the State Police and is located in the same or a contiguous zip code area as the address of the offender as shown on the registration.

The Virginia Council for Private Education shall annually provide the State Police, in an electronic format approved by the State Police, with the location of every private school in the Commonwealth that is accredited through one of the approved accrediting agencies of the Council, and an electronic mail address for each school if available, for purposes of receiving notice under this section.

Any person may request from the State Police and, upon compliance with the requirements therefor established by the State Police, shall be eligible to receive from the State Police electronic notice of the registration, reregistration, or verification of registration information of any offender. Within three business days of receipt by the State Police of registration, reregistration, or verification of registration information, the State Police shall electronically notify a person who has requested such notification, has complied with the requirements established by the State Police and is located in the same or a contiguous zip code area as the address of the offender as shown on the registration.

The State Police shall establish reasonable guidelines governing the automatic dissemination of Registry information, which may include the payment of a fee, whether a one-time fee or a regular assessment, to maintain the electronic access. The fee, if any, shall defray the costs of establishing and maintaining the electronic notification system and notice by mail.

For the purposes of this section:

“Child-minding service” means provision of temporary custodial care or supervisory services for the minor child of another;

“Day-care service” means provision of supplementary care and protection during a part of the day for the minor child of another; and

“School” means any public, religious or private educational institution, including any preschool, elementary school, secondary school, post-secondary school, trade or professional institution, or institution of higher education.

Credits

Acts 2003, c. 584; Acts 2005, c. 928; Acts 2006, c. 857; Acts 2006, c. 914; Acts 2007, c. 119; Acts 2007, c. 164. Amended by Acts 2016, c. 424; Acts 2020, c. 829; Acts 2020, c. 860, eff. July 1, 2021; Acts 2020, c. 861, eff. July 1, 2021.

VA Code Ann. § 9.1-914, VA ST § 9.1-914

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-915

§ 9.1-915. Regulations

Currentness

The Superintendent of State Police shall promulgate regulations and develop forms to implement and enforce this chapter; including the operation and maintenance of the Registry and the removal of records on persons who are deceased, whose convictions have been reversed or who have been pardoned, and those for whom an order of removal or relief from frequent registration has been entered. Such regulations and forms shall not be subject to the provisions of Article 2 (§ 2.2-4006 et seq.) of the Administrative Process Act.

Credits

Acts 2003, c. 584.

VA Code Ann. § 9.1-915, VA ST § 9.1-915

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-916

§ 9.1-916. Requests for Registry data by Virginia Criminal Sentencing Commission; confidentiality

Currentness

Upon request of the Virginia Criminal Sentencing Commission, the Department of State Police shall provide the Commission with Registry data in an electronic format. The Commission may use the data for research, evaluative or statistical purposes only and shall ensure the confidentiality and security of the data.

Credits

Acts 2003, c. 391.

VA Code Ann. § 9.1-916, VA ST § 9.1-916

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-917

§ 9.1-917. Limitation on liability

Currentness

No liability shall be imposed upon any law-enforcement official who disseminates information or fails to disseminate information in good faith compliance with the requirements of this chapter, but this provision shall not be construed to grant immunity for gross negligence or willful misconduct.

Credits

Acts 2003, c. 584.

VA Code Ann. § 9.1-917, VA ST § 9.1-917

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-918

§ 9.1-918. Misuse of registry or supplement information; penalty

Currentness

Use of registry information or information from the Supplement to the Registry established pursuant to § 9.1-923 for purposes not authorized by this chapter is prohibited, the unlawful use of the information contained in or derived from the Registry or Supplement for purposes of intimidating or harassing another is prohibited, and a willful violation of this chapter is a Class 1 misdemeanor. For purposes of this section, absent other aggravating circumstances, the mere republication or reasonable distribution of material contained on or derived from the publicly available Internet offender database shall not be deemed intimidation or harassment.

Credits

Acts 2003, c. 584; Acts 2006, c. 857; Acts 2006, c. 914. Amended by Acts 2015, c. 594; Acts 2015, c. 603; Acts 2020, c. 829.

VA Code Ann. § 9.1-918, VA ST § 9.1-918

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-919

§ 9.1-919. Notice of penalty on forms and documents

Currentness

The Virginia Criminal Information Network and any form or document used by the Department of State Police to disseminate information from the Registry shall provide notice that any unauthorized use of the information with the intent to harass or intimidate another is a crime punishable as a Class 1 misdemeanor.

Credits

Acts 2003, c. 391.

VA Code Ann. § 9.1-919, VA ST § 9.1-919

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-920

§ 9.1-920. Liberal construction

Currentness

This chapter, being necessary for the welfare of the Commonwealth and its inhabitants, shall be liberally construed to effect the purposes hereof.

Credits

Acts 2003, c. 584. Amended by Acts 2015, c. 709.

VA Code Ann. § 9.1-920, VA ST § 9.1-920

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-921

§ 9.1-921. Exemption of information systems from provisions related to the Virginia Information Technologies Agency

Currentness

The provisions of Chapter 20.1 (§ 2.2-2005 et seq.) of Title 2.2 shall not apply to the Sex Offender and Crimes Against Minors Registry pursuant to Chapter 9 (§ 9.1-900 et seq.) of Title 9.1, operated by the Department of State Police or to information technology as defined in § 2.2-2006 operated by the Department of Juvenile Justice, Department of Corrections or the Virginia Compensation Board that interact, furnish, update, contain or exchange information with the Sex Offender and Crimes Against Minors Registry.

Credits

Acts 2006, c. 857; Acts 2006, c. 914.

VA Code Ann. § 9.1-921, VA ST § 9.1-921

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-922

§ 9.1-922. Use of Registry data by Statewide Automated Victim Notification (SAVIN) system; confidentiality

Currentness

Upon request of the Compensation Board, the Department of State Police shall provide the Statewide Automated Victim Notification (SAVIN) system with Registry data in an electronic format. The Board or its contractor may use the data for verification of registrant status and notification of victims and law enforcement regarding changes in status of persons on the Registry and shall ensure the confidentiality and security of the data.

Credits

Acts 2008, c. 76, eff. March 2, 2008; Acts 2008, c. 338, eff. March 4, 2008.

VA Code Ann. § 9.1-922, VA ST § 9.1-922

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Annotated Code of Virginia

Title 9.1. Commonwealth Public Safety (Refs & Annos)

Chapter 9. Sex Offender and Crimes Against Minors Registry Act (Refs & Annos)

VA Code Ann. § 9.1-923

§ 9.1-923. Supplement to the Sex Offender and Crimes Against Minors Registry established

Currentness

A. The Superintendent of State Police shall establish a Supplement to the Registry of information composed of persons who were convicted of an offense listed in subsection B on or after July 1, 1980, and before July 1, 1994, but whose names are not on the Registry. Access to the Supplement to the Registry shall be made available to the public on the website of the Department of State Police and shall contain the following information for each person: name, year of birth, the date of the conviction, the jurisdiction in which the conviction occurred, the person's age on the date of the conviction, the offense of which he was convicted, and the Code of Virginia section of the conviction.

B. Information on the following offenses where the conviction occurred on or after July 1, 1980, and before July 1, 1994, shall be listed in the Supplement: clause (i) of § 18.2-48 if the victim was a minor; clauses (ii) and (iii) of § 18.2-48; § 18.2-61; § 18.2-63 if the victim was under 13 years of age; subsection A of § 18.2-63 if the offender was more than five years older than the victim; §§ 18.2-67.1, 18.2-67.2, and 18.2-67.3; § 18.2-67.4 if the victim was a minor; subsections A and B of § 18.2-67.5; subsection C of § 18.2-67.5 if the victim was a minor; § 18.2-361 if the victim was a minor; and §§ 18.2-370, 18.2-370.1, and 18.2-374.1.

C. Persons whose names and conviction information appear on the Supplement are not subject to the registration requirements of this chapter and are not considered persons for whom registration is required unless they are required to register pursuant to other provisions of this chapter.

D. A person whose name and conviction information appear on the Supplement may, regardless of the date of conviction, petition the circuit court in which he was convicted or the circuit court where he then resides for removal of his name and conviction information from the Supplement if the offense he was convicted of would qualify for removal from the Registry under § 9.1-910. A petition may not be filed until all court ordered treatment, counseling, and restitution has been completed. The court shall obtain a copy of the petitioner's complete criminal history and then hold a hearing on the petition at which the applicant and any interested persons may present witnesses and other evidence. The Commonwealth shall be made a party to any action under this subsection. If after such a hearing, the court is satisfied that such person does not pose a risk to public safety, the court shall grant the petition. In the event the petition is not granted, the person shall wait at least 24 months from the date of denial to file a new petition for removal from the Supplement. The State Police shall remove from the Supplement the name and conviction information upon receipt of an order granting a petition pursuant to this subsection.

E. The Superintendent of State Police shall complete the Supplement to the Registry prior to January 1, 2016.

Credits

Added by Acts 2015, c. 594; Acts 2015, c. 603.

VA Code Ann. § 9.1-923, VA ST § 9.1-923

The statutes and Constitution are current through the 2025 Regular and Reconvened Sessions.

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.128

9A.44.128. Definitions applicable to RCW 9A.44.130 through 9A.44.145, 10.01.200, 43.43.540, 70.48.470, and 72.09.330

Effective: July 23, 2023

Currentness

For the purposes of RCW 9A.44.130 through 9A.44.145, 10.01.200, 43.43.540, 70.48.470, and 72.09.330, the following definitions apply:

(1) "Adult" means a person who is 18 years of age or older on the offense date or who is convicted of and sentenced for an offense in adult court pursuant to RCW 13.04.030(1)(e)(v) or 13.40.110.

(2) "Business day" means any day other than Saturday, Sunday, or a legal local, state, or federal holiday.

(3) "Conviction" means any adult conviction or juvenile adjudication for a sex offense or kidnapping offense.

(4) "Disqualifying offense" means a conviction for: Any offense that is a felony; a sex offense as defined in this section; a crime against children or persons as defined in RCW *43.43.830(7) and 9.94A.411(2)(a); an offense with a domestic violence designation as provided in RCW 10.99.020; permitting the commercial sexual abuse of a minor as defined in RCW 9.68A.103; or any violation of chapter 9A.88 RCW.

(5) "Employed" or "carries on a vocation" means employment that is full time or part time for a period of time exceeding fourteen days, or for an aggregate period of time exceeding thirty days during any calendar year. A person is employed or carries on a vocation whether the person's employment is financially compensated, volunteered, or for the purpose of government or educational benefit.

(6) "Fixed residence" means a building that a person lawfully and habitually uses as living quarters a majority of the week. Uses as living quarters means to conduct activities consistent with the common understanding of residing, such as sleeping; eating; keeping personal belongings; receiving mail; and paying utilities, rent, or mortgage. A nonpermanent structure including, but not limited to, a motor home, travel trailer, camper, or boat may qualify as a residence provided it is lawfully and habitually used as living quarters a majority of the week, primarily kept at one location with a physical address, and the location it is kept at is either owned or rented by the person or used by the person with the permission of the owner or renter. A shelter program may qualify as a residence provided it is a shelter program designed to provide temporary living accommodations for the homeless, provides an offender with a personally assigned living space, and the offender is permitted to store belongings in the living space.

(7) "In the community" means residing outside of confinement or incarceration for a disqualifying offense.

(8) “Institution of higher education” means any public or private institution dedicated to postsecondary education, including any college, university, community college, trade, or professional school.

(9) “Kidnapping offense” means:

(a) The crimes of kidnapping in the first degree, kidnapping in the second degree, and unlawful imprisonment, as defined in chapter 9A.40 RCW, where the victim is a minor and the offender is not the minor's parent;

(b) Any offense that is, under chapter 9A.28 RCW, a criminal attempt, criminal solicitation, or criminal conspiracy to commit an offense that is classified as a kidnapping offense under this subsection;

(c) Any federal or out-of-state conviction for: An offense for which the person would be required to register as a kidnapping offender if residing in the state of conviction; or, if not required to register in the state of conviction, an offense that under the laws of this state would be classified as a kidnapping offense under this subsection; and

(d) Any tribal conviction for an offense for which the person would be required to register as a kidnapping offender while residing in the reservation of conviction; or, if not required to register in the reservation of conviction, an offense that under the laws of this state would be classified as a kidnapping offense under this subsection.

(10) “Lacks a fixed residence” means the person does not have a living situation that meets the definition of a fixed residence and includes, but is not limited to, a shelter program designed to provide temporary living accommodations for the homeless, an outdoor sleeping location, or locations where the person does not have permission to stay.

(11) “School” means a public or private school regulated under Title 28A RCW or chapter 72.40 RCW.

(12) “Sex offense” means:

(a) Any offense defined as a sex offense by RCW 9.94A.030;

(b) Any violation under RCW 9A.44.096 (sexual misconduct with a minor in the second degree);

(c) Any violation under RCW 9A.40.100(1)(b)(ii) (trafficking);

(d) Any violation under RCW 9.68A.090 (communication with a minor for immoral purposes);

(e) A violation under RCW 9A.88.070 (promoting prostitution in the first degree) or RCW 9A.88.080 (promoting prostitution in the second degree) if the person has a prior conviction for one of these offenses;

- (f) Any violation under **RCW 9A.40.100(1)(a)(i)(A) (III) or (IV) or (a)(i)(B);
- (g) Any gross misdemeanor that is, under chapter 9A.28 RCW, a criminal attempt, criminal solicitation, or criminal conspiracy to commit an offense that is classified as a sex offense under RCW 9.94A.030 or this subsection;
- (h) Any out-of-state conviction for an offense for which the person would be required to register as a sex offender while residing in the state of conviction; or, if not required to register in the state of conviction, an offense that under the laws of this state would be classified as a sex offense under this subsection;
- (i) Any federal conviction classified as a sex offense under 34 U.S.C. Sec. 20911 or, prior to September 1, 2017, 42 U.S.C. Sec. 16911 (SORNA);
- (j) Any military conviction for a sex offense. This includes sex offenses under the uniform code of military justice, as specified by the United States secretary of defense;
- (k) Any conviction in a foreign country for a sex offense if it was obtained with sufficient safeguards for fundamental fairness and due process for the accused under guidelines or regulations established pursuant to 42 U.S.C. Sec. 16912;
- (l) Any tribal conviction for an offense for which the person would be required to register as a sex offender while residing in the reservation of conviction; or, if not required to register in the reservation of conviction, an offense that under the laws of this state would be classified as a sex offense under this subsection.
- (13) “Student” means a person who is enrolled, on a full-time or part-time basis, in any school or institution of higher education.

Credits

[2023 c 470 § 3011, eff. July 23, 2023; 2023 c 150 § 4, eff. July 23, 2023; 2015 c 261 § 2, eff. July 24, 2015; 2014 c 188 § 2, eff. June 12, 2014; 2013 c 302 § 8, eff. Aug. 1, 2013; 2012 c 134 § 2, eff. June 7, 2012; 2011 c 337 § 2, eff. July 22, 2011; 2010 c 267 § 1, eff. June 10, 2010.]

OFFICIAL NOTES

Reviser's note: *(1) RCW 43.43.830 was amended by 2025 c 60 § 1, changing subsection (7) to subsection (9).

** (2) RCW 9A.40.100 was amended by 2024 c 298 § 1, deleting subsection (1)(a)(i)(A)(III) and (IV) and (B), effective July 1, 2025.

(3) The definitions in this section have been alphabetized pursuant to RCW 1.08.015(2)(k).

(4) This section was amended by 2023 c 150 § 4 and by 2023 c 470 § 3011, each without reference to the other. Both amendments are incorporated in the publication of this section under RCW 1.12.025(2). For rule of construction, see RCW 1.12.025(1).

Explanatory statement--2023 c 470: See note following RCW 10.99.030.

Findings--Intent--2023 c 150: See note following RCW 9A.44.130.

Effective date--2013 c 302: See note following RCW 9.68A.090.

Application--2010 c 267: “The provisions of this act apply to persons convicted before, on, or after June 10, 2010.” [2010 c 267 § 15.]

West's RCWA 9A.44.128, WA ST 9A.44.128

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

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West's Revised Code of Washington Annotated
Title 9a. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.130

9A.44.130. Registration of sex offenders and kidnapping offenders--Procedures--Definition--Penalties

Effective: July 23, 2023

Currentness

(1)(a) Any adult residing whether or not the person has a fixed residence, or who is a student, is employed, or carries on a vocation in this state who has been found to have committed or has been convicted of any sex offense or kidnapping offense, or who has been found not guilty by reason of insanity under chapter 10.77 RCW of committing any sex offense or kidnapping offense, shall register with the county sheriff for the county of the person's residence, or if the person is not a resident of Washington, the county of the person's school, or place of employment or vocation, or as otherwise specified in this section.

(b) Any person who is not an adult residing whether or not the person has a fixed residence, or who is a student, is employed, or carries on a vocation in this state shall register with the county sheriff for the county of the person's residence, or if the person is not a resident of Washington, the county of the person's school, or place of employment or vocation, or as otherwise specified in this section if the person:

(i) Committed a class A or class B sex offense when the person was age 16 or 17 and did not receive a special sex offender disposition alternative under RCW 13.40.162;

(ii) Committed rape in the first degree when the person was age 14 or 15;

(iii) Committed rape in the second degree when the person was age 14 or 15 and the person did not receive a special sex offender disposition alternative under RCW 13.40.162;

(iv) Committed a sex offense and, on the offense date, the juvenile had a prior conviction for a sex offense as defined in RCW 9A.44.128 or had a deferred disposition for a sex offense pursuant to RCW 13.40.127;

(v) Has a special sex offender disposition alternative under RCW 13.40.162 revoked for:

(A) A class A or class B sex offense that was committed when the person was age 16 or 17; or

(B) A rape in the second degree offense that was committed when the person was age 14 or 15;

(vi) Has an out-of-state, tribal, or federal conviction for a sex offense;

(vii) Committed a kidnapping offense; or

(viii) Is found by the court based on clear, cogent, and convincing evidence to:

(A) Be age 14 through 17 on the offense date;

(B) Not have received a special sex offender disposition alternative under RCW 13.40.162 for the offense triggering possible registration or have had a special sex offender disposition alternative under RCW 13.40.162 revoked for that offense;

(C) Have been adjudicated of multiple sex offenses involving two or more distinct victims in separate counts or separate causes;

(D) Present a serious threat to public safety after the last date of release from confinement, including full-time residential treatment, if any, or entry of disposition; and

(E) Require registration in order to lessen the serious threat to public safety.

(c) When a person required to register under this section is in custody of the state department of corrections, the state department of social and health services, a local division of youth services, or a local jail or juvenile detention facility as a result of a sex offense or kidnapping offense, the person shall also register at the time of release from custody with an official designated by the agency that has jurisdiction over the person.

(d) Any adult or juvenile who is required to register under (b) of this subsection must give notice to the county sheriff of the county with whom the person is registered within three business days:

(i) Prior to arriving at a school or institution of higher education to attend classes;

(ii) Prior to starting work at an institution of higher education; or

(iii) After any termination of enrollment or employment at a school or institution of higher education.

(2)(a) A person required to register under this section must provide the following information when registering: (i) Name and any aliases used; (ii) complete and accurate residential address or, if the person lacks a fixed residence, where he or she plans to stay; (iii) date and place of birth; (iv) place of employment; (v) crime for which convicted; (vi) date and place of conviction; (vii) social security number; (viii) photograph; and (ix) fingerprints.

(b) A person may be required to update any of the information required in this subsection in conjunction with any address verification conducted by the county sheriff or as part of any notice required by this section.

(c) A photograph or copy of an individual's fingerprints, which may include palmprints may be taken at any time to update an individual's file.

(3) Any person required to register under this section who intends to travel outside the United States must provide, by certified mail, with return receipt requested, or in person, signed written notice of the plan to travel outside the country to the county sheriff of the county with whom the person is registered at least twenty-one days prior to travel. The notice shall include the following information: (a) Name; (b) passport number and country; (c) destination; (d) itinerary details including departure and return dates; (e) means of travel; and (f) purpose of travel. If the offender subsequently cancels or postpones travel outside the United States, the offender must notify the county sheriff not later than three days after cancellation or postponement of the intended travel outside the United States or on the departure date provided in the notification, whichever is earlier. The county sheriff shall notify the United States marshals service as soon as practicable after receipt of the notification. In cases of unexpected travel due to family or work emergencies, or for offenders who travel routinely across international borders for work-related purposes, the notice must be submitted in person at least twenty-four hours prior to travel to the sheriff of the county where such offenders are registered with a written explanation of the circumstances that make compliance with this subsection (3) impracticable.

(4)(a) Offenders shall register with the county sheriff within the following deadlines:

(i) **OFFENDERS IN CUSTODY.** Sex offenders or kidnapping offenders who are in custody of the state department of corrections, the state department of social and health services, a local division of youth services, or a local jail or juvenile detention facility, must register at the time of release from custody with an official designated by the agency that has jurisdiction over the offender. The agency shall within three days forward the registration information to the county sheriff for the county of the offender's anticipated residence. The offender must also register within three business days from the time of release with the county sheriff for the county of the person's residence, or if the person is not a resident of Washington, the county of the person's school, or place of employment or vocation. The agency that has jurisdiction over the offender shall provide notice to the offender of the duty to register.

When the agency with jurisdiction intends to release an offender with a duty to register under this section, and the agency has knowledge that the offender is eligible for developmental disability services from the department of social and health services, the agency shall notify the division of developmental disabilities of the release. Notice shall occur not more than thirty days before the offender is to be released. The agency and the division shall assist the offender in meeting the initial registration requirement under this section. Failure to provide such assistance shall not constitute a defense for any violation of this section.

When a person required to register under this section is in the custody of the state department of corrections or a local corrections or probations agency and has been approved for partial confinement as defined in RCW 9.94A.030, the person must register at the time of transfer to partial confinement with the official designated by the agency that has jurisdiction over the offender. The agency shall within three days forward the registration information to the county sheriff for the county in which the offender is in partial confinement. The offender must also register within three business days from the time of the termination of partial confinement or release from confinement with the county sheriff for the county of the person's residence. The agency that has jurisdiction over the offender shall provide notice to the offender of the duty to register.

(ii) **OFFENDERS UNDER FEDERAL JURISDICTION.** Sex offenders or kidnapping offenders who are in the custody of the United States bureau of prisons or other federal or military correctional agency must register within three business days from the time of release with the county sheriff for the county of the person's residence, or if the person is not a resident of Washington, the county of the person's school, or place of employment or vocation.

(iii) OFFENDERS WHO ARE CONVICTED BUT NOT CONFINED. Sex offenders who are convicted of a sex offense and kidnapping offenders who are convicted for a kidnapping offense but who are not sentenced to serve a term of confinement immediately upon sentencing shall report to the county sheriff to register within three business days of being sentenced.

(iv) OFFENDERS WHO ARE NEW RESIDENTS, TEMPORARY RESIDENTS, OR RETURNING WASHINGTON RESIDENTS. Sex offenders and kidnapping offenders who move to Washington state from another state or a foreign country must register within three business days of establishing residence or reestablishing residence if the person is a former Washington resident. If the offender is under the jurisdiction of an agency of this state when the offender moves to Washington, the agency shall provide notice to the offender of the duty to register.

Sex offenders and kidnapping offenders who are visiting Washington state and intend to reside or be present in the state for ten days or more shall register his or her temporary address or where he or she plans to stay with the county sheriff of each county where the offender will be staying within three business days of arrival. Registration for temporary residents shall include the information required by subsection (2)(a) of this section, except the photograph and fingerprints.

(v) OFFENDERS FOUND NOT GUILTY BY REASON OF INSANITY. Any adult or juvenile who has been found not guilty by reason of insanity under chapter 10.77 RCW of committing a sex offense or a kidnapping offense and who is in custody, as a result of that finding, of the state department of social and health services, must register within three business days from the time of release with the county sheriff for the county of the person's residence. The state department of social and health services shall provide notice to the adult or juvenile in its custody of the duty to register.

(vi) OFFENDERS WHO LACK A FIXED RESIDENCE. Any person who lacks a fixed residence and leaves the county in which he or she is registered and enters and remains within a new county for twenty-four hours is required to register with the county sheriff not more than three business days after entering the county and provide the information required in subsection (2)(a) of this section.

(vii) OFFENDERS WHO LACK A FIXED RESIDENCE AND WHO ARE UNDER SUPERVISION. Offenders who lack a fixed residence and who are under the supervision of the department shall register in the county of their supervision.

(viii) OFFENDERS WHO MOVE TO, WORK, CARRY ON A VOCATION, OR ATTEND SCHOOL IN ANOTHER STATE. Offenders required to register in Washington, who move to another state, or who work, carry on a vocation, or attend school in another state shall register a new address, fingerprints, and photograph with the new state within three business days after establishing residence, or after beginning to work, carry on a vocation, or attend school in the new state. The person must also send written notice within three business days of moving to the new state or to a foreign country to the county sheriff with whom the person last registered in Washington state. The county sheriff shall promptly forward this information to the Washington state patrol.

(b) The county sheriff shall not be required to determine whether the person is living within the county.

(c) An arrest on charges of failure to register, service of an information, or a complaint for a violation of RCW 9A.44.132, or arraignment on charges for a violation of RCW 9A.44.132, constitutes actual notice of the duty to register. Any person charged with the crime of failure to register under RCW 9A.44.132 who asserts as a defense the lack of notice of the duty to register shall register within three business days following actual notice of the duty through arrest, service, or arraignment. Failure to

register as required under this subsection (4)(c) constitutes grounds for filing another charge of failing to register. Registering following arrest, service, or arraignment on charges shall not relieve the offender from criminal liability for failure to register prior to the filing of the original charge.

(5)(a) If any person required to register pursuant to this section changes his or her residence address within the same county, the person must provide, by certified mail, with return receipt requested or in person, signed written notice of the change of address to the county sheriff within three business days of moving.

(b) If any person required to register pursuant to this section moves to a new county, within three business days of moving the person must register with the county sheriff of the county into which the person has moved and provide, by certified mail, with return receipt requested or in person, signed written notice of the change of address to the county sheriff with whom the person last registered. The county sheriff with whom the person last registered is responsible for address verification pursuant to RCW 9A.44.135 until the person completes registration of his or her new residence address.

(6)(a) Any person required to register under this section who lacks a fixed residence shall provide signed written notice to the sheriff of the county where he or she last registered within three business days after ceasing to have a fixed residence. The notice shall include the information required by subsection (2)(a) of this section, except the photograph, fingerprints, and palmprints. The county sheriff may, for reasonable cause, require the offender to provide a photograph and fingerprints. The sheriff shall forward this information to the sheriff of the county in which the person intends to reside, if the person intends to reside in another county.

(b) A person who lacks a fixed residence must report weekly, in person, to the sheriff of the county where he or she is registered. The weekly report shall be on a day specified by the county sheriff's office, and shall occur during normal business hours. The person must keep an accurate accounting of where he or she stays during the week and provide it to the county sheriff upon request. The lack of a fixed residence is a factor that may be considered in determining an offender's risk level and shall make the offender subject to disclosure of information to the public at large pursuant to RCW 4.24.550.

(c) If any person required to register pursuant to this section does not have a fixed residence, it is an affirmative defense to the charge of failure to register, that he or she provided written notice to the sheriff of the county where he or she last registered within three business days of ceasing to have a fixed residence and has subsequently complied with the requirements of subsection (4)(a)(vi) or (vii) of this section and this subsection. To prevail, the person must prove the defense by a preponderance of the evidence.

(7) A sex offender subject to registration requirements under this section who applies to change his or her name under RCW 4.24.130 or any other law shall submit a copy of the application to the county sheriff of the county of the person's residence and to the state patrol not fewer than five days before the entry of an order granting the name change. No sex offender under the requirement to register under this section at the time of application shall be granted an order changing his or her name if the court finds that doing so will interfere with legitimate law enforcement interests, except that no order shall be denied when the name change is requested for religious or legitimate cultural reasons or in recognition of marriage or dissolution of marriage. A sex offender under the requirement to register under this section who receives an order changing his or her name shall submit a copy of the order to the county sheriff of the county of the person's residence and to the state patrol within three business days of the entry of the order.

(8) Except as may otherwise be provided by law, nothing in this section shall impose any liability upon a peace officer, including a county sheriff, or law enforcement agency, for failing to release information authorized under this section.

Credits

[2023 c 150 § 5, eff. July 23, 2023; 2017 c 174 § 3, eff. July 23, 2017; 2015 c 261 § 3, eff. July 24, 2015; 2011 c 337 § 3, eff. July 22, 2011. Prior: 2010 c 267 § 2, eff. June 10, 2010; 2010 c 265 § 1, eff. June 10, 2010; 2008 c 230 § 1, eff. June 10, 2010; prior: 2006 c 129 § 2, eff. Sept. 1, 2006; (2006 c 129 § 1 expired September 1, 2006); 2006 c 128 § 2, eff. Sept. 1, 2006; (2006 c 128 § 1 expired September 1, 2006); 2006 c 127 § 2, eff. Sept. 1, 2006; 2006 c 126 § 2, eff. Sept. 1, 2006; (2006 c 126 § 1 expired September 1, 2006); 2005 c 380 § 1, eff. Sept. 1, 2006; prior: 2003 c 215 § 1, eff. July 27, 2003; 2003 c 53 § 68, eff. July 1, 2004; 2002 c 31 § 1; prior: 2001 c 169 § 1; 2001 c 95 § 2; 2000 c 91 § 2; prior: 1999 sp.s. c 6 § 2; 1999 c 352 § 9; prior: 1998 c 220 § 1; 1998 c 139 § 1; prior: 1997 c 340 § 3; 1997 c 113 § 3; 1996 c 275 § 11; prior: 1995 c 268 § 3; 1995 c 248 § 1; 1995 c 195 § 1; 1994 c 84 § 2; 1991 c 274 § 2; 1990 c 3 § 402.]

OFFICIAL NOTES

Findings--Intent--2023 c 150: "(1) The legislature finds that successful rehabilitation of youth adjudicated of sex offenses is the best path to reducing recidivism.

(2) The legislature finds that researchers from the Johns Hopkins University and other academic institutions found that treatment for minors convicted of sexual offenses would provide increased public safety, while registration and notification policies for minors convicted of sexual offenses failed to improve community safety. The legislature finds that requiring youth to register as sex offenders is associated with mental health struggles, including depression, anxiety, and suicidal ideation, as well as the increased likelihood of becoming a target of sexual abuse by adults.

(3) The legislature finds that while adults can petition for relief of registration for offenses committed as minors, the legal process is overly cumbersome, expensive, and challenging to the point that many never request removal and remain on the registry their entire lives.

(4) The legislature declares that the response to sex offenses committed by youth should be developmentally appropriate and driven by research. The legislature therefore intends to increase community safety by reforming juvenile sex offender registration policy and related areas to redirect the focus toward practices that increase prevention and promote successful intervention strategies." [2023 c 150 § 1.]

Application--2010 c 267: See note following RCW 9A.44.128.

Delayed effective date--2008 c 230 §§ 1-3: "Sections 1 through 3 of this act take effect ninety days after adjournment sine die of the 2010 legislative session." [2008 c 230 § 5.]

Effective date--2006 c 129 § 2: "Section 2 of this act takes effect September 1, 2006." [2006 c 129 § 4.]

Expiration date--2006 c 129 § 1: "Section 1 of this act expires September 1, 2006." [2006 c 129 § 3.]

Effective date--2006 c 128 § 2: "Section 2 of this act takes effect September 1, 2006." [2006 c 128 § 8.]

Expiration date--2006 c 128 § 1: "Section 1 of this act expires September 1, 2006." [2006 c 128 § 7.]

Severability--2006 c 127: “If any provision of this act or its application to any person or circumstance is held invalid, the remainder of the act or the application of the provision to other persons or circumstances is not affected.” [2006 c 127 § 1.]

Effective date--2006 c 127: “This act takes effect September 1, 2006.” [2006 c 127 § 3.]

Effective date--2006 c 126 § 2: “Section 2 of this act takes effect September 1, 2006.” [2006 c 126 § 10.]

Expiration date--2006 c 126 § 1: “Section 1 of this act expires September 1, 2006.” [2006 c 126 § 8.]

Effective date--2006 c 126 §§ 1 and 3-7: “Sections 1 and 3 through 7 of this act are necessary for the immediate preservation of the public peace, health, or safety, or support of the state government and its existing public institutions, and take effect immediately [March 20, 2006].” [2006 c 126 § 9.]

Effective date--2005 c 380: “This act takes effect September 1, 2006.” [2005 c 380 § 4.]

Intent--Effective date--2003 c 53: See notes following RCW 2.48.180.

Application--2002 c 31: “This act applies to all persons convicted of communication with a minor either on, before, or after July 1, 2001, unless otherwise relieved of the duty to register under RCW 9A.44.140.” [2002 c 31 § 2.]

Severability--2002 c 31: “If any provision of this act or its application to any person or circumstance is held invalid, the remainder of the act or the application of the provision to other persons or circumstances is not affected.” [2002 c 31 § 3.]

Effective date--2002 c 31: “This act is necessary for the immediate preservation of the public peace, health, or safety, or support of the state government and its existing public institutions, and takes effect immediately [March 12, 2002].” [2002 c 31 § 4.]

Effective date--2001 c 95: See note following RCW 9.94A.030.

Intent--1999 sp.s. c 6: “It is the intent of this act to revise the law on registration of sex and kidnapping offenders in response to the case of *State v. Pickett*, Docket number 41562-0-I. The legislature intends that all sex and kidnapping offenders whose history requires them to register shall do so regardless of whether the person has a fixed residence. The lack of a residential address is not to be construed to preclude registration as a sex or kidnapping offender. The legislature intends that persons who lack a residential address shall have an affirmative duty to report to the appropriate county sheriff, based on the level of risk of offending.” [1999 sp.s. c 6 § 1.]

Effective date--1999 sp.s. c 6: “This act is necessary for the immediate preservation of the public peace, health, or safety, or support of the state government and its existing public institutions, and takes effect immediately [June 7, 1999].” [1999 sp.s. c 6 § 3.]

Severability--1998 c 220: “If any provision of this act or its application to any person or circumstance is held invalid, the remainder of the act or the application of the provision to other persons or circumstances is not affected.” [1998 c 220 § 7.]

Findings--1997 c 113: See note following RCW 4.24.550.

Finding--1996 c 275: See note following RCW 9.94A.505.

Purpose--1995 c 268: See note following RCW 9.94A.030.

Intent--1994 c 84: “This act is intended to clarify existing law and is not intended to reflect a substantive change in the law.” [1994 c 84 § 1.]

Finding and intent--1991 c 274: “The legislature finds that sex offender registration has assisted law enforcement agencies in protecting their communities. This act is intended to clarify and amend the deadlines for sex offenders to register. This act's clarification or amendment of RCW 9A.44.130 does not relieve the obligation of sex offenders to comply with the registration requirements of RCW 9A.44.130 as that statute exists before July 28, 1991.” [1991 c 274 § 1.]

Finding--Policy--1990 c 3 § 402: “The legislature finds that sex offenders often pose a high risk of reoffense, and that law enforcement's efforts to protect their communities, conduct investigations, and quickly apprehend offenders who commit sex offenses, are impaired by the lack of information available to law enforcement agencies about convicted sex offenders who live within the law enforcement agency's jurisdiction. Therefore, this state's policy is to assist local law enforcement agencies' efforts to protect their communities by regulating sex offenders by requiring sex offenders to register with local law enforcement agencies as provided in RCW 9A.44.130.” [1990 c 3 § 401.]

West's RCWA 9A.44.130, WA ST 9A.44.130

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.132

9A.44.132. Failure to register as sex offender or kidnapping offender

Effective: July 23, 2023

Currentness

(1) A person commits the crime of failure to register as a sex offender if the person has a duty to register under RCW 9A.44.130 for a felony sex offense and knowingly fails to comply with any of the requirements of RCW 9A.44.130.

(a) The failure to register as a sex offender pursuant to this subsection is a class C felony if the person has a duty to register under RCW 9A.44.130(1)(a) and:

(i) It is the person's first conviction for a felony failure to register; or

(ii) The person has previously been convicted of a felony failure to register as a sex offender in this state or pursuant to the laws of another state, or pursuant to federal law.

(b) If a person has a duty to register under RCW 9A.44.130(1)(a) and has been convicted of a felony failure to register as a sex offender in this state or pursuant to the laws of another state, or pursuant to federal law, on two or more prior occasions, the failure to register under this subsection is a class B felony.

(c) The failure to register as a sex offender is a gross misdemeanor if the person has a duty to register under RCW 9A.44.130(1)(b).

(2) A person is guilty of failure to register as a sex offender if the person has a duty to register under RCW 9A.44.130 for a sex offense other than a felony and knowingly fails to comply with any of the requirements of RCW 9A.44.130. The failure to register as a sex offender under this subsection is a gross misdemeanor.

(3) A person commits the crime of failure to register as a kidnapping offender if the person has a duty to register under RCW 9A.44.130 for a kidnapping offense and knowingly fails to comply with any of the requirements of RCW 9A.44.130.

(a) If the person has a duty to register for a felony kidnapping offense, the failure to register as a kidnapping offender is a class C felony.

(b) If the person has a duty to register for a kidnapping offense other than a felony, the failure to register as a kidnapping offender is a gross misdemeanor.

(4) Unless relieved of the duty to register pursuant to RCW 9A.44.141 and 9A.44.142, a violation of this section is an ongoing offense for purposes of the statute of limitations under RCW 9A.04.080.

Credits

[2023 c 150 § 6, eff. July 23, 2023; 2019 c 443 § 4, eff. July 28, 2019; 2015 c 261 § 5, eff. July 24, 2015; 2011 c 337 § 5, eff. July 22, 2011; 2010 c 267 § 3, eff. June 10, 2010.]

OFFICIAL NOTES

Findings--Intent--2023 c 150: See note following RCW 9A.44.130.

Short title--Findings--2019 c 443: See notes following RCW 43.43.754.

Application--2010 c 267: See note following RCW 9A.44.128.

West's RCWA 9A.44.132, WA ST 9A.44.132

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.135

9A.44.135. Address verification

Effective: June 10, 2010

Currentness

(1) When an offender registers with the county sheriff pursuant to RCW 9A.44.130, the county sheriff shall notify the police chief or town marshal of the jurisdiction in which the offender has registered to live. If the offender registers to live in an unincorporated area of the county, the sheriff shall make reasonable attempts to verify that the offender is residing at the registered address. If the offender registers to live in an incorporated city or town, the police chief or town marshal shall make reasonable attempts to verify that the offender is residing at the registered address. Reasonable attempts include verifying an offender's address pursuant to the grant program established under RCW 36.28A.230. If the sheriff or police chief or town marshal does not participate in the grant program established under RCW 36.28A.230, reasonable attempts require a yearly mailing by certified mail, with return receipt requested, a nonforwardable verification form to the offender at the offender's last registered address sent by the chief law enforcement officer of the jurisdiction where the offender is registered to live. For offenders who have been previously designated sexually violent predators under chapter 71.09 RCW or the equivalent procedure in another jurisdiction, even if the designation has subsequently been removed, this mailing must be sent every ninety days.

The offender must sign the verification form, state on the form whether he or she still resides at the last registered address, and return the form to the chief law enforcement officer of the jurisdiction where the offender is registered to live within ten days after receipt of the form.

(2) The chief law enforcement officer of the jurisdiction where the offender has registered to live shall make reasonable attempts to locate any sex offender who fails to return the verification form or who cannot be located at the registered address.

If the offender fails to return the verification form or the offender is not at the last registered address, the chief law enforcement officer of the jurisdiction where the offender has registered to live shall promptly forward this information to the county sheriff and to the Washington state patrol for inclusion in the central registry of sex offenders.

(3) When an offender notifies the county sheriff of a change to his or her residence address pursuant to RCW 9A.44.130, and the new address is in a different law enforcement jurisdiction, the county sheriff shall notify the police chief or town marshal of the jurisdiction from which the offender has moved.

(4) County sheriffs and police chiefs or town marshals may enter into agreements for the purposes of delegating the authority and obligation to fulfill the requirements of this section.

Credits

[2010 c 265 § 2, eff. June 10, 2010; 2000 c 91 § 1; 1999 c 196 § 15; 1998 c 220 § 2; 1995 c 248 § 3.]

OFFICIAL NOTES

Construction--Short title--1999 c 196: See RCW 72.09.904 and 72.09.905.

Severability--1999 c 196: See note following RCW 9.94A.010.

Severability--1998 c 220: See note following RCW 9A.44.130.

West's RCWA 9A.44.135, WA ST 9A.44.135

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.138

9A.44.138. Attendance, employment of registered sex offenders and kidnapping offenders at schools and institutions of higher education--Notice to designated recipients--Information exempt from disclosure

Effective: June 11, 2020

Currentness

- (1) Upon receiving notice from a registered person pursuant to RCW 9A.44.130 that the person will be attending a school enrolling students in grades kindergarten through twelve or an institution of higher education, or will be employed with an institution of higher education, the sheriff must promptly notify the designated recipient of the school or institution of the person's: (a) Name and any aliases used; (b) complete residential address; (c) date and place of birth; (d) place of employment; (e) crime for which convicted; (f) date and place of conviction; (g) photograph; and (h) risk level classification.
- (2) Except as provided in subsection (3) of this section, a designated recipient receiving notice under this section must disclose the information received from the sheriff as follows:
- (a) If the student is classified as a risk level II or III, the designated recipient shall provide the information received to every teacher of the student and to any other personnel who, in the judgment of the designated recipient, supervises the student or for security purposes should be aware of the student's record;
- (b) If the student is classified as a risk level I, the designated recipient shall provide the information received only to personnel who, in the judgment of the designated recipient, for security purposes should be aware of the student's record.
- (3) When the designated recipient is the administrator of a school district, the designated recipient must disclose the information to the principal of the school that the registered person will be attending, whether the school is a common school as defined in RCW 28A.150.020 or a school that is the subject of a state-tribal education compact under chapter 28A.715 RCW. The principal must then disclose the information as provided in subsection (2) of this section.
- (4) The sheriff shall notify the applicable designated recipient whenever a student's risk level classification is changed or the sheriff is notified of a change in the student's address.
- (5) Any information received by school or institution personnel under this section is exempt from disclosure under chapter 42.56 RCW and may not be further disseminated except as provided in RCW 28A.225.330, other statutes or case law, and the family and educational and privacy rights act of 1994, 20 U.S.C. Sec. 1232g et seq.
- (6) For the purposes of this section, "designated recipient" means: (a) The superintendent of the school district, or his or her designee, of a common school as defined in RCW 28A.150.020 or a school that is the subject of a state-tribal education compact

under chapter 28A.715 RCW; (b) the administrator of a charter public school governed by chapter 28A.710 RCW; (c) the administrator of a private school approved under chapter 28A.195 RCW; or (d) the director of the department of public safety at an institution of higher education.

Credits

[2020 c 167 § 5, eff. June 11, 2020; 2011 c 337 § 4, eff. July 22, 2011.]

West's RCWA 9A.44.138, WA ST 9A.44.138

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.140

9A.44.140. Registration of sex offenders and kidnapping offenders--Duty to register

Effective: July 23, 2023

Currentness

The duty to register under RCW 9A.44.130 shall continue for the duration provided in this section.

(1) For an adult convicted in this state of a class A felony, or an adult convicted of any sex offense or kidnapping offense who has one or more prior convictions for a sex offense or kidnapping offense, the duty to register shall continue indefinitely.

(2) For an adult convicted in this state of a class B felony who does not have one or more prior convictions for a sex offense or kidnapping offense, the duty to register shall end fifteen years after the last date of release from confinement, if any, (including full-time residential treatment) pursuant to the conviction, or entry of the judgment and sentence, if the adult has spent fifteen consecutive years in the community without being convicted of a disqualifying offense during that time period.

(3) For an adult convicted in this state of a class C felony, a violation of RCW 9.68A.090 or 9A.44.096, or an attempt, solicitation, or conspiracy to commit a class C felony, and the adult does not have one or more prior convictions for a sex offense or kidnapping offense, the duty to register shall end ten years after the last date of release from confinement, if any, (including full-time residential treatment) pursuant to the conviction, or entry of the judgment and sentence, if the adult has spent ten consecutive years in the community without being convicted of a disqualifying offense during that time period.

(4)(a) For a person required to register under RCW 9A.44.130(1)(b), the duty to register will end three years after the last date of release from confinement, including full-time residential treatment, if any, or entry of disposition if the person is required to register for a class A offense committed at age 15, 16, or 17.

(b) For a person required to register under RCW 9A.44.130(1)(b) who does not meet the description provided in subsection (4) (a) of this section [(a) of this subsection], the duty to register will end two years after the last date of release from confinement, including full-time residential treatment, if any, or entry of disposition.

(5) Except as provided in RCW 9A.44.142, for a person required to register for a federal, tribal, or out-of-state conviction, the duty to register shall continue indefinitely.

(6) For a person who is or has been determined to be a sexually violent predator pursuant to chapter 71.09 RCW, the duty to register shall continue for the person's lifetime.

(7) Nothing in this section prevents a person from being relieved of the duty to register under RCW 9A.44.142, 9A.44.143, and 13.40.162.

(8) Nothing in RCW 9.94A.637 relating to discharge of an offender shall be construed as operating to relieve the offender of his or her duty to register pursuant to RCW 9A.44.130.

(9) For purposes of determining whether a person has been convicted of more than one sex offense, failure to register as a sex offender or kidnapping offender is not a sex or kidnapping offense.

(10) The provisions of this section and RCW 9A.44.141 through 9A.44.143 apply equally to a person who has been found not guilty by reason of insanity under chapter 10.77 RCW of a sex offense or kidnapping offense.

Credits

[2023 c 150 § 7, eff. July 23, 2023; 2020 c 249 § 2, eff. June 11, 2020; 2015 c 261 § 6, eff. July 24, 2015; 2010 c 267 § 4, eff. June 10, 2010; 2002 c 25 § 1; 2001 c 170 § 2; 2000 c 91 § 3; 1998 c 220 § 3; 1997 c 113 § 4; 1996 c 275 § 12. Prior: 1995 c 268 § 4; 1995 c 248 § 2; 1995 c 195 § 2; 1991 c 274 § 3; 1990 c 3 § 408.]

OFFICIAL NOTES

Findings--Intent--2023 c 150: See note following RCW 9A.44.130.

Application--2010 c 267: See note following RCW 9A.44.128.

Effective date--2002 c 25: “This act is necessary for the immediate preservation of the public peace, health, or safety, or support of the state government and its existing public institutions, and takes effect immediately [March 12, 2002].” [2002 c 25 § 3.]

Intent--2001 c 170: “The legislature intends to amend the lifetime sex offender registration requirement so that it is narrowly tailored to meet the requirements of the Jacob Wetterling act.” [2001 c 170 § 1.]

Severability--1998 c 220: See note following RCW 9A.44.130.

Findings--1997 c 113: See note following RCW 4.24.550.

Finding--1996 c 275: See note following RCW 9.94A.505.

Purpose--1995 c 268: See note following RCW 9.94A.030.

Finding and intent--1991 c 274: See note following RCW 9A.44.130.

West's RCWA 9A.44.140, WA ST 9A.44.140

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

West's Revised Code of Washington Annotated
Title 9a. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.141

9A.44.141. Investigation--End of duty to register--Removal from registry--Civil liability

Effective: July 24, 2015

Currentness

(1) Upon the request of a person who is listed in the Washington state patrol central registry of sex offenders and kidnapping offenders, the county sheriff shall investigate whether a person's duty to register has ended by operation of law pursuant to RCW 9A.44.140.

(a) Using available records, the county sheriff shall verify that the offender has spent the requisite time in the community and has not been convicted of a disqualifying offense.

(b) If the county sheriff determines the person's duty to register has ended by operation of law, the county sheriff shall request the Washington state patrol remove the person's name from the central registry.

(2) Nothing in this subsection prevents a county sheriff from investigating, upon his or her own initiative, whether a person's duty to register has ended by operation of law pursuant to RCW 9A.44.140.

(3)(a) A person who is listed in the central registry as the result of a federal, tribal, or out-of-state conviction may request the county sheriff to investigate whether the person should be removed from the registry if:

(i) A court or other administrative authority in the person's state of conviction has made an individualized determination that the person is not required to register; and

(ii) The person provides proof of relief from registration to the county sheriff.

(b) If the county sheriff determines the person has been relieved of the duty to register in his or her state of conviction, the county sheriff shall request the Washington state patrol remove the person's name from the central registry.

(4) An appointed or elected public official, public employee, or public agency as defined in RCW 4.24.470, or units of local government and its employees, as provided in RCW 36.28A.010, are immune from civil liability for damages for removing or requesting the removal of a person from the central registry of sex offenders and kidnapping offenders or the failure to remove or request removal of a person within the time frames provided in RCW 9A.44.140.

Credits

[2015 c 261 § 7, eff. July 24, 2015; 2011 c 337 § 6, eff. July 22, 2011; 2010 c 267 § 5, eff. June 10, 2010.]

OFFICIAL NOTES

Application--2010 c 267: See note following RCW 9A.44.128.

West's RCWA 9A.44.141, WA ST 9A.44.141

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.142

9A.44.142. Relief from duty to register--Petition--Exceptions

Effective: July 23, 2017

Currentness

(1) A person who is required to register under RCW 9A.44.130 may petition the superior court to be relieved of the duty to register:

(a) If the person has a duty to register for a sex offense or kidnapping offense committed when the offender was a juvenile, regardless of whether the conviction was in this state, as provided in RCW 9A.44.143;

(b) If the person is required to register for a conviction in this state and is not prohibited from petitioning for relief from registration under subsection (2) of this section, when the person has spent ten consecutive years in the community without being convicted of a disqualifying offense during that time period; or

(c) If the person is required to register for a federal, tribal, or out-of-state conviction, when the person has spent fifteen consecutive years in the community without being convicted of a disqualifying offense during that time period.

(2)(a) A person may not petition for relief from registration if the person has been:

(i) Determined to be a sexually violent predator pursuant to chapter 71.09 RCW; or

(ii) Convicted as an adult of a sex offense or kidnapping offense that is a class A felony and that was committed with forcible compulsion on or after June 8, 2000.

(b) Any person who may not be relieved of the duty to register may petition the court to be exempted from any community notification requirements that the person may be subject to fifteen years after the later of the entry of the judgment and sentence or the last date of release from confinement, including full-time residential treatment, pursuant to the conviction, if the person has spent the time in the community without being convicted of a disqualifying offense.

(3) A petition for relief from registration or exemption from notification under this section shall be made to the court in which the petitioner was convicted of the offense that subjects him or her to the duty to register or, in the case of convictions in other states, a foreign country, or a federal, tribal, or military court, to the court in the county where the person is registered at the time the petition is sought. The prosecuting attorney of the county shall be named and served as the respondent in any such

petition. The prosecuting attorney must make reasonable efforts to notify the victim via the victim's choice of telephone, letter, or email, if known.

(4)(a) The court may relieve a petitioner of the duty to register only if the petitioner shows by clear and convincing evidence that the petitioner is sufficiently rehabilitated to warrant removal from the central registry of sex offenders and kidnapping offenders.

(b) In determining whether the petitioner is sufficiently rehabilitated to warrant removal from the registry, the following factors are provided as guidance to assist the court in making its determination:

(i) The nature of the registrable offense committed including the number of victims and the length of the offense history;

(ii) Any subsequent criminal history;

(iii) The petitioner's compliance with supervision requirements;

(iv) The length of time since the charged incident(s) occurred;

(v) Any input from community corrections officers, law enforcement, or treatment providers;

(vi) Participation in sex offender treatment;

(vii) Participation in other treatment and rehabilitative programs;

(viii) The offender's stability in employment and housing;

(ix) The offender's community and personal support system;

(x) Any risk assessments or evaluations prepared by a qualified professional;

(xi) Any updated polygraph examination;

(xii) Any input of the victim;

(xiii) Any other factors the court may consider relevant.

(5) If a person is relieved of the duty to register pursuant to this section, the relief of registration does not constitute a certificate of rehabilitation, or the equivalent of a certificate of rehabilitation, for the purposes of restoration of firearm possession under RCW 9.41.040.

Credits

[2017 c 86 § 1, eff. July 23, 2017; 2015 c 261 § 8, eff. July 24, 2015; 2011 c 337 § 7, eff. July 22, 2011; 2010 c 267 § 6, eff. June 10, 2010.]

OFFICIAL NOTES

Application--2010 c 267: See note following RCW 9A.44.128.

West's RCWA 9A.44.142, WA ST 9A.44.142

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

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West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.143

9A.44.143. Relief from duty to register for sex offense or kidnapping offense committed when offender was a juvenile and who has not been determined to be a sexually violent predator--Petition--Exception

Effective: July 23, 2017

Currentness

(1) An offender having a duty to register under RCW 9A.44.130 for a sex offense or kidnapping offense committed when the offender was a juvenile, and who has not been determined to be a sexually violent predator pursuant to chapter 71.09 RCW may petition the superior court to be relieved of that duty as provided in this section.

(2) For class A sex offenses or kidnapping offenses committed when the petitioner was fifteen years of age or older, the court may relieve the petitioner of the duty to register if:

(a) At least sixty months have passed since the petitioner's adjudication and completion of any term of confinement for the offense giving rise to the duty to register and the petitioner has not been adjudicated or convicted of any additional sex offenses or kidnapping offenses within the sixty months before the petition;

(b) The petitioner has not been adjudicated or convicted of a violation of RCW 9A.44.132 (failure to register) during the sixty months prior to filing the petition; and

(c) The petitioner shows by a preponderance of the evidence that the petitioner is sufficiently rehabilitated to warrant removal from the central registry of sex offenders and kidnapping offenders.

(3) For all other sex offenses or kidnapping offenses committed by a juvenile not included in subsection (2) of this section, the court may relieve the petitioner of the duty to register if:

(a) At least twenty-four months have passed since the petitioner's adjudication and completion of any term of confinement for the offense giving rise to the duty to register and the petitioner has not been adjudicated or convicted of any additional sex offenses or kidnapping offenses within the twenty-four months before the petition;

(b) The petitioner has not been adjudicated or convicted of a violation of RCW 9A.44.132 (failure to register) during the twenty-four months prior to filing the petition; and

(c) The petitioner shows by a preponderance of the evidence that the petitioner is sufficiently rehabilitated to warrant removal from the central registry of sex offenders and kidnapping offenders.

(4) A petition for relief from registration under this section shall be made to the court in which the petitioner was convicted of the offense that subjects him or her to the duty to register or, in the case of convictions in other states, a foreign country, or a federal or military court, to the court in the county in which the juvenile is registered at the time a petition is sought. The prosecuting attorney of the county shall be named and served as the respondent in any such petition. The prosecuting attorney must make reasonable efforts to notify the victim via the victim's choice of telephone, letter, or email, if known.

(5) In determining whether the petitioner is sufficiently rehabilitated to warrant removal from the central registry of sex offenders and kidnapping offenders, the following factors are provided as guidance to assist the court in making its determination, to the extent the factors are applicable considering the age and circumstances of the petitioner:

- (a) The nature of the registrable offense committed including the number of victims and the length of the offense history;
- (b) Any subsequent criminal history;
- (c) The petitioner's compliance with supervision requirements;
- (d) The length of time since the charged incident(s) occurred;
- (e) Any input from community corrections officers, juvenile parole or probation officers, law enforcement, or treatment providers;
- (f) Participation in sex offender treatment;
- (g) Participation in other treatment and rehabilitative programs;
- (h) The offender's stability in employment and housing;
- (i) The offender's community and personal support system;
- (j) Any risk assessments or evaluations prepared by a qualified professional;
- (k) Any updated polygraph examination;
- (l) Any input of the victim;
- (m) Any other factors the court may consider relevant.

(6) If a person is relieved of the duty to register pursuant to this section, the relief of registration does not constitute a certificate of rehabilitation, or the equivalent of a certificate of rehabilitation, for the purposes of restoration of firearm possession under RCW 9.41.040.

(7) A juvenile prosecuted and convicted of a sex offense or kidnapping offense as an adult pursuant to RCW 13.40.110 or 13.04.030 may not petition to the superior court under this section and must follow the provisions of RCW 9A.44.142.

(8) An adult prosecuted for an offense committed as a juvenile once the juvenile court has lost jurisdiction due to the passage of time between the date of the offense and the date of filing of charges may petition the superior court under the provisions of this section.

Credits

[2017 c 86 § 2, eff. July 23, 2017; 2015 c 261 § 9, eff. July 24, 2015; 2011 c 338 § 1, eff. July 22, 2011; 2010 c 267 § 7, eff. June 10, 2010.]

OFFICIAL NOTES

Application--2010 c 267: See note following RCW 9A.44.128.

West's RCWA 9A.44.143, WA ST 9A.44.143

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.144

9A.44.144. Relief from duty to register--Juvenile offenders

Effective: November 1, 2023

Currentness

(1) For a person who is not an adult, any existing legal obligation to register as a sex offender is extinguished on November 1, 2023, if the person no longer has a duty to register under RCW 9A.44.130(1)(b).

(2) For a person who has an existing legal obligation to register under RCW 9A.44.130(1)(b), the obligation shall extinguish two or three years after the last date of release from confinement, including full-time residential treatment, if any, or entry of disposition according to the applicable registration period required under RCW 9A.44.140(4).

(3) By December 1, 2023, each registering agency shall conduct an individual review and remove all persons from the sex offender registry whose obligation to register is based on an offense committed while the person was under 18 years of age, unless the individual has a legal obligation to register under subsection (2) of this section.

Credits

[2023 c 150 § 10, eff. Nov. 1, 2023.]

OFFICIAL NOTES

Effective date--2023 c 150 § 10: "Section 10 of this act takes effect November 1, 2023." [2023 c 150 § 12.]

Findings--Intent--2023 c 150: See note following RCW 9A.44.130.

West's RCWA 9A.44.144, WA ST 9A.44.144

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.145

9A.44.145. Notification to offenders of changed requirements and ability to petition for relief from registration

Effective: July 23, 2023

Currentness

(1) The state patrol shall notify:

(a) Registered sex and kidnapping offenders of any change to the registration requirements, including the extinguishment of a legal obligation to register under RCW 9A.44.144;

(b) No less than annually, an offender having a duty to register under RCW 9A.44.143 for a sex offense or kidnapping offense committed when the offender was a juvenile of their ability to petition for relief from registration as provided in RCW 9A.44.140; and

(c) A school's or institution's designated recipient of records under RCW 9A.44.138 regarding the extinguishment of a student's legal obligation to register under RCW 9A.44.144.

(2) For economic efficiency, the state patrol may combine the notices in this section into one notice.

Credits

[2023 c 150 § 11, eff. July 23, 2023; 2010 c 267 § 8, eff. June 10, 2010; 2009 c 210 § 1, eff. July 26, 2009; 1998 c 139 § 2.]

OFFICIAL NOTES

Findings--Intent--2023 c 150: See note following RCW 9A.44.130.

Application--2010 c 267: See note following RCW 9A.44.128.

West's RCWA 9A.44.145, WA ST 9A.44.145

Current with all legislation of the 2025 Regular Session of the Washington Legislature.

West's Revised Code of Washington Annotated
Title 9A. Washington Criminal Code (Refs & Annos)
Chapter 9A.44. Sex Offenses (Refs & Annos)

West's RCWA 9A.44.148

9A.44.148. Application of RCW 9A.44.128 through 9A.44.145--
Duty to register under law as it existed prior to July 28, 1991

Effective: July 24, 2015
Currentness

(1) RCW 9A.44.128 through 9A.44.145 apply to offenders who committed their crimes and were adjudicated within the following time frames:

- (a) Sex offenders convicted of a sex offense on or after July 28, 1991, for a sex offense committed on or after February 28, 1990;
- (b) Kidnapping offenders convicted of a kidnapping offense on or after July 27, 1997, for a kidnapping offense committed on or after July 27, 1997;
- (c) Sex offenders who, on or after July 28, 1991, were in the custody or under the jurisdiction of the department of corrections, the department of social and health services, a local division of youth services, or a local jail or juvenile detention facility as the result of a sex offense, regardless of when the sex offense was committed;
- (d) Kidnapping offenders who, on or after July 27, 1997, were in the custody or under the jurisdiction of the department of corrections, the department of social and health services, a local division of youth services, or a local jail or juvenile detention facility as the result of a kidnapping offense, regardless of when the kidnapping offense was committed;
- (e) Any person who is or has been determined to be a sexually violent predator pursuant to chapter 71.09 RCW;
- (f) Sex offenders who, on or after July 23, 1995, were in the custody or under the jurisdiction of the United States bureau of prisons, United States courts, United States parole commission, or military parole board as the result of a sex offense, regardless of when the sex offense was committed;
- (g) Kidnapping offenders who, on or after July 27, 1997, were in the custody or under the jurisdiction of the United States bureau of prisons, United States courts, United States parole commission, or military parole board as the result of a kidnapping offense, regardless of when the kidnapping offense was committed;
- (h) Sex offenders who move to Washington state from another state, tribe, or a foreign country and who were convicted of a sex offense under the laws of this state, another state, a foreign country, tribe, or other federal or military tribunal, regardless of when the sex offense was committed or the conviction occurred;

(i) Kidnapping offenders who move to Washington state from another state, tribe, or a foreign country and who were convicted of a kidnapping offense under the laws of this state, another state, a foreign country, tribe, or other federal or military tribunal, regardless of when the kidnapping offense was committed or the conviction occurred;

(j) Any adult or juvenile found not guilty by reason of insanity under chapter 10.77 RCW of committing a sex offense or of committing a kidnapping offense, regardless of when the offense was committed.

(2) The provisions of this section do not relieve any sex offender of the duty to register under the law as it existed prior to July 28, 1991.

Credits

[2015 c 261 § 4, eff. July 24, 2015.]

West's RCWA 9A.44.148, WA ST 9A.44.148

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West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.45

301.45. Sex offender registration

Effective: December 10, 2025

Currentness

(1d) Definitions. In this section:

(a) “Employed or carrying on a vocation” means employment or vocational activity that is full-time or part-time for a continuous period of time exceeding 14 days or for an aggregate period of time exceeding 30 days during any calendar year, whether financially compensated, volunteered or for the purpose of government or educational benefit.

(am) “Found to have committed a sex offense by another jurisdiction” means any of the following:

1. Convicted or found not guilty or not responsible by reason of mental disease or defect for a violation of a law of another state that is comparable to a sex offense.
2. Convicted or found not guilty by reason of mental disease or defect for a violation of a federal law that is comparable to a sex offense.
3. Convicted or found not guilty or not responsible by reason of mental disease or defect in the tribal court of a federally recognized American Indian tribe or band for a violation that is comparable to a sex offense.
4. Sentenced or found not guilty by reason of mental disease or defect by a court martial for a violation that is comparable to a sex offense.

(b) “Sex offense” means a violation, or the solicitation, conspiracy, or attempt to commit a violation, of s. 940.22(2), 940.225(1), (2) or (3), 944.06, 944.18, 948.02(1) or (2), 948.025, 948.05, 948.051, 948.055, 948.06, 948.07(1) to (4), 948.075, 948.08, 948.085, 948.095, 948.11(2)(a) or (am), 948.12, 948.125, 948.13, or 948.30, of s. 940.302(2) if s. 940.302(2)(a)1. b. applies, or of s. 940.30 or 940.31 if the victim was a minor and the person who committed the violation was not the victim's parent.

(c) “Student” means a person who is enrolled on a full-time or part-time basis in any public, private, or tribal educational institution, including a secondary school, a business, trade, technical or vocational school, or an institution of higher education.

(1g) Who is covered. Except as provided in subs. (1m) and (1p), a person shall comply with the reporting requirements under this section if he or she meets one or more of the following criteria:

- (a) Is convicted or adjudicated delinquent on or after December 25, 1993, for a sex offense.
- (b) Is in prison, a juvenile correctional facility, or a secured residential care center for children and youth or is on probation, extended supervision, parole, supervision, community supervision, or aftercare supervision on or after December 25, 1993, for a sex offense.
- (bm) Is in prison, a juvenile correctional facility, or a secured residential care center for children and youth or is on probation, extended supervision, parole, supervision, community supervision, or aftercare supervision on or after December 25, 1993, for a violation, or for the solicitation, conspiracy, or attempt to commit a violation, of a law of this state that is comparable to a sex offense.
- (c) Is found not guilty or not responsible by reason of mental disease or defect on or after December 25, 1993, and committed under s. 51.20 or 971.17 for a sex offense.
- (d) Is in institutional care or on conditional transfer under s. 51.35(1) or conditional release under s. 971.17 on or after December 25, 1993, for a sex offense.
- (dd) Is in institutional care or on conditional transfer under s. 51.35(1) or conditional release under s. 971.17 on or after December 25, 1993, for a violation, or for the solicitation, conspiracy or attempt to commit a violation, of a law of this state that is comparable to a sex offense.
- (dh) Is on parole, extended supervision, or probation in this state from another state under s. 304.13 (1m), 304.135, or 304.16 on or after December 25, 1993, for a violation, or for the solicitation, conspiracy, or attempt to commit a violation, of the law of another state that is comparable to a sex offense.
- (dj) Is a juvenile in this state on or after May 9, 2000, and is on supervision in this state from another state pursuant to the interstate compact on the placement of children under ss. 48.988 and 48.989, the interstate compact for the placement of children under s. 48.99, or the interstate compact for juveniles under s. 938.999 for a violation of a law of another state that is comparable to a sex offense.
- (dL) Is placed on lifetime supervision under s. 939.615 on or after June 26, 1998.
- (dp) Is in institutional care under, or on parole from, a commitment for specialized treatment under ch. 975 on or after December 25, 1993.
- (dt) Is in institutional care or on supervised release under ch. 980 on or after June 2, 1994.
- (e) Is ordered by a court under s. 51.20(13)(ct)1m., 938.34(15m)(am), 938.345(3), 971.17(1m)(b)1m. or 973.048(1m) to comply with the reporting requirements under this section.

(em) Was required to register under s. 301.45(1)(a), 1997 stats., based on a finding that he or she was in need of protection or services and is ordered to continue complying with the requirements of this section by a court acting under 1999 Wisconsin Act 89, section 107(1)(e).

(f) On or after December 1, 2000, is registered as a sex offender in another state or is registered as a sex offender with the federal bureau of investigation under 42 USC 14072 and is a resident of this state, a student in this state or employed or carrying on a vocation in this state.

(g) Has been found to have committed a sex offense by another jurisdiction and, on or after December 1, 2000, is a resident of this state, a student in this state or employed or carrying on a vocation in this state. This paragraph does not apply if 10 years have passed since the date on which the person was released from prison or placed on parole, probation, extended supervision or other supervised release for the sex offense.

(1m) Exception to registration requirement; underage sexual activity. (a) A person is not required to comply with the reporting requirements under this section if any of the following applies:

1m. All of the following apply:

a. The person meets the criteria under sub. (1g)(a) to (dd) based on any violation, or on the solicitation, conspiracy or attempt to commit any violation, of s. 948.02(1) or (2), 948.025, or 948.085(2).

b. The violation, or the solicitation, conspiracy or attempt to commit the violation, of s. 948.02(1) or (2), 948.025, or 948.085(2) did not involve sexual intercourse, as defined in s. 948.01(6), either by the use or threat of force or violence or with a victim under the age of 12 years.

c. At the time of the violation, or of the solicitation, conspiracy or attempt to commit the violation, of s. 948.02(1) or (2), 948.025, or 948.085(2), the person had not attained the age of 19 years and was not more than 4 years older or not more than 4 years younger than the child.

d. It is not necessary, in the interest of public protection, to require the person to comply with the reporting requirements under this section.

2m. All of the following apply:

a. The person meets the criteria under sub. (1g)(a) based on a violation, or on the solicitation, conspiracy or attempt to commit a violation, of s. 940.225(3)(a).

b. At the time of the violation, or of the solicitation, conspiracy or attempt to commit the violation, of s. 940.225(3)(a), the person had not attained the age of 19 years and the victim had attained the age of 15 years.

c. It is not necessary, in the interest of public protection, to require the person to comply with the reporting requirements under this section.

(b) If a person believes that he or she is not required under par. (a) to comply with the reporting requirements under this section and the person is not before the court under s. 51.20(13)(ct), 938.34(15m), 971.17(1m)(b) or 973.048, the person may move a court to make a determination of whether the person satisfies the criteria specified in par. (a). A motion made under this paragraph shall be filed with the circuit court for the county in which the person was convicted, adjudicated delinquent or found not guilty or not responsible by reason of mental disease or defect.

(be) A person who files a motion under par. (b) or s. 51.20 (13) (ct) 2m., 938.34 (15m) (bm), 971.17 (1m) (b) 2m. or 973.048 (2m) requesting a determination of whether the person is required to comply with the reporting requirements under this section shall send a copy of the motion to the district attorney for the county in which the motion is filed. The district attorney shall make a reasonable attempt to contact the victim of the crime that is the subject of the person's motion to inform the victim of his or her right to make or provide a statement under par. (bv).

(bm) A court shall hold a hearing on a motion made by a person under par. (b) or s. 51.20 (13) (ct) 2m., 938.34 (15m) (bm), 971.17 (1m) (b) 2m. or 973.048 (2m) requesting a determination of whether the person is required to comply with the reporting requirements under this section. The district attorney who receives a copy of a motion under par. (be) may appear at the hearing.

(bv) Before deciding a motion filed under par. (b) or s. 51.20 (13) (ct) 2m., 938.34 (15m) (bm), 971.17 (1m) (b) 2m. or 973.048 (2m) requesting a determination of whether the person is required to comply with the reporting requirements under this section, the court shall allow the victim of the crime that is the subject of the motion to make a statement in court at the hearing under par. (bm) or to submit a written statement to the court. A statement under this paragraph must be relevant to whether the person satisfies the criteria specified in par. (a).

(d)1. Before deciding a motion filed by a person under par. (b) or s. 51.20 (13) (ct) 2m., 938.34 (15m) (bm), 971.17 (1m) (b) 2m. or 973.048 (2m) requesting a determination of whether the person is required to comply with the reporting requirements under this section, a court may request the person to be examined by a physician, psychologist or other expert approved by the court. If the person refuses to undergo an examination requested by the court under this subdivision, the court shall deny the person's motion without prejudice.

2. If a person is examined by a physician, psychologist or other expert under subd. 1., the physician, psychologist or other expert shall file a report of his or her examination with the court, and the court shall provide copies of the report to the person and, if he or she requests a copy, to the district attorney. The contents of the report shall be confidential until the physician, psychologist or other expert has testified at the hearing held under par. (bm). The report shall contain an opinion regarding whether it would be in the interest of public protection to have the person register under this section and the basis for that opinion.

3. A person who is examined by a physician, psychologist or other expert under subd. 1. is responsible for paying the cost of the services provided by the physician, psychologist or other expert, except that if the person is indigent the cost of the services provided by the physician, psychologist or other expert shall be paid by the county. If the person claims or appears to be indigent, the court shall refer the person to the authority for indigency determinations under s. 977.07 (1), except that the person shall be considered indigent without another determination under s. 977.07 (1) if the person is represented by the state public defender or by a private attorney appointed under s. 977.08.

(e) At the hearing held under par. (bm), the person who filed the motion under par. (b) or s. 51.20(13)(ct)2m., 938.34(15m)(bm), 971.17(1m)(b)2m. or 973.048(2m) has the burden of proving by clear and convincing evidence that he or she satisfies the criteria specified in par. (a). In deciding whether the person has satisfied the criterion specified in par. (a) 1m. d. or 2m. c., the court may consider any of the following:

1. The ages, at the time of the violation, of the person and of the child with whom the person had sexual contact or sexual intercourse.
2. The relationship between the person and the child with whom the person had sexual contact or sexual intercourse.
3. Whether the violation resulted in bodily harm, as defined in s. 939.22 (4), to the child with whom the person had sexual contact or sexual intercourse.
4. Whether the child with whom the person had sexual contact or sexual intercourse suffered from a mental illness or mental deficiency that rendered the child temporarily or permanently incapable of understanding or evaluating the consequences of his or her actions.
5. The probability that the person will commit other violations in the future.
6. The report of the examination conducted under par. (d).
7. Any other factor that the court determines may be relevant to the particular case.

(1p) Exception to registration requirement; privacy-related offenses. (a) If a person is covered under sub. (1g) based solely on an order that was entered under s. 938.34(15m)(am) or 973.048(1m) in connection with a delinquency adjudication or a conviction for a violation of s. 942.08(2)(b), (c), or (d) or (3), the person is not required to comply with the reporting requirements under this section if the delinquency adjudication is expunged under s. 938.355(4m)(b) or if the conviction is expunged under s. 973.015(1m)(b).

(b) If a person is covered under sub. (1g) based solely on an order that was entered under s. 51.20(13)(ct)1m., 938.34(15m)(am), 938.345(3)(a), 971.17(1m)(b)1m., or 973.048(1m) in connection with a violation, or the solicitation, conspiracy, or attempt to commit a violation, of s. 942.09 or 942.095, and the court provided in the order that the person be released from the requirement to comply with the reporting requirements under this section upon satisfying the conditions of the court order under s. 51.20(13)(ct)1m. or the dispositional order under subch. VI of ch. 938, upon the termination or expiration of a commitment order under s. 971.17, or upon successful completion of the sentence or probation as provided under s. 973.048(1m)(b), whichever is applicable, and the person satisfies the conditions of the court order under s. 51.20(13)(ct)1m. or the dispositional order under subch. VI of ch. 938, the commitment order under s. 971.17 is terminated or expires, or the person successfully completes the sentence or probation, whichever is applicable, the person is no longer required to comply with the reporting requirements under this section.

(2) What information must be provided, by whom and when. (a) The department shall maintain a registry of all persons subject to sub. (1g). The registry shall contain all of the following with respect to each person:

1. The person's name, including any aliases used by the person.
2. Information sufficient to identify the person, including date of birth, gender, race, height, weight and hair and eye color.
3. The statute the person violated that subjects the person to the requirements of this section, the date of conviction, adjudication or commitment, and the county or, if the state is not this state, the state in which the person was convicted, adjudicated or committed.
- 3m. a. Any sex offense that was dismissed as part of a plea agreement if the sentencing court ordered that the offender be subject to the registration requirements of this section.
- b. Any sex offense that was dismissed as part of a plea agreement if the adjudicating court ordered that the juvenile be subject to the registration requirements of this section.
4. Whichever of the following is applicable:
 - a. The date the person was placed on probation, supervision, conditional release, conditional transfer or supervised release.
 - b. The date the person was or is to be released from confinement, whether on parole, extended supervision or otherwise, or discharged or terminated from a sentence or commitment.
 - c. The date the person entered the state.
 - d. The date the person was ordered to comply with this section.
5. All addresses at which the person is or will be residing.
6. The name of the agency supervising the person, if applicable, and the office or unit and telephone number of the office or unit that is responsible for the supervision of the person.
- 6m. The name or number of every electronic mail account the person uses, the Internet address of every website the person creates or maintains, every Internet user name the person uses, and the name and Internet address of every public or private Internet profile the person creates, uses, or maintains. The department may not place the information provided under this subdivision on any registry that the public may view but shall maintain the information in its records on the person. This subdivision applies only to an account, website, Internet address, or Internet profile the person creates, uses, or maintains for his or her personal, family, or household use.

8. The name and address of the place at which the person is or will be employed.

9. The name and location of any school in which the person is or will be enrolled.

9m. For a person covered under sub. (1g)(dt), a notation concerning the treatment that the person has received for his or her mental disorder, as defined in s. 980.01(2).

10. The most recent date on which the information in the registry was updated.

(b) If the department has supervision over a person subject to sub. (1g), the department shall enter into the registry under this section the information specified in par. (a) concerning the person.

(c) If the department of health services has supervision over a person subject to sub. (1g), that department, with the assistance of the person, shall provide the information specified in par. (a) to the department of corrections in accordance with the rules under sub. (8).

(d) A person subject to sub. (1g) who is not under the supervision of the department of corrections or the department of health services shall provide the information specified in par. (a) to the department of corrections in accordance with the rules under sub. (8). If the person is unable to provide an item of information specified in par. (a), the department of corrections may request assistance from a circuit court or the department of health services in obtaining that item of information. A circuit court and the department of health services shall assist the department of corrections when requested to do so under this paragraph.

(e) The department of health services shall provide the information required under par. (c) or the person subject to sub. (1g) shall provide the information required under par. (d) in accordance with whichever of the following is applicable:

1. Within 10 days after the person is placed on probation, supervision, community supervision, aftercare supervision, conditional release, or supervised release.

1m. If the person is being released from a prison sentence and placed on parole or extended supervision, before he or she is released.

2. If the person is on parole, extended supervision, probation, or other supervision from another state under ss. 48.988 and 48.989 or under s. 48.99, 304.13(1m), 304.135, 304.16, or 938.999, before the person enters this state.

2m. If the person is registered as a sex offender in another state or is registered as a sex offender with the federal bureau of investigation under 42 USC 14072, within 10 days after the person enters this state to take up residence or begin school, employment or his or her vocation.

2t. If the person has been found to have committed a sex offense by another jurisdiction and subd. 2m. does not apply, within 10 days after the person enters this state to take up residence or begin school, employment or his or her vocation.

3. No later than 10 days before the person is terminated or discharged from a commitment.

4. If the person is being released from prison because he or she has reached the expiration date of his or her sentence, no later than 10 days before being released from prison.

5. If subd. 1., 1m., 2., 2m., 2t., 3. or 4. does not apply, within 10 days after the person is sentenced or receives a disposition.

(f) The department may require a person covered under sub. (1g) to provide the department with his or her fingerprints, a recent photograph of the person and any other information required under par. (a) that the person has not previously provided. The department may require the person to report to a place designated by the department, including an office or station of a law enforcement agency, for the purpose of obtaining the person's fingerprints, the photograph or other information.

(g) The department may send a person subject to sub. (1g) a notice or other communication requesting the person to verify the accuracy of any information contained in the registry. A person subject to sub. (1g) who receives a notice or communication sent by the department under this paragraph shall, no later than 10 days after receiving the notice or other communication, provide verification of the accuracy of the information to the department in the form and manner specified by the department.

(h) The department shall notify any person who is subject to sub. (1g) of the prohibition under s. 948.14.

(3) Annual registration requirements. (a) A person covered under sub. (1g) is subject to the annual registration requirements under par. (b) as follows:

1. If the person has been placed on probation or supervision, he or she is subject to this subsection upon being placed on probation or supervision.

1m. If the person is on parole, extended supervision, probation, or other supervision from another state under ss. 48.988 and 48.989 or under s. 48.99, 304.13(1m), 304.135, 304.16, or 938.999, he or she is subject to this subsection upon entering this state.

1r. If the person is registered as a sex offender in another state or is registered as a sex offender with the federal bureau of investigation under 42 USC 14072, within 10 days after the person enters this state to take up residence or begin school, employment or his or her vocation.

1t. If the person has been found to have committed a sex offense by another jurisdiction and subd. 1r. does not apply, within 10 days after the person enters this state to take up residence or begin school, employment or his or her vocation.

2. If the person has been sentenced to prison or placed in a juvenile correctional facility or a secured residential care center for children and youth, he or she is subject to this subsection upon being released on parole, extended supervision, community supervision, or aftercare supervision.

2m. If the person has been sentenced to prison and is being released from prison because he or she has reached the expiration date of his or her sentence, before being released from prison.

3. If the person has been committed under s. 51.20 or 971.17, he or she is subject to this subsection upon being placed on conditional release under s. 971.17 or on a conditional transfer under s. 51.35(1) or, if he or she was not placed on conditional release or on a conditional transfer, before he or she is terminated under s. 971.17(5) or discharged under s. 51.35(4) or 971.17(6).

3g. If the person has been committed for specialized treatment under ch. 975, he or she is subject to this subsection upon being released on parole under s. 975.10 or, if he or she was not released on parole, before being discharged from the commitment under s. 975.09 or 975.12.

3r. If the person has been committed under ch. 980, he or she is subject to this subsection upon being placed on supervised release under s. 980.06(2), 1997 stats., or s. 980.08 or, if he or she was not placed on supervised release, before being discharged under s. 980.10, 2003 stats., or s. 980.09 (4).

4. If subd. 1., 1m., 1r., 1t., 2., 2m., 3., 3g. or 3r. does not apply, the person is subject to this subsection after he or she is sentenced or receives a disposition.

(b)1. Except as provided in subd. 1m., a person who is subject to par. (a) shall notify the department once each calendar year, as directed by the department, of his or her current information specified in sub. (2)(a). The department shall annually notify registrants of their need to comply with this requirement. If the registrant is a person under the age of 18, the department may also annually notify the registrant's parent, guardian or legal custodian of the registrant's need to comply with this requirement.

1m. A person who is subject to lifetime registration under sub. (5)(b)2. or (5m)(b)4. shall notify the department once each 90 days, as directed by the department, of his or her current information specified in sub. (2)(a). Every 90 days, the department shall notify registrants subject to this subdivision of their need to comply with this requirement. If the registrant subject to this subdivision is a person under the age of 18, the department may also notify the registrant's parent, guardian or legal custodian every 90 days of the registrant's need to comply with this requirement.

2. The department shall notify a person who is being released from prison in this state because he or she has reached the expiration date of his or her sentence and who is covered under sub. (1g) of the need to comply with the requirements of this section. Also, probation, extended supervision, and parole agents, community supervision agents, aftercare agents, and agencies providing supervision shall notify any client who is covered under sub. (1g) of the need to comply with the requirements of this section at the time that the client is placed on probation, extended supervision, parole, supervision, community supervision, or aftercare supervision or, if the client is on probation, extended supervision, parole, or other supervision from another state under ss. 48.988 and 48.989 or under s. 48.99, 304.13(1m), 304.135, 304.16, or 938.999, when the client enters this state.

3. The department of health services shall notify a person who is being placed on conditional release, supervised release, conditional transfer or parole, or is being terminated or discharged from a commitment, under s. 51.20, 51.35 or 971.17 or ch. 975 or 980 and who is covered under sub. (1g) of the need to comply with the requirements of this section.

3m. After notifying a person under subd. 2. or 3. of the need to comply with this section, the person who is providing the notification shall require the person who is covered under sub. (1g) to read and sign a form stating that he or she has been informed of the requirements of this section.

4. It is not a defense to liability under sub. (6)(a) or (ag) that the person subject to sub. (1g) was not required to read and sign a form under subd. 3m., was not provided with a form to read and sign under subd. 3m. or failed or refused to read or sign a form under subd. 3m. It is not a defense to liability under sub. (6)(a) or (ag) that the person subject to sub. (1g) did not receive notice under this paragraph from the department of health services, the department of corrections, a probation, extended supervision, and parole agent, a community supervision agent, an aftercare agent, or an agency providing supervision.

(4) Updated information. In addition to the requirements under sub. (3), a person who is covered under sub. (1g) shall update information under sub. (2)(a) as follows:

(a) Except as provided in par. (b), whenever any of the information under sub. (2)(a) changes, the person shall provide the department with the updated information within 10 days after the change occurs.

(b) If the person is on parole or extended supervision and the person knows that any of the information under sub. (2)(a)5. will be changing, the person shall provide the department with the updated information before the change in his or her address occurs. If the person is on parole or extended supervision and any of the information under sub. (2)(a)5. changes but the person did not know before the change occurred that his or her address would be changing, the person shall provide the department with the updated information within 24 hours after the change in his or her address occurs.

(4m) Information concerning a move to or schooling or employment in another state. In addition to the requirements under subs. (3) and (4), a person who is covered under sub. (1g) and who is changing his or her residence from this state to another state, is becoming a student in another state or is to be employed or carrying on a vocation in another state shall, no later than 10 days before he or she moves out of this state, begins school or begins employment or his or her vocation, notify the department that he or she is changing his or her residence from this state, is beginning school in another state or is beginning employment or the carrying on of a vocation in another state. The person shall also inform the department of the state to which he or she is moving his or her residence, the state in which he or she will be in school or the state in which he or she will be employed or carrying on a vocation. Upon receiving notification from a person under this subsection, the department shall do all of the following:

(a) Inform the person whether the state to which the person is moving, the state in which the person will be in school or the state in which the person will be employed or carrying on a vocation has sex offender registration requirements to which the person may be subject and, if so, the name of the agency to contact in that state for information concerning those requirements.

(b) Inform the agency responsible for sex offender registration in the state to which the person is moving, in which the person will be in school or in which the person will be employed or carrying on a vocation that the person is moving to the state, beginning school in the state or beginning employment or carrying on a vocation in the state, and provide the agency of the other state with all of the information specified in sub. (2)(a).

(4r) Restriction on certain registrants establishing or changing residence. No person covered under sub. (1g) who is on parole or extended supervision may establish a residence or change his or her residence unless he or she has complied with all of the applicable requirements of subs. (2)(e), (3)(b) and (4)(b).

(5) Release from requirements for persons who committed a sex offense in this state. (a) Except as provided in pars. (am) and (b), a person who is covered under sub. (1g)(a), (b), (bm), (c), (d), (dd), (dp), (e) or (em) no longer has to comply with this section when the following applicable criterion is met:

1. If the person has been placed on probation or supervision for a sex offense, 15 years after discharge from the probation or supervision imposed for the sex offense.

2. If the person has been sentenced to prison for a sex offense or placed in a juvenile correctional facility or a secured residential care center for children and youth for a sex offense, 15 years after discharge from parole, extended supervision, community supervision, or aftercare supervision for the sex offense.

2m. If the person has been sentenced to prison for a sex offense and is being released from prison because he or she has reached the expiration date of the sentence for the sex offense, 15 years after being released from prison.

3. If the person has been committed to the department of health services under s. 51.20 or 971.17 and is in institutional care or on conditional transfer under s. 51.35(1) or conditional release under s. 971.17 for a sex offense, 15 years after termination of the commitment for the sex offense under s. 971.17(5) or discharge from the commitment for the sex offense under s. 51.35(4) or 971.17(6).

3m. If the person has been committed for specialized treatment under ch. 975, 15 years after discharge from the commitment under s. 975.09 or 975.12.

4. If subd. 1., 2., 2m., 3. or 3m. does not apply, 15 years after the date of conviction for the sex offense or 15 years after the date of disposition of the sex offense, whichever is later.

(am)1. Except as provided in subd. 2., a person who is covered under sub. (1g)(dL) shall continue to comply with the requirements of this section until his or her death.

2. A person who is covered under sub. (1g)(dL) is not required to comply with the requirements of this section if a court orders that the person is no longer required to comply under s. 939.615(6)(i).

(b) A person who is covered under sub. (1g)(a), (b), (bm), (c), (d), (dd), (dp) or (e) shall continue to comply with the requirements of this section until his or her death if any of the following applies:

1. The person has been convicted 2 or more times, including convictions that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, for a sex offense or for a violation, or the solicitation, conspiracy,

or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense; has been found 2 or more times, including findings that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, not guilty or not responsible by reason of mental disease or defect for a sex offense, or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, a military law, a tribal law, or a law of any state that is comparable to a sex offense; or has been convicted one time for a sex offense or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense and has been found one time not guilty or not responsible by reason of mental disease or defect for a sex offense, or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, a military law, a tribal law, or a law of any state that is comparable to a sex offense. A conviction or finding of not guilty or not responsible by reason of mental disease or defect that has been reversed, set aside, or vacated is not a conviction or finding for purposes of counting the number of convictions or findings under this subdivision.

1m. The person has been convicted or found not guilty or not responsible by reason of mental disease or defect for a violation, or for the solicitation, conspiracy or attempt to commit a violation, of s. 940.225(1) or (2), 948.02(1) or (2), 948.025, or 948.085(2). A conviction or finding of not guilty or not responsible by reason of mental disease or defect that has been reversed, set aside or vacated is not a conviction or finding for purposes of this subdivision.

2. The person has been found to be a sexually violent person under ch. 980, regardless of whether the person has been discharged under s. 980.10, 2003 stats., or s. 980.09 (4) from the sexually violent person commitment, except that the person no longer has to comply with this section if the finding that the person is a sexually violent person has been reversed, set aside or vacated.

3. The court that ordered the person to comply with the reporting requirements of this section under s. 51.20(13)(ct), 938.34(15m), 938.345(3), 971.17(1m)(b) or 973.048 also ordered the person to comply with the requirements until his or her death.

(5m) Release from requirements for persons who committed a sex offense in another jurisdiction. (a) Except as provided in pars. (b) and (c), a person who is covered under sub. (1g)(dh), (dj), (f) or (g) no longer has to comply with this section when the following applicable criterion is met:

1. If the person is on parole, extended supervision, probation, or other supervision from another state under ss. 48.988 and 48.989 or under s. 48.99, 304.13(1m), 304.135, 304.16, or 938.999, 15 years after discharge from that parole, extended supervision, probation, or other supervision or the period of time that the person is in this state, whichever is less.

2. If the person is registered as a sex offender in another state or is registered as a sex offender with the federal bureau of investigation under 42 USC 14072, whichever of the following is less:

a. The period of time that the person is a resident of this state, a student in this state or employed or carrying on a vocation in this state.

b. The period of time that the person is registered as a sex offender in another state or with the federal bureau of investigation, or 10 years from the date on which the person was released from prison or placed on parole, probation, extended supervision or other supervised release for the sex offense which subjects the person to the requirements of this section, whichever is greater.

3. If the person has been found to have committed a sex offense by another jurisdiction and subd. 2. does not apply, whichever of the following is less:

a. The period of time that the person is a resident of this state, a student in this state or employed or carrying on a vocation in this state.

b. Ten years from the date on which the person was released from prison or placed on parole, probation, extended supervision or other supervised release for the sex offense that subjects the person to the requirements of this section.

(b) A person who is covered under sub. (1g)(dh), (dj), (f) or (g) shall continue to comply with the requirements of this section for as long as the person is a resident of this state, a student in this state or employed or carrying on a vocation in this state if one or more of the following apply:

1. The person is registered as a sex offender in another state or is registered as a sex offender with the federal bureau of investigation under 42 USC 14072 and the person is required to register with that other state or with the federal bureau of investigation until his or her death.

2. The person has been convicted or found not guilty or not responsible by reason of mental disease or defect for a violation of s. 940.225(1) or (2), 948.02(1) or (2), 948.025, or 948.085, or for the solicitation, conspiracy or attempt to commit a violation, of a federal law, a military law, a tribal law or a law of any state that is comparable to a violation of s. 940.225(1) or (2), 948.02(1) or (2), 948.025, or 948.085. A conviction or finding of not guilty or not responsible by reason of mental disease or defect that has been reversed, set aside or vacated is not a conviction or finding for purposes of this subdivision.

3. The person has been convicted 2 or more times, including convictions that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, for a sex offense or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense; has been found 2 or more times, including findings that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, not guilty or not responsible by reason of mental disease or defect for a sex offense or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense; or has been convicted one time for a sex offense or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense and has been found one time not guilty or not responsible by reason of mental disease or defect for a sex offense, or for a violation, or the solicitation, conspiracy, or attempt to commit a violation, of a federal law, military law, tribal law, or law of any state that is comparable to a sex offense. A conviction or finding of not guilty or not responsible by reason of mental disease or defect that has been reversed, set aside, or vacated is not a conviction or finding for purposes of counting the number of convictions or findings under this subdivision.

4. A determination has been made as provided under 42 USC 14071(a)(2)(A) or (B) that the person is a sexually violent predator, or lifetime registration by the person is required under measures approved by the attorney general of the United States under 42 USC 14071(a)(2)(C).

(c) This subsection does not apply to a person who is required to register as a sex offender under one or more of the criteria specified in sub. (1g)(a), (b), (bm), (c), (d), (dd), (dp), (e) or (em).

(6) Penalty. (a) Whoever knowingly fails to comply with any requirement to provide information under subs. (2) to (4) is subject to the following penalties:

1. Except as provided in subd. 2., the person is guilty of a Class H felony.
2. The person may be fined not more than \$10,000 or imprisoned for not more than 9 months or both if all of the following apply:
 - a. The person was ordered under s. 51.20(13)(ct)1m., 938.34(15m)(am), 938.345(3), 971.17(1m)(b)1m., or 973.048(1m) to comply with the reporting requirements under this section based on a finding that he or she committed or solicited, conspired, or attempted to commit a misdemeanor.
 - b. The person was not convicted of knowingly failing to comply with any requirement to provide information under subs. (2) to (4) before committing the present violation.

(ag) Whoever intentionally violates sub. (4r) is subject to the following penalties:

1. Except as provided in subd. 2., the person is guilty of a Class H felony.
2. The person may be fined not more than \$10,000 or imprisoned for not more than 9 months or both if all of the following apply:
 - a. The person was ordered under s. 51.20(13)(ct)1m., 938.34(15m)(am), 938.345(3), 971.17(1m)(b)1m., or 973.048(1m) to comply with the reporting requirements under this section based on a finding that he or she committed or solicited, conspired, or attempted to commit a misdemeanor.
 - b. The person was not convicted of another offense under sub. (4r) before committing the present violation.

(am) Whoever knowingly fails to keep information confidential as required under sub. (7) may be fined not more than \$500 or imprisoned for not more than 30 days or both.

(bm) Subject to s. 971.19(9), a district attorney or, upon the request of a district attorney, the department of justice may prosecute a knowing failure to comply with any requirement to provide information under subs. (2) to (4). If the department of corrections determines that there is probable cause to believe that a person has knowingly failed to comply with any requirement to provide information under subs. (2) to (4) or has intentionally violated sub. (4r), the department shall forward a certified copy of all pertinent departmental information to the applicable district attorney. The department shall certify the copy in accordance with s. 889.08.

(c) Notwithstanding par. (a), a person who first became subject to subs. (2) to (4) under 1995 Wisconsin Act 440 and who was in prison or a secured correctional facility or a secured child caring institution, in institutional care, or on probation, parole, supervision, aftercare supervision, corrective sanctions supervision, conditional transfer or conditional release during the period

beginning on December 25, 1993, and ending on May 31, 1997, shall be allowed until January 1, 1998, to comply with the requirements under subs. (2) to (4).

(d) Notwithstanding par. (a), a person who first became subject to subs. (2) to (4) under 1999 Wisconsin Act 89 and who was in prison or a secured correctional facility or a secured child caring institution, in institutional care, or on probation, parole, supervision, aftercare supervision, corrective sanctions supervision, conditional transfer or conditional release during the period beginning on December 25, 1993, and ending on May 31, 2000, shall be allowed until January 1, 2001, to comply with the requirements under subs. (2) to (4).

(6m) Notice to other jurisdictions concerning noncompliance. If the department has reasonable grounds to believe that a person who is covered under sub. (1g)(f) or (g) is residing in this state, is a student in this state or is employed or carrying on a vocation in this state and that the person is not complying with the requirements of this section, the department shall notify the state agency responsible for the registration of sex offenders in any state in which the person is registered that it believes the person is not complying with the requirements of this section. If the person is registered with the federal bureau of investigation under 42 USC 14072, the department shall notify the federal bureau of investigation that it believes the person is not complying with the requirements of this section.

(7) Information maintenance and expungement. (a) The department shall maintain information provided under sub. (2). The department shall keep the information confidential except as provided in ss. 301.03(14) and 301.46, except as needed for law enforcement purposes and except to provide, in response to a request for information under s. 49.22(2m) made by the department of children and families or a county child support agency under s. 59.53(5), the name and all residential addresses of an individual registered under this section, the name and address of the individual's employer and financial information related to the individual.

(b) The department shall not charge a fee for providing information under this subsection.

(c) A person about whom information is maintained in the registry under sub. (2) may request expungement of all pertinent information in the registry if any of the following applies:

1m. The person's conviction, delinquency adjudication, finding of need of protection or services or commitment has been reversed, set aside or vacated.

2m. A court has determined under sub. (1m) (b) that the person is not required to comply with the reporting requirements under this section.

(d) The department shall purge all of the information maintained in the registry under sub. (2) concerning a person to whom par. (c) applies if the department receives all of the following:

1. The person's written request for expungement.

2. A certified copy of the court order reversing, setting aside or vacating the conviction, delinquency adjudication, finding of need of protection or services or commitment or a certified copy of the court's determination under sub. (1m) (b).

(e) The department shall purge all of the information maintained in the registry under sub. (2) concerning a person to whom sub. (1p)(a) applies if any of the following occurs:

1. The department receives notice under s. 938.355(4m)(b) that a court has expunged the record of the person's delinquency adjudication for the violation described in sub. (1p)(a).
2. The department issues a certificate of discharge under s. 973.015(1m)(b).
3. The department receives a certificate of discharge issued under s. 973.015(1m)(b) by the detaining authority.

(f) The department shall purge all of the information maintained in the registry under sub. (2) concerning a person to whom sub. (1p)(b) applies when any of the following occurs:

1. If the person was ordered by a court under s. 51.20(13)(ct)1m. to comply with the reporting requirements under this section, when the department receives notice under s. 51.20(13)(ct)1m.b. that the person has satisfied conditions of the court order.
2. If the person was ordered by a court under s. 938.34(15m)(am) to comply with the reporting requirements under this section, when the department receives notice under s. 938.34(15m)(am)2. that the juvenile has satisfied the conditions of the dispositional order.
3. If the person was ordered by a court under s. 938.345(3)(a) to comply with the reporting requirements under this section, when the department receives notice under s. 938.345(3)(d) that the juvenile has satisfied the conditions of the dispositional order.
4. If the person was ordered by a court under s. 971.17(1m)(b)1m. to comply with the reporting requirements under this section, when the department receives notice under s. 971.17(6m)(b)2. that the commitment order under s. 971.17 is terminated or has expired.
5. If the person was ordered by a court under s. 973.048(1m) to comply with the reporting requirements under this section, when the person successfully completes the sentence or probation as provided under s. 973.048(1m)(b).

(8) Rules. The department shall promulgate rules necessary to carry out its duties under this section.

(9) Cooperation. The department of health services, the department of children and families, the department of transportation and all circuit courts shall cooperate with the department of corrections in obtaining information under this section.

(10) Annual fee. The department may require a person who must register as a sex offender to pay an annual fee to partially offset its costs in monitoring persons who must register as sex offenders. The department shall establish any such fee by rule, but the fee may not exceed \$100.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.45, WI ST 301.45

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

End of Document

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West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.46

301.46. Access to information concerning sex offenders

Effective: March 31, 2024

Currentness

(1) Definitions. In this section:

(a) “Agency with jurisdiction” means the state agency with the authority or duty to confine or supervise a person or release or discharge a person from confinement.

(b) “Sex offense” has the meaning given in s. 301.45(1d)(b).

(2) Access for law enforcement agencies. (a) When a person is registered with the department under s. 301.45(2), the department shall immediately make the information specified in par. (b) available to the police chief of any community and the sheriff of any county in which the person is residing, is employed or is attending school. The department shall make information available under this paragraph through a direct electronic data transfer system.

(b) The department shall make all of the following information available under par. (a):

1. The person's name, including any aliases used by the person.

2. Information sufficient to identify the person, including date of birth, gender, race, height, weight and hair and eye color.

3. The statute the person violated, the date of conviction, adjudication or commitment, and the county or, if the state is not this state, the state in which the person was convicted, adjudicated or committed.

3m. a. Any sex offense that was dismissed as part of a plea agreement if the sentencing court ordered that the offender be subject to the registration requirements of s. 301.45.

b. Any sex offense that was dismissed as part of a plea agreement if the adjudicating court ordered that the juvenile be subject to the registration requirements of s. 301.45.

4. Whichever of the following is applicable:

- a. The date the person was placed on probation, supervision, conditional release, conditional transfer or supervised release.
 - b. The date the person was released from confinement, whether on parole, extended supervision or otherwise, or discharged or terminated from a sentence or commitment.
 - c. The date the person entered the state.
 - d. The date the person was ordered to comply with s. 301.45.
5. All addresses at which the person is residing.
6. The name of the agency supervising the person, if applicable, and the office or unit and telephone number of the office or unit that is responsible for the supervision of the person.
8. The name and address of the place at which the person is employed.
9. The name and location of any school in which the person is enrolled.
10. The most recent date on which the information under s. 301.45 was updated.
- (c) When a person who is registered under s. 301.45(2) updates information under s. 301.45(4), the department shall immediately make the updated information available to the police chief of any community and the sheriff of any county in which the person is residing, is employed or is attending school. The department shall make the updated information available under this paragraph through a direct electronic data transfer system.
- (d) In addition to having access to information under pars. (a) and (c), a police chief or sheriff may request that the department provide the police chief or sheriff with information concerning any person registered under s. 301.45.
- (e) A police chief or sheriff may provide any of the information to which he or she has access under this subsection to an entity in the police chief's community or the sheriff's county that is entitled to request information under sub. (4), to any person requesting information under sub. (5) or to members of the general public if, in the opinion of the police chief or sheriff, providing that information is necessary to protect the public.
- (2m) Bulletins to law enforcement agencies.** (a)1. If an agency with jurisdiction confines a person under s. 301.046, provides a person entering the intensive sanctions program under s. 301.048 with a sanction other than a placement in a Type 1 prison or a jail, or releases a person from confinement in a state correctional institution or institutional care, and the person has, on one occasion only, been convicted or found not guilty or not responsible by reason of mental disease or defect for a sex offense or for a violation of a law of this state that is comparable to a sex offense, the agency with jurisdiction may notify the police chief of any community and the sheriff of any county in which the person will be residing, employed, or attending school if the agency with jurisdiction determines that such notification is necessary to protect the public. Notification under this subdivision

may be in addition to providing access to information under sub. (2) or to any other notification that an agency with jurisdiction is authorized to provide.

2. If a person described under s. 301.45(1g)(dh), (dj), (f), or (g) becomes a resident of this state from another state under s. 304.16, becomes a student in this state, becomes employed or begins carrying on a vocation in this state, or becomes subject to a sanction in this state other than a placement in a Type 1 prison or a jail, and the person has, on one occasion only, been convicted or found not guilty or not responsible by reason of mental disease or defect for a violation of the law of another jurisdiction that is comparable to a sex offense, the department may notify the police chief of any community and the sheriff of any county in which the person will be residing, employed or carrying on a vocation, or attending school if the department determines that such notification is necessary to protect the public. Notification under this subdivision may be in addition to providing access to information under sub. (2) or to any other notification that the department is authorized to provide.

(am)1. If an agency with jurisdiction confines a person under s. 301.046, provides a person entering the intensive sanctions program under s. 301.048 with a sanction other than a placement in a Type 1 prison or a jail, or releases a person from confinement in a state correctional institution or institutional care, the agency with jurisdiction shall notify the police chief of any community and the sheriff of any county in which the person will be residing, employed, or attending school and through or to which the person will be regularly traveling if the person has been found to be a sexually violent person under ch. 980 or has been convicted 2 or more times, including convictions that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, for a sex offense or for a violation of a law of this state that is comparable to a sex offense; has been found 2 or more times, including findings that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, not guilty or not responsible by reason of mental disease or defect for a sex offense or for a violation of a law of this state that is comparable to a sex offense; or has been convicted one time for a sex offense or for a violation of a law of this state that is comparable to a sex offense and has been found one time not guilty or not responsible by reason of mental disease or defect for a sex offense or for a violation of a law of this state that is comparable to a sex offense. Notification under this subdivision is in addition to providing access to information under sub. (2) and to any other notification that an agency with jurisdiction is authorized to provide.

2. If a person described under s. 301.45(1g)(dh), (dj), (f), or (g) becomes a resident of this state from another state under s. 304.16, becomes a student in this state, becomes employed or begins carrying on a vocation in this state, or becomes subject to a sanction in this state other than a placement in a Type 1 prison or a jail, the department shall notify the police chief of any community and the sheriff of any county in which the person will be residing, employed, carrying on a vocation, or attending school if the person has been convicted 2 or more times, including convictions that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, for a violation of the law of another jurisdiction that is comparable to a sex offense; has been found 2 or more times, including findings that were part of the same proceeding, occurred on the same date, or were included in the same criminal complaint, not guilty or not responsible by reason of mental disease or defect for a violation of the law of another jurisdiction that is comparable to a sex offense; or has been one time convicted for a violation of the law of another jurisdiction that is comparable to a sex offense and has been found one time not guilty or not responsible by reason of mental disease or defect for a violation of the law of another jurisdiction that is comparable to a sex offense. Notification under this subdivision is in addition to providing access to information under sub. (2) or to any other notification that the department is authorized to provide.

(ap) If the subject of the notification under par. (a) or (am) changes his or her residential address, the agency with jurisdiction shall notify the police chief of any community, and the sheriff of any county, in which the person will be residing, employed, or attending school. Notification under this paragraph may be in an electronic form or in the form of a written bulletin and shall be in addition to providing access to information under sub. (2) and to any other notification that an agency with jurisdiction is authorized to provide.

(at)1. Paragraphs (a) and (am) do not apply to a person if a court has determined under s. 301.45 (1m) that the person is not required to comply with the reporting requirements under s. 301.45.

2. Paragraph (ap) does not apply if the agency with jurisdiction determines that notification is not necessary in the interest of public protection and that the person did not commit a sex offense with the use or threat of force or violence.

(b) The notification under par. (a) or (am) shall be in the form of a written bulletin to the police chief or sheriff that contains all of the following:

1. The information specified in sub. (2)(b).

1m. Notice that, beginning on June 1, 2001, information concerning persons registered under s. 301.45 will be available on the Internet site established by the department under sub. (5n).

2. Any other information that the agency with jurisdiction, if the notice is provided under par. (a)1. or (am)1., or that the department, if the notice is provided under par. (a)2. or (am)2., determines is necessary to assist law enforcement officers or to protect the public. Information under this subdivision may include a photograph of the person, other identifying information and a description of the person's patterns of violation.

(c) A police chief or sheriff who receives a bulletin under this subsection may provide any of the information in the bulletin to an entity in the police chief's community or the sheriff's county that is entitled to request information under sub. (4), to any person requesting information under sub. (5) or to members of the general public if, in the opinion of the police chief or sheriff, providing that information is necessary to protect the public.

(3) Notification of victims. (a) In this subsection:

1. "Member of the family" means spouse, domestic partner under ch. 770, child, parent, sibling or legal guardian.

2. "Victim" means a person against whom a crime has been committed.

(b) When a person is registered under s. 301.45 (2) or when the person informs the department of a change in information under s. 301.45 (4), the department shall make a reasonable attempt to notify the victim or a member of the victim's family who has, according to the records of the department or the information provided under par. (d), requested to be notified about a person required to register under s. 301.45.

(c) The notice under par. (b) shall be a written notice to the victim or member of the victim's family that the person required to register under s. 301.45 and specified in the information provided under par. (d) has been registered or, if applicable, has provided the department with updated information under s. 301.45(4). The notice shall contain the information specified in sub. (2)(b)1., 5., 6. and 10. or, if applicable, the updated information.

(d) The department of health services shall provide the department with access to the names of victims or the family members of victims who have completed cards requesting notification under s. 971.17(6m) or 980.11.

(e) In addition to receiving the notice provided under par. (c), a person who receives notice under par. (b) may request that the department provide him or her with any of the information specified in sub. (2)(b) concerning the person required to register under s. 301.45.

(4) Access to information for agencies and organizations other than law enforcement agencies. (a) Any of the following entities may request, in a form and manner specified by the department, information from the department concerning persons registered under s. 301.45:

1. A public or private elementary or secondary school or a tribal school, as defined in s. 115.001(15m).
2. A child care provider that holds a license under s. 48.65, that is certified under s. 48.651, that holds a probationary license under s. 48.69, or that is established or contracted for under s. 120.13(14).
3. A child welfare agency licensed under s. 48.60.
4. A group home licensed under s. 48.625.
5. A shelter care facility licensed under s. 938.22.
6. A foster home licensed under s. 48.62.
7. A county department under s. 46.21, 46.215, 46.22, 46.23, 51.42 or 51.437.
8. An agency providing child welfare services under s. 48.48(17)(b) or 48.57(2).
- 8m. The department of justice.
9. The department of public instruction.
10. The department of health services.
- 10m. The department of children and families.
11. A neighborhood watch program authorized under s. 60.23(17m) or by the law enforcement agency of a city or village.

12. An organized unit of the Boy Scouts of America, the Boys' Clubs of America, the Girl Scouts of America or Camp Fire Girls.

13. The personnel office of a sheltered workshop, as defined in s. 104.01(6).

14. Any other community-based public or private, nonprofit organization that the department determines should have access to information under this subsection in the interest of protecting the public.

(ag) The department may not provide any of the following in response to a request under par. (a):

1. Any information concerning a child who is required to register under s. 301.45.

2. If the person required to register under s. 301.45 is an adult, any information concerning a juvenile proceeding in which the person was involved.

(am) Subject to par. (ag), an entity may make a request under par. (a) for information concerning a specific person registered under s. 301.45.

(ar) Subject to par. (ag), an entity specified in par. (a)11. may request the names of and information concerning all persons registered under s. 301.45 who reside, are employed or attend school in the entity's community, district, jurisdiction or other applicable geographical area of activity.

(b) In response to a request under par. (a), the department shall, subject to par. (ag), provide all of the following information:

1. The name of the person who has registered under s. 301.45, including any aliases the person has used.

2. The date of the person's conviction or commitment, and the county or, if the state is not this state, the state in which the person was convicted or committed.

4. The most recent date on which the information under s. 301.45 was updated.

(c) On the request of a police chief or a sheriff, the department shall provide the police chief or sheriff with a list of entities in the police chief's community or the sheriff's county that have requested information under par. (a) for use by the police chief or sheriff under sub. (2)(e) or (2m)(c).

(d) The department shall coordinate with the department of health services the sharing of address information of persons regarding whom notification bulletins are issued under sub. (2m)(a) or (am).

(5) Access to information for general public. (a) The department or a police chief or sheriff may provide the information specified in par. (b) concerning a specific person required to register under s. 301.45 to a person who is not provided notice or access under subs. (2) to (4) if, in the opinion of the department or the police chief or sheriff, providing the information is necessary to protect the public and if the person requesting the information does all of the following:

1. Submits a request for information in a form and manner prescribed by the department or the police chief or sheriff. The department or a police chief or sheriff may require that a person state, in his or her request under this subdivision, his or her purpose for requesting the information.
2. Specifies by name the person about whom he or she is requesting the information.
4. Provides any other information the police chief or sheriff considers necessary to determine accurately whether the person specified in subd. 2. is registered under s. 301.45.

(b) If the department or a police chief or sheriff provides information under par. (a), the department, subject to par. (c), or the police chief or sheriff shall provide all of the following concerning the person specified in the request under par. (a)2.:

1. The date of the person's conviction or commitment, and the county or, if the state is not this state, the state in which the person was convicted or committed.
3. The most recent date on which the information under s. 301.45 was updated.
4. Any other information concerning the person that the department or the police chief or sheriff determines is appropriate.

(bm) The department shall provide on the Internet site required under sub. (5n) the following information concerning persons registered under s. 301.45:

1. If the person is a sexually violent person, as defined in s. 980.01(7), a notice, written in red letters, of that status.
2. A current color photograph of the person, if available, and a physical description including sex, race, height, weight, eye color, and hair color.
3. The person's name and any aliases the person uses, indicating for each name and each alias all addresses at which the person is residing.
4. Whether the person has responded to the last contact letter from the department.
5. The crime committed for which the person must register.

5m. a. Any sex offense that was dismissed as part of a plea agreement if the sentencing court ordered that the offender be subject to the registration requirements of s. 301.45.

b. Any sex offense that was dismissed as part of a plea agreement if the adjudicating court ordered that the juvenile be subject to the registration requirements of s. 301.45.

6. Any conditions of the person's supervised release, except for any condition that may reveal the identity of the victim of the crime that the person committed for which he or she must register.

7. The date, time, and place of any scheduled hearings for supervised release or discharge under ch. 980.

8. The name and court of the judge who authorized supervised release or discharge for the person.

9. The most recent date on which the information was updated.

(c) The department may not provide any of the following under par. (a) or (bm):

1. Any information concerning a child who is required to register under s. 301.45.

2. If the person required to register under s. 301.45 is an adult, any information concerning a juvenile proceeding in which the person was involved.

(5n) Internet access. (a) No later than June 1, 2001, the department shall provide access to information concerning persons registered under s. 301.45 by creating and maintaining an Internet site and by any other means that the department determines is appropriate. The information provided through the Internet site shall be organized in a manner that allows a person using the Internet site to obtain the information that the department is required to provide the person under sub. (2), (2m), (3), (4) or (5) and other information that the department determines is necessary to protect the public. The department shall keep the information provided on the Internet site and in other means used to allow access to the information secure against unauthorized alteration.

(b) For Internet access provided to law enforcement agencies under this subsection, the department shall provide the means for a law enforcement agency to easily identify changes that have occurred in the residence, employment, or place of school attendance of a person registered under s. 301.45.

(6) Period of notification of and access to information. (a) Except as provided in par. (b), the department or an agency with jurisdiction may provide notice of or access to information under subs. (2) to (5) concerning a person registered under s. 301.45 only during the period under s. 301.45(5) or (5m) for which the person is required to comply with s. 301.45.

(b) The department or an agency with jurisdiction may provide access to any information collected under s. 301.45, regardless of whether the person is still required to be registered, to a law enforcement agency for law enforcement purposes.

(7) Immunity. A person acting under this section is immune from civil liability for any good faith act or omission regarding the release of information authorized under this section. The immunity under this subsection does not extend to a person whose act or omission constitutes gross negligence or involves reckless, wanton or intentional misconduct.

(8) Rules. The department shall promulgate rules necessary to carry out its duties under this section.

(9) Effect on open records requests. This section does not prohibit the department from providing to a person, in response to that person's request under s. 19.35 to inspect or copy records of the department, information that is contained in the sex offender registry under s. 301.45 concerning a person who is in the custody or under the supervision of the department if that information is also contained in records of the department, other than the sex offender registry, that are subject to inspection or copying under s. 19.35.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.46, WI ST 301.46

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.47

301.47. Sex offender name changes prohibited

Currentness

(1) In this section, “sex offender” means a person who is subject to s. 301.45(1g) but does not include a person who, as a result of a proceeding under s. 301.45(1m), is not required to comply with the reporting requirements of s. 301.45.

(2) A sex offender may not do any of the following before he or she is released, under s. 301.45(5) or (5m), from the reporting requirements of s. 301.45:

(a) Change his or her name.

(b) Identify himself or herself by a name unless the name is one by which the person is identified with the department.

(3) Whoever intentionally violates sub. (2) is subject to the following penalties:

(a) Except as provided in par. (b), the person is guilty of a Class H felony.

(b) The person may be fined not more than \$10,000 or imprisoned for not more than 9 months or both if all of the following apply:

1. The person was ordered under s. 51.20(13)(ct)1m., 938.34(15m)(am), 938.345(3), 971.17(1m)(b)1m., or 973.048(1m) to comply with the reporting requirements under s. 301.45 based on a finding that he or she committed or solicited, conspired, or attempted to commit a misdemeanor.

2. The person was not convicted of another offense under this section before committing the present violation.

(4) The department shall make a reasonable attempt to notify each person required to comply with the reporting requirements under s. 301.45 of the prohibition in sub. (2), but neither the department's failure to make such an attempt nor the department's failure to notify a person of that prohibition is a defense to a prosecution under this section.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.47, WI ST 301.47

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

End of Document

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West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.475

301.475. Sex offenders to notify schools

Effective: December 15, 2013

Currentness

(1) A person who is required to comply with the reporting requirements under s. 301.45(1g) may not be on any school premises, as defined in s. 948.61(1)(c), unless the school district administrator or his or her designee, if the premises are affiliated with a public school, or the governing body of the school, if the premises are affiliated with a private school or charter school, has been notified of the specific date, time, and place of the visit and of the person's status as a registered sex offender.

(2)(a) Except as provided in par. (b), whoever knowingly violates sub. (1) is guilty of a misdemeanor and subject to a fine of not more than \$10,000 or imprisonment not to exceed 9 months, or both.

(b) Whoever knowingly violates sub. (1) as a 2nd or subsequent offense is guilty of a Class H felony.

(3) Subsection (1) does not apply to the following:

(a) A person who is on the school premises to vote if an election is being held that day and the person's polling place is on the school premises.

(b) A person who is on the school premises to attend an event or activity that is not sponsored by the school.

(c) A person whose child is enrolled at the school if the person notifies the school district administrator or his or her designee, if the premises are affiliated with a public school, or the governing body of the school, if the premises are affiliated with a private school or charter school, that he or she is a registered sex offender and that he or she has a child enrolled at the school. The notification must occur as follows:

1. Except as provided in subds. 2., 3., and 4., at the beginning of each academic school year.
2. If the child is not enrolled at the beginning of the academic school year, when the child is first enrolled.
3. If the person is not subject to the reporting requirements under s. 301.45(1g) at the beginning of the academic school year or when the child is first enrolled, when the person first becomes subject to the reporting requirements under s. 301.45(1g).

4. If subd. 1., 2., or 3. does not apply but the person is otherwise subject to the prohibition under sub. (1), when the person becomes subject to the prohibition under sub. (1).

(d) A student who is enrolled at the school if the department, county department, licensed child welfare agency, or other person supervising the student under a dispositional order under s. 938.34, whichever is appropriate, works with the school district administrator or his or her designee, if the premises are affiliated with a public school, or with the governing body of the school, if the premises are affiliated with a private school or charter school, to ensure the safety of the students attending the school with the student.

(3m) Unless sub. (3)(d) applies to a county department, licensed child welfare agency, or other person supervising a student under a dispositional order under s. 938.34, the department shall work with a school district administrator or his or her designee or a governing body of a school, whichever is appropriate, as provided in sub. (3)(d), to ensure that a student who is required to comply with the reporting requirements under s. 301.45(1g) is not prohibited under sub. (1) from being on the premises of the school at which he or she is enrolled and to ensure the safety of the other students attending the school.

(4) The department shall make a reasonable attempt to notify each person required to comply with the reporting requirements under s. 301.45(1g) of the prohibition under sub. (1), but neither the department's failure to make such an attempt nor the department's failure to notify a person of that prohibition is a defense to prosecution under this section.

(5) It is an affirmative defense to a prosecution under this section that the defendant was traveling directly to the office of the school district administrator or his or her designee, if the premises are affiliated with a public school, or to the governing body of the school, if the premises are affiliated with a private school or charter school, to comply with sub. (1). A defendant who raises this affirmative defense has the burden of proving the defense by a preponderance of the evidence.

(6) The school district administrator or his or her designee, if the premises are affiliated with a public school, or the governing body of the school, if the premises are affiliated with a private school or charter school, is immune from any civil or criminal liability for any good faith act or omission in connection with any notice given under sub. (1).

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.475, WI ST 301.475

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.48

301.48. Global positioning system tracking and residency requirement for certain sex offenders

Effective: April 18, 2018

Currentness

(1) Definitions. In this section:

(a) “Exclusion zone” means a zone in which a person who is tracked using a global positioning system tracking device is prohibited from entering except for purposes of traveling through it to get to another destination.

(b) “Global positioning system tracking” means tracking using a system that actively monitors and identifies a person's location and timely reports or records the person's presence near or at a crime scene or in an exclusion zone or the person's departure from an inclusion zone. “Global positioning system tracking” includes comparable technology.

(c) “Inclusion zone” means a zone in which a person who is tracked using a global positioning system tracking device is prohibited from leaving.

(cm) “Level 1 child sex offense” means a violation of s. 948.02 or 948.025 in which any of the following occurs:

1. The actor has sexual contact or sexual intercourse with an individual who is not a relative of the actor and who has not attained the age of 13 years and causes great bodily harm, as defined in s. 939.22(14), to the individual.
2. The actor has sexual intercourse with an individual who is not a relative of the actor and who has not attained the age of 12 years.

(cn) “Level 2 child sex offense” means a violation of s. 948.02 or 948.025 in which any of the following occurs:

1. The actor has sexual intercourse, by use or threat of force or violence, with an individual who is not a relative of the actor and who has not attained the age of 16 years.
2. The actor has sexual contact, by use or threat of force or violence, with an individual who has not attained the age of 16 years and who is not a relative of the actor, and the actor is at least 18 years of age when the sexual contact occurs.

(d) “Lifetime tracking” means global positioning system tracking that is required for a person for the remainder of the person's life. “Lifetime tracking” does not include global positioning system tracking under sub. (2)(d), regardless of how long it is required.

(dm) “Passive positioning system tracking” means tracking using a system that monitors, identifies, and records a person's location.

(dr) “Relative” means a son, daughter, brother, sister, first cousin, 2nd cousin, nephew, niece, grandchild, or great grandchild, or any other person related by blood, marriage, or adoption.

(e) “Serious child sex offense” means a level 1 child sex offense or a level 2 child sex offense.

(f) “Sex offense” means any of the following:

1. A sex offense, as defined in s. 301.45(1d)(b).
2. A crime under federal law or the law of any state that is comparable to a crime described in subd. 1.

(fm) “Sexual contact” has the meaning given in s. 948.01(5).

(g) “Sexual intercourse” means vulvar penetration as well as cunnilingus, fellatio, or anal intercourse between persons or any intrusion of any inanimate object into the genital or anal opening either by the defendant or upon the defendant's instruction. The emission of semen is not required.

(2) Who is covered. (a) Except as provided in subs. (2m), (6), (7), and (7m), the department shall maintain lifetime tracking of a person if any of the following occurs with respect to the person on or after January 1, 2008:

1. A court places the person on probation for committing a level 1 child sex offense.

1m. The person is convicted for committing a level 2 child sex offense and the court places the person on probation for committing the level 2 child sex offense.

2. The department releases the person to extended supervision or parole while the person is serving a sentence for committing a level 1 child sex offense.

2m. The person is convicted for committing a level 2 child sex offense and the department releases the person to extended supervision or parole while the person is serving the sentence for committing the level 2 child sex offense.

3. The department releases the person from prison upon the completion of a sentence imposed for a level 1 child sex offense.
 - 3m. The person is convicted for committing a level 2 child sex offense and the department releases the person from prison upon the completion of the sentence imposed for the level 2 child sex offense.
 4. A court that found the person not guilty of a serious child sex offense by reason of mental disease or mental defect places the person on conditional release.
 5. A court that found the person not guilty of a serious child sex offense by reason of mental disease or mental defect discharges the person under s. 971.17(6). This subdivision does not apply if the person was on conditional release immediately before being discharged.
 6. The court places a person on lifetime supervision under s. 939.615 for committing a serious child sex offense and the person is released from prison.
 7. A police chief or a sheriff receives a notification under s. 301.46(2m)(am) regarding the person.
 8. The department makes a determination under sub. (2g) that global positioning system tracking is appropriate for the person.
- (b) Except as provided in subs. (7) and (7m), the department shall maintain lifetime tracking of a person if any of the following occurs with respect to the person on or after January 1, 2008:
1. A court places the person on supervised release under s. 980.08(6m).
 2. A court discharges the person under s. 980.09(4). This subdivision does not apply if the person was on supervised release immediately before being discharged.
 3. The department of health services places the person on parole or discharges the person under ch. 975. This subdivision does not apply unless the person's commitment was based on his or her commission of a serious child sex offense.
- (d) If, on or after January 1, 2008, a person is being placed on probation, extended supervision, parole, or lifetime supervision for committing a sex offense and par. (a) or (b) does not apply, the department may have the person tracked using a global positioning system tracking device, or passive positioning system tracking, as a condition of the person's probation, extended supervision, parole, or lifetime supervision.
- (2g) Department determination.** If a person who committed a serious child sex offense, or a person under supervision under the interstate corrections compact for a serious child sex offense, is not subject to lifetime tracking under sub. (2), the department shall assess the person's risk using a standard risk assessment instrument to determine if global positioning system tracking is appropriate for the person.

(2m) Passive positioning system tracking. If a person who is subject to lifetime tracking under sub. (2)(a)1., 1m., 2., 2m., 3., or 3m. completes his or her sentence, including any probation, parole, or extended supervision, the department may use passive positioning system tracking instead of maintaining lifetime tracking.

(3) Functions and operation of tracking program. (a) Except as provided in sub. (2m), the department shall implement a continuous global positioning tracking system to electronically monitor the whereabouts of persons who are subject to this section. The system shall do all of the following:

1. Use field monitoring equipment that supports cellular communications with as large a coverage area as possible and shall automatically provide instantaneous information regarding the whereabouts of a person who is being monitored, including information regarding the person's presence in an exclusion zone established under par. (c) or absence from an inclusion zone established under par. (c).
2. Use land line communications equipment to transmit information regarding the location of persons who are subject to this section when they are in areas in which no commercial cellular service is available.
3. Immediately alert the department and the local law enforcement agency having jurisdiction over the exclusion or inclusion zone if the person stays in any exclusion zone for any longer period than the time needed to travel through the zone to get to another destination or if the person leaves any inclusion zone.

(b) The department shall contract with a vendor using a competitive process under s. 16.75 to provide staff in this state to install, remove, and maintain equipment related to global positioning system tracking and passive positioning system tracking for purposes of this section. The term of the contract may not exceed 7 years.

(c) For each person who is subject to global positioning system tracking under this section, the department shall create individualized exclusion and inclusion zones for the person, if necessary to protect public safety. In creating exclusion zones, the department shall focus on areas where children congregate, with perimeters of 100 to 250 feet, and on areas where the person has been prohibited from going as a condition of probation, extended supervision, parole, conditional release, supervised release, or lifetime supervision. In creating inclusion zones for a person on supervised release, the department shall consider s. 980.08 (9).

(d) If a person who is on supervised release or conditional release is being tracked, the department shall notify the department of health services, upon request, of any tracking information for the person under any of the following circumstances:

1. The department of corrections has been alerted under par. (a)3. that the person being tracked has improperly stayed in an exclusion zone or improperly left an inclusion zone.
2. The person being tracked fails to make a payment to the department under sub. (4)(b).

(4) Costs. (a) The department shall determine all of the following for each person tracked:

1. The cost of global positioning system tracking or passive positioning system tracking for the person.

2. How much of the cost under subd. 1. the person is able to pay based on the factors listed in par. (d).

(b) If required by the department, a person who is subject to global positioning system tracking or passive positioning system tracking shall pay for the cost of tracking up to the amount calculated for the person under par. (a)2. The department shall collect moneys paid by the person under this paragraph and credit those moneys to the appropriation under s. 20.410(1)(gk).

(c) The department of health services shall pay for the cost of tracking a person to whom sub. (2)(a)4. or 5. or (b) applies while the person is on conditional release or supervised release to the extent that the cost is not covered by payments made by the person under par. (b).

(d) In determining how much of the costs the person is able to pay, the department may consider the following:

1. The person's financial resources.
2. The present and future earning ability of the person.
3. The needs and earning ability of the person's dependents.
4. Any other costs that the person is required to pay in conjunction with his or her supervision by the department or the department of health services.
5. Any other factors that the department considers appropriate.

(6) Offender's petition to terminate lifetime tracking. (a) Subject to par. (b), a person who is subject to lifetime tracking may file a petition requesting that lifetime tracking be terminated. A person shall file a petition requesting termination of lifetime tracking with the circuit court for the county in which the person was convicted or found not guilty or not responsible by reason of mental disease or defect.

(b)1. A person may not file a petition requesting termination of lifetime tracking if he or she has been convicted of a crime that was committed during the period of lifetime tracking.

2. A person may not file a petition requesting termination of lifetime tracking earlier than 20 years after the date on which the period of lifetime tracking began. If a person files a petition requesting termination of lifetime tracking at any time earlier than 20 years after the date on which the period of lifetime tracking began, the court shall deny the petition without a hearing.

3. A person described in sub. (2)(b) may not file a petition requesting termination of lifetime tracking.

(c) Upon receiving a petition requesting termination of lifetime tracking, the court shall send a copy of the petition to the district attorney responsible for prosecuting the serious sex offense that was the basis for the order of lifetime tracking. Upon receiving the copy of the petition, the district attorney shall conduct a criminal history record search to determine whether the person has been convicted of a criminal offense that was committed during the period of lifetime tracking. No later than 30 days after the date on which he or she receives the copy of the petition, the district attorney shall report the results of the criminal history record search to the court and may provide a written response to the petition.

(d) After reviewing a report submitted under par. (c) concerning the results of a criminal history record search, the court shall do whichever of the following is applicable:

1. If the report indicates that the person filing the petition has been convicted of a criminal offense that was committed during the period of lifetime tracking, the court shall deny the person's petition without a hearing.

2. If the report indicates that the person filing the petition has not been convicted of a criminal offense that was committed during the period of lifetime tracking, the court shall order the person to be examined under par. (e), shall notify the department that it may submit a report under par. (f) and shall schedule a hearing on the petition to be conducted as provided under par. (g).

(e) A person filing a petition requesting termination of lifetime tracking who is entitled to a hearing under par. (d)2. shall be examined by a person who is either a physician or a psychologist licensed under ch. 455 and who is approved by the court. The physician or psychologist who conducts an examination under this paragraph shall prepare a report of his or her examination that includes his or her opinion of whether the person petitioning for termination of lifetime tracking is a danger to the public. The physician or psychologist shall file the report of his or her examination with the court within 60 days after completing the examination, and the court shall provide copies of the report to the person filing the petition and the district attorney. The contents of the report shall be confidential until the physician or psychologist testifies at a hearing under par. (g). The person petitioning for termination of lifetime tracking shall pay the cost of an examination required under this paragraph.

(f) After it receives notification from the court under par. (d)2., the department may prepare and submit to the court a report concerning a person who has filed a petition requesting termination of lifetime tracking. If the department prepares and submits a report under this paragraph, the report shall include information concerning the person's conduct while on lifetime tracking and an opinion as to whether lifetime tracking of the person is still necessary to protect the public. When a report prepared under this paragraph has been received by the court, the court shall, before the hearing under par. (g), disclose the contents of the report to the attorney for the person who filed the petition and to the district attorney. When the person who filed the petition is not represented by an attorney, the contents shall be disclosed to the person.

(g) A hearing on a petition requesting termination of lifetime tracking may not be conducted until the person filing the petition has been examined and a report of the examination has been filed as provided under par. (e). At the hearing, the court shall take evidence it considers relevant to determining whether lifetime tracking should be continued because the person who filed the petition is a danger to the public. The person who filed the petition and the district attorney may offer evidence relevant to the issue of the person's dangerousness and the continued need for lifetime tracking.

(h) The court may grant a petition requesting termination of lifetime tracking if it determines after a hearing under par. (g) that lifetime tracking is no longer necessary to protect the public.

(i) If a petition requesting termination of lifetime tracking is denied after a hearing under par. (g), the person may not file a subsequent petition requesting termination of lifetime tracking until at least 5 years have elapsed since the most recent petition was denied.

(7) Department's petition to terminate lifetime tracking. (a) The department may file a petition requesting that a person's lifetime tracking be terminated if the person is permanently physically incapacitated. The petition shall include affidavits from 2 physicians that explain the nature of the person's permanent physical incapacitation.

(b)1. The department shall file a petition under par. (a) with the circuit court for the county in which the person was convicted or found not guilty or not responsible by reason of mental disease or defect or, in the case of a person described in sub. (2)(b), the circuit court for the county in which the person was found to be a sexually violent person.

2. The department shall send a copy of a petition filed under subd. 1. to the district attorney responsible for prosecuting the serious sex offense that was the basis for the order of lifetime tracking or, in the case of a person described in sub. (2)(b), the agency that filed the petition under s. 980.02.

(c) Upon its own motion or upon the motion of the party to whom the petition was sent under par. (b)2., the court may order that the person to whom the petition relates be examined by a physician who is approved by the court. The physician who conducts an examination under this paragraph shall prepare a report of his or her examination that includes his or her opinion of whether the person is permanently physically incapacitated. The physician shall file the report of his or her examination with the court within 60 days after completing the examination, and the court shall provide copies of the report to the department and the party to whom the petition was sent under par. (b)2. The contents of the report shall be confidential until the physician testifies at a hearing under par. (d). The department shall pay the cost of an examination required under this paragraph.

(d) The court shall conduct a hearing on a petition filed under par. (b)1., but if the court has ordered a physical examination under par. (c), the hearing may not occur until after the examination is complete and a report of the examination has been filed as provided under par. (c). At the hearing, the court shall take evidence it considers relevant to determining whether the person to whom the petition relates is permanently physically incapacitated so that he or she is not a danger to the public. The department and the party to whom the petition was sent under par. (b)2. may offer relevant evidence regarding that issue.

(e) The court may grant a petition filed under par. (b)1. if it determines after a hearing under par. (d) that the person to whom the petition relates is permanently physically incapacitated so that he or she is not a danger to the public.

(7m) Termination if person moves out of state. If a person who is subject to being tracked under this section moves out of state, the department shall terminate the person's tracking. If the person returns to the state, the department shall reinstate the person's tracking except as provided under sub. (6) or (7).

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.48, WI ST 301.48

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

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West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.49

301.49. Global positioning system tracking for persons who violate certain orders or injunctions

Effective: April 18, 2018

Currentness

(1) Definitions. In this section:

(a) “Exclusion zone” means a zone in which a person who is tracked using a global positioning system tracking device is prohibited from entering.

(am) “Exclusion zone violation” means entry into an exclusion zone except for purposes of traveling through an exclusion zone to get to another destination, unless the person is prohibited by the department from making such entry.

(b) “Global positioning system tracking” means tracking using a system that actively monitors and identifies a person's location and timely reports or records the person's presence in an exclusion zone. “Global positioning system tracking” includes comparable technology.

(c) “Petitioner” means the person who petitioned for the restraining order or injunction that was issued under s. 813.12 or 813.125.

(d) “Restraining order or injunction” means an order or an injunction issued pursuant to s. 813.12 or 813.125.

(2) Who is covered; duration of coverage. (a) The department shall maintain global positioning system tracking of a person who is not in jail or in prison and who is ordered by a court to submit to monitoring under s. 813.129 for the duration of the person's period of probation.

(b) The department shall maintain global positioning system tracking of a person who is subject to global positioning system tracking as a condition of extended supervision.

(3) Functions and operation of tracking program. (a) The department shall implement a continuous global positioning tracking system to electronically monitor the whereabouts of persons who are subject to this section. The system shall do all of the following:

1. Use field monitoring equipment that supports cellular communications with as large a coverage area as possible and shall automatically provide instantaneous information regarding the whereabouts of a person who is being monitored, including information regarding the person's presence in an exclusion zone established under par. (c).

2. Use land line communications equipment to transmit information regarding the location of persons who are subject to this section when they are in areas in which no commercial cellular service is available.

3. Immediately alert the department if the person commits an exclusion zone violation. The department shall immediately notify the law enforcement agency having jurisdiction over the exclusion zone and the petitioner of any exclusion zone violation.

(b) The department shall contract with a vendor using a competitive process as described under s. 16.75 to provide staff in this state to install, remove, and maintain equipment related to global positioning system tracking for purposes of this section. The term of the contract may not exceed 7 years.

(c) For each person who is subject to global positioning system tracking under this section, the department shall create an individualized exclusion zone for the person, as necessary to protect the petitioner. In creating an exclusion zone, the department shall consider input from the petitioner and shall include any location that the person is ordered to avoid or enjoined from entering under the restraining order or injunction that the person violated or is alleged to have violated.

(4) Termination if person moves out of state. Notwithstanding sub. (2), if a person who is subject to being tracked under this section moves out of state, the department shall terminate the person's tracking. If the person returns to the state during the duration of the restraining order or injunction, the department shall immediately reinstate the person's tracking.

(5) Costs. (a) The department shall determine all of the following for each person tracked:

1. The cost of global positioning system tracking for the person.

2. How much of the cost under subd. 1. the person is able to pay based on the factors listed in par. (c).

(b) If required by the department, a person who is subject to global positioning system tracking shall pay for the cost of tracking up to the amount calculated for the person under par. (a)2. The department shall collect moneys paid by the person under this paragraph and credit those moneys to the appropriation account under s. 20.410(1)(gL).

(c) In determining how much of the costs the person is able to pay, the department may consider the following:

1. The person's financial resources.

2. The present and future earning ability of the person.

3. The needs and earning ability of the person's dependents.

4. Any other factors that the department considers appropriate.

(6) Notice. The department shall provide all of the following to each petitioner:

(a) Notice when the person who is ordered by a court to submit to monitoring under s. 813.129 is released from incarceration.

(b) The exclusion zones that the person must avoid and the amount of time that the person is allowed to remain in an exclusion zone before the department and law enforcement receive an alert.

(c) An explanation of the failure rates associated with global positioning system tracking programs and an explanation of situations in which a person may not be detected by the tracking program.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.49, WI ST 301.49

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

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West's Wisconsin Statutes Annotated
Corrections (Ch. 301 to 304)
Chapter 301. Corrections (Refs & Annos)

W.S.A. 301.50

301.50. Notification of intent to chaperone sex offenders

Effective: May 22, 2010

Currentness

(1) In this section, “substantial parental relationship” means the acceptance and exercise of significant responsibility for the daily supervision, education, protection, and care of the child. In evaluating whether an individual has had a substantial parental relationship with the child, factors that may be considered include, but are not limited to, whether the individual has expressed concern for or interest in the support, care, or well-being of the child; whether the individual has neglected or refused to provide care or support for the child; and whether, with respect to an individual who is or may be the father of the child, the individual has expressed concern for or interest in the support, care, or well-being of the mother during her pregnancy.

(2) The department shall design a form to be signed by any individual who intends to be a chaperone for sex offenders. The form must include a place for the individual's signature as well as a statement that the individual has, unless par. (a), (b), or (c) applies, informed, in writing, or has made a good faith effort to inform, any individual with whom the individual who intends to be a chaperone has a child in common, whether through blood, marriage, or adoption, of his or her intent to chaperone a sex offender. The individual does not have to inform an individual with whom he or she has a child in common if any of the following applies:

(a) The child in common is over the age of 18.

(b) The individual who intends to be a chaperone is not the child's parent or has not had a substantial parental relationship with the child.

(c) The individual who has a child in common with the individual who intends to be a chaperone is not the child's parent or has not had a substantial parental relationship with the child.

(3) The department is immune from any civil liability for any good faith act or omission of the department in connection with the requirements under this section.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 301.50, WI ST 301.50

Current through 2025 Act 82, except Acts 17, 68, and 69, published December 10, 2025.

West's Wisconsin Statutes Annotated
Criminal Procedure (Ch. 967 to 980)
Chapter 973. Sentencing (Refs & Annos)

W.S.A. 973.048

973.048. Sex offender reporting requirements

Effective: December 10, 2025

Currentness

(1m)(a) Except as provided in sub. (2m), if a court imposes a sentence or places a person on probation for any violation, or for the solicitation, conspiracy, or attempt to commit any violation, under ch. 940, 944, or 948 or s. 942.08, 942.09, or 942.095, or ss. 943.01 to 943.15, the court may require the person to comply with the reporting requirements under s. 301.45 if the court determines that the underlying conduct was sexually motivated, as defined in s. 980.01(5), and that it would be in the interest of public protection to have the person report under s. 301.45.

(b) If a court under par. (a) orders a person to comply with the reporting requirements under s. 301.45 in connection with a violation, or the solicitation, conspiracy, or attempt to commit a violation, of s. 942.09 or 942.095 and the person was under the age of 21 when he or she committed the offense, the court may provide that the person be released from the requirement to comply with the reporting requirements under s. 301.45 upon successfully completing the sentence or probation imposed for the offense. A person successfully completes a sentence if he or she is not convicted of a subsequent offense during the term of the sentence. A person successfully completes probation if probation is not revoked and the person satisfies the conditions of probation.

(2m) If a court imposes a sentence or places a person on probation for a violation, or for the solicitation, conspiracy or attempt to commit a violation, of s. 940.22(2), 940.225(1), (2), or (3), 944.06, 948.02(1) or (2), 948.025, 948.05, 948.051, 948.055, 948.06, 948.07, 948.075, 948.08, 948.085, 948.095, 948.11(2)(a) or (am), 948.12, 948.125, 948.13, or 948.30, of s. 940.302(2) if s. 940.302(2)(a)1. b. applies, or of s. 940.30 or 940.31 if the victim was a minor and the person was not the victim's parent, the court shall require the person to comply with the reporting requirements under s. 301.45 unless the court determines, after a hearing on a motion made by the person, that the person is not required to comply under s. 301.45(1m).

(3) In determining under sub. (1m)(a) whether it would be in the interest of public protection to have the person report under s. 301.45, the court may consider any of the following:

- (a) The ages, at the time of the violation, of the person and the victim of the violation.
- (b) The relationship between the person and the victim of the violation.
- (c) Whether the violation resulted in bodily harm, as defined in s. 939.22 (4), to the victim.

(d) Whether the victim suffered from a mental illness or mental deficiency that rendered him or her temporarily or permanently incapable of understanding or evaluating the consequences of his or her actions.

(e) The probability that the person will commit other violations in the future.

(g) Any other factor that the court determines may be relevant to the particular case.

(4) If the court orders a person to comply with the reporting requirements under s. 301.45, the court may order the person to continue to comply with the reporting requirements until his or her death.

(5) If the court orders a person to comply with the reporting requirements under s. 301.45, the clerk of the court in which the order is entered shall promptly forward a copy of the order to the department of corrections. If the conviction on which the order is based is reversed, set aside or vacated, the clerk of the court shall promptly forward to the department of corrections a certificate stating that the conviction has been reversed, set aside or vacated.

Credits

<<For credits, see Historical Note field.>>

W. S. A. 973.048, WI ST 973.048

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act

W. Va. Code, Ch. 15, Art. 12, Refs & Annos
Currentness

W. Va. Code, Ch. 15, Art. 12, Refs & Annos, WV ST Ch. 15, Art. 12, Refs & Annos
Current with legislation of the 2026 Regular Session approved through February 23, 2026. Some statute sections may be more current, see credits for details.

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-1

§ 15-12-1. Short title

Currentness

This article may be cited as the “Sex Offender Registration Act.”

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999.

W. Va. Code, § 15-12-1, WV ST § 15-12-1

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-1a

§ 15-12-1a. Intent and findings

Currentness

(a) It is the intent of this article to assist law-enforcement agencies' efforts to protect the public from sex offenders by requiring sex offenders to register with the state police detachment in the county where he or she shall reside and by making certain information about sex offenders available to the public as provided in this article. It is not the intent of the Legislature that the information be used to inflict retribution or additional punishment on any person convicted of any offense requiring registration under this article. This article is intended to be regulatory in nature and not penal.

(b) The Legislature finds and declares that there is a compelling and necessary public interest that the public have information concerning persons convicted of sexual offenses in order to allow members of the public to adequately protect themselves and their children from these persons.

(c) The Legislature also finds and declares that persons required to register as sex offenders pursuant to this article have a reduced expectation of privacy because of the state's interest in public safety.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000.

W. Va. Code, § 15-12-1a, WV ST § 15-12-1a

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-2

§ 15-12-2. Registration; fees and use thereof

Effective: July 11, 2025

Currentness

- (a) The provisions of this article apply both retroactively and prospectively.
- (b) Any person who has been convicted of an offense or an attempted offense or has been found not guilty by reason of mental illness, mental retardation, or addiction of an offense under any of the following provisions of this code or under a statutory provision of another state, the United States Code or the Uniform Code of Military Justice which requires proof of the same essential elements shall register as set forth in § 15-12-2(d) of this code and according to the internal management rules promulgated by the superintendent under authority of § 15-2-25 of this code:
- (1) § 61-8A-1 *et seq.* of this code;
 - (2) § 61-8B-1 *et seq.* of this code;
 - (3) The provisions of former § 61-8B-6 of this code, relating to the offense of sexual assault of a spouse, which was repealed by an act of the Legislature during the 2000 legislative session;
 - (4) § 61-8C-1 *et seq.* of this code;
 - (5) § 61-8D-5 and § 61-8D-6 of this code;
 - (6) § 61-2-14(a) of this code;
 - (7) § 61-8-6, § 61-8-7, § 61-8-12, and § 61-8-13 of this code;
 - (8) § 61-3C-14b of this code, as it relates to violations of those provisions of chapter 61 listed in this subsection; or
 - (9) § 61-14-2, § 61-14-5, and § 61-14-6 of this code: *Provided*, That as to § 61-14-2 of this code only those violations involving human trafficking for purposes of sexual servitude require registration pursuant to this subdivision.

(c) Any person who has been convicted of a criminal offense where the sentencing judge made a written finding that the offense was sexually motivated shall also register as set forth in this article.

(d) A person required to register under the provisions of this article shall register in person at the West Virginia State Police detachment responsible for covering the county of his or her residence, and in doing so, provide or cooperate in providing, at a minimum, the following when registering:

- (1) The full name of the registrant, including any aliases, nicknames, or other names used by the registrant;
- (2) The address where the registrant intends to reside or resides at the time of registration, the address of any habitable real property owned or leased by the registrant that he or she regularly visits: *Provided*, That a post office box may not be provided in lieu of a physical residential address, the name and address of the registrant's employer or place of occupation at the time of registration, the names and addresses of any anticipated future employers or places of occupation, the name and address of any school or training facility the registrant is attending at the time of registration and the names and addresses of any schools or training facilities the registrant expects to attend;
- (3) The registrant's Social Security number;
- (4) A full-face photograph of the registrant at the time of registration;
- (5) A brief description of the crime or crimes for which the registrant was convicted;
- (6) The registrant's fingerprints and palm prints;
- (7) Information related to any motor vehicle, trailer, or motor home owned or regularly operated by a registrant, including vehicle make, model, color, and license plate number: *Provided*, That for the purposes of this article, the term "trailer" means travel trailer, fold-down camping trailer, and house trailer as those terms are defined in § 17A-1-1 of this code;
- (8) Information relating to any Internet accounts the registrant has and the screen names, user names, or aliases the registrant uses on the Internet;
- (9) Information related to any telephone or electronic paging device numbers that the registrant has or uses, including, but not limited to, residential, work, and mobile telephone numbers;
- (10) A photocopy of a valid driver's license or government-issued identification card, including a tribal identification card;
- (11) A photocopy of any passport and immigration documents;

(12) A photocopy of any professional licensing information that authorizes the registrant to engage in an occupation or carry out a trade or business; and

(13) Any identifying information, including make, model, serial number, and photograph, regarding any unmanned aerial vehicle owned or operated by a registrant.

(e)(1) On the date that any person convicted or found not guilty by reason of mental illness, mental retardation, or addiction of any of the crimes listed in § 15-12-2(b) of this code, hereinafter referred to as a "qualifying offense", including those persons who are continuing under some post-conviction supervisory status, are released, granted probation or a suspended sentence, released on parole, probation, home detention, work release, conditional release or any other release from confinement, the Commissioner of Corrections, regional jail administrator, city official, or sheriff operating a jail or Secretary of the Department of Health Facilities who releases the person and any parole or probation officer who releases the person or supervises the person following the release shall obtain all information required by § 15-12-2(d) of this code prior to the release of the person, inform the person of his or her duty to register, and send written notice of the release of the person to the State Police within three business days of receiving the information. The notice must include the information required by § 15-12-2(d) of this code. Any person having a duty to register for a qualifying offense shall register upon conviction, unless that person is confined or incarcerated, in which case he or she shall register within three business days of release, transfer, or other change in disposition status. Any person currently registered who is incarcerated for any offense shall re-register within three business days of his or her release.

(2) Notwithstanding any provision of this article to the contrary, a court of this state shall, upon presiding over a criminal matter resulting in conviction or a finding of not guilty by reason of mental illness, mental retardation, or addiction of a qualifying offense, cause, within 72 hours of entry of the commitment or sentencing order, the transmittal to the sex offender registry for inclusion in the registry all information required for registration by a registrant as well as the following nonidentifying information regarding the victim or victims:

(A) His or her sex;

(B) His or her age at the time of the offense; and

(C) The relationship between the victim and the perpetrator.

The provisions of this subdivision do not relieve a person required to register pursuant to this section from complying with any provision of this article.

(f) For any person determined to be a sexually violent predator, the notice required by § 15-12-2(d) of this code must also include:

(1) Identifying factors, including physical characteristics;

(2) History of the offense; and

(3) Documentation of any treatment received for the mental abnormality or personality disorder.

(g) At the time the person is convicted or found not guilty by reason of mental illness, mental retardation, or addiction in a court of this state of the crimes set forth in § 15-12-2(b) of this code, the person shall sign in open court a statement acknowledging that he or she understands the requirements imposed by this article. The court shall inform the person so convicted of the requirements to register imposed by this article and shall further satisfy itself by interrogation of the defendant or his or her counsel that the defendant has received notice of the provisions of this article and that the defendant understands the provisions. The statement, when signed and witnessed, constitutes prima facie evidence that the person had knowledge of the requirements of this article. Upon completion of the statement, the court shall provide a copy to the registry. Persons who have not signed a statement under the provisions of this subsection and who are subject to the registration requirements of this article must be informed of the requirement by the State Police whenever the State Police obtain information that the person is subject to registration requirements.

(h) The State Police shall maintain a central registry of all persons who register under this article and shall release information only as provided in this article. The information required to be made public by the State Police by § 15-12-5(b)(2) of this code is to be accessible through the Internet. Information relating to telephone or electronic paging device numbers a registrant has or uses may not be released through the Internet.

(i) For the purpose of this article, “sexually violent offense” means:

(1) Sexual assault in the first degree as set forth in § 61-8B-3 of this code, or of a similar provision in another state, federal, or military jurisdiction;

(2) Sexual assault in the second degree as set forth § 61-8B-4 of this code, or of a similar provision in another state, federal, or military jurisdiction;

(3) Sexual assault of a spouse as set forth in the former provisions of § 61-8B-6 of this code, which was repealed by an act of the Legislature during the 2000 legislative session, or of a similar provision in another state, federal, or military jurisdiction;

(4) Sexual abuse in the first degree as set forth in § 61-8B-7 of this code, or of a similar provision in another state, federal, or military jurisdiction;

(j) For purposes of this article, the term “sexually motivated” means that one of the purposes for which a person committed the crime was for any person's sexual gratification.

(k) For purposes of this article, the term “sexually violent predator” means a person who has been convicted or found not guilty by reason of mental illness, mental retardation, or addiction of a sexually violent offense and who suffers from a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(l) For purposes of this article, the term “mental abnormality” means a congenital or acquired condition of a person that affects the emotional or volitional capacity of the person in a manner that predisposes that person to the commission of criminal sexual acts to a degree that makes the person a menace to the health and safety of other persons.

(m) For purposes of this article, the term “predatory act” means an act directed at a stranger or at a person with whom a relationship has been established or promoted for the primary purpose of victimization.

(n) For the purposes of this article, the term “business days” means days exclusive of Saturdays, Sundays, and legal holidays as defined in § 2-1-1 of this code.

(o) A person required to register pursuant to this article shall pay an annual fee of \$125, to be paid between January 1 and June 30 of each year. The annual fee shall be paid to the circuit clerk of the circuit court where the registrant currently resides, and the registrant will provide written proof of payment of the annual fee within ten days of the payment to the State Police detachment monitoring the registrant. The circuit clerk shall compile and maintain a record of any payment made by a registrant to which the State Police shall have access. The circuit clerk shall remit the entirety of a payment made pursuant to this subsection to the state treasurer who shall deposit these funds into the State Treasury and credit said funds to the account of the State Police. The State Police is hereby authorized to utilize the funds collected from these annual fees, first to enhance mental health services for current and former employees of the West Virginia State Police, including but not limited to hiring, or contracting, mental health professionals, conducting periodic educational seminars, meetings, training or conferences addressing mental health issues that affect persons that are, or have been, employed as law enforcement, and then for any other use essential to the general operations of the State Police: *Provided*, That failure to pay the annual fee, or provide proof of payment of the annual fee, pursuant to this subsection may not be considered a violation of the person's supervised release: *Provided, however*, That written notice by the State Police served upon the registrant, by certified mail at the last address provided by the registrant, stating that that the annual fee has not been paid, may be recorded 30 days after the notice was received by the registrant in the office of the county clerk where the person required to register resides. This notice shall have the effect of a judgment and shall be recorded and indexed by the county clerk in the judgment lien docket. This judgment lien will be released by the State Police within 30 days upon full and complete payment by the registrant. Written verification of the release of the lien shall be provided to the registrant at the address last provided by the registrant.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2001, c. 266, eff. 90 days after April 14, 2001; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006; Acts 2012, c. 173, eff. June 3, 2012; Acts 2017, c. 129, eff. June 15, 2017; Acts 2018, c. 210, eff. June 5, 2018; Acts 2024, c. 149, eff. Jan. 22, 2024; Acts 2025, c. 81, eff. July 11, 2025.

W. Va. Code, § 15-12-2, WV ST § 15-12-2

Current with legislation of the 2026 Regular Session approved through February 23, 2026. Some statute sections may be more current, see credits for details.

West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-2a

§ 15-12-2a. Court determination of sexually violent predator

Currentness

(a) The circuit court that has sentenced a person for the commission of a sexually violent offense or that has entered a judgment of acquittal of a charge of committing a sexually violent offense in which the defendant has been found not guilty by reason of mental illness, mental retardation or addiction shall make a determination whether:

(1) A person is a sexually violent predator; or

(2) A person is not a sexually violent predator.

(b) A hearing to make a determination as provided in subsection (a) of this section is a summary proceeding, triable before the court without a jury.

(c) A proceeding seeking to establish that a person is a sexually violent predator is initiated by the filing of a written pleading by the prosecuting attorney. The pleading shall describe the record of the judgment of the court on the person's conviction or finding of not guilty by reason of mental illness, mental retardation or addiction of a sexually violent offense and shall set forth a short and plain statement of the prosecutor's claim that the person suffers from a mental abnormality or personality disorder that makes the person likely to engage in predatory sexually violent offenses.

(d) Prior to making a determination pursuant to the provisions of this section, the sentencing court may order a psychiatric or other clinical examination and, after examination, may further order a period of observation in an appropriate facility within this state designated by the court after consultation with the director of the division of health.

(e) Prior to making a determination pursuant to the provisions of this section, the sentencing court shall request and receive a report by the board established pursuant to section two-b of this article. The report shall set forth the findings and recommendation of the board on the issue of whether the person is a sexually violent predator.

(f) At a hearing to determine whether a person is a sexually violent predator, the person shall be present and shall have the right to be represented by counsel, introduce evidence and cross-examine witnesses. The offender shall have access to a summary of the medical evidence to be presented by the state. The offender shall have the right to an examination by an independent expert of his or her choice and testimony from the expert as a medical witness on his or her behalf. At the termination of the hearing the court shall make a finding of fact upon a preponderance of the evidence as to whether the person is a sexually violent predator.

(g) If a person is determined by the circuit court to be a sexually violent predator, the clerk of the court shall forward a copy of the order to the state police in the manner promulgated in accordance with the provisions of article three, chapter twenty-nine-a of this code.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004.

W. Va. Code, § 15-12-2a, WV ST § 15-12-2a

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-2b

§ 15-12-2b. Creation of sex offender registration advisory board

Currentness

(a) There is hereby created within the department of military affairs and public safety a sex offender registration advisory board consisting of a minimum of five members appointed by the secretary of the department of military affairs and public safety. At least two of the members shall be experts in the field of the behavior and treatment of sexual offenders, and each shall be a physician, psychologist or social worker in the employ of this state appointed by the secretary in consultation with the director of the division of health. The remaining members shall be victims rights advocates and representatives of law-enforcement agencies. Members of the board shall be reimbursed their reasonable expenses pursuant to the rules promulgated by the department of administration for the reimbursement of expenses of state officials and employees and shall receive no other compensation for their services. The board shall utilize the staff of the division or office within the department of military affairs and public safety designated by the secretary thereof in carrying out its duties and responsibilities as set forth in this article.

(b) The board shall assist the circuit courts of this state in determining whether persons convicted of sexually violent offenses are sexually violent predators.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999.

W. Va. Code, § 15-12-2b, WV ST § 15-12-2b

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-3

§ 15-12-3. Change in registry information

Effective: June 3, 2012

Currentness

When any person required to register under this article changes his or her residence, address, place of employment or occupation, motor vehicle, trailer or motor home information required by section two of this article, or school or training facility which he or she is attending, or when any of the other information required by this article changes, he or she shall, within ten business days, inform the West Virginia State Police of the changes in the manner prescribed by the Superintendent of State Police in procedural rules promulgated in accordance with the provisions of article three, chapter twenty-nine-a of this code: *Provided*, That when any person required to register under this article changes his or her residence, place of employment or occupation or school or training facility he or she is attending from one county of this state to another county of this state, he or she shall inform the West Virginia State Police detachment responsible for covering the county of his or her residence within ten business days of the change in the manner prescribed by the superintendent in procedural rules promulgated in accordance with the provisions of article three, chapter twenty-nine-a of this code.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006; Acts 2012, c. 173, eff. June 3, 2012.

W. Va. Code, § 15-12-3, WV ST § 15-12-3

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-3a

§ 15-12-3a. Petition for removal of sexually violent predator designation

Currentness

A proceeding seeking to remove a person's designation as a sexually violent predator may be initiated by the filing of a petition by the person so designated in the original sentencing court. The petition shall set forth that the underlying qualifying conviction has been reversed or vacated. Upon receipt of proof that no qualifying conviction exists, the court shall enter an order directing the removal of the designation.

Credits

Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004.

W. Va. Code, § 15-12-3a, WV ST § 15-12-3a

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-4

§ 15-12-4. Duration

Effective: June 5, 2018

Currentness

(a) A person required to register under the terms of this article shall continue to comply with this section, except during ensuing periods of incarceration or confinement, until:

(1) Ten years have elapsed since the person was released from prison, jail, or a mental health facility or 10 years have elapsed since the person was placed on probation, parole, or supervised or conditional release. The 10-year registration period may not be reduced by the sex offender's release from probation, parole, or supervised or conditional release; or

(2) For the life of that person, if that person: (A) Has one or more prior convictions or has previously been found not guilty by reason of mental illness, mental retardation, or addiction for any qualifying offense referred to in this article; (B) has been convicted or has been found not guilty by reason of mental illness, mental retardation, or addiction of a qualifying offense as referred to in this article, and upon motion of the prosecuting attorney, the court finds by clear and convincing evidence that the qualifying offense involved multiple victims or multiple violations of the qualifying offense; (C) has been convicted or has been found not guilty by reason of mental illness, mental retardation, or addiction of a sexually violent offense; (D) has been determined pursuant to § 15-12-2a of this code to be a sexually violent predator; or (E) has been convicted or has been found not guilty by reason of mental illness, mental retardation, or addiction of a qualifying offense as referred to in this article, involving a minor or a person believed or perceived by the registrant to be a minor.

(b) A person whose conviction is overturned for the offense which required him or her to register under this article shall, upon petition to the court, have his or her name removed from the registry.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2018, c. 210, eff. June 5, 2018.

W. Va. Code, § 15-12-4, WV ST § 15-12-4

Current with legislation of the 2026 Regular Session approved through February 23, 2026. Some statute sections may be more current, see credits for details.

West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-5

§ 15-12-5. Distribution and disclosure of information; community information
programs by prosecuting attorney and State Police; petition to circuit court

Effective: June 3, 2012

Currentness

(a) Within five business days after receiving any notification as described in this article, the State Police shall distribute a copy of the notification statement to:

(1) The supervisor of each county and municipal law-enforcement office and any campus police department in the city and county where the registrant resides, owns or leases habitable real property that he or she regularly visits, is employed or attends school or a training facility;

(2) The county superintendent of schools in each county where the registrant resides, owns or leases habitable real property that he or she regularly visits, is employed or attends school or a training facility;

(3) The child protective services office charged with investigating allegations of child abuse or neglect in the county where the registrant resides, owns or leases habitable real property that he or she regularly visits, is employed or attends school or a training facility;

(4) All community organizations or religious organizations which regularly provide services to youths in the county where the registrant resides, owns or leases habitable real property that he or she regularly visits, is employed or attends school or a training facility;

(5) Individuals and organizations which provide day care services for youths or day care, residential or respite care, or other supportive services for mentally or physically incapacitated or infirm persons in the county where the registrant resides, owns or leases habitable real property that he or she regularly visits, is employed or attends school or a training facility; and

(6) The Federal Bureau of Investigation (FBI).

(7) The State Police detachments in the county of the offender's occupation, employment, owned or leased habitable real property and school or training.

(b) Information concerning persons whose names are contained in the sex offender registry is not subject to the requirements of the West Virginia Freedom of Information Act, as set forth in chapter twenty-nine-b of this code, and may be disclosed and disseminated only as otherwise provided in this article and as follows:

(1) When a person has been determined to be a sexually violent predator under the terms of section two-a of this article, the State Police shall notify the prosecuting attorney of the county in which the person resides, owns or leases habitable real property that he or she regularly visits, is employed or attends a school or training facility. The prosecuting attorney shall cooperate with the State Police in conducting a community notification program which is to include publication of the offender's name, photograph, place of residence, location of regularly visited habitable real property owned or leased by the offender, county of employment and place at which the offender attends school or a training facility, as well as information concerning the legal rights and obligations of both the offender and the community. Information relating to the victim of an offense requiring registration may not be released to the public except to the extent the prosecuting attorney and the State Police consider it necessary to best educate the public as to the nature of sexual offenses: *Provided*, That no victim's name may be released in any public notification pursuant to this subsection. No information relating to telephone or electronic paging device numbers a registrant has or uses may be released to the public with this notification program. The prosecuting attorney and State Police may conduct a community notification program in the county where a person who is required to register for life under the terms of subdivision (2), subsection (a), section four of this article resides, owns or leases habitable real property that he or she regularly visits, is employed or attends a school or training facility. Community notification may be repeated when determined to be appropriate by the prosecuting attorney;

(2) The State Police shall maintain and make available to the public at least quarterly the list of all persons who are required to register for life according to the terms of subdivision (2), subsection (a), section four of this article. No information concerning the identity of a victim of an offense requiring registration or telephone or electronic paging device numbers a registrant has or uses may be released with this list. The method of publication and access to this list are to be determined by the superintendent; and

(3) A resident of a county may petition the circuit court for an order requiring the State Police to release information about persons that reside or own or lease habitable real property that the persons regularly visit in that county and who are required to register under section two of this article. The court shall determine whether information contained on the list is relevant to public safety and whether its relevance outweighs the importance of confidentiality. If the court orders information to be released, it may further order limitations upon secondary dissemination by the resident seeking the information. In no event may information concerning the identity of a victim of an offense requiring registration or information relating to telephone or electronic paging device numbers a registrant has or uses be released.

(c) The State Police may furnish information and documentation required in connection with the registration to authorized law-enforcement, campus police and governmental agencies of the United States and its territories, of foreign countries duly authorized to receive the same, of other states within the United States and of the State of West Virginia upon proper request stating that the records will be used solely for law-enforcement-related purposes. The State Police may disclose information collected under this article to federal, state and local governmental agencies responsible for conducting preemployment checks. The State Police also may disclose information collected under this article to the Division of Motor Vehicles pursuant to the provisions of section three, article two, chapter seventeen-b of this code.

(d) An elected public official, public employee or public agency is immune from civil liability for damages arising out of any action relating to the provisions of this section except when the official, employee or agency acted with gross negligence or in bad faith.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2001, c. 266, eff. 90 days after April 14, 2001; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006; Acts 2012, c. 173, eff. June 3, 2012.

W. Va. Code, § 15-12-5, WV ST § 15-12-5

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-6

§ 15-12-6. Duties of institution officials

Currentness

In addition to the duties imposed by sections two and four of this article, the official in charge of the place of confinement shall inform any person required to register under this article, before parole or release, of the duty to register. Further, the official shall obtain the full address of the person and a statement signed by the person acknowledging that the person has been informed of his or her duty to register.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004.

W. Va. Code, § 15-12-6, WV ST § 15-12-6

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-6a

§ 15-12-6a. Release of information to the Sex Offender Registry

Currentness

Upon the request of the West Virginia State Police, agencies in possession of records produced in conjunction with investigation, prosecution, adjudication, incarceration, probation, parole or presentence review of a sex offender and any other records produced in conjunction with a sex offense shall provide those records to the State Police.

Credits

Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006.

W. Va. Code, § 15-12-6a, WV ST § 15-12-6a

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-7

§ 15-12-7. Information shall be released when person moves out of state

Currentness

A person who is required to register pursuant to the provisions of this article, who intends to move to another state or country shall at least ten business days prior to such move notify the state police of his or her intent to move and of the location to which he or she intends to move, or if that person is incarcerated he or she shall notify correctional officials of his or her intent to reside in some other state or country upon his or her release, and of the location to which he or she intends to move. Upon such notification, the state police shall notify law-enforcement officials of the jurisdiction where the person indicates he or she intends to reside of the information provided by the person under the provisions of this article.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004.

W. Va. Code, § 15-12-7, WV ST § 15-12-7

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-8

§ 15-12-8. Failure to register or provide notice of registration changes; penalty; penalty for aiding and abetting

Currentness

(a) Each time a person has a change in any of the registration information as required by this article and knowingly fails to register the change or changes, each failure to register each separate item of information changed shall constitute a separate offense under this section.

(b) Except as provided in this section, any person required to register for ten years pursuant to subdivision (1), subsection (a), section four of this article who knowingly provides materially false information or who refuses to provide accurate information when so required by the terms of this article, or who knowingly fails to register or knowingly fails to provide a change in any required information as required by this article, is guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than two hundred fifty dollars nor more than ten thousand dollars or confined in jail not more than one year, or both. Any person convicted of a second offense under this subsection is guilty of a felony and, upon conviction thereof, shall be imprisoned in a state correctional facility for not less than one year nor more than five years. Any person convicted of a third or subsequent offense under this subsection is guilty of a felony and, upon conviction thereof, shall be imprisoned in a state correctional facility for not less than five nor more than twenty-five years.

(c) Any person required to register for life pursuant to this article who knowingly provides materially false information or who refuses to provide accurate information when so required by the terms of this article, or who knowingly fails to register or knowingly fails to provide a change in any required information as required by this article, is guilty of a felony and, upon conviction thereof, shall be imprisoned in a state correctional facility for not less than one year nor more than five years. Any person convicted of a second or subsequent offense under this subsection is guilty of a felony and, upon conviction thereof, shall be imprisoned in a state correctional facility for not less than ten nor more than twenty-five years.

(d) In addition to any other penalty specified for failure to register under this article, any person under the supervision of a probation officer, parole officer or any other sanction short of confinement in jail or prison who knowingly refuses to register or who knowingly fails to provide a change in information as required by this article shall be subject to immediate revocation of probation or parole and returned to confinement for the remainder of any suspended or unserved portion of his or her original sentence.

(e) Notwithstanding the provisions of subsection (c) of this section, any person required to register as a sexually violent predator pursuant to this article who knowingly provides materially false information or who refuses to provide accurate information when so required by terms of this article or who knowingly fails to register or knowingly fails to provide a change in any required information as required by this article is guilty of a felony and, upon conviction thereof, shall, for a first offense, be confined in a state correctional facility not less than two nor more than ten years and for a second or subsequent offense, is guilty of a felony and shall be confined in a state correctional facility not less than fifteen nor more than thirty-five years.

(f) Any person who knows or who has reason to know that a sex offender is not complying, or has not complied, with the requirements of this section and who, with the intent to assist the sex offender in eluding a law-enforcement agency that is seeking to find the sex offender to question the sex offender about, or to arrest the sex offender for, his or her noncompliance with the requirements of this section:

(1) Withholds information from, the law-enforcement agency about the sex offender's noncompliance with the requirements of this section and, if known, the whereabouts of the sex offender; or

(2) Harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the sex offender; or

(3) Conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the sex offender; or

(4) Provides information to the law-enforcement agency regarding the sex offender which the person knows to be false information is guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than two hundred fifty dollars nor more than ten thousand dollars or confined in jail not more than one year, or both: *Provided*, That where the person assists or seeks to assist a sex offender whose violation of this section would constitute a felony, the person shall be guilty of a felony and, upon conviction thereof, shall be imprisoned in a state correctional facility for not less than one year nor more than five years.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2004, 3rd Ex. Sess., c. 15, eff. Nov. 16, 2004; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006.

W. Va. Code, § 15-12-8, WV ST § 15-12-8

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West's Annotated Code of West Virginia

Chapter 15. Public Safety

Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-9

§ 15-12-9. Registration of out-of-state offenders

Currentness

(a) When any probation or parole officer accepts supervision of and has legal authority over any person required to register under this article from another state under the terms and conditions of the uniform act for out-of-state parolee supervision established under article six, chapter twenty-eight of this code, the officer shall give the person written notice of the registration requirements of this section and obtain a signed statement from the person required to register acknowledging the receipt of the notice. The officer shall obtain and submit to the State Police the information required in subsection (d), section two of this article.

(b) Any person:

(1) Who resides in another state or federal or military jurisdiction;

(2) Who is employed, carries on a vocation, is a student in this state, is a visitor to this state for a period of more than fifteen continuous days or owns or leases habitable real property in this state that he or she regularly visits; and

(3) Who is required by the state, federal or military jurisdiction in which he or she resides to register in that state, federal or military jurisdiction as a sex offender, or has been convicted of a violation in that state, federal or military jurisdiction that is similar to a violation in this article requiring registration as a sex offender in this state, shall register in this state and otherwise comply with the provisions of this article.

(c) Any person changing residence to this state from another state or federal or military jurisdiction who is required to register as a sex offender under the laws of that state or federal or military jurisdiction shall register as a sex offender in this state.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2000, c. 219, eff. 90 days after March 11, 2000; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006.

W. Va. Code, § 15-12-9, WV ST § 15-12-9

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West's Annotated Code of West Virginia
Chapter 15. Public Safety
Article 12. Sex Offender Registration Act (Refs & Annos)

W. Va. Code, § 15-12-10

§ 15-12-10. Address and online information verification

Effective: June 3, 2012

Currentness

All registrants, including those for whom there has been no change in registration information since their initial registration or previous address verification, must report, in the month of their birth, or in the case of a sexually violent predator in the months of January, April, July and October, to the State Police detachment responsible for covering their county of registration and must respond to all verification inquiries and informational requests, including, but not limited to, requests for online information made by the State Police pursuant to this section. The State Police shall verify addresses of those persons registered as sexually violent predators every ninety days and all other registered persons once a year. As used in this section, the term “online information” shall mean all information required by subdivision (8), subsection (d), section two, article twelve, chapter fifteen of this code. The State Police may require registrants to periodically submit to new fingerprints and photographs as part of the verification process. The method of verification shall be in accordance with internal management rules pertaining thereto promulgated by the superintendent under authority of section twenty-five, article two, chapter fifteen of this code.

Credits

Acts 1999, c. 232, eff. 90 days after March 13, 1999; Acts 2006, 1st Ex. Sess., c. 15, eff. Oct. 1, 2006; Acts 2011, c. 155, eff. June 5, 2011; Acts 2012, c. 173, eff. June 3, 2012.

W. Va. Code, § 15-12-10, WV ST § 15-12-10

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West's Wyoming Statutes Annotated
Title 7. Criminal Procedure
Chapter 19. Criminal History Records
Article 3. Sex Offender Registration

W.S.1977 § 7-19-301

§ 7-19-301. Definitions

Effective: July 1, 2024
Currentness

(a) Unless otherwise provided, for the purposes of this act:

(i), (ii) Repealed by Laws 2007, ch. 160, § 2.

(iii) “Convicted” includes pleas of guilty, nolo contendere, verdicts of guilty upon which a judgment of conviction may be rendered and adjudications as a delinquent for offenses specified in W.S. 7-19-302(j). “Convicted” shall not include dispositions pursuant to W.S. 7-13-301;

(iv) Repealed by Laws 2024, ch. 102, § 2, eff. July 1, 2024.

(v) “Department” means the state department of corrections;

(vi) “Division” means the Wyoming division of criminal investigation created within the office of the attorney general;

(vii) “Minor” means a person who has not attained the age of eighteen (18) years at the time of the offense;

(viii) “Offender” means a person convicted of a criminal offense specified in W.S. 7-19-302(g) through (j), 6-2-702, 6-2-703, 6-2-705 or 6-2-706. “Offender” shall also include any person convicted:

(A) As an accessory before the fact as provided in W.S. 6-1-201 for a criminal offense specified in W.S. 7-19-302(g) through (j), 6-2-702, 6-2-703, 6-2-705 or 6-2-706;

(B) Of a criminal offense in Wyoming or any other jurisdiction containing the same or similar elements, or arising out of the same or similar facts or circumstances, as a criminal offense specified in W.S. 7-19-302(g) through (j), 6-2-702, 6-2-703, 6-2-705 or 6-2-706.

(ix) “Predatory” means an act directed at a stranger or a person with whom a relationship has been established or promoted for the primary purpose of victimization;

(x) “Recidivist” means an offender convicted of an offense requiring registration under this act two (2) or more times. Offenses which would have required registration under this act, but which had a sentencing date prior to January 1, 1985, shall be counted as convictions for purposes of this paragraph;

(xi) “Reside” and words of similar import mean the physical address of each residence of an offender, including:

(A) All real property owned by the offender that is used by the offender for the purpose of shelter or other activities of daily living;

(B) Any physical address where the offender habitually visits; and

(C) Temporary residences such as hotels, motels, public or private housing, camping areas, parks, public buildings, streets, roads, highways, restaurants, libraries or other places the offender may frequent and use for shelter or other activities of daily living.

(xii) to (xiv) Repealed by Laws 2007, ch. 160, § 2.

(xv) “This act” means W.S. 7-19-301 through 7-19-310;

(xvi) “Attending school” means enrollment on a full or part-time basis at any institution;

(xvii) “Employed” means any full or part-time employment, with or without compensation or other benefit, for a period of more than fourteen (14) days, or for an aggregate period exceeding thirty (30) days in any one (1) calendar year. Institutional contractors and contract employees performing work on an educational institution campus shall be considered institution employees;

(xviii) “Educational institution” or “institution” means any type of public or private educational facility or program, including elementary, middle and high schools, parochial, church and religious schools as defined by W.S. 21-4-101(a)(iv), trade and professional schools, colleges and universities;

(xix) “Residence” means a dwelling place with an established physical address or identifiable physical location intended for human habitation;

(xx) “Report” means providing information in person, or by any other means authorized by the sheriff if the person is required to report to the sheriff;

(xxi) “Working days” shall not include Saturdays, Sundays and legal holidays;

(xxii) “Vehicle” includes any of the following that is registered under Wyoming law:

(A) Aircraft as defined in W.S. 10-1-101(a)(i);

(B) Motor vehicle, commercial vehicle or trailer as defined in W.S. 31-1-101;

(C) Watercraft as defined in W.S. 41-13-101(a)(vii).

(xxiii) Words in the plural form include the singular and words in the singular form include the plural.

Credits

Laws 1994, ch. 60, § 1; Laws 1999, ch. 203, § 2, eff. July 1, 1999; Laws 2000, ch. 81, § 1, eff. March 14, 2000; Laws 2005, ch. 218, § 1, eff. July 1, 2005; Laws 2006, ch. 114, § 1, eff. March 24, 2006; Laws 2007, ch. 159, § 2, eff. July 1, 2007; Laws 2007, ch. 160, §§ 1, 2, eff. July 1, 2007; Laws 2009, ch. 162, § 1, eff. July 1, 2009; Laws 2011, ch. 179, § 1, eff. July 1, 2011; Laws 2013, ch. 91, § 2, eff. July 1, 2013; Laws 2016, ch. 13, § 2, eff. July 1, 2016; Laws 2017, ch. 83, § 1, eff. July 1, 2017; Laws 2017, ch. 144, § 2, eff. July 1, 2017; Laws 2024, ch. 102, § 2, eff. July 1, 2024.

W. S. 1977 § 7-19-301, WY ST § 7-19-301

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West's Wyoming Statutes Annotated
Title 7. Criminal Procedure
Chapter 19. Criminal History Records
Article 3. Sex Offender Registration

W.S.1977 § 7-19-302

§ 7-19-302. Registration of offenders; procedure; verification; fees

Effective: July 1, 2025

Currentness

(a) Any offender residing in this state or entering this state for the purpose of residing, attending school or being employed in this state shall register with the sheriff of the county in which he resides, attends school or is employed, or other relevant entity specified in subsection (c) of this section. The offender shall be photographed, fingerprinted and palmprianted by the registering entity or another law enforcement agency and shall provide the following additional information when registering:

(i) Name, including any aliases ever used;

(ii) Address;

(iii) Date and place of birth;

(iv) Social security number;

(v) Place and physical address of employment;

(vi) Date and place of conviction;

(vii) Crime for which convicted;

(viii) The name and physical address of each educational institution in this state at which the person is employed or attending school;

(ix) The license plate number and a description of any vehicle owned or operated by the offender;

(x) A DNA sample. As used in this paragraph, "DNA" means as defined in W.S. 7-19-401(a)(vi);

(xi) The age of each victim;

(xii) Internet identifiers, including each email address and other designations used by the offender for self-identification or routing in internet communications or postings. As used in this paragraph, "internet" means as defined in W.S. 9-2-3219(a) (iii); and

(xiii) Any phone number at which the offender may be reached or which may be used on a frequent basis by the offender to place telephone calls.

(b) In addition to the requirements of subsection (a) of this section, the department, for offenders sentenced to imprisonment, and the sheriff of the county where judgment and sentence is entered for all other offenders, shall obtain the name of the offender, identifying features, anticipated future residence, offense history and documentation of any treatment received, including prescribed psychotropic medication history, for any psychiatric condition of the offender. This information shall be transmitted to the division within three (3) working days of receipt for entry into the central registration system. A person found to be an offender by a court in another state shall provide information required under this subsection at the time of registration under this act.

(c) Offenders required to register under this act shall register with the entities specified in this subsection and within the following time periods:

(i) Offenders who, on or after July 1, 1999, are in custody of the department, local jail or a public or private agency pursuant to a court order, as a result of an offense subjecting them to registration, who are sentenced on or after January 1, 1985, shall register prior to release from custody. The agency with custody of the offender immediately prior to release shall register the offender and perform the duties specified in W.S. 7-19-305. If the offender refuses to register or refuses to provide the required information, the agency shall so notify local law enforcement before releasing the offender;

(ii) Offenders who are convicted of an offense subjecting them to registration under this act but who are not sentenced to a term of confinement shall register immediately after the imposition of the sentence. The sheriff of the county where the judgment and sentence is entered shall register the offender and perform the related duties specified in W.S. 7-19-305 unless the offender does not reside in the county where the judgment and sentence is entered, in which case he shall register in the county in which he resides within three (3) working days;

(iii) Offenders convicted of an offense subjecting them to registration, who, except as provided by paragraph (v) of this subsection, are sentenced on or after January 1, 1985, who reside in or enter this state for the purposes of residing and who are under the jurisdiction of the department or state board of parole or other public agency as a result of that offense shall register within three (3) working days of entering this state. The Wyoming agency that has jurisdiction over the offender shall notify the offender of the registration requirements before the offender moves to this state. Within three (3) working days after the offender arrives in this state, the Wyoming agency that has jurisdiction over the offender shall notify the county sheriff of the county in which the offender resides of the offender's presence in the county;

(iv) Offenders convicted of an offense subjecting them to registration, who, except as provided by paragraph (v) of this subsection, are sentenced on or after January 1, 1985, who reside in or enter this state and who are not under the jurisdiction or custody of the department, board of parole or other public agency as a result of that offense shall register within three (3) working days of entering this state if not a current resident;

- (v) Offenders convicted of an offense subjecting them to registration, whose registration requirement was added by the 2011 amendments to this act and who are sentenced after July 1, 2001 shall register as required by paragraph (iii) or (iv) of this subsection as appropriate.
- (d) A nonresident who is employed or attends school in this state shall register with the county sheriff of the county in which he is employed or attends school within three (3) working days of beginning employment or starting to attend school. A resident or nonresident who is employed, resides or attends school in more than one (1) location in this state, shall register with the county sheriff of each county in which he is employed, resides or attends school within three (3) working days of beginning employment, establishing a residence in this state or starting to attend school. The registration information accepted under this subsection shall be subject to the provisions of W.S. 7-19-303.
- (e) If any person required to register under this act changes his residence address within the same county, he shall provide notice of the change of address in person to the sheriff of the county in which he resides within three (3) working days of establishing the new residence. If any person required to register under this act moves to a new county in this state, he shall notify in person the county sheriff in the new county and the county sheriff of the county of his previous residence within three (3) working days of establishing the new residence. If the person changes residence to another state and that state has a registration requirement, the division shall, within three (3) working days of receipt of the information, notify the law enforcement agency with which the person must register in the new state. Any person who has not established a new residence within three (3) working days of leaving his previous residence, or becomes transient through lack of residence, shall report on a weekly basis to the sheriff in the county in which he is registered, until he establishes another residence. The information provided to a sheriff under this subsection shall be transmitted by the sheriff to the division within three (3) working days of receipt for entry into the central registry. The division shall notify the victim, or if the victim is a minor the victim's parent or guardian, within the same time period if the victim, or a minor victim's parent or guardian, has requested in writing that the division provide notification of a change of address of the offender and has provided the division a current address of the victim, parent or guardian as applicable.
- (f) An offender who changes residence to another state shall register the new address with the law enforcement agency with whom he last registered and shall also register with the designated law enforcement agency in the new state not later than three (3) working days after establishing residence in the new state.
- (g) For an offender convicted of a violation of W.S. 6-2-316(a)(i) and (iv), 6-2-705, 6-4-303(b)(iv) or 6-4-304(b) if the victim was a minor, 18 U.S.C. §§ 2252B, 2252C, 2424 and 2425, an offense in another jurisdiction containing the same or similar elements, or arising out of the same or similar facts or circumstances as a criminal offense specified in this subsection or an attempt or conspiracy to commit any of the offenses specified in this subsection, the division shall annually verify the accuracy of the offender's registered address, and the offender shall annually report, in person, his current address to the sheriff in the county in which the offender resides, during the period in which he is required to register. During the annual in-person verification, the sheriff shall photograph the offender. Confirmation of the in-person verification required under this subsection, along with the photograph of the offender, shall be transmitted by the sheriff to the division within three (3) working days. Any person under this subsection who has not established a residence or is transient, and who is reporting to the sheriff as required under subsection (e) of this section, shall be deemed in compliance with the address verification requirements of this section.
- (h) For an offender convicted of a violation of W.S. 6-2-304(a)(iii) if the victim was at least fourteen (14) years of age, W.S. 6-2-317(a)(i) and (ii) or 6-2-318, W.S. 6-2-706, W.S. 6-4-102 if the person solicited was a minor, W.S. 6-4-103 if the person enticed or compelled was a minor, W.S. 6-4-302(a)(i) if the offense involves the use of a minor in a sexual performance or W.S. 6-4-303(b)(i) through (iii), 18 U.S.C. § 2251, an offense in another jurisdiction containing the same or similar elements,

or arising out of the same or similar facts or circumstances as a criminal offense specified in this subsection, an attempt or conspiracy to commit any of the offenses specified in this subsection, or any offense enumerated in subsection (g) of this section if the offender was previously convicted of any offense enumerated in subsection (g) of this section, the division shall verify the accuracy of the offender's registered address, and the offender shall report, in person, his current address to the sheriff in the county in which the offender resides, every six (6) months after the date of the initial release or commencement of parole. If the offender's appearance has changed substantially, and in any case at least annually, the sheriff shall photograph the offender. Confirmation of the in-person verification required by this subsection, and any new photographs of the offender, shall be transmitted by the sheriff to the division within three (3) working days. Any person under this subsection who has not established a residence or is transient, and who is reporting to the sheriff as required under subsection (e) of this section, shall be deemed in compliance with the address verification requirements of this section.

(j) For an offender convicted of a violation of W.S. 6-2-201 if the victim was a minor, W.S. 6-2-302 or 6-2-303, W.S. 6-2-304(a) (iii) if the victim was under fourteen (14) years of age, W.S. 6-2-314, W.S. 6-2-315, W.S. 6-2-316(a)(ii) and (iii), 6-2-702 or 6-2-703, 6-4-402, 18 U.S.C. § 2245, or an offense in another jurisdiction containing the same or similar elements, or arising out of the same or similar facts or circumstances as a criminal offense specified in this subsection, an attempt or conspiracy to commit any of the offenses specified in this subsection, any offense enumerated in subsection (h) of this section if the offender was previously convicted of any offense enumerated in subsection (g) of this section or any offense enumerated in subsection (g) or (h) of this section if the offender was previously convicted of any offense enumerated in subsection (h) of this section, the division shall verify the accuracy of the offender's registered address, and the offender shall report, in person, his current address to the sheriff in the county in which the offender resides every three (3) months after the date of the initial release or commencement of parole. If the offender's appearance has changed substantially, and in any case at least annually, the sheriff shall photograph the offender. Confirmation of the in-person verification required by this subsection, and any new photographs of the offender, shall be transmitted by the sheriff to the division within three (3) working days. Any person under this subsection who has not established a residence or is transient, and who is reporting to the sheriff as required under subsection (e) of this section, shall be deemed in compliance with the address verification requirements of this section.

(k) Any person required to register under this act shall provide information in person to the sheriff of the county in which he is registered and to any other relevant registering entity specified in subsection (c) of this section regarding each change in employment or enrollment status at any educational institution in this state, including any of the information collected pursuant to subsection (a) of this section within three (3) working days of the change to the entity with whom the offender last registered. This information shall be forwarded immediately from the registering entity to the division on a form prescribed by the division, and the division shall then enter the information into the central registry and forward the information to the campus police department or other law enforcement agency with jurisdiction over the educational institution.

(m) Any person required to register under this act shall provide information in person to the sheriff of the county in which he is registered and to any other relevant registering entity specified in subsection (c) of this section regarding each change of employment and shall disclose all places of employment if there is more than one (1), including any loss of employment, within three (3) working days of the change to the entity with whom the offender last registered. The information shall be forwarded within three (3) working days from the registering entity to the division and the division shall then enter the information into the central registry.

(n) Any person required to register under this act shall provide any new or updated information in person to the sheriff of the county in which he is registered and to any other relevant registering entity specified in subsection (c) of this section regarding any changes, modifications or other information necessary to keep current any of the information specified in this section and W.S. 7-19-303, within three (3) working days of the change to the entity with whom the offender last registered. The information

shall be forwarded within three (3) working days from the registering entity to the division and the division shall then enter the information into the central registry.

(o) If the division lacks sufficient information or documentation to identify the offender's crime for which convicted or equivalent Wyoming offense, it shall register the offender as if he were convicted of an offense listed in subsection (j) of this section. If the division receives additional verifiable information or documentation that demonstrates that the offender was not convicted of an offense specified under subsection (j) of this section or an offense from any other jurisdiction containing the same or similar elements or arising out of the same or similar facts or circumstances, it shall modify the offender's status.

(p) Any person convicted of any offense enumerated in subsection (g), (h) or (j) of this section who is released from confinement for any reason before being sentenced shall register as described in this section with the county sheriff for each county in which that person resides, is employed or attends school.

(q) Any offender registered pursuant to this act shall notify the county sheriff of each county in which he is registered at least twenty-one (21) days before traveling outside of the United States of America. The notification shall include the name of each country the offender plans to visit, the dates the offender intends to be in each country, the purpose for which the offender is traveling, the offender's means of travel and the offender's country of citizenship, passport number and country of issue. Each county sheriff receiving notification of an offender's intention to travel outside of the United States of America shall forward that information to the division within three (3) working days.

(r) Except as provided in subsection (s) of this section, all offenders required to register or report updated information pursuant to this act shall pay fees established by rules of the division. The division shall establish fees in accordance with the following:

(i) At the time of initial registration, the offender shall pay a state registration fee in an amount not to exceed one hundred twenty dollars (\$120.00) and a county registration fee in an amount equal to twenty-five percent (25%) of the state registration fee;

(ii) Each time the offender is required to report updated information pursuant to subsection (e), (f), (k) or (m) of this section, the offender shall pay a state reporting fee in an amount not to exceed twenty-five dollars (\$25.00) and a county reporting fee in an amount equal to twenty-five percent (25%) of the state reporting fee;

(iii) The state registration and reporting fees established by the division shall, to the extent practicable, generate a total revenue that approximates, but does not exceed, the direct and indirect costs of administering and enforcing the provisions of this act.

(s) No fee required under subsection (r) of this section shall be charged to:

(i) An offender in custody of the department, a local jail or a public or private agency pursuant to a court order during the period in which the offender is in custody;

(ii) An indigent offender, as provided in rules established by the division. The rules shall establish criteria and procedures for determinations of indigency in accordance with the following:

(A) Standards for indigency shall be similar to the standards used to determine indigency for the purposes of the appointment of counsel;

(B) An offender shall apply for a determination of indigency at the time of registration or reporting updated information by submitting to the division or the sheriff of the county in which the offender is required to register or report, under penalty of perjury, an application and supporting documentation regarding the offender's income, property owned, outstanding obligations, number and ages of the offender's dependents and any other factors relevant to the offender's ability to pay registration and reporting fees. The application and information shall detail the offender's financial status for a period of not less than one (1) year preceding the date of the application;

(C) If an offender is unable to submit a complete application at the time of registration or reporting updated information, the offender may submit an application to the division or the sheriff of the county in which the offender is required to register or report updated information within thirty (30) days of registration or reporting. Failure to submit an application and all required information within thirty (30) days of registration or reporting updated information shall be deemed to be a waiver of the offender's ability to request a determination of indigency and the fees required under subsection (r) of this section shall be payable;

(D) The division shall approve or deny an application for a determination of indigency and provide notice of the determination to the offender within thirty (30) days of receipt of the application;

(E) The division's determination that the offender is indigent shall be valid for a period of one (1) calendar year from the registration or reporting updated information date for which the application was submitted. Upon the expiration of the period, the offender may submit an application for a new determination of indigency;

(F) If the division determines the offender is not indigent, the offender shall pay the fees required under subsection (r) of this section within thirty (30) days from the date the offender receives notice of the denial. An offender may apply for a determination of indigency only once per calendar year, unless the offender can show a material change in circumstances;

(G) The division's determination that an offender is not indigent is an agency action subject to judicial review as provided under W.S. 16-3-114 and 16-3-115.

(t) The sheriff of the county in which the offender is required to register or report updated information shall:

(i) Collect the fees required under subsection (r) of this section;

(ii) Retain the county registration and reporting fees collected to be expended for purposes of administering and enforcing the provisions of this act and to cover the administrative expenses and costs of collecting and remitting the state registration and reporting fees;

(iii) Remit to the division the state registration and reporting fees to be deposited in the sex offender registration account created by W.S. 7-19-310; and

(iv) Forward to the division any applications for a determination of indigency.

(u) If an offender fails to pay the fees required under subsection (r) of this section, the sheriff of the county in which the offender is required to register or report updated information shall provide to the division the registration or reporting information required under this act and notify the division of the offender's failure to pay. Unpaid fees become delinquent thirty (30) days after the date the fee is imposed, the date the offender waives the ability to request a determination of indigency by failing to submit an application or the date the division notifies the offender he does not qualify as indigent, whichever is later. Unpaid fees may be collected by the division as otherwise provided by law and as provided in W.S. 9-1-415(a). Nothing in this subsection shall be construed to prohibit the prosecution of an offender for failure to register or report updated information or for any other offense.

Credits

Laws 1994, ch. 60, § 1; Laws 1999, ch. 203, § 2, eff. July 1, 1999; Laws 2000, ch. 81, § 1, eff. March 14, 2000; Laws 2001, ch. 81, § 1, eff. July 1, 2001; Laws 2005, ch. 218, § 1, eff. July 1, 2005; Laws 2007, ch. 160, § 1, eff. July 1, 2007; Laws 2008, ch. 116, § 1, eff. March 13, 2008; Laws 2009, ch. 162, § 1, eff. July 1, 2009; Laws 2011, ch. 179, § 1, eff. July 1, 2011; Laws 2017, ch. 144, § 2, eff. July 1, 2017; Laws 2021, ch. 56, § 3, eff. April 1, 2021; Laws 2024, ch. 102, § 1, eff. July 1, 2024; Laws 2025, ch. 141, § 1, eff. July 1, 2025.

W. S. 1977 § 7-19-302, WY ST § 7-19-302

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West's Wyoming Statutes Annotated
Title 7. Criminal Procedure
Chapter 19. Criminal History Records
Article 3. Sex Offender Registration

W.S.1977 § 7-19-303

§ 7-19-303. Offenders central registry; dissemination of information

Currentness

(a) An entity registering an offender shall forward the information and fingerprints obtained pursuant to W.S. 7-19-302 to the division within three (3) working days. The division shall maintain a central registry of offenders required to register under W.S. 7-19-302 and shall adopt rules necessary to carry out the purposes of W.S. 7-19-302. The division shall immediately enter information received pursuant to this act into the central registry and shall immediately transmit the conviction data, palmprints and fingerprints to the federal bureau of investigation and national sex offender registry.

(b) The information collected under this act shall be confidential, except for that information collected in accordance with paragraph (c)(iii) of this section which information shall be a matter of public record.

(i), (ii) Repealed by Laws 2007, ch. 160, § 2.

(c) The division shall provide notification of registration under this act, including all registration information, to the district attorney of the county where the registered offender is residing at the time of registration or to which the offender moves. In addition, the following shall apply:

(i) Repealed by Laws 2007, ch. 160, § 2.

(ii) If the offender was convicted of an offense specified in W.S. 7-19-302(h) or (j), notification shall be provided by mail, personally or by any other means reasonably calculated to ensure delivery of the notice to residential neighbors within at least seven hundred fifty (750) feet of the offender's residence, organizations in the community, including schools, religious and youth organizations by the sheriff or his designee. In addition, notification regarding an offender employed by or attending school at any educational institution shall be provided upon request by the educational institution to a member of the institution's campus community as defined by subsection (h) of this section;

(iii) Notification of registration under this act shall be provided to the public through a public registry, as well as to the persons and entities required by paragraph (ii) of this subsection. The division shall make the public registry available to the public, with the exception of internet identifiers, telephone numbers and adjudications as delinquent unless disclosure is authorized pursuant to W.S. 7-19-309, through electronic internet technology and shall include:

(A) The offender's name, including any aliases;

(B) Physical address;

(C) Date and place of birth;

(D) Date and place of conviction;

(E) Crime for which convicted;

(F) Photograph;

(G) Physical characteristics including race, sex, height, weight, eye and hair color;

(H) History of all criminal convictions subjecting an offender to the registration requirements of this act;

(J) The license plate or registration number and a description of any vehicle owned or operated by the offender; and

(K) The physical address of any employer that employs the offender; and

(M) The physical address of each educational institution in this state at which the person is attending school.

(iv) The division shall adopt rules necessary to provide for the maintenance and dissemination of the information contained in the central registry of offenders.

(d), (e) Repealed by Laws 2007, ch. 160, § 2.

(f) The identity of the victim of an offense that requires registration under this act shall not be released to the public unless the victim has authorized the release of the information, provided:

(i) Nothing in this subsection shall bar the disclosure of information concerning the characteristics of the victim and the nature and circumstances of the offense so long as the victim is not identified;

(ii) Nothing in this subsection shall bar the disclosure of victim identity information contained as part of the criminal history record information disclosed to persons authorized to receive such information under W.S. 7-19-106; and

(iii) This subsection does not apply to victim identity information contained in public records which exist independently of this act.

(g) Any person who, by virtue of employment or official position has possession of, or access to, registration information furnished pursuant to this act or victim identifying information, and willfully discloses it in any manner to any person or agency not entitled to receive the information is guilty of a misdemeanor punishable by imprisonment for not more than six (6) months, a fine of not more than seven hundred fifty dollars (\$750.00), or both.

(h) An educational institution in this state shall instruct members of its campus community, by direct advisement, publication or other means, that a member can obtain information regarding offenders employed by or attending school at the institution by contacting the campus police department or other law enforcement agency with jurisdiction over the institution. For the purposes of this subsection, "member of the campus community" means a person employed by or attending school at the educational institution at which the offender is employed or attending school, or a person's parent or guardian if the person is a minor.

(j) The attorney general shall maintain a public record of the number of registered offenders in each county.

(k) The legislature directs the division to facilitate access to the information on the public registry available through electronic internet technology without the need to consider or assess the specific risk of reoffense with respect to any individual prior to his inclusion within the registry, and the division shall place a disclaimer on the division's internet website indicating that:

(i) No determination has been made that any individual included in the registry is currently dangerous;

(ii) Individuals included within the registry are included solely by virtue of their conviction record and state law; and

(iii) The main purpose of providing the information on the internet is to make the information more easily available and accessible, not to warn about any specific individual.

Credits

Laws 1994, ch. 60, § 1; Laws 1997, ch. 78, § 1, eff. July 1, 1997; Laws 1999, ch. 203, § 2, eff. July 1, 1999; Laws 2005, ch. 218, § 1, eff. July 1, 2005; Laws 2007, ch. 160, §§ 1, 2, eff. July 1, 2007; Laws 2009, ch. 162, § 1, eff. July 1, 2009; Laws 2011, ch. 179, § 1, eff. July 1, 2011; Laws 2016, ch. 13, § 2, eff. July 1, 2016.

W. S. 1977 § 7-19-303, WY ST § 7-19-303

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West's Wyoming Statutes Annotated
Title 7. Criminal Procedure
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W.S.1977 § 7-19-304

§ 7-19-304. Termination of duty to register

Currentness

(a) The duty to register under W.S. 7-19-302 shall begin on the date of sentencing and continue for the duration of the offender's life, subject to the following:

(i) An offender specified in W.S. 7-19-302(g) or adjudicated as a delinquent for offenses specified in W.S. 7-19-302(j), who has been registered for at least ten (10) years, exclusive of periods of confinement and periods in which the offender was not registered as required by law, may petition the district court for the district in which the offender is registered to be relieved of the duty to continue to register if the offender has maintained a clean record as provided in subsection (d) of this section. Upon a showing that the offender has maintained a clean record as provided in subsection (d) of this section for ten (10) years, the district court may order the offender relieved of the duty to continue registration;

(ii) An offender specified in W.S. 7-19-302(h) who has been registered for at least twenty-five (25) years, exclusive of periods of confinement and periods in which the offender was not registered as required by law, may petition the district court for the district in which the offender is registered to be relieved of the duty to continue to register if the offender has maintained a clean record as provided in subsection (d) of this section. Upon a showing that the offender has maintained a clean record as provided in subsection (d) of this section for twenty-five (25) years, the district court may order the offender relieved of the duty to continue registration; and

(A) and (B) Repealed by Laws 1999, ch. 203, § 3.

(iii) A petition filed under this subsection shall be served on the prosecuting attorney for the county in which the petition is filed. The court shall not grant a petition that was not served on the prosecuting attorney. The prosecuting attorney may file a responsive pleading within thirty (30) days after service of the petition.

(b) Repealed by Laws 1999, ch. 203, § 3.

(c) Nothing in W.S. 7-13-302 shall be construed as operating to relieve the offender of his duty to register pursuant to W.S. 7-19-302.

(d) An offender seeking a reduction in his registration period as provided in paragraph (a)(i) or (ii) of this section shall demonstrate to the court that he has maintained a clean record by:

- (i) Having no conviction of any offense for which imprisonment for more than one (1) year may be imposed;
- (ii) Having no conviction of any sex offense;
- (iii) Successfully completing any periods of supervised release, probation and parole; and
- (iv) Successfully completing any sex offender treatment previously ordered by the trial court or by his probation or parole agent.

Credits

Laws 1994, ch. 60, § 1; Laws 1999, ch. 203, §§ 2, 3, eff. July 1, 1999; Laws 2007, ch. 160, § 1, eff. July 1, 2007; Laws 2009, ch. 162, § 1, eff. July 1, 2009; Laws 2011, ch. 179, § 1, eff. July 1, 2011.

W. S. 1977 § 7-19-304, WY ST § 7-19-304

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W.S.1977 § 7-19-305

§ 7-19-305. Registration; duties of registering entities; notice to persons required to register

Currentness

(a) The entity required to register an offender under W.S. 7-19-302(c) shall provide written notification to the offender of the requirements of this act and shall receive and retain a signed acknowledgment of receipt. The entity shall forward all registration information to the division within three (3) working days after registering the offender. When registering an offender the registering entity shall:

(i) Obtain the information required for the registration by W.S. 7-19-302;

(ii) Inform the offender that if he changes residence address he shall give the new address to the sheriff in person within three (3) working days, or if he becomes transient through lack of residence, he shall report on a weekly basis to the sheriff in the county in which he is registered until he establishes another residence;

(iii) Inform the offender that if he changes residence to another state, he shall register the new address with the law enforcement agency with whom he last registered and shall also register with the designated law enforcement agency in the new state not later than three (3) working days after establishing residence in the new state;

(iv) Obtain, or arrange for another law enforcement agency to provide, fingerprints, DNA sample and a photograph of the offender if these have not already been obtained in connection with the offense that triggers the registration requirement;

(v) Inform the offender that if he is employed or attends school in another state while continuing residence in this state he must register with the other state as a nonresident worker or nonresident student;

(vi) Inform the offender that in addition to any other registration requirements of this act, if the offender becomes employed by or attends school at any educational institution in this state, or if his status of employment or enrollment at any educational institution in this state as reported during his last registration changes in any manner, he shall register the change within three (3) working days of the change with the entity with whom he last registered.

(b) The department or other agency assuming jurisdiction shall provide written notification to an offender convicted in another state of the registration requirements of W.S. 7-19-302 at the time the department or agency accepts supervision and has legal authority of the individual under the terms and conditions of the interstate compact agreement under W.S. 7-3-401.

Credits

Laws 1994, ch. 60, § 1; Laws 1999, ch. 203, § 2, eff. July 1, 1999; Laws 2005, ch. 218, § 1, eff. July 1, 2005; Laws 2009, ch. 162, § 1, eff. July 1, 2009.

W. S. 1977 § 7-19-305, WY ST § 7-19-305

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W.S.1977 § 7-19-307

§ 7-19-307. Penalties

Currentness

(a) Failure to register, update any registration information or pay any fee required under subsection (r) of this section within the time required under W.S. 7-19-302 constitutes a per se violation of this act and is punishable as provided in this section. The division shall notify the appropriate authorities when it discovers that an offender fails to register, update any registration information or pay any fee required under subsection (r) of this section within the time required under W.S. 7-19-302 or when an offender absconds.

(b) An arrest on charges of failure to register, service of an information or complaint for a violation of this act, or arraignment on charges for a violation of this act, constitutes actual notice of the duty to register. Any person charged with the crime of failure to register under this act who asserts as a defense the lack of notice of the duty to register shall register immediately following actual notice of the duty through arrest, service or arraignment. Failure to register as required under this subsection constitutes grounds for filing another charge of failing to register. Registering following arrest, service or arraignment on charges shall not relieve the offender from criminal liability for failure to register prior to the filing of the original charge.

(c) A person who knowingly fails to register as required by W.S. 7-19-302 is guilty of a felony punishable by a fine of up to one thousand dollars (\$1,000.00), imprisonment for not more than five (5) years, or both.

(d) A person convicted of a subsequent violation of knowingly failing to register as required by W.S. 7-19-302 is guilty of a felony punishable by a fine of one thousand dollars (\$1,000.00), imprisonment for not more than ten (10) years, or both.

(e) A person who willfully fails to pay fees required under W.S. 7-19-302 is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00), imprisonment in the county jail for not more than six (6) months, or both.

Credits

Laws 1999, ch. 203, § 1, eff. July 1, 1999; Laws 2000, ch. 48, § 1, eff. March 13, 2000; Laws 2005, ch. 218, § 1, eff. July 1, 2005; Laws 2007, ch. 13, § 2, eff. July 1, 2007; Laws 2007, ch. 160, § 1, eff. July 1, 2007; Laws 2009, ch. 162, § 1, eff. July 1, 2009; Laws 2011, ch. 179, § 1, eff. July 1, 2011; Laws 2017, ch. 144, § 2, eff. July 1, 2017.

W. S. 1977 § 7-19-307, WY ST § 7-19-307

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W.S.1977 § 7-19-308

§ 7-19-308. Harboring a sex offender; penalties; exceptions

Currentness

(a) A person is guilty of the crime of harboring, assisting, concealing, or withholding information about, a sex offender, if the person has knowledge that a sex offender is required to register under W.S. 7-19-302 and the person:

(i) Assists the sex offender in eluding a law enforcement agency that is seeking to question the sex offender about, or to arrest the sex offender for, his noncompliance with the requirements of W.S. 7-19-302 or any other law prohibiting a sexual offense, child abuse or kidnapping;

(ii) Withholds information, including but not limited to the location of the sex offender, from, or fails to notify, the law enforcement agency about the sex offender's noncompliance with the requirements of W.S. 7-19-302 or any other law prohibiting a sexual offense, child abuse or kidnapping and commits an affirmative act in furtherance of paragraph (a)(i), (iii) or (iv) of this section;

(iii) Harbors, or attempts to harbor, or assists another person in harboring or attempting to harbor, the sex offender;

(iv) Conceals or attempts to conceal, or assists another person in concealing or attempting to conceal, the sex offender; or

(v) Provides information to the law enforcement agency regarding the sex offender which the person knows to be false.

(b) Subsection (a) of this section shall not apply if the sex offender is incarcerated in a local, state or federal detention or correctional facility, or is in the custody of a law enforcement agency.

(c) A violation of subsection (a) of this section shall be a misdemeanor punishable by imprisonment for not more than six (6) months, a fine of not more than seven hundred fifty dollars (\$750.00), or both.

Credits

Laws 2007, ch. 13, § 1, eff. July 1, 2007; Laws 2009, ch. 162, § 1, eff. July 1, 2009.

W. S. 1977 § 7-19-308, WY ST § 7-19-308

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W.S.1977 § 7-19-309

§ 7-19-309. Juvenile sex offenders; risk assessment; factors; reporting requirements

Currentness

- (a) A minor offender convicted or adjudicated as a delinquent as specified in W.S. 7-19-301(a)(iii), shall be subject to this section.
- (b) The division shall provide notification of registration under this section, including all registration information, to the district attorney of the county where the registered offender is residing at the time of registration or to which the offender moves. Upon receipt of notification, the district attorney shall file an application for hearing under this subsection if, based upon a review of the risk of reoffense factors specified in subsection (c) of this section, the review indicates that public safety requires that notification be provided to persons in addition to those authorized to receive criminal history record information under W.S. 7-19-106. Upon application of the district attorney and following notice to the offender and an in-camera hearing, the district or juvenile court shall, based upon its finding as to the risk of reoffense by the offender, authorize the division, county sheriff, police chief or their designee to release information regarding the offender as follows:
- (i) If the risk of reoffense is low, notification shall be in accordance with the requirements of W.S. 7-19-106 to persons authorized to receive criminal history record information under W.S. 7-19-106;
- (ii) If the risk of reoffense is moderate or high, notification shall be provided to residential neighbors within seven hundred fifty (750) feet of the offender's residence, organizations in the community including schools, religious and youth organizations and to the persons authorized under paragraph (i) of this subsection, through means specified in the court's order.
- (c) In determining an offender's risk of reoffense under subsection (b) of this section, the court shall consider:
- (i) Conditions of release that minimize risk of reoffense, including whether the offender is under supervision through a program provided in title 14 or a juvenile service program, on probation or parole, receiving counseling, therapy or treatment or residing in a home situation that provides guidance and supervision;
- (ii) Physical conditions that minimize the risk of reoffense;
- (iii) Criminal history factors indicative of high risk of reoffense, including:
- (A) Whether the offender's conduct was found to be characterized by repetitive and compulsive behavior;

(B) The age of the victim of the sexual offense;

(C) Whether psychological or psychiatric profiles indicate a risk of recidivism;

(D) The offender's response to treatment;

(E) Recent behavior, including behavior while confined or while under supervision in the community as well as behavior in the community following service of sentence;

(F) Recent threats against any person or expressions of intent to commit additional crimes;

(G) Other criminal history factors, including:

(I) The relationship between the offender and the victim;

(II) The number, date and nature of any prior offenses or acts resulting in an adjudication of delinquency; and

(H) Any other factors the court deems necessary and relevant.

(d) To the extent any other provision of law conflicts with the disclosure requirements of this section, the provisions of this section shall govern.

Credits

Laws 2016, ch. 13, § 1, eff. July 1, 2016.

W. S. 1977 § 7-19-309, WY ST § 7-19-309

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W.S.1977 § 7-19-310

§ 7-19-310. Sex offender registration account; purposes

Currentness

There is created the sex offender registration account to be administered by the division. Any state registration or reporting fees collected pursuant to W.S. 7-19-302 shall be deposited into the account. Funds in the account shall be expended only upon appropriation by the legislature and shall not be transferred or expended for any purpose other than administering and enforcing the provisions of this act. Interest accruing to the account shall be retained in the account and shall be expended for the purposes provided in this section.

Credits

Laws 2017, ch. 144, § 1, eff. July 1, 2017.

W. S. 1977 § 7-19-310, WY ST § 7-19-310

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